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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. POE of Texas).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
June 27, 2013.

I hereby appoint the Honorable TED POE to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 3, 2013, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes each, but in no event shall debate continue beyond 11:50 a.m.

WHAT A DIFFERENCE A DAY MAKES

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIÉRREZ) for 5 minutes.

Mr. GUTIÉRREZ. Mr. Speaker, yesterday, a short time after the Supreme Court ruled that the Defense of Marriage Act violated the Constitution of the United States, an immigration judge in New York stopped the deportation of a man who was legally married to an American citizen.

According to press reports, the bonds of marriage that tied Sean, an American citizen, to Steven, a native of Colombia, were invisible in the eyes of the law before 11 a.m. Eastern Standard Time yesterday; but after the Supreme Court announcement, the bonds of marriage that drew these two individuals together in love and in the sight of God all of a sudden became visible to the United States Government. They materialized before our eyes, allowing a spouse of a U.S. citizen to live peacefully in the United States with his spouse as our immigration laws intended. What a difference a day makes.

Well, actually, this step towards justice took a great deal longer than a day. I'm proud that the Supreme Court finally caught up to Sean and Steven. I'm glad that the law of the land finally caught up to the American people, who generally feel that marriage equality, like other forms of equality, is a good thing. I'm glad the Supreme Court caught up to the 21st century, and I'm glad the Supreme Court caught up to me. In fact, what does a 21st century Congressman do on such occasions? I tweeted. And what did I tweet? ''I told you so.''

It was right here on this spot, on July 11, 1996, that the House of Representatives passed DOMA. I came to this well and walked up to the distinguished gentleman from Massachusetts, Barney Frank, who controlled the time on the Democratic side, and I asked him if I could speak on the bill. I had a great deal of respect for the gentleman from Massachusetts, and I have a great deal of respect for him today, now that he's happily retired and happily married. But on that particular day, he said to me, Luis, I have no time for people who are against the bill. Shoo. Go away.

Who knows, maybe it was a mild case of profiling. He saw a Latino Catholic from the Midwest and said he can't be a friend. I assured the gentleman that as a Chicago alderman, as a Congressman—you know something, just as a man—I was against discrimination, bigotry, and unfairness wherever and whenever I saw it and that I had fought in Chicago to pass a groundbreaking ordinance on LGBT equality in the 1980s. The gentleman from Massachusetts smiled, welcomed me to the team, and yielded me 3½ minutes.

I went back to check the RECORD to see what I had said on that night, and you know what? The 2013 me agrees wholeheartedly with the 1996 me. I pointed out that the supporters of DOMA were wrapping themselves up in family values when, in fact, they were preventing families from being recognized as families.

I don't know many Americans—regardless of their political party, race, religion, or sexual orientation—who don't believe that family values are vitally important. But I also don't know many Americans who want a couple of hundred politicians in Washington to impose their values on everyone else's families.

Let me tell you about some very basic values I think we're talking about when we stand up against this bill: the values of people who love each other; people who share each other's lives; people who care about their future and the future of those around them; people who want to make a commitment that is legal and official and is important to them. To me, that sounds like family values.

I am proud to have spoken up; I am proud to have voted against that bill; and I am proud to have stood shoulder to shoulder with Barney Frank and other heroes who said ''no'' and today say ''I told you so.''

Now we need to take another vital step right away. The immigration judge that stopped Steven's deportation because of his legal marriage to an American citizen was absolutely right, but we need to make sure our immigration law reflects the post-DOMA reality across the board. If the Obama administration needs to write regulations to make sure our immigration laws match the Constitution of our Nation, then they better get to work. We can't afford delay.

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Same-sex couples form families. Our immigration laws are supposed to honor families. So, Mr. President, please make it clear, from your office on down that family unity means all families. We've waited long enough.

The Highest Court in the land helped us take another step against discrimination. Now we must make sure that the administration of the law catches up with the letter and the spirit of the law. All families, like Steven and Sean, must be recognized as families for the purposes of our immigration law.

What a difference a day makes.

The SPEAKER pro tempore (Mr. AMODEI). Members are reminded to address their remarks to the Chair.

HONORING MAX FLEISCHMANN, JR., A GREAT AMERICAN FROM THE GREATEST GENERATION

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. FLEISCHMANN) for 5 minutes.

Mr. FLEISCHMANN. Mr. Speaker, today I rise to honor my father, Max Fleischmann, Jr.

My dad passed away last Saturday. We buried him Monday in the National Cemetery in Chattanooga, Tennessee, and I wanted to talk to America today about a very special man.

My dad was born in Astoria, New York, on December 29, 1925. He grew up during the Great Depression. His stories were legend. He talked to me about dime movies and penny candy, about radio, about what it was like to grow up in the Great Depression when his father had to take in other families to live with them. This generation was coined, later, as the Greatest Generation, and now I know why.

He would have folks come and visit the house. A fellow by the name of Moe Howard and his wife, Helen, would come by and sing and play the piano. Moe Howard was playing with a little-known group then called The Three Stooges. He would have a lady by the name of Gladys Weiss come and visit their home. Her late brother was a magician, an escape artist who had been deceased, called Harry Houdini. These stories were tremendous. He talked to me about his first Coca-Cola at the 1939 World's Fair and what it was like to drink that.

He was an incredible man. He had one good eye. He stood 5 feet, 2½ inches. He took 7 years to graduate from high school because he quit high school to join World War II.

When he showed up to serve in the United States Army, they said, Young man, you can go home. You're what we call 4–F. You've got one good eye. You've got poor skin. You're short. You can go home. He said, No, I want to serve; I want to serve.

And serve he did. They let him serve. And he went to the China-Burma-India theater. He didn't even know a war was going on in that part of the world because his brother was serving in the South Pacific and he had cousins serving in Europe. But he was 18 years old, and he went on a ship and on a plane and on a train and ended up in Burma. Over 2½ years later, he returned home and he went and finished high school.

My dad was a hardworking man, a company man. He always showed up and gave 100 percent wherever he worked. But he had a lot of hard work and he had a lot of hard luck. Sometimes these companies would go out of business that he worked at.

He did not have a formal education. An education was something that stood out to him.

□ 1010

And the reason I say that is in honoring him today I wanted to talk about the importance of education. I was the first person to get to go to college in my family. He married my mother in 1961. I was born in 1962. But tragically, when I was 9 years old, an only child, my mother got cancer and passed away a few years later. She lost that tragic battle. There were times he had no health insurance, there were times he didn't have a job. He would go all over the country—New York, Philadelphia, Chicago.

But one thing he insisted on. He said: ''My son is going to get an education.'' That was so important. And I did. He put 20 bucks away a week so that I could have an education. I got to go to the University of Illinois at Urbana-Champaign.

But we didn't know that was not going to be the end of the story. Because when I finished up at Illinois he said: ''What are you going to do?'' He said: ''You're bright, you have an education, but what are you going to do?'' So he said: ''Go to law school.'' He helped me through law school and paid for law school too. He got to see me get a college education and get a law degree.

He had a lot of hard luck, but he always worked hard and he made a great decision. He retired to Chattanooga, Tennessee. When he retired to Chattanooga, my wife and I started a law firm. In that law firm, we succeeded as a small business. He saw me scrimp and save and work hard 6 and 7 days a week. He always said: ''Work hard, make sure your kids get a good education.'' He did that.

He was a big part in the life of my three sons, Chuckie, Jamie, and Jeffrey. They're 24, 22, and 16 now. They honored him this week with me at the National Cemetery. What a man. He loved this country, he served this country, he never forgot the Greatest Generation who gave so much for this country, and he was a good guy. He was honest to the core.

He got to live to see me elected to this great House. Sometimes we get ratings 6 percent, 10 percent, 11 percent. He loved to watch this House. He really liked it when I got to sit in the Chair. He would call all the relatives: ''My son is presiding over the House today.'' But ladies and gentlemen, we have a great country, a wonderful country. He knew that. Only in America could you do something like this—come from last to first.

So I just wanted to say today: Thank you to my dad. Staff Sergeant Max Fleischmann, Jr., you did well. God bless you.

SEQUESTER

The SPEAKER pro tempore. The Chair recognizes the gentleman from Maryland (Mr. HOYER) for 5 minutes.

Mr. HOYER. I know that I—before I get to my remarks—join all the House in saying thank you to your father and to the Greatest Generation, who not only fought the terrorists of their time but came home and built the greatest economy the world has ever seen and gave us all opportunities of our generation. I'm older than you are, but of our generation. So I thank you for your comments. I know that your father is extraordinarily proud of you and extraordinarily proud of the remarks you just made showing how proud you are of him.

Mr. Speaker, tomorrow, the majority party is set to recess this House for a week, leaving in place their economy-stifling and irrational policy of sequester.

We talked about the Greatest Generation. I fear that this generation is going to be the greediest generation, who are not going to leave our children the great economy that was left to us but will leave an economy that is limping because of the policies that we pursued and the debt that we have incurred.

When sequester took effect 17 weeks ago, it was the culmination of an effort by the extreme wing of the majority party to impose severe and senseless cuts across the Federal Government without regard for the real consequences to our economy, our national security, and our most vulnerable citizens.

Let me review just some of its many consequences.

Head Start and title I:

We will lose between 70,000 and 130,000 seats in Head Start for some of the most vulnerable children in America; 10,000 teachers' jobs will be at risk in title I to teach some of our most vulnerable children.

Social Security Administration:

Furloughs will cause delays in processing retirement and disability claims.

Nutrition for vulnerable populations:

Four million fewer Meals on Wheels for our seniors who rely on them for a daily nutritional meal.

Housing:

125,000 housing vouchers, perhaps more, will be eliminated for people who need housing.

Unemployment insurance:

Emergency unemployment insurance past 26 weeks will be cut 11 percent for people who cannot find a job, in part

because there has been no jobs legislation put on this floor since we've been here this year.

FDA:

2,100 fewer food safety inspections, an 18 percent reduction in making sure that the food we eat is safe and healthy.

On top of these, it also erodes our military readiness, with one-third of our combat aircraft on the ground, not being flown, training not being done.

As the Washington Post columnist David Ignatius pointed out last Friday, sequestration is forcing the military to cut back on training programs vital to our defense readiness, and yet we fiddle while Rome is burning.

David Ignatius writes:

> The Army is sharply cutting training above the basic squad and platoon level. All but one of the combat training center rotations scheduled for brigades this fiscal year have been canceled. Depot maintenance has been halted for the rest of the fiscal year. The Army will cut 37,000 flying hours from its aviation training.

The list goes on and on, Mr. Speaker.

In February, Army Chief of Staff General Ray Odierno told Congress:

> Should a contingency arise, there may not be enough time to avoid sending forces into harm's way unprepared.

On July 12, Mr. Speaker, civilian defense personnel at the Pax River Naval Air Station, which I represent, are scheduled to begin furloughs as a result of the sequester. That's a personal concern to me, it's a concern to their families, but more broadly than that it's a concern to the national security of every American citizen. Those folks are among the hundreds of thousands of civilian defense workers in Maryland and across the country who are set to be furloughed next month unless—unless—Congress acts. Congress can end these arbitrary and irrational cuts by replacing the sequester in its entirety as part of a big and balanced solution to deficits.

We had a deal. It was called the Budget Control Act. OMB now estimates it cut $1.4 trillion. It's not as if we've ignored the deficit—$1.4 trillion. But we didn't get all the way to where the Speaker said we needed to be and, therefore, we adopted the sequester, which irrationally cuts across the board the highest priority and the lowest priority.

□ 1020

Our ranking member on the Budget Committee, Democrat CHRIS VAN HOLLEN, has tried seven times to bring to this floor legislation to exactly modify this policy so that we have a rational, national security protecting, vulnerable citizens-protecting alternative while saving and getting to the same budget deficit reducing number—the same. However, our Republican colleagues have refused the opportunity to consider that on this floor.

We hear a lot about the Speaker saying, Let the House work its will. Seven times we have asked this House leadership to give us the opportunity to work our will. The best way to achieve the balanced alternative to the sequester and put America's fiscal house in order would be through a bipartisan agreement on a budget. Leader PELOSI is going to name our conferees in just a few minutes. This Saturday will be the 100th day since the House passed its budget and after we demanded that the Senate pass a budget, Mr. Speaker. Still, 100 days later, no action on this floor by the majority party to go to conference—to sit down and try to come to an agreement. That's what democracy is about, coming to an agreement. This House should not be going into recess without first appointing conferees.

Ten percent of Americans think we're worth anything. I need to talk to them because they're not sure what's going on here, apparently.

I believe there is a bipartisan majority of Members—I hope that's the case—who will support a balanced approach that restores fiscal discipline and ends this irrational, commonsense-defying sequester. Let the House work its will, Mr. Speaker. It's time to appoint budget conferees. It's time for a balanced alternative to the sequester. As the sequester continues, there is no time to waste; and we ought to stay here and get the job done. Regular order, regular order, regular order—I hear it all the time. The problem is we are not following regular order—to the detriment of our country and our citizens.

ATTACK ON SHIITE MUSLIMS IN EGYPT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. First of all, I want to say nice job to CHUCK FLEISCHMANN for his comments on his father.

Then, before my colleague from Maryland leaves, I want to make sure that he understands that we understand the history of this whole budget process.

The Nation is $16 trillion in debt. It was the President's proposal to sequester; and it was his vote, along with my vote, that passed the Budget Control Act that enacted sequester. So, many of us are not just going to come to the floor and get lectured to on this process of how do you eventually get control of this national debt.

Sequester is a tough process. It's a tough pill to take. It's the first time we've ever cut real dollars. As I tell my colleagues, in the big picture of a $16 trillion debt, it's pocket lint. It's such a small percentage of our future obligations, and that's where the debate on entitlement programs has to go. It's Medicare, Medicaid, Social Security, and the interest payment on our debt that, if we don't get control actuarially in the out-years, we will continue to have to cut the discretionary budget, which is damaging to all of those things my colleague mentioned.

Yet for him to come down and profess outrage over a proposal that the President presented to this body and then to profess outrage when he voted for the bill, I think it's just the height of hypocrisy.

That's not what I came down to the floor to talk about, but this gives us an opportunity to respond. I did want to talk about the recent occurrences in Egypt which identify persecution.

The Middle East is a continually changing region. We have had citizens protesting their nondemocratic governments numerous times in calling for change and freedom across the region. In 2012, the world would watch incredible change in Egypt following the election of Mohamed Morsi, when he became the President. This country continues to struggle in instituting a democratic government. However, the work of the Morsi government is not met without opposition, and attacks on minority groups are still an ongoing issue.

In the recent past, Coptic Christians have been persecuted; and on Sunday, June 23, Shiite Muslims were attacked by a mob of Sunni Muslims in the village of Zawyat Abu Musalam. Four Shiites died in this attack, and many others were injured. Shiite Muslims make up roughly 2 percent of the Egyptian population of 80 million people.

While President Morsi has condemned these attacks, further steps need to be taken to address the ongoing persecutions of Egypt's religious minorities. Persecution will continue if sentiments towards minorities are not changed. For Egypt to have a successful, lasting democratic government, people of all religions will need to be included.

The United States was created on the principle that all people should have the right to practice their religions freely and openly and without fear of persecution. As a Christian and as a Member of the House of Representatives, which is composed of a vast array of Members with different beliefs, it is my hope that this country will continue to be an example that Egypt can look to.

I urge the Egyptian Government and the people to continue to condemn these religious-based attacks and to take positive steps towards religious freedom. I will continue to keep the country of Egypt and their religious minorities in my prayers, and I ask my colleagues to do the same.

END HUNGER NOW

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. MCGOVERN) for 5 minutes.

Mr. MCGOVERN. Mr. Speaker, I rise once again to address the House on the need to end hunger now. This is the 14th time that I've done so this year.

Next week, the Members of this House will return home to their districts for the 4th of July district work

period. There will be parades and fireworks and picnics for all of us, but for too many of our neighbors there will be no such festivities. They will be too busy working two or three jobs just to make ends meet.

They will be worrying about their children, who, during these summer months, are too often forced to go without enough nutritious food to eat because school is out of session, because in our country, Mr. Speaker, in the richest, most powerful Nation in the history of the world, the reality is that 50 million of our fellow Americans struggle with hunger.

I am also sure that, during the 4th of July activities, many Members will be getting quite an earful from the farmers in their districts. Those farmers are now facing confusion and uncertainty as they prepare for yet another season without a long-term reauthorization of the farm bill. They will wonder why this House of Representatives can't seem to get its act together.

I hope that my colleagues will tell them the truth, which is that the reason the farm bill failed in the House last week is that it would have thrown 2 million people off the SNAP program. It would have caused over 200,000 children to lose access to the free school breakfast and lunch program. It would have made hunger worse in America. It would have forced struggling Americans to jump through all sorts of hoops, like drug testing, while not requiring the same of wealthy farmers who receive Federal subsidies. It would have not only allowed but actually encouraged States to find ways to kick people off the SNAP program. In short, it would have continued the Republican majority's assault on hard-working, struggling poor people; and for many of us on our side of the aisle, that price was simply too high.

As columnist E.J. Dionne wrote after the defeat of the bill:

> This is, above all, a story about morality. There is something profoundly wrong when a legislative majority is so eager to risk leaving so many Americans hungry. That's what the bill would have done and why defeating it was a moral imperative.

Mr. Speaker, I want a farm bill. Our farmers deserve a farm bill. I am honored to represent hundreds of small farmers, and I am honored to serve on the Agriculture Committee. I know that Chairman LUCAS and Ranking Member PETERSON worked incredibly hard to thread a very small needle. If the Republican leadership really wants a farm bill, it should do away with these draconian SNAP cuts and bring a bill to the floor that acknowledges the struggles faced by millions of our neighbors.

□ 1030

My fear, however, is they will do just the opposite, that they will go even further, make even deeper cuts to food and nutrition programs, make even more Americans hungry in a vain attempt to convince some of their more right-wing members to support this bill. Indeed, we see that dynamic at work with the agriculture appropriations bill before us this week, a bill that makes drastic cuts to the Women, Infants and Children program.

I would like to once again urge the White House to take an active leadership role on this. Last week, the administration issued a veto threat against the farm bill because of the devastating SNAP cuts that it contained, and I welcomed that threat. It was a positive sign. It was a positive sign that the White House understands that throwing 2 million people off of SNAP would be devastating not just to those individuals, but to our economy, as well.

But the administration, quite frankly, needs to do more. They need to convene a White House conference on food and nutrition so that we can get everyone in a room, including our farmers, to address the issue of hunger in America. Let's solve this problem. This is a solvable problem, but it needs attention and we need to have a plan.

Mr. Speaker, I urge my colleagues on both sides of the aisle to reflect over the next week about where we should go from here. Do we want to live up to the bipartisan tradition of giants like Bob Dole and George McGovern, who came together and helped create this anti-hunger safety net that we have in this country? Their leadership almost ended hunger in this country in the 1970s. Unfortunately, we have strayed so far away from what they've done that we now find ourselves with 50 million hungry people.

Do we want to unite to provide a circle of protection around our most vulnerable neighbors? I hope so, Mr. Speaker. I hope that this House of Representatives understands that one of our obligations is to make sure that the needy and the poor and the most vulnerable are not forgotten, that we don't sit back and allow them to fall through the cracks.

We can do this. We can end hunger now. All we need is the political will.

FREEDOM IN THE BALANCE

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. MCCLINTOCK) for 5 minutes.

Mr. MCCLINTOCK. Mr. Speaker, three major developments have occurred within the last 6 weeks that are each disturbing by themselves, but extremely alarming when viewed together.

The first was the revelation that for more than 2 years, one of the most powerful and feared agencies of the Federal Government was used to harass and intimidate individual Americans into silence because of their political beliefs. Evidence has already established that hundreds of conservative groups were subjected to invasive interrogations when they sought to participate in the political process. This pattern of conduct was not limited to applications under section 501(c) but included audits of established conservative groups and individuals, as well. This conduct reached the highest levels of the IRS. A similar pattern of abuse has been documented in several other agencies, including the Department of Labor and the Environmental Protection Agency. These facts are undisputed, and their implications are utterly toxic to a free society.

The second development was news that the Justice Department had surreptitiously seized the telephone records of some 20 reporters covering Congress for the Associated Press in an obvious attempt to discourage whistleblowers from talking to the press. Fox News reporter James Rosen and his family were stalked by authorities as he tried to get to the bottom of the Benghazi scandal. To obtain the search warrant allowing this, the Attorney General of the United States filed an absolutely spurious claim with the Federal court charging that Rosen had conspired to violate the Espionage Act. That's the same act under which Julius and Ethel Rosenberg was executed in 1953. The message to reporters asking inconvenient questions of this administration could not possibly have been more powerful or terrifying, and this week the head of AP reported that their news sources have indeed dried up in response to these naked acts of intimidation.

The third development is news that the Federal Government has swept up the phone and Internet records of millions of Americans in the name of state security just months after the official in charge categorically denied the existence of this program in sworn testimony to Congress.

The practice of the government searching your personal records without having first established reason to believe that you have committed a crime is expressly forbidden by the Fourth Amendment, adopted in direct response to British officials indiscriminately searching homes and records for evidence of contraband, yet this government has done precisely that on a scale unimaginable in colonial times, in this case searching for evidence of terrorism.

If I know the Web sites that you've visited and what phone numbers you've called, I know a great deal about your political and religious beliefs, your personal relationships, your sexual interests, your mental and physical health and your family finances. And with that information in the hands of officials who already have demonstrated a clear intention and ability to use their power to intimidate political adversaries into silence or to discourage reporters from asking embarrassing questions, our society could very quickly cross a very bright line between freedom and authoritarianism.

As if to underscore the point, the administration spokesman recently told a national television audience that

''the law is irrelevant.'' He called these matters ''a distraction.'' What does that say about a society that once prided itself on being a Nation of laws and not of men?

All around this Capitol, we are surrounded by the trappings of the Roman Republic. They serve as an inspiration, but they should also serve as a warning. The Roman Republic didn't end because Caesar crossed the Rubicon with his legion. It was because that illegal act was not effectively resisted and led to another usurpation and then another and then another over a period of years. It was the accumulation of many such infringements that brought the inexorable decline of freedom and set the stage for Rome's age of tyrants. That's what Jefferson meant when he said the price of liberty is eternal vigilance.

My great fear, as we adjourn tomorrow to celebrate the 237th anniversary of American freedom, is that sometime between the barbecues and the fireworks we shrug off these profound developments and go about as if nothing has happened. The summer of 2013 has brought us to a crossroads, and I rise today to urge the House to give these events its full and undivided attention.

''REDSKIN'' OFFENSIVE TO NATIVE AMERICANS

The SPEAKER pro tempore. The Chair recognizes the gentleman from American Samoa (Mr. FALEOMAVAEGA) for 5 minutes.

Mr. FALEOMAVAEGA. Mr. Speaker, just yesterday on the cover page of The Washington Post newspaper, there was an article written by journalists Jon Cohen and Rick Maese that, according to a recent poll taken among the sports fans of the Washington, D.C. area:

A large majority of area sports fans say the Washington Redskins should not change the team name, even though most supporters of the nickname feel the word ''redskin'' is an inappropriate term for Native Americans.

Mr. Speaker, not only is the term ''redskin'' inappropriate, but it is just plain offensive and derogatory towards Native Americans. And I want to share with my colleagues in Congress, and especially the American people, how the word ''redskin'' came about and its history.

In 1749, it was a standard procedure among settlers who lived in what is now known as Maine and Nova Scotia to kill and scalp as many of the Indians as members of the Micmac Tribe. The same policy was also implemented in 1755 by settlers who lived in what is now known as the State of Massachusetts—that their object was to kill and scalp members of the Penobscot Indian Nation.

Mr. Speaker, the policy was you get paid for killing and/or scalping Native American Indians. And if you kill an Indian boy, you get paid 50 pounds. If you get a scalp of an Indian, you also get paid 40 pounds. For any female, Mr. Speaker, under 12 years old that you killed or scalped, you also get paid 25 pounds. Mr. Speaker, I submit that these scalps were also called ''redskins.'' Mr. Speaker, this is why this word is so offensive to Native Americans.

Mr. Speaker, there's a saying in Indian country: ''Walk in a man's moccasins for 2 weeks before you pass judgment on that person.''

□ 1040

Mr. Speaker, my point is what if that scalp belonged to your mother or to your wife or daughter or your brother or sister or to your son or father? Mr. Speaker, it is my sincere hope that our Washington fans and the American public will come to realize why the usage of the word ''redskin'' has brought nothing but a stark reminder of the horrors of how Native Americans have been treated for centuries.

Mr. Speaker, I honestly believe in the fairness and decency of the American people. I believe that many of our fellow Americans did not know of the history of the word ''redskin,'' and I sincerely hope many others will come to a better understanding as to why Native Americans feel obviously offended by the use of the word.

I hope Mr. Roger Goodell, commissioner of the National Football League, and all the NFL club owners will seriously raise this matter with Mr. Dan Snyder to try to change the name of his Washington football franchise. The NFL has a moral responsibility to take corrective action on this matter. It is the right thing to do.

Under the mandate of the U.S. Constitution, Mr. Speaker, the U.S. Congress has both a legal and moral responsibility to look after the needs of our Native American nations. It is for this reason that the bill, H.R. 1278, was introduced to not allow or to cancel the registration of the word Redskins as a trademark name simply because it is a derogatory term and a racial slur against Native Americans.

Mr. Speaker, don't get me wrong. I'm a great supporter and fan of the sport of football. In fact, I played 4 years of football in high school. Many of my relatives played both at the college level and in the NFL: the late Junior Seau of the San Diego Chargers; Troy Polamalu of the Pittsburgh Steelers; Jesse Sapolu of the 49ers, just to name a few. There are many others. My point, Mr. Speaker, is we need to correct this inequity. We need to show a little more respect for members of the Native American community.

[From the Washington Post, June 26, 2013]

WASHINGTON REDSKINS NAME: WASHINGTON POST POLL FINDS MOST D.C. AREA FANS SUPPORT IT

(By Jon Cohen and Rick Maese)

A large majority of area sports fans say the Washington Redskins should not change the team name, even though most supporters of the nickname feel the word ''redskin'' is an inappropriate term for Native Americans, according to a new Washington Post poll.

The debate over the team's name has intensified in recent months as members of Congress, activists and media commentators criticized it as offensive to Native Americans and lobbied for change. But most Washingtonians—61 percent—say they like the team's name, and two-thirds say the team should not change it, according to the poll.

Among Redskins fans, about eight in 10 say the team should keep its name. Also, there's some evidence that changing it might undermine support from some of the team's most ardent backers.

''It's been associated with the team for so long, I just don't see any reason to change it now,'' said retiree Joseph Braceland, 70. ''It was not meant to be derogatory.''

A quarter of all area adults and slightly more than half of self-described Redskins fans say they ''love'' the team name, yet both groups overwhelmingly say that in general a new name wouldn't make much difference to them.

Among those who want to keep the Redskins' name, most—56 percent—say they feel the word ''redskin'' is inappropriate. Only half as many—28 percent—consider the term as an acceptable one to use.

''I think any word that you deal with, it depends on the context,'' said Stephan Bachenheimer, a District resident who works for the World Bank and supports the Redskins' name. ''A lot of people have a hard time separating these issues.''

The name has been subject to much criticism and public debate this offseason, with both local and national leaders urging the team to consider a name change, a request the team has fervently resisted.

In the new poll, 28 percent of all Washingtonians say the team should change its name, far above the 11 percent nationally who said so in a recent Associated Press poll.

''I don't believe in being super politically correct—I have a sense of humor—but I think this name came about at a time when there was very different awareness about the plight of the American Indians,'' said Mary Falvey, 60, who works in communications for the Food and Drug Administration. ''I just don't think it's appropriate. There's increased sensitivity about race in this country today—for the good.''

While feelings about the team's nickname were similar across most demographics, the percentage advocating a shift in the D.C. area peaks at 39 percent among African Americans with college degrees. (There weren't enough Native Americans among the poll's 1,106 respondents for meaningful comparison; Native Americans make up less than 1 percent of the population in the region, according to Census data.)

According to poll results, education plays a role more broadly: 34 percent of all area college graduates say change the name, compared with 21 percent of those with less formal education.

''Leave the name alone,'' said Eileen Schilling, 52, who works in construction sales. ''It's ridiculous. It's getting completely out of hand. Pretty soon we won't be able to dye our hair because it might offend someone. I'm Irish. Should the Notre Dame Fighting Irish change their name because I don't like it? Hell no. What about the Kansas City Chiefs? The Cleveland Indians? Should the Eagles change their names because it's a national symbol? It's ridiculous.''

PRESIDENT PANDERING TO ENVIRONMENTAL GROUPS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. POE) for 5 minutes.

Mr. POE of Texas. Mr. Speaker, the President this week declared he's going

to unilaterally stop climate change. That's right, he's going to part the oceans and change the temperature to his liking. How's he going to do this? Well, he's declaring war on fossil fuels—again.

This week it's coal. Mr. Speaker, coal counts for 37 percent of our Nation's electricity. How does the President plan to make up for that 37 percent? Well, the ruler doesn't really say. I guess that 37 percent will just have to do without heat come winter. In his radical climate change manifesto, to a room packed full of his environmental lobby, the President issued a edict to the EPA to regulate coal out of existence.

Both Congress and the American people have overwhelmingly rejected this policy in the past. Never mind the will of the people, never mind Congress has said ''no'' to these ideas. The President is pandering to the environmental groups, and he wants it his way. So he's just going to issue another one of those—what I believe is unconstitutional—executive orders.

Mr. Speaker, there are consequences for such rash actions by the President. The White House war on coal will raise the cost of energy for American families, cripple the economy, and destroy hundreds of thousands of jobs of people who work in the energy industry. The war on coal is really a war on the American people.

Mr. Speaker, maybe the President is not aware that the coal plant over here on South Capitol Street heats part of the Capitol. Is this his way to silence Congress? Who knows. But this is just another day from the administration whose energy policy is ''nothing from below.'' Nothing from below the ground, nothing from below the sea. No oil, no coal, no gas, and no jobs. That's the result of this policy. That's why I've introduced the Ensuring Affordable Energy Act. My bill will put an end to this back-door attempt by this administration to go around Congress and circumvent the will of the people. This bill would prohibit any EPA funds from being used to implement the regulation of greenhouse gases. This has passed in the House, but it has yet to become law.

Now let's talk about natural gas. Down the street from the White House is another marble bureaucratic palace they call the Department of Energy. Sitting on their oak desks are dusty folders holding applications to export liquefied natural gas. In 2010, the oil and gas industry contributed almost $500 billion to our economy. And over the last 7 years, the amount of recoverable natural gas in our country has skyrocketed. For the first time in our Nation's history, we have more natural gas than we can use here in the United States, even if we tried. America can sell that gas on the global market for billions of dollars, creating thousands of jobs in the process; but we're not doing it, for one simple bureaucratic red-tape reason—the Department of Energy.

In typical Washington-style fashion, we've seen delay, delay, delay by the Department of Energy to approve these permits. Over the last 70 years, this bureaucratic hurdle was hardly noticed as the U.S. was an importer of natural gas, but not so anymore. Technology has changed all of this. There are some 18 export applications sitting over there on those desks in those dusty folders for the DOE to approve. The Department's response: no response. In the last 3 years, the DOE has granted only two applications. Meanwhile, countries that want to buy American natural gas are going to our worldwide competitors, like China and Russia. Isn't that lovely.

Understand this, Mr. Speaker, there is already an agency, FERC, the Federal Energy Regulatory Commission, that is in the pipeline to approve applications such as this. So we have duplication with the DOE and FERC. So what we have to do is remove the DOE from the process, remove this duplication.

Mr. Speaker, we have enough oil, natural gas, and coal in America to make the Middle East turmoil, Middle East politics, and Middle East energy irrelevant if we would just use our own God-given natural resources. Washington bureaucrats sit at their large oak desks sipping on those lattes every day, and they are regulating American energy out of business. It's time to take the padlock off the marble palaces of the EPA and the DOE and remove the bureaucrats from the energy business. Let's use the resources the good Lord has given us to take care of America.

And that's just the way it is.

STRUGGLE FOR EQUALITY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. DANNY K. DAVIS) for 5 minutes.

Mr. DANNY K. DAVIS of Illinois. Mr. Speaker, the struggle for equality, for justice, for freedom, for democracy is an awesome force. No force, no historical circumstance has done more to shape our Nation, but that struggle has always been confronted by an endless series of attempts to block, minimize, sidetrack, undo, and weaken our democracy. Through all these struggles, those most oppressed have repeatedly taken the lead to reinforce our democracy and solidify our Nation.

We fought a bloody, wrenching Civil War to end a Nation that was suffocating ''half slave and half free.'' Three million men fought in that war, and 620,000 died. Although African Americans made up 1 percent of the population of the North, they made up 10 percent of the Union Army.

In the aftermath, Congress sought to enshrine in the Constitution, forever, basic democratic rights: in the 14th Amendment, the power to enforce the Bill of Rights, due process, and equal rights; and in the 15th Amendment, voting rights regardless of race, color, or previous condition of servitude. But a violent, terrorist backlash led by the Ku Klux Klan prevented the implementation of our Constitution for a hundred years until a new civil rights struggle, based on nonviolence, but no less powerful, forced our Nation, the courts, and this Congress to recognize those promised constitutional rights.

Among the forms of recognition were the Civil Rights Acts of 1964 and 1965. They transformed the political landscape of America.

□ 1050

But the truth is that, beginning as far back as the Nixon administration, efforts sought to chip away at those rights. Yesterday's Supreme Court decision undermining the enforcement of voting rights is the latest attempt to roll back history.

Shall we go forward or shall we go backwards?

The rapidly changing demographics of our Nation is calling new forces into the struggle for civil and voting rights every day, and our response to yesterday's Supreme Court decision presents a challenge for every Member of this Congress. And we have to ask ourselves: Which side are you on?

For me, the path is clear. We need a Federal right to vote enshrined in our Constitution, one clearly, unambiguously, boldly, proudly asserting that we will not tolerate any infringement on our rights as citizens to express the will of the people.

Those who seek to dilute voting rights, to place barriers on every citizen's right to participate in this government, will find themselves on the wrong side of history and, in the end, will be no more able to stop the movement for equality, for justice, for freedom, for democracy than they're able to stop the sun from rising in the morning or setting in the evening or to stop people who've decided that they love each other from expressing it.

OFFSHORE ENERGY AND JOBS ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Virginia (Mr. RIGELL) for 5 minutes.

Mr. RIGELL. Mr. Speaker, before I begin my remarks, I want to just express my appreciation to our colleague, Mr. FLEISCHMANN, and my respect for him and the eloquent tribute that he paid his father. Indeed, his father was a member of the Greatest Generation, and we thank him, his father, for his service to our country.

Mr. Speaker, I rise this morning to talk about my number one priority in serving the Second District of Virginia and this incredible country that we have the privilege to live in, and that's jobs. That's the number one focus for our office.

I rise in strong support of House Resolution 2231, Offshore Energy and Jobs Act, that will come before this House either today or tomorrow. That bill includes language that I authored and introduced, and it creates a clear path,

an opportunity that can really change the lives of hardworking Americans.

And I'm awfully proud of what the bill will do—ideally, when it's passed through the Senate and made into law by the President—in job creation.

But before I share with this House what the bill actually does and what the language does, I want to make clear what it's not. It's not a bill that spends more money. In fact, it's just the opposite. It's a bill that actually creates Federal revenue.

Here's how it works:

Right now, there is a moratorium, a full stop, on offshore exploration of energy off the coast of Virginia. And what our bill does and what the language does is it breaks through that, and it opens up that tremendous job-creating potential of Virginia's offshore energy.

The first benefit of this bill, of course, is jobs. Eighteen thousand jobs are estimated to be created by this bill, just in Virginia alone. And, Mr. Speaker, every one of those jobs is a life-changing job.

I'm an entrepreneur in what I refer to as a season of public service, and I've had the privilege, hundreds and hundreds of times—perhaps thousands, I don't know—of being able to look at an applicant and say these incredible words, ''You're hired.'' And I know the person goes home and says, ''I got the job.'' That's what Americans are looking for is opportunity, and that's what this bill advances.

And as we become more energy independent, what happens is we've reduced our need to have our young men and women around the world protecting our sources of energy. It makes America a safer country.

Right now, more money than any one of us would like is going to countries like Venezuela and Saudi Arabia. These countries don't share our values, and we're fueling their economies. We should be fueling our economy.

It creates the revenue, Mr. Speaker, that we need. I'm a Republican who talks about the need for more revenue, but we get that by growing our economy. This is the way we can invest in our schools and have better roads, make the investments that we need to make into our infrastructure.

And look, it fast-tracks a great renewable—wind. It has tremendous opportunity. Frankly, it's too expensive right now. But we're Americans. We're smart. We can innovate. We can think our way through this and find a way to make wind energy more affordable.

In this very body right here, the President came in and he said, I'm all of the above with respect to energy. Mr. Speaker, that's common ground, and I'm delighted to say it's common ground.

Right now, I'm having difficulty reconciling what he said with this full moratorium off the coast of Virginia, and this bill represents common ground. We've got the Governor of Virginia. We have our two U.S. Senators, interestingly, both Democrats, Senator KAINE and Senator WARNER, both support, in principle, this same objective. In fact, they're introducing similar legislation in the Senate. The General Assembly of Virginia wants to move forward. There is a clear consensus in Virginia that this legislation ought to go forward.

Right now, the only thing holding up these jobs, every one of these life-changing jobs, is the administration. We're not asking for a tremendous amount of money. As I mentioned, in fact, we're just asking for the administration to get out of the way.

Mr. Speaker, I didn't mention what tremendous local support this bill has: We have the local NAACP behind the bill. The mayor of Virginia Beach, the largest city in our district, is behind the bill; Hampton Roads Chamber of Commerce, Hampton Roads Planning District Commission, Hampton Roads Global Commerce Council, the Virginia Port Authority.

And we can do this, Mr. Speaker, while meeting the deep obligation that we have, the moral obligation to leave our children with clean air and clean water and clean soil.

To those who put one against the other, that it's either jobs or a good environment, I reject that outright. Why? Because we're Americans. It's in our DNA to innovate and to think through these things. We can have a reliable source of energy. We can help right off the coast of Virginia. We can create the local jobs that we need to give our young people opportunity and our veterans that are exiting the military, so many of whom exit the military right there in Hampton Roads.

Mr. Speaker, I urge my colleagues to vote in favor of the bill.

THE DEFEAT OF THE FARM BILL

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. DUNCAN) for 5 minutes.

Mr. DUNCAN of Tennessee. Mr. Speaker, last week the 1,200 page farm bill was defeated. I'm told that the Senate's immigration bill is now 1,922 pages.

The previous Speaker of this body, the gentlelady from California (Ms. PELOSI), famously said that we would have to pass the very misnamed Affordable Care Act, we would have to pass it before we could figure out or find out what was in it.

The last issue of the Weekly Standard magazine includes an article entitled, ''Our Masters, the Bureaucrats.'' The article says that today there's only one Member of Congress for each 5,150 Federal bureaucrats and says that this bureaucracy is ''too insulated from the people.''

This gigantic bureaucracy has produced so many laws, rules, and regulations that they have not even designed a computer that could keep up with all of them, much less a human being.

Almost everyone has violated a Federal law at some point, especially a tax law. An innocent mistake is not supposed to be criminal, but a zealous prosecutor can make almost anything criminal.

A few days ago, a woman who described herself as a progressive or liberal Democrat and, thus, would favor all these regulations testified in one of my committees and said, ''at the time each rule was created, it made sense; but over time, the accretion, or accumulation, of rules and regulations ends up costing us money and frustrating the public.''

Our Federal Government has grown so big that it is now almost completely out of control, and the people are suffering because of it. Jobs are killed, small businesses go under, and on and on and on.

I started this morning by mentioning the farm bill, so complicated that cost estimates ranged all the way from $500 billion to $1 trillion. We didn't even know how much it was going to cost.

Everyone respects and appreciates farmers. We must help small farmers as much as we can. Small farmers are important for our quality of life and our economy.

However, one part of the bill that I want to discuss here briefly this morning is the subsidy for crop insurance.

Every other business in this country, small or large, pays 100 percent of their insurance on their own.

□ 1100

These businesses do not expect or request subsidized Federal insurance. Right now, Federal taxpayers are paying for two-thirds of farmers' subsidies in Federal crop insurance. Most of these subsidies go to the biggest giants in agriculture. These subsidies also primarily benefit a very few multinational insurance companies. The biggest crop insurer is Wells Fargo. And several of these crop insurance giants are operated by foreign companies based in places like the Bahamas, Japan, and Switzerland. That's who the U.S. taxpayers are subsidizing.

I'm not advocating doing away with the entire crop insurance program. However, the excessive amount of this subsidy just last year cost taxpayers $6 billion and was one of several reasons the farm bill went down to defeat. Actually, the farm bill should more accurately be called the food stamp bill. I think 20 percent of it dealt with farmers and 80 percent for food.

But I did offer an amendment to the farm bill to eliminate premium subsidies from being paid on any Federal crop insurance policy with what is known as the harvest price option. Under the harvest price option, if the price of the covered crop increases between planting and harvest, the farmer's revenue guarantee is recalculated, using the higher harvest price. In other words, giving the farmer more money—sometimes, significantly more money—than he expected when he first planted the crop. As a result, harvest price options can cause a farmer to receive

much more revenue than was guaranteed at planting.

According to the Congressional Budget Office, my amendment would have saved at least $7.7 billion over the next 10 years, and possibly even much more in years with a severe drought, such as the $6 billion last year. This amendment was endorsed by the Citizens Against Government Waste, Americans for Tax Reform, the National Taxpayers Union, Heritage Action, Taxpayers for Common Sense, and a slew of other fiscally conservative organizations, as well as the Environmental Working Group.

Professor Bruce Babcock, a professor from Iowa State University who helped invent revenue coverage in the mid-1990s, has said:

> Crop insurance is not an insurance program. It's a social program.

And, he says, because of how American agriculture works, it's a social program that helps the biggest agribusinesses the most.

My amendment even got a tacit enforcement from the Farm Bureau because they realized this subsidy has now become too lucrative and too excessive. But the agribusiness lobby was afraid of my amendment and kept it from even being presented on the floor because they were almost certain it would pass.

Mr. Speaker, we have to make changes in the future so too much tax money will not go to Cadillac crop insurance programs.

COAL

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. MURPHY) for 5 minutes.

Mr. MURPHY of Pennsylvania. Mr. Speaker, in May, more than 130 employees at PBS Coals in Somerset County, Pennsylvania, were laid off. It was the third round of layoffs by the company in less than a year. The men and women of PBS Coals joined more than 5,000 coal miners who lost their jobs in 2012.

With his announcements of ''Cap-and-Trade: The Sequel,'' the President recently declared not just a war on coal but a war on jobs. It won't just be coal miners who lose their jobs or boilermakers who no longer are building and maintaining power plants, but also thousands of laborers, electricians, operating engineers, steamfitters, welders, plumbers, carpenters, machinists, and railroad workers will be out of work—real people, real faces, real families. They'll join the 130 at a Joy Mining factory in Millersburg, Kentucky, who were laid off in March; in Peoria, Illinois, the hundreds of boilermakers at a Komatsu equipment factory who were let go; and, in Erie, Pennsylvania, where GE is laying off 950 workers at its locomotive plants because less coal means less work for the railroads.

These men and women are out of work because, at the country's 600 coal plants, more than 20 percent of all coal-fired units are being shut down in part due to EPA regulations. And that was before the President's speech on Tuesday announcing new global warming regulations. Now, more families will be out of work and struggling to get by. These are American families trying to pay off mortgages, car loans, put their children through school. Real Americans who sweated and toiled, all in hopes that the next generation of their children would climb higher towards the American Dream.

The President's new coal regulations will come at a cost of $184 billion and 180,000 fewer jobs each year in mining, transportation, manufacturing, and power generation. As coal energy is cut off, it means higher electric bills. Families will spend $400 more each year on their energy bill. That's on top of the $2,000 more each year they pay for gasoline. And higher energy bills means higher manufacturing costs, hurting our steel industry even more as it struggles to compete in world markets.

We should be modernizing, not shutting down these coal-powered plants. We can burn coal cleanly. Since 1970, coal has tripled in its use. Meanwhile, sulfur dioxide emissions are down 56 percent and nitrous oxide is down 38 percent. Mercury emissions in the U.S. dropped roughly 60 percent since the 1950s.

Let's bring back the campaign promise made by President Obama for clean coal and use the talent of our scientists and engineers and our tradesmen for better technology.

This week, families throughout America were startled when a top Obama science adviser was quoted in The New York Times saying, ''A war on coal is exactly what's needed.''

But this is not just a war on coal. It's a war on the American worker and their family. These families want high-paying jobs and lower energy bills. They want doors to open, not to have them slam in their faces. They do not want Washington to surrender American jobs to foreign manufacturers. These fathers, these mothers, and these children will not surrender. They are waking up and saying, Stop the war on our jobs. And they are not going to sit back quietly much longer.

AMERICAN ENERGY

The SPEAKER pro tempore. The Chair recognizes the gentleman from South Carolina (Mr. MULVANEY) for 5 minutes.

Mr. MULVANEY. I come before you today to talk a little bit about energy. Later on today, we'll be talking more about the Offshore Energy and Jobs Act, part of the Republican Party's all-of-the-above energy program. It's a good opportunity for us to talk about various different things in energy.

I was home, Mr. Speaker, a couple of weeks ago going through one of my manufacturing facilities in my district, and I asked some of the folks who were working there what we could do here to help create more American manufacturing jobs. And I was struck by the answer. The answer was very clear. They said, Keep our energy costs down.

They also talked about regulation. They talked about health care. They talked about a lot of the things we hear all over the place. But the first thing that they mentioned to me, which was to keep energy costs down, was very interesting.

I said, Why is it so important? They make rolled rings, they do heavy manufacturing. It's a metal foundry. And they said that not only does lower energy keep their costs of materials down and make them more competitive in the world, but lower energy also keeps their cost of operations down, which makes them more competitive in the rest of the world, and, obviously, kept the cost to their employees down of simply getting back and forth to work.

Low energy costs were the best thing we could do for this heavy manufacturer back in South Carolina. I think that's very instructive to us, Mr. Speaker, when it comes to answering the question of what we're doing for jobs. We're here today to talk about not just energy but about jobs.

One of the big pieces to our all-of-the-above proposal is the Keystone pipeline. Many people have heard about it. I want to talk for a few minutes about it today.

One of the biggest objections the President made to it originally when it came out was environmental; and many people saw this map from Alberta, Canada, down to the Gulf of Mexico, in which the administration very prominently featured that this went through a large aquifer with a name that I cannot pronounce, in all seriousness. The administration wanted to draw attention to the fact that, Oh, my goodness, this pipeline went through this aquifer and it was going to poison the drinking water in all these Midwestern States and wasn't that a terrible thing. This is the map the administration wanted all of us to see.

□ 1110

This is the map of the real world. This is the map that shows where these pipelines already function and function extraordinarily well. There are pipelines all over the central part of this country, all over this aquifer already, without any harm to any person. Aquifers usually are several hundred feet deep and pipelines are 10 or 20 feet deep. We have the ability, we have the know-how, to do this safely and soundly. We've been doing it for over a century in this country. There are no environmental risks to going in this particular location through this particular aquifer. We know how to do it, and we know how to do it well.

Now we hear a new objection, Mr. Speaker. We hear an objection that the administration doesn't want to backslide. I heard an interview today where

a Democrat activist used that word six or eight times in about 2 minutes—didn't want to backslide on carbon, that we couldn't do this pipeline because it would encourage additional use of gasoline. It would make gas cheaper and that would be bad because we would use more of it. That's the administration's current position.

It's absolutely absurd. If you go to Canada, if you go to where the oil sands are, to where this raw material is, who will you see? You'll see the Chinese. If we don't use this oil, if we do not refine this oil, if we do not take advantage of this particular natural resource that is right across our border, the Chinese will; and it will be used in a fashion that would offend the sensibilities of most of the people who care about the environment.

I've been to China. I remember landing at the runway and not being able to see the end of the runway out of the window because the pollution was so bad. That is how this material is going to be used if we allow it to go overseas.

We have the ability now to keep this material in this country. We have the ability now to help keep our energy prices down. We have the ability now to help keep Americans at work and put additional Americans back to work. And to the extent we keep it out of the hands of the Chinese where there are no rules on how they use this material, we actually have a chance to help the environment.

The Keystone pipeline keeps energy prices down, puts American people back to work, and protects our environment. It is absolutely absurd that it hasn't been approved already, Mr. Speaker, and it needs to be approved now.

IN REMEMBRANCE OF THE 150TH ANNIVERSARY OF THE BATTLE OF GETTYSBURG

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. PERRY) for 5 minutes.

Mr. PERRY. Thank you, Mr. Speaker.

I speak today of the forthcoming sesquicentennial recognizing three bloody days that will forever remain emblazoned on our hearts. The battle of Gettysburg was a pivotal turning point in the American Civil War, one of the single most defining moments in American history and one that united the Nation and restored peace and prosperity to our great land.

Therefore, be it known as we recollect and observe the horrific and critical events that took place in July 1863 that the memory of these brave souls who sacrificed their lives is kept alive through the tireless efforts of the National Park Service and the work of countless organizations.

The Sons of the Union Veterans of the Civil War, Allied Orders of the Grand Army of the Republic, the Military Order of the Loyal Legions of the United States, along with the Sons of Confederate Veterans, United Daughters of the Confederacy and other Confederate heritage organizations honor all of the brave warriors lost on the fields of Gettysburg. These organizations work together tirelessly to preserve the hallowed ground upon which these Americans—our brothers and sisters—fought, bled, and perished.

For as long as there is breath in our chests and light in our eyes, we the people of these United States shall keep alive the memory of our ancestors and maintain the peace paid for with their sacrifice during the merciless 4 years of our Nation's history.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 11 o'clock and 13 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

Chaplain Angel Berrios, 308th Military Intelligence Battalion, Fort Meade, Maryland, offered the following prayer:

Our Father in Heaven, we take time at this moment to acknowledge Your presence with us here in this congressional Chamber. We realize that without You, all our efforts are futile to make good and right decisions for the people of the United States. Your word says that not a sparrow falls to the ground without You being fully aware, so indeed we are convinced of the truth that You govern in the affairs of men.

Divine Holy Spirit, make Yourself real to us by revealing truth about every issue that will be discussed on the floor today. Truth is powerful. Truth is necessary. And truth will bring true liberty of which our country has so long experienced. I rebuke the deceits of darkness that would attempt to deter us from true truth, which is Your holy word.

I ask these things according to Your will; therefore, no doubt You hear this prayer. In Your holy name I pray.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from New Jersey (Mr. PAYNE) come forward and lead the House in the Pledge of Allegiance.

Mr. PAYNE led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

WELCOMING CHAPLAIN ANGEL BERRIOS

The SPEAKER. Without objection, the gentleman from Maryland (Mr. RUPPERSBERGER) is recognized for 1 minute.

There was no objection.

Mr. RUPPERSBERGER. Mr. Speaker, I am proud to introduce and to welcome to Washington U.S. Army Chaplain Angel Berrios, who is currently stationed at Fort Meade, located in the Second Congressional District of Maryland.

Chaplain Berrios, a captain in the U.S. Army, has been an ordained minister with the Assemblies of God for 24 years. For nearly two decades, he served as a full-time evangelist ministering in 47 countries and 47 States. Chaplain Berrios then joined the Army and was assigned to the 3rd Squadron of the 3rd Armored Cavalry Regiment at Fort Hood.

He was deployed to southern Iraq during operation New Dawn and provided a church in the desert for 850 fellow American soldiers. In addition to regular services and Bible study, Chaplain Berrios counsels soldiers struggling with day-to-day life in a war zone.

His ministry earned him a Bronze Star. His father, a Vietnam veteran, also served in the Army for 20 years.

We welcome Chaplain Berrios and his guests today. I wish to thank him for his many years of service to his community and his country.

I'm honored to call Chaplain Berrios a constituent, and I offer thanks on behalf of this entire body for his delivery of the opening prayer today.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. WEBSTER of Florida). The Chair will entertain 15 further requests for 1-minute speeches on each side of the aisle.

IMPRISONMENT FOR TAX TARGETING OF AMERICANS ACT OF 2013

(Mr. SAM JOHNSON of Texas asked and was given permission to address the House for 1 minute.)

Mr. SAM JOHNSON. Mr. Speaker, I rise today on behalf of my constituents in the Third Congressional District of Texas to introduce the Imprisonment for Tax Targeting of Americans Act of 2013.

On May 10, the IRS admitted to targeting conservative groups. Worse, our broken Tax Code does not make jail

time mandatory for criminal offenses such as political targeting.

Mr. Speaker, Americans deserve better.

The bottom line is that the use of the IRS as a political weapon is outrageous and unacceptable. What's worse, this is the same agency that will be enforcing ObamaCare.

As this blatant abuse of power continues to be fully investigated, this commonsense bill sends a loud and clear message to the IRS: if you do the crime, you do the time. No exceptions, no excuses.

The American people want, need and deserve to know the truth and assurance that this never happens again. This bill is a step in that direction.

I urge my colleagues to join my efforts.

VOTING RIGHTS ACT

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, this morning a number of members of the CBC, the Congressional Black Caucus, will speak on the emotions, the value and the gift of the 1965 Voting Rights Act.

I thank our chairwoman, Congresswoman MARCIA FUDGE, and I'm delighted to lead that moment this morning. I will tell the Members of Congress you will hear us over the next couple of weeks and months as we proceed to do what the Supreme Court has said that Congress must do and has the authority to do, and that is to reauthorize the Voting Rights Act of 1965.

I disagree with the court's decision, for that bill was firm. And just a few years ago, as a member of the House Judiciary Committee, with 15,000 pages, 21 hearings, a vote of 390–33 in the House and 98–0 in the United States Senate, we reaffirmed every American's right to vote. In fact, since that passage, Virginia has had 11 of its jurisdictions opt out. Many other jurisdictions have opted out or taken the bailout provision. But yet, that decision now has left bare the soul of so many voters who will now be unable to vote because of the Voting Rights Act elimination or striking down of section 4.

Mr. Speaker, if the Voting Rights Act is wrong, then Fannie Lou Hamer was wrong, the three civil rights workers were wrong, and Martin Luther King, Jr., was wrong.

Today we stand together to encourage our colleagues, Republicans and Democrats, to work with us to reauthorize the Voting Rights Act.

OFFSHORE ENERGY AND JOBS ACT

(Mr. GIBBS asked and was given permission to address the House for 1 minute.)

Mr. GIBBS. Mr. Speaker, as of today, 85 percent of the offshore areas have been blocked from offshore drilling by the Obama administration. The energy legislation on the floor this week makes significant strides towards increasing our offshore production.

Additional energy production contributes to lowering fuel prices at a time when gas prices are over 100 percent higher than when President Obama took office.

H.R. 2231, the Offshore Energy and Jobs Act, creates 1.2 million American jobs over the long term by removing Federal barriers to offshore energy production. According to the CBO, the legislation would also generate $1.5 billion in new Federal revenues over the 10-year period, which helps pay down our outrageous national debt.

This important legislation grows the economy and creates American jobs at a time of high unemployment and stagnant economic growth. Furthermore, it puts us on a path to energy independence and security by decreasing our dependence on foreign sources of energy.

We need to stand together to support this legislation that addresses our soaring gas prices and our sinking economy.

VOTING RIGHTS ACT

(Mr. VEASEY asked and was given permission to address the House for 1 minute.)

Mr. VEASEY. Mr. Speaker, I rise today to call my colleagues to action.

Monday, the Supreme Court handed down its decision regarding the Voting Rights Act, ruling that the current formula for determining covered jurisdictions is outdated. Nearly 2 hours after the SCOTUS ruling, one prominent Texas leader said that they will move immediately to reinstate the State's voter ID laws that were passed in 2011.

Mr. Speaker, in 2011, the Justice Department objected to Texas' voter ID law because the State's own data indicated that the law would have a detrimental impact on minority voters, the poor and the elderly. Why in the world would a State as great as Texas want to implement a law that its own data said would hurt the very citizens in its own State?

For this very reason, me and six other plaintiffs have filed suit in Federal court to bar enforcement of Texas' discriminatory voter ID law. The lawsuit in place is to ensure that we do not disenfranchise voters and to protect the constitutional rights of all Americans.

I refuse to allow Texas or any other State to replicate laws that constrict our American values. I firmly stand here as proof that Texans and Americans need a voice. I call upon my colleagues to work together to ensure voter protections remain. The Supreme Court has overreached, and now it's time for us to act to protect the integrity of democracy.

□ 1210

NATIONAL PTSD AWARENESS MONTH

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute.)

Mr. BILIRAKIS. Mr. Speaker, today I rise in recognition of the National Posttraumatic Stress Disorder Awareness Month.

Head injuries are the signature and oftentimes invisible wounds of our recent wars. These injuries are not a sign of weakness or a character flaw but, rather, the potential catalyst of more serious illnesses, like traumatic brain injury and PTSD. Nearly one-third of Iraq and Afghanistan veterans who received VA health care in the decade after 2001 were diagnosed with PTSD, and the numbers, unfortunately, are only expected to climb.

We must tear down the stigma surrounding head injuries and ensure veterans have timely access to quality care, particularly in situations of TBI and PTSD. As we mark PTSD Awareness Month, let's work together to address these important issues by drawing attention to the real dangers head injuries present and encourage our servicemembers to seek treatment.

STUDENT LOAN INTEREST RATE SET TO DOUBLE

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Mr. Speaker, in 3 short days, the student loan interest rate is set to double from 3.4 percent to 6.8 percent unless Congress takes action. This is unacceptable. College is already too expensive for far too many young people, and doubling the interest rate on student loans will only make things worse. We should be working together to solve this looming crisis.

Regrettably, the only vote we have had on this is a Republican-led bill that would make college more expensive and prevent students from locking in a fixed rate. By the time 2013's freshmen graduate, they will be paying more than double today's current rate for subsidized Stafford loans.

Rather than waging another partisan fight on a bill that will not pass in the Senate and the President is prepared to veto, we should consider legislation that has a chance of becoming law and that will provide real relief to students and their families. I, therefore, strongly urge House Republican leaders to allow a vote on legislation I proudly cosponsored by Congressman COURTNEY of Connecticut to extend the current low rate for an additional 2 years.

It is a moral and economic imperative that we provide a top-notch education to every student in this country regardless of their financial means. Congress must act to fix this problem, and the clock is ticking.

CONGRATULATING DUBOIS AREA MIDDLE SCHOOL

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to extend my congratulations as DuBois Area Middle School earns redesignation status as a Pennsylvania ''School to Watch.'' This is quite an achievement, and I highly commend the administrators, teachers, and students for their efforts. It is my understanding that DuBois Area Middle School is one of only three middle schools that has been redesignated a second time, after originally earning this designation in 2007 and again in 2010.

These selections by State educational leaders exemplify DuBois Area Middle School's outstanding responsiveness to the needs and interests of its students in helping them achieve their greatest potential.

Furthermore, by working together to improve curriculum and foster continuous academic growth, DuBois Area Middle School leadership has gone the extra mile to ensure success. The example your success has set for other schools is an excellent one, and I hope it will be shared widely.

Also, I encourage all people, students and adults, to continue to learn as it is probably the single most significant ingredient in leading a successful and fulfilling life.

EQUALITY FOR ALL

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, in a historic decision yesterday, the Supreme Court rightly ruled that all married couples, regardless of gender of the spouses, are deserving of equal protections and rights under the law. In doing so, they recognize what 13 States, including my home State of New York, already knows: that a family is a family and that love is love.

Our Nation was founded on the basic principles of freedom and equality, and any law that discriminates against one group of individuals is an unjust law; and injustice anywhere is a threat to justice everywhere.

Mr. Speaker, the next step is in Congress's hand. We must bring to the floor and pass Congressman JERRY NADLER's Respect for Marriage Act. It is time to get rid of this discriminatory law once and for all and bring us one step closer to full marriage equality.

SUPPORT THE ROMEIKE FAMILY

(Mr. HULTGREN asked and was given permission to address the House for 1 minute.)

Mr. HULTGREN. Mr. Speaker, one of the most treasured privileges of parents living in the United States is the freedom to choose the means to best educate their children. For many families, including my own, that choice is home schooling.

Unfortunately, for many parents living in countries where freedom of choice and expression is supposedly valued, home schooling can entail punitive fines, jail time, and even seizure of their children.

The Romeike family fled Germany after facing persecution for home schooling their six children and were granted asylum here in the United States. Now the Romeikes face deportation unless they are granted a hearing before the full Sixth Circuit Court of Appeals and receive a favorable decision.

Mr. Speaker, no parent should be faced with imprisonment, fines, or removal of their children simply for choosing to educate their children at home. I call on the Obama administration to persuade Germany to respect international human rights law that recognizes the authority of parents to direct their children's education. I also call on the administration to grant asylum to the Romeikes so they can be afforded the privilege our country offers to educate their children freely in the manner they choose.

BATTLING CLIMATE CHANGE

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, I agree with President Obama when he said this week that America is uniquely suited to take on the challenge of climate change. Those of us in the Northeast know firsthand what the President meant when he said that Hurricane Sandy's destruction left our mightiest city underwater and dark. Sandy destroyed homes, businesses, and, in some cases, entire neighborhoods. It halted our markets and damaged the infrastructure that the country depends on. These costs are real and they are personal.

Now is the time to improve the world our children and grandchildren will inherit. Now is the time to protect our beautiful natural resources. Now is the time to mitigate future natural disasters, and now is the time to take on the battle against climate change.

We know where to start. We need to reduce carbon pollution, utilize more renewable energy, improve energy efficiency, and oppose the Big Oil subsidies on the floor this week.

OBAMA'S WAR ON COAL

(Mr. MCKINLEY asked and was given permission to address the House for 1 minute.)

Mr. MCKINLEY. Mr. Speaker, earlier this week, President Obama continued his relentless war on coal. He indicated he would circumvent Congress and use unelected bureaucrats to fulfill his anticoal agenda. He implied he had a moral obligation to do so because Congress is not acting. But Congress has, indeed, acted and simply doesn't agree with the President's ambitions. Congress realized that his agenda will destroy jobs and increase the cost of electricity. Electric bills will go up for everyone who uses power. Everyone will pay more.

The President is basing his call for action on flawed theories about what may happen in the future, but his actions will have an immediate negative impact today.

During his remarks, the President insulted his critics with sophomoric name calling and dismissed the opinions of over 32,000 scientists and physicists who contend that the issue of global warming has not been settled. In the coming months, we will highlight the devastating impact these anticoal policies will have on America's future, its families, and the economy in general. We will point out the flaws in his climate projections.

The President may believe that a war on coal is exactly what's needed, but the thousands who will lose their jobs and the millions who will pay more for electricity beg to differ.

□ 1220

THE SUPREME COURT'S VOTING RIGHTS DECISION

(Mr. PAYNE asked and was given permission to address the House for 1 minute.)

Mr. PAYNE. Mr. Speaker, a vote at the ballot box transcends gender, race, religion, and socioeconomic status. Knowing that an 80-year-old veteran, a single mom, or an 18-year-old high school senior voting for the first time has an equal vote and, thus, an equal voice as does a millionaire or billionaire, this is what has separated us and made our Nation great.

Unfortunately, the recent Supreme Court decision to strike down section 4 of the Voting Rights Act is not only a major setback for civil rights and voting rights, but it is a major blow to basic fundamental democracy in this country.

Now is the time for Congress to rise above partisanship and create free and unfettered access to the ballot. Access to the ballot on election day may be one of the only times that the most disadvantaged in our communities have an equal voice, regardless of what they look like or where they come from.

And as a Member who represents some of the most disadvantaged, I am undeterred and will continue to fight so my constituents can have an equal access to the ballot box, from the wealthiest towns to the poorest cities; and I urge my colleagues to do the same.

RECOGNIZING THE 70TH ANNIVERSARY OF THE NATIONAL FEDERATION OF INDEPENDENT BUSINESS

(Mr. TIPTON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TIPTON. Mr. Speaker, in a June survey on business optimism, respondents cite regulations and red tape as one of their top concerns.

I can speak from experience from my own small business. When government imposes new red tape, it takes away precious resources that are needed for small businesses to create and expand jobs.

Under this administration, regulations have steadily increased. According to the Competitive Enterprise Institute, an annual cost of $1.8 trillion is inflicted on small businesses as a part of the Federal Regulatory Code that has now reached 174,000 pages.

Since coming to Washington, my priority has been to stand up for small businesses and improve the economic climate so employers and entrepreneurs can succeed and create jobs.

Throughout this fight to remove hurdles to job creation, the National Federation of Independent Business has been a steady ally, providing a voice to it's more than 350,000-member small businesses, and advocating for issues that would enable small businesses to succeed and create jobs.

This month marks the 70th anniversary of NFIB, and I'd like to congratulate the organization for its decades of service to small businesses.

REAUTHORIZE THE VOTING RIGHTS ACT

(Ms. NORTON asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. NORTON. Mr. Speaker, the reauthorized Voting Rights Act was passed in a Republican House, a Republican Senate, and signed by a Republican President. Then the House and Senate Republican and Democratic leadership led Members of Congress to the front steps of the Congress to express their collective pride in the passage of the Voting Rights Act.

Yesterday, the Court did not nullify section 4 of the act. It invalidated it, as applied, and advised Congress to update the formula.

The leadership, who so proudly reauthorized the act on the front steps of the Capitol, remains in place today. If the pride they expressed then in the right of all Americans to vote remains, they will now resume their place of leadership to ensure that the entire Voting Rights Act remains proudly the law of the land.

OBAMACARE EXCHANGES

(Mr. PITTS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PITTS. Mr. Speaker, last week, on the front page of The Wall Street Journal, we read that the implementation of ObamaCare exchanges is falling behind schedule.

According to the GAO, both State and Federal exchanges have major work to complete before the October 1 start of open season. The administration has predicted some ''glitches and bumps.''

Would failure to open the exchanges on time be a bump?

Is the fact that some small business exchanges have only a single participant a glitch?

Millions of Americans will be required by the Federal Government to purchase insurance on these exchanges, but they're shaping up to be a train wreck.

GAO tells us that the 17 States running small business exchanges were late on an average of 44 percent of activities that should have been complete in March.

The signals are flashing, the sirens are wailing, but we keep rolling on towards ObamaCare implementation. The only way we can prevent the disaster is by putting a stop to a law that is failing on nearly every count.

THE VOTING RIGHTS ACT

(Mr. JEFFRIES asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JEFFRIES. Mr. Speaker, the Voting Rights Act has a strong bipartisan history. It was reauthorized by Congress in 2006 with the overwhelming support of both Democrats and Republicans.

Yet the Supreme Court, in striking down a key provision of this historic civil rights legislation 2 days ago, has undermined the integrity of the democratic process.

It was a jurisprudential hijacking of the principle of responsive and representative government. It's a decision that will go down in history, right next to the infamous Dred Scott opinion written way back in 1857.

The unencumbered right to vote is fundamental to the foundation of this democracy. In this regard, the Supreme Court has failed the Nation. Let's make sure that this Congress does not do the same.

THE OUTER CONTINENTAL SHELF TRANSBOUNDARY HYDROCARBON AGREEMENTS AUTHORIZATION ACT

(Mr. PITTENGER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PITTENGER. Mr. Speaker, year after year, decade after decade, the American people have been held captive to the Middle East for what we pay for the price of gas. Even today, wartorn Syria, with its own civil war, has impacted the price of gas that each of us pays.

In my own city of Charlotte, we pay 14 cents a gallon more this year than we did last year. While families are going on vacation over the 4th of July, throughout the summer, or what they pay at the grocery store is all impacted because America is not energy independent.

Mr. Speaker, that's why I rise in support of H.R. 1613, to make America energy independent. We can develop oil and natural gas off our maritime border in Mexico, while creating new jobs and improving our economy.

Mr. Speaker, it's time for America to be independent and to stand alone and to bring and restore a solid economic period of time for this country. Let's vote today to support gas prices that will be lower for America, with energy independence from America.

RESTORE THE VOTING RIGHTS ACT

(Mr. RANGEL asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RANGEL. Mr. Speaker, first, let me thank Congressman GREEN for yielding to me the opportunity to speak out of order and to remind this body that, in a recent conversation I had with JOHN LEWIS, our hero and colleague, I asked him the question: Just what drove you to place your body in harm's way and your life in jeopardy for the civil rights movement?

And he said, because he had confidence in this country, the Congress, and he also had confidence in the Supreme Court.

Recently, he had to admit that the Court's action has really plunged a dagger in the heart of this legislation that so many Americans have depended on for fairness, which includes, of course, that basic constitutional right to vote. But that light was dimmed; it wasn't extinguished.

And as I recall the Voting Rights Act that we did pass overwhelmingly in both Chambers, it was the names of JIM SENSENBRENNER and JOHN CONYERS that come to mind. They both are still in this House. They both love the country, love the Congress, and love the Constitution. And I'm confident that, once again, they would bring together that coalition of Republicans and Democrats, that may see things differently as it relates to the ideology, but together they can bring the same forces that we had in 2006 to make certain that we restore the rights that the Supreme Court has taken away from us.

□ 1230

HONORING THE LIFE OF LIEUTENANT GENERAL RICHARD J. SEITZ

(Mr. HUELSKAMP asked and was given permission to address the House

for 1 minute and to revise and extend his remarks.)

Mr. HUELSKAMP. Mr. Speaker, today, I rise to pay tribute to the life of Lieutenant General Richard J. Seitz of Junction City, Kansas, who died on June 8 at the age of 95.

A native Kansan and Kansas State University graduate, Dick went through the sixth jump school class the Army ever had, becoming one of its first paratroopers. He was quickly promoted to be the Army's youngest battalion commander and led his battalion throughout its historic combat operations in Europe during World War II.

Dick ended the war with a Silver Star, two Bronze Stars, and the Purple Heart. During his lifelong Army career, including nearly 37 years of active duty, he also received the Distinguished Service Medal and Legion of Merit, among many other awards, promotions, and commands.

Dick retired to Junction City in 1975 but remained active in his community and at Fort Riley. Among other activities, he was on the board of the Eisenhower Presidential Library, president of the Fort Riley-Central Kansas Chapter of the Association of the U.S. Army, and chaired Junction City's Economic Redevelopment Study Commission. Most recently, the General Richard J. Seitz Elementary School was named in his honor on the post at Fort Riley.

In short, General Seitz epitomized what it means when we refer to him and his peers as America's Greatest Generation.

THE VOTING RIGHTS ACT

(Mr. AL GREEN of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. AL GREEN of Texas. Mr. Speaker, we live in a world where it's not enough for things to be right. They must also look right. And while it may be right for the Supreme Court to strike down section 4 of the Voting Rights Act, it doesn't look right, given that just last year we had a multiplicity of cases wherein it was found that insidious discrimination existed such that those cases accorded voters rights that they would not have but for the Voting Rights Act.

Much is said about section 4 in the coverage. Little is said about section 4 and the opt-out, bail-out provision that has allowed many jurisdictions that were under the purview of the Voting Rights Act to extricate themselves.

The Voting Rights Act has functioned efficaciously. I'm so glad that medicine is very much unlike politics. Because in medicine, when a drug functions efficaciously, we market it, we extol the virtues of it, and we keep it. In politics, when a law succeeds, we demean it and we eliminate it.

I am here today because of the Voting Rights Act. I never thought I'd sit next to the Honorable CHARLIE RANGEL in the House of the United States Congress. Thank God for the Voting Rights Act. We must revise it. We must extend it. We've got to renew it.

STOPPING STUDENT LOAN INTEREST RATES FROM DOUBLING

(Mr. MESSER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MESSER. Four days. In 4 days, interest rates on student loans will double if nothing is done. A bill to stop that from happening passed this House last month. But the President and the Senate refused to do anything but posture. The truth is we don't disagree by much. The House plan mirrors a plan put forward by the President. Both plans use market rates. Both plans seek a long-term solution. But politics is getting in the way. And that is wrong.

Our plan gets politicians out of the student loan business. And that is good for students. America's students deserve affordable rates, not schoolyard antics. Let's work together and stop the rate hike.

CONGRATULATING ELIZABETH PALAFOX

(Mr. COSTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTA. Mr. Speaker, since 1982, the Congressional Art Competition has recognized the special power that arts have in students throughout our country. In my district, the art competition winner this year was Elizabeth Palafox. Her piece has a message for every young woman in the San Joaquin Valley. When describing her work, Elizabeth stated clearly that her art ''defines women in our Valley that don't give up on their dreams, and live large, no matter the challenges it brings upon us.'' Her mother, who raised her as a single parent, has been a strong role model and taught her firsthand the lessons of hard work and life in her own artwork.

Sadly, Elizabeth could not make it to Washington to see her artwork unveiled this week. But she's watching back home. Her self-portrait is representing our Valley well here in the Capitol.

Elizabeth, your work reminds me of the hope that we all have not just in your future but for the future of our women in our Valley and throughout our Nation. Thank you for showing your talent, and congratulations on being chosen as the art winner from the San Joaquin Valley in the 16th District.

JOBS IN THE FOREST PRODUCTS INDUSTRY

(Mr. DUFFY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DUFFY. Today, I rise to talk about jobs in America and jobs in Wisconsin. One of the largest centers of our economy in rural Wisconsin is our forest products industry. And that industry is under assault.

One of the largest portions of our forest is held by the Chequamegon-Nicolet National Forest. In fact, from 1986 to 1992 we harvested 150 million board feet of lumber a year, on average. Now, we harvest 98 million board feet a year. We've reduced that by 50 percent. What does that do? That causes thousands of jobs to be lost in rural Wisconsin.

Let's kick-start our economy. Let's put our loggers back to work. Let's open up our saw mills and paper mills. By opening up those mills, we have to open up our National Forests. Let's make sure our National Forests don't rot and burn but that we actually harvest them. They are a renewable resource and have a direct tie-in to jobs in rural Wisconsin.

STATISTICS 2013

(Mr. MCNERNEY asked and was given permission to address the House for 1 minute.)

Mr. MCNERNEY. Mr. Speaker, I rise today to bring your attention to an exciting global initiative, the International Year of Statistics, or Statistics 2013, which is supported by nearly 2,000 groups in more than 120 countries.

Organized in the U.S. by the American Statistical Association, Statistics 2013's primary objectives are to increase public awareness of the impact of statistical sciences on our society and to nurture an interest in statistics among our youth. Participants of Statistics 2013 are educating the public in how statistical sciences improve our lives in a myriad of ways, such as finding better cancer treatments and informing public policy. Statistics is an incredibly powerful tool that can be used in understanding complex phenomena. It's been used since antiquity.

Congratulations, Statistics 2013. I encourage my colleagues to join me in recognizing the contributions and goals of Statistics 2013.

IN MEMORY OF VINCE FLYNN

(Mrs. BACHMANN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. BACHMANN. Mr. Speaker, on Monday of this week, Lysa, her children, and thousands of admirers gathered at St. Paul Cathedral in St. Paul, Minnesota, to bury the legendary author Vince Flynn.

Vince Flynn was known and beloved as a Minnesotan and a great American. He lost his battle with cancer just this last week. He left behind a wonderful family, a beautiful family. He left behind a literary body of work. And, most importantly, he left behind his

deep and abiding faith in Jesus Christ. In his hand he held the rosary and also his beloved cell phone.

Vince educated America on the threat of Islamic jihad. We will forever remember his strength, courage, and his faith. He had a life well-lived. We will never forget the contributions to America by the wonderful and legendary Vince Flynn.

□ 1240

JUSTICE PREVAILS

(Mrs. DAVIS of California asked and was given permission to address the House for 1 minute.)

Mrs. DAVIS of California. Mr. Speaker, our amazing, time-traveling Supreme Court has truly surprised me this week. It was able to take us back to the 1960s on Tuesday and to step into the 21st century the next day by striking down DOMA.

Yesterday's ruling was a long-overdue affirmation that married same-sex couples deserve the same Federal benefits as everyone else. It's a major step towards marriage equality. But this victory comes on the heels of a dangerous blow to voting rights. On Tuesday, the Court struck down a provision that has been vital to guaranteeing the right to vote for all Americans. The Voting Rights Act is a crucial guard against States backsliding on the progress of the civil rights movement, and we must now work to restore its protections.

The struggle for voting rights and marriage equality are not so different. Both have been long fights with victories hard won. And in each we have seen freedoms and progress once thought impossible become inevitable. Yet even as we celebrate a victory for marriage equality, the Voting Rights Act ruling shows us that we cannot take these gains for granted, that maintaining these liberties requires constant vigilance and continued advocacy.

These fights are far from over; but in time, I know we will succeed. In the words of Dr. King: The arc of the moral universe is long, but it bends toward justice.

ANOTHER DAY AT THE IRS, ANOTHER SCANDAL

(Mr. POE of Texas asked and was given permission to address the House for 1 minute.)

Mr. POE of Texas. Mr. Speaker, another day, another IRS scandal is revealed.

The Inspector General has identified improper use of taxpayer money by the people who collect taxes—the tax collectors. While the IRS was targeting conservative groups for audits, over 100 IRS employees improperly used government credit cards. ''I'm shocked.''

Tax collectors have been sticking it to the taxpayers with spending only the IRS can get away with, including—listen to this—thousands of dollars on diet pills, romance novels, baby bottles, baby clothes, smartphones, a popcorn machine, bandanas, stuffed animals, sunglasses, ''swag'' like kazoos, and Thomas the Tank Engine wristbands and bathtub toys. There's a lot more. You can't make this up, Mr. Speaker. Were they ever disciplined by the IRS? Of course not. This is the IRS. They are the law. They are the government.

Mr. Speaker, it's time to audit the tax man and the tax collectors. The squandered money should be returned in full to the Treasury—with interest penalty, just like the tax collectors charge citizens when they audit us.

And that's just the way it is.

IMMIGRATION

(Mr. O'ROURKE asked and was given permission to address the House for 1 minute.)

Mr. O'ROURKE. Mr. Speaker, I rise today to warn my colleagues about the Corker-Hoeven amendment within the Senate's immigration bill.

To my colleagues who are concerned with the fiscal health of our country, I call your attention to this provision, which will commit $50 billion to double the size of the Border Patrol, add 700 miles of walls and fencing between the U.S. and Mexico at a time when we have record-low northbound apprehensions and net migration from Mexico is zero.

To my colleagues who cherish our civil liberties and our constitutional rights, can you live with a $50 billion militarized buildup within the United States where more than 6 million of your fellow citizens live?

And to my colleagues who care about human rights and the sanctity of human life, more than 5,000 people have died crossing the border into the United States over the last 15 years. Let's not perpetuate this problem; let's solve it. We need comprehensive reform, but we need comprehensive reform that's rational, that's humane, and that's fiscally responsible.

THANK YOU TO CARL MEYER FOR HIS SERVICE TO PARKLAND COLLEGE AND CHAMPAIGN COUNTY

(Mr. RODNEY DAVIS of Illinois asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I rise today to thank Carl Meyer for his years of service to Parkland College and the Champaign County community.

Carl originally moved to Champaign County in 1971 when he came to the University of Illinois to work as an assistant football coach. Years later, he left to work for the Universities of Arizona and Cincinnati before returning to Champaign County in 1992.

In 1997, Carl was asked by then-Parkland College president Zelema Harris to serve as the executive director of the Parkland College Foundation. Throughout his 16 years with the Parkland College Foundation, Carl oversaw a major gifts campaign, raising more than $14 million, as well as seeing projects like the Tony Noel Agricultural Technology Applications Center and the Parkland Automotive Technology Center go from inception to completion. This is in addition to the more than 140 scholarships he established and the dozens of partnerships he created with businesses and academic departments.

Words can't express how much Carl means to Parkland College and Champaign County. I would like to thank Carl for his commitment to Parkland College and its students, and for his leadership in the community. Enjoy your retirement, Carl, and know you will be missed. You deserve it.

VETERAN SPOUSE EQUAL TREATMENT ACT

(Ms. TITUS asked and was given permission to address the House for 1 minute.)

Ms. TITUS. For far too long, DOMA denied legally married same-sex couples access to Federal benefits, including those provided by the VA. But with yesterday's decisions, the Supreme Court sent a clear message that all Americans, gay or straight, must be afforded equal protection under the law.

There is no question that now we must implement the Court's ruling throughout every department of the Federal Government. Accordingly, I'm proud to introduce the Veteran Spouse Equal Treatment Act to amend the VA's definition of spouse as an individual of the opposite sex. This is a basic matter of aligning the VA with our Nation's laws, of living up to the principles of fairness and equality, of extending benefits to thousands of deserving military spouses, and of defending all those who have proudly worn the uniform of the U.S. armed services and their families.

Yesterday, justice and freedom prevailed over intolerance and hate. So today I ask my colleagues to work with me to see that this legislation is passed without delay, to implement the Supreme Court's decision, and leave no question about equal protection under the law for all Americans.

OUTER CONTINENTAL SHELF TRANSBOUNDARY HYDROCARBON AGREEMENTS AUTHORIZATION ACT

Mr. SESSIONS. Mr. Speaker, I ask unanimous consent that, during consideration of H.R. 1613 and H.R. 2231 pursuant to House Resolution 274, amendment numbered 1 printed in part A of House Report 113–131 and amendments numbered 5 and 10 printed in part B of that report be modified by the form I have placed at the desk.

The SPEAKER pro tempore. The Clerk will report the modifications.

The Clerk read as follows:

In the amendment numbered 1 printed in part A of the report, strike ''Noting'' and insert ''Nothing''.

In the amendment numbered 5 printed in part B of the report, strike ''$1,000,000,000'' and insert ''$999,999,999''.

In the amendment numbered 10 printed in part B of the report, strike ''Noting'' and insert ''Nothing''

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

Mr. DEFAZIO. Reserving the right to object, I'd like to understand the reasons—I understand the typographical errors and appreciate that the chair wishes to revise those, but I'm curious about one provision.

As the chair would remember, I came to the committee and asked that they not waive the rule for the Cassidy amendment because the Cassidy amendment will increase the deficit by $15 billion over 30 years. And of course the rules of the House don't allow us to engage in additional spending without an offset, and there is no offset. But the chair did waive all points of order, so the rules of the House don't apply to this additional $15 billion of deficit spending.

But now my understanding is that they want to substitute a different amendment, which, instead of $15 billion of additional deficit over 30 years, would only create $14,999,999,970 of new deficit.

□ 1250

I would like to understand why we're bothering to do this. I think over the span of 30 years, increasing the deficit by $14,999,999,970 versus $15 billion, which is easier to say because it has got a lot of zeros in it, what's the rationale? Why would we do this? Why do we need UC for this? I'm just curious.

Could the gentleman respond.

Mr. SESSIONS. If the gentleman will yield under his reservation, with the adoption of this modification of the explanation of waivers, I would say to him that what is contained in the report is going to be accurate.

What was printed the other day as the final report from the Rules Committee before it came to the floor was, in fact, not accurate. The gentleman knows and does understand that there were several modifications that were made as a result of the final approval of the Rules Committee print.

Then we discovered there were some typos and some inaccurate figures that were presented. The gentleman knows that there have been previous times when the gentleman's amendment from Louisiana has been offered in reports and has been voted on and we made that consistent.

I appreciate the gentleman asking me.

Mr. DEFAZIO. Continuing to reserve the right to object, so the bottom line here, if I can define it for our colleagues in simple language, is the net difference in waiving the rules of the House of $30, apparently the total waiving of the rules of the House to allow additional deficit spending. In contradiction of what the other side of the aisle normally proposes, there is somehow a dramatic difference between $14,999,999,970 of new debt and deficit and $15 billion, which requires a substitution of this amendment, because it's my understanding it would somehow then violate the Budget Act twice. Is that accurate? Even though you've waived the rule and we can go ahead with the amendment, you would be violating the Budget Act twice. So we just want to say we're only violating the Budget Act once; is that the difference?

Mr. SESSIONS. Once again, yielding to the gentleman's question, I appreciate the gentleman not only coming to the floor, but making sure that we work together on an understanding of what the final package will look like.

I will state once again, and I appreciate the gentleman's clarification, what the Rules Committee did is made an agreement of what would be made in order and there was a mistake therein. We are simply, Mr. Speaker, asking for unanimous consent on a bipartisan basis, we believe with the gentleman who will consent, to modify the report to where it accurately denotes the amendments that were made in order and any wording, including grammatical misspellings. That's what we're trying to do here.

Mr. DEFAZIO. Further reserving the right to object, if you're going to waive the rules of the House to create $15 billion in new deficit, I don't know why we need unanimous consent to waive the rules yet again to create $14,999,999,970 in deficit. I guess that makes a difference somewhere to someone, so I would not object.

I withdraw my reservation of objection.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

The SPEAKER pro tempore. The amendments are modified.

Mr. HASTINGS of Washington. Mr. Speaker, pursuant to House Resolution 274, I call up the bill (H.R. 1613) to amend the Outer Continental Shelf Lands Act to provide for the proper Federal management and oversight of transboundary hydrocarbon reservoirs, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1613

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act''.

TITLE I—AMENDMENT TO THE OUTER CONTINENTAL SHELF LANDS ACT

SEC. 101. AMENDMENT TO THE OUTER CONTINENTAL SHELF LANDS ACT.

The Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) is amended by adding at the end the following:

''SEC. 32. TRANSBOUNDARY HYDROCARBON AGREEMENTS.

''(a) AUTHORIZATION.—After the date of enactment of the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act, the Secretary may implement the terms of any transboundary hydrocarbon agreement for the management of transboundary hydrocarbon reservoirs entered into by the President and approved by Congress. In implementing such an agreement, the Secretary shall protect the interests of the United States to promote domestic job creation and ensure the expeditious and orderly development and conservation of domestic mineral resources in accordance with all applicable United States laws governing the exploration, development, and production of hydrocarbon resources on the outer Continental Shelf.

''(b) SUBMISSION TO CONGRESS.—

''(1) IN GENERAL.—No later than 180 days after all parties to a transboundary hydrocarbon agreement have agreed to its terms, a transboundary hydrocarbon agreement that does not constitute a treaty in the judgment of the President shall be submitted by the Secretary to—

''(A) the Speaker of the House of Representatives;

''(B) the Majority Leader of the Senate;

''(C) the Chair of the Committee on Natural Resources of the House of Representatives; and

''(D) the Chair of the Committee on Energy and Natural Resources of the Senate.

''(2) CONTENTS OF SUBMISSION.—The submission shall include—

''(A) any amendments to this Act or other Federal law necessary to implement the agreement;

''(B) an analysis of the economic impacts such an agreement and any amendments necessitated by the agreement will have on domestic exploration, development, and production of hydrocarbon resources on the outer Continental Shelf; and

''(C) a detailed description of any regulations expected to be issued by the Secretary to implement the agreement.

''(c) IMPLEMENTATION OF SPECIFIC TRANSBOUNDARY AGREEMENT WITH MEXICO.—The Secretary may take actions as necessary to implement the terms of the Agreement between the United States of America and the United Mexican States Concerning Transboundary Hydrocarbon Reservoirs in the Gulf of Mexico, signed at Los Cabos, February 20, 2012, including—

''(1) approving unitization agreements and related arrangements for the exploration, development, or production of oil and natural gas from transboundary reservoirs or geological structures;

''(2) making available, in the limited manner necessary under the agreement and subject to the protections of confidentiality provided by the agreement, information relating to the exploration, development, and production of oil and natural gas from a transboundary reservoir or geological structure that may be considered confidential, privileged, or proprietary information under law;

''(3) taking actions consistent with an expert determination under the agreement; and

''(4) ensuring only appropriate inspection staff at the Bureau of Safety and Environmental Enforcement or other Federal agency personnel designated by the Bureau, the operator, or the lessee have authority to stop work on any installation or other device or vessel permanently or temporarily attached to the seabed of the United States, which may be erected thereon for the purpose of resource exploration, development or production activities as approved by the Secretary.

''(d) EXEMPTION FROM RESOURCES EXTRACTION REPORTING REQUIREMENT.—Actions taken by a public company in accordance with any transboundary hydrocarbon agreement shall not constitute the commercial development of oil,

natural gas, or minerals for purposes of section 13(g) of the Securities Exchange Act of 1934 (157 U.S.C. 78m(q)).

''(e) SAVINGS PROVISIONS.—Nothing in this section shall be construed—

''(1) to authorize the Secretary to participate in any negotiations, conferences, or consultations with Cuba regarding exploration, development, or production of hydrocarbon resources in the Gulf of Mexico along the United States maritime border with Cuba or the area known by the Department of the Interior as the 'Eastern Gap'; or

''(2) as affecting the sovereign rights and the jurisdiction that the United States has under international law over the outer Continental Shelf which appertains to it.''.

TITLE II—APPROVAL OF TRANSBOUNDARY HYDROCARBON AGREEMENT

SEC. 201. APPROVAL OF AGREEMENT WITH MEXICO.

The Agreement between the United States of America and the United Mexican States Concerning Transboundary Hydrocarbon Reservoirs in the Gulf of Mexico, signed at Los Cabos, February 20, 2012, is hereby approved.

The SPEAKER pro tempore. Pursuant to House Resolution 274, the amendment in the nature of a substitute recommended by the Committee on Natural Resources, printed in the bill, is adopted. The bill, as amended, is considered read.

After 1 hour of debate on the bill, as amended, it shall be in order to consider the further amendment printed in part A of House Report 113–131, as modified by the order of the House of today, if offered by the gentleman from Florida (Mr. GRAYSON) or his designee, which shall be considered read and shall be separately debatable for 10 minutes equally divided and controlled by the proponent and an opponent.

The gentleman from Washington (Mr. HASTINGS) and the gentleman from Oregon (Mr. DEFAZIO) each will control 30 minutes.

The Chair recognizes the gentleman from Washington.

GENERAL LEAVE

Mr. HASTINGS of Washington. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the bill, H.R. 1613.

The SPEAKER pro tempore (Mr. SALMON). Is there objection to the request of the gentleman from Washington?

There was no objection.

Mr. HASTINGS of Washington. Mr. Speaker, I yield myself such time as I may consume.

I rise today in strong support of H.R. 1613, the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act.

This bill was introduced by my colleague from South Carolina (Mr. DUNCAN), a member of the Natural Resources Committee, and will provide the certainty needed to move forward with offshore energy development in certain areas of the Gulf of Mexico along our Nation's maritime boundary with Mexico.

Former Secretary of State Hillary Clinton and Mexican Foreign Secretary Espinosa signed this long-awaited agreement February 2012. Since that time, the House Committee on Natural Resources has repeatedly requested draft-implementing legislation from the Obama administration. But it was not until March 19, 2013, when the committee finally received just that—several short sentences to authorize the Secretary of the Interior to promote development of energy resources that lie along the boundary with Mexico.

Despite the Obama administration sitting on this agreement for over a year, that should not in any way downplay the importance of getting this agreement approved. This agreement is good for our economy, and it's good for our American workers.

Opening new acreage for energy exploration and development creates jobs, it creates more American-made energy, and it helps reduce our dependence on foreign countries for our energy needs.

According to the Bureau of Ocean Energy Management and the State Department, this agreement would open up nearly 1.5 million acres in the Gulf of Mexico. These areas are estimated to contain as much as 172 million barrels of oil and 304 billion cubic feet of natural gas.

These areas are ready to be explored and developed, and this bill will give the U.S. job creators the certainty they need to move forward. Activity can begin once this agreement is enacted.

This bill executes the implementation of the U.S.-Mexico agreement, but it also looks to the future—providing a clear and transparent path for how future administrations should go about submitting future agreements with other countries with which we share international boundaries. Given the fact that this implementing legislation was bogged down within several agencies for over a year, I believe that Mr. DUNCAN's solution is a necessary step to ensure a smoother and more expedient process in the future.

H.R. 1613 also includes language to protect American workers by removing uncertainty surrounding the application of Dodd-Frank Wall Street Reform and Consumer Protection Act disclosure requirements.

The agreement signed by the Obama administration and Mexico specifically provides what royalty payments Mexico would receive from energy developers. However, under current U.S. law, companies that commercially develop oil, natural gas, or minerals are required to disclose payments made to a foreign government. This could create a potential conflict because Mexico has yet to decide how they will collect royalties and could potentially set regulatory measures that prohibit disclosure of payments.

□ 1300

This would then block American workers from being able to develop these resources.

Waiving the Dodd-Frank requirement is necessary in order to help protect American jobs and American-made energy in this instance. Without it, foreign-controlled energy companies could develop this American energy resource. The royalty payments to Mexico would still be undisclosed and kept private, but the net result would be that Americans would lose out on this energy potential.

The Natural Resources Committee and Mr. DUNCAN have worked hard to advance this bill and get it signed into law. It's important to American energy, to American jobs, to American energy security, and it is important in order to support a positive relationship with our neighbor to the south, Mexico. So I urge my colleagues to support this bill.

I reserve the balance of my time.

Mr. DEFAZIO. Mr. Speaker, I yield myself such time as I may consume.

We could have done this bill as a suspension bill 2 days ago. That is, it probably could have passed the House by unanimous consent, which is very rare, if this provision had not been added.

There is consensus on both sides of the aisle that it's critical that we move forward with this agreement with Mexico to deal with shared resources in the western Gulf of Mexico. However, the Republicans have chosen to use this as a vehicle to launch yet another attack on Wall Street reform, on the Dodd-Frank reforms, which is totally unnecessary. Obviously, it was presented as: it's potentially, possibly, maybe a future problem for American oil companies if the Mexicans change their law. Under their existing law, there is no problem. We're going to see disclosure, and it will be disclosure by Mexican companies that are bidding or by American companies that are bidding or by any other foreign company that is bidding in the gulf. You will see full disclosure, so no one would be at a commercial or at an economic disadvantage.

But the premise here is that, someday, Mexico might change their law, and therefore our companies would have to disclose and theirs wouldn't. If that did happen at some potential possible future date by some potential possible future Mexican Government, then the Securities and Exchange Commission has adequate authority, even under the Dodd-Frank reforms, to waive that requirement because it would be in the public interest and commercial interest of the United States of America to waive that provision in this instance. Now, that's dealing with Mexico.

The second problem with what they're proposing here is that they actually want to totally repeal this section of Dodd-Frank for any future agreements with any other nations on a transboundary basis, which could certainly include Canada and, likely, with the conflicts that are looming over the Arctic Ocean and the resources up there, with Russia. Now, I get pretty

nervous when I start thinking that U.S. companies are going to be negotiating secret agreements with Russia and that somehow these are going to protect our taxpayers, that they're going to protect our shareholders, that they're going to protect our public interest. That, I think, is really a very, very, very disturbing trend with this bill.

So the issue is: do we want to get this done? If we want to get it done, this is not the way to do it, because this bill, as amended by the Republicans to change the agreement and waive the rules for oil companies so they can make secret payments to the Government of Mexico, that will not pass the Senate. So we'll have yet another one-House bill, and we will further delay what the Republican side wants to expedite, which is offshore oil and gas development.

I would suggest that, rather than expediting things here, we're messing them up, and I would suggest to my colleagues that we oppose this bill in this form, that we bring it back as a clean authorization with the existing agreement with Mexico, and that we move forward and get it done. I expect, if we got it done here, we could bring it up again and get it done in a day or under suspension or perhaps, I think, with unanimous consent, even between today and tomorrow. Then the Senate would pass it with unanimous consent, and we'd be done with it.

Instead, we're going to have yet another example of the dysfunction of the Congress because we're going to pass a version here that cannot pass in the United States Senate, and then, I guess, the Republicans will try and blame the Senate for not wanting to waive the rules and allow oil companies to make secret payments to the Government of Mexico in order to garner commercial deals.

With that, I reserve the balance of my time.

Mr. HASTINGS of Washington. I am very pleased to yield 5 minutes to the author of this legislation, a member of the Natural Resources Committee and of the Foreign Affairs Committee, the gentleman from South Carolina (Mr. DUNCAN).

Mr. DUNCAN of South Carolina. I want to thank the chairman of the Natural Resources Committee for his leadership on this issue as well as to thank my friend, Mr. SALMON from Arizona, for his leadership in the Western Hemisphere Subcommittee on this issue because he understands what is at stake.

One thing this bill will do is attract jobs. It will help the United States Government create energy sector jobs. The second thing it will do is help meet our energy needs, and it will help lessen our dependence on foreign sources of energy by producing those energy resources here at home. That's a national security issue. By being less dependent on foreign sources of oil, we are less dependent on what goes on in that part of the world. There can be no national security without energy security, and this is a step in the right direction.

We are willing to say that the Obama administration got something right in forming this agreement and signing it. In February of 2012, Secretary Clinton signed this agreement with the Foreign Secretary from Mexico, Patricia Espinosa, to open up this area known as the ''western gap'' in the Gulf of Mexico so that both countries—Mexico and the United States—could explore and start producing oil and natural gas from this area.

What it does is to create a broader legal certainty along that U.S.-Mexico boundary area in order to foster more American energy development and job creation. The Bureau of Ocean Energy Management, Regulation and Enforcement estimates that this area contains as much as 172 million barrels of oil and 34 billion cubic feet of natural gas—shared resources. Yet they're shared under a common border, a border between the United States Government and Mexico. If you think of a border, think about it out in the middle of the Gulf of Mexico. It's a maritime boundary, and these resources lie underneath the Earth's Outer Continental Shelf. Underneath that border, who do they belong do? This agreement addresses that they are shared resources. They belong to both countries, and we ought to utilize this agreement in order to start harvesting those resources.

The gentleman talks about changes to Dodd-Frank and other things, but why is that necessary? Who will benefit? I'll tell you who won't benefit if we don't put this language in there. The people who won't benefit are the American consumers. They are paying almost $4 a gallon for gasoline. They won't benefit because we won't be producing American resources to meet their energy needs.

So why is this necessary? Without the changes to this agreement, the language in the agreement can create an impossible situation for American companies operating on transboundary hydrocarbon resources.

For example, Mexican confidentiality requirements may forbid the disclosure of the very information that the Dodd-Frank rule requires of American companies. This would lead to a situation in which companies that are regulated by the SEC have at the very least uncertainty about compliance with both Mexican and American disclosure laws. This uncertainty and potential disclosure conflict would place foreign state-owned oil companies, which are not regulated under Dodd-Frank or by the SEC, at a competitive advantage to the companies which operate under the United States' agreement and are regulated.

The change in this language will open up competition and allow American companies to actually go to work without the uncertainty as to which laws they need to comply with and which they don't. This is the right thing. The changes to this language will ensure that American energy development will go forward in the transboundary area and that those resources in that area will be harvested to provide the necessary energy for America, which drives our economy.

This is the right thing for America. We are willing to enact this agreement because we want to harvest those resources, and we want America to move toward American energy independence. Ultimately, we want to put Americans to work. We want to create jobs—good paying, long-term, energy sector jobs. We do that by moving toward American energy independence. We do that by enacting this agreement and by opening up 1.5 million acres in the Gulf of Mexico for energy exploration and development. It's the right thing for America. It's a movement toward an all-American energy policy, utilizing American resources to meet American energy needs and putting Americans to work.

□ 1310

I can only see a win-win for both Democrats and Republicans and for all Americans by moving this agreement forward. We asked, from February 2012 until now, for the United States Department of the Interior to send us the enacting legislation, to send us the enacting ability so that we could vote on something in the last Congress, and they failed to do that. So understanding that we need to do that, the Natural Resources Committee took the bull by the horns and said, We're going to do it. We're going to pass the implementing language to enact that agreement and put Americans to work and provide those resources that are so vital to moving this economy along.

Mr. DEFAZIO. That was very impassioned, and we can agree with the necessity of moving forward with the agreement. The problem is that the gentleman ignored the fact that the United States Senate will not pass this bill as written. They will not waive the Dodd-Frank disclosure rules to allow big oil companies to make secret deals with the Government of Mexico. They're not going to do that. So you're slowing things down by insisting on repealing part of these vital Wall Street reforms.

With that, I yield as much time as she may consume to the gentlelady from California (Ms. WATERS), the ranking member of the Financial Services Committee, who is an expert on this provision of law.

Ms. WATERS. Mr. Speaker, as ranking member of the Financial Services Committee and a member of the conference committee that passed the Dodd-Frank reform legislation, I rise in opposition to H.R. 1613. I oppose the bill because of the exemption it includes for companies from the transparency requirements under section 1504 of Dodd-Frank Act.

Section 1504 of Dodd-Frank requires companies to disclose payments they

make to governments for oil, gas, and mining resources. It covers companies listed on U.S. exchanges, including the U.S., Chinese, Brazilian, Canadian, European, Australian and other companies.

Section 1504 has a long legislative history. The Financial Services Committee held its first hearing on extracted industry transparency in 2007. In 2008, our committee held a legislative hearing where we debated the specific provisions that eventually became law. The Senate introduced similar legislation, and they held hearings.

The provision was adopted into the Dodd-Frank Act through a bipartisan amendment. Then, before issuing a rule to implement the law, the Securities and Exchange Commission solicited input, held meetings, and considered hundreds of comments from industry, trade groups, Members of Congress, and civil society. Section 1504 was very carefully considered by Congress over the course of several years, with input from all quarters. It is now the law of the land.

Let me tell you why it's important.

Public disclosure of extractive industry payments help diminish the political instability caused by OPEC governance, which is not only a threat to investment, but also to our own national security. Resource revenue transparency also allows shareholders to make better informed assessments of opportunity costs, threats to corporate reputation, and the long-term prospects of the companies in which they invest.

Countries rich in natural resources are often developing countries that are politically unstable, many rife with corruption, with a history of civil conflict fueled, in part, by natural resources.

Opening the extractive industries to greater public scrutiny is key to increasing civil society participation in these countries. This is crucial in order for citizens in resource-rich countries to be able to demand greater accountability from their governments for spending that serves the public interest. This in turn can help reduce poverty and create more stable, democratic governments. It can also help create more stable business environments.

The provision in H.R. 1613 that exempts companies from the disclosure requirements under section 1504 is entirely unnecessary. The bipartisan Senate version of this bill includes no such exemption.

Also, the U.S.-Mexico agreement explicitly respects the domestic laws of both countries, so it already accommodates the Dodd-Frank disclosure requirement. Moreover, there are no laws in Mexico that would prohibit the disclosure of company payments.

Let's also listen to what the administration has to say about this. After all, this administration negotiated the terms of the agreement with Mexico. The administration very much wants legislation to implement the agreement, and they know what they need to do this. And they don't want this bill.

The White House issued a statement strongly opposing H.R. 1613 precisely because of the provision waiving the requirements for the public disclosure of extractive payments to governments. The exemption in this bill is nothing more than an effort to undermine transparency and to undo good public policy that has become an international standard.

I urge my colleagues to oppose this bill in its current form. Members deserve the opportunity to vote on a clean bill that they can support, and I urge the leadership to give the House that opportunity.

Ladies and gentlemen, you have heard talk from both sides of the aisle about how important this bill could be without this exemption. Why would you undo the work of both sides of the aisle, the conference committee, the Senate, and all in working out this agreement by putting this exemption in?

I want you to know that those of us who are working very hard to make sure that we implement reform, those of us who are very much involved with Dodd-Frank, we not only understand all of the ways that people are trying to get around Dodd-Frank, to get under Dodd-Frank, to undo the reforms of Dodd-Frank, why does this exemption show up in this bill? It has no place in this bill. This is another attempt to get around Dodd-Frank and not to comply with the law, and you're messing up a good agreement. It does not make good sense.

I oppose this bill in this form. The administration opposes this bill in this form. And if you want the kind of agreement that you say you want with Mexico, if you're interested in sharing those resources, if you're interested in what you claim can be done creating jobs, you would not move forward with this bill. You would not try to force this exemption on this agreement.

Mr. HASTINGS of Washington. Mr. Speaker, I am very pleased to yield 5 minutes to the gentleman from Arizona (Mr. SALMON), who worked very hard on this agreement.

Mr. SALMON. Mr. Chairman, I appreciate this opportunity to address Congress today.

I'm very pleased, as the chairman of the Subcommittee on the Western Hemisphere for the Foreign Affairs Committee, that we held a hearing on this issue. Afterwards, we decided—after some extensive consultation with folks from the Obama State Department, we worked with the chairman of the Resources Committee and the gentleman from South Carolina (Mr. DUNCAN) to develop this language.

There is an old axiom that says ''let no good deed go unpunished.'' Nowhere in America could that be more true. Actually, nowhere on Earth could that be more true than here in Washington, D.C.

The fact is that this language reflects the agreement that the Obama administration signed almost a couple of years ago. Maybe there's some buyer's remorse and maybe there's an idea now that we don't like the fact that we agreed to this language a couple of years ago, but this reflects the agreement that was signed.

One other thing I'd like to mention is another great axiom, and that is that ''the road to hell is paved with good intentions.'' Unfortunately, I didn't know that that road went smack-dab in the middle of Washington, D.C.

The fact is, this is a good bill, and every American out there who is paying too much for their energy costs, paying too much every time you go to the pump and you fill up your car with gasoline or you go on a vacation and you curse those gasoline pumps, knows full well that we are trying to do everything we can on the Republican side of the aisle to lower your gas prices.

□ 1320

We're trying to do that by forming this agreement with Mexico. A win-win. You've heard that term a lot today, because it is. It will create jobs both in Mexico and the United States.

Pemex, the Mexican oil company, does not have the deepwater drilling capabilities that our oil companies do, and so Mexico reached out to us and asked us if we would agree to a treaty to work together with them so that we could jointly drill.

And isn't it about time that America looks to its neighbors, its friends, its allies in the region, like Mexico, instead of having to rely on the thugs in the Middle East for our oil.

I think it is about time that America and the Western Hemisphere become energy independent, that we produce our own oil in this country and in this continent. And when we do so, what's going to happen? We will reduce the likelihood that we will have to get into a war because of some oil issue. We reduce the likelihood that some of these despots from other countries, like Venezuela or other countries in the Middle East, literally hold us—excuse the pun—but hold us over the barrel, and ask us to commit to things that maybe we would rather not commit to, or play their silly games.

Wouldn't you much rather rely on a country and a friend and a neighbor like Mexico to be able to jointly drill, develop that oil, lower gas prices, and create jobs for American and Mexican citizens. This is truly a win/win. Let's not let, in some minds, the perfect be the enemy of the good. The fact is this is the language that Mexico had asked us to agree to, and we're simply trying to move the ball ahead. We can do a lot of gamesmanship today and spout off about this or that, but this is the agreement that was signed almost a couple of years ago. And again, the administration dragged their feet for the last couple of years to get this ultimately to the floor. Thank goodness we

have a chairman over here that took the bull by the horns and said, We're going to do this. We're going to do this for the American people because it's a no-brainer. So it's basically time, I agree, for us to do this in a bipartisan fashion, get off our dead derrieres, and get the job done.

Mr. DEFAZIO. Mr. Speaker, I yield myself such time as I may consume.

If the gentleman would go to the microphone, I would like to ask the gentleman a question, and I will yield to him.

Your assertion is that Mexico asked the Government of the United States to include a waiver of our financial services reform provisions in section 105 in this agreement, and the Obama administration didn't agree to that but Mexico signed the agreement anyway, and now you're trying to help out the government of Mexico to get something that you claim they wanted but didn't get from this administration; is that correct?

I yield to the gentleman from Arizona.

Mr. SALMON. Actually, that is not correct.

Mr. DEFAZIO. Well, that's what you just said.

Mr. SALMON. No, that's not what I just said. I don't appreciate having words put in my mouth. That's not what I said.

Mr. DEFAZIO. Well, please clarify.

Mr. SALMON. What I said was that the language that we've agreed to here is the language that I believe embodies the spirit of the agreement between us and Mexico. I believe it's exactly what the President has been asking for.

Mr. DEFAZIO. Okay. With that, I would reclaim my time. I could ask to have the record read back, but I won't because it would delay things. But you said this is what Mexico wanted. You did say that just before as you spoke. Now you're saying that you believe that this is reflecting the spirit of the agreement. Now I will accept that. You believe that changing the agreement by waiving our financial services law is in the spirit of the agreement. I don't believe that. MAXINE WATERS, who serves on the Committee on Financial Services, doesn't agree with that. And, unfortunately, the President of the United States doesn't agree with that, so this bill is going nowhere. It's not going to get out of the Senate. They have a bipartisan bill over there that doesn't waive Dodd-Frank that they could pass by unanimous consent. We could be done with this. But no, we're not going to do that; we're going to play games.

So here's what the President said. He's got something to say about this in the end, he really does:

> The administration cannot support H.R. 1613, as reported by the House Committee on Natural Resources because of the unnecessary, extraneous provisions that seriously detract from the bill. Most significantly, the administration strongly objects to exempting actions taken by public companies in accordance with the transboundary hydrocarbon agreements from requirements section 1504 of the Dodd-Frank Act and the Securities and Exchange Commission's natural resource extraction disclosure rule. As a practical matter, this provision would waive the requirement for the disclosure of any payments made by resource extraction companies to the United States or foreign governments in accordance with a transboundary hydrocarbon agreement. The provision directly and negatively impacts U.S. efforts to increase transparency and accountability, particularly in the oil, gas, and minerals sectors.

So if we proceed with this bill in this form, the President will veto the bill, and we'll be back again. And how many months that'll take, I don't know. But to assert that somehow Mexico wanted this, or the administration wanted it, and they just kind of forgot to put it in the agreement, and now we're helping them out, even though the administration says they don't want it, and I don't know what the government of Mexico says—and then there was another issue raised about confidentiality provisions.

In fact, the SEC has more than adequate capabilities to do general exemptions in sections 12(h) and 36 of the Securities and Exchange Act. They could issue exemptions from this disclosure requirement under this authority, should it be warranted. In fact, the SEC today confirmed with us that there is nothing that would prevent the SEC from issuing exemptions should they be warranted. Now, the objection here is to waiving any and all future agreements from any public disclosure of payments to foreign governments. That's what you're doing here today. It's not about this one agreement or problems that might crop up with Mexico. That could be accommodated by the Securities and Exchange Commission. It's about doing away with a critical section of Dodd-Frank. And if you want to do that, why not bring it up in the Financial Services Committee, have a hearing, have a debate, send us a bill and repeal it. But don't try and do it in the dark of night in the hope that if you attach it to this agreement, which we all agree should be entered into, Mexico wants, U.S. wants, that you're doing anybody a favor.

With that, I reserve the balance of my time.

Mr. HASTINGS of Washington. Mr. Speaker, I am very pleased to yield 2 minutes to the gentleman from Florida (Mr. RADEL).

Mr. RADEL. Thank you, Mr. Chair.

Ultimately, we would hope that the Senate can agree on this, and the administration, regardless of what we hear. We would love to have some compromise, although it is important to debate this here today.

Here's what I know, and it's important to you—how much you're paying at the pump every single time you go and fill up. What you're paying at the pump is eating into what you pay for groceries, your rent, your mortgage. But House Republicans, right here, right now, have a plan to help you put more money in your pocket and save on the important stuff like your gas and your grocery bill.

We started by approving the Keystone pipeline, and what we're debating here today is an energy agreement with Mexico. The agreement encourages development of energy resources in both countries—development in the U.S. and in Mexico. You know, it strikes me, right now we have all of this talk about illegal immigration and how we're going to prevent it here in the United States. The best way is to make sure that we have a strong economy south of the border. Not only do I know that as the vice chair on the Subcommittee on the Western Hemisphere, but I've lived in Mexico.

(English translation of the statement made in Spanish is as follows.)

There are mothers and fathers today looking for opportunities for their children.

Hay madres y padres buscando oportunidad para sus hijos.

Because at the end of the day, this is about jobs, jobs, jobs, and it's about improving our national security. Think about it: In terms of national security, do you really want to send your money to countries who really may not have our best intentions in mind? Or do you want to partner with our energy allies to the north and south of us, making us energy independent for generations to come, working with our neighbors and our friends.

Now Mexico ratified this agreement over a year ago. They sent it to the President. Now we are calling on the President to help us lower your price at the pump. This is as bipartisan as it gets. What we're trying to do here in Washington is just help make everyday life a little easier for you. Our goal is to save you money so you can spend less time worrying about your budget and enjoying more time with your family.

The SPEAKER pro tempore (Mr. MESSER). The gentleman from Florida will provide the Clerk a translation of his remarks, and Members are reminded to address their remarks to the Chair.

□ 1330

Mr. DEFAZIO. I yield such time as she may consume to the gentlewoman from California (Ms. WATERS)

Ms. WATERS. Mr. Speaker and Members, I hear my friends on the opposite side of the aisle keep talking about this is as bipartisan as you can get. It was bipartisan before you sneaked in the exemption that would allow companies to bribe governments and pay under the table and create chaos in other countries. It was a bipartisan agreement.

I keep hearing reference to this having the support of the administration. Let me be clear. This bill, in this form, does not have the support of the administration. It did have before you sneaked in the exemption.

Dodd-Frank made it very clear. It is the law. We worked very hard. Both

sides of the aisle, in the conference committee, worked on this part of the bill. And now we have you coming in the dark of the night, one more time trying to undo Dodd-Frank. And this is awful. It is really, really awful because we have the opportunity to have an agreement with Mexico where we could both benefit from the drilling, and we all support that.

But, no, you have decided to undermine the work of both sides of the aisle by putting this exemption in this bill, and so it does not have the support of the administration. It is no longer bipartisan. We no longer support it. And you have the possibility of a veto on your hands.

Mr. HASTINGS of Washington. I reserve the balance of my time.

Mr. DEFAZIO. May I ask the Chair, how much time remains on either side?

The SPEAKER pro tempore. The gentleman from Oregon has 13½ minutes.

Mr. DEFAZIO. Okay. Does the gentleman have more speakers or would he be closing?

Mr. HASTINGS of Washington. I am prepared to close if the gentleman is prepared to close.

Mr. DEFAZIO. Mr. Speaker, what we've heard here today is that by modifying this agreement, by preventing disclosure of payments by big oil companies to foreign governments which could essentially constitute under-the-table agreements, bribes, however you have it, will somehow lower gas prices for the American people.

Now, I think if you went out and asked the American people, ''Do you think allowing ExxonMobil or any of the other big companies to enter into secret agreements with foreign governments to exploit jointly held resources is going to benefit you at the pump?'' I think they'd kind of laugh at you. I mean, no offense, but they would.

The bottom line is there's also a further assertion that somehow this possible future development of this area will lower the price at the pump. It won't and it hasn't, and today the prices are excessive.

Why are they excessive?

Well, there's this funny little thing that happens just around Memorial Day every year. The refiners—and the refinery industry has been dramatically consolidated over the last few years because there's been buyouts and closures and everything else—they decide that they've got to do periodic maintenance.

It's got to happen at the beginning of the driving season; and, of course, they all schedule it at the same time and they limit refinery capacity, and then they say there's a shortage and the price jumps up 50 cents a gallon, like it did in Oregon just a month ago—50 cents a gallon in a week.

Whoa, what happened? Did you see anybody waving red flags saying, We don't have any gas, or yellow flags?

Anybody remember the seventies? No. Everybody had gas. They just jacked up the price, because that's the way that the oil companies celebrate the beginning of the summer vacation season for the American people, by increasing their profits with extraordinary and unwarranted increases in the price claiming there's somehow a shortage because somehow they're cleaning their refineries, or one of them had a problem. They are actually exporting gasoline from the west coast.

What does that mean?

There's actually a glut of oil in the gulf region right now that they can't refine. We've got refineries closed in California with oil sitting in storage tanks that can't be refined. And somehow, if we just had more oil to add to the glut, to add to the full storage tanks because the refineries are shut down to drive up the price—or maybe they're not shut down. There was actually an investigation last year. When they claimed they were shut down, they weren't. So we don't really know.

But to say, well, gee, we trust the oil companies. Let's let them negotiate secret agreements with the Government of Mexico, with Canada, with—ultimately, perhaps with Russia and that will benefit the consumers at the pump, it does not meet the laugh test.

Ms. WATERS. Will the gentleman yield?

Mr. DEFAZIO. I yield to the gentlewoman from California.

Ms. WATERS. I would like to, if I can, engage you in a little colloquy here.

What reason would the Members of Congress try and protect the oil companies from simply sharing how much they're paying to governments? What reason would they have for doing that?

Mr. DEFAZIO. Reclaiming my time, we heard earlier the assertion that that would protect American workers. I'm not quite certain how that's going to work out. And probably it doesn't even help stockholders, because they might really want to know what's going on. I'm not sure.

Ms. WATERS. Well, I just want to make clear what this exemption is they're trying to do. It's a very simple request that's in law that says just tell us what you're paying. And we have now included in this bill, where there is an agreement, an exemption that will not allow them or keep them from being able to share that information.

As you said, they would now, if this passed, they would be able to make payments in secret. They would be able to make bribes. They would be able to maybe even be disruptive to countries that they are paying bribes to when they get into these conflicts in other countries.

So why would they want to do this? I don't understand it. I thought maybe you may have some additional information that I don't have. But to mess up an agreement simply because you want to protect the oil companies from saying how much they're paying is beyond my comprehension.

Mr. DEFAZIO. I thank the gentlelady.

The bottom line here is it's simple. If we pass this bill in this form, the President would veto it if it came out of the Senate. It will not come out of the Senate.

They are actually acting in a true bipartisan way in the Senate, and they have a bill which could receive probably unanimous consent that does not contain this provision, that does not provide this waiver of the Dodd-Frank Act in favor of the big oil companies.

It's simple. I can see, you know, and I can count, and in all probability the Republican side will prevail here, but they are not furthering the cause of expediting the signing of this agreement and the execution of this agreement between Mexico and the United States by sending a bill to the Senate that the Senate will not pass.

With that, I yield back the balance of my time.

Mr. HASTINGS of Washington. Mr. Speaker, how much time do I have remaining?

The SPEAKER pro tempore. The gentleman has 14½ minutes.

Mr. HASTINGS of Washington. I yield myself the balance of the time.

Let me clarify just a few major points here. First of all, the President did not say he would veto it. He said he had a concern. I accept that. But the President did not say he would veto this legislation. After all, it was his Secretary of State that negotiated the agreement. Why would he veto an agreement negotiated by his Secretary of State?

Secondly, if this could pass so easily out of the Senate, as my friend from Oregon asserts, why hasn't the Senate passed it?

We always ask that question over here. In fact, sometimes we get ourselves in a gridlock because we're so, maybe, frightened of what the Senate may or may not do.

Listen, if the Senate wants to pass this agreement without this provision, do it. Nobody is preventing them from doing it. Nobody.

Now, let me make another observation here that I think is probably more important in this debate than anything else that has been said, and that is, as was pointed out several times—I mentioned it in my opening remarks; Mr. DUNCAN mentioned it; Mr. SALMON mentioned it—in 2012, this agreement was signed. None of the information was given to us because we had to implement it. Now, I wonder why. Could it possibly be that the mindset of this administration, which, by the way, has consistently been nonresponsive to more exploration on the Outer Continental Shelf offshore—if I may, Mr. Speaker, go back just a bit.

When this administration took office, there was no moratoria on the Pacific or Atlantic coasts. One of the first actions of this President was to lock up 85 percent of those potential resources. So maybe they do have a bit of a bias against offshore drilling.

So here's an amendment, here's an agreement that was signed over a year

ago. It took over a year for it to come here. Because of no action on their part, it was going nowhere legislatively until Mr. DUNCAN said, Listen, this is something we ought to do.

So perhaps, Mr. Speaker, perhaps, is the reason why they're taking this one element—and I'll talk about that in a moment—as a reason to oppose this legislation really because they're trying to cover up the fact they don't like any offshore drilling?

□ 1340

I'll let somebody draw whatever conclusions they want. I simply ask the rhetorical question.

Mr. DEFAZIO. Will the gentleman yield?

Mr. HASTINGS of Washington. I will be more than happy to yield to my friend on that point. I assume he wants to talk about that, and I'm more than happy to engage in that debate.

Mr. DEFAZIO. Mr. Chairman, thank you for yielding.

I believe Ms. WATERS stated very clearly that there is substantial, if not unanimous, support on this side for this agreement without this provision, which would ultimately lead to the development of these resources.

Mr. HASTINGS of Washington. Reclaiming my time, I think if you go back and look at the bills that have come in front of this body before in the last Congress—in fact, later on today—you will find that the overwhelming opposition to that legislation, if it's going to mirror what happened in the last Congress, was to oppose offshore development. So I'll just make that observation. Others can draw the conclusion.

But here is something that is very curious about this debate on why we should defeat this legislation because of this provision dealing in disclosure.

Anybody could have offered an amendment to take that provision out of the bill. It would have been perfectly in order. There's no parliamentary problem with striking from a bill. And there was an amendment, by the way, that was offered by a Member from the other body but was withdrawn. Both of my colleagues on the other side of the aisle that are arguing against this because of this provision, they could have offered the amendment. It would have been made in order, and we could have debated it. But the amendment wasn't offered. I don't know why.

Ms. WATERS. Will the gentleman yield?

Mr. HASTINGS of Washington. I will be more than happy to yield to the gentlewoman from California.

Ms. WATERS. Just as you have come to some conclusion that maybe we are opposing this bill because we're opposed to offshore drilling, which is not true——

Mr. HASTINGS of Washington. Reclaiming my time, I simply said that there is a pattern in this administration and with my friends on the other side that they oppose that. I'll let others draw that conclusion.

I will be glad to yield to the gentlelady.

Ms. WATERS. Thank you very much.

When you raised the question about why didn't we offer an amendment and the Senate can offer an amendment, I have drawn a conclusion. Why are you trying to get credit for putting this in the bill with the oil companies?

Mr. HASTINGS of Washington. Reclaiming my time, we believe that this provision in Dodd-Frank is contrary to the agreement because the only moneys—and I'll get to this point. I was going to get to it later, but I'll get to it right now. The only moneys that go to Mexico are what the Obama administration agreed to for these royalties or leases. That is the only money that goes to Mexico. So we believe that there's no reason to have this particular requirement in the bill, and that's why we did it.

Now you can disagree with that, of course. You have every right to do it. But if you really believe that this bill should be defeated because of that provision, why didn't you offer an amendment? Wait, there was an amendment that was offered and then withdrawn. Curious? I don't know what their reasons are.

So all I can say, Mr. Speaker, is that this is a good piece of legislation. It deserves bipartisan support. And if the Senate, to conclude, has a different view, let them pass their different view and we'll work it out. Isn't that the reason our Founding Fathers had two bodies? So we can work out the differences?

With that, Mr. Speaker, I yield back the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FINANCIAL SERVICES,
Washington, DC, June 5, 2013.

Hon. DOC HASTINGS,
Chairman, Committee on Natural Resources, Longworth House Office Building, Washington, DC.

DEAR CHAIRMAN HASTINGS: On May 15, 2013, the Committee on Natural Resources ordered H.R. 1613, the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act, as amended, to be reported favorably to the House. As a result of your having consulted with the Committee on Financial Services concerning provisions of the bill that fall within our Rule X jurisdiction, I agree to discharge our committee from further consideration of the bill so that it may proceed expeditiously to the House Floor.

The Committee on Financial Services takes this action with our mutual understanding that, by foregoing consideration of H.R. 1613, as amended, at this time, we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and that our committee will be appropriately consulted and involved as the bill or similar legislation moves forward so that we may address any remaining issues that fall within our Rule X jurisdiction. Our committee also reserves the right to seek appointment of an appropriate number of conferees to any House-Senate conference involving this or similar legislation, and requests your support for any such request.

Finally, I would appreciate your response to this letter confirming this understanding with respect to H.R. 1613, as amended, and would ask that a copy of our exchange of letters on this matter be included in your committee's report to accompany the legislation and/or in the CONGRESSIONAL RECORD during floor consideration thereof.

Sincerely,

JEB HENSARLING,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, June 5, 2013.

Hon. JEB HENSARLING,
Chairman, Committee on Financial Services, Rayburn HOB, Washington, DC.

DEAR MR. CHAIRMAN: Thank you for your letter regarding H.R. 1613, the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act. As you know, the Committee on Natural Resources ordered reported the bill, as amended, on May 15, 2013. I appreciate your support in bringing this legislation before the House of Representatives, and accordingly, understand that the Committee on Financial Services will forego action on the bill.

The Committee on Natural Resources concurs with the mutual understanding that by foregoing consideration of H.R. 1613 at this time, the Committee on Financial Services does not waive any jurisdiction over the subject matter contained in this or similar legislation. In addition, should a conference on the bill be necessary, I would support your request to have the Committee on Financial Services represented on the conference committee. Finally, I would be pleased to include your letter and this response in the bill report filed by the Committee on Natural Resources, as well as in the CONGRESSIONAL RECORD during floor consideration, to memorialize our understanding.

Thank you for your cooperation.

Sincerely,

DOC HASTINGS,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, June 4, 2013.

Hon. DOC HASTINGS,
Chairman, House Committee on Natural Resources, Longworth House Office Building, Washington, DC.

DEAR CHAIRMAN HASTINGS: Thank you for sharing the amended text of H.R. 1613, the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act, as marked up by your Committee.

Based on the portions of that text within Foreign Affairs jurisdiction, I am writing to confirm the agreement of the Foreign Affairs Committee to be discharged from consideration of H.R. 1613 in order to expedite its consideration on the House floor. In agreeing to waive consideration of that bill, this Committee does not waive any jurisdiction that it has over provisions in that bill or any other matter. This also does not constitute a waiver of the participation of the Committee of Foreign Affairs in any conference on this bill. I ask that you include a copy of this letter and your response in any Committee report on H.R. 1613, and in the Congressional Record during floor consideration of the bill.

Thank you again for your consideration and collegiality in this matter.

Sincerely,

EDWARD R. ROYCE,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, June 4, 2013.

Hon. EDWARD R. ROYCE,
Chairman, Committee on Foreign Affairs, Rayburn HOB, Washington, DC.

DEAR MR. CHAIRMAN: Thank you for your letter regarding H.R. 1613, the Outer Continental Shelf Transboundary Hydrocarbon

Agreements Authorization Act. As you know, the Committee on Natural Resources ordered reported the bill, as amended, on May 15, 2013. I appreciate your support in bringing this legislation before the House of Representatives, and accordingly, understand that the Committee on Foreign Affairs will forego action on the bill.

The Committee on Natural Resources concurs with the mutual understanding that by foregoing consideration of H.R. 1613 at this time, the Committee on Foreign Affairs does not waive any jurisdiction over the subject matter contained in this or similar legislation. In addition, should a conference on the bill be necessary, I would support your request to have the Committee on Foreign Affairs represented on the conference committee. Finally, I would be pleased to include your letter and this response in the bill report filed by the Committee on Natural Resources, as well as in the Congressional Record during floor consideration, to memorialize our understanding.

Thank you for your cooperation.

Sincerely,

DOC HASTINGS,
Chairman.

The SPEAKER pro tempore. All time for debate has expired.

AMENDMENT NO. 1, AS MODIFIED, OFFERED BY MR. GRAYSON

Mr. GRAYSON. Mr. Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment, as modified, is as follows:

Add at the end the following:

TITLE ___— MISCELLANEOUS PROVISIONS

SEC. ___. STATE RIGHTS AND AUTHORITY NOT AFFECTED.

Nothing in this Act and the amendments made by this Act affects the right and power of each State to prohibit management, leasing, developing, and use of lands beneath navigable waters, and the natural resources within such lands, within its boundaries.

The SPEAKER pro tempore. Pursuant to House Resolution 274, the gentleman from Florida (Mr. GRAYSON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. GRAYSON. I want to thank the Rules Committee for ruling that this amendment is in order. I want to also thank the committee chair for giving me the opportunity to discuss this with him briefly before this matter came up before the House.

This amendment should not be controversial. It reads as follows:

Nothing in this Act and the amendments made by this Act affects the right and power of each State to prohibit management, leasing, developing, and use of lands beneath navigable waters, and the natural resources within such lands, within its boundaries.

This language may sound familiar to those who are familiar with the current division of authority between, on the one hand, the Federal Government and, on the other hand, the States. It's a reaffirmation of 434 U.S.C. 1311(a), and 43 U.S.C. 1311 has a very notable title. It's called, ''The Rights of the States.'' That is the guarantee and purpose of the amendment before us today: to make sure and to reaffirm the rights of the States.

The concept is simple. If land, or resources within those lands, falls within a State's boundaries, that State should have the right to manage that land and those resources in a manner that it sees fit. This is a principle that we in Florida hold dear, and it's an important principle in every State, and, in fact, an important principle to federalism itself.

This principle has been enshrined in law since 1953, when the House passed H.R. 5134 to amend the Submerged Lands Act. A majority of Democrats supported that bill, as did an overwhelming majority of the Republicans. The final vote within the Republican caucus that year was 191 in favor and only 12 opposed. It's my hope that we'll see similar bipartisan support—in fact, overwhelming support—today for this amendment to simply reaffirm that principle.

As a member of the Foreign Affairs Committee, I support transboundary agreements in general, and I hope that any dispute between the United States and any adjoining neighboring nation can be settled peacefully.

This bill could be misconstrued without our amendment as potentially disturbing states' rights under the status quo. It calls for the ''expeditious . . . development . . . of domestic mineral resources,'' on page 3, and limiting the ''authority to stop work on any installation . . . attached to the seabed of the United States,'' including those erected ''for the purpose of resource exploration, development, or production activities'' to ''inspection staff'' at the Bureau of Safety and Environmental Enforcement, which is on page 6 of the bill. Without our amendment, a future court that is unfamiliar with this subject might wrongly conclude that this statute has, in fact, curtailed State prerogatives.

I don't believe that it was ever the intention of the Natural Resources Committee to make such a dramatic change to the status quo, to the detriment of the States and to states' rights. Therefore, this amendment today should not be controversial. It's merely a reaffirmation of existing law—a section of the United States law entitled, ''Rights of States''—and it's an effort to ensure that the States can choose to do within their own boundaries, and that that which they choose to do is that which will happen.

I reserve the balance of my time.

Mr. HASTINGS of Washington. Mr. Speaker, I rise to claim time in opposition to the amendment.

The SPEAKER pro tempore. The gentleman is recognized for 5 minutes.

Mr. HASTINGS of Washington. Mr. Speaker, I find this amendment offered on this bill to be rather strange because the amendment usurps itself as an effort to protect states' rights. Well, the underlying bill is about an international agreement between the United States and Mexico, and that boundary is about 200 miles from the nearest shoreline. There is no jurisdiction of any State that goes that far out, particularly in the Gulf of Mexico. So I can assure the gentleman that there is nothing in this bill that would change any existing laws as it relates to states' rights and their waters.

But this amendment isn't necessary. It's simply restating the status quo. The sponsor of the amendment and all those concerned with upholding states' rights can be assured that the existing rights of the individual 50 States are fully respected and in no way undermined by this bill, as I just mentioned. However, adopting this amendment could impact international relations with foreign states. And the reason why is because in foreign law, as I understand it, the term ''state'' means foreign government. There's no explanation in the amendment about states, so that raises a concern.

□ 1350

So by adopting this amendment, you could potentially destroy the agreement that we have in place. And what will that do? Well, it would delay American energy production, and it would delay the creation of American jobs.

So I urge a ''no'' vote on the amendment, and I reserve the balance of my time.

Mr. GRAYSON. I appreciate the comments of the committee chair, but I must respectfully disagree with him on the merits.

First, with regard to the Gulf of Mexico, the restrictions on current development stretch 100 miles off the shores of Florida, a matter that is of great import in my State. Furthermore, the fact is that we cannot specifically restrain a future court from deciding contrary to the gentleman's opinion unless we do so in this bill.

Now, we've already had the experience this week that, on Tuesday, a certain number of Members of this body were disappointed by a Supreme Court decision; and on Wednesday, other Members were disappointed by a Supreme Court decision. Both of those decisions had to do with federalism; both those decisions had to do with the construction of legislation. If we want to ascertain and commit to the fact that we're not changing current law, the only way to do that is to say that we are not changing current law. By not doing so, we would be giving, in effect, a hostage to future courts for the end of time.

It's in the nature of the supremacy clause that unless we say we are not taking away states' rights, we might do so inadvertently. And that's exactly what this amendment would prevent.

Now, with regard to the second point, I don't know what foreign law may provide with regard to States, but I do know what American law provides. In fact, not only in this title, not only in this chapter, but in this subchapter there's a definition of ''state,'' and that

definition is as following—this is 43 U.S.C. 1301, under the heading Definitions, and that says, G: ''The term 'state' means any state of the union.''

Now, while I respect the gentleman's opinion, it's clear—from a clear and plain reading of the statute that we are amending—that in fact his position has no merit. Therefore, I urge the adoption of this amendment so that we can protect states' right, and in particular the rights of coastal States.

Mr. HASTINGS of Washington. I yield 1 minute to the sponsor of this legislation, the gentleman from South Carolina (Mr. DUNCAN).

Mr. DUNCAN of South Carolina. Let's just be clear, America, what we're talking about and where we're talking about.

This chart shows the Western Gap, the only area covered under the transboundary hydrocarbons agreement—the agreement negotiated by the Obama administration—to open up this area; 1.5 million acres in the Gulf of Mexico that's so far away from the shore of Florida that really makes this amendment not applicable.

This is the area we're talking about, this 1.5 million acres that would produce American jobs and American energy resources.

Mr. HASTINGS of Washington. Mr. Speaker, just simply to close, I yield myself the balance of my time.

This amendment is really unnecessary, and I think that chart points that out. You're talking hundreds of miles offshore, and yet the amendment asserts itself to protect states' rights. I'm sorry, Mr. Speaker, I cannot connect the dots on that.

I urge defeat of the amendment, and I yield back the balance of my time.

The SPEAKER pro tempore. Pursuant to the rule, the previous question is ordered on the bill, as amended, and on the amendment offered by the gentleman from Florida (Mr. GRAYSON), as modified.

The question is on the amendment by the gentleman from Florida (Mr. GRAYSON), as modified.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of H.R. 1613 is postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair for a period of less than 15 minutes.

Accordingly (at 1 o'clock and 54 minutes p.m.), the House stood in recess.

□ 1409

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. MARCHANT) at 2 o'clock and 9 minutes p.m.

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of H.R. 1613 will now resume.

The Clerk read the title of the bill.

The SPEAKER pro tempore. When the House recessed, the Chair had declared that the noes prevailed on the Grayson amendment, as modified.

Mr. GRAYSON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on adoption of the amendment will be followed by 5-minute votes on adoption of a motion to recommit H.R. 1613, if ordered; passage of H.R. 1613, if ordered; and the motion to suspend the rules on H.R. 1864.

The vote was taken by electronic device, and there were—yeas 213, nays 213, not voting 8, as follows:

[Roll No. 291]

YEAS—213

Andrews
Barber
Bass
Beatty
Becerra
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Buchanan
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Cramer
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSantis
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gibson
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Lance
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Markey
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Mica
Michaud
Miller (FL)
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
Nugent
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Polis
Posey
Price (NC)
Quigley
Radel
Rahall
Rangel
Richmond
Rooney
Ros-Lehtinen
Ross
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Webster (FL)
Welch
Wilson (FL)
Yarmuth
Yoho

NAYS—213

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bishop (UT)
Black
Blackburn
Bonner
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Costa
Cotton
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lankford
Latham
Latta
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
Meadows
Meehan
Messer
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Roskam
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (IN)

NOT VOTING—8

Campbell
Fincher
McCarthy (NY)
McMorris Rodgers
Payne
Smith (WA)
Waxman
Young (FL)

□ 1438

Messrs. GRIFFIN of Arkansas, KINGSTON, FORTENBERRY, CONAWAY, COLLINS of Georgia, and ROHRABACHER changed their vote from ''yea'' to ''nay.''

Mr. ISRAEL, Ms. CHU, Messrs. NUGENT, CROWLEY, Ms. FRANKEL of Florida, and Mr. LOEBSACK changed their vote from ''nay'' to ''yea.''

So the amendment, as modified, was rejected.

The result of the vote was announced as above recorded.

PERSONAL EXPLANATION

Mr. WAXMAN. Mr. Speaker. During rollcall vote No. 291 on Grayson Amendment, H.R. 1613, I was unavoidably detained. Had I been present, I would have voted "yes."

□ 1440

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. GARCIA. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. GARCIA. I am opposed to the bill in the current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Add at the end the following:

TITLE ___— MISCELLANEOUS PROVISIONS

SEC. __01. AVOIDING ANOTHER BP DISASTER.

(a) SAFETY REQUIREMENTS.—In implementing a transboundary agreement implemented or approved under this Act, the Secretary of the Interior shall require that drilling operations conducted pursuant to such an agreement meet requirements for—

(1) third-party certification of safety systems related to well control, such as blowout preventers;

(2) performance of blowout preventers, including quantitative risk assessment standards, subsea testing, and secondary activation methods;

(3) independent third-party certification of well casing and cementing programs and procedures;

(4) mandatory safety and environmental management systems by operators on the outer Continental Shelf;

(5) procedures and technologies to be used during drilling operations to minimize the risk of ignition and explosion of hydrocarbons; and

(6) procedures and technologies to protect the health and safety of workers.

(b) INCREASED LIABILITY FOR SPILL CLEANUP.—As a condition of any lease issued pursuant to any such agreement, the Secretary may require increased liability for any damages related to an oil spill occurring as a result of activities under such a lease, for activities in water depths of 1000 feet or deeper.

(c) CIVIL PENALTIES TO ENSURE POLLUTERS PAY.—

(1) IN GENERAL.—

(A) PENALTY.—Except as provided in subparagraph (B), any person who fails to comply with any provision of law with respect to any action under any term of such a lease or a license or permit issued under such a lease, or any regulation or order issued under this Act, shall be liable for a civil administrative penalty of not more than $80,000 for each day of the continuance of such failure

(B) THREAT OF HARM OR DAMAGE.—If a failure described in subparagraph (A) constitutes or constituted a threat of harm or damage to life, property, or the marine, coastal, or human environment, a civil penalty of not more than $150,000 shall be assessed for each day of the continuance of the failure.

(C) ASSESSMENT AND COLLECTION.—The Secretary of the Interior may assess and collect any such penalty.

(D) INCREASE IN MAXIMUM AMOUNT.—The Secretary of the Interior may increase the maximum amount of any penalty established pursuant to this subsection.

(2) REVIEW OF MAXIMUM PENALTIES.—

(A) IN GENERAL.—Notwithstanding any other provision of this section, the Secretary of the Interior shall review the maximum amount of each penalty established pursuant to this subsection, including any amount increased under paragraph (1)(D), every 5 years and determine if such maximum amount is appropriate.

(B) NOTICE OF INCREASES.—The Secretary shall submit to Congress notice of the reasons for each increase by not later than 60 days after the increase takes effect.

Mr. DUNCAN of South Carolina (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from South Carolina?

There was no objection.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Florida is recognized for 5 minutes.

Mr. GARCIA. Mr. Speaker, this is a final amendment to the bill. This will not delay or kill or send it back to committee. If adopted, the bill will proceed immediately to final passage, as amended.

Just over 3 years ago, the Deepwater Horizon drilling rig exploded, killing 11 workers and spilling 200 million gallons of oil into the Gulf of Mexico. Our Nation was gripped with images like this and this, of oil gushing into the gulf, washing up on to our shores.

Mr. Speaker, this was the worst environmental disaster in our Nation's history, with economic costs of over $40 billion.

While other Gulf States suffered more, Florida's tourism and fishing were hurt. Mr. Speaker, it could even be worse, more damaging next time. That's why my amendment that I am offering today is so important. The amendment will prevent another BP oil spill by imposing safety standards for drilling based on what we learned from this terrible accident. If such a disaster is to occur again, this amendment will also make sure that the polluter pays for the cleanup.

As the BP oil accident shows, something happening hundreds of miles away affected Florida's coast and can easily bring oil to our State's shores. In south Florida, we know that these spills are not just a threat to the environment; they are a threat to our economy.

An oil disaster off Florida would affect the lives of millions, including local fishermen, hotels, restaurant owners, small businesses, and families that depend on these businesses for their jobs and livelihoods.

With approximately 90 million visitors per year, Florida is one of the top destinations of the world. Our tourism industry generates nearly $70 billion annually, supporting over 1 million jobs throughout the State. People from all over the country, in fact, all over the world, travel to Florida to enjoy our incredible beaches, our unparalleled sport fishing, and our State's unique natural treasures.

Anglers from all over the world come to my district, to the village of Islamorada, the sports fishing capital of the world, to enjoy sports fishing that cannot be matched anywhere else in the world. My district also includes the Florida Everglades, the largest wetland in America and a jewel in our National Park System.

In south Florida, we know our economic future depends on preserving our environment. This is why protecting Florida's coast from the dangers of offshore drilling has always drawn support from both sides. This is not a Democratic issue. This is not a Republican issue. It's a Florida issue, and, in fact, it's a national issue.

At a time when we face so many important issues, we here in Congress need to work together to do what's right. While I am new to the ways of Washington, I hope and believe that we can put party pressures aside and put America's people first.

I urge my colleagues to vote ''yes'' to ensure that we can protect our environment, our economy, our Nation from another disaster like the BP oil spill.

I yield back the balance of my time.

Mr. DUNCAN of South Carolina. Mr. Speaker, I claim the time in opposition to the motion.

The SPEAKER pro tempore. The gentleman is recognized for 5 minutes.

Mr. DUNCAN of South Carolina. I urge opposition to this motion, Mr. Speaker.

What we have here in this motion to recommit is just the latest attempt by a few on the other side of the aisle to cater to special interests instead of the needs of the American people.

Behind me, I have a copy of the transboundary area that we're talking about, the Western Gap. You'll notice in that map you don't even see the State of Florida.

This bill enacts an agreement between the United States Government and Mexico to open up a million and a half acres to offshore drilling in the Gulf of Mexico, an agreement negotiated by and signed by the Secretary of State, Hillary Clinton, in February 2012.

We want to make sure this agreement will help create American jobs. We want to make sure that we're developing our resources in a safe and responsible way. We want to make sure that this bill puts us on the path toward North American energy independence.

This bill does all of those things, yet the gentleman that offers the motion says he is against the bill. Actually, he said he's for it, but for a lot of different reasons. But this is an attempt to delay the fact that we need to make changes.

The time for delay is over. The time to come together in a bipartisan way to create jobs through energy is at

hand. We want to develop these resources to achieve North American energy independence and end our dependence on Middle Eastern sources of energy, and we want to reduce the cost of fuel for all Americans.

□ 1450

We want this bill to be part of an all-of-the-above, all-American energy strategy. We want to provide the regulatory clarity and the certainty that energy producers need to explore the area, create the jobs, and produce the energy that we need. And for all of you still on the fence about whether or not to support this bill, let us remember that this is the administration's agreement, and we actually want to get it enacted.

So let's get to work creating American jobs while producing American energy. Let's defeat this motion and let's pass this bill to put Americans back to work.

With that, I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Mr. GARCIA. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 194, noes 232, not voting 8, as follows:

[Roll No. 292]

AYES—194

Andrews
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Garamendi
Garcia
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Markey
Matheson
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOES—232

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—8

Campbell
Ellison
Fincher
Lamborn
McCarthy (NY)
McMorris Rodgers
Smith (WA)
Young (FL)

□ 1457

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. DEFAZIO. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 256, noes 171, not voting 7, as follows:

[Roll No. 293]

AYES—256

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Bustos
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Hinojosa
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jackson Lee
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
Lipinski
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neugebauer
Noem

Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Veasey
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—171

Andrews
Bass
Beatty
Becerra
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Garamendi
Grayson
Grijalva
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Markey
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rangel
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—7

Campbell
Fincher
Gutiérrez
McCarthy (NY)
McMorris Rodgers
Smith (WA)
Young (FL)

□ 1504

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

(By unanimous consent, Mr. NEAL was allowed to speak out of order.)

CONGRATULATING THE HONORABLE ED MARKEY ON ELECTION TO SENATE

Mr. NEAL. Mr. Speaker, on Tuesday, June 25, our colleague, ED MARKEY, was elected to the United States Senate.

Mr. Speaker, from the Adams family to the Kennedy family, Massachusetts has sent great talent to the United States Senate, and always a reminder that John Kennedy served in this House and thought it was a privilege before he went to the United States Senate.

I also will just say a couple of personal things about our colleague. Nobody ever walked away from ED MARKEY and said he didn't know what he was talking about or that he was uninformed. He engages the debate fully. And I must tell you, having known him for more than three decades, he is fulfilling a personal ambition—in addition to which he has promised me that he will take the humility of this institution and bring it to the United States Senate.

The last point that I think is very important and a reminder to all of us, in the polling data that led up to Ed's victory, by 15 points the people said they thought it was his experience that would serve him well. That was the deciding factor in why they sent him to the United States Senate.

A round of applause for our friend, ED MARKEY.

INSPECTOR GENERAL INVESTIGATION OF ALLEGATIONS OF RETALIATORY PERSONNEL ACTIONS TAKEN IN RESPONSE TO MAKING PROTECTED COMMUNICATIONS REGARDING SEXUAL ASSAULT

The SPEAKER pro tempore. Without objection, 5-minute voting will continue.

There was no objection.

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 1864) to amend title 10, United States Code, to require an Inspector General investigation of allegations of retaliatory personnel actions taken in response to making protected communications regarding sexual assault, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Indiana (Mrs. WALORSKI) that the House suspend the rules and pass the bill.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 423, nays 0, not voting 11, as follows:

[Roll No. 294]

YEAS—423

Aderholt
Alexander
Amash
Amodei
Andrews
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Bass
Beatty
Becerra
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Blumenauer
Bonamici
Bonner
Boustany
Brady (PA)
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Butterfield
Calvert
Camp
Cantor
Capito
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter
Cartwright
Cassidy
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Coble
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Daines
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers
Engel
Enyart
Eshoo
Esty
Farenthold
Farr
Fattah
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grijalva
Grimm
Guthrie
Gutiérrez
Hahn
Hall
Hanabusa
Hanna
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Higgins
Himes
Hinojosa
Holding
Holt
Honda
Horsford
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee
Jeffries
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kirkpatrick
Kline
Kuster
Labrador
LaMalfa
Lance
Langevin
Lankford
Larsen (WA)
Larson (CT)
Latham
Latta
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Markey
Massie
Matheson
Matsui
McCarthy (CA)
McClintock
McCollum
McDermott
McGovern
McHenry
McIntyre
McKeon
McKinley
McNerney
Meadows
Meehan
Meeks
Meng
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Miller, Gary
Miller, George
Moore
Moran
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Negrete McLeod
Neugebauer
Noem
Nolan
Nugent
Nunes
Nunnelee
O'Rourke
Olson
Owens
Palazzo
Pallone
Pascrell
Pastor (AZ)

Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pingree (ME)
Pittenger
Pitts
Pocan
Poe (TX)
Polis
Pompeo
Posey
Price (GA)
Price (NC)
Quigley
Radel
Rahall
Rangel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Roybal-Allard
Royce
Ruiz
Runyan
Ruppersberger
Rush
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schneider
Schock
Schrader
Schwartz
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Speier
Stewart
Stivers
Stockman
Stutzman
Swalwell (CA)
Takano
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Titus
Tonko
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walorski
Walz
Wasserman Schultz
Waters
Watt
Waxman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—11

Broun (GA)
Campbell
Connolly
Conyers
Fincher
Lamborn
McCarthy (NY)
McCaul
McMorris Rodgers
Smith (WA)
Young (FL)

□ 1515

Mr. CUMMINGS changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Brian Pate, one of his secretaries.

OFFSHORE ENERGY AND JOBS ACT

GENERAL LEAVE

Mr. HASTINGS of Washington. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on the bill, H.R. 2231.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Washington?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 274 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 2231.

The Chair appoints the gentleman from Colorado (Mr. GARDNER) to preside over the Committee of the Whole.

□ 1518

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 2231) to amend the Outer Continental Shelf Lands Act to increase energy exploration and production on the Outer Continental Shelf, provide for equitable revenue sharing for all coastal States, implement the reorganization of the functions of the former Minerals Management Service into distinct and separate agencies, and for other purposes, with Mr. GARDNER in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from Washington (Mr. HASTINGS) and the gentleman from Oregon (Mr. DEFAZIO) each will control 30 minutes.

The Chair recognizes the gentleman from Washington.

Mr. HASTINGS of Washington. Mr. Chairman, I yield myself such time as I may consume.

I rise today in strong support of H.R. 2231, the Offshore Energy and Jobs Act.

Unlike the President's plan that we heard from this week, which is to impose new energy taxes and Federal red tape that will increase energy prices and cost American jobs, this Republican plan will expand access to our own U.S. energy resources in order to lower energy prices and increase American jobs.

□ 1520

Gas prices have nearly doubled since President Obama took office. The national average today remains above $3.50 per gallon compared to the $1.89 it was when he took office. We shouldn't have to accept potentially $4-a-gallon gas prices, especially when we have the resources right here at home. Higher gas prices mean we are making tough budget choices. For small businesses, it may mean the difference between hiring more workers or having to let some go. For families, it may be the difference between replacing the worn-out household appliance or making due with makeshift repairs. This is why access to affordable energy is so vital.

For decades, most of our Nation's offshore areas were under a moratorium, preventing any offshore development. All of that, Mr. Chairman, changed in the summer of 2008 when outrageously high gas prices made our Nation's energy struggles a regular topic of conversation around the dinner table for American families. Later that year, Congress and then-President Bush lifted those moratoria with the hopes of fostering an era of increased energy production.

President Obama then came into office with a tremendous opportunity. For the first time in more than a generation, he had the ability to open new offshore areas to oil and natural gas production. Sadly, instead, he went out of his way to shut down this opportunity by putting forth a new 5-year offshore leasing plan that locks up 85 percent of our offshore areas. The plan includes no new drilling, which results in no new American jobs. In fact, it includes the lowest number of lease sales ever offered in an offshore lease plan. Mr. Chairman, that's the worst record since President Jimmy Carter's.

We must do better. That's why we are here today to consider the Offshore Energy and Jobs Act. This legislation puts us back on the right path: one that will open new areas to drilling, one that will create 1.2 million American jobs, one that will lower energy prices, and one that will generate $1.5 billion in new revenue to the Federal Government. But it's not only energy jobs that will be created; it's associated industries like manufacturing, boating, transportation, and service industries like hotels and restaurants. They, too, will also benefit.

This legislation requires the administration to implement a new 5-year leasing plan that includes areas with the most oil and natural gas, such as the mid-Atlantic and Alaska and off southern California. It's not a ''drill everywhere'' plan but, rather, a ''drill smart'' plan that focuses on those areas where the greatest potential lies. It would also require specific lease sales to be held off the coasts of South Carolina and Virginia, the latter of which was originally scheduled to take place in 2011 but was cancelled by the Obama administration. There is bipartisan support in favor of the Virginia lease sale, but, again, this administration canceled it and punted any future sales until after 2017.

The bill also establishes a fair and equitable revenue sharing program with all coastal States that have drilling off their coasts, much like what the Gulf States currently enjoy. Revenue sharing will create new incentives for opening offshore areas to drilling. Again, more American energy production equates to more jobs and a stronger economy.

Finally, Mr. Chairman, the bill includes reforms to further enhance the accountability, efficiency, safety, and ethical standards of offshore energy operations. These reforms will allow for the robust production of our Nation's offshore energy resources while ensuring that all activity is conducted with proper oversight.

Offshore energy production has steadily declined under this administration, and, frankly, Mr. Chairman, it's time to reverse that trend. H.R. 2231 will remove government barriers that are currently blocking access to our American energy resources. It will safely and responsibly unlock our energy and allow us to create over a million new American jobs. I urge my colleagues to support the Offshore Energy and Jobs Act.

With that, I reserve the balance of my time.

Mr. DEFAZIO. Mr. Chairman, I yield myself such time as I may consume.

Here we are again. It's kind of a Groundhog Day moment for Congress. This bill, or individual parts of this bill, passed in the last Congress five times and never went anywhere in the Senate, and it will meet the same fate again.

Now, the premise here is that if we had mandatory offshore oil leasing in the more sensitive areas of the coast—remember, 75 percent of the known recoverable resources are available currently under lease. Currently, there are 5,484 leases on the Outer Continental Shelf that aren't producing. Those leases cover 30 million acres—85 percent of the total acreage currently under lease. We estimate there are 18 billion barrels of oil under these leases and 50 trillion cubic feet of natural gas. When I asked the gentleman from the American Petroleum Institute why they needed to put more acreage under lease when they're sitting on all of this, his answer was, Well, you know, these things take a long time.

If they take a long time, let's encourage them to develop what they've already leased, to go after these 18 billion barrels of oil and 50 trillion cubic feet of natural gas. When they're making progress there, then they might come back and petition for more, and we'll make a decision at that point given the needs of the country; but the premise that somehow by putting more leases out there—with no requirement for them to perform—the price of gas will drop is absolutely untrue. We all know that's untrue. The American consumers know it's untrue.

The principal reason that underlies the 50-cent-a-gallon, one-week run-up in May, which we're still paying, is refineries. Our refineries need to be cleaned and maintained and have periodic maintenance, and, oh, a couple of them have broken down. We have seen incredible consolidation in the refinery industry, and it's always the excuse for jacking up the price on Memorial Day and on the July Fourth weekend and sticking it to the American consumers. Last year, they claimed that all of the refineries were shut down. An investigative reporter went in and got the air pollution records—no. Actually, they were operating, and they were exporting gasoline from the United States to overseas and were claiming there was a shortage here.

Now, we're in a world market. There's not much we can do about that. So the world price is what we pay for oil and gas, and it's a manipulated market; it's a collusive market. If we really wanted to do something, Members on the other side would join me in getting the administration to file a complaint against OPEC for manipulating the markets and for violating the World Trade Organization. You would join in investigating these suspicious refinery shutdowns, which I've asked the Obama administration Energy Task Force to do. You would also join us, instead of giving more latitude to speculators in the oil companies, in actually reining in the speculators. Hey, the head of ExxonMobil says, Don't blame me for high prices as 75 cents a gallon is due to excess speculation on Wall Street.

So there are some real things we could do that would bring relief very quickly to American families, but those are not giving the oil industry, which is sitting on 5,484 leases, covering 30 million acres and 18 billion barrels of oil and 50 trillion cubic feet of natural gas, more acreage to put under lease, particularly with mandatory leasing in sensitive areas.

That's what this bill would do. We've passed it before. Well, not ''we.'' Collectively, the House has passed it before. I expect, as I said, we will see that happen again today, but nothing will happen with these bills in the United States Senate.

With that, I reserve the balance of my time.

Mr. HASTINGS of Washington. Mr. Chairman, I am very pleased to yield 5 minutes to the chairman of the subcommittee dealing with this legislation, the gentleman from Colorado (Mr. LAMBORN).

Mr. LAMBORN. While the U.S. is blessed with an abundance of energy resources, we are also saddled with an administration that is throwing up barriers to our energy security and economic prosperity.

This is why, Mr. Chairman, I rise in strong support of H.R. 2231, the Offshore Energy and Jobs Act. It passed out of the subcommittee I chair on Energy and Mineral Resources.

The bill requires the President to implement a new 5-year plan that includes the areas offshore containing the greatest known oil and natural gas resources. This is a targeted approach that focuses on specific areas in which we know the most energy resources are located. The bill requires lease sales to be held off of Virginia, which were originally scheduled to take place in 2011, and South Carolina.

□ 1530

In both States, there is strong, bipartisan support from the public, the congressional delegations and the Governors for drilling off their coasts.

Finally, the bill implements important reforms to strengthen the safety, accountability and efficiency of the Federal Government's offshore agencies. It establishes a fair revenue-sharing program for all coastal States.

Both provisions would further encourage the safe, expanded production of offshore energy.

Mr. Chairman, high gas prices hurt all of us, and the impacts are felt every day. Families are forced to make tough decisions in their budgets, schools run fewer buses and the costs of businesses go up, forcing companies to hire fewer workers. But the concerns of America's energy consumers, the Nation's small businesses and families have largely been ignored by this administration.

When President Obama took office, nearly all of the offshore areas were open to energy production. The administration had the tremendous opportunity for the first time in more than a generation to open new areas of the OCS for oil and gas drilling. Available to them for the first time since 1982 was the opportunity to access billions of barrels of oil that have been held closed under lock and key for decades.

Instead of jumping on the opportunity to increase our energy security, President Obama discarded a plan to develop these new areas, canceled lease sales and closed off 85 percent of our Outer Continental Shelf. This crushed the hopes and economic opportunity for the people in States like Virginia. In fact, the Obama plan put forward the lowest number of lease sales since the Jimmy Carter administration.

Nearly one year later, we are here again today to attempt to change the wrong course upon which this administration has set our Nation and our energy future. Recently, the Energy Information Administration issued their report for energy production on Federal lands for fiscal year 2012. It should be no surprise that the sale of crude on Federal lands decreased 5 percent in 2012, with an 8 percent decrease in Federal offshore volumes.

While this administration seems content with the status quo, this legislation is about making the right choices now to foster new access and new energy for the future. H.R. 2231 makes it clear that waiting until 2017, 5 more years, is too long for new energy production.

Increased American energy production is one of the best ways to create new American jobs, strengthen the economy and generate new revenue to help tackle the national debt. We cannot keep ignoring the vast resources potential of the U.S. Outer Continental Shelf. I applaud Chairman HASTINGS for his leadership on this issue, and I encourage all of my colleagues to support this critical legislation.

Mr. DEFAZIO. I yield 3 minutes to the gentleman from New Jersey (Mr. HOLT), the ranking member of the Energy and Mineral Resources Subcommittee.

Mr. HOLT. Mr. Chairman, I thank my friend from Oregon.

Each summer as Americans rush to our beaches for fun and relaxation, the majority of the Republicans here in the House rush forward with ill-conceived legislation to open up those same beaches and coastlines to unsafe drilling. Today we have a bill that has been accelerated through the legislative process and has been drafted in a way that limits the opportunity for Members representing coastal States to protect shorelines and coastal economies.

The bill we're considering would allow Big Oil to put drilling rigs off the Atlantic, Pacific and Alaskan coasts

without enacting key drilling safety reforms that we know should be there following the BP Deepwater Horizon disaster. This is bad policy through a bad process, all so this bill can enjoy the same fate that so many irresponsible drilling bills that the majority has rammed through have experienced.

They put these bills forward in apparent ignorance that a law requires passage by both houses and signature by the President. The administration was never given an opportunity to testify on this legislation, and now the President has suggested that he would veto this bill if it ever made it to his desk.

In committee markup, I offered an amendment to protect the Atlantic coastal communities, including my home State of New Jersey, which is strongly opposed to drilling off the Atlantic coast. The amendment was rejected on a party-line vote.

Need I remind my colleagues that about 70 million people live in Atlantic coastal regions. And according to NOAA data, Atlantic commercial fisheries were valued at $1.8 billion in 2011, and the New Jersey Travel Industry Association says New Jersey's travel and tourism is worth about $38 billion a year, supporting more than 500,000 jobs. All this depends on the pristine conditions of our beaches and shoreline.

But this isn't just about what New Jersey wants. Energy development of the OCS is a Federal issue. And as we learned during the debate on my amendment, any oil spill off the coast of, let's say, Virginia, will drift quickly to the coast of New Jersey and other northeastern States.

I submitted an amendment this week, but it was ruled not in order. The Rules Committee seems to think it's strange to want to collect fees—rent on drilling plots that belong to the public. Fees should be collected on all leases, producing or not. I think it's worth noting that according to the Bureau of Ocean Energy Management, as of June of this year, there were more than 30 million acres of non-producing leases, five times more than the 5.6 million leased acres where oil production is currently occurring. Oil and gas doesn't need more acreage to drill on. They need to drill on the leases they currently hold.

The CHAIR. The time of the gentleman has expired.

Mr. DEFAZIO. I yield the gentleman from New Jersey an additional 1 minute.

Mr. HOLT. In addition to these leases, we're considering this bill on the heels of the President's speech announcing his plan to reduce carbon pollution and to mitigate the threats of global climate change.

I realize the authors of this bill don't put much stock in what the President had to say the other day. But as elected representatives, we have a moral obligation to act. As the climate changes, there will be stronger superstorms, worse floods, more withering droughts, more intense wildfires. The science is overwhelming, but many of my colleagues in Congress would prefer to deepen our dependence on fossil fuels.

We're considering this bill at the wrong time, in the wrong way, and it's the wrong bill. The crisis is not waning. The crisis of climate change is real. President Obama is doing all he can administratively while Congress fiddles. It is no coincidence that as Democrats work to address climate change, Republicans in the House recklessly pursue a ''drill, baby, drill'' agenda.

Mr. HASTINGS of Washington. Mr. Chairman, I'm very pleased to yield 2 minutes to the gentleman from South Carolina (Mr. DUNCAN), a member of the committee.

Mr. DUNCAN of South Carolina. Mr. Chairman, this is a jobs bill. It creates American jobs, producing American energy. So it's an energy security bill, as well. And there can be no national security without energy security. So this is a national security bill, as well.

Virginians get it, South Carolinians get it and Americans get it. The first domino is the jobs that are created on the offshore rigs. But if you ride on Highway 90 from Lafayette, Louisiana, down toward New Iberia and Houma, Louisiana, you're going to see on both sides of the road business after business after business that is supporting the offshore industries. These are pipe welders, pipefitters, mechanics and the service industry.

You know what? Those guys contribute to the Chamber of Commerce and the United Way, and they go to church, they tithe and they eat at the local restaurants. This is a true job creator, and the first domino is the domino of putting Americans to work offshore, and that's what this bill does by opening up more areas on the Outer Continental Shelf. And with the trickle down, all the other dominos fall that provide money to the economies that desperately need it in this country in all the offshore areas.

We want it in South Carolina. They want it in Virginia. And Americans want us to meet our energy needs with their own resources. That's why I urge the passage of this legislation, and I thank the chairman for his leadership.

Mr. DEFAZIO. I yield 4 minutes to an outstanding new member of the committee, the gentleman from California (Mr. LOWENTHAL).

□ 1540

Mr. LOWENTHAL. I thank the distinguished gentleman from Oregon.

Mr. Chairman, today we are considering a messy conglomeration of retread ideas that wastes this Chamber's time. The various titles in this bill have been rejected by the Senate, by many of the affected States, and have a zero chance of being signed by the President.

Even when some of the ideas in this bill have merit, such as codifying the reorganization of the former Minerals Management Service, or addressing the temporary nature of Interior's authority to collect inspection fees, these ideas are cobbled together with provisions that are a mess of ''drill-baby-drill'' slogan-over-substance dead ends. So I get it; this is a message bill.

Well, here's where I think the message is wrong: Americans have a right to weigh in on government actions in their backyard. This bill eliminates that opportunity by mandating lease sales and gagging the National Environmental Policy Act.

Americans should all be able to share in the value of their public lands. This bill, however, takes the sale of a public asset and sends much of the revenue to only a few States, instead of either paying down the deficit or spending it on programs of national benefit to all Americans.

Again, Americans should be told the truth about the nonexistent effect on gas prices of expanded U.S. drilling. As my colleague from Oregon explained so well, the price of crude is set in a global market, one where the countries with the greatest reserves have formed a cartel, which decreases supply to the world when we increase production in order for them to keep the prices propped up. So, unfortunately, we are actually not keeping gas prices down by increasing U.S. production.

I am also very disappointed that an amendment that I filed was not made in order. My amendment would have prevented the Interior Department from doing business with companies that did not have a formal policy preventing discrimination based upon sexual orientation and gender identity. This amendment would have required oil companies that are not in compliance to certify that they would only hire individuals based on merit and not sexual orientation or gender identity, and they would prevent other discriminations and harassments if they want to purchase oil or gas leases.

These policies are not unusual that I'm asking: 88 percent of Fortune 500 companies have formal nondiscrimination policies prohibiting harassment and discrimination on the basis of sexual orientation. In fact, all of the major integrated oil companies have sexual orientation nondiscrimination policies except one, ExxonMobil. In the past, ExxonMobil has explained that they're not in violation of State and local nondiscrimination laws because of the Federal Defense of Marriage Act, and that trumped local statutes. Well, that argument has been vitiated since the Supreme Court struck down DOMA as unconstitutional.

There is also extensive precedent of the Federal Government requiring contractors to have nondiscrimination policies based on race, color, religion, sex, and national origin. Our government dollars and resources should only be used when we are assured that the most qualified individuals are all equally considered.

Now is the time for ExxonMobil to respect the Constitution and enact a formal policy preventing discrimination based on sexual orientation and gender identity. We Americans should not accept discrimination in any form.

Mr. HASTINGS of Washington. Mr. Chairman, I am very pleased to yield 2 minutes to the gentleman from Oklahoma (Mr. MULLIN), a member of the Natural Resources Committee.

Mr. MULLIN. Mr. Chairman, I rise in strong support of the Offshore Energy and Jobs Act. I applaud Chairman HASTINGS for his leadership on this bill that I believe will lower energy prices through the increased production of offshore resources.

This is not only a jobs bill but a path to energy independence and relief to the American consumer's pocketbook—a concept this administration claims they support, but fails to follow through with.

Just this week, the President directed EPA to put more regulations on the energy sector. These regulations will increase costs, which will be passed on to all American consumers and stifle domestic energy production, taking us further off the path to energy independence.

I know my constituents do not believe that this heavy-handed approach to regulations and increasing costs to millions of families across the country is the answer to our problem.

Oklahomans want leadership on energy policy, not hollow promises meant to appease a political party. I believe this bill is just one step of many that can be taken to get America to energy independence.

Mr. Chairman, I stand with my constituents who believe that this path to energy independence begins here at home. I encourage my fellow Members to join me in supporting this bill.

Mr. DEFAZIO. Mr. Chairman, just to inject a few facts into the debate, although we often ignore those around here: oil production from Federal lands is higher now than it was at the end of the Bush administration. We have produced 596 million barrels of oil from Federal lands last year, compared with 565 in 2008; and the Energy Information Administration found that oil production is higher on public lands offshore now than it was at the end of the Bush administration. We have produced 474 million barrels of oil last year, compared to 462 in 2008, but sometimes facts are inconvenient things.

With that, I yield 2 minutes to the distinguished gentleman from New Jersey (Mr. PASCRELL), an esteemed member of the Ways and Means and Budget Committees.

Mr. PASCRELL. Mr. Chairman, I have a great deal of respect for Chairman HASTINGS. He's a fair, civil individual. But this bill is off the charts. At least the last one that we voted on had some redeeming qualities—some redeeming qualities.

We know there's more oil been produced in the last 3½ years. The increase is greater than the previous 20 years. So you're trying to target the administration, and the administration can speak for itself and defend itself, but this is not right. This is not right. This is not right.

So let's talk about this. I am opposed to this legislation. This bill would completely rewrite the administration's plan for offshore leasing in a reckless and irresponsible manner. For example, this bill would force the Secretary of the Interior to conduct lease sale 220, located off the shore of Virginia, 70 miles from the beaches of my home State of New Jersey.

Now, look, a lot of the folks that are going to vote for this bill voted against even helping those people in New Jersey respond to the Sandy storm. You know it, and I know it. And here we are on the floor perpetrating untruths about why this is needed now. Look, it's not the amount of land that we've set aside on water or on land for oil exploration and production. We've got plenty of oil coming out of the ground. We don't have any refineries, and this is the same debate we had 25 years ago. How dare anybody stand in this astute body and then claim we don't care if gas prices go up. The fact of the matter is this is an oil Congress and this is an oil economy, and you don't want to bring in—I want to talk about the special interests of the people who are hurting out there.

The CHAIR. The time of the gentleman has expired.

Mr. DEFAZIO. I yield an additional 1 minute to the gentleman.

Mr. PASCRELL. I want to talk about the special interests—not oil companies—us. Let's talk about us and what we get out of this.

In fact, if I'm not mistaken, correct me if I'm wrong, Mr. Chairman, the administration is committed to ensuring that American taxpayers receive a fair return from the sale of public resources, public land. As drafted, as this bill is before us right now, the revenue-sharing provisions of H.R. 2231 would ultimately reduce the net return to the taxpayers from development of Federal resources directed to be leased under this bill.

So, with summer upon us, tourism at the Jersey shore is one of our State's greatest economic drivers. These jobs that are committed, these jobs depend upon the responsible stewardship of our waters and coasts, and the legislation before us now puts those jobs at risk. For communities across the State still working to rebuild from Sandy, this is not a risk they are willing to take.

Instead of bending over backwards for Big Oil, we need to bend over and help as best we can the average citizen. I ask for a ''no'' vote on this.

□ 1550

Mr. HASTINGS of Washington. Mr. Chairman, before I yield to my colleague from Virginia, I'd just point out that the CBO estimates that there will be revenue coming into the Federal Government of approximately $1.5 billion.

At this time I'd like to yield 2 minutes to the gentleman from Virginia (Mr. HURT).

Mr. HURT. Mr. Chairman, I rise today in support of the Offshore Energy and Jobs Act, a bill that will create thousands of new jobs in Virginia while lowering the cost of energy for all Americans.

Last month I traveled throughout my district, visiting local communities to discuss the impact of high energy prices. At each stop the same message rang clear: the cost of energy continues to have a significant negative impact on our small businesses, our farmers and our families.

Not only do we see higher prices at the gas pump, but high fuel prices have triggered higher prices across the board. People are paying more for groceries and are witnessing their utility costs rise at a time when they can least afford it. There is no question Americans continue to suffer from Washington's failure to adopt a sensible energy policy.

The President's consistently failed to lead on this issue. The administration continues to restrict leasing permits for oil and gas exploration off the coast of the Commonwealth, preventing Virginians from utilizing our natural resources.

Reopening the lease sales off our coast enjoys broad bipartisan support in Virginia, yet Washington continues to insist that it knows best what is best for the Commonwealth.

At a time when too many people in my district and across the country are out of work, it is critical that we, in the House, do everything we can to encourage creation of new jobs and reduce the burden on our hardworking families, our farmers and our small businesses.

If adopted, this act will lead to the creation of over a million new American jobs. In addition, this legislation will lead to lower energy prices, economic growth and strengthened national security.

As the House continues to lead on creating a sensible domestic energy policy, it is my hope that the Senate and the President will join us.

I urge my colleagues to support this commonsense legislation. And I thank Chairman HASTINGS for his leadership and his committee for its leadership on this important issue.

Mr. DEFAZIO. I yield 2 minutes to the gentlewoman from New Hampshire (Ms. SHEA-PORTER), another esteemed member of the Natural Resources Committee.

Ms. SHEA-PORTER. Mr. Chairman, I rise in opposition to this poorly conceived and deeply irresponsible legislation. This bill is a clear giveaway to oil companies that are already posting record profits, and it's a dramatic departure from the regionally-targeted offshore drilling strategy that has led to domestic oil production rising to an

all-time high. In fact, it's even possible that America will be the world's largest oil exporter within the next 7 years.

To most people, this would indicate that our current policies are working, but apparently, not to the supporters of this bill. Instead, they think taxpayers should give giant subsidies to Big Oil at the likely expense of the economically critical tourism and fishing industries in many States, including my own.

What we should be doing, 3 years after the awful BP spill in the Gulf, is passing legislation that would protect workers, coastal communities, and the environment from devastating spills. In the 3 years since that tragedy, Congress has yet to pass legislative reform to improve the safety of offshore drilling.

I would hope, Mr. Speaker, that we will vote down this unnecessary giveaway to oil companies and, instead, take up legislation to respond to the BP oil spill and protect our coastal communities and workers.

Mr. HASTINGS of Washington. Mr. Chairman, I'm very pleased to yield 2 minutes to the gentleman from Pennsylvania (Mr. MURPHY), a leader in the House here on energy development.

Mr. MURPHY of Pennsylvania. Let me make this simple. We need 20 million barrels of oil each day. We need this for oil and natural gas to make plastics, fertilizer, for transportation, and other feedstock.

Almost 20 percent of our oil comes from OPEC. Our 10-year trade deficit with OPEC is over $1 trillion. We can buy their oil or we develop our own. Ours or theirs.

OPEC money funds the Taliban, al Qaeda, and terrorism, and thousands of servicemen have been killed and tens of thousands have been wounded by them.

We have vast supplies, more than 86 billion barrels offshore. We can develop our own safely and responsibly, or we can rely on OPEC.

So the real question is this: Where do you want our men and women to work?

Do you want them to wear helmets or hard hats?

Do we want them carrying rifles or wrenches, driving tanks or trucks?

Do you want them to be protecting foreign wells and fighting terrorists paid off with OPEC oil money?

Or do we want our men and women working here in America for American energy?

In my work in the Navy, I have seen too many of our American servicemen and -women wounded. And so now the choice is simple. What do you choose?

I choose American energy.

Mr. DEFAZIO. I yield myself such time as I may consume.

I'd just like to respond to the gentleman who preceded me.

The statistic he used was accurate in 2005, the 20 million barrels a day imported. And that was, of course, when George Bush was President of the United States with the Bush-Cheney energy policy. And that was 57 percent, you know, of the oil we consumed.

Now, due to changes with fleet fuel economy standards and biofuels and other steps taken by the Obama administration, actually, our daily consumption is down to 18.5 million barrels. That's not bad. That's almost an 8 percent decrease in a mere 7 years, with the President only in office for 4½. And we are now only 36 percent dependent on foreign oil.

That trend continues, of course, as I spoke earlier, about the increase in production on Federal lands and Federal offshore lands between the Obama administration and the Bush administration. So actually, we are making significant progress with the new policies that are designed to create less oil dependence, as opposed to the Bush-Cheney energy policy, which was actually designed to increase our dependence on fossil fuels.

I reserve the balance of my time.

Mr. HASTINGS of Washington. Mr. Chairman, I'm very pleased to yield 1 minute to the gentleman from Virginia (Mr. CANTOR), the distinguished majority leader.

Mr. CANTOR. I thank the gentleman from Washington for his leadership on this bill.

Mr. Chairman, I rise today in support of the Offshore Energy and Jobs Act. For too long, our economy has remained stagnant and the unemployment rate high. And for too long, hardworking American families have been suffering the consequences. These tough economic times are, in part, a direct result of our current energy policies.

Over the past several years, the Obama administration has been leading this country in the wrong direction with regard to our domestic energy production by enacting a plan that keeps 85 percent of America's coastal areas off limits to energy exploration. These Federal barriers have cost Americans jobs, surrendered much-needed revenue streams that would benefit the States, and decreased access to drilling areas that would allow us to become less dependent on foreign oil.

This administration has consistently been hostile to affordable domestic energy. Just this week, a senior advisor to the President said:

> The one thing the President really needs to do now is to begin the process of shutting down the conventional coal plants. A war on coal is exactly what's needed.

This should not come as a surprise, since President Obama also has said in the past, ''Under my plan of a cap and trade system electricity rates would necessarily skyrocket.''

So, Mr. Chairman, we must harness our resources, contrary to these statements, not close them off. This bill reforms our current policy by requiring the administration to submit a 5-year leasing plan by 2015 that contains new offshore areas with the greatest known oil and gas reserves. Some of these areas have been estimated at 2.5 billion barrels of oil, or up to 7.5 trillion cubic feet of natural gas. There's simply no reason not to explore these areas with so much potential.

This legislation also establishes a fair revenue-sharing system among coastal States where energy resources are explored. Whether it's off the coast of California, along the Gulf of Mexico, or the coast of my home State of Virginia, each State will share a percentage of revenue from energy production off their shores.

This bill also ensures environmental protections remain a priority by reorganizing the Interior Department to include the Bureau of Ocean Energy Management, charged with overseeing environmental safety.

Now, studies have indicated that energy production offshore, in my home State of Virginia, if this legislation is put into law, could create almost 2,000 new jobs in Virginia alone and produce 750 million barrels of oil and over 6 trillion cubic feet of natural gas.

Mr. Chairman, the Offshore Energy and Jobs Act will lower gas prices for working families. It will strengthen our national security, and help create up to a million new jobs across America in the long term. The people of this country deserve a government focused on restoring the faith in our economy, and this bill is a step in the right direction.

□ 1600

Again, I want to thank Chairman HASTINGS for his hard work on this measure, and I urge my colleagues in the House to support this legislation.

Mr. DEFAZIO. Does the gentleman have any additional speakers?

Mr. HASTINGS of Washington. If the gentleman is prepared to close, I am prepared to close.

Mr. DEFAZIO. I am prepared to close, and I yield myself such time as I my consume.

The majority leader just put out some very impressive statistics on the possible potential off of the east and west coasts if we opened up these sensitive areas to mandatory leasing; but it's actually smaller than the known reserves under the leases the Federal Government has already let to oil companies, which they have thus far refused to develop: 5,484 leases, 30 million acres, 18 billion barrels of oil—his number was smaller than that—and 50 trillion cubic feet of natural gas. His number was smaller than that.

So it's the premise that by mandatory leasing of these sensitive areas we're going to somehow have some sort of a boon to production as opposed to somehow incentivizing these oil companies not to sit on these leases forever. We have offered legislation previously from our side to require development of leases within a certain period of time, with escalating costs over time, and with the potential of turning those back and letting them be released to companies that actually want to do the work.

People say, Well, these oil companies won't just sit on it. Yeah, they'll sit on it. It's worth more every day. And they don't pay hardly anything to sit on it. Does anybody think the price of oil is going to be cheaper 5 years from now than it is today? So if they sit on a Federal lease—and, oh, maybe we can get some more to sit on for the future—then that resource which they paid for in 1999 when oil was much cheaper is a phenomenally profitable resource.

So to say we must open up these sensitive areas now is disingenuous at best as opposed to incentivizing the industry to use those which are already leased and which have known resources that exceed the speculative resources under these in sensitive areas off California, off the east coast of the U.S., and in Bristol Bay, where there's a $2 billion a year totally sustainable fishing industry. It's not worth those risks.

The majority leader went on to castigate the administration. I know that many people's speeches are written in advance by their staff and they may not have been listening to the earlier debate and some of the facts I put out, or whatever happened. As I pointed out, during the Bush administration we were importing 20 million barrels of oil a day. That was 2005. And that was 57 percent of our consumption. Under the new policies of the Obama administration, which have led to conservation, more fuel-efficient cars, and biofuels, we are importing only 18.5 million barrels a day. That is 36 percent.

So we have made progress, and we should continue down that path. To lease more fossil fuel resources offshore is not a particularly creative 21st century solution. It may be a grand mid-20th century solution, which was much reflected in the Bush-Cheney energy policy. Actually, at the time when it passed, I said it would have been embarrassing policy for the 1950s, and it was tragic for the 21st century in terms of the potential we have with conservation, alternate fuels, and other measures we can take.

To rush this bill forward—and it will be rushed forward—to die in the Senate is not going to lower the price at the pump for any American. Again, the majority leader referenced that. And I made a statement on that earlier.

We're experiencing, not an oil shortage, but an artificial refinery shortage in the United States of America, which is used as an excuse to jack up prices and stick it to the American driving public every year in May and June and July when our families want to go on vacation. It's stretching their wallets.

If we took steps against the collusive shutdown of refineries, if we took steps against the collusive behavior of OPEC and other countries through the World Trade Organization, and if we took steps to crack down on the speculation on Wall Street, which even the head of ExxonMobil says, Don't blame me for those sky-high prices; blame Wall Street—75 cents a gallon is due to the Enron loophole created by a former Republican Congress to allow wild speculation in energy futures by Wall Street as opposed to producers and consumers coming together in a regular commodities market. So if we wanted to provide relief today, we'd crack down on speculation.

If we wanted to provide relief in the slightly longer term, we would deal with the issues of collusion and OPEC and refineries. And if we wanted to enhance the oil supply further, even though we're producing near-record amounts today here in the United States of America, we would encourage, incentivize, or disincentivize these oil companies who are sitting on these many, many billion barrels of oil, trillions of cubic feet of natural gas and refusing to develop their existing leases while pandering for more.

With that, I yield back the balance of my time.

Mr. HASTINGS of Washington. Mr. Chairman, how much time do I have remaining?

The CHAIR. The gentleman from Washington has 13 minutes remaining

Mr. HASTINGS of Washington. Mr. Chairman, I yield myself the balance of my time.

Mr. Chairman, this has been a very interesting debate and I think it's a good debate, because what's at stake here in the long-run, not only for today but maybe potentially for generations ahead, is the potential energy independence for our country. And I think that's a worthy thing to have a debate about on the floor of the House.

Let me address a few of the issues that were brought up by my friend on the other side of the aisle, and let me focus first on leases.

The argument on the other side leaves one to believe that leases are just given out to anybody that wants them and then they just sit on them. Nothing could be further from the truth. A lease is given out on a potential area where there may be oil or natural gas. Those leases cost money and have certain conditions of a time in which whoever buys the lease has to develop that lease, and that can range anywhere from 5 to 10 years, depending on the depth of the water.

So the fact of the matter is these lease sales cost whoever purchases the lease. Now if it costs, where does the money go? It comes to the Federal Government. This is a source of income for the Federal Government just on the lease sales.

Now, why would any business want to spend money and not try to get a return on it? Many times, these leases then are reverted back to the Federal Government. In fact, the average, depending where you are and the depth, can be as high as 20 percent. It can be as low as 10 percent. On average, it's around 15 percent. So these lease blocks come back to the Federal Government. And guess what. They can be relet again. In fact, in some cases, over 40 percent are relet. What does that mean? That means the Federal Government gets another chance—and still without any energy production, I might add—just on the lease sales.

And then you have a truism, I suppose, and maybe not what is understood by a lot of people, but I've heard this over and over, that when you have a lease, you really don't know if there's oil there until you go through all the technology to find it. But the ultimate last step is to drill. And if you're lucky, then you'll get something that you can develop; but if not, all of that money is spent and you get no return back.

This is a fact from the standpoint of how leases work. Nobody is going to sit on leases unless they felt that there is a potential there. If not, the terms of the lease sale means it goes back to the Federal Government, and that is something that I think we need to probably understand more than we do now.

And then there's the issue of cartels. I think that was mentioned. I think history shows that whenever there is a cartel, I don't care what the commodity is, the very best way to beat the cartel is to outsupply the cartel. And that's precisely what this bill is about, and it's precisely because of the new technology that has been developed by the oil and gas industry to drill smart, which is what this bill does.

The potential resources offshore in this country are huge, enough so, that some people say we could be the premier supplier of crude in the next 20 years—and that includes comparing ourselves to the Middle East.

□ 1610

Now, it has also been stated that since this administration took office, oil and gas production is up. That's true, it is up; but it's not up on Federal lands. And this is precisely what this bill addresses, oil and gas leasing on Federal lands.

Most of that is on private lands and most of it, frankly, is in North Dakota and in west Texas. But if you look at what the results are of this administration as it relates to what their jurisdiction is—which of course is Federal lands and offshore—the Congressional Research Service, a part of Congress, has noted that the recent increase in U.S. oil and natural gas can be attributed to State and private lands, and not Federal. Now, that's what the CRS said, but I can go a step further.

There is a Federal agency within the Department of Energy, the Energy Information Agency. Now, this is an agency within the Obama administration, I might add, Mr. Chairman. They say that total Federal offshore production dropped 8 percent last year and natural gas dropped 19 percent last year. This is on Federal offshore. But it goes even further.

Since the President took office in 2009, Federal offshore production is down 12 percent and natural gas production is down 40 percent. Now, Mr.

Chairman, I'm going to repeat, this is information that comes from the Department of Energy, the Energy Information Agency. That is an agency within the Obama administration. So while we have increased oil and gas production in this country, it is, in fact, in spite of this administration, not because of.

The reason why this legislation is so important—again, it's not done for a day; it's done for future generations—it is in our best interests. A growing economy needs a certainty of energy. This bill provides a certainty of energy because we are drilling on Federal offshore areas.

And it has a national security aspect to it all, Mr. Chairman. You know, every day we hear news about the Middle East and the volatility in the Middle East, and yet we talk—OPEC is principally positioned in the Middle East, not wholly, but principally in the Middle East. Is it not in our best interest, therefore, when we know we have these resources, to utilize them from a national security standpoint?

Finally, of course, it's been said over and over—and it's so true—energy jobs are good jobs; they're good-paying jobs. Why don't we want to make sure that we can create more American jobs with American energy for national security purposes? Mr. Chairman, that's precisely what this legislation does, and I urge my colleagues to support it.

I yield back the balance of my time.

Mr. GENE GREEN of Texas. Mr. Speaker, I rise today in support of H.R. 2231, The Offshore Energy and Jobs Act and H.R. 1613, The Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act.

H.R. 2231 directs the Interior Department to develop a new five-year offshore leasing plan that makes available for oil and gas exploration and development at least 50% of the unleased coastal areas with the most potential for energy production, and it creates a nationwide revenue sharing system so coastal states will receive a share of the federal royalties. It also requires that drilling be allowed off the coasts of California, South Carolina and Virginia and statutorily reorganizes the Interior Department agencies that oversee offshore leasing and permitting, safety inspections and revenue collection.

While I do not agree with some of the environmental provisions in this bill, I support it because it is a message bill about the importance of accessing our offshore resources. While leasing and permitting has come back some since the Deepwater Horizon accident, it is not back to the level it was before the spill. Additionally with the President reneging on certain areas originally contained in his 2012–2017 Five Year Offshore Leasing Plan, our future access over the next decade is extremely limited. We need to open new offshore areas up for production instead of producing on the same lands we have for decades.

H.R. 1613 would approve the February 2012 agreement between the United States and Mexico concerning transboundary oil and gas reservoirs in the Gulf of Mexico. It also provides guidelines that the administration must follow in implementing all future transboundary hydrocarbon agreements.

H.R. 1613 is different than H.R. 2231 in that it is not a message bill. It gives the State Department the authority it needs to move forward on an important negotiated agreement with Mexico so that our respective countries can jointly develop in the Gulf of Mexico. I am hopeful we can get this bill to the President's desk for his signature soon.

Mr. PALLONE. Mr. Chair, I oppose H.R. 2231, the Offshore Energy and Jobs Act. By requiring offshore oil and gas drilling in the Atlantic Ocean, this bill threatens New Jersey's coastal environment, fishing, tourism and the associated jobs and economic activity. This bill is the same old failed attempt by the Republican majority to give away public resources to wealthy, multi-national corporations at the cost of American taxpayers and our environment.

In New Jersey, tourism is a top industry, and we rely on our beaches, fisheries and clean ocean to attract that tourism. In 2011, the commercial fishing industry in New Jersey generated $6.6 billion in sales and contributed $2.4 billion to gross state product, while supporting 44,000 jobs. At the same time, New Jersey's recreational fisheries generated $1.7 billion in sales and contributed $871 million to gross state product, while supporting 10,000 jobs.

I made an effort to give a voice to those Americans living on the Atlantic Coast who want to protect their livelihoods, who want to preserve a clean ocean and who want to ensure the health of marine life. I proposed an amendment to the bill which would have given the House of Representatives an opportunity to vote on whether we should force drilling in the Atlantic Ocean. However, my amendment was not allowed to even come to a full vote because of Republican opposition.

At a time when domestic energy production is booming under President Obama, this rushed expansion of unsafe drilling into environmentally sensitive areas is completely unwarranted. This legislation unnecessarily rewards wealthy, multi-national who are sitting on 30 million acres worth of approved leases, waiting to drill until prices are even higher.

Energy independence is a matter of smart economic progress and national security and the American people deserve real proposals that will move our country forward. The American people deserve better than this same old bill that is sure to go nowhere once again.

The CHAIR. All time for general debate has expired.

Pursuant to the rule, the bill shall be considered for amendment under the 5-minute rule.

In lieu of the amendment in the nature of a substitute recommended by the Committee on Natural Resources, printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the 5-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee print 113–16. That amendment in the nature of a substitute shall be considered as read.

The text of the amendment in the nature of a substitute is as follows:

H.R. 2231

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Offshore Energy and Jobs Act''.

SEC. 2. TABLE OF CONTENTS.

The table of contents for this Act is as follows:

Sec. 1. Short title.
Sec. 2. Table of contents.
TITLE I—OUTER CONTINENTAL SHELF LEASING PROGRAM REFORMS
Sec. 101. Outer Continental Shelf leasing program reforms.
Sec. 102. Domestic oil and natural gas production goal.
Sec. 103. Development and submittal of new 5-year oil and gas leasing program.
TITLE II—DIRECTING THE PRESIDENT TO CONDUCT NEW OCS SALES IN VIRGINIA, SOUTH CAROLINA, AND CALIFORNIA
Sec. 201. Requirement to conduct proposed oil and gas Lease Sale 220 on the Outer Continental Shelf offshore Virginia.
Sec. 202. South Carolina lease sale.
Sec. 203. Southern California existing infrastructure lease sale.
Sec. 204. Environmental impact statement requirement.
Sec. 205. National defense.
Sec. 206. Eastern Gulf of Mexico not included.
TITLE III—EQUITABLE SHARING OF OUTER CONTINENTAL SHELF REVENUES
Sec. 301. Disposition of Outer Continental Shelf revenues to coastal States.
TITLE IV—REORGANIZATION OF MINERALS MANAGEMENT AGENCIES OF THE DEPARTMENT OF THE INTERIOR
Sec. 401. Establishment of Under Secretary for Energy, Lands, and Minerals and Assistant Secretary of Ocean Energy and Safety.
Sec. 402. Bureau of Ocean Energy.
Sec. 403. Ocean Energy Safety Service.
Sec. 404. Office of Natural Resources revenue.
Sec. 405. Ethics and drug testing.
Sec. 406. Abolishment of Minerals Management Service.
Sec. 407. Conforming amendments to Executive Schedule pay rates.
Sec. 408. Outer Continental Shelf Energy Safety Advisory Board.
Sec. 409. Outer Continental Shelf inspection fees.
TITLE V—UNITED STATES TERRITORIES
Sec. 501. Application of Outer Continental Shelf Lands Act with respect to territories of the United States.

TITLE I—OUTER CONTINENTAL SHELF LEASING PROGRAM REFORMS

SEC. 101. OUTER CONTINENTAL SHELF LEASING PROGRAM REFORMS.

Section 18(a) of the Outer Continental Shelf Lands Act (43 U.S.C. 1344(a)) is amended by adding at the end the following:

''(5)(A) In each oil and gas leasing program under this section, the Secretary shall make available for leasing and conduct lease sales including at least 50 percent of the available unleased acreage within each outer Continental Shelf planning area considered to have the largest undiscovered, technically recoverable oil and gas resources (on a total btu basis) based upon the most recent national geologic assessment of the outer Continental Shelf, with an emphasis on offering the most geologically prospective parts of the planning area.

''(B) The Secretary shall include in each proposed oil and gas leasing program under this section any State subdivision of an outer Continental Shelf planning area that the Governor of the State that represents that subdivision requests be made available for leasing. The Secretary may not remove such a subdivision from the program until publication of the final program.

''(C) In this paragraph the term 'available unleased acreage' means that portion of the outer Continental Shelf that is not under lease at the

time of a proposed lease sale, and that has not otherwise been made unavailable for leasing by law.

''(6)(A) In the 5-year oil and gas leasing program, the Secretary shall make available for leasing any outer Continental Shelf planning areas that—

''(i) are estimated to contain more than 2,500,000,000 barrels of oil; or

''(ii) are estimated to contain more than 7,500,000,000,000 cubic feet of natural gas.

''(B) To determine the planning areas described in subparagraph (A), the Secretary shall use the document entitled 'Minerals Management Service Assessment of Undiscovered Technically Recoverable Oil and Gas Resources of the Nation's Outer Continental Shelf, 2006'.''.

SEC. 102. DOMESTIC OIL AND NATURAL GAS PRODUCTION GOAL.

Section 18(b) of the Outer Continental Shelf Lands Act (43 U.S.C. 1344(b)) is amended to read as follows:

''(b) DOMESTIC OIL AND NATURAL GAS PRODUCTION GOAL.—

''(1) IN GENERAL.—In developing a 5-year oil and gas leasing program, and subject to paragraph (2), the Secretary shall determine a domestic strategic production goal for the development of oil and natural gas as a result of that program. Such goal shall be—

''(A) the best estimate of the possible increase in domestic production of oil and natural gas from the outer Continental Shelf;

''(B) focused on meeting domestic demand for oil and natural gas and reducing the dependence of the United States on foreign energy; and

''(C) focused on the production increases achieved by the leasing program at the end of the 15-year period beginning on the effective date of the program.

''(2) PROGRAM GOAL.—For purposes of the 5-year oil and gas leasing program, the production goal referred to in paragraph (1) shall be an increase by 2032 of—

''(A) no less than 3,000,000 barrels in the amount of oil produced per day; and

''(B) no less than 10,000,000,000 cubic feet in the amount of natural gas produced per day.

''(3) REPORTING.—The Secretary shall report annually, beginning at the end of the 5-year period for which the program applies, to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate on the progress of the program in meeting the production goal. The Secretary shall identify in the report projections for production and any problems with leasing, permitting, or production that will prevent meeting the goal.''.

SEC. 103. DEVELOPMENT AND SUBMITTAL OF NEW 5-YEAR OIL AND GAS LEASING PROGRAM.

(a) IN GENERAL.—The Secretary of the Interior shall—

(1) by not later than July 15, 2014, publish and submit to Congress a new proposed oil and gas leasing program under section 18 of the Outer Continental Shelf Lands Act (43 U.S.C. 1344) for the 5-year period beginning on such date and ending July 15, 2020; and

(2) by not later than July 15, 2015, approve a final oil and gas leasing program under such section for such period.

(b) CONSIDERATION OF ALL AREAS.—In preparing such program the Secretary shall include consideration of areas of the Continental Shelf off the coasts of all States (as such term is defined in section 2 of that Act, as amended by this Act), that are subject to leasing under this Act.

(c) TECHNICAL CORRECTION.—Section 18(d)(3) of the Outer Continental Shelf Lands Act (43 U.S.C. 1344(d)(3)) is amended by striking ''or after eighteen months following the date of enactment of this section, whichever first occurs,''.

TITLE II—DIRECTING THE PRESIDENT TO CONDUCT NEW OCS SALES IN VIRGINIA, SOUTH CAROLINA, AND CALIFORNIA

SEC. 201. REQUIREMENT TO CONDUCT PROPOSED OIL AND GAS LEASE SALE 220 ON THE OUTER CONTINENTAL SHELF OFFSHORE VIRGINIA.

(a) IN GENERAL.—Notwithstanding the exclusion of Lease Sale 220 in the Final Outer Continental Shelf Oil & Gas Leasing Program 2012–2017, the Secretary of the Interior shall conduct offshore oil and gas Lease Sale 220 under section 8 of the Outer Continental Shelf Lands Act (43 U.S.C. 1337) as soon as practicable, but not later than one year after the date of enactment of this Act.

(b) REQUIREMENT TO MAKE REPLACEMENT LEASE BLOCKS AVAILABLE.—For each lease block in a proposed lease sale under this section for which the Secretary of Defense, in consultation with the Secretary of the Interior, under the Memorandum of Agreement referred to in section 205(b), issues a statement proposing deferral from a lease offering due to defense-related activities that are irreconcilable with mineral exploration and development, the Secretary of the Interior, in consultation with the Secretary of Defense, shall make available in the same lease sale one other lease block in the Virginia lease sale planning area that is acceptable for oil and gas exploration and production in order to mitigate conflict.

(c) BALANCING MILITARY AND ENERGY PRODUCTION GOALS.—In recognition that the Outer Continental Shelf oil and gas leasing program and the domestic energy resources produced therefrom are integral to national security, the Secretary of the Interior and the Secretary of Defense shall work jointly in implementing this section in order to ensure achievement of the following common goals:

(1) Preserving the ability of the Armed Forces of the United States to maintain an optimum state of readiness through their continued use of the Outer Continental Shelf.

(2) Allowing effective exploration, development, and production of our Nation's oil, gas, and renewable energy resources.

(d) DEFINITIONS.—In this section:

(1) LEASE SALE 220.—The term ''Lease Sale 220'' means such lease sale referred to in the Request for Comments on the Draft Proposed 5-Year Outer Continental Shelf (OCS) Oil and Gas Leasing Program for 2010–2015 and Notice of Intent To Prepare an Environmental Impact Statement (EIS) for the Proposed 5-Year Program published January 21, 2009 (74 Fed. Reg. 3631).

(2) VIRGINIA LEASE SALE PLANNING AREA.—The term ''Virginia lease sale planning area'' means the area of the outer Continental Shelf (as that term is defined in the Outer Continental Shelf Lands Act (33 U.S.C. 1331 et seq.)) that is bounded by—

(A) a northern boundary consisting of a straight line extending from the northernmost point of Virginia's seaward boundary to the point on the seaward boundary of the United States exclusive economic zone located at 37 degrees 17 minutes 1 second North latitude, 71 degrees 5 minutes 16 seconds West longitude; and

(B) a southern boundary consisting of a straight line extending from the southernmost point of Virginia's seaward boundary to the point on the seaward boundary of the United States exclusive economic zone located at 36 degrees 31 minutes 58 seconds North latitude, 71 degrees 30 minutes 1 second West longitude.

SEC. 202. SOUTH CAROLINA LEASE SALE.

Notwithstanding inclusion of the South Atlantic Outer Continental Shelf Planning Area in the Final Outer Continental Shelf Oil & Gas Leasing Program 2012–2017, the Secretary of the Interior shall conduct a lease sale not later than 2 years after the date of the enactment of this Act for areas off the coast of South Carolina determined by the Secretary to have the most geologically promising hydrocarbon resources and constituting not less than 25 percent of the leasable area within the South Carolina offshore administrative boundaries depicted in the notice entitled ''Federal Outer Continental Shelf (OCS) Administrative Boundaries Extending from the Submerged Lands Act Boundary seaward to the Limit of the United States Outer Continental Shelf'', published January 3, 2006 (71 Fed. Reg. 127).

SEC. 203. SOUTHERN CALIFORNIA EXISTING INFRASTRUCTURE LEASE SALE.

(a) IN GENERAL.—The Secretary of the Interior shall offer for sale leases of tracts in the Santa Maria and Santa Barbara/Ventura Basins of the Southern California OCS Planning Area as soon as practicable, but not later than December 31, 2014.

(b) USE OF EXISTING STRUCTURES OR ONSHORE-BASED DRILLING.—The Secretary of the Interior shall include in leases offered for sale under this lease sale such terms and conditions as are necessary to require that development and production may occur only from offshore infrastructure in existence on the date of the enactment of this Act or from onshore-based, extended-reach drilling.

SEC. 204. ENVIRONMENTAL IMPACT STATEMENT REQUIREMENT.

(a) IN GENERAL.—For the purposes of this Act, the Secretary of the Interior shall prepare a multisale environmental impact statement under section 102 of the National Environmental Policy Act of 1969 (42 U.S.C. 4332) for all lease sales required under this title.

(b) ACTIONS TO BE CONSIDERED.—Notwithstanding section 102 of the National Environmental Policy Act of 1969 (42 U.S.C. 4332), in such statement—

(1) the Secretary is not required to identify nonleasing alternative courses of action or to analyze the environmental effects of such alternative courses of action; and

(2) the Secretary shall only—

(A) identify a preferred action for leasing and not more than one alternative leasing proposal; and

(B) analyze the environmental effects and potential mitigation measures for such preferred action and such alternative leasing proposal.

SEC. 205. NATIONAL DEFENSE.

(a) NATIONAL DEFENSE AREAS.—This Act does not affect the existing authority of the Secretary of Defense, with the approval of the President, to designate national defense areas on the Outer Continental Shelf pursuant to section 12(d) of the Outer Continental Shelf Lands Act (43 U.S.C. 1341(d)).

(b) PROHIBITION ON CONFLICTS WITH MILITARY OPERATIONS.—No person may engage in any exploration, development, or production of oil or natural gas on the Outer Continental Shelf under a lease issued under this Act that would conflict with any military operation, as determined in accordance with the Memorandum of Agreement between the Department of Defense and the Department of the Interior on Mutual Concerns on the Outer Continental Shelf signed July 20, 1983, and any revision or replacement for that agreement that is agreed to by the Secretary of Defense and the Secretary of the Interior after that date but before the date of issuance of the lease under which such exploration, development, or production is conducted.

SEC. 206. EASTERN GULF OF MEXICO NOT INCLUDED.

Nothing in this Act affects restrictions on oil and gas leasing under the Gulf of Mexico Energy Security Act of 2006 (title I of division C of Public Law 109–432; 43 U.S.C. 1331 note).

TITLE III—EQUITABLE SHARING OF OUTER CONTINENTAL SHELF REVENUES

SEC. 301. DISPOSITION OF OUTER CONTINENTAL SHELF REVENUES TO COASTAL STATES.

(a) IN GENERAL.—Section 9 of the Outer Continental Shelf Lands Act (43 U.S.C. 1338) is amended—

(1) in the existing text—

(A) in the first sentence, by striking ''All rentals,'' and inserting the following:

''(c) DISPOSITION OF REVENUE UNDER OLD LEASES.—All rentals,''; and

(B) in subsection (c) (as designated by the amendment made by subparagraph (A) of this paragraph), by striking ''for the period from June 5, 1950, to date, and thereafter'' and inserting ''in the period beginning June 5, 1950, and ending on the date of enactment of the Offshore Energy and Jobs Act'';

(2) by adding after subsection (c) (as so designated) the following:

''(d) DEFINITIONS.—In this section:

''(1) COASTAL STATE.—The term 'coastal State' includes a territory of the United States.

''(2) NEW LEASING REVENUES.—The term 'new leasing revenues'—

''(A) means amounts received by the United States as bonuses, rents, and royalties under leases for oil and gas, wind, tidal, or other energy exploration, development, and production on new areas of the outer Continental Shelf that are authorized to be made available for leasing as a result of enactment of the Offshore Energy and Jobs Act and leasing under that Act; and

''(B) does not include amounts received by the United States under any lease of an area located in the boundaries of the Central Gulf of Mexico and Western Gulf of Mexico Outer Continental Shelf Planning Areas on the date of enactment of the Offshore Energy and Jobs Act, including a lease issued before, on, or after such date of enactment.''; and

(3) by inserting before subsection (c) (as so designated) the following:

''(a) PAYMENT OF NEW LEASING REVENUES TO COASTAL STATES.—

''(1) IN GENERAL.—Except as provided in paragraph (2), of the amount of new leasing revenues received by the United States each fiscal year, 37.5 percent shall be allocated and paid in accordance with subsection (b) to coastal States that are affected States with respect to the leases under which those revenues are received by the United States.

''(2) PHASE-IN.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), paragraph (1) shall be applied—

''(i) with respect to new leasing revenues under leases awarded under the first leasing program under section 18(a) that takes effect after the date of enactment of the Offshore Energy and Jobs Act, by substituting '12.5 percent' for '37.5 percent'; and

''(ii) with respect to new leasing revenues under leases awarded under the second leasing program under section 18(a) that takes effect after the date of enactment of the Offshore Energy and Jobs Act, by substituting '25 percent' for '37.5 percent'.

''(B) EXEMPTED LEASE SALES.—This paragraph shall not apply with respect to any lease issued under title II of the Offshore Energy and Jobs Act.

''(b) ALLOCATION OF PAYMENTS.—

''(1) IN GENERAL.—The amount of new leasing revenues received by the United States with respect to a leased tract that are required to be paid to coastal States in accordance with this subsection each fiscal year shall be allocated among and paid to coastal States that are within 200 miles of the leased tract, in amounts that are inversely proportional to the respective distances between the point on the coastline of each such State that is closest to the geographic center of the lease tract, as determined by the Secretary.

''(2) MINIMUM AND MAXIMUM ALLOCATION.—The amount allocated to a coastal State under paragraph (1) each fiscal year with respect to a leased tract shall be—

''(A) in the case of a coastal State that is the nearest State to the geographic center of the leased tract, not less than 25 percent of the total amounts allocated with respect to the leased tract;

''(B) in the case of any other coastal State, not less than 10 percent, and not more than 15 percent, of the total amounts allocated with respect to the leased tract; and

''(C) in the case of a coastal State that is the only coastal State within 200 miles of a least tract, 100 percent of the total amounts allocated with respect to the leased tract.

''(3) ADMINISTRATION.—Amounts allocated to a coastal State under this subsection—

''(A) shall be available to the coastal State without further appropriation;

''(B) shall remain available until expended;

''(C) shall be in addition to any other amounts available to the coastal State under this Act; and

''(D) shall be distributed in the fiscal year following receipt.

''(4) USE OF FUNDS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), a coastal State may use funds allocated and paid to it under this subsection for any purpose as determined by the laws of that State.

''(B) RESTRICTION ON USE FOR MATCHING.—Funds allocated and paid to a coastal State under this subsection may not be used as matching funds for any other Federal program.''.

(b) LIMITATION ON APPLICATION.—This section and the amendment made by this section shall not affect the application of section 105 of the Gulf of Mexico Energy Security Act of 2006 (title I of division C of Public Law 109–432; (43 U.S.C. 1331 note)), as in effect before the enactment of this Act, with respect to revenues received by the United States under oil and gas leases issued for tracts located in the Western and Central Gulf of Mexico Outer Continental Shelf Planning Areas, including such leases issued on or after the date of the enactment of this Act.

TITLE IV—REORGANIZATION OF MINERALS MANAGEMENT AGENCIES OF THE DEPARTMENT OF THE INTERIOR

SEC. 401. ESTABLISHMENT OF UNDER SECRETARY FOR ENERGY, LANDS, AND MINERALS AND ASSISTANT SECRETARY OF OCEAN ENERGY AND SAFETY.

There shall be in the Department of the Interior—

(1) an Under Secretary for Energy, Lands, and Minerals, who shall—

(A) be appointed by the President, by and with the advise and consent of the Senate;

(B) report to the Secretary of the Interior or, if directed by the Secretary, to the Deputy Secretary of the Interior;

(C) be paid at the rate payable for level III of the Executive Schedule; and

(D) be responsible for—

(i) the safe and responsible development of our energy and mineral resources on Federal lands in appropriate accordance with United States energy demands; and

(ii) ensuring multiple-use missions of the Department of the Interior that promote the safe and sustained development of energy and minerals resources on public lands (as that term is defined in the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.));

(2) an Assistant Secretary of Ocean Energy and Safety, who shall—

(A) be appointed by the President, by and with the advise and consent of the Senate;

(B) report to the Under Secretary for Energy, Lands, and Minerals;

(C) be paid at the rate payable for level IV of the Executive Schedule; and

(D) be responsible for ensuring safe and efficient development of energy and minerals on the Outer Continental Shelf of the United States; and

(3) an Assistant Secretary of Land and Minerals Management, who shall—

(A) be appointed by the President, by and with the advise and consent of the Senate;

(B) report to the Under Secretary for Energy, Lands, and Minerals;

(C) be paid at the rate payable for level IV of the Executive Schedule; and

(D) be responsible for ensuring safe and efficient development of energy and minerals on public lands and other Federal onshore lands under the jurisdiction of the Department of the Interior, including implementation of the Mineral Leasing Act (30 U.S.C. 181 et seq.) and the Surface Mining Control and Reclamation Act (30 U.S.C. 1201 et seq.) and administration of the Office of Surface Mining.

SEC. 402. BUREAU OF OCEAN ENERGY.

(a) ESTABLISHMENT.—There is established in the Department of the Interior a Bureau of Ocean Energy (referred to in this section as the ''Bureau''), which shall—

(1) be headed by a Director of Ocean Energy (referred to in this section as the ''Director''); and

(2) be administered under the direction of the Assistant Secretary of Ocean Energy and Safety.

(b) DIRECTOR.—

(1) APPOINTMENT.—The Director shall be appointed by the Secretary of the Interior.

(2) COMPENSATION.—The Director shall be compensated at the rate provided for level V of the Executive Schedule under section 5316 of title 5, United States Code.

(c) DUTIES.—

(1) IN GENERAL.—The Secretary of the Interior shall carry out through the Bureau all functions, powers, and duties vested in the Secretary relating to the administration of a comprehensive program of offshore mineral and renewable energy resources management.

(2) SPECIFIC AUTHORITIES.—The Director shall promulgate and implement regulations—

(A) for the proper issuance of leases for the exploration, development, and production of nonrenewable and renewable energy and mineral resources on the Outer Continental Shelf;

(B) relating to resource identification, access, evaluation, and utilization;

(C) for development of leasing plans, lease sales, and issuance of leases for such resources; and

(D) regarding issuance of environmental impact statements related to leasing and post leasing activities including exploration, development, and production, and the use of third party contracting for necessary environmental analysis for the development of such resources.

(3) LIMITATION.—The Secretary shall not carry out through the Bureau any function, power, or duty that is—

(A) required by section 403 to be carried out through the Ocean Energy Safety Service; or

(B) required by section 404 to be carried out through the Office of Natural Resources Revenue.

(d) RESPONSIBILITIES OF LAND MANAGEMENT AGENCIES.—Nothing in this section shall affect the authorities of the Bureau of Land Management under the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.) or of the Forest Service under the National Forest Management Act of 1976 (Public Law 94–588).

SEC. 403. OCEAN ENERGY SAFETY SERVICE.

(a) ESTABLISHMENT.—There is established in the Department of the Interior an Ocean Energy Safety Service (referred to in this section as the ''Service''), which shall—

(1) be headed by a Director of Energy Safety (referred to in this section as the ''Director''); and

(2) be administered under the direction of the Assistant Secretary of Ocean Energy and Safety.

(b) DIRECTOR.—

(1) APPOINTMENT.—The Director shall be appointed by the Secretary of the Interior.

(2) COMPENSATION.—The Director shall be compensated at the rate provided for level V of the Executive Schedule under section 5316 of title 5, United States Code.

(c) DUTIES.—

(1) IN GENERAL.—The Secretary of the Interior shall carry out through the Service all functions, powers, and duties vested in the Secretary relating to the administration of safety and environmental enforcement activities related to offshore mineral and renewable energy resources on the Outer Continental Shelf pursuant to the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) including the authority to develop, promulgate, and enforce regulations to ensure the safe and sound exploration, development, and production of mineral and renewable energy resources on the Outer Continental Shelf in a timely fashion.

(2) SPECIFIC AUTHORITIES.—The Director shall be responsible for all safety activities related to exploration and development of renewable and mineral resources on the Outer Continental Shelf, including—

(A) exploration, development, production, and ongoing inspections of infrastructure;

(B) the suspending or prohibiting, on a temporary basis, any operation or activity, including production under leases held on the Outer Continental Shelf, in accordance with section 5(a)(1) of the Outer Continental Shelf Lands Act (43 U.S.C. 1334(a)(1));

(C) cancelling any lease, permit, or right-of-way on the Outer Continental Shelf, in accordance with section 5(a)(2) of the Outer Continental Shelf Lands Act (43 U.S.C. 1334(a)(2));

(D) compelling compliance with applicable Federal laws and regulations relating to worker safety and other matters;

(E) requiring comprehensive safety and environmental management programs for persons engaged in activities connected with the exploration, development, and production of mineral or renewable energy resources;

(F) developing and implementing regulations for Federal employees to carry out any inspection or investigation to ascertain compliance with applicable regulations, including health, safety, or environmental regulations;

(G) implementing the Offshore Technology Research and Risk Assessment Program under section 21 of the Outer Continental Shelf Lands Act (43 U.S.C. 1347);

(H) summoning witnesses and directing the production of evidence;

(I) levying fines and penalties and disqualifying operators;

(J) carrying out any safety, response, and removal preparedness functions; and

(K) the processing of permits, exploration plans, development plans.

(d) EMPLOYEES.—

(1) IN GENERAL.—The Secretary shall ensure that the inspection force of the Bureau consists of qualified, trained employees who meet qualification requirements and adhere to the highest professional and ethical standards.

(2) QUALIFICATIONS.—The qualification requirements referred to in paragraph (1)—

(A) shall be determined by the Secretary, subject to subparagraph (B); and

(B) shall include—

(i) three years of practical experience in oil and gas exploration, development, or production; or

(ii) a degree in an appropriate field of engineering from an accredited institution of higher learning.

(3) ASSIGNMENT.—In assigning oil and gas inspectors to the inspection and investigation of individual operations, the Secretary shall give due consideration to the extent possible to their previous experience in the particular type of oil and gas operation in which such inspections are to be made.

(4) BACKGROUND CHECKS.—The Director shall require that an individual to be hired as an inspection officer undergo an employment investigation (including a criminal history record check).

(5) LANGUAGE REQUIREMENTS.—Individuals hired as inspectors must be able to read, speak, and write English well enough to—

(A) carry out written and oral instructions regarding the proper performance of inspection duties; and

(B) write inspection reports and statements and log entries in the English language.

(6) VETERANS PREFERENCE.—The Director shall provide a preference for the hiring of an individual as a inspection officer if the individual is a member or former member of the Armed Forces and is entitled, under statute, to retired, retirement, or retainer pay on account of service as a member of the Armed Forces.

(7) ANNUAL PROFICIENCY REVIEW.—

(A) ANNUAL PROFICIENCY REVIEW.—The Director shall provide that an annual evaluation of each individual assigned inspection duties is conducted and documented.

(B) CONTINUATION OF EMPLOYMENT.—An individual employed as an inspector may not continue to be employed in that capacity unless the evaluation demonstrates that the individual—

(i) continues to meet all qualifications and standards;

(ii) has a satisfactory record of performance and attention to duty based on the standards and requirements in the inspection program; and

(iii) demonstrates the current knowledge and skills necessary to courteously, vigilantly, and effectively perform inspection functions.

(8) LIMITATION ON RIGHT TO STRIKE.—Any individual that conducts permitting or inspections under this section may not participate in a strike, or assert the right to strike.

(9) PERSONNEL AUTHORITY.—Notwithstanding any other provision of law, the Director may employ, appoint, discipline and terminate for cause, and fix the compensation, terms, and conditions of employment of Federal service for individuals as the employees of the Service in order to restore and maintain the trust of the people of the United States in the accountability of the management of our Nation's energy safety program.

(10) TRAINING ACADEMY.—

(A) IN GENERAL.—The Secretary shall establish and maintain a National Offshore Energy Safety Academy (referred to in this paragraph as the ''Academy'') as an agency of the Ocean Energy Safety Service.

(B) FUNCTIONS OF ACADEMY.—The Secretary, through the Academy, shall be responsible for—

(i) the initial and continued training of both newly hired and experienced offshore oil and gas inspectors in all aspects of health, safety, environmental, and operational inspections;

(ii) the training of technical support personnel of the Bureau;

(iii) any other training programs for offshore oil and gas inspectors, Bureau personnel, Department personnel, or other persons as the Secretary shall designate; and

(iv) certification of the successful completion of training programs for newly hired and experienced offshore oil and gas inspectors.

(C) COOPERATIVE AGREEMENTS.—

(i) IN GENERAL.—In performing functions under this paragraph, and subject to clause (ii), the Secretary may enter into cooperative educational and training agreements with educational institutions, related Federal academies, other Federal agencies, State governments, safety training firms, and oil and gas operators and related industries.

(ii) TRAINING REQUIREMENT.—Such training shall be conducted by the Academy in accordance with curriculum needs and assignment of instructional personnel established by the Secretary.

(11) USE OF DEPARTMENT PERSONNEL.—In performing functions under this subsection, the Secretary shall use, to the extent practicable, the facilities and personnel of the Department of the Interior. The Secretary may appoint or assign to the Academy such officers and employees as the Secretary considers necessary for the performance of the duties and functions of the Academy.

(12) ADDITIONAL TRAINING PROGRAMS.—

(A) IN GENERAL.—The Secretary shall work with appropriate educational institutions, operators, and representatives of oil and gas workers to develop and maintain adequate programs with educational institutions and oil and gas operators that are designed—

(i) to enable persons to qualify for positions in the administration of this Act; and

(ii) to provide for the continuing education of inspectors or other appropriate Department of the Interior personnel.

(B) FINANCIAL AND TECHNICAL ASSISTANCE.—The Secretary may provide financial and technical assistance to educational institutions in carrying out this paragraph.

(e) LIMITATION.—The Secretary shall not carry out through the Service any function, power, or duty that is—

(1) required by section 402 to be carried out through Bureau of Ocean Energy; or

(2) required by section 404 to be carried out through the Office of Natural Resources Revenue.

SEC. 404. OFFICE OF NATURAL RESOURCES REVENUE.

(a) ESTABLISHMENT.—There is established in the Department of the Interior an Office of Natural Resources Revenue (referred to in this section as the ''Office'') to be headed by a Director of Natural Resources Revenue (referred to in this section as the ''Director'').

(b) APPOINTMENT AND COMPENSATION.—

(1) IN GENERAL.—The Director shall be appointed by the Secretary of the Interior.

(2) COMPENSATION.—The Director shall be compensated at the rate provided for Level V of the Executive Schedule under section 5316 of title 5, United States Code.

(c) DUTIES.—

(1) IN GENERAL.—The Secretary of the Interior shall carry out, through the Office, all functions, powers, and duties vested in the Secretary and relating to the administration of offshore royalty and revenue management functions.

(2) SPECIFIC AUTHORITIES.—The Secretary shall carry out, through the Office, all functions, powers, and duties previously assigned to the Minerals Management Service (including the authority to develop, promulgate, and enforce regulations) regarding offshore royalty and revenue collection; royalty and revenue distribution; auditing and compliance; investigation and enforcement of royalty and revenue regulations; and asset management for onshore and offshore activities.

(d) LIMITATION.—The Secretary shall not carry out through the Office any function, power, or duty that is—

(1) required by section 402 to be carried out through Bureau of Ocean Energy; or

(2) required by section 403 to be carried out through the Ocean Energy Safety Service.

SEC. 405. ETHICS AND DRUG TESTING.

(a) CERTIFICATION.—The Secretary of the Interior shall certify annually that all Department of the Interior officers and employees having regular, direct contact with lessees, contractors, concessionaires, and other businesses interested before the Government as a function of their official duties, or conducting investigations, issuing permits, or responsible for oversight of energy programs, are in full compliance with all Federal employee ethics laws and regulations under the Ethics in Government Act of 1978 (5 U.S.C. App.) and part 2635 of title 5, Code of Federal Regulations, and all guidance issued under subsection (c).

(b) DRUG TESTING.—The Secretary shall conduct a random drug testing program of all Department of the Interior personnel referred to in subsection (a).

(c) GUIDANCE.—Not later than 90 days after the date of enactment of this Act, the Secretary shall issue supplementary ethics and drug testing guidance for the employees for which certification is required under subsection (a). The Secretary shall update the supplementary ethics

guidance not less than once every 3 years thereafter.

SEC. 406. ABOLISHMENT OF MINERALS MANAGEMENT SERVICE.

(a) ABOLISHMENT.—The Minerals Management Service is abolished.

(b) COMPLETED ADMINISTRATIVE ACTIONS.—

(1) IN GENERAL.—Completed administrative actions of the Minerals Management Service shall not be affected by the enactment of this Act, but shall continue in effect according to their terms until amended, modified, superseded, terminated, set aside, or revoked in accordance with law by an officer of the United States or a court of competent jurisdiction, or by operation of law.

(2) COMPLETED ADMINISTRATIVE ACTION DEFINED.—For purposes of paragraph (1), the term ''completed administrative action'' includes orders, determinations, memoranda of understanding, memoranda of agreements, rules, regulations, personnel actions, permits, agreements, grants, contracts, certificates, licenses, registrations, and privileges.

(c) PENDING PROCEEDINGS.—Subject to the authority of the Secretary of the Interior and the officers of the Department of the Interior under this Act—

(1) pending proceedings in the Minerals Management Service, including notices of proposed rulemaking, and applications for licenses, permits, certificates, grants, and financial assistance, shall continue, notwithstanding the enactment of this Act or the vesting of functions of the Service in another agency, unless discontinued or modified under the same terms and conditions and to the same extent that such discontinuance or modification could have occurred if this Act had not been enacted; and

(2) orders issued in such proceedings, and appeals therefrom, and payments made pursuant to such orders, shall issue in the same manner and on the same terms as if this Act had not been enacted, and any such orders shall continue in effect until amended, modified, superseded, terminated, set aside, or revoked by an officer of the United States or a court of competent jurisdiction, or by operation of law.

(d) PENDING CIVIL ACTIONS.—Subject to the authority of the Secretary of the Interior or any officer of the Department of the Interior under this Act, pending civil actions shall continue notwithstanding the enactment of this Act, and in such civil actions, proceedings shall be had, appeals taken, and judgments rendered and enforced in the same manner and with the same effect as if such enactment had not occurred.

(e) REFERENCES.—References relating to the Minerals Management Service in statutes, Executive orders, rules, regulations, directives, or delegations of authority that precede the effective date of this Act are deemed to refer, as appropriate, to the Department, to its officers, employees, or agents, or to its corresponding organizational units or functions. Statutory reporting requirements that applied in relation to the Minerals Management Service immediately before the effective date of this Act shall continue to apply.

SEC. 407. CONFORMING AMENDMENTS TO EXECUTIVE SCHEDULE PAY RATES.

(a) UNDER SECRETARY FOR ENERGY, LANDS, AND MINERALS.—Section 5314 of title 5, United States Code, is amended by inserting after the item relating to ''Under Secretaries of the Treasury (3).'' the following:

''Under Secretary for Energy, Lands, and Minerals, Department of the Interior.''.

(b) ASSISTANT SECRETARIES.—Section 5315 of title 5, United States Code, is amended by striking ''Assistant Secretaries of the Interior (6).'' and inserting the following:

''Assistant Secretaries, Department of the Interior (7).''.

(c) DIRECTORS.—Section 5316 of title 5, United States Code, is amended by striking ''Director, Bureau of Mines, Department of the Interior.'' and inserting the following new items:

''Director, Bureau of Ocean Energy, Department of the Interior.

''Director, Ocean Energy Safety Service, Department of the Interior.

''Director, Office of Natural Resources Revenue, Department of the Interior.''.

SEC. 408. OUTER CONTINENTAL SHELF ENERGY SAFETY ADVISORY BOARD.

(a) ESTABLISHMENT.—The Secretary of the Interior shall establish, under the Federal Advisory Committee Act, an Outer Continental Shelf Energy Safety Advisory Board (referred to in this section as the ''Board'')—

(1) to provide the Secretary and the Directors established by this Act with independent scientific and technical advice on safe, responsible, and timely mineral and renewable energy exploration, development, and production activities; and

(2) to review operations of the National Offshore Energy Health and Safety Academy established under section 403(d), including submitting to the Secretary recommendations of curriculum to ensure training scientific and technical advancements.

(b) MEMBERSHIP.—

(1) SIZE.—The Board shall consist of not more than 11 members, who—

(A) shall be appointed by the Secretary based on their expertise in oil and gas drilling, well design, operations, well containment and oil spill response; and

(B) must have significant scientific, engineering, management, and other credentials and a history of working in the field related to safe energy exploration, development, and production activities.

(2) CONSULTATION AND NOMINATIONS.—The Secretary shall consult with the National Academy of Sciences and the National Academy of Engineering to identify potential candidates for the Board and shall take nominations from the public.

(3) TERM.—The Secretary shall appoint Board members to staggered terms of not more than 4 years, and shall not appoint a member for more than 2 consecutive terms.

(4) BALANCE.—In appointing members to the Board, the Secretary shall ensure a balanced representation of industry and research interests.

(c) CHAIR.—The Secretary shall appoint the Chair for the Board from among its members.

(d) MEETINGS.—The Board shall meet not less than 3 times per year and shall host, at least once per year, a public forum to review and assess the overall energy safety performance of Outer Continental Shelf mineral and renewable energy resource activities.

(e) OFFSHORE DRILLING SAFETY ASSESSMENTS AND RECOMMENDATIONS.—As part of its duties under this section, the Board shall, by not later than 180 days after the date of enactment of this section and every 5 years thereafter, submit to the Secretary a report that—

(1) assesses offshore oil and gas well control technologies, practices, voluntary standards, and regulations in the United States and elsewhere; and

(2) as appropriate, recommends modifications to the regulations issued under this Act to ensure adequate protection of safety and the environment, including recommendations on how to reduce regulations and administrative actions that are duplicative or unnecessary.

(f) REPORTS.—Reports of the Board shall be submitted by the Board to the Committee on Natural Resources of the House or Representatives and the Committee on Energy and Natural Resources of the Senate and made available to the public in electronically accessible form.

(g) TRAVEL EXPENSES.—Members of the Board, other than full-time employees of the Federal Government, while attending meeting of the Board or while otherwise serving at the request of the Secretary or the Director while serving away from their homes or regular places of business, may be allowed travel expenses, including per diem in lieu of subsistence, as authorized by section 5703 of title 5, United States Code, for individuals in the Government serving without pay.

SEC. 409. OUTER CONTINENTAL SHELF INSPECTION FEES.

Section 22 of the Outer Continental Shelf Lands Act (43 U.S.C. 1348) is amended by adding at the end of the section the following:

''(g) INSPECTION FEES.—

''(1) ESTABLISHMENT.—The Secretary of the Interior shall collect from the operators of facilities subject to inspection under subsection (c) non-refundable fees for such inspections—

''(A) at an aggregate level equal to the amount necessary to offset the annual expenses of inspections of outer Continental Shelf facilities (including mobile offshore drilling units) by the Department of the Interior; and

''(B) using a schedule that reflects the differences in complexity among the classes of facilities to be inspected.

''(2) OCEAN ENERGY SAFETY FUND.—There is established in the Treasury a fund, to be known as the 'Ocean Energy Enforcement Fund' (referred to in this subsection as the 'Fund'), into which shall be deposited all amounts collected as fees under paragraph (1) and which shall be available as provided under paragraph (3).

''(3) AVAILABILITY OF FEES.—

''(A) IN GENERAL.—Notwithstanding section 3302 of title 31, United States Code, all amounts deposited in the Fund—

''(i) shall be credited as offsetting collections;

''(ii) shall be available for expenditure for purposes of carrying out inspections of outer Continental Shelf facilities (including mobile offshore drilling units) and the administration of the inspection program under this section;

''(iii) shall be available only to the extent provided for in advance in an appropriations Act; and

''(iv) shall remain available until expended.

''(B) USE FOR FIELD OFFICES.—Not less than 75 percent of amounts in the Fund may be appropriated for use only for the respective Department of the Interior field offices where the amounts were originally assessed as fees.

''(4) INITIAL FEES.—Fees shall be established under this subsection for the fiscal year in which this subsection takes effect and the subsequent 10 years, and shall not be raised without advise and consent of the Congress, except as determined by the Secretary to be appropriate as an adjustment equal to the percentage by which the Consumer Price Index for the month of June of the calendar year preceding the adjustment exceeds the Consumer Price Index for the month of June of the calendar year in which the claim was determined or last adjusted.

''(5) ANNUAL FEES.—Annual fees shall be collected under this subsection for facilities that are above the waterline, excluding drilling rigs, and are in place at the start of the fiscal year. Fees for fiscal year 2013 shall be—

''(A) $10,500 for facilities with no wells, but with processing equipment or gathering lines;

''(B) $17,000 for facilities with 1 to 10 wells, with any combination of active or inactive wells; and

''(C) $31,500 for facilities with more than 10 wells, with any combination of active or inactive wells.

''(6) FEES FOR DRILLING RIGS.—Fees for drilling rigs shall be assessed under this subsection for all inspections completed in fiscal years 2013 through 2022. Fees for fiscal year 2013 shall be—

''(A) $30,500 per inspection for rigs operating in water depths of 1,000 feet or more; and

''(B) $16,700 per inspection for rigs operating in water depths of less than 1,000 feet.

''(7) BILLING.—The Secretary shall bill designated operators under paragraph (5) within 60 days after the date of the inspection, with payment required within 30 days of billing. The Secretary shall bill designated operators under paragraph (6) within 30 days of the end of the month in which the inspection occurred, with payment required within 30 days after billing.

''(8) SUNSET.—No fee may be collected under this subsection for any fiscal year after fiscal year 2022.

''(9) ANNUAL REPORTS.—

''(A) IN GENERAL.—Not later than 60 days after the end of each fiscal year beginning with fiscal year 2013, the Secretary shall submit to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives a report on the operation of the Fund during the fiscal year.

''(B) CONTENTS.—Each report shall include, for the fiscal year covered by the report, the following:

''(i) A statement of the amounts deposited into the Fund.

''(ii) A description of the expenditures made from the Fund for the fiscal year, including the purpose of the expenditures and the additional hiring of personnel.

''(iii) A statement of the balance remaining in the Fund at the end of the fiscal year.

''(iv) An accounting of pace of permit approvals.

''(v) If fee increases are proposed after the initial 10-year period referred to in paragraph (5), a proper accounting of the potential adverse economic impacts such fee increases will have on offshore economic activity and overall production, conducted by the Secretary.

''(vi) Recommendations to increase the efficacy and efficiency of offshore inspections.

''(vii) Any corrective actions levied upon offshore inspectors as a result of any form of misconduct.''.

TITLE V—UNITED STATES TERRITORIES

SEC. 501. APPLICATION OF OUTER CONTINENTAL SHELF LANDS ACT WITH RESPECT TO TERRITORIES OF THE UNITED STATES.

Section 2 of the Outer Continental Shelf Lands Act (43 U.S.C. 1331) is amended—

(1) in paragraph (a), by inserting after ''control'' the following: ''or lying within the United States exclusive economic zone and the Continental Shelf adjacent to any territory of the United States'';

(2) in paragraph (p), by striking ''and'' after the semicolon at the end;

(3) in paragraph (q), by striking the period at the end and inserting ''; and''; and

(4) by adding at the end the following:

''(r) The term 'State' includes each territory of the United States.''.

The CHAIR. No amendment to that amendment in the nature of a substitute shall be in order except those printed in part B of House Report 113–131. Each such amendment may be offered only in the order printed in the report, by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question.

AMENDMENT NO. 1 OFFERED BY MR. BRADY OF TEXAS

The CHAIR. It is now in order to consider amendment No. 1 printed in part B of House Report 113–131.

Mr. BRADY of Texas. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 3, line 8, before the period insert '', and shall include and consider all such subdivisions in any environmental review conducted and statement prepared for such program under section 102(2) of the National Environmental Policy Act of 1969 (42 U.S.C. 4332(2))''.

The CHAIR. Pursuant to House Resolution 274, the gentleman from Texas (Mr. BRADY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. BRADY of Texas. Mr. Chairman, our Nation is in the middle of an exciting energy revolution, but we will never truly reach energy security as long as 85 percent of our offshore areas remain off limits to oil and gas manufacturers.

Chairman HASTINGS' Offshore Energy and Jobs Act on the floor today will open more offshore areas to energy development and bring our Nation closer toward the bipartisan goal of energy independence. This is a great thing.

In particular, Chairman HASTINGS' innovative bill allows State Governors to request that certain offshore areas be included in the 5-year leasing plan. This gives States more power to unlock offshore energy resources and the jobs and the affordable energy that go along with responsible offshore energy development.

I'm offering an amendment to strengthen that language based on my More Energy, More Jobs legislation recently introduced with my colleagues, Mr. WITTMAN of Virginia and Mr. SHIMKUS of Illinois. It will require the Interior Department to include all these areas requested by State Governors in the environmental review process for the leasing plan.

The National Environmental Policy Act requires all major Federal actions, including offshore leasing plans, to undergo an environmental review. For offshore leasing, this is an environmental impact statement. Typically, this is a 2-year process at least, and a first step for including any area in an offshore leasing plan. Without environmental impact statements, new areas can't be leased for offshore drilling.

My amendment will bring more areas into consideration for offshore energy development and move them further along in the leasing process, regardless of whether they are included in the final leasing plan.

More importantly, it will make it easier for future Congresses to pass leasing plans like the underlying bill because more offshore areas will have gone through the necessary environmental review process.

I'd like to thank Chairman HASTINGS for working with me both on this amendment and including some of our ideas in the underlying bill. With this struggling economy and our Nation in the midst of an energy revolution, now is the time to act to unleash more American-made energy and more American jobs.

I urge my colleagues to support this amendment.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. BRADY of Texas. I yield to the gentleman.

Mr. HASTINGS of Washington. I thank the gentleman for yielding.

I think the gentleman's amendment adds to this legislation, and we support his amendment.

Mr. BRADY of Texas. Thank you, Chairman HASTINGS.

I reserve the balance of my time.

Mr. DEFAZIO. I claim the time in opposition to the amendment.

The CHAIR. The gentleman from Oregon is recognized for 5 minutes.

Mr. DEFAZIO. Mr. Chairman, at the end of the general debate we had some creative math and/or cherry-picking of years to make a point that is not accurate.

The point is that oil production from Federal lands today is higher than it was at the end of the Bush administration—596 million barrels compared to 565 in 2008.

Now, in the offshore, when you use a certain number of years, obviously there is some anomaly. The anomaly was the worst oil spill disaster in the history of the United States, which was the Macondo blowup in the gulf, which of course set back leasing activity and development in the gulf for a period of time. However, we have now adopted new regulations. We're actually requiring blowup preventers that work and a few other sorts of things that the Obama administration has done to make the drilling safer.

Under this administration, there are now more floating rigs in the gulf than before the spill and during the Bush years; and we approved 112 Deepwater drilling permits last year—the most since 2005. Of course that drilling is being conducted more safely than it has in the past.

So, I mean, we're going to be able to switch around, pick different years, and do all of these things, but these are aggregate, longer-term numbers as opposed to specifying a particular year—and particularly picking a year after the worst oil spill rig disaster in the history of the United States.

With that, Mr. Chairman, we do not object to the amendment by Mr. BRADY, and I reserve the balance of my time.

Mr. BRADY of Texas. I yield 1 minute to the chairman of the committee, the gentleman from Washington (Mr. HASTINGS).

Mr. HASTINGS of Washington. I thank the gentleman for yielding. I want to respond to my good friend from Oregon's statistics.

What I said is that the production is down from when the President took office. And that, of course, is true. The gentleman makes the argument that there was more production initially in the Obama administration than the Bush administration. I never argued with that. But there's a reason for it. There were more lease sales during the Bush administration, and it takes a while to get these leases producing. They started producing at the first part of the Obama administration; and since then, they have gone down because of the actions of this administration.

So my statistics are correct, and I guess his statistics are correct; but it's not the whole story. The whole story is it takes a lot of time in order to bring a lease sale into production, and that's what the gentleman overlooked.

□ 1620

Mr. BRADY of Texas. Mr. Chairman, I reserve the balance of my time.

I am ready to close whenever the ranking member is.

Mr. DEFAZIO. As I pointed out earlier in the debate, yes, the chairman is correct, it does take time, and there are 5,484 leases, 30 million acres, mostly about 85 percent in the Gulf of Mexico, that have an estimated, according to the Energy Information Administration, 18 billion barrels of oil and 50 trillion cubic feet of natural gas that have not yet been developed.

In any case, I do not oppose the gentleman's amendment. He makes a small improvement in what we consider to be a bad bill by requiring that if States opt into leasing, that there will be a NEPA review. I'm glad that there is some recognition on the other side of the aisle on the value of NEPA reviews to protect our precious natural resources.

With that, I yield back the balance of my time.

Mr. BRADY of Texas. Mr. Chairman, I yield myself such time as I may consume.

This is a commonsense amendment that helps us responsibly develop our traditional energy sources for more jobs, more revenue to help balance this budget, and more affordable energy for America.

I urge my colleagues' support, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. BRADY).

The amendment was agreed to.

AMENDMENT NO. 2 OFFERED BY MR. HASTINGS OF FLORIDA

The CHAIR. It is now in order to consider amendment No. 2 printed in part B of House Report 113–131.

Mr. HASTINGS of Florida. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 11, beginning at line 3, strike section 204.

The CHAIR. Pursuant to House Resolution 274, the gentleman from Florida (Mr. HASTINGS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. HASTINGS of Florida. Mr. Chairman, I yield myself such time as I may consume.

Today, I am offering an amendment to H.R. 2231, the Offshore Energy and Jobs Act. I want to thank my colleagues, Representatives GERRY CONNOLLY and JIM MORAN, for working with me to bring this amendment to the floor.

This amendment strikes section 204 of the underlying bill. Section 204 seeks to limit the ability to conduct a comprehensive Environmental Impact Statement, EIS. Given our experience with devastating oil spills such as the BP spill, the Exxon Valdez, and a spill off the coast of Santa Barbara, we should be improving our review processes and strengthening safety requirements.

The combination of reduced resources and shortened timeframes that are mandated by the bill, as well as the expanse of area to be addressed, make the task of preparing a credible EIS difficult, if not impossible.

With these demanding schedules provided by section 204, what information is compelling Congress to seek such swift approval? Oil production, as has been said, is at a 20-year high and natural gas production is also at an all-time high. Furthermore, under President Obama's leadership, our dependence on foreign oil has fallen from 57 percent to 36 percent.

Mr. Chairman, we have a responsibility to the American people to pass legislation that will serve them. Section 204 limits the environmental review to provide for less rigor than a typical review process, which can create huge environmental and economic risks.

I urge my colleagues to support this amendment, and I reserve the balance of my time.

Mr. HASTINGS of Washington. Mr. Chairman, I rise to claim time in opposition to the amendment.

The CHAIR. The gentleman from Washington is recognized for 5 minutes.

Mr. HASTINGS of Washington. Mr. Chairman, I yield myself such time as I may consume.

I generally do not rise to vote or argue against a Hastings amendment, but in this case I feel I have to. It is the nature of who the author of the amendment is, perhaps, and I think the gentleman understands.

Mr. Chairman, this amendment prioritizes bureaucracy over responsibly increasing energy production. The amendment, as the gentleman noted, would strike a section of the bill, but that bill, that section, requires an Environmental Impact Statement to be conducted prior to any leasing in any lease sale areas.

The gentleman takes issue in the manner in which the Environmental Impact Statement is required to be conducted. However, what he fails to mention is that the administration is required to do yet another environmental review prior to each lease sale and additional reviews on each lease block as part of the leasing process. Then each expiration plan has additional environmental work.

In effect, all of the areas in the underlying bill will be studied and then restudied for the effect that any activity will have on the environment.

Not only that, Mr. Chairman, but all of these lease sales will be subject to the many different laws that still impact the offshore leasing process, such as the Coastal Zone Management Act, the Marine Mammal Protection Act, the Endangered Species Act, and the National Fishing Enhancement Act, just to name a few.

The truth of the matter is that this bill doesn't harm the environment; it goes the extra mile in requiring a multi-sale EIS on all of the lease areas, while still ensuring that leasing does occur because of the certainty in the process.

Support for offshore energy does not mean that you cannot respect a wide range of different environmental needs based upon a lease area.

We want to drill safely and responsibly. I think that is embodied in the underlying bill. For that reason, I urge rejection of the Hastings amendment, the Hastings of Florida amendment.

With that, I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Chairman, would you be kind enough to tell me how much time I have remaining?

The CHAIR. The gentleman from Florida has 3 minutes remaining. The gentleman from Washington has 2½ minutes remaining.

Mr. HASTINGS of Florida. Thank you. Mr. Chairman, I am very pleased at this time to yield 2 minutes to the cosponsor of this amendment and good friend, the gentleman from Virginia (Mr. CONNOLLY).

Mr. CONNOLLY. Mr. Chairman, maybe Mr. HASTINGS of Washington would be more comfortable calling it the Hastings-Connolly amendment, so that a Virginia name might make him feel more comfortable.

Mr. Chairman, have we already forgotten the consequences of lax regulation? I know the gulf coast hasn't. For many Americans, the image of more than 200 million gallons of oil spilling into the gulf, an area of oil spill and oil slick that if superimposed in this region would have gone from my district in northern Virginia all the way to New York City. It threatened America's largest fishery, jeopardizing tourism, wreaking havoc with the region's entire economy.

Sadly, the magnitude of the Deepwater Horizon oil spill might have been mitigated had BP and Transocean simply been required to do what this amendment requires—to comply with the basic environmental standards established to prevent such disasters from happening in the first place. Yet here we are 3 years later, and this Congress still has not taken a single action to improve drilling safety because the House majority has blocked every attempt. Now they want to make matters worse by gutting NEPA protections.

I am pleased to join my colleague in offering a commonsense amendment to preserve NEPA protections, and at least some modicum of impartiality in this attempt to legislate the majority's motto of ''drill, baby, drill'' everywhere.

Considering that all other major projects, even transit projects, with clear environmental benefits must undergo an Environmental Impact Statement, it is absurd to exclude from analysis activities that have the potential to destroy entire economies and ecosystems. For example, why is it that northern Virginia's Rail to Dulles project, a public project I oversaw, had to go through an extensive full 2-year environmental review, yet a privately-owned oil rig in the gulf was exempted from that same process? It makes no sense.

The BP spill was preventable, Mr. Chairman. Unfortunately, gulf coast residents will pay that price for that poor decision to waive an environmental review for decades to come as we continue to clean up the worst environmental disaster in our Nation's history.

Let's not allow that to happen. Let's support this amendment.

□ 1630

Mr. HASTINGS of Washington. I continue to reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Chairman, the impacts of a major oil spill off Florida's coast would be devastating to tourism, travel to nearby beaches, mangroves, and wildlife. This is a truncated process and wrong.

I yield to the gentleman from Virginia (Mr. MORAN).

Mr. MORAN. Mr. Chairman, what this bill does could have very serious consequences to Virginia's economy. By looking at multiple sales, you lose sight potentially of the harmful impact of individual parcels.

For example, drilling the close-in parcels could have a very adverse impact to the tourism industry in Virginia Beach. Other parcels would affect the absolutely essential shipping channels to Baltimore and Hampton Roads. Opening up other parts of Virginia's waters would have a very serious and consequential impact upon the ability of the Navy to use that area off Virginia's shores. Other parcels would have an adverse impact upon the fishing industry.

So what we are suggesting is to look specifically at these individual parcels. If you look at the entire broad scope of these sales, you're going to lose sight of some of the most serious adverse consequences.

The CHAIR. The time of the gentleman has expired.

The gentleman from Washington has 2½ minutes remaining.

Mr. HASTINGS of Washington. I yield myself the balance of my time.

Mr. Chairman, this is an interesting debate just simply on this amendment because I would point out to my colleagues that there has been a lot of reference on the floor today about the Senate's doing something or not doing something. I would just remind my colleagues that their Senators, both of whom are Democrats, support drilling off the Virginia coast. I've found out, too, that their candidate for Governor has switched his position now and that he, too, supports drilling off the coast of Virginia. So I can say here today, I think very honestly, that there is bipartisan support for drilling off the coast of Virginia.

Finally, I want to address the point that my good friend from Virginia (Mr. CONNOLLY) made about no safety. I will just refer him to title IV in this legislation. If his concern is on not having safety and updating rules because of oil spills, then he should support this legislation, because title IV does that through the reorganization process.

So, Mr. Chairman, it hurts me to say vote ''no'' on a Hastings amendment, but I will in this case for the arguments that I made a moment ago. We simply don't need it because of all of the environmental reviews you have to go through on lease sales.

With that, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. HASTINGS).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. HASTINGS of Florida. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Florida will be postponed.

AMENDMENT NO. 3 OFFERED BY MR. LAMBORN

The CHAIR. It is now in order to consider amendment No. 3 printed in part B of House Report 113–131.

Mr. LAMBORN. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title I, add the following new section:

SEC. 104. RULE OF CONSTRUCTION.

Nothing in this Act shall be construed to authorize the issuance of a lease under the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) to any person designated for the imposition of sanctions pursuant to—

(1) the Iran Sanctions Act of 1996 (50 U.S.C. 1701 note), the Comprehensive Iran Sanctions, Accountability and Divestiture Act of 2010 (22 U.S.C. 8501 et seq.), the Iran Threat Reduction and Syria Human Rights Act of 2012 (22 U.S.C. 8701 et seq.), section 1245 of the National Defense Authorization Act for Fiscal Year 2012 (22 U.S.C. 8513a), or the Iran Freedom and Counter-Proliferation Act of 2012 (22 U.S.C. 8801 et seq.);

(2) Executive Order 13622 (July 30, 2012), Executive Order 13628 (October 9, 2012), or Executive Order 13645 (June 3, 2013);

(3) Executive Order 13224 (September 23, 2001) or Executive Order 13338 (May 11, 2004); or

(4) the Syria Accountability and Lebanese Sovereignty Restoration Act of 2003 (22 U.S.C. 2151 note).

The CHAIR. Pursuant to House Resolution 274, the gentleman from Colorado (Mr. LAMBORN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. LAMBORN. Mr. Chairman, this straightforward amendment ensures that the Interior Department will not allow leases under the Outer Continental Shelf Lands Act to go to any person currently subject to sanctions by the U.S. Government under existing Federal laws. This amendment will ensure that no company can benefit from today's legislation if it helps prop up oppressive and destabilizing regimes, such as Iran or Syria.

With the threat from Iran continuing to grow, it is vital that Congress respond with prudent and effective action. We must continue to isolate Iran, promote stability in the Middle East, and protect Israel. Growing our own domestic energy resources is an important part of further isolating Iran. My amendment ensures that we do not inadvertently or indirectly support the Iranian regime while opening American sources of energy. Iran is an existential threat to our best ally in the region, Israel; and it is a state sponsor of terrorism in addition to Iran's relentless pursuit of nuclear weapons and the abuse it directs to its own citizens.

With regard to Syria, existing sanctions are already helping increase the pressure on President Assad's regime. Thanks to the sanctions, Syrian oil production has decreased as companies have cut ties with the government and exited the country. Despite this pressure, more action is needed. This amendment is a responsible next step to ensure that nothing in this bill will empower President Assad's continuing war against the Syrian people.

The United States should not be rewarding companies that are currently subject to sanctions by the U.S. Government. We must ensure that none of the profit derived from today's legislation will prop up nations that would harm our national security interests or those of our ally, Israel. Israel has a hard enough time surviving in a dangerous neighborhood without letting it get any worse.

With both the Iranian and Syrian regimes threatening our allies in the Middle East and with Iran's proxy, Hezbollah, now directly involved in the fighting in Syria, I believe that Congress must show its unity in the protection of our good friend Israel and with the people of Syria.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. LAMBORN. I yield to the gentleman.

Mr. HASTINGS of Washington. I think the gentleman's amendment adds a great deal to this legislation, and I support your amendment.

Mr. LAMBORN. I thank the chairman for that and for his leadership on the entire bill.

I encourage all of my colleagues to support this simple amendment, and I reserve the balance of my time.

Mr. DEFAZIO. I rise in opposition, although I am not opposed.

The CHAIR. Without objection, the gentleman from Oregon is recognized for 5 minutes.

There was no objection.

Mr. DEFAZIO. At the beginning of the consideration of this bill, I talked about how this was a little bit of ''Groundhog Day'' because all or parts of this bill passed in the last Congress five times. Now the gentleman is kind of disproving my theory because, well, I guess, at the very end of the movie, they broke out of the ''Groundhog Day'' cycle's being repetitive; but the gentleman is actually breaking us out of the cycle.

Actually, last year, the ranking member of the Rules Committee, the gentlelady from New York (Ms. SLAUGHTER), a Democrat, offered this identical amendment for sanctions to one of the many offshore oil drilling bills passed by the Republicans in the last Congress. On that day, which was the 25th of July 2012—almost a year ago today—I would note, on an amendment that does exactly what this amendment does, which we think is extraordinarily meritorious, that every Republican voted no—N-O. That would, of course, include Mr. LAMBORN and the esteemed chairman, Mr. HASTINGS.

So I'm not sure what has changed in the last year. Perhaps they just opposed it the last time because a Democrat was offering it and because the principle and the danger posed by businesses operating in these countries which are hostile to the United States of America wasn't worth dealing with when you could beat a Democratic amendment. I don't know. Maybe there has been a new realization on the other side of the aisle of the dangers of Iran and Syria since that time. Again, I don't know.

Not one Republican Member of the House voted in favor of this amendment 1 year ago despite the fact that the esteemed gentlelady from New York (Ms. SLAUGHTER) offered it as a motion to recommit on a bill. It could be because Republicans lockstep oppose motions to recommit or Democratic amendments, even if they have merit, just to make some sort of a perverse point.

We support this amendment today, as Democrats did last year, and perhaps all of the Republicans will change their positions this year, and it will be a unanimous vote.

With that, I reserve the balance of my time.

Mr. LAMBORN. Mr. Chairman, I look forward to receiving the vote of the ranking member. I suppose that means he is in favor of this amendment, so I appreciate and applaud that.

This is very similar to the amendment last year, though it is not identical as you stated. It is very similar, and this is an example that we can work together in a bipartisan way to commonly work together on good ideas. Motions to recommit, as I will remind you, do sometimes throw up a procedural roadblock that delay the progress of a bill.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. LAMBORN. I yield to the gentleman.

□ 1640

Mr. HASTINGS of Washington. I thank the gentleman for yielding as I want to make this point.

Existing law already exists as it relates to sanctions with the countries we're talking about, but I think it is very important, since we're talking about a national commodity, that we reemphasize—and that's really what the gentleman's amendment does, it reemphasizes what is already on the books. I think that needs to be done, especially right now with the volatility that we see in the Middle East.

So I think the gentleman's amendment, as I stated, makes a great deal of sense. I support it, and I thank the gentleman for yielding.

Mr. LAMBORN. As I reclaim my time, Mr. Chairman, I reserve the balance of my time.

Mr. DEFAZIO. The gentleman would have been accurate had the motion to recommit been worded ''promptly,'' but it was worded ''forthwith,'' so it would only have delayed the bill by a total of 10 minutes or 15 minutes, however long the next vote was set for. It would not have sent the bill back to committee, and it would not have disrupted the movement of the legislation. So that part of the statement is not accurate and not a good explanation for why the Republicans uniformly opposed this excellent policy last year, even if it is, as the chairman says, reemphasizing existing law.

We happen to think it's a really great existing law, and we wanted to make that point last year. Your side didn't. I'm glad that you've come around on looking at the companies that do business in Iran and Syria as serious threats to the United States and are going to essentially support the amendment that we offered last year, which you opposed.

That's the best I can do, Mr. Chairman. Sometimes we change our minds around here. We haven't. All the Democrats, I expect, will vote in favor of this amendment, as they did last time. Apparently now, most or all Republicans will vote. That is a privilege we have around here, to change our minds. I just wish they had opposed it on better grounds last time rather than saying, well, it would have delayed the bill by 15 minutes.

With that, Mr. Chairman, I yield back the balance of my time.

Mr. LAMBORN. Mr. Chairman, I do look forward and appreciate the gentleman across the aisle's support of this amendment, and I thank him for his remarks.

Mr. Chairman, this is a good amendment. I urge everyone's support, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. LAMBORN).

The amendment was agreed to.

AMENDMENT NO. 4 OFFERED BY MR. FLORES

The CHAIR. It is now in order to consider amendment No. 4 printed in part B of House Report 113–131.

Mr. FLORES. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of title IV add the following:

SEC. 410. PROHIBITION ON ACTION BASED ON NATIONAL OCEAN POLICY DEVELOPED UNDER EXECUTIVE ORDER 13547.

(a) PROHIBITION.—The Bureau of Ocean Energy and the Ocean Energy Safety Service may not develop, propose, finalize, administer, or implement, any limitation on activities under their jurisdiction as a result of the coastal and marine spatial planning component of the National Ocean Policy developed under Executive Order 13547.

(b) REPORT ON EXPENDITURES.—Not later than 60 days after the date of enactment of this Act, the President shall submit a report to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate identifying all Federal expenditures in fiscal years 2011, 2012, and 2013, by the Bureau of Ocean Energy and the Ocean Energy Safety Service and their predecessor agencies, by agency, account, and any pertinent subaccounts, for the development, administration, or implementation of the coastal and marine spatial planning component of the National Ocean Policy developed under Executive Order 13547, including staff time, travel, and other related expenses.

The CHAIR. Pursuant to House Resolution 274, the gentleman from Texas (Mr. FLORES) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. FLORES. Mr. Chairman, this amendment is a very simple amendment. It basically says that it prohibits the offshore agencies of the Interior Department from imposing ocean zoning related to the Obama administration's continued attempts to establish the National Ocean Policy under Executive Order 13547 without congressional authorization.

It also requires the administration to submit a report to Congress identifying expenditures for fiscal years 2011 through 2013 by the Bureau of Ocean Energy, the Ocean Energy Safety Service, and their predecessor agencies.

Just as a little background, Executive Order 13547 was signed in 2010, and it requires that various bureaucracies essentially zone the ocean and the sources thereof. This essentially means that a drop of rain that falls on your house could be subject to this overreaching policy because that drop of rain will ultimately wind up in the ocean.

There are concerns that have been raised recently that the National Ocean Policy may not only restrict ocean and inland activities, but it may also have a problem because it has not been given any specific appropriations by this Congress. We have had hearings on this in the Natural Resources Committee, and no agency has told us from which source they're getting the funding for this initiative.

As you can see in chart 1, this light green area shows the area that's covered under ocean zoning. As you can see, that covers a lot more than the blue areas that represent the ocean. There are 26 States just in the Mississippi watershed that would be affected by this executive order.

If we go to chart 2, you can see that the executive order creates a huge new bureaucracy at a time when we're trying to make government smaller, more efficient, and less intrusive. There are 63 agencies involved, as we see on the next chart, in this effort to try to zone the oceans. This looks like more than a planning exercise at this point.

Let me say that you're going to hear from the other side something that says planning is good. Yeah, planning may be good. Planning with the intent to regulate or a backdoor regulation or backdoor rulemaking is not, because here is what the executive order states on its face. It says:

> All executive departments, agencies, and offices that are members of the council and any other executive department, agency, or office whose actions affect the ocean, our coasts, and the Great Lakes shall, to the fullest extent consistent with applicable law . . . comply with council certified coastal and marine spatial plans.

That means all these folks are going to have something to say on how we move forward.

This is a very simple amendment, and it was so simple that we offered it as a limitation amendment for the FY13 CJS appropriations bill, and it passed on a bipartisan vote of 246–174.

Let me close by saying that we're not plowing new ground here. This has already been approved in the CJS appropriations bill from last year. This amendment does not stop any existing statute, any existing rule, or any existing regulation. For instance, you may hear that it stops the Rigs-to-Reefs program. That is totally false. It does not get in the way of any existing program.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. FLORES. I yield to the gentleman.

Mr. HASTINGS of Washington. I thank the gentleman for yielding, and I thank the gentleman for his leadership on this issue.

The gentleman knows that I have the same concerns he has on this executive order, and I think his amendment adds a great deal to this bill, and I support his amendment.

Mr. FLORES. Reclaiming my time, I reserve the balance of my time.

Mr. DEFAZIO. Mr. Chairman, I claim time in adamant opposition.

The CHAIR. The gentleman from Oregon is recognized for 5 minutes.

Mr. DEFAZIO. This amendment would prohibit the Department of the Interior offshore agencies from using voluntary and commonsense planning as part of the National Ocean Policy to inform decisions they make under existing laws.

It's interesting that the National Ocean Industries Association, which represents offshore energy developers of many kinds, yesterday noted:

> This is a great example of the progress that can be made when industry and regulating agencies communicate with each other. It's gratifying to see government and an industry come together to cooperatively and responsibly address these complex and important environmental issues.

And the gentleman's amendment would bring that program to a halt, which obviously the industry actually seems to think is useful.

With that, I yield the balance of my time to the gentleman from California (Mr. FARR).

The CHAIR. Without objection, the gentleman from California will control the time.

There was no objection.

Mr. FARR. Mr. Chairman, I rise in strong opposition to this amendment.

I think the gentleman might be well intended with his thought of what this amendment does, but it's exactly the opposite of what the industry wants.

The gentleman is a relatively new Member to Congress and does not represent a coastal area in his district. But if he were here during the nineties and early 2000, the reason we have a National Ocean Policy is because Congress set up a commission to study the conflicts of the sea brought to us by users of the ocean. That was the petroleum industry. That was the fishing industry. They were in conflict.

We had one agency saying, You can drill for oil, and others were saying, No, those are protected fishing grounds. Crab pots were being swept up by seismic boats going out and looking for oil and other geological issues. We had the Navy not corresponding with buoys. We had just tons of conflicts all within our 200-mile ocean exclusive economic zone, and the industry begged for some kind of collaboration of getting together.

□ 1650

Congress put together a commission; and on that commission Lawrence Dickerson, who was Diamond Offshore, chairman of the International Association of Drilling Contractors and chairman of the National Ocean Industries Association, was appointed by President Bush to sit on that commission. The recommendations of that commission, a commission that Congress created, were to create a national ocean policy. Congress actually introduced bills. The bills were introduced by Republican Members. Congressman Jim Greenwood carried the bill. Others carried the bill. The Resources Committee would never even give them a hearing. Admiral Watkins was chair of the committee, who was first President Bush's Energy Secretary, and also former CNO. All of these Republicans were asking for a national ocean policy.

Now we have it, and the gentleman says let's ignore it, let's ignore it. Let's not allow it to even be involved. This is a setback. If you want to absolutely have fast track in permitting, then do it under planning. That's the way we plan for our military with the quadrennial review. There isn't anything—health plans. Everything we do, transportation plans, you name it, it's around a big plan. We don't spend any money until the plan is in place.

Now we are in the process of having that plan, which the industry supports, and the gentleman wants to say, no, don't do anything, ignore it. You bring us back to conflicts at sea. You bring back regulatory fights. If you want to delay decisionmaking, then don't have a plan like we have.

This amendment destroys the ability to get the job done.

I reserve the balance of my time.

The CHAIR. The Chair would note that the gentleman does not have the right to close.

Mr. FLORES. Mr. Chairman, I am a newcomer to Congress, but the reason I'm a newcomer to Congress is because before I did this, I had 30 years of experience working offshore. So I have firsthand experience with this. Twenty years of that, it was as a sea level officer for different companies that operated offshore.

Congress studied this issue for 10 years, and took no action. What does that tell us? That means the intent of Congress is to have no statute or regulation to zone the oceans. So the gentleman's issue is a little off base here. And just to make sure we correct the statement about what NOIA said, here's what they're putting out today:

> NOIA staunchly supports the good work that Congressman FLORES has done and continues to do to fight back this ill-conceived national ocean policy, and stands in strong support of the Flores amendment on the House floor today.

I want to remind everybody I have this list of folks that support this. This is the fishing industry, both commercial and recreational. It's agriculture. It's home builders. It's the energy industry. We're not trying to stop a niche problem.

The CHAIR. The time of the gentleman has expired.

Mr. FARR. Mr. Chairman, I would like to remind my colleagues that the national ocean policy is the recommendation of a commission that we created, bipartisan commission, appointed by President Bush, to recommend how we might avoid the conflicts of sea. The national ocean policy is that, to have a policy so that when we do activities in the ocean, we know whether those activities are consistent with a policy.

I think the gentleman is completely wrong in thinking that disrupting that policy planning is going to get a faster and more equitable way of drilling for oil. I think he's totally wrong in that, and the administration would probably veto the bill if it's in there. I don't think that it is an amendment that's going to do good. I think it's going to do harm, and I would oppose it.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. FLORES).

The question was taken; and the Chair announced that the ayes appeared to have it.

Mr. FARR. I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Texas will be postponed.

AMENDMENT NO. 5, AS MODIFIED, OFFERED BY MR. CASSIDY

The CHAIR. It is now in order to consider amendment No. 5, as modified, printed in part B of House Report 113–131.

Mr. CASSIDY. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment, as modified, is as follows:

Add at the end the following:

TITLE ___—MISCELLANEOUS PROVISIONS

SEC. ___. AMOUNT OF DISTRIBUTED QUALIFIED OUTER CONTINENTAL SHELF REVENUES.

Section 105(f)(1) of the Gulf of Mexico Energy Security Act of 2006 (title I of division C of Public Law 109–432; 43 U.S.C. 1331 note) shall be applied by substituting ''2023, and shall not exceed $999,999,999 for each of fiscal years 2024 through 2055'' for ''2055''.

The CHAIR. Pursuant to House Resolution 274, the gentleman from Louisiana (Mr. CASSIDY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Louisiana.

Mr. CASSIDY. Mr. Chairman, in 2006 Congress passed the Gulf of Mexico Energy Security Act, or GOMESA. This legislation for the first time allowed States to share in revenues generated from offshore drilling. GOMESA provided 37.5 percent of revenue to the Gulf States, to begin in the year 2017, but arbitrarily placed a $500 million cap on the collectively shared revenue.

Conversely, the Mineral Leasing Act requires the Federal Government to allocate 50 percent of the energy revenue generated on Federal lands to interior States in which the revenue is generated without an annual cap.

Mr. Chairman, my amendment is straightforward. It simply moves offshore royalty sharing more in line with the benefit onshore interior States experience by moving the GOMESA cap from $500 million to $1 billion. This would begin 10 years from now. It's almost $1 billion, just short of $1 billion.

My amendment does not impact onshore producing States. If your State is receiving revenue sharing from onshore, my amendment does nothing to change that. It just moves Louisiana, Texas, Mississippi, and Alabama a little bit closer to parity. You can look at this graph right here, and you can see that this graph shows that interior States are receiving 50 percent with no dollar cap. Gulf States, less a percentage and with a cap. And all other States have the same percent with no cap.

The House has previously passed a similar version of this amendment twice: once in the PIONEER Act and second on the Domestic Energy and Jobs Act, both last year, overwhelmingly with bipartisan support. In fact, the House laid the groundwork for this with the landmark passage of the Deep Ocean Energy Resources Act of 2006. This was the first offshore revenue-sharing bill to pass a congressional Chamber, and it did not include an arbitrary cap.

So I ask my colleagues, if you're worried about rising energy prices, I'd recommend a ''yes'' vote on this amendment. Thirty percent of the Nation's energy comes off the gulf coast. If you're interested in treating Gulf Coast States equally, the way we treat onshore drilling in Federal lands for inland States, I also recommend a ''yes.'' And if you're interested in the environment, let me just make the case here that by the Louisiana Constitution, 100 percent of the Federal tax revenue that comes from this will go to coastal restoration. That is important to us because every place you see red is a place where we will lose in Louisiana land over the next 50 years. And where you see red, I see families. I see families and businesses which will no longer exist unless we do something proactively to restore those lands.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. CASSIDY. I yield to the gentleman.

Mr. HASTINGS of Washington. I thank the gentleman for yielding. I just want to tell the gentleman that I support his amendment. I think it adds a great deal to this legislation, and I commend him for it.

Mr. DUNCAN of South Carolina. Will the gentleman yield?

Mr. CASSIDY. I yield to the gentleman from South Carolina.

Mr. DUNCAN of South Carolina. I want to commend the gentleman from Louisiana for his amendment. I think it is the right thing. I thing the Gulf Coast States are treated unfairly with the cap. This raises the cap. It's the right thing.

I was talking with a gentleman from an ACC school—I know you're an LSU guy—but he was from Virginia Tech. He said, Go Hokies. I didn't like that, but he understands that Louisiana is treated unfairly when you compare to what is going on in Wyoming where they got a billion dollars last year in revenue.

My State of South Carolina is included in this bill, and they want the revenue-sharing as well. It is the right thing for the States that help produce America's energy. So I commend the gentleman. Let's raise that cap, and let's treat those Gulf Coast States fairly because they are the producers of American energy. And so I commend the gentleman.

Mr. CASSIDY. I reserve the balance of my time.

Mr. FARR. Mr. Chairman, I rise to claim the time in opposition.

The CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. FARR. Mr. Chairman, I rise in opposition because I can't believe—I am kind of excited that you want to get more money—but I can't believe the Republicans are suggesting that the Treasury of the United States ought to be robbed of another $11 billion that goes to deficit reduction so it can be spent on the Gulf States because in legislation we just passed we give the Gulf States something no other States get: we give them in law now $150 billion over the next 60 years in revenue earmarked for the Gulf States. And what this amendment says is that's not enough; we want $11 billion more. What gall.

□ 1700

Most of us, if we were doing this, would be accused of doing an earmark. And certainly you don't do earmarks anymore in the House of Representatives. So what is it that $150 billion isn't enough for four States and you need, now, before you even have spent that money, to put into law another $11 billion?

Could you answer that question?

Mr. CASSIDY. Will the gentleman yield?

Mr. FARR. No, you have the time. I reserve the balance of my time.

Mr. CASSIDY. I reserve the balance of my time.

Mr. FARR. I will yield to the gentleman for a question. Explain to me what is broken that needs $11 billion more, right now, with the $150 billion that you've already been given, or will be given.

Mr. CASSIDY. This is what is broken. This is our coastline, which is melting away. This is what increases our risk. We've lost a land mass equal to Rhode Island in Louisiana.

Now, the money that is received, our share will go to this, but it is not adequate to rebuild this coastline. And the other thing which is broken is—

Mr. FARR. You've lost the coastline why?

Mr. CASSIDY. Because we channeled the Mississippi in order to create navigational services for the rest of the inland nation. And so as you channel that Mississippi, the wetlands lost the nourishing sediment that comes to them.

Mr. FARR. And those are the States that have also instate waters and onshore and offshore drilling?

Mr. CASSIDY. Yes, we do have onshore and offshore drilling, absolutely.

Mr. FARR. Which are very lucrative revenues for the State.

Mr. CASSIDY. If we want to speak about lucrative revenue, all I ask is to have the same deal that every other State has. No, I don't even ask for the same deal that every other State has, because every other State, if they're interior, gets 50 percent of the revenue.

Other coastal States, for example, California, have no cap on the amount

of royalty sharing that they may have with the Federal Government. It is only in the gulf coast that there is a cap.

Now, if you want to have the same deal for our State that other States have, I would love to have the 50 percent that Wyoming has.

Mr. FARR. That's onshore, not offshore. We actually have caps with offshore, and we have banned further offshore drilling, both State and Federal waters.

Mr. CASSIDY. Well, if you decide to cut off your economic nose to spite your face, I can't help that.

Mr. FARR. The Republicans have been very big on deficit reduction and very much against earmarks. And now, with this amendment you're proposing it seems to fly in the face of the policy of your own party that you want to take out of the Treasury $11 billion that could be applied to deficit reduction and give it to the Gulf States, which already have $150 billion over the next—in revenue coming to you, earmarked for you. That is far more than California or other States.

Mr. CASSIDY. If I may say, I admire your verbal sleight-of-hand because never in the past has royalty sharing been considered earmarks. But if now we're going to start considering royalty sharing earmarks, heck, let's go back and look at every State. But that is, again, a verbal sleight-of-hand. That is not under the definition of an earmark, and I think the gentleman knows that.

Mr. FARR. Well, I'm on the Appropriations Committee, and if this were brought up in the Appropriations Committee, it certainly would be an earmark. And it is a process that should be in the appropriations process and not added to this bill, where you create an $11 million earmark for four Gulf States.

Mr. CASSIDY. Assuming that the gentleman continues to yield to me, I would say, in that case, we need to go back to every State which has a better royalty sharing arrangement with the Federal Government than we and ask to reconsider that.

We're not even asking to have the 50 percent on the inland or the no cap on the other coastal States. We're just asking that you raise the cap and keep our revenue sharing royalty percent at the same lower level than it is on the inland. Now, I don't know why we're being singled out when those other States do so well.

Mr. FARR. Well, I think the chair of your committee, Mr. HASTINGS, who knows this, that only about 40 percent of the money that comes in for the Land and Water Conservation account, of the revenue that comes from the offshore drilling, only 40 percent of it is given back to the States for land and water conservation purposes. That other 60 amount just goes into the Treasury. That's where this money goes, and what you're doing is getting something that none of the other States have.

If we want to revise the percentage of money that goes into the Land and Water Conservation Fund, I'm all for that.

Mr. CASSIDY. So, when I spoke to someone from Wyoming today, she goes, Oh, you're only getting 37.5? Wyoming gets 48 percent.

The Acting CHAIR (Mr. HULTGREN). The time of the gentleman from California has expired.

Mr. HASTINGS of Washington. Will the gentleman from Louisiana yield to me for 15 seconds?

Mr. CASSIDY. I yield to the gentleman.

Mr. HASTINGS of Washington. I just want to point out, the gentleman, my good friend from California, is talking about revenue loss.

I just want to make this point: the CBO says this legislation will create $1.5 billion to the Federal Government.

I thank the gentleman for yielding.

Mr. CASSIDY. How much time do I have left?

The Acting CHAIR. The gentleman from Louisiana has 1¼ minutes remaining.

Mr. CASSIDY. I yield 45 seconds to the gentleman from Louisiana (Mr. SCALISE).

Mr. SCALISE. Mr. Chairman, I want to thank the gentleman from Louisiana (Mr. CASSIDY) for yielding and for bringing this amendment. I think it's important to point out that this was an arbitrary cap that was put in place based on problems that were really created in the 1950s when initial revenue sharing was done.

For whatever reason, there are various reasons, one State was singled out to not be able to participate in revenue sharing. It just so happens to be the State that produced about 30 percent of the offshore oil and gas. All we're asking for is a little bit closer to fairness.

This amendment's a really important step in the right direction and continues the concept that we've always promoted: to allow States that do participate in producing American energy to also participate in the revenue that's produced to the Federal Treasury. It's an incentive to continue to encourage that kind of American energy exploration.

I support the amendment.

Mr. CASSIDY. Mr. Chairman, I'll just close by saying—and I'm not sure I understand the logic of my friend on the other side of the aisle—apparently, this is going to increase our Federal revenue by $1.5 billion. But more importantly, it generates dollars for the State of Louisiana to preserve these, the homes of these families. This allows revenue that has been from our Outer Continental Shelf to come back to preserve this coastline, these families, and these businesses to remain in existence. And that's what this is really about, equity, increased revenue for the Federal Government, and families in Louisiana being able to preserve their existence.

I urge support for our amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment, as modified, offered by the gentleman from Louisiana (Mr. CASSIDY).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. LOWENTHAL. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment, as modified, offered by the gentleman from Louisiana will be postponed.

AMENDMENT NO. 6 OFFERED BY MR. CASSIDY

The Acting CHAIR. It is now in order to consider amendment No. 6 printed in part B of House Report 113–131.

Mr. CASSIDY. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Add at the end the following:

TITLE ___—MISCELLANEOUS PROVISIONS

SEC. ___. RULES REGARDING DISTRIBUTION OF REVENUES UNDER GULF OF MEXICO ENERGY SECURITY ACT OF 2006.

(a) IN GENERAL.—Not later than 60 days after the date of enactment of this Act, the Secretary of the Interior shall issue rules to provide more clarity, certainty, and stability to the revenue streams contemplated by the Gulf of Mexico Energy Security Act of 2006 (43 U.S.C. 1331 note).

(b) CONTENTS.—The rules shall include clarification of the timing and methods of disbursements of funds under section 105(b)(2) of such Act.

The Acting CHAIR. Pursuant to House Resolution 274, the gentleman from Louisiana (Mr. CASSIDY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Louisiana.

Mr. CASSIDY. Mr. Chairman, this amendment simply stipulates that no later than 60 days after the enactment of H.R. 2231, the Secretary of the Interior shall issue rules to provide clarity, certainty, and stability to the revenue streams we just discussed that were created by GOMESA of 2006.

This Federal law allows the State to use this money for the restoration of coastal areas and the mitigation of damage to natural resources. However, the Bureau of Ocean Energy Management, formerly MMS, has yet to issue the necessary rules and regulations.

In 2009, a letter signed by the Governors of Louisiana, Alabama, Mississippi, and Texas asked for these rules to be published and recommendations incorporated. It's now 2013, over 6 years since Congress passed in 2006, and the rules have still not been published. The lack of clarity in this phase 2 implementation of GOMESA impedes the ability of Gulf States and eligible coastal political subdivisions to conduct and achieve the planning efforts needed to maximize coastal protection.

It's long overdue for these rules to be published. The amendment is simple. It just directs it to do so. I move for approval of the amendment.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. CASSIDY. I yield to the gentleman.

Mr. HASTINGS of Washington. I thank the gentleman for yielding.

I think his amendment again adds a great deal to this legislation. I support the amendment.

Mr. CASSIDY. I reserve the balance of my time.

Mr. LOWENTHAL. I claim time in opposition, although I am not opposed to the amendment.

The Acting CHAIR. Without objection, the gentleman from California is recognized for 5 minutes.

There was no objection.

Mr. LOWENTHAL. Mr. Chairman, we do not oppose this amendment at this time.

I yield back the balance of my time.

Mr. CASSIDY. I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Louisiana (Mr. CASSIDY).

The amendment was agreed to.

AMENDMENT NO. 7 OFFERED BY MR. RIGELL

The Acting CHAIR. It is now in order to consider amendment No. 7 printed in part B of House Report 113–131.

Mr. RIGELL. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Add at the end the following:

TITLE ___MISCELLANEOUS PROVISIONS

SEC. ___. SEISMIC TESTING IN THE ATLANTIC OUTER CONTINENTAL SHELF.

Not later than December 31, 2013, the Bureau of Ocean Energy Management shall publish a record of decision on the Atlantic G&G Programmatic Final Environmental Impact Statement.

The Acting CHAIR. Pursuant to House Resolution 274, the gentleman from Virginia (Mr. RIGELL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. RIGELL. I yield myself 1 minute.

Mr. Chairman, I rise in support of my amendment to H.R. 2231, which requires the administration to complete its Atlantic Environmental Impact Statement by December 31 of this year, which will pave the way for us to calculate new estimates of the tremendous energy potential that's off our shores.

□ 1710

It's been 30 years since geological and geophysical studies, including seismic studies, have been conducted in Atlantic waters. Those studies used outdated technology, and our current estimates for the energy that is out there are surely inaccurate. And I believe they're low. For example, we collected five times more oil from the Gulf of Mexico than the government estimated to be there in 1983. The study also will allow us to move forward with a critical component of renewable energy—and that's wind.

So for all those reasons, the administration must stay on track here and issue its long-awaited environmental impact statement—and do that on time. And that's what my amendment ensures happens. It should move forward with energy production and, most importantly, job creation, using the best science available.

Mr. HASTINGS of Washington. Will the gentleman yield?

Mr. RIGELL. I yield to the gentleman.

Mr. HASTINGS of Washington. I think the gentleman's amendment makes a great deal of sense. We've had discussions in our committee on the accuracy of the data.

The point is that this legislation says that one ought to drill where the resources are. And the gentleman's amendment, I think, goes a long way in that direction. I commend him for that and support it.

Mr. RIGELL. I thank the chairman for your leadership on this bill.

I yield 1 minute to my friend and colleague, the gentleman from Virginia (Mr. WITTMAN).

Mr. WITTMAN. I rise in support of the gentleman from Virginia's amendment that sets a deadline for the Bureau of Ocean Energy Management to complete an environmental review to allow offshore Atlantic seismic studies to go forward. I have joined 42 bipartisan House colleagues urging President Obama to move quickly to complete the environmental analysis.

Unfortunately, the Department of Interior is well over a year behind in completing its work. As you know, delays continue to prevent the creation of thousands of good-paying jobs and around $19.5 billion in Federal, State, and local revenue.

I'm glad to join with Chairman HASTINGS in support of the Offshore Energy and Jobs Act. These measures are important for Virginia and this Nation, supporting domestic energy security, revenue sharing, and job creation. This is about jobs, energy independence, and just plain, old common sense. I urge my colleagues to support this amendment and this important energy bill.

CONGRESS OF THE UNITED STATES,
Washington, DC, March 21, 2013.

Hon. BARACK OBAMA,
President of the United States of America, Washington, DC.

DEAR MR. PRESIDENT: We are writing to urge that your Administration act to diligently complete the long-delayed Environmental Impact Statement (EIS) for the conduct of a safe, environmentally protective seismic assessment of the oil and natural gas resources offshore the Atlantic outer continental shelf (OCS). The gathering of such information represents a critical step toward making science-based decisions with regard to any future commercial or recreational activities in the federal waters off our Atlantic coastline that could provide the nation much needed energy, economic, and environmental benefits.

It has been nearly two generations since seismic testing was last conducted along our eastern seaboard. Since that time, technological advancements have rendered those previous findings nearly irrelevant. For example, while 2-D imaging was restricted by certain geological characteristics, today's 3-D and 4-D imaging techniques allow us to identify resources previously unknown to exist. By relying solely on outdated technology and information, we are blindly assessing offshore resource potential and making uninformed decisions without the benefit of sound science. To further illustrate this point, in 1987 the Minerals Management Service estimated that there were 9.57 billion barrels of oil within the Gulf of Mexico. In 2011, with more recent seismic data and exploration, they adjusted that estimate to 48.4 billion barrels of oil—roughly a 500% increase.

Contrary to the hyperbolic comments of many opposed to this simple information-gathering process, history tells us it can be done safely with great deference to our valuable ocean ecosystems. Industry employs a number of effective mitigation measures to reduce any potential impacts to wildlife in the seismic survey areas such as ramping up the sound levels to allow animals to leave the area before the full survey begins and placing marine mammal observers onboard the survey vessel to shut down the survey if an animal is spotted in the vicinity. Industry has been performing seismic surveys around the world, including the Gulf of Mexico, for decades and there has never been a documented case where use of an air gun to perform a seismic survey has caused the death of an animal. Similarly, a report by the National Academy of Sciences' National Research Council stated that ''No scientific studies have conclusively demonstrated a link between exposure to sound and adverse effects on a marine mammal population.'' It is past time to continue your Administration's efforts to safely accumulate this information using modern technology.

As you know, the Department of the Interior (DOI) held an initial scoping meeting on their EIS for Atlantic OCS seismic in April 2010. Previous to that in 2009, the FY 2010 House Interior Appropriations bill instructed DOI to indicate their expected timeline for completion of the EIS. DOI's response in February 2010 indicated a Final EIS being issued in April 2012. With nearly a full year having passed beyond this target date, we would urge the swift completion of this environmental analysis so that the many seismic permits already submitted to DOI may be properly considered, along with any future applications.

Finally, in order to ensure a viable market for Atlantic seismic data, we also urge your reconsideration of current policies prohibiting any new oil and gas leasing in the Atlantic OCS. Only the prospect of future leasing provides proper market incentive to make the significant investments needed to obtain this data.

We thank you for your consideration and hope to quickly move forward on Atlantic seismic testing to enable a science-based decision making process with regard to OCS access.

Sincerely,

Jeff Duncan; Doc Hastings; John Fleming; Steve Scalise; Joe Wilson, Morgan Griffith; Robert Wittman; Doug Lamborn; Rob Bishop; Tom Graves; Randy Forbes; Paul Broun.

Mick Mulvaney; Virginia Foxx; Robert Hurt; Tom Rooney; Frank Wolf; Richard Hudson; Trey Gowdy; Glenn Thompson; Tom Rice; Renee Ellmers; Scott Rigell; Bob Goodlatte; Mark Meadows; Robert Pittenger; Lynn Westmoreland; Bill Cassidy.

Cynthia Lummis; Michael Conaway; Steve Stivers; Kevin Cramer; Henry

Cuellar; Gene Green; Blake Farenthold; Bill Flores; Chris Stewart; Mark Amodei; Tim Huelskamp; Charles Boustany; Bill Johnson; Andy Harris.

U.S. DEPARTMENT OF THE INTERIOR,
OFFICE OF THE SECRETARY,
Washington, DC, June 19, 2013.

Hon. ROBERT WITTMAN,
House of Representatives,
Washington, DC.

DEAR REPRESENTATIVE WITTMAN: Thank you for your letter dated March 21, 2013, to President Barack Obama expressing your support for the completion of the Programmatic Environmental Impact Statement (PEIS) to evaluate potential effects of multiple geological and geophysical (G&G) activities in the Atlantic Outer Continental Shelf (OCS). President Obama has asked me to respond. A similar letter is being sent to each co-signer of your letter.

We share your commitment to ensuring that our resource management decisions are based on the best available science. To that end, the information developed from the PEIS will help guide future decision making regarding the resources available on the Atlantic Coast OCS as well as the social, economic, and environmental impacts of developing those resources.

The Bureau of Ocean Energy Management (BOEM) is in the process of preparing a PEIS under the National Environmental Policy Act (NEPA) to evaluate potential effects of multiple G&G activities in these areas, including seismic surveys using air guns. BOEM was directed to develop this PEIS under the Conference Report for the Department of the Interior, Environment, and Related Agencies Appropriations Act, 2010.

This PEIS is part of a region-specific strategy for oil and gas exploration and development in the Mid and South Atlantic that focuses on the need to update resource information in order to inform future decisions about whether and, if so, where leasing would be appropriate in these areas. Seismic surveys and other G&G activities being evaluated in this PEIS are valuable to understanding the location, extent, and properties of hydrocarbon resources. G&G surveys are also used to identify geologic hazards, archaeological resources, and hard bottom habitats that would need to be avoided during exploration and development. A variety of G&G techniques in addition to air guns are being evaluated in the study. These techniques are also used to understand the potential to site renewable energy structures and locate marine mineral resources, such as sand and gravel used for beach and barrier island restoration.

In preparing the PEIS, BOEM uses the best available science and works with experts and other regulatory agencies, such as the National Marine Fisheries Service. BOEM has contributed close to $40 million over the last decade on groundbreaking research to better understand the potential for acoustic impacts to marine life from geophysical sound sources. The BOEM has also conducted several expert stakeholder workshops to discuss and identify information needs on acoustic impacts and reasonable measures to manage and mitigate such effects.

We appreciate your interest in potential seismic exploration in the Mid and South Atlantic OCS waters. Please be assured that completion of this important environmental review remains a high priority for us.

Sincerely,

TOMMY P. BEAUDREAU,
Acting Assistant Secretary—Land and Minerals Management.

Mr. LOWENTHAL. I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. LOWENTHAL. As part of the Interior Department's 5-year plan, they are preparing to allow companies to reevaluate the potential oil and gas resources in the Mid- and South Atlantic using seismic and other testing. The Interior Department is currently going through the process of preparing a programmatic environmental impact statement for that testing because they have received nine permit requests for seismic airgun surveys. They have determined that because of the scope of interest, a programmatic EIS under the National Environmental Policy Act is needed prior to permitting any new, large-scale seismic surveys. The programmatic EIS would establish a framework for future NEPA evaluations of site-specific actions while identifying and analyzing mitigation measures for future programmatic use.

Despite the claims of the majority, Mr. Chair, the Interior Department already intends to finish the programmatic EIS by the end of this year. Bureau of Ocean Energy Management Director Beaudreau testified before the House Oversight and Government Reform Committee on May 16 of this year that:

> In the spring of 2012, BOEM released the draft programmatic environmental impact statement, or PEIS, for proposed geological and geophysical activities in the Mid- and South Atlantic for public comment. The completion of this PEIS is part of a region-specific strategy with respect to oil and gas exploration and development that will focus on the need to update information in order to inform future decisions on whether, and where, leasing would be appropriate. The final PEIS is expected to be published this year.

That's just what Interior said just over 1 month ago. Their intention is to finish this work by the end of this year. But if for some reason Interior needs to complete additional surveys, we should not prevent them from doing so. But that's what this amendment would do. It would potentially short-circuit the NEPA process. We should allow the Interior Department to finish its work to ensure that these activities can occur in a way that does not adversely impact the environment and not tie their hands, as the gentleman would do.

I urge defeat of this amendment that would potentially truncate a proper environmental review, and I reserve the balance of my time.

Mr. RIGELL. How much time is remaining?

The Acting CHAIR. The gentleman from Virginia has 2½ minutes remaining, and the gentleman from California has 2½ minutes remaining.

Mr. RIGELL. I yield myself such time as I may consume.

I appreciate the gentleman's argument. I certainly don't agree with it. The concern that we have—that I have personally—is that the administration's willingness to keep the tempo and the cadence of this whole process going forward is real. And if I approach this with a great sense of urgency, it's because people are hurting. We need to diversify our local economy. This bill that the underlying bill supports could create 18,000 jobs in the Hampton Roads area of Virginia alone.

I so appreciate the full support that we have, in principle, from Senators WARNER and KAINE on this very issue. This is a commonsense, common ground, overall initiative to grow revenue that we need for better roads and healthier schools in an environmentally responsible way, moving forward with coastal Virginia energy. Our Governor supports it. Our general assembly supports it. Our two U.S. Senators support it, in principle. I ran on it. And it has the support of so many different groups, including the local chapter of the NAACP, the chambers of commerce. It's just a wonderful and, frankly, diverse group of coalitions that has come together to say this is what is best for Virginia and job creation. We need to move forward with this.

I reserve the balance of my time.

Mr. LOWENTHAL. I thank the gentleman from Virginia for his arguments. And we have no problem with the underlying process. The question is, why should we truncate this process at this time when important work is now being done by the Department of Interior? We do not object to the Department of Interior going forward. The Department has said in a timely manner they will finish this this year. That is appropriate. It is not necessary at this moment to eliminate the environmental process when in fact we know it's moving forward in a fair and a judicious way. If anything comes up, we need to hear that and understand that for future oil leases.

And so I really request that we urge the defeat of this amendment and allow the proper process to go forward because we do not oppose the underlying theme of the bill but we do oppose the truncation of the process.

I reserve the balance of my time.

Mr. RIGELL. How much time do I have remaining, Mr. Chairman?

The Acting CHAIR. The gentleman from Virginia has 1 minute remaining.

Mr. RIGELL. I appreciate the gentleman's argument but my deep concern about the Federal government's real commitment to moving this forward is legitimate. I urge the adoption of the amendment, and I yield back the balance of my time.

Mr. LOWENTHAL. I thank the gentleman from Virginia. But the Federal Government does have a commitment in the Department of Interior to finish this in a timely manner. It has just been reported in the past month that they are working at this. They will finish it this year. So notwithstanding the very strong arguments of the gentleman from Virginia, we do not support truncating the environmental review process, and I urge a ''no'' vote.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. RIGELL).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. LOWENTHAL. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

Mr. HASTINGS of Washington. Mr. Chairman, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. WITTMAN) having assumed the chair, Mr. HULTGREN, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 2231) to amend the Outer Continental Shelf Lands Act to increase energy exploration and production on the Outer Continental Shelf, provide for equitable revenue sharing for all coastal States, implement the reorganization of the functions of the former Minerals Management Service into distinct and separate agencies, and for other purposes, had come to no resolution thereon.

□ 1720

NOTIFICATION OF INTENT TO SUSPEND DESIGNATION OF BANGLADESH AS A BENEFICIARY DEVELOPING COUNTRY—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 113–42)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Ways and Means and ordered to be printed:

To the Congress of the United States:

In accordance with section 502(f)(2) of the Trade Act of 1974, as amended (the ''1974 Act'') (19 U.S.C. 2462(f)(2)), I am providing notification of my intent to suspend the designation of Bangladesh as a beneficiary developing country under the Generalized System of Preferences (GSP) program. Section 502(b)(2)(G) of the 1974 Act (19 U.S.C. 2462(b)(2)(G)) provides that the President shall not designate any country a beneficiary developing country under the GSP if such country has not taken or is not taking steps to afford internationally recognized worker rights in the country (including any designated zone in that country). Section 502(d)(2) of the 1974 Act (19 U.S.C. 2462(d)(2)) provides that, after complying with the requirements of section 502(f)(2) of the 1974 Act, the President shall withdraw or suspend the designation of any country as a beneficiary developing country if, after such designation, the President determines that as the result of changed circumstances such country would be barred from designation as a beneficiary developing country under section 502(b)(2) of the 1974 Act.

Pursuant to section 502(d) of the 1974 Act, having considered the factors set forth in section 502(b)(2)(G), I have determined that it is appropriate to suspend Bangladesh's designation as a beneficiary developing country under the GSP program because it is not taking steps to afford internationally recognized worker rights to workers in the country.

BARACK OBAMA.

THE WHITE HOUSE, *June 27, 2013.*

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 5 o'clock and 22 minutes p.m.), the House stood in recess.

□ 1800

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mrs. WALORSKI) at 6 p.m.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, June 27, 2013.

Hon. JOHN A. BOEHNER,
Speaker, H–232 U.S. Capitol, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on June 27, 2013 at 5:28 p.m.:

That the Senate agreed to S. Res. 189.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

OFFSHORE ENERGY AND JOBS ACT

The SPEAKER pro tempore. Pursuant to House Resolution 274 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 2231.

Will the gentleman from Illinois (Mr. HULTGREN) kindly resume the chair.

□ 1802

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 2231) to amend the Outer Continental Shelf Lands Act to increase energy exploration and production on the Outer Continental Shelf, provide for equitable revenue sharing for all coastal States, implement the reorganization of the functions of the former Minerals Management Service into distinct and separate agencies, and for other purposes, with Mr. HULTGREN (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole rose earlier today, a request for a recorded vote on amendment No. 7 printed in part B of House Report 113–131 offered by the gentleman from Virginia (Mr. RIGELL) had been postponed.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in part B of House Report 113–131 on which further proceedings were postponed, in the following order:

Amendment No. 2 by Mr. HASTINGS of Florida.

Amendment No. 4 by Mr. FLORES of Texas.

Amendment No. 5 by Mr. CASSIDY of Louisiana.

Amendment No. 7 by Mr. RIGELL of Virginia.

The Chair will reduce to 2 minutes the minimum time for any electronic vote after the first vote in this series.

AMENDMENT NO. 2 OFFERED BY MR. HASTINGS OF FLORIDA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Florida (Mr. HASTINGS) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 188, noes 233, not voting 13, as follows:

[Roll No. 295]

AYES—188

Andrews	Clay	Enyart
Barber	Cleaver	Eshoo
Beatty	Clyburn	Esty
Becerra	Cohen	Farr
Bera (CA)	Connolly	Fattah
Bishop (GA)	Conyers	Fitzpatrick
Bishop (NY)	Cooper	Foster
Blumenauer	Courtney	Frankel (FL)
Bonamici	Crowley	Fudge
Brady (PA)	Cummings	Gabbard
Braley (IA)	Davis (CA)	Garamendi
Brown (FL)	Davis, Danny	Garcia
Brownley (CA)	DeFazio	Grayson
Bustos	DeGette	Green, Al
Butterfield	Delaney	Gutiérrez
Capps	DeLauro	Hahn
Capuano	DelBene	Hanabusa
Carney	Deutch	Hastings (FL)
Carson (IN)	Dingell	Heck (WA)
Cartwright	Doggett	Higgins
Castor (FL)	Doyle	Himes
Castro (TX)	Duckworth	Hinojosa
Chu	Edwards	Holt
Cicilline	Ellison	Honda
Clarke	Engel	Horsford

Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Reichert
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOES—233

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Black
Blackburn
Bonner
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunnelee
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Reed
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—13

Bass
Bishop (UT)
Campbell
Cárdenas
Fincher
Grijalva
Markey
McCarthy (NY)
McMorris Rodgers
Nunes
Schiff
Smith (WA)
Young (FL)

□ 1827

Messrs. SAM JOHNSON of Texas, KING of Iowa, MARCHANT, WITTMAN, GRAVES of Missouri, SHUSTER, and GOSAR changed their vote from ''aye'' to ''no.''

Messrs. ANDREWS and SIRES changed their vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated for:

Mr. SCHIFF. Mr. Chair, on rollcall No. 295, had I been present, I would have voted "aye."

AMENDMENT NO. 4 OFFERED BY MR. FLORES

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Texas (Mr. FLORES) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 233, noes 190, not voting 11, as follows:

[Roll No. 296]

AYES—233

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Boustany
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunnelee
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—190

Andrews
Barber
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Fitzpatrick
Foster
Frankel (FL)
Fudge
Gabbard
Garamendi
Garcia
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Markey
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney

Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—11

Bass
Campbell
Fincher
Hartzler
McCarthy (NY)
McMorris Rodgers
Nunes
Renacci
Smith (WA)
Stewart
Young (FL)

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining on this vote.

□ 1832

So the amendment was agreed to.

The result of the vote was announced as above recorded.

Stated for:

Mr. RENACCI. Mr. Chair, on rollcall No. 296 I was unavoidable detained and missed the vote. Had I been present, I would have voted "yes."

AMENDMENT NO. 5, AS MODIFIED, OFFERED BY MR. CASSIDY

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Louisiana (Mr. CASSIDY) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 238, noes 185, not voting 11, as follows:

[Roll No. 297]

AYES—238

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Bonner
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Castro (TX)
Chabot
Chaffetz
Clyburn
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Doggett
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffin (AR)
Guthrie
Hall
Hanabusa
Hanna
Harper
Harris
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Hinojosa
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jackson Lee
Jenkins
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Larson (CT)
Latham
Latta
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
Meadows
Meehan
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunnelee
O'Rourke
Olson
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sessions
Sewell (AL)
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Valadao
Veasey
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—185

Andrews
Barber
Barrow (GA)
Beatty
Becerra
Bera (CA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Chu
Cicilline
Clarke
Clay
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Garamendi
Garcia
Gibson
Grijalva
Grimm
Gutiérrez
Hahn
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Markey
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Roybal-Allard
Ruiz
Runyan
Ruppersberger
Rush
Ryan (OH)
Ryan (WI)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Sensenbrenner
Serrano
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Tierney
Titus
Tonko
Tsongas
Upton
Van Hollen
Vargas
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Westmoreland
Wilson (FL)
Yarmuth

NOT VOTING—11

Bass
Campbell
Cleaver
Fincher
Griffith (VA)
Hartzler
McCarthy (NY)
McMorris Rodgers
Nunes
Smith (WA)
Young (FL)

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining on this vote.

□ 1836

So the amendment, as modified, was agreed to.

The result of the vote was announced as above recorded.

AMENDMENT NO. 7 OFFERED BY MR. RIGELL

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Virginia (Mr. RIGELL) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 234, noes 191, not voting 9, as follows:

[Roll No. 298]

AYES—234

Aderholt
Alexander
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)

Duncan (TN)
Ellmers
Farenthold
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Hinojosa
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lankford
Latham
Latta
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Napolitano
Neugebauer
Noem
Nugent
Nunnelee
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—191

Andrews
Barber
Barrow (GA)
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Garamendi
Garcia
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Lance
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Markey
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Runyan
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—9

Bass
Campbell
Fincher
Hartzler
McCarthy (NY)
McMorris Rodgers
Nunes
Smith (WA)
Young (FL)

□ 1840

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining on this vote.

So the amendment was agreed to.

The result of the vote was announced as above recorded.

PERSONAL EXPLANATION

Mrs. MCMORRIS RODGERS. Mr. Chair, on rollcall No. 291 on H.R. 1613, on Agreeing to the Amendment offered by Mr. GRAYSON of Florida, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "nay."

Mr. Speaker, on rollcall No. 292 on H.R. 1613, on Motion to Recommit, the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "nay."

Mr. Speaker, on rollcall No. 293 on H.R. 1613, on Passage, the Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "yea."

Mr. Speaker, on rollcall No. 294 on H.R. 1864, on Motion to Suspend the Rules and Pass, to amend title 10, United States Code, to require an Inspector General investigation of allegations of retaliatory personnel actions taken in response to making protected communications regarding sexual assault, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "yea."

Mr. Speaker, on rollcall No. 295 on H.R. 2231, on Agreeing to the Amendment offered by Mr. HASTINGS of Florida Amendment No. 2, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "nay."

Mr. Speaker, on rollcall No. 296 on H.R. 2231, on Agreeing to the Amendment offered by Mr. FLORES of Texas Amendment No. 4, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "yea."

Mr. Speaker, on rollcall No. 297 on H.R. 2231, on Agreeing to the Amendment offered by Mr. CASSIDY of Louisiana Amendment No. 5, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "yea."

Mr. Speaker, on rollcall No. 298 on H.R. 2231, on Agreeing to the Amendment offered by Mr. RIGELL of Virginia Amendment No. 7, I am not recorded because I was absent due to a death in the family. Had I been present, I would have voted "yea."

Mr. HASTINGS of Washington. Mr. Chairman, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. MESSER) having assumed the chair, Mr. HULTGREN, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 2231) to amend the Outer Continental Shelf Lands Act to increase energy exploration and production on the Outer Continental Shelf, provide for equitable revenue sharing for all coastal States, implement the reorganization of the functions of the former Minerals Management Service into distinct and separate agencies, and for other purposes, had come to no resolution thereon.

STUDENT LOANS

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, House Republicans have acted to stop Federal student loan interest rates from doubling on July 1. Our assignment is turned in, while the President and his Democrat Senate are registering an incomplete.

Yesterday, I spoke with high school and college students about our Smarter Solutions for Students Act that removes the distraction of politics from the equation and permanently settles how interest rates are set.

The President requested a solution much like ours, but his own party in the Senate refused to pass the legislation.

July 1 is coming, and students know that means interest rates will double if the President doesn't lead and the Senate doesn't act. Political procrastination is what we are seeing from the President and Senate. It is a good thing they sell Red Bull in the cafeteria, because a Senate all-nighter on student loans might require some.

SUPREME COURT DECISION ON VOTING RIGHTS ACT

(Ms. LEE of California asked and was given permission to address the House for 1 minute.)

Ms. LEE of California. Mr. Speaker, I join with the Congressional Black Caucus to talk about this week's Supreme Court decision on the Voting Rights Act, which is a devastating blow to one

of our most fundamental rights, and that is the right to vote.

I was born and raised in Texas and I vividly remember the days of Jim Crow, segregation, and the poll tax. The Supreme Court decision could turn the clock back to these very, very tragic days in our American history.

It is truly tragic how the majority of the Court has simply refused to acknowledge these real threats to our voting rights and turned its back on the law that people fought and died for.

Now is the time for urgent, bipartisan congressional action. We must defend the heart and soul of this democracy.

As our drum major for justice, Dr. Martin Luther King, once said, ''Voting is the foundation stone for political action.''

I am reminded of this every year when I march across the Edmund Pettus Bridge in Selma, Alabama, with our great warrior, Congressman JOHN LEWIS, who really sacrificed so much for justice and for freedom.

Truly, our votes are the bedrock of our democracy.

BORDER SECURITY

(Mrs. LUMMIS asked and was given permission to address the House for 1 minute.)

Mrs. LUMMIS. Mr. Speaker, today in the Oversight and Government Reform Committee hearing on border security, we heard from border officials that the border is not secure, or more specifically we heard no response when we asked: Is the border secure or not? And they would not answer ''yes'' and they would not answer ''no.''

The American people have been asking for a secure border before we engage in comprehensive immigration reform for years. The fact that this administration and, quite frankly, previous administrations have not secured the border, makes it premature to address the Senate bill here in the House.

Comprehensive immigration reform must be preceded by a secure border.

□ 1850

VOTING RIGHTS ACT

(Ms. KELLY of Illinois asked and was given permission to address the House for 1 minute.)

Ms. KELLY of Illinois. Mr. Speaker, I rise today to urge my colleagues to right a shameful wrong committed by the Supreme Court and update the Voting Rights Act to restore an essential protection against voter discrimination.

By gutting the Voting Rights Act, the Court greatly dishonored those who fought and died to protect the rights of the disenfranchised, who continue to face pervasive voting discrimination. Recent efforts in parts of the country to impose voter ID laws, to limit access to early voting and to gerrymander districts to hinder the minority vote serve as irrefutable proof that voter discrimination remains a real threat to our democracy. The Voting Rights Act prevented discrimination in these cases, something it can't do as it exists now.

We must act immediately to fix the gaping hole in this vital protection of the right to vote. Each day that passes without a strong Voting Rights Act is another day justice is deferred. We have a moral imperative to act swiftly in a bipartisan manner to get this done. I urge my colleagues to act now.

VOTING RIGHTS ACT

(Mr. CARSON of Indiana asked and was given permission to address the House for 1 minute.)

Mr. CARSON of Indiana. Mr. Speaker, earlier this week, the Supreme Court made a decision that threatens the right to vote for millions of Americans.

With this misguided decision, leaders in States with a history of discrimination can proceed unimpeded with plans to obstruct the civil rights of American citizens. Whether through gerrymandering or voter ID laws, like the one in my home State of Indiana, efforts are being made to restrict the voting rights of minorities, low-income families and seniors.

I stand today to ask my colleagues in Congress to recognize the importance of preserving the right to vote for all Americans, regardless of background. As elected Representatives, we understand better than anyone that an open, equitable process is the very foundation and definition of our democracy.

Mr. Speaker, the Supreme Court called on Congress to act for the good of our country and our constituents. We must act boldly and quickly.

SAVE THE VOTING RIGHTS ACT OF 1965

(Mr. LEWIS asked and was given permission to address the House for 1 minute.)

Mr. LEWIS. Mr. Speaker, I ask—I beg—of all of our colleagues, Democrats and Republicans, to come together and save the Voting Rights Act of 1965.

I wish somehow, in some way, that members of the United States Supreme Court could come and walk in my shoes. I have seen hundreds and thousands of people stand in a movable line, asked to count the numbers of bubbles in a bar of soap, the number of jellybeans in a jar. I've seen too many of my sisters and brothers denied the right to register, denied the right to vote, simply because of the color of their skin.

We've come too far. We've made too much progress, Mr. Speaker, and we cannot go back—for the vote is precious. It is almost sacred. It is the most powerful, nonviolent tool we have in a democratic society, and no one, but no one—African American, Latino, White, Asian American, Native American—should be denied the right to participate in the democratic process. So let's come together and do what we should do, and what another generation of elected officials did.

STUDENT LOAN RATES

(Mr. BARBER asked and was given permission to address the House for 1 minute.)

Mr. BARBER. I am deeply discouraged that as we face the impending doubling of interest rates for student loans that House leadership will send us home tomorrow without a solution.

More than 7 million students, former students and their families in the United States, including more than 450,000 in my home State of Arizona, rely on these loans to help pay for college. Federal student loans are a critical tool for ensuring that educational opportunities remain open to as many Americans as possible.

Higher education is a critical economic engine for my State and for the Nation. Workers age 25 and older, with a bachelor's degree, we know, earn 63 percent more than those with a high school diploma. These differences will only increase as the world economy becomes more competitive and technologically advanced.

I urge my colleagues on both sides of the aisle to stay here, not go home tomorrow, but stay here and work together to prevent student loan interest rates from doubling in 4 days. D-day is July 1, and we must act now to support the aspiring young Americans to get their college educations.

BALDWIN STREET MIDDLE SCHOOL, A SCHOOL TO WATCH

(Mr. HUIZENGA of Michigan asked and was given permission to address the House for 1 minute.)

Mr. HUIZENGA of Michigan. Mr. Speaker, I appreciate the opportunity today to do a little bragging about Baldwin Street Middle School, which came to visit me today from Hudsonville, Michigan. They came to brag about their excellence and success as being designated a School to Watch.

That's a national program that goes in and identifies middle schools around the country that are very focused on innovation and success but also on improvement. Every single day, they are going into that building as administrators and as teachers to improve, not only the students, but themselves. And I think that is what we need more of here in education in the United States. They were also very proud to know that I had a staff member, Nate Bult, who is an alumni of that middle school. They were very, very proud to see him and the success that he has been able to have.

So, again, I just want to congratulate Baldwin Street Middle School in Hudsonville, Michigan, for their dedication to the students of the Second

District and for their willingness to put the students and innovation above any of themselves as they serve our community.

VOTING RIGHTS ACT

(Mr. HORSFORD asked and was given permission to address the House for 1 minute.)

Mr. HORSFORD. Let me just say it's good to see the freshman class president from the other side at the Speaker's podium this evening.

Mr. Speaker, on Tuesday, the Supreme Court struck down critical parts of the Voting Rights Act, and I, like my colleagues, am deeply disappointed in this decision.

Justice Scalia said the Voting Rights Act is a ''racial entitlement.''

Voting is not a racial entitlement. It is a right for every eligible voting age citizen. It is an American entitlement.

Voter suppression tactics have become more sophisticated, but they have not disappeared. The Voting Rights Act blocked more than 1,000 voting law changes between 1982 and 2006, and last year alone, the Voting Rights Act stopped a voter ID law in Texas and a Florida law that eliminated early voting days.

Now it has fallen to Congress to safeguard our most sacred right, and I will work with anyone from either party who understands the need to protect this fundamental right. I urge this body to work together to fix the Voting Rights Act.

VOTING RIGHTS ACT

(Ms. SEWELL of Alabama asked and was given permission to address the House for 1 minute.)

Ms. SEWELL of Alabama. Mr. Speaker, I stand today to join with my colleagues in expressing my deep disappointment in the Supreme Court's decision on the Voting Rights Act. I stand not just as a Member of Congress but as a Member of Congress who represents Selma, Alabama. I stand not only as a Member who represents Selma, Alabama, but also as a native of Selma.

I can tell you that, as I think about the Edmund Pettus Bridge each and every time I go home, I think about JOHN LEWIS and of so many foot soldiers who dedicated their lives for the right to vote. I know that I would not be able to stand in this well had it not been for their fight.

So I implore my colleagues: we as elected officials cannot afford to not protect the right to vote. It is sacred, our right to vote. I think that the only way that we, with dignity, can continue as elected officials is if we protect each and every person's right to vote in America. So I implore us to work together to figure out a coverage formula that will work. I also urge all of us to remember what it's like to see JOHN LEWIS in this well. JOHN LEWIS is the face of voting rights in America. I ask us to work together to figure out a formula to protect the right to vote.

□ 1900

INVESTIGATING POSSIBLE UNETHICAL ACTIVITIES

(Mr. SCALISE asked and was given permission to address the House for 1 minute.)

Mr. SCALISE. Mr. Speaker, we've had reports that HHS Secretary Sebelius has been soliciting funds from private companies to go and promote the President's health care law. In fact, there's a committee in Congress that's investigating these reports and how it would either potentially break the law or clearly violate ethics laws. In addition to that, now we're seeing reports that the Obama administration is pressuring the NFL and the NBA to go and promote their health care law.

It is unethical for the Obama administration to pressure organizations that they regulate to try to promote their policies. So if Secretary Sebelius or any other Federal administrator is using their power in the regulatory structure to go and pressure organizations to promote their policies, they need to stop it right now, Mr. Speaker; and we need to continue in the House our oversight investigations into any kind of unethical activities like those that are being reported.

STUDENT LOAN RATES

(Ms. SHEA-PORTER asked and was given permission to address the House for 1 minute.)

Ms. SHEA-PORTER. Education is the key to prosperity in this country. Families know that. That's why they save up for college for their students, but the cost of college has become so expensive that they've had to borrow money. The interest rates now are absolutely ridiculous, but they're about to get even worse on July 1 because Congress has not acted.

Families across our country and in my State of New Hampshire are depending on Congress to fix this problem. We cannot allow these rates to double. These families cannot afford that. I am calling on Congress to stay here until we settle this, to think about those families across this country, put off that vacation, stay right here and work it out.

VOTING RIGHTS ACT

(Mr. GOHMERT asked and was given permission to address the House for 1 minute.)

Mr. GOHMERT. Mr. Speaker, my friends across the aisle obviously are concerned about section 4 of the Voting Rights Act being struck down.

We debated the extension of the Voting Rights Act in the Judiciary Committee, and I have great respect for then-Chairman JOHN CONYERS. And as I mentioned to him privately, as well, there's no way it's going to avoid being violative of equal protection when you have, as was determined in 2009, five of the six original States that now have less racial disparity than the rest of the country and the worst racial disparity is in Massachusetts. You can't just cram a punishment down on States just because you have a majority when great work has been done by the Voting Rights Act. It has done a good thing, and it was time for a new formula so we could capture the States that showed such racial disparity.

I look forward to working with my friends across the aisle to subjecting Massachusetts and any other violators—I know there aren't any others that bad—to section 5, and I'm sure we can get that done.

VOTING RIGHTS ACT

(Mr. CLEAVER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CLEAVER. Mr. Speaker, my first babysitter was the Reverend Noah Albert Cleaver, my great-grandfather. He took care of me and my oldest sister every day after preschool. He lived to be 103 years old. I was in college when he died.

My grandpa, born in Cherokee County, Texas, who died in Ellis County, Texas, never voted, not one time in 103 years because they had to pay $3.50 in a poll tax.

When the Supreme Court ruled on Tuesday saying that because of progress we don't need the voting rights any more, it's like having a cruise ship require everyone wear some kind of life vest. The ship goes down, everybody is saved, and they say, Well, because everybody was saved, we don't need life vests any more. It was the life vests that saved them. It was the Voting Rights Act that caused the voter participation to rise.

I will not insult the death and life of my great-grandpa by not being as active as I can to reinstitute section 4 of the Voting Rights Act.

VOTING RIGHTS ACT

(Ms. BROWN of Florida asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. BROWN of Florida. Mr. Speaker, I want to thank my colleagues for coming to the floor to discuss what I think is one of the most activist Court decisions probably in my lifetime.

When I was elected to Congress in 1992, it was the first time an African American won an election in Florida in 129 years in this body. And I can't stand in this body and not think about what happened in the 2000 election when we had a coup d'etat in this country, when 27,000 voters from my districts, Districts 7, 8, 9 and 10, their ballots were not counted and were thrown out because of poor equipment.

Let's don't talk about what happened 4 years later when Jeb Bush paid $4

million to a company that took all of the people off the ballot that were not even felons.

In this recent election with this latest Governor, what did he do? They did away with Sunday voting because African Americans and others vote on Sunday.

So our work is cut out for us. The legislature for the first time put together a program that clearly lays out what we need to do to move forward. So I urge my colleagues to move forward in making sure that we reinstate section 4 of the Voting Rights Act.

VOTING RIGHTS ACT

(Mr. CUMMINGS asked and was given permission to address the House for 1 minute.)

Mr. CUMMINGS. Mr. Speaker, it is with great sadness that I stand here today to remark on the Supreme Court's terrible decision to roll back one of the most effective safeguards to Americans' fundamental right to vote. The Court's decision ignores the current reality that voter suppression is alive and well in the United States. We saw indisputable evidence of its presence just last year. We saw attempts to implement discriminatory and unnecessary voter ID laws. We saw attempts to shorten early vote periods that have had a significant impact on minority voters.

The ball is now in Congress' court. The Senate Judiciary Committee is already taking action to restore essential protections for minority voters, and I call on Speaker BOEHNER to exercise true leadership in the House.

Ladies and gentlemen, this is our watch, and we must guard our rights for ourselves and for generations yet unborn. We must act swiftly and decisively in a bipartisan manner as we did in 2006 to create a new formula to ensure that the Voting Rights Act can continue to be a powerful tool to protect voters from discrimination.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will recognize Members for Special Order speeches without prejudice to the possible resumption of legislative business.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has agreed to a concurrent resolution of the following title in which the concurrence of the House is requested:

S. Con. Res. 19. Concurrent resolution providing for a conditional adjournment or recess of the Senate and an adjournment of the House of Representatives.

HONORING JOHN DINGELL

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentleman from Maryland (Mr. HOYER) is recognized for 60 minutes as the designee of the minority leader.

GENERAL LEAVE

Mr. HOYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the subject of my Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Maryland?

There was no objection.

□ 1910

Mr. HOYER. Mr. Speaker, I am very pleased and honored to rise tonight to lead a Special Order which honors a great American, a great colleague, and a great legislator whose service to this country and to this institution have been unmatched. It is appropriate that we rise tonight—appropriate particularly in light of the action that was taken and has been discussed today on the Voting Rights Act.

Mr. Speaker, let me observe tangentially that the gentleman from Texas said something about cramming something down somebody's throat—the Voting Rights Act. I will remind my colleagues that it was passed 388–23 in this House and 98–0 in the Senate in 2006.

Let me say we honor a man tonight who not only voted for the Voting Rights Act in 1965, but has voted for every reauthorization of that act since that time. JOHN DINGELL came to Congress as a Member in 1955, winning a special election to fill the seat held by his father, John Dingell, Sr., who himself served from 1933–1955. JOHN DINGELL and his father have represented the people of southeastern Michigan in this House for eight decades. What an extraordinary testimony to the faith of their voters and the constancy and loyalty of their representation.

But very frankly, ladies and gentlemen, JOHN'S story in Congress actually began earlier than 1955. It really began in 1938, which is to say JOHN DINGELL, a year before I was born, and I'm one of the older Members. He came here as a young House page. We don't have the pages anymore, but nearly all of us remember seeing the pages, wide-eyed, sitting along the desk up front, sitting in the back, listening to speeches and watching floor proceedings as they waited to carry messages. That was JOHN DINGELL three-quarters of a century ago. The House of Representatives has been part of his life, and he has been part of it, for 75 years.

On December 8, 1941, a day that will live in infamy, 15-year-old JOHN DINGELL was in this Chamber as President Franklin Delano Roosevelt stood at the rostrum and asked Congress to declare war against Japan, whose forces had just attacked Pearl Harbor on that day to which he referred as a ''day that will live in infamy.'' President Roosevelt spoke these words:

With the unbounded determination of our people, we will gain the inevitable triumph.

Throughout his time in this House, as a page, as the son of a Congressman, as a Member himself, as a committee chairman, and as a leader on issues of national importance, JOHN DINGELL has taught us, who have served with him, that America's triumph is only inevitable if we bring to bear the unbounded determination of which President Roosevelt spoke.

In JOHN DINGELL's record 57 years and 188 days as a Member of Congress, he has approached our greatest challenges with his own unrivaled determination. In every Congress, for half a century, he continued his father's work of introducing legislation to expand health care coverage to all Americans, even in the many years when no one thought it possible to do so. But JOHN DINGELL stuck with it.

He stuck with it and eventually had the opportunity to help shape and vote for the Affordable Care Act, which will extend to millions and millions of Americans access to affordable, quality health care. Millions of Americans owe JOHN DINGELL a debt of gratitude for his faithfulness and the advocacy of their best interest.

JOHN, in fact, was presiding over this House when it enacted Medicare in 1965. I told you he voted for the Voting Rights Act in 1965, but he presided over the adoption of Medicare. And he helped write the Endangered Species Act, the Safe Drinking Water Act, and the 1990 Clean Air Act, among many historic pieces of legislation that he has authored, fought for, and seen adopted.

But JOHN has done more in this Chamber than shepherd key legislation to passage. He has been an unwavering voice for the working families and small business owners not just of southeastern Michigan, but of all America. He has been a giant in promoting and preserving the great American automobile industry and the millions of jobs that rely on it. He has been a mentor and a friend to me and so many current and former Members of the House.

My colleagues, JOHN DINGELL is a living link to an era when bipartisan compromise was a practiced reality, not just a slogan, not just something we say we're going to do, but something that was actually done. Members looked to JOHN DINGELL for his quick wit, his tenacious spirit, his extraordinary knowledge of legislation, and of the history of this House, and, yes, his warm heart.

JOHN loves this House and has always worked to preserve its collegiality and its good order. His unrivaled skill as a legislator is matched by his sense of decency, his integrity, and his devotion to country. And he has never lost that determination that was sparked as FDR called our Nation to arms and to service. JOHN DINGELL took up arms. He served in the United States Army from 1944–1946 as a second lieutenant

who prepared to take part in the first wave of a planned invasion of Japan. Fortunately, that invasion did not occur; but JOHN DINGELL, as always, was ready, willing, and able.

JOHN DINGELL, my colleagues, as all of you know, has served America and its people for most of his life. But it is not the length of his service that we honor alone. It is even more importantly the quality of his service, the depth of his commitment, and the strength of his character that we honor tonight, and JOHN DINGELL who we honor always.

We are all better Representatives because of his example. I congratulate my friend on 75 years—75 years—in the House of Representatives, 57 of them as a Member. JOHN DINGELL has, with diligence, faithfulness, extraordinary skill and judgment, courage and fidelity to God and country, lived up to President Roosevelt's words. He has served with unbounded determination, and he has led a triumphant life. What an example for us all.

A triumphant life not because he won every fight, but because he never gave up. He never was unfaithful to his oath of office. He was never unfaithful to his pledge to support working men and women and, yes, everybody in this country.

My colleagues, JOHN DINGELL today is much like Tennyson's Ulysses who said:

> We are not now that strength which in old days moved heaven and Earth. That which we are, we are; on equal temper of heroic hearts, made weak by time and fate, but strong in will to strive, to seek, to find, and not to yield.

JOHN DINGELL, he pledged to his people when first elected to strive, to seek, to find, and not to yield.

□ 1920

And he has, indeed, done all of those. He has kept the faith, and we expect him to be keeping the faith for years to come, for that is the spirit of my friend, my colleague, a great legislator, a great American, JOHN DINGELL of Michigan.

At this time, Mr. Speaker, I yield back so Mr. BARROW can have the remaining balance of my time.

HONORING JOHN DINGELL

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentleman from Georgia (Mr. BARROW) is recognized for the remainder of the hour as the designee of the minority leader.

Mr. BARROW of Georgia. Mr. Speaker, I rise today to honor my friend, Representative JOHN DINGELL, who, this month became the longest-serving Member of Congress in our Nation's history.

Representative DINGELL has taught literally thousands of Members of Congress how to do good things for the people we represent, a legacy he continues to build in his 30th term in the people's House.

I've had the honor to serve with Mr. DINGELL on the House Energy and Commerce Committee. As we all know, oftentimes our schedules don't allow us to stick around for an entire committee meeting, but I always make it a point to stay until Mr. DINGELL is finished. He is such a skilled cross-examiner that, by the time he's finished, we've heard the only questions that are worth asking, and we've got the only answers we're ever likely to get.

JOHN DINGELL's ability to reach across the aisle and find compromise is the cure for what ails this place, and I only hope that thousands more will get the opportunity to learn from the master.

I congratulate Mr. DINGELL on this historic milestone and for his over 57 years of service to our country.

At this time, Mr. Speaker, I'm pleased to yield to the gentleman from Michigan (Mr. LEVIN).

Mr. LEVIN. Well, Mr. DINGELL, there are many aspects of life that I could comment on, for example, friendship.

Our families have known each other well over 75 years, going back to the relationship between your father and some of my relatives. It's been a long time. And I could talk about the friendship between yourself and your wife, Debbie, and our family for part of that time.

I could also talk about your accomplishments, and there have been so many. I remember when I first came, how we worked to clean up the Rouge River; and without your efforts, I think today it would be more like it was than it now is.

We could talk about health care and your historical role. We could talk about broader issues of clean water and clean air. We could talk about your devotion to the auto industry of this country and what would have happened all these years except for your dedication. And there are more accomplishments that I could talk about.

But instead, let me just say a few words about what struck me as you spoke a few weeks ago—was it?—as we were celebrating your tenure. And you spoke at some length. The rumor is that Debbie, a few times, said, cut it a bit shorter, but you went on; and the reason I think you did is what I want to speak about.

You began to talk about your years here, not in terms of the number of years, but what you have seen about this institution. And I think all of us who were there were glad that you continued to talk, because you've been here 55 years as a Member, and you've seen the changes, you've seen how there was a greater sense of working together in this place.

You saw and were a key part of sure differences and, with you, sometimes sharp questioning, but there was a greater feel of common purpose in this unparalleled institution, and you spoke how we have lost some of it.

So that's really what I wanted to focus on, because if anybody can speak about the need for all of us who work here and all of us who are Members here, if there's anybody who can remind us of how the importance of this institution should determine how we relate to each other, it's JOHN DINGELL.

And I must confess, as I listened to your words, I felt that there had been something lost and that you reminded us it was vital that we regain. And it was interesting, you didn't really want to talk about anything else except your love for Debbie and this institution.

So you, in a sense, are Mr. Institution. And your belief in it, your belief in our need to remind ourselves as to how we must try to work together, how we must try to relate, how we must try to take our basic principles—and you really have them—to use them not as a wall, but as an opportunity to proceed.

So we owe you a lot. Your constituents owe you a lot, though you'll deny it. But all of us, I think, owe you immensely for the years you have served here, for your dedication, for your honesty, and for your reminding people in this institution why it was founded.

In that sense, I think you are the exemplar of what sparked this creation in its first place. Keep going, keep reminding, and I hope we'll begin to follow better than we have.

Mr. BARROW of Georgia. I thank the gentleman.

Mr. Speaker, at this time I am pleased to yield to the gentleman from Texas (Mr. GENE GREEN).

Mr. GENE GREEN of Texas. Mr. Speaker, Members, I rise tonight to honor a man that I'm proud to call a good friend and a mentor, JOHN DINGELL. Recently, JOHN became the longest-serving Member of the Congress, serving for 57 years, 5 months, and 26 days, surpassing the service record of the late Senator Robert C. Byrd.

JOHN has a storied career in the House of Representatives, and you'll hear a lot about that tonight and already have. He has served with 11 Presidents, congressional icons like Speaker Sam Rayburn from Texas, and had the opportunity to vote on landmark legislation like the 1964 Civil Rights Act.

He is the ultimate legislator for both Michigan and for America. He's also played an integral part in groundbreaking legislation, like the creation of the Medicare program, the National Environmental Policy Act, the Endangered Species Act, and the Clean Air Act, just to name a few.

I always think of him as chairman, though. Since 1996 I've been fortunate to serve on the House Energy and Commerce Committee, with JOHN as our committee leader for much of that time. While most associate JOHN's leadership on the committee with his tenacious government watchdog activities, I saw a leader that did not fall victim to the partisan politics that define

the current House, but instead epitomized what we are here to do—the people's business.

□ 1930

He's a true legislator. It has truly been an honor to serve with him and learn from him, and, most importantly, to call him friend. He has a partner in his wonderful wife, Deborah, and a friend who, like my wife, Helen, allows us to serve our respective districts.

JOHN, I look forward to continuing our friendship and our work together.

Mr. BARROW of Georgia. I thank the gentleman.

Mr. Speaker, at this time I yield to the gentleman from Massachusetts (Mr. MARKEY).

Mr. MARKEY. I thank the gentleman from Georgia for holding this Special Order. It is truly right and fitting that we honor this legislative giant, this man who represents everything that this institution is all about. I have served with Mr. DINGELL for 37 years on the Energy and Commerce Committee. It has been an honor every day to serve with him.

I want to tell you two stories about Mr. DINGELL. A few years ago, the Energy and Commerce Committee was made a part of a conference committee that was going to create something called Farmer Mac, which was a new security that was going to be issued. Mr. DINGELL and I were not happy that Freddie Mac and Fannie Mae had been exempted from the Securities and Exchange Commission jurisdiction. We were not happy.

And so I arrived a little bit late to this conference, which was an Agriculture Committee conference with the Senate. I arrived and I sat next to Mr. DINGELL. At the time, I was the chairman of the Securities Subcommittee of the Energy and Commerce Committee. Mr. DINGELL had been doing all the negotiating. He turned to me about a half hour into the conference and just wrote out a note and passed it over to me. I read the note, and Mr. DINGELL got up and left the room. So I continued to negotiate on behalf of Mr. DINGELL and the Commerce Committee.

At the end of the day, we won everything that we were looking for. Farmer Mac securities were going to be regulated by the Securities and Exchange Commission. It wasn't going to be like Freddie Mac. It wasn't going to be like Fannie Mae. And so at the end of the conference, I just took the piece of paper and crumbled it up and threw it into the wastepaper basket and I walked out of the conference room.

About an hour later, we were out on the House floor and Kika de le Garza, chairman of the Agriculture Committee, came over to me and he had the piece of paper that was crumbled. He had actually gone into the wastepaper basket to see what was on the note that Mr. DINGELL had passed to me. And here is what the note says, as Kika de le Garza is reading it to me. It said:

Mr. Markey, we have just won the first two out of three issues with the Agriculture Committee. Do not give an inch to them on the third issue.

And we did not. Chairman de le Garza looked at me and said, You Commerce Committee guys, you're not like the other people here in the House.

And that was JOHN DINGELL. It was an important issue. It was ensuring that the Securities Exchange Commission would in fact monitor these securities.

By the way, would we have not been better off all along than allowing these agencies to escape the scrutiny which they deserved?

And so that then brings me to the second little story. The seven most feared words ever uttered in Congress are words uttered by JOHN DINGELL as a witness is sitting at the table waiting for questioning, and those seven feared words are, ''I am just a poor Polish lawyer.'' Because that's the beginning of a very bad day for a witness as Mr. DINGELL asks for explanations on detailed questions without any mercy shown to an unprepared witness.

For me, it's an honor to be here to honor JOHN DINGELL, who is still at the top of his game, still able to perform those same type of cross-examinations of witnesses as they tremble, knowing that this legislative giant is about to cross-examine.

I thank him for his service. I thank the wonderful Debbie for giving him to us for his service here. I thank him for the honor of being able to serve on that committee for 37 years with a legislative legend who will go down in history.

One of the first things he wants you to know when you got on that committee was that there was a map of the entire world—the globe—over his head; and he just wanted us to know, as we got on the committee, that that was the jurisdiction of the committee—the entire planet. And that is how he acted as that giant over all those years.

It was an honor to have served with you.

Mr. BARROW of Georgia. I want to thank the gentleman from Massachusetts and congratulate him on the beatification he's received by the voters of his State as he's about to join the other body. I wish him every success in the Senate, to which I can add that the next most feared seven words uttered to any witness is, ''Please answer the question 'yes' or 'no.' ''

At this time, I am pleased to yield to the gentleman from New York (Mr. TONKO).

Mr. TONKO. Thank you to the gentleman from the great State of Georgia.

It's an honor to lend my voice to that of several of my colleagues as we pay tribute to Representative JOHN DINGELL from the great State of Michigan. I am only in my third term in the House of Representatives so I can't profess to have known JOHN DINGELL as long as most of my colleagues who have known this great gentleman for quite some time. But as anyone serving in this House soon learns, it doesn't take very much time to know JOHN DINGELL and to assess the greatness of this individual, one who carries himself with great humility, which I believe is his hallmark of representation.

His identity with common folks through our many conversations about the richness of the Polish culture and the embarking upon the American Dream of immigrants of that persuasion and of all persuasions who have tethered that dream for the betterment of individual and family opportunities is, I think, what drives this individual. His motivation to be a public servant is obvious. It's well-documented by his many years of service—57 years in this House and dating back to 1938 as a page.

His service to this Nation through the military, all of that driven, I believe, by the great, deep-rooted sense of opportunity that is borne by this Nation to many of those immigrants who traveled here and then developed that dream through generations to follow.

JOHN DINGELL is a person of greatness and a person whose institutional memory of so many issues in this House is called upon time and time again.

□ 1940

As a recently appointed member to the Energy and Commerce Committee, I marvel at the sense of involvement that he has had and his recall on the development of so many bills, bills that speak to the protection of our environment, making certain that the air we breathe, the water we drink, the soil that we cultivate is there for us for a better future. That resulted from JOHN DINGELL's passion.

His involvement in making certain that the auto industry was not only saved, but made stronger, a great commitment by JOHN DINGELL. His incorporation of the many acts of concern and compassion for those who require access and affordability to quality health care, well documented again; driven by the roots established by his dad that enabled him to bang that gavel when we were passing the Affordable Care Act in 2010.

So many, many stories in just a short time that I learned from this gentleman that empower me. His direction, his instruction, his concern, his guidance, his encouragement and his praise of any of us, routinely done by this very, very generous man, strengthens us and gives us that motivation to go forward. And what he has always taught us, what he has said to me repeatedly: your word is your honor in this business.

I can't help but think what the House would be like if it were filled with JOHN DINGELLs, where there was respect for your colleagues, where there was drive and passion to make a difference for America's great many working families, where there was a sense of honor and respect for this work, and where there was this attachment to the

American Dream that ennobles and empowers this arena. He has taught us the nobility—with a small ''n''—of the art and science of politics. He will forever be the measuring stick of quality service and representation, the consummate Representative, JOHN DINGELL.

JOHN, it's an honor to serve with you. I wish you well as you continue to build upon your legacy. And thank you and Debbie for being such a well-respected, much-loved couple in this town, our Nation's Capital, Washington, D.C. God bless you, my friend.

Mr. BARROW of Georgia. I thank the gentleman for participating in this evening's Special Order.

At this time, Mr. Speaker, I'm very pleased to yield to the gentleman from Michigan (Mr. KILDEE).

Mr. KILDEE. I thank the gentleman for yielding.

Let me just say that, while we are obviously here to give honor and recognize the service of Mr. DINGELL, the honor, at least from where I stand, the honor is really all mine to be able to participate in this moment, Mr. Speaker.

I grew up in Michigan. I was born in 1958, 3 years after Mr. DINGELL began his service in this body. I grew up in Michigan politics. And if you come from Michigan and if you're interested in politics or government, you know a lot about JOHN DINGELL. His name is really synonymous not only with politics and government, but is synonymous with all the good that comes with service in government.

We hear so much these days, of course, about the public's opinion of the work that we do and the often cynical nature of public opinion when it comes to government. Well, JOHN really represents all the best in public service and has been a role model for so many people like me, who have had a chance to observe him and watch and learn from the great example that he sets.

He, after 21 years in this body, was joined by my uncle, Dale Kildee, my predecessor, who was elected to serve in the Congress in 1976. For 36 years, the two served together. So while I knew of Mr. DINGELL as an observer of politics as a young man as he and my uncle serving together so closely and so well, I felt like in many ways JOHN became a part, and we became a part, of his extended family. I have often felt that JOHN and Debbie are so close that I can always rely and count on them for counsel and advice and for friendship because it does feel very much like family.

For the whole time during that period that I knew JOHN, I didn't call him JOHN; I always called him Mr. Chairman or Mr. DINGELL. I will never forget the first day on January 3, just 6 months ago, when I was sworn in Congress. I came over to shake his hand and I called him Mr. Chairman, and he said, No, call me JOHN; we are friends.

We represent an amazing and beautiful State. I always look at JOHN as a role model, as an example of somebody who, in a position of tremendous authority within this institution, understood how to advance the interests of the State of Michigan by balancing the very important need to be a great and protective steward of the natural beauty and natural assets that make Michigan such a unique place that we both love so much, but to also be able to keep and breathe life into the great capacity of the workforce, particularly of our great industry—and particularly the automotive industry, which was born in our State, and which JOHN has been such a careful advocate for and steward on behalf of. He has seen some difficult times and has helped to steer that industry through tough times, and now seeing it obviously have new life and new vitality. Much of that—a great deal of that—is attributable directly to his perseverance and his willingness to take on a fight and see it through to the very end.

There's no other issue more than health care that I think makes it clear the value of perseverance and the perseverance that he had demonstrated for so many years, term in and term out, reintroducing in this body something that his father first brought to the Congress, and that is the basic right of every American citizen to not ever have to go to bed at night worrying about whether their own health would stand between them and the long-term viability of their own family. JOHN was here not only to see that battle fought, but actually see it brought to a successful conclusion.

So 6 months ago, when I walked onto this floor and realized a dream that I had been contemplating for a very long time—to serve in what I think is still and always will be the greatest democratic body in the history of this planet—it was a great honor to become a Member of Congress; but perhaps an even greater honor, to be able to call JOHN DINGELL a colleague—not just a friend, not just a mentor, not just somebody that I had looked up to, but a person with whom I now serve.

I was elected to succeed my own uncle. I would like to think that we have some things in common, Mr. DINGELL. And one of the things is you were elected to represent your district to succeed your very own father. I think that what you've demonstrated is that you obviously have your first obligation to serve your Nation, to serve the interests of the people that you represent, but also to do great service to the legacy of your predecessor. I can only imagine what your father must think, looking here and now seeing that not only have you taken up the mantle from him, but have served so long, but more importantly so ably in advancing the goals and the values that he embodied when he came here, and that you were able to see them through to fruition.

So thank you so much for allowing me just a few minutes as a freshman—with not a lot of old stories about the House, but with great admiration for the man who has been here for so long.

Mr. BARROW of Georgia. I thank the gentleman for his participation. I would note that he, like our honoree, exemplifies the truth that is written in Proverbs: A good name is rather to be chosen than great riches, and loving favor rather than silver or gold.

At this time, I am pleased to recognize the gentlelady from Maryland (Ms. EDWARDS).

Ms. EDWARDS. I want to thank my colleague, Mr. BARROW, for leading this Special Order.

I am just so honored really to be here to celebrate and honor somebody I call a friend, JOHN DINGELL.

I notice, as we're talking here today and as so many have approached the podium, that everyone who approaches says: JOHN DINGELL, my friend, my colleague, my mentor, someone I look up to, someone I respect. I would just like to say to my good friend from Michigan that I can't really change those words because they echo my own sentiments.

□ 1950

I want to share with you—and so many of us have talked about the long legislative legacy of JOHN DINGELL. As I sat here, Mr. DINGELL, I thought, well, I too, when you came into Congress, I had not been born yet. It was about 3 years before I entered the world. When you took that courageous vote in support of the Voting Rights Act and civil rights, I was 6-years-old. I recall at the time living here in the Washington metropolitan area that my father and mother used to bring us to this Capitol almost every Sunday after church. They would bring us and we would run up and down the east front of the Capitol. We would picnic on the west front of the Capitol.

I am thinking today how wonderful it is to know that there was someone who was in this institution who so valued this institution and who, even when I was a 6-year old, JOHN DINGELL was working to protect my rights. When I think about that, Mr. DINGELL, I think of all of the Members who lined up even before we began this Special Order and talked about the need to work in a bipartisan way to make sure that we create a formula for the Voting Rights Act that the Supreme Court would support, that institutes and puts into place the formula for the way that we protect our voting rights in section 5 of the Voting Rights Act, and almost to one, including JOHN LEWIS, none of us would be here had you not had the courage to take that vote in 1964.

So it's such an honor to serve with you and to know that while that may have been the battle in 1964, that you are fully prepared to engage in the battle here in 2013, and what an honor that we all have the great privilege of being able to serve with JOHN DINGELL.

I almost think, and Mr. KILDEE mentioned this, but I almost think there is hardly anything that impacts our modern day laws that we can't attribute to

the great hard work and public service of JOHN DINGELL. The fact that I got up this morning and turned on a faucet and ran a glass of water and was able to drink it and know that it was clean, was about JOHN DINGELL. That I walked outside today, and even on a stuffy day like this, knew that I could breathe air that was okay—we still have work to do, Mr. DINGELL—but to know that that clean air, and the cleaner we make our air, is attributed to JOHN DINGELL.

I think back to my grandmother who came to live with us at a point as she was aging—and it was actually just prior to the passage of Medicare—and how different families' lives are now because of the protections that they have for health care as they age and are disabled. Those things are attributable to the great work, the legislative legacy and the service of JOHN DINGELL.

So here we are today, and when I first came into Congress, I came in a different kind of way. One day JOHN DINGELL pulled me aside in the cloak room and he said, ''Come sit down, I want to talk to you, I want to get to know you.'' And I was, frankly, afraid of him. I knew his history, I had watched several Energy and Commerce hearings, and I knew that he was a great friend of my predecessor—a great friend of my predecessor.

I sat down and I talked to him, and what I gained from JOHN DINGELL was the kind of honor and dedication that he has, and reverence that he has, for this institution. It is unlike any that we see, and we learn from that. So we talked, and we became friends.

Then a funny thing happened. Barack Obama was elected President of the United States, and an inauguration was coming forward, and again another reminder that JOHN DINGELL's 50 years of service are about this amazing legislative work, but it is also about the people of his district—the children, women, men, families, of his district.

There was a high school in his district—actually, I'm not quite sure it was still in his district, but at one time he represented that high school—and they had gotten the great gift of being able to play in the inaugural parade for President Obama. Somehow or other things got confused and they were staying in a hotel that was many, many miles, a couple of hours away, from Washington, D.C., and they would have had to get up at 2:00 or 3:00 in the morning to get to the staging area on time. I represent a district just outside of Washington, D.C., in Maryland. JOHN DINGELL reached out to me and he told me this story, and I said, Well, maybe we can figure out something.

We found a high school out in Prince George's County, Maryland, and a parent-teacher organization and the students. They welcomed these students from Michigan that they didn't know at all into their high school. They fed them pizzas and sodas and everything. So the students were able to actually get to the inaugural parade on time.

JOHN DINGELL and I have been locked at the hand and the hip ever since. Those students were so grateful to him. What I saw in this great legislator is that the people of his district really did come first and he looked out for them, and they knew that he looked out for them. Like I said, I don't know whether he still represented them or not. I suppose over that 57 years, the way lines get drawn, at some point or other he did and he didn't, and he did and he didn't.

But whatever, he thought of them as his constituents and they thought of him as their Member of Congress. I thought that that is the kind of Member of Congress that I want to be. I think there are so many of us who serve in this institution who really do value it and who listen, who really listen to the message that JOHN DINGELL gave us about the need to work together and to preserve and protect our democracy by working in a kind of way that gives value and service to all of our communities and to this great Nation. So for that, I want to thank JOHN DINGELL for being such an important part of this institution and important part of the way I have learned to become a Member of Congress.

I want to say, just finally, on health care, when I came to the Congress, I had had an experience of not having had health care and getting very sick and going to an emergency room and having a lot of bills that I couldn't pay because I didn't have health insurance. When we gaveled in that health care bill, the Affordable Care Act, it was JOHN DINGELL sitting as speaker pro tempore who gaveled in the Affordable Care Act with the gavel that he used for Medicare.

Then during the course of that debate, I helped to gavel in the debate on health care. There was one moment that JOHN DINGELL was speaking on the floor about his father's experience and about his experience working on health care. I was sitting in as speaker pro tempore. Mr. DINGELL, I will never forget that picture because for me it was what we do as legislators, but it also felt very personal, and it felt so wonderful to know that in your service you never stopped not a single day of the 57 years to make sure that millions of Americans like me could have health care that was quality and that was affordable and that was accessible. So I thank you so much for your service, and I am so honored to serve with you.

□ 2000

Mr. BARROW of Georgia. I thank the gentlelady.

At this time, I am pleased to recognize the gentlelady from New Hampshire (Ms. SHEA-PORTER).

Ms. SHEA-PORTER. Thank you very much.

I would like to add my voice to the others here in speaking about this wonderful man, JOHN DINGELL, who, I'm sure, is quite embarrassed as we talk about him because he has a great deal of humility, which is rather unusual here, so he stands out for that.

When I first won election in 2006 and came in in early 2007, I knew about JOHN DINGELL. I had taught politics and history. I knew his great reputation as a legislator—I knew a lot about him—but what I didn't know about him is what I want to talk about.

When I first arrived, you heard a lot of people call him ''friend'' because he has a gift for friendship. He uses the words ''my friend'' all the time, and you believe him. He really has a gift for friendship.

So he said, Sit down here, my friend.

And I sat and I talked to the great JOHN DINGELL, and he asked me about me instead of telling me about him. I, too, was pretty overwhelmed at the idea that I was going to be this wonderful man's colleague. He has taught me a lot through the years, but any time you want a little bit of wisdom, we know you can just go sit with JOHN DINGELL. He sits there very quietly, and people come to him. If you just want to have a quiet chat, JOHN DINGELL is available. If you want to remind yourself that civility exists here in this Chamber, sit next to JOHN DINGELL because he is always civil; he is polite; he is intelligent; he is warm; and he cares about the people.

Now, he has done a wonderful job in representing Michigan, but he has always done a wonderful job in representing New Hampshire and every other State in the country. Through his legislation, we are so much better, but through his presence here, we as Members of Congress look better, too.

So I want to thank you, JOHN DINGELL, for all that you've done for me and for all of our colleagues and for this country. I wish you the best of health and many more years in serving America.

Mr. BARROW of Georgia. I thank the gentlelady.

Mr. Speaker, I recall the words of Thomas Carlyle. He was an advocate of the Great Man theory of history.

Carlyle wrote: ''History is but the biography of great men.'' If that's true, then the legislative history of this country for over half a century has been but the biography of JOHN DINGELL.

With gratitude for the service, for the example, and for the friendship of our honoree and with the greatest of affection for our honoree, I yield to the gentleman from Michigan (Mr. DINGELL), who would like an opportunity at rebuttal.

Mr. DINGELL. I don't know whether to rebut or to agree.

I want to begin by thanking Mr. HOYER, our leader and our whip, and my dear friend Mr. BARROW, a wonderful, courageous gentleman from Georgia, who has to fight very hard to remain here.

I am proud that you are my friend. Thank you.

You, DAN KILDEE, bear a great family name. Your uncle was my dear friend.

I am satisfied that he is going to be very, very proud of you, and I am grateful for your friendship.

I want to thank my old friend GENE GREEN from Texas for his kind words about me. He is a wonderful man. He has a wonderful wife. He is concerned with and cares about people.

And I want to say how much the remarks of my colleague from Maryland, DONNA EDWARDS, meant to me.

DONNA, you are a wonderful lady.

There is a story about her. I worked awfully hard to see to it that her predecessor was able to stay here, but, by golly, she was so good that he never stood a chance despite everything I could do to save him. She has made me proud that she is here. She is a great lady and full of goodness. The story she told about the kids was just a story about her goodness, because she saw to it that these wonderful young people had a place to stay here during the President's inauguration when they were going to play and march in the parade.

I want to say to my old friend SANDER LEVIN how grateful I am to him. Our families have been friends and have a history that's interwoven with affection and friendship going back into the 1920s when I was just a glint in my dad's eye.

I want to also say to Mr. MARKEY, our colleague who is going to be leaving us, how much we have cherished his friendship and his valuable service on the Commerce Committee and how proud I am of his service. He and I have had the opportunity of engaging in some fights over the jurisdiction of the committee when they were trying to raid the Commerce Committee, and we found—guess what?—when the fight was over, every time that he and I were involved in it, we had more jurisdiction than we'd had when we went into the fight.

To you, my wonderful friend CAROL SHEA-PORTER, what a wonderful lady you are, and how proud we are that we have a friend like you here who cares about people and who works so hard for them, and I am proud of the words that you have said.

To my Polish colleague, PAUL TONKO from New York, we Polacks—and I am very proud to be a Pole—are very, very concerned about loyalty and friendship and about homes, and he certainly exemplifies that and the goodness.

I am proud of the little things I've been able to do while I've been here. I am prouder even still more of the people I've been able to serve and help, and I am very grateful for the friendship of the people of southeast Michigan. The legislature has redistricted me so many times that they can't find a place now that they can put me that I haven't served before. So I have a great deal to be grateful for.

My father was a wonderful public servant, and he taught me that we here are public servants. We are not masters of the people—we are their servants. This is reason for us to be particularly proud because that is the highest calling of all.

So to you, my colleagues, who have so graciously and kindly made this rather embarrassing evening possible for me, I express to you my thanks and my gratitude for your friendship and for reminding me that there still is the wonderful warmth of friendship and goodness in this institution. The lovely Deborah, my wife, and I thank you for your friendship and kindness.

To all of the other colleagues whom we are serving with now and those with whom we have served before who are no longer with us, we are grateful to them, and we are proud.

This is the greatest Nation in the world. We are part of the greatest experience and the greatest experiment in the history of mankind—an experiment in government, which gives equality and opportunity to all of us. We are reminded that serving and saving and protecting those people whom we serve and the values that they hold dear is a tremendously important concern, one which we are going to have to go to bat about again to see to it that the Voting Rights Act is extended because the protections of the rights of our people—the greatest of all in the right to vote—are not yet fully assured.

So, to all of my colleagues tonight who have been so gracious and kind to me, I express to you my thanks and gratitude. It's a privilege to serve with you. It's even a greater privilege to have you for friends and to have you be people up to whom I can look for your goodness and decency and concern and for the service which you so gladly and generously give to the people of the United States and to the people you represent in your different districts.

Mr. Speaker, with that, I yield back with great gratitude to my dear friend from Georgia and with my thanks to all of my colleagues who have spoken excessively kindly about me tonight.

Mr. BARROW of Georgia. Mr. Speaker, I yield back the balance of my time.

□ 2010

PROVIDING FOR A CONDITIONAL ADJOURNMENT OR RECESS OF THE SENATE AND AN ADJOURNMENT OF THE HOUSE OF REPRESENTATIVES

The SPEAKER pro tempore (Mr. RICE) laid before the House the following privileged concurrent resolution (S. Con. Res. 19) providing for conditional adjournment or recess of the Senate and an adjournment of the House of Representatives.

The Clerk read the concurrent resolution, as follows:

S. CON RES. 19

Resolved by the Senate (the House of Representatives concurring), That when the Senate recesses or adjourns on any day from Thursday, June 27, 2013, through Friday, July 5, 2013, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand recessed or adjourned until 12:00 noon on Monday, July 8, 2013, or such other time on that day as may be specified by its Majority Leader or his designee in the motion to recess or adjourn, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first; and that when the House adjourns on any legislative day from Friday, June 28, 2013, through Friday, July 5, 2013, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand adjourned until 2:00 p.m. on Monday, July 8, 2013, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first.

SEC. 2. The Majority Leader of the Senate and the Speaker of the House, or their respective designees, acting jointly after consultation with the Minority Leader of the Senate and the Minority Leader of the House, shall notify the Members of the Senate and House, respectively, to reassemble at such place and time as they may designate if, in their opinion, the public interest shall warrant it.

The SPEAKER pro tempore. Without objection, the concurrent resolution is concurred in.

There was no objection.

A motion to reconsider was laid on the table.

ADJOURNMENT

Mr. KILDEE. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 8 o'clock and 11 minutes p.m.), the House adjourned until tomorrow, Friday, June 28, 2013, at 9 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

2005. A letter from the Acting Principal Deputy, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Frank J. Kisner, United States Air Force, and his advancement on the retired list in the grade of lieutenant general; to the Committee on Armed Services.

2006. A letter from the Acting Under Secretary, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Robert R. Allardice, United States Air Force, and his advancement on the retired list in the grade of lieutenant general; to the Committee on Armed Services.

2007. A letter from the Acting Principal Deputy, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Douglas H. Owens, United States Air Force, and his advancement on the retired list in the grade of lieutenant general; to the Committee on Armed Services.

2008. A letter from the Under Secretary, Department of Defense, transmitting a report on the Defense Production Act (DPA) Title III fund for Fiscal Year 2012; to the Committee on Financial Services.

2009. A letter from the Chief Counsel, FEMA, Department of Homeland Security, transmitting the Department's final rule — Final Flood Elevation Determinations (Harris County, TX); [Internal Agency Docket No.: FEMA-B-1164] [Docket ID: FEMA-2013-0002] received June 18, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

2010. A letter from the Chief Counsel, FEMA, Department of Homeland Security, transmitting the Department's final rule — Suspension of Community Eligibility (New Haven County, CT, et al.) [Docket ID: FEMA-2013-0002] [Internal Agency Docket No.: FEMA-8285] received June 18, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

2011. A letter from the General Counsel and Agency Ethics Official, National Credit Union Administration, transmitting the Administration's final rule — Supplemental Standards of Ethical Conduct for Employees of the National Credit Union Administration (RIN: 3133-AE10) received June 17, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

2012. A letter from the Secretary, Department of Health and Human Services, transmitting a report entitled, ''National Plan to Address Alzheimer's Disease: 2013 Update''; to the Committee on Energy and Commerce.

2013. A letter from the Acting Administrator, Environmental Protection Agency, transmitting the Agency's fifth report on the Drinking Water Infrastructure Needs Survey and Assessment for 2011; to the Committee on Energy and Commerce.

2014. A letter from the Secretary, Federal Trade Commission, transmitting the Commission's final rule — Energy Labeling Rule (RIN: 3084-AB15) received June 17, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

2015. A letter from the Office Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Revisions to Environmental Review for Renewal of Nuclear Power Plant Operating Licenses [NRC-2008-0608] (RIN: 3150-AI42) received June 19, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

2016. A letter from the Director, Defense Security Cooperation Agency, transmitting Transmittal No. 13-35, Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act, as amended; to the Committee on Foreign Affairs.

2017. A letter from the Director, Defense Security Cooperation Agency, transmitting a notice of a proposed lease with the Government of Iraq (Transmittal No. 03-13) pursuant to Section 62(a) of the Arms Export Control Act; to the Committee on Foreign Affairs.

2018. A letter from the Assistant Secretary, Department of Defense, transmitting Expenditure of Cooperative Threat Reduction Funds; to the Committee on Foreign Affairs.

2019. A letter from the Director, Office of Diversity Management and Equal Opportunity, Department of Defense, transmitting the Department's annual report for FY 2012 prepared in accordance with Section 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Public Law 107-174; to the Committee on Oversight and Government Reform.

2020. A letter from the Secretary, Department of Health and Human Services, transmitting the semiannual report on the activities of the Office of Inspector General for the period ending March 31, 2013; to the Committee on Oversight and Government Reform.

2021. A letter from the Assistant Secretary, Policy, Management and Budget, Department of the Interior, transmitting the Department's Fiscal Year 2012 Annual Notification and Federal Employee Antidiscrimination and Retaliation (No FEAR) Act of 2002 Report; to the Committee on Oversight and Government Reform.

2022. A letter from the Chairman and Acting General Counsel, National Labor Relations Board, transmitting the Board's semiannual report from the office of the Inspector General for the period October 1, 2012 through March 31, 2013; to the Committee on Oversight and Government Reform.

2023. A letter from the Acting Chief, Division of Restoration and Recovery, Department of the Interior, transmitting the Department's final rule — Marine Mammals; Incidental Take During Specified Activities [Docket No.: FWS-R7-ES-2012-0043] (RIN: 1018-AY67) received June 14, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2024. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — International Fisheries; Pacific Tuna Fisheries; Fishing Restrictions in the Eastern Pacific Ocean [Docket No.: 120814337-3488-02] (RIN: 0648-BC44) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2025. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Atlantic Highly Migratory Species; North and South Atlantic 2013 Commercial Swordfish Quotas [Docket No.: 121101598-3455-02] (RIN: 0648-XC334) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2026. A letter from the Deputy Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries in the Western Pacific; 5-Year Extension of Moratorium on Harvest of Gold Corals [Docket No.: 130103006-3477-02] (RIN: 0648-BC89) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2027. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Western Pacific Fisheries; Fishing in the Marianas Trench, Pacific Remote Islands, and Rose Atoll Marine National Monuments [Docket No.: 110819515-3444-02] (RIN: 0648-BA98) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2028. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Fishery of the Gulf of Mexico; Gag Management Measures [Docket No.: 121004516-3498-02] (RIN: 0648-BC64) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2029. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries of the Exclusive Economic Zone Off Alaska; Bering Sea and Aleutian Islands Crab Rationalization Program [Docket No.: 110207108-3430-02] (RIN: 0648-BA82) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2030. A letter from the Deputy Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Snapper-Grouper Fishery of the South Atlantic; 2013 Recreational Accountability Measure and Closure for South Atlantic Snowy Grouper [Docket No.: 0907271173-0629-03) (RIN: 0648-XC672) received June 24, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

2031. A letter from the Attorney General, Department of Justice, transmitting notification that the Department has decided not to seek further review of the decision of the United States Court of Appeals for the Eleventh Circuit in the case of United States v. Yimmi Bellaizac-Hurtado et al., Nos. 11-14049, 11-14227, 11-14310, and 11-14311, 700 F.3d 1245 (11th Cir. Nov. 6, 2012); to the Committee on the Judiciary.

2032. A letter from the Federal Register Liaison Officer, Department of the Treasury, transmitting the Department's final rule — Modification of Mandatory Label Information for Wine [Docket No.: TTB-2007-0065; T.D. TTB-114; Re: Notice No. 74] (RIN: 1513-AB36) received June 18, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

2033. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's final rule — Conclusive Presumption of Worthlessness of Debts [Notice 2013-35] received June 18, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

2034. A letter from the Deputy Commissioner, Social Security Administration, transmitting a notification of a correction to the ''Social Security and Supplemental Security Income (SSI) Statistics by Congressional District'' report; to the Committee on Ways and Means.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Ms. TITUS (for herself and Mr. SMITH of Washington):

H.R. 2529. A bill to amend title 38, United States Code, to amend the definition of the term ''spouse'' to recognize new State definitions of such term for the purpose of the laws administered by the Secretary of Veterans Affairs; to the Committee on Veterans' Affairs.

By Mr. ROSKAM:

H.R. 2530. A bill to improve transparency and efficiency with respect to audits and communications between taxpayers and the Internal Revenue Service; to the Committee on Ways and Means.

By Mr. ROSKAM:

H.R. 2531. A bill to prohibit the Internal Revenue Service from asking taxpayers questions regarding religious, political, or social beliefs; to the Committee on Ways and Means.

By Mr. ROSKAM:

H.R. 2532. A bill to provide for the establishment of new procedures at the Internal Revenue Service, and for other purposes; to the Committee on Ways and Means.

By Mr. ROSKAM:

H.R. 2533. A bill to impose a moratorium on conferences held by the Internal Revenue Service; to the Committee on Ways and Means.

By Mr. WHITFIELD (for himself and Ms. SCHWARTZ):

H.R. 2534. A bill to provide $50,000,000,000 in new transportation infrastructure funding through bonding to empower States and local governments to complete significant infrastructure projects across all modes of transportation, including roads, bridges, rail and transit systems, ports, and inland waterways, and for other purposes; to the Committee on Ways and Means.

By Mr. BARR (for himself, Mr. LOEBSACK, Mr. STIVERS, Mr. MEADOWS, and Mr. YOHO):

H.R. 2535. A bill to cause increased seigniorage for the United States Mint leading

to enhanced revenue to the Treasury and increased offsets to annual budget deficits in perpetuity, to require the Secretary of the Treasury to mint and issue coins commemorating and celebrating American Liberty, ''The Union'', and the American values and attributes of freedom, independence, civil governance, enlightenment, peace, strength, equality, democracy, and justice, to provide for the continued and concurrent production and distribution of existing presidentially-themed circulating and numismatic coinage designs, and for other purposes; to the Committee on Financial Services.

By Mrs. BROOKS of Indiana (for herself, Mr. POLIS, Mr. HANNA, Ms. DELBENE, Mrs. MCMORRIS RODGERS, Mr. HUNTER, Mr. HONDA, Mrs. DAVIS of California, Mr. LANGEVIN, Mr. JOHNSON of Ohio, Mr. MESSER, and Mr. DELANEY):

H.R. 2536. A bill to amend the Elementary and Secondary Education Act of 1965 to strengthen elementary and secondary computer science education, and for other purposes; to the Committee on Education and the Workforce.

By Mr. GINGREY of Georgia:

H.R. 2537. A bill to amend title 49, United States Code, with respect to employee protective arrangements, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. FITZPATRICK (for himself, Mr. ELLISON, Mr. HINOJOSA, Mr. CAPUANO, Mr. AL GREEN of Texas, Mr. JONES, Mr. RENACCI, and Mr. DUFFY):

H.R. 2538. A bill to amend the Fair Credit Reporting Act to clarify Federal law with respect to reporting positive consumer credit information to consumer reporting agencies by public utility or telecommunications companies, and for other purposes; to the Committee on Financial Services.

By Ms. SCHAKOWSKY (for herself, Mr. BRALEY of Iowa, Mr. CARTWRIGHT, Mr. DELANEY, Mr. ELLISON, Mr. GRIJALVA, Mr. HASTINGS of Florida, Mr. HOLT, Mr. HUFFMAN, Ms. LEE of California, Mr. LOEBSACK, Ms. LOFGREN, Ms. MCCOLLUM, Mr. GEORGE MILLER of California, Mr. MORAN, Mr. POCAN, Mr. TAKANO, and Ms. WILSON of Florida):

H.R. 2539. A bill to amend the Internal Revenue Code of 1986 to extend certain provisions of the renewable energy credit, and for other purposes; to the Committee on Ways and Means.

By Mr. CARTWRIGHT (for himself, Mr. ROONEY, Ms. KAPTUR, Ms. JENKINS, Mr. CASSIDY, Mr. RYAN of Ohio, Ms. SHEA-PORTER, Mr. CHABOT, and Ms. DUCKWORTH):

H.R. 2540. A bill to amend title 38, United States Code, to improve the authority of the Secretary of Veterans Affairs to hire psychiatrists; to the Committee on Veterans' Affairs.

By Mrs. HARTZLER (for herself, Mr. BROUN of Georgia, Mr. CHABOT, Mr. COLE, Mr. LUETKEMEYER, Mr. MULVANEY, Mrs. NOEM, Mr. KING of Iowa, Mrs. BLACKBURN, Mr. DESJARLAIS, Mr. FINCHER, Mr. ROE of Tennessee, Mr. LONG, Mr. CASSIDY, Mr. CARTER, Mr. JOHNSON of Ohio, Mr. RADEL, Mr. PALAZZO, Mr. SCHWEIKERT, Mr. BENISHEK, Mr. DESANTIS, Mr. MILLER of Florida, Mr. MEADOWS, and Mr. SMITH of Missouri):

H.R. 2541. A bill to allow certain off-duty law enforcement officers and retired law enforcement officers to carry a concealed firearm to protect children in a school zone; to the Committee on the Judiciary.

By Mr. BACHUS (for himself, Mr. GRAVES of Missouri, Mr. BARROW of Georgia, Mr. MATHESON, Mr. SMITH of Texas, Mr. COBLE, and Mr. ROKITA):

H.R. 2542. A bill to amend chapter 6 of title 5, United States Code (commonly known as the Regulatory Flexibility Act), to ensure complete analysis of potential impacts on small entities of rules, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Small Business, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COHEN (for himself, Mr. GRAVES of Missouri, Ms. LOFGREN, Ms. MOORE, and Mr. ISRAEL):

H.R. 2543. A bill to protect consumers from discriminatory State taxes on motor vehicle rentals; to the Committee on the Judiciary.

By Mr. SCHWEIKERT (for himself, Mr. LONG, Mr. SENSENBRENNER, Mr. RODNEY DAVIS of Illinois, and Mr. DESANTIS):

H.R. 2544. A bill to limit United States economic assistance and to oppose World Bank and International Monetary Fund assistance to the Government of Egypt; to the Committee on Financial Services, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MCDERMOTT:

H.R. 2545. A bill to amend title XVIII of the Social Security Act to provide for an expert advisory panel regarding relative value scale process used under the Medicare physician fee schedule, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PRICE of Georgia (for himself, Mr. MARCHANT, Mr. SCHOCK, Mr. BOUSTANY, and Mr. TIBERI):

H.R. 2546. A bill to protect financial transactions in the United States from enforcement of certain excise taxes imposed by any foreign government, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. CAPITO (for herself and Mr. MEEKS):

H.R. 2547. A bill to determine appropriate risk based capital requirements for community, mid-size, and regional institutions; to the Committee on Financial Services.

By Mr. ROYCE (for himself, Mr. ENGEL, Mr. SMITH of New Jersey, and Ms. BASS):

H.R. 2548. A bill to establish a comprehensive United States government policy to assist countries in sub-Saharan Africa to develop an appropriate mix of power solutions for more broadly distributed electricity access in order to support poverty alleviation and drive economic growth, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BROWNLEY of California (for herself, Mr. VARGAS, and Mrs. NAPOLITANO):

H.R. 2549. A bill to award grants to States to establish a Seal of Biliteracy program to recognize high-level student proficiency in speaking, reading, and writing in both English and a second language; to the Committee on Education and the Workforce.

By Mr. RUSH:

H.R. 2550. A bill to amend the Small Business Act to enhance services to small business concerns that are disadvantaged, and for other purposes; to the Committee on Small Business.

By Mr. RUSH:

H.R. 2551. A bill to amend the Small Business Act to ensure that certain Federal contracts are set aside for small businesses, to enhance services to small businesses that are disadvantaged, and for other purposes; to the Committee on Small Business, and in addition to the Committees on Financial Services, and Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. DEGETTE:

H.R. 2552. A bill to designate certain lands in the State of Colorado as components of the National Wilderness Preservation System, and for other purposes; to the Committee on Natural Resources.

By Ms. DELAURO (for herself, Mr. ISRAEL, Mr. ELLISON, Mr. TIERNEY, Mr. CICILLINE, Mr. MCGOVERN, Ms. MENG, Mr. MAFFEI, Mr. TONKO, Ms. SLAUGHTER, Ms. SCHAKOWSKY, Mr. SARBANES, Mrs. CHRISTENSEN, Mr. BRALEY of Iowa, Mr. YARMUTH, Mr. RUSH, Ms. CHU, Ms. PINGREE of Maine, Mr. LARSON of Connecticut, Ms. NORTON, Mr. HONDA, Ms. ESHOO, Mr. LYNCH, Mr. WELCH, Mr. MICHAUD, Mr. SIRES, Ms. BORDALLO, Ms. SHEA-PORTER, Ms. SPEIER, Mr. LOWENTHAL, Mr. POCAN, Mr. TAKANO, Mr. RICHMOND, Ms. ESTY, Mr. COURTNEY, Mr. PASCRELL, Mr. DEUTCH, Mr. LANGEVIN, Ms. BONAMICI, Ms. MCCOLLUM, Mrs. CAPPS, Mr. BLUMENAUER, Mr. CONYERS, Mr. AL GREEN of Texas, Mr. WATT, Mr. MORAN, Mr. GRIJALVA, Ms. LEE of California, Mr. GARAMENDI, Mr. CARSON of Indiana, Mr. KEATING, Mr. VEASEY, Ms. DUCKWORTH, Mr. VAN HOLLEN, Ms. MATSUI, Mrs. KIRKPATRICK, Ms. LINDA T. SÁNCHEZ of California, Mr. LIPINSKI, Mr. HECK of Washington, Mr. SHERMAN, Mr. HIMES, Mr. PRICE of North Carolina, and Mr. FARR):

H.R. 2553. A bill to facilitate efficient investments and financing of infrastructure projects and new job creation through the establishment of a National Infrastructure Development Bank, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Transportation and Infrastructure, Financial Services, and Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DENHAM:

H.R. 2554. A bill to increase water storage availability at the New Melones Reservoir to provide additional water for areas served below the reservoir, and for other purposes; to the Committee on Natural Resources.

By Ms. ESTY (for herself and Mr. LARSON of Connecticut):

H.R. 2555. A bill to amend the Wild and Scenic Rivers Act to designate certain segments of the Farmington River and Salmon Brook in the State of Connecticut as components of the National Wild and Scenic Rivers System, and for other purposes; to the Committee on Natural Resources.

By Mr. HONDA:

H.R. 2556. A bill to provide for the establishment of Vertical Centers of Excellence

on Cybersecurity to create solutions to, and promote best practices for, industry-specific cybersecurity challenges; to the Committee on Science, Space, and Technology.

By Mr. SAM JOHNSON of Texas:

H.R. 2557. A bill to amend the Internal Revenue Code of 1986 to make imprisonment mandatory for unauthorized disclosure of returns and return information, unauthorized inspection of returns or return information, and willful oppression under color of law by officers and employees of the United States, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MAFFEI:

H.R. 2558. A bill to amend the Internal Revenue Code of 1986 to provide for the tax treatment of small business start-up savings accounts; to the Committee on Ways and Means.

By Mrs. CAROLYN B. MALONEY of New York:

H.R. 2559. A bill to permit employees to request, and to ensure employers consider requests for, flexible work terms and conditions, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committees on Oversight and Government Reform, House Administration, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GEORGE MILLER of California (for himself, Mr. TIERNEY, Mr. HINOJOSA, Mrs. CAPPS, Mr. ISRAEL, Ms. WILSON of Florida, Mr. CONYERS, Mrs. NAPOLITANO, Ms. NORTON, Ms. JACKSON LEE, Ms. SCHAKOWSKY, Mr. LARSEN of Washington, Ms. ESTY, Ms. BORDALLO, Mr. RYAN of Ohio, Mr. CÁRDENAS, Mr. MCGOVERN, Mr. MORAN, Mrs. NEGRETE MCLEOD, Mr. DINGELL, and Mr. SABLAN):

H.R. 2560. A bill to amend the Workforce Investment Act of 1998 to support community college and industry partnerships, and for other purposes; to the Committee on Education and the Workforce.

By Mr. PETERS of Michigan (for himself, Mr. BACHUS, Mrs. CAPITO, Mr. GRIMM, Mrs. CAROLYN B. MALONEY of New York, Mr. PETRI, Mr. POLIS, Ms. VELÁZQUEZ, Mrs. BEATTY, and Mr. STUTZMAN):

H.R. 2561. A bill to provide for the removal of default information from a borrower's credit report with respect to certain rehabilitated education loans; to the Committee on Financial Services.

By Mr. POLIS (for himself, Ms. DELAURO, Mr. MCGOVERN, and Mr. RANGEL):

H.R. 2562. A bill to authorize the Secretary of Agriculture to implement a certain interim final or final rule regarding nutrition programs under the Richard B. Russell National School Lunch Act and the Child Nutrition Act of 1966; to the Committee on Education and the Workforce.

By Mr. QUIGLEY (for himself and Mr. WALZ):

H.R. 2563. A bill to amend the Internal Revenue Code of 1986 to allow the mortgage interest deduction with respect to boats only if the boat is used as the principal residence of the taxpayer; to the Committee on Ways and Means.

By Mr. RANGEL:

H.R. 2564. A bill to extend the additional duty on ethanol; to the Committee on Ways and Means.

By Mr. RENACCI (for himself, Mr. MEEHAN, Mr. STIVERS, Mr. CHABOT, Mr. GIBBS, Mr. KELLY of Pennsylvania, Mr. JOHNSON of Ohio, Mr. HUIZENGA of Michigan, Mr. JOYCE, Mr. MASSIE, Mr. BOUSTANY, Mr. TIBERI, Mr. SAM JOHNSON of Texas, Mr. WILSON of South Carolina, Mr. WEBSTER of Florida, Mr. YOUNG of Indiana, Mr. MILLER of Florida, Mr. WENSTRUP, Mr. DELANEY, Mr. CARNEY, Mr. MARCHANT, Mr. ROSKAM, Mrs. BLACK, Mr. LABRADOR, Mr. JORDAN, Mr. NUGENT, Mr. ROTHFUS, Mr. GERLACH, Mr. AMODEI, Mr. MARINO, and Mr. GRIFFIN of Arkansas):

H.R. 2565. A bill to provide for the termination of employment of employees of the Internal Revenue Service who take certain official actions for political purposes; to the Committee on Ways and Means.

By Ms. SPEIER (for herself, Mrs. CAROLYN B. MALONEY of New York, Ms. CLARKE, Ms. BROWN of Florida, Mr. CARTWRIGHT, Mr. TIERNEY, Ms. SHEA-PORTER, Mr. HOLT, Mr. GRIJALVA, Ms. SCHAKOWSKY, Mr. MORAN, Ms. BASS, Ms. FRANKEL of Florida, Mr. PALLONE, Mr. BLUMENAUER, Mr. HONDA, Mr. MCGOVERN, and Mr. FARR):

H.R. 2566. A bill to modify the definition of armor piercing ammunition to better capture its capabilities; to the Committee on the Judiciary.

By Ms. SPEIER (for herself, Mrs. CAROLYN B. MALONEY of New York, Ms. CLARKE, Ms. BROWN of Florida, Mr. CARTWRIGHT, Mr. TIERNEY, Ms. SHEA-PORTER, Mr. HOLT, Mr. GRIJALVA, Ms. SCHAKOWSKY, Mr. MORAN, Ms. FRANKEL of Florida, Mr. CLAY, Mr. PALLONE, Mr. BLUMENAUER, Mr. HONDA, Mr. MCGOVERN, and Mr. FARR):

H.R. 2567. A bill to require that all handguns manufactured, sold in, or imported into, the United States incorporate technology that precludes the average five year old child from operating the handgun when it is ready to fire; to the Committee on Energy and Commerce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TIERNEY:

H.R. 2568. A bill to reauthorize the Essex National Heritage Area; to the Committee on Natural Resources.

By Mr. WELCH:

H.R. 2569. A bill to amend the Wild and Scenic Rivers Act to designate segments of the Missisquoi River and the Trout River in the State of Vermont, as components of the National Wild and Scenic Rivers System; to the Committee on Natural Resources.

By Mr. ROSKAM:

H. Res. 280. A resolution expressing the sense of the House of Representatives regarding a taxpayer bill of rights; to the Committee on Ways and Means.

By Ms. ROS-LEHTINEN (for herself and Mr. ANDREWS):

H. Res. 281. A resolution expressing concern over persistent and credible reports of systematic, state-sanctioned organ harvesting from non-consenting prisoners of conscience, in the People's Republic of China, including from large numbers of Falun Gong practitioners imprisoned for their religious beliefs, and members of other religious and ethnic minority groups; to the Committee on Foreign Affairs.

By Mr. LEWIS (for himself, Ms. BASS, Mrs. BEATTY, Mr. BISHOP of Georgia, Ms. BORDALLO, Mr. BRALEY of Iowa, Ms. BROWN of Florida, Mr. CARSON of Indiana, Mr. CARTWRIGHT, Mrs. CHRISTENSEN, Mr. CICILLINE, Ms. CLARKE, Mr. COHEN, Mr. CONYERS, Mr. COSTA, Mr. CROWLEY, Mr. CUMMINGS, Mr. DEFAZIO, Ms. DEGETTE, Ms. DELAURO, Mr. ELLISON, Mr. ENYART, Ms. HAHN, Mr. HASTINGS of Florida, Mr. HORSFORD, Ms. JACKSON LEE, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. JOHNSON of Georgia, Ms. KELLY of Illinois, Mr. KILDEE, Ms. LEE of California, Mrs. CAROLYN B. MALONEY of New York, Ms. MCCOLLUM, Mr. MCGOVERN, Mr. MEEKS, Ms. MENG, Ms. MOORE, Mr. NADLER, Ms. NORTON, Mr. PAYNE, Mr. PRICE of North Carolina, Mr. RANGEL, Mr. RICHMOND, Mr. RUSH, Ms. LINDA T. SÁNCHEZ of California, Mr. SCHIFF, Mr. SCHOCK, Ms. SPEIER, Mr. THOMPSON of Mississippi, Mr. TONKO, Mr. WATT, and Ms. WILSON of Florida):

H. Res. 282. A resolution expressing the sense of the House of Representatives on Nelson Mandela International Day; to the Committee on Foreign Affairs.

By Mr. LEWIS:

H. Res. 283. A resolution expressing the sense of the House of Representatives that the United States should become an international human rights leader by ratifying and implementing certain core international conventions; to the Committee on Foreign Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TURNER (for himself, Mr. DAVID SCOTT of Georgia, Mr. SHUSTER, Mr. COHEN, Mr. BRIDENSTINE, Mr. LANCE, Mr. MORAN, Mr. DIAZ-BALART, Ms. JACKSON LEE, Ms. GRANGER, Mr. MILLER of Florida, Mr. WILSON of South Carolina, Mr. COTTON, Mr. MARINO, Mr. POE of Texas, Mr. GUTHRIE, Mr. STIVERS, Mrs. BEATTY, Ms. LORETTA SANCHEZ of California, Mr. MEEKS, Ms. BORDALLO, and Ms. MENG):

H. Res. 284. A resolution expressing the sense of the House of Representatives with respect to promoting energy security of European allies through opening up the Southern Gas Corridor; to the Committee on Foreign Affairs.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. BARR introduced a bill (H.R. 2570) to exempt the vessel John Craig from certain requirements when operating on a portion of the Kentucky River, and for other purposes; which was referred to the Committee on Transportation and Infrastructure.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Ms. TITUS:

H.R. 2529.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of Section 8 of Article I of the Constitution, and Section 5 of Amendment XIV to the Constitution.

By Mr. ROSKAM:
H.R. 2530.
Congress has the power to enact this legislation pursuant to the following:
Congress has the power to enact this legislation pursuant to Article I, Section 8, Clause 18, which states ''The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. ROSKAM:
H.R. 2531.
Congress has the power to enact this legislation pursuant to the following:
Congress has the power to enact this legislation pursuant to Article I, Section 8, Clause 18, which states ''The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. ROSKAM:
H.R. 2532.
Congress has the power to enact this legislation pursuant to the following:
Congress has the power to enact this legislation pursuant to Article I, Section 8, Clause 18, which states ''The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. ROSKAM:
H.R. 2533.
Congress has the power to enact this legislation pursuant to the following:
Congress has the power to enact this legislation pursuant to Article I, Section 8, Clause 18, which states ''The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. WHITFIELD:
H.R. 2534.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3, that grants Congress the power to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. BARR:
H.R. 2535.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 5, which gives Congress the power ''To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures.'' This is appropriate because this legislation sets forth new guidelines for designing and minting new ''liberty'' themed quarters, dimes, and half-dollars.

By Mrs. BROOKS of Indiana
H.R. 2536.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution of the United States.

By Mr. GINGREY of Georgia:
H.R. 2537.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 of the Constitution, which states, ''The Congress shall have the power to regulate Commerce with foreign Nations, and among the several states, and with the Indian Tribes.''

By Mr. FITZPATRICK:
H.R. 2538.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3

By Ms. SCHAKOWSKY:
H.R. 2539.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section VIII.

By Mr. CARTWRIGHT:
H.R. 2540.
Congress has the power to enact this legislation pursuant to the following:
Article I; Section 8 of the Constitution states ''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;''

By Mrs. HARTZLER:
H.R. 2541.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18 to prevent the infringement of the Second Amendment of the United States Constitution which reads: ''A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed.''

By Mr. BACHUS:
H.R. 2542.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 1 of the United States Constitution, in that the legislation concerns the exercise of legislative powers generally granted to Congress by that section, including the exercise of those powers when delegated by Congress to the Executive; Article I, Sections 8 and 9 of the United States Constitution, in that the legislation concerns the exercise of specific legislative powers granted to Congress by those sections, including the exercise of those powers when delegated by Congress to the Executive; Article I, Section 8, clause 18 of the United States Constitution, in that the legislation exercises legislative power granted to Congress by that clause ''to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof;'' and Article III, in that the legislation defines or affects powers of the Judiciary that are subject to legislation by Congress.

By Mr. COHEN:
H.R. 2543.
Congress has the power to enact this legislation pursuant to the following:
Clause 3 of Article I, Section 8 of the United States Constitution.

By Mr. SCHWEIKERT:
H.R. 2544.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8

By Mr. MCDERMOTT:
H.R. 2545.
Congress has the power to enact this legislation pursuant to the following:
Spending Clause (Art. I, Section 8, cl. 1)

By Mr. PRICE of Georgia:
H.R. 2546.
Congress has the power to enact this legislation pursuant to the following:
This bill makes changes to existing law relating to Article 1, Section 8, which provides that, ''The Congress shall have power to lay and collect Taxes, Duties, Imposts, and Excises to pay debts and provide for the common defense and general welfare of the United States; but all Duties, Imposts, and Excises shall be uniform throughout the United States.'' The Secretary of the Treasury is responsible for collecting taxes at the Federal level. It is the purview of the Congress to determine which taxes the Secretary shall or shall not collect. Clarifying directions to the Secretary in regard to a foreign transaction tax will ease the administrative and compliance burden on the private financial sector and the federal government.

By Mrs. CAPITO:
H.R. 2547.
Congress has the power to enact this legislation pursuant to the following:
The Commerce Clause, Article I, Section 8, Clause 3 of the Constitution states that Congress shall have power to regulate the regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. ROYCE:
H.R. 2548.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8 of the Constitution

By Ms. BROWNLEY of California:
H.R. 2549.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section VIII

By Mr. RUSH:
H.R. 2550.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
''The Congress Shall have the Power ''to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.''

By Mr. RUSH:
H.R. 2551.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
''The Congress Shall have the Power ''to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.''

By Ms. DEGETTE:
H.R. 2552.
Congress has the power to enact this legislation pursuant to the following:
Article I, section 8 and Article IV, section 3 of the Constitution of the United States.

By Ms. DELAURO:
H.R. 2553.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1 and Clause 3 of the United States Constitution

By Mr. DENHAM:
H.R. 2554.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the United States Constitution, specifically Clause 1 (relating to providing for the common defense and general welfare of the United States) and Clause 18 (relating to the power to make all laws necessary and proper for carrying out the powers vested in Congress).

By Ms. ESTY:
H.R. 2555.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8

By Mr. HONDA:
H.R. 2556.
Congress has the power to enact this legislation pursuant to the following:
section 8 of article I of the Constitution.

By Mr. SAM JOHNSON of Texas:
H.R. 2557.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1

By Mr. MAFFEI:
H.R. 2558.
Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8 of Article I of the United States Constitution which reads: ''The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defense and General Welfare of the United States; but all Duties and Imposts and Excises shall be uniform throughout the United States.''

By Mrs. CAROLYN B. MALONEY of New York:

H.R. 2559.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

The Congress shall have Power *** To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. GEORGE MILLER of California:

H.R. 2560.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States.

By Mr. PETERS of Michigan:

H.R. 2561.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

The United States Congress shall have power to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. POLIS:

H.R. 2562.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 (relating to the power of Congress to provide for the general welfare of the United States) and Clause 18 (relating to the power to make all laws necessary and proper for carrying out the powers vested in Congress)

Article IV, Section 3, Clause 2 (relating to the power of Congress to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States).

By Mr. QUIGLEY:

H.R. 2563.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress to lay and collect taxes, duties, and imposts and excises, as enumerated in Article 1, Section 8, Clause 1 of the United States Constitution.

By Mr. RANGEL:

H.R. 2564.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8.

By Mr. RENACCI:

H.R. 2565.

Congress has the power to enact this legislation pursuant to the following:

Congress has the power to enact this legislation pursuant to Article I, Section 8, Clause 18: The Congress shall have Power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

By Ms. SPEIER:

H.R. 2566.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8 of the United States Constitution.

By Ms. SPEIER:

H.R. 2567.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8 of the United States Constitution.

By Mr. TIERNEY:

H.R. 2568.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. WELCH:

H.R. 2569.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18: The Congress shall have Power To...make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof..

Mr. BARR:

H.R. 2570.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 14, which gives Congress the power ''to make rules for the government and regulation of the land and naval forces.'' This is appropriate because this legislation involves the U.S. Coast Guard and licensing regulations for the captains of ships.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions as follows:

H.R. 32: Mr. GUTIÉRREZ, Mr. HOLT, and Mr. GOODLATTE.

H.R. 36: Ms. JENKINS, Mr. RODNEY DAVIS of Illinois, Mr. SHUSTER, Mr. POMPEO, and Mr. RADEL.

H.R. 107: Mr. NUGENT.

H.R. 129: Mr. NOLAN.

H.R. 140: Mr. PALAZZO.

H.R. 182: Mr. ELLISON.

H.R. 274: Mrs. NEGRETE MCLEOD, Mr. ELLISON, and Ms. BONAMICI.

H.R. 400: Mr. RUIZ and Mr. BRALEY of Iowa.

H.R. 451: Mr. ROSS.

H.R. 460: Mr. MCGOVERN.

H.R. 508: Mr. BACHUS, Mr. MCINTYRE, and Mr. CONNOLLY.

H.R. 533: Mr. COLE, Mr. GEORGE MILLER of California, and Ms. SHEA-PORTER.

H.R. 543: Ms. KAPTUR, Mr. YOUNG of Indiana, Mr. RENACCI, Ms. MOORE, Mr. COLE, and Mr. GRIFFITH of Virginia.

H.R. 556: Mr. DESANTIS.

H.R. 560: Ms. MICHELLE LUJAN GRISHAM of New Mexico.

H.R. 596: Mr. YOUNG of Alaska, Ms. SINEMA, Mr. SOUTHERLAND, and Mr. BRALEY of Iowa.

H.R. 610: Mr. PETRI.

H.R. 611: Mr. PETRI.

H.R. 632: Mr. CASSIDY.

H.R. 647: Mr. SOUTHERLAND and Mr. WALZ.

H.R. 685: Mr. JONES, Mr. BILIRAKIS, Mrs. NOEM, and Mr. JOHNSON of Ohio.

H.R. 688: Mr. PETERS of California.

H.R. 690: Mr. HOLT and Mr. VEASEY.

H.R. 698: Mr. CARSON of Indiana, Mr. MCKINLEY, and Mr. BENISHEK.

H.R. 721: Mr. MEADOWS, Mr. CARTER, and Mr. LOBIONDO.

H.R. 724: Mr. MARCHANT, Mr. BRADY of Texas, and Mr. MCKINLEY.

H.R. 727: Ms. MICHELLE LUJAN GRISHAM of New Mexico.

H.R. 755: Mr. POE of Texas, Mr. FLORES, Ms. GRANGER, Mr. SMITH of Texas, Mr. BARLETTA, Mr. MARKEY, and Mr. BRADY of Texas.

H.R. 760: Mrs. NEGRETE MCLEOD.

H.R. 761: Mr. DIAZ-BALART.

H.R. 769: Mr. ENGEL.

H.R. 798: Mr. RUIZ.

H.R. 850: Mr. GALLEGO.

H.R. 851: Mr. RUIZ.

H.R. 855: Mr. WILSON of South Carolina

H.R. 871: Ms. MCCOLLUM and Mr. PETERSON.

H.R. 872: Mr. PETERSON.

H.R. 873: Ms. MCCOLLUM and Mr. PETERSON.

H.R. 904: Mr. HIGGINS.

H.R. 914: Mr. HARRIS.

H.R. 915: Mr. HIMES and Mr. MCGOVERN.

H.R. 919: Mrs. BUSTOS.

H.R. 924: Ms. HANABUSA.

H.R. 938: Ms. FOXX, Mr. LEWIS, Ms. GABBARD, Mr. COLE, Ms. LINDA T. SÁNCHEZ of California, and Mr. GARCIA.

H.R. 946: Mr. DESJARLAIS, Mr. POMPEO, and Mr. HALL.

H.R. 948: Mr. ROSKAM.

H.R. 1001: Mr. SALMON and Mr. ANDREWS.

H.R. 1014: Mr. TONKO and Mr. LOBIONDO.

H.R. 1078: Mr. WEBER of Texas.

H.R. 1079: Ms. LOFGREN.

H.R. 1129: Mr. KLINE.

H.R. 1179: Mr. NUGENT and Mr. CARSON of Indiana.

H.R. 1187: Mrs. NAPOLITANO.

H.R. 1250: Mr. NUGENT, Mr. TERRY, Mr. PALAZZO, and Mr. HALL.

H.R. 1254: Mr. MESSER, Mrs. BLACKBURN, Mr. GINGREY of Georgia, and Mr. TERRY.

H.R. 1310: Mr. SOUTHERLAND.

H.R. 1334: Mr. COHEN and Mr. LANGEVIN.

H.R. 1354: Mr. HALL and Mr. ROSS.

H.R. 1387: Ms. BONAMICI.

H.R. 1422: Mrs. BACHMANN, Mr. KLINE, Mrs. LUMMIS, Mr. FRANKS of Arizona, Mr. CRAMER, Mr. SCHWEIKERT, Mr. BROUN of Georgia, Mr. YOUNG of Alaska, and Mrs. HARTZLER.

H.R. 1428: Ms. CASTOR of Florida, Ms. MCCOLLUM, and Mr. GRIFFITH of Virginia.

H.R. 1440: Mr. SMITH of Missouri.

H.R. 1493: Mr. NUNNELEE.

H.R. 1507: Mr. PETRI, Mr. HOLT, Mr. YARMUTH, and Mr. PASCRELL.

H.R. 1508: Ms. MICHELLE LUJAN GRISHAM of New Mexico.

H.R. 1518: Mr. TONKO, Mr. WEBER of Texas, and Ms. WILSON of Florida.

H.R. 1528: Ms. MCCOLLUM.

H.R. 1529: Mr. DOGGETT.

H.R. 1566: Mr. GRIMM.

H.R. 1593: Mr. POCAN.

H.R. 1598: Mr. COOPER.

H.R. 1616: Ms. SEWELL of Alabama and Ms. SCHWARTZ.

H.R. 1620: Mr. VEASEY and Mr. JOHNSON of Ohio.

H.R. 1645: Ms. MICHELLE LUJAN GRISHAM of New Mexico.

H.R. 1663: Mr. JONES.

H.R. 1683: Ms. MICHELLE LUJAN GRISHAM of New Mexico.

H.R. 1690: Mr. MCGOVERN and Ms. JENKINS.

H.R. 1692: Ms. LOFGREN, Mr. BISHOP of New York, Mr. LANGEVIN, and Mr. GEORGE MILLER of California.

H.R. 1695: Ms. FUDGE and Ms. SCHAKOWSKY.

H.R. 1699: Mr. O'ROURKE and Mr. HIMES.

H.R. 1726: Ms. CLARKE, Mr. NUNNELEE, Mrs. BACHMANN, and Mr. MCNERNEY.

H.R. 1743: Mr. CONNOLLY.

H.R. 1750: Mr. SCHWEIKERT, Mr. ALEXANDER, and Mr. KELLY of Pennsylvania.

H.R. 1764: Mr. LATHAM.

H.R. 1771: Mr. BROUN of Georgia, Mr. COFFMAN, Mr. MORAN, Mr. LAMALFA, Ms. JENKINS, Mr. CARSON of Indiana, and Mr. SHIMKUS.

H.R. 1779: Mr. RAHALL and Mr. LANKFORD.

H.R. 1812: Mr. VAN HOLLEN and Ms. LOFGREN.

H.R. 1823: Mrs. NAPOLITANO and Mr. KILMER.

H.R. 1825: Mr. FLORES and Mr. NUNNELEE.

H.R. 1827: Mr. WELCH.

H.R. 1830: Mr. MCNERNEY, Mr. VEASEY, Ms. MCCOLLUM, Mr. LEVIN, and Mrs. BACHMANN.

H.R. 1833: Mr. COHEN.

H.R. 1842: Mr. DELANEY.

H.R. 1852: Mr. DENHAM and Ms. FUDGE.

H.R. 1856: Mr. MILLER of Florida.

H.R. 1874: Mr. HUIZENGA of Michigan and Mr. HARPER.
H.R. 1878: Ms. LOFGREN and Mr. PASCRELL.
H.R. 1880: Ms. HANABUSA.
H.R. 1890: Mr. PETERS of California.
H.R. 1893: Mr. LEVIN and Mr. HONDA.
H.R. 1897: Ms. ROS-LEHTINEN and Mr. ROHRABACHER.
H.R. 1975: Ms. LOFGREN.
H.R. 1979: Mr. GARAMENDI.
H.R. 1998: Mr. GEORGE MILLER of California, Mr. COURTNEY, Mr. MCGOVERN, Mr. HOLT, Mrs. CAROLYN B. MALONEY of New York, and Mr. LEWIS.
H.R. 2000: Mr. JEFFRIES.
H.R. 2002: Mr. CUMMINGS, Mr. MEEKS, and Mr. JONES.
H.R. 2003: Ms. SLAUGHTER.
H.R. 2009: Mr. HENSARLING.
H.R. 2014: Mr. SALMON.
H.R. 2016: Ms. JACKSON LEE and Mrs. CAROLYN B. MALONEY of New York.
H.R. 2019: Mr. MULVANEY, Mr. BARROW of Georgia, Mr. JOHNSON of Ohio, and Mrs. HARTZLER.
H.R. 2023: Ms. LEE of California, Mr. ELLISON, and Ms. PINGREE of Maine.
H.R. 2026: Mr. GRIFFITH of Virginia and Mr. NUNNELEE.
H.R. 2027: Mr. JOHNSON of Ohio.
H.R. 2030: Mr. HOLT and Ms. LOFGREN.
H.R. 2052: Mr. PAULSEN.
H.R. 2053: Mr. YOUNG of Indiana, Mrs. BLACK, Mr. GOODLATTE, and Mr. JOHNSON of Ohio.
H.R. 2055: Mr. STEWART.
H.R. 2061: Mr. RENACCI, Mr. CHAFFETZ, and Mr. CONAWAY.
H.R. 2068: Mr. COFFMAN, Ms. TITUS, Mr. GRIJALVA, and Mr. PERLMUTTER.
H.R. 2084: Mr. HONDA, Mr. RUNYAN, and Mr. HECK of Washington.
H.R. 2089: Mr. JOHNSON of Ohio.
H.R. 2125: Mr. WHITFIELD.
H.R. 2132: Mr. PETERS of California.
H.R. 2146: Mr. ISRAEL.
H.R. 2170: Mr. HONDA.
H.R. 2192: Mr. KLINE.
H.R. 2208: Mr. YOUNG of Alaska.
H.R. 2218: Mr. VISCLOSKY, Mr. TERRY, and Mr. KLINE.
H.R. 2232: Mr. COFFMAN.
H.R. 2237: Ms. LEE of California.
H.R. 2241: Mr. MATHESON.
H.R. 2250: Mr. WELCH and Mr. HIMES.
H.R. 2273: Mr. OWENS.
H.R. 2274: Mr. HECK of Nevada.
H.R. 2288: Mr. CARSON of Indiana and Ms. ESTY.
H.R. 2290: Mr. PETERS of California.
H.R. 2300: Mr. SOUTHERLAND.
H.R. 2310: Mr. COLLINS of New York and Mr. MCGOVERN.
H.R. 2317: Mr. COHEN.
H.R. 2319: Mr. KLINE.
H.R. 2322: Mr. ELLISON.
H.R. 2328: Mr. WALBERG, Mr. RUPPERSBERGER, and Mr. JOHNSON of Ohio.
H.R. 2329: Mr. LONG.
H.R. 2360: Mr. CUMMINGS, Mr. RIGELL, and Mr. MARINO.
H.R. 2368: Mr. TONKO and Ms. ESTY.
H.R. 2369: Mr. CONYERS.
H.R. 2370: Mr. CONYERS.
H.R. 2371: Mr. CONYERS.
H.R. 2372: Mr. CONYERS.
H.R. 2375: Mr. STIVERS, Mr. KING of New York, Mr. RYAN of Ohio, Mr. COBLE, Mr. MEADOWS, and Mr. TERRY.
H.R. 2389: Mr. COBLE.
H.R. 2403: Mr. NUNNELEE.
H.R. 2405: Mr. CONYERS.
H.R. 2407: Mr. KING of New York.
H.R. 2408: Mr. JOHNSON of Ohio.
H.R. 2422: Mr. HONDA.
H.R. 2446: Mr. GARY G. MILLER of California.
H.R. 2455: Mr. YOUNG of Alaska.
H.R. 2458: Mr. ROSKAM.
H.R. 2459: Mr. HOLT and Mr. HIMES.
H.R. 2464: Mr. JEFFRIES, Ms. CLARKE, Mr. RUSH, and Ms. KUSTER.
H.R. 2465: Mr. RICHMOND, Mr. JEFFRIES, Ms. CLARKE, Mr. RUSH, and Ms. KUSTER.
H.R. 2472: Mr. MEADOWS and Mr. HUIZENGA of Michigan.
H.R. 2473: Mr. MEADOWS and Mr. HUIZENGA of Michigan.
H.R. 2479: Mr. HUFFMAN.
H.R. 2492: Mr. NUGENT.
H.R. 2498: Mr. ENYART.
H.R. 2501: Mr. GRIFFIN of Arkansas, Mr. HUNTER, Mr. COLE, Mr. AUSTIN SCOTT of Georgia, Mrs. MILLER of Michigan, Mr. TIPTON, and Mr. BENISHEK.
H.R. 2504: Mr. BLUMENAUER and Mr. CICILLINE.
H.R. 2507: Mr. POSEY and Mr. DUNCAN of Tennessee.
H.R. 2511: Mr. MEADOWS.
H.R. 2514: Mr. COLLINS of New York.
H.R. 2523: Ms. MICHELLE LUJAN GRISHAM of New Mexico and Mr. MURPHY of Florida.
H.R. 2526: Mr. CONYERS.
H.J. Res. 47: Mr. GRIFFIN of Arkansas and Mr. TERRY.
H. Con. Res. 40: Mr. COBLE.
H. Con. Res. 41: Mr. CONYERS, Mr. COBLE, and Mr. SAM JOHNSON of Texas.
H. Res. 35: Mr. BARLETTA.
H. Res. 75: Mr. NUNNELEE.
H. Res. 111: Mr. COBLE and Mr. WHITFIELD.
H. Res. 112: Mr. FATTAH, Mrs. KIRKPATRICK, Mr. LANGEVIN, Mr. MILLER of Florida, and Mr. MESSER.
H. Res. 129: Mr. GOODLATTE.
H. Res. 131: Mr. ROYCE.
H. Res. 135: Ms. MCCOLLUM and Ms. KUSTER.
H. Res. 190: Ms. ESTY, Mr. CARSON of Indiana, and Mr. HARRIS.
H. Res. 208: Mr. CARTWRIGHT, Ms. SCHAKOWSKY, Ms. SCHWARTZ, Mr. QUIGLEY, Mr. PETERS of California, Mr. LANGEVIN, Mr. BISHOP of New York, Ms. LOFGREN, and Mr. PASCRELL.
H. Res. 213: Ms. BONAMICI and Mr. COHEN.
H. Res. 222: Mr. KING of New York, Mr. LANGEVIN, Mr. ROYCE, Mr. WILLIAMS, Mr. LAMBORN, Mr. CARSON of Indiana, Mr. MCGOVERN, and Mr. LOWENTHAL.
H. Res. 247: Mr. TIERNEY.
H. Res. 273: Ms. ROS-LEHTINEN, Mr. CHABOT, Mr. MCCAUL, Mr. KINZINGER of Illinois, Mr. WEBER of Texas, Mr. YOHO, Mr. SMITH of New Jersey, Mr. MARINO, Mr. MCKEON, and Mr. MEEKS.

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PROCEEDINGS AND DEBATES OF THE 113th CONGRESS, FIRST SESSION

Vol. 159 WASHINGTON, THURSDAY, JUNE 27, 2013 *No. 94*

Senate

The Senate met at 9:30 a.m. and was called to order by the Honorable BRIAN SCHATZ, a Senator from the State of Hawaii.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Now unto You, O Heavenly Father, be all praise and glory, for You have filled our lives with wonderful blessings.

Give to our Senators the blessing of an inward calm that will enable them to thrive during days of gloom. Fill their minds with noble thoughts, energizing them to persevere in fulfilling Your purposes. May Your peace, passing understanding, dwell in their hearts and minds. With deliberate intentionality, help them to seek Your answers to our national problems.

We pray in Your mighty Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. LEAHY).

The assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, June 27, 2013.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable BRIAN SCHATZ, a Senator from the State of Hawaii, to perform the duties of the Chair.

PATRICK J. LEAHY,
President pro tempore.

Mr. SCHATZ thereupon assumed the chair as Acting President pro tempore.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

SCHEDULE

Mr. REID. Mr. President, following leader remarks the Senate will resume consideration of the immigration bill. The time until 11:30 will be equally divided between the two managers of the bill, Senators LEAHY and GRASSLEY. At 11:30 there will be three rollcall votes—one on confirmation of the Secretary of Transportation, Anthony Foxx; the next vote will be on adoption of the committee-reported substitute amendment; and then we will have cloture on the final bill, as amended, if amended. We hope to complete action on this immigration bill—I will talk about that in a minute.

Everyone knows we are poised to pass a historic immigration bill. It is landmark legislation that will secure our borders and help 11 million people get right with the law.

I have indicated that we have three votes this morning. We hope to be able to work something out so we can have a vote sometime late afternoon or evening. There is no reason, after these votes today, to delay this. If people want to delay it, they can, but it will point toward the inevitable, which will be about 6 o'clock tomorrow evening. We can either wrap this up today, have some final speeches, vote on it, or wait until tomorrow because during this 30 hours postcloture nothing can happen procedurally.

I once again applaud the Gang of 8 for their work, which is commendable and very important for this institution. Without their diligent efforts, we would never have been able to come this far.

I commend Chairman LEAHY for the work he did in the committee with the markup, which took place over many weeks. I commend him for his work on this bill as manager during the weeks it has been on the floor, and my friend CHARLES GRASSLEY. Senator GRASSLEY and I disagree on occasion about substantive issues but never on a personal issue. He is a very remarkably good Senator and a fine man. I have enjoyed my relationship with him all these many years.

Whenever the vote is scheduled, whether it is tomorrow or today, I am going to ask that Senators be seated for the vote. I have had a number of requests from Democrats and Republicans that we do this. They are absolutely right. This vote is important. No matter how you feel about the legislation, it is important enough that we should do that. When it comes time for the vote, whenever it is worked out, we are going to have Senators here on the floor. If not, I am going to have a live quorum to get everybody here. This is not a vote where people should be straggling in and raising their hands at the Chair. We should have this in an orderly fashion.

I repeat, whenever we are able to schedule this vote, we are going to have people here before the vote starts or we will have a live quorum and get some activity in the Senate so we can do that.

My friend the Republican leader is not here. I would ask the Chair to announce the business of the day.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

BORDER SECURITY, ECONOMIC OPPORTUNITY, AND IMMIGRATION MODERNIZATION ACT

The ACTING PRESIDENT pro tempore. Under the previous order, the

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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Senate will resume consideration of S. 744, which the clerk will report.

The assistant legislative clerk read as follows:

A bill (S. 744) to provide for comprehensive immigration reform, and for other purposes.

Pending:

Boxer/Landrieu amendment No. 1240, to require training for National Guard and Coast Guard officers and agents in training programs on border protection, immigration law enforcement, and how to address vulnerable populations, such as children and victims of crime.

Cruz amendment No. 1320, to replace title I of the bill with specific border security requirements, which shall be met before the Secretary of Homeland Security may process applications for registered immigrant status or blue card status and to avoid Department of Homeland Security budget reductions.

Leahy (for Reed) amendment No. 1224, to clarify the physical present requirements for merit-based immigrant visa applicants.

Reid amendment No. 1552 (to the language proposed to be stricken by the reported committee substitute amendment to the bill), to change the enactment date.

Reid amendment No. 1553 (to amendment No. 1552), of a perfecting nature.

The ACTING PRESIDENT pro tempore. Under the previous order, the time until 11:30 a.m. will be equally divided and controlled between the two managers or their designees, with Senators permitted to speak for up to 10 minutes each.

RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The Republican leader is recognized.

Mr. MCCONNELL. Mr. President, at the outset of the debate we have been engaged in, I expressed my hope that we could do something about our Nation's broken immigration system. Millions of men and women are living among us without any documentation or certainty about what the future will bring for themselves or their families. Many of those who come here legally end up staying here illegally. We have no way of knowing who or where they are. And current law simply does not take into account the urgent needs of a modern rapidly changing economy.

Beyond all of this, it has long been a deep conviction of mine that from our earliest days as a people immigration has been a powerful force of renewal and national strength. Most of the people who have come here over the centuries have come as dreamers and risktakers, looking for a chance for a better life for themselves and for their children.

I can think of no better example of this than my wife, who came here at age 8 in the cargo hull of a ship because her parents did not have the money for a plane ticket. When she entered the third grade at a public school in New York, she did not speak a word of English. Yet, in just a few short decades, she would be sworn in as a member of the President's Cabinet—an honor and an opportunity she could hardly have guessed at when she was just a little girl. This is the kind of story that has made this Nation what it is. Legal immigration makes that possible.

So, yes, I had wanted very much to be able to support a reform to our Nation's immigration laws. I knew it would be tough, and the politics are not particularly easy either. But the fact is that our constituents did not send us here to name post offices and pass Mother's Day resolutions; they sent us here to tackle the hard stuff too.

Broad bipartisan majorities agree that our immigration system needs updating. In my view we had an obligation to our constituents at least to try to do it, to try to do it together and in the process show the world we can still solve national problems around here and reaffirm the vital role legal immigration has played in our history. So it is with a great deal of regret—for me, at least—that the final bill did not turn out to be something I can support. The reason is fairly simple. As I see it, this bill does not meet the threshold test for success that I outlined at the start of this debate. It just does not say—to me, at least—that we have learned the lessons of 1986 and that we will not find ourselves right back in the same situation we found ourselves in after that reform.

If you cannot be reasonably certain the border is secure as a condition of legalization, there is no way to be sure millions more will not follow the illegal immigrants who are already here. As others have rightly pointed out, you also cannot be sure that further Congresses will not just reverse whatever assurances we make today that border security will occur in the future. In other words, in the absence of a very firm results-based border security trigger, there is no way I can look at my constituents, look them in the eye and tell them that today's assurances will not become tomorrow's disappointments.

Since the bill before us does not include such a trigger, I will not be able to support it. It does not give any pleasure to say this or to vote against this bill. These are big problems. They need solving. I am deeply grateful to all the Members of my conference and their staffs who have devoted so much of their time and worked so hard over a period of many months to solve these problems. I am grateful to all of them.

While I will not be voting for this bill, I think it has to be said that there are real improvements in the bill. Current immigration policy, which prioritizes family-based immigration, has not changed in decades. This bill would take an important step toward the kind of skills-based immigration a growing economy requires. Through new and reformed visa programs, for instance, this bill would provide many of our most dynamic businesses with the opportunity to legally hire the workers they need to remain competitive and to expand. Some industries, such as construction, could and should have fared better, but on balance I think the improvements to legal immigration contained in the bill are very much a step in the right direction.

We have learned an important lesson in this debate. One thing I am fairly certain about is that we will never resolve the immigration problem on a bipartisan basis either now or in the future until we can prove—prove—that the border is secure as a condition for legalization. This, to me, continues to be the biggest hurdle to reform. Frankly, I cannot understand why there is such resistance to it—almost entirely, of course, on the other side. It seems pretty obvious to me, and I suspect to most Americans, that the first part of immigration reform should be proof that the border is secure. It is simply common sense.

Hopefully, Democrats now realize that this is the one necessary ingredient for success and they will be a little more willing to accept it as a condition for legalization because until they do, I for one cannot be confident that we have solved the problem, and I know a lot of others will not be confident either.

So this bill may pass the Senate today but not with my vote. In its current form, it will not become law. But the good news is this: The path to success, the path to actually making a law is fairly clear at this point. Success on immigration reform runs through the border. Let me say that again. Success on immigration reform runs through the border. Looking ahead, I think it is safe to say that is where our focus should lie.

SENATE RULES

Mr. President, briefly on another matter, another day has passed and the majority leader has still not confirmed that he intends to keep his word, which was given back in January of this year, with regard to the rules of the Senate. To refresh the memory of my colleagues, we had a big discussion at the end of the year about the rules and procedures in the Senate on a bipartisan basis.

Out of those bipartisan discussions came two rules changes and two standing orders that were passed consistent with the current rules of the Senate. In the wake of that bipartisan agreement, the majority leader gave his word to the Senate that the issue of the rules under which we would operate this year was settled.

Regretfully, he continues to suggest to outside groups, and occasionally on the floor as well, that maybe he didn't mean that, and that if our behavior—meaning the minority's behavior—doesn't meet his standards, he is still open to breaking the rules of the Senate to change the rules of the Senate.

We all know how this would occur if it did occur. The Parliamentarian would advise the occupant of the chair the way to change the rules of the Senate is with 67 votes. The majority leader, under that scenario, would move to overrule the Chair and with 51 votes establish a new precedent that would turn the Senate into the House.

It has been suggested maybe that would only apply to nominations, but as Senator ALEXANDER and I pointed out last week, of course, that would not be the case. The next time the other side had a majority—my side—I would have a hard time arguing to my Members we should confine a 51-vote majority to simply nominations, and I would be under intense pressure to say: Why not legislation. Senator ALEXANDER and I laid out what some of the top priorities would be that he would recommend to me—and many of them I agree with—for an agenda I would be setting instead of the majority leader. These are things such as the national right-to-work, repealing ObamaCare, establishing Yucca Mountain, the national nuclear repository. One gets the drift. These are many things the current majority would find abhorrent.

I hope this crisis will be averted. All it requires from my friend the majority leader is simply an acknowledgment that he intends to keep his word.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Rhode Island.

STUDENT LOAN RATES

Mr. REED. Mr. President, July 1 is less than 1 week away. We need to reassure students who will be taking out loans for school this fall that their interest rates will not double.

It is safe to say most of us on both sides of the aisle would want to see a long-term approach to setting student loan interest rates rather than a temporary extension of the current rate. We have been working, Senator HARKIN, Senator KING, Senator MANCHIN, Senator BURR, Senator COBURN, Senator WARREN, and many others about finding a way forward.

Unfortunately, all of the proposals that are on the table today would leave students worse off in the future, frankly, worse off than simply allowing the interest rate to double. There is a year or two, perhaps, where interest rates would stay below the rate of 6.8 percent. Then looking at rate trends, it looks quite convincing that these rates would surpass the current fixed rate and go higher.

We can not enact a long-term solution that is going to be bad for students. In fact, student groups and advocates have urged us to reject the so-called deals that are circling around with variable rates that are not capped that could lead to very high interest rates for students in a very short period of time.

One thing we have all been aware of for the last week or two is the dramatic movement of rates based on comments by the Federal Reserve with respect to their elimination of the quantitative easing program. The future looks as though we are going to see increased rates.

If we let them rise on students without any type of cap, I think we are going to, in a very short period of time, regret that we didn't take more time—be more thorough, and look at not just issues of rate structure but also incentives to keep costs down in college, and at refinancing options, because it is a staggering debt load already on students. We haven't done any of this.

As a result, today, I introduce, along with many of my colleagues, the Keep Student Loans Affordable Act. I wish to thank Senators HAGAN, FRANKEN, WARREN, HARKIN, STABENOW, BOXER, and many other colleagues.

This legislation will simply extend the current rate at 3.4 percent, the rate we have today for need-based loans. These are the subsidized loans that go to low- and moderate income students. It would extend them for 1 more year so we do have the time, and let's say we should and must take the time to thoughtfully develop a long-term approach to the student loan program. It is not just coincidental that we must reauthorize the Higher Education Act this Congress. We can use this time properly to ensure that we do, in fact, have a comprehensive solution that will make students better off, not just in the next several months but in the long run.

Instead of charging low and moderate income students more for their student loans, our legislation would extend the 3.4-percent interest rate by closing a loophole in the tax laws, which allows fairly wealthy individuals to defer taxes on their IRA or 401(K) type accounts. This provision would save taxpayers $4.6 billion over 10 years, which will more than cover the cost of extending the rate on subsidized student loans.

We are moving forward on a basis where we are not increasing the deficit. What we are doing is giving students another chance to maintain an appropriate loan level at 3.4 percent for an additional year. We have to take action to stop the interest rates from doubling.

Student loan debt is the next big financial crisis facing this country. We already understand from analysts that people in their twenties are putting off home purchases, automobile purchases, and are not doing what their parents' generation did because they have so much debt. They cannot move into the economy as their parents did. It is the second most outstanding household debt behind mortgage debt in the country. It surpassed credit card debt. It is affecting the trajectory of young people's lives.

Again, my generation thought by their late twenties they would own a home, in fact, perhaps moving on, fixing up, and looking at second homes. This has all changed.

Today students are caught between a rock and a hard place as they have all this debt they must carry forward.

The other thing that is so interesting is we are scrambling around here trying to figure out ways to deal with this issue. It turns out, in fact, the Congressional Budget Office has projected the loan program is actually generating revenue more than $50 billion this year and over $180 billion between now and 2023. We are actually making money on these loans. Frankly, if we don't look at the program and fix it, the irony will be students will pay more and the government will take in profits. In the long run, I think we will be worse for it because we will be depriving a whole generation of the kind of education opportunity they need.

I think we have to do more. I introduced a long-term solution in April, the Responsible Student Loan Solutions Act, which will set student loans based on the actual cost of financing and administering the program. It will also protect students with a cap. I think that is essential. We have to understand the interest rates might rise to a point where we need to cap them to protect students. It would also allow refinancing, which is something that has not been seriously discussed. We frankly need more time to discuss that. We need the time; let's take the time.

I urge my colleagues to join me. Let's take up and pass the Keep Student Loans Affordable Act. Give students the chance to go to school this fall with a 3.4 percent subsidized interest rate. Give us not only the chance but give us the incentives and give us the marching orders to fix this problem comprehensively.

With that, I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Alabama.

Mr. SESSIONS. Mr. President, the bill before us, S. 744, 1,200 pages, is promoted with high ideals, but it does not do what is promises. It is fatally flawed. If passed, it will not work—not because of the goals it states to have but because it won't work.

This flawed bill did not come about because of inadvertent errors that were a part of it, chance, ignorance, or mistake. The policies reflected in this piece of legislation came about as a direct result of the fact that the forces that shaped it had goals that were important to them, but these goals are not coterminous with and are not in harmony with the interests of the Nation as a whole.

The real politique Gang that put it together seems fine with that. They openly reported for weeks that these interests were in meetings in some room in secret, working through this legislation and their differences. Soon, they said, the Gang of 8 would have a bill that, having been blessed by these powerful special interests they had invited to the meetings, would be delivered to the Senate floor, masters of the universe that they are, all for us to adopt without complaint and with celebration.

They were so proud of this process that the eight would stick together all for one and one for all and defeat any amendment that dared to alter the delicate agreement they talked about. They would consider amendments, of course, oh, certainly. We will consider

amendments, but nothing serious that impacts the fundamental agreement that we have. One would not want to disturb that delicate balance, of course, of those very sensitive forces that were in the meetings. The folks who came together only for the common good—who understood the real needs of working Americans who are out of work, who have seen their paychecks decline, who have their spouse, their husband, their wife not able to find a job, their children not able to find a job, their grandchildren not able to find a job—they weren't thinking about them.

They included Mr. Richard Trumka, the top union boss; Mr. Tom Donohue, the top Chamber of Commerce boss; the agribusiness conglomerates; the activist group La Raza. Also there were the immigration lawyers association, high-tech billionaires, having delivered magnificent computers, who now desire to deliver public policy; and the meat packers.

One must know, friends, that when the Gang of 8 said there was a fragile balance, a delicate agreement, they weren't talking primarily about the agreement they had among themselves as Senators. That was secondary. The agreement they were referring to was the special interest forces that were in that secret room writing that bill.

Those interests, those forces, had signed in blood. The Gang of 8 then signed in blood to fight off any serious objections or ideas that would violate that agreement.

Although the Gang and the cabal that had confederated and combined together to set the immigration policy for the United States of America were desperate to keep it secret, there was another dominant force involved in the legislation, and that was President Obama. His team was there every step of the way. His team, which has done more to undermine law enforcement in the immigration area than any President in history, was there every step of the way. They were surely providing much of the drafting work, the legal work, and the support to get the detail done, which the Senators, of course, didn't have time to do. They didn't have time to study all the language of the bill.

We know about this because this week Ms. Munoz, President Obama's top immigration official, formally a top official in La Raza who said it was immoral for businesses to be checked as to whether they were hiring illegal workers—she couldn't keep it a secret. She made sure to reveal to the New York Times that she and President Obama were there every step of the way, writing the bill, being engaged in it. All of this was, of course, much to the discomfort of the Gang, especially the Republicans, who had been anxious to declare the bill was written by the job creators, entrepreneurs, and the Chamber of Commerce.

It went to the Judiciary Committee for a markup, and a very favorable Judiciary Committee it was. Four of the Gang of 8 are on the committee. They started executing their plan. Senator SCHUMER on occasion would give Republican Gang members on the committee a pass. He was overheard on the mike saying to a staffer that Republicans can have a pass on this vote. They could break ranks—the Republican Gang members—and vote with the people on an issue that came up in Judiciary Committee as long as there were enough votes otherwise to kill that pesky amendment—and so it was in committee.

One other important thing, the money. There would be money to run campaign-like ads all over America to promote the bill, to promote the Senators, and to protect the Senators from criticism. And who knows, maybe to provide some political contribution sometime in the future for those who vote right.

The combine had it all rolling until last week on the floor of the Senate when the wheels almost came off. Senators and the American people saw that S. 744 had more holes than Swiss cheese. Clearly, the bill lacked the simple conviction that after the amnesty occurred, the lawlessness must end. There was not a conviction anywhere displayed in that legislation that the people who wrote it had a determination not to do more than provide the amnesty and actually provide a lawful system in the future to ensure that lawlessness would not be a part of our future. You can see it in hundreds of different places.

For example, the metrics—the standards for enforcement at the border in the bill—were weakened. Current law had higher standards of enforcement at the border than the new bill, which promised to be so tough—toughest bill ever, those TV ads said. Tough as nails, Senator SCHUMER said. But it weakened the standards for enforcement at the border.

The E-Verify system for the workplace, which can be effective in eliminating the hiring of illegal workers, was pushed back for five years, and a whole new system was designed instead using the one currently in existence. It can occur now. The system is 99 percent effective now. Why would we want to wait 5 years, unless we really weren't interested in seeing it happen?

Interior enforcement was diminished. The ICE officers have written us and told us this will make it worse. They are diminished in their ability to enforce the law. All kinds of discretion is given that will allow lawyers to block deportations and allow politicians to avoid the carrying out of the law.

The citizenship process is deeply damaged and unable to function effectively, according to the Citizenship and Immigration Services officers who process these applications. They say there is no way they can process these applications.

An amendment I offered to have at least face-to-face interviews with many of the people—at least those who may pose some risk—was voted down. They are not even going to have interviews with the people who apply for legal status under this bill.

The entry-exit system, which provides that an individual must be clocked in when they come into the country and clocked out with a biometrics—fingerprint—system, that system was destroyed. Current law requires a biometric entry-exit system at all land, sea, and airports. This bill weakens that dramatically, makes it utterly unenforceable by changing biometric to electronic, whatever that means, and only requiring it to be at air and seaports.

The ACTING PRESIDENT pro tempore. The Senator's time has expired.

Mr. SESSIONS. I ask unanimous consent to have 1 additional minute, Mr. President.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. SESSIONS. So, Mr. President, I would say this bill fails at point after point after point after point. It is not a bill that reflects a commitment to a lawful system of immigration in the future. We will admit dramatically more people than we ever have in our country's history at a time when unemployment is high. The Congressional Budget Office has told us that wages, average wages, will go down for 12 years, that the gross national product per capita will decline for 25-plus years, and that unemployment will go up.

This is not the right thing for us to pass because the amnesty will occur, but the enforcement is not going to occur and the policies for future immigration are not serving the national interest.

I urge my colleagues to vote no on cloture, to not let this bill pass today but require that it be subjected to more amendments and more study at a time to come when we can pass legislation that will actually work. This cannot work as it is. We should not let it go to final passage today.

I thank the Chair, and I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Tennessee.

Mr. CORKER. Mr. President, I understand I have 10 minutes allotted; is that correct?

The ACTING PRESIDENT pro tempore. The Senator is correct.

Mr. CORKER. I want to thank my friend from Alabama, who has been down here vigorously and shows a lot of stamina. I have a sense he is not going to support this legislation.

I do want to talk, though, a little bit about this legislation this morning. I was asked yesterday by a reporter about the folks back home in Tennessee and how they feel about the legislation. No doubt there is a lot of controversy around this legislation. There have been a lot of statements made that, candidly, don't pass the trying-to-get-it-right test.

What I said to this reporter was that I have a lot of faith in Tennesseans. I believe Tennesseans, at the end of the day, will look at this legislation and study it, not just listen to what has been said by numbers of bloggers and people who are trying to spin things in such a way as to create confusion. At the end of the day, I believe when Tennesseans see what is in this legislation, the majority of them, the large majority of them, will believe this legislation improves the conditions from where we are today. I believe they will believe that.

Of course, it is my job to go back home to explain to Tennesseans directly, as I do on all controversial issues, why I support this legislation and why I think this is good for our country. But let me walk Tennesseans and Americans and people here in the Senate through, from my perspective, where we have been on this piece of legislation.

First of all, this bill was introduced to the Judiciary Committee months ago, and hundreds and hundreds of amendments were added in the process and dealt with during that judiciary markup. It went through regular order, something all of us around here have been hoping would occur with all legislation, which is that it goes through the committee process and comes to the Senate floor.

The bill has been on the floor now for 3 weeks, and I know a lot of people around here are complaining about the number of amendments. But let's face it, for a long time people on my side of the aisle would not let amendments be heard. It is just the truth. I mean, it is what happens with controversial legislation. A lot of times when people don't want to see something pass or see it improved, there are opponents to actually even hearing amendments.

So we had this ruse on the floor of the Senate yesterday about all this. Look, I would like to have 100 amendments on the floor. I am all for it. Bring it on. But the fact is, let's face it, both sides have been involved in keeping that from happening, and most recently it has been many of my friends on this side of the aisle.

Republicans gathered around the trigger that a Senator offered relative to border security, and it had to do with a 90-percent effectiveness trigger. That is where negotiations around this bill really hung up. But let me talk to people a little about this trigger.

When we look at the trigger that was in the border security bill, that I candidly supported, and many folks on my side did, the trigger was so subjective I would call it the Cheetos bag trigger or the granola wrapper trigger or the plastic bottle trigger. I want to make sure people understand the way this trigger was and why it wasn't acceptable to the majority of people in the Senate.

The way this trigger works is it uses something called sign cuttings. This is a term that is used to track people through the desert and track them through the mountains. It has been used in the country for hundreds of years, especially in places that are less urban. So here is what was happening with that trigger.

Border Patrol agents were going to be able to look at a Cheetos bag or an empty granola bar wrapper or an empty Coca Cola can and say: I don't know, did 10 illegal aliens eat out of that Cheetos bag or did 1? I don't know. And it was that very subjectivity that people realized was going to cause people to be able to move the goalpost.

I am making light of it, but it is just true. This is the way, believe it or not, we keep stats on the border right now, in this very subjective manner. How many people attempted to get through? We didn't see them, but we think maybe 10 people went up through that crevice.

It reminds me of when I go hunting once a year down in Albany, GA. I have a friend who allows me to hunt on his place, and when a covey of birds flies by, he says: I think there were 12, and he marks that down in his hunt log. Now, I am sure at the end of the year he gets somewhat close to how many birds were on his plantation, if you will, but we are looking at something that was going to matter as it relates to green cards, and it was subjective and was put in place, candidly, in such a way many people thought the goalpost was going to be moved.

So Senator HOEVEN and myself, working with a lot of others in the body, came up with tangible—tangible—triggers and not triggers some Border Patrol agent could fudge one way or the other. Not that anyone would attempt to, but one can understand, again, when someone is trying to guess how many people came through that they didn't even see—let me say that one more time.

One of the denominating factors was the Border Patrol agents were going to have to say how many people came through the border that they didn't see. Let's guess. By the way, let's make it exactly 90 percent.

So Senator HOEVEN and I came up with an amendment that everybody could understand with 20,000 Border Patrol agents, a doubling along the southern border—20,000 agents. Every American can know whether that has happened. We added $4.5 billion worth of technology, and we listed the inventory. Every American can see whether that has happened. We have a fully implemented E-Verify. We don't want employers paying people under the table. We don't want people hiring folks who are here illegally. So that is fully implemented—fully implemented before a green card.

We also have an entry-exit visa program. I think many people know the reason we had the terrorist attack on 9/11. We had people who overstayed their visas. Americans don't want to see that happen. So we have a tangible trigger—a tangible trigger—of making sure we have an entry-exit visa program.

We also have another 350 miles of fencing. Now, a lot of people say that is not required, but it is absolutely required. Anybody who would say that hasn't attempted to read the legislation.

So these are five tangible triggers. It is not a Cheetos bag trigger—not a Cheetos bag trigger but five tangible triggers that allow people to know whether we have actually met the goals that are in this bill.

There was a lot of discussion yesterday about an E-Verify amendment. As has been said, it is an amendment that could have easily been added to this legislation. It is a fine amendment. I would certainly be glad to support it. Candidly, I think it is an amendment, if it made it to the floor, that would be one of those 100-to-0 or 98-to-2 votes. Maybe it could pass by voice vote. It is not controversial. But the fact is the bill has a lot in there relative to E-Verify, and no doubt the House can make that even stronger.

Some of my friends are saying this is an amnesty bill. I don't know if people have looked at the provisions about people coming in out of the shadows and having to pay taxes—back taxes—and they will have to pay fines. They will have to pay taxes, by the way, into the U.S. system for 10 years and cannot receive a single benefit from the U.S. Government. That is the reason this bill scores so favorably from the standpoint of generating revenues into the Treasury.

But let me just say this. Nobody in this body has offered an amendment that would round up everybody in this country who is here illegally and deport them out of this country. Not a single soul has offered an amendment to do that.

Basically, what we have is a situation where we can cause people to come in out of the shadows, pay fines, pay taxes and receive no benefits and go to the back of the line. Everybody who came here properly or who has applied properly would be processed first. It is going to be a minimum of 10, maybe 13, 14, 15 years before people even have the ability to get a green card.

The option is to vote against this bill and basically say we are not going to do anything about the people who are here; we are OK with employers continuing to pay them under the table; we are OK with them continuing to not pay taxes, because not a single one of my colleagues has offered an amendment to round up these 11 million people in our country and ship them out. I call that de facto amnesty.

Some people have talked about the process. One of my closest friends in the Senate said, I don't like the process. We should have been working with the House from the very beginning.

I am not a Member of the Gang of 8, but we had eight Senators who worked for a long time to create a bill. The same thing is happening in the House right now.

The ACTING PRESIDENT pro tempore. The Senator's time has expired.

Mr. CORKER. I ask unanimous consent for 2 more minutes.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. CORKER. The process is that the House passes legislation, if they so choose. They may not choose to take up immigration. My sense is they will not take up this bill; they will take up their own bill. The way the process works is we conference those, and we end up with a better piece of legislation.

Fiscally, if this bill passes, we are spending a lot of money on border security—and some people have said it is too much. But, again, I have had no amendments over here trying to lower the standards that were put in place by the Hoeven-Corker amendment. The fact is we would be spending $46 billion on border security to have these five tangible things occur, and we would be getting $197 billion back in the Treasury if we do this. I have never been able to vote for a piece of legislation that had this much fiscal benefit for our country that didn't raise anybody's taxes. Then we have seen the whole issue of the economic growth that is going to be created for our country if we pass this bill.

I believe voting against this bill is voting against border security. What that means is that things are going to stay exactly as they are. We are going to have porous borders, no entry-exit visa program, no E-Verify system. I think voting against this bill is voting for the status quo, which is, in essence, de facto amnesty.

I believe this bill takes a step forward. I believe it is good for our country in every single way I can imagine, and later today I plan to support this bill. I hope it is improved in the House.

I cannot imagine there is anybody in this body who believes where we are today is satisfactory. I came here to make progress, to solve problems, and I appreciate those involved in allowing me to help with that process.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from North Carolina.

Mrs. HAGAN. Mr. President, I ask unanimous consent that all quorum calls prior to the votes at 11:30 a.m. today be equally divided.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mrs. HAGAN. Mr. President, I ask unanimous consent to speak as if in morning business for up to 10 minutes.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

NOMINATION OF ANTHONY FOXX

Mrs. HAGAN. Mr. President, I rise to say a few words about Anthony Foxx, the President's nominee to head the Department of Transportation that we will be voting on later this morning. While I am going to be sad to see him leave our local government in Charlotte, I am pleased the entire country will soon benefit from his leadership.

Anthony Foxx earned an undergraduate degree in history from Davidson College in North Carolina and blazed a trail as the school's first African-American student body president. He then received a law degree from New York University and held positions in all three branches of the Federal Government. Beginning as a judicial clerk on the U.S. Court of Appeals for the Sixth Circuit, he served ably as a lawyer for the Department of Justice and counsel for the House Judiciary Committee.

In 2005, Anthony was elected as an at-large member of the Charlotte City Council. During his 4 years of service as a councilman, he chaired the Transportation Committee and was a member of the Economic Development and Planning Committee. Since 2009, he has served as mayor of Charlotte, one of the country's fastest growing cities.

When taking office, Charlotte's unemployment rate was almost 13 percent. Through his tireless efforts, Mayor Foxx helped attract and create more than 8,400 new jobs. Most important, Mayor Foxx has been a true champion of transportation and infrastructure development, securing forward-looking investments in Charlotte's roads, airports, and mass transit. Under his leadership, I–485 has been approved for expansion; he secured funding toward the completion of the Blue Line Light Rail Extension Project, and oversaw the opening of the third runway at Charlotte Douglas International Airport. All of these projects occurred as we worked—and are still working—to climb out of the recession.

These smart investments in infrastructure and transit-oriented development are continuing to fuel Charlotte's economic growth.

Light rail has played an important role in sustaining this growth, with more than 19 million riders since it opened in 2007 and an average of 15,000 riders every day. The light rail is helping to revitalize Charlotte's historic South End neighborhood, which saw the city's first railroad line in 1850. The neighborhood is now home to more than 750 businesses and 11 new residential districts.

Investments at Charlotte airport are establishing the city as an international hub. With direct flights to London and soon Brazil, Charlotte and North Carolina are increasingly connected to businesses across the globe.

The I–85 Corridor Improvement Project, which has been a top priority for the State for many years, I am pleased to say, is finally moving forward. This improvement project relies heavily on support from local leaders, including Mayor Foxx, and is expanding and improving this integral roadway so it can meet the needs of businesses and residents for years to come.

Anthony's direct experience working with the transportation departments at the Federal, State, and local levels and his proven record of success make him well prepared to serve as the next Secretary of Transportation.

I have worked closely with Mayor Foxx during my time in Washington, and I have the utmost confidence he will serve in this role with great distinction. I thank him for his dedication and willingness to step up when service is needed, and I am pleased the Commerce Committee approved Anthony Foxx's nomination with unanimous bipartisan support.

Mayor Foxx is a true champion of transportation and infrastructure development, and I encourage my colleagues to support his nomination.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, the Gang of 8 in their framework for comprehensive immigration reform said the following:

> Our legislation will provide a tough, fair, and practical roadmap to address the status of unauthorized immigrants in the United States that is contingent upon our success in securing our borders and addressing visa overstays.

It sounds good, doesn't it? They said their plan would be contingent upon success.

But the bill doesn't do that. The bill doesn't say the border has to be secured. It doesn't say that we need to see results. It only throws more money at the problem and puts more boots on the ground. Of course, that is a good start. But as we have seen before, that is not enough. It is not enough to ensure we will not be back here in the same place 25 years down the road, devising new plans. So I am going to take a few minutes to discuss the legalization program created in this bill.

Since I was here in 1986, I know that loopholes allowed people to gain legalization even if they weren't entitled to it. We had problems with fraud and abuse back then, and I am afraid it will be the same if the bill is passed in its current form.

Time and time again we have been told the bill will allow people here illegally to register and earn legal status, then become contributing members of society. Yet the bill fails to address how to prevent a continued influx of individuals who will replace those currently living in the shadows.

Take the CBO report as an example. CBO said illegal immigration would only be reduced by 25 percent. That is not acceptable, especially given the promise of the Gang of 8 that the bill would ''be a successful permanent reform to our immigration system that will not need to be revisited.''

The legalization program begins upon the mere admission of a strategy submitted by the Secretary of Homeland Security. So almost immediately, millions of people will come forward and be made lawful.

Remarkably, the bill virtually suspends enforcement during the 2½-year legalization application period. It prohibits law enforcement from detaining

or removing anyone claiming eligibility without any requirement to prove they are, in fact, eligible. Law enforcement is even required to inform those here illegally about legalization and give them the opportunity to apply.

Under the bill, undocumented immigrants already here can apply for and receive legal status, even if they have committed document fraud, provided false statements to authorities, and absconded court-ordered removal proceedings.

During this time, there is an enforcement holiday. Enforcement officers would be limited in detaining or removing any individual who merely claims eligibility for RPI status, regardless of whether there is proof to back that up.

Perhaps the enforcement holiday would be mildly concerning if we were dealing with individuals who only violated civil immigration laws. Unfortunately, the bill extends to those with criminal records. This includes individuals who have gang affiliations, even felony arrests, and even multiple misdemeanor criminal convictions.

Moreover, the bill permits individuals who attain legalization to continue criminal behavior, so long as their behavior and subsequent convictions remain below the eligibility threshold. In fact, the bill goes even further and—can you believe this—provides the Secretary with waiver authority in order to dismiss misdemeanor criminal convictions for purposes of determining eligibility for legal status.

The bill does not limit those outside the country from applying for legalization. The bill states that individuals who have previously been deported or otherwise removed from the country are ineligible for RPI status. However, one need only turn a few pages to discover that the Secretary has sole, as well as unreviewable, discretion to waive this provision and permit large classes of individuals to apply for legalization.

There is yet another way of providing and allowing individuals who have been removed or reentered illegally to apply for status, if they are fortunate enough to have a relative who does, in fact, qualify for legalization. This weakens and undermines even current law where Congress has already declared that individuals who reenter illegally are not entitled to immigration benefits.

Amendments to prohibit those ordered removed, those currently in removal proceedings, and those who have absconded and failed to show up for removal proceedings from applying or being granted legal status were voted down during committee considerations. An amendment to prevent spousal abusers, child abusers, drunk drivers, and other serious criminals from obtaining legal status was also rejected.

I know the public listening or reading these records will not believe that Congress could do those things, that it is OK to have those people with that sort of criminal activity being legalized, but that is what the bill allows. These amendments also could have been voted on during floor debate, but the majority refused to allow their consideration.

Now, the process for obtaining legalization is ripe for abuse and potentially encourages crafty behavior for individuals to game the system.

Under the bill, individuals applying for legal status are permitted to file numerous amended applications in the event their initial application is denied for failure to complete properly or provide required documentation. In practice, one could continue to file numerous amended applications, knowing each application is incomplete, resulting in a perpetual limbo where an individual can remain here for an indeterminate time without any possibility of removal.

Another area of potential abuse permits otherwise ineligible individuals to remain indefinitely in the United States.

The bill provides for a stay of removal until a newly created administrative appellate review process of the application has been exhausted. One need only imagine the vast loophole created that will allow ineligible applicants to remain in the United States pending a typically extremely lengthy review process.

When combined with a never ending application process and an expansive, time consuming appeals process, individuals can remain here for years without ever obtaining legal status, and without any fear of removal.

Under the bill, people with RPI status must prove that they have been employed during the duration of their status. Yet, the bill allows people to prove that employment—which is required to get a green card—using merely a sworn affidavit.

We know from our 1986 experience that sworn affidavits are highly unreliable, and incentivize massive fraud. They are not verifiable or trustworthy.

A New York Times article from 1988 shows just how easy it was for immigrants to get false affidavits. During one investigation, the Immigration and Naturalization Service arrested seven people for selling fraudulent affidavits to new immigrants.

One of these seven fraudsters ran a scheme that sold affidavits to 1,400 people here illegally. They had thousands more applications filled out and waiting for others. In fact, while investigators were on site seizing the evidence, dozens of individuals arrived to purchase more fraudulent affidavits. Buying and selling fake documents was a thriving business and can be again.

According to the article, one person arrested had 364 fraudulent affidavits on her five-acre farm.

A third of these fraudsters went from farm to farm, offering false affidavits to farmers for prices from $950 to $3,000.

The Majority has rejected several amendments that would improve on the 1986 legalization. That is unfortunate. The bill will lead to further fraud. It is my hope these provisions can still be fixed before any bill is sent to the President.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Minnesota.

Mr. FRANKEN. Mr. President, I rise today to speak in support of the immigration reform bill that we are going to vote on soon. I want to bring a Minnesota perspective to this debate. I want to talk about how this bill will help Minnesota businesses and agriculture while also helping and protecting Minnesota workers. I also want to talk about how this bill will help Minnesota families and communities.

Minnesota was admitted to the Union in 1858. For the first 30 years after Minnesota's founding, no fewer than one-third of Minnesotans were immigrants born abroad. Our State did not suffer from that—it thrived. Our fields were first tilled by Swedish immigrants. Their crops filled 2 million acres. Our iron mines in the north depended on Finnish labor. Norwegians were critical to our logging industry, while the Danes, who came to Minnesota after the Civil War, made our State a leader in dairy farming.

Today, immigrants are about 7 percent of Minnesota's population. Most of them come from Asia, and Latin America, and Africa, rather than Europe. But the contributions of immigrants to Minnesota's economy and to our communities are no less important.

I am going to vote for this bill because of what it will do for Minnesota's economy. This is clearest when it comes to Minnesota's agricultural industry, particularly our dairy farms. Minnesota is the Nation's sixth largest dairy producer. Five percent of our nation's cows are in our State.

But for years, I have been meeting with dairy farmers and they told me they can't get the workforce they need. They can't find enough American workers—and the Nation's agricultural guestworker program is open only to seasonal workers. Unfortunately, you can't milk cows seasonally. If you did, they would just get cranky, the cows.

For years, I have been calling for an immigration bill to fix this problem by opening our guestworker program to dairy farmers. This bill does just that.

This bill will not just help agriculture. A lot of industry in Minnesota is in the high tech and medical sectors—companies like 3M and Medtronic. Unfortunately, our visa system works against these companies because, while the University of Minnesota is minting new Ph.D.'s in STEM fields, our system sends many of our top foreign graduates right back to their home countries.

Thanks to the work of my fellow Minnesota senator, Senator KLOBUCHAR, this bill will make it easier for Minnesota companies to recruit and

hire top minds, regardless of where they come from.

I am also proud that this bill includes two amendments that I wrote that will protect small businesses.

A major component of this bill is to create a mandatory electronic employment verification system called E-Verify. But small businesses in Minnesota were initially concerned about how E-Verify would affect them.

My first amendment creates a special office within the Department of Homeland Security whose sole job will be to give workers and small businesses quick, in-person assistance if E-Verify does not work the way it should. My other amendment will keep pressure on DHS to lower E-Verify error rates that, in the past, have caused major headaches for small businesses and employees alike.

While this bill will help our businesses, it also has solid protections for American workers.

In negotiations, the AFL–CIO demanded that before an American employer can hire a foreign guestworker, that employer has to aggressively advertise for and recruit American workers. If a business breaks these rules, it can get kicked out of the guestworker program. If the protections in this bill prove insufficient, I will fight to improve them. But for now, I think protections negotiated by the AFL–CIO are adequate for moving forward.

So this bill will protect workers today. But it will also help them for decades down the line by bolstering our Nation's safety net. Our changing demographics have put a strain on our Social Security system. More young workers paying into the Social Security system will help ease that, and that is precisely what this bill will provide: Census figures show that 48 percent of immigrants in the U.S. are between the ages of 20 to 44; for native-born workers, that figure is about 31 percent.

Finally, this bill will help our economy by helping our Nation's bottom line. According to the non-partisan Congressional Budget Office, immigration reform will decrease our deficit by $175 billion over the next decade, and an additional $700 billion over the following decade. That's $875 billion dollars—close to a trillion dollars in deficit reduction.

This bill will be a boon to Minnesota's economy, and to our Nation's economy too. But this bill is not just about economics. It is also about our values. It is about living up to the promise engraved on the base of the Statue of Liberty:

> Give me your huddled masses yearning to breathe free. Send these, the homeless, the tempest-tost [sic] to me. I lift my lamp beside the golden door.

Minnesota played a special part in that promise. For decades, Minnesota has welcomed more refugees and asylees than almost any other State.

We have welcomed the Hmong and Somalis and so many others because it is the right thing to do. In the same way, a big part of this bill is about doing the right thing and helping the least of our brothers and sisters.

Last October I traveled to Northfield, MN, where I visited a program for Latino high school students called the ''TORCH'' program—that stands for Tackling Obstacles and Raising College Hopes. This is an amazing program that has more than doubled the high school graduation rate for Latino students.

During my visit I met many undocumented students who were brought here by their parents as young children—and who were thus undocumented through no fault of their own.

For years, these kids watched their classmates apply to college and plan for their careers, but they knew that was not for them—because they could not work legally or serve in our military.

Then, last June, the President took executive action to protect these kids from deportations and let them work legally. Their teachers told me what an enormous difference it made for these kids. For the first time, they could see they had a future—they could go to college or join the military. And that was just because an executive order that did not have the force of a statute.

With this bill, thanks to the inclusion of the DREAM Act, authored by Senator DURBIN, their hope for the future will be a certainty. Good for those kids. And you know what, good for us, because those kids are going to work wonders.

I am especially proud of a bill I wrote that also helps children and that is included in the larger bill we are debating, and that is the HELP Separated Children Act.

My bill was inspired by what happened in Worthington, MN in December 2006, when Immigration and Customs Enforcement carried out enforcement actions in 6 States and arrested hundreds of unauthorized immigrants. Tragically, those raids also left many children—most of them citizens—without their parents and with no way to find them. One 2nd grader in Worthington came home from school to find his 2-year-old brother alone and his parents gone. For the next week, he cared for his brother while his grandmother drove from Texas to meet them.

Over the past 2 years, more than 200,000 parents of citizen children were deported. These children are often abandoned at home or at school and can go for months without speaking with or visiting their parents. My HELP Separated Children Act will lay down basic humanitarian protections for children in immigration enforcement. It will make sure that parents and children can stay in contact, and will make sure that parents can participate in court proceedings relating to their children.

My bill was co-sponsored by Senators GRASSLEY, COONS, CORNYN, HIRONO, CRUZ, FEINSTEIN, LEAHY and BLUMENTHAL. Of the 200 or so amendments that we debated in the Judiciary Committee, this was the only one that was passed on a unanimous 18 to 0 vote.

I am also proud that the bill includes amendments I proposed to help victims of domestic violence, as well as young children who are themselves involved in immigration proceedings.

We have a rare opportunity before us. We have a chance to vote on a bipartisan bill written by a bipartisan group and supported by both the AFL–CIO and the Chamber of Commerce. The bill will help our economy, secure our border, and give millions of undocumented people a tough but fair path to get right with the law. And on top of all of this, this bill will save the American people hundreds of billions of dollars. I am proud to support this bill, and I urge my colleagues to do the same.

Before I close, I want to take a moment to congratulate the members of the Gang of Eight—Senators SCHUMER, MCCAIN, DURBIN, GRAHAM, MENENDEZ, RUBIO, BENNET and FLAKE. This bill is an example of the Senate at its best. It speaks not just to the ability of the Senators in the Gang—but also to their courage.

I would also like to recognize Chairman LEAHY for managing this markup and this debate so expertly.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, I just want to speak for a few minutes. I spoke at length earlier this week.

I thank Senator FRANKEN for his kind words and the work he has done on this bill, and also Senator LEAHY, as well as all of those involved with this bill. Managing the bill this morning, it is, again, awe inspiring to see all the work that has been done on both sides of the aisle—whether people will vote for the bill.

I expect we will have a strong bipartisan vote on this bill after the civil debate we have had. This is an incredibly big and important issue for this country. I have been involved in this debate since 2007. We have seen everyone come together from labor, business, farm groups, migrant workers, immigrant workers, and religious groups. We are finally going to get this incredibly important bill done.

As Senator FRANKEN noted, the piece that has been most important to me—in addition to the DREAM Act and all of the work that had to be done in law enforcement—was the work we have done to improve our legal immigration system. We are a country built on immigration. Thirty percent of our U.S. Nobel Laureates were born in other countries; 90 of our Fortune 500 companies were formed by immigrants. We cannot continue to compete in the global economy if we close our doors to those who think and make things and invent things. In part, that is what most excites me about this bill, the

work we have done to improve the legal immigration system.

I thank my colleagues, the Gang of 8, and our great Judiciary Committee that debated and marked up this bill into the night day after day. We should be proud of this bill, and I ask my colleagues to support it.

With that, I yield for Senator LEE.

The ACTING PRESIDENT pro tempore. The Senator from Utah.

Mr. LEE. Mr. President, before beginning my remarks, I would first like to thank my friend and colleague, the distinguished Senator from Iowa, for his tireless efforts in managing this process from the Republican side. It has not been easy, and his effort has reflected a certain level of statesmanship that is to be commended.

I rise today in support of immigration reform. I support strengthening our borders and ensuring that they are secure before beginning a pathway to citizenship because it is the only way we can avoid the mistakes of the past.

I support robust interior enforcement and a biometric visa tracking system because without those things in place, we will not solve the problem of illegal immigration. I support modernizing and streamlining our visa system because we need an efficient process of legal immigration that meets the needs of our economy. I support immigration reform that is tough on those who have chosen to break our laws and fair to those who have obeyed them and have been patiently waiting their turn in line trying to come here legally.

Today there is reason for disappointment, but there is also great cause for encouragement. The bill we have before us is an enormous disappointment. The American people deserve better. As a matter of public policy, this bill fails to meet many of the goals we set at the beginning of the process.

It is full of promises to beef up border security, but it makes no assurances. This legislation cuts the American people out by cutting out any congressional oversight of the opening and progression of the pathway to citizenship. It remains grossly unfair to those who have languished in our current legal immigration system, unable to get answers for decades in some cases. It transfers enormous authority and discretion to the executive branch, exacerbating an already widespread problem within our Federal Government.

It also fails perhaps the most important test. According to the Congressional Budget Office, this bill will reduce illegal immigration by just a mere 25 percent over the next 10 years. This should be reason alone to scrap the entire bill.

As a matter of process, Members of this body should be embarrassed about how this bill has moved through the Senate. From day one the country was misled about what was in the bill. The talking points never matched the reality of what was in the bill.

We were told if we didn't like what was in it, we would have an opportunity to fix it. But that wasn't true either. During the committee markup, Democrats and the Gang of 8 Republicans voted as a block to defeat virtually all substantive amendments proposed to improve the bill.

They said there would be regular order on the floor of the Senate, but that turned out to be a false promise as well. For a 1,200-page bill, the Senate, including the 92 Members not on the Judiciary Committee or the Gang of 8, was allowed exactly 10 rollcall votes before the process was shut down.

By contrast, during the 2007 debate on immigration reform, the Senate voted 32 times to amend the bill. Some would argue even that was too small. But certainly 10 votes on a 1,200-page bill does not suggest that the proponents of the bill are interested in regular order.

For the grand finale, at nearly the end of this process, the proponents substituted what is effectively a brandnew bill in place of the one we have been debating for over 2 months. They gave us very little time to read it before we had to vote on it. Once we were on the new bill, they did not allow a single vote on any amendments.

This is an embarrassment to this institution, and it is an assault on the principles of democracy, but like a Phoenix rising from the ashes, from this low point in the Senate springs an encouraging path forward for those who, like me, truly want immigration reform.

First, this exercise has laid out in front of the American people all the problems inherent in passing massive pieces of legislation presumed to fix all of our problems at once. The so-called comprehensive approach has been utterly discredited. From denying votes to buying votes with special interest carve-outs, our experience over the last 2 months only reaffirms why the vast majority of Americans don't trust Washington.

The special interests had a huge hand in writing the bill, while the American people had none. Almost all of the discussions and negotiations took place in secret backroom deals. Rather than debate policy differences, the debate was a daily fact check on misleading and outright false claims made by some of the bill's proponents.

The good news is the House appears to have learned this lesson and wants no part of this. Already the Speaker has said the Senate bill is dead on arrival. So today's vote is largely symbolic.

The House Judiciary Committee has recently passed two significant pieces of immigration reform—the one on interior enforcement and another dealing with agricultural workers. It proves that reform can be passed in a step-by-step process. Indeed, the only reason immigration reform is so controversial is because the Senate refuses to pass it one piece at a time. There is simply no legitimate reason we have to pass a one-size-fits-all, 1,200-page take-it-or-leave-it bill.

Although it is likely this bill will pass today, I strongly encourage my colleagues to consider where we started, where we are now and, most importantly, what lies ahead of us. They said it would secure the border; it does not. Congress has been fooled by false promises before. We should not go down that same path again.

They said illegal immigration will be a thing of the past. Under this bill, it will not. The Congressional Budget Office confirmed that under this bill, there will be 6- to 8-million illegal aliens in the country 10 years from now. They said it would be good for the economy. It isn't.

CBO also confirmed that it would lower wages and increase unemployment. They said it would be tough but fair. It is neither. It is not tough on those who have broken the law, and it is not fair for the people who have been trying to come here legally.

If this bill passes today, it will be all but relegated to the ash heap of history as the House appears willing to tackle immigration reform the right way. The sponsors of this bill had the best of intentions but, in my opinion, intentions are not always enough.

As I said at the outset, I stand here today strongly in support of immigration reform, but this bill is not immigration reform. It is big government dysfunction, and that is why I cannot support it and urge my colleagues to vote against it.

Thank you. I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Texas.

Mr. CORNYN. Mr. President, how much time remains on this side?

The ACTING PRESIDENT pro tempore. There is 21 minutes remaining.

Mr. CORNYN. Mr. President, I yield myself up to 15 minutes.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. CORNYN. Mr. President, I join my colleague from Utah in many of his remarks, if not all of his remarks. I come here to speak on the pending immigration bill more in disappointment than in anger because of the lost opportunity we had in the Senate to come up with a bill that would actually do the job of restoring legality and order to our broken immigration system, create a system of legal immigration which would benefit our economy, and reflect our basic values.

It has been 5 months since the Gang of 8 first released their framework of principles for immigration reform. At the time, they were saying many of the right things—things that gave me great encouragement that we would come up with a better product than we have today. They promised their bill would secure our borders once and for all.

I live in a border State with 1,200 miles of common border with Mexico. We know that border permits not only illegal entry into the United States because of inadequate resources and personnel there, but also it is a benefit to

the United States because of the legitimate trade that passes through the ports of entry that create and support up to 6 million jobs in America.

They promised a tough but fair legalization program. They promised that permanent legalization would be contingent on border security. This is a recurring theme in my remarks because I actually was so naive to believe the representations made by the Gang of 8.

In January 2013 Senator DURBIN, the distinguished majority whip, said: A pathway to citizenship needs to be contingent upon securing the border. That is what he said in January. Instead of a delivery on that promise, what we got was his statement 6 months later in June of 2013: The gang has delinked the pathway to citizenship and border enforcement.

So the American people have been asked to extend an act of common generosity and compassion that is typical of the American people, but what they get in return is no assurance that the system has been restored to order or that the border has been secured. Unfortunately, once again, it is business as usual in Washington, DC.

The promises the Gang of 8 made were encouraging and they raised hopes in me and others that we truly would have a bipartisan immigration bill voted out of the Senate that was worthy of the name. But, unfortunately, the bill now bears little resemblance to the initial promises of the Gang of 8.

I know we talked a lot about border security, but in addition to a national security issue this is a matter of restoring the public's confidence that the Federal Government will actually do its job.

The fundamental problem with this legislation is that it demands border security inputs but not outputs or results. In other words, the idea is—and the Washington Post editorial seemed to get it today—if you promise to buy enough stuff, then somehow the job will miraculously get done.

This bill asks us to believe that quadrupling the size of the Border Patrol and expanding the border fence will solve the problem of illegal immigration. I certainly agree that what the Border Patrol calls tactual infrastructure or fencing—and particularly in urban areas—can be a tool that is effective. I certainly believe that additional Border Patrol—my proposal was that we add about 5,000 Border Patrol—would be helpful. Once the technology identifies people crossing the border illegally, they have to have somebody go pick them up.

I actually agree with Senator MCCAIN when he initially opposed my amendment to add 5,000 Border Patrol agents, when he said he thought the answer was mainly in the area of improved technology. I agree with that. But imagine my surprise when Senator MCCAIN and Senator SCHUMER, the two main advocates of this surge in the underlying bill for border security, said: We think 5,000 Border Patrol agents is a budget buster, only to come back a few days later and offer 20,000 Border Patrol agents at an increased cost of at least $30 billion.

So without a coherent strategy or mechanism for ensuring results, adding 20,000 Border Patrol agents—assuming that it ever actually happens—and a few hundred miles of additional fencing could turn out to be a massive waste of taxpayer dollars. Again, there is something fundamentally wrong with the idea that if we throw enough money at the problem, it will somehow miraculously be resolved.

What we need is a plan, and what we need to know is how we can invest in this plan to accomplish measurable results, and this bill does not produce that.

So if a person believes the Federal Government is going to hire 20,000 additional Border Patrol agents and spend all this money over the next 10 years, well, as the song goes, I have some oceanfront property in Arizona I would like to sell you.

My colleagues don't have to take my word for it. In recent days experts from across the political spectrum have told us this bill takes the wrong approach to border security. And contrary to what my good friend from Tennessee says, it is not ''this bill or nothing.'' This is not the only alternative. So one could say this bill is flawed and doesn't accomplish the job but still be for immigration reform and a solution, which I am.

The former Commissioner of the Immigration and Naturalization Service Doris Meissner said the border security provisions in this bill are detached from reality. Former Customs and Border Protection Commissioner Robert Bonner, also formerly head of the Drug Enforcement Administration, said the bill ''is simply throwing a phenomenal amount of money at a problem to gain political support''—which it apparently has done—''but is not likely to solve the problem.''

Meanwhile, former DHS official John Whitley has reminded us that we should be focusing on border security outputs instead of inputs. In other words, we should be looking at not just what is put into this but what it actually produces in terms of results. That makes sense. Just spending a lot of money on stuff we are going to buy without any plan and without measuring outputs isn't going to get the job done.

An output-based trigger would assure the American people that we will not grant legal status until after our borders are secured. And the reason is because this is not a punitive measure; this is a way of realigning all of the incentives so that Republicans, Democrats, Independents, liberals, and conservatives can all pressure the executive branch and the bureaucracy to actually accomplish the promises set out in the bill rather than just throw money at it.

The Presiding Officer has heard me say that the amendment I offered would have made legalization contingent on 100 percent situational awareness of the U.S.-Mexico border and full operational control of the border. I have been criticized by some of my friends who say that is an unreasonable requirement and then ask: Where in the world did you get those figures? Well, I got that out of the Gang of 8 proposal. The difference is that mine would have guaranteed accomplishing the goal; theirs merely promises it but will never keep that promise.

I would have also made it contingent on a nationwide biometric entry-exit system—something this Federal Government has been promising for 17 years since President Clinton signed that requirement into law, but that promise hasn't been kept either.

I also included in my amendment nationwide E-Verify, which is a way for employers to verify the eligibility of workers who apply for a job, that they can legally work in the United States.

As I said, ironically, the Gang of 8 promised all of these same things, but the only mechanism I have seen that would have actually guaranteed it to happen was the amendment I offered that was tabled.

What I have described is a real border security trigger, not just another promise—the kind of trigger that will be necessary to get bipartisan immigration reform not just out of the Senate but out of the House of Representatives and on to the President's desk. I don't think we should be so shortsighted as to pat ourselves on the back and say: Hey, the Senate has passed an immigration reform bill, only to find it dead on arrival in the House of Representatives and to make it harder, not easier, to get a consensus bill on the President's desk for him to sign. That is not success.

Not surprisingly, the Congressional Budget Office reports that this bill will have only the slightest impact on illegal immigration.

The American people are not fooled. A recent Rasmussen poll says that only about 28 percent of Americans actually believe this bill will secure America's borders. The American people have been fooled in the past, which is another reason they are skeptical now, and they don't believe this bill will get it, and I don't either.

In short, we are about to vote on a bill that repeats the mistakes of the past and does not learn from them, offering merely promises but no results. But it also makes a few new mistakes as well.

Despite earlier promises of a tough but fair legalization program, this bill grants immediate legal status to people with multiple drunk driving convictions and people with multiple domestic violence convictions. And for people who have actually already committed these crimes and been deported, this bill would allow them to come back and register for RPI status.

I simply do not understand, nor has anyone attempted to explain, how we can in good conscience support legalization, of violent criminals. I am not talking about just people who have come here to work and otherwise been law-abiding citizens; I am talking about people who come here and, in contempt of our laws, have committed crimes of violence, and they are now going to be rewarded under this bill with probationary status and a pathway to citizenship. A few days ago I challenged my colleagues to come to the floor and explain or perhaps defend these provisions. I didn't find any takers.

I also mentioned the tragic stories of husbands and wives, fathers and mothers, brothers and sisters who lost their lives after being hit by an illegal immigrant drunk driver. Just to give some perspective, in 2011 alone Immigration and Customs Enforcement deported nearly 36,000 people with DUI convictions. This bill legalizes people who have committed driving under the influence offenses as well as people with multiple domestic violence offenses.

Some might argue that multiple misdemeanors aren't that big of a deal, but tell that to the family of a loved one who has lost their son, their daughter, their mother, their father, their brother, or their sister because of drunk driving by people who have illegally entered our country. It is worth remembering that the difference between a misdemeanor and a felony can be just 1 day in custody.

These are not minor offenses. It is worth remembering that, particularly in a domestic violence context, a felony is often pleaded down to a misdemeanor because of challenges getting cooperation from the complaining witness, who frequently lives with the defendant.

No fewer than 23 States classify certain domestic violence offenses as misdemeanors. In Minnesota, misdemeanor domestic violence even includes domestic abuse with a deadly weapon. That law may call it a misdemeanor, but it is a serious crime.

So for one last time, I will issue my challenge: Are there any supporters of this bill who will come to the Senate floor and tell the American people why drunk drivers, domestic abusers, and already deported criminals should be given immediate legal status under this bill? Well, I won't be holding my breath. No one has taken me up on that yet.

I have just a few final points. We have been told this bill reduces the Federal budget deficit over the next 10 years. Amazingly, in some sort of Washington-style accounting, we can spend about $50 billion and still save money. That is amazing. It is magical. And it is pure fantasy. We were told that previously on the Affordable Care Act, but we know this bill is premised on accounting tricks. The reality is that it will actually increase the on-budget deficit.

This is the amazing thing to me. We have some of our colleagues who are some of the most effective deficit hawks in this Chamber—those who have been champions fighting against special spending projects that tend to corrupt the political process—yet they support this bill and seem to have turned a blind eye to the on-budget deficit and the fact that this bill is littered with de facto earmarks, carveouts, and pet spending projects.

We have been told this bill modernizes the southern border. Yet it does absolutely nothing to facilitate the flow of lawful trade and commerce across our border and to allow law enforcement to focus on the criminal element, which would represent a tremendous step in the right direction.

I wish to reiterate that I agree with the Gang of 8 and those who support some aspects of this bill that we need a nationwide E-Verify system. I know Senator PORTMAN from Ohio, for example, had an E-Verify improvement amendment, but, like 45 other amendments denied an opportunity to be heard as part of this process wherein we have only seen 10 votes on amendments, he was unable to offer that improvement to this bill.

I agree with the Gang of 8 and those who say we need stricter penalties on employers who hire illegal immigrants. I agree with those who say we need to increase the number of visas for highly skilled immigrants with advanced STEM degrees. I agree with the goal of unifying families. All of these measures enjoy broad bipartisan support, and I want to offer my congratulations to the Gang of 8 for including them in this bill.

However, I can't support a bill that repeats the mistakes of the past by making a promise of future action that will never be kept, particularly on border security, and one that repeats the mistakes of 1986. I certainly can't support a bill that offers immediate legal status to drunk drivers, wife-beaters, and violent criminals.

I was disappointed when my RESULTS amendment was tabled, and I am disappointed that today we are about to pass deeply flawed legislation that will not be taken up by the House of Representatives. But I take some comfort in knowing that while the initial Senate debate is ending, the broader nationwide debate is just beginning. In the weeks and months ahead, I want to continue to play an active and constructive role, particularly working with our colleagues in the House of Representatives, to pass real immigration reform that promotes security and prosperity for the American people.

I note that one of our colleagues in the House called this bill a runaway train in the Senate, but that train is getting ready to slow down, and I think the American people will benefit from the Congress taking its time to make sure that we not simply pass a bill but we pass a good bill, one that reflects our values and one that also benefits our economy. I think they will benefit from a careful discussion and dialog between the Senate and the House about what ultimately will be the bill that goes to the President's desk.

Mr. DURBIN. Mr. President, will the Senator yield for a question?

Mr. CORNYN. I will.

Mr. DURBIN. I have noticed on several occasions the affection my friend from Texas has for this poster board that contains this reputed quote from me. I wish to ask the Senator from Texas, since he has used that repeatedly on the floor, is he aware of the fact that when I was asked about the relationship between the path to citizenship and border enforcement, it was in the context of the Cornyn amendment which established a percentage requirement as part of border enforcement? Is the Senator aware that the bill itself includes a dramatic commitment to resources on the border of the Senator's State with the nation of Mexico—literally doubling the number of Border Patrol agents and billions of dollars being spent to make sure we stop as much as humanly possible illegal immigration—and that before the path to citizenship, the bill requires an E-Verify system as well as an exit-entry visa system? Is the Senator aware that is not included in that reference he has made to my statement?

Mr. CORNYN. Mr. President, I would say to my good friend, the assistant majority leader, I am aware of the promises that are made in the underlying bill. My point is there is no mechanism to guarantee the goals the Gang of 8, on which the assistant majority leader has served—the promises that are made in terms of 100-percent situational awareness and operational control—there is absolutely nothing there that will guarantee the American people that promise will be kept, which is a serious problem, which is the reason why, when I saw the bipartisan framework for comprehensive immigration reform, I was encouraged. Because I could support a bill that did make a pathway to legal permanent residency contingent upon a certification that these goals have been met. But I cannot based on sad experience dating back to 1986 and 1996, and other times in the past, where Congress has made repeated promises of future performance—promises that are never kept.

I would say, in conclusion, the American people are asked to be extraordinarily generous here in terms of providing probationary status and the possibility of legal permanent residency, and maybe even citizenship in the future. That is an act of extraordinary generosity and compassion they are being asked to demonstrate. But to be given just promises that will not be kept by throwing money at the problem, without any real plan to make sure it is going to be effective, this bill falls way short of its promises.

The ACTING PRESIDENT pro tempore. The Senator's time has expired.

The Senator from Vermont.

Mr. LEAHY. Mr. President, I would notify the assistant Republican leader I will be making a unanimous consent request in a few minutes after my remarks. I do not want him to be surprised by that.

Members representing all corners of this great Nation have been working hard on amendments to improve this comprehensive immigration bill. For a week now we have been trying to negotiate a package of noncontroversial amendments to be included in this legislation.

In my experience over the years, both in the majority and in the minority, for whatever bill you had before the Senate, when you have a list of noncontroversial amendments, they are simply agreed to by everybody and put in a managers' package so as not to take up a day voting on things that are going to pass anyway.

Last week I filed a managers' package of amendments. I removed from this list the ones that have been objected to by other Members. Instead, though, the Republican minority has taken the position that in order to even clear a few noncontroversial amendments—which includes both Republican and Democratic amendments—the majority must agree to vote on dozens of highly contentious measures, including amendments being offered by Senators who have said that no matter what happens they are going to oppose the legislation. In my experience, under both Democratic and Republican leadership in the Senate, that has never been considered reasonable.

Many of my friends on the other side of the aisle have complained we have not had more votes on this bipartisan immigration bill, and I share that frustration. From the outset, Republicans have delayed the bill's consideration and the ability of Members to file amendments by filibustering the motion to proceed to the bill. We all know the bill is going to get cloture, but they still filibustered the motion to proceed—just as one more delaying tactic. In fact, 15 Members refused to even cut off a filibuster, not for a vote on the legislation, but just to bring it on the floor so we could begin to debate it—delay after delay after delay.

Then once we overcame the filibuster and we could debate the legislation, I offered an amendment, and then I agreed to set it aside so Senator GRASSLEY could call up a Republican amendment—again, the comity we usually have in this place. Well, then, when the next set of amendments was ready to be made pending, the Republicans, instead of doing what we Democrats did—allowing them to come up—objected to setting aside the pending amendment and prevented the next two amendments from becoming pending and ready for a vote. Then they objected to time agreements on votes. They even objected to allowing the leader to modify my amendment late last week, last Thursday night.

They complain about delays—why aren't we voting? Every time we try to vote, they object.

The lack of cooperation on this bipartisan bill has been frustrating for Senators on both sides of the aisle. I have had a lot of Republican Senators who have come to me saying they do not agree with these delays. It has been clear since day one that a small minority of Republican Senators is going to do anything to thwart this bill's passage. It is hard to sympathize with those who complain they cannot get a vote on their amendments, when they have objected to even the most minor consent agreements to make progress on the bill. The expression ''crocodile tears'' comes to mind.

We have tried to find a way forward for votes on both sides, but it has been thwarted. It makes one wonder whether some would rather have the ability to complain about process rather than take votes to improve the bill. I had hoped we could agree to a reasonable number of votes this week.

Unfortunately, some people here want to vote maybe. They do not want to vote yes or no. We are elected to vote yes or no, not maybe.

Yesterday we proposed votes on 17 Republican amendments and a smaller number—15—of Democratic amendments, but Republicans objected. It is a shame we have not been able to continue the momentum of bipartisan cooperation that marked the Judiciary Committee's process that has brought this bill so far.

In the Judiciary Committee we had 301 amendments filed. We approved around 140 amendments. All but two or three were passed with bipartisan votes—both Democrats and Republicans. And when we finished all those, I asked if anybody wanted to bring up any further amendments. They did not. And we passed the bill out with a bipartisan majority. But we voted. Sometimes we voted a dozen times in 2 hours.

We still have a chance to move a package of noncontroversial amendments. Instead of insisting the Senate vote on dozens of controversial amendments designed to harm the careful balance in this legislation, Republicans should clear the noncontroversial and good ideas on which many Republican and Democratic Senators have worked so hard. The amendments included on my manager's list have widespread support. They have been filed by Senators—both Republicans and Democrats—over the past 3 weeks. Many have already been discussed at length here on the Senate floor.

I will take some examples. This package of noncontroversial amendments contains bipartisan amendments to improve oversight of certain immigration programs. It contains entirely technical amendments to the bill. It contains a bipartisan amendment by Senators NELSON and WICKER to provide for maritime security, as they have so correctly pointed out on this floor that we have a long border—not just our land border; we have very long borders on two oceans. It contains an amendment by a group of northern border Senators, led by Senator HEITKAMP, to ensure border security measures at the northern border. There are several amendments from our colleagues from New Mexico to help facilitate cross-border travel and commerce.

The list includes an amendment by Senator BROWN to ensure that the border fence is constructed of materials made in America. Who could vote against that? The list contains an amendment by Senator COCHRAN and Senator LANDRIEU. She is the chairwoman of the Appropriations Subcommittee on Homeland Security. It requires increased reporting on the EB–5 program—something that should be a no-brainer. The list contains two amendments championed by Senators COATS, KLOBUCHAR, and LANDRIEU to ease the process for international adoptions—a humanitarian measure that should get strong bipartisan support. But these are just a few examples of what we have in here that we have all agreed should be able to be passed.

I wish the list were longer. Early yesterday morning, I learned there were Republican objections to a number of Democratic amendments that had been on my list, including several that have Republican cosponsors. I was surprised to hear there are concerns about several of these amendments. One of those that has apparently raised Republican concerns is an amendment by Senator HAGAN to authorize a border crime prevention program and reauthorize the Bulletproof Vest Program to protect law enforcement officers. The Bulletproof Vest Program is from the days when Senator Ben Nighthorse Campbell and I first introduced it, and it has gotten overwhelming support because of all the lives of police officers it has saved.

I hope those who are objecting to it will—the next time we have a police memorial here on the Mall in remembrance of those police officers who have died—explain to those police officers in attendance why they are opposed to them having bulletproof vests.

Yet another is an amendment Senator FEINSTEIN, Senator CORNYN, and others have championed to provide the judiciary with the resources to handle the large number of immigration cases.

I do not understand why these are considered controversial. I was disappointed we had to remove the Feinstein-Cornyn amendment from this list because Republicans objected to the Feinstein-Cornyn amendment on resources for the judiciary.

Nonetheless, I took these off, even though I thought they would be noncontroversial. I liked the Feinstein-Cornyn amendment, and the others—the bulletproof vest amendment—but we took them off because Republicans objected.

So now I am going to propose a list—and I want to make sure the Republican leader is on the floor—that contains 32 sensible, noncontroversial amendments that strengthen the bill and makes it better. They deserve to be adopted. I recognize and share the frustration of many Senators who have worked on their amendments and want their chance to influence the bill. Amendments that have broad support should not be held hostage by the partisanship that has impeded our work.

I am going to offer now—incidentally, before I do, I note there are 32 in here; the majority of them—17—have Republican support.

I ask unanimous consent the following amendments be called up en bloc; that the clerks be authorized to modify the instruction lines, where necessary, to match the intended page and line numbers of the committee-reported substitute, as amended; and the Senate then proceed to vote on adoption of the amendments en bloc: Baucus-Tester No. 1512; Boxer No. 1240; Brown No. 1597; Cardin-Kirk No. 1286; Carper-McCain No. 1558, as modified with changes that are at the desk; Carper No. 1590; Coats No. 1288; Coats No. 1373; Coburn No. 1509; Coons No. 1715; Flake No. 1472; Heinrich No. 1342; Heinrich No. 1417; Heinrich No. 1559; Heitkamp No. 1593; Klobuchar-Landrieu-Coats-Blunt No. 1261; Klobuchar-Coats-Landrieu-Blunt No. 1526; Landrieu-Coats No. 1338; Landrieu-Cochran No. 1383; Leahy No. 1454; Leahy No. 1455; Murphy No. 1451; Murray-Crapo No. 1368; Nelson-Wicker No. 1618; Reed No. 1223; Reed No. 1608; Schatz-Kirk No. 1416; Shaheen-Ayotte No. 1272; Stabenow-Collins No. 1405; Toomey No. 1236; Udall of New Mexico No. 1241; and Udall of New Mexico No. 1242.

The ACTING PRESIDENT pro tempore. Is there objection?

The Republican whip.

Mr. CORNYN. Mr. President, reserving the right to object, I want to compliment the distinguished chairman of the Judiciary Committee for the open process he conducted in committee to process amendments on both sides of the aisle and the open and transparent way that was done. That stands in stark contrast to what has happened here on the floor, where we have only had 10 amendments that have had rollcall votes, compared to 46 rollcall votes the last time we debated comprehensive immigration reform in 2007.

I would point out for my distinguished colleague that of the 32 amendments that are being offered now by unanimous consent to be voted upon, 27 of them are Democratic amendments and 5 of them are Republican amendments.

Senator LEAHY noted that one of my amendments was excluded. Actually all of my amendments have been excluded, including the one that would prohibit legalization of drunk drivers and spouse beaters and other criminals, as well as one that is designed to root out fraud in the program.

On behalf of my ranking member, we object.

The ACTING PRESIDENT pro tempore. Objection is heard.

The Senator from Vermont.

Mr. LEAHY. Mr. President, I appreciate the compliments. But I am thinking of Shakespeare, ''I came here not to praise Caesar, but to bury him.'' Unfortunately these amendments have been buried by the objection.

I would note that yesterday we offered 17 Republican amendments and 15 Democratic amendments to be voted on. That was objected to. Those were offered by the distinguished majority leader. It is frustrating.

I know we are about to go to executive session. I ask unanimous consent that the Senator from Hawaii, Ms. HIRONO, have 2 minutes before the executive session.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

The Senator from Hawaii.

Ms. HIRONO. Mr. President, I have talked about how this bill treats immigrant taxpayers, specifically the restrictions on access to Federal safety net programs. The bill prohibits immigrant taxpayers from using programs they helped to fund with the hundreds of billions of dollars of taxes they pay. This is truly unfair. I filed an amendment to correct this unfair treatment. This amendment is No. 1317. My amendment simply says immigrant taxpayers who are lawfully present and working and who have paid all of their tax liabilities should be able to use the Federal programs their taxes pay for. This is simply common sense.

I ask unanimous consent that Senators BOXER, ROCKEFELLER, and SCHATZ be added as cosponsors of amendment No. 1317.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Ms. HIRONO. I thank these Senators for their support.

This amendment is supported by over 180 organizations including the National Immigration Law Center, National Council of La Raza, the Asian Pacific Islander American Health Forum, National Latina Institute for Reproductive Health, the AFL–CIO, U.S. Council of Catholic Bishops, the National Committee to Preserve Social Security and Medicare.

I have several letters from these organizations that attest to their support of my amendment. I ask unanimous consent that one of these letters, which is signed by 179 organizations, be printed in the RECORD following my remarks.

I have also been working with many Senators on an amendment to provide additional opportunities for women in the new merit-based immigration system created in the bill. Amendment No. 1718 would create a new tier 3 category with 30,000 merit-based visas. Tier 3 is structured in a way that allows women a fairer chance to compete for these visas.

The Hirono-Murray-Murkowski amendment currently has 19 cosponsors. I ask unanimous consent that Senators WHITEHOUSE and SCHATZ be added as cosponsors of amendment No. 1718.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Ms. HIRONO. Amendment 1718 is a modified version of amendment No. 1504. I made those modifications after working with Senator GRAHAM, and he has agreed to support this new amendment. I thank him for his support.

The ACTING PRESIDENT pro tempore. The Senator's time has expired.

Ms. HIRONO. I ask unanimous consent for 30 additional seconds.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Ms. HIRONO. I also have letters from over 100 organizations in support of amendment Nos. 1718 and 1504. I ask unanimous consent that some of these letters of support be printed in the RECORD following my remarks.

I thank UNITE HERE, the Leadership Conference on Civil and Human Rights, We Belong Together, and the Asian American Justice Center for organizing these letters and for their support. I also thank the AFL–CIO and SEIU for their support.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

JUNE 18, 2013.

To All Members of the U.S. Senate: We welcome the Senate's consideration of comprehensive immigration reform as the Border Security, Economic Opportunity, and Immigration Modernization Act (S. 744) proceeds to the Senate floor. As advocates for the health of the most vulnerable in our communities, we have deep concerns about provisions in S. 744 that would harm the health and well-being of aspiring citizens and their families. Immigrants on the roadmap to citizenship will be paying taxes, and as taxpayers, aspiring citizens should have access to taxpayer-funded programs like all Americans.

Senator Hirono (D–HI) plans to introduce an amendment to restore taxpayer fairness to aspiring citizens. The amendment provides that all immigrants who are lawfully present, employed, and have satisfied their federal tax liability shall not be prohibited from using any federally-funded program or tax credit solely on the basis of their immigration status. Allowing immigrants to use the programs they pay for will enable them to be more economically successful. We urge you to stand with Senator Hirono and others to correct the unfair restrictions on access to health, nutrition, and economic supports, thereby ensuring that the roadmap to citizenship allows immigrants equal opportunity to succeed in our country.

As currently proposed, S. 744 bars most individuals in RPI status from vital federal health coverage, nutrition assistance, and economic security programs for the entire period they are in provisional status, which would be at least 10 years. When RPIs become Lawful Permanent Residents (LPRs) and earn their green card, current law further restricts LPRs from accessing these vital federal programs for another five years. S. 744 also bars aspiring citizens in RPI status from the premium tax credits and cost-

sharing reductions that will allow them to participate in the new health insurance marketplaces established under the Affordable Care Act (ACA). Individuals in blue-card and V visa status are similarly restricted from accessing safety net programs, premium tax credits, and cost-sharing reductions.

The restrictions in S. 744 mean that most aspiring citizens may have to pay into programs for 15 years before they can use them if their kids get sick or if they lose their jobs. For about half a million children who may soon be on the roadmap to citizenship, these restrictions could impact their development and ability to learn in school. For pregnant women, it could mean no access to prenatal care that is critical to the health of infants and women. For women with undetected breast or cervical cancer, a 15-year wait to see a doctor could be the difference between life and death. These restrictions will result in poorer health outcomes, wider health disparities, lower worker productivity, and higher costs to the healthcare system. The restrictions are also out of line with the views of most Americans: 63% believe those on the roadmap to citizenship should be eligible for Medicaid and 59% believe they should be eligible for affordability options under the ACA. Entrenching struggling parents and families in poverty prevents economic competitiveness and productivity; additionally, these programs exist so people can take economic risks like starting a business. Instead, better immigration policy will facilitate the integration of aspiring citizens into the social and economic fabric of our country.

Moreover, denying aspiring citizens access to the very programs that they pay into with their tax dollars is inherently unfair. Aspiring citizens currently pay $11.2 billion annually in taxes. Already, immigrants have paid $115 billion more in taxes into the Medicare system than they have used. As aspiring citizens move forward on the roadmap to citizenship, they will contribute even more to government revenue in fines, fees, and taxes.

Senator Hirono's amendment to restore taxpayer fairness to aspiring citizens will enable those on the roadmap to citizenship to succeed and will promote the health of our families, communities, and economy. We urge you to stand with Senator Hirono to ensure that the roadmap to citizenship is fair and allows aspiring citizens to live with health, dignity, and justice.

Thank you for your time and consideration to these issues.

Sincerely,

9to5, 9to5 Atlanta, 9to5 California, 9to5 Colorado, 9to5 Milwaukee, Abortion Care Network, ACCESS Women's Health Justice, Advocates for Women AFL–CIO, AIDS Alabama, AIDS Foundation of Chicago, AIDS United, Alliance for a Just Society, American Academy of Pediatrics, American Congress of Obstetricians and Gynecologists, American Federation of State, County and Municipal Employees (AFSCME), Americans for Immigrant Justice, formerly Florida Immigrant Advocacy Center, Arkansas Advocates for Children and Families, Asian & Pacific Islander American Health Forum, Asian American Justice Center, Member of Asian American Center for Advancing Justice, Asian Law Alliance, Asian Pacific American Labor Alliance, AFL–CIO, ASISTA Immigration Assistance.

Association of Asian Pacific Community Health Organizations, Association of Farmworker Opportunity Programs, Association of Reproductive Health Professionals (ARHP), Breakthrough, California Latinas for Reproductive Justice, California Primary Care Association, California Rural Legal Assistance Foundation, Campaign for Better Health Care, CASA de Maryland, Center for Community Change (CCC), Center for Independence of the Disabled, NY, Center for Law and Social Policy (CLASP), Center for Medicare Advocacy, Inc., Center on Reproductive Rights and Justice at University of California Berkeley School of Law, Central Ohio Immigrant Justice, Children's Defense Fund, Church of Our Saviour/Iglesia de Nuestro Salvador, Civil Liberties and Public Policy, CLUE Santa Barbara, Coalition for Asian American Children and Families, Coalition for Humane Immigrant Rights of Los Angeles.

Coalition for Peace Action of Monroe Township, Coalition on Human Needs, COFA Community Advocacy Network, COMGARIGUA, Community Action Partnership, Connecticut Multicultural Health Partnership, CT Asian Pacific American Affairs Commission, Direct Care Alliance, DRUM—Desis Rising Up & Moving, El Concilio/Council for the Spanish Speaking, Empire Justice Center, Fair Immigration Reform Movement (FIRM), Families USA, Farmworker Association of Florida, Feminist Majority, First Focus Campaign for Children, Georgia Rural Urban Summit, Hawai'i Coalition for Immigration Reform, Hawaii State Coalition Against Domestic Violence, Health Care for All Philadelphia, Health Care for America Now, HealthyPacific.Org, HIKITTI Community, HIV Prevention Justice Alliance, Housing Works.

Illinois Coalition for Immigrant and Refugee Rights, Immigrant Law Center of Minnesota, Immigrant Legal Advocacy Project, Immigrant Service Providers Group/Health, International Tribunal of Conscience, Jewish Community Action, Jewish Labor Committee Western Region, Kentucky Coalition for Immigrant and Refugee Rights, Koolauloa Health Center, Korean Community Center of the East Bay, La Clinica del Pueblo, La Raza Centro Legal, Latin American Association, Latino Coalition for a Healthy California, Latino Commission on AIDS, The Leadership Conference on Civil and Human Rights, Leadership Conference of Woman Religious, League of United Latin American Citizens, Lifting Latina Voices Initiative/FWHC, Lowcountry Immigration Coalition, LUMA, Lutheran Immigration and Refugee Service.

Massachusetts Immigrant and Refugee Advocacy Coalition, Methodist Federation for Social Action, Mexican American Legal Defense and Educational Fund, Micronesian United Big Island, Ministry of Health, Moloka'i Community Service Council, MomsRising.Org, Ms. Foundation for Women, National Alliance of Latin American and Caribbean Communities, National Asian Pacific American Women's Forum, National Association of Counsel for Children, National Center for Law and Economic Justice, National Center for Lesbian Rights, National Center for Transgender Equality, National Conference of Puerto Rican Women, Inc., National Council of Jewish Women, National Council of La Raza (NCLR), National Employment Law Project, National Gay and Lesbian Task Force Action Fund, National Health Care for the Homeless Council, National Health Law Program, National Hispanic Medical Association, National Immigrant Justice Center, National Immigration Law Center.

National Latina Institute for Reproductive Health, National Organization for Women, National Physicians Alliance, National Senior Citizens Law Center, National Women's Health Network, National Women's Law Center, NCJW—Maine Section, Nema Hawaii Community Association, New Economics for Women, New Mexico Voices for Children, New York Lawyers for the Public Interest, New Yorkers for Accessible Health Coverage, Ni-ta-nee NOW, North Dallas Chapter of the National Organization for Women, Northern Manhattan Coalition for Immigrant Rights, Northwest Health Law Advocates, OneAmerica, Pacific Islander Health Partnership, Pennsylvania Council of Churches, PHI PolicyWorks, Physicians for Reproductive Health, Planned Parenthood Federation of America, Pohnpei Fellowship Ministry.

Political Asylum Immigration Representation Project, Project Inform, Raleigh Episcopal Campus Ministry, Ramirez Group, Reformed Church of Highland Park, NJ, Refugio del Rio Grande, Religious for Immigration Reform, Reproductive Health Technologies Project, RESULTS, Rockland Immigration Coalition, Safehouse Progressive Alliance for Nonviolence, Salvadoran American National Network, Sargent Shriver National Center on Poverty Law, Sea Mar Community Health Centers, Silicon Valley Alliance for Immigration Reform, Single Stop USA, Sisters of Mercy West Midwest Justice Team, South Asian Americans Leading Together (SAALT), South Cove Community Health Center, The Black Institute, The Center for APA Women, The Children's Advocacy Institute, The Children's Partnership.

The Hat Project, Unitarian Society of New Haven, Immigration Rights Task Force, United for a Fair Economy, United Migrant Opportunity Services/UMOS Inc, United We Dream, Unity Fellowship Church NYC, University of Hawaii, Violence Intervention Program, Voces de la Frontera, Voices for America's Children, Washtenaw Interfaith Coalition for Immigrant Rights, We Belong Together: Women For Common-Sense Immigration Reform, WI Council on Children and Families, Women Watch Afrika, Inc., Women's Law Project, Worker Justice Center, YWCA, YWCA USA.

JUNE 21, 2013.

Dear Senator: We, the undersigned organizations that advocate on behalf of women, children and families, urge you to support Hirono #1504, co-sponsored by Senators Hirono, Murray, Baldwin, Boxer, Cantwell, Gillibrand, Klobuchar, Landrieu, Leahy, Mikulski, Murkowski, Shaheen, Stabenow and Warren. Hirono #1504 goes to the heart of making the immigration system fair and inclusive by adding a new tier to the proposed merit-based system that is more inclusive of women's contributions.

We are all deeply committed to ensuring that any immigration reform bill treats women fairly and acknowledges the many specific situations and contributions of women. We believe that the proposed merit-based system for employment green cards in S. 744, as currently written, will significantly disadvantage women who want to come to this country, particularly unmarried women. Awarding points primarily for education and employment experience fails to recognize the lack of opportunities and barriers that women face in accessing both education and employment in their home countries, barriers that are significantly worse than for men. This, in effect, cements into U.S. immigration law barriers and inequities that women face in their home countries and inadvertently restricts the opportunities available to women across the globe.

Currently, approximately 70% of immigrant women come to this country through the family-based system. Employment-based visas favor men over women by nearly a four to one margin because U.S. immigration law places a premium placed on male-dominated fields like engineering and computer science. However, women perform essential work as primary caregivers, domestic workers, in-home health care workers and nurses. They also are often the backbone of families, taking care of those in an extended family who

are ill or unable to care for themselves. Economically, women are increasingly the primary breadwinners in immigrant families, making it more likely for the family to open a small business or purchase a home. Women are also the primary drivers of immigrant integration for the entire family, encouraging others to learn English and integrate effectively into the community.

We believe that Hirono #1504 is essential to ensuring that we do not inadvertently cement discrimination against women into U.S. immigration law. The amendment would establish a Tier 3 merit-based point system that would provide a fair opportunity for women to compete for merit-based green cards. Complementary to the high-skilled Tier 1 and the lower-skilled Tier 2, the new Tier 3 would include professions commonly held by women so as not to limit women's opportunities for economic-focused immigration. It would provide 30,000 Tier 3 visas and would not reduce the visas available in the other merit-based Tiers.

America has always held out hope and opportunity to millions of women across the world. Women move here to make life better for themselves and their families. They move seeking freedom and opportunity often denied in other places. As Americans, we honor and celebrate our unique commitment to protecting families and giving equal opportunities and respect to women and girls. We need our immigration system to reflect that commitment, and to provide opportunities to everyone, including women.

We urge you to support Hirono #1504 and help ensure fairness for women in immigration reform. If you have any questions, please contact Pramila Jayapal at We Belong Together: Women for Common-Sense Immigration Reform at pjayapal@me.com or June Zeitlin at The Leadership Conference for Civil and Human Rights at zeitlin@civilrights.org.

Sincerely,

18Million Rising.org, 9to5, Alianza Nacional de Campesinas, ALIGN New York, Alliance for a Just Society, American Baptist Home Mission Societies, American Jewish Committee, Asian American Justice Center, Asian American Legal Defense and Education Fund, Asian Pacific American Labor Alliance, AFL–CIO, Association of Asian Pacific Community Health Organizations, Breakthrough, California Latinas for Reproductive Justice, Campaign for Community Change (CCC), Capuchin Justice and Peace Office, Carmelites, Vedruna ICJP, Casa de Esperanza: National Latin@ Network for Healthy Families and Communities, Center for Gender & Refugee Studies, Centro de los Derechos del Migrante, Inc., Chinese American planning council, inc., Christian Church (Disciples of Christ) Refugee and Immigration Ministries, Church World Service, CLUE Santa Barbara.

Coalition for Humane Immigrant Rights of Los Angeles, Colorado Organization for Latina Opportunity and Reproductive Rights, Communication Workers of America, Conference of Major Superiors of Men, CUNY Law Immigrant Initiatives, Daughters of Wisdom, Dominican Sisters of Houston, DRUM—Desis Rising Up & Moving, Family Values @ Work Consortium, Farmworker Justice, Feminist Majority, Franciscan Action Network, Georgia Latino Alliance for Human Rights, Good Shepherd Immigration Study Group, Hispanic Center of Western Michigan, IHM Justice, Peace and Sustainability Office, Immigrant Law Center of Minnesota, Immigration Equality Action Fund, Institute for Women in Migration (IMUMI), International Union, United Automobile, Aerospace and Agricultural Implement Workers of America (UAW).

Japanese American Citizens League, Justice and Peace Committee, Sisters of St. Joseph of West Hartford CT, Korean Americans for Political Advancement (KAPA), LatinoJustice PRLDEF, Leadership Conference of Women Religious, The Leadership Conference on Civil and Human Rights, Lutheran Immigration and Refugee Service, MinKwon Center for Community Action, MomsRising.org, National Advocacy Center of the Sisters of the Good Shepherd, National Asian Pacific American Bar Association (NAPABA), National Asian Pacific American Women's Forum (NAPAWF), National Center for Lesbian Rights, National Day Laborer Organizing Network (NLDON), National Domestic Workers Alliance, National Employment Law Project, National Federation of Filipino American Associations, National Immigrant Justice Center, National Immigration Law Center, National Latina Institute for Reproductive Health, National Women's Law Center.

OCA–NY Asian Pacific American Advocates, OneAmerica, Our Lady of Victory Missionary Sisters, PICO National Network, Presentation Sisters, Religious Sisters of Charity, School Sisters of Notre Dame JPIC Office Atlantic-Midwest Province, Sisters of Mercy, Sisters of Mercy West Midwest Community, Sisters of St. Francis, Tiffin, OH, Sisters of St. Joseph of Rochester, South Asian Americans Leading Together (SAALT), Tahirih Justice Center, Tennessee Immigrant & Refugee Rights Coalition, The Advocates for Human Rights, The Episcopal Church, The New American Leaders Project, Unid@s, Union of sisters of the Presentation of the Blessed Virgin Mary, US Province, United Methodist Church, General Board of Church and Society, United Methodist Women, Violence Intervention Program, West Michigan Coalition for Immigration Reform, We Belong Together Campaign, Women's Refugee Commission.

EXECUTIVE SESSION

NOMINATION OF ANTHONY RENARD FOXX TO BE SECRETARY OF TRANSPORTATION

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will proceed to executive session to consider the following nomination, which the clerk will report.

The assistant legislative clerk read the nomination of Anthony Renard Foxx, of North Carolina, to be Secretary of Transportation.

The ACTING PRESIDENT pro tempore. Under the previous order, there will be 2 minutes for debate equally divided and controlled in the usual form.

Mr. ROCKEFELLER. Mr. President, I am chairman of the Commerce Committee. Mayor Anthony Foxx, who is absolutely superb, someone as a mayor, which I like, secondly as an expert on transportation, intermodal and otherwise. He understands the lay of the land and he has done it.

He was passed without a single dissenting vote of either party in the Commerce Committee. That is quite remarkable these days. He is a superb and qualified person who is very much needed to overlook our enormous transportation system which is in trouble. I hope my colleagues will support him.

The ACTING PRESIDENT pro tempore. Who yields time in opposition?

Mr. CORNYN. We yield back all time. I ask for the yeas and nays.

The ACTING PRESIDENT pro tempore. Is there a sufficient second?

There is a sufficient second.

The question is, Will the Senate advise and consent to the nomination of Anthony Renard Foxx, of North Carolina, to be Secretary of Transportation?

The clerk will call the roll.

The assistant legislative clerk called the roll.

The result was announced—yeas 100, nays 0, as follows:

[Rollcall Vote No. 165 Ex.]

YEAS—100

Alexander	Flake	Murkowski
Ayotte	Franken	Murphy
Baldwin	Gillibrand	Murray
Barrasso	Graham	Nelson
Baucus	Grassley	Paul
Begich	Hagan	Portman
Bennet	Harkin	Pryor
Blumenthal	Hatch	Reed
Blunt	Heinrich	Reid
Boozman	Heitkamp	Risch
Boxer	Heller	Roberts
Brown	Hirono	Rockefeller
Burr	Hoeven	Rubio
Cantwell	Inhofe	Sanders
Cardin	Isakson	Schatz
Carper	Johanns	Schumer
Casey	Johnson (SD)	Scott
Chambliss	Johnson (WI)	Sessions
Chiesa	Kaine	Shaheen
Coats	King	Shelby
Coburn	Kirk	Stabenow
Cochran	Klobuchar	Tester
Collins	Landrieu	Thune
Coons	Leahy	Toomey
Corker	Lee	Udall (CO)
Cornyn	Levin	Udall (NM)
Cowan	Manchin	Vitter
Crapo	McCain	Warner
Cruz	McCaskill	Warren
Donnelly	McConnell	Whitehouse
Durbin	Menendez	Wicker
Enzi	Merkley	Wyden
Feinstein	Mikulski	
Fischer	Moran	

The nomination was confirmed.

The PRESIDING OFFICER (Ms. BALDWIN). Under the previous order, the motion to reconsider is considered made and laid upon the table. The President will be immediately notified of the Senate's action.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will resume legislative session.

BORDER SECURITY, ECONOMIC OPPORTUNITY, AND IMMIGRATION MODERNIZATION ACT—Continued

AMENDMENTS NOS. 1552 AND 1553 WITHDRAWN

The PRESIDING OFFICER. Under the previous order, the pending amendments Nos. 1552 and 1553 are withdrawn.

The majority leader.

Mr. REID. Madam President, the pending business, then, is the committee-reported substitute amendment, with all postcloture time having been expired; is that correct?

The PRESIDING OFFICER. The Senator is correct.

Mr. REID. I raise a point of order that the Reed of Rhode Island amendment is no longer in order due to the adoption of the amendment No. 1183.

The PRESIDING OFFICER. The point of order is well taken. The amendment falls.

Mr. REID. I raise a point of order that the Cruz amendment is also no longer in order.

The PRESIDING OFFICER. The point of order is well taken. The amendment falls.

Mr. REID. I raise a point of order that the Boxer amendment is also no longer in order.

The PRESIDING OFFICER. The point of order is well taken. The amendment falls.

Mr. REID. I ask unanimous consent that the next two votes be 10 minutes in duration.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. REID. Madam President, during these votes we are going to try to work out a time to finish our work today. As I mentioned earlier today, whenever we have the final vote—whether it is tomorrow afternoon or, if we can work something out, today—I want everyone to be here a few minutes before the time expires so we can start the vote. The vote will not start until Senators are in their assigned seats. If they are not here, we will have a live quorum, and all that will do is slow things up. And we are going to do that.

This legislation has been worked on for many years. We have people who believe strongly in this legislation and people who don't. It is a very important piece of legislation. It is historic in nature, and we should be here to vote, and we are going to be here in our chairs to vote. We don't have a time worked out yet. We are going to do our best. As my friend the ranking member said, we would like it sooner rather than later, but we can't get that unless everybody agrees to a time.

The PRESIDING OFFICER. Under the previous order, all postcloture time is expired.

The question is on agreeing to the committee-reported substitute, as amended.

Mr. WICKER. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

The result was announced—yeas 68, nays 32, as follows:

[Rollcall Vote No. 166 Leg.]

YEAS—68

Alexander	Collins	Heinrich
Ayotte	Coons	Heitkamp
Baldwin	Corker	Heller
Baucus	Cowan	Hirono
Begich	Donnelly	Hoeven
Bennet	Durbin	Johnson (SD)
Blumenthal	Feinstein	Kaine
Boxer	Flake	King
Brown	Franken	Kirk
Cantwell	Gillibrand	Klobuchar
Cardin	Graham	Landrieu
Carper	Hagan	Leahy
Casey	Harkin	Levin
Chiesa	Hatch	Manchin
McCain	Pryor	Stabenow
McCaskill	Reed	Tester
Menendez	Reid	Udall (CO)
Merkley	Rockefeller	Udall (NM)
Mikulski	Rubio	Warner
Murkowski	Sanders	Warren
Murphy	Schatz	Whitehouse
Murray	Schumer	Wyden
Nelson	Shaheen	

NAYS—32

Barrasso	Enzi	Portman
Blunt	Fischer	Risch
Boozman	Grassley	Roberts
Burr	Inhofe	Scott
Chambliss	Isakson	Sessions
Coats	Johanns	Shelby
Coburn	Johnson (WI)	Thune
Cochran	Lee	Toomey
Cornyn	McConnell	Vitter
Crapo	Moran	Wicker
Cruz	Paul	

The committee amendment in the nature of a substitute, as amended, was agreed to.

CLOTURE MOTION

The PRESIDING OFFICER. Under the previous order and pursuant to rule XXII, the clerk will report the motion to invoke cloture.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on S. 744, a bill to provide for comprehensive immigration reform, and for other purposes.

Harry Reid, Patrick J. Leahy, Michael F. Bennet, Charles E. Schumer, Richard J. Durbin, Robert Menendez, Dianne Feinstein, Sheldon Whitehouse, Patty Murray, Debbie Stabenow, Robert P. Casey, Jr., Mark R. Warner, Thomas R. Carper, Richard Blumenthal, Angus S. King, Jr., Christopher A. Coons, Christopher Murphy.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on S. 744, a bill to provide for comprehensive immigration reform and for other purposes, shall be brought to a close?

The yeas and nays are mandatory under this rule.

The clerk will call the roll.

The legislative clerk called the roll.

The yeas and nays resulted—yeas 68, nays 32, as follows:

[Rollcall Vote No. 167 Leg.]

YEAS—68

Alexander	Gillibrand	Mikulski
Ayotte	Graham	Murkowski
Baldwin	Hagan	Murphy
Baucus	Harkin	Murray
Begich	Hatch	Nelson
Bennet	Heinrich	Pryor
Blumenthal	Heitkamp	Reed
Boxer	Heller	Reid
Brown	Hirono	Rockefeller
Cantwell	Hoeven	Rubio
Cardin	Johnson (SD)	Sanders
Carper	Kaine	Schatz
Casey	King	Schumer
Chiesa	Kirk	Shaheen
Collins	Klobuchar	Stabenow
Coons	Landrieu	Tester
Corker	Leahy	Udall (CO)
Cowan	Levin	Udall (NM)
Donnelly	Manchin	Warner
Durbin	McCain	Warren
Feinstein	McCaskill	Whitehouse
Flake	Menendez	Wyden
Franken	Merkley	

NAYS—32

Barrasso	Enzi	Portman
Blunt	Fischer	Risch
Boozman	Grassley	Roberts
Burr	Inhofe	Scott
Chambliss	Isakson	Sessions
Coats	Johanns	Shelby
Coburn	Johnson (WI)	Thune
Cochran	Lee	Toomey
Cornyn	McConnell	Vitter
Crapo	Moran	Wicker
Cruz	Paul	

The PRESIDING OFFICER. On this vote, the yeas are 68, the nays are 32. Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

TANF

Mr. BAUCUS. Madam President, on July 12, 2012, the Department of Health and Human Services, HHS announced a new initiative to allow States to experiment under the temporary assistance for needy families, TANF, block grant. The HHS initiative would waive some Federal requirements for qualifying states and instead allow them to develop and use ''alternative and innovative strategies, policies, and procedures that are designed to improve employment outcomes for needy families.'' States would be required to improve employment by 20 percent in order to keep one of these waivers. Some of my colleagues object to this approach.

I was a supporter of 1996 welfare reform and stand by the tenets of that reform. However, it has been seventeen years since that debate on welfare produced the TANF program. We would not expect a car to run for 17 years without maintenance. It is time to tune-up our Nation's antipoverty program. It is time to take a look under the hood.

In the past, TANF has provided crucial benefits to struggling Americans. As poverty rates for women and children increase, it is vital to ensure our programs are adequately meeting the needs of this vulnerable population. The Congressional Research Service estimates that in 1995 over 14 million children were living in poverty. After welfare reform, the number of kids living in poverty decreased to about 11 million by 2000. Since then, these gains have been eroded. There were over 13 million kids in poverty by the start of the recession in 2007. Now there are over 16 million children in desperate need of assistance. These numbers do not indicate a healthy safety net. We must ensure that disadvantaged women and children continue to have access to the vital resources they need.

In 2005, after several attempts to pass a TANF reauthorization bill in ''regular order,'' the TANF program was reauthorized as part of the Deficit Reduction Act. But it was not the comprehensive bipartisan TANF reauthorization voted out of the Finance Committee. Rather, it was a slimmed-down version placed in a budget reconciliation bill that focused on tightening up the work standards and adding grants for marriage promotion and responsible

fatherhood. Furthermore, the reauthorization was solely written by Republicans without any Democratic input.

I have nothing but the utmost respect for my distinguished colleague for Utah. I share in my colleague's strong belief that work is honorable and that it should be a cornerstone of our welfare system.

While I certainly share in my colleague from Utah's concern over the unilateral waiver of legislative requirements, I am also a strong supporter of finding ways to improve Federal programs. I agree with the administration that innovation often comes from our partners in the States. As chairman of the Finance Committee, I have provided Montana and the other 49 States numerous opportunities to take initiative and improve our programs. Justice Louis Brandeis said, ''It is one of the happy incidents of the federal system that a single courageous state may serve as a laboratory, and try novel social and economic experiments without risk to the rest of the country.'' Giving the 50 States an opportunity to experiment and improve on Federal programs allows us to determine what works and what doesn't.

Allowing our States to have the flexibility to increase their work rates by 20 percent is a noble goal that improves the very foundation of our welfare system. I understand that there are concerns about how the 20 percent is calculated. However, the goal of increasing employment is my highest priority, a goal that I believe is shared by my friend from Utah.

No matter how noble the goal, I agree that there are better ways to go about making improvements to the TANF program than bypassing the Congress. The Finance Committee has jurisdiction over the TANF program. As a committee, we have never shirked our legislative responsibilities and could have been engaged in a more productive manner.

However, this impasse around TANF waivers has prevented productive dialog on the needs of this Nation's most vulnerable women and children for almost a year. It is time to get back to business. I am willing to work with Senator HATCH to end this impasse. The American people deserve our best attention on getting people jobs that will support their families.

With an eye toward reform, I asked the Government Accountability Office, GAO, to evaluate TANF. Since 1996, the number of families served by federal welfare programs has dropped from 3.9 million to 1.9 million in 2010. The GAO noted that this decline was not due to an increase in income but a decline in participation. GAO noted that States have erected increasingly more stringent barriers, making it difficult for families and children to qualify for TANF.

The GAO also noted that current policies may be discouraging States from preparing difficult-to-serve families for the road back to work through TANF. Some options suggested for serving families with complex needs include adjustments to state requirements and a focus on employment outcomes. We may need to make some modest changes to ensure that the program runs smoothly, our tax dollars are spent efficiently, and that we provide a useful safety net for Americans.

A safety net that encourages and inspires resiliency in the face of hardship is crucial to our growth and success. We have worked together to provide States with the opportunity to find solutions while maintaining rigorous standards in the child welfare programs. Continuing this trend is important, even more so when it involves lifting families out of poverty. We have had a strong bipartisan relationship on the Finance Committee, and I look forward to working with the ranking member to improve our welfare system.

Women should not be faced with the hard choices like staying in abusive relationships in order to provide for their kids or leaving their children with less than trustworthy guardians to find a job. We can do better. Input from the administration, States, and other stakeholders on what they think might improve the program is welcome and needed. I am looking forward to working with my colleague from Utah on a legislative solution that improves the TANF program in real ways for women and children.

Mr. HATCH. Madam President, last July, in an unprecedented over-reach of executive authority, the Obama administration violated congressional intent and breached over a decade of precedence by granting themselves the authority to waive critical Federal work requirements.

As ranking member of the Senate Finance Committee, which has jurisdiction over the temporary assistance for needy families, or TANF, I strongly opposed this effort of the Executive branch to bypass the legislative branch of government.

It is the sole responsibility of the Senate Finance Committee to develop, debate, and enact changes to the TANF programs.

The TANF programs have not been fully reauthorized for over 10 years and have been funded by a series of short term extensions since 2010. During this time, poverty and, most distressingly, child poverty have risen. It is imperative to families struggling in this dire economy that the Senate Finance Committee act in a bipartisan manner to reform and improve the TANF programs.

In December of last year, colleagues may remember that I sent a letter to President Obama and then subsequently went to the Senate floor and formally asked the President to instruct the Secretary of Health and Human Services to withdraw their unconstitutional welfare waiver rule and submit a comprehensive welfare reform plan to the Congress. In my letter and my remarks, I made it clear that if the President withdrew this waiver scheme and sent up a proposal to Congress, that I would commit to working with him and other Democrats to enact comprehensive welfare reform.

However, in the months since I sent my letter, I have not gotten a response from the President. The welfare waiver rule remains in effect. The Secretary of Health and Human Services has failed to propose a comprehensive welfare reauthorization.

According to HHS, no State has applied for a welfare work waiver. In their Statement of Administration Policy, to H.R. 890, the ''Preserving Work Requirements for Welfare Programs Act of 2013,'' the Administration writes that the reason no state has applied for a welfare work waiver is due to ''inaccurate claims about what the policy involves.''

However, the Obama administration has refused to elaborate further on these waiver policies, and Democrats in the Congress have steadfastly resisted any effort to rescind the administration's welfare waiver scheme.

The insistence on the part of the administration that the welfare waiver rule remain intact demonstrates to me that the administration wants the option to waive Federal welfare requirements at some later date.

Therefore, it behooves those of us who support robust welfare work requirement to oppose the administration's welfare work waiver scheme and work to remove the possibility that the Obama administration would approve proposals to gut welfare reform.

This has become even more imperative because, as we learn more about how the Obama administration developed their welfare work waiver rule, the more it becomes apparent that the Obama administration has been disingenuous in it characterization of the policy and its intended outcomes.

HHS initially justified their welfare work wavier scheme by suggesting that they were merely doing the bidding of the State. They referred to comments solicited by them from my State of Utah, in 2011, requesting administrative flexibility as justification for advancing policies that could undercut key provisions of welfare reform.

However, in exercising the due diligence oversight role of the legislative branch, Ways and Means chairman DAVE CAMP and I were able to compel HHS into providing an internal memo relating to the development of the welfare work waiver rule. I ask unanimous consent to have this memo printed in the RECORD at the conclusion of my remarks.

As my colleagues will see, contrary to claims that the Obama administration was simply capitulating to State's requests for flexibility, this memo reveals that, as far back as 2009, policy makers in the Obama administration were working to determine which provisions of welfare reform could be

waived or disregarded. Therefore, the claim that the Obama administration was merely capitulating to states' request for administrative flexibility is disingenuous, at best.

A careful review of this memo further reveals that HHS attorneys have concluded that the Secretary has the authority to allow States to ignore prohibitions on Federal welfare spending which would ''permit a state to extend assistance to a family for which assistance would be prohibited under Section 408 of the Social Security Act.''

Mr. President, the following individuals and activities are prohibited under section 408 of the Social Security Act: fugitive felons and parole violators, families where the adult has exceeded 5 years of assistance, noncitizens with a five-year ban on assistance as described in title IV of the Personal Responsibility and Work Opportunity Reconciliation Act, and medical services, such as abortion.

Under S. 744, the legislation before the Senate today, the prohibitions detailed in title IV of PRWORA for Federal means-tested public benefits, such as cash welfare, are extended to registered permanent immigrants, blue card holders, and aliens admitted to the United States under 101(a)(15)(V) or 101(a)(15)(Y).

However, under HHS's current interpretation of section 1115 authority, since title IV can be ignored, Federal welfare benefits could be paid to these groups of noncitizens.

I have always wanted to support the current bill before the Senate, and I committed to working with Senator RUBIO and others to try and improve the bill so that it can garner broad bipartisan support.

I initially filed an amendment that would have prevented the Obama administration from potentially gutting welfare reform and explicitly prohibited them from permitting the types of spending outlined in section 408 of the Social Security Act. This amendment was deemed too broad to be relevant to the immigration debate by the Democratic majority.

So, in the spirit of compromise, I agreed to limit my amendment to only apply to the section of 408 dealing with noncitizens—in other words, the ability of Obama administration to waive work requirements and permit Federal welfare spending on certain prohibited individuals and activities remains.

The Obama administration's interpretation of their 1115 waiver authority is and will remain an impediment to successfully improving and reauthorizing the TANF programs. This is because any compromise could be undermined by this or any other administration. I take the chairman at his word that he intends to pursue a bipartisan consensus on improvements to the TANF programs, but I need to stress that consensus will be difficult to reach as long as this or any future administration can waive key features of a compromise reached by the Congress.

This Senator remains baffled why the Obama administration is so reluctant to engage in a discussion of welfare reform.

To this date, nearly a year after the Obama administration went public with their welfare work waiver rule, they have not issued a single clarification on what work or work related activity they wanted to allow states to count as work and why the current flexibility in TANF is insufficient.

It appears that despite my entreaty last year for the Obama administration to engage in a dialogue about improving the TANF programs, their strategy for the immediate future appears to be one in which they will simply let TANF wither on the vine.

I do not want that to happen. TANF provides critical support of working families and helps States provide services to vulnerable children. But too much of TANF spending is unaccounted for, and programs funded by TANF dollars may not be coordinated with other efforts directed towards at risk populations.

The robust welfare-to-work programs from 20 years ago have virtually vanished.

I know that the chairman of the Senate Finance Committee shares my concerns about the future of TANF. I understand he has a different perspective on the administration's intentions relative to their welfare waiver policies.

I hope to be able to work with Chairman BAUCUS and the other members of the Senate Finance Committee to propose commonsense reforms to the TANF programs during this session of Congress.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEPARTMENT OF HEALTH
& HUMAN SERVICES,
Washington, DC, December 15, 2009.

To: Mark Greenberg, Deputy Assistant Secretary for Children and Families

From: Chief of Litigation, Children, Families and Aging Division

Subject: Authority Under Section 1115 of the Social Security Act

This memo responds to your request for a legal opinion regarding the breadth of the Secretary's authorities under section 1115 of the Social Security Act (Act), 42 U.S.C. 1315, with respect to title IV–A of the Act. Specifically, you are interested in better understanding her ability to waive particular state plan requirements for the Temporary Assistance for Needy Families (TA') program and to allow states to spend TANF, Healthy Marriage and/or Responsible Fatherhood program funds for certain purposes beyond those specified in sections 403 and 404 of the Act. As explained below, for a proper section 1115 demonstration project, the Secretary may waive compliance with any state plan requirements in section 402 of the Act, as well as any other requirement incorporated therein. The Secretary also may allow a state to use IV–A Funds for costs that otherwise would be impermissible under that title. Section 1115 does not provide direct relief from state penalties under section 409 of the Act but may factor into the penalty relief available under section 409 itself. Thus, the Secretary may take most of the actions proposed in your November 17, 2009, e-mail, under section 1115 of the Act.

SECTION 1115 AUTHORITIES

Section 1115(a) of the Act provides the Secretary of Health and Human Services (''the Secretary'') with two types of discretionary authority to exempt a State from otherwise-applicable IV–A rules so that it may implement a demonstration project that, in the Secretary's judgment, ''is likely to assist in promoting the objectives'' of title IV–A. 42 U.S.C. §1315(a).

First, under section 11.15(a)(1) of the Act, the Secretary ''may waive compliance with any of the requirements of section . . . 402 . . . to the extent and for the period [s]he finds necessary to enable [a] State . . . to carry out'' an approved demonstration project. id. §1315(0(1). Section 402 of the Act sets forth state plan requirements for title IV–A, Id. §602. ''In granting a §1315(a) waiver, the Secretary allows the state to deviate from the minimum requirements which Congress has determined are necessary prerequisites to federal funding.'' Beno v. Shalala, 30 F.3d 1057, 1068 (9th Cir. 1994).

Second, under section 1115(a)(2)(B), ''costs of an approved demonstration project] which would not otherwise be a permissible use of funds under part A of title IV . . . shall to the extent and [or the period prescribed by the Secretary, be regarded as a permissible use of funds under such part.'' 42 U.S.C. §1315(a)(2). This authority permits the Secretary to use 1V–A funds for expenditures that would not be allowable under, for example, section 404 of the Act, 42 U.S.C. §604, which prescribes permissible uses of a state's TANF grant.

PREREQUISITES FOR SECTION 1115 PROJECTS

Section 1115 applies to only (1) experimental, pilot, or demonstration projects that (2) in the judgment or the Secretary are likely to assist in promoting the objectives of, in this case, title IV–A of the Act. (3) to the extent and for the period she finds necessary. Thus, while the Secretary has considerable discretion to decide which projects meet these criteria, she must, at a minimum, consider each of these issues.

Because Congress enacted section 1115 to ''test out new ideas and ways of dealing with the problems of public welfare recipients,'' S. Rep. No. 1589, 87th Cong., 2d Sess. 20, reprinted in 1962 U.S.C.C.A.N. 1943, 1962. the Secretary must first determine that that the project has a research or demonstration value. See Beno, 30 F.3d at 1069 (''she must determine that the project is likely to yield useful information or demonstrate a novel approach to program administration'').

In addition, the Secretary must determine that the proposed project is likely to further the objectives of title IV–A. These objectives, as identified in section 401 of the Act, 42 U.S.C. §601, are as follows:

(1) provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives;

(2) end the dependence of needy parents on government benefits by promoting job preparation, work, and marriage;

(3) prevent and reduce the incidence of out-of-wedlock pregnancies and establish annual numerical goals for preventing, and reducing the incidence of these pregnancies; and

(4) encourage the formation and maintenance of two-parent families.

Finally, the Secretary may issue a waiver ''to the extent and for the period [s]he finds necessary,'' id §1315(a)(1), and may regard otherwise impermissible expenditures as permissible ''to the extent and for the period [she] prescribe[s],'' id. §1315(a)(2)(B). Thus, pilot projects are limited in scope and duration, consistent with their experimental nature.

Section 1115 waivers are subject to judicial review under the Administrative Procedure

Act. See Beno. 30 F.3d at 1067; G. v. Hawaii, 2009 U.S. Dist. LEXIS 39851 (D. Haw. May 11, 2009). Courts have recognized that the Secretary has broad authority under section 1115, and her decision to approve a project under section 1115 should he upheld unless it is arbitrary, capricious, or contrary to law. See Georgia Hospital Ass'n v. Department of Medical Assistance, 528 F. Supp. 1348 (N.D. Ga. 1982); Crane v. Mathews, 417 F. Supp. 532 (N.D. Ga. 1976); California Welfare Rights Org. v. Richardson, 348 F. Supp. 491 (N.D. Cal. 1972); Aguayo v. Richardson, 352 F. Supp. 462, 469–70 (S.D.N.Y. 1971), affd 473 F. 2d 1090 (2d Cir. 1973).

Assuming that a state's project satisfies these prerequisites, the Secretary may address the particular 1V–A provisions referenced in your e-mail as follows:

Can the Secretary permit a state to operate under a different set of participation rate requirements other than those specified in Section 407, or to be accountable for negotiated outcomes rather than the TANF participation rates?

Yes. Although work participation rates are found in section 407, which may not be waived directly under the terms of' section 1115a)(1), section 402(a)(1)(iii) requires that the State plan ''[e]nsure that parents and caretakers receiving assistance under the program engage in work activities in accordance with section 407.'' Because this section 402 requirement incorporates section 407, ''Mandatory Work Requirements,'' the Secretary's waiver authority may reasonably extend to section 407, as well.

However, the extent to which section 407 may be incorporated for purposes of section 1115 is unclear. Section 402(a)(1)(iii)'s limitation, ''in accordance with section 407,'' could be read to modify or apply only to section 407(d), because section 402(a)(iii) expressly refers to ''work activities'' in section 407, which are defined in section 407(d). Thus, a more conservative approach to section 1115(a)(1) would limit a waiver of section 402(a)(1)(iii) to enable a state to define work activities differently than Congress did in section 407(d), but otherwise leave the rest of section 407, including participation rates in section 407(a), intact.

Alternatively, ''in accordance with section 407'' could he read to modify the entire clause that precedes it, i.e., ensuring that recipients engage in the prescribed work activities. In other words, if section 402(a)(1)(iii) requires not merely that the work activities be those defined in section 407(d) but also that the state have in place section 407's comprehensive scheme to ''ensure'' that families work, including through the participation rates, then a waiver could reasonably reflect the breadth of the state plan requirement itself. In short, section 402(a)(1)(iii)'s use of ''in accordance with section 407'' (rather than, for example. ''section 407(d)'') is sufficiently ambiguous that a broader view of the scope of the potential waiver is a defensible, though perhaps riskier, interpretation.

Can the Secretary permit a state to spend TANF funds for a benefit or service beyond those allowable under Section 404?

Yes. Under section 1115(a)(2), the Secretary may allow a state to use its IV–A funds to pay for costs that would ''not otherwise be a permissible use of funds under part A of title IV,'' regardless of which section of title IV–A would render the cost impermissible.

Can the Secretary broaden allowable expenditures under healthy marriage and responsible fatherhood promotion grants beyond those specified in Section 403?

Yes. Unlike other titles covered by section 1115(a)(2), title IV–A is referenced in its entirety with respect to the otherwise impermissible costs for which Federal program funds may be used. For example, for title IV–D, section 1115(a)(2)(A) only allows the use of IV–D funds to pay for expenditures that would not be allowed under section 455 of the Act, 42 U.S.C. §655. Thus, section 1115(a)(2) would not authorize the use of IV–D funds to pay for costs that would not be allowed under section 469B (Grants to States for Access and Visitation), 42 U.S.C. §669b, even though this latter section is part of title IV–D, too. As stated above, under section 1115(a)(2), the Secretary may allow a state to use its IV–A funds to pay for costs that would ''not otherwise be a permissible use of funds under part A of title IV,'' regardless of which section of title IV–A would render the cost impermissible. Thus, even though section 404 of the Act generally prescribes a state's use of its TANF grant, the Secretary may apply section 1115(a)(2) to other funds and costs under title IV–A, including those in section 403.

Can the Secretary permit a state to extend assistance to a family, Or which assistance would otherwise be prohibited under Section 408?

Yes. Section 408 of the Act lists additional (i.e., non-state plan) prohibitions and requirements on the use of IV–A funds. To the extent that this section prohibits the use of IV–A funds for certain purposes, the Secretary may use section 1115(a)(2) to regard a state's expenditures therefor as permissible. For example, section 408(a)(7) prohibits the use of its TANF grant to provide assistance to a family for more than five years. Although this is not a state plan requirement, and thus may not be waived under section 1115(a)(1), the Secretary may allow a state to use its TANF grant to provide assistance beyond this five-year period as part of a demonstration project, using her authority under section 1115(a)(2).

Can the Secretary provide that a penalty otherwise applicable under Section 409 does not apply?

No. Section 1115 does not reference section 409 of the Act, 42 U.S.C. §609, which provides for penalties against states that violate various provisions of the Act. Section 409 is neither incorporated by section 402 as a state plan requirement that can be waived under section 1115(a)(1) nor reflective of costs that would otherwise be impermissible under title IV–A. However, if the goal is to provide opportunities for a state to avoid a penalty while encouraging experimentation, it may be possible to work within the existing framework of section 409 to find ''reasonable cause,'' if a state's section 1115 project were to cause it to incur the penalty.

Depending on the kind of penalty at issue, section 409(b) prohibits the Secretary from imposing a penalty ''if the Secretary determines that the State has reasonable cause for failing to comply with the requirement.'' To the extent that a state fails to meet a requirement due to its participation in a section 1115 project, it may be appropriate for the Secretary to find ''reasonable cause'' for the state's failure. For example, if a State has a section 1115 project that allows it to spend IV–A funds on assistance beyond the five-year period authorized in section 408(a)(7), it may be possible to justify forgoing a penalty under section 409(a)(9) based on the reasonable cause exception, because the State had permission to use the funds in that manner. This is similar to the approach taken with respect to waivers for penalties attributable to providing federally-recognized good cause domestic violence waivers. See 45 C.F.R. §260.58(a) (state must demonstrate that it met work participation rate requirements except with respect to any individuals who received a federally-recognized good cause domestic violence waiver of work participation requirements). Although section 1115 waivers are not expressly referenced in the IV–A ''reasonable cause'' regulation, see 45 C.F.R. §262.5, the preamble to the rule clarifies that the list of factors in the rule is not exclusive. Temporary Assistance for Needy Families Program, 64 Fed. Reg. 17720, 17805 (Apr. 12, 1999) (''we no longer limit ourselves to considering only these factors. While we do not anticipate routinely determining that a State had reasonable cause based on other factors, we do not want to preclude a State from presenting other circumstances.'').

In addition, section 409(c) of the Act requires that a state have the opportunity to enter into a corrective compliance plan for certain penalties. 42 U.S.C. §609(c). To the extent that a state's participation in a section 1115 demonstration project adversely impacts its ability to satisfy requirements covered by section 409, the state may take this into account in the corrective compliance plan.

CONCLUSION

Most of the proposals identified in your November 17, 2009, e-mail appear to be defensible exercises of the Secretary's discretion under section 1115 of the Act. However, whether a particular project is legally supportable will depend on the facts and circumstances surrounding that project. We are available to assist you, if you decide to pursue further any of these or other ideas using IV–A funds.

Please contact me at 202–690–8005, if you have any questions.

ICHIA

Mr. ROCKEFELLER. Madam President, I would like to take a few moments with my friend Chairman LEAHY to discuss the ongoing importance of the Children's Health Insurance Program Reauthorization Act's impact on lawfully residing noncitizen children and pregnant women. In that 2009 legislation, States were given the option to provide Medicaid and State Children's Health Insurance Program—CHIP—benefits to these populations without first imposing a waiting period, and many did so as an investment in future generations. Throughout the debate on S. 744, some of my colleagues spent a considerable amount of time seeking to deprive lawfully present noncitizens of the protections of our vital safety net programs. I consider these efforts to be contrary to the value that we, as Americans, place on protecting the most vulnerable among us.

Chairman LEAHY's leadership has been critical to the passage of this historic legislation in the Senate, and I thank him for being a strong voice in favor of protecting health care benefits for children and pregnant women. As you know, children's health has been one of my top priorities throughout my time in the Senate. Although the immigration reform bill that passed the Senate does limit certain noncitizens' eligibility for some Federal benefits, I am pleased the Senate chose to preserve States' rights to extend full Medicaid and State Children's Health Insurance Program benefits to children and pregnant women granted legal status under the bill, particularly individuals and families granted Registered Provisional Immigrant—RPI, Blue Card, and V-visa status.

Commonly referred to as the Immigrant Children's Health Improvement Act—ICHIA, the success of this State option cannot be overstated. In the 4 years since its passage, 27 States and territories have decided to exercise the option to extend coverage to lawfully residing noncitizen children or pregnant women under Medicaid or CHIP without first imposing a waiting period: California, Colorado, Connecticut, Northern Mariana Islands, District of Columbia, Delaware, Hawaii, Illinois, Iowa, Maine, Maryland, Massachusetts, Minnesota, Montana, Nebraska, New Jersey, New Mexico, New York, North Carolina, Oregon, Pennsylvania, Rhode Island, Texas, Vermont, Virginia, Washington, and Wisconsin. This extension of coverage has literally been a lifeline to children and pregnant women who cannot afford to wait 5 years for immunizations, treatment of infections, prenatal care, and other necessary medical services.

Because the bipartisan immigration bill contains multiple provisions relating to certain noncitizens' eligibility for federal benefits, including those under means-tested programs, I would like to take some time to walk through how the Senate-passed immigration bill does not in any way limit a State's ability under ICHIA to extend coverage to children and pregnant women who receive RPI, Blue Card, or V-visa status.

Under the Centers for Medicare and Medicaid Services'—CMS—guidance on the definition of ''lawfully residing'' in ICHIA, as long as a noncitizen child or pregnant woman has established residency in a State and is ''lawfully present'' in this country, he or she may qualify for benefits at the State's option. Children and pregnant women granted RPI, Blue Card, and V-visa status as part of the bipartisan immigration bill clearly meet this definition. The bill explicitly states that these categories of noncitizens are ''lawfully present'' in the United States for all purposes, except for specific benefits and obligations under the Affordable Care Act.

I will now turn it over to Chairman LEAHY to provide some additional context from the Senate negotiations and the Judiciary Committee mark-up of S. 744.

Mr. LEAHY. Thank you, Senator ROCKEFELLER. The issues we are discussing today are extremely important, and I appreciate your leadership during CHIPRA to allow States to extend Medicaid and CHIP benefits to pregnant women and children in the first place.

Last week, I came to the floor to express my opposition to amendments that were designed to punish immigrant families who are living on the verge of poverty by preventing them from accessing our Federal safety net. The Judiciary Committee refused to add many of these amendments to the bill, and I am pleased that the Senate heeded my call to reject the harshest of these amendments as well.

Now, I would like to repeat something that Senator ROCKEFELLER just said. The bipartisan immigration reform bill explicitly states that children and pregnant women granted RPI, Blue Card, and V-visa status are considered ''lawfully present'' in the United States. It is true that the bill contains language making these three categories of immigrants ineligible for ''any Federal means-tested public benefits'' as ''defined and implemented'' in section 403 of the Personal Responsibility and Work Opportunity Reconciliation Act,—PRWORA, the Federal law that limits some noncitizens' eligibility for certain Federal programs. However, this language does not eliminate the States' right to exercise the ICHIA option.

Mr. ROCKEFELLER. Now, I would like to direct a question to my friend Chairman LEAHY. Just to be clear, provisions in the bipartisan immigration reform bill do not eliminate a State's right to extend Medicaid and CHIP to any lawfully residing noncitizen child or pregnant woman, including those receiving RPI, Blue Card, or V-visa status. Is this correct, Mr. Chairman?

Mr. LEAHY. Yes, that is correct. Nor was it our intention throughout the negotiations to eliminate this State right.

Mr. ROCKEFELLER. A closer look at the language in PRWORA and the Social Security Act confirms that the immigration reform bill does not eliminate the States' right to use the ICHIA option to provide coverage to lawfully residing children and pregnant women. The States' option to extend coverage to these individuals is not ''implemented'' in section 403 of PRWORA, the provision of law impacted by the immigration bill, but instead exists independent of PRWORA under sections 1903 and 2107 of the Social Security Act.

I would also like to point out to our colleagues that the Congressional Budget Office—CBO—had a similar interpretation of the language in S. 744. CBO made an assumption that, under this language, Federal agencies would permit some individuals with RPI, Blue Card, or V-visa status to receive benefits from Federal means-tested programs, and specifically incorporated into its estimate of the bill the costs of providing Medicaid and CHIP coverage under ICHIA to children and pregnant women.

Mr. LEAHY. Senator ROCKEFELLER is correct. The Senate had full knowledge of CBO's interpretation and cost estimate when it negotiated a bipartisan amendment that became the text of the final bill. We chose not to modify the provisions relating to the application of benefits under PRWORA, thus retaining the language that permits coverage under ICHIA of individuals with RPI, Blue Card, or V-visa status.

During the negotiations, the Senate did accept an amendment which states that ''No officer or employee of the Federal Government may waive'' compliance with PRWORA, or the bill's prohibition on accessing benefits that are defined and implemented in PRWORA. But these provisions, too, are inapplicable to a State's option under ICHIA. As my colleague Senator ROCKEFELLER mentioned before, the ICHIA option is not a product of PRWORA. It exists as an independent right under the Social Security Act and is therefore unaffected by this section.

Mr. ROCKEFELLER. Moreover, by using the term ''waive'' in section 2323, the Senate is attempting to prohibit Federal officials from using their waiver authority under certain means-tested programs—such as those afforded to agencies in relation to demonstration projects—in a way that would result in noncompliance with PRWORA. This narrow prohibition on the use of waivers by Federal officials cannot be construed to prevent the continued implementation of an explicit, independent statutory right afforded to the states under ICHIA. The ICHIA option is not a waiver and remains available for States regardless of any action by an ''officer or employee of the Federal Government.''

Mr. LEAHY. I would like to point to one final, yet unfortunate, indication of the Senate's intent to preserve benefits under Medicaid and CHIP for children and pregnant women granted RPI, Blue Card, and V-visa status—section 4417. This section was added during negotiations on the amendment that became the final text of the bill. It directly amends ICHIA to prohibit States from covering certain individuals who are lawfully present in the United States on student and tourist visas. Had the Senate intended to similarly exclude from ICHIA individuals granted RPI, Blue Card, and V-visa status, it would have explicitly done so.

Mr. ROCKEFELLER. I share the Chairman's disappointment that the Senate decided to add section 4417 to explicitly exclude students and tourists from ICHIA coverage, but I also agree with him that by not excluding other categories of lawfully residing noncitizens in section 4417, such as those granted RPI, Blue Card, or V-visa status, the Senate intended to preserve their benefits.

One of the hallmarks of our Nation is our willingness to protect the most vulnerable among us. People from all over the world want to be part of America because of our deeply-rooted respect for human dignity.

Although it is not perfect—few laws are—the bipartisan immigration bill passed by the Senate this week lives up to those values in so many ways. It brings millions of hard working people out of the shadows, gives young students an opportunity to earn citizenship by furthering their education or serving in the military, reunites families who yearn to spend time with their loved ones, protects victims of domestic violence, and preserves health care coverage for noncitizen children and

pregnant women who earn legal status under the bill.

Immigrants are not under any illusions that they will qualify for lavish benefits under our Federal programs when they arrive on our shores. But under this bill, they at least know that when medical needs arise or a medical disaster strikes, the vast majority of noncitizen children and pregnant women will be covered.

I yield the floor.

Mr. KING. Madam President, I would like to discuss my J–1 visa amendment to the immigration bill, which was incorporated into the Corker-Hoeven amendment. The purpose of the amendment is to increase transparency and accountability of exchange visitor programs that operate under the J–1 visa category, while ensuring the continued existence of the J–1 program.

I proposed the new subtitle I in title III, with the support of my friend from Wisconsin Mr. JOHNSON. While the original subtitle F protections applied across a range of visas that have a work component, the J–1 visa category is fundamentally different from the other visas originally included in subtitle F. The J–1 category simply required separate treatment to ensure increased protection of J–1 visa holders and the long-term viability of this important diplomatic program.

I appreciate the support of the senior Senator from Connecticut, the original sponsor of subtitle F, and would like to further clarify the intent of our amendment.

Throughout the crafting of our amendment, I acknowledged that there are legitimate concerns with some J–1 programs. There have been instances in the Summer Work Travel Program where student placements have been inappropriate for the purposes of true cultural exchange.

As S.744 was reported from the Judiciary Committee, however, the intended reforms would have made it impossible for high quality sponsors to continue to administer the Exchange Visitor Program. Without an amendment, this important public diplomacy tool would have been lost.

Our amendment strikes ''exchange visitors'' from the definition of ''worker'' in subtitle F. Subtitle F is aimed at foreign labor contracting activity and creates important new protections for foreign workers in the U.S.—we did this because J–1 exchange visitors are not primarily workers, but instead cultural exchange participants. We believe this amendment to the bill makes clear that neither exchange visitors nor sponsors of J–1 programs are subject to the new requirements of Subtitle F, and that J–1 sponsors are not considered foreign labor contractors or recruiters.

As with any compromise, subtitle I is not 100 percent perfect. But it includes several important elements. Most vital, the amendment allows these valuable programs to continue and provides key protections to ensure participants remain safe. The Department of State has strengthened its regulations in recent years, and our amendment will help further that process. I believe our amendment makes the exchange visitor program stronger and ensures that international students and American businesses have clearer rules to continue this important public diplomacy tool.

I appreciate the collaborative effort of my colleagues, particularly the Senators from Connecticut and Wisconsin, for helping to craft legislation that improves the J–1 exchange visitor program. I look forward to continuing to work with them as this bill moves forward.

Mr. ENZI. Madam President, I rise to speak about why this body should reject the amended version of the immigration bill. I believe our immigration system is broken. As a matter of fact, I know the Senate could agree unanimously on the fact that our immigration system is broken. This includes both the legal system which allows individuals to visit and work in our country in addition to the failures which continue to allow others to reside illegally within our borders. The intentions of the Senate Judiciary Committee and the sponsors of this bill are correct. Those Senators deserve credit for their work on the bill over the past few months. However, as we approach final passage on this legislation I have to say I respectfully disagree with the final product and its failures to make fixes in several key areas.

The first key fix rests in the fact that the United States remains a place of opportunity. The whole reason why people want to come to the United States is because of jobs. In order for immigration reform to work we must have a strong, workable employment verification system in place. If Congress can ensure that only authorized job seekers gain employment in this country, then we remove the incentive for illegal immigration. Workers who cannot get jobs cannot afford to stay in the United States illegally. This immigration bill works towards making E-Verify mandatory. I agree with this goal, but as a former small business owner familiar with this process, I also recognize that this bill fails to strengthen protections against the fraudulent use of identifiers used in the employment process—particularly Social Security cards and Social Security numbers. Small business owners by nature do a lot. They mop floors, make sales, greet customers, do the accounting, set up computers, and pay the bills. However, you should not have to ask a business owner to act as a customs agent and determine if the government issued documents presented to them are authentic. One recent study suggests that the current E-Verify error rate for unauthorized workers is 54 percent. This is attributed to the fact that even though the system says that a particular person is legal, there is no way for the employer to know for certain if that worker is really who they claim to be.

The proposal before us attempts to address this problem through a photo-matching tool. However, the verification system does not have photos for the more than 60 percent of Americans who do not have a U.S. passport and relies on States to be able to provide driver's license records on a voluntary basis. This legislation allows a fundamental flaw in the E-Verify system to exist, making it even more difficult for employers to ensure that the people they hire are lawful. Several of my colleagues have filed amendments to fix these problems. I know that this is something Senator PORTMAN has worked on extensively and I support his efforts. Unfortunately, the necessary changes have not been made to E-Verify and it is difficult for me to support a bill knowing that it fails to provide small business owners with the tools they need to efficiently and accurately verify the identity of new employees.

Another draw to the United States happens to be the Federal welfare and tax benefits that workers receive. My colleague Senator HATCH has been working on several amendments, which I support, that ensures non-citizens do not benefit from these federal programs. Amendment No. 1246 clarifies that the U.S. Department of Health and Human Services cannot undermine welfare reform so that non-citizens receive welfare. Additionally, I support Hatch amendment No. 1247 that ensures back taxes are collected for applicants under the Registered Provisional Immigrant program. Failing to fix these draws to our country undermines immigration reform, incentivizes illegal behavior and adds costs to Americans who lawfully pay their taxes.

Second, dependable border security and interior enforcement is crucial to the entire immigration system. I voted for several amendments in this debate which would enact firm border security and enforcement triggers. One lesson from previous immigration efforts is that we cannot reduce illegal immigration without better border security and entry/exit enforcement measures. I cannot support the amended version of the bill because it offers false promises about border security and enforcement measures. I do not understand how the submission of a border security plan makes our nation safe, particularly when current law is not being enforced. Border agents are added but not before the provisions of the underlying bill go into effect. I think the Senate should take a lesson from history. Failing to secure the border and ignoring enforcement will not reduce illegal immigration.

Finally, I think it is also important to discuss why more hasn't been done to fix the underlying bill. The Senate has been on this bill for nearly 3 weeks. In that time, the Senate has only voted on nine amendments. It appears clear

now that few if any more amendments will be considered as we approach final passage which makes it difficult to make some real common sense changes to the bill. I believe that part of the reason is because the bill is being considered as comprehensive reform. Comprehensive bills give everyone reason to oppose the bill. This Senate wants a legitimate fix to immigration. The best way to do that is to focus on it one piece at a time. For example, had more attention been placed on E-Verify as a standalone bill, I am confident that we could find a way to ensure that the program works effectively for small businesses and helps deter the incentive for illegal behavior.

For these reasons I will be voting against final passage. I understand that we all want to fix our immigration system, but I cannot find the resolve to support legislation that misses the mark on so many levels. I am hopeful that more work will be done on fixing our immigration system in the interest of our economy, national security and moral obligations as a country.

Mrs. MURRAY. Madam President, I rise today to discuss the passage of the comprehensive immigration reform bill. For the first time in a generation, the Senate has passed a bill that brings us one crucial step closer to sensible immigration laws. This is a historic day for the Senate, for our economy, and for families across our country, but there is more work to be done before this bill becomes law.

When we began consideration of the Border Security, Economic Opportunity, and Immigration Modernization Act, I gave a speech in which I quoted from a book that John F. Kennedy wrote while serving in this Chamber. He wrote, ''Immigration policy should be generous; it should be fair; it should be flexible. With such a policy we can turn to the world, and to our own past, with clean hands and a clear conscience.'' Today we can turn to the world proudly, with a clear conscience, and say this bill lives up to our ideals and our American values, to say that it will provide millions of aspiring Americans the opportunity to come out from the shadows, realize their dream of citizenship, and be strong threads in the rich fabric of this great nation.

From the beginning of this process, I have been very clear with my colleagues regarding my priorities for immigration reform, and this bill takes steps to achieve each of them. First, this legislation provides a real pathway to citizenship for the 230,000 undocumented people already living in Washington State. These families already work alongside us, attend our churches, and send their children to our schools—and they deserve the benefits and responsibilities of American citizenship. This bill also makes important reforms to help our economy, from agricultural businesses in central and eastern Washington to our expanding high-tech corridor in the Puget Sound. It can and should do more, but this legislation includes provisions to treat immigrants with dignity and help reunite families separated by our outdated laws. Finally, it provides Washington State's 35,000 DREAMers, children brought to this country at a very young age, with the chance they deserve to succeed in America. This bill allows thousands of undocumented families in my home State of Washington who work hard and play by the rules to leave the shadows—to no longer live in constant fear of being separated from their loved ones.

I am also pleased this bill offers important reforms in the employment-based immigration system. There is a clear need to expand legal avenues for workers to immigrate to the United Sates in a safe and orderly manner. The size of this workforce must be flexible to meet the needs of our diverse industries and must be responsive to changes in our economy. This bill is a step in the right direction. It will allow the immigration system to be more responsive to the needs of the marketplace and will enable businesses to attract and retain a capable, stable, and legal workforce.

This bill isn't perfect and it is not the bill I would write on my own, but it is the result of a bipartisan compromise, and I am proud to support it as a strong step in the right direction. Although I have concerns about some elements of the bill, it makes critical changes to our broken system that will strengthen our country and grow our economy.

Over the past weeks, I offered a number of amendments that would have made commonsense improvements to the bill. Importantly, three of my amendments would have made this bill more inclusive of women.

Too often women in the developing world are not offered the same educational and employment opportunities afforded to men in those countries. This fact places women at a competitive disadvantage under a merit-based system that rewards education, job promotion, and career advancement. That is why I worked with my colleagues, Senator MAZIE HIRONO of Hawaii and Senator LISA MURKOWSKI of Alaska, to introduce my first amendment, which would provide 30,000 green cards for occupations held by lower income immigrant women in the United States. Our amendment would accomplish this by creating a third tier in the merit-based point system that would have complemented the highly educated tier one system and the moderate to lower skilled tier two system.

I was deeply disturbed to learn that some pregnant women in immigration detention are shackled, including during labor and delivery. While the Department of Homeland Security recently adopted performance standards that prohibit the shackling of pregnant detainees absent extraordinary circumstances, a significant portion of Immigration and Customs Enforcement, ICE, detainees are held in county jails by local law enforcement. These holding centers are not required to follow the Department's standards.

Shackling during labor, delivery, and postpartum recovery increases the risk of harm to the fetus, it inhibits medical staff's ability to respond to emergencies, and it increases the discomfort and pain of the childbirth. That is why I introduced my second amendment to extend the prohibition against shackling to include all pregnant women held for immigration purposes, including those held under an immigration detainer issued by a Federal agency. This bipartisan amendment, cosponsored by Senator MIKE CRAPO of Idaho, provided for certain exceptions to the ban due to extraordinary circumstances, while also prohibiting certain types of restraints known to cause tripping, falling, or that stop a mother from using her hands to break her fall. Simply put, a woman should never have to endure the pain, embarrassment and extreme discomfort of being restrained while giving birth to her child, nor should she have to fear she will lose her child because of the way in which she is detained. Our immigration enforcement policy should always uphold our commitment to civil liberties and safeguard the dignity that every mother deserves. My amendment would have done just that.

My third amendment would have extended protections for the most vulnerable, including domestic violence survivors whose visa depends on their abuser's sponsorship. I drafted a comprehensive amendment designed to protect immigrant survivors of domestic violence, sexual assault, human trafficking, stalking, and dating violence. It would have extended judicial review in certain cases, would have modified the Violence Against Women Act, VAWA, cancellation of removal process, and would have provided training for Federal officers on vulnerable populations, among other protections. It would have also extended certain safety-net benefits to immigrant survivors to help them escape violence, gain independence, and recover from physical and emotional abuse.

I am going to keep working to improve this bill as it continues in the legislative process, and when it becomes law, I am going to work to ensure it is implemented in a way that works for families and communities. We must start by pairing unprecedented spending on new border security with responsible oversight, so I will be working closely with the Department of Homeland Security to ensure our efforts to secure the border do not violate the civil liberties of American families and communities. I am proud my amendment to address warrantless stops and searches in broad border zones is included in this bill, but for immediate border communities, we can't stop there.

That is why I offered an amendment that would have strengthened the Department of Homeland Security's Office for Civil Rights and Civil Liberties by amending current law to clarify its jurisdiction and the scope of its authority to conduct investigations, require greater transparency in its reporting requirements to Congress, and ensure the Department's timely implementation of its recommendations and findings. Essentially, the amendment would have provided the office with the tools it needs to conduct effective oversight, provide substantial and timely responses, and to protect the Department's commitment to civil rights and liberties.

I also authored an amendment that would have required the Department to report on the use of force during immigration enforcement. By better understanding how and why force is being used, the Department would have been better equipped to ensure its policies and training promote and protect effective and humane enforcement practices. While I am committed to proving Federal law enforcement and border security the resources, training, and personnel they require, Congress must also ensure detainees are treated with respect and dignity. I will be working closely with the Department of Homeland Security to ensure our efforts to secure the border don't violate the civil liberties of American families and communities.

I have also introduced a number of other amendments over the past weeks, including an amendment to provide DREAMers access to affordable college education. I was disappointed these amendments were not added to the bill, but I will continue to work with my colleagues to push for these commonsense reforms.

Although I have concerns about some elements of the bill, it makes critical changes to our broken system that will strengthen our country, grow our economy, and finally allow millions of families to gain citizenship and chase their dreams without fear of deportation. This sweeping legislation is a step in the right direction, and I am proud to cast my vote today in support of S. 744, Border Security, Economic Opportunity, and Immigration Modernization Act.

Mr. LEVIN. Madam President, I will support the Border Security, Economic Opportunity, and Immigration Modernization Act.

This comprehensive approach will bring order to the visa program for H–1B applications and H–2A agricultural guest workers, thereby enhancing their contributions to the U.S. economy.

The legislation protects our workforce by ensuring that employers who knowingly hire, recruit, refer, or continue to employ an unauthorized immigrant or fail to comply with E-Verify requirements are appropriately sanctioned.

I believe that it is imperative that those who followed the rules receive legal status before those who didn't, and this bill does that. The bill also creates a tough but fair legalization process for undocumented immigrants to apply for registered provisional immigrant, RPI status if they have been in the U.S. since December 31, 2011, have not been convicted of a felony or three or more misdemeanors, pay their assessed taxes, pass background checks, and pay penalty fees.

The bill recognizes those who came here as young children illegally, through no fault of their own, and provides them with an expedited pathway to legal permanent residence status.

The bill also includes provisions supported by both labor and business organizations that update the nonimmigrant visa processes to respond to workforce needs. It includes important provisions to help unify families and to support adoptions. And it corrects problems that we currently have in the immigration removal, detention, and court processes and increases penalties for those who engage in criminal activity.

It protects refugees, who come to our country seeking protection from persecution. The bill streamlines processing in refugee and asylum cases by eliminating the 1-year asylum filing deadline, eliminating family reunification barriers for asylees and refugees, authorizing streamlined processing of certain high-risk refugee groups, giving trained asylum officers initial jurisdiction over an asylum claim after credible fear is shown, and permits qualified stateless individuals to apply for lawful permanent resident status.

This legislation will help our economy grow. And according to the Congressional Budget Office, the legislation will decrease Federal budget deficits by about $197 billion over the 2014–2023 period. It will increase Federal revenues by $459 billion over the 2014–2023 period.

I congratulate and thank my colleagues for all of their hard work on this important legislation. The Senate worked in a bipartisan fashion on a nonpartisan issue. I am hopeful that the House of Representatives will do the same.

LOGGING EMPLOYMENT

Ms. COLLINS. Madam President, I rise to speak on an issue of significant importance to the forest products industry in Maine. I am pleased to be joined here by my colleague from Maine, Senator KING. We have both heard from a number of our constituents in Maine who are concerned about the ambiguity in the bill that is currently before the Senate, the Border Security, Economic Opportunity, and Immigration Modernization Act, with regard to the definition of ''agriculture employment'' for the purposes of the proposed W agriculture visa program. I would like to turn to Senator KING to elaborate on the concerns that we've heard from constituents in our State.

Mr. KING. I thank Senator COLLINS for her work on this issue. During the last logging season, 79 logging workers were granted H–2A visas for work in Maine. They were able to do this because the Department of Labor included logging employment as a covered occupation for the H–2A program by a December 18, 2008 rule. In the rule, the Department noted that they received two comments in support of including logging employment and no comments in opposition for purposes of the H–2A program. The Maine companies we have heard from are not looking for a special carve-out for the logging industry, but they want to make sure that their industry, which currently uses the H–2A program, is not excluded from the new W program that would replace the H–2A program. I ask the Senator from Vermont, who had such a hand in crafting this legislation, whether it is his understanding that the logging industry, specifically logging employment, as defined in title 20 of the Code of Federal Regulations in section 655.103(c)(4), would be able to access the new W agricultural program just as they have the H–2A program.

Mr. LEAHY. I thank the Senators from Maine for raising this issue. I would be glad to clarify that the intent of the legislation is not to exclude logging employment as defined in title 20 of the Code of Federal Regulations in section 655.103(c)(4) from the definition of ''agriculture employment'' for purposes of the new W agricultural visa, which will eventually replace the H–2A program. Consequently, logging employment would be covered in the definition of ''agricultural employment'' for purposes of the new W agricultural visa program. I also understand from Senator FEINSTEIN, the author of these provisions, that it was not the intent of the measure to exclude logging employment from the new W visa program for agricultural workers.

Mr. GRASSLEY. I do not support the overall Senate legislation as it is drafted. On this particular matter, I agree with Chairman LEAHY that logging employment would be covered in the definition of ''agricultural employment'' for purposes of the new W agricultural visa program. Those workers that previously had access to the H–2A program should have access to the new W agricultural visa program.

Ms. COLLINS: I thank my colleagues for this clarification. This will maintain the status quo by allowing loggers, who currently enter the United States under the H–2A program, to enter the United States under the new W agricultural visa program. A reliable supply of labor, when American workers are not available, is critical for downstream industries such as paper mills in Maine.

I now wish to speak on an issue of significant importance to the forest products industry in Maine. The immigration bill before the Senate contains an ambiguity related to the definition of ''agricultural employment'' for purposes of the new W agriculture visa

program. Currently, logging employment is included in the H–2A visa program, pursuant to a rule adopted by the Department of Labor in 2008. The new W agricultural visa program will replace the H–2A visa program. Therefore, I wanted to make sure the logging workers who are currently eligible for the H–2A visa will be eligible for the new W agricultural visa program. My constituents are not asking for a carveout or special favor. They are simply asking that the status quo be maintained in the new program.

Consequently, my colleague, Senator KING, and I engaged in a colloquy with the managers of the bill, Senators LEAHY and GRASSLEY, to clarify that the intent of the legislation is not to exclude logging employment, as defined in title 20 of the Code of Federal Regulations in section 655.103(c)(4), from the definition of ''agricultural employment'' for purposes of the new W agricultural visa program. I am grateful to my colleagues for making this clarification.

In addition, I received a letter from Secretary Vilsack of the U.S. Department of Agriculture on this issue.

Mr. President, I ask unanimous consent that this letter be printed in the RECORD.

In this letter, Secretary Vilsack said that he is committed to working with Congress on this issue and working ''to implement the W Agricultural Visa program so that it covers logging to the extent possible, since those workers have historically been eligible for the prior H–2A agricultural worker program.'' I thank Secretary Vilsack for his commitment and look forward to working with him on this topic.

This is an important issue to my State of Maine and I thank my colleagues and Secretary Vilsack for working with me on this issue.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

U.S. DEPARTMENT OF AGRICULTURE,
Washington, DC, June 26, 2013.

Hon. SUSAN M. COLLINS,
U.S. Senate, Dirksen Senate Office Building, Washington, DC.

DEAR SENATOR COLLINS: Thank you for taking the time to meet with me on Monday to discuss S. 744, the Border Security, Economic Opportunity, and Immigration Modernization Act and the benefits it brings to agriculture and rural communities. As I mentioned, S. 744 will create a new role for the U.S. Department of Agriculture (USDA) and a new structure for agricultural labor. This new program is the product of extensive bi-partisan negotiations and also reflects a consensus among agricultural and farm worker leaders.

During our meeting, you expressed concern about temporary logging employees and whether they will be included in the new W agricultural visa. As you mentioned, these workers will no longer be considered agricultural workers because S. 744 uses the definition set forth by the Migrant Seasonal Worker Protection Act, which excludes logging employees.

At my request, USDA staff looked into this and provided clarification and perhaps some good news. Logging employees, to the extent they would be considered non-agricultural workers, would be eligible to enter under the new W non-immigrant visa for low-skilled guest workers. Moreover, I am committed to working with you and members of Congress to address this important issue as legislation moves forward. I would also work to implement the W agricultural visa program so that it covers logging to the extent possible, since those workers have historically been eligible for the prior H–2A agricultural worker program.

I am convinced that S. 744 is essential to the continued success of American agriculture.

Sincerely,

THOMAS J. VILSACK,
Secretary.

NATIONAL GUARD

Mr. LEVIN. Madam President, I wish to enter into a colloquy with my distinguished friends, Senator SCHUMER and Senator MCCAIN, concerning a provision in the underlying immigration bill, S. 744. They have both played a crucial leading role in moving this important legislation forward.

Section 1103 of the immigration bill concerns the authority of National Guard forces to provide support to U.S. Customs and Border Protection to assist in the security of the southern border of the United States. The Department of Defense has a number of concerns about this provision and has proposed several ideas for our consideration to address their concerns at the appropriate time.

The Department's concerns are related to language in section 1103 that might have unintended consequences, such as potentially breaching the personnel end-strength levels that are authorized and funded in the annual National Defense Authorization Act or imposing large costs on the Defense Department for a mission of the Department of Homeland Security. The Department would also want to ensure that the authority for Defense Department support for border security, including National Guard support, resides with the Secretary of Defense.

These concerns are entirely consistent with the crucial objective of protecting the security of our southern border and making sure that the Department of Defense can provide support to U.S. Customs and Border Protection to ensure the success of that mission, as the Department has already been doing for more than half a decade.

I would ask my colleagues if they are aware of the concerns of the Department of Defense with respect to section 1103 and of the Department's suggestions to address those concerns. I would also ask if they would be willing, at the appropriate time, to consider the Department's concerns and its suggestions for potential adjustments to the legislation that would address the Department's concerns.

Mr. SCHUMER. Madam President, I would tell my friend from Michigan, the chairman of the Armed Services Committee, that I am aware that the Department of Defense has some concerns with respect to section 1103 and also that it has some suggestions for our consideration to address those concerns. I would also tell my friend from Michigan that I would be willing, at the appropriate time, to consider such suggestions in order to address the Department's concerns.

Mr. MCCAIN. Madam President, I join my friend from New York in stating that I am aware that the Department of Defense has a number of concerns with section 1103 and some ideas on how to address those concerns while allowing us to take the necessary steps to ensure the security of our southern border. I would also tell my friend from Michigan, with whom I have served for many years on the Armed Services Committee, that I would be willing, at the appropriate point, to consider ideas to address the Defense Department's concerns.

The PRESIDING OFFICER. The majority leader.

Mr. REID. Madam President, I now ask unanimous consent that at 4 p.m. today all postcloture time be considered expired; the bill, as amended, be read a third time, and the Senate proceed to vote on passage of the bill, as amended; that the time until 4 p.m. be equally divided between the Chair and ranking member or their designees, with the final 20 minutes equally divided, with the majority leader—that's me—controlling the final 10 minutes; further, the following Senators have 8 minutes each from the majority's time: FLAKE, BENNET, RUBIO, MENENDEZ, GRAHAM, DURBIN, MCCAIN, and SCHUMER; and Senator LANDRIEU has 5 minutes from the majority's time; and on all quorum calls, if there is a quorum call, time will be equally divided between the two parties.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Louisiana.

Ms. LANDRIEU. Madam President, let me begin by thanking the majority leader for his extraordinary leadership on this bill—and both sides, it has been a very tough negotiation. The Gang of 8—Senator FLAKE, Senator BENNET, Senator RUBIO, Senator MENENDEZ, Senator GRAHAM, Senator DURBIN, Senator MCCAIN, and Senator SCHUMER—have worked very hard to bring a bill to the floor that, in my view, is not perfect, but it is balanced. It accomplishes many of the principles of fixing our broken immigration system. They have worked extraordinarily hard.

Let me also thank Senator LEAHY and Senator GRASSLEY as the chair and ranking member of the Judiciary Committee that considered more than 300 amendments and voted on 121. I am disappointed, as are many people, that we did not get more votes on the floor, but I came to the floor earlier in the week and predicted that would happen. It is unfortunate, but it is not the first time. I have seen this movie.

Members on the other side are disappointed, some of us are disappointed, and we are hoping we can find a more

productive way forward. That is why I have spent some time on the floor talking about a step toward a more productive way.

A few of us on both sides of this debate—some of us are voting against the bill, and some of us are voting for the bill—have been working on a small package of amendments that have bipartisan support, no substantive objection, and we are trying to get a short, small list cleared by both sides. We have been working on this all week.

I appreciate the patience of every Member of the Senate because this has been a very tense, very emotional debate for many Members. As I have said, in a goodwill attempt to get the Senate moving in a little bit better direction toward bipartisanship and goodwill, I am not going to ask to push this vote back—which would be my right to do, but I will not. Many Members have important schedules to keep and commitments to keep, as do I.

I will be circulating a list. I believe I will be circulating it with Senator COATS, who is going to be voting against the bill. I am going to be voting for the bill. We are going to be circulating within the next 2 hours a short list of the amendments that we believe have been cleared by both the Judiciary Committee and the majority and minority. I am not going to provide the list at this period because it has been reviewed in various shapes and ways throughout the week.

We are working with Senator LEAHY and working with Senator GRASSLEY. Just so people understand—hopefully, if they are not convinced how sincere I am about this, I want my colleagues to know I am removing my amendments from this list. There will be no Landrieu amendments on this list. This is not an attempt to get Landrieu amendments passed, as important as I think they are. I am fortunate that I got in at least one amendment for adopted kids on the bill. I am not complaining. That is the way it goes. But I don't want people to think I am trying to get a unanimous consent on my amendments, so I am taking my amendments off the list. It will not be circulated.

The list that will be circulated is by leaders, both Republicans and Democrats, who have—could I have order, please?

The PRESIDING OFFICER. The Senate will be in order. The Senator from Louisiana.

Ms. LANDRIEU. The list of amendments that will be circulated has Democratic and Republican sponsors that have been cleared by Senator GRASSLEY and Senator LEAHY. They will work with their individual Members to see if the list can be cleared. There will be no votes, as is the unanimous consent. It will have to be done, as we call it here, hot-lined, and we will have to have 100 of us say yes. But I am asking my colleagues to say yes. I am asking them to say yes, to take a step in the right direction. I am not accusing anyone of anything. I am not blaming the Democrats or the Republicans.

I am just saying I think we should take a small step toward trying to get the Senate back on track. I don't know what is going to happen after the immigration bill, if we are going to engage in any rule change. I have tried not to make any inflammatory statements about that one way or the other.

This is a sincere effort on my part—and Senator COATS has been helpful as well—to try to put forth a small package. I am not asking for a debate or a rollcall vote. It would have to be done by consent in a small package, and I am removing my amendments.

I thank the Senate. I am asking all of my colleagues—it is going to take 100 of us. If one person says no, this will be stopped. I hope we can end on a more positive note. A lot of hard work has gone into this bill. I know there are terrible disappointments. I am not one of those who are disappointed. I am happy with the outcome.

I am trying to help get a small package that people have been working on that will not affect the number of this vote in any way. The vote is going to be the same. It is going to be 68 to 32. Was that the final vote? That is what it is going to be at 4 p.m. It is not going to change a thing. It will solve some problems several people have on subjects that are important to the constituents we represent at home.

Again, I am taking my amendments off the list.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. FLAKE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FLAKE. Madam President, I rise today as the Senate is on the verge of passing immigration reform by what may well be a historic bipartisan majority. It has been my honor and privilege to have a role in moving this legislation forward.

We are moving one step closer to fixing our broken immigration system. This is a system Arizonans have dealt with for far too long. The situation along our southern border has grown increasingly untenable. The Tucson sector just recently lost the dubious distinction of being the most active Border Patrol sector.

The status quo is now a considerable volume of traffic as well as theft, vandalism, and drug smuggling. This has created a situation that is ever more dangerous for Arizona border residents. Never was this more poignant than with the tragic 2010 death of Rob Krentz, a prominent member of the ranching community on the border. He was most likely killed by an incident related to illegal smuggling. I last spoke to Rob's brother Phil just this morning.

Despite claims that the border is now more secure than ever, Arizona ranchers know quite the opposite. Beyond the border area, Arizona remains a State struggling under the weight of a sizeable undocumented population.

As I said before, this situation helps no one. It doesn't help those who are undocumented and living in the shadows, it doesn't help State and local governments that are bearing the burden, and it doesn't help employers who are struggling to find a legal workforce.

It is against this backdrop that the Senate moves toward approving legislation that takes dramatic steps in addressing border security, provides a tough but fair solution for those who are here illegally, and spurs economic growth by modernizing our legal immigration system.

Obviously, this legislation is not without its critics. Opponents will point to the legislative process and claim it was flawed. I must admit that while no process for considering legislation is perfect, this bill was made available early. It was also thoroughly vetted under regular order in the committee. While I share the frustration that there haven't been more amendments considered on the Senate floor, this body has now spent 3 weeks debating the bill on the floor.

We have heard that the bill affords too much discretion to the Secretary of the Department of Homeland Security and does little for border security. The Hoeven-Corker amendment, adopted by a wide bipartisan majority, removes much of that discretion from the Secretary when it comes to border strategy by designating a minimum level of technologies to be deployed per sector.

In addition, the Hoeven-Corker amendment dramatically increases the resources provided to secure the border by requiring double the number of Border Patrol agents and 700 miles of fence. These have to be completed before anyone adjusts status.

We have heard claims the bill weakens existing law. To the contrary, this legislation takes credible steps toward implementing an entry-exit system to tell us who has and who has not left the country. It makes progress toward achieving the goal of a biometric approach to this system.

At this point it is difficult to take seriously criticism that the bill does not go far enough on border security.

I should point out that the very day the Hoeven-Corker amendment was filed, a CNN headline read ''Four Bodies Found in Arizona Desert.'' Four more deceased immigrants had been located near Gila Bend.

This is an issue that plays for keeps. It is in everyone's interest that we gain control of the border.

The unprecedented level of resources this bill provides, coupled with the mandatory employment verification system and guest worker plans to allow for future flows, is much needed and it takes the right steps to get us there.

As in previous immigration debates, there are those who claim this legislation is amnesty. To the contrary, this legislation provides for a provisional status for those who are already here as a means to bringing undocumented immigrants out of the shadows. It requires them to meet eligibility criteria, pass a background check, make good on any tax liability, and pay a fee and a fine. Before anyone can apply for a green card, they have to pay an additional fee and fine, pass another background check, continue paying taxes, learn English and civics, and prove that they have been employed.

Even then, there is no less than a 10-year waiting period before anyone can begin to apply, and that can only happen if the border agents have been hired, the border strategy has been employed, the mandatory E-Verify system is being used by all employers, 700 miles of fence are on the border, and an entry-exit system is implemented for all air and sea ports of entry.

Much of the focus of the legislation has been on the border security and legalization provisions, but just as important are the critical steps included to modernize our legal immigration system.

The U.S. economy has to stay on the cutting edge of innovation and global competitiveness. When the best and brightest come here to study, we need to allow them to stay.

I am pleased to say the provisions I have previously pushed for as part of the STAPLE Act were included in this legislation. Those with advanced degrees in the so-called STEM fields will be exempt from caps on green card applications.

This bill moves our legal immigration further toward a merit-based approach, increases the cap on H–1B visas significantly, provides an avenue for foreign-born entrepreneurs, and creates better programs for both agricultural and nonagricultural temporary workers.

When asked about the impact of these changes, the Arizona Chamber of Commerce and Industry president, without missing a beat, said:

These will provide rocket fuel to the economy.

The Congressional Budget Office, in different words, said much the same thing. Over the period of the next 10 years, GDP is estimated to increase by 3.3 percent as a result of this legislation and by 5.4 percent by 2033.

Let me say in the few minutes I have remaining that for me, coming from rural Arizona, there is a personal background for immigration reform. Much of my youth was spent on a 200-acre alfalfa field north of Snowflake, AZ, where I grew up. Along with my father and six brothers, I planted hay, cut hay, hauled hay, and moved sprinkler pipes—miles of sprinkler pipes. I even lost the end of my right index finger on that alfalfa field. The chores we performed changed with the season, but there was one constant: We worked alongside undocumented migrant labor, largely from Mexico, who worked harder than we did under conditions much more difficult than we endured.

Since that time, I have harbored a feeling of admiration and respect for those who have come to risk life and limb and sacrifice so much to provide a better life for themselves and their families.

As I explained earlier in my remarks, there are many who are here in an undocumented status who do not fit the sketch I have just described. It is our lot here in Congress to fashion an agreement that deals with the myriad motives, reasons, intentions, and purposes that have brought people here illegally.

Along those lines, let me close by saying a few words about the path to citizenship included as part of this legislation. I recognize that there are those who are here who hold the position that no one who has entered this country illegally should ever be able to become a U.S. citizen. My own feeling is citizenship should be treasured and valued—and possible—for those who qualify and who are willing to comply with the provisions set forth in this legislation. If someone is going to be in this country for 20 or 30 or 40 or 50 years, I want them to assimilate. I want them to have the rights and, more importantly, the responsibilities that come with citizenship. Such assimilation is what sets our country apart. It is quintessentially American. It is the right policy.

I will be proud to cast my vote in favor of this legislation, and it is my hope it will become law.

I yield the floor.

The PRESIDING OFFICER (Mr. HEINRICH). The Senator from Colorado.

Mr. BENNET. Mr. President, I wish to start by thanking the able Senator from Arizona for his statement, for his leadership, and for his incredible work on this bill. I wish to thank all of my colleagues who have been in this so-called Gang of 8, both Democrats and Republicans, including CHUCK SCHUMER and DICK DURBIN and BOB MENENDEZ on the Democratic side. But today I especially want to thank the Republican Members of this group, led by JOHN MCCAIN, and including LINDSEY GRAHAM, JEFF FLAKE, and MARCO RUBIO, for their extraordinary leadership. For reasons everybody in this Chamber understands, their willingness to be at the table and to stay at the table was an act of leadership unlike any other I have seen in this Chamber in the 4 years I have served here. We would never be here today voting to fix our broken immigration system were it not for them. So on behalf of the people I represent in Colorado I thank them.

For me this all started in Colorado, because everywhere I went I heard people talk about how the broken immigration system was affecting them. I would hear the peach growers in Palisades say one thing and the cattle ranchers on the eastern plains say something else. The immigrant rights community, many of whom represented children in my old school district, our high-tech community, our ski resorts—everybody was feeling the pain of a broken immigration system that Washington was refusing to fix and they had actually given up hope that Washington would fix it.

They didn't know each other cared about this issue, so we pulled them together over about a 2-year period. We had hundreds of meetings and traveled thousands of miles in the State to create something called the Colorado Compact, a statement of six principles about what Colorado expected immigration reform to look like.

Now that we have come to the end of this process—we have come to the end of the Gang of 8, finishing the Judiciary Committee proceedings, the work on the floor—I can say this bill is entirely consistent—it is not identical, but it is entirely consistent with those principles.

The first of those principles of the Colorado Compact is immigration is a Federal responsibility. This is not something that should be done State by State by State in this country. The Founders themselves recognized this because they put the regulation of immigration in the Constitution and charged the U.S. Congress as our obligation to deal with it. That was the first principle.

The second principle was ensuring our national security. This bill meets that test as well. It is the strongest border security bill ever passed in the Senate. It doubles the number of Border Patrol agents on the southern border. We build 700 miles of fencing. It adds new technologies. We spend nearly $50 billion on border security.

I believe we should have a secure border. In Washington this becomes a trade. For me, it is not a trade. We should have a secure border, and we should have a pathway to citizenship, and this bill accomplishes both.

The people in Colorado who wrote this Colorado Compact called for more effective enforcement of our immigration law, and this bill will give them that. It includes a fully operational, biographic, and biometric entry-exit system, more effective measures to detect fraud and abuse of our visa system, and an employment verification system to be used by all employers. This is all in this bill. That has not been in prior efforts that either passed or failed in the Congress, but it is in this bill, and it is a critical part to making sure we don't end up here again.

The Colorado Compact said we should have a bill that strengthens our economy. This bill meets that test with a visa system much better aligned for our 21st century economy—a merit-based system. We have high-tech and INVEST visas, visas for agriculture that will give our farmers and ranchers a fighting chance to hold on to their

farms and to their ranches, and give the people who are working in that industry much-needed relief. There are great benefits for our tourism and ski industry as well. And, on top of everything else, the Congressional Budget Office tells us this bill doesn't increase our deficit but reduces it over the first 10 years by $197 billion and over the next 10 years by $700 billion.

Colorado said we want a bill that is focused on families and keeping families together. This bill does that by clearing the green card backlog and ensuring family members are able to reunite more quickly. There is better protection for children in detention and the immigration court system.

Finally, we call for a commonsense approach to the 11 million, and this bill does that with a tough but fair path to citizenship for the 11 million.

As so many people in this Chamber, my life story is a story of immigration because I am the son of an immigrant. My mom was born in Poland in 1938 while Nazi tanks massed at the border. She and her parents miraculously survived one of the worst human events in our history: The Holocaust. After going to Sweden and Mexico City, they were able to come to New York City in 1950. My mom was almost 12 years old. She is the only one in the family who can speak any English at all.

On my first birthday—this is 1965, so 15 years after they came to the country—my grandparents sent me a birthday card. This is the card they wrote. Here is what they said, in English, by the way. They said this in English:

The ancient Greeks gave the world the high ideals of democracy, in search of which your dear mother and we came to the hospitable shores of beautiful America in 1950. We have been happy here ever since, beyond our greatest dreams and expectations, with democracy, freedom, and love, and humanity's greatest treasure. We hope that when you grow up, you will help to develop in other parts of the world a greater understanding of these American values.

They had only been in this country for 15 years. They didn't speak English when they got here. They had survived the most horrific event of the 20th century, and this was the place that gave them hope and, more than that, it allowed them to rebuild their lives in the only country in the world where they thought they could.

This bill reaffirms we are a Nation that respects the rule of law and reaffirms our history that we are a Nation of immigrants, and it will keep that hope alive for millions of people, both here and abroad, for years to come.

I urge a ''yes'' vote on this bill.

With that, I yield the floor.

The PRESIDING OFFICER. The assistant majority leader.

Mr. DURBIN. Mr. President, I wish to ask how much time has been consumed by the proponents of the measure.

The PRESIDING OFFICER. Approximately 23 minutes.

Mr. DURBIN. How much time has been consumed by the opponents of the measure?

The PRESIDING OFFICER. No time has been consumed by the opponents.

Mr. DURBIN. Well, I am going to suggest the absence of a quorum and ask that the time in the quorum call be charged against the opponents' time, up to 23 minutes, so we can have some equalization in terms of use of time on the floor. It is my understanding—unless Senator BLUNT is coming to the floor to speak?

Mr. BLUNT. I am.

Mr. DURBIN. I withdraw my request.

The PRESIDING OFFICER. The request is withdrawn.

The Senator from Missouri.

Mr. BLUNT. Mr. President, I thank you for the time.

I want to talk about the hard work my colleagues have put in on this bill. It looks as though it is going to get a number of votes today. It will not be getting mine.

I think it is important, as we look at these issues, to understand that once a bill actually gets to the President's desk and gets signed into law, we are probably not going to visit this again for a long time.

I think it does not put border security first or it does not address what I have more and more grown to think of as the other border, which is the hiring desk. The nonpartisan Congressional Budget Office said the underlying Senate bill would only cut illegal immigration by 25 percent. It does not seem to me that is nearly good enough.

I think the estimate was that if this bill did not pass, 10 million people would come into the country in the next 10 years. If it does pass, 7.5 million people would come into the country in the next 10 years illegally. Some of them will come across the border. A lot of them come here now legally and then they just stay. I do not see anything in this bill that does what we could be doing there.

I voted against proceeding to the amendment this week, the Hoeven-Corker amendment, because I did not think it really focused—as the Cornyn amendment did that I cosponsored—on granting legal status only after we get the border secured rather than doing it before.

In my view, these challenges need to be met. What do we do about the workforce needs of the country? What do we do about people who came here illegally or came here legally and stayed then illegally?

But it is important to understand that as long as it has taken to even get to this point, once a bill passes, we are probably not going to go back and say: Gee, I wish we had done this or I wish we had done that.

In addition, under the bill, the only requirement before legalization can begin is for the Secretary of the Department of Homeland Security to simply submit a border security plan to the Congress. There are lots of plans and a lot of them are talked about in this building. Some of them work; some of them do not work. But this does not require any further approval or verification of the plan.

The amendment I supported that Senator CORKER was the principal sponsor on said you would have to meet some metrics, you would have to have some measures you know you could prove and would be willing to certify.

Everybody seems willing to admit that 100-percent awareness of what goes on on the border is possible. So if 100-percent awareness is possible, why isn't it possible—if you know 100 percent of what is going on and can watch the whole border—why isn't it possible to be able to certify a certain number of people are being stopped every year and that the border is not totally and completely and absolutely secure but meets a level of operational control the American people have a right to expect?

The $46.3 billion for border security is mandatory funding, but the amendment only requires $8.3 billion of that $46 billion to come from fees, leaving taxpayers on the hook for another $38 billion, again, without the other half of the problem—people who come to our country legally for a short period of time and then stay—being dealt with. If we do not deal with that, we have not dealt with the problem.

Mr. President, 20,000 additional border agents and $4.5 billion for additional border technology is not a strategic plan. It seems to me it is throwing a lot of money at a plan and hoping it works.

I read lots of people's comments on this who say: Well, we have overdone what needed to be done here, but we have underdone the things you ultimately are going to have to do to fix this problem.

This measure also provides $1.5 billion over the next 2 years to provide jobs for Americans between the ages of 16 and 24. While jobs for young workers are a priority, it has nothing to do with immigration reform. I think it had something to do with one of the additional votes. If what I read is true, this is something someone insisted be in this bill. I think we have to understand we would do a lot more to put young Americans to work if we had commonsense regulatory policies and commonsense energy policies.

Several editorial boards criticized amendments I cosponsored as poison pills because they considered them too costly to enforce what we were trying to do. One of the amendments I sponsored said we would have 5,000 extra people at the border, and editorial board after editorial board said: Oh, that is too expensive. It is a poison pill that will kill the bill. Those same people are now supportive of the bill that adds 20,000 people working at the border.

During the debate I cosponsored other amendments I sought that were defeated. These amendments were in

addition to Senator CORNYN's amendment, the RESULTS amendment, requiring DHS to have situational awareness and control of the border.

Senator LEE had an amendment requiring congressional approval of the border plan that would come from the Department of Homeland Security. What would be wrong with that: congressional approval, so every year Congress continues to be engaged with the funds it takes to do what needs to be done, as well as the plan it takes?

Senator GRASSLEY had an amendment requiring the border would have to be ''effectively'' secured for 6 months before the Department of Homeland Security Secretary could grant the provisional status. Others have pointed out, and I agree, once you begin to grant that provisional status, I do not see any realistic way a Congress ever goes back and says: We know we told you that you could stay, but now you have to leave.

Senator PAUL had two amendments I supported. One was ''trust but verify,'' much like Senator LEE's amendment, where Congress would have to be sure the integrity of the border was being protected. Another one would protect the integrity of the ballot process from illegal voting. Nobody is here advocating illegal voting. Why we would not get an amendment that did something to ensure it would not happen is surprising to me.

Congress has one shot to address immigration reform in the right way. Unfortunately, I cannot vote for this bill because I think it fails to prioritize what needs to be prioritized. I also do not think this bill will be a bill that can pass the House of Representatives.

I hope the Senate will now work with the House to find a better solution for long-term immigration reform and we can meet those three criteria of: how do you secure the border, how do you meet the legitimate workforce needs of the country, and what do we do about people who are already here, and in many cases these are people who go to church where we go to church, their kids go to school where our kids go to school.

I, frankly, think those last two issues are pretty easily dealt with if the American people ever believe the government has met its responsibility to control our borders. One way to do that is to look at the actual border. Another way to do that is to give employers the kinds of tools they need so we can clearly identify who is in the United States who is eligible to work and who is not.

I yield back.

The PRESIDING OFFICER. The assistant majority leader.

Mr. DURBIN. Mr. President, will the Chair inform me how much time has been used on each side?

The PRESIDING OFFICER. The proponents have consumed approximately 23 minutes. The opponents have consumed approximately 9 minutes.

Mr. DURBIN. Unless there are other speakers in opposition, I would—I am sorry. Senator GRASSLEY is here. I once again withdraw and yield the floor to Senator GRASSLEY.

Mr. GRASSLEY. I did not come to speak. I came to object to the Senator's unanimous consent request.

Mr. DURBIN. I say to the Senator, here is the state of play. Unless we can agree to come to the floor and debate the issue, your absence delays the time when you will be speaking until the end of the debate, which creates an advantage for you by staying away.

What we are trying to do is to be fair and give each side a chance to speak on the bill, one side or the other. Senator BLUNT has been here. I would welcome any Senator in opposition. We have used—I think the measure was 23 minutes.

The PRESIDING OFFICER. Twenty-three minutes.

Mr. DURBIN. And your side has used 9. So I wish to offer the opportunity for the Senator to speak in opposition.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. I thank the Senator for his courtesy. I think there is an insinuation in his comment that there is a strategy on our part not to speak. That is not true. It is that there is a Republican meeting going on right now. I went to that meeting and said to the people in the meeting they ought to be out here speaking and they had an opportunity to do it. And, for the group, I have objected for that reason.

I yield the floor.

The PRESIDING OFFICER. The assistant majority leader.

Mr. DURBIN. Mr. President, if no time is used at this point, how will the time be taken off, how will it be calculated?

The PRESIDING OFFICER. The time spent in quorum calls is equally divided between the two sides.

Mr. DURBIN. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. MENENDEZ. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MENENDEZ. Mr. President, I come to the floor at the end of a long but fruitful bipartisan process. I come here thinking of what this bill will mean for families. I come here thinking of my family, of my mother, who came from Cuba, who worked hard and made it possible for me to stand here today as 1 of 100 Senators on the verge of passing a historic piece of legislation that she would have wanted me to vote for.

This is a bipartisan compromise that will finally fix our broken immigration system and bring 11 million immigrants out of the shadows—not just the millions who have been here for years without status, but the millions more who have been waiting in line to be reunified with their families lawfully.

When the moment comes to cast that vote, I will be casting it in memory of my mother and for every immigrant like her who came to this country in the last century to give their families a chance to contribute to America's exceptionalism and for all of those who will now have a chance to contribute to America's exceptionalism in this century.

It will be a vote for the long history of immigrants in America, for the millions of immigrant families: Irish, German, French, Italian, Scandinavian, Jewish, Greek, Polish, Portuguese, and many others whose blood, sweat, and tears ushered in America's industrial age; a vote for the immigrants of the ''greatest generation'' who brought this Nation through the Depression, fought a World War, and ended the Cold War. It will be a vote for America's new, young, skilled, educated DREAMers and entrepreneurs who will now have a chance to become citizens and help lead this Nation into a brighter, more prosperous, more productive future.

It will be a vote in memory of a long list of immigrants and the children of immigrants who made this Nation great: Marine Cpl Jose Antonio Guitierrez, not even a citizen of the United States when he became the first casualty of the Iraq war; Thomas Edison, from my home State of New Jersey, the Wizard of Menlo Park, who has made New Jersey the home of invention in America—and there will be an immigrant who carries on that legacy who will make the next great discovery—Jonas Salk, whose parents came here and gave him the education he needed to go on and discover the vaccine for polio and save millions of lives. There will be a DREAMer who will be the next Jonas Salk. Colin Powell, admired on both sides of the aisle, his was an immigrant family. Be assured, there will be another great military leader and statesman who will be the son or daughter of parents who will become citizens under this legislation.

Madeline Albright is an immigrant who became a citizen and went on to become one of the most respected and admired Secretaries of State. The list goes on: Albert Einstein, Henry Kissinger, Joseph Pulitzer—all immigrants who contributed to America's exceptionalism. This legislation is for all those immigrants and immigrant families who helped make America better.

This is the culmination of a long journey for me. I have been fighting for immigration reform for 20 years between my time in the House and the Senate and have been blazing a pathway to citizenship that will help families stay together and give them a chance at a better life. This bill does that.

The road has been fraught with the same obstacles, the same pitfalls and prejudices that have stood in the way of every generation of immigrants who wanted nothing more than a pathway

to acceptance and opportunity. As the saying goes: The hardest steel must go through the hottest fire.

What we are about to do today has been a generation-long drive for justice and tolerance. It has been and remains the civil rights issue of our community. I believe when this legislation finally becomes law, it will make us stronger as a nation, just as the Civil Rights Act strengthened this country. We are on the verge of historic change.

I am proud to have been part of the Gang of 8 that hammered out a strong bipartisan effort. Now, I say to my friends in the other body: Do the right thing for America and for your party. Find common ground. Lean away from the extremes. Opt for reason and govern with us. The time has come to act in the interests of all Americans. I hope that message will be heard loudly and clearly in the House.

In my view the leadership in the other body has a chance to be American heroes, a chance to bring both sides together in an alliance that will ensure passage of this bill. I believe a vast majority of Americans who want immigration reform to pass will thank them for doing what is right.

I hope they will have the political will and courage to unite the Nation and send this bill to the President's desk, a bill that will increase the gross domestic product, reduce the deficit, promote prosperity, and create jobs. This chart shows the cumulative economic gains of the legislation over 10 years after passage. Look at the numbers.

Fixing the broken immigration system would increase America's gross domestic product by over $800 billion over the first 10 years, it will increase wages of all Americans by $470 billion over 10 years, and it will increase jobs by 121,000 per year for 10 years. That is 1.2 million jobs. Immigrants will start small businesses, they will create jobs for American workers. It is time to harness that economic power.

The next chart shows that the CBO report also tells us it will reduce the deficit by $197 billion over the next decade and by an additional $700 billion more between 2024 and 2033 through changes in direct spending and revenues. We are talking about almost a trillion in deficit spending that can be lifted off the backs of the next generation of Americans.

What other single piece of legislation increases GDP growth, increases wages for all Americans, increases jobs and lowers the deficit? What we realize now has been confirmed by the numbers; that is, giving 11 million people a clear and defined pathway to citizenship is, in effect, an economic growth strategy and exactly the right thing to do.

It will be a long road for those who have earned the right to become citizens. Citizenship will not be easy. It never is. The new Americans who follow the pathway we lay out will have to have played by the rules. They will have to pass background checks, pay a fine, pay their taxes. But, if they do, there will be no obstacle they cannot overcome to the day when they raise their right hand and take their naturalization oath.

Too many families have waited too long for that day. Too many have waited too long to say those words that will change their lives forever.

They changed my mother's life and, in turn, gave me the chance to stand here today and vote for a pathway to citizenship that can change the lives of millions of others.

Today is a victory, not for me or the Gang of 8. It is not a victory for the Senate or for any one community. By passing comprehensive immigration reform, we will have taken the next historic step on America's long journey to exceptionalism. I am proud to have been part of the process that will continue that journey.

In 2007, when we failed at our last attempt at immigration reform, I quoted the last phrase of Emma Lazarus's poem emblazoned on the inner wall of the pedestal of the Statue of Liberty which says:

I lift my lamp beside the golden door!

I said then:

That lamp [since we failed] is somewhat dimmer, but it will shine again . . . [that] the course of history is unalterable, the human spirit cannot be shackled forever, the drumbeat for security, economic vitality and, most importantly, justice will only grow stronger until we pass this legislation.

My friends, today when we pass comprehensive immigration reform, the light will shine brighter and it will shine forever.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, we have talked a lot about how the immigration bill would or would not prevent illegal immigration in the future. This is a huge concern because we don't want to be back in 25 years proposing the same short-term solutions to the problems.

I wish to take a few minutes about the national security implications of the bill. There are valid concerns that the bill will put public safety and the homeland at risk. I will walk through some of the issues and point out how we tried in committee to change the bill in this effort and, of course, we failed.

First, the bill contains a dangerous national security loophole that would render the U.S. Government unable to share information with foreign governments about immigrants who have had their status revoked. An amendment to preserve the ability of law enforcement to access critical, national security, public safety information and at the same time authorize the Secretary of State to share limited information with a foreign government while protecting legitimate privacy interests was rejected.

Second, the bill provides the Secretary of State with authority to limit in-person interviews of visa applicants abroad. The Secretary of Homeland Security is not required to interview anyone who applies for registered provisional immigrant status.

We learned a valuable lesson after September 11, 2001, because the hijackers were not interviewed and applications were rubberstamped. An amendment to require individuals who may be a threat to national security to submit to an in-person interview with consular officers when applying for a visa was voted down.

Third, there were gaping holes in the student visa process. Yet the committee rejected attempts to delay the expansion of the student visa program until the tracking system in place was improved.

Fourth, the amendment makes it almost impossible to revoke a person's visa when they are on U.S. soil. An amendment to clarify the authority of the Secretary of Homeland Security and the Secretary of State to refuse or revoke visas when, in the national interest, as was the case with the Christmas Day bomber, was rejected.

Fifth, the bill does not address the concerns brought to the surface by recent events such as the Boston terrorist bombing. We are profoundly troubled with the lack of concern about lessons that can be learned from the failings of the immigration process, which may have contributed to recent events such as the Boston terrorist bombing.

We need to understand and we need to address these failures before proceeding with some of the provisions in this bill, especially the asylum and student visa expansion measures.

Putting revised procedures in place before gaining an understanding of what does not work in our current system is not good stewardship of the trust of the American people and the trust people placed in us as their representatives in Congress.

Our Nation's security is at risk and we cannot ignore it. We need to understand what is wrong with the system to prevent events such as the Boston bombing from happening again. However, an amendment to delay an expansion of asylum and student visa programs until there has been a coordinated review detailing the intelligence and immigration failures of the Boston Marathon terrorist attack was also voted down in committee.

Our national security must be a paramount concern with any immigration reform. Eliminating weaknesses in our system, including along the border and the interior, would make our Nation much safer. Regrettably, this bill falls far short of this goal.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. RUBIO. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. HEITKAMP). Without objection, it is so ordered.

Mr. RUBIO. Madam President, my father had a rough childhood. His mom died just 4 days shy of his ninth birthday. The small catering business his parents ran together had collapsed, so as a young child he was forced to leave school and go to work, and he would work virtually every day for the rest of his life. My mother grew up just as hard. Her father was disabled by polio as a child, and he struggled to provide for his seven daughters.

My parents met at a small store where my mother was a cashier and my father was a security guard. He actually lived and slept in the storage room of that store. Like all young couples, they had dreams. My mother wanted to be an actress, and my father tried hard to get ahead. In fact, after work he would take correspondence courses to become a TV and radio repairman, but it was hard because he barely knew how to read.

They did everything they could to make a better life, but living in an increasingly unstable country, with limited education and no connections, they just couldn't. So they saved as much as they could, and on May 27, 1956, they boarded a plane to Miami. They came to America in search of a better life.

Like most recent arrivals, life in America wasn't easy either. My father had someone actually phonetically write on a small piece of paper the words ''I am looking for work.'' He memorized those words. Those were literally the first words he learned to speak in English. He took day jobs wherever he could find them.

They both went to work at a factory, building aluminum chairs. My dad started working as a bar boy on Miami Beach, eventually becoming a bartender. He saved money and tried to open some businesses. When that didn't work, they tried Los Angeles and they tried Las Vegas, but that also didn't work. So he found himself back on Miami Beach behind a bar. The truth is that they were discouraged and homesick for Cuba too. In fact, in the early days of Castro's rule, before he came out as a Marxist, they even entertained going back permanently. But, of course, communism took root in Havana, and that became impossible too.

I am sure that on their worst days they wondered if it would ever get better. Then the miracle we know as America began to change their lives. By 1967 they had saved enough money to buy a house within walking distance of the Orange Bowl, where on Sundays they would make extra money by letting people park on their lawn. My older sister was in ballet; my older brother, the star quarterback at Miami High. But it wasn't just their lives that changed, it was also their hearts. They still spoke Spanish at home and kept all the customs they brought with them from Cuba, but with each passing year this country became their own.

My mother recalls how on that terrible November day in 1963 she wept at the news that her President had been slain. She remembers that magical night in 1969 when an American walked on the Moon and she realized that now nothing was impossible, because, you see, well before they ever became citizens in their hearts, they had already become Americans.

It reminds us that sometimes we focus so much on how immigrants can change America, we forget that America has always changed immigrants even more.

But this is not just my story. This is our story. It reminds us of the words etched on the marble above the rostrum of the Senate: ''E Pluribus Unum''—out of many, one.

Now, no one should dispute that, like every sovereign nation on this planet, we have a right to control who comes in. But unlike other countries, we are not afraid of people coming in here from other places. Instead, inspired by our Judeo-Christian principles, we Americans have seen the stranger and invited him in, and our Nation has been blessed for it in ways that remind us of these ancient words:

> God divided the sea and led them through and made the waters stand up like a wall. By day he led them with a cloud; by night, with a light of fire. He split the rocks in the desert. He gave them plentiful to drink as from the deep. He made streams flow out from the rock and made waters run down like rivers. He commanded the clouds above and opened the gates of heaven. He rained down manna for their food and gave them bread from heaven.

Our history is filled with dramatic evidence that God's hand is upon our land. Who among us would dispute that we Americans are a blessed people? In the harbor of our most famous city, there is a statue of a woman holding a lamp, and at the base of that statue is a poem that reads:

> Keep ancient lands, your storied pomp! . . . Give me your tired, your poor, your huddled masses yearning to breathe free, the wretched refuse of your teeming shore. Send these, the homeless, tempest-tost to me, I lift my lamp beside the golden door!

For over 200 years now they have come in search of liberty and freedom for sure but often just in search of a job to feed their kids and a chance at a better life. From Ireland and Poland, from Germany and France, from Mexico and Cuba, they have come. They have come because in the land of their birth, their dreams were bigger than their opportunities. Here they brought their language and their customs, their religions and their music, and somehow they have made them ours as well. From a collection of people from everywhere, we became one people—the most exceptional Nation in all of human history.

Even with all of our challenges, we remain that shining city on the hill. We are still the hope of the world. Go to our factories and our fields, go to the kitchens and construction sites, go to the cafeterias in this very Capitol, and there you will find that the miracle of America is still alive. For here in America, those who once had no hope will give their kids the chance at a life they always wanted for themselves. Here in America, generations of unfulfilled dreams will finally come to pass. And that is why I support this reform—not just because I believe in immigrants but because I believe in America even more.

I yield the floor.

Mr. DURBIN. Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. SESSIONS. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SESSIONS. Madam President, I appreciate the excellent remarks from the heart of my good friend MARCO RUBIO. He is a great addition to the Senate. And I would say the heart of America is good. The heart of this country is good. For 30 years they have been pleading with Congress to keep a generous immigration policy afoot in America, but at the same time they have been pleading with us to end the illegality that has continued for years now. The people have pleaded with us to do something about it, and year after year after year Congress has refused, the President has refused. That is why we now have 11 million people in the country illegally.

I think the heart of America is good and people are willing to deal compassionately and not try to deport 11 million people. They want to do the right thing about this, but by a 4-to-1 margin they have said they want to see this Congress do what Members of Congress have repeatedly promised and never delivered on—create a lawful system, a system we can be proud of, a system that serves the national interests.

As I explained this morning, rather than working with law enforcement groups and prosecutors and considering the needs of everyday citizens, the sponsors of this bill have spent months in negotiation with special interests and lobbyists to produce a bill that will not work. That is the problem we have before us today. This will create even more lawlessness in the future.

I want my colleague to hear what our Nation's immigration officers—men and women on the frontlines—have to say about this legislation. Shouldn't we listen to them? They asked to be able to participate in these secret negotiations, and they were rebuffed. I asked that they be allowed to participate, but they were rebuffed. Let's hear what they say about the bill—the bill Senator SCHUMER said in committee was tough as nails, and the TV ads running have said it is the toughest bill in history, maybe the history of the world. Is that correct? Is that correct, I have to ask? I think not.

This is a joint statement issued today by the councils representing Immigration and Customs Enforcement officers—the ICE officers—and the U.S. Citizenship and Immigration Service officers, a joint statement of two associations representing these tens of thousands of officers. Shouldn't we listen to what they are saying? Please listen, colleagues.

ICE officers and USCIS adjudication officers have pleaded with lawmakers not to adopt this bill. The Schumer-Rubio-Corker-Hoeven proposal will make Americans less safe, and it will ensure more illegal immigration in the future—especially visa overstays. It provides legalization for thousands of dangerous criminals while making it more difficult for our officers to identify public safety and national security threats. The legislation was guided from the beginning by anti-enforcement special interests and, should it become law, it will have the desired effect of these groups: blocking immigration enforcement.

This is an anti-public safety bill and an anti-law enforcement bill. We urge all lawmakers to oppose the final cloture vote on Thursday and to oppose the bill. We call on all Americans to pick up the phone and call their members of Congress.

So who do we trust on this question of whether we have a bill that will work? Our good political Senators who work hard but haven't been out on the frontlines doing the work or the people we pay who try to do the work every day, putting their lives at risk?

There is something else I would like to touch on. I think it is one of the least-discussed parts of the conversation. I am sure we will have others talk in more detail about enforcement failures of the legislation, but in many ways this could be the most important. I know our friends in the media certainly haven't given a lot of coverage to it, but I hope we will think about it more; that is, the future flow or the legal immigration part of the bill.

The Congressional Budget Office tells us that the bill's large increase in mostly lower skilled legal workers will push down wages and increase unemployment. That needs to be talked about. It must be fully understood. Hundreds of people are hurting today.

There was an article recently in the New York Times—I think 700 people camped out for 5 days to get a few jobs as elevator repairmen. They waited in the rain, they camped out, they waited in line hoping to get one of those jobs.

There was an article involving Philadelphia about individuals who had prior convictions and wanted work. They set up an opportunity for them to apply to find a job. They expected 1,000, and 2,000 showed up. They interviewed a number of them, and the stories they gave are heartbreaking.

Don't we need to consider the impact this policy could have on working Americans? It is a sensitive topic but a crucial one.

Here is what David Cameron, the British Prime Minister, said recently:

There are those who say you can't have a sensible debate because it's somehow wrong to express concerns about immigration. Now I think this is nonsense. Yes, of course it needs to be approached in a sensitive and rational manner, but I've always understood the concerns—the genuine concerns of hard-working people, including many in our migrant communities, who worry about uncontrolled immigration. They worry about the pressure it puts on public services, the rapid pace of change in some of our communities and of course the concerns, deeply held, that some people might be able to come and take advantage of our generosity without making a proper contribution to our country.

Mr. Cameron goes on to say:

It is our failure in the past to reform welfare and training that meant that we left too many of our young people in a system where they didn't have proper skills, they didn't have proper incentives to work, and instead we saw large numbers of people coming from overseas to fill vacancies in our economy. Put simply, our job is to educate and train our youth, not to rely on immigration to fill the skill gaps.

Does that resonate with any of our people today? Have we thought through this as to how we should handle these matters?

Let's look at our own situation right here in America. Twenty-one million Americans are unable to find full-time work. One in three without a high school diploma is unemployed. Forty-seven million Americans are on food stamps. Labor force participation is the lowest since the 1970s.

The percentage of Americans actually working is lower and has been continually falling since the 1970s. It goes back to that date when women were just beginning to enter the workforce.

One in three youth in our Nation's Capital is living in poverty. It appears we are in an era of a new normal—economists have been talking about this—a new normal where we see slower growth in developed economies than we normally would see. There is more robotics, and businesses are looking to contain the growth of employment. Low job creation has been the result.

Madam President, I ask unanimous consent that I be notified after 20 minutes.

The PRESIDING OFFICER. The Senator will be notified.

Mr. SESSIONS. Our own Congressional Budget Office has done a 10-year economic projection, as they do every year. They did this in January, unconnected to immigration. They found in the second 5 years of our 10-year window, 2018 to 2023, we would only create 75,000 jobs.

Some have said we are going to bring in workers, and that is going to create jobs. We will talk about what economists really say about that. But what does this legislation do? I think this legislation has not given thought to the plight of these unemployed Americans.

Colleagues, the legislation that is before us today has four times more guest workers. These are people who come only to work. They are not just seasonal workers, they come for years at a time with their families, but they come specifically to take a job—four times more than in the 2007 bill that failed and many objected to on the grounds it would hurt workers.

It also triples the grants of permanent status awarded to legal immigrants over the next decade relative to current law. That was the result of the legalization process. Experts who have looked at this and other factors have come to the same conclusion: There would be at least 30 million people who would be given legal status over the next decade, whereas normally we would give 10 million people legal status. Yet to this day the sponsors of the legislation refuse to tell us how many would come into the country.

What we do know is that the plan is not a merit-based plan as promised, but it is mostly lower skilled, meaning it will hurt our poor and working-class citizens the most. We have data that shows that. This will be a hammer blow for working-class Americans.

The Civil Rights Commission had hearings, and members wrote us. They said it is going to devastate poor workers. They said,

We don't have a shortage of lower-skilled workers. We have a glut of lower-skilled workers.

That is a direct quote from their letter. So let's compare our current situation when the legislation was introduced in 2007. Today, 5 million more Americans are unemployed than in 2007; 20 million more Americans are on food stamps; and unemployment among teenagers is 54 percent higher than in 2007. Meanwhile, median household income is 8.9 percent lower than in 1999. That is huge.

Professor Borjas at Harvard, himself an immigrant who studies immigration and economics, has said a large part of that decline is driven by the large immigration flow that comes into our country. This would increase it dramatically. We want to have immigration. We are not going to stop immigration. We are going to maintain a generous immigration flow. But the people need to know this bill increases it dramatically.

CBO did a report on the legislation. This is what they found: Unequivocally, the legal immigration surge in this bill will reduce average wages for a decade. There is a chart in CBO's report. I had it on the Senate floor earlier. Wages will remain lower for many years after that than if the bill had never passed.

What about unemployment, the number of people out of work? According to CBO, it will increase, and per capita, GNP will be lower for the next quarter of a century.

Yes, you are going to have an increase in GDP—and our colleagues are quick to say that—because of the large new group of people. But that increase per person in America doesn't occur. It reduces the per capita GNP. And these are extremely conservative estimates. Dr. Borjas in his report suggests the situation will be worse than this.

To whom do we owe our allegiance? To these groups who want more people in the high-tech world, agriculture world, meatpacking, or other businesses, or to the American citizens, who work hard, pay their taxes, fight our wars, and obey our laws? Who is speaking up for their legitimate interests?

So the time is long past, as Prime Minister Cameron has said, for a national discussion over illegal immigration policies. We all believe in it. No one proposes ending immigration. It is a deep part of our tradition as a nation. But a nation has not only a right but a duty to establish a responsible flow that promotes assimilation of those who come here, promotes self-sufficiency, rising wages, and helps identify people who can flourish.

The last thing we want to do is to invite people to come to America to work and find out there are no jobs for them here or that they are putting Americans out of work in order to get a job. That doesn't make sense. We have not had the kind of discussion we need. The data indicates, objectively speaking, that this will be a detriment to working Americans.

A great nation needs a policy that promotes its legitimate national interests, that considers the tough time workers are having today as a result of high unemployment and falling wages, a policy that rejects ideas that will pull down even further the wages of hurting workers; that could, as Senator SANDERS has said, create a permanent underclass in America. It is a dangerous thing. We need to do it right.

The legislation before us is a dramatic step. I urge my colleagues to reject the bill and to work on a positive reform plan that serves the national interests of all Americans—immigrant and native born.

Sadly, this legislation advances the interests of those who wrote it—many of them with very special interests—at the expense of the general public.

The vote we are about to have is for final passage. The promises of an open and fair process have been as hollow as the promises that this bill would be the toughest ever and will end the lawlessness in the future forever. It just will not happen. Our law officers have told us this.

This legislation is amnesty first. The legality occurs first. It plainly lacks the kind of mechanisms that are necessary to create a law enforcement system that will work. There is a lack of commitment to that. You can see it throughout the bill. It is not written by people who are out there every day and who know the problems with enforcement. If it were, they would have fixed so many of these problems that are fully shown throughout the bill.

Yes, more money has been promised with the recent amendment for the border, but that is in the distant future. What about the rest of the bill? The E-Verify workplace enforcement system is terribly flawed. It has been delayed. It could be put to work right now. We don't need to wait 5 years as this bill does. Why it would be delayed that long is beyond me, unless you are not very interested in getting started and making sure that half the people are legalized and others can't come in and take a job who enter illegally.

The entry-exit visa system in this bill, S. 744, this 1,000-page bill, is much weaker than current law. Current law says you must have a biometric entry-exit system at sea, air, and land ports. This bill says you only have to have an electronic system at airports and seaports, making the system incomplete and unable to identify who stays and who has returned home on time.

Interior enforcement is much weaker—read the passionate letters from our law enforcement officers as I read this morning, pleading with us not to pass the bill because, they say, it will hurt enforcement and weaken national security.

The method of processing those given legal status will not work. Citizenship and Immigration Services, which manages this, has one big objection to this bill. They say there is no way they can accomplish what will be asked of them if this bill is passed. They say it will lead to lawlessness, and they will be unable to identify dangerous people who should not be in the country.

The PRESIDING OFFICER. The Senator has consumed 20 minutes.

Mr. SESSIONS. I thank the Chair. I will be wrapping up. Far from having fines pay for the cost of this amnesty as the sponsors promised, this is a huge budget buster—a huge budget buster now. The ObamaCare provision that was supposed to ensure that persons who were given legal status did not get subsidized health care now provides an incentive for businesses not to hire American workers because they will have to pay the ObamaCare premiums but would hire foreign workers, the illegal workers who are now given legal status—they would be having multi-thousand-dollar advantages in hiring them over American workers.

The legislation will not work. Let's continue to work through all these problems together. I do believe that this—our bill's sponsors are clearly correct to say we need to fix this broken system. A bill that will respond to the pleas of the American people for a lawful immigration system that serves our national interest and in which we can take pride is what I will support. How can we vote for a bill our own Congressional Budget Office says will reduce average wages in America for 12 years.

We have in this group of American workers thousands, millions of immigrant workers, millions of minorities and African Americans and others at low wages. This legislation, at a time they are hurting very badly will reduce average wages for 12 years, will increase unemployment, and will reduce per capita GDP for over 25 years. This is policy we have to ask serious questions about, all this at a time of high unemployment, long-term falling wages, surging welfare and disability and dependency.

It is not a healthy trend in America. We have to ask these questions. Our real focus, as Prime Minister Cameron has said, should be to work hard to train our people, our unemployed, our young people for jobs that pay a decent wage, have a health care and a retirement plan. This legislation will not end the lawlessness as our professional officers have repeatedly told us. It will not do so. It will give legality—immunity, if you want to call it that—virtually immediately. There is a promise of enforcement in the future, but our officers say it will not happen. It is not going to happen now.

I believe they are correct. I had the honor to be a Federal prosecutor for quite a long time and I know law officers and I know their difficulties and I totally agree with them.

This was a letter that was written today from the ICE officer head, Mr. Chris Crane, a true patriot. He has worked so hard to do this. He said one of the problems with the bill:

> . . . is a failure to enforce the nation's immigration laws on the interior of the United States. It is not a border issue. It cannot and will not end as a result of increased border security. It must be resolved through increased interior enforcement.
>
> 40% of all illegal immigrants currently in the United States did not illegally cross the border, but instead entered legally with a visa and didn't leave when it expired. 40,000 border patrol agents provided in your legislation will never come into contact with these individuals. . . .

Do you hear that, colleagues? These Border Patrol agents are never coming in contact with the people who are in the interior who came on visa and chose not to return. He goes on to say:

> Systems like E-Verify and biometric Entry/Exit—still missing from your bill—may identify millions of illegal immigrants and status violators, but ICE officers will not exist to locate and apprehend them rendering the systems useless. The majority of foreign nationals identified by these systems will remain in the United States. . . .
>
> 500,000 ICE fugitives are currently at large in the United States. ICE estimates 2 million criminal aliens at large in the United States, 900,000 criminal aliens are arrested by local police each year.

They go on to note there are only 5,000 ICE officers in America. This administration sued State and local governments that try to help the ICE officers get their job done.

Then the joint statement today from the ICE and USCIS Officers Association says this:

> ICE officers and USCIS adjudications officers have pleaded with lawmakers not to adopt this bill, but to work with us on real, effective reforms for the American people.

This bill, they say, is an:

> . . . anti-public safety bill and an anti-law enforcement bill. We urge all lawmakers to oppose the final cloture vote today and to oppose the bill.

This legislation will not end the lawlessness. I wish it were different, but

those are the facts. It does not create a merit-based future flow as has been promised, and it leaves us in a very difficult position. I feel like there is no choice for us today. Let's vote no on the legislation. It is not going to end the efforts. We are going to have to continue to wrestle with this.

The good news is that the House, at least initially, what I have seen in their work indicates they are giving a far more prudent approach to it. The first bill they produced—I tried to offer it as an amendment, but it did not get brought up—has an effective effort at improving interior law enforcement. That is the kind of thing we need to be doing. Then we can win the confidence of the American people, and we can move past this very difficult time in our history.

I reserve the remainder of the time on this side.

The PRESIDING OFFICER. The Senator from South Carolina.

Mr. GRAHAM. Madam President, if I may, I say thank you to my good friend from Alabama. He is consistent. He has conducted himself incredibly well. He is a man of passion, and I agree with David Cameron and JEFF SESSIONS. Let's have a debate about immigration. But I am in the camp of let's stop talking about it and start doing something.

This bill, in my view, is a giant step forward in many ways; No. 1, for the Senate. We are at 10 or 12 percent in approval rating for the Congress. My question is, Who are the 10 or 12 percent and what bill do they like? I am in the body and I don't disapprove of what we have been doing here. But I see this as a significant step toward the Senate being able to work together in a bipartisan fashion to do something that matters.

Is this bill perfect? No. Is it like Senator SESSIONS described? No. It is a good solution to hard problems that can always be made better.

But to the American people, you have to be frustrated by your Congress not being able to do the hard things or sometimes even the simple things. This should give people a little bit of hope that for the first time since 2007, the Senate, in a bipartisan fashion, is about to pass legislation on an important topic that is emotionally tough but needs to be dealt with.

To the critics, I appreciate the debate this time around. It has been so much better, but some of the criticism I am going to address.

Senator RUBIO spoke in the most eloquent fashion about his family's history and about who we are as Americans. But everybody has a story. Marco's story is an exceptional story. I am the first person in my family to go to college. Neither one of my parents graduated high school. My dad and mom ran a restaurant, a liquor store, and a pool room, and I learned everything I needed to know about politics in the pool room—a great place to learn about people.

But one of the critics of this bill, one of the organizations, said that the average illegal immigrant has a 10th-grade education. All I can tell you is you have a Senator who came from parents who did not have a 10th-grade education.

To those who believe that how long you go to school determines your character, how much money is in the bank determines your worth, they do not understand America. Only in America can you do what Senator RUBIO has done.

My parents have long since passed. When I was 21, my mom died; 17 years younger than my dad. We thought he would go first, but life is not so understandable and predictable. She went first and 15 months later he passed. As my sister was 12, an aunt and uncle helped raise my sister. They never made over $30,000 in their life. They worked in textile plants. She has turned out great in spite of having an overbearing brother. But I am in the Senate today. Why? Because I live in a country where anything is possible.

There are a lot of self-made people in America. I am not one of them. If it were not for my family and my friends, I would not be here today.

To those who say that among this illegal immigrant population they are just not well educated, you have no idea how offensive that is to a guy like me. So you can take your criticism and—we will just end it at that.

Eighty million baby boomers are going to retire in the next 40 years. To my good friend from Alabama, who believes we have too much legal immigration, I am taking Strom Thurmond's place. He got married and started having kids when he was 67. Unless all of us start doing that, we have a problem because in 1955 there were 16 workers for every Social Security retiree; today there are three and in 20 years there is going to be two. Unless there is a baby boom that I don't see coming—and I am part of problem. I am not married and I don't have any kids. Unless there is a baby boom we don't see, we better hope we can improve our legal immigration system.

To my good friend from Alabama, I could not disagree with him more. We are going to need a lot more legal immigration than is in this bill. I wish we could do more. Who is going to take care of the baby boomers when we retire? Who is going to replace the workers in our economy if we do not have better legal immigration?

What did the CBO say about this bill? If we pass this bill, over the next 20 years we reduce the deficit by $890 billion. How can that be? That means it is good for the economy. How can you reduce the deficit $890 billion if you do not create economic activity?

To the American worker, the biggest threat to you is illegal immigration. Tell me how it is better for America to continue amnesty—which is doing nothing and paying people under the table with no regulation. How did that help the American worker to compete against some person who is being paid under the table? This bill stops that. It brings people out of the shadows on our terms, not theirs.

You get to stay here if we decide you can stay. We are regaining our sovereignty that has been lost. How do you get 11 million illegal immigrants in this country? Your system is broken from top to bottom. Every nation, including America, has the right to control its borders and control who gets a job and this bill does that and I am glad to have my name on it—and doing nothing is the worst thing for the American worker.

We are going to stop paying people under the table. We are going to give you access to labor you have today if you can't find it. Have you ever been to a meatpacking plant? You go and find out who is working in that plant. Mostly Hispanics, people from other parts of the world, not because native-born Americans are lazy; we have higher hopes. There are parts of our economy, like it or not, that are dependent upon immigrant labor and our population is declining and our needs for legal immigration are growing. This bill does that.

As it affects the economy, it will increase our GDP by 3.5 percent over time because it is good for America to have legal immigration. As to the 11 million, you will be brought out of the shadows and you will stay on our terms.

If they committed a felony or multiple misdemeanors, they are not eligible. Here is what we are going to allow: They will go through a criminal background check, pay a fine, get right with the law, and then they will have legal status. Here is what they will get to do: They will get to pay taxes, like the rest of us, and get to know the IRS. Welcome to America.

We are going to create order out of chaos. We are going to get people working and paying in rather than taking out under the table. What we are going to do above all else, ladies and gentlemen, is we are going to prove to ourselves that we can work together for the common good.

I have never been more proud to be involved in an issue than I have trying to fix illegal immigration because it is a national security threat, it is an economic threat, and it is a cultural threat.

As to my politics, I am doing great among Hispanics in South Carolina. The bad news is that there are not very many who vote in the Republican primary. I think the good news for me is I have tried working with my colleagues, the Gang of 8, and our staffs to start a process that will pay great dividends.

To Senators GRASSLEY and LEAHY, thank you.

To the Democratic and Republican Members, thank you so much. I have never been more proud to be in the Senate than I am today.

To my critics, I respect their criticism. I thank them for a healthy debate.

To the American people, slowly but surely we are beginning to come together in your Senate, the greatest deliberative body in history, to do important work.

And to the 11 million, you will have a second chance. Take advantage of it. Embrace the fact that you are being given a second chance.

To the American people, our best days lie ahead, and what makes us special—and I will close with this—is that being French means you are French, being German means you are German. Being an American means nothing about where you come from, your race, religion, background, or ethnic origin. Being an American is an idea that so many people embrace.

Ladies and gentlemen, being an American is something everybody wants to be part of, apparently. Unfortunately, we cannot allow everybody in or it will create a chaotic situation.

I thank Senator DURBIN, who has protected the American worker, but I want to tell my colleagues in the Senate that this is a day I have been hoping and waiting for.

Thank you all so very much.

The PRESIDING OFFICER. The Senator from Illinois.

Mr. DURBIN. Madam President, first let me thank Senator GRAHAM, Senator MCCAIN, Senator RUBIO, Senator FLAKE, and on our side Senator SCHUMER, Senator MENENDEZ, and my friend Senator BENNET. The eight of us came together to create a bill, and in the end we did a lot more—we created a bond of friendship and trust and a life experience that none of us will ever forget.

Each of us brought our special pleadings to this negotiation. I argued for the protection of refugees, American workers, access to immigration courts and counsel, reforming the flawed H–1B program, a path to citizenship that was a challenge but fair. But my colleagues knew from the start that there was one issue that was more important to me than any other.

It was 12 years ago when I first introduced the DREAM Act. I did it for this young woman, Tereza Lee. They were about to deport her from Chicago back to Korea. She was 18 years old. She didn't know any other country but the United States. She had been accepted at the Manhattan conservatory of music. She was an outstanding pianist. And she was about to be deported. I thought that was wrong. I introduced the DREAM Act to help her, and it turns out, hundreds of thousands just like her.

Incidentally, this story ends well. She finished her education, and she is now working on a Ph.D. in music. She played in Carnegie Hall. She married an American, and she is a citizen. Would America have been a better place if Tereza Lee had been deported? Of course not.

Over the years the plight of Tereza Lee and this bill, the DREAM Act, became a cause—a national campaign. In the beginning teenagers used to come up to me in Chicago, filled with emotion, in the dark of night, and meet me at my car with tears in their eyes and say: I am a DREAMer. Can you help me? Over time, their numbers grew, and so did their courage. They stood up, as they have so many times and in so many places, and said: I am willing to fight to be part of America's future. It wasn't easy for them.

A few years ago I had a press conference right here in the Capitol. I invited the DREAMers to tell their stories. A hate-filled Congressman from Colorado called the immigration authorities and said: Arrest those kids. Well, they were not arrested. They left that press conference even more determined to see the DREAM Act become a reality.

Time and again we called the bill on the Senate floor and it failed. We couldn't break the filibuster. Two and a half years ago the galleries were filled with DREAMers in caps and gowns. We called the bill for a vote, and we lost. We had 55 votes, and we couldn't break the filibuster.

One of the saddest meetings I ever had took place afterwards. I went downstairs and met with these DREAMers after the bill failed.

Their heads were down and they were crying and they said: What can we do?

I said to them: I am never giving up on you. Don't give up on me.

Well, today I have a message for Gaby, Tolu, and all the DREAMers in the galleries here and all around the country: Your courage inspired us, your determination kept us going, and your faith in the only country you have ever called home has been rewarded. This bill before us has the strongest DREAM Act ever written.

I listened to my colleagues come to the floor and speak about immigration. Those of us who support this bill haven't talked a lot about the details of the bill. We have talked about what this means to us in our personal lives and what immigration means to America. So in full disclosure I have to tell everyone that the first DREAMer in my life was brought to America at the age of 2. She was the child of Lithuanian immigrants, and she grew up in poverty but was determined to become a citizen. Her dream came true when she was naturalized at the age of 24. That was my mother, and I dedicate this vote today to her memory.

For anyone in this Chamber who believes this is just another vote, go to a naturalization ceremony. Watch those new citizens with those flags in their hands as they take that oath to be part of this country. One cannot help but feel the emotion that courses through them at that moment.

Let me say a final word about the Senate. I am proud to represent the great State of Illinois, and I am proud to be one of the 1,947 Americans who have ever had this honor—to stand on the floor as a Member of the U.S. Senate. We were elected to make this Nation better.

The eight of us came together across the aisle. We cussed one another, we cheered one another, and we wrote a bill together. Now, to my fellow colleagues in the Senate, it is your turn. Reach across the aisle and show the American people that this Senate can still rise to the challenge. Show this skeptical Nation that their faith in our Founding Fathers will be honored by our generation of Senators.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Madam President, I thank Senator DURBIN for his compelling remarks and his deep and abiding concern for many years for the so-called DREAMers. I thank my other my six colleagues for their involvement, and I also thank Senator CORKER and Senator HOEVEN for their effort on this bill. I thank my colleague Senator FLAKE for his outstanding work. I would like to also mention Senator LINDSEY GRAHAM, who gave his own unique perspective, as well as my friend from Colorado Senator BENNET and also Senator SCHUMER, who has played such an important and valuable leadership role.

The word ''friend'' is tossed around this body quite often, perhaps with not as much sincerity as we would like, but these seven individuals are my friends. More importantly, they are friends of America. They are friends who realize that we were sent here by our constituents to achieve results, and I don't know at this particular time of a greater issue in which we should be involved.

We have heard a lot of personal stories here today, and I am deeply moved by all of them. There is another human story. In fact, there are millions of them. I would like to tell a few of them.

Over the last week the Arizona newspapers have reported that eight bodies were found in the Arizona desert. The Arizona desert today, my friends, is in triple-digit temperatures.

On June 21 the Arizona Republic reported:

> Four men may have been dead three days before their bodies were found in the Arizona desert by U.S. Border Patrol agents . . . Two men had Mexican identifications, and the other two didn't have identification.

On June 24 the Associated Press reported:

> Maricopa County Sheriff's deputies found another dead body in the Arizona desert near Gila Bend . . . just days after four bodies were found in the same area . . . No identification was found on the body and there were no signs of trauma or foul play.

On June 27, today, the Arizona Daily Star reported:

> Three decomposing bodies were found by Tucson Sector Border Patrol agents in the desert in two separate incidents over the weekend.

The Yuma Sun reported yesterday:

> There have been 12 people rescued from the desert by Yuma Sector agents. Six others were not located and died in the wilderness.

The list goes on and on.

Since 2007—the last time we tried to pass this legislation—more than 2,425 immigrants have died trying to cross our southwest border. These are people who wanted to come to this country because they wanted to realize the American dream. That is what they wanted. That is what they risked their lives and, in fact, gave their lives for—and, yes, they did so illegally. They were willing to pay a penalty for crossing our border illegally. Shouldn't we give them the same chance we have given generation after generation of immigrants who have come to this country? There has been wave after wave of Irish, Italians, Jews, Poles, and now people from all over the world who want to come to this country. Shouldn't we do that? Isn't it in us to bring 11 million people out of the shadows who are now being exploited and have none of the protections of citizenship?

Well, how do we address that? This legislation does secure the border, and I can tell everyone, from 30 years of being on the border, this bill secures the border, and anyone who says it doesn't does not understand our security needs. I have been there, and I have seen the technology. This is technology that was developed in Iraq and Afghanistan, which will give us surveillance. Yes, there is a bill with 20,000 new Border Patrol agents, but the fact is that the technology that is there now will give us the ability for 100 percent situational awareness and the ability to intercept. I guarantee it to my friends because I saw it work. There are 700 miles of total fencing that will be added—700 miles. As we all know, we will also have additional Border Patrol agents.

What is the key to this bill? The key to this bill is not only that we have the fencing on the border and the Border Patrol, but it is the 40 percent of the people who are here illegally who came here and overstayed their visas. They didn't cross the southwest border. What do we do about that? We dry up the magnet, and that is the E-Verify program, which makes sure that every person who wants to come to this country illegally will know they cannot get a job here. Within 5 years we will have an E-Verify system that I am confident—and more importantly, so are the people who are really knowledgeable about this—will be a full-proof system with 95 percent effectiveness.

This legislation will not only give us a secure border, but it will address the key element because people who now want to come here illegally will know they cannot. Employers will know that if they hire someone who is here illegally, they will pay a severe penalty for doing so. We have to dry up the magnet.

So today there are 11 million people who are in violation, and they don't have the protection of our laws. I would like to mention again the people who are coming across our borders. There is a thing called coyotes. Does anyone know what coyotes are? They are drug cartel people. They are the most evil people on Earth. They take these people in groups, and they bring them across the border. Many times, the reason we find these bodies in the desert is because they say: We are leaving you here. Tucson is right over the hill. Thousands have died in the desert. Do my colleagues know what they do sometimes when they get them all the way up to Phoenix? They keep them in drop houses jammed together and they hold them for ransom under the most unspeakable conditions. Do my colleagues know what else they do? They abuse the people they bring up. I won't go into the details of how they do that. It is an unacceptable situation.

Fifty thousand Mexican citizens have been killed by the drug cartels. Last year, hundreds of migrants were missing or killed in Mexico, more than 20,000 were kidnapped, and many are regularly beaten. The Mexican Government doesn't know exactly how to handle this situation, and it is all complicated by drugs which we are creating the demand for.

I have had the great opportunity in my life to have many experiences, and the one I will never forget was on July 4 of 2007. Senator LINDSEY GRAHAM, Senator Joe Lieberman, my beloved friend, and I were in Baghdad for the Fourth of July. General Petraeus had requested that we speak at a reenlistment ceremony where about 800 brave young men and women serving in the military were reenlisting to stay and fight. There was another group of some 80-some who were green card holders who, because they had joined the military, had an accelerated path to citizenship. I was honored to be there. I was honored to speak to them. In the front row, there were four empty seats with boots on them representing men who were green card holders who had lost their lives in combat in the previous 48 hours, men who had been willing to risk their lives and serve our country in order to be citizens of this country. I have never been so deeply moved.

Let's give these 11 million people a chance to do the same.

I yield the floor.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CORNYN. Madam President, I know the Gang of 8 members who were responsible for the basic framework of this legislation have done tremendous work and have advanced the substance and tone of our discussion immeasurably since 2007, which is the last time we had a major immigration bill on the floor.

I think the American people now understand the status quo is simply unacceptable. We have a broken immigration system which, in the words of my friend from Florida Senator MARCO RUBIO is effectively a de facto amnesty, because we have a system that is lawless and it is uncontrolled and it operates neither in the best interests of our country economically nor represents our values.

The American people are famously generous and compassionate. As a society we believe in second chances. All of us have benefited from second chances in life, and I believe the American people believe those who have come here to America in violation of our immigration laws, if they are willing to step up, pay a fine, register, and live in compliance with our laws, should get a second chance as well.

As a matter of fact, polling shows the American people support a permanent legalization program for 11 million immigrants living in the United States but only—only—if they are convinced the Congress has made sure they will never ever have to do this again. In other words, I believe the American people believe if the borders were controlled; if they believed we had a biometric entry-exit system which would track visitors who enter the country and who never leave, which is 40 percent of illegal immigration; if they believed we actually had an effective E-Verify or employment verification system that would determine at the worksite when someone shows up to work they are legally qualified to work in America—I believe if we had those three legs to the stool in place, the American people would do, once again, the generous thing, the compassionate thing, and give second chances to the 11 million people who are here.

But the problem with this bill—and I say this more out of sadness than anything else—the promises of this bill have simply not been kept. We were told 6 months ago the pathway to citizenship was contingent upon border security and these other enforcement measures taking place. When it wasn't, I proposed an amendment which would condition the transfer for probationary status to legal permanent residency on a certification that the objectives on operational security of the border had been met. I believed that by doing so, we would realign all of the incentives for the political parties—for Independents, for conservatives, for liberals—everybody would be focused like a laser on how to get this done, how to hit the mark.

I believe, if we had a mechanism in this bill which did not depend on Congress keeping future promises of performance, we could regain the trust and confidence of the American people such that we could get to a successful outcome.

Unfortunately, as the Presiding Officer knows, the proposal I made to do exactly that has been rejected. In fact, the assistant Democratic leader made the point recently in June that permanent legalization has now been delinked from border security.

But I believe the problems of this legislation go well beyond the border. When I offered 5,000 Border Patrol agents, I was told that—even though the Gang of 8 bill offered zero Border

Patrol agents, I was told that was a budget-buster. It was simply unaffordable—5,000 new Border Patrol agents. But now we find 20,000 additional Border Patrol agents provided for in this bill. Now we have been told that we have essentially a surge of law enforcement to the border and a huge investment in new technology and boots on the ground.

The only thing missing is a plan to make sure those people are actually effectively deployed and that technology will actually be deployed in a way that secures the border. I know the surge worked in Afghanistan, but I am not so sure we need a military surge in South Texas, and particularly in the absence of any plan to make sure people are going to be effectively utilized.

What is more, I would say I do not believe the promises made in this bill will ever be kept. I do not believe we will ever have an extra 20,000 Border Patrol agents. I do not believe the huge investment in technology will ever be made because it depends not just on this Congress and this administration but future Congresses and future administrations.

So we have, in essence, the American people being asked to grant the gift of a pathway to citizenship, to demonstrate the typical American belief in second chances and demonstrate their compassion. But, in essence, they have been tricked, once again, to trade that in exchange for hollow promises of future action. I think it is an unacceptable deal.

The problems with this legislation also extend beyond that. This bill grants immediate legal status to people with multiple misdemeanors and convictions for driving while intoxicated and spousal abuse. As a matter of fact, a person can have been deported out of the country for having committed a crime yet be eligible for reentry into the country and eligible for probationary status under this bill. I think that is shocking. I understand why we would want to give people who are economic migrants an opportunity to get right with the law and to get on with their lives, but why in the world would we want to extend that generosity to people who show nothing but contempt for the rule of law?

This bill also hinders law enforcement by making confidential the information contained in applications for probationary status that are rejected. This happened back in 1986. And I remember a quote, I believe it was from the senior Senator from New York after that time, to the effect that that was one of the biggest sources of fraud in the amnesty of 1986. My hope would be we would not repeat that mistake again by keeping that information confidential and away from law enforcement authorities, thereby hindering their efforts to root out fraud and make sure only people who legally qualify for this generosity are able to do so.

The other problem with this bill is it simply is a budget-buster. I was told 5,000 Border Patrol agents that would be paid for out of the $8.3 billion trust fund created by this bill was too much, but now we have $30 billion more in additional spending being promised. The argument is that somehow this is free money and it doesn't cost a penny because under the CBO score, there will actually be a reduction in deficits. The problem is that is double-counting the money. It is the money coming into the Treasury because of people who are now registered, who are paying into Social Security and the like. But it takes that money to spend on these other programs and does not appreciate or recognize the fact that money is also going to need to be available to pay future benefits for these same people. That is double-counting. That is phony bookkeeping, and we ought to reject it.

The truth is, this bill adds to the budget deficit an additional roughly $14 billion as presently written. At a time when our debt is at $17 trillion, it strikes me as the wrong thing to do to say we are going to add further to that debt and jeopardize our fiscal health for the country as a whole going forward.

I will close with this. It gives me great pain to say that I think this is an opportunity we have failed to take advantage of. I think we could have done better and we should have done better. This bill is unworthy of my support and it will be unworthy of support by a number of Members. But my hope is the House of Representatives takes up this issue and we can somehow find our way to a conference committee with the House and produce a bill we can eventually put on the President's desk. It will not be like this bill, I am confident of that. The House has far different views. But what we do have that we didn't have in 2007 is I think a true bipartisan consensus that the status quo is unacceptable and we have to do better. Unfortunately, this bill doesn't keep the promises that were made originally, and for that, I truly regret it.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Madam President, we are now approaching the final hour of this debate on how to fix our broken immigration system—the debate we have been having for 3 weeks here on the Senate floor, for 7 months among the Gang of 8, and for decades in this Nation. I want to profoundly thank my colleagues in the Gang of 8. I will have more to say about each of them after we vote. I also wish to thank all of my staff who did such a great job.

When I look out my window from my home in Brooklyn, I see the torch of Lady Liberty shining brightly and I can see and feel the promise of America and the covenant of America.

There is an unwritten covenant between America and those who immigrate here. It says if you come here with a dream, with a will to work hard, follow the rules and contribute, we will give you a chance to become an American and, in the process, to make America a better place than it was before you got here.

In choosing this country, whether it is my friend MARCO RUBIO's parents from Cuba or my grandparents and great-grandparents who fled persecution from Europe, immigrants bring an appreciation for the choices and opportunity that are unique to America. They often love America even more than native-born Americans. We take that appreciation for granted.

It is, therefore, not a surprise that CBO says this bill will grow our economy by 3.3 percent over the next 10 years and 5.4 percent over the next 20. CBO has simply enumerated a concept that many of us already knew: Immigrants have always been the greatest engine of economic growth, innovation, and renewal that this country has ever known. There is no greater economic engine than the long hours immigrants work with no complaint for the chance to achieve economic stability and prosperity for themselves and for their families.

According to CBO, it is a far greater engine for economic growth than any spending program Democrats might traditionally propose or any tax cut Republicans might traditionally propose. Whether it is highly skilled immigrants inventing new technologies or lower skilled immigrants toiling in our fields or all of those in between, immigrants have been an essential component to our American success story.

To reject this basic truth in this vote today would be a direct rebuke to the lady who shines so brightly in New York's harbor.

But just like today, our history has had many other instances where the fate of the American covenant with our immigrants has been tested. And, in the end, it has always survived stronger than it was before.

It has survived because all of us know if America is to remain the greatest Nation in the world, a beacon of hope and freedom for all to aspire to, we must always live up to the covenant that is represented by the great Lady in the Harbor.

This bill is our best chance, and may be our last chance, to maintain that covenant through the next generation of Americans, and to maintain the greatness of America. This bill includes input from almost every Member of this body.

I cannot think of two more vocal critics of the bill than the Senators from Alabama and Iowa, but even they have amended the bill in multiple places to make it better.

That is what makes this bill strong; that is what makes this bill good. It has garnered support from the most diverse coalition of groups any bill has ever seen: U.S. Chamber of Commerce; AFL–CIO; the faith community, including Evangelicals and Catholics; the

high-tech community; America's farmers and farm workers; the law enforcement community; the immigrant rights community.

Now, what does this bill do? Simply put, it does three simple things: It will prevent future waves of illegal immigration; it will provide a tremendous boost for the American economy by rationalizing future legal immigration; and it will fairly and conclusively address the status of people currently here illegally.

Let's look at the actual facts of what the bill does to end illegal immigration.

If the bill passes, anyone who wants to try to cross the border illegally will have to get over an 18-foot steel pedestrian fence and past border agents standing every 1,000 feet apart from Brownsville to San Diego.

Future waves of illegal immigration will be prevented if this bill is passed. That is not a wish, it is not a hope, it is a fact.

People have argued that we should not pass this bill because past efforts have failed to prevent illegal immigration. But let's not be so defeatist that we throw up our hands and declare we are incapable of learning from our past mistakes.

Under their logic, the famous expression would be changed: When you fall off a bicycle, make sure you never ride a bicycle again.

Finally, I do not countenance the way the 11 million undocumented immigrants living in our midst got here. But they are here now, and deporting all of them is unpractical, unrealistic, and wrong to consider.

Our bill will tell these individuals if they are willing to keep their end of the covenant, their road may be harder and longer than everyone else's road—a 10-year probationary period, no benefits or assistance of any kind—but it too can end with being given the chance to earn American citizenship if they work hard and pay taxes and play by the rules.

So the bill is the right thing to do from top to bottom. It has more deficit reduction than our best deficit-reducing packages. It will stimulate the economy more than any stimulus bill, and it will make our border more secure than it has ever been in our history.

So now there are simply no more legitimate excuses to vote against this bill. Opponents of the bill have given three stated excuses for opposing the bill, each of which has been resoundingly refuted.

They said the process is unfair, but it has been the most open process we have seen in a long time. They said it was going to bust the budget and take away American jobs. CBO refuted that.

Finally, they said the bill will not secure the border. But we have the toughest border security and enforcement in any immigration bill ever written.

Here is what a vote against this bill says: It says it would be nice to reduce the debt, but not if it helps immigrants. It says it would be nice to grow the economy, but not if it helps immigrants. It says it would be nice to end illegal immigration in our security, but not if it helps immigrants.

Those are the three stated reasons. The only reason left to vote against this bill is the unstated reason—opposition to a path to citizenship for the 11 million.

Make no mistake about it, the support this bill has generated in the Senate will make it impossible to ignore. I believe the support this bill will receive today in the Senate will propel it to pass the House and be placed for signature on the President's desk by the end of the year.

That is because in our hearts we know immigrants have always been part of the fabric of America. While there have always been people who have rejected immigrants—from the know-nothings to the exclusionists—we have always seen the better angels of our nature prevail in the end.

At times like these, when our better angels are tested, to reject this bill would tear the fabric of America asunder. It would declare that America no longer seeks to be the shining city on the hill that attracts and is admired by people around the globe.

Pass this bill, and let's keep the American covenant alive. Pass this bill, and let the bright torch of Lady Liberty continue to shine brightly as a beacon to those around the globe for generations to come.

I yield the floor.

The PRESIDING OFFICER (Ms. WARREN). The Senator from Alabama.

Mr. SESSIONS. Madam President, as I have looked at the legislation—and we have wrestled with what goes in it—I will just share with my colleagues my perspective, having been in charge of enforcing Federal laws as a U.S. attorney in the interior of the country.

We need to understand a couple things. The border is very important. There has been wide open illegality at our borders for years.

San Diego, a number of years ago, was having drugs, crimes, violence. They built a fence and prosperity rose on both sides of the fence. Crime went down. It just had to be done, and they have been very happy with it.

That helps a lot, and it is not at all impossible for us to get our border under control today. It does not require that much more than current capacity, but what we need is an absolute commitment from the President and the Director of Homeland Security to get that done. We have lacked that.

I want to move beyond just the requirements of the border. There are other areas that are critical to having a lawful system of immigration. Those include entry-exit visas, and that includes workplace enforcement.

Under current law, Congress has passed—and actually there have been six laws to this effect in the last 10 years—these laws require that there be an entry-exit biometric visa system at all air, sea, and land ports. The 9/11 Commission recommended that. The 9/11 Commission—when they had a review of what had been done toward accomplishing their recommendations—they went back to it and warned that we had not completed it. It is current law. It requires a biometric entry-exit system.

People who come into our country today are fingerprinted, but when they leave the country they are not checked. So we do not know—when they got their visa and they entered the country—whether they ever left.

There are arguments that have been made that it would cost billions and billions of dollars. But a pilot project, which I just discovered recently—I did not know it was there—was in Atlanta and one of the other airports. In Atlanta, they did this: A person goes through the airport to depart from the United States, they go by a handheld fingerprint-reading machine—police officers have them in their cars; they can stop a drunk driver and check their fingerprints right on the side of the road—they put their finger on that, they go out of the gate, and you know whether they have departed the country.

So this is a significant technological advancement. It works. In Atlanta, when they did that, they caught over 100 people on the watch list—people for whom there were felony warrants, people on the terrorist watch list. They knew, and we have a record of the people who left the country.

That is critical to our system. We have almost gotten there. But there has been a failure to see it happen because some people do not want it to happen. That is not in this legislation. This bill eliminates the requirement of a biometric system, and it eliminates the requirement that we have an exit system at the border. It is only air and sea. That is a major diminishment of an absolutely critical part of our system. It is going to be even more critical.

Why will it be more critical? Because we are going to have the doubling of the number of people who come to our country on visas, and we are going to have an increased problem of visa overstays. The Congressional Budget Office warned of that in their report. It is obvious. The Citizenship and Immigration Services and the ICE officers have warned of it repeatedly to us in their letters. So this has to be a part of our system. It just has to be. The fact that it is not in there indicates the people who drafted the bill had no real interest in seeing enforcement enhanced, but they actually wanted to allow the enforcement to be weakened. So that is a nonstarter. This has been in the law for over 10 years.

So the ICE officers have told us: Look, 40 percent of the people now who are here illegally came by visa overstays. But that is going to increase dramatically for a lot of reasons. One

of them is we are going to double the number of people who come by visas under this bill.

So they have warned us that this concern about a de facto amnesty will continue because we have no people on the interior of the United States to enforce the law. You are going to 40,000 Border Patrol agents, but only 5,000 people inside the interior of the entire United States of America.

This President, as part of his systematic plan to stop enforcement, has sued States and broken the 287(g) agreements with States that allow them to participate and help the ICE officers do their jobs. States cannot prosecute people. States cannot deport people. But States can, as part of their job, when a police officer arrests somebody for a crime or drunk driving—and they identify them as being illegally in the country—they can take them to the ICE officers and help them do their job. And there are agreements to do this to this effect.

What has happened? This administration has eliminated those agreements and canceled the program. I helped write the program. Lots of States were participating happily in it, and they were not being forced to do anything they did not want to do, but it allowed them to be more effective in doing their job.

So the problem is when you see that missing in this 1,200-page bill, but you see provision after provision after provision that focuses on other issues, focuses on issues important to special interests who helped write the bill. Then you begin to get suspicious about what is happening. That is why the ICE officers and the Citizenship and Immigration Services were so concerned about not being able to participate in the program effectively and to share their views. It is clear they did not want their views.

So President Obama—although it has been maintained pretty carefully that he was not involved in writing the legislation, it appears he quite clearly was. They are not happy with the ICE officers. The ICE officers actually sued Secretary Napolitano for stopping them from enforcing the law they have sworn to enforce. They say they are being required to violate their oath and their commitment to the law by policies from politicians in the Homeland Security Department. They have written it in letter after letter after letter, openly saying the politicians in the Department are overriding the law—directing us and undermining our ability to do what we are sworn to do. They have a lawsuit pending about it. I have never heard of that, that officers would do that.

Then we have the confusion over the E-Verify system. Senator PORTMAN improved the bill dramatically with his amendment—or would have. He was not able to get it up for a vote. But the E-Verify system is in place today and it is utilized by governments and by contractors who do work for the government. I think people who want to voluntarily use it can use it.

You can give a Social Security number to your boss or your employer-to-be and he runs it and checks. What they find is many illegal workers are using the same Social Security number as other people. The computer and the Social Security department catches that. That tells the employer there are six different people using this Social Security number. You should not hire this person until he has been checked out.

So that is the way the E-Verify system works. It takes about 3 minutes. It has a 99-percent accuracy rate, but the forces out there have blocked the legislation for E-Verify. Even this minimum standard that is operating today, we had to fight to get an extension. I had to hold up legislation to guarantee that they would at least extend the current system because there are forces out there that put in big money that do not like this project. They do not like it. They want to end it. They are afraid it will be expanded.

Any plan that pretends to be serious about workplace enforcement has to utilize the E-Verify. Well, this bill, instead of just taking the system and expanding it—which would not take much effort; computers are capable of handling the numbers—instead of just doing that, they have done it in a way that delays it for 5 years. So to me this indicates there is not an intensity of interest after the amnesty has been given.

After people have been given legal status, they will be given a Social Security number. They will not be hurt by having to have their number checked. They will have a legitimate Social Security number. They will be legal. They will take any job out there. But the people who come in later, the people who did not qualify, people who otherwise were criminals and should not be getting a job and do not qualify for this provisional status, they would be identified for years under this system. It indicates a lack of seriousness in the commitment.

I see Senator GRASSLEY is here. I will wrap up by saying that creating a lawful system of immigration requires more than border enforcement. It is important but you have to have interior enforcement. You have to have workplace enforcement. You have to have entry-exit visa enforcement. This is critical.

As I have been stressing, we do not talk about it enough. The bill also sets out in its 1,200 pages the future flow of workers into America. Our colleagues have said it is a merit-based system. We have a points system. Unfortunately, that is not substantially correct. It looks to us like less than 15 percent of the people enter into our country under our plan by a merit-based system. Canada does that. They are very happy with that. I think about 60 percent of their people do so. The more education you have, the more job skills you have, the more fluency you have in the language, you get more points.

Under this merit-based system, it has about 15 percent of the people covered by it in a point system. The fact that your brother is here is equal to 10 points. If you have a 4-year college degree, that is only equal to 5 points. It takes a master's degree to get 10 points, equal to the family connection points. So the point system is still heavily skewed to things other than actual job skills, education level, and the ability to be productive and flourish in our society.

We want to bring people to our country who are going to be able to flourish, do well, be able to find a job, and not be unemployed or the only skill they have is one that Americans are applying for in big numbers and they would take a job from an American, unemploying an American. So we have to create a system that serves the national interest and identifies the kind of workers the country needs and we can absorb as a part of the over 1 million or so people we admit each year lawfully into America.

That makes sense to me. Also, the guest worker programs are exceedingly complex. There are W programs, there are E programs. There are different kinds of programs throughout this whole bill. The net result, the number of people who come not to be permanent citizens, not to be immigrants, but come as guest workers will double under this legislation. That makes it harder for the legal immigrant who is new in America trying to find work to get a job. They are having to compete with the guest workers. So those are the kinds of things we need to be thinking about as we go forward.

I wish to express my appreciation to the ranking member of the Judiciary Committee, Senator CHUCK GRASSLEY. He has been a student of this problem since 1986. He has shared with us his perspective on it. He has a deep conviction that if we go through this process again, it needs to be done in a way that we can be proud of a few years later, not be embarrassed about as we were after 1986.

So we would create a system that allows a lawful flow to occur but stops the illegal flow in the future. That is the problem I think this legislation has, among others.

Senator GRASSLEY, thank you for your efforts. Good work. I have enjoyed working with you and Senator LEAHY, who conducted a tough series of hearings. He let us have votes. We got a lot of votes in the Judiciary Committee. He asked if anybody else had another amendment when we finished. We got it done. That has not happened on the floor today. We have only had nine votes, and three of those were motions to table very important amendments that deserved more consideration than that.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Madam President, I would like to make an inquiry about time. We were supposed to start the last 20 minutes. Is it OK if I start now with my final remarks?

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. GRASSLEY. Madam President, my colleagues have often heard me speak of my opposition to the legislation that is before us. They have not heard me speak about my opposition to immigration reform. As I have said so many times on this floor and in committee, or even to the press, I have not heard a single Senator say the existing system status quo ought to be maintained.

There are a lot of opinions about what should be done. So as we have seen over the last few weeks, immigration is an emotional issue that engenders strong feelings on both sides of the aisle. Saying it for a second time: Everyone wants reform, but everyone has their own ideas and different solutions.

Coming into the debate, I think my position has been very clear. I made it very clear because I have the experience of the 1986 legislation. That was legislation legalizing; it did not solve the problem. We screwed up in 1986 by not securing the border first, even though we had the intention that would happen. Today, we are right back at the same place talking about the same problems, proposing the same solutions. Unfortunately, the process has not allowed us to fundamentally improve the bill. We have not been able to vote up or down on commonsense amendments. There has been 550 amendments filed. We have taken up about a dozen.

Despite the fact that the American people want the border secured before we provide a path to legalization, there appears to be a majority of this body who believes legalization must come first. Next Monday and Tuesday I will be holding 11 townhall meetings in Iowa. I know what I am going to hear from my people: Yeah, we need immigration legislation. But first we need to enforce the laws that are already on the books before you consider anything new.

Despite what the Gang of 8 wrote in their framework for immigration reform, legalization is not—emphasis upon ''not''—contingent upon our success in securing our borders and addressing visa overstays. The bill will not ensure that a future Congress is not back 25 years from now dealing with the very same problems. We need a bill that insures results. We need a bill that puts security before legalization, not the other way around.

We are a nation based upon the rule of law. We have a right to protect our sovereignty and a duty to protect the homeland. Any border security measures we pass must be real and, more importantly, be immediate, not 10 years down the road.

We also need meaningful interior enforcement, including allowing immigration officers to do their job and work with State and local officials. Enforcement of the immigration laws has been lax and increasingly selective in the last few years because Federal immigration enforcement officers have been handicapped from doing their job.

The States have tried to step in, but every time the States tried to step in under the 10th Amendment to protect their citizens when the Federal Government would not do it, they have been denied the opportunity to control their own borders. The unfortunate reality is the bill does almost nothing to strengthen interior enforcement efforts. It does nothing to encourage cooperation between Federal, State, and local governments.

The Federal Government will continue to look the other way—look the other way as millions of new people enter this country undocumented. Meanwhile, the bill gives the States no new authority to act when the Federal Government refuses. One of the major reasons immigration is a subject of significant public interest is the failure of the Federal Government to enforce existing laws. Some 11 million people have unlawfully entered the country or overstayed their visas because the Federal Government did not deter them or take action to remove them. The bill subsequently weakens current criminal laws and will hinder the ability of law enforcement to protect Americans from criminal undocumented aliens.

In addition to weakening current law, the bill does very little to deter criminal behavior in the future. It ignores sanctuary cities and increases the threshold required for action of what constitutes a crime. Regrettably, the bill is weak on foreign national criminal street gang members, an amendment that I tried to offer, but we could not get the other side to vote on whether gang members ought to be denied benefits in this immigration law.

Furthermore, the bill falls short in protecting American workers who need and want jobs in this country. While I support allowing businesses to bring in foreign workers, they should only do so when qualified Americans are not available. I have long argued that we must enhance and expand opportunities for people who wish to work legally in the country. Yet as we do that, we cannot forget the American worker. We need to fight for them as well.

Finally, I empathize with people who come into this country to have a better life. We are proud of our country. Those of us born here do not appreciate how great this country is. When I talk at a naturalization ceremony in my State, I tell the new citizens: You are new here. You came from another land where you know things are a lot different than they are here. When you hear Americans bellyaching about our great country, I hope you will tell these Americans who were born here—including this American—that this is the best country in the world, and how it is different in your own country and that you came here for a better life.

We are a compassionate people, and we are also the best country in the world. We are a great country because we have always abided by the rule of law. The rule of law is what makes opportunities that we have possible.

I am going to vote against this bill today. That is no surprise to anybody. I have hopes for a better product to come out of a conference committee. I hope for a bill to go to the President of the United States. My hope is that we will send a bill to the President that will make America stronger, make our borders more secure, and make our immigration system more effective. This is what Americans deserve and what we have a responsibility to deliver.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

Mr. REID. I am informing all Senators that if they are not in their seats when the time arrives, we are going to have a live quorum. We are going to have everybody here when the vote starts. I know people are anxious to leave, but they better be here or I am going to have a live quorum and it will take a lot of time.

The PRESIDING OFFICER. Who yields time?

The Senator from Vermont.

Mr. LEAHY. Madam President, if I may have the attention of the Senator from Iowa.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. LEAHY. Will the Senator from Iowa yield for 5 minutes?

Mr. GRASSLEY. I yield to the Senator for 6½ minutes. As far as I know, nobody on my side wants the time, and the Senator may have the time.

Once again, I wish to thank everybody who maybe hasn't heard me say it. The Senator had a fair and open process in our committee. There wasn't a single Member who didn't get a chance to offer amendments. This is the way the process ought to work, and the chairman made it work that way.

The PRESIDING OFFICER. The Senator has 6 minutes remaining.

Mr. LEAHY. I thank the distinguished Senator for his comments. He also deserves credit. We worked very closely together on this schedule and everything else to make sure all people were heard, as the Senate completes its work on this historic legislation, I want to recognize Senators and staff members who were instrumental to our effort.

Senator DURBIN, who has championed the DREAM Act for many years, deserves special recognition. I commend him as the Senate approves his hard-fought effort that is included in this bill. Senator DURBIN has helped to bring these compelling stories out of the shadows. He has been dedicated to the young people who will be helped by his legislation, like Gaby Pacheco. These brave and patriotic DREAMers have inspired all of us who support the bill's passage.

Senator SCHUMER's tenacity and commitment to this effort should be commended. He worked hard to build bipartisan support and was relentless in his advocacy for passage. Senator MENENDEZ fought hard to protect the principles that make this legislation something we can be proud of. Senator BENNETt and Senator FEINSTEIN were committed to our agreement between agricultural workers and employers that is fair and that will help America's farmers and farm workers.

Senator MCCAIN, Senator FLAKE, Senator GRAHAM, and Senator RUBIO bravely led the Republican Senators throughout this process. I appreciate that their leadership has been a challenge in their caucus. I thank Senator MCCONNELL for his advice as the Judiciary Committee prepared to consider this legislation.

And I thank Senator WHITEHOUSE, Senator COONS, Senator BLUMENTHAL, Senator KLOBUCHAR, and Senator FRANKEN for their work in the Judiciary Committee and for their amendments to make this legislation better. I especially thank Senator HIRONO for her personal efforts and determination to make sure that the interests of women and families were protected in this legislation. All of these Senators deserve recognition for their dedication.

The work of the Senate could not be successful without the staff members who work behind the scenes. The work of our staff is especially important when the Senate considers legislation of the magnitude that we have completed today. I take a few moments to recognize the many staff members who contributed to this legislation.

I want to recognize and give my thanks to Bruce Cohen and Kristine Lucius. My former Chief Counsel and Staff Director Bruce Cohen, who is well known to many Senators, has been at my side for nearly 20 years. Though Bruce is leaving the Senate, his mark is on this legislation and he leaves his mark on the Senate Judiciary Committee after years of service. His dedication to the Senate, to the people of Vermont, and the United States has been of the highest caliber and he will be missed.

Kristine Lucius, who has so ably and seamlessly taken over as my Chief Counsel and Staff Director on the Judiciary Committee has proven herself many times over during the Judiciary Committee's markup of this legislation, and through the Senate's debate of this legislation. Without her leadership, instincts, and intellect, our Committee process would not have been the example of democracy that it was. Both Bruce and Kristine deserve my deepest gratitude.

My Chief of Staff, JP Dowd and my Legislative Director Erica Chabot were central to this process. In addition to leading my office, JP guided my entire staff with a steady hand as we considered this legislation. And in addition to coordinating the legislative work of my office, Erica made great contributions to the process this legislation followed through the Committee. Erica's work was only interrupted by the arrival of a baby boy on June 21st.

I thank Adrienne Wojciechowski, Tom Berry, Susan Sussman, Diane Derby, and John Tracy for relating this complex bill to Vermont priorities. Their outreach to Vermont farmers, business owners, law enforcement officials, and Vermonters impacted by our broken immigration system was crucial to my priorities in this bill.

And our work in the Committee could not have been conducted without the incredible efforts of our Chief Clerk Roslyne Turner, Deputy Clerk Theresa Reuss, Hearing Clerk Melanie Kartzmer, and former Hearing Clerk Halley Ross, all of whom make our committee run at the highest standard.

And I thank Brian Hockin, who keeps the Committee's technology running and provided real-time updates during our five Committee markups by posting amendments online as they were modified. I give them my thanks and appreciation for their role in making the Judiciary Committee so productive and transparent.

I want to thank my staff members who worked long and hard on this legislation. My Judiciary Committee counsels Matt Virkstis, John Amaya, Chris Leopold, Alexandra Reeve-Givens, Josh Hsu, April Carson, Emily Livingston, Lara Flint, and Anya McMurray all committed themselves to this process with professionalism and dedication to advancing this important legislation. My team of lawyers carefully negotiated, reviewed, and drafted thousands of pages of amendments. They worked across the aisle to create consensus and improve our proposal.

I thank the Committee's Legislative Staff Assistants Emma Van Susteren, Charles Smith, Kelsey Kobelt, and Clark Flynt for their commitment and passion to making this process run smoothly. And I thank my Communications Director David Carle and my Judiciary Committee Press Secretary Jessica Brady for helping to make our process a transparent one and to tell the story of the Senate's consideration of this legislation.

The staff members of Senators in the group of eight who serve on the Judiciary Committee deserve recognition. Joe Zogby, Mara Silver, Leon Fresco, Stephanie Martz, Chandler Morse, Elizabeth Taylor, and Sergio Sarkany served the Senate well.

I want to recognize the staff of the Judiciary Committee's Ranking Member Senator GRASSLEY, Kolan Davis and Kathy Nuebel. They served Senator GRASSLEY and the Senate with weeks of tireless effort to make our committee process a productive one. I thank Ranking Member GRASSLEY for his cooperation during the Committee's consideration of this legislation.

The floor staff that keep the Senate running deserve special recognition and thanks. The Democratic Secretary Gary Myrick, Assistant Secretary Tim Mitchell, and Reema Dodin serve the Senate admirably and their assistance to Senators is indispensable. The Majority Leader's staff members Bill Dauster and Serena Hoy lent their broad experience and expertise to this process. I thank them all.

I thank the members of President Obama's staff who provided invaluable technical expertise and assistance to the Senate. My former Chief of Staff, Ed Pagano, along with Miguel Rodriguez, led a tremendous effort in the Senate for the President. The President's Director of the White House Policy Council Cecilia Munoz and her team, Felicia Escobar and Tyler Moran were instrumental in this effort.

And I want to especially thank Esther Olavarria. Esther served Senator Kennedy for many years on the Judiciary Committee, and has lent her intellect, her vast knowledge of immigration law, and her genuine sense of humanity to previous efforts in the Senate. I know Senator Kennedy would be very proud of her service to the President.

Finally, I want to recognize the tremendous work done by the Office of the Senate Legislative Counsel. They are the attorneys who serve the United States Senate to turn ideas into legislative text. I especially thank Matt McGhie and Stephanie Easley who moved mountains to meet the requests from Senate offices to draft this legislation. I thank them and all of the attorneys and staff in that office who serve all Senators with tremendous professionalism and skill.

Many other staff members in the Senate contributed to this effort in ways that will be largely unheralded by the public. But it is important to recognize the role that the dedicated men and women who serve Senators play in doing the business of the American people. Their work behind the scenes on this historic bill allowed Members to agree in principle and make their compromise a meaningful reality.

I am proud of the Senate's work today and I thank everyone who made this process a successful one.

Our American story is a story of immigration. It is not only our history, it is our future. Over the last few weeks, many of us have spoken about our own families' immigration stories. We all have such stories. I heard the distinguished Democratic whip, Senator DURBIN, speak of the very moving story of his family and also what he has done with DREAMers. We have talked about our parents and grandparents seeking better lives for us. We can all relate to the most compelling, innate urge to sacrifice for the ones we love.

We are inspired by our forebears who wished better lives for us and for themselves, and found those opportunities here in America. They taught us the fundamental values of family, hard work, and fairness. With this legislation, we honor those American values.

We honor their search for freedom, for prosperity, and for the promise that America has held out to so many for so long.

I am proud to be a Member of the Senate. Today is a good day for the Senate, and, more importantly, it is a good day for the country. Today, with the help of many Senators, we will address a complex problem that is hurting our families, stifling our economy, and threatening our security.

Several months ago four Democrats and four Republicans began negotiating and drafting immigration reform legislation. They produced a carefully balanced, fair, and humane proposal that at its core is intended to make meaningful improvements to border security and, most importantly, will help millions of people who dream the same dreams our ancestors did.

I am proud of the role the Judiciary Committee has played in this process, and I thank the Senators of both parties who have praised that role.

In late April, with the full participation of all 18 members of the Senate Judiciary Committee, with unprecedented transparency, and with fairness to all members in offering amendments and having the chance to debate them, we held several public markups to consider that legislation. Over 37 hours during the course of 3 weeks, we engaged in vigorous debate in full view of the American public. We considered 212 amendments from Democrats and Republicans. We approved 136 amendments in a room filled with spectators on both sides of the issue. Of the amendments approved in committee, 47 were Republican amendments and all but three were adopted with bipartisan support. Even the staunchest opponents of this legislation have praised that fairness.

The world has never seen such a vibrant, cohesive, economically exuberant, and democratically successful experiment as our country. Every one of us as Americans should be proud of that.

A key ingredient of our successful formula has been and will continue to be immigrants anxious to be part of the American experience. They have helped us to be a Nation in constant renewal, welcoming and using this constant influx of fresh talent and energy. Just as my grandparents and my wife Marcelle's parents made Vermont and America better, they have made us better.

Today is another historic day in the Senate. The Senate will soon complete its work on remedies for a difficult and complex set of issues that has eluded us for years. We passed immigration reform legislation in 2006 under the leadership of the distinguished Presiding Officer's predecessor, Senator Ted Kennedy. After the Senate's work, the House of Representatives declined to take up the Senate bill. I hope that won't happen again. This issue is far too important to ignore or to allow it to languish. We shouldn't play politics with what is quintessentially an American issue.

At this moment I would like to think my dear friend Senator Kennedy is smiling down on this Chamber. He sat right over there. He would be overjoyed to see us pass this legislation on an issue he cared about so deeply. I would like to think our old friend would be proud of what we are doing.

In a very few minutes the Senate will vote to pass a comprehensive solution to our broken immigration system. It will reunite families. It will bring millions of people out of the shadows and into our legal system. It will spur job growth and reduce our deficit. It will make us safer.

I would urge all Senators to join with us to ensure a bright future for this great Nation we all love by passing comprehensive immigration reform. In doing so, you make us an even greater Nation than we are.

I yield the floor.

The PRESIDING OFFICER. Who yields time?

Mr. REID. I yield time to the Senator from Louisiana.

The PRESIDING OFFICER. The Senator from Louisiana.

Ms. LANDRIEU. Madam President, I appreciate both leaders for giving some time for this.

Several of us have been working all week on a package of amendments that were bipartisan and cleared by both Senator GRASSLEY's and Senator HATCH's staff. We appreciate their work so much. We are, unfortunately, not able to get unanimous consent. We tried. I thank them very much for their effort. They stuck with us all the way to the end.

Hopefully this bill will begin to build a bipartisan coalition of Senators who wish to truly solve problems for our country. Our coalition that worked on this is both people for and against the bill. We were not able to get it cleared. We are not discouraged and will continue to work.

I thank Senator HATCH and Senator GRASSLEY.

The PRESIDING OFFICER (Mr. COONS). Mr. Leader.

Mr. REID. Mr. President, we are here today to talk about people, not pages of legislation. This bill represents human beings, real people—yes, immigrants. I am going to talk about two of them today.

Over 20 years ago Astrid Silva crossed the Rio Grande River in a rubber raft wearing a ruffled dress and patent leather shoes. She was 4 years old. She was a baby. She doesn't remember Mexico, the country where she was born. She does remember the day she left Mexico. She cried. She cried because the only thing she could take with her was her baptismal cross and a doll. Her mother cried because although the river was narrow, she knew the current was swift and dangerous—very dangerous. Mother and daughter survived, ducked under a border fence, and began their new lives in America.

A decade passed before Astrid realized she had come to America illegally, without proper immigration papers. Her parents cautiously, slowly explained this to their daughter.

Astrid's eighth grade class was going to leave Las Vegas and take a trip back here to the Nation's Capital. Astrid couldn't go. She didn't go. Her parents were afraid to let her travel for fear she would be arrested. She was undocumented. Flying, you see, without proper identification meant running the risk of being detained or deported.

A few years later, when Astrid's friends learned to drive, Astrid once again was separated from her friends. She couldn't learn to drive. She didn't have even the right to study for the driver's test because she wasn't eligible.

When Astrid's classmates headed off to school across the country, she stayed home. She couldn't leave, so she went to school at a local community college.

Astrid has accepted every challenge, every setback with grace, knowing the obstacles would never outweigh the advantages of growing up in the United States, her home.

Four years ago Astrid's grandmother died. Neither Astrid nor her father could go to Mexico because her dad was also undocumented. They weren't able to go to the funeral. If she left the United States, she couldn't come back. She couldn't come back to the only country she had ever called home.

Then there came a time, and it came slowly, very cautiously, but finally Astrid knew it was time to raise her voice. In effect, she had had enough. It was time for her to come out of the shadows and share her story with her friends and with others. A lot of her friends were just like her, and she could share the stories with them and they could share the stories with each other. It was time for her, her classmates in many instances, and her community to learn who Astrid Silva really was. She spoke up. She told her story.

She decided to find a public place where I would be at a public event and give me the first of many heartfelt letters. I only have a few of them. A few of them didn't make it to my office, but I appreciate each and every one of those letters. Astrid became, very quickly, a DREAMer.

One of the letters I remember so well. She said in the letter words to this effect: I have never, ever as much as stolen even a piece of gum, but I feel like a criminal even though I am not a criminal. I appreciate every one of those letters she sent me because each was a reminder of what is at stake in this debate—a debate that involves our neighbors, friends, and, yes, relatives. Each note, each letter indicates that to me.

This bipartisan legislation the Senate is poised to pass in just a few minutes does not just secure our borders or just mend our broken legal immigration system; this legislation is what

Astrid has advocated, what the DREAMers and others have advocated. This legislation is what she and millions have hoped for and, yes, prayed for. The bill paves the way for people just like Astrid—people who are American in all but paperwork—to become full participants in our great society. It acknowledges the contributions of generations of immigrants who founded this country and built it into the superpower it is today, immigrants such as a man named Israel Goldfarb. He left Russia. He was Jewish, and he was being persecuted, he and his family, so he came to America as a boy. This man was my wife's dad.

I often think of him for a lot of reasons. He died as a real young man. Perhaps a lot of people think he didn't contribute much to our society, but he had one child, my wonderful wife, and now we have 16 grandchildren. So he contributed that—5 children, 16 grandchildren. On his deathbed—as I said as a young man—he gave me his ring. I have worn this ring for those many years. I take it off at night and put it on every day. This watch I have—it stopped running a couple of months ago and the jeweler said: It is broken. It is worn out. It is 50 years old. It is an old-fashioned watch. I have to wind it every morning, but they fixed it. I got the watch back and it is good for another 50 years. I could buy a different watch, but I am not one to buy a different watch. These are who I am and they remind me every day of this man who came to America as Israel Goldfarb and, similar to all of his family, changed his name to Earl Gould. My wife, when I met her as a sophomore in high school, was Landra Gould.

So this bipartisan legislation we are poised to pass in just a little while does not just secure our borders or just mend our broken legal system; this legislation that has been advocated paves the way for people such as Astrid and, frankly, people such as my father-in-law, may he rest in peace. It acknowledges the contributions of generations of immigrants who founded this country.

This historic legislation recognizes that today's immigrants came for the right reason—the same reason generations before them, the same as Israel Goldfarb—to achieve a dream we take for granted, a right to live in a land that is free.

Ted Kennedy said it best:

> From Jamestown, to the pilgrims, to the Irish, to today's workers, people have come to this country in search of opportunity. They have sought nothing more than a chance to work hard and bring a better life to themselves and their families. They came to our country with their hearts and minds full of hope.

That is what Ted Kennedy said, and the bipartisan legislation before the Senate respects and fulfills that hope—the hope and the prayers of Astrid and millions just like her. It will help 11 million people who are tired of looking over their shoulders and fearing deportation to get right with the law and start down a pathway to citizenship.

That path is going to be very hard, with penalties, fines, work, paying taxes, staying out of trouble, and learning English, but they are willing to do that, every one of them. It will mean going to the back of the line. It is tough, I repeat, but it is fair.

Above all, this legislation is very practical. It makes unprecedented investments in our borders. It cracks down on crooked employers, such as those Senator MCCAIN talked about earlier today, that exploit and abuse immigrant workers, and it reforms our legal immigration system.

This legislation will be good for America's national security as well as its economic security. This will reduce the deficit by $1 trillion. How is that for economic security.

Six years ago, the last time we considered a sweeping immigration overhaul—led by Senator MCCAIN and, yes, that good man who became Secretary of the Interior, Ken Salazar—it didn't work. The prospects for a bipartisan solution were very dim. On the last day, the immigration bill fell because of a procedural roadblock. But Ted Kennedy urged those of us who believed deeply in its cause to keep the faith. Here is what he said.

> We will be back and we will prevail. . . . America always finds a way to solve its problems, expand its frontiers, and move closer to its ideals. It is not always easy, but it is the American way.

That is what Ted Kennedy said.

Because of the Gang of 8—these courageous Senators, four Democrats and four Republicans; SCHUMER, DURBIN, MENENDEZ and, of course, the quiet one who did so much, Senator BENNET, and JOHN MCCAIN, whom I admire so much. He and I came to the Congress together more than 31 years ago. We came to the Senate together. Have we fought with each other? Oh, yes. But we care a great deal about each other. JOHN MCCAIN, no matter what happens, I will be his friend and he will be my friend. I admire what he has done. He was truly a leader, as he has been for so long in this country.

LINDSEY GRAHAM. He is up for reelection. Is this a badge of courage? It sure is. MARCO RUBIO, JEFF FLAKE, I admire every one of them. I am not going to forget about BOB CORKER. I am not going to forget about mentioning Governor HOEVEN. They allowed us to get votes. I will always admire these two, again, courageous men who stepped forward, stepped out of the crowd and did something that was right.

They are wonderful, all of them. Senator Kennedy knew the day would come when a group of Senators, divided by party but united by a love of country, would see the fight to the finish, and that is what we did. That is what these 10 men allowed us to do.

I am not going to ever forget about the man seated right behind me, Senator LEAHY. His markup will go down in history. It was why we are here today. He is my friend. As always, I will always admire how he handles everything he does but especially what he did on this bill.

So today is the day. While I am sad Senator Kennedy isn't here to see history made, I know he is looking at us proudly and loudly. Remember that voice? And he is not alone. I have no doubt my father-in-law is here in spirit. Astrid Silva is here today. I am sure she is in the gallery someplace, and she will be looking down from where she is seated when the Senate votes to expand this country's frontiers and move closer to its ideals.

But she is not here alone. She is here representing millions of others just like her—people who have hoped and prayed for this day. Their prayers have been answered. But these prayers—their hopes and prayers—have not gotten us to the finish line yet. The finish line is very close to here, down this very long hallway to the House of Representatives.

In closing, I am reminded of a poem, a song. Here is what it says:

> I can see a new day, a new day soon to be, when the storm clouds are all past and the sun shines on a world that is free. I can see a new man, a new man standing tall, with his head high and his heart proud and afraid of nothing at all. I can see a new day, a new day soon to be, when the storm clouds are all past and the sun shines on a world that is free.

Colleagues, I am confident the House of Representatives will pass this legislation because I can see a new man, a new man standing tall with his head high, his heart proud, and afraid of nothing at all.

The bill (S. 744), as amended, was ordered to a third reading and was read the third time.

The VICE PRESIDENT. The bill having been read the third time, the question is, Shall it pass?

Mr. DURBIN. I ask for the yeas and nays.

The VICE PRESIDENT. Is there a sufficient second?

There is a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

The VICE PRESIDENT.

Before the Chair announces the vote, expressions of approval or disapproval are not permitted in the Senate.

The result was announced—yeas 68, nays 32, as follows:

[Rollcall Vote No. 168 Leg.]

YEAS—68

Alexander	Cowan	Kaine
Ayotte	Donnelly	King
Baldwin	Durbin	Kirk
Baucus	Feinstein	Klobuchar
Begich	Flake	Landrieu
Bennet	Franken	Leahy
Blumenthal	Gillibrand	Levin
Boxer	Graham	Manchin
Brown	Hagan	McCain
Cantwell	Harkin	McCaskill
Cardin	Hatch	Menendez
Carper	Heinrich	Merkley
Casey	Heitkamp	Mikulski
Chiesa	Heller	Murkowski
Collins	Hirono	Murphy
Coons	Hoeven	Murray
Corker	Johnson (SD)	Nelson

Pryor	Schatz	Udall (NM)
Reed	Schumer	Warner
Reid	Shaheen	Warren
Rockefeller	Stabenow	Whitehouse
Rubio	Tester	Wyden
Sanders	Udall (CO)	

NAYS—32

Barrasso	Enzi	Portman
Blunt	Fischer	Risch
Boozman	Grassley	Roberts
Burr	Inhofe	Scott
Chambliss	Isakson	Sessions
Coats	Johanns	Shelby
Coburn	Johnson (WI)	Thune
Cochran	Lee	Toomey
Cornyn	McConnell	Vitter
Crapo	Moran	Wicker
Cruz	Paul	

The bill (S. 744), as amended, was passed, as follows:

S. 744

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Border Security, Economic Opportunity, and Immigration Modernization Act''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Statement of congressional findings.
Sec. 3. Effective date triggers.
Sec. 4. Southern Border Security Commission.
Sec. 5. Comprehensive Southern Border Security Strategy and Southern Border Fencing Strategy.
Sec. 6. Comprehensive Immigration Reform Funds.
Sec. 7. Reference to the Immigration and Nationality Act.
Sec. 8. Definitions.
Sec. 9. Grant accountability.

TITLE I—BORDER SECURITY AND OTHER PROVISIONS

Subtitle A—Border Security

Sec. 1101. Definitions.
Sec. 1102. Additional U.S. Border Patrol and U.S. Customs and Border Protection officers.
Sec. 1103. National Guard support to secure the Southern border.
Sec. 1104. Enhancement of existing border security operations.
Sec. 1105. Border security on certain Federal land.
Sec. 1106. Equipment and technology.
Sec. 1107. Access to emergency personnel.
Sec. 1108. Southwest Border Region Prosecution Initiative.
Sec. 1109. Interagency collaboration.
Sec. 1110. State Criminal Alien Assistance Program.
Sec. 1111. Use of force.
Sec. 1112. Training for border security and immigration enforcement officers.
Sec. 1113. Department of Homeland Security Border Oversight Task Force.
Sec. 1114. Ombudsman for Immigration Related Concerns of the Department of Homeland Security.
Sec. 1115. Protection of family values in apprehension programs.
Sec. 1116. Oversight of power to enter private land and stop vehicles without a warrant at the Northern border.
Sec. 1117. Reports.
Sec. 1118. Severability and delegation.
Sec. 1119. Prohibition on new land border crossing fees.
Sec. 1120. Human Trafficking Reporting.
Sec. 1121. Rule of construction.
Sec. 1122. Limitations on dangerous deportation practices.
Sec. 1123. Maximum allowable costs of salaries of contractor employees.

Subtitle B—Other Matters

Sec. 1201. Removal of nonimmigrants who overstay their visas.
Sec. 1202. Visa overstay notification pilot program.
Sec. 1203. Preventing unauthorized immigration transiting through Mexico.

TITLE II—IMMIGRANT VISAS

Subtitle A—Registration and Adjustment of Registered Provisional Immigrants

Sec. 2101. Registered provisional immigrant status.
Sec. 2102. Adjustment of status of registered provisional immigrants.
Sec. 2103. The DREAM Act.
Sec. 2104. Additional requirements.
Sec. 2105. Criminal penalty.
Sec. 2106. Grant program to assist eligible applicants.
Sec. 2107. Conforming amendments to the Social Security Act.
Sec. 2108. Government contracting and acquisition of real property interest.
Sec. 2109. Long-term legal residents of the Commonwealth of the Northern Mariana Islands.
Sec. 2110. Rulemaking.
Sec. 2111. Statutory construction.

Subtitle B—Agricultural Worker Program

Sec. 2201. Short title.
Sec. 2202. Definitions.

CHAPTER 1—PROGRAM FOR EARNED STATUS ADJUSTMENT OF AGRICULTURAL WORKERS

SUBCHAPTER A—BLUE CARD STATUS

Sec. 2211. Requirements for blue card status.
Sec. 2212. Adjustment to permanent resident status.
Sec. 2213. Use of information.
Sec. 2214. Reports on blue cards.
Sec. 2215. Authorization of appropriations.

SUBCHAPTER B—CORRECTION OF SOCIAL SECURITY RECORDS

Sec. 2221. Correction of social security records.

CHAPTER 2—NONIMMIGRANT AGRICULTURAL VISA PROGRAM

Sec. 2231. Nonimmigrant classification for nonimmigrant agricultural workers.
Sec. 2232. Establishment of nonimmigrant agricultural worker program.
Sec. 2233. Transition of H–2A Worker Program.
Sec. 2234. Reports to Congress on nonimmigrant agricultural workers.

CHAPTER 3—OTHER PROVISIONS

Sec. 2241. Rulemaking.
Sec. 2242. Reports to Congress.
Sec. 2243. Benefits integrity programs.
Sec. 2244. Effective date.

Subtitle C—Future Immigration

Sec. 2301. Merit-based points track one.
Sec. 2302. Merit-based track two.
Sec. 2303. Repeal of the diversity visa program.
Sec. 2304. Worldwide levels and recapture of unused immigrant visas.
Sec. 2305. Reclassification of spouses and minor children of lawful permanent residents as immediate relatives.
Sec. 2306. Numerical limitations on individual foreign states.
Sec. 2307. Allocation of immigrant visas.
Sec. 2308. Inclusion of communities adversely affected by a recommendation of the Defense Base Closure and Realignment Commission as targeted employment areas.
Sec. 2309. V nonimmigrant visas.
Sec. 2310. Fiancée and fiancé child status protection.
Sec. 2311. Equal treatment for all stepchildren.
Sec. 2312. Modification of adoption age requirements.
Sec. 2313. Relief for orphans, widows, and widowers.
Sec. 2314. Discretionary authority with respect to removal, deportation, or inadmissibility of citizen and resident immediate family members.
Sec. 2315. Waivers of inadmissibility.
Sec. 2316. Continuous presence.
Sec. 2317. Global health care cooperation.
Sec. 2318. Extension and improvement of the Iraqi special immigrant visa program.
Sec. 2319. Extension and improvement of the Afghan special immigrant visa program.
Sec. 2320. Special Immigrant Nonminister Religious Worker Program.
Sec. 2321. Special immigrant status for certain surviving spouses and children.
Sec. 2322. Reunification of certain families of Filipino veterans of World War II.
Sec. 2323. Ensuring compliance with restrictions on welfare and public benefits for aliens.

Subtitle D—Conrad State 30 and Physician Access

Sec. 2401. Conrad State 30 Program.
Sec. 2402. Retaining physicians who have practiced in medically underserved communities.
Sec. 2403. Employment protections for physicians.
Sec. 2404. Allotment of Conrad 30 waivers.
Sec. 2405. Amendments to the procedures, definitions, and other provisions related to physician immigration.

Subtitle E—Integration

Sec. 2501. Definitions.

CHAPTER 1—CITIZENSHIP AND NEW AMERICANS

SUBCHAPTER A—OFFICE OF CITIZENSHIP AND NEW AMERICANS

Sec. 2511. Office of Citizenship and New Americans.

SUBCHAPTER B—TASK FORCE ON NEW AMERICANS

Sec. 2521. Establishment.
Sec. 2522. Purpose.
Sec. 2523. Membership.
Sec. 2524. Functions.

CHAPTER 2—PUBLIC-PRIVATE PARTNERSHIP

Sec. 2531. Establishment of United States Citizenship Foundation.
Sec. 2532. Funding.
Sec. 2533. Purposes.
Sec. 2534. Authorized activities.
Sec. 2535. Council of directors.
Sec. 2536. Powers.
Sec. 2537. Initial Entry, Adjustment, and Citizenship Assistance Grant Program.
Sec. 2538. Pilot program to promote immigrant integration at State and local levels.
Sec. 2539. Naturalization ceremonies.

CHAPTER 3—FUNDING

Sec. 2541. Authorization of appropriations.

CHAPTER 4—REDUCE BARRIERS TO NATURALIZATION

Sec. 2551. Waiver of English requirement for senior new Americans.
Sec. 2552. Filing of applications not requiring regular internet access.
Sec. 2553. Permissible use of assisted housing by battered immigrants.
Sec. 2554. United States citizenship for internationally adopted individuals.
Sec. 2555. Treatment of certain persons as having satisfied English and civics, good moral character, and honorable service and discharge requirements for naturalization.

TITLE III—INTERIOR ENFORCEMENT

Subtitle A—Employment Verification System

Sec. 3101. Unlawful employment of unauthorized aliens.
Sec. 3102. Increasing security and integrity of social security cards.
Sec. 3103. Increasing security and integrity of immigration documents.
Sec. 3104. Responsibilities of the Social Security Administration.

Sec. 3105. Improved prohibition on discrimination based on national origin or citizenship status.
Sec. 3106. Rulemaking.
Sec. 3107. Office of the Small Business and Employee Advocate.

Subtitle B—Protecting United States Workers

Sec. 3201. Protections for victims of serious violations of labor and employment law or crime.
Sec. 3202. Employment Verification System Education Funding.
Sec. 3203. Directive to the United States Sentencing Commission.

Subtitle C—Other Provisions

Sec. 3301. Funding.
Sec. 3302. Effective date.
Sec. 3303. Mandatory exit system.
Sec. 3304. Identity-theft resistant manifest information for passengers, crew, and non-crew onboard departing aircraft and vessels.
Sec. 3305. Profiling.
Sec. 3306. Enhanced penalties for certain drug offenses on Federal lands.

Subtitle D—Asylum and Refugee Provisions

Sec. 3400. Short title.
Sec. 3401. Time limits and efficient adjudication of genuine asylum claims.
Sec. 3402. Refugee family protections.
Sec. 3403. Clarification on designation of certain refugees.
Sec. 3404. Asylum determination efficiency.
Sec. 3405. Stateless persons in the United States.
Sec. 3406. U visa accessibility.
Sec. 3407. Work authorization while applications for U and T visas are pending.
Sec. 3408. Representation at overseas refugee interviews.
Sec. 3409. Law enforcement and national security checks.
Sec. 3410. Tibetan refugee assistance.
Sec. 3411. Termination of asylum or refugee status.
Sec. 3412. Asylum clock.

Subtitle E—Shortage of Immigration Court Resources for Removal Proceedings

Sec. 3501. Shortage of immigration court personnel for removal proceedings.
Sec. 3502. Improving immigration court efficiency and reducing costs by increasing access to legal information.
Sec. 3503. Office of Legal Access Programs.
Sec. 3504. Codifying Board of Immigration Appeals.
Sec. 3505. Improved training for immigration judges and Board Members.
Sec. 3506. Improved resources and technology for immigration courts and Board of Immigration Appeals.
Sec. 3507. Transfer of responsibility for trafficking protections.

Subtitle F—Prevention of Trafficking in Persons and Abuses Involving Workers Recruited Abroad

Sec. 3601. Definitions.
Sec. 3602. Disclosure.
Sec. 3603. Prohibition on discrimination.
Sec. 3604. Recruitment fees.
Sec. 3605. Registration.
Sec. 3606. Bonding requirement.
Sec. 3607. Maintenance of lists.
Sec. 3608. Amendment to the Immigration and Nationality Act.
Sec. 3609. Responsibilities of Secretary of State.
Sec. 3610. Enforcement provisions.
Sec. 3611. Detecting and preventing child trafficking.
Sec. 3612. Protecting child trafficking victims.
Sec. 3613. Rule of construction.
Sec. 3614. Regulations.

Subtitle G—Interior Enforcement

Sec. 3701. Criminal street gangs.
Sec. 3702. Banning habitual drunk drivers from the United States.
Sec. 3703. Sexual abuse of a minor.
Sec. 3704. Illegal entry.
Sec. 3705. Reentry of removed alien.
Sec. 3706. Penalties relating to vessels and aircraft.
Sec. 3707. Reform of passport, visa, and immigration fraud offenses.
Sec. 3708. Combating schemes to defraud aliens.
Sec. 3709. Inadmissibility and removal for passport and immigration fraud offenses.
Sec. 3710. Directives related to passport and document fraud.
Sec. 3711. Inadmissible aliens.
Sec. 3712. Organized and abusive human smuggling activities.
Sec. 3713. Preventing criminals from renouncing citizenship during wartime.
Sec. 3714. Diplomatic security service.
Sec. 3715. Secure alternatives programs.
Sec. 3716. Oversight of detention facilities.
Sec. 3717. Procedures for bond hearings and filing of notices to appear.
Sec. 3718. Sanctions for countries that delay or prevent repatriation of their nationals.
Sec. 3719. Gross violations of human rights.
Sec. 3720. Reporting and record keeping requirements relating to the detention of aliens.
Sec. 3721. Powers of immigration officers and employees at sensitive locations.

Subtitle H—Protection of Children Affected by Immigration Enforcement

Sec. 3801. Short title.
Sec. 3802. Definitions.
Sec. 3803. Apprehension procedures for immigration enforcement-related activities.
Sec. 3804. Access to children, State and local courts, child welfare agencies, and consular officials.
Sec. 3805. Mandatory training.
Sec. 3806. Rulemaking.
Sec. 3807. Severability.

Subtitle I—Providing Tools To Exchange Visitors and Exchange Visitor Sponsors To Protect Exchange Visitor Program Participants and Prevent Trafficking

Sec. 3901. Definitions.
Sec. 3902. Disclosure.
Sec. 3903. Prohibition on discrimination.
Sec. 3904. Fees.
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Sec. 3908. Amendment to the Immigration and Nationality Act.
Sec. 3909. Responsibilities of Secretary of State.
Sec. 3910. Enforcement provisions.
Sec. 3911. Audits and transparency.

TITLE IV—REFORMS TO NONIMMIGRANT VISA PROGRAMS

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Sec. 4101. Market-based H–1B Visa limits.
Sec. 4102. Employment authorization for dependents of employment-based nonimmigrants.
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Sec. 4104. STEM education and training.
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Subtitle B—H–1B Visa Fraud and Abuse Protections

CHAPTER 1—H–1B EMPLOYER APPLICATION REQUIREMENTS

Sec. 4211. Modification of application requirements.
Sec. 4212. Requirements for admission of nonimmigrant nurses in health professional shortage areas.
Sec. 4213. New application requirements.
Sec. 4214. Application review requirements.

CHAPTER 2—INVESTIGATION AND DISPOSITION OF COMPLAINTS AGAINST H–1B EMPLOYERS

Sec. 4221. General modification of procedures for investigation and disposition.
Sec. 4222. Investigation, working conditions, and penalties.
Sec. 4223. Initiation of investigations.
Sec. 4224. Information sharing.
Sec. 4225. Transparency of high-skilled immigration programs.

CHAPTER 3—OTHER PROTECTIONS

Sec. 4231. Posting available positions through the Department of Labor.
Sec. 4232. Requirements for information for H–1B and L nonimmigrants.
Sec. 4233. Filing fee for H–1B-dependent employers.
Sec. 4234. Providing premium processing of employment-based visa petitions.
Sec. 4235. Technical correction.
Sec. 4236. Application.
Sec. 4237. Portability for beneficiaries of immigrant petitions.

Subtitle C—L Visa Fraud and Abuse Protections

Sec. 4301. Prohibition on outplacement of L nonimmigrants.
Sec. 4302. L employer petition requirements for employment at new offices.
Sec. 4303. Cooperation with Secretary of State.
Sec. 4304. Limitation on employment of L nonimmigrants.
Sec. 4305. Filing fee for L nonimmigrants.
Sec. 4306. Investigation and disposition of complaints against L nonimmigrant employers.
Sec. 4307. Penalties.
Sec. 4308. Prohibition on retaliation against L nonimmigrants.
Sec. 4309. Reports on L nonimmigrants.
Sec. 4310. Application.
Sec. 4311. Report on L blanket petition process.

Subtitle D—Other Nonimmigrant Visas

Sec. 4401. Nonimmigrant visas for students.
Sec. 4402. Classification for specialty occupation workers from free trade countries.
Sec. 4403. E–visa reform.
Sec. 4404. Other changes to nonimmigrant visas.
Sec. 4405. Treatment of nonimmigrants during adjudication of application.
Sec. 4406. Nonimmigrant elementary and secondary school students.
Sec. 4407. J–1 Summer Work Travel Visa Exchange Visitor Program fee.
Sec. 4408. J visa eligibility.
Sec. 4409. F–1 Visa fee.
Sec. 4410. Pilot program for remote B nonimmigrant visa interviews.
Sec. 4411. Providing consular officers with access to all terrorist databases and requiring heightened scrutiny of applications for admission from persons listed on terrorist databases.
Sec. 4412. Visa revocation information.
Sec. 4413. Status for certain battered spouses and children.
Sec. 4414. Nonimmigrant crewmen landing temporarily in Hawaii.
Sec. 4415. Treatment of compact of free association migrants.
Sec. 4416. International participation in the performing arts.
Sec. 4417. Limitation on eligibility of certain nonimmigrants for health-related programs.

Subtitle E—JOLT Act

Sec. 4501. Short titles.
Sec. 4502. Premium processing.
Sec. 4503. Encouraging Canadian tourism to the United States.
Sec. 4504. Retiree visa.
Sec. 4505. Incentives for foreign visitors visiting the United States during low peak seasons.

Sec. 4506. Visa waiver program enhanced security and reform.
Sec. 4507. Expediting entry for priority visitors.
Sec. 4508. Visa processing.
Sec. 4509. B Visa fee.
Subtitle F—Reforms to the H–2B Visa Program
Sec. 4601. Extension of returning worker exemption to H–2B numerical limitation.
Sec. 4602. Other requirements for H–2B employers.
Sec. 4603. Executives and managers.
Sec. 4604. Honoraria.
Sec. 4605. Nonimmigrants participating in relief operations.
Sec. 4606. Nonimmigrants performing maintenance on common carriers.
Sec. 4607. American jobs in American forests.
Subtitle G—W Nonimmigrant Visas
Sec. 4701. Bureau of Immigration and Labor Market Research.
Sec. 4702. Nonimmigrant classification for W nonimmigrants.
Sec. 4703. Admission of W nonimmigrant workers.
Subtitle H—Investing in New Venture, Entrepreneurial Startups, and Technologies
Sec. 4801. Nonimmigrant INVEST visas.
Sec. 4802. INVEST immigrant visa.
Sec. 4803. Administration and oversight.
Sec. 4804. Permanent authorization of EB–5 Regional Center Program.
Sec. 4805. Conditional permanent resident status for certain employment-based immigrants, spouses, and children.
Sec. 4806. EB–5 Visa reforms.
Sec. 4807. Authorization of appropriations.
Subtitle I—Student and Exchange Visitor Programs
Sec. 4901. Short title.
Sec. 4902. SEVIS and SEVP defined.
Sec. 4903. Increased criminal penalties.
Sec. 4904. Accreditation requirement.
Sec. 4905. Other academic institutions.
Sec. 4906. Penalties for failure to comply with SEVIS reporting requirements.
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Sec. 4909. Revocation of authority to issue Form I–20 of flight schools not certified by the Federal Aviation Administration.
Sec. 4910. Revocation of accreditation.
Sec. 4911. Report on risk assessment.
Sec. 4912. Implementation of GAO recommendations.
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TITLE V—JOBS FOR YOUTH
Sec. 5101. Definitions.
Sec. 5102. Establishment of Youth Jobs Fund.
Sec. 5103. Summer employment and year-round employment opportunities for low-income youth.
Sec. 5104. General requirements.
Sec. 5105. Visa surcharge.

SEC. 2. STATEMENT OF CONGRESSIONAL FINDINGS.

Congress makes the following findings:

(1) The passage of this Act recognizes that the primary tenets of its success depend on securing the sovereignty of the United States of America and establishing a coherent and just system for integrating those who seek to join American society.

(2) We have a right, and duty, to maintain and secure our borders, and to keep our country safe and prosperous. As a Nation founded, built and sustained by immigrants we also have a responsibility to harness the power of that tradition in a balanced way that secures a more prosperous future for America.

(3) We have always welcomed newcomers to the United States and will continue to do so. But in order to qualify for the honor and privilege of eventual citizenship, our laws must be followed. The world depends on America to be strong—economically, militarily and ethically. The establishment of a stable, just, and efficient immigration system only supports those goals. As a Nation, we have the right and responsibility to make our borders safe, to establish clear and just rules for seeking citizenship, to control the flow of legal immigration, and to eliminate illegal immigration, which in some cases has become a threat to our national security.

(4) All parts of this Act are premised on the right and need of the United States to achieve these goals, and to protect its borders and maintain its sovereignty.

SEC. 3. EFFECTIVE DATE TRIGGERS.

(a) DEFINITIONS.—In this section:

(1) COMMISSION.—The term ''Commission'' means the Southern Border Security Commission established pursuant to section 4.

(2) COMPREHENSIVE SOUTHERN BORDER SECURITY STRATEGY.—The term ''Comprehensive Southern Border Security Strategy'' means the strategy established by the Secretary pursuant to section 5(a) to achieve and maintain an effectiveness rate of 90 percent or higher in all border sectors.

(3) EFFECTIVE CONTROL.—The term ''effective control'' means the ability to achieve and maintain, in a Border Patrol sector—

(A) persistent surveillance; and

(B) an effectiveness rate of 90 percent or higher.

(4) EFFECTIVENESS RATE.—The ''effectiveness rate'', in the case of a border sector, is the percentage calculated by dividing the number of apprehensions and turn backs in the sector during a fiscal year by the total number of illegal entries in the sector during such fiscal year.

(5) SOUTHERN BORDER.—The term ''Southern border'' means the international border between the United States and Mexico.

(6) SOUTHERN BORDER FENCING STRATEGY.—The term ''Southern Border Fencing Strategy'' means the strategy established by the Secretary pursuant to section 5(b) that identifies where fencing (including double-layer fencing), infrastructure, and technology, including at ports of entry, should be deployed along the Southern border.

(b) BORDER SECURITY GOAL.—The Department's border security goal is to achieve and maintain effective control in all border sectors along the Southern border.

(c) TRIGGERS.—

(1) PROCESSING OF APPLICATIONS FOR REGISTERED PROVISIONAL IMMIGRANT STATUS.—Not earlier than the date upon which the Secretary has submitted to Congress the Notice of Commencement of implementation of the Comprehensive Southern Border Security Strategy and the Southern Border Fencing Strategy under section 5 of this Act, the Secretary may commence processing applications for registered provisional immigrant status pursuant to section 245B of the Immigration and Nationality Act, as added by section 2101 of this Act.

(2) ADJUSTMENT OF STATUS OF REGISTERED PROVISIONAL IMMIGRANTS.—

(A) IN GENERAL.—Except as provided in subparagraph (B), the Secretary may not adjust the status of aliens who have been granted registered provisional immigrant status, except for aliens granted blue card status under section 2201 of this Act or described in section 245D(b) of the Immigration and Nationality Act, until 6 months after the date on which the Secretary, after consultation with the Attorney General, the Secretary of Defense, the Inspector General of the Department, and the Comptroller General of the United States, submits to the President and Congress a written certification that—

(i) the Comprehensive Southern Border Security Strategy—

(I) has been submitted to Congress and includes minimum requirements described under paragraph (3), (4), and (5) of section 5(a);

(II) is deployed and operational (for purposes of this clause the term ''operational'' means the technology, infrastructure, and personnel, deemed necessary by the Secretary, in consultation with the Attorney General and the Secretary of Defense, and the Comptroller General, and includes the technology described under section 5(a)(3) to achieve effective control of the Southern border, has been procured, funded, and is in current use by the Department to achieve effective control, except in the event of routine maintenance, de minimis non-deployment, or natural disaster that would prevent the use of such assets);

(ii) the Southern Border Fencing Strategy has been submitted to Congress and implemented, and as a result the Secretary will certify that there is in place along the Southern Border no fewer than 700 miles of pedestrian fencing which will include replacement of all currently existing vehicle fencing on non-tribal lands on the Southern Border with pedestrian fencing where possible, and after this has been accomplished may include a second layer of pedestrian fencing in those locations along the Southern Border which the Secretary deems necessary or appropriate;

(iii) the Secretary has implemented the mandatory employment verification system required by section 274A of the Immigration and Nationality Act (8 U.S.C.1324a), as amended by section 3101, for use by all employers to prevent unauthorized workers from obtaining employment in the United States;

(iv) the Secretary is using the electronic exit system created by section 3303(a)(1) at all international air and sea ports of entry within the United States where U.S. Customs and Border Protection officers are currently deployed; and

(v) no fewer than 38,405 trained full-time active duty U.S. Border Patrol agents are deployed, stationed, and maintained along the Southern Border.

(B) EXCEPTION.—The Secretary shall permit registered provisional immigrants to apply for an adjustment to lawful permanent resident status if—

(i)(I) litigation or a force majeure has prevented 1 or more of the conditions described in clauses (i) through (iv) of subparagraph (A) from being implemented; or

(II) the implementation of subparagraph (A) has been held unconstitutional by the Supreme Court of the United States or the Supreme Court has granted certiorari to the litigation on the constitutionality of implementation of subparagraph (A); and

(ii) 10 years have elapsed since the date of the enactment of this Act.

(d) WAIVER OF LEGAL REQUIREMENTS NECESSARY FOR IMPROVEMENT AT BORDERS.—Notwithstanding any other provision of law, the Secretary is authorized to waive all legal requirements that the Secretary determines to be necessary to ensure expeditious construction of the barriers, roads, or other physical tactical infrastructure needed to fulfill the requirements under this section. Any determination by the Secretary under this section shall be effective upon publication in the Federal Register of a notice that specifies each law that is being waived and the Secretary's explanation for the determination to waive that law. The waiver shall expire on the later of the date on which the Secretary submits the written certification that the

Southern Border Fencing Strategy is substantially completed as specified in subsection (c)(2)(A)(ii) or the date that the Secretary submits the written certification that the Comprehensive Southern Border Security Strategy is substantially deployed and substantially operational as specified in subsection (c)(2)(A)(i).

(e) FEDERAL COURT REVIEW.—

(1) IN GENERAL.—The district courts of the United States shall have exclusive jurisdiction to hear all causes or claims arising from any action undertaken, or any decision made, by the Secretary under subsection (d). A cause of action or claim may only be brought alleging a violation of the Constitution of the United States. The court does not have jurisdiction to hear any claim not specified in this paragraph.

(2) TIME FOR FILING COMPLAINT.—If a cause or claim under paragraph (1) is not filed within 60 days after the date of the contested action or decision by the Secretary, the claim shall be barred.

(3) APPELLATE REVIEW.—An interlocutory or final judgment, decree, or order of the district court may be reviewed only upon petition for a writ of certiorari to the Supreme Court of the United States.

SEC. 4. SOUTHERN BORDER SECURITY COMMISSION.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—No later than the date that is 1 year after the date of the enactment of this Act, there is established a commission to be known as the ''Southern Border Security Commission'' (referred to in this section as the ''Commission'').

(2) EXPENDITURES AND REPORT.—Only if the Secretary cannot certify that the Department has achieved effective control in all border sectors for at least 1 fiscal year before the date that is 5 years after the date of the enactment of this Act—

(A) the report described in subsection (d) shall be submitted; and

(B) 60 days after such report is submitted, the funds made available in section 6(a)(3)(A)(iii) may be expended (except as provided in subsection (i)).

(b) COMPOSITION.—

(1) IN GENERAL.—The Commission shall be composed of—

(A) 2 members who shall be appointed by the President;

(B) 2 members who shall be appointed by the President pro tempore of the Senate, of which—

(i) 1 shall be appointed upon the recommendation of the leader in the Senate of the political party that is not the political party of the President; and

(ii) 1 shall be appointed upon the recommendation of the leader in the Senate of the other political party;

(C) 2 members who shall be appointed by the Speaker of the House of Representatives, of which—

(i) 1 shall be appointed upon the recommendation of the leader in the House of Representatives of the political party that is not the political party of the President; and

(ii) 1 shall be appointed upon the recommendation of the leader in the House of Representatives of the other political party; and

(D) 5 members, consisting of 1 member from the Southwestern State of Nevada and 1 member from each of the States along the Southern border, who shall be—

(i) the Governor of such State; or

(ii) appointed by the Governor of each such State.

(2) QUALIFICATIONS FOR APPOINTMENT.—The members of the Commission shall be distinguished individuals noted for their knowledge and experience in the field of border security at the Federal, State, or local level and may also include reputable individuals who are landowners in the Southern border area with first-hand experience with border issues.

(3) TIME OF APPOINTMENT.—The appointments required by paragraph (1) shall be made not later than 1 year after the date of the enactment of this Act.

(4) CHAIR.—At the first meeting of the Commission, a majority of the members of the Commission present and voting shall elect the Chair of the Commission.

(5) VACANCIES.—Any vacancy of the Commission shall not affect its powers, but shall be filled in the manner in which the original appointment was made.

(6) RULES.—The Commission shall establish the rules and procedures of the Commission which shall require the approval of at least 6 members of the Commission.

(c) DUTIES.—

(1) IN GENERAL.—The Commission's primary responsibility shall be to make recommendations to the President, the Secretary, and Congress on policies to achieve and maintain the border security goal specified in section 3(b) by achieving and maintaining—

(A) the capability to engage in, and engaging in, persistent surveillance in border sectors along the Southern border; and

(B) an effectiveness rate of 90 percent or higher in all border sectors along the Southern border.

(2) PUBLIC HEARINGS.—

(A) IN GENERAL.—The Commission shall convene at least 1 public hearing each year on border security.

(B) REPORT.—The Commission shall provide a summary of each hearing convened pursuant to subparagraph (A) to the entities set out in subparagraphs (A) through (G) of section 5(a)(1).

(d) REPORT.—If required pursuant to subsection (a)(2)(B) and in no case earlier than the date that is 5 years after the date of the enactment of this Act, the Commission shall submit to the President, the Secretary, and Congress a report setting forth specific recommendations for policies for achieving and maintaining the border security goals specified in subsection (c). The report shall include, at a minimum, recommendations for the personnel, infrastructure, technology, and other resources required to achieve and maintain an effectiveness rate of 90 percent or higher in all border sectors.

(e) TRAVEL EXPENSES.—Members of the Commission shall be allowed travel expenses, including per diem in lieu of subsistence rates authorized for employees of agencies under subchapter I of chapter 57 of title 5, United States Code, while away from their homes or regular places of business in the performance of services for the Commission.

(f) ADMINISTRATIVE SUPPORT.—The Secretary shall provide the Commission such staff and administrative services as may be necessary and appropriate for the Commission to perform its functions. Any employee of the executive branch of Government may be detailed to the Commission without reimbursement to the agency of that employee and such detail shall be without interruption or loss of civil service or status or privilege.

(g) COMPTROLLER GENERAL REVIEW.—The Comptroller General of the United States shall review the recommendations in the report submitted under subsection (d) in order to determine—

(1) whether any of the recommendations are likely to achieve effective control in all border sectors;

(2) which recommendations are most likely to achieve effective control; and

(3) whether such recommendations are feasible within existing budget constraints.

(h) TERMINATION.—The Commission shall terminate 10 years after the date of the enactment of this Act.

(i) FUNDING.—The amounts made available under section 6(a)(3)(A)(iii) to carry out programs, projects, and activities recommended by the Commission may not be expended prior to the date that is 60 days after a report required by subsection (d) is submitted and, in no case, prior to 60 days after the date that is 5 years after the date of the enactment of this Act, except that funds made available under section 6(a)(3)(A)(iii) may be used for minimal administrative expenses directly associated with convening the public hearings required by subsection (c)(2)(A) and preparing and providing summaries of such hearings required by subsection (c)(2)(B).

SEC. 5. COMPREHENSIVE SOUTHERN BORDER SECURITY STRATEGY AND SOUTHERN BORDER FENCING STRATEGY.

(a) COMPREHENSIVE SOUTHERN BORDER SECURITY STRATEGY.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary, in consultation with the Attorney General and the Secretary of Defense, shall submit a strategy, to be known as the ''Comprehensive Southern Border Security Strategy'', for achieving and maintaining effective control between and at the ports of entry in all border sectors along the Southern border, to—

(A) the Committee on Homeland Security and Governmental Affairs of the Senate;

(B) the Committee on Homeland Security of the House of Representatives;

(C) the Committee on Appropriations of the Senate;

(D) the Committee on Appropriations of the House of Representatives;

(E) the Committee on the Judiciary of the Senate;

(F) the Committee on the Judiciary of the House of Representatives;

(G) the Committee on Armed Services of the Senate;

(H) the Committee on Armed Services of the House of Representatives; and

(I) the Comptroller General of the United States.

(2) ELEMENTS.—The Comprehensive Southern Border Security Strategy shall specify—

(A) the priorities that must be met for the strategy to be successfully executed; and

(B) the capabilities required to meet each of the priorities referred to in subparagraph (A), including—

(i) surveillance and detection capabilities developed or used by the various Departments and Agencies for the Federal government for the purposes of enhancing the functioning and operational capability to conduct continuous and integrated manned or unmanned, monitoring, sensing, or surveillance of 100 percent of Southern border mileage or the immediate vicinity of the Southern border;

(ii) the requirement for stationing sufficient Border Patrol agents and Customs and Border Protection officers between and at ports of entry along the Southern border; and

(iii) the necessary and qualified staff and equipment to fully utilize available unarmed, unmanned aerial systems and unarmed, fixed wing aircraft.

(3) MINIMUM REQUIREMENTS.—The Comprehensive Southern Border Security Strategy shall require, at a minimum, the deployment of the following technologies for each Border Patrol sector along the Southern Border:

(A) ARIZONA (YUMA AND TUCSON SECTORS).—For Arizona (Yuma and Tucson Sectors) between ports of entry the following:

(i) 50 integrated fixed towers.

(ii) 73 fixed camera systems (with relocation capability), which include Remote Video Surveillance Systems.

(iii) 28 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(iv) 685 unattended ground sensors, including seismic, imaging, and infrared.

(v) 22 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(B) SAN DIEGO, CALIFORNIA.—For San Diego, California the following:

(i) BETWEEN PORTS OF ENTRY.—Between ports of entry the following:

(I) 3 integrated fixed towers.

(II) 41 fixed camera systems (with relocation capability), which include Remote Video Surveillance Systems.

(III) 14 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(IV) 393 unattended ground sensors, including seismic, imaging, and infrared.

(V) 83 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 2 non-intrusive inspection systems, including fixed and mobile.

(II) 1 radiation portal monitor.

(III) 1 littoral detection and classification network

(C) EL CENTRO, CALIFORNIA.—For El Centro, California the following:

(i) BETWEEN PORTS OF ENTRY.—Between ports of entry the following:

(I) 66 fixed camera systems (with relocation capability), which include Remote Video Surveillance Systems.

(II) 18 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(III) 85 unattended ground sensors, including seismic, imaging, and infrared.

(IV) 57 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(V) 2 sensor repeaters.

(VI) 2 communications repeaters.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 5 fiber-optic tank inspection scopes.

(II) 1 license plate reader.

(III) 1 backscatter.

(IV) 2 portable contraband detectors.

(V) 2 radiation isotope identification devices.

(VI) 8 radiation isotope identification devices updates.

(VII) 3 personal radiation detectors.

(VIII) 16 mobile automated targeting systems.

(D) EL PASO, TEXAS.—For El Paso, Texas the following:

(i) BETWEEN PORTS OF ENTRY.—Between ports of entry the following:

(I) 27 integrated fixed towers.

(II) 71 fixed camera systems (with relocation capability), which include Remote Video Surveillance Systems.

(III) 31 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(IV) 170 unattended ground sensors, including seismic, imaging, and infrared.

(V) 24 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(VI) 1 communications repeater.

(VII) 1 sensor repeater.

(VIII) 2 camera refresh.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 4 non-intrusive inspection systems, including fixed and mobile.

(II) 23 fiber-optic tank inspection scopes.

(III) 1 portable contraband detectors.

(IV) 19 radiation isotope identification devices updates.

(V) 1 real time radioscopy version 4.

(VI) 8 personal radiation detectors.

(E) BIG BEND, TEXAS.—For Big Bend, Texas the following:

(i) BETWEEN PORTS OF ENTRY.—Between ports of entry the following:

(I) 7 fixed camera systems (with relocation capability), which include remote video surveillance systems.

(II) 29 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(III) 1105 unattended ground sensors, including seismic, imaging, and infrared.

(IV) 131 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(V) 1 mid-range camera refresh.

(VI) 1 improved surveillance capabilities for existing aerostat.

(VII) 27 sensor repeaters.

(VIII) 27 communications repeaters.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 7 fiber-optic tank inspection scopes.

(II) 3 license plate readers, including mobile, tactical, and fixed.

(III) 12 portable contraband detectors.

(IV) 7 radiation isotope identification devices.

(V) 12 radiation isotope identification devices updates.

(VI) 254 personal radiation detectors.

(VII) 19 mobile automated targeting systems.

(F) DEL RIO, TEXAS.—For Del Rio, Texas the following:

(i) BETWEEN PORTS OF ENTRY.—Between ports of entry the following:

(I) 3 integrated fixed towers.

(II) 74 fixed camera systems (with relocation capability), which include remote video surveillance systems.

(III) 47 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(IV) 868 unattended ground sensors, including seismic, imaging, and infrared.

(V) 174 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(VI) 26 mobile/handheld inspection scopes and sensors for checkpoints.

(VII) 1 improved surveillance capabilities for existing aerostat.

(VIII) 21 sensor repeaters.

(IX) 21 communications repeaters.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 4 license plate readers, including mobile, tactical, and fixed.

(II) 13 radiation isotope identification devices updates.

(III) 3 mobile automated targeting systems.

(IV) 6 land automated targeting systems.

(G) LAREDO, TEXAS.—For Laredo, Texas the following:

(i) BETWEEN THE PORTS OF ENTRY.—Between ports of entry the following:

(I) 2 integrated fixed towers.

(II) 69 fixed camera systems (with relocation capability), which include remote video surveillance systems.

(III) 38 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(IV) 573 unattended ground sensors, including seismic, imaging, and infrared.

(V) 124 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(VI) 38 sensor repeaters.

(VII) 38 communications repeaters.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 1 non-intrusive inspection system.

(II) 7 fiber-optic tank inspection scopes.

(III) 19 license plate readers, including mobile, tactical, and fixed.

(IV) 2 backscatter.

(V) 14 portable contraband detectors.

(VI) 2 radiation isotope identification devices.

(VII) 18 radiation isotope identification devices updates.

(VIII) 16 personal radiation detectors.

(IX) 24 mobile automated targeting systems.

(X) 3 land automated targeting systems.

(H) RIO GRANDE VALLEY.—For Rio Grande Valley the following:

(i) BETWEEN PORTS OF ENTRY.—Between ports of entry the following:

(I) 1 integrated fixed towers.

(II) 87 fixed camera systems (with relocation capability), which include remote video surveillance systems.

(III) 27 mobile surveillance systems, which include mobile video surveillance systems, agent-portable surveillance systems, and mobile surveillance capability systems.

(IV) 716 unattended ground sensors, including seismic, imaging, and infrared.

(V) 205 handheld equipment devices, including handheld thermal imaging systems and night vision goggles.

(VI) 4 sensor repeaters.

(VII) 1 communications repeater.

(VIII) 2 camera refresh.

(ii) AT POINTS OF ENTRY, CHECKPOINTS.—At points of entry, checkpoints the following:

(I) 1 mobile non-intrusive inspection system.

(II) 11 fiberoptic tank inspection scopes.

(III) 1 license plate reader.

(IV) 2 backscatter.

(V) 2 card reader system.

(VI) 8 portable contraband detectors.

(VII) 5 radiation isotope identification devices.

(VIII) 18 radiation isotope identification devices updates.

(IX) 135 personal radiation detectors.

(iii) AIR AND MARINE ACROSS THE SOUTHWEST BORDER.—For air and marine across the Southwest border the following:

(I) 4 unmanned aircraft systems.

(II) 6 VADER radar systems.

(III) 17 UH–1N helicopters.

(IV) 8 C–206H aircraft upgrades.

(V) 8 AS–350 light enforcement helicopters.

(VI) 10 Blackhawk helicopter 10 A–L conversions, 5 new Blackhawk M Model.

(VII) 30 marine vessels.

(4) REDEPLOYMENT OF RESOURCES TO ACHIEVE EFFECTIVE CONTROL.—The Secretary may reallocate the personnel, infrastructure, and technologies required in the Southern Border Security Strategy to achieve effective control of the Southern border.

(5) ALTERNATE TECHNOLOGY.—If the Secretary determines that an alternate or new technology is at least as effective as the technologies described in paragraph (3) and provides a commensurate level of security, the Secretary may deploy that technology in its place and without regard to the minimums in this section. The Secretary shall notify Congress within 60 days of any such determination.

(6) ANNUAL REPORT.—Beginning 1 year after the enactment of this Act, and annually thereafter, the Secretary shall provide to Congress a written report to Congress on the

sector-by-sector deployment of infrastructure and technologies.

(7) ADDITIONAL ELEMENTS REGARDING EXECUTION.—The Comprehensive Southern Border Security Strategy shall describe—

(A) how the resources referred to in paragraph (2)(C) will be properly aligned with the priorities referred to in paragraph (2)(A) to ensure that the strategy will be successfully executed;

(B) the interim goals that must be accomplished to successfully implement the strategy; and

(C) the schedule and supporting milestones under which the Department will accomplish the interim goals referred to in subparagraph (B).

(8) IMPLEMENTATION.—

(A) IN GENERAL.—The Secretary shall commence the implementation of the Comprehensive Southern Border Security Strategy immediately after submitting the strategy under paragraph (1).

(B) NOTICE OF COMMENCEMENT.—Upon commencing the implementation of the strategy, the Secretary shall submit a notice of commencement of such implementation to—

(i) Congress; and

(ii) the Comptroller General of the United States.

(9) SEMIANNUAL REPORTS.—

(A) IN GENERAL.—Not later than 180 days after the Comprehensive Southern Border Security Strategy is submitted under paragraph (1), and every 180 days thereafter, the Secretary shall submit a report on the status of the Department's implementation of the strategy to—

(i) the Committee on Homeland Security and Governmental Affairs of the Senate;

(ii) the Committee on Homeland Security of the House of Representatives;

(iii) the Committee on Appropriations of the Senate;

(iv) the Committee on Appropriations of the House of Representatives;

(v) the Committee on the Judiciary of the Senate;

(vi) the Committee on the Judiciary of the House of Representatives; and

(vii) the Comptroller General of the United States.

(B) ELEMENTS.—Each report submitted under subparagraph (A) shall include—

(i) a detailed description of the steps the Department has taken, or plans to take, to execute the strategy submitted under paragraph (1), including the progress made toward achieving the interim goals and milestone schedule established pursuant to subparagraphs (B) and (C) of paragraph (3);

(ii) a detailed description of—

(I) any impediments identified in the Department's efforts to execute the strategy;

(II) the actions the Department has taken, or plans to take, to address such impediments; and

(III) any additional measures developed by the Department to measure the state of security along the Southern border; and

(iii) for each Border Patrol sector along the Southern border—

(I) the effectiveness rate for each individual Border Patrol sector and the aggregated effectiveness rate;

(II) the number of recidivist apprehensions, sorted by Border Patrol sector; and

(III) the recidivism rate for all unique subjects that received a criminal consequence through the Consequence Delivery System process.

(C) ANNUAL REVIEW.—The Comptroller General of the United States shall conduct an annual review of the information contained in the semiannual reports submitted by the Secretary under this paragraph and submit an assessment of the status and progress of the Southern Border Security Strategy to the committees set forth in subparagraph (A).

(b) SOUTHERN BORDER FENCING STRATEGY.—

(1) ESTABLISHMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall establish a strategy, to be known as the ''Southern Border Fencing Strategy'', to identify where 700 miles of fencing (including double-layer fencing), infrastructure, and technology, including at ports of entry, should be deployed along the Southern border.

(2) SUBMISSION.—The Secretary shall submit the Southern Border Fencing Strategy to Congress and the Comptroller General of the United States for review.

(3) NOTICE OF COMMENCEMENT.—Upon commencing the implementation of the Southern Border Fencing Strategy, the Secretary shall submit a notice of commencement of the implementation of the Strategy to Congress and the Comptroller General of the United States.

(4) CONSULTATION.—

(A) IN GENERAL.—In implementing the Southern Border Fencing Strategy required by this subsection, the Secretary shall consult with the Secretary of the Interior, the Secretary of Agriculture, States, local governments, Indian tribes, and property owners in the United States to minimize the impact on the environment, culture, commerce, and quality of life for the communities and residents located near the sites at which such fencing is to be constructed.

(B) SAVINGS PROVISION.—Nothing in this paragraph may be construed to—

(i) create or negate any right of action for a State or local government or other person or entity affected by this subsection; or

(ii) affect the eminent domain laws of the United States or of any State.

(5) LIMITATION ON REQUIREMENTS.—Notwithstanding paragraph (1), nothing in this subsection shall require the Secretary to install fencing, or infrastructure that directly results from the installation of such fencing, in a particular location along the Southern border, if the Secretary determines that the use or placement of such resources is not the most appropriate means to achieve and maintain effective control over the Southern border at such location.

SEC. 6. COMPREHENSIVE IMMIGRATION REFORM FUNDS.

(a) COMPREHENSIVE IMMIGRATION REFORM TRUST FUND.—

(1) ESTABLISHMENT.—There is established in the Treasury a separate account, to be known as the Comprehensive Immigration Reform Trust Fund (referred to in this section as the ''Trust Fund''), consisting of—

(A) amounts transferred from the general fund of the Treasury under paragraph (2)(A); and

(B) proceeds from the fees described in paragraph (2)(B).

(2) DEPOSITS.—

(A) INITIAL FUNDING.—On the later of the date of the enactment of this Act or October 1, 2013, $46,300,000,000 shall be transferred from the general fund of the Treasury to the Trust Fund.

(B) ONGOING FUNDING.—Notwithstanding section 3302 of title 31, United States Code, in addition to the funding described in subparagraph (A), and subject to paragraphs (3)(B) and (4), the following amounts shall be deposited in the Trust Fund:

(i) ELECTRONIC TRAVEL AUTHORIZATION SYSTEM FEES.—Fees collected under section 217(h)(3)(B)(i)(II) of the Immigration and Nationality Act, as added by section 1102(c).

(ii) REGISTERED PROVISIONAL IMMIGRANT PENALTIES.—Penalties collected under section 245B(c)(10)(C) of the Immigration and Nationality Act, as added by section 2101.

(iii) BLUE CARD PENALTY.—Penalties collected under section 2211(b)(9)(C).

(iv) FINE FOR ADJUSTMENT FROM BLUE CARD STATUS.—Fines collected under section 245F(a)(5) of the Immigration and Nationality Act, as added by section 2212(a).

(v) PENALTIES FOR FALSE STATEMENTS IN APPLICATIONS.—Fines collected under section 245F(f) of the Immigration and Nationality Act, as added by section 2212(a).

(vi) MERIT SYSTEM GREEN CARD FEES.—Fees collected under section 203(c)(6) of the Immigration and Nationality Act, as amended by section 2301(a)(2).

(vii) H–1B AND L VISA FEES.—Fees collected under section 281(d) of the Immigration and Nationality Act, as added by section 4105.

(viii) H–1B OUTPLACEMENT FEE.—Fees collected under section 212(n)(1)(F)(ii) of the Immigration and Nationality Act, as amended by section 4211(d).

(ix) H–1B NONIMMIGRANT DEPENDENT EMPLOYER FEES.—Fees collected under section 4233(a)(2).

(x) L NONIMMIGRANT DEPENDENT EMPLOYER FEES.—Fees collected under section 4305(a)(2).

(xi) J–1 VISA MITIGATION FEES.—Fees collected under section 281(e) of the Immigration and Nationality Act, as added by section 4407.

(xii) F–1 VISA FEES.—Fees collected under section 281(f) of the Immigration and Nationality Act, as added by section 4409.

(xiii) RETIREE VISA FEES.—Fees collected under section 214(w)(1)(B) of the Immigration and Nationality Act, as added by section 4504(b).

(xiv) VISITOR VISA FEES.—Fees collected under section 281(g) of the Immigration and Nationality Act, as added by section 4509.

(xv) H–2B VISA FEES.—Fees collected under section 214(x)(5)(A) of the Immigration and Nationality Act, as added by section 4602(a).

(xvi) NONIMMIGRANTS PERFORMING MAINTENANCE ON COMMON CARRIERS.—Fees collected under section 214(z) of the Immigration and Nationality Act, as added by section 4604.

(xvii) X–1 VISA FEES.—Fees collected under section 214(s)(6) of the Immigration and Nationality Act, as added by section 4801.

(xviii) PENALTY FOR ADJUSTMENT FROM REGISTERED PROVISIONAL IMMIGRANT STATUS.—Penalties collected under section 245C(c)(5)(B) of the Immigration and Nationality Act, as added by section 2102.

(C) AUTHORITY TO ADJUST FEES.—As necessary to carry out the purposes of this Act, the Secretary may adjust the amounts of the fees and penalties set out under subparagraph (B), except for the fines and penalties referred to in clauses (ii), (iii), (iv), or (xviii) of such subparagraph; provided further that the Secretary shall adjust the amounts of the fees and penalties set out under subparagraph (B), except for the fines and penalties referred to in clauses (ii), (iii), (iv), or (xviii) of such subparagraph to result in no less than $500,000,000 being available for fiscal year 2014 and $1,000,000,000 for fiscal years 2015 through 2023 for appropriations for activities authorized under this Act. If the Secretary determines that adjusting the fees and penalties set out under subparagraph (B) will be insufficient or impractical to cover the costs of the mandatory enforcement expenditures in this Act, the Secretary may charge an additional surcharge on every immigrant and nonimmigrant petition filed with the Secretary in an amount designed to be the minimum proportional surcharge necessary to recover the annual mandatory enforcement expenditures in this legislation.

(3) USE OF FUNDS.—

(A) INITIAL FUNDING.—Of the amounts transferred to the Trust Fund pursuant to paragraph (2)(A)—

(i) $30,000,000,000 shall remain available for the 10-year period beginning on the date specified in paragraph (2)(A) for use by the Secretary in hiring and deploying at least 19,200 additional trained full-time active duty U.S. Border Patrol agents along the Southern Border;

(ii) $4,500,000,000 shall remain available for the 5-year period beginning on the date specified in paragraph (2)(A) for use by the Secretary to carry out the Comprehensive Southern Border Security Strategy;

(iii) $2,000,000,000 shall remain available for the 10-year period beginning on the date specified in paragraph (2)(A) for use by the Secretary to carry out programs, projects, and activities recommended by the Commission pursuant to section 4(d) to achieve and maintain the border security goal specified in section 3(b), and for the administrative expenses directly associated with convening the public hearings required by section 3(c)(2)(A) and preparing and providing summaries of such hearings required by section 3(c)(2)(B);

(iv) $8,000,000,000 shall be made available to the Secretary, during the 5-year period beginning on the date of the enactment of this Act, to procure and deploy fencing, infrastructure, and technology in accordance with the Southern Border Fencing Strategy established pursuant to section 5(b), not less than $7,500,000,000 of which shall be used to deploy, repair, or replace fencing;

(v) $750,000,000 shall remain available for the 6-year period beginning on the date specified in paragraph (2)(A) for use by the Secretary to expand and implement the mandatory employment verification system, which shall be used as required by section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a), as amended by section 3101;

(vi) $900,000,000 shall remain available for the 8-year period beginning on the date specified in paragraph (2)(A) for use by the Secretary of State to pay for one-time and startup costs necessary to implement this Act; and

(vii) $150,000,000 shall remain available for the 2-year period beginning on the date specified in paragraph (2)(A) for use by the Secretary for transfer to the Secretary of Labor, the Secretary of Agriculture, or the Attorney General, for initial costs of implementing this Act.

(B) REPAYMENT OF TRUST FUND EXPENSES.—The first $8,300,000,000 collected pursuant to the fees, penalties, and fines referred to in clauses (ii), (iii), (iv), (vi), (xiii), (xvii), and (xviii) of paragraph (2)(B) shall be collected, deposited in the general fund of the Treasury, and used for Federal budget deficit reduction. Collections in excess of $8,300,000,000 shall be deposited into the Trust Fund, as specified in paragraph (2)(B).

(C) PROGRAM IMPLEMENTATION.—Amounts deposited into the Trust Fund pursuant to paragraph (2)(B) shall be available during each of fiscal years 2014 through 2018 as follows:

(i) $50,000,000 to carry out the activities referenced in section 1104(a)(1).

(ii) $50,000,000 to carry out the activities referenced in section 1104(b).

(D) ONGOING FUNDING.—Subject to the availability of appropriations, amounts deposited in the Trust Fund pursuant to paragraph (2)(B) are authorized to be appropriated as follows:

(i) Such sums as may be necessary to carry out the authorizations included in this Act, including the costs, including pay and benefits, associated with the additional personnel required by section 1102.

(ii) Such sums as may be necessary to carry out the operations and maintenance of border security and immigration enforcement investments referenced in subparagraph (A).

(E) EXPENDITURE PLAN.—The Secretary, in consultation with the Attorney General and the Secretary of Defense, shall submit to the Committee on Appropriations of the Senate, the Committee on the Judiciary of the Senate, the Committee on Appropriations of the House of Representatives, and the Committee on the Judiciary of the House of Representatives, in conjunction with the Comprehensive Southern Border Strategy and the Southern Border Fencing Strategy, a plan for expenditure that describes—

(i) the types and planned deployment of fixed, mobile, video, and agent and officer portable surveillance and detection equipment, including those recommended or provided by the Department of Defense;

(ii) the number of Border Patrol agents and Customs and Border Protection officers to be hired, including a detailed description of which Border Patrol sectors and which land border ports of entry they will be stationed;

(iii) the numbers and type of unarmed, unmanned aerial systems and unarmed, fixed-wing and rotary aircraft, including pilots, air interdiction agents, and support staff to fly or otherwise operate and maintain the equipment;

(iv) the numbers, types, and planned deployment of marine and riverine vessels, if any, including marine interdiction agents and support staff to operate and maintain the vessels;

(v) the locations, amount, and planned deployment of fencing, including double layer fencing, tactical and other infrastructure, and technology, including but not limited to fixed towers, sensors, cameras, and other detection technology;

(vi) the numbers, types, and planned deployment of ground-based mobile surveillance systems;

(vii) the numbers, types, and planned deployment of tactical and other interoperable law enforcement communications systems and equipment;

(viii) required construction, including repairs, expansion, and maintenance, and location of additional checkpoints, Border Patrol stations, and forward operating bases;

(ix) the number of additional attorneys and support staff for the Office of the United States Attorney for Tucson;

(x) the number of additional support staff and interpreters in the Office of the Clerk of the Court for Tucson;

(xi) the number of additional personnel, including Marshals and Deputy Marshals for the United States Marshals Office for Tucson;

(xii) the number of additional magistrate judges for the southern border United States District Courts;

(xiii) activities to be funded by the Homeland Security Border Oversight Task Force;

(xiv) amounts and types of grants to States and other entities;

(xv) amounts and activities necessary to hire additional personnel and for start-up costs related to upgrading software and information technology necessary to transition from a voluntary E-Verify system to mandatory employment verification system under section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a) within 5 years;

(xvi) the number of additional personnel and other costs associated with implementing the immigration courts and removal proceedings mandated in subtitle E of title III;

(xvii) the steps the Commissioner of Social Security plans to take to create a fraud-resistant, tamper-resistant, wear-resistant, and identity-theft resistant Social Security card, including—

(I) the types of equipment needed to create the card;

(II) the total estimated costs for completion that clearly delineates costs associated with the acquisition of equipment and transition to operation, subdivided by fiscal year and including a description of the purpose by fiscal year for design, pre-acquisition activities, production, and transition to operation;

(III) the number and type of personnel, including contract personnel, required to research, design, test, and produce the card; and

(IV) a detailed schedule for production of the card, including an estimated completion date at the projected funding level provided in this Act; and

(xviii) the operations and maintenance costs associated with the implementation of clauses (i) through (xvii).

(F) ANNUAL REVISION.—The expenditure plan required in (E) shall be revised and submitted with the President's budget proposals for fiscal year 2016, 2017, 2018, and 2019 pursuant to the requirements of section 1105(a) of title 31, United States Code.

(G) COMMISSION EXPENDITURE PLAN.—

(i) REQUIREMENT FOR PLAN.—If the Southern Border Security Commission referenced in section 4 is established, the Secretary shall submit to the appropriate committees of Congress, not later than 60 days after the submission of the review required by section 4(g), a plan for expenditure that achieves the recommendations in the report required by section 4(d) and the review required by section 4(g).

(ii) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In clause (i), the term ''appropriate committees of Congress'' means—

(I) the Committee on Appropriations, the Committee on the Judiciary, and the Committee on Finance of the Senate; and

(II) the Committee on Appropriations, the Committee on the Judiciary, and the Committee on Ways and Means of the House of Representatives.

(4) LIMITATION ON COLLECTION.—

(A) IN GENERAL.—No fee deposited in the Trust Fund may be collected except to the extent that the expenditure of the fee is provided for in advance in an appropriations Act only to pay the costs of activities and services for which appropriations are authorized to be funded from the Trust Fund.

(B) RECEIPTS COLLECTED AS OFFSETTING RECEIPTS.—Until the date of the enactment of an Act making appropriations for the activities authorized under this Act through September 30, 2014, the fees authorized by paragraph (2)(B) that are not deposited into the general fund pursuant to paragraph (3)(B) may be collected and shall be credited as to the Trust Fund to remain available until expended only to pay the costs of activities and services for which appropriations are authorized to be funded from the Trust Fund.

(b) COMPREHENSIVE IMMIGRATION REFORM STARTUP ACCOUNT.—

(1) ESTABLISHMENT.—There is established in the Treasury a separate account, to be known as the ''Comprehensive Immigration Reform Startup Account,'' (referred to in this section as the ''Startup Account''), consisting of amounts transferred from the general fund of the Treasury under paragraph (2).

(2) DEPOSITS.—There is appropriated to the Startup Account, out of any funds in the Treasury not otherwise appropriated, $3,000,000,000, to remain available until expended on the later of the date that is—

(A) the date of the enactment of this Act; or

(B) October 1, 2013.

(3) REPAYMENT OF STARTUP COSTS.—

(A) IN GENERAL.—Notwithstanding section 286(m) of the Immigration and Nationality

Act (8 U.S.C. 1356(m)), 50 percent of fees collected under section 245B(c)(10)(A) of the Immigration and Nationality Act, as added by section 2101 of this Act, shall be deposited monthly in the general fund of the Treasury and used for Federal budget deficit reduction until the funding provided by paragraph (2) has been repaid.

(B) DEPOSIT IN THE IMMIGRATION EXAMINATIONS FEE ACCOUNT.—Fees collected in excess of the amount referenced in subparagraph (A) shall be deposited in the Immigration Examinations Fee Account, pursuant to section 286(m) of the Immigration and Nationality Act (8 U.S.C. 1356(m)), and shall remain available until expended pursuant to section 286(n) of the Immigration and Nationality Act (8 U.S.C. 1356(n)).

(4) USE OF FUNDS.—The Secretary shall use the amounts transferred to the Startup Account to pay for one-time and startup costs necessary to implement this Act, including—

(A) equipment, information technology systems, infrastructure, and human resources;

(B) outreach to the public, including development and promulgation of any regulations, rules, or other public notice;

(C) grants to community and faith-based organizations; and

(D) anti-fraud programs and actions related to implementation of this Act.

(5) EXPENDITURE PLAN.—Not later than 90 days after the date of the enactment of this Act, the Secretary, in consultation with the Attorney General and the Secretary of Defense, shall submit to the Committee on Appropriations and the Committee on the Judiciary of the Senate and the Committee on Appropriations and the Committee on the Judiciary of the House of Representatives, a plan for expenditure of the one-time and startup funds in the Startup Account that provides details on—

(A) the types of equipment, information technology systems, infrastructure, and human resources;

(B) the plans for outreach to the public, including development and promulgation of any regulations, rules, or other public notice;

(C) the types and amounts of grants to community and faith-based organizations; and

(D) the anti-fraud programs and actions related to implementation of this Act.

(c) ANNUAL AUDITS.—

(1) AUDITS REQUIRED.—Not later than October 1 each year beginning on or after the date of the enactment of this Act, the Chief Financial Officer of the Department of Homeland Security shall, in conjunction with the Inspector General of the Department of Homeland Security, conduct an audit of the Trust Fund.

(2) REPORTS.—Upon completion of each audit of the Trust Fund under paragraph (1), the Chief Financial Officer shall, in conjunction with the Inspector General, submit to Congress, and make available to the public on an Internet website of the Department available to the public, a jointly audited financial statement concerning the Trust Fund.

(3) ELEMENTS.—Each audited financial statement under paragraph (2) shall include the following:

(A) The report of an independent certified public accountant.

(B) A balance sheet reporting admitted assets, liabilities, capital and surplus.

(C) A statement of cash flow.

(D) Such other information on the Trust Fund as the Chief Financial Officer, the Inspector General, or the independent certified public accountant considers appropriate to facilitate a comprehensive understanding of the Trust Fund during the year covered by the financial statement.

(d) DETERMINATION OF BUDGETARY EFFECTS.—

(1) EMERGENCY DESIGNATION FOR CONGRESSIONAL ENFORCEMENT.—In the Senate, amounts appropriated by or deposited in the general fund of the Treasury pursuant to this section are designated as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

(2) EMERGENCY DESIGNATION FOR STATUTORY PAYGO.—Amounts appropriated by or deposited in the general fund of the Treasury pursuant to this section are designated as an emergency requirement under section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (Public Law 111–139; 2 U.S.C. 933(g)).

SEC. 7. REFERENCE TO THE IMMIGRATION AND NATIONALITY ACT.

Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

SEC. 8. DEFINITIONS.

In this Act:

(1) DEPARTMENT.—Except as otherwise provided, the term ''Department'' means the Department of Homeland Security.

(2) SECRETARY.—Except as otherwise provided, the term ''Secretary'' means the Secretary of Homeland Security.

SEC. 9. GRANT ACCOUNTABILITY.

(a) DEFINITIONS.—In this section:

(1) AWARDING ENTITIES.—The term ''awarding entities'' means the Secretary of Homeland Security, the Director of the Federal Emergency Management Agency (FEMA), the Chief of the Office of Citizenship and New Americans, as designated by this Act, and the Director of the National Science Foundation.

(2) NONPROFIT ORGANIZATION.—The term ''nonprofit organization'' means an organization that is described in section 501(c)(3) of the Internal Revenue Code of 1986 and is exempt from taxation under section 501(a) of such Code.

(3) UNRESOLVED AUDIT FINDING.—The term ''unresolved audit finding'' means a finding in a final audit report conducted by the Inspector General of the Department of Homeland Security, or the Inspector General for the National Science Foundation for grants awarded by the Director of the National Science Foundation, that the audited grantee has utilized grant funds for an unauthorized expenditure or otherwise unallowable cost that is not closed or resolved within 1 year from the date when the final audit report is issued.

(b) ACCOUNTABILITY.—All grants awarded by awarding entities pursuant to this Act shall be subject to the following accountability provisions:

(1) AUDIT REQUIREMENT.—

(A) AUDITS.—Beginning in the first fiscal year beginning after the date of the enactment of this section, and in each fiscal year thereafter, the Inspector General of the Department of Homeland Security, or the Inspector General for the National Science Foundation for grants awarded by the Director of the National Science Foundation, shall conduct audits of recipients of grants under this Act to prevent waste, fraud, and abuse of funds by grantees. The Inspector Generals shall determine the appropriate number of grantees to be audited each year.

(B) MANDATORY EXCLUSION.—A recipient of grant funds under this Act that is found to have an unresolved audit finding shall not be eligible to receive grant funds under this Act during the first 2 fiscal years beginning after the end of the 1-year period described in subsection (a)(3).

(C) PRIORITY.—In awarding grants under this Act, the awarding entities shall give priority to eligible applicants that did not have an unresolved audit finding during the 3 fiscal years before submitting an application for a grant under this Act.

(D) REIMBURSEMENT.—If an entity is awarded grant funds under this Act during the 2-fiscal-year period during which the entity is barred from receiving grants under subparagraph (B), the awarding entity shall—

(i) deposit an amount equal to the amount of the grant funds that were improperly awarded to the grantee into the General Fund of the Treasury; and

(ii) seek to recoup the costs of the repayment to the fund from the grant recipient that was erroneously awarded grant funds.

(2) NONPROFIT ORGANIZATION REQUIREMENTS.—

(A) PROHIBITION.—An awarding entity may not award a grant under this Act to a nonprofit organization that holds money in offshore accounts for the purpose of avoiding paying the tax described in section 511(a) of the Internal Revenue Code of 1986.

(B) DISCLOSURE.—Each nonprofit organization that is awarded a grant under this Act and uses the procedures prescribed in regulations to create a rebuttable presumption of reasonableness for the compensation of its officers, directors, trustees, and key employees, shall disclose to the awarding entity, in the application for the grant, the process for determining such compensation, including the independent persons involved in reviewing and approving such compensation, the comparability data used, and contemporaneous substantiation of the deliberation and decision. Upon request, the awarding entity shall make the information disclosed under this subparagraph available for public inspection.

(3) CONFERENCE EXPENDITURES.—

(A) LIMITATION.—No amounts authorized to be appropriated to the Department of Homeland Security or the National Science Foundation for grant programs under this Act may be used by an awarding entity or by any individual or entity awarded discretionary funds through a cooperative agreement under this Act to host or support any expenditure for conferences that uses more than $20,000 in funds made available by the Department of Homeland Security or the National Science Foundation unless the Deputy Secretary for Homeland Security, or the Deputy Director of the National Science Foundation, or their designee, provides prior written authorization that the funds may be expended to host the conference.

(B) WRITTEN APPROVAL.—Written approval under subparagraph (A) shall include a written estimate of all costs associated with the conference, including the cost of all food, beverages, audio-visual equipment, honoraria for speakers, and entertainment.

(C) REPORT.—The Deputy Secretary of Homeland Security and the Deputy Director of the National Science Foundation shall submit an annual report to Congress on all conference expenditures approved under this paragraph.

(4) ANNUAL CERTIFICATION.—Beginning in the first fiscal year beginning after the date of the enactment of this subsection, each awarding entity shall submit to Congress a report—

(A) indicating whether—

(i) all audits issued by the Offices of the Inspector General under paragraph (1) have been completed and reviewed by the appropriate individuals;

(ii) all mandatory exclusions required under paragraph (1)(B) have been issued; and

(iii) all reimbursements required under paragraph (1)(D) have been made; and

(B) including a list of any grant recipients excluded under paragraph (1) from the previous year.

TITLE I—BORDER SECURITY AND OTHER PROVISIONS

Subtitle A—Border Security

SEC. 1101. DEFINITIONS.

In this title:

(1) NORTHERN BORDER.—The term ''Northern border'' means the international border between the United States and Canada.

(2) RURAL, HIGH-TRAFFICKED AREAS.—The term ''rural, high-trafficked areas'' means rural areas through which drugs and undocumented aliens are routinely smuggled, as designated by the Commissioner of U.S. Customs and Border Protection.

(3) SOUTHERN BORDER.—The term ''Southern border'' means the international border between the United States and Mexico.

(4) SOUTHWEST BORDER REGION.—The term ''Southwest border region'' means the area in the United States that is within 100 miles of the Southern border.

SEC. 1102. ADDITIONAL U.S. BORDER PATROL AND U.S. CUSTOMS AND BORDER PROTECTION OFFICERS.

(a) U.S. BORDER PATROL.—Not later than September 30, 2021, the Secretary shall increase the number of trained full-time active duty U.S. Border Patrol agents deployed to the Southern border to 38,405.

(b) U.S. CUSTOMS AND BORDER PROTECTION.—Not later than September 30, 2017, the Secretary shall increase the number of trained U.S. Customs and Border Protection officers by 3,500, compared to the number of such officers as of the date of the enactment of this Act. In allocating any new officers to international land ports of entry and high volume international airports, the primary goals shall be to increase security and reduce wait times of commercial and passenger vehicles at international land ports of entry and primary processing wait times at high volume international airports by 50 percent by fiscal year 2104 and screening all air passengers within 45 minutes under normal operating conditions or 80 percent of passengers within 30 minutes by fiscal year 2016. The Secretary shall make progress in increasing such number of officers during each of the fiscal years 2014 through 2017.

(c) AIR AND MARINE UNMANNED AIRCRAFT SYSTEMS CREW.—Not later than September 30, 2015, the Secretary shall increase the number of trained U.S. Customs and Border Protection Air and Marine unmanned aircraft systems crew, marine agent, and personnel by 160 compared to the number of such officers as of the date of the enactment of this Act. The Secretary shall increase and maintain Customs and Border Protection Office of Air and Marine flight hours to 130,000 annually.

(d) CONSTRUCTION.—Nothing in subsection (a) may be construed to preclude the Secretary from reassigning or stationing U.S. Customs and Border Protection Officers and U.S. Border Patrol Agents from the Northern border to the Southern border.

(e) FUNDING.—Section 217(h)(3)(B) (8 U.S.C. 1187(h)(3)(B)) is amended—

(1) in clause (i)—

(A) by striking ''No later than 6 months after the date of enactment of the Travel Promotion Act of 2009, the'' and inserting ''The'';

(B) in subclause (I), by striking ''and'' at the end;

(C) by redesignating subclause (II) as subclause (III); and

(D) by inserting after subclause (I) the following:

''(II) $16 for border processing; and'';

(2) in clause (ii), by striking ''Amounts collected under clause (i)(II)'' and inserting ''Amounts collected under clause (i)(II) shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act, for the purpose of implementing section 1102(b) of such Act. Amounts collected under clause (i)(III)''; and

(3) by striking clause (iii).

(f) CORPORATION FOR TRAVEL PROMOTION.—Section 9(d)(2)(B) of the Travel Promotion Act of 2009 (22 U.S.C. 2131(d)(2)(B)) is amended by striking ''For each of fiscal years 2012 through 2015,'' and inserting ''For each fiscal year after 2012,''.

(g) RECRUITMENT OF FORMER MEMBERS OF THE ARMED FORCES AND MEMBERS OF RESERVE COMPONENTS OF THE ARMED FORCES.—

(1) REQUIREMENT FOR PROGRAM.—The Secretary, in conjunction with the Secretary of Defense, shall establish a program to actively recruit members of the reserve components of the Armed Forces and former members of the Armed Forces, including the reserve components, to serve in United States Customs and Border Protection and United States Immigration and Customs Enforcement.

(2) RECRUITMENT INCENTIVES.—

(A) STUDENT LOAN REPAYMENTS FOR UNITED STATES BORDER PATROL AGENTS WITH A THREE-YEAR COMMITMENT.—Section 5379(b) of title 5, United States Code, is amended by adding at the end the following new paragraph:

''(4) In the case of an employee who is otherwise eligible for benefits under this section and who is serving as a full-time active-duty United States border patrol agent within the Department of Homeland Security—

''(A) paragraph (2)(A) shall be applied by substituting '$20,000' for '$10,000'; and

''(B) paragraph (2)(B) shall be applied by substituting '$80,000' for '$60,000'.''.

(B) RECRUITMENT AND RELOCATION BONUSES AND RETENTION ALLOWANCES FOR PERSONNEL OF THE DEPARTMENT OF HOMELAND SECURITY.—The Secretary of Homeland Security shall ensure that the authority to pay recruitment and relocation bonuses under section 5753 of title 5, United States Code, the authority to pay retention bonuses under section 5754 of such title, and any other similar authorities available under any other provision of law, rule, or regulation, are exercised to the fullest extent allowable in order to encourage service in the Department of Homeland Security.

(3) REPORT ON RECRUITMENT INCENTIVES.—

(A) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary and the Secretary of Defense shall jointly submit to the appropriate committees of Congress a report including an assessment of the desirability and feasibility of offering incentives to members of the reserve components of the Armed Forces and former members of the Armed Forces, including the reserve components, for the purpose of encouraging such members to serve in United States Customs and Border Protection and Immigration and Customs Enforcement.

(B) CONTENT.—The report required by subparagraph (A) shall include—

(i) a description of various monetary and non-monetary incentives considered for purposes of the report; and

(ii) an assessment of the desirability and feasibility of utilizing any such incentive.

(4) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Appropriations, the Committee on Armed Services, and the Committee on Homeland Security and Governmental Affairs of the Senate; and

(B) the Committee on Appropriations, the Committee on Armed Services, and the Committee on Homeland Security of the House of Representatives.

(h) REPORT.—Prior to the hiring and training of additional U.S. Customs and Border Protection officers under subsection (a), the Secretary shall submit to Congress a report on current wait times at land, air, and sea ports of entry, officer staffing at land, air, and sea ports of entry and projections for new officer allocation at land, air, and sea ports of entry designed to implement subsection (a), including the need to hire non-law enforcement personnel for administrative duties.

SEC. 1103. NATIONAL GUARD SUPPORT TO SECURE THE SOUTHERN BORDER.

(a) IN GENERAL.—With the approval of the Secretary of Defense, the Governor of a State may order any unit or personnel of the National Guard of such State to perform operations and missions under section 502(f) of title 32, United States Code, in the Southwest Border region for the purposes of assisting U.S. Customs and Border Protection in securing the Southern border.

(b) ASSIGNMENT OF OPERATIONS AND MISSIONS.—

(1) IN GENERAL.—National Guard units and personnel deployed under subsection (a) may be assigned such operations and missions specified in subsection (c) as may be necessary to secure the Southern border.

(2) NATURE OF DUTY.—The duty of National Guard personnel performing operations and missions described in paragraph (1) shall be full-time duty under title 32, United States Code.

(c) RANGE OF OPERATIONS AND MISSIONS.—The operations and missions assigned under subsection (b) shall include the temporary authority—

(1) to construct fencing, including double-layer and triple-layer fencing;

(2) to increase ground-based mobile surveillance systems;

(3) to deploy additional unmanned aerial systems and manned aircraft sufficient to maintain continuous surveillance of the Southern border;

(4) to deploy and provide capability for radio communications interoperability between U.S. Customs and Border Protection and State, local, and tribal law enforcement agencies;

(5) to construct checkpoints along the Southern border to bridge the gap to long-term permanent checkpoints; and

(6) to provide assistance to U.S. Customs and Border Protection, particularly in rural, high-trafficked areas, as designated by the Commissioner of U.S. Customs and Border Protection.

(d) MATERIEL AND LOGISTICAL SUPPORT.—The Secretary of Defense shall deploy such materiel and equipment and logistical support as may be necessary to ensure success of the operations and missions conducted by the National Guard under this section.

(e) EXCLUSION FROM NATIONAL GUARD PERSONNEL STRENGTH LIMITATIONS.—National Guard personnel deployed under subsection (a) shall not be included in—

(1) the calculation to determine compliance with limits on end strength for National Guard personnel; or

(2) limits on the number of National Guard personnel that may be placed on active duty for operational support under section 115 of title 10, United States Code.

SEC. 1104. ENHANCEMENT OF EXISTING BORDER SECURITY OPERATIONS.

(a) BORDER CROSSING PROSECUTIONS.—

(1) IN GENERAL.—From the amounts made available pursuant to the appropriations in

paragraph (3), funds shall be made available—

(A) to increase the number of border crossing prosecutions in the Tucson Sector of the Southwest border region to up to 210 prosecutions per day through increasing funding available for—

(i) attorneys and administrative support staff in the Office of the United States Attorney for Tucson;

(ii) support staff and interpreters in the Office of the Clerk of the Court for Tucson;

(iii) pre-trial services;

(iv) activities of the Federal Public Defender Office for Tucson; and

(v) additional personnel, including Deputy United States Marshals in the United States Marshals Office for Tucson to perform intake, coordination, transportation, and court security; and

(B) reimburse Federal, State, local, and tribal law enforcement agencies for any detention costs related to the border crossing prosecutions carried out pursuant to subparagraph (A).

(2) ADDITIONAL MAGISTRATE JUDGES TO ASSIST WITH INCREASED CASELOAD.—The chief judge of the United States District Court for the District of Arizona is authorized to appoint additional full-time magistrate judges, who, consistent with the Constitution and laws of the United States, shall have the authority to hear cases and controversies in the judicial district in which the respective judges are appointed.

(3) FUNDING.—There are authorized to be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this subsection.

(b) OPERATION STONEGARDEN.—

(1) IN GENERAL.—The Federal Emergency Management Agency shall enhance law enforcement preparedness and operational readiness along the borders of the United States through Operation Stonegarden. The amounts available under this paragraph are in addition to any other amounts otherwise made available for Operation Stonegarden. Grants under this subsection shall be allocated based on sector-specific border risk methodology, based on factors including threat, vulnerability, miles of border, and other border-specific information. Allocations for grants and reimbursements to law enforcement agencies under this paragraph shall be made by the Federal Emergency Management Agency through a competitive process.

(2) FUNDING.—There are authorized to be appropriated, from the amounts made available under section 6(a)(3)(A)(i), such sums as may be necessary to carry out this subsection.

(c) INFRASTRUCTURE IMPROVEMENTS.—

(1) BORDER PATROL STATIONS.—The Secretary shall—

(A) construct additional Border Patrol stations in the Southwest border region that U.S. Border Patrol determines are needed to provide full operational support in rural, high-trafficked areas; and

(B) analyze the feasibility of creating additional Border Patrol sectors along the Southern border to interrupt drug trafficking operations.

(2) FORWARD OPERATING BASES.—The Secretary shall enhance the security of the Southwest border region by—

(A) establishing additional permanent forward operating bases for the U.S. Border Patrol, as needed;

(B) upgrading the existing forward operating bases to include modular buildings, electricity, and potable water; and

(C) ensuring that forward operating bases surveil and interdict individuals entering the United States unlawfully immediately after such individuals cross the Southern border.

(3) SAFE AND SECURE BORDER INFRASTRUCTURE.—The Secretary and the Secretary of Transportation, in consultation with the governors of the States in the Southwest border region and the Northern border region, shall establish a grant program, which shall be administered by the Secretary of Transportation and the General Services Administration, to construct transportation and supporting infrastructure improvements at existing and new international border crossings necessary to facilitate safe, secure, and efficient cross border movement of people, motor vehicles, and cargo.

(4) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated for each of fiscal years 2014 through 2018 such sums as may be necessary to carry out this subsection.

(d) ADDITIONAL PERMANENT DISTRICT COURT JUDGESHIPS IN SOUTHWEST BORDER STATES.—

(1) IN GENERAL.—The President shall appoint, by and with the advice and consent of the Senate—

(A) 2 additional district judges for the district of Arizona;

(B) 3 additional district judges for the eastern district of California;

(C) 2 additional district judges for the western district of Texas; and

(D) 1 additional district judge for the southern district of Texas.

(2) CONVERSIONS OF TEMPORARY DISTRICT COURT JUDGESHIPS.—The existing judgeships for the district of Arizona and the central district of California authorized by section 312(c) of the 21st Century Department of Justice Appropriations Authorization Act (28 U.S.C. 133 note; Public Law 107–273; 116 Stat. 1788), as of the effective date of this Act, shall be authorized under section 133 of title 28, United States Code, and the incumbents in those offices shall hold the office under section 133 of title 28, United States Code, as amended by this Act.

(3) TECHNICAL AND CONFORMING AMENDMENTS.—The table contained in section 133(a) of title 28, United States Code, is amended—

(A) by striking the item relating to the district of Arizona and inserting the following:

''Arizona	15'';

(B) by striking the item relating to California and inserting the following:

''California:	
Northern	14
Eastern	9
Central	28
Southern	13''; and

(C) by striking the item relating to Texas and inserting the following:

''Texas:	
Northern	12
Southern	20
Eastern	7
Western	15''.

(4) INCREASE IN FILING FEES.—

(A) IN GENERAL.—Section 1914(a) of title 28, United States Code, is amended by striking ''$350'' and inserting ''$360''.

(B) EXPENDITURE LIMITATION.—Incremental amounts collected by reason of the enactment of this paragraph shall be deposited as offsetting receipts in the ''Judiciary Filing Fee'' special fund of the Treasury established under section 1931 of title 28, United States Code. Such amounts shall be available solely for the purpose of facilitating the processing of civil cases, but only to the extent specifically appropriated by an Act of Congress enacted after the date of the enactment of this Act.

(5) WHISTLEBLOWER PROTECTION.—

(A) IN GENERAL.—No officer, employee, agent, contractor, or subcontractor of the judicial branch may discharge, demote, threaten, suspend, harass, or in any other manner discriminate against an employee in the terms and conditions of employment because of any lawful act done by the employee to provide information, cause information to be provided, or otherwise assist in an investigation regarding any possible violation of Federal law or regulation, or misconduct, by a judge, justice, or any other employee in the judicial branch, which may assist in the investigation of the possible violation or misconduct.

(B) CIVIL ACTION.—An employee injured by a violation of subparagraph (A) may, in a civil action, obtain appropriate relief.

SEC. 1105. BORDER SECURITY ON CERTAIN FEDERAL LAND.

(a) DEFINITIONS.—In this section:

(1) FEDERAL LANDS.—The term ''Federal lands'' includes all land under the control of the Secretary concerned that is located within the Southwest border region in the State of Arizona along the international border between the United States and Mexico.

(2) SECRETARY CONCERNED.—The term ''Secretary concerned'' means—

(A) with respect to land under the jurisdiction of the Secretary of Agriculture, the Secretary of Agriculture; and

(B) with respect to land under the jurisdiction of the Secretary of the Interior, the Secretary of the Interior.

(b) SUPPORT FOR BORDER SECURITY NEEDS.—To achieve effective control of Federal lands—

(1) the Secretary concerned, notwithstanding any other provision of law, shall authorize and provide U.S. Customs and Border Protection personnel with immediate access to Federal lands for security activities, including—

(A) routine motorized patrols; and

(B) the deployment of communications, surveillance, and detection equipment;

(2) the security activities described in paragraph (1) shall be conducted, to the maximum extent practicable, in a manner that the Secretary determines will best protect the natural and cultural resources on Federal lands; and

(3) the Secretary concerned may provide education and training to U.S. Customs and Border Protection personnel on the natural and cultural resources present on individual Federal land units.

(c) PROGRAMMATIC ENVIRONMENTAL IMPACT STATEMENT.—

(1) IN GENERAL.—After implementing subsection (b), the Secretary, in consultation with the Secretaries concerned, shall prepare and publish in the Federal Register a notice of intent to prepare a programmatic environmental impact statement in accordance with the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) to analyze the impacts of the activities described in subsection (b).

(2) EFFECT ON PROCESSING APPLICATION AND SPECIAL USE PERMITS.—The pending completion of a programmatic environmental impact statement under this section shall not result in any delay in the processing or approving of applications or special use permits by the Secretaries concerned for the activities described in subsection (b).

(3) AMENDMENT OF LAND USE PLANS.—The Secretaries concerned shall amend any land use plans, as appropriate, upon completion of the programmatic environmental impact statement described in subsection (b).

(4) SCOPE OF PROGRAMMATIC ENVIRONMENTAL IMPACT STATEMENT.—The programmatic environmental impact statement described in paragraph (1)—

(A) may be used to advise the Secretary on the impact on natural and cultural resources on Federal lands; and

(B) shall not control, delay, or restrict actions by the Secretary to achieve effective control on Federal lands.

(d) INTERMINGLED STATE AND PRIVATE LAND.—This section shall not apply to any private or State-owned land within the boundaries of Federal lands.

SEC. 1106. EQUIPMENT AND TECHNOLOGY.

(a) ENHANCEMENTS.—The Commissioner of U.S. Customs and Border Protection, working through U.S. Border Patrol, shall—

(1) deploy additional mobile, video, and agent-portable surveillance systems, and unarmed, unmanned aerial vehicles in the Southwest border region as necessary to provide 24-hour operation and surveillance;

(2) operate unarmed unmanned aerial vehicles along the Southern border for 24 hours per day and for 7 days per week;

(3) deploy unarmed additional fixed-wing aircraft and helicopters along the Southern border;

(4) acquire new rotorcraft and make upgrades to the existing helicopter fleet;

(5) increase horse patrols in the Southwest border region; and

(6) acquire and deploy watercraft and other equipment to provide support for border-related maritime anti-crime activities.

(b) LIMITATION.—

(1) IN GENERAL.—Notwithstanding paragraphs (1) and (2) of subsection (a), and except as provided in paragraph (2), U.S. Border Patrol may not operate unarmed, unmanned aerial vehicles in the San Diego and El Centro Sectors, except within 3 miles of the Southern border.

(2) EXCEPTION.—The limitation under this subsection shall not restrict the maritime operations of U.S. Customs and Border Protection.

(c) AUTHORIZATION OF APPROPRIATIONS.—In addition to amounts otherwise authorized to be appropriated, there is authorized to be appropriated to U.S. Customs and Border Protection such sums as may be necessary to carry out subsection (a) during fiscal years 2014 through 2018.

SEC. 1107. ACCESS TO EMERGENCY PERSONNEL.

(a) SOUTHWEST BORDER REGION EMERGENCY COMMUNICATIONS GRANTS.—

(1) IN GENERAL.—The Secretary, in consultation with the governors of the States in the Southwest border region, shall establish a 2-year grant program, to be administered by the Secretary, to improve emergency communications in the Southwest border region.

(2) ELIGIBILITY FOR GRANTS.—An individual is eligible to receive a grant under this subsection if the individual demonstrates that he or she—

(A) regularly resides or works in the Southwest border region;

(B) is at greater risk of border violence due to the lack of cellular service at his or her residence or business and his or her proximity to the Southern border.

(3) USE OF GRANTS.—Grants awarded under this subsection may be used to purchase satellite telephone communications systems and service that—

(A) can provide access to 9–1–1 service; and

(B) are equipped with global positioning systems.

(4) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated such sums as may be necessary to carry out the grant program established under this subsection.

(b) INTEROPERABLE COMMUNICATIONS FOR LAW ENFORCEMENT.—

(1) FEDERAL LAW ENFORCEMENT.—There are authorized to be appropriated, to the Department, the Department of Justice, and the Department of the Interior, during the 5-year period beginning on the date of the enactment of this Act, such sums as may be necessary—

(A) to purchase, through a competitive procurement process, P25-compliant radios, which may include a multi-band option, for Federal law enforcement agents working in the Southwest border region in support of the activities of U.S. Customs and Border Protection and U.S. Immigration and Customs Enforcement, including law enforcement agents of the Drug Enforcement Administration, the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Department of the Interior, and the Forest Service; and

(B) to upgrade, through a competitive procurement process, the communications network of the Department of Justice to ensure coverage and capacity, particularly when immediate access is needed in times of crisis, in the Southwest Border region for appropriate law enforcement personnel of the Department of Justice (including the Drug Enforcement Administration and the Bureau of Alcohol, Tobacco, Firearms and Explosives), the Department (including U.S. Immigration and Customs Enforcement and U.S. Customs and Border Protection), the United States Marshals Service, other Federal agencies, the State of Arizona, tribes, and local governments.

(2) STATE AND LOCAL LAW ENFORCEMENT.—

(A) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Department of Justice, during the 5-year period beginning on the date of the enactment of this Act, such sums as may be necessary to purchase, through a competitive procurement process, P25-compliant radios, which may include a multi-band option, for State and local law enforcement agents working in the Southwest border region.

(B) ACCESS TO FEDERAL SPECTRUM.—If a State, tribal, or local law enforcement agency in the Southwest border region experiences an emergency situation that necessitates immediate communication with the Department of Justice, the Department, the Department of the Interior, or any of their respective subagencies, such law enforcement agency shall have access to the spectrum assigned to such Federal agency for the duration of such emergency situation.

(c) DISTRESS BEACONS.—

(1) IN GENERAL.—The Commissioner of U.S. Customs and Border Protection, working through U.S. Border Patrol, shall—

(A) identify areas near the Northern border and the Southern border where migrant deaths are occurring due to climatic and environmental conditions; and

(B) deploy up to 1,000 beacon stations in the areas identified pursuant to subparagraph (A).

(2) FEATURES.—Beacon stations deployed pursuant to paragraph (1) should—

(A) include a self-powering mechanism, such as a solar-powered radio button, to signal U.S. Border Patrol personnel or other emergency response personnel that a person at that location is in distress;

(B) include a self-powering cellular phone relay limited to 911 calls to allow persons in distress in the area who are unable to get to the beacon station to signal their location and access emergency personnel; and

(C) be movable to allow U.S. Border Patrol to relocate them as needed—

(i) to mitigate migrant deaths;

(ii) to facilitate access to emergency personnel; and

(iii) to address any use of the beacons for diversion by criminals.

SEC. 1108. SOUTHWEST BORDER REGION PROSECUTION INITIATIVE.

(a) REIMBURSEMENT TO STATE AND LOCAL PROSECUTORS FOR FEDERALLY INITIATED CRIMINAL CASES.—The Attorney General shall reimburse State, county, tribal, and municipal governments for costs associated with the prosecution, pretrial services and detention, clerical support, and public defenders' services associated with the prosecution of federally initiated immigration-related criminal cases declined by local offices of the United States Attorneys.

(b) EXCEPTION.—Reimbursement under subsection (a) shall not be available, at the discretion of the Attorney General, if the Attorney General determines that there is reason to believe that the jurisdiction seeking reimbursement has engaged in unlawful conduct in connection with immigration-related apprehensions.

(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated such sums as may be necessary to carry out subsection (a) during fiscal years 2014 through 2018.

SEC. 1109. INTERAGENCY COLLABORATION.

The Assistant Secretary of Defense for Research and Engineering shall collaborate with the Under Secretary of Homeland Security for Science and Technology to identify equipment and technology used by the Department of Defense that could be used by U.S. Customs and Border Protection to improve the security of the Southern border by—

(1) detecting border tunnels;

(2) detecting the use of ultralight aircraft;

(3) enhancing wide aerial surveillance; and

(4) otherwise improving the enforcement of such border.

SEC. 1110. STATE CRIMINAL ALIEN ASSISTANCE PROGRAM.

(a) SCAAP REAUTHORIZATION.—Section 241(i)(5)(C) (8 U.S.C. 1231(i)(5)) is amended by striking ''2011.'' and inserting ''2015.''.

(b) SCAAP ASSISTANCE FOR STATES.—

(1) ASSISTANCE FOR STATES INCARCERATING UNDOCUMENTED ALIENS CHARGED WITH CERTAIN CRIMES.—Section 241(i)(3)(A) (8 U.S.C. 1231(i)(3)(A)) is amended by inserting ''charged with or'' before ''convicted''.

(2) ASSISTANCE FOR STATES INCARCERATING UNVERIFIED ALIENS.—Section 241(i) (8 U.S.C. 1231(i)), as amended by subsection (a), is further amended—

(A) by redesignating paragraphs (4), (5), and (6), as paragraphs (5), (6), and (7), respectively;

(B) in paragraph (7), as so redesignated, by striking ''(5)'' and inserting ''(6)''; and

(C) by adding after paragraph (3) the following:

''(4) In the case of an alien whose immigration status is unable to be verified by the Secretary of Homeland Security, and who would otherwise be an undocumented criminal alien if the alien is unlawfully present in the United States, the Attorney General shall compensate the State or political subdivision of the State for incarceration of the alien, consistent with subsection (i)(2).''.

SEC. 1111. USE OF FORCE.

Not later than 180 days after the date of the enactment of this Act, the Secretary, in consultation with the Assistant Attorney General for the Civil Rights Division of the Department of Justice, shall issue policies governing the use of force by all Department personnel that—

(1) require all Department personnel to report each use of force; and

(2) establish procedures for—

(A) accepting and investigating complaints regarding the use of force by Department personnel;

(B) disciplining Department personnel who violate any law or Department policy relating to the use of force; and

(C) reviewing all uses of force by Department personnel to determine whether the use of force—

(i) complied with Department policy; or

(ii) demonstrates the need for changes in policy, training, or equipment.

SEC. 1112. TRAINING FOR BORDER SECURITY AND IMMIGRATION ENFORCEMENT OFFICERS.

(a) IN GENERAL.—The Secretary shall ensure that U.S. Customs and Border Protection officers, U.S. Border Patrol agents, U.S. Immigration and Customs Enforcement officers and agents, United States Air and Marine Division agents, and agriculture specialists stationed within 100 miles of any land or marine border of the United States or at any United States port of entry receive appropriate training, which shall be prepared in collaboration with the Assistant Attorney General for the Civil Rights Division of the Department of Justice, in—

(1) identifying and detecting fraudulent travel documents;

(2) civil, constitutional, human, and privacy rights of individuals;

(3) the scope of enforcement authorities, including interrogations, stops, searches, seizures, arrests, and detentions;

(4) the use of force policies issued by the Secretary pursuant to section 1111;

(5) immigration laws, including screening, identifying, and addressing vulnerable populations, such as children, victims of crime and human trafficking, and individuals fleeing persecution or torture;

(6) social and cultural sensitivity toward border communities;

(7) the impact of border operations on communities; and

(8) any particular environmental concerns in a particular area.

(b) TRAINING FOR BORDER COMMUNITY LIAISON OFFICERS.—The Secretary shall ensure that border communities liaison officers in Border Patrol sectors along the international borders between the United States and Mexico and between the United States and Canada receive training to better—

(1) act as a liaison between border communities and the Office for Civil Rights and Civil Liberties of the Department and the Civil Rights Division of the Department of Justice;

(2) foster and institutionalize consultation with border communities;

(3) consult with border communities on Department programs, policies, strategies, and directives; and

(4) receive Department performance assessments from border communities.

(c) HUMANE CONDITIONS OF CONFINEMENT FOR CHILDREN IN U.S. CUSTOMS AND BORDER PROTECTION CUSTODY.—Not later than 90 days after the date of the enactment of this Act, the Secretary shall establish standards to ensure that children in the custody of U.S. Customs and Border Protection—

(1) are afforded adequate medical and mental health care, including emergency medical and mental health care, when necessary;

(2) receive adequate nutrition;

(3) are provided with climate-appropriate clothing, footwear, and bedding;

(4) have basic personal hygiene and sanitary products; and

(5) are permitted to make supervised phone calls to family members.

SEC. 1113. DEPARTMENT OF HOMELAND SECURITY BORDER OVERSIGHT TASK FORCE.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—There is established an independent task force, which shall be known as the Department of Homeland Security Border Oversight Task Force (referred to in this section as the ''DHS Task Force'').

(2) DUTIES.—The DHS Task Force shall—

(A) review and make recommendations regarding immigration and border enforcement policies, strategies, and programs that take into consideration their impact on border and tribal communities;

(B) recommend ways in which the Border Communities Liaison Offices can strengthen relations and collaboration between communities in the border regions and the Department, the Department of Justice, and other Federal agencies that carry out such policies, strategies, and programs;

(C) evaluate how the policies, strategies, and programs of Federal agencies operating along the international borders between the United States and Mexico and between the United States and Canada protect the due process, civil, and human rights of border residents, visitors, and migrants at and near such borders; and

(D) evaluate and make recommendations regarding the training of border enforcement personnel described in section 1112.

(3) MEMBERSHIP.—

(A) IN GENERAL.—The DHS Task Force shall be composed of 33 members, appointed by the President, who have expertise in migration, local crime indices, civil and human rights, community relations, cross-border trade and commerce, quality of life indicators, or other pertinent experience, of whom—

(i) 14 members shall be from the Northern border region and shall include—

(I) 2 local government elected officials;

(II) 2 local law enforcement officials;

(III) 2 tribal government officials;

(IV) 2 civil rights advocates;

(V) 1 business representative;

(VI) 1 higher education representative;

(VII) 1 private land owner representative;

(VIII) 1 representative of a faith community; and

(IX) 2 representatives of U.S. Border Patrol; and

(ii) 19 members shall be from the Southern border region and include—

(I) 3 local government elected officials;

(II) 3 local law enforcement officials; (aa)

(III) 2 tribal government officials;

(IV) 3 civil rights advocates;

(V) 2 business representatives;

(VI) 1 higher education representative;

(VII) 2 private land owner representatives;

(VIII) 1 representative of a faith community; and

(IX) 2 representatives of U.S. Border Patrol.

(B) TERM OF SERVICE.—Members of the Task Force shall be appointed for the shorter of—

(i) 3 years; or

(ii) the life of the DHS Task Force.

(C) CHAIR, VICE CHAIR.—The members of the DHS Task Force shall elect a Chair and a Vice Chair from among its members, who shall serve in such capacities for the life of the DHS Task Force or until removed by the majority vote of at least 16 members.

(b) OPERATIONS.—

(1) HEARINGS.—The DHS Task Force may, for the purpose of carrying out its duties, hold hearings, sit and act, take testimony, receive evidence, and administer oaths.

(2) RECOMMENDATIONS.—The DHS Task Force may make findings or recommendations to the Secretary related to the duties described in subsection (a)(2).

(3) RESPONSE.—Not later than 180 days after receiving the findings and recommendations from the DHS Task Force under paragraph (2), the Secretary shall issue a response that describes how the Department has addressed, or will address, such findings and recommendations. If the Secretary disagrees with any finding of the DHS Task Force, the Secretary shall provide an explanation for the disagreement.

(4) INFORMATION FROM FEDERAL AGENCIES.—The Chair, or 16 members of the DHS Task Force, may request statistics relating to the duties described in subsection (a)(2) directly from any Federal agency, which shall, to the extent authorized by law, furnish such information, suggestions, estimates, and statistics directly to the DHS Task Force.

(5) COMPENSATION.—Members of the DHS Task Force shall serve without pay, but shall be reimbursed for reasonable travel and subsistence expenses incurred in the performance of their duties.

(c) REPORT.—Not later than 2 years after its first meeting, the DHS Task Force shall submit a final report to the President, Congress, and the Secretary that contains—

(1) findings with respect to the duties of the DHS Task Force; and

(2) recommendations regarding border and immigration enforcement policies, strategies, and programs, including—

(A) a recommendation as to whether the DHS Task Force should continue to operate; and

(B) a description of any duties for which the DHS Task Force should be responsible after the termination date described in subsection (e).

(d) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated such sums as may be necessary to carry out this section for each of the fiscal years 2014 through 2017.

(e) SUNSET.—The DHS Task Force shall terminate operations 60 days after the date on which the DHS Task Force submits the report described in subsection (c).

SEC. 1114. OMBUDSMAN FOR IMMIGRATION RELATED CONCERNS OF THE DEPARTMENT OF HOMELAND SECURITY.

(a) ESTABLISHMENT.—Title I of the Homeland Security Act of 2002 (6 U.S.C. 111 et seq.) is amended by adding at the end the following new section:

''SEC. 104. OMBUDSMAN FOR IMMIGRATION RELATED CONCERNS.

''(a) IN GENERAL.—There shall be within the Department an Ombudsman for Immigration Related Concerns (in this section referred to as the 'Ombudsman'). The individual appointed as Ombudsman shall have a background in immigration law as well as civil and human rights law. The Ombudsman shall report directly to the Deputy Secretary.

''(b) FUNCTIONS.—The functions of the Ombudsman shall be as follows:

''(1) To receive and resolve complaints from individuals and employers and assist in resolving problems with the immigration components of the Department.

''(2) To conduct inspections of the facilities or contract facilities of the immigration components of the Department.

''(3) To assist individuals and families who have been the victims of crimes committed by aliens or violence near the United States border.

''(4) To identify areas in which individuals and employers have problems in dealing with the immigration components of the Department.

''(5) To the extent practicable, to propose changes in the administrative practices of the immigration components of the Department to mitigate problems identified under paragraph (4).

''(6) To review, examine, and make recommendations regarding the immigration and enforcement policies, strategies, and programs of U.S. Customs and Border Protection, U.S. Immigration and Customs Enforcement, and U.S. Citizenship and Immigration Services.

''(c) OTHER RESPONSIBILITIES.—In addition to the functions specified in subsection (b), the Ombudsman shall—

''(1) monitor the coverage and geographic allocation of local offices of the Ombudsman, including appointing a local ombudsman for immigration related concerns; and

''(2) evaluate and take personnel actions (including dismissal) with respect to any employee of the Ombudsman.

''(d) REQUEST FOR INVESTIGATIONS.—The Ombudsman shall have the authority to request the Inspector General of the Department of Homeland Security to conduct inspections, investigations, and audits.

''(e) COORDINATION WITH DEPARTMENT COMPONENTS.—The Director of U.S. Citizenship and Immigration Services, the Assistant Secretary of Immigration and Customs Enforcement, and the Commissioner of Customs and Border Protection shall each establish procedures to provide formal responses to recommendations submitted to such official by the Ombudsman.

''(f) ANNUAL REPORTS.—Not later than June 30 of each year, the Ombudsman shall submit a report to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives on the objectives of the Ombudsman for the fiscal year beginning in such calendar year. Each report shall contain full and substantive analysis, in addition to statistical information, and shall set forth any recommendations the Ombudsman has made on improving the services and responsiveness of U.S. Citizenship and Immigration Services, U.S. Immigration and Customs Enforcement, and U.S. Customs and Border Protection and any responses received from the Department regarding such recommendations.''.

(b) REPEAL OF SUPERSEDED AUTHORITY.—Section 452 of the Homeland Security Act of 2002 (6 U.S.C. 272) is repealed.

(c) CLERICAL AMENDMENTS.—The table of contents for the Homeland Security Act of 2002 is amended—

(1) by inserting after the item relating to section 103 the following new item:

''Sec. 104. Ombudsman for Immigration Related Concerns.''; and

(2) by striking the item relating to section 452.

SEC. 1115. PROTECTION OF FAMILY VALUES IN APPREHENSION PROGRAMS.

(a) DEFINITIONS.—In this section:

(1) APPREHENDED INDIVIDUAL.—The term ''apprehended individual'' means an individual apprehended by personnel of the Department of Homeland Security or of a cooperating entity pursuant to a migration deterrence program carried out at a border.

(2) BORDER.—The term ''border'' means an international border of the United States.

(3) CHILD.—Except as otherwise specifically provided, the term ''child'' has the meaning given to the term in section 101(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1101(b)(1)).

(4) COOPERATING ENTITY.—The term ''cooperating entity'' means a State or local entity acting pursuant to an agreement with the Secretary.

(5) MIGRATION DETERRENCE PROGRAM.—The term ''migration deterrence program'' means an action related to the repatriation or referral for prosecution of 1 or more apprehended individuals for a suspected or confirmed violation of the Immigration and Nationality Act (8 U.S.C. 1001 et seq.) by the Secretary or a cooperating entity.

(b) PROCEDURES FOR MIGRATION DETERRENCE PROGRAMS AT THE BORDER.—

(1) PROCEDURES.—In any migration deterrence program carried out at a border, the Secretary and cooperating entities shall for each apprehended individual—

(A) as soon as practicable after such individual is apprehended—

(i) inquire as to whether the apprehended individual is—

(I) a parent, legal guardian, or primary caregiver of a child; or

(II) traveling with a spouse or child; and

(ii) ascertain whether repatriation of the apprehended individual presents any humanitarian concern or concern related to such individual's physical safety; and

(B) ensure that, with respect to a decision related to the repatriation or referral for prosecution of the apprehended individual, due consideration is given—

(i) to the best interests of such individual's child, if any;

(ii) to family unity whenever possible; and

(iii) to other public interest factors, including humanitarian concerns and concerns related to the apprehended individual's physical safety.

(c) MANDATORY TRAINING.—The Secretary, in consultation with the Secretary of Health and Human Services, the Attorney General, the Secretary of State, and independent immigration, child welfare, family law, and human rights law experts, shall—

(1) develop and provide specialized training for all personnel of U.S. Customs and Border Protection and cooperating entities who come into contact with apprehended individuals in all legal authorities, policies, and procedures relevant to the preservation of a child's best interest, family unity, and other public interest factors, including those described in this Act; and

(2) require border enforcement personnel to undertake periodic and continuing training on best practices and changes in relevant legal authorities, policies, and procedures pertaining to the preservation of a child's best interest, family unity, and other public interest factors, including those described in this Act.

(d) ANNUAL REPORT ON THE IMPACT OF MIGRATION DETERRENCE PROGRAMS AT THE BORDER.—

(1) REQUIREMENT FOR ANNUAL REPORT.—Not later than 1 year after the date of the enactment of this Act, and annually thereafter, the Secretary shall submit to Congress a report that describes the impact of migration deterrence programs on parents, legal guardians, primary caregivers of a child, individuals traveling with a spouse or child, and individuals who present humanitarian considerations or concerns related to the individual's physical safety.

(2) CONTENTS.—Each report submitted under paragraph (1) shall include for the previous 1-year period an assessment of—

(A) the number of apprehended individuals removed, repatriated, or referred for prosecution who are the parent, legal guardian, or primary caregiver of a child who is a citizen of the United States;

(B) the number of occasions in which both parents, or the primary caretaker of such a child was removed, repatriated, or referred for prosecution as part of a migration deterrence program;

(C) the number of apprehended individuals traveling with close family members who are removed, repatriated, or referred for prosecution.

(D) the impact of migration deterrence programs on public interest factors, including humanitarian concerns and physical safety.

(e) REGULATIONS.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall promulgate regulations to implement this section.

SEC. 1116. OVERSIGHT OF POWER TO ENTER PRIVATE LAND AND STOP VEHICLES WITHOUT A WARRANT AT THE NORTHERN BORDER.

(a) IN GENERAL.—Section 287(a) (8 U.S.C. 1357(a)) is amended—

(1) in paragraph (5), by redesignating subparagraphs (A) and (B) as clauses (i) and (ii), respectively;

(2) by redesignating paragraphs (1) through (3) as subparagraphs (A) through (C), respectively;

(3) by redesignating paragraphs (4) and (5) as subparagraphs (F) and (G), respectively;

(4) in the matter preceding subparagraph (A), as so redesignated—

(A) by inserting ''(1)'' before ''Any officer'';

(B) by striking ''Service'' and inserting ''Department of Homeland Security''; and

(C) by striking ''Attorney General'' and inserting ''Secretary of Homeland Security'';

(5) in paragraph (1)(C), as so redesignated, by inserting the following at the beginning: ''except as provided in subparagraphs (D) and (E),'';

(6) by inserting after paragraph (1)(C) the following:

''(D) with respect to the Northern border, as defined in section 1101 of the Border Security, Economic Opportunity, and Immigration Enforcement Act, within a distance of 25 air miles from the Northern border, or such distance from the Northern border as may be prescribed by the Secretary pursuant to paragraph (2) of this subsection, to board and search for aliens any vessel within the territorial waters of the United States and any railway car, aircraft, conveyance, or vehicle for the purpose of patrolling the border to prevent the illegal entry of aliens into the United States;

''(E) with respect to the Northern border, as defined in section 1101 of the Border Security, Economic Opportunity, and Immigration Enforcement Act, within a distance of 10 air miles from the Northern border, or such distance from the Northern border as may be prescribed by the Secretary pursuant to paragraph (2) of this subsection, to have access to private lands, but not dwellings, for the purpose of patrolling the border to prevent the illegal entry of aliens into the United States;'';

(7) by inserting after the flush text at the end of subparagraph (F), as so redesignated, the following:

''(2)(A)(i) The Secretary of Homeland Security may establish for a Northern border sector or district a distance less than or greater than 25 air miles, but in no case greater than 100 air miles, as the maximum distance from the Northern border in which the authority described in paragraph (1)(C) may be exercised, if the Secretary certifies that such a distance is necessary for the purpose of patrolling the Northern border to prevent the illegal entry of aliens into the United States, and justified by the considerations listed in subparagraph (B).

''(ii) The Secretary of Homeland Security may establish for a Northern border sector or district a distance less than or greater than 10 air miles, but in no case greater than 25 air miles, as the maximum distance from the Northern border of the United States in which the authority described in paragraph (1)(D) may be exercised, if the Secretary certifies that such a distance is necessary for the purpose of patrolling the Northern border to prevent the illegal entry of aliens into the United States, and justified by the considerations listed in subparagraph (B).

''(B) In making the certifications described in subparagraph (A), the Secretary shall consider, as appropriate, land topography, confluence of arteries of transportation leading from external boundaries, density of population, possible inconvenience to the traveling public, types of conveyances used, reliable information as to movements of persons effecting illegal entry into the United States, effects on private property and quality of life for relevant communities and residents, consultations with affected State, local, and tribal governments, including the governor of any relevant State, and other factors that the Secretary considers appropriate.

''(C) A certification made under subparagraph (A) shall be valid for a period of 5 years and may be renewed for additional 5-year periods. If the Secretary finds at any time that circumstances no longer justify a certification, the Secretary shall terminate the certification.

''(D) The Secretary shall report annually to the Committee on the Judiciary and Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on the Judiciary and Committee on Homeland Security of the House of Representatives the number of certifications made under subparagraph (A), and for each such certification, the Northern border sector or district and reasonable distance prescribed, the period of time the certification has been in effect, and the factors justifying the certification.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) AUTHORITIES WITHOUT A WARRANT.—In section 287(a) (8 U.S.C. 1357(a)), the undesignated matter following paragraph (2), as added by subsection (a)(5), is amended—

(A) by inserting ''(3)'' before ''Under regulations'';

(B) by striking ''paragraph (5)(B)'' both places that term appears and inserting ''subparagraph (F)(ii)'';

(C) by striking ''(i)'' and inserting ''(A)'';

(D) by striking ''(ii) establish'' and inserting ''(B) establish'';

(E) by striking ''(iii) require'' and inserting ''(C) require''; and

(F) by striking ''clause (ii), and (iv)'' and inserting ''subparagraph (B), and (D)''.

(2) CONFORMING AMENDMENT.—Section 287(e) (8 U.S.C. 1357(e)) is amended by striking ''paragraph (3) of subsection (a),'' and inserting ''subsection (a)(1)(D),''.

SEC. 1117. REPORTS.

(a) REPORT ON CERTAIN BORDER MATTERS.—The Secretary shall submit a report to the Committee on Homeland Security and Governmental Affairs of the Senate, the Committee on Homeland Security of the House of Representatives, the Committee on the Judiciary of the Senate, and the Committee on the Judiciary of the House of Representatives that sets forth—

(1) the effectiveness rate (as defined in section 2(a)(4)) for each Border Patrol sector along the Northern border and the Southern border;

(2) the number of miles along the Southern border that are under persistent surveillance;

(3) the monthly wait times per passenger, including data on averages and peaks, for crossing the Northern border and the Southern border, and the staffing of such border crossings;

(4) the allocations at each port of entry along the Northern border and the Southern border; and

(5) the number of migrant deaths occurring near the Northern border and the Southern border and the efforts that have been undertaken to mitigate such deaths.

(b) REPORT ON INTERAGENCY COLLABORATION.—The Under Secretary of Defense for Acquisition, Technology, and Logistics and the Under Secretary of Homeland Security for Science and Technology shall jointly submit a report on the results of the interagency collaboration under section 1109 to—

(1) the Committee on Armed Services of the Senate;

(2) the Committee on Homeland Security and Governmental Affairs of the Senate;

(3) the Committee on the Judiciary of the Senate;

(4) the Committee on Armed Services of the House of Representatives;

(5) the Committee on Homeland Security of the House of Representatives; and

(6) the Committee on the Judiciary of the House of Representatives.

SEC. 1118. SEVERABILITY AND DELEGATION.

(a) SEVERABILITY.—If any provision of this Act or any amendment made by this Act, or any application of such provision or amendment to any person or circumstance, is held to be unconstitutional, the remainder of the provisions of this Act and the amendments made by this Act and the application of the provision or amendment to any other person or circumstance shall not be affected.

(b) DELEGATION.—The Secretary may delegate any authority provided to the Secretary under this Act or an amendment made by this Act to the Secretary of Agriculture, the Attorney General, the Secretary of Defense, the Secretary of Health and Human Services, the Secretary of State, or the Commissioner of Social Security.

SEC. 1119. PROHIBITION ON NEW LAND BORDER CROSSING FEES.

(a) IN GENERAL.—Beginning on the date of the enactment of this Act, the Secretary shall not—

(1) establish, collect, or otherwise impose any new border crossing fee on individuals crossing the Southern border or the Northern border at a land port of entry; or

(2) conduct any study relating to the imposition of a border crossing fee.

(b) BORDER CROSSING FEE DEFINED.—In this section, the term ''border crossing fee'' means a fee that every pedestrian, cyclist, and driver and passenger of a private motor vehicle is required to pay for the privilege of crossing the Southern border or the Northern border at a land port of entry.

SEC. 1120. HUMAN TRAFFICKING REPORTING.

(a) SHORT TITLE.—This section may be cited as the ''Human Trafficking Reporting Act of 2013''.

(b) FINDINGS.—Congress finds the following:

(1) Human trafficking is a form of modern-day slavery.

(2) According to the Trafficking Victims Protection Act of 2000 ''severe forms of trafficking in persons'' means—

(A) sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

(B) the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

(3) There is an acute need for better data collection of incidents of human trafficking across the United States in order to effectively combat severe forms of trafficking in persons.

(4) The State Department's 2012 Trafficking in Persons report found that—

(A) the United States is a ''source, transit and destination country for men, women, and children, subjected to forced labor, debt bondage, domestic servitude and sex trafficking,''; and

(B) the United States needs to ''improve data collection on human trafficking cases at the federal, state and local levels''.

(5) The International Organization for Migration has reported that in order to effectively combat human trafficking there must be reliable and standardized data, however, the following barriers for data collection exist:

(A) The illicit and underground nature of human trafficking.

(B) The reluctance of victims to share information with authorities.

(C) Insufficient human trafficking data collection and research efforts by governments worldwide.

(6) A 2009 report to the Department of Health and Human Services entitled Human Trafficking Into and Within the United States: A Review of the Literature found that ''the data and methodologies for estimating the prevalence of human trafficking globally and nationally are not well developed, and therefore estimates have varied widely and changed significantly over time''.

(7) The Federal Bureau of Investigation compiles national crime statistics through the Uniform Crime Reporting Program.

(8) Under current law, State and local governments receiving Edward Byrne Memorial Justice Assistance grants are required to share data on part 1 violent crimes with the Federal Bureau of Investigation for inclusion in the Uniform Crime Reporting Program.

(9) The addition of severe forms of trafficking in persons to the definition of part 1 violent crimes will ensure that statistics on this heinous crime will be compiled and available through the Federal Bureau of Investigation's Uniform Crime Report.

(c) HUMAN TRAFFICKING TO BE INCLUDED IN PART 1 VIOLENT CRIMES FOR PURPOSES OF BYRNE GRANTS.—Section 505 of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3755) is amended by adding at the end the following new subsection:

''(i) PART 1 VIOLENT CRIMES TO INCLUDE HUMAN TRAFFICKING.—For purposes of this section, the term 'part 1 violent crimes' shall include severe forms of trafficking in persons, as defined in section 103(8) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102(8)).''.

SEC. 1121. RULE OF CONSTRUCTION.

Nothing in this Act may be construed to authorize the deployment, procurement, or construction of fencing along the Northern border.

SEC. 1122. LIMITATIONS ON DANGEROUS DEPORTATION PRACTICES.

(a) CERTIFICATION REQUIRED.—

(1) IN GENERAL.—Not later than 1 year after the date of the enactment of this Act, and every 180 days thereafter, the Secretary, except as provided in paragraph (2), shall submit written certification to Congress that the Department has only deported or otherwise removed a migrant from the United States through an entry or exit point on the Southern border during daylight hours.

(2) EXCEPTION.—The certification required under paragraph (1) shall not apply to the deportation or removal of a migrant otherwise described in that paragraph if—

(A) the manner of the deportation or removal is justified by a compelling governmental interest;

(B) the manner of the deportation or removal is in accordance with an applicable Local Arrangement for the Repatriation of Mexican Nationals entered into by the appropriate Mexican Consulate; or

(C) the migrant is not an unaccompanied minor and the migrant—

(i) is deported or removed through an entry or exit point in the same sector as the place where the migrant was apprehended; or

(ii) agrees to be deported or removed in such manner after being notified of the intended manner of deportation or removal.

(b) ADDITIONAL INFORMATION REQUIRED.—Not later than 1 year after the date of the enactment of this Act, the Secretary shall submit to Congress a study of the Alien Transfer Exit Program, which shall include—

(1) the specific locations on the Southern border where lateral repatriations have occurred during the 1-year period preceding the submission of the study;

(2) the performance measures developed by U.S. Customs and Border Protection to determine if the Alien Transfer Exit Program

is deterring migrants from repeatedly crossing the border or otherwise reducing recidivism; and

(3) the consideration given, if any, to the rates of violent crime and the availability of infrastructure and social services in Mexico near such locations.

(c) PROHIBITION ON CONFISCATION OF PROPERTY.—Notwithstanding any other provision of law, lawful, nonperishable belongings of a migrant that are confiscated by personnel operating under Federal authority shall be returned to the migrant before repatriation, to the extent practicable. (1)

SEC. 1123. MAXIMUM ALLOWABLE COSTS OF SALARIES OF CONTRACTOR EMPLOYEES.

Section 4304(a)(16) of title 41, United States Code, is amended by inserting before the period at the end the following: '', except that in the case of contracts with the Department of Homeland Security or the National Guard while operating in Federal status that relate to border security, the limit on the costs of compensation of all executives and employees of contractors is the annual amount payable under the aggregate limitation on pay as established by the Office of Management and Budget (currently $230,700)''.

Subtitle B—Other Matters

SEC. 1201. REMOVAL OF NONIMMIGRANTS WHO OVERSTAY THEIR VISAS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall initiate removal proceedings, in accordance with chapter 4 of title II of the Immigration and Nationality Act (8 U.S.C. 1221 et seq.), confirm that immigration relief or protection has been granted or is pending, or otherwise close 90 percent of the cases of nonimmigrants who—

(1) were admitted to the United States as nonimmigrants after the date of the enactment of this Act; and

(2) during the most recent 12-month period, have entered the category of having exceeded their authorized period of admission by more than 180 days.

(b) SEMIANNUAL REPORT.—Every 6 months after the date of the enactment of this Act, the Secretary shall submit a report to Congress that identifies—

(1) the total number of nonimmigrants who the Secretary has determined have exceeded their authorized period of admission by more than 180 days after the date of the enactment of this Act, categorized by—

(A) the type of visa that authorized their entry into the United States;

(B) their country of origin; and

(C) the length of time since their visa expired.

(2) an estimate of the total number of nonimmigrants who are physically present in the United States and have exceeded their authorized period of admission by more than 180 days after the date of the enactment of this Act;

(3) for the most recent 6-month and 12-month periods—

(A) the total number of removal proceedings that were initiated against nonimmigrants who were physically present in the United States more than 180 days after the expiration of the period for which they were lawfully admitted; and

(B) as a result of the removal proceedings described in paragraph (A)—

(i) the total number of removals pending;

(ii) the total number of nonimmigrants who were ordered to be removed from the United States;

(iii) the total number of nonimmigrants whose removal proceedings were cancelled; and

(iv) the total number of nonimmigrants who were granted immigration relief or protection in removal proceedings.

(c) ESTIMATED POPULATION.—Each report submitted under subsection (b) shall include a comprehensive, detailed explanation of and justification for the methodology used to estimate the population described in subsection (a).

SEC. 1202. VISA OVERSTAY NOTIFICATION PILOT PROGRAM.

(a) ESTABLISHMENT OF PILOT PROGRAM.—Not later than 1 year after the date of enactment of this Act, the Secretary shall establish a pilot program to explore the feasibility and effectiveness of notifying individuals who have traveled to the United States from a foreign nation that the terms of their admission to the United States are about to expire, including individuals that entered with a visa or through the visa waiver program.

(b) REQUIREMENTS.—In establishing the pilot program required under subsection (a), the Secretary shall—

(1) provide for the collection of contact information, including telephone numbers and email addresses, as appropriate, of individuals traveling to the United States from a foreign nation; and

(2) randomly select a pool of participants in order to form a statistically significant sample of people who travel to the United States each year to receive notification by telephone, email, or other electronic means that the terms of their admission to the United States is about to expire.

(c) REPORT.—Not later than 1 year after the date on which the Secretary establishes the pilot program under subsection (a), the Secretary shall submit to Congress a report on whether the telephone or email notifications have a statistically significant effect on reducing the rates of visa overstays in the United States.

SEC. 1203. PREVENTING UNAUTHORIZED IMMIGRATION TRANSITING THROUGH MEXICO.

(a) IN GENERAL.—The Secretary of State, in coordination with the Secretary of Homeland Security, shall develop, in consultation with the relevant Committees of Congress, a strategy to address the unauthorized immigration of individuals who transit through Mexico to the United States.

(b) REQUIREMENTS.—The strategy developed under subsection (a) shall include specific steps—

(1) to enhance the training, resources, and professionalism of border and law enforcement officials in Mexico, Honduras, El Salvador, Guatemala, and other countries, as appropriate; and

(2) to educate nationals of the countries described in paragraph (1) about the perils of the journey to the United States, including how this Act will increase the likelihood of apprehension, increase criminal penalties associated with illegal entry, and make finding employment in the United States more difficult.

(c) IMPLEMENTATION OF STRATEGY.—In carrying out the strategy developed under subsection (a)—

(1) the Secretary of Homeland Security, in conjunction with the Secretary of State, shall produce an educational campaign and disseminate information about the perils of the journey across Mexico, the likelihood of apprehension, and the difficulty of finding employment in the United States; and

(2) the Secretary of State, in coordination with the Secretary of Homeland Security, shall offer—

(A) training to border and law enforcement officials to enable these officials to operate more effectively, by using, to the greatest extent practicable, Department of Homeland Security personnel to conduct the training; and

(B) technical assistance and equipment to border officials, including computers, document readers, and other forms of technology that may be needed, as appropriate.

(d) AVAILABILITY OF FUNDS.—The Secretary of Homeland Security may use such sums as are necessary from the Comprehensive Immigration Trust Fund established under section 6(a)(1) to carry out this section.

TITLE II—IMMIGRANT VISAS

Subtitle A—Registration and Adjustment of Registered Provisional Immigrants

SEC. 2101. REGISTERED PROVISIONAL IMMIGRANT STATUS.

(a) AUTHORIZATION.—Chapter 5 of title II (8 U.S.C. 1255 et seq.) is amended by inserting after section 245A the following:

''SEC. 245B. ADJUSTMENT OF STATUS OF ELIGIBLE ENTRANTS BEFORE DECEMBER 31, 2011, TO THAT OF REGISTERED PROVISIONAL IMMIGRANT.

''(a) IN GENERAL.—Notwithstanding any other provision of law, the Secretary of Homeland Security (referred to in this section and in sections 245C through 245F as the 'Secretary'), after conducting the national security and law enforcement clearances required under subsection (c)(8), may grant registered provisional immigrant status to an alien who—

''(1) meets the eligibility requirements set forth in subsection (b);

''(2) submits a completed application before the end of the period set forth in subsection (c)(3); and

''(3) has paid the fee required under subsection (c)(10)(A) and the penalty required under subsection (c)(10)(C), if applicable.

''(b) ELIGIBILITY REQUIREMENTS.—

''(1) IN GENERAL.—An alien is not eligible for registered provisional immigrant status unless the alien establishes, by a preponderance of the evidence, that the alien meets the requirements set forth in this subsection.

''(2) PHYSICAL PRESENCE.—

''(A) IN GENERAL.—The alien—

''(i) shall be physically present in the United States on the date on which the alien submits an application for registered provisional immigrant status;

''(ii) shall have been physically present in the United States on or before December 31, 2011; and

''(iii) shall have maintained continuous physical presence in the United States from December 31, 2011, until the date on which the alien is granted status as a registered provisional immigrant under this section.

''(B) BREAK IN PHYSICAL PRESENCE.—

''(i) IN GENERAL.—Except as provided in clause (ii), an alien who is absent from the United States without authorization after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act does not meet the continuous physical presence requirement set forth in subparagraph (A)(iii).

''(ii) EXCEPTION.—An alien who departed from the United States after December 31, 2011, will not be considered to have failed to maintain continuous presence in the United States if the alien's absences from the United States are brief, casual, and innocent whether or not such absences were authorized by the Secretary.

''(3) GROUNDS FOR INELIGIBILITY.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), an alien is ineligible for registered provisional immigrant status if the Secretary determines that the alien—

''(i) has a conviction for—

''(I) an offense classified as a felony in the convicting jurisdiction (other than a State or local offense for which an essential element was the alien's immigration status, or a violation of this Act);

''(II) an aggravated felony (as defined in section 101(a)(43) at the time of the conviction);

''(III) 3 or more misdemeanor offenses (other than minor traffic offenses or State or local offenses for which an essential element was the alien's immigration status, or violations of this Act) if the alien was convicted on different dates for each of the 3 offenses;

''(IV) any offense under foreign law, except for a purely political offense, which, if the offense had been committed in the United States, would render the alien inadmissible under section 212(a) (excluding the paragraphs set forth in clause (ii)) or removable under section 237(a), except as provided in paragraph (3) of section 237(a);

''(V) unlawful voting (as defined in section 237(a)(6));

''(ii) is inadmissible under section 212(a), except that in determining an alien's inadmissibility—

''(I) paragraphs (4), (5), (7), and (9)(B) of section 212(a) shall not apply;

''(II) subparagraphs (A), (C), (D), (F), and (G) of section 212(a)(6) and paragraphs (9)(C) and (10)(B) of section 212(a) shall not apply unless based on the act of unlawfully entering the United States after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; and

''(III) paragraphs (6)(B) and (9)(A) of section 212(a) shall not apply unless the relevant conduct began on or after the date on which the alien files an application for registered provisional immigrant status under this section;

''(iii) is an alien who the Secretary knows or has reasonable grounds to believe, is engaged in or is likely to engage after entry in any terrorist activity (as defined in section 212(a)(3)(B)(iv)); or

''(iv) was, on April 16, 2013—

''(I) an alien lawfully admitted for permanent residence;

''(II) an alien admitted as a refugee under section 207 or granted asylum under section 208; or

''(III) an alien who, according to the records of the Secretary or the Secretary of State, is lawfully present in the United States in any nonimmigrant status (other than an alien considered to be a nonimmigrant solely due to the application of section 244(f)(4) or the amendment made by section 702 of the Consolidated Natural Resources Act of 2008 (Public Law 110–229)), notwithstanding any unauthorized employment or other violation of nonimmigrant status.

''(B) WAIVER.—

''(i) IN GENERAL.—The Secretary may waive the application of subparagraph (A)(i)(III) or any provision of section 212(a) that is not listed in clause (ii) on behalf of an alien for humanitarian purposes, to ensure family unity, or if such a waiver is otherwise in the public interest. Any discretionary authority to waive grounds of inadmissibility under section 212(a) conferred under any other provision of this Act shall apply equally to aliens seeking registered provisional status under this section.

''(ii) EXCEPTIONS.—The discretionary authority under clause (i) may not be used to waive—

''(I) subparagraph (B), (C), (D)(ii), (E), (G), (H), or (I) of section 212(a)(2);

''(II) section 212(a)(3);

''(III) subparagraph (A), (C), (D), or (E) of section 212(a)(10); or

''(IV) with respect to misrepresentations relating to the application for registered provisional immigrant status, section 212(a)(6)(C)(i).

''(C) CONVICTION EXPLAINED.—For purposes of this paragraph, the term 'conviction' does not include a judgment that has been expunged, set aside, or the equivalent.

''(D) RULE OF CONSTRUCTION.—Nothing in this paragraph may be construed to require the Secretary to commence removal proceedings against an alien.

''(4) APPLICABILITY OF OTHER PROVISIONS.—Sections 208(d)(6) and 240B(d) shall not apply to any alien filing an application for registered provisional immigrant status under this section.

''(5) DEPENDENT SPOUSE AND CHILDREN.—

''(A) IN GENERAL.—Notwithstanding any other provision of law, the Secretary may classify the spouse or child of a registered provisional immigrant as a registered provisional immigrant dependent if the spouse or child—

''(i) was physically present in the United States on or before December 31, 2012, and has maintained continuous presence in the United States from that date until the date on which the registered provisional immigrant is granted such status, with the exception of absences from the United States that are brief, casual, and innocent, whether or not such absences were authorized by the Secretary; and

''(ii) meets all of the eligibility requirements set forth in this subsection, other than the requirements of clause (ii) or (iii) of paragraph (2)(A).

''(B) EFFECT OF TERMINATION OF LEGAL RELATIONSHIP OR DOMESTIC VIOLENCE.—If the spousal or parental relationship between an alien who is granted registered provisional immigrant status under this section and the alien's spouse or child is terminated due to death or divorce or the spouse or child has been battered or subjected to extreme cruelty by the alien (regardless of whether the legal relationship terminates), the spouse or child may apply for classification as a registered provisional immigrant.

''(C) EFFECT OF DISQUALIFICATION OF PARENT.—Notwithstanding subsection (c)(3), if the application of a spouse or parent for registered provisional immigrant status is terminated or revoked, the husband, wife, or child of that spouse or parent shall be eligible to apply for registered provisional immigrant status independent of the parent or spouse.

''(c) APPLICATION PROCEDURES.—

''(1) IN GENERAL.—An alien, or the dependent spouse or child of such alien, who meets the eligibility requirements set forth in subsection (b) may apply for status as a registered provisional immigrant or a registered provisional immigrant dependent, as applicable, by submitting a completed application form to the Secretary during the application period set forth in paragraph (3), in accordance with the final rule promulgated by the Secretary under the Border Security, Economic Opportunity, and Immigration Modernization Act. An applicant for registered provisional immigrant status shall be treated as an applicant for admission.

''(2) PAYMENT OF TAXES.—

''(A) IN GENERAL.—An alien may not file an application for registered provisional immigrant status under paragraph (1) unless the applicant has satisfied any applicable Federal tax liability.

''(B) DEFINITION OF APPLICABLE FEDERAL TAX LIABILITY.—In this paragraph, the term 'applicable Federal tax liability' means all Federal income taxes assessed in accordance with section 6203 of the Internal Revenue Code of 1986.

''(C) DEMONSTRATION OF COMPLIANCE.—An applicant may demonstrate compliance with this paragraph by submitting appropriate documentation, in accordance with regulations promulgated by the Secretary, in consultation with the Secretary of the Treasury.

''(3) APPLICATION PERIOD.—

''(A) INITIAL PERIOD.—Except as provided in subparagraph (B), the Secretary may only accept applications for registered provisional immigrant status from aliens in the United States during the 1-year period beginning on the date on which the final rule is published in the Federal Register pursuant to paragraph (1).

''(B) EXTENSION.—If the Secretary determines, during the initial period described in subparagraph (A), that additional time is required to process applications for registered provisional immigrant status or for other good cause, the Secretary may extend the period for accepting applications for such status for an additional 18 months.

''(4) APPLICATION FORM.—

''(A) REQUIRED INFORMATION.—

''(i) IN GENERAL.—The application form referred to in paragraph (1) shall collect such information as the Secretary determines to be necessary and appropriate, including, for the purpose of understanding immigration trends—

''(I) an explanation of how, when, and where the alien entered the United States;

''(II) the country in which the alien resided before entering the United States; and

''(III) other demographic information specified by the Secretary.

''(ii) PRIVACY PROTECTIONS.—Information described in subclauses (I) through (III) of clause (i), which shall be provided anonymously by the applicant on the application form referred to in paragraph (1), shall be subject to the same confidentiality provisions as those set forth in section 9 of title 13, United States Code.

''(iii) REPORT.—The Secretary shall submit a report to Congress that contains a summary of the statistical data about immigration trends collected pursuant to clause (i).

''(B) FAMILY APPLICATION.—The Secretary shall establish a process through which an alien may submit a single application under this section on behalf of the alien, his or her spouse, and his or her children who are residing in the United States.

''(C) INTERVIEW.—The Secretary may interview applicants for registered provisional immigrant status under this section to determine whether they meet the eligibility requirements set forth in subsection (b).

''(5) ALIENS APPREHENDED BEFORE OR DURING THE APPLICATION PERIOD.—If an alien who is apprehended during the period beginning on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act and the end of the application period described in paragraph (3) appears prima facie eligible for registered provisional immigrant status, to the satisfaction of the Secretary, the Secretary—

''(A) shall provide the alien with a reasonable opportunity to file an application under this section during such application period; and

''(B) may not remove the individual until a final administrative determination is made on the application.

''(6) ELIGIBILITY AFTER DEPARTURE.—

''(A) IN GENERAL.—An alien who departed from the United States while subject to an order of exclusion, deportation, or removal, or pursuant to an order of voluntary departure and who is outside of the United States, or who has reentered the United States illegally after December 31, 2011 without receiving the Secretary's consent to reapply for admission under section 212(a)(9), shall not be eligible to file an application for registered provisional immigrant status.

''(B) WAIVER.—The Secretary, in the Secretary's sole and unreviewable discretion, subject to subparagraph (D), may waive the application of subparagraph (A) on behalf of an alien if the alien—

''(i) is the spouse or child of a United States citizen or lawful permanent resident;

''(ii) is the parent of a child who is a United States citizen or lawful permanent resident;

''(iii) meets the requirements set forth in clauses (ii) and (iii) of section 245D(b)(1)(A); or

''(iv) meets the requirements set forth in section 245D(b)(1)(A)(ii), is 16 years or older on the date on which the alien applies for registered provisional immigrant status, and was physically present in the United States for an aggregate period of not less than 3 years during the 6-year period immediately preceding the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(C) ELIGIBILITY.—Subject to subparagraph (D) and notwithstanding subsection (b)(2), section 241(a)(5), or a prior order of exclusion, deportation, or removal, an alien described in subparagraph (B) who is otherwise eligible for registered provisional immigrant status may file an application for such status.

''(D) CRIME VICTIMS' RIGHTS TO NOTICE AND CONSULTATION.—Prior to applying, or exercising, any authority under this paragraph, or ruling upon an application allowed under subparagraph (C) the Secretary shall—

''(i) determine whether or not an alien described under subparagraph (B) or (C) has a conviction for any criminal offense;

''(ii) in consultation with the agency that prosecuted the criminal offense under clause (i), if the agency, in the sole discretion of the agency, is willing to cooperate with the Secretary, make all reasonable efforts to identify each victim of a crime for which an alien determined to be a criminal under clause (i) has a conviction;

''(iii) in consultation with the agency that prosecuted the criminal offense under clause (i), if the agency, in the sole discretion of the agency, is willing to cooperate with the Secretary, make all reasonable efforts to provide each victim identified under clause (ii) with written notice that the alien is being considered for a waiver under this paragraph, specifying in such notice that the victim may—

''(I) take no further action;

''(II) request written notification by the Secretary of any subsequent application for waiver filed by the criminal alien under this paragraph and of the final determination of the Secretary regarding such application; or

''(III) not later than 60 days after the date on which the victim receives written notice under this clause, request a consultation with the Secretary relating to whether the application of the offender should be granted and if the victim cannot be located or if no response is received from the victim within the designated time period, the Secretary shall proceed with adjudication of the application; and

''(iv) at the request of a victim under clause (iii), consult with the victim to determine whether or not the Secretary should, in the case of an alien who is determined under clause (i) to have a conviction for any criminal offense, exercise waiver authority for an alien described under subparagraph (B), or grant the application of an alien described under subparagraph (C).

''(E) CRIME VICTIMS' RIGHT TO INTERVENTION.—In addition to the victim notification and consultation provided for in subparagraph (D), the Secretary shall allow the victim of a criminal alien described under subparagraph (B) or (C) to request consultation regarding, or notice of, any application for waiver filed by the criminal alien under this paragraph, including the final determination of the Secretary regarding such application.

''(F) CONFIDENTIALITY PROTECTIONS FOR CRIME VICTIMS.—The Secretary and the Attorney General may not make an adverse determination of admissibility or deportability of any alien who is a victim and not lawfully present in the United States based solely on information supplied or derived in the process of identification, notification, or consultation under this paragraph.

''(G) REPORTS REQUIRED.—Not later than September 30 of each fiscal year in which the Secretary exercises authority under this paragraph to rule upon the application of a criminal offender allowed under subparagraph (C), the Secretary shall submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report detailing the execution of the victim identification and notification process required under subparagraph (D), which shall include—

''(i) the total number of criminal offenders who have filed an application under subparagraph (C) and the crimes committed by such offenders;

''(ii) the total number of criminal offenders whose application under subparagraph (C) has been granted and the crimes committed by such offenders; and

''(iii) the total number of victims of criminal offenders under clause (ii) who were not provided with written notice of the offender's application and the crimes committed against the victims.

''(H) DEFINITION.—In this paragraph, the term 'victim' has the meaning given the term in section 503(e) of the Victims' Rights and Restitution Act of 1990 (42 U.S.C. 10607(e)).

''(7) SUSPENSION OF REMOVAL DURING APPLICATION PERIOD.—

''(A) PROTECTION FROM DETENTION OR REMOVAL.—A registered provisional immigrant may not be detained by the Secretary or removed from the United States, unless—

''(i) the Secretary determines that—

''(I) such alien is, or has become, ineligible for registered provisional immigrant status under subsection (b)(3); or

''(II) the alien's registered provisional immigrant status has been revoked under subsection (d)(2).

''(B) ALIENS IN REMOVAL PROCEEDINGS.—Notwithstanding any other provision of this Act—

''(i) if the Secretary determines that an alien, during the period beginning on the date of the enactment of this section and ending on the last day of the application period described in paragraph (3), is in removal, deportation, or exclusion proceedings before the Executive Office for Immigration Review and is prima facie eligible for registered provisional immigrant status under this section—

''(I) the Secretary shall provide the alien with the opportunity to file an application for such status; and

''(II) upon motion by the Secretary and with the consent of the alien or upon motion by the alien, the Executive Office for Immigration Review shall—

''(aa) terminate such proceedings without prejudice to future proceedings on any basis; and

''(bb) provide the alien a reasonable opportunity to apply for such status; and

''(ii) if the Executive Office for Immigration Review determines that an alien, during the period beginning on the date of the enactment of this section and ending on the last day of the application period described in paragraph (3), is in removal, deportation, or exclusion proceedings before the Executive Office for Immigration Review and is prima facie eligible for registered provisional immigrant status under this section—

''(I) the Executive Office of Immigration Review shall notify the Secretary of such determination; and

''(II) if the Secretary does not dispute the determination of prima facie eligibility within 7 days after such notification, the Executive Office for Immigration Review, upon consent of the alien, shall—

''(aa) terminate such proceedings without prejudice to future proceedings on any basis; and

''(bb) permit the alien a reasonable opportunity to apply for such status.

''(C) TREATMENT OF CERTAIN ALIENS.—

''(i) IN GENERAL.—If an alien who meets the eligibility requirements set forth in subsection (b) is present in the United States and has been ordered excluded, deported, or removed, or ordered to depart voluntarily from the United States under any provision of this Act—

''(I) notwithstanding such order or section 241(a)(5), the alien may apply for registered provisional immigrant status under this section; and

''(II) if the alien is granted such status, the alien shall file a motion to reopen the exclusion, deportation, removal, or voluntary departure order, which motion shall be granted unless 1 or more of the grounds of ineligibility is established by clear and convincing evidence.

''(ii) LIMITATIONS ON MOTIONS TO REOPEN.—The limitations on motions to reopen set forth in section 240(c)(7) shall not apply to motions filed under clause (i)(II).

''(D) PERIOD PENDING ADJUDICATION OF APPLICATION.—

''(i) IN GENERAL.—During the period beginning on the date on which an alien applies for registered provisional immigrant status under paragraph (1) and the date on which the Secretary makes a final decision regarding such application, the alien—

''(I) may receive advance parole to reenter the United States if urgent humanitarian circumstances compel such travel;

''(II) may not be detained by the Secretary or removed from the United States unless the Secretary makes a prima facie determination that such alien is, or has become, ineligible for registered provisional immigrant status under subsection (b)(3);

''(III) shall not be considered unlawfully present for purposes of section 212(a)(9)(B); and

''(IV) shall not be considered an unauthorized alien (as defined in section 274A(h)(3)).

''(ii) EVIDENCE OF APPLICATION FILING.—As soon as practicable after receiving each application for registered provisional immigrant status, the Secretary shall provide the applicant with a document acknowledging the receipt of such application.

''(iii) CONTINUING EMPLOYMENT.—An employer who knows that an alien employee is an applicant for registered provisional immigrant status or will apply for such status once the application period commences is not in violation of section 274A(a)(2) if the employer continues to employ the alien pending the adjudication of the alien employee's application.

''(iv) EFFECT OF DEPARTURE.—Section 101(g) shall not apply to an alien granted—

''(I) advance parole under clause (i)(I) to reenter the United States; or

''(II) registered provisional immigrant status.

''(8) SECURITY AND LAW ENFORCEMENT CLEARANCES.—

''(A) BIOMETRIC AND BIOGRAPHIC DATA.—The Secretary may not grant registered provisional immigrant status to an alien or an alien dependent spouse or child under this section unless such alien submits biometric and biographic data in accordance with procedures established by the Secretary.

''(B) ALTERNATIVE PROCEDURES.—The Secretary shall provide an alternative procedure

for applicants who cannot provide the biometric data required under subparagraph (A) because of a physical impairment.

''(C) CLEARANCES.—

''(i) DATA COLLECTION.—The Secretary shall collect, from each alien applying for status under this section, biometric, biographic, and other data that the Secretary determines to be appropriate—

''(I) to conduct national security and law enforcement clearances; and

''(II) to determine whether there are any national security or law enforcement factors that would render an alien ineligible for such status.

''(ii) ADDITIONAL SECURITY SCREENING.—The Secretary, in consultation with the Secretary of State and other interagency partners, shall conduct an additional security screening upon determining, in the Secretary's opinion based upon information related to national security, that an alien or alien dependent spouse or child is or was a citizen or long-term resident of a region or country known to pose a threat, or that contains groups or organizations that pose a threat, to the national security of the United States.

''(iii) PREREQUISITE.—The required clearances and screenings described in clauses (i)(I) and (ii) shall be completed before the alien may be granted registered provisional immigrant status.

''(9) DURATION OF STATUS AND EXTENSION.—

''(A) IN GENERAL.—The initial period of authorized admission for a registered provisional immigrant—

''(i) shall remain valid for 6 years unless revoked pursuant to subsection (d)(2); and

''(ii) may be extended for additional 6-year terms if—

''(I) the alien remains eligible for registered provisional immigrant status;

''(II) the alien meets the employment requirements set forth in subparagraph (B);

''(III) the alien has successfully passed background checks that are equivalent to the background checks described in section 245D(b)(1)(E); and

''(IV) such status was not revoked by the Secretary for any reason.

''(B) EMPLOYMENT OR EDUCATION REQUIREMENT.—Except as provided in subparagraphs (D) and (E) of section 245C(b)(3), an alien may not be granted an extension of registered provisional immigrant status under this paragraph unless the alien establishes that, during the alien's period of status as a registered provisional immigrant, the alien—

''(i)(I) was regularly employed throughout the period of admission as a registered provisional immigrant, allowing for brief periods lasting not more than 60 days; and

''(II) is not likely to become a public charge (as determined under section 212(a)(4)); or

''(ii) is able to demonstrate average income or resources that are not less than 100 percent of the Federal poverty level throughout the period of admission as a registered provisional immigrant.

''(C) PAYMENT OF TAXES.—An applicant may not be granted an extension of registered provisional immigrant status under subparagraph (A)(ii) unless the applicant has satisfied any applicable Federal tax liability in accordance with paragraph (2).

''(10) FEES AND PENALTIES.—

''(A) STANDARD PROCESSING FEE.—

''(i) IN GENERAL.—Aliens who are 16 years of age or older and are applying for registered provisional immigrant status under paragraph (1), or for an extension of such status under paragraph (9)(A)(ii), shall pay a processing fee to the Department of Homeland Security in an amount determined by the Secretary.

''(ii) RECOVERY OF COSTS.—The processing fee authorized under clause (i) shall be set at a level that is sufficient to recover the full costs of processing the application, including any costs incurred—

''(I) to adjudicate the application;

''(II) to take and process biometrics;

''(III) to perform national security and criminal checks, including adjudication;

''(IV) to prevent and investigate fraud; and

''(V) to administer the collection of such fee.

''(iii) AUTHORITY TO LIMIT FEES.—The Secretary, by regulation, may—

''(I) limit the maximum processing fee payable under this subparagraph by a family, including spouses and unmarried children younger than 21 years of age; and

''(II) exempt defined classes of individuals, including individuals described in section 245B(c)(13), from the payment of the fee authorized under clause (i).

''(B) DEPOSIT AND USE OF PROCESSING FEES.—Fees collected under subparagraph (A)(i)—

''(i) shall be deposited into the Immigration Examinations Fee Account pursuant to section 286(m); and

''(ii) shall remain available until expended pursuant to section 286(n).

''(C) PENALTY.—

''(i) PAYMENT.—In addition to the processing fee required under subparagraph (A), aliens not described in section 245D(b)(A)(ii) who are 21 years of age or older and are filing an application under this subsection shall pay a $1,000 penalty to the Department of Homeland Security.

''(ii) INSTALLMENTS.—The Secretary shall establish a process for collecting payments required under clause (i) that permits the penalty under that clause to be paid in periodic installments that shall be completed before the alien may be granted an extension of status under paragraph (9)(A)(ii).

''(iii) DEPOSIT.—Penalties collected pursuant to this subparagraph shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(11) ADJUDICATION.—

''(A) FAILURE TO SUBMIT SUFFICIENT EVIDENCE.—The Secretary shall deny an application submitted by an alien who fails to submit—

''(i) requested initial evidence, including requested biometric data; or

''(ii) any requested additional evidence by the date required by the Secretary.

''(B) AMENDED APPLICATION.—An alien whose application for registered provisional immigrant status is denied under subparagraph (A) may file an amended application for such status to the Secretary if the amended application—

''(i) is filed within the application period described in paragraph (3); and

''(ii) contains all the required information and fees that were missing from the initial application.

''(12) EVIDENCE OF REGISTERED PROVISIONAL IMMIGRANT STATUS.—

''(A) IN GENERAL.—The Secretary shall issue documentary evidence of registered provisional immigrant status to each alien whose application for such status has been approved.

''(B) DOCUMENTATION FEATURES.—Documentary evidence provided under subparagraph (A)—

''(i) shall be machine-readable and tamper-resistant, and shall contain a digitized photograph;

''(ii) shall, during the alien's authorized period of admission, and any extension of such authorized admission, serve as a valid travel and entry document for the purpose of applying for admission to the United States;

''(iii) may be accepted during the period of its validity by an employer as evidence of employment authorization and identity under section 274A(b)(1)(B);

''(iv) shall indicate that the alien is authorized to work in the United States for up to 3 years; and

''(v) shall include such other features and information as may be prescribed by the Secretary.

''(13) DACA RECIPIENTS.—Unless the Secretary determines that an alien who was granted Deferred Action for Childhood Arrivals (referred to in this paragraph as 'DACA') pursuant to the Secretary's memorandum of June 15, 2012, has engaged in conduct since the alien was granted DACA that would make the alien ineligible for registered provisional immigrant status, the Secretary may grant such status to the alien if renewed national security and law enforcement clearances have been completed on behalf of the alien.

''(d) TERMS AND CONDITIONS OF REGISTERED PROVISIONAL IMMIGRANT STATUS.—

''(1) CONDITIONS OF REGISTERED PROVISIONAL IMMIGRANT STATUS.—

''(A) EMPLOYMENT.—Notwithstanding any other provision of law, including section 241(a)(7), a registered provisional immigrant shall be authorized to be employed in the United States while in such status.

''(B) TRAVEL OUTSIDE THE UNITED STATES.—A registered provisional immigrant may travel outside of the United States and may be admitted, if otherwise admissible, upon returning to the United States without having to obtain a visa if—

''(i) the alien is in possession of—

''(I) valid, unexpired documentary evidence of registered provisional immigrant status that complies with subsection (c)(12); or

''(II) a travel document, duly approved by the Secretary, that was issued to the alien after the alien's original documentary evidence was lost, stolen, or destroyed;

''(ii) the alien's absence from the United States did not exceed 180 days, unless the alien's failure to timely return was due to extenuating circumstances beyond the alien's control;

''(iii) the alien meets the requirements for an extension as described in subclauses (I) and (III) of paragraph (9)(A); and

''(iv) the alien establishes that the alien is not inadmissible under subparagraph (A)(i), (A)(iii), (B), or (C) of section 212(a)(3).

''(C) ADMISSION.—An alien granted registered provisional immigrant status under this section shall be considered to have been admitted and lawfully present in the United States in such status as of the date on which the alien's application was filed.

''(D) CLARIFICATION OF STATUS.—An alien granted registered provisional immigrant status—

''(i) is lawfully admitted to the United States; and

''(ii) may not be classified as a nonimmigrant or as an alien who has been lawfully admitted for permanent residence.

''(2) REVOCATION.—

''(A) IN GENERAL.—The Secretary may revoke the status of a registered provisional immigrant at any time after providing appropriate notice to the alien, and after the exhaustion or waiver of all applicable administrative review procedures under section 245E(c), if the alien—

''(i) no longer meets the eligibility requirements set forth in subsection (b);

''(ii) knowingly used documentation issued under this section for an unlawful or fraudulent purpose;

''(iii) is convicted of fraudulently claiming or receiving a Federal means-tested benefit

(as defined and implemented in section 403 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613)) after being granted registered provisional immigrant status; or

''(iv) was absent from the United States—

''(I) for any single period longer than 180 days in violation of the requirements set forth in paragraph (1)(B)(ii); or

''(II) for more than 180 days in the aggregate during any calendar year, unless the alien's failure to timely return was due to extenuating circumstances beyond the alien's control.

''(B) ADDITIONAL EVIDENCE.—In determining whether to revoke an alien's status under subparagraph (A), the Secretary may require the alien—

''(i) to submit additional evidence; or

''(ii) to appear for an interview.

''(C) INVALIDATION OF DOCUMENTATION.—If an alien's registered provisional immigrant status is revoked under subparagraph (A), any documentation issued by the Secretary to such alien under subsection (c)(12) shall automatically be rendered invalid for any purpose except for departure from the United States.

''(3) INELIGIBILITY FOR PUBLIC BENEFITS.—

''(A) IN GENERAL.—An alien who has been granted registered provisional immigrant status under this section is not eligible for any Federal means-tested public benefit (as defined and implemented in section 403 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613)).

''(B) AUDITS.—The Secretary of Health and Human Services shall conduct regular audits to ensure that registered provisional immigrants are not fraudulently receiving any of the benefits described in subparagraph (A).

''(4) TREATMENT OF REGISTERED PROVISIONAL IMMIGRANTS.—A noncitizen granted registered provisional immigrant status under this section shall be considered lawfully present in the United States for all purposes while such noncitizen remains in such status, except that the noncitizen—

''(A) is not entitled to the premium assistance tax credit authorized under section 36B of the Internal Revenue Code of 1986 for his or her coverage;

''(B) shall be subject to the rules applicable to individuals not lawfully present that are set forth in subsection (e) of such section;

''(C) shall be subject to the rules applicable to individuals not lawfully present that are set forth in section 1402(e) of the Patient Protection and Affordable Care Act (42 U.S.C. 18071); and

''(D) shall be subject to the rules applicable to individuals not lawfully present set forth in section 5000A(d)(3) of the Internal Revenue Code of 1986.

''(5) ASSIGNMENT OF SOCIAL SECURITY NUMBER.—

''(A) IN GENERAL.—The Commissioner of Social Security, in coordination with the Secretary, shall implement a system to allow for the assignment of a Social Security number and the issuance of a Social Security card to each alien who has been granted registered provisional immigrant status under this section.

''(B) USE OF INFORMATION.—The Secretary shall provide the Commissioner of Social Security with information from the applications filed by aliens granted registered provisional immigrant status under this section and such other information as the Commissioner determines to be necessary to assign a Social Security account number to such aliens. The Commissioner may use information received from the Secretary under this subparagraph to assign Social Security account numbers to such aliens and to administer the programs of the Social Security Administration. The Commissioner may maintain, use, and disclose such information only as permitted under section 552a of title 5, United States Code (commonly known as the Privacy Act of 1974) and other applicable Federal laws.

''(e) DISSEMINATION OF INFORMATION ON REGISTERED PROVISIONAL IMMIGRANT PROGRAM.—As soon as practicable after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary, in cooperation with entities approved by the Secretary, and in accordance with a plan adopted by the Secretary, shall broadly disseminate, in the most common languages spoken by aliens who would qualify for registered provisional immigrant status under this section, to television, radio, print, and social media to which such aliens would likely have access—

''(1) the procedures for applying for such status;

''(2) the terms and conditions of such status; and

''(3) the eligibility requirements for such status.''.

(b) ENLISTMENT IN THE ARMED FORCES.—Section 504(b)(1) of title 10, United States Code, is amended by adding at the end the following:

''(D) An alien who has been granted registered provisional immigrant status under section 245B of the Immigration and Nationality Act.''.

SEC. 2102. ADJUSTMENT OF STATUS OF REGISTERED PROVISIONAL IMMIGRANTS.

(a) IN GENERAL.—Chapter 5 of title II (8 U.S.C. 1255 et seq.) is amended by inserting after section 245B, as added by section 2101 of this title, the following:

''SEC. 245C. ADJUSTMENT OF STATUS OF REGISTERED PROVISIONAL IMMIGRANTS.

''(a) IN GENERAL.—Subject to section 245E(d) and section 2302(c)(3) of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary may adjust the status of a registered provisional immigrant to that of an alien lawfully admitted for permanent residence if the registered provisional immigrant satisfies the eligibility requirements set forth in subsection (b).

''(b) ELIGIBILITY REQUIREMENTS.—

''(1) REGISTERED PROVISIONAL IMMIGRANT STATUS.—

''(A) IN GENERAL.—The alien was granted registered provisional immigrant status under section 245B and remains eligible for such status.

''(B) CONTINUOUS PHYSICAL PRESENCE.—The alien establishes, to the satisfaction of the Secretary, that the alien was not continuously absent from the United States for more than 180 days in any calendar year during the period of admission as a registered provisional immigrant, unless the alien's absence was due to extenuating circumstances beyond the alien's control.

''(C) MAINTENANCE OF WAIVERS OF INADMISSIBILITY.—The grounds of inadmissibility set forth in section 212(a) that were previously waived for the alien or made inapplicable under section 245B(b) shall not apply for purposes of the alien's adjustment of status under this section.

''(D) PENDING REVOCATION PROCEEDINGS.—If the Secretary has notified the applicant that the Secretary intends to revoke the applicant's registered provisional immigrant status under section 245B(d)(2)(A), the Secretary may not approve an application for adjustment of status under this section unless the Secretary makes a final determination not to revoke the applicant's status.

''(2) PAYMENT OF TAXES.—

''(A) IN GENERAL.—An applicant may not file an application for adjustment of status under this section unless the applicant has satisfied any applicable Federal tax liability.

''(B) DEFINITION OF APPLICABLE FEDERAL TAX LIABILITY.—In subparagraph (A), the term 'applicable Federal tax liability' means all Federal income taxes assessed in accordance with section 6203 of the Internal Revenue Code of 1986 since the date on which the applicant was authorized to work in the United States as a registered provisional immigrant under section 245B(a).

''(C) COMPLIANCE.—The applicant may demonstrate compliance with subparagraph (A) by submitting such documentation as the Secretary, in consultation with the Secretary of the Treasury, may require by regulation.

''(3) EMPLOYMENT REQUIREMENT.—

''(A) IN GENERAL.—Except as provided in subparagraphs (D) and (E), an alien applying for adjustment of status under this section shall establish that, during his or her period of status as a registered provisional immigrant, he or she—

''(i)(I) was regularly employed throughout the period of admission as a registered provisional immigrant, allowing for brief periods lasting not more than 60 days; and

''(II) is not likely to become a public charge (as determined under section 212(a)(4)); or

''(ii) can demonstrate average income or resources that are not less than 125 percent of the Federal poverty level throughout the period of admission as a registered provisional immigrant.

''(B) EVIDENCE OF EMPLOYMENT.—

''(i) DOCUMENTS.—An alien may satisfy the employment requirement under subparagraph (A)(i) by submitting, to the Secretary, records that—

''(I) establish, by the preponderance of the evidence, compliance with such employment requirement; and

''(II) have been maintained by the Social Security Administration, the Internal Revenue Service, or any other Federal, State, or local government agency.

''(ii) OTHER DOCUMENTS.—An alien who is unable to submit the records described in clause (i) may satisfy the employment or education requirement under subparagraph (A) by submitting to the Secretary at least 2 types of reliable documents not described in clause (i) that provide evidence of employment or education, including—

''(I) bank records;

''(II) business records;

''(III) employer records;

''(IV) records of a labor union, day labor center, or organization that assists workers in employment;

''(V) sworn affidavits from nonrelatives who have direct knowledge of the alien's work or education, that contain—

''(aa) the name, address, and telephone number of the affiant;

''(bb) the nature and duration of the relationship between the affiant and the alien; and

''(cc) other verification or information;

''(VI) remittance records; and

''(VII) school records from institutions described in subparagraph (D).

''(iii) ADDITIONAL DOCUMENTS AND RESTRICTIONS.—The Secretary may—

''(I) designate additional documents that may be used to establish compliance with the requirement under subparagraph (A); and

''(II) set such terms and conditions on the use of affidavits as may be necessary to verify and confirm the identity of any affiant or to otherwise prevent fraudulent submissions.

''(C) SATISFACTION OF EMPLOYMENT REQUIREMENT.—An alien may not be required to

satisfy the employment requirements under this section with a single employer.

''(D) EDUCATION PERMITTED.—An alien may satisfy the requirement under subparagraph (A), in whole or in part, by providing evidence of full-time attendance at—

''(i) an institution of higher education (as defined in section 102(a) of the Higher Education Act of 1965 (20 U.S.C. 1002(a)));

''(ii) a secondary school, including a public secondary school (as defined in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801));

''(iii) an education, literacy, or career and technical training program (including vocational training) that is designed to lead to placement in postsecondary education, job training, or employment through which the alien is working toward such placement; or

''(iv) an education program assisting students either in obtaining a high school equivalency diploma, certificate, or its recognized equivalent under State law (including a certificate of completion, certificate of attendance, or alternate award), or in passing a General Educational Development exam or other equivalent State-authorized exam or completed other applicable State requirements for high school equivalency.

''(E) AUTHORIZATION OF EXCEPTIONS AND WAIVERS.—

''(i) EXCEPTIONS BASED ON AGE OR DISABILITY.—The employment and education requirements under this paragraph shall not apply to any alien who—

''(I) is younger than 21 years of age on the date on which the alien files an application for the first extension of the initial period of authorized admission as a registered provisional immigrant;

''(II) is at least 60 years of age on the date on which the alien files an application for an extension of registered provisional immigrant status or at least 65 years of age on the date on which the alien's application for adjustment of status is filed under this section; or

''(III) has a physical or mental disability (as defined in section 3(2) of the Americans with Disabilities Act of 1990 (42 U.S.C. 12102(2))) or as a result of pregnancy if such condition is evidenced by the submission of documentation prescribed by the Secretary.

''(ii) FAMILY EXCEPTIONS.—The employment and education requirements under this paragraph shall not apply to any alien who is a dependent registered provisional immigrant under subsection (b)(5).

''(iii) TEMPORARY EXCEPTIONS.—The employment and education requirements under this paragraph shall not apply during any period during which the alien—

''(I) was on medical leave, maternity leave, or other employment leave authorized by Federal law, State law, or the policy of the employer;

''(II) is or was the primary caretaker of a child or another person who requires supervision or is unable to care for himself or herself; or

''(III) was unable to work due to circumstances outside the control of the alien.

''(iv) WAIVER.—The Secretary may waive the employment or education requirements under this paragraph with respect to any individual alien who demonstrates extreme hardship to himself or herself or to a spouse, parent, or child who is a United States citizen or lawful permanent resident.

''(4) ENGLISH SKILLS.—

''(A) IN GENERAL.—Except as provided under subparagraph (C), a registered provisional immigrant who is 16 years of age or older shall establish that he or she—

''(i) meets the requirements set forth in section 312; or

''(ii) is satisfactorily pursuing a course of study, pursuant to standards established by the Secretary of Education, in consultation with the Secretary, to achieve an understanding of English and knowledge and understanding of the history and Government of the United States, as described in section 312(a).

''(B) RELATION TO NATURALIZATION EXAMINATION.—A registered provisional immigrant who demonstrates that he or she meets the requirements set forth in section 312 may be considered to have satisfied such requirements for purposes of becoming naturalized as a citizen of the United States.

''(C) EXCEPTIONS.—

''(i) MANDATORY.—Subparagraph (A) shall not apply to any person who is unable to comply with the requirements under that subparagraph because of a physical or developmental disability or mental impairment.

''(ii) DISCRETIONARY.—The Secretary may waive all or part of subparagraph (A) for a registered provisional immigrant who is 70 years of age or older on the date on which an application is filed for adjustment of status under this section.

''(5) MILITARY SELECTIVE SERVICE.—The alien shall provide proof of registration under the Military Selective Service Act (50 U.S.C. App. 451 et seq.), if the alien is subject to such registration on or after the date on which the alien's application for registered provisional immigrant status is granted.

''(c) APPLICATION PROCEDURES.—

''(1) IN GENERAL.—Beginning on the date described in paragraph (2), a registered provisional immigrant, or a registered provisional immigrant dependent, who meets the eligibility requirements set forth in subsection (b) may apply for adjustment of status to that of an alien lawfully admitted for permanent residence by submitting an application to the Secretary that includes the evidence required, by regulation, to demonstrate the applicant's eligibility for such adjustment.

''(2) BACK OF THE LINE.—The status of a registered provisional immigrant may not be adjusted to that of an alien lawfully admitted for permanent residence under this section until after the Secretary of State certifies that immigrant visas have become available for all approved petitions for immigrant visas that were filed under sections 201 and 203 before the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(3) INTERVIEW.—The Secretary may interview applicants for adjustment of status under this section to determine whether they meet the eligibility requirements set forth in subsection (b).

''(4) SECURITY AND LAW ENFORCEMENT CLEARANCES.—The Secretary may not adjust the status of a registered provisional immigrant under this section until renewed national security and law enforcement clearances have been completed with respect to the registered provisional immigrant, to the satisfaction of the Secretary.

''(5) FEES AND PENALTIES.—

''(A) PROCESSING FEES.—

''(i) IN GENERAL.—The Secretary shall impose a processing fee on applicants for adjustment of status under this section at a level sufficient to recover the full cost of processing such applications, including costs associated with—

''(I) adjudicating the applications;

''(II) taking and processing biometrics;

''(III) performing national security and criminal checks, including adjudication;

''(IV) preventing and investigating fraud; and

''(V) the administration of the fees collected.

''(ii) AUTHORITY TO LIMIT FEES.—The Secretary, by regulation, may—

''(I) limit the maximum processing fee payable under this subparagraph by a family, including spouses and children; and

''(II) exempt other defined classes of individuals from the payment of the fee authorized under clause (i).

''(iii) DEPOSIT AND USE OF FEES.—Fees collected under this subparagraph—

''(I) shall be deposited into the Immigration Examinations Fee Account pursuant to section 286(m); and

''(II) shall remain available until expended pursuant to section 286(n).

''(B) PENALTIES.—

''(i) IN GENERAL.—In addition to the processing fee required under subparagraph (A) and the penalty required under section 245B(c)(6)(D), an alien who was 21 years of age or older on the date on which the Border Security, Economic Opportunity, and Immigration Modernization Act was originally introduced in the Senate and is filing an application for adjustment of status under this section shall pay a $1,000 penalty to the Secretary unless the alien meets the requirements under section 245D(b).

''(ii) INSTALLMENTS.—The Secretary shall establish a process for collecting payments required under clause (i) through periodic installments.

''(iii) DEPOSIT, ALLOCATION, AND SPENDING OF PENALTIES.—Penalties collected under this subparagraph—

''(I) shall be deposited into the Comprehensive Immigration Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act; and

''(II) may be used for the purposes set forth in section 6(a)(3)(B) of such Act.''.

(b) LIMITATION ON REGISTERED PROVISIONAL IMMIGRANTS.—An alien admitted as a registered provisional immigrant under section 245B of the Immigration and Nationality Act, as added by subsection (a), may only adjust status to an alien lawfully admitted for permanent resident status under section 245C or 245D of such Act or section 2302.

(c) NATURALIZATION.—Section 319 (8 U.S.C. 1430) is amended—

(1) in the section heading, by striking ''**AND EMPLOYEES OF CERTAIN NONPROFIT ORGANIZATIONS**'' and inserting ''**, eMPLOYEES OF CERTAIN NONPROFIT ORGANIZATIONS, AND OTHER LONG-TERM LAWFUL RESIDENTS**''; and

(2) by adding at the end the following:

''(f) Any lawful permanent resident who was lawfully present in the United States and eligible for work authorization for not less than 10 years before becoming a lawful permanent resident may be naturalized upon compliance with all the requirements under this title except the provisions of section 316(a)(1) if such person, immediately preceding the date on which the person filed an application for naturalization—

''(1) has resided continuously within the United States, after being lawfully admitted for permanent residence, for at least 3 years;

''(2) during the 3-year period immediately preceding such filing date, has been physically present in the United States for periods totaling at least 50 percent of such period; and

''(3) has resided within the State or in the jurisdiction of the U.S. Citizenship and Immigration Services field office in the United States in which the applicant filed such application for at least 3 months.''.

SEC. 2103. THE DREAM ACT.

(a) SHORT TITLE.—This section may be cited as the ''Development, Relief, and Education for Alien Minors Act of 2013'' or the ''DREAM Act 2013''.

(b) ADJUSTMENT OF STATUS FOR CERTAIN ALIENS WHO ENTERED THE UNITED STATES AS

CHILDREN.—Chapter 5 of title II (8 U.S.C. 1255 et seq.) is amended by inserting after section 245C, as added by section 2102 of this title, the following:

"SEC. 245D. ADJUSTMENT OF STATUS FOR CERTAIN ALIENS WHO ENTERED THE UNITED STATES AS CHILDREN.

''(a) DEFINITIONS.—In this section:

''(1) INSTITUTION OF HIGHER EDUCATION.—The term 'institution of higher education' has the meaning given such term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002), except that the term does not include institutions described in subsection (a)(1)(C) of such section.

''(2) SECRETARY.—The term 'Secretary' means the Secretary of Homeland Security.

''(3) UNIFORMED SERVICES.—The term 'Uniformed Services' has the meaning given the term 'uniformed services' in section 101(a)(5) of title 10, United States Code.

''(b) ADJUSTMENT OF STATUS FOR CERTAIN ALIENS WHO ENTERED THE UNITED STATES AS CHILDREN.—

''(1) REQUIREMENTS.—

''(A) IN GENERAL.—The Secretary may adjust the status of a registered provisional immigrant to the status of a lawful permanent resident if the immigrant demonstrates that he or she—

''(i) has been a registered provisional immigrant for at least 5 years;

''(ii) was younger than 16 years of age on the date on which the alien initially entered the United States;

''(iii) has earned a high school diploma, a commensurate alternative award from a public or private high school or secondary school, or has obtained a general education development certificate recognized under State law, or a high school equivalency diploma in the United States;

''(iv)(I) has acquired a degree from an institution of higher education or has completed at least 2 years, in good standing, in a program for a bachelor's degree or higher degree in the United States; or

''(II) has served in the Uniformed Services for at least 4 years and, if discharged, received an honorable discharge; and

''(v) has provided a list of each secondary school (as that term is defined in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801)) that the alien attended in the United States.

''(B) HARDSHIP EXCEPTION.—

''(i) IN GENERAL.—The Secretary may adjust the status of a registered provisional immigrant to the status of a lawful permanent resident if the alien—

''(I) satisfies the requirements under clauses (i), (ii), (iii), and (v) of subparagraph (A); and

''(II) demonstrates compelling circumstances for the inability to satisfy the requirement under subparagraph (A)(iv).

''(C) CITIZENSHIP REQUIREMENT.—

''(i) IN GENERAL.—Except as provided in clause (ii), the Secretary may not adjust the status of an alien to lawful permanent resident status under this section unless the alien demonstrates that the alien satisfies the requirements under section 312(a).

''(ii) EXCEPTION.—Clause (i) shall not apply to an alien whose physical or developmental disability or mental impairment prevents the alien from meeting the requirements such section.

''(D) SUBMISSION OF BIOMETRIC AND BIOGRAPHIC DATA.—The Secretary may not adjust the status of an alien to lawful permanent resident status unless the alien—

''(i) submits biometric and biographic data, in accordance with procedures established by the Secretary; or

''(ii) complies with an alternative procedure prescribed by the Secretary, if the alien is unable to provide such biometric data because of a physical impairment.

''(E) BACKGROUND CHECKS.—

''(i) REQUIREMENT FOR BACKGROUND CHECKS.—The Secretary shall utilize biometric, biographic, and other data that the Secretary determines appropriate—

''(I) to conduct national security and law enforcement background checks of an alien applying for lawful permanent resident status under this section; and

''(II) to determine whether there is any criminal, national security, or other factor that would render the alien ineligible for such status.

''(ii) COMPLETION OF BACKGROUND CHECKS.—The Secretary may not adjust an alien's status to the status of a lawful permanent resident under this subsection until the national security and law enforcement background checks required under clause (i) have been completed with respect to the alien, to the satisfaction of the Secretary.

''(2) APPLICATION FOR LAWFUL PERMANENT RESIDENT STATUS.—

''(A) IN GENERAL.—A registered provisional immigrant seeking lawful permanent resident status shall file an application for such status in such manner as the Secretary may require.

''(B) ADJUDICATION.—

''(i) IN GENERAL.—The Secretary shall evaluate each application filed by a registered provisional immigrant under this paragraph to determine whether the alien meets the requirements under paragraph (1).

''(ii) ADJUSTMENT OF STATUS IF FAVORABLE DETERMINATION.—If the Secretary determines that the alien meets the requirements under paragraph (1), the Secretary shall notify the alien of such determination and adjust the status of the alien to lawful permanent resident status, effective as of the date of such determination.

''(iii) ADVERSE DETERMINATION.—If the Secretary determines that the alien does not meet the requirements under paragraph (1), the Secretary shall notify the alien of such determination.

''(C) DACA RECIPIENTS.—The Secretary may adopt streamlined procedures for applicants for adjustment to lawful permanent resident status under this section who were granted Deferred Action for Childhood Arrivals pursuant to the Secretary's memorandum of June 15, 2012.

''(3) TREATMENT FOR PURPOSES OF NATURALIZATION.—

''(A) IN GENERAL.—An alien granted lawful permanent resident status under this section shall be considered, for purposes of title III—

''(i) to have been lawfully admitted for permanent residence; and

''(ii) to have been in the United States as an alien lawfully admitted to the United States for permanent residence during the period the alien was a registered provisional immigrant.

''(B) LIMITATION ON APPLICATION FOR NATURALIZATION.—An alien may not apply for naturalization while the alien is in registered provisional immigrant status, except for an alien described in paragraph (1)(A)(ii) pursuant to section 328 or 329.''.

(c) EXEMPTION FROM NUMERICAL LIMITATIONS.—Section 201(b)(1) (8 U.S.C. 1151(b)(1)) is amended—

(1) by redesignating subparagraph (E) as subparagraph (F); and

(2) by inserting after subparagraph (D) the following:

''(E) Aliens whose status is adjusted to permanent resident status under section 245C or 245D.''.

(d) RESTORATION OF STATE OPTION TO DETERMINE RESIDENCY FOR PURPOSES OF HIGHER EDUCATION.—

(1) REPEAL.—Section 505 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1623) is repealed.

(2) EFFECTIVE DATE.—The repeal under paragraph (1) shall take effect as if included in the original enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (division C of Public Law 104–208).

(e) NATURALIZATION.—Section 328(a) (8 U.S.C. 1439(a)) is amended by inserting '', without having been lawfully admitted to the United States for permanent resident, and'' after ''naturalized''.

(f) LIMITATION ON FEDERAL STUDENT ASSISTANCE.—Notwithstanding any other provision of law, aliens granted registered provisional immigrant status and who initially entered the United States before reaching 16 years of age and aliens granted blue card status shall be eligible only for the following assistance under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.):

(1) Student loans under parts D and E of such title IV (20 U.S.C. 1087a et seq. and 1087aa et seq.), subject to the requirements of such parts.

(2) Federal work-study programs under part C of such title IV (42 U.S.C. 2751 et seq.), subject to the requirements of such part.

(3) Services under such title IV (20 U.S.C. 1070 et seq.), subject to the requirements for such services.

SEC. 2104. ADDITIONAL REQUIREMENTS.

(a) IN GENERAL.—Chapter 5 of title II (8 U.S.C. 1255 et seq.) is amended by inserting after section 245C, as added by section 2102 of this title, the following:

"SEC. 245E. ADDITIONAL REQUIREMENTS RELATING TO REGISTERED PROVISIONAL IMMIGRANTS AND OTHERS.

''(a) DISCLOSURES.—

''(1) PROHIBITED DISCLOSURES.—Except as otherwise provided in this subsection, no officer or employee of any Federal agency may—

''(A) use the information furnished in an application for lawful status under section 245B, 245C, or 245D for any purpose other than to make a determination on any application by the alien for any immigration benefit or protection;

''(B) make any publication through which information furnished by any particular applicant can be identified; or

''(C) permit anyone other than the sworn officers, employees, and contractors of such agency or of another entity approved by the Secretary to examine any individual application for lawful status under section 245B, 245C, or 245D.

''(2) REQUIRED DISCLOSURES.—The Secretary shall provide the information furnished in an application filed under section 245B, 245C, or 245D and any other information derived from such furnished information to—

''(A) a law enforcement agency, intelligence agency, national security agency, a component of the Department of Homeland Security, court, or grand jury, consistent with law, in connection with—

''(i) a criminal investigation or prosecution of any felony not related to the applicant's immigration status; or

''(ii) a national security investigation or prosecution; and

''(B) an official coroner for purposes of affirmatively identifying a deceased individual, whether or not the death of such individual resulted from a crime.

''(3) AUDITING AND EVALUATION OF INFORMATION.—The Secretary may—

''(A) audit and evaluate information furnished as part of any application filed under section 245B, 245C, or 245D for purposes of identifying immigration fraud or fraud schemes; and

''(B) use any evidence detected by means of audits and evaluations for purposes of investigating, prosecuting, referring for prosecution, or denying or terminating immigration benefits.

''(b) EMPLOYER PROTECTIONS.—

''(1) USE OF EMPLOYMENT RECORDS.—Copies of employment records or other evidence of employment provided by an alien or by an alien's employer in support of an alien's application for registered provisional immigrant status under section 245B may not be used in a civil or criminal prosecution or investigation of that employer under section 274A or the Internal Revenue Code of 1986 for the prior unlawful employment of that alien regardless of the adjudication of such application or reconsideration by the Secretary of such alien's prima facie eligibility determination. Employers that provide unauthorized aliens with copies of employment records or other evidence of employment pursuant to an application for registered provisional immigrant status shall not be subject to civil and criminal liability pursuant to section 274A for employing such unauthorized aliens.

''(2) LIMIT ON APPLICABILITY.—The protections for employers and aliens under paragraph (1) shall not apply if the aliens or employers submit employment records that are deemed to be fraudulent.

''(c) ADMINISTRATIVE REVIEW.—

''(1) EXCLUSIVE ADMINISTRATIVE REVIEW.—Administrative review of a determination respecting an application for status under section 245B, 245C, 245D, or 245F or section 2211 of the Agricultural Worker Program Act of 2013 shall be conducted solely in accordance with this subsection.

''(2) ADMINISTRATIVE APPELLATE REVIEW.—

''(A) ESTABLISHMENT OF ADMINISTRATIVE APPELLATE AUTHORITY.—The Secretary shall establish or designate an appellate authority to provide for a single level of administrative appellate review of a determination with respect to applications for, or revocation of, status under sections 245B, 245C, and 245D.

''(B) SINGLE APPEAL FOR EACH ADMINISTRATIVE DECISION.—

''(i) IN GENERAL.—An alien in the United States whose application for status under section 245B, 245C, or 245D has been denied or revoked may file with the Secretary not more than 1 appeal of each decision to deny or revoke such status.

''(ii) NOTICE OF APPEAL.—A notice of appeal filed under this subparagraph shall be filed not later than 90 days after the date of service of the decision of denial or revocation, unless the delay was reasonably justifiable.

''(C) REVIEW BY SECRETARY.—Nothing in this paragraph may be construed to limit the authority of the Secretary to certify appeals for review and final administrative decision.

''(D) DENIAL OF PETITIONS FOR DEPENDENTS.—Appeals of a decision to deny or revoke a petition filed by a registered provisional immigrant pursuant to regulations promulgated under section 245B to classify a spouse or child of such alien as a registered provisional immigrant shall be subject to the administrative appellate authority described in subparagraph (A).

''(E) STAY OF REMOVAL.—Aliens seeking administrative review shall not be removed from the United States until a final decision is rendered establishing ineligibility for status under section 245B, 245C, or 245D.

''(3) RECORD FOR REVIEW.—Administrative appellate review under paragraph (2) shall be de novo and based solely upon—

''(A) the administrative record established at the time of the determination on the application; and

''(B) any additional newly discovered or previously unavailable evidence.

''(4) UNLAWFUL PRESENCE.—During the period in which an alien may request administrative review under this subsection, and during the period that any such review is pending, the alien shall not be considered 'unlawfully present in the United States' for purposes of section 212(a)(9)(B).

''(d) PRIVACY AND CIVIL LIBERTIES.—

''(1) IN GENERAL.—The Secretary, in accordance with subsection (a)(1), shall require appropriate administrative and physical safeguards to protect the security, confidentiality, and integrity of personally identifiable information collected, maintained, and disseminated pursuant to sections 245B, 245C, and 245D.

''(2) ASSESSMENTS.—Notwithstanding the privacy requirements set forth in section 222 of the Homeland Security Act (6 U.S.C. 142) and the E-Government Act of 2002 (Public Law 107–347), the Secretary shall conduct a privacy impact assessment and a civil liberties impact assessment of the legalization program established under sections 245B, 245C, and 245D during the pendency of the interim final regulations required to be issued under section 2110 of the Border Security, Economic Opportunity, and Immigration Modernization Act.''.

(b) JUDICIAL REVIEW.—Section 242 (8 U.S.C. 1252) is amended—

(1) in subsection (a)(2)—

(A) in subparagraph (B), by inserting ''the exercise of discretion arising under'' after ''no court shall have jurisdiction to review'';

(B) in subparagraph (D), by striking ''raised upon a petition for review filed with an appropriate court of appeals in accordance with this section'';

(2) in subsection (b)(2), by inserting ''or, in the case of a decision rendered under section 245E(c), in the judicial circuit in which the petitioner resides'' after ''proceedings''; and

(3) by adding at the end the following:

''(h) JUDICIAL REVIEW OF ELIGIBILITY DETERMINATIONS RELATING TO STATUS UNDER CHAPTER 5.—

''(1) DIRECT REVIEW.—If an alien's application under section 245B, 245C, 245D, or 245F or section 2211 of the Agricultural Worker Program Act of 2013 is denied, or is revoked after the exhaustion of administrative appellate review under section 245E(c), the alien may seek review of such decision, in accordance with chapter 7 of title 5, United States Code, before the United States district court for the district in which the person resides.

''(2) STATUS DURING REVIEW.—While a review described in paragraph (1) is pending—

''(A) the alien shall not be deemed to accrue unlawful presence for purposes of section 212(a)(9);

''(B) any unexpired grant of voluntary departure under section 240B shall be tolled; and

''(C) the court shall have the discretion to stay the execution of any order of exclusion, deportation, or removal.

''(3) REVIEW AFTER REMOVAL PROCEEDINGS.—An alien may seek judicial review of a denial or revocation of approval of the alien's application under section 245B, 245C, or 245D in the appropriate United States court of appeal in conjunction with the judicial review of an order of removal, deportation, or exclusion if the validity of the denial has not been upheld in a prior judicial proceeding under paragraph (1).

''(4) STANDARD FOR JUDICIAL REVIEW.—

''(A) BASIS.—Judicial review of a denial, or revocation of an approval, of an application under section 245B, 245C, or 245D shall be based upon the administrative record established at the time of the review.

''(B) AUTHORITY TO REMAND.—The reviewing court may remand a case under this subsection to the Secretary for consideration of additional evidence if the court finds that—

''(i) the additional evidence is material; and

''(ii) there were reasonable grounds for failure to adduce the additional evidence before the Secretary.

''(C) SCOPE OF REVIEW.—Notwithstanding any other provision of law, judicial review of all questions arising from a denial, or revocation of an approval, of an application under section 245B, 245C, or 245D shall be governed by the standard of review set forth in section 706 of title 5, United States Code.

''(5) REMEDIAL POWERS.—

''(A) JURISDICTION.—Notwithstanding any other provision of law, the United States district courts shall have jurisdiction over any cause or claim arising from a pattern or practice of the Secretary in the operation or implementation of the Border Security, Economic Opportunity, and Immigration Modernization Act, or the amendments made by such Act, that is arbitrary, capricious, or otherwise contrary to law.

''(B) SCOPE OF RELIEF.—The United States district courts may order any appropriate relief in a clause or claim described in subparagraph (A) without regard to exhaustion, ripeness, or other standing requirements (other than constitutionally-mandated requirements), if the court determines that—

''(i) the resolution of such cause or claim will serve judicial and administrative efficiency; or

''(ii) a remedy would otherwise not be reasonably available or practicable.

''(6) CHALLENGES TO THE VALIDITY OF THE SYSTEM.—

''(A) IN GENERAL.—Except as provided in paragraph (5), any claim that section 245B, 245C, 245D, or 245E or any regulation, written policy, or written directive, issued or unwritten policy or practice initiated by or under the authority of the Secretary to implement such sections, violates the Constitution of the United States or is otherwise in violation of law is available exclusively in an action instituted in United States District Court in accordance with the procedures prescribed in this paragraph.

''(B) SAVINGS PROVISION.—Except as provided in subparagraph (C), nothing in subparagraph (A) may be construed to preclude an applicant under 245B, 245C, or 245D from asserting that an action taken or a decision made by the Secretary with respect to the applicant's status was contrary to law.

''(C) CLASS ACTIONS.—Any claim described in subparagraph (A) that is brought as a class action shall be brought in conformity with—

''(i) the Class Action Fairness Act of 2005 (Public Law 109–2); and

''(ii) the Federal Rules of Civil Procedure.

''(D) PRECLUSIVE EFFECT.—The final disposition of any claim brought under subparagraph (A) shall be preclusive of any such claim asserted by the same individual in a subsequent proceeding under this subsection.

''(E) EXHAUSTION AND STAY OF PROCEEDINGS.—

''(i) IN GENERAL.—No claim brought under this paragraph shall require the plaintiff to exhaust administrative remedies under section 245E(c).

''(ii) STAY AUTHORIZED.—Nothing in this paragraph may be construed to prevent the court from staying proceedings under this paragraph to permit the Secretary to evaluate an allegation of an unwritten policy or practice or to take corrective action. In determining whether to issue such a stay, the court shall take into account any harm the stay may cause to the claimant.''.

(c) RULE OF CONSTRUCTION.—Section 244(h) of the Immigration and Nationality Act (8 U.S.C. 1254a(h)) shall not limit the authority of the Secretary to adjust the status of an

alien under section 245C or 245D of the Immigration and Nationality Act, as added by this subtitle.

(d) EFFECT OF FAILURE TO REGISTER ON ELIGIBILITY FOR IMMIGRATION BENEFITS.—Failure to comply with section 264.1(f) of title 8, Code of Federal Regulations or with removal orders or voluntary departure agreements based on such section for acts committed before the date of the enactment of this Act shall not affect the eligibility of an alien to apply for a benefit under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(e) CLERICAL AMENDMENT.—The table of contents is amended by inserting after the item relating to section 245A the following:

''Sec. 245B. Adjustment of status of eligible entrants before December 31, 2011, to that of registered provisional immigrant.
''Sec. 245C. Adjustment of status of registered provisional immigrants.
''Sec. 245D. Adjustment of status for certain aliens who entered the United States as children.
''Sec. 245E. Additional requirements relating to registered provisional immigrants and others.''.

SEC. 2105. CRIMINAL PENALTY.

(a) IN GENERAL.—Chapter 69 of title 18, United States Code, is amended by adding at the end the following:

''§ 1430. Improper use of information relating to registered provisional immigrant applications

''Any person who knowingly uses, publishes, or permits information described in section 245E(a) of the Immigration and Nationality Act to be examined in violation of such section shall be fined not more than $10,000.''.

(b) DEPOSIT OF FINES.—All criminal penalties collected under section 1430 of title 18, United States Code, as added by subsection (a), shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

(c) CLERICAL AMENDMENT.—The table of sections in chapter 69 of title 18, United States Code, is amended by adding at the end the following:

''1430. Improper use of information relating to registered provisional immigrant applications.''.

SEC. 2106. GRANT PROGRAM TO ASSIST ELIGIBLE APPLICANTS.

(a) ESTABLISHMENT.—The Secretary may establish, within U.S. Citizenship and Immigration Services, a program to award grants, on a competitive basis, to eligible nonprofit organizations that will use the funding to assist eligible applicants under section 245B, 245C, 245D, or 245F of the Immigration and Nationality Act or section 2211 of this Act by providing them with the services described in subsection (c).

(b) ELIGIBLE NONPROFIT ORGANIZATION.—The term ''eligible nonprofit organization'' means a nonprofit, tax-exempt organization, including a community, faith-based or other immigrant-serving organization, whose staff has demonstrated qualifications, experience, and expertise in providing quality services to immigrants, refugees, persons granted asylum, or persons applying for such statuses.

(c) USE OF FUNDS.—Grant funds awarded under this section may be used for the design and implementation of programs that provide—

(1) information to the public regarding the eligibility and benefits of registered provisional immigrant status authorized under section 245B of the Immigration and Nationality Act and blue card status authorized under section 2211, particularly to individuals potentially eligible for such status;

(2) assistance, within the scope of authorized practice of immigration law, to individuals submitting applications for registered provisional immigrant status or blue card status, including—

(A) screening prospective applicants to assess their eligibility for such status;

(B) completing applications and petitions, including providing assistance in obtaining the requisite documents and supporting evidence;

(C) applying for any waivers for which applicants and qualifying family members may be eligible; and

(D) providing any other assistance that the Secretary or grantees consider useful or necessary to apply for registered provisional immigrant status or blue card status;

(3) assistance, within the scope of authorized practice of immigration law, to individuals seeking to adjust their status to that of an alien admitted for permanent residence under section 245C or 245F of the Immigration and Nationality Act; and

(4) assistance, within the scope of authorized practice of immigration law, and instruction, to individuals—

(A) on the rights and responsibilities of United States citizenship;

(B) in civics and civics-based English as a second language; and

(C) in applying for United States citizenship.

(d) SOURCE OF GRANT FUNDS.—

(1) APPLICATION FEES.—The Secretary may use up to $50,000,000 from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) to carry out this section.

(2) AUTHORIZATION OF APPROPRIATIONS.—

(A) AMOUNTS AUTHORIZED.—In addition to the amounts made available under paragraph (1), there are authorized to be appropriated such sums as may be necessary for each of the fiscal years 2014 through 2018 to carry out this section.

(B) AVAILABILITY.—Any amounts appropriated pursuant to subparagraph (A) shall remain available until expended.

SEC. 2107. CONFORMING AMENDMENTS TO THE SOCIAL SECURITY ACT.

(a) CORRECTION OF SOCIAL SECURITY RECORDS.—

(1) IN GENERAL.—Section 208(e)(1) of the Social Security Act (42 U.S.C. 408(e)(1)) is amended—

(A) in subparagraph (B)(ii), by striking ''or'' at the end;

(B) in subparagraph (C), by striking the comma at the end and inserting a semicolon;

(C) by inserting after subparagraph (C) the following:

''(D) who is granted status as a registered provisional immigrant under section 245B or 245D of the Immigration and Nationality Act; or

''(E) whose status is adjusted to that of lawful permanent resident under section 245C of the Immigration and Nationality Act,''; and

(D) in the undesignated matter at the end, by inserting '', or in the case of an alien described in subparagraph (D) or (E), if such conduct is alleged to have occurred before the date on which the alien submitted an application under section 245B of such Act for classification as a registered provisional immigrant'' before the period at the end.

(2) EFFECTIVE DATE.—The amendments made by paragraph (1) shall take effect on the first day of the tenth month that begins after the date of the enactment of this Act.

(b) STATE DISCRETION REGARDING TERMINATION OF PARENTAL RIGHTS.—

(1) IN GENERAL.—A compelling reason for a State not to file (or to join in the filing of) a petition to terminate parental rights under section 475(5)(E) of the Social Security Act (42 U.S.C. 675(5)(E)) shall include—

(A) the removal of the parent from the United States, unless the parent is unfit or unwilling to be a parent of the child; or

(B) the involvement of the parent in (including detention pursuant to) an immigration proceeding, unless the parent is unfit or unwilling to be a parent of the child.

(2) CONDITIONS.—Before a State may file to terminate the parental rights under such section 475(5)(E), the State (or the county or other political subdivision of the State, as applicable) shall make reasonable efforts—

(A) to identify, locate, and contact (including, if appropriate, through the diplomatic or consular offices of the country to which the parent was removed or in which a parent or relative resides)—

(i) any parent of the child who is in immigration detention;

(ii) any parent of the child who has been removed from the United States; and

(iii) if possible, any potential adult relative of the child (as described in section 471(a)(29));

(B) to notify such parent or relative of the intent of the State (or the county or other political subdivision of the State, as applicable) to file (or to join in the filing of) a petition referred to in paragraph (1); or

(C) to reunify the child with any such parent or relative; and

(D) to provide and document appropriate services to the parent or relative.

(3) CONFORMING AMENDMENT.—Section 475(5)(E)(ii) of the Social Security Act (42 U.S.C. 675(5)(E)) is amended by inserting '', including the reason set forth in section 2107(b)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act'' after ''child''.

(c) CHILDREN SEPARATED FROM PARENTS AND CAREGIVERS.—

(1) STATE PLAN FOR FOSTER CARE AND ADOPTION ASSISTANCE.—Section 471(a) of the Social Security Act (42 U.S.C. 671(a)) is amended—

(A) by amending paragraph (19) to read as follows:

''(19) provides that the State shall give preference to an adult relative over a nonrelated caregiver when determining a placement for a child if—

''(A) the relative caregiver meets all relevant State child protection standards; and

''(B) the standards referred to in subparagraph (A) ensure that the immigration status alone of a parent, legal guardian, or relative shall not disqualify the parent, legal guardian, or relative from being a placement for a child;''; and

(B) in paragraph (32), by striking ''and'' at the end;

(C) in paragraph (33), by striking the period at the end and inserting ''; and''; and

(D) by adding at the end the following:

''(34) provides that the State shall—

''(A) ensure that the case manager for a separated child is capable of communicating in the native language of such child and of the family of such child, or an interpreter who is so capable is provided to communicate with such child and the family of such child at no cost to the child or to the family of such child;

''(B) coordinate with the Department of Homeland Security to ensure that parents who wish for their child to accompany them to their country of origin are given adequate time and assistance to obtain a passport and visa, and to collect all relevant vital documents, such as birth certificate, health, and educational records and other information;

''(C) coordinate with State agencies regarding alternate documentation requirements for a criminal records check or a fingerprint-based check for a caregiver that

does not have Federal or State-issued identification;

''(D) preserve, to the greatest extent practicable, the privacy and confidentiality of all information gathered in the course of administering the care, custody, and placement of, and follow up services provided to, a separated child, consistent with the best interest of such child, by not disclosing such information to other government agencies or persons (other than a parent, legal guardian, or relative caregiver or such child), except that the head of the State agency (or the county or other political subdivision of the State, as applicable) may disclose such information, after placing a written record of the disclosure in the file of the child—

''(i) to a consular official for the purpose of reunification of a child with a parent, legal guardian, or relative caregiver who has been removed or is involved in an immigration proceeding, unless the child has refused contact with, or the sharing of personal or identifying information with, the government of his or her country of origin;

''(ii) when authorized to do so by the child (if the child has attained 18 years of age) if the disclosure is consistent with the best interest of the child; or

''(iii) to a law enforcement agency if the disclosure would prevent imminent and serious harm to another individual; and

''(E) not less frequently than annually, compile, update, and publish a list of entities in the State that are qualified to provide legal representation services for a separated child, in a language such that a child can read and understand.''.

(2) ADDITIONAL INFORMATION TO BE INCLUDED IN CASE PLAN.—Section 475 of such Act (42 U.S.C. 675) is amended—

(A) in paragraph (1), by adding at the end the following:

''(H) In the case of a separated child with respect to whom the State plan requires the State to provide services under section 471(a)(34)—

''(i) the location of the parent or legal guardian described in paragraph (9)(A) from whom the child has been separated; and

''(ii) a written record of each disclosure to a government agency or person (other than such a parent, legal guardian, or relative) of information gathered in the course of tracking the care, custody, and placement of, and follow-up services provided to, the child.''; and

(B) by adding at the end the following:

''(9) The term 'separated child' means an individual who—

''(A) has a parent or legal guardian who has been—

''(i) detained by a Federal, State, or local law enforcement agency in the enforcement of an immigration law; or

''(ii) removed from the United States as a result of a violation of such a law; and

''(B) is in foster care under the responsibility of a State.''.

(3) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the 1st day of the 1st calendar quarter that begins after the 1-year period that begins on the date of the enactment of this Act.

(d) PRECLUSION OF SOCIAL SECURITY CREDITS FOR PERIODS WITHOUT WORK AUTHORIZATION.—

(1) INSURED STATUS.—Section 214 of the Social Security Act (42 U.S.C. 414) is amended by adding at the end the following new subsection:

''(d) INSURED STATUS.—

''(1) IN GENERAL.—Subject to paragraphs (2) and (3), for purposes of subsections (a) and (b), no quarter of coverage shall be credited for any calendar year—

''(A) beginning after December 31, 2003, and before January 1, 2014, with respect to an individual who has been granted registered provisional immigrant status pursuant to section 245B of the Immigration and Nationality Act; or

''(B) beginning after December 31, 2003, and before January 1, 2014, in which an individual earned such quarter of coverage while present under an expired nonimmigrant visa, unless the Commissioner of Social Security determines, on the basis of information provided to the Commissioner by the individual, that the individual was authorized to be employed in the United States during such quarter.

''(2) EXCEPTION.—Paragraph (1) shall not apply to an individual who was assigned a social security account number before January 1, 2004.

''(3) ATTESTATION OF WORK AUTHORIZATION.—

''(A) IN GENERAL.—For purposes of paragraph (1), if an individual is unable to obtain or produce sufficient evidence or documentation that the individual was authorized to be employed in the United States during a quarter, the individual may submit an attestation to the Commissioner of Social Security that the individual was authorized to be employed in the United States during such quarter and that sufficient evidence or documentation of such authorization cannot be obtained by the individual.

''(B) PENALTY.—Any individual who knowingly submits a false attestation described in subparagraph (A) shall be subject to the penalties under section 1041 of title 18, United States Code.''.

(2) BENEFIT COMPUTATION.—Section 215(e) of the Social Security Act (42 U.S.C. 415(e)) is amended—

(A) in paragraph (1), by striking ''and'' at the end;

(B) in paragraph (2), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(3) in computing the average indexed monthly earnings of an individual, there shall not be counted any wages or self-employment income for any year for which no quarter of coverage may be credited to such individual as a result of the application of section 214(d).''.

(3) CONFORMING AMENDMENT.—Section 223(c)(1) of the Social Security Act (42 U.S.C. 423(c)(1)) is amended in the flush matter at the end by inserting ''the individual does not satisfy the criterion specified in section 214(d) or'' after ''part of any period if''.

(4) EFFECTIVE DATE.—The amendments made by this subsection shall apply to benefit applications filed on or after the date that is 180 days after the date of the enactment of this Act based on the wages or self-employment income of an individual with respect to whom a primary insurance amount has not been determined under title II of the Social Security Act (42 U.S.C. 401 et seq.) before such date.

SEC. 2108. GOVERNMENT CONTRACTING AND ACQUISITION OF REAL PROPERTY INTEREST.

(a) EXEMPTION FROM GOVERNMENT CONTRACTING AND HIRING RULES.—

(1) IN GENERAL.—A determination by a Federal agency to use a procurement competition exemption under section 253(c) of title 41, United States Code, or to use the authority granted in paragraph (2), for the purpose of implementing this title and the amendments made by this title is not subject to challenge by protest to the Government Accountability Office under sections 3551 and 3556 of title 31, United States Code, or to the Court of Federal Claims, under section 1491 of title 28, United States Code. An agency shall immediately advise the Congress of the exercise of the authority granted under this paragraph.

(2) GOVERNMENT CONTRACTING EXEMPTION.—The competition requirement under section 253(a) of title 41, United States Code, may be waived or modified by a Federal agency for any procurement conducted to implement this title or the amendments made by this title if the senior procurement executive for the agency conducting the procurement—

(A) determines that the waiver or modification is necessary; and

(B) submits an explanation for such determination to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives.

(3) HIRING RULES EXEMPTION.—Notwithstanding any other provision of law, the Secretary is authorized to make term, temporary limited, and part-time appointments of employees who will implement this title and the amendments made by this title without regard to the number of such employees, their ratio to permanent full-time employees, and the duration of their employment. Nothing in chapter 71 of title 5, United States Code, shall affect the authority of any Department management official to hire term, temporary limited or part-time employees under this paragraph.

(b) AUTHORITY TO WAIVE ANNUITY LIMITATIONS.—Section 824(g)(2)(B) of the Foreign Service Act of 1980 (22 U.S.C. 4064(g)(2)(B)) is amended by striking ''2009'' and inserting ''2017''.

(c) AUTHORITY TO ACQUIRE LEASEHOLDS.—Notwithstanding any other provision of law, the Secretary may acquire a leasehold interest in real property, and may provide in a lease entered into under this subsection for the construction or modification of any facility on the leased property, if the Secretary determines that the acquisition of such interest, and such construction or modification, are necessary in order to facilitate the implementation of this title and the amendments made by this title.

SEC. 2109. LONG-TERM LEGAL RESIDENTS OF THE COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS.

Section (6)(e) of the Joint Resolution entitled ''A Joint Resolution to approve the 'Covenant to Establish a Commonwealth of the Northern Mariana Islands in Political Union with the United States of America', and for other purposes'', approved March 24, 1976 (48 U.S.C. 1806(e)), as added by section 702 of the Consolidated Natural Resources Act of 2008 (Public Law 110–229; 122 Stat. 854), is amended by adding at the end the following:

''(6) SPECIAL PROVISION REGARDING LONG-TERM RESIDENTS OF THE COMMONWEALTH.—

''(A) CNMI-ONLY RESIDENT STATUS.—Notwithstanding paragraph (1), an alien described in subparagraph (B) may, upon the application of the alien, be admitted as an immigrant to the Commonwealth subject to the following rules:

''(i) The alien shall be treated as an immigrant lawfully admitted for permanent residence in the Commonwealth only, including permitting entry to and exit from the Commonwealth, until the earlier of the date on which—

''(I) the alien ceases to permanently reside in the Commonwealth; or

''(II) the alien's status is adjusted under this paragraph or section 245 of the Immigration and Nationality Act (8 U.S.C. 1255) to that of an alien lawfully admitted for permanent residence in accordance with all applicable eligibility requirements.

''(ii) The Secretary of Homeland Security shall establish a process for such aliens to apply for CNMI-only permanent resident status during the 90-day period beginning on the first day of the sixth month after the date of the enactment of this paragraph.

''(iii) Nothing in this subparagraph may be construed to provide any alien granted status under this subparagraph with public assistance to which the alien is not otherwise entitled.

''(B) ALIENS DESCRIBED.—An alien is described in this subparagraph if the alien—

''(i) is lawfully present in the Commonwealth under the immigration laws of the United States;

''(ii) is otherwise admissible to the United States under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.);

''(iii) resided continuously and lawfully in the Commonwealth from November 28, 2009, through the date of the enactment of this paragraph;

''(iv) is not a citizen of the Republic of the Marshall Islands, the Federated States of Micronesia, or the Republic of Palau; and

''(v)(I) was born in the Northern Mariana Islands between January 1, 1974 and January 9, 1978;

''(II) was, on May 8, 2008, and continues to be as of the date of the enactment of this paragraph, a permanent resident (as defined in section 4303 of title 3 of the Northern Mariana Islands Commonwealth Code, in effect on May 8, 2008);

''(III) is the spouse or child (as defined in section 101(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1101(b)(1))), of an alien described in subclauses (I) or (II);

''(IV) was, on May 8, 2008, an immediate relative (as defined in section 4303 of title 3 of the Northern Mariana Islands Commonwealth Code, in effect on May 8, 2008, of a United States citizen, notwithstanding the age of the United States citizen, and continues to be such an immediate relative on the date of the application described in subparagraph (A);

''(V) resided in the Northern Mariana Islands as a guest worker under Commonwealth immigration law for at least 5 years before May 8, 2008 and is presently resident under CW–1 status; or

''(VI) is the spouse or child (as defined in section 101(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1101(b)(1))), of the alien guest worker described in subclause (V) and is presently resident under CW–2 status.

''(C) ADJUSTMENT FOR LONG TERM AND PERMANENT RESIDENTS.—Beginning on the date that is 5 years after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, an alien described in subparagraph (B) may apply to receive an immigrant visa or to adjust his or her status to that of an alien lawfully admitted for permanent residence.''.

SEC. 2110. RULEMAKING.

(a) IN GENERAL.—Not later than 1 year after the date of the enactment of this Act, the Secretary, the Attorney General, and the Secretary of State separately shall issue interim final regulations to implement this subtitle and the amendments made by this subtitle, which shall take effect immediately upon publication in the Federal Register.

(b) APPLICATION PROCEDURES; PROCESSING FEES; DOCUMENTATION.—The interim final regulations issued under subsection (a) shall include—

(1) the procedures by which an alien, and the dependent spouse and children of such alien may apply for status under section 245B of the Immigration and Nationality Act, as added by section 2101 of this Act, as a registered provisional immigrant or a registered provisional immigrant dependent, as applicable, including the evidence required to demonstrate eligibility for such status or to be included in each application for such status;

(2) the criteria to be used by the Secretary to determine—

(A) the maximum processing fee payable under sections 245B(c)(10)(B) and 245C(c)(5)(A) of such Act by a family, including spouses and unmarried children younger than 21 years of age; and

(B) which individuals will be exempt from such fees;

(3) the documentation required to be submitted by the applicant to demonstrate compliance with section 245C(b)(3) of such Act; and

(4) the procedures for a registered provisional immigrant to apply for adjustment of status under section 245C or 245D of such Act, including the evidence required to be submitted with such application to demonstrate the applicant's eligibility for such adjustment.

(c) EXEMPTION FROM NATIONAL ENVIRONMENTAL POLICY ACT.—Any decision by the Secretary concerning any rulemaking action, plan, or program described in this section shall not be considered to be a major Federal action subject to review under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

SEC. 2111. STATUTORY CONSTRUCTION.

Except as specifically provided, nothing in this subtitle, or any amendment made by this subtitle, may be construed to create any substantive or procedural right or benefit that is legally enforceable by any party against the United States or its agencies or officers or any other person.

Subtitle B—Agricultural Worker Program

SEC. 2201. SHORT TITLE.

This subtitle may be cited as the ''Agricultural Worker Program Act of 2013''.

SEC. 2202. DEFINITIONS.

In this subtitle:

(1) BLUE CARD STATUS.—The term ''blue card status'' means the status of an alien who has been lawfully admitted into the United States for temporary residence under section 2211.

(2) AGRICULTURAL EMPLOYMENT.—The term ''agricultural employment'' has the meaning given such term in section 3 of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1802), without regard to whether the specific service or activity is temporary or seasonal.

(3) CHILD.—The term ''child'' has the meaning given the term in section 101(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1101(b)(1)).

(4) EMPLOYER.—The term ''employer'' means any person or entity, including any farm labor contractor and any agricultural association, that employs workers in agricultural employment.

(5) QUALIFIED DESIGNATED ENTITY.—The term ''qualified designated entity'' means—

(A) a qualified farm labor organization or an association of employers designated by the Secretary; or

(B) any other entity that the Secretary designates as having substantial experience, demonstrated competence, and a history of long-term involvement in the preparation and submission of application for adjustment of status under title II of the Immigration and Nationality Act (8 U.S.C. 1151 et seq.).

(6) WORK DAY.—The term ''work day'' means any day in which the individual is employed 5.75 or more hours in agricultural employment.

CHAPTER 1—PROGRAM FOR EARNED STATUS ADJUSTMENT OF AGRICULTURAL WORKERS

Subchapter A—Blue Card Status

SEC. 2211. REQUIREMENTS FOR BLUE CARD STATUS.

(a) REQUIREMENTS FOR BLUE CARD STATUS.—Notwithstanding any other provision of law, the Secretary, after conducting the national security and law enforcement clearances required under section 245B(c)(4), may grant blue card status to an alien who—

(1)(A) performed agricultural employment in the United States for not fewer than 575 hours or 100 work days during the 2-year period ending on December 31, 2012; or

(B) is the spouse or child of an alien described in subparagraph (A) and was physically present in the United States on or before December 31, 2012, and has maintained continuous presence in the United States from that date until the date on which the alien is granted blue card status, with the exception of absences from the United States that are brief, casual, and innocent, whether or not such absences were authorized by the Secretary;

(2) submits a completed application before the end of the period set forth in subsection (b)(2); and

(3) is not ineligible under paragraph (3) or (4) of section 245B(b) of the Immigration and Nationality Act (other than a nonimmigrant alien admitted to the United States for agricultural employment described in section 101(a)(15)(H)(ii)(a) of such Act.

(b) APPLICATION.—

(1) IN GENERAL.—An alien who meets the eligibility requirements set forth in subsection (a)(1), may apply for blue card status and that alien's spouse or child may apply for blue card status as a dependent, by submitting a completed application form to the Secretary during the application period set forth in paragraph (2) in accordance with the final rule promulgated by the Secretary pursuant to subsection (e).

(2) SUBMISSION.—The Secretary shall provide that the alien shall be able to submit an application under paragraph (1)—

(A) if the applicant is represented by an attorney or a nonprofit religious, charitable, social service, or similar organization recognized by the Board of Immigration Appeals under section 292.2 of title 8, Code of Federal Regulations; or

(B) to a qualified entity if the applicant consents to the forwarding of the application to the Secretary.

(3) APPLICATION PERIOD.—

(A) INITIAL PERIOD.—Except as provided in subparagraph (B), the Secretary may only accept applications for blue card status for a 1-year period from aliens in the United States beginning on the date on which the final rule is published in the Federal Register pursuant to subsection (f), except that qualified nonimmigrants who have participated in the H–2A Program may apply from outside of the United States.

(B) EXTENSION.—If the Secretary determines, during the initial period described in subparagraph (A), that additional time is required to process applications for blue card status or for other good cause, the Secretary may extend the period for accepting applications for an additional 18 months.

(4) APPLICATION FORM.—

(A) REQUIRED INFORMATION.—The application form referred to in paragraph (1) shall collect such information as the Secretary determines necessary and appropriate.

(B) FAMILY APPLICATION.—The Secretary shall establish a process through which an alien may submit a single application under this section on behalf of the alien, his or her spouse, and his or her children, who are residing in the United States.

(C) INTERVIEW.—The Secretary may interview applicants for blue card status to determine whether they meet the eligibility requirements set forth in subsection (a)(1).

(5) ALIENS APPREHENDED BEFORE OR DURING THE APPLICATION PERIOD.—If an alien, who is apprehended during the period beginning on the date of the enactment of this Act and ending on the application period described in

paragraph (3), appears prima facie eligible for blue card status, the Secretary—

(A) shall provide the alien with a reasonable opportunity to file an application under this section during such application period; and

(B) may not remove the individual until a final administrative determination is made on the application.

(6) SUSPENSION OF REMOVAL DURING APPLICATION PERIOD.—

(A) PROTECTION FROM DETENTION OR REMOVAL.—An alien granted blue card status may not be detained by the Secretary or removed from the United States unless—

(i) such alien is, or has become, ineligible for blue card status; or

(ii) the alien's blue card status has been revoked.

(B) ALIENS IN REMOVAL PROCEEDINGS.—Notwithstanding any other provision of the Immigration and Nationality Act (8 U.S.C. 1101 et seq.)—

(i) if the Secretary determines that an alien, during the period beginning on the date of the enactment of this section and ending on the last day of the application period described in paragraph (2), is in removal, deportation, or exclusion proceedings before the Executive Office for Immigration Review and is prima facie eligible for blue card status under this section—

(I) the Secretary shall provide the alien with the opportunity to file an application for such status; and

(II) upon motion by the Secretary and with the consent of the alien or upon motion by the alien, the Executive Office for Immigration Review shall—

(aa) terminate such proceedings without prejudice to future proceedings on any basis; and

(bb) provide the alien a reasonable opportunity to apply for such status; and

(ii) if the Executive Office for Immigration Review determines that an alien, during the application period described in paragraph (2), is in removal, deportation, or exclusion proceedings before the Executive Office for Immigration Review and is prima facie eligible for blue card status under this section—

(I) the Executive Office of Immigration Review shall notify the Secretary of such determination; and

(II) if the Secretary does not dispute the determination of prima facie eligibility within 7 days after such notification, the Executive Office for Immigration Review, upon consent of the alien, shall—

(aa) terminate such proceedings without prejudice to future proceedings on any basis; and

(bb) permit the alien a reasonable opportunity to apply for such status.

(C) TREATMENT OF CERTAIN ALIENS.—

(i) IN GENERAL.—If an alien who meets the eligibility requirements set forth in subsection (a) is present in the United States and has been ordered excluded, deported, or removed, or ordered to depart voluntarily from the United States under any provision of this Act—

(I) notwithstanding such order or section 241(a)(5) of the Immigration and Nationality Act (8 U.S.C. 1231(a)(5)), the alien may apply for blue card status under this section; and

(II) if the alien is granted such status, the alien shall file a motion to reopen the exclusion, deportation, removal, or voluntary departure order, which motion shall be granted unless 1 or more of the grounds of ineligibility is established by clear and convincing evidence.

(ii) LIMITATIONS ON MOTIONS TO REOPEN.—The limitations on motions to reopen set forth in section 240(c)(7) of the Immigration and Nationality Act (8 U.S.C. 1229a(c)(7)) shall not apply to motions filed under clause (i)(II).

(D) PERIOD PENDING ADJUDICATION OF APPLICATION.—

(i) IN GENERAL.—During the period beginning on the date on which an alien applies for blue card status under this subsection and the date on which the Secretary makes a final decision regarding such application, the alien—

(I) may receive advance parole to reenter the United States if urgent humanitarian circumstances compel such travel;

(II) may not be detained by the Secretary or removed from the United States unless the Secretary makes a prima facie determination that such alien is, or has become, ineligible for blue card status;

(III) shall not be considered unlawfully present for purposes of section 212(a)(9)(B) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(9)(B)); and

(IV) shall not be considered an unauthorized alien (as defined in section 274A(h)(3) of the Immigration and Nationality Act (8 U.S.C. 1324a(h)(3))).

(ii) EVIDENCE OF APPLICATION FILING.—As soon as practicable after receiving each application for blue card status, the Secretary shall provide the applicant with a document acknowledging the receipt of such application.

(iii) CONTINUING EMPLOYMENT.—An employer who knows an alien employee is an applicant for blue card status or will apply for such status once the application period commences is not in violation of section 274A(a)(2) of the Immigration and Nationality Act (8 U.S.C. 1324a(a)(2)) if the employer continues to employ the alien pending the adjudication of the alien employee's application.

(iv) EFFECT OF DEPARTURE.—Section 101(g) of the Immigration and Nationality Act (8 U.S.C. 1101(g)) shall not apply to an alien granted—

(I) advance parole under clause (i)(I) to reenter the United States; or

(II) blue card status.

(7) SECURITY AND LAW ENFORCEMENT CLEARANCES.—

(A) BIOMETRIC AND BIOGRAPHIC DATA.—The Secretary may not grant blue card status to an alien or an alien dependent spouse or child under this section unless such alien submits biometric and biographic data in accordance with procedures established by the Secretary.

(B) ALTERNATIVE PROCEDURES.—The Secretary shall provide an alternative procedure for applicants who cannot provide the standard biometric data required under subparagraph (A) because of a physical impairment.

(C) CLEARANCES.—

(i) DATA COLLECTION.—The Secretary shall collect, from each alien applying for status under this section, biometric, biographic, and other data that the Secretary determines to be appropriate—

(I) to conduct national security and law enforcement clearances; and

(II) to determine whether there are any national security or law enforcement factors that would render an alien ineligible for such status.

(ii) PREREQUISITE.—The required clearances described in clause (i)(I) shall be completed before the alien may be granted blue card status.

(8) DURATION OF STATUS.—After the date that is 8 years after the date regulations are published under this section, no alien may remain in blue card status.

(9) FEES AND PENALTIES.—

(A) STANDARD PROCESSING FEE.—

(i) IN GENERAL.—Aliens who are 16 years of age or older and are applying for blue card status under paragraph (2), or for an extension of such status, shall pay a processing fee to the Department in an amount determined by the Secretary.

(ii) RECOVERY OF COSTS.—The processing fee authorized under clause (i) shall be set at a level that is sufficient to recover the full costs of processing the application, including any costs incurred—

(I) to adjudicate the application;

(II) to take and process biometrics;

(III) to perform national security and criminal checks, including adjudication;

(IV) to prevent and investigate fraud; and

(V) to administer the collection of such fee.

(iii) AUTHORITY TO LIMIT FEES.—The Secretary, by regulation, may—

(I) limit the maximum processing fee payable under this subparagraph by a family, including spouses and unmarried children younger than 21 years of age; and

(II) exempt defined classes of individuals from the payment of the fee authorized under clause (i).

(B) DEPOSIT AND USE OF PROCESSING FEES.—Fees collected pursuant to subparagraph (A)(i)—

(i) shall be deposited into the Immigration Examinations Fee Account pursuant to section 286(m); and

(ii) shall remain available until expended pursuant to section 286(n).

(C) PENALTY.—

(i) PAYMENT.—In addition to the processing fee required under subparagraph (A), aliens who are 21 years of age or older and are applying for blue card status under paragraph (2) shall pay a $100 penalty to the Department.

(ii) DEPOSIT.—Penalties collected pursuant to clause (i) shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

(10) ADJUDICATION.—

(A) FAILURE TO SUBMIT SUFFICIENT EVIDENCE.—The Secretary shall deny an application submitted by an alien who fails to submit—

(i) requested initial evidence, including requested biometric data; or

(ii) any requested additional evidence by the date required by the Secretary.

(B) AMENDED APPLICATION.—An alien whose application for blue card status is denied under subparagraph (A) may file an amended application for such status to the Secretary if the amended application—

(i) is filed within the application period described in paragraph (3); and

(ii) contains all the required information and fees that were missing from the initial application.

(11) EVIDENCE OF BLUE CARD STATUS.—

(A) IN GENERAL.—The Secretary shall issue documentary evidence of blue card status to each alien whose application for such status has been approved.

(B) DOCUMENTATION FEATURES.—Documentary evidence provided under subparagraph (A)—

(i) shall be machine-readable and tamper-resistant, and shall contain a digitized photograph;

(ii) shall, during the alien's authorized period of admission, and any extension of such authorized admission, serve as a valid travel and entry document for the purpose of applying for admission to the United States;

(iii) may be accepted during the period of its validity by an employer as evidence of employment authorization and identity under section 274A(b)(1)(B) of the Immigration and Nationality Act (8 U.S.C. 1324a(b)(1)(B)); and

(iv) shall include such other features and information as the Secretary may prescribe.

(c) TERMS AND CONDITIONS OF BLUE CARD STATUS.—

(1) CONDITIONS OF BLUE CARD STATUS.—

(A) EMPLOYMENT.—Notwithstanding any other provision of law, including section 241(a)(7) of the Immigration and Nationality Act (8 U.S.C. 1231(a)(7)), an alien with blue card status shall be authorized to be employed in the United States while in such status.

(B) TRAVEL OUTSIDE THE UNITED STATES.—An alien with blue card status may travel outside of the United States and may be admitted, if otherwise admissible, upon returning to the United States without having to obtain a visa if—

(i) the alien is in possession of—

(I) valid, unexpired documentary evidence of blue card status that complies with subsection (b)(11); or

(II) a travel document that has been approved by the Secretary and was issued to the alien after the alien's original documentary evidence was lost, stolen, or destroyed;

(ii) the alien's absence from the United States did not exceed 180 days, unless the alien's failure to timely return was due to extenuating circumstances beyond the alien's control; and

(iii) the alien establishes that the alien is not inadmissible under subparagraph (A)(i), (A)(iii), (B), or (C) of section 212(a)(3) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(3)).

(C) ADMISSION.—An alien granted blue card status shall be considered to have been admitted in such status as of the date on which the alien's application was filed.

(D) CLARIFICATION OF STATUS.—An alien granted blue card status—

(i) is lawfully admitted to the United States; and

(ii) may not be classified as a nonimmigrant or as an alien who has been lawfully admitted for permanent residence.

(2) REVOCATION.—

(A) IN GENERAL.—The Secretary may revoke blue card status at any time after providing appropriate notice to the alien, and after the exhaustion or waiver of all applicable administrative review procedures under section 245E(c) of the Immigration and Nationality Act, as added by section 2104(a) of this Act, if the alien—

(i) no longer meets the eligibility requirements for blue card status;

(ii) knowingly used documentation issued under this section for an unlawful or fraudulent purpose; or

(iii) was absent from the United States for—

(I) any single period longer than 180 days in violation of the requirement under paragraph (1)(B)(ii); or

(II) for more than 180 days in the aggregate during any calendar year, unless the alien's failure to timely return was due to extenuating circumstances beyond the alien's control.

(B) ADDITIONAL EVIDENCE.—

(i) IN GENERAL.—In determining whether to revoke an alien's status under subparagraph (A), the Secretary may require the alien—

(I) to submit additional evidence; or

(II) to appear for an interview.

(ii) EFFECT OF NONCOMPLIANCE.—The status of an alien who fails to comply with any requirement imposed by the Secretary under clause (i) shall be revoked unless the alien demonstrates to the Secretary's satisfaction that such failure was reasonably excusable.

(C) INVALIDATION OF DOCUMENTATION.—If an alien's blue card status is revoked under subparagraph (A), any documentation issued by the Secretary to such alien under subsection (b)(11) shall automatically be rendered invalid for any purpose except for departure from the United States.

(3) INELIGIBILITY FOR PUBLIC BENEFITS.—An alien who has been granted blue card status is not eligible for any Federal means-tested public benefit (as such term is defined and implemented in section 403 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613)).

(4) TREATMENT OF BLUE CARD STATUS.—A noncitizen granted blue card status shall be considered lawfully present in the United States for all purposes while such noncitizen remains in such status, except that the noncitizen—

(A) is not entitled to the premium assistance tax credit authorized under section 36B of the Internal Revenue Code of 1986 for his or her coverage;

(B) shall be subject to the rules applicable to individuals who are not lawfully present set forth in subsection (e) of such section;

(C) shall be subject to the rules applicable to individuals who are not lawfully present set forth in section 1402(e) of the Patient Protection and Affordable Care Act (42 U.S.C. 18071(e)); and

(D) shall be subject to the rules applicable to individuals not lawfully present set forth in section 5000A(d)(3) of the Internal Revenue Code of 1986.

(5) ADJUSTMENT TO REGISTERED PROVISIONAL IMMIGRANT STATUS.—The Secretary may adjust the status of an alien who has been granted blue card status to the status of a registered provisional immigrant under section 245B of the Immigration and Nationality Act if the Secretary determines that the alien is unable to fulfill the agricultural service requirement set forth in section 245F(a)(1) of such Act.

(d) RECORD OF EMPLOYMENT.—

(1) IN GENERAL.—Each employer of an alien granted blue card status shall annually provide—

(A) a written record of employment to the alien; and

(B) a copy of such record to the Secretary of Agriculture.

(2) CIVIL PENALTIES.—

(A) IN GENERAL.—If the Secretary finds, after notice and an opportunity for a hearing, that an employer of an alien granted blue card status has knowingly failed to provide the record of employment required under paragraph (1) or has provided a false statement of material fact in such a record, the employer shall be subject to a civil penalty in an amount not to exceed $500 per violation.

(B) LIMITATION.—The penalty under subparagraph (A) for failure to provide employment records shall not apply unless the alien has provided the employer with evidence of employment authorization provided under subsection (c).

(C) DEPOSIT OF CIVIL PENALTIES.—Civil penalties collected under this paragraph shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

(3) TERMINATION OF OBLIGATION.—The obligation under paragraph (1) shall terminate on the date that is 8 years after the date of the enactment of this Act.

(4) EMPLOYER PROTECTIONS.—

(A) USE OF EMPLOYMENT RECORDS.—Copies of employment records or other evidence of employment provided by an alien or by an alien's employer in support of an alien's application for blue card status may not be used in a civil or criminal prosecution or investigation of that employer under section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a) or the Internal Revenue Code of 1986 for the prior unlawful employment of that alien regardless of the adjudication of such application or reconsideration by the Secretary of such alien's prima facie eligibility determination. Employers that provide unauthorized aliens with copies of employment records or other evidence of employment pursuant to an application for blue card status shall not be subject to civil and criminal liability pursuant to such section 274A for employing such unauthorized aliens.

(B) LIMIT ON APPLICABILITY.—The protections for employers and aliens under subparagraph (A) shall not apply if the aliens or employers submit employment records that are deemed to be fraudulent.

(e) RULEMAKING.—Not later than 1 year after the date of the enactment of this Act, the Secretary, in consultation with the Secretary of Agriculture, shall issue final regulations to implement this chapter.

SEC. 2212. ADJUSTMENT TO PERMANENT RESIDENT STATUS.

(a) IN GENERAL.—Chapter 5 of title II (8 U.S.C. 1255 et seq.) is amended by inserting after section 245E, as added by section 2104 of this Act, the following:

"SEC. 245F. ADJUSTMENT TO PERMANENT RESIDENT STATUS FOR AGRICULTURAL WORKERS.

''(a) IN GENERAL.—Except as provided in subsection (b), and not earlier than 5 years after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary shall adjust the status of an alien granted blue card status to that of an alien lawfully admitted for permanent residence if the Secretary determines that the following requirements are satisfied:

''(1) QUALIFYING EMPLOYMENT.—Except as provided in paragraph (3), the alien—

''(A) during the 8-year period beginning on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, performed not less than 100 work days of agricultural employment during each of 5 years; or

''(B) during the 5-year period beginning on such date of enactment, performed not less than 150 work days of agricultural employment during each of 3 years.

''(2) EVIDENCE.—An alien may demonstrate compliance with the requirement under paragraph (1) by submitting—

''(A) the record of employment described in section 2211(d) of the Border Security, Economic Opportunity, and Immigration Modernization Act;

''(B) documentation that may be submitted under subsection (e)(4); or

''(C) any other documentation designated by the Secretary for such purpose.

''(3) EXTRAORDINARY CIRCUMSTANCES.—

''(A) IN GENERAL.—In determining whether an alien has met the requirement under paragraph (1), the Secretary may credit the alien with not more than 12 additional months of agricultural employment in the United States to meet such requirement if the alien was unable to work in agricultural employment due to—

''(i) pregnancy, disabling injury, or disease that the alien can establish through medical records;

''(ii) illness, disease, or other special needs of a child that the alien can establish through medical records;

''(iii) severe weather conditions that prevented the alien from engaging in agricultural employment for a significant period of time; or

''(iv) termination from agricultural employment, if the Secretary determines that—

''(I) the termination was without just cause; and

''(II) the alien was unable to find alternative agricultural employment after a reasonable job search.

''(B) EFFECT OF DETERMINATION.—A determination under subparagraph (A)(iv), with respect to an alien, shall not be conclusive, binding, or admissible in a separate or subsequent judicial or administrative action or proceeding between the alien and a current

or prior employer of the alien or any other party.

''(4) APPLICATION PERIOD.—The alien applies for adjustment of status before the alien's blue card status expires.

''(5) FINE.—The alien pays a fine of $400 to the Secretary, which shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(b) GROUNDS FOR DENIAL OF ADJUSTMENT OF STATUS.—

''(1) IN GENERAL.—The Secretary may not adjust the status of an alien granted blue card status if the alien—

''(A) is no longer eligible for blue card status; or

''(B) failed to perform the qualifying employment requirement under subsection (a)(1), considering any amount credited by the Secretary under subsection (a)(3).

''(2) MAINTENANCE OF WAIVERS OF INADMISSIBILITY.—The grounds of inadmissibility set forth in section 212(a) that were previously waived for the alien or made inapplicable shall not apply for purposes of the alien's adjustment of status under this section.

''(3) PENDING REVOCATION PROCEEDINGS.—If the Secretary has notified the applicant that the Secretary intends to revoke the applicant's blue card status, the Secretary may not approve an application for adjustment of status under this section unless the Secretary makes a final determination not to revoke the applicant's status.

''(4) PAYMENT OF TAXES.—

''(A) IN GENERAL.—An applicant may not file an application for adjustment of status under this section unless the applicant has satisfied any applicable Federal tax liability.

''(B) DEFINITION OF APPLICABLE FEDERAL TAX LIABILITY.—In this paragraph, the term 'applicable federal tax liability' means all Federal income taxes assessed in accordance with section 6203 of the Internal Revenue Code of 1986 since the date on which the applicant was authorized to work in the United States in blue card status.

''(C) COMPLIANCE.—The applicant may demonstrate compliance with subparagraph (A) by submitting such documentation as the Secretary, in consultation with the Secretary of the Treasury, may require by regulation.

''(c) SPOUSES AND CHILDREN.—Notwithstanding any other provision of law, the Secretary shall grant permanent resident status to the spouse or child of an alien whose status was adjusted under subsection (a) if—

''(1) the spouse or child (including any individual who was a child on the date such alien was granted blue card status) applies for such status;

''(2) the principal alien includes the spouse and children in an application for adjustment of status to that of a lawful permanent resident; and

''(3) the spouse or child is not ineligible for such status under section 245B.

''(d) NUMERICAL LIMITATIONS DO NOT APPLY.—The numerical limitations under sections 201 and 202 shall not apply to the adjustment of aliens to lawful permanent resident status under this section.

''(e) SUBMISSION OF APPLICATIONS.—

''(1) INTERVIEW.—The Secretary may interview applicants for adjustment of status under this section to determine whether they meet the eligibility requirements set forth in this section.

''(2) FEES.—

''(A) IN GENERAL.—Applicants for adjustment of status under this section shall pay a processing fee to the Secretary in an amount that will ensure the recovery of the full costs of adjudicating such applications, including—

''(i) the cost of taking and processing biometrics;

''(ii) expenses relating to prevention and investigation of fraud; and

''(iii) costs relating to the administration of the fees collected.

''(B) AUTHORITY TO LIMIT FEES.—The Secretary, by regulation—

''(i) may limit the maximum processing fee payable under this paragraph by a family, including spouses and unmarried children younger than 21 years of age; and

''(ii) may exempt individuals described in section 245B(c)(10) and other defined classes of individuals from the payment of the fee under subparagraph (A).

''(3) DISPOSITION OF FEES.—All fees collected under paragraph (2)(A)—

''(A) shall be deposited into the Immigration Examinations Fee Account pursuant to section 286(m); and

''(B) shall remain available until expended pursuant to section 286(n).

''(4) DOCUMENTATION OF WORK HISTORY.—

''(A) BURDEN OF PROOF.—An alien applying for blue card status under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act or for adjustment of status under subsection (a) shall provide evidence that the alien has worked the requisite number of hours or days required under subsection (a)(1) of such section 2211 or subsection (a)(3) of this section, as applicable.

''(B) TIMELY PRODUCTION OF RECORDS.—If an employer or farm labor contractor employing such an alien has kept proper and adequate records respecting such employment, the alien's burden of proof under subparagraph (A) may be met by securing timely production of those records under regulations to be promulgated by the Secretary.

''(C) SUFFICIENT EVIDENCE.—An alien may meet the burden of proof under subparagraph (A) to establish that the alien has performed the days or hours of work referred to in subparagraph (A) by producing sufficient evidence to show the extent of that employment as a matter of just and reasonable inference.

''(f) PENALTIES FOR FALSE STATEMENTS IN APPLICATIONS.—

''(1) CRIMINAL PENALTY.—Any person who—

''(A) files an application for blue card status under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act or an adjustment of status under this section and knowingly and willfully falsifies, conceals, or covers up a material fact or makes any false, fictitious, or fraudulent statements or representations, or makes or uses any false writing or document knowing the same to contain any false, fictitious, or fraudulent statement or entry; or

''(B) creates or supplies a false writing or document for use in making such an application,

shall be fined in accordance with title 18, United States Code, imprisoned not more than 5 years, or both.

''(2) INADMISSIBILITY.—An alien who is convicted of a crime under paragraph (1) shall be deemed inadmissible to the United States on the ground described in section 212(a)(6)(C)(i).

''(3) DEPOSIT.—Fines collected under paragraph (1) shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(g) ELIGIBILITY FOR LEGAL SERVICES.—Section 504(a)(11) of the Departments of Commerce, Justice, and State, the Judiciary, and Related Agencies Appropriations Act, 1996 (Public Law 104–134; 110 Stat. 1321–55) may not be construed to prevent a recipient of funds under the Legal Services Corporation Act (42 U.S.C. 2996 et seq.) from providing legal assistance directly related to an application for blue card status under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act, to an individual who has been granted blue card status, or for an application for an adjustment of status under this section.

''(h) ADMINISTRATIVE AND JUDICIAL REVIEW.—Aliens applying for blue card status under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act or adjustment to permanent resident status under this section shall be entitled to the rights and subject to the conditions applicable to other classes of aliens under sections 242(h) and 245E.

''(i) APPLICABILITY OF OTHER PROVISIONS.—The provisions set forth in section 245E which are applicable to aliens described in section 245B, 245C, and 245D shall apply to aliens applying for blue card status under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act or adjustment to permanent resident status under this section.

''(j) LIMITATION ON BLUE CARD STATUS.—An alien granted blue card status under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act may only adjust status to an alien lawfully admitted for permanent residence under this section, section 245C of this Act, or section 2302 of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(k) DEFINITIONS.—In this section:

''(1) BLUE CARD STATUS.—The term 'blue card status' means the status of an alien who has been lawfully admitted into the United States for temporary residence under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(2) AGRICULTURAL EMPLOYMENT.—The term 'agricultural employment' has the meaning given such term in section 3 of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1802), without regard to whether the specific service or activity is temporary or seasonal.

''(3) EMPLOYER.—The term 'employer' means any person or entity, including any farm labor contractor and any agricultural association, that employs workers in agricultural employment.

''(4) WORK DAY.—The term 'work day' means any day in which the individual is employed 5.75 or more hours in agricultural employment.''.

(b) CONFORMING AMENDMENT.—Section 201(b)(1) (8 U.S.C. 1151(b)(1)), as amended by section 2103(c), is further amended by adding at the end the following:

''(G) Aliens granted lawful permanent resident status under section 245F.''.

(c) CLERICAL AMENDMENT.—The table of contents, as amended by section 2104(e), is further amended by inserting after the item relating to section 245E the following:

''Sec. 245F. Adjustment to permanent resident status for agricultural workers.''.

SEC. 2213. USE OF INFORMATION.

Beginning not later than the first day of the application period described in section 2211(b)(3), the Secretary, in cooperation with qualified designated entities, shall broadly disseminate information respecting the benefits that aliens may receive under this subchapter and the requirements that an alien is required to meet to receive such benefits.

SEC. 2214. REPORTS ON BLUE CARDS.

Not later than September 30, 2013, and annually thereafter for the next 8 years, the Secretary shall submit a report to Congress that identifies, for the previous fiscal year—

(1) the number of aliens who applied for blue card status;

(2) the number of aliens who were granted blue card status;

(3) the number of aliens who applied for an adjustment of status pursuant to section 245F(a) of the Immigration and Nationality Act, as added by section 2212; and

(4) the number of aliens who received an adjustment of status pursuant such section 245F(a).

SEC. 2215. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated to the Secretary such sums as may be necessary to implement this subchapter, including any sums needed for costs associated with the initiation of such implementation, for fiscal years 2013 and 2014.

Subchapter B—Correction of Social Security Records

SEC. 2221. CORRECTION OF SOCIAL SECURITY RECORDS.

(a) IN GENERAL.—Section 208(e)(1) of the Social Security Act (42 U.S.C. 408(e)(1)) is amended—

(1) in subparagraph (B)(ii), by striking ''or'' at the end;

(2) in subparagraph (C), by inserting ''or'' at the end;

(3) by inserting after subparagraph (C) the following:

''(D) who is granted blue card status under the Agricultural Worker Program Act of 2013,''; and

(4) by striking ''1990.'' and inserting ''1990, or in the case of an alien described in subparagraph (D), if such conduct is alleged to have occurred before the date on which the alien was granted blue card status under section 2211(a) of the Agricultural Worker Program Act of 2013.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect on the first day of the seventh month that begins after the date of the enactment of this Act.

CHAPTER 2—NONIMMIGRANT AGRICULTURAL VISA PROGRAM

SEC. 2231. NONIMMIGRANT CLASSIFICATION FOR NONIMMIGRANT AGRICULTURAL WORKERS.

Section 101(a)(15) (8 U.S.C. 1101(a)(15)) is amended by adding at the end the following:

''(W) an alien having a residence in a foreign country who is coming to the United States for a temporary period—

''(iii)(I) to perform services or labor in agricultural employment and who has a written contract that specifies the wages, benefits, and working conditions of such full-time employment in an agricultural occupation with a designated agricultural employer for a specified period of time; and

''(II) who meets the requirements under section 218A for a nonimmigrant visa described in this clause; or

''(iv)(I) to perform services or labor in agricultural employment and who has an offer of full-time employment in an agricultural occupation from a designated agricultural employer for such employment and is not described in clause (i); and

''(II) who meets the requirements under section 218A for a nonimmigrant visa described in this clause.''.

SEC. 2232. ESTABLISHMENT OF NONIMMIGRANT AGRICULTURAL WORKER PROGRAM.

(a) IN GENERAL.—Chapter 2 of title II (8 U.S.C. 1181 et seq.) is amended by inserting after section 218 the following:

''SEC. 218A. NONIMMIGRANT AGRICULTURAL WORKER PROGRAM.

''(a) DEFINITIONS.—In this section and in clauses (iii) and (iv) of section 101(a)(15)(W):

''(1) AGRICULTURAL EMPLOYMENT.—The term 'agricultural employment' has the meaning given such term in section 3 of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1802), without regard to whether the specific service or activity is temporary or seasonal.

''(2) AT-WILL AGRICULTURAL WORKER.—The term 'at-will agricultural worker' means an alien present in the United States pursuant to section 101(a)(15)(W)(iv).

''(3) BLUE CARD.—The term 'blue card' means an employment authorization and travel document issued to an alien granted blue card status under section 2211(a) of the Agricultural Worker Program Act of 2013.

''(4) CONTRACT AGRICULTURAL WORKER.—The term 'contract agricultural worker' means an alien present in the United States pursuant to section 101(a)(15)(W)(iii).

''(5) DESIGNATED AGRICULTURAL EMPLOYER.—The term 'designated agricultural employer' means an employer who is registered with the Secretary of Agriculture pursuant to subsection (e)(1).

''(6) ELECTRONIC JOB REGISTRY.—The term 'Electronic Job Registry' means the Electronic Job Registry of a State workforce agency (or similar successor registry).

''(7) EMPLOYER.—Except as otherwise provided, the term 'employer' means any person or entity, including any farm labor contractor and any agricultural association, that employs workers in agricultural employment.

''(8) NONIMMIGRANT AGRICULTURAL WORKER.—The term 'nonimmigrant agricultural worker' mean a nonimmigrant described in clause (iii) or (iv) of section 101(a)(15)(W).

''(9) PROGRAM.—The term 'Program' means the Nonimmigrant Agricultural Worker Program established under subsection (b).

''(10) SECRETARY.—Except as otherwise specifically provided, the term 'Secretary' means the Secretary of Agriculture.

''(11) UNITED STATES WORKER.—The term 'United States worker' means an individual who—

''(A) is a national of the United States; or

''(B) is an alien who—

''(i) is lawfully admitted for permanent residence;

''(ii) is admitted as a refugee under section 207;

''(iii) is granted asylum under section 208;

''(iv) holds a blue card; or

''(v) is an immigrant otherwise authorized by this Act or by the Secretary of Homeland Security to be employed in the United States.

''(b) REQUIREMENTS.—

''(1) EMPLOYER.—An employer may not employ an alien for agricultural employment under the Program unless such employer is a designated agricultural employer and complies with the terms of this section.

''(2) WORKER.—An alien may not be employed for agricultural employment under the Program unless such alien is a nonimmigrant agricultural worker and complies with the terms of this section.

''(c) NUMERICAL LIMITATION.—

''(1) FIRST 5 YEARS OF PROGRAM.—

''(A) IN GENERAL.—Subject to paragraph (2), the worldwide level of visas for nonimmigrant agricultural workers for the fiscal year during which the first visa is issued to a nonimmigrant agricultural worker and for each of the following 4 fiscal years shall be equal to—

''(i) 112,333; and

''(ii) the numerical adjustment made by the Secretary for such fiscal year in accordance with paragraph (2).

''(B) QUARTERLY ALLOCATION.—The annual allocation of visas described in subparagraph (A) shall be evenly allocated between the 4 quarters of the fiscal year unless the Secretary determines that an alternative allocation would better accommodate the seasonal demand for visas. Any unused visas in a quarter shall be added to the allocation for the subsequent quarter of the same fiscal year.

''(C) EFFECT OF 2ND OR SUBSEQUENT DESIGNATED AGRICULTURAL EMPLOYER.—A nonimmigrant agricultural worker who has a valid visa issued under this section that counted against the allocation described in subparagraph (A) shall not be recounted against the allocation if the worker is petitioned for by a subsequent designated agricultural employer.

''(2) ANNUAL ADJUSTMENTS FOR FIRST 5 YEARS OF PROGRAM.—

''(A) IN GENERAL.—The Secretary, in consultation with the Secretary of Labor, and after reviewing relevant evidence submitted by agricultural producers and organizations representing agricultural workers, may increase or decrease, as appropriate, the worldwide level of visas under paragraph (1) for each of the 5 fiscal years referred to in paragraph (1) after considering appropriate factors, including—

''(i) a demonstrated shortage of agricultural workers;

''(ii) the level of unemployment and underemployment of agricultural workers during the preceding fiscal year;

''(iii) the number of applications for blue card status;

''(iv) the number of blue card visa applications approved;

''(v) the number of nonimmigrant agricultural workers sought by employers during the preceding fiscal year;

''(vi) the estimated number of United States workers, including blue card workers, who worked in agriculture during the preceding fiscal year;

''(vii) the number of nonimmigrant agricultural workers issued a visa in the most recent fiscal year who remain in the United States in compliance with the terms of such visa;

''(viii) the number of United States workers who accepted jobs offered by employers using the Electronic Job Registry during the preceding fiscal year;

''(ix) any growth or contraction of the United States agricultural industry that has increased or decreased the demand for agricultural workers; and

''(x) any changes in the real wages paid to agricultural workers in the United States as an indication of a shortage or surplus of agricultural labor.

''(B) NOTIFICATION; IMPLEMENTATION.—The Secretary shall notify the Secretary of Homeland Security of any change to the worldwide level of visas for nonimmigrant agricultural workers. The Secretary of Homeland Security shall implement such changes.

''(C) EMERGENCY PROCEDURES.—The Secretary shall establish, by regulation, procedures for immediately adjusting an annual allocation under paragraph (1) for labor shortages, as determined by the Secretary. The Secretary shall make a decision on a petition for an adjustment of status not later than 30 days after receiving such petition.

''(3) SIXTH AND SUBSEQUENT YEARS OF PROGRAM.—The Secretary, in consultation with the Secretary of Labor, shall establish the worldwide level of visas for nonimmigrant agricultural workers for each fiscal year following the fiscal years referred to in paragraph (1) after considering appropriate factors, including—

''(A) a demonstrated shortage of agricultural workers;

''(B) the level of unemployment and underemployment of agricultural workers during the preceding fiscal year;

''(C) the number of applications for blue card status;

''(D) the number of blue card visa applications approved;

''(E) the number of nonimmigrant agricultural workers sought by employers during the preceding fiscal year;

''(F) the estimated number of United States workers, including blue card workers, who worked in agriculture during the preceding fiscal year;

''(G) the number of nonimmigrant agricultural workers issued a visa in the most recent fiscal year who remain in the United States in compliance with the terms of such visa;

''(H) the number of United States workers who accepted jobs offered by employers using the Electronic Job Registry during the preceding fiscal year;

''(I) any growth or contraction of the United States agricultural industry that has increased or decreased the demand for agricultural workers; and

''(J) any changes in the real wages paid to agricultural workers in the United States as an indication of a shortage or surplus of agricultural labor.

''(4) EMERGENCY PROCEDURES.—The Secretary shall establish, by regulation, procedures for immediately adjusting an annual allocation under paragraph (3) for labor shortages, as determined by the Secretary. The Secretary shall make a decision on a petition for an adjustment of status not later than 30 days after receiving such petition.

''(d) REQUIREMENTS FOR NONIMMIGRANT AGRICULTURAL WORKERS.—

''(1) ELIGIBILITY FOR NONIMMIGRANT AGRICULTURAL WORKER STATUS.—

''(A) IN GENERAL.—An alien is not eligible to be admitted to the United States as a nonimmigrant agricultural worker if the alien—

''(i) violated a material term or condition of a previous admission as a nonimmigrant agricultural worker during the most recent 3-year period (other than a contract agricultural worker who voluntarily abandons his or her employment before the end of the contract period or whose employment is terminated by the employer for cause);

''(ii) has not obtained successful clearance of any security and criminal background checks required by the Secretary of Homeland Security or any other examination required under this Act; or

''(iii)(I) departed from the United States while subject to an order of exclusion, deportation, or removal, or pursuant to an order of voluntary departure; and

''(II)(aa) is outside of the United States; or

''(bb) has reentered the United States illegally after December 31, 2012, without receiving consent to the alien's reapplication for admission under section 212(a)(9).

''(B) WAIVER.—The Secretary of Homeland Security may waive the application of subparagraph (A)(iii) on behalf of an alien if the alien—

''(i) is the spouse or child of a United States citizen or lawful permanent resident;

''(ii) is the parent of a child who is a United States citizen or lawful permanent resident;

''(iii) meets the requirements set forth in clause (ii) or (iii) of section 245D(b)(1)(A); or

''(iv)(I) meets the requirements set forth in section 245D(b)(1)(A)(ii);

''(II) is 16 years or older on the date on which the alien applies for nonimmigrant agricultural status; and

''(III) was physically present in the United States for an aggregate period of not less than 3 years during the 6-year period immediately preceding the date of the enactment of this section.

''(2) TERM OF STAY FOR NONIMMIGRANT AGRICULTURAL WORKERS.—

''(A) IN GENERAL.—

''(i) INITIAL ADMISSION.—A nonimmigrant agricultural worker may be admitted into the United States in such status for an initial period of 3 years.

''(ii) RENEWAL.—A nonimmigrant agricultural worker may renew such worker's period of admission in the United States for 1 additional 3-year period.

''(B) BREAK IN PRESENCE.—A nonimmigrant agricultural worker who has been admitted to the United States for 2 consecutive periods under subparagraph (A) is ineligible to renew the alien's nonimmigrant agricultural worker status until such alien—

''(i) returns to a residence outside the United States for a period of not less than 3 months; and

''(ii) seeks to reenter the United States under the terms of the Program as a nonimmigrant agricultural worker.

''(3) LOSS OF STATUS.—

''(A) IN GENERAL.—An alien admitted as a nonimmigrant agricultural worker shall be ineligible for such status and shall be required to depart the United States if such alien—

''(i) after the completion of his or her contract with a designated agricultural employer, is not employed in agricultural employment by a designated agricultural employer; or

''(ii) is an at-will agricultural worker and is not continuously employed by a designated agricultural employer in agricultural employment as an at-will agricultural worker.

''(B) EXCEPTION.—Subject to subparagraph (C), a nonimmigrant agricultural worker has not violated subparagraph (A) if the nonimmigrant agricultural worker is not employed in agricultural employment for a period not to exceed 60 days.

''(C) WAIVER.—Notwithstanding subparagraph (B), the Secretary of Homeland Security may waive the application of clause (i) or (ii) of subparagraph (A) for a nonimmigrant agricultural worker who was not employed in agricultural employment for a period of more than 60 days if such period of unemployment was due to—

''(i) the injury of such worker; or

''(ii) a natural disaster declared by the Secretary.

''(D) TOLLING OF EMPLOYMENT REQUIREMENT.—A nonimmigrant agricultural worker may leave the United States for up to 60 days in any fiscal year while in such status. During the period in which the worker is outside of the United States, the 60-day limit specified in subparagraph (B) shall be tolled.

''(4) PORTABILITY OF STATUS.—

''(A) CONTRACT AGRICULTURAL WORKERS.—

''(i) IN GENERAL.—Except as provided in clause (ii), an alien who entered the United States as a contract agricultural worker may—

''(I) seek employment as a nonimmigrant agricultural worker with a designated agricultural employer other than the designated agricultural employer with whom the employee had a contract described in section 101(a)(15)(W)(iii)(I); and

''(II) accept employment with such new employer after the date the contract agricultural worker completes such contract.

''(ii) VOLUNTARY ABANDONMENT; TERMINATION FOR CAUSE.—A contract agricultural worker who voluntarily abandons his or her employment before the end of the contract period or whose employment is terminated for cause by the employer—

''(I) may not accept subsequent employment with another designated agricultural employer without first departing the United States and reentering pursuant to a new offer of employment; and

''(II) is not entitled to the 75 percent payment guarantee described in subsection (e)(4)(B).

''(iii) TERMINATION BY MUTUAL AGREEMENT.—The termination of an employment contract by mutual agreement of the designated agricultural employer and the contract agricultural worker shall not be considered voluntary abandonment for purposes of clause (ii).

''(B) AT-WILL AGRICULTURAL WORKERS.—An alien who entered the United States as an at-will agricultural worker may seek employment as an at-will agricultural worker with any other designated agricultural employer referred to in section 101(a)(15)(W)(iv)(I).

''(5) PROHIBITION ON GEOGRAPHIC LIMITATION.—A nonimmigrant visa issued to a nonimmigrant agricultural worker—

''(A) shall not limit the geographical area within which such worker may be employed;

''(B) shall not limit the type of agricultural employment such worker may perform; and

''(C) shall restrict such worker to employment with designated agricultural employers.

''(6) TREATMENT OF SPOUSES AND CHILDREN.—A spouse or child of a nonimmigrant agricultural worker—

''(A) shall not be entitled to a visa or any immigration status by virtue of the relationship of such spouse or child to such worker; and

''(B) may be provided status as a nonimmigrant agricultural worker if the spouse or child is independently qualified for such status.

''(e) EMPLOYER REQUIREMENTS.—

''(1) DESIGNATED AGRICULTURAL EMPLOYER STATUS.—

''(A) REGISTRATION REQUIREMENT.—Each employer seeking to employ nonimmigrant agricultural workers shall register for designated agricultural employer status by submitting to the Secretary, through the Farm Service Agency in the geographic area of the employer or electronically to the Secretary, a registration that includes—

''(i) the employer's employer identification number; and

''(ii) a registration fee, in an amount determined by the Secretary, which shall be used for the costs of administering the program.

''(B) CRITERIA.—The Secretary shall grant designated agricultural employer status to an employer who submits a registration for such status that includes—

''(i) documentation that the employer is engaged in agriculture;

''(ii) the estimated number of nonimmigrant agricultural workers the employer will need each year;

''(iii) the anticipated periods during which the employer will need such workers; and

''(iv) documentation establishing need for a specified agricultural occupation or occupations.

''(C) DESIGNATION.—

''(i) REGISTRATION NUMBER.—The Secretary shall assign each employer that meets the criteria established pursuant to subparagraph (B) with a designated agricultural employer registration number.

''(ii) TERM OF DESIGNATION.—Each employer granted designated agricultural employer status under this paragraph shall retain such status for a term of 3 years. At the end of such 3-year term, the employer may renew the registration for another 3-year term if the employer meets the requirements set forth in subparagraphs (A) and (B).

''(D) ASSISTANCE.—In carrying out the functions described in this subsection, the Secretary may work through the Farm Service Agency, or any other agency in the Department of Agriculture—

''(i) to assist agricultural employers with the registration process under this paragraph by providing such employers with—

''(I) technical assistance and expertise;

''(II) internet access for submitting such applications; and

''(III) a nonelectronic means for submitting such registrations; and

''(ii) to provide resources about the Program, including best practices and compliance related assistance and resources or training to assist in retention of such workers to agricultural employers.

''(E) DEPOSIT OF REGISTRATION FEE.—Fees collected pursuant to subparagraph (A)(ii)—

''(i) shall be deposited into the Immigration Examinations Fee Account pursuant to section 286(m); and

''(ii) shall remain available until expended pursuant to section 286(n).

''(2) NONIMMIGRANT AGRICULTURAL WORKER PETITION PROCESS.—

''(A) IN GENERAL.—Not later than 45 days before the date on which nonimmigrant agricultural workers are needed, a designated agricultural employer seeking to employ such workers shall submit a petition to the Secretary of Homeland Security that includes the employer's designated agricultural employer registration number.

''(B) ATTESTATION.—An petition submitted under subparagraph (A) shall include an attestation of the following:

''(i) The number of named or unnamed nonimmigrant agricultural workers the designated agricultural employer is seeking to employ during the applicable period of employment.

''(ii) The total number of contract agricultural workers and of at-will agricultural workers the employer will require for each occupational category.

''(iii) The anticipated period, including expected beginning and ending dates, during which such employees will be needed.

''(iv) Evidence of contracts or written disclosures of employment terms and conditions in accordance with the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1801 et seq.), which have been disclosed or provided to the nonimmigrant agricultural workers, or a sample of such contract or disclosure for unnamed workers.

''(v) The information submitted to the State workforce agency pursuant to paragraph (3)(A)(i).

''(vi) The record of United States workers described in paragraph (3)(A)(iii) on the date of the request.

''(vii) Evidence of offers of employment made to United States workers as required under paragraph (3)(B).

''(viii) The employer will comply with the additional program requirements for designated agricultural employers described in paragraph (4).

''(C) EMPLOYMENT AUTHORIZATION WHEN CHANGING EMPLOYERS.—Nonimmigrant agricultural workers in the United States who are identified in a petition submitted pursuant to subparagraph (A) and are in lawful status may commence employment with their designated agricultural employer after such employer has submitted such petition to the Secretary of Homeland Security.

''(D) REVIEW.—The Secretary of Homeland Security shall review each petition submitted by designated agricultural employers under this paragraph for completeness or obvious inaccuracies. Unless the Secretary of Homeland Security determines that the petition is incomplete or obviously inaccurate, the Secretary shall accept the petition. The Secretary shall establish a procedure for the processing of petitions filed under this subsection. Not later than 7 working days after the date of the filing, the Secretary, by electronic or other means assuring expedited delivery, shall submit a copy of notice of approval or denial of the petition to the petitioner and, in the case of approved petitions, to the appropriate immigration officer at the port of entry or United States consulate, as appropriate, if the petitioner has indicated that the alien beneficiary or beneficiaries will apply for a visa or admission to the United States.

''(3) EMPLOYMENT OF UNITED STATES WORKERS.—

''(A) RECRUITMENT.—

''(i) FILING A JOB OPPORTUNITY WITH LOCAL OFFICE OF STATE WORKFORCE AGENCY.—Not later than 60 days before the date on which the employer desires to employ a nonimmigrant agricultural worker, the employer shall submit the job opportunity for such worker to the local office of the State workforce agency where the job site is located and authorize the posting of the job opportunity on the appropriate Department of Labor Electronic Job Registry for a period of 45 days.

''(ii) CONSTRUCTION.—Nothing in clause (i) may be construed to cause a posting referred to in clause (i) to be treated as an interstate job order under section 653.500 of title 20, Code of Federal Regulations (or similar successor regulation).

''(iii) RECORD OF UNITED STATES WORKERS.—An employer shall keep a record of all eligible, able, willing, and qualified United States workers who apply for agricultural employment with the employer for the agricultural employment for which the nonimmigrant agricultural nonimmigrant workers are sought.

''(B) REQUIREMENT TO HIRE.—

''(i) UNITED STATES WORKERS.—An employer may not seek a nonimmigrant agricultural worker for agricultural employment unless the employer offers such employment to any equally or better qualified United States worker who will be available at the time and place of need and who applies for such employment during the 45-day recruitment period referred to in subparagraph (A)(i).

''(ii) EXCEPTION.—Notwithstanding clause (i), the employer may offer the job to a nonimmigrant agricultural worker instead of an alien in blue card status if—

''(I) such worker was previously employed by the employer as an H–2A worker;

''(II) such worker worked for the employer for 3 years during the most recent 4-year period; and

''(III) the employer pays such worker the adverse effect wage rate calculated under subsection (f)(5)(B).

''(4) ADDITIONAL PROGRAM REQUIREMENTS FOR DESIGNATED AGRICULTURAL EMPLOYERS.—Each designated agricultural employer shall comply with the following requirements:

''(A) NO DISPLACEMENT OF UNITED STATES WORKERS.—

''(i) IN GENERAL.—The employer shall not displace a United States worker employed by the employer, other than for good cause, during the period of employment of the nonimmigrant agricultural worker and for a period of 30 days preceding such period in the occupation and at the location of employment for which the employer seeks to employ nonimmigrant agricultural workers.

''(ii) LABOR DISPUTE.—The employer shall not employ a nonimmigrant agricultural worker for a specific job for which the employer is requesting a nonimmigrant agricultural worker because the former occupant of the job is on strike or being locked out in the course of a labor dispute.

''(B) GUARANTEE OF EMPLOYMENT FOR CONTRACT AGRICULTURAL WORKERS.—

''(i) OFFER TO CONTRACT WORKER.—The employer shall guarantee to offer contract agricultural workers employment for the hourly equivalent of at least 75 percent of the work days of the total period of employment, beginning with the first work day after the arrival of the worker at the place of employment and ending on the expiration date specified in the job offer. In this clause, the term 'hourly equivalent' means the number of hours in the work days as stated in the job offer and shall exclude the worker's Sabbath and Federal holidays. If the employer affords the contract agricultural worker less employment than the number of hours required under this subparagraph, the employer shall pay such worker the amount the worker would have earned had the worker worked the guaranteed number of hours.

''(ii) FAILURE TO WORK.—Any hours which the worker fails to work, up to a maximum of the number of hours specified in the job offer for a work day, when the worker has been offered an opportunity to do so, and all hours of work actually performed (including voluntary work in excess of the number of hours specified in the job offer in a work day, on the worker's Sabbath, or on Federal holidays) may be counted by the employer in calculating whether the period of guaranteed employment has been met.

''(iii) CONTRACT IMPOSSIBILITY.—If, before the expiration of the period of employment specified in the job offer, the services of a contract agricultural worker are no longer required for reasons beyond the control of the employer due to any form of natural disaster, including a flood, hurricane, freeze, earthquake, fire, drought, plant or animal disease or pest infestation, or regulatory drought, before the guarantee in clause (i) is fulfilled, the employer—

''(I) may terminate the worker's employment;

''(II) shall fulfill the employment guarantee described in clause (i) for the work days that have elapsed from the first work day after the arrival of the worker to the termination of employment;

''(III) shall make efforts to transfer the worker to other comparable employment acceptable to the worker; and

''(IV) if such a transfer does not take place, shall provide the return transportation required under subparagraph (J).

''(C) WORKERS' COMPENSATION.—

''(i) REQUIREMENT TO PROVIDE.—If a job referred to in paragraph (3) is not covered by the State workers' compensation law, the employer shall provide, at no cost to the nonimmigrant agricultural worker, insurance covering injury and disease arising out of, and in the course of, such job.

''(ii) BENEFITS.—The insurance required to be provided under clause (i) shall provide benefits at least equal to those provided under and pursuant to the State workers' compensation law for comparable employment.

''(D) PROHIBITION FOR USE FOR NONAGRICULTURAL SERVICES.—The employer may not employ a nonimmigrant agricultural worker for employment other than agricultural employment.

''(E) WAGES.—The employer shall pay not less than the wage required under subsection (f).

''(F) DEDUCTION OF WAGES.—The employer shall make only deductions from a nonimmigrant agricultural worker's wages that are authorized by law and are reasonable and customary in the occupation and area of employment of such worker.

''(G) REQUIREMENT TO PROVIDE HOUSING OR A HOUSING ALLOWANCE.—

''(i) IN GENERAL.—Except as provided in clauses (iv) and (v), a designated agricultural employer shall offer to provide a nonimmigrant agricultural worker with housing at no cost in accordance with clause (ii) or (iii).

''(ii) HOUSING.—An employer may provide housing to a nonimmigrant agricultural worker that meets—

''(I) applicable Federal standards for temporary labor camps; or

''(II) applicable local standards (or, in the absence of applicable local standards, State standards) for rental or public accommodation housing or other substantially similar class of habitation.

''(iii) HOUSING PAYMENTS.—

''(I) PUBLIC HOUSING.—If the employer arranges public housing for nonimmigrant agricultural workers through a State, county, or local government program and such public housing units normally require payments from tenants, such payments shall be made by the employer directly to the landlord.

''(II) DEPOSITS.—Deposits for bedding or other similar incidentals related to housing shall not be collected from workers by employers who provide housing for such workers.

''(III) DAMAGES.—The employer may require any worker who is responsible for damage to housing that did not result from normal wear and tear related to habitation to reimburse the employer for the reasonable cost of repairing such damage.

''(iv) HOUSING ALLOWANCE ALTERNATIVE.—

''(I) IN GENERAL.—The employer may provide a reasonable housing allowance instead of providing housing under clause (i). Upon the request of a worker seeking assistance in locating housing, the employer shall make a good faith effort to assist the worker in identifying and locating housing in the area of intended employment. An employer who offers a housing allowance to a worker or assists a worker in locating housing, which the worker occupies, shall not be deemed a housing provider under section 203 of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1823) solely by virtue of providing such housing allowance. No housing allowance may be used for housing that is owned or controlled by the employer.

''(II) CERTIFICATION REQUIREMENT.—Contract agricultural workers may only be provided a housing allowance if the Governor of the State in which the place of employment is located certifies to the Secretary that there is adequate housing available in the area of intended employment for migrant farm workers and contract agricultural workers who are seeking temporary housing while employed in agricultural work. Such certification shall expire after 3 years unless renewed by the Governor of the State.

''(III) AMOUNT OF ALLOWANCE.—

''(aa) NONMETROPOLITAN COUNTIES.—If the place of employment of the workers provided an allowance under this clause is a nonmetropolitan county, the amount of the housing allowance under this clause shall be equal to the average fair market rental for existing housing in nonmetropolitan counties in the State in which the place of employment is located, as established by the Secretary of Housing and Urban Development pursuant to section 8(c) of the United States Housing Act of 1937 (42 U.S.C. 1437f(c)), based on a 2-bedroom dwelling unit and an assumption of 2 persons per bedroom.

''(bb) METROPOLITAN COUNTIES.—If the place of employment of the workers provided an allowance under this clause is a metropolitan county, the amount of the housing allowance under this clause shall be equal to the average fair market rental for existing housing in metropolitan counties in the State in which the place of employment is located, as established by the Secretary of Housing and Urban Development pursuant to section 8(c) of the United States Housing Act of 1937 (42 U.S.C. 1437f(c)), based on a 2-bedroom dwelling unit and an assumption of 2 persons per bedroom.

''(v) EXCEPTION FOR COMMUTING WORKERS.—Nothing in this subparagraph may be construed to require an employer to provide housing or a housing allowance to workers who reside outside of the United States if their place of residence is within normal commuting distance and the job site is within 50 miles of an international land border of the United States.

''(H) WORKSITE TRANSPORTATION FOR CONTRACT WORKERS.—During the period a designated agricultural employer employs a contract agricultural worker, such employer shall, at the employer's option, provide or reimburse the contract agricultural worker for the cost of daily transportation from the contract worker's living quarters to the contract agricultural worker's place of employment.

''(I) REIMBURSEMENT OF TRANSPORTATION TO THE PLACE OF EMPLOYMENT.—

''(i) IN GENERAL.—A nonimmigrant agricultural worker shall be reimbursed by the first employer for the cost of the worker's transportation and subsistence from the place from which the worker came from to the place of first employment.

''(ii) LIMITATION.—The amount of reimbursement provided under clause (i) to a worker shall not exceed the lesser of—

''(I) the actual cost to the worker of the transportation and subsistence involved; or

''(II) the most economical and reasonable common carrier transportation charges and subsistence costs for the distance involved.

''(J) REIMBURSEMENT OF TRANSPORTATION FROM PLACE OF EMPLOYMENT.—

''(i) IN GENERAL.—A contract agricultural worker who completes at least 27 months under his or her contract with the same designated agricultural employer shall be reimbursed by that employer for the cost of the worker's transportation and subsistence from the place of employment to the place from which the worker came from abroad to work for the employer.

''(ii) LIMITATION.—The amount of reimbursement required under clause (i) shall not exceed the lesser of—

''(I) the actual cost to the worker of the transportation and subsistence involved; or

''(II) the most economical and reasonable common carrier transportation charges and subsistence costs for the distance involved.

''(f) WAGES.—

''(1) WAGE RATE REQUIREMENT.—

''(A) IN GENERAL.—A nonimmigrant agricultural worker employed by a designated agricultural employer shall be paid not less than the wage rate for such employment set forth in paragraph (3).

''(B) WORKERS PAID ON A PIECE RATE OR OTHER INCENTIVE BASIS.—If an employer pays by the piece rate or other incentive method and requires 1 or more minimum productivity standards as a condition of job retention, such standards shall be specified in the job offer and be no more than those which have been normally required (at the time of the employee's first application for designated employer status) by other employers for the activity in the geographic area of the job, unless the Secretary approves a higher standard.

''(2) JOB CATEGORIES.—

''(A) IN GENERAL.—For purposes of paragraph (1), each nonimmigrant agricultural worker employed by such employer shall be assigned to 1 of the following standard occupational classifications, as defined by the Bureau of Labor Statistics:

''(i) First-Line Supervisors of Farming, Fishing, and Forestry Workers (45–1011).

''(ii) Animal Breeders (45–2021).

''(iii) Graders and Sorters, Agricultural Products (45–2041).

''(iv) Agricultural equipment operator (45–2091).

''(v) Farmworkers and Laborers, Crop, Nursery, and Greenhouse (45–2092).

''(vi) Farmworkers, Farm, Ranch and Aquacultural Animals (45–2093).

''(B) DETERMINATION OF CLASSIFICATION.—A nonimmigrant agricultural worker is employed in a standard occupational classification described in clause (i), (ii), (iii), (iv), (v), or (vi) of subparagraph (A) if the worker performs activities associated with that occupational classification, as specified on the employer's petition, for at least 75 percent of the time in a semiannual employment period.

''(3) DETERMINATION OF WAGE RATE.—

''(A) CALENDAR YEARS 2014 THROUGH 2016.—The wage rate under this subparagraph for calendar years 2014 through 2016 shall be the higher of—

''(i) the applicable Federal, State, or local minimum wage; or

''(ii)(I) for the category described in paragraph (2)(A)(iii)—

''(aa) $9.37 for calendar year 2014;

''(bb) $9.60 for calendar year 2015; and

''(cc) $9.84 for calendar year 2016;

''(II) for the category described in paragraph (2)(A)(iv)—

''(aa) $11.30 for calendar year 2014;

''(bb) $11.58 for calendar year 2015; and

''(cc) $11.87 for calendar year 2016;

''(III) for the category described in paragraph (2)(A)(v)—

''(aa) $9.17 for calendar year 2014;

''(bb) $9.40 for calendar year 2015; and

''(cc) $9.64 for calendar year 2016; and

''(IV) for the category described in paragraph (2)(A)(vi)—

''(aa) $10.82 for calendar year 2014;

''(bb) $11.09 for calendar year 2015; and

''(cc) $11.37 for calendar year 2016.

''(B) SUBSEQUENT YEARS.—The Secretary shall increase the hourly wage rates set forth in clauses (i) through (iv) of subparagraph (A), for each calendar year after the calendar years described in subparagraph (A) by an amount equal to—

''(i) 1.5 percent, if the percentage increase in the Employment Cost Index for wages and salaries during the previous calendar year, as calculated by the Bureau of Labor Statistics, is less than 1.5 percent;

''(ii) the percentage increase in such Employment Cost Index, if such percentage increase is between 1.5 percent and 2.5 percent, inclusive; or

''(iii) 2.5 percent, if such percentage increase is greater than 2.5 percent.

''(C) AGRICULTURAL SUPERVISORS AND ANIMAL BREEDERS.—Not later than September 1, 2015, and annually thereafter, the Secretary, in consultation with the Secretary of Labor, shall establish the required wage for the next calendar year for each of the job categories set out in clauses (i) and (ii) of paragraph (2)(A).

''(D) SURVEY BY BUREAU OF LABOR STATISTICS.—Not later than April 15, 2015, the Bureau of Labor Statistics shall consult with the Secretary to expand the Occupational Employment Statistics Survey to survey agricultural producers and contractors and produce improved wage data by State and the job categories set out in clauses (i) through (vi) of subparagraph (A).

''(4) CONSIDERATION.—In determining the wage rate under paragraph (3)(C), the Secretary may consider appropriate factors, including—

''(A) whether the employment of additional alien workers at the required wage will adversely affect the wages and working conditions of workers in the United States similarly employed;

''(B) whether the employment in the United States of an alien admitted under section 101(a)(15)(H)(ii)(a) or unauthorized

aliens in the agricultural workforce has depressed wages of United States workers engaged in agricultural employment below the levels that would otherwise have prevailed if such aliens had not been employed in the United States;

''(C) whether wages of agricultural workers are sufficient to support such workers and their families at a level above the poverty thresholds determined by the Bureau of Census;

''(D) the wages paid workers in the United States who are not employed in agricultural employment but who are employed in comparable employment;

''(E) the continued exclusion of employers of nonimmigrant alien workers in agriculture from the payment of taxes under chapter 21 of the Internal Revenue Code of 1986 (26 U.S.C. 3101 et seq.) and chapter 23 of such Code (26 U.S.C. 3301 et seq.);

''(F) the impact of farm labor costs in the United States on the movement of agricultural production to foreign countries;

''(G) a comparison of the expenses and cost structure of foreign agricultural producers to the expenses incurred by agricultural producers based in the United States; and

''(H) the accuracy and reliability of the Occupational Employment Statistics Survey.

''(5) ADVERSE EFFECT WAGE RATE.—

''(A) PROHIBITION OF MODIFICATION.—The adverse effect wage rates in effect on April 15, 2013, for nonimmigrants admitted under 101(a)(15)(H)(ii)(a)—

''(i) shall remain in effect until the date described in section 2233 of the Agricultural Worker Program Act of 2013; and

''(ii) may not be modified except as provided in subparagraph (B).

''(B) EXCEPTION.—Until the Secretary establishes the wage rates required under paragraph (3)(C), the adverse effect wage rates in effect on the date of the enactment of the Agricultural Worker Program Act of 2013 shall be—

''(i) deemed to be such wage rates; and

''(ii) after September 1, 2015, adjusted annually in accordance with paragraph (3)(B).

''(C) NONPAYMENT OF FICA AND FUTA TAXES.—An employer employing nonimmigrant agricultural workers shall not be required to pay and withhold from such workers—

''(i) the tax required under section 3101 of the Internal Revenue Code of 1986; or

''(ii) the tax required under section 3301 of the Internal Revenue Code of 1986.

''(6) PREFERENTIAL TREATMENT OF ALIENS PROHIBITED.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), employers seeking to hire United States workers shall offer the United States workers not less than the same benefits, wages, and working conditions that the employer is offering, intends to offer, or will provide to nonimmigrant agricultural workers. No job offer may impose on United States workers any restrictions or obligations that will not be imposed on the employer's nonimmigrant agricultural workers.

''(B) EXCEPTION.—Notwithstanding subparagraph (A), a designated agricultural employer is not required to provide housing or a housing allowance to United States workers.

''(g) WORKER PROTECTIONS AND DISPUTE RESOLUTION.—

''(1) EQUALITY OF TREATMENT.—Nonimmigrant agricultural workers shall not be denied any right or remedy under any Federal, State, or local labor or employment law applicable to United States workers engaged in agricultural employment.

''(2) APPLICABILITY OF THE MIGRANT AND SEASONAL AGRICULTURAL WORKER PROTECTION ACT.—

''(A) MIGRANT AND SEASONAL AGRICULTURAL WORKER PROTECTION ACT.—Nonimmigrant agricultural workers shall be considered migrant agricultural workers for purposes of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1801 et seq.).

''(B) ELIGIBILITY OF NONIMMIGRANT AGRICULTURAL WORKERS FOR CERTAIN LEGAL ASSISTANCE.—A nonimmigrant agricultural worker shall be considered to be lawfully admitted for permanent residence for purposes of establishing eligibility for legal services under the Legal Services Corporation Act (42 U.S.C. 2996 et seq.) on matters relating to wages, housing, transportation, and other employment rights.

''(C) MEDIATION.—

''(i) FREE MEDIATION SERVICES.—The Federal Mediation and Conciliation Service shall be available to assist in resolving disputes arising under this section between nonimmigrant agricultural workers and designated agricultural employers without charge to the parties.

''(ii) COMPLAINT.—If a nonimmigrant agricultural worker files a complaint under section 504 of the Migrant and Seasonal Agricultural Worker Protection Act (29 U.S.C. 1854), not later than 60 days after the filing of proof of service of the complaint, a party to the action may file a request with the Federal Mediation and Conciliation Service to assist the parties in reaching a satisfactory resolution of all issues involving all parties to the dispute.

''(iii) NOTICE.—Upon filing a request under clause (ii) and giving of notice to the parties, the parties shall attempt mediation within the period specified in clause (iv).

''(iv) 90-DAY LIMIT.—The Federal Mediation and Conciliation Service may conduct mediation or other nonbinding dispute resolution activities for a period not to exceed 90 days beginning on the date on which the Federal Mediation and Conciliation Service receives a request for assistance under clause (ii) unless the parties agree to an extension of such period.

''(v) AUTHORIZATION OF APPROPRIATIONS.—

''(I) IN GENERAL.—Subject to clause (II), there are authorized to be appropriated to the Federal Mediation and Conciliation Service $500,000 for each fiscal year to carry out this subparagraph.

''(II) MEDIATION.—Notwithstanding any other provision of law, the Director of the Federal Mediation and Conciliation Service is authorized—

''(aa) to conduct the mediation or other dispute resolution activities from any other account containing amounts available to the Director; and

''(bb) to reimburse such account with amounts appropriated pursuant to subclause (I).

''(vi) PRIVATE MEDIATION.—If all parties agree, a private mediator may be employed as an alternative to the Federal Mediation and Conciliation Service.

''(3) OTHER RIGHTS.—Nonimmigrant agricultural workers shall be entitled to the rights granted to other classes of aliens under sections 242(h) and 245E.

''(4) WAIVER OF RIGHTS.—Agreements by nonimmigrant agricultural workers to waive or modify any rights or protections under this section shall be considered void or contrary to public policy except as provided in a collective bargaining agreement with a bona fide labor organization.

''(h) ENFORCEMENT AUTHORITY.—

''(1) INVESTIGATION OF COMPLAINTS.—

''(A) AGGRIEVED PERSON OR THIRD-PARTY COMPLAINTS.—

''(i) PROCESS.—The Secretary of Labor shall establish a process for the receipt, investigation, and disposition of complaints respecting a designated agricultural employer's failure to meet a condition specified in subsection (e), or an employer's misrepresentation of material facts in a petition under subsection (e)(2).

''(ii) FILING.—Any aggrieved person or organization, including bargaining representatives, may file a complaint referred to in clause (i) not later than 1 year after the date of the failure or misrepresentation, respectively.

''(iii) INVESTIGATION OR HEARING.—The Secretary of Labor shall conduct an investigation if there is reasonable cause to believe that such failure or misrepresentation has occurred.

''(B) DETERMINATION ON COMPLAINT.—Under such process, the Secretary of Labor shall provide, not later than 30 days after the date on which such a complaint is filed, for a determination as to whether or not a reasonable basis exists to make a finding described in subparagraph (C), (D), (E), or (F). If the Secretary of Labor determines that such a reasonable basis exists, the Secretary of Labor shall provide for notice of such determination to the interested parties and an opportunity for a hearing on the complaint, in accordance with section 556 of title 5, United States Code, within 60 days after the date of the determination. If such a hearing is requested, the Secretary of Labor shall make a finding concerning the matter not later than 60 days after the date of the hearing. In the case of similar complaints respecting the same applicant, the Secretary of Labor may consolidate the hearings under this subparagraph on such complaints.

''(C) FAILURE TO MEET CONDITIONS.—If the Secretary of Labor finds, after notice and opportunity for a hearing, a failure to meet a condition under subsection (e) or (f), or a material misrepresentation of fact in a petition under subsection (e)(2)—

''(i) the Secretary of Labor shall notify the Secretary of such finding and may, in addition, impose such other administrative remedies (including civil money penalties in an amount not to exceed $1,000 per violation) as the Secretary of Labor determines to be appropriate; and

''(ii) the Secretary may disqualify the designated agricultural employer from the employment of nonimmigrant agricultural workers for a period of 1 year.

''(D) WILLFUL FAILURES AND WILLFUL MISREPRESENTATIONS.—If the Secretary of Labor finds, after notice and opportunity for hearing, a willful failure to meet a condition under subsection (e) or (f) or a willful misrepresentation of a material fact in an registration or petition under paragraph (1) or (2) of subsection (e)—

''(i) the Secretary of Labor shall notify the Secretary of such finding and may, in addition, impose such other administrative remedies (including civil money penalties in an amount not to exceed $5,000 per violation) as the Secretary of Labor determines to be appropriate;

''(ii) the Secretary of Labor may seek appropriate legal or equitable relief; and

''(iii) the Secretary may disqualify the designated agricultural employer from the employment of nonimmigrant agricultural workers for a period of 2 years.

''(E) DISPLACEMENT OF UNITED STATES WORKERS.—If the Secretary of Labor finds, after notice and opportunity for hearing, a willful failure to meet a condition under subsection (e) or (f) or a willful misrepresentation of a material fact in an registration or petition under paragraph (1) or (2) of subsection (e), in the course of which failure or misrepresentation the employer displaced a United States worker employed by the employer during the period of employment on the employer's petition under subsection

(e)(2) or during the period of 30 days preceding such period of employment—

''(i) the Secretary of Labor shall notify the Secretary of such finding and may, in addition, impose such other administrative remedies (including civil money penalties in an amount not to exceed $15,000 per violation) as the Secretary of Labor determines to be appropriate; and

''(ii) the Secretary may disqualify the employer from the employment of nonimmigrant agricultural workers for a period of 3 years.

''(F) FAILURES TO PAY WAGES OR REQUIRED BENEFITS.—If the Secretary of Labor finds, after notice and opportunity for a hearing, that the employer has failed to pay the wages, or provide the housing allowance, transportation, subsistence reimbursement, or guarantee of employment required under subsections (e)(4) and (f), the Secretary of Labor shall assess payment of back wages, or other required benefits, due any United States worker or nonimmigrant agricultural worker employed by the employer in the specific employment in question. The back wages or other required benefits required under subsections (e) and (f) shall be equal to the difference between the amount that should have been paid and the amount that actually was paid to such worker.

''(G) DISPOSITION OF PENALTIES.—Civil penalties collected under this paragraph shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(2) LIMITATIONS ON CIVIL MONEY PENALTIES.—The Secretary of Labor shall not impose total civil money penalties with respect to a petition under subsection (e)(2) in excess of $90,000.

''(3) ELECTION.—A nonimmigrant agricultural worker who has filed an administrative complaint with the Secretary of Labor may not maintain a civil action unless a complaint based on the same violation filed with the Secretary of Labor under paragraph (1) is withdrawn before the filing of such action, in which case the rights and remedies available under this subsection shall be exclusive.

''(4) PRECLUSIVE EFFECT.—Any settlement by a nonimmigrant agricultural worker, a designated agricultural employer, or any person reached through the mediation process required under subsection (g)(2)(C) shall preclude any right of action arising out of the same facts between the parties in any Federal or State court or administrative proceeding, unless specifically provided otherwise in the settlement agreement.

''(5) SETTLEMENTS.—Any settlement by the Secretary of Labor with a designated agricultural worker on behalf of a nonimmigrant agricultural worker of a complaint filed with the Secretary of Labor under this section or any finding by the Secretary of Labor under this subsection shall preclude any right of action arising out of the same facts between the parties under any Federal or State court or administrative proceeding, unless specifically provided otherwise in the settlement agreement.

''(6) STATUTORY CONSTRUCTION.—Nothing in this subsection may be construed as limiting the authority of the Secretary of Labor to conduct any compliance investigation under any other labor law, including any law affecting migrant and seasonal agricultural workers, or, in the absence of a complaint under this section.

''(7) DISCRIMINATION PROHIBITED.—It is a violation of this subsection for any person who has filed a petition under subsection (e) or (f) to intimidate, threaten, restrain, coerce, blacklist, discharge, or in any other manner discriminate against an employee, including a former employee or an applicant for employment, because the employee—

''(A) has disclosed information to the employer, or to any other person, that the employee reasonably believes evidences a violation of subsection (e) or (f), or any rule or regulation relating to subsection (e) or (f); or

''(B) cooperates or seeks to cooperate in an investigation or other proceeding concerning the employer's compliance with the requirements under subsection (e) or (f) or any rule or regulation pertaining to subsection (e) or (f).

''(8) ROLE OF ASSOCIATIONS.—

''(A) VIOLATION BY A MEMBER OF AN ASSOCIATION.—

''(i) IN GENERAL.—If an association acting as the agent of an employer files an application on behalf of such employer, the employer is fully responsible for such application, and for complying with the terms and conditions of subsection (e). If such an employer is determined to have violated any requirement described in this subsection, the penalty for such violation shall apply only to that employer except as provided in clause (ii).

''(ii) COLLECTIVE RESPONSIBILITY.—If the Secretary of Labor determines that the association or other members of the association participated in, had knowledge of, or reason to know of a violation described in clause (i), the penalty shall also be invoked against the association and complicit association members.

''(B) VIOLATIONS BY AN ASSOCIATION ACTING AS AN EMPLOYER.—

''(i) IN GENERAL.—If an association filing an application as a sole or joint employer is determined to have violated any requirement described in this section, the penalty for such violation shall apply only to the association except as provided in clause (ii).

''(ii) MEMBER RESPONSIBILITY.—If the Secretary of Labor determines that 1 or more association members participated in, had knowledge of, or reason to know of the violation described in clause (i), the penalty shall be invoked against all complicit association members.

''(i) SPECIAL NONIMMIGRANT VISA PROCESSING AND WAGE DETERMINATION PROCEDURES FOR CERTAIN AGRICULTURAL OCCUPATIONS.—

''(1) FINDING.—Certain industries possess unique occupational characteristics that necessitate the Secretary of Agriculture to adopt special procedures relating to housing, pay, and visa program application requirements for those industries.

''(2) SPECIAL PROCEDURES INDUSTRY DEFINED.—In this subsection, the term 'Special Procedures Industry' means—

''(A) sheepherding and goat herding;

''(B) itinerant commercial beekeeping and pollination;

''(C) open range production of livestock;

''(D) itinerant animal shearing; and

''(E) custom combining industries.

''(3) WORK LOCATIONS.—The Secretary shall allow designated agricultural employers in a Special Procedures Industry that do not operate in a single fixed-site location to provide, as part of its registration or petition under the Program, a list of anticipated work locations, which—

''(A) may include an anticipated itinerary; and

''(B) may be subsequently amended by the employer, after notice to the Secretary.

''(4) WAGE RATES.—The Secretary may establish monthly, weekly, or biweekly wage rates for occupations in a Special Procedures Industry for a State or other geographic area. For an employer in those Special Procedures Industries that typically pay a monthly wage, the Secretary shall require that workers will be paid not less frequently than monthly and at a rate no less than the legally required monthly cash wage for such employer as of the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act and in an amount as re-determined annually by the Secretary of Agriculture through rulemaking.

''(5) HOUSING.—The Secretary shall allow for the provision of housing or a housing allowance by employers in Special Procedures Industries and allow housing suitable for workers employed in remote locations.

''(6) ALLERGY LIMITATION.—An employer engaged in the commercial beekeeping or pollination services industry may require that an applicant be free from bee pollen, venom, or other bee-related allergies.

''(7) APPLICATION.—An individual employer in a Special Procedures Industry may file a program petition on its own behalf or in conjunction with an association of employers. The employer's petition may be part of several related petitions submitted simultaneously that constitute a master petition.

''(8) RULEMAKING.—The Secretary or, as appropriate, the Secretary of Homeland Security or the Secretary of Labor, after consultation with employers and employee representatives, shall publish for notice and comment proposed regulations relating to housing, pay, and application procedures for Special Procedures Industries.

''(j) MISCELLANEOUS PROVISIONS.—

''(1) DISQUALIFICATION OF NONIMMIGRANT AGRICULTURAL WORKERS FROM FINANCIAL ASSISTANCE.—An alien admitted as a nonimmigrant agricultural worker is not eligible for any program of financial assistance under Federal law (whether through grant, loan, guarantee, or otherwise) on the basis of financial need, as such programs are identified by the Secretary in consultation with other agencies of the United States.

''(2) MONITORING REQUIREMENT.—

''(A) IN GENERAL.—The Secretary shall monitor the movement of nonimmigrant agricultural workers through—

''(i) the Employment Verification System described in section 274A(b); and

''(ii) the electronic monitoring system established pursuant to subparagraph (B).

''(B) ELECTRONIC MONITORING SYSTEM.—Not later than 2 years after the effective date of this section, the Secretary of Homeland Security, through the Director of U.S. Citizenship and Immigration Services, shall establish an electronic monitoring system, which shall—

''(i) be modeled on the Student and Exchange Visitor Information System (SEVIS) and the SEVIS II tracking system administered by U.S. Immigration and Customs Enforcement;

''(ii) monitor the presence and employment of nonimmigrant agricultural workers; and

''(iii) assist in ensuring the compliance of designated agricultural employers and nonimmigrant agricultural workers with the requirements of the Program.''.

(b) RULEMAKING.—The Secretary of Agriculture shall issue regulations to carry out section 218A of the Immigration and Nationality Act, as added by subsection (a), not later than 1 year after the date of the enactment of this Act.

(c) CLERICAL AMENDMENT.—The table of contents is amended by inserting after the item relating to section 218 the following:

''Sec. 218A. Nonimmigrant agricultural worker program.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect on October 1, 2014.

SEC. 2233. TRANSITION OF H–2A WORKER PROGRAM.

(a) SUNSET OF PROGRAM.—

(1) IN GENERAL.—Except as provided in paragraph (2), an employer may not petition to employ an alien pursuant to section 101(a)(15)(H)(ii)(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(a)) after the date that is 1 year after the date on which the regulations issued pursuant to section 2241(b) become effective.

(2) EXCEPTION.—An employer may employ an alien described in paragraph (1) for the shorter of—

(A) 10 months; or

(B) the time specified in the position.

(b) CONFORMING AMENDMENTS.—

(1) REPEAL OF H–2A NONIMMIGRANT CATEGORY.—Section 101(a)(15)(H)(ii) (8 U.S.C. 1101(a)(15)(H)(ii)) is amended by striking subclause (a).

(2) REPEAL OF ADMISSION REQUIREMENTS FOR H–2A WORKER.—Section 218 (8 U.S.C. 1188) is repealed.

(3) CONFORMING AMENDMENTS.—

(A) AMENDMENT OF PETITION REQUIREMENTS.—Section 214(c)(1) (8 U.S.C. 1184(c)(1)) is amended by striking ''For purposes of this subsection'' and all that follows.

(B) CLERICAL AMENDMENT.—The table of contents is amended by striking the item relating to section 218.

(4) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the date that is 1 year after the effective date of the regulations issued pursuant to section 2241(b).

SEC. 2234. REPORTS TO CONGRESS ON NONIMMIGRANT AGRICULTURAL WORKERS.

(a) ANNUAL REPORT BY SECRETARY OF AGRICULTURE.—Not later than September 30 of each year, the Secretary of Agriculture shall submit a report to Congress that identifies, for the previous year, the number, disaggregated by State and by occupation, of—

(1) job opportunities approved for employment of aliens admitted pursuant to clause (iii) or clause (iv) of section 101(a)(15)(W) of the Immigration and Nationality Act, as added by section 2231; and

(2) aliens actually admitted pursuant to each such clause.

(b) ANNUAL REPORT BY SECRETARY OF HOMELAND SECURITY.—Not later than September 30 of each year, the Secretary shall submit a report to Congress that identifies, for the previous year, the number of aliens described in subsection (a)(2) who—

(1) violated the terms of the nonimmigrant agricultural worker program established under section 218A(b) of the Immigration and Nationality Act, as added by section 2232; and

(2) have not departed from the United States.

CHAPTER 3—OTHER PROVISIONS

SEC. 2241. RULEMAKING.

(a) CONSULTATION REQUIREMENT.—In the course of promulgating any regulation necessary to implement this subtitle, or the amendments made by this subtitle, the Secretary, the Secretary of Agriculture, the Secretary of Labor, and the Secretary of State shall regularly consult with each other.

(b) DEADLINE FOR ISSUANCE OF REGULATIONS.—Except as provided in section 2232(b), all regulations to implement this subtitle and the amendments made by this subtitle shall be issued not later than 6 months after the date of the enactment of this Act.

SEC. 2242. REPORTS TO CONGRESS.

Not later than 180 days after the date of the enactment of this Act, the Secretary and the Secretary of Agriculture shall jointly submit a report to Congress that describes the measures being taken and the progress made in implementing this subtitle and the amendments made by this subtitle.

SEC. 2243. BENEFITS INTEGRITY PROGRAMS.

(a) IN GENERAL.—Without regard to whether personal interviews are conducted in the adjudication of benefits provided for by section 210A, 218A, 245B, 245C, 245D, 245E, or 245F of the Immigration and Nationality Act, or in seeking a benefit under section 101(a)(15)(U) of the Immigration and Nationality Act, section 1242 of the Refugee Crisis in Iraq Act of 2007 (8 U.S.C. 1157 note), section 602(b) of the Afghan Allies Protection Act of 2009 (8 U.S.C. 1101 note), or section 2211 of this Act, the Secretary shall uphold and maintain the integrity of those benefits by carrying out for each of them, within the Fraud Detection and National Security Directorate of U.S. Citizenship and Immigration Services, programs as follows:

(1) A benefit fraud assessment program to quantify fraud rates, detect ongoing fraud trends, and develop appropriate countermeasures, including through a random sample of both pending and completed cases.

(2) A compliance review program, including site visits, to identify frauds and deter fraudulent and illegal activities.

(b) REPORTS.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, U.S. Citizenship and Immigration Services shall annually submit to Congress a report on the programs carried out pursuant to subsection (a).

(2) ELEMENTS IN FIRST REPORT.—The initial report submitted under paragraph (1) shall include the methodologies to be used by the Fraud Detection and National Security Directorate for each of the programs specified in paragraphs (1) and (2) of subsection (a).

(3) ELEMENTS IN SUBSEQUENT REPORTS.—Each subsequent report under paragraph (1) shall include, for the calendar year covered by such report, a descriptions of examples of fraud detected, fraud rates for programs and types of applicants, and a description of the disposition of the cases in which fraud was detected or suspected.

(c) USE OF FINDINGS OF FRAUD.—Any instance of fraud or abuse detected pursuant to a program carried out pursuant to subsection (a) may be used to deny or revoke benefits, and may also be referred to U.S. Immigration and Customs Enforcement for investigation of criminal violations of section 266 of the Immigration and Nationality Act (8 U.S.C. 1306).

(d) FUNDING.—There are authorized to be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section.

SEC. 2244. EFFECTIVE DATE.

This subtitle and the amendments made by this subtitle, except for sections 2231, 2232, and 2233, shall take effect on the date on which the regulations required under section 2241 are issued, regardless of whether such regulations are issued on an interim basis or on any other basis.

Subtitle C—Future Immigration

SEC. 2301. MERIT-BASED POINTS TRACK ONE.

(a) IN GENERAL.—

(1) WORLDWIDE LEVEL OF MERIT-BASED IMMIGRANTS.—Section 201(e) (8 U.S.C. 1151(e)) is amended to read as follows:

''(e) WORLDWIDE LEVEL OF MERIT-BASED IMMIGRANTS.—

''(1) IN GENERAL.—

''(A) NUMERICAL LIMITATION.—Subject to paragraphs (2), (3), and (4), the worldwide level of merit-based immigrants is equal to 120,000 for each fiscal year.

''(B) STATUS.—An alien admitted on the basis of a merit-based immigrant visa under this section shall have the status of an alien lawfully admitted for permanent residence.

''(2) ANNUAL INCREASE.—

''(A) IN GENERAL.—Subject to subparagraph (B) and paragraph (3), if in any fiscal year the worldwide level of visas available for merit-based immigrants under this section—

''(i) is less than 75 percent of the number of applicants for such fiscal year, the worldwide level shall increase by 5 percent for the next fiscal year; and

''(ii) is equal to or more than 75 percent of such number, the worldwide level for the next fiscal year shall be the same as the worldwide level for such fiscal year, minus any amount added to the worldwide level for such fiscal year under paragraph (4).

''(B) LIMITATION ON INCREASE.—The worldwide level of visas available for merit-based immigrants shall not exceed 250,000.

''(3) EMPLOYMENT CONSIDERATION.—The worldwide level of visas available for merit-based immigrants may not be increased for a fiscal year under paragraph (2) if the annual average unemployment rate for the civilian labor force 18 years or over in the United States, as determined by the Bureau of Labor Statistics, for such previous fiscal year is more than 8½ percent.

''(4) RECAPTURE OF UNUSED VISAS.—The worldwide level of merit-based immigrants described in paragraph (1) for a fiscal year shall be increased by the difference (if any) between the worldwide level established under paragraph (1) for the previous fiscal year and the number of visas actually issued under this subsection during that fiscal year. Such visas shall be allocated for the following year pursuant to section 203(c)(3).''.

(2) MERIT-BASED IMMIGRANTS.—Section 203 (8 U.S.C. 1153) is amended by inserting after subsection (b) the following:

''(c) MERIT-BASED IMMIGRANTS.—

''(1) FISCAL YEARS 2015 THROUGH 2017.—During each of the fiscal years 2015 through 2017, the worldwide level of merit-based immigrant visas made available under section 201(e)(1) shall be available for aliens described in section 203(b)(3) and in addition to any visas available for such aliens under such section.

''(2) SUBSEQUENT FISCAL YEARS.—During fiscal year 2018 and each subsequent fiscal year, aliens subject to the worldwide level specified in section 201(e) for merit-based immigrants shall be allocated as follows:

''(A) 50 percent shall be available to applicants with the highest number of points allocated under tier 1 in paragraph (4).

''(B) 50 percent shall be available to applicants with the highest number of points allocated under tier 2 in paragraph (5).

''(3) UNUSED VISAS.—If the total number of visas allocated to tier 1 or tier 2 for a fiscal year are not granted during that fiscal year, such number may be added to the number of visas available under section 201(e)(1) for the following fiscal year and allocated as follows:

''(A) If the unused visas were allocated for tier 1 in a fiscal year, ⅔ of such visas shall be available for aliens allocated visas under tier 1 in the following fiscal year and ⅓ of such visas shall be available for aliens allocated visas under either tier 1 or tier 2 in the following fiscal year.

''(B) If the unused visas were allocated for tier 2 in a fiscal year, ⅔ of such visas shall be available for aliens allocated visas under tier 2 in the following fiscal year and ⅓ of such visas shall be available for aliens allocated visas under either tier 1 or tier 2 in the following fiscal year.

''(4) TIER 1.—The Secretary shall allocate points to each alien seeking to be a tier 1 merit-based immigrant as follows:

''(A) EDUCATION.—

''(i) IN GENERAL.—An alien may receive points under only 1 of the following categories:

''(I) An alien who has received a doctorate degree from an institution of higher education in the United States or the foreign equivalent shall be allocated 15 points.

''(II) An alien who has received a master's degree from an institution of higher education in the United States or the foreign equivalent shall be allocated 10 points.

''(ii) An alien who has received a bachelor's degree from an institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a))) shall be allocated 5 points.

''(B) EMPLOYMENT EXPERIENCE.—An alien shall be allocated not more than 20 points as follows:

''(i) 3 points for each year the alien has been lawfully employed in a zone 5 occupation in the United States.

''(ii) 2 points for each year the alien has been lawfully employed in a zone 4 occupation in the United States.

''(C) EMPLOYMENT RELATED TO EDUCATION.—An alien who is in the United States and is employed full-time or has an offer of full-time employment in a field related to the alien's education—

''(i) in a zone 5 occupation shall be allocated 10 points; or

''(ii) in a zone 4 occupation shall be allocated 8 points.

''(D) ENTREPRENEURSHIP.—An alien who is an entrepreneur in business that employs at least 2 employees in a zone 4 occupation or a zone 5 occupation shall be allocated 10 points.

''(E) HIGH DEMAND OCCUPATION.—An alien who is employed full-time in the United States or has an offer of full-time employment in a high demand tier 1 occupation shall be allocated 10 points.

''(F) CIVIC INVOLVEMENT.—An alien who has attested that he or she has engaged in a significant amount of community service, as determined by the Secretary, shall be allocated 2 points.

''(G) ENGLISH LANGUAGE.—An alien who received a score of 80 or more on the Test of English as a Foreign Language, or an equivalent score on a similar test, as determined by the Secretary, shall be allocated 10 points.

''(H) SIBLINGS AND MARRIED SONS AND DAUGHTERS OF CITIZENS.—An alien who is the sibling of a citizen of the United States or who is over 31 years of age and is the married son or married daughter of a citizen of the United States shall be allocated 10 points.

''(I) AGE.—An alien who is—

''(i) between 18 and 24 years of age shall be allocated 8 points;

''(ii) between 25 and 32 years of age shall be allocated 6 points; or

''(iii) between 33 and 37 years of age shall be allocated 4 points.

''(J) COUNTRY OF ORIGIN.—An alien who is a national of a country of which fewer than 50,000 nationals were lawfully admitted to permanent residence in the United States in the previous 5 years shall be allocated 5 points.

''(5) TIER 2.—The Secretary shall allocate points to each alien seeking to be a tier 2 merit-based immigrant as follows:

''(A) EMPLOYMENT EXPERIENCE.—An alien shall be allocated 2 points for each year the alien has been lawfully employed in the United States, for a total of not more than 20 points.

''(B) SPECIAL EMPLOYMENT CRITERIA.—An alien who is employed full-time in the United States, or has an offer of full-time employment—

''(i) in a high demand tier 2 occupation shall be allocated 10 points; or

''(ii) in a zone 1, zone 2, or zone 3 occupation shall be allocated 10 points.

''(C) CAREGIVER.—An alien who is or has been a primary caregiver shall be allocated 10 points.

''(D) EXCEPTIONAL EMPLOYMENT RECORD.—An alien who has a record of exceptional employment, as determined by the Secretary, shall be allocated 10 points. In determining a record of exceptional employment, the Secretary shall consider factors including promotions, longevity, changes in occupations from a lower job zone to a higher job zone, participated in safety training, and increases in pay.

''(E) CIVIC INVOLVEMENT.—An alien who has demonstrated significant civic involvement shall be allocated 2 points.

''(F) ENGLISH LANGUAGE.—

''(i) ENGLISH PROFICIENCY.—An alien who has demonstrated English proficiency, as determined by a standardized test designated by the Secretary of Education, shall be allocated 10 points.

''(ii) ENGLISH KNOWLEDGE.—An alien who has demonstrated English knowledge, as determined by a standardized test designated by the Secretary of Education, shall be allocated 5 points.

''(G) SIBLINGS AND MARRIED SONS AND DAUGHTERS OF CITIZENS.—An alien who is the sibling of a citizen of the United States or is over the age of 31 and is the married son or married daughter of a citizen of the United States shall be allocated 10 points.

''(H) AGE.—An alien who is—

''(i) between 18 and 24 years of age shall be allocated 8 points;

''(ii) between 25 and 32 years of age shall be allocated 6 points; or

''(iii) between 33 and 37 years of age shall be allocated 4 points.

''(I) COUNTRY OF ORIGIN.—An alien who is a national of a country of which fewer than 50,000 nationals were lawfully admitted to permanent residence in the United States in the previous 5 years shall be allocated 5 points.

''(6) APPLICATION PROCEDURES.—

''(A) SUBMISSION.—During the 30-day period beginning on the first October 1 occurring at least 3 years after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, and during each 30-day period beginning on October 1 in subsequent years, eligible aliens may submit, to U.S. Citizenship and Immigration Services, an application for a merit-based immigrant visa that contains such information as the Secretary may reasonably require.

''(B) ADJUDICATION.—Before the last day of each fiscal year in which applications are filed pursuant to subparagraph (A), the Director, U.S. Citizenship and Immigration Services, shall—

''(i) review the applications to determine which aliens will be granted a merit-based immigrant visa in the following fiscal year in accordance with this subsection; and

''(ii) in coordination with the Secretary of State, provide such visas to all successful applicants.

''(C) FEE.—An alien who is allocated a visa under this subsection shall pay a fee of $1,500 in addition to any fee assessed to cover the costs to process an application under this subsection. Fees collected under this paragraph shall be deposited by the Secretary into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(7) ELIGIBILITY OF ALIENS IN REGISTERED PROVISIONAL IMMIGRANT STATUS.—An alien who was granted registered provisional immigrant status under section 245B is not eligible to receive a merit-based immigrant visa under section 201(e).

''(8) INELIGIBILITY OF ALIENS WITH PENDING OR APPROVED PETITIONS.—An alien who has a petition pending or approved in another immigrant category under this section or section 201 may not apply for a merit-based immigrant visa.

''(9) DEFINITIONS.—In this subsection:

''(A) HIGH DEMAND TIER 1 OCCUPATION.—The term 'high demand tier 1 occupation' means 1 of the 5 occupations for which the highest number of nonimmigrants described in section 101(a)(15)(H)(i) were sought to be admitted by employers during the previous fiscal year.

''(B) HIGH DEMAND TIER 2 OCCUPATION.—The term 'high demand tier 2 occupation' means 1 of the 5 occupations for which the highest number of positions were sought to become registered positions by employers under section 220(e) during the previous fiscal year.

''(C) SECRETARY.—The term 'Secretary' means the Secretary of Homeland Security.

''(D) ZONE 1 OCCUPATION.—The term 'zone 1 occupation' means an occupation that requires little or no preparation and is classified as a zone 1 occupation on—

''(i) the Occupational Information Network Database (O*NET) on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; or

''(ii) such Database or a similar successor database, as designated by the Secretary of Labor, after such date of enactment.

''(E) ZONE 2 OCCUPATION.—The term 'zone 2 occupation' means an occupation that requires some preparation and is classified as a zone 2 occupation on—

''(i) the Occupational Information Network Database (O*NET) on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; or

''(ii) such Database or a similar successor database, as designated by the Secretary of Labor, after such date of enactment.

''(F) ZONE 3 OCCUPATION.—The term 'zone 3 occupation' means an occupation that requires medium preparation and is classified as a zone 3 occupation on—

''(i) the Occupational Information Network Database (O*NET) on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; or

''(ii) such Database or a similar successor database, as designated by the Secretary of Labor, after such date of enactment.

''(G) ZONE 4 OCCUPATION.—The term 'zone 4 occupation' means an occupation that requires considerable preparation and is classified as a zone 4 occupation on—

''(i) the Occupational Information Network Database (O*NET) on the date of the enactment of theBorder Security, Economic Opportunity, and Immigration Modernization Act; or

''(ii) such Database or a similar successor database, as designated by the Secretary of Labor, after such date of enactment.

''(H) ZONE 5 OCCUPATION.—The term 'zone 5 occupation' means an occupation that requires extensive preparation and is classified as a zone 5 occupation on—

''(i) the Occupational Information Network Database (O*NET) on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; or

''(ii) such Database or a similar successor database, as designated by the Secretary of Labor, after such date of enactment.''.

(3) GAO STUDY AND REPORT.—

(A) STUDY.—The Comptroller General of the United States shall conduct a study of the merit-based immigration system established under section 203(c) of the Immigration and Nationality Act, as amended by

paragraph (2), to determine, during the first 7 years of such system—

(i) how the points described in paragraphs (4)(H), (4)(J), (5)(G), and (5)(I) of section 203(c) of such Act were utilized;

(ii) how many of the points allocated to people lawfully admitted for permanent residence were allocated under such paragraphs;

(iii) how many people who were allocated points under such paragraphs were not lawfully admitted to permanent residence;

(iv) the countries of origin of the people who applied for a merit-based visa under section 203(c) of such Act;

(v) the number of such visas issued under tier 1 and tier 2 to males and females, respectively;

(vi) the age of individuals who were issued such visas; and

(vii) the educational attainment and occupation of people who were issued such visas.

(B) REPORT.—Not later than 7 years after the date of the enactment of this Act, the Comptroller General shall submit a report to Congress that describes the results of the study conducted pursuant to subparagraph (A).

(b) MODIFICATION OF POINTS.—The Secretary may submit to Congress a proposal to modify the number of points allocated under subsection (c) of section 203 of the Immigration and Nationality Act (8 U.S.C. 1153), as amended by subsection (a).

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on October 1, 2014.

SEC. 2302. MERIT-BASED TRACK TWO.

(a) IN GENERAL.—In addition to any immigrant visa made available under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.), as amended by this Act, the Secretary of State shall allocate merit-based immigrant visas as described in this section.

(b) STATUS.—An alien admitted on the basis of a merit-based immigrant visa under this section shall have the status of an alien lawfully admitted for permanent residence (as that term is defined in section 101(a)(20) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(20))).

(c) ELIGIBILITY.—Beginning on October 1, 2014, the following aliens shall be eligible for merit-based immigrant visas under this section:

(1) EMPLOYMENT-BASED IMMIGRANTS.—An alien who is the beneficiary of a petition filed before the date of the enactment of this Act to accord status under section 203(b) of the Immigration and Nationality Act, if the visa has not been issued within 5 years after the date on which such petition was filed.

(2) FAMILY-SPONSORED IMMIGRANTS.—Subject to subsection (d), an alien who is the beneficiary of a petition filed to accord status under section 203(a) of the Immigration and Nationality Act—

(A) prior to the date of the enactment of this Act, if the visa was not issued within 5 years after the date on which such petition was filed; or

(B) after such date of enactment, to accord status under paragraph (3) or (4) of section 203(a) of the Immigration and Nationality Act (8 U.S.C. 1153(a)), as in effect the minute before the effective date specified in section 2307(a)(3) of this Act, and the visa was not issued within 5 years after the date on which petition was filed.

(3) LONG-TERM ALIEN WORKERS AND OTHER MERIT-BASED IMMIGRANTS.—An alien who—

(A) is not admitted pursuant to subparagraph (W) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)); and

(B) has been lawfully present in the United States in a status that allows for employment authorization for a continuous period, not counting brief, casual, and innocent absences, of not less than 10 years.

(d) ALLOCATION OF EMPLOYMENT-SPONSORED MERIT-BASED IMMIGRANT VISAS.—In each of the fiscal years 2015 through and including 2021, the Secretary of State shall allocate to aliens described in subsection (c)(1) a number of merit-based immigrant visas equal to 1/7 of the number of aliens described in subsection (c)(1) whose visas had not been issued as of the date of the enactment of this Act.

(e) ALLOCATION OF FAMILY-SPONSORED MERIT-BASED IMMIGRANT VISAS.—The visas authorized by subsection (c)(2) shall be allocated as follows:

(1) SPOUSES AND CHILDREN OF PERMANENT RESIDENTS.—Petitions to accord status under section 203(a)(2)(A) of the Immigration and Nationality Act (8 U.S.C. 1153(a)(2)(A)), as in effect the minute before the effective date specified in section 2307(a)(3) of this Act, are automatically converted to petitions to accord status to the same beneficiaries as immediate relatives under section 201(b)(2)(A) of the Immigration and Nationality Act (8 U.S.C. 1151(b)(2)(A)).

(2) OTHER FAMILY MEMBERS.—In each of the fiscal years 2015 through and including 2021, the Secretary of State shall allocate to the aliens described in subsection (c)(2)(A), other than those aliens described in paragraph (1), a number of transitional merit-based immigrant visas equal to 1/7 of the difference between—

(A) the number of aliens described in subsection (c)(2)(A) whose visas had not been issued as of the date of the enactment of this Act; and

(B) the number of aliens described in paragraph (1).

(3) ORDER OF ISSUANCE FOR PREVIOUSLY FILED APPLICATIONS.—Subject to paragraphs (1) and (2), the visas authorized by subsection (c)(2)(A) shall be issued without regard to a per country limitation in the order described in section 203(a) of the Immigration and Nationality Act (8 U.S.C. 1153(a)), as amended by section 2305(b), in the order in which the petitions to accord status under such section 203(a) were filed prior to the date of the enactment of this Act.

(4) SUBSEQUENTLY FILED APPLICATIONS.—In fiscal year 2022, the Secretary of State shall allocate to the aliens described in subsection (c)(2)(B), the number of merit-based immigrant visas equal to ½ of the number of aliens described in subsection (c)(2)(B) whose visas had not been issued by October 1, 2021. In fiscal year 2023, the Secretary of State shall allocate to the aliens described in subsection (c)(2)(B), the number of merit-based immigrant visas equal to the number of aliens described in subsection (c)(2)(B) whose visas had not been issued by October 1, 2022.

(5) ORDER OF ISSUANCE FOR SUBSEQUENTLY FILED APPLICATIONS.—Subject to paragraph (4), the visas authorized by subsection (c)(2)(B) shall be issued in the order in which the petitions to accord status under section 203(a) of the Immigration and Nationality Act were filed, as in effect the minute before the effective date specified in section 2307(a)(3) of this Act.

(f) APPLICABILITY OF CERTAIN GROUNDS OF INADMISSIBILITY.—In determining an alien's inadmissibility under this section, section 212(a)(9)(B) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(9)(B)) shall not apply.

(g) ELIGIBILITY IN YEARS AFTER 2028.—Beginning in fiscal year 2029, aliens eligible for adjustment of status under subsection (c)(3) must be lawfully present in an employment authorized status for 20 years prior to filing an application for adjustment of status.

SEC. 2303. REPEAL OF THE DIVERSITY VISA PROGRAM.

(a) IN GENERAL.—Title II (8 U.S.C. 1151 et seq.) is amended—

(1) in section 201(a) (8 U.S.C. 1151(a))—

(A) in paragraph (1), by adding ''and'' at the end;

(B) in paragraph (2), by striking ''; and'' at the end and inserting a period; and

(C) by striking paragraph (3);

(2) in section 203 (8 U.S.C. 1153)—

(A) by striking subsection (c);

(B) in subsection (e)—

(i) by striking paragraph (2); and

(ii) by redesignating paragraph (3) as paragraph (2);

(C) in subsection (f), by striking ''(a), (b), or (c) of this section'' and inserting ''(a) or (b)''; and

(D) in subsection (g), by striking ''(a), (b), and (c)'' and inserting ''(a) and (b)''; and

(3) in section 204 (8 U.S.C. 1154)—

(A) in subsection (a), as amended by section 2305(d)(6)(A)(i), by striking paragraph (8); and

(B) in subsection (e), by striking ''(a), (b), or (c)'' and inserting ''(a) or (b)''.

(b) EFFECTIVE DATE AND APPLICATION.—

(1) EFFECTIVE DATE.—The amendments made by this section shall take effect on October 1, 2014.

(2) APPLICATION.—An alien who receives a notification from the Secretary that the alien was selected to receive a diversity immigrant visa under section 203(c) of the Immigration and Nationality Act (8 U.S.C. 1153(c)) for fiscal year 2013 or fiscal year 2014 shall remain eligible to receive such visa under the rules of such section, as in effect on September 30, 2014. No alien may be allocated such a diversity immigrant visa for a fiscal year after fiscal year 2015.

SEC. 2304. WORLDWIDE LEVELS AND RECAPTURE OF UNUSED IMMIGRANT VISAS.

(a) EMPLOYMENT-BASED IMMIGRANTS.—Section 201(d) (8 U.S.C. 1151(d)) is amended to read as follows:

''(d) WORLDWIDE LEVEL OF EMPLOYMENT-BASED IMMIGRANTS.—

''(1) IN GENERAL.—

''(A) WORLDWIDE LEVEL.—For a fiscal year after fiscal year 2015, the worldwide level of employment-based immigrants under this subsection is equal to the sum of—

''(i) 140,000; and

''(ii) the number computed under paragraph (2).

''(B) FISCAL YEAR 2015.—For fiscal year 2015, the worldwide level of employment-based immigrants under this subsection is equal to the sum of—

''(i) 140,000;

''(ii) the number computed under paragraph (2); and

''(iii) the number computed under paragraph (3).

''(2) PREVIOUS FISCAL YEAR.—The number computed under this paragraph for a fiscal year is the difference, if any, between the maximum number of visas which may be issued under section 203(a) (relating to family-sponsored immigrants) during the previous fiscal year and the number of visas issued under that section during that year.

''(3) UNUSED VISAS.—The number computed under this paragraph is the difference, if any, between—

''(A) the sum of the worldwide levels established under paragraph (1), as in effect on the day before the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, for fiscal years 1992 through and including 2013; and

''(B) the number of visas actually issued under section 203(b) during such fiscal years.''.

(b) FAMILY-SPONSORED IMMIGRANTS.—Section 201(c) (8 U.S.C. 1151(c)) is amended to read as follows:

''(c) WORLDWIDE LEVEL OF FAMILY-SPONSORED IMMIGRANTS.—

''(1) IN GENERAL.—

''(A) WORLDWIDE LEVEL.—Subject to subparagraph (C), for each fiscal year after fiscal year 2015, the worldwide level of family-sponsored immigrants under this subsection for a fiscal year is equal to the sum of—

''(i) 480,000 minus the number computed under paragraph (2); and

''(ii) the number computed under paragraph (3).

''(B) FISCAL YEAR 2015.—Subject to subparagraph (C), for fiscal year 2015, the worldwide level of family-sponsored immigrants under this subsection is equal to the sum of—

''(i) 480,000 minus the number computed under paragraph (2);

''(ii) the number computed under paragraph (3); and

''(iii) the number computed under paragraph (4).

''(C) LIMITATION.—The number computed under subparagraph (A)(i) or (B)(i) may not be less than 226,000, except that beginning on the date that is 18 months after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the number computed under subparagraph (A)(i) or (B)(i) may not be less than 161,000.

''(2) IMMEDIATE RELATIVES.—The number computed under this paragraph for a fiscal year is the number of aliens described in subparagraph (A) or (B) of subsection (b)(2) who were issued immigrant visas, or who otherwise acquired the status of an alien lawfully admitted to the United States for permanent residence, in the previous fiscal year.

''(3) PREVIOUS FISCAL YEAR.—The number computed under this paragraph for a fiscal year is the difference, if any, between the maximum number of visas which may be issued under section 203(b) (relating to employment-based immigrants) during the previous fiscal year and the number of visas issued under that section during that year.

''(4) UNUSED VISAS.—The number computed under this paragraph is the difference, if any, between—

''(A) the sum of the worldwide levels established under paragraph (1) for fiscal years 1992 through and including 2013; and

''(B) the number of visas actually issued under section 203(a) during such fiscal years.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on the first day of the first fiscal year beginning after the date of the enactment of this Act.

SEC. 2305. RECLASSIFICATION OF SPOUSES AND MINOR CHILDREN OF LAWFUL PERMANENT RESIDENTS AS IMMEDIATE RELATIVES.

(a) IMMEDIATE RELATIVES.—Section 201(b)(2) (8 U.S.C. 1151(b)(2)) is amended to read as follows:

''(2)(A) Aliens who are immediate relatives.

''(B) In this paragraph, the term 'immediate relative' means—

''(i) a child, spouse, or parent of a citizen of the United States, except that in the case of such a parent such citizen shall be at least 21 years of age;

''(ii) a child or spouse of an alien lawfully admitted for permanent residence;

''(iii) a child or spouse of an alien described in clause (i), who is accompanying or following to join the alien;

''(iv) a child or spouse of an alien described in clause (ii), who is accompanying or following to join the alien;

''(v) an alien admitted under section 211(a) on the basis of a prior issuance of a visa to the alien's accompanying parent who is an immediate relative; and

''(vi) an alien born to an alien lawfully admitted for permanent residence during a temporary visit abroad.

''(C) If an alien who was the spouse or child of a citizen of the United States or of an alien lawfully admitted for permanent residence and was not legally separated from the citizen or lawful permanent resident at the time of the citizen's or lawful permanent resident's death files a petition under section 204(a)(1)(B), the alien spouse (and each child of the alien) shall remain, for purposes of this paragraph, an immediate relative during the period beginning on the date of the citizen's or permanent resident's death and ending on the date on which the alien spouse remarries.

''(D) An alien who has filed a petition under clause (iii) or (iv) of section 204(a)(1)(A) shall remain, for purposes of this paragraph, an immediate relative if the United States citizen or lawful permanent resident spouse or parent loses United States citizenship on account of the abuse.''.

(b) ALLOCATION OF IMMIGRANT VISAS.—Section 203(a) (8 U.S.C. 1153(a)) is amended—

(1) in paragraph (1), by striking ''23,400,'' and inserting ''20 percent of the worldwide level of family-sponsored immigrants under section 201(c)'';

(2) by striking paragraph (2) and inserting the following:

''(2) UNMARRIED SONS AND UNMARRIED DAUGHTERS OF PERMANENT RESIDENT ALIENS.—Qualified immigrants who are the unmarried sons or unmarried daughters (but are not the children) of an alien lawfully admitted for permanent residence shall be allocated visas in a number not to exceed 20 percent of the worldwide level of family-sponsored immigrants under section 201(c), plus any visas not required for the class specified in paragraph (1).'';

(3) in paragraph (3)—

(A) by striking ''23,400,'' and inserting ''20 percent of the worldwide level of family-sponsored immigrants under section 201(c)''; and

(B) by striking ''classes specified in paragraphs (1) and (2).'' and inserting ''class specified in paragraph (2).''; and

(4) in paragraph (4)—

(A) by striking ''65,000,'' and inserting ''40 percent of the worldwide level of family-sponsored immigrants under section 201(c)''; and

(B) by striking ''classes specified in paragraphs (1) through (3).'' and inserting ''class specified in paragraph (3).''.

(c) TERMINATION OF REGISTRATION.—Section 203(g) (8 U.S.C. 1153(g)) is amended to read as follows:

''(g) LISTS.—

''(1) IN GENERAL.—For purposes of carrying out the orderly administration of this title, the Secretary of State may make reasonable estimates of the anticipated numbers of immigrant visas to be issued during any quarter of any fiscal year within each of the categories under subsections (a), (b), and (c) and may rely upon such estimates in authorizing the issuance of visas.

''(2) TERMINATION OF REGISTRATION.—

''(A) INFORMATION DISSEMINATION.—Not later than 180 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary of Homeland Security and the Secretary of State shall adopt a plan to broadly disseminate information to the public regarding termination of registration procedures described in subparagraphs (B) and (C), including procedures for notifying the Department of Homeland Security and the Department of State of any change of address on the part of a petitioner or a beneficiary of an immigrant visa petition.

''(B) TERMINATION FOR FAILURE TO ADJUST.—The Secretary of Homeland Security shall terminate the registration of any alien who has evidenced an intention to acquire lawful permanent residence under section 245 and who fails to apply to adjust status within 1 year following notification to the alien of the availability of an immigrant visa.

''(C) TERMINATION FOR FAILURE TO APPLY.—The Secretary of State shall terminate the registration of any alien not described in subparagraph (B) who fails to apply for an immigrant visa within 1 year following notification to the alien of the availability of such visa.

''(3) REINSTATEMENT.—The registration of any alien that was terminated under paragraph (2) shall be reinstated if, within 2 years following the date of notification of the availability of such visa, the alien demonstrates that such failure to apply was due to good cause.''.

(d) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) DEFINITIONS.—Section 101(a)(15)(K)(ii) (8 U.S.C. 1101(a)(15)(K)(ii)) is amended by striking ''section 201(b)(2)(A)(i)'' and inserting ''section 201(b)(2) (other than clause (v) or (vi) of subparagraph (B))''.

(2) PER COUNTRY LEVEL.—Section 202(a)(1)(A) (8 U.S.C. 1152(a)(1)(A)) is amended by striking ''section 201(b)(2)(A)(i)'' and inserting ''section 201(b)(2) (other than clause (v) or (vi) of subparagraph (B))''.

(3) RULES FOR DETERMINING WHETHER CERTAIN ALIENS ARE IMMEDIATE RELATIVES.—Section 201(f) (8 U.S.C. 1151(f)) is amended—

(A) in paragraph (1), by striking ''paragraphs (2) and (3),'' and inserting ''paragraph (2),'';

(B) by striking paragraph (2);

(C) by redesignating paragraphs (3) and (4) as paragraphs (2) and (3), respectively; and

(D) in paragraph (3), as redesignated by subparagraph (C), by striking ''through (3)'' and inserting ''and (2)''.

(4) NUMERICAL LIMITATION TO ANY SINGLE FOREIGN STATE.—Section 202(a)(4) (8 U.S.C. 1152(a)(4)) is amended—

(A) by striking subparagraphs (A) and (B);

(B) by redesignating subparagraphs (C) and (D) as subparagraphs (A) and (B), respectively; and

(C) in subparagraph (A), as redesignated by clause (ii), by striking ''section 203(a)(2)(B)'' and inserting ''section 203(a)(2)''.

(5) ALLOCATION OF IMMIGRANT VISAS.—Section 203(h) (8 U.S.C. 1153(h)) is amended—

(A) in paragraph (1)—

(i) in the matter preceding subparagraph (A), by striking ''subsections (a)(2)(A) and (d)'' and inserting ''subsection (d)'';

(ii) in subparagraph (A), by striking ''becomes available for such alien (or, in the case of subsection (d), the date on which an immigrant visa number became available for the alien's parent),'' and inserting ''became available for the alien's parent,''; and

(iii) in subparagraph (B), by striking ''applicable'';

(B) by amending paragraph (2) to read as follows:

''(2) PETITIONS DESCRIBED.—The petition described in this paragraph is a petition filed under section 204 for classification of the alien's parent under subsection (a), (b), or (c).''; and

(C) by amending paragraph (3) to read as follows:

''(3) RETENTION OF PRIORITY DATE.—

''(A) PETITIONS FILED FOR CHILDREN.—For a petition originally filed to classify a child under subsection (d), if the age of the alien is determined under paragraph (1) to be 21 years of age or older on the date that a visa number becomes available to the alien's parent who was the principal beneficiary of the petition, then, upon the parent's admission to lawful permanent residence in the United States, the petition shall automatically be converted to a petition filed by the parent

for classification of the alien under subsection (a)(2) and the petition shall retain the priority date established by the original petition.

''(B) FAMILY AND EMPLOYMENT-BASED PETITIONS.—The priority date for any family- or employment-based petition shall be the date of filing of the petition with the Secretary of Homeland Security (or the Secretary of State, if applicable), unless the filing of the petition was preceded by the filing of a labor certification with the Secretary of Labor, in which case that date shall constitute the priority date. The beneficiary of any petition shall retain his or her earliest priority date based on any petition filed on his or her behalf that was approvable when filed, regardless of the category of subsequent petitions.''.

(6) PROCEDURE FOR GRANTING IMMIGRANT STATUS.—

(A) PETITIONING PROCEDURE.—Section 204 (8 U.S.C. 1154) is amended—

(i) by striking subsection (a) and inserting the following:

''(a) PETITIONING PROCEDURE.—

''(1) IN GENERAL.—(A) Except as provided in subparagraph (H), any citizen of the United States or alien lawfully admitted for permanent residence claiming that an alien is entitled to classification by reason of a relationship described in subparagraph (A) or (B) of section 203(a)(1) or to an immediate relative status under section 201(b)(2)(A) may file a petition with the Secretary of Homeland Security for such classification.

''(B) An alien spouse or alien child described in section 201(b)(2)(C) may file a petition with the Secretary under this paragraph for classification of the alien (and the alien's children) under such section.

''(C)(i) An alien who is described in clause (ii) may file a petition with the Secretary under this subparagraph for classification of the alien (and any child of the alien) if the alien demonstrates to the Secretary that—

''(I) the marriage or the intent to marry the citizen of the United States or lawful permanent resident was entered into in good faith by the alien; and

''(II) during the marriage or relationship intended by the alien to be legally a marriage, the alien or a child of the alien has been battered or has been the subject of extreme cruelty perpetrated by the alien's spouse or intended spouse.

''(ii) For purposes of clause (i), an alien described in this clause is an alien—

''(I)(aa) who is the spouse of a citizen of the United States or lawful permanent resident;

''(bb) who believed that he or she had married a citizen of the United States or lawful permanent resident and with whom a marriage ceremony was actually performed and who otherwise meets any applicable requirements under this Act to establish the existence of and bona fides of a marriage, but whose marriage is not legitimate solely because of the bigamy of such citizen of the United States or lawful permanent resident; or

''(cc) who was a bona fide spouse of a citizen of the United States or a lawful permanent resident within the past 2 years and—

''(AA) whose spouse died within the past 2 years;

''(BB) whose spouse renounced citizenship status or renounced or lost status as a lawful permanent resident within the past 2 years related to an incident of domestic violence; or

''(CC) who demonstrates a connection between the legal termination of the marriage within the past 2 years and battering or extreme cruelty by a spouse who is a citizen of the United States or a lawful permanent resident spouse;

''(II) who is a person of good moral character;

''(III) who is eligible to be classified as an immediate relative under section 201(b)(2)(A) or who would have been so classified but for the bigamy of the citizen of the United States that the alien intended to marry; and

''(IV) who has resided with the alien's spouse or intended spouse.

''(D) An alien who is the child of a citizen or lawful permanent resident of the United States, or who was a child of a United States citizen or lawful permanent resident parent who within the past 2 years lost or renounced citizenship status related to an incident of domestic violence, and who is a person of good moral character, who is eligible to be classified as an immediate relative under section 201(b)(2)(A), and who resides, or has resided in the past, with the citizen or lawful permanent resident parent may file a petition with the Secretary of Homeland Security under this paragraph for classification of the alien (and any child of the alien) under such section if the alien demonstrates to the Secretary that the alien has been battered by or has been the subject of extreme cruelty perpetrated by the alien's citizen or lawful permanent resident parent. For purposes of this subparagraph, residence includes any period of visitation.

''(E) An alien who—

''(i) is the spouse, intended spouse, or child living abroad of a citizen or lawful permanent resident who—

''(I) is an employee of the United States Government;

''(II) is a member of the uniformed services (as defined in section 101(a) of title 10, United States Code); or

''(III) has subjected the alien or the alien's child to battery or extreme cruelty in the United States; and

''(ii) is eligible to file a petition under subparagraph (C) or (D),

shall file such petition with the Secretary of Homeland Security under the procedures that apply to self-petitioners under subparagraph (C) or (D), as applicable.

''(F) For the purposes of any petition filed under subparagraph (C) or (D), the denaturalization, loss or renunciation of citizenship or lawful permanent resident status, death of the abuser, divorce, or changes to the abuser's citizenship or lawful permanent resident status after filing of the petition shall not adversely affect the approval of the petition, and for approved petitions shall not preclude the classification of the eligible self-petitioning spouse or child as an immediate relative or affect the alien's ability to adjust status under subsections (a) and (c) of section 245 or obtain status as a lawful permanent resident based on the approved self-petition under such clauses.

''(G) An alien may file a petition with the Secretary of Homeland Security under this paragraph for classification of the alien under section 201(b)(2)(A) if the alien—

''(i) is the parent of a citizen of the United States or was a parent of a citizen of the United States who, within the past 2 years, lost or renounced citizenship status related to an incident of domestic violence or died;

''(ii) is a person of good moral character;

''(iii) is eligible to be classified as an immediate relative under section 201(b)(2)(A);

''(iv) resides, or has resided, with the citizen daughter or son; and

''(v) demonstrates that the alien has been battered or subject to extreme cruelty by the citizen daughter or son.

''(H)(i) Subparagraph (A) shall not apply to a citizen of the United States who has been convicted of a specified offense against a minor, unless the Secretary of Homeland Security, in the Secretary's sole and unreviewable discretion, determines that the citizen poses no risk to the alien with respect to whom a petition described in subparagraph (A) is filed.

''(ii) For purposes of clause (i), the term 'specified offense against a minor' has the meaning given such term in section 111 of the Adam Walsh Child Protection and Safety Act of 2006 (42 U.S.C. 16911).

''(2) DETERMINATION OF GOOD MORAL CHARACTER.—Notwithstanding section 101(f), an act or conviction that is waivable with respect to the petitioner for purposes of a determination of the petitioner's admissibility under section 212(a) or deportability under section 237(a) shall not bar the Secretary of Homeland Security from finding the petitioner to be of good moral character under subparagraph (C) or (D) of paragraph (1), if the Secretary finds that the act or conviction was connected to the alien's having been battered or subjected to extreme cruelty.

''(3) PREFERENCE STATUS.—(A)(i) Any child who attains 21 years of age who has filed a petition under paragraph (1)(D) that was filed or approved before the date on which the child attained 21 years of age shall be considered (if the child has not been admitted or approved for lawful permanent residence by the date the child attained 21 years of age) a petitioner for preference status under paragraph (1), (2), or (3) of section 203(a), whichever paragraph is applicable, with the same priority date assigned to the self-petition filed under paragraph (1)(D). No new petition shall be required to be filed.

''(ii) Any individual described in clause (i) is eligible for deferred action and work authorization.

''(iii) Any derivative child who attains 21 years of age who is included in a petition described in subparagraph (B) that was filed or approved before the date on which the child attained 21 years of age shall be considered (if the child has not been admitted or approved for lawful permanent residence by the date the child attained 21 years of age) a VAWA self-petitioner with the same priority date as that assigned to the petitioner in any petition described in subparagraph (B). No new petition shall be required to be filed.

''(iv) Any individual described in clause (iii) and any derivative child of a petitioner described in subparagraph (B) is eligible for deferred action and work authorization.

''(B) The petition referred to in subparagraph (A)(iii) is a petition filed by an alien under subparagraph (C) or (D) of paragraph (1) in which the child is included as a derivative beneficiary.

''(C) Nothing in the amendments made by the Child Status Protection Act (Public Law 107–208; 116 Stat. 927) shall be construed to limit or deny any right or benefit provided under this paragraph.

''(D) Any alien who benefits from this paragraph may adjust status in accordance with subsections (a) and (c) of section 245 as an alien having an approved petition for classification under subparagraph (C) or (D) of paragraph (1).

''(E) For purposes of this paragraph, an individual who is not less than 21 years of age, who qualified to file a petition under paragraph (1)(D) as of the minute before the date on which the individual attained 21 years of age, and who did not file such a petition before such day, shall be treated as having filed a petition under such paragraph as of such day if a petition is filed for the status described in such paragraph before the individual attains 25 years of age and the individual shows that the abuse was at least 1 central reason for the filing delay. Subparagraphs (A) through (D) shall apply to an individual described in this subparagraph in the same manner as an individual filing a petition under paragraph (1)(D).

''(4) CLASSIFICATION AS ALIEN WITH EXTRAORDINARY ABILITY.—Any alien desiring to be classified under subparagraph (I), (J), (K), (L), or (M) of section 201(b)(1) or section 203(b)(1)(A), or any person on behalf of such an alien, may file a petition with the Secretary of Homeland Security for such classification.

''(5) CLASSIFICATION AS EMPLOYMENT-BASED IMMIGRANT.—Any employer desiring and intending to employ within the United States an alien entitled to classification under paragraph (1)(B), (1)(C), (2), or (3) of section 203(b) may file a petition with the Secretary of Homeland Security for such classification.

''(6) CLASSIFICATION AS SPECIAL IMMIGRANT.—(A) Any alien (other than a special immigrant under section 101(a)(27)(D)) desiring to be classified under section 203(b)(4), or any person on behalf of such an alien, may file a petition with the Secretary of Homeland Security for such classification.

''(B) Aliens claiming status as a special immigrant under section 101(a)(27)(D) may file a petition only with the Secretary of State and only after notification by the Secretary that such status has been recommended and approved pursuant to such section.

''(7) CLASSIFICATION AS IMMIGRANT INVESTOR.—Any alien desiring to be classified under paragraph (5) or (6) of section 203(b) may file a petition with the Secretary of Homeland Security for such classification.

''(8) DIVERSITY VISA.—(A) Any alien desiring to be provided an immigrant visa under section 203(c) may file a petition at the place and time determined by the Secretary of State by regulation. Only 1 such petition may be filed by an alien with respect to any petitioning period established. If more than 1 petition is submitted all such petitions submitted for such period by the alien shall be voided.

''(B)(i) The Secretary of State shall designate a period for the filing of petitions with respect to visas which may be issued under section 203(c) for the fiscal year beginning after the end of the period.

''(ii) Aliens who qualify, through random selection, for a visa under section 203(c) shall remain eligible to receive such visa only through the end of the specific fiscal year for which they were selected.

''(iii) The Secretary of State shall prescribe such regulations as may be necessary to carry out this subparagraph.

''(C) A petition under this paragraph shall be in such form as the Secretary of State may by regulation prescribe and shall contain such information and be supported by such documentary evidence as the Secretary of State may require.

''(D) Each petition to compete for consideration for a visa under section 203(c) shall be accompanied by a fee equal to $30. All amounts collected under this subparagraph shall be deposited into the Treasury as miscellaneous receipts.

''(9) CONSIDERATION OF CREDIBLE EVIDENCE.—In acting on petitions filed under subparagraph (C) or (D) of paragraph (1), or in making determinations under paragraphs (2) and (3), the Secretary of Homeland Security shall consider any credible evidence relevant to the petition. The determination of what evidence is credible and the weight to be given that evidence shall be within the sole discretion of the Secretary.

''(10) WORK AUTHORIZATION.—(A) Upon the approval of a petition as a VAWA self-petitioner, the alien—

''(i) is eligible for work authorization; and

''(ii) may be provided an 'employment authorized' endorsement or appropriate work permit incidental to such approval.

''(B) Notwithstanding any provision of this Act restricting eligibility for employment in the United States, the Secretary of Homeland Security shall grant employment authorization to an alien who has filed an application for status as a VAWA self-petitioner on the date that is the earlier of—

''(i) the date on which the alien's application for such status is approved; or

''(ii) a date determined by the Secretary that is not later than 180 days after the date on which the alien filed the application.

''(11) LIMITATION.—Notwithstanding paragraphs (1) through (10), an individual who was a VAWA petitioner or who had the status of a nonimmigrant under subparagraph (T) or (U) of section 101(a)(15) may not file a petition for classification under this section or section 214 to classify any person who committed the battery or extreme cruelty or trafficking against the individual (or the individual's child), which established the individual's (or individual's child's) eligibility as a VAWA petitioner or for such nonimmigrant status.'';

(ii) in subsection (c)(1), by striking ''or preference status''; and

(iii) in subsection (h), by striking ''or a petition filed under subsection (a)(1)(B)(ii)''.

(B) CONFORMING AMENDMENTS.—The Act (8 U.S.C. 1101 et seq.) is amended—

(i) in section 101(a)—

(I) in paragraph (15)(K), by striking ''204(a)(1)(A)(viii)(I)'' each place such term appears and inserting ''204(a)(1)(H)(i)'';

(II) in paragraph (50), by striking ''204(a)(1)(A)(iii)(II)(aa)(BB), 204(a)(1)(B)(ii)(II)(aa)(BB),'' and inserting ''204(a)(1)(C)(ii)(I)(bb) or''; and

(III) in paragraph (51)—

(aa) in subparagraph (A), by striking ''204(a)(1)(A)'' and inserting ''204(a)(1)'';

(bb) by striking subparagraph (B); and

(cc) by redesignating subparagraphs (C), (D), (E), (F), and (G) as subparagraphs (B), (C), (D), (E), and (F), respectively;

(ii) in section 212(a)(4)(C)(i)—

(I) in subclause (I), by striking ''clause (ii), (iii), or (iv) of section 204(a)(1)(A), or'' and inserting ''subparagraph (B), (C), or (D) of section 204(a)(1);'';

(II) by striking subclause (II); and

(III) by redesignating subclause (III) as subclause (II);

(iii) in section 216(c)(4)(D), by striking ''204(a)(1)(A)(iii)(II)(aa)(BB)'' and inserting ''204(a)(1)(C)(ii)(I)(bb)''; and

(iv) in section 240(c)(7)(C)(iv)(I), by striking ''clause (iii) or (iv) of section 204(a)(1)(A), clause (ii) or (iii) of section 204(a)(1)(B),'' and inserting ''subparagraph (C) or (D) of section 204(a)(1),''.

(7) EXCLUDABLE ALIENS.—Section 212(d)(12)(B) (8 U.S.C. 1182(d)(12)(B)) is amended by striking ''section 201(b)(2)(A)'' and inserting ''section 201(b)(2) (other than subparagraph (B)(vi))''.

(8) ADMISSION OF NONIMMIGRANTS.—Section 214(r)(3)(A) (8 U.S.C. 1184(r)(3)(A)) is amended by striking ''section 201(b)(2)(A)(i).'' and inserting ''section 201(b)(2) (other than clause (v) or (vi) of subparagraph (B)).''.

(9) REFUGEE CRISIS IN IRAQ ACT OF 2007.—Section 1243(a)(4) of the Refugee Crisis in Iraq Act of 2007 (8 U.S.C. 1157 note) is amended by striking ''section 201(b)(2)(A)(i)'' and inserting ''section 201(b)(2) (other than clause (v) or (vi) of subparagraph (B))''.

(10) PROCESSING OF VISA APPLICATIONS.—Section 233 of the Department of State Authorization Act, Fiscal Year 2003 (8 U.S.C. 1201 note) is amended by striking ''section 201(b)(2)(A)(i)'' and inserting ''section 201(b)(2) (other than clause (v) or (vi) of subparagraph (B))''.

(11) ADJUSTMENT OF STATUS.—Section 245(a) (8 U.S.C. 1255(a)) is amended to read as follows:

''(a)(1) The status of an alien who was inspected and admitted or paroled into the United States or the status of any other alien having an approved petition for classification as a VAWA self-petitioner may be adjusted by the Attorney General or the Secretary of Homeland Security, in the Attorney General's or the Secretary's discretion and under such regulations as the Attorney General or Secretary may prescribe, to that of an alien lawfully admitted for permanent residence (regardless of whether the alien has already been admitted for permanent residence) if—

''(A) the alien makes an application for such adjustment;

''(B) the alien is eligible to receive an immigrant visa and is admissible to the United States for permanent residence; and

''(C) subject to paragraph (2), an immigrant visa is immediately available to the alien at the time the alien's application is filed.

''(2)(A) An application that is based on a petition approved or approvable under subparagraph (A) or (B) of section 204(a)(1) may be filed without regard to the limitation set forth in paragraph (1)(C).

''(B) An application for adjustment filed for an alien under this paragraph may not be approved until such time as an immigrant visa becomes available for the alien.''.

(e) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of the enactment of this Act.

SEC. 2306. NUMERICAL LIMITATIONS ON INDIVIDUAL FOREIGN STATES.

(a) NUMERICAL LIMITATION TO ANY SINGLE FOREIGN STATE.—Section 202(a)(2) (8 U.S.C. 1152(a)(2)) is amended—

(1) in the paragraph heading, by striking ''AND EMPLOYMENT-BASED'';

(2) by striking ''(3), (4), and (5),'' and inserting ''(3) and (4),'';

(3) by striking ''subsections (a) and (b) of section 203'' and inserting ''section 203(a)'';

(4) by striking ''7'' and inserting ''15''; and

(5) by striking ''such subsections'' and inserting ''such section''.

(b) CONFORMING AMENDMENTS.—Section 202 (8 U.S.C. 1152) is amended—

(1) in subsection (a)—

(A) in paragraph (3), by striking ''both subsections (a) and (b) of section 203'' and inserting ''section 203(a)''; and

(B) by striking paragraph (5); and

(2) by amending subsection (e) to read as follows:

''(e) SPECIAL RULES FOR COUNTRIES AT CEILING.—If it is determined that the total number of immigrant visas made available under section 203(a) to natives of any single foreign state or dependent area will exceed the numerical limitation specified in subsection (a)(2) in any fiscal year, in determining the allotment of immigrant visa numbers to natives under section 203(a), visa numbers with respect to natives of that state or area shall be allocated (to the extent practicable and otherwise consistent with this section and section 203) in a manner so that, except as provided in subsection (a)(4), the proportion of the visa numbers made available under each of paragraphs (1) through (4) of section 203(a) is equal to the ratio of the total number of visas made available under the respective paragraph to the total number of visas made available under section 203(a).''.

(c) COUNTRY-SPECIFIC OFFSET.—Section 2 of the Chinese Student Protection Act of 1992 (8 U.S.C. 1255 note) is amended—

(1) in subsection (a), by striking ''subsection (e))'' and inserting ''subsection (d))''; and

(2) by striking subsection (d) and redesignating subsection (e) as subsection (d).

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect 1 year after the date of the enactment of this Act.

SEC. 2307. ALLOCATION OF IMMIGRANT VISAS.

(a) PREFERENCE ALLOCATION FOR FAMILY-SPONSORED IMMIGRANTS.—

(1) IN GENERAL.—Section 203(a) (8 U.S.C. 1153(a)), as amended by section 2305(b), is further amended to read as follows:

''(a) PREFERENCE ALLOCATION FOR FAMILY-SPONSORED IMMIGRANTS.—Aliens subject to the worldwide level specified in section 201(c) for family-sponsored immigrants shall be allotted visas as follows:

''(1) SONS AND DAUGHTERS OF CITIZENS.—Qualified immigrants who are—

''(A) the unmarried sons or unmarried daughters but not the children of citizens of the United States shall be allocated visas in a number not to exceed 35 percent of the worldwide level authorized in section 201(c), plus the sum of—

''(i) the number of visas not required for the class specified in paragraph (2) for the current fiscal year; and

''(ii) the number of visas not required for the class specified in subparagraph (B); or

''(B) the married sons or married daughters of citizens of the United States who are 31 years of age or younger at the time of filing a petition under section 204 shall be allocated visas in a number not to exceed 25 percent of the worldwide level authorized in section 201(c), plus the number of any visas not required for the class specified in subparagraph (A) current fiscal year.

''(2) SONS AND DAUGHTERS OF PERMANENT RESIDENTS.—Qualified immigrants who are the unmarried sons or unmarried daughters of aliens admitted for permanent residence shall be allocated visas in a number not to exceed 40 percent of the worldwide level authorized in section 201(c), plus any visas not required for the class specified in paragraph (1)(A).''.

(2) CONFORMING AMENDMENTS.—

(A) PROCEDURE FOR GRANTING IMMIGRANT STATUS.—Section 204(f)(1) (8 U.S.C. 1154(f)(1)) is amended by striking ''section 201(b), 203(a)(1), or 203(a)(3),'' and inserting ''section 201(b) or subparagraph (A) or (B) of section 203(a)(1)''.

(B) AUTOMATIC CONVERSION.—For the purposes of any petition pending or approved based on a relationship described—

(i) in subparagraph (A) of section 203(a)(1) of the Immigration and Nationality Act (8 U.S.C. 1153(a)(1)), as amended by paragraph (1), and notwithstanding the age of the alien, such a petition shall be deemed reclassified as a petition based on a relationship described in subparagraph (B) of such section 203(a)(1) upon the marriage of such alien; or

(ii) in subparagraph (B) of such section 203(a)(1), such a petition shall be deemed reclassified as a petition based on a relationship described in subparagraph (A) of such section 203(a)(1) upon the legal termination of marriage or death of such alien's spouse.

(3) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the first day of the first fiscal year that begins at least 18 months following the date of the enactment of this Act.

(b) PREFERENCE ALLOCATION FOR EMPLOYMENT-BASED IMMIGRANTS.—

(1) IN GENERAL.—Section 201(b)(1) (8 U.S.C. 1151(b)(1)), as amended by sections 2103(c) and 2212(d), is further amended by adding at the end the following:

''(H) Derivative beneficiaries as described in section 203(d) of employment-based immigrants under section 203(b).

''(I) Aliens with extraordinary ability in the sciences, arts, education, business, or athletics which has been demonstrated by sustained national or international acclaim, if, with respect to any such alien—

''(i) the achievements of such alien have been recognized in the field through extensive documentation;

''(ii) such alien seeks to enter the United States to continue work in the area of extraordinary ability; and

''(iii) the entry of such alien into the United States will substantially benefit prospectively the United States.

''(J) Aliens who are outstanding professors and researchers if, with respect to any such alien—

''(i) the alien is recognized internationally as outstanding in a specific academic area;

''(ii) the alien has at least 3 years of experience in teaching or research in the academic area; and

''(iii) the alien seeks to enter the United States—

''(I) to be employed in a tenured position (or tenure-track position) within a not for profit university or institution of higher education to teach in the academic area;

''(II) for employment in a comparable position with a not for profit university or institution of higher education, or a governmental research organization, to conduct research in the area; or

''(III) for employment in a comparable position to conduct research in the area with a department, division, or institute of a private employer, if the department, division, or institute employs at least 3 persons full-time in research activities and has achieved documented accomplishments in an academic field.

''(K) Aliens who are multinational executives and managers if, with respect to any such alien—

''(i) in the 3 years preceding the time of the alien's application for classification and admission into the United States under this subparagraph, the alien has been employed for at least 1 year by a firm or corporation or other legal entity or an affiliate or subsidiary thereof; and

''(ii) the alien seeks to enter the United States in order to continue to render services to the same employer or to a subsidiary or affiliate thereof in a capacity that is managerial or executive.

''(L) Aliens who have earned a doctorate degree from an institution of higher education in the United States or the foreign equivalent.

''(M) Alien physicians who have completed the foreign residency requirements under section 212(e) or obtained a waiver of these requirements or an exemption requested by an interested State agency or by an interested Federal agency under section 214(l), including those alien physicians who completed such service before the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(N) ADVANCED DEGREES IN A STEM FIELD.—

''(i) IN GENERAL.—An immigrant who—

''(I) has earned a master's or higher degree in a field of science, technology, engineering, or mathematics included in the Department of Education's Classification of Instructional Programs taxonomy within the summary groups of computer and information sciences and support services, engineering, mathematics and statistics, biological and biomedical sciences, and physical sciences, from a United States institution of higher education;

''(II) has an offer of employment from a United States employer in a field related to such degree; and

''(III) earned the qualifying graduate degree during the 5-year period immediately before the initial filing date of the petition under which the nonimmigrant is a beneficiary.

''(ii) DEFINITION.—In this subparagraph, the term 'United States institution of higher education' means an institution that—

''(I) is described in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)) or is a proprietary institution of higher education (as defined in section 102(b) of such Act (20 U.S.C. 1002(b)));

''(II) was classified by the Carnegie Foundation for the Advancement of Teaching on January 1, 2012, as a doctorate-granting university with a very high or high level of research activity or classified by the National Science Foundation after the date of enactment of this subparagraph, pursuant to an application by the institution, as having equivalent research activity to those institutions that had been classified by the Carnegie Foundation as being doctorate-granting universities with a very high or high level of research activity; and

''(III) is accredited by an accrediting body that is itself accredited either by the Department of Education or by the Council for Higher Education Accreditation.''.

(2) EXCEPTION FROM LABOR CERTIFICATION REQUIREMENT FOR STEM IMMIGRANTS.—Section 212(a)(5)(D) (8 U.S.C. 1182(a)(5)(D)) is amended to read as follows:

''(D) APPLICATION OF GROUNDS.—

''(i) IN GENERAL.—Except as provided in clause (ii), the grounds for inadmissibility of aliens under subparagraphs (A) and (B) shall apply to immigrants seeking admission or adjustment of status under paragraph (2) or (3) of section 203(b).

''(ii) SPECIAL RULE FOR STEM IMMIGRANTS.—The grounds for inadmissibility of aliens under subparagraph (A) shall not apply to an immigrant seeking admission or adjustment of status under section 203(b)(2)(B) or 201(b)(1)(N).''.

(c) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TREATMENT OF DERIVATIVE FAMILY MEMBERS.—Section 203(d) (8 U.S.C. 1153(d)) is amended to read as follows:

''(d) TREATMENT OF FAMILY MEMBERS.—If accompanying or following to join a spouse or parent issued a visa under subsection (a), (b), or (c), subparagraph (I), (J), (K), (L), or (M) of section 201(b)(1), or section 201(b)(2), a spouse or child (as defined in subparagraph (A), (B), (C), (D), or (E) of section 101(b)(1)) shall be entitled to the same immigrant status and the same order of consideration provided in the respective provision.''.

(2) ALIENS WHO ARE PRIORITY WORKERS OR MEMBERS OF THE PROFESSIONS HOLDING ADVANCED DEGREES.—Section 203(b) (8 U.S.C. 1153(b)) is amended—

(A) in the matter preceding paragraph (1), by striking ''Aliens'' and inserting ''Other than aliens described in paragraph (1) or (2)(B), aliens'';

(B) in paragraph (1), by striking the matter preceding subparagraph (A) and inserting ''Aliens described in any of the following subparagraphs may be admitted to the United States without respect to the worldwide level specified in section 201(d)''; and

(C) by amending paragraph (2) to read as follows:

''(2) ALIENS WHO ARE MEMBERS OF PROFESSIONS HOLDING ADVANCED DEGREES OR PROSPECTIVE EMPLOYEES OF NATIONAL SECURITY FACILITIES.—

''(A) IN GENERAL.—Visas shall be made available, in a number not to exceed 40 percent of the worldwide level authorized in section 201(d), plus any visas not required for the classes specified in paragraph (5) to qualified immigrants who are either of the following:

''(i) Members of the professions holding advanced degrees or their equivalent whose services in the sciences, arts, professions, or business are sought by an employer in the United States, including alien physicians holding foreign medical degrees that have been deemed sufficient for acceptance by an

accredited United States medical residency or fellowship program.

''(ii) Prospective employees, in a research capacity, of Federal national security, science, and technology laboratories, centers, and agencies, if such immigrants have been lawfully present in the United States for two years prior to employment (unless the Secretary of Homeland Security determines, including upon request of the prospective laboratory, center, or agency, that exceptional circumstances exist justifying waiver of the presence requirement).

''(B) WAIVER OF JOB OFFER.—

''(i) NATIONAL INTEREST WAIVER.—Subject to clause (ii), the Secretary of Homeland Security may, if the Secretary deems it to be in the national interest, waive the requirements of subparagraph (A) that an alien's services in the sciences, arts, professions, or business be sought by an employer in the United States.

''(ii) PHYSICIANS WORKING IN SHORTAGE AREAS OR VETERANS FACILITIES.—

''(I) IN GENERAL.—The Secretary shall grant a national interest waiver pursuant to clause (i) on behalf of any alien physician with respect to whom a petition for preference classification has been filed under subparagraph (A) if—

''(aa) the alien physician agrees to work on a full- time basis practicing primary care, specialty medicine, or a combination thereof, in an area or areas designated by the Secretary of Health and Human Services as having a shortage of health care professionals or at a health care facility under the jurisdiction of the Secretary of Veterans Affairs; or

''(bb) the alien physician is pursuing such waiver based upon service at a facility or facilities that serve patients who reside in a geographic area or areas designated by the Secretary of Health and Human Services as having a shortage of health care professionals (without regard to whether such facility or facilities are located within such an area) and a Federal agency or a local, county, regional, or State department of public health determines that the alien physician's work at such facility was or will be in the public interest.

''(II) PROHIBITION.—

''(aa) No permanent resident visa may be issued to an alien physician described in subclause (I) by the Secretary of State under section 204(b), and the Secretary of Homeland Security may not adjust the status of such an alien physician from that of a nonimmigrant alien to that of a permanent resident alien under section 245, until such time as the alien has worked full time as a physician for an aggregate of 5 years (not including the time served in the status of an alien described in section 101(a)(15)(J)), in an area or areas designated by the Secretary of Health and Human Services as having a shortage of health care professionals or at a health care facility under the jurisdiction of the Secretary of Veterans Affairs, or at a facility or facilities meeting the requirements of subclause (I)(bb).

''(bb) The 5-year service requirement of item (aa) shall be counted from the date the alien physician begins work in the shortage area in any legal status and not the date an immigrant visa petition is filed or approved. Such service shall be aggregated without regard to when such service began and without regard to whether such service began during or in conjunction with a course of graduate medical education.

''(cc) An alien physician shall not be required to submit an employment contract with a term exceeding the balance of the 5-year commitment yet to be served, nor an employment contract dated within a minimum time period prior to filing of a visa petition pursuant to this subsection.

''(dd) An alien physician shall not be required to file additional immigrant visa petitions upon a change of work location from the location approved in the original national interest immigrant petition.

''(III) STATUTORY CONSTRUCTION.—Nothing in this subparagraph may be construed to prevent the filing of a petition with the Secretary of Homeland Security for classification under section 204(a), by an alien physician described in subclause (I) prior to the date by which such alien physician has completed the service described in subclause (II) or in section 214(l).

''(C) GUIDANCE AND RULES.—The Secretary may prescribe such policy guidance and rules as the Secretary considers appropriate for purposes of subparagraph (A) to ensure national security and promote the interests and competitiveness of the United States. Such rules shall include a definition of the term 'Federal national security, science, and technology laboratories, centers, and agencies' for purposes of clause (ii) of subparagraph (A), which shall include the following:

''(i) The national security, science, and technology laboratories, centers, and agencies of the Department of Defense, the Department of Energy, the Department of Homeland Security, the elements of the intelligence community (as that term is defined in section 4(3) of the National Security Act of 1947), and any other department or agency of the Federal Government that conducts or funds research and development in the essential national interest.

''(ii) Federally funded research and development centers (FFRDCs) that are primarily supported by a department or agency of the Federal Government specified in clause (i).''.

(3) SKILLED WORKERS, PROFESSIONALS, AND OTHER WORKERS.—

(A) IN GENERAL.—Section 203(b)(3)(A) (8 U.S.C. 1153(b)(3)(A)) is amended by striking ''in a number not to exceed 28.6 percent of such worldwide level, plus any visas not required for the classes specified in paragraphs (1) and (2),'' and inserting ''in a number not to exceed 40 percent of the worldwide level authorized in section 201(d), plus any visas not required for the class specified in paragraph (2),''.

(B) MEDICAL LICENSE REQUIREMENTS.—Section 214(i)(2)(A) (8 U.S.C. 1184(i)(2)(A)) is amended by adding at the end ''including in the case of a medical doctor, the licensure required to practice medicine in the United States,''.

(C) REPEAL OF LIMITATION ON OTHER WORKERS.—Section 203(b)(3) (8 U.S.C. 1153(b)(3)) is amended—

(i) by striking subparagraph (B); and

(ii) redesignated subparagraph (C) as subparagraph (B).

(4) CERTAIN SPECIAL IMMIGRANTS.—Section 203(b)(4) (8 U.S.C. 1153(b)(4)) is amended by striking ''in a number not to exceed 7.1 percent of such worldwide level,'' and inserting ''in a number not to exceed 10 percent of the worldwide level authorized in section 201(d), plus any visas not required for the class specified in paragraph (3),''.

(5) EMPLOYMENT CREATION.—Section 203(b)(5)(A) (8 U.S.C. 1153(b)(5)(A)) is amended by striking ''in a number not to exceed 7.1 percent of such worldwide level,'' and inserting ''in a number not to exceed 10 percent of the worldwide level authorized in section 201(d), plus any visas not required for the class specified in paragraph (4),''.

(d) NATURALIZATION OF EMPLOYEES OF CERTAIN NATIONAL SECURITY FACILITIES WITHOUT REGARD TO RESIDENCY REQUIREMENTS.—Section 316 (8 U.S.C. 1427) is amended by adding at the end the following:

''(g)(1) Any person who, while an alien or a noncitizen national of the United States, has been employed in a research capacity at a Federal national security, science, and technology laboratory, center, or agency (as defined pursuant to section 203(b)(2)(C)) for a period or periods aggregating one year or more may, in the discretion of the Secretary, be naturalized without regard to the residence requirements of this section if the person—

''(A) has complied with all requirements as determined by the Secretary of Homeland Security, the Secretary of Defense, the Secretary of Energy, or the head of a petitioning department or agency of the Federal Government, including contractual requirements to maintain employment in a research capacity with a Federal national security, science, and technology laboratory, center, or agency for a period not to exceed five years; and

''(B) has favorably completed and adjudicated a background investigation at the appropriate level, from the employing department or agency of the Federal Government within the last five years.

''(2) The number of aliens or noncitizen nationals naturalized in any fiscal year under this subsection shall not exceed a number as defined by the Secretary of Homeland Security, in consultation with the head of the petitioning department or agency of the Federal Government.''.

SEC. 2308. INCLUSION OF COMMUNITIES ADVERSELY AFFECTED BY A RECOMMENDATION OF THE DEFENSE BASE CLOSURE AND REALIGNMENT COMMISSION AS TARGETED EMPLOYMENT AREAS.

(a) IN GENERAL.—Section 203(b)(5)(B)(ii) (8 U.S.C. 1153(b)(5)(B)(ii)) is amended by inserting '', any community adversely affected by a recommendation by the Defense Base Closure and Realignment Commission,'' after ''rural area''.

(b) REGULATIONS.—The Secretary, in consultation with the Secretary of Defense, shall implement the amendment made by subsection (a) through appropriate regulations.

SEC. 2309. V NONIMMIGRANT VISAS.

(a) NONIMMIGRANT ELIGIBILITY.—Subparagraph (V) of section 101(a)(15) (8 U.S.C. 1101(a)(15)) is amended to read as follows:

''(V)(i) subject to section 214(q)(1) and section 212(a)(4), an alien who is the beneficiary of an approved petition under section 203(a) as—

''(I) the unmarried son or unmarried daughter of a citizen of the United States;

''(II) the unmarried son or unmarried daughter of an alien lawfully admitted for permanent residence; or

''(III) the married son or married daughter of a citizen of the United States and who is 31 years of age or younger; or

''(ii) subject to section 214(q)(2), an alien who is—

''(I) the sibling of a citizen of the United States; or

''(II) the married son or married daughter of a citizen of the United States and who is older than 31 years of age;''.

(b) EMPLOYMENT AND PERIOD OF ADMISSION OF NONIMMIGRANTS DESCRIBED IN SECTION 101(A)(15)(V).—Section 214(q) (8 U.S.C. 1184(q)) is amended to read as follows:

''(q) NONIMMIGRANTS DESCRIBED IN SECTION 101(A)(15)(V).—

''(1) CERTAIN SONS AND DAUGHTERS.—

''(A) EMPLOYMENT AUTHORIZATION.—The Secretary shall—

''(i) authorize a nonimmigrant admitted pursuant to section 101(a)(15)(V)(i) to engage in employment in the United States during the period of such nonimmigrant's authorized admission; and

''(ii) provide such a nonimmigrant with an 'employment authorized' endorsement or other appropriate document signifying authorization of employment.

''(B) TERMINATION OF ADMISSION.—The period of authorized admission for such a nonimmigrant shall terminate 30 days after the date on which—

''(i) such nonimmigrant's application for an immigrant visa pursuant to the approval of a petition under subsection (a) or (c) of section 203 is denied; or

''(ii) such nonimmigrant's application for adjustment of status under section 245 pursuant to the approval of such a petition is denied.

''(2) SIBLINGS AND SONS AND DAUGHTERS OF CITIZENS.—

''(A) EMPLOYMENT AUTHORIZATION.—The Secretary may not authorize a nonimmigrant admitted pursuant to section 101(a)(15)(V)(ii) to engage in employment in the United States.

''(B) PERIOD OF ADMISSION.—The period of authorized admission as such a nonimmigrant may not exceed 60 days per fiscal year.

''(C) TREATMENT OF PERIOD OF ADMISSION.—An alien admitted under section 101(a)(15)(V) may not receive an allocation of points pursuant to section 203(c) for residence in the United States while admitted as such a nonimmigrant.''.

(c) PUBLIC BENEFITS.—A noncitizen who is lawfully present in the United States pursuant to section 101(a)(15)(V) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(V)) is not eligible for any means-tested public benefits (as such term is defined and implemented in section 403 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613)). A noncitizen admitted under this section—

(1) is not entitled to the premium assistance tax credit authorized under section 36B of the Internal Revenue Code of 1986 for his or her coverage;

(2) shall be subject to the rules applicable to individuals not lawfully present that are set forth in subsection (e) of such section;

(3) shall be subject to the rules applicable to individuals not lawfully present that are set forth in section 1402(e) of the Patient Protection and Affordable Care Act (42 U.S.C. 18071(e)); and

(4) shall be subject to the rules applicable to individuals not lawfully present set forth in section 5000A(d)(3) of the Internal Revenue Code of 1986.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect on the first day of the first fiscal year beginning after the date of the enactment of this Act.

SEC. 2310. FIANCÉE AND FIANCÉ CHILD STATUS PROTECTION.

(a) DEFINITION.—Section 101(a)(15)(K) (8 U.S.C. 1101(a)(15)(K)), as amended by section 2305(d)(6)(B)(i)(I), is further amended—

(1) in clause (i), by inserting ''or of an alien lawfully admitted for permanent residence'' after ''204(a)(1)(H)(i))'';

(2) in clause (ii), by inserting ''or of an alien lawfully admitted for permanent residence'' after ''204(a)(1)(H)(i))''; and

(3) in clause (iii), by striking the semicolon and inserting '', provided that a determination of the age of such child is made using the age of the alien on the date on which the fiancé, fiancée, or immigrant visa petition is filed with the Secretary of Homeland Security to classify the alien's parent as the fiancée or fiancé of a United States citizen or of an alien lawfully admitted for permanent residence (in the case of an alien parent described in clause (i)) or as the spouse of a citizen of the United States or of an alien lawfully admitted to permanent residence under section 201(b)(2)(A) (in the case of an alien parent described in clause (ii));''.

(b) ADJUSTMENT OF STATUS AUTHORIZED.—Section 214(d) (8 U.S.C. 1184(d)) is amended—

(1) by redesignating paragraphs (2) and (3) as paragraphs (3) and (4), respectively; and

(2) in paragraph (1), by striking ''In the event'' and all that follows through the end; and

(3) by inserting after paragraph (1) the following:

''(2)(A) If an alien does not marry the petitioner under paragraph (1) within 3 months after the alien and the alien's children are admitted into the United States, the visa previously issued under the provisions of section 1101(a)(15)(K)(i) shall automatically expire and such alien and children shall be required to depart from the United States. If such aliens fail to depart from the United States, they shall be placed in proceedings in accordance with sections 240 and 241.

''(B) Subject to subparagraphs (C) and (D), if an alien marries the petitioner described in section 101(a)(15)(K)(i) within 90 days after the alien is admitted into the United States, the Secretary or the Attorney General, subject to the provisions of section 245(d), may adjust the status of the alien, and any children accompanying or following to join the alien, to that of an alien lawfully admitted for permanent residence on a conditional basis under section 216 if the alien and any such children apply for such adjustment and are not determined to be inadmissible to the United States. If the alien does not apply for such adjustment within 6 months after the marriage, the visa issued under the provisions of section 1101(a)(15)(K) shall automatically expire.

''(C) Paragraphs (5) and (7)(A) of section 212(a) shall not apply to an alien who is eligible to apply for adjustment of the alien's status to an alien lawfully admitted for permanent residence under this section.

''(D) An alien eligible for a waiver of inadmissibility as otherwise authorized under this Act or the Border Security, Economic Opportunity, and Immigration Modernization Act shall be permitted to apply for adjustment of the alien's status to that of an alien lawfully admitted for permanent residence under this section.''.

(c) AGE DETERMINATION.—Section 245(d) (8 U.S.C. 1255(d)) is amended—

(1) by striking ''The Attorney General'' and inserting ''(1) The Secretary of Homeland Security'';

(2) in paragraph (1), as redesignated, by striking ''Attorney General'' and inserting ''Secretary''; and

(3) by adding at the end the following:

''(2) A determination of the age of an alien admitted to the United States under section 101(a)(15)(K)(iii) shall be made, for purposes of adjustment to the status of an alien lawfully admitted for permanent residence on a conditional basis under section 216, using the age of the alien on the date on which the fiancé, fiancée, or immigrant visa petition was filed with the Secretary of Homeland Security to classify the alien's parent as the fiancée or fiancé of a United States citizen or of an alien lawfully admitted to permanent residence (in the case of an alien parent admitted to the United States under section 101(a)(15)(K)(i)) or as the spouse of a United States citizen or of an alien lawfully admitted to permanent residence under section 201(b)(2)(A) (in the case of an alien parent admitted to the United States under section 101(a)(15)(K)(ii)).''.

(d) APPLICABILITY.—The amendments made by this section shall apply to all petitions or applications described in such amendments that are pending as of the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

(e) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) DEFINITIONS.—Section 101(a)(15)(K) (8 U.S.C. 1101(a)(15)(K)), as amended by subsection (a), is further amended—

(A) in clause (ii), by striking ''section 201(b)(2)(A)(i)'' and inserting ''section 201(b)(2)''; and

(B) in clause (iii), by striking ''section 201(b)(2)(A)(i)'' and inserting ''section 201(b)(2)''.

(2) AGE DETERMINATION.—Paragraph (2) of section 245(d) (8 U.S.C. 1255(d)), as added by subsection (c), is amended by striking section ''201(b)(2)(A)(i)'' and inserting ''201(b)(2)''.

(3) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the first day of the first fiscal year beginning no earlier than 1 year after the date of the enactment of this Act.

SEC. 2311. EQUAL TREATMENT FOR ALL STEP-CHILDREN.

Section 101(b)(1)(B) (8 U.S.C. 1101(b)(1)(B)) is amended by striking ''eighteen years'' and inserting ''21 years''.

SEC. 2312. MODIFICATION OF ADOPTION AGE REQUIREMENTS.

Section 101(b)(1) (8 U.S.C. 1101(b)(1)) is amended—

(1) in subparagraph (E)—

(A) by striking ''(E)(i)'' and inserting ''(E)'';

(B) by striking ''under the age of sixteen years'' and inserting ''younger than 18 years of age, or a child adopted when 18 years of age or older if the adopting parent or parents initiated the legal adoption process before the child reached 18 years of age'';

(C) by striking ''; or'' and inserting a semicolon; and

(D) by striking clause (ii);

(2) in subparagraph (F)—

(A) by striking ''(F)(i)'' and inserting ''(F)'';

(B) by striking ''sixteen'' and inserting ''18'';

(C) by striking ''Attorney General'' and inserting ''Secretary of Homeland Security''; and

(D) by striking clause (ii); and

(3) in subparagraph (G), by striking ''16'' and inserting ''18''.

SEC. 2313. RELIEF FOR ORPHANS, WIDOWS, AND WIDOWERS.

(a) IN GENERAL.—

(1) SPECIAL RULE FOR ORPHANS AND SPOUSES.—In applying clauses (iii) and (iv) of section 201(b)(2)(B) of the Immigration and Nationality Act, as added by section 2305(a) of this Act, to an alien whose citizen or lawful permanent resident relative died before the date of the enactment of this Act, the alien relative may file the classification petition under section 204(a)(1)(A)(ii) of the Immigration and Nationality Act not later than 2 years after the date of the enactment of this Act.

(2) ELIGIBILITY FOR PAROLE.—If an alien was excluded, deported, removed, or departed voluntarily before the date of the enactment of this Act based solely upon the alien's lack of classification as an immediate relative (as defined in section 201(b)(2)(B)(iv) of the Immigration and Nationality Act, as amended by section 2305(a) of this Act) due to the death of such citizen or resident—

(A) such alien shall be eligible for parole into the United States pursuant to the Secretary's discretionary authority under section 212(d)(5) of such Act (8 U.S.C. 1182(d)(5)); and

(B) such alien's application for adjustment of status shall be considered by the Secretary notwithstanding section 212(a)(9) of such Act (8 U.S.C. 1182(a)(9)).

(3) ELIGIBILITY FOR PAROLE.—If an alien described in section 204(l) of the Immigration

and Nationality Act (8 U.S.C. 1154(l)) was excluded, deported, removed, or departed voluntarily before the date of the enactment of this Act—

(A) such alien shall be eligible for parole into the United States pursuant to the Secretary's discretionary authority under section 212(d)(5) of such Act (8 U.S.C. 1182(d)(5)); and

(B) such alien's application for adjustment of status shall be considered by the Secretary notwithstanding section 212(a)(9) of such Act (8 U.S.C. 1182(a)(9)).

(b) PROCESSING OF IMMIGRANT VISAS AND DERIVATIVE PETITIONS.—

(1) IN GENERAL.—Section 204(b) (8 U.S.C. 1154(b)) is amended—

(A) by striking ''After an investigation'' and inserting ''(1) After an investigation''; and

(B) by adding at the end the following:

''(2)(A) Any alien described in subparagraph (B) whose qualifying relative died before the completion of immigrant visa processing may have an immigrant visa application adjudicated as if such death had not occurred. An immigrant visa issued before the death of the qualifying relative shall remain valid after such death.

''(B) An alien described in this subparagraph is an alien who—

''(i) is an immediate relative (as described in section 201(b)(2)(B));

''(ii) is a family-sponsored immigrant (as described in subsection (a) or (d) of section 203);

''(iii) is a derivative beneficiary of an employment-based immigrant under section 203(b) (as described in section 203(d)); or

''(iv) is the spouse or child of a refugee (as described in section 207(c)(2)) or an asylee (as described in section 208(b)(3)).''.

(2) TRANSITION PERIOD.—

(A) IN GENERAL.—Notwithstanding a denial or revocation of an application for an immigrant visa for an alien due to the death of the qualifying relative before the date of the enactment of this Act, such application may be renewed by the alien through a motion to reopen, without fee.

(B) INAPPLICABILITY OF BARS TO ENTRY.—Notwithstanding section 212(a)(9) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(9)), an alien's application for an immigrant visa shall be considered if the alien was excluded, deported, removed, or departed voluntarily before the date of the enactment of this Act.

(c) NATURALIZATION.—Section 319(a) (8 U.S.C. 1430(a)) is amended by striking ''States,'' and inserting ''States (or if the spouse is deceased, the spouse was a citizen of the United States),''.

(d) WAIVERS OF INADMISSIBILITY.—Section 212 (8 U.S.C. 1182) is amended by adding at the end the following:

''(v) CONTINUED WAIVER ELIGIBILITY FOR WIDOWS, WIDOWERS, AND ORPHANS.—In the case of an alien who would have been statutorily eligible for any waiver of inadmissibility under this Act but for the death of a qualifying relative, the eligibility of such alien shall be preserved as if the death had not occurred and the death of the qualifying relative shall be the functional equivalent of hardship for purposes of any waiver of inadmissibility which requires a showing of hardship.''.

(e) SURVIVING RELATIVE CONSIDERATION FOR CERTAIN PETITIONS AND APPLICATIONS.—Section 204(l)(1) (8 U.S.C. 1154(l)(1)) is amended—

(1) by striking ''who resided in the United States at the time of the death of the qualifying relative and who continues to reside in the United States''; and

(2) by striking ''related applications,'' and inserting ''related applications (including affidavits of support),''.

(f) FAMILY-SPONSORED IMMIGRANTS.—Section 212(a)(4)(C)(i) (8 U.S.C. 1182(a)(4)(C)(i)), as amended by section 2305(d)(6)(B)(iii), is further amended by adding at the end the following:

''(III) the status as a surviving relative under 204(l); or''.

SEC. 2314. DISCRETIONARY AUTHORITY WITH RESPECT TO REMOVAL, DEPORTATION, OR INADMISSIBILITY OF CITIZEN AND RESIDENT IMMEDIATE FAMILY MEMBERS.

(a) APPLICATIONS FOR RELIEF FROM REMOVAL.—Section 240(c)(4) (8 U.S.C. 1229a(c)(4)) is amended by adding at the end the following:

''(D) JUDICIAL DISCRETION.—In the case of an alien subject to removal, deportation, or inadmissibility, the immigration judge may exercise discretion to decline to order the alien removable, deportable, or inadmissible from the United States and terminate proceedings if the judge determines that such removal, deportation, or inadmissibility is against the public interest or would result in hardship to the alien's United States citizen or lawful permanent resident parent, spouse, or child, or the judge determines the alien is prima facie eligible for naturalization except that this subparagraph shall not apply to an alien whom the judge determines—

''(i) is inadmissible or deportable under—

''(I) subparagraph (B), (C), (D)(ii), (E), (H), (I), or (J) of section 212(a)(2);

''(II) section 212(a)(3);

''(III) subparagraph (A), (C), or (D) of section 212(a)(10); or

''(IV) paragraph (2)(A)(ii), (2)(A)(v), (2)(F), (4), or (6) of section 237(a); or

''(ii) has—

''(I) engaged in conduct described in paragraph (8) or (9) of section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102); or

''(II) a felony conviction described in section 101(a)(43) that would have been classified as an aggravated felony at the time of conviction.''.

(b) SECRETARY'S DISCRETION.—Section 212 (8 U.S.C. 1182), as amended by section 2313(d), is further amended by adding at the end the following:

''(w) SECRETARY'S DISCRETION.—In the case of an alien who is inadmissible under this section or deportable under section 237, the Secretary of Homeland Security may exercise discretion to waive a ground of inadmissibility or deportability if the Secretary determines that such removal or refusal of admission is against the public interest or would result in hardship to the alien's United States citizen or permanent resident parent, spouse, or child. This subsection shall not apply to an alien whom the Secretary determines—

''(1) is inadmissible or deportable under—

''(A) subparagraph (B), (C), (D)(ii), (E), (H), (I), or (J) of subsection (a)(2);

''(B) subsection (a)(3);

''(C) subparagraph (A), (C), or (D) of subsection (a)(10);

''(D) paragraphs (2)(A)(ii), (2)(A)(v), (2)(F), or (6) of section 237(a); or

''(E) section 240(c)(4)(D)(ii)(II); or

''(2) has—

''(A) engaged in conduct described in paragraph (8) or (9) of section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102); or

''(B) a felony conviction described in section 101(a)(43) that would have been classified as an aggravated felony at the time of conviction.''.

(c) REINSTATEMENT OF REMOVAL ORDERS.—Section 241(a)(5) (8 U.S.C. 1231(a)(5)) is amended by striking the period at the end and inserting '', unless the alien reentered prior to attaining the age of 18 years, or reinstatement of the prior order of removal would not be in the public interest or would result in hardship to the alien's United States citizen or permanent resident parent, spouse, or child.''.

SEC. 2315. WAIVERS OF INADMISSIBILITY.

(a) ALIENS WHO ENTERED AS CHILDREN.—Section 212(a)(9)(B)(iii) (8 U.S.C. 1182(a)(9)(B)(iii)) is amended by adding at the end the following:

''(VI) ALIENS WHO ENTERED AS CHILDREN.—Clause (i) shall not apply to an alien who is the beneficiary of an approved petition under 101(a)(15)(H) and who has earned a baccalaureate or higher degree from a United States institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)), and had not yet reached the age of 16 years at the time of initial entry to the United States.''.

(b) ALIENS UNLAWFULLY PRESENT.—Section 212(a)(9)(B)(v) (8 U.S.C. 1181(a)(9)(B)(v) is amended—

(1) by striking ''spouse or son or daughter'' and inserting ''spouse, son, daughter, or parent'';

(2) by striking ''extreme''; and

(3) by inserting '', child,'' after ''lawfully resident spouse''.

(c) PREVIOUS IMMIGRATION VIOLATIONS.—Section 212(a)(9)(C)(i) (8 U.S.C. 1182(a)(9)(C)(i)) is amended by adding '', other than an alien described in clause (iii) or (iv) of subparagraph (B),'' after ''Any alien''.

(d) FALSE CLAIMS.—

(1) INADMISSIBILITY.—

(A) IN GENERAL.—Section 212(a)(6)(C) (8 U.S.C. 1182(a)(6)(C)) is amended to read as follows:

''(C) MISREPRESENTATION.—

''(i) IN GENERAL.—Any alien who, by fraud or willfully misrepresenting a material fact, seeks to procure (or within the last 3 years has sought to procure or has procured) a visa, other documentation, or admission into the United States or other benefit provided under this Act is inadmissible.

''(ii) FALSELY CLAIMING CITIZENSHIP.—

''(I) INADMISSIBILITY.—Subject to subclause (II), any alien who knowingly misrepresents himself or herself to be a citizen of the United States for any purpose or benefit under this chapter (including section 274A) or any other Federal or State law is inadmissible.

''(II) SPECIAL RULE FOR CHILDREN.—An alien shall not be inadmissible under this clause if the misrepresentation described in subclause (I) was made by the alien when the alien—

''(aa) was under 18 years of age; or

''(bb) otherwise lacked the mental competence to knowingly misrepresent a claim of United States citizenship.

''(iii) WAIVER.—The Attorney General or the Secretary of Homeland Security may, in the discretion of the Attorney General or the Secretary, waive the application of clause (i) or (ii)(I) for an alien, regardless whether the alien is within or outside the United States, if the Attorney General or the Secretary finds that a determination of inadmissibility to the United States for such alien would—

''(I) result in extreme hardship to the alien or to the alien's parent, spouse, son, or daughter who is a citizen of the United States or an alien lawfully admitted for permanent residence; or

''(II) in the case of a VAWA self-petitioner, result in significant hardship to the alien or a parent or child of the alien who is a citizen of the United States, an alien lawfully admitted for permanent residence, or a qualified alien (as defined in section 431 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1641(b))).

''(iv) LIMITATION ON REVIEW.—No court shall have jurisdiction to review a decision or action of the Attorney General or the Secretary regarding a waiver under clause (iii).''.

(B) CONFORMING AMENDMENT.—Section 212 (8 U.S.C. 1182) is amended by striking subsection (i).

(2) DEPORTABILITY.—Section 237(a)(3)(D) (8 U.S.C. 1227(a)(3)(D)) is amended to read as follows:

''(D) FALSELY CLAIMING CITIZENSHIP.—Any alien described in section 212(a)(6)(C)(ii) is deportable.''.

SEC. 2316. CONTINUOUS PRESENCE.

Section 240A(d)(1) (8 U.S.C. 1229b(d)(1)) is amended to read as follows:

''(1) TERMINATION OF CONTINUOUS PERIOD.—For purposes of this section, any period of continuous residence or continuous physical presence in the United States shall be deemed to end, except in the case of an alien who applies for cancellation of removal under subsection (b)(2), on the date that a notice to appear is filed with the Executive Office for Immigration Review pursuant to section 240.''.

SEC. 2317. GLOBAL HEALTH CARE COOPERATION.

(a) TEMPORARY ABSENCE OF ALIENS PROVIDING HEALTH CARE IN DEVELOPING COUNTRIES.—

(1) IN GENERAL.—Title III (8 U.S.C. 1401 et seq.) is amended by inserting after section 317 the following:

''SEC. 317A. TEMPORARY ABSENCE OF ALIENS PROVIDING HEALTH CARE IN DEVELOPING COUNTRIES.

''(a) IN GENERAL.—Notwithstanding any other provision of this Act, the Secretary of Homeland Security shall allow an eligible alien and the spouse or child of such alien to reside in a candidate country during the period that the eligible alien is working as a physician or other health care worker in a candidate country. During such period the eligible alien and such spouse or child shall be considered—

''(1) to be physically present and residing in the United States for purposes of naturalization under section 316(a); and

''(2) to meet the continuous residency requirements under section 316(b).

''(b) DEFINITIONS.—In this section:

''(1) CANDIDATE COUNTRY.—The term 'candidate country' means a country that the Secretary of State determines to be—

''(A) eligible for assistance from the International Development Association, in which the per capita income of the country is equal to or less than the historical ceiling of the International Development Association for the applicable fiscal year, as defined by the International Bank for Reconstruction and Development;

''(B) classified as a lower middle income country in the then most recent edition of the World Development Report for Reconstruction and Development published by the International Bank for Reconstruction and Development and having an income greater than the historical ceiling for International Development Association eligibility for the applicable fiscal year; or

''(C) qualified to be a candidate country due to special circumstances, including natural disasters or public health emergencies.

''(2) ELIGIBLE ALIEN.—The term 'eligible alien' means an alien who—

''(A) has been lawfully admitted to the United States for permanent residence; and

''(B) is a physician or other healthcare worker.

''(c) CONSULTATION.—The Secretary of Homeland Security shall consult with the Secretary of State in carrying out this section.

''(d) PUBLICATION.—The Secretary of State shall publish—

''(1) not later than 180 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, a list of candidate countries;

''(2) an updated version of the list required by paragraph (1) not less often than once each year; and

''(3) an amendment to the list required by paragraph (1) at the time any country qualifies as a candidate country due to special circumstances under subsection (b)(1)(C).''.

(2) RULEMAKING.—

(A) REQUIREMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall promulgate regulations to carry out the amendments made by this subsection.

(B) CONTENT.—The regulations promulgated pursuant to subparagraph (A) shall—

(i) permit an eligible alien (as defined in section 317A of the Immigration and Nationality Act, as added by subsection (a)) and the spouse or child of the eligible alien to reside in a foreign country to work as a physician or other healthcare worker as described in subsection (a) of such section 317A for not less than a 12-month period and not more than a 24-month period, and shall permit the Secretary to extend such period for an additional period not to exceed 12 months, if the Secretary determines that such country has a continuing need for such a physician or other healthcare worker;

(ii) provide for the issuance of documents by the Secretary to such eligible alien, and such spouse or child, if appropriate, to demonstrate that such eligible alien, and such spouse or child, if appropriate, is authorized to reside in such country under such section 317A; and

(iii) provide for an expedited process through which the Secretary shall review applications for such an eligible alien to reside in a foreign country pursuant to subsection (a) of such section 317A if the Secretary of State determines a country is a candidate country pursuant to subsection (b)(1)(C) of such section 317A.

(3) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) DEFINITION.—Section 101(a)(13)(C)(ii) (8 U.S.C. 1101(a)(13)(C)(ii)) is amended by adding ''except in the case of an eligible alien, or the spouse or child of such alien, who is authorized to be absent from the United States under section 317A,'' at the end.

(B) DOCUMENTARY REQUIREMENTS.—Section 211(b) (8 U.S.C. 1181(b)) is amended by inserting '', including an eligible alien authorized to reside in a foreign country under section 317A and the spouse or child of such eligible alien, if appropriate,'' after ''101(a)(27)(A),''.

(C) INELIGIBLE ALIENS.—Section 212(a)(7)(A)(i)(I) (8 U.S.C. 1182(a)(7)(A)(i)(I)) is amended by inserting ''other than an eligible alien authorized to reside in a foreign country under section 317A and the spouse or child of such eligible alien, if appropriate,'' after ''Act,''.

(4) CLERICAL AMENDMENT.—The table of contents of such Act is amended by inserting after the item relating to section 317 the following:

''Sec. 317A. Temporary absence of aliens providing health care in developing countries.''.

(b) ATTESTATION BY HEALTH CARE WORKERS.—

(1) ATTESTATION REQUIREMENT.—Section 212(a)(5) (8 U.S.C. 1182(a)(5)) is amended by adding at the end the following:

''(E) HEALTH CARE WORKERS WITH OTHER OBLIGATIONS.—

''(i) IN GENERAL.—An alien who seeks to enter the United States for the purpose of performing labor as a physician or other health care worker is inadmissible unless the alien submits to the Secretary of Homeland Security or the Secretary of State, as appropriate, an attestation that the alien is not seeking to enter the United States for such purpose during any period in which the alien has an outstanding obligation to the government of the alien's country of origin or the alien's country of residence.

''(ii) OBLIGATION DEFINED.—In this subparagraph, the term 'obligation' means an obligation incurred as part of a valid, voluntary individual agreement in which the alien received financial assistance to defray the costs of education or training to qualify as a physician or other health care worker in consideration for a commitment to work as a physician or other health care worker in the alien's country of origin or the alien's country of residence.

''(iii) WAIVER.—The Secretary of Homeland Security may waive a finding of inadmissibility under clause (i) if the Secretary determines that—

''(I) the obligation was incurred by coercion or other improper means;

''(II) the alien and the government of the country to which the alien has an outstanding obligation have reached a valid, voluntary agreement, pursuant to which the alien's obligation has been deemed satisfied, or the alien has shown to the satisfaction of the Secretary that the alien has been unable to reach such an agreement because of coercion or other improper means; or

''(III) the obligation should not be enforced due to other extraordinary circumstances, including undue hardship that would be suffered by the alien in the absence of a waiver.''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect on the date that is 180 days after the date of the enactment of this Act.

(3) APPLICATION.—Not later than the effective date described in paragraph (2), the Secretary shall begin to carry out subparagraph (E) of section 212(a)(5) of the Immigration and Nationality Act, as added by paragraph (1), including the requirement for the attestation and the granting of a waiver described in clause (iii) of such subparagraph (E), regardless of whether regulations to implement such subparagraph have been promulgated.

SEC. 2318. EXTENSION AND IMPROVEMENT OF THE IRAQI SPECIAL IMMIGRANT VISA PROGRAM.

The Refugee Crisis in Iraq Act of 2007 (8 U.S.C. 1157 note) is amended—

(1) in section 1242, by amending subsection (c) to read as follows:

''(c) IMPROVED APPLICATION PROCESS.—Not later than 120 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary of State and the Secretary of Homeland Security, in consultation with the Secretary of Defense, shall improve the efficiency by which applications for special immigrant visas under section 1244(a) are processed so that all steps incidental to the issuance of such visas, including required screenings and background checks, are completed not later than 9 months after the date on which an eligible alien applies for such visa.'';

(2) in section 1244—

(A) in subsection (b)—

(i) in paragraph (1)—

(I) by amending subparagraph (B) to read as follows:

''(B) was or is employed in Iraq on or after March 20, 2003, for not less than 1 year, by, or on behalf of—

''(i) the United States Government;

''(ii) a media or nongovernmental organization headquartered in the United States; or

''(iii) an organization or entity closely associated with the United States mission in Iraq that has received United States Government funding through an official and documented contract, award, grant, or cooperative agreement;'';

(II) in subparagraph (C), by striking ''the United States Government'' and inserting ''an entity or organization described in subparagraph (B)''; and

(III) in subparagraph (D), by striking by striking ''the United States Government.'' and inserting ''such entity or organization.''; and

(ii) in paragraph (4)—

(I) by striking ''A recommendation'' and inserting the following:

''(A) IN GENERAL.—Except as provided under subparagraph (B), a recommendation'';

(II) by striking ''the United States Government prior'' and inserting ''an entity or organization described in paragraph (1)(B) prior''; and

(III) by adding at the end the following:

''(B) REVIEW PROCESS FOR DENIAL BY CHIEF OF MISSION.—

''(i) IN GENERAL.—An applicant who has been denied Chief of Mission approval required by subparagraph (A) shall—

''(I) receive a written decision; and

''(II) be provided 120 days from the date of the decision to request reopening of the decision to provide additional information, clarify existing information, or explain any unfavorable information.

''(ii) SENIOR COORDINATOR.—The Secretary of State shall designate, in the Embassy of the United States in Baghdad, Iraq, a senior coordinator responsible for overseeing the efficiency and integrity of the processing of special immigrant visas under this section, who shall be given—

''(I) sufficiently high security clearance to review Chief of Mission denials in cases that appear to have relied upon insufficient or incorrect information; and

''(II) responsibility for ensuring that an applicant described in clause (i) receives the information described in clause (i)(I).''; and

(B) in subsection (c)(3), by adding at the end the following:

''(C) SUBSEQUENT FISCAL YEARS.—Notwithstanding subparagraphs (A) and (B), and consistent with subsection (b), any unused balance of the total number of principal aliens who may be provided special immigrant status under this section in fiscal years 2008 through 2012 may be carried forward and provided through the end of fiscal year 2018.''; and

(3) in section 1248, by adding at the end the following:

''(f) REPORT ON IMPROVEMENTS.—

''(1) IN GENERAL.—Not later than 120 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary of State and the Secretary of Homeland Security, in consultation with the Secretary of Defense, shall submit a report, with a classified annex, if necessary, to—

''(A) the Committee on the Judiciary of the Senate;

''(B) the Committee on Foreign Relations of the Senate;

''(C) the Committee on the Judiciary of the House of Representatives; and

''(D) the Committee on Foreign Affairs of the House of Representatives.

''(2) CONTENTS.—The report submitted under paragraph (1) shall describe the implementation of improvements to the processing of applications for special immigrant visas under section 1244(a), including information relating to—

''(A) enhancing existing systems for conducting background and security checks of persons applying for special immigrant status, which shall—

''(i) support immigration security; and

''(ii) provide for the orderly processing of such applications without delay;

''(B) the financial, security, and personnel considerations and resources necessary to carry out this subtitle;

''(C) the number of aliens who have applied for special immigrant visas under section 1244 during each month of the preceding fiscal year;

''(D) the reasons for the failure to expeditiously process any applications that have been pending for longer than 9 months;

''(E) the total number of applications that are pending due to the failure—

''(i) to receive approval from the Chief of Mission;

''(ii) for U.S. Citizenship and Immigration Services to complete the adjudication of the Form I–360;

''(iii) to conduct a visa interview; or

''(iv) to issue the visa to an eligible alien;

''(F) the average wait times for an applicant at each of the stages described in subparagraph (E);

''(G) the number of denials or rejections at each of the stages described in subparagraph (E); and

''(H) a breakdown of reasons for denials at by the Chief of Mission based on the categories already made available to denied special immigrant visa applicants in the denial letter sent to them by the Chief of Mission.

''(g) PUBLIC QUARTERLY REPORTS.—Not later than 120 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, and every 3 months thereafter, the Secretary of State and the Secretary of Homeland Security, in consultation with the Secretary of Defense, shall publish a report on the website of the Department of State that describes the efficiency improvements made in the process by which applications for special immigrant visas under section 1244(a) are processed, including information described in subparagraphs (C) through (H) of subsection (f)(2).''.

SEC. 2319. EXTENSION AND IMPROVEMENT OF THE AFGHAN SPECIAL IMMIGRANT VISA PROGRAM.

Section 602(b) of the Afghan Allies Protection Act of 2009 (8 U.S.C. 1101 note) is amended—

(1) in paragraph (2)—

(A) in subparagraph (A)—

(i) by amending clause (ii) to read as follows:

''(ii) was or is employed in Afghanistan on or after October 7, 2001, for not less than 1 year, by, or on behalf of—

''(I) the United States Government;

''(II) a media or nongovernmental organization headquartered in the United States; or

''(III) an organization or entity closely associated with the United States mission in Afghanistan that has received United States Government funding through an official and documented contract, award, grant, or cooperative agreement;'';

(ii) in clause (iii), by striking ''the United States Government'' and inserting ''an entity or organization described in clause (ii)''; and

(iii) in clause (iv), by striking by striking ''the United States Government.'' and inserting ''such entity or organization.'';

(B) by amending subparagraph (B) to read as follows:

''(B) FAMILY MEMBERS.—An alien is described in this subparagraph if the alien is—

''(i) the spouse or minor child of a principal alien described in subparagraph (A) who is accompanying or following to join the principal alien in the United States; or

''(ii)(I) the spouse, child, parent, or sibling of a principal alien described in subparagraph (A), whether or not accompanying or following to join; and

''(II) has experienced or is experiencing an ongoing serious threat as a consequence of the qualifying employment of a principal alien described in subparagraph (A).''; and

(C) in subparagraph (D)—

(i) by striking ''A recommendation'' and inserting the following:

''(i) IN GENERAL.—Except as provided under clause (ii), a recommendation'';

(ii) by striking ''the United States Government prior'' and inserting ''an entity or organization described in paragraph (2)(A)(ii) prior''; and

(iii) by adding at the end the following:

''(ii) REVIEW PROCESS FOR DENIAL BY CHIEF OF MISSION.—

''(I) IN GENERAL.—An applicant who has been denied Chief of Mission approval shall—

''(aa) receive a written decision; and

''(bb) be provided 120 days from the date of receipt of such opinion to request reconsideration of the decision to provide additional information, clarify existing information, or explain any unfavorable information.

''(II) SENIOR COORDINATOR.—The Secretary of State shall designate, in the Embassy of the United States in Kabul, Afghanistan, a senior coordinator responsible for overseeing the efficiency and integrity of the processing of special immigrant visas under this section, who shall be given—

''(aa) sufficiently high security clearance to review Chief of Mission denials in cases that appear to have relied upon insufficient or incorrect information; and

''(bb) responsibility for ensuring that an applicant described in subclause (I) receives the information described in subclause (I)(aa).'';

(2) in paragraph (3)(C), by amending clause (iii) to read as follows:

''(iii) FISCAL YEARS 2014 THROUGH 2018.—For each of the fiscal years 2014 through 2018, the total number of principal aliens who may be provided special immigrant status under this section may not exceed the sum of—

''(I) 5,000;

''(II) the difference between the number of special immigrant visas allocated under this section for fiscal years 2009 through 2013 and the number of such allocated visas that were issued; and

''(III) any unused balance of the total number of principal aliens who may be provided special immigrant status in fiscal years 2014 through 2018 that have been carried forward.'';

(3) in paragraph (4)—

(A) in the heading, by striking ''PROHIBITION ON FEES.—'' and inserting ''APPLICATION PROCESS.—'';

(B) by striking ''The Secretary'' and inserting the following:

''(A) IN GENERAL.—Not later than 120 days after the date of enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary of State and the Secretary of Homeland Security, in consultation with the Secretary of Defense, shall improve the efficiency by which applications for special immigrant visas under paragraph (1) are processed so that all steps incidental to the issuance of such visas, including required screenings and background checks, are completed not later than 6 months after the date on which an eligible alien applies for such visa.

''(B) PROHIBITION ON FEES.—The Secretary''; and

(4) by adding at the end the following:

''(12) REPORT ON IMPROVEMENTS.—Not later than 120 days after the date of the enactment

of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary of State and the Secretary of Homeland Security, in consultation with the Secretary of Defense, shall submit to the appropriate committees of Congress a report, with a classified annex, if necessary, that describes the implementation of improvements to the processing of applications for special immigrant visas under this subsection, including information relating to—

''(A) enhancing existing systems for conducting background and security checks of persons applying for special immigrant status, which shall—

''(i) support immigration security; and

''(ii) provide for the orderly processing of such applications without delay;

''(B) the financial, security, and personnel considerations and resources necessary to carry out this section;

''(C) the number of aliens who have applied for special immigrant visas under this subsection during each month of the preceding fiscal year;

''(D) the reasons for the failure to expeditiously process any applications that have been pending for longer than 9 months;

''(E) the total number of applications that are pending due to the failure—

''(i) to receive approval from the Chief of Mission;

''(ii) for U.S. Citizenship and Immigration Services to complete the adjudication of the Form I–360;

''(iii) to conduct a visa interview; or

''(iv) to issue the visa to an eligible alien;

''(F) the average wait times for an applicant at each of the stages described in subparagraph (E);

''(G) the number of denials or rejections at each of the stages described in subparagraph (E); and

''(H) a breakdown of reasons for denials by the Chief of Mission based on the categories already made available to denied special immigrant visa applicants in the denial letter sent to them by the Chief of Mission.

''(13) PUBLIC QUARTERLY REPORTS.—Not later than 120 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, and every 3 months thereafter, the Secretary of State and the Secretary of Homeland Security, in consultation with the Secretary of Defense, shall publish a report on the website of the Department of State that describes the efficiency improvements made in the process by which applications for special immigrant visas under this subsection are processed, including information described in subparagraph (C) through (H) of paragraph (12).''.

SEC. 2320. SPECIAL IMMIGRANT NONMINISTER RELIGIOUS WORKER PROGRAM.

Section 101(a)(27)(C)(ii) (8 U.S.C. 1101 (a)(27)(C)(ii)) is amended in subclauses (II) and (III) by striking ''before September 30, 2015,'' both places such term appears.

SEC. 2321. SPECIAL IMMIGRANT STATUS FOR CERTAIN SURVIVING SPOUSES AND CHILDREN.

(a) IN GENERAL.—Section 101(a)(27) (8 U.S.C. 1101(a)(27)) is amended in subparagraph (D)—

(1) by inserting ''(i)'' before ''an immigrant who is an employee'';

(2) by inserting ''or'' after ''grant such status;''; and

(3) by inserting after clause (i), as designated by paragraph (1), the following:

''(ii) an immigrant who is the surviving spouse or child of an employee of the United States Government abroad killed in the line of duty, provided that the employee had performed faithful service for a total of 15 years, or more, and that the principal officer of a Foreign Service establishment (or, in the case of the American Institute of Taiwan, the Director thereof) in his or her discretion, recommends the granting of special immigrant status to the spouse or child and the Secretary of State approves such recommendation and finds that it is in the national interest to grant such status;''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) take effect beginning on January 31, 2013, and shall have retroactive effect.

SEC. 2322. REUNIFICATION OF CERTAIN FAMILIES OF FILIPINO VETERANS OF WORLD WAR II.

(a) SHORT TITLE.—This section may be cited as the ''Filipino Veterans Family Reunification Act''.

(b) EXEMPTION FROM IMMIGRANT VISA LIMIT.—Section 201(b)(1) (8 U.S.C. 1151(b)(1)), as amended by sections 2103(c), 2212(d), and 2307(b), is further amended by adding at the end the following:

''(O) Aliens who—

''(i) are the sons or daughters of a citizen of the United States; and

''(ii) have a parent (regardless of whether the parent is living or dead) who was naturalized pursuant to—

''(I) section 405 of the Immigration Act of 1990 (Public Law 101–649; 8 U.S.C. 1440 note); or

''(II) title III of the Act of October 14, 1940 (54 Stat. 1137, chapter 876), as added by section 1001 of the Second War Powers Act, 1942 (56 Stat. 182, chapter 199).''.

SEC. 2323. ENSURING COMPLIANCE WITH RESTRICTIONS ON WELFARE AND PUBLIC BENEFITS FOR ALIENS.

(a) GENERAL PROHIBITION.—No officer or employee of the Federal Government may—

(1) waive compliance with any requirement in title IV of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1601 et seq.) in effect on the date of enactment of this Act or with any restriction on eligibility for any form of assistance or benefit described in section 403(a) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613(a)) established under a provision of this Act or an amendment made by this Act;

(2) waive the prohibition under subsection (d)(3) of section 245B of the Immigration and Nationality Act (as added by section 2101 of this Act) on eligibility for Federal means-tested public benefits for any alien granted registered provisional immigrant status under section 245B of the Immigration and Nationality Act;

(3) waive the prohibition under subsection (c)(3) of section 2211 of this Act on eligibility for Federal means-tested public benefits for any alien granted blue card status under that section;

(4) waive the prohibition under subsection (c) of section 2309 of this Act on eligibility for Federal means-tested public benefits for any noncitizen who is lawfully present in the United States pursuant to section 101(a)(15)(V) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(V)) (as amended by section 2309(a)); or

(5) waive the prohibition under subsection (w)(2)(C) of section 214 of the Immigration and Nationality Act (8 U.S.C. 1184(w)(2)(C)) (as added by section 4504(b) of this Act) on eligibility for any assistance or benefits described in section 403(a) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613(a)) for any alien described in section 101(a)(15)(Y) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(Y) (as added by section 4504 of this Act) who is issued a nonimmigrant visa.

(b) ENSURING COMPLIANCE WITH FEDERAL WELFARE LAW.—

(1) NO WAIVER OF REQUIREMENTS.—Notwithstanding section 1115(a) of the Social Security Act (42 U.S.C. 1315(a)), the Secretary of Health and Human Services shall not waive compliance by a State, or otherwise permit a State to not comply, with the requirements for the temporary assistance for needy families program referenced in section 408(e) of the Social Security Act (42 U.S.C. 608(e)) and the requirements for that program in section 408(g) of such Act (42 U.S.C. 608(g)).

(2) NO WAIVER OF PENALTIES.—The Secretary of Health and Human Services shall apply section 409 of the Social Security Act (42 U.S.C. 609) to any State that fails to comply with any of the requirements specified in paragraph (1).

Subtitle D—Conrad State 30 and Physician Access

SEC. 2401. CONRAD STATE 30 PROGRAM.

Section 220(c) of the Immigration and Nationality Technical Corrections Act of 1994 (Public Law 103–416; 8 U.S.C. 1182 note) is amended by striking ''and before September 30, 2015''.

SEC. 2402. RETAINING PHYSICIANS WHO HAVE PRACTICED IN MEDICALLY UNDERSERVED COMMUNITIES.

Section 201(b)(1) (8 U.S.C. 1151(b)(1)), as amended by sections 2103(c), 2212(d)(2), 2307(b), and 2323(b) is further amended by adding at the end the following:

''(P)(i) Alien physicians who have completed service requirements of a waiver requested under section 203(b)(2)(B)(ii), including alien physicians who completed such service before the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act and any spouses or children of such alien physicians.

''(ii) Nothing in this subparagraph may be construed—

''(I) to prevent the filing of a petition with the Secretary of Homeland Security for classification under section 204(a) or the filing of an application for adjustment of status under section 245 by an alien physician described in this subparagraph prior to the date by which such alien physician has completed the service described in section 214(l) or worked full-time as a physician for an aggregate of 5 years at the location identified in the section 214(l) waiver or in an area or areas designated by the Secretary of Health and Human Services as having a shortage of health care professionals; or

''(II) to permit the Secretary of Homeland Security to grant such a petition or application until the alien has satisfied all the requirements of the waiver received under section 214(l).''.

SEC. 2403. EMPLOYMENT PROTECTIONS FOR PHYSICIANS.

(a) IN GENERAL.—Section 214(l)(1)(C) (8 U.S.C. 1184(l)(1)(C)) is amended by striking clauses (i) and (ii) and inserting the following:

''(i) the alien demonstrates a bona fide offer of full-time employment, at a health care organization, which employment has been determined by the Secretary of Homeland Security to be in the public interest; and

''(ii) the alien agrees to begin employment with the health facility or health care organization in a geographic area or areas which are designated by the Secretary of Health and Human Services as having a shortage of health care professionals by the later of the date that is 90 days after receiving such waiver, 90 days after completing graduate medical education or training under a program approved pursuant to section 212(j)(1), or 90 days after receiving nonimmigrant status or employment authorization, provided that the alien or the alien's employer petitions for such nonimmigrant status or employment authorization within 90 days of completing graduate medical education or

training and agrees to continue to work for a total of not less than 3 years in any status authorized for such employment under this subsection, unless—

''(I) the Secretary determines that extenuating circumstances exist that justify a lesser period of employment at such facility or organization, in which case the alien shall demonstrate another bona fide offer of employment at a health facility or health care organization, for the remainder of such 3-year period;

''(II) the interested agency that requested the waiver attests that extenuating circumstances exist that justify a lesser period of employment at such facility or organization in which case the alien shall demonstrate another bona fide offer of employment at a health facility or health care organization so designated by the Secretary of Health and Human Services, for the remainder of such 3-year period; or

''(III) if the alien elects not to pursue a determination of extenuating circumstances pursuant to subclause (I) or (II), the alien terminates the alien's employment relationship with such facility or organization, in which case the alien shall be employed for the remainder of such 3-year period, and 1 additional year for each termination, at another health facility or health care organization in a geographic area or areas which are designated by the Secretary of Health and Human Services as having a shortage of health care professionals; and''.

(b) PHYSICIAN EMPLOYMENT IN UNDERSERVED AREAS.—Section 214(l)(1) (8 U.S.C. 1184(l)(1)), as amended by subsection (a), is further amended by adding at the end the following:

''(E) If a physician pursuing graduate medical education or training pursuant to section 101(a)(15)(J) applies for a Conrad J–1 waiver with an interested State department of health and the application is denied because the State has requested the maximum number of waivers permitted for that fiscal year, the physician's nonimmigrant status shall be automatically extended for 6 months if the physician agrees to seek a waiver under this subsection (except for subparagraph (D)(ii)) to work for an employer in a State that has not yet requested the maximum number of waivers. The physician shall be authorized to work only for such employer from the date on which a new waiver application is filed with the State until the date on which the Secretary of Homeland Security denies such waiver or issues work authorization for such employment pursuant to the approval of such waiver.''.

(c) GRADUATE MEDICAL EDUCATION OR TRAINING.—Section 214(h)(1), as amended by section 4401(b) of this Act, is further amended by inserting ''(J) (if entering the United States for graduate medical education or training),'' after ''(H)(i)(c),''.

(d) CONTRACT REQUIREMENTS.—Section 214(l) (8 U.S.C. 1184(l)) is amended by adding at the end the following:

''(4) An alien granted a waiver under paragraph (1)(C) shall enter into an employment agreement with the contracting health facility or health care organization that—

''(A) specifies the maximum number of on-call hours per week (which may be a monthly average) that the alien will be expected to be available and the compensation the alien will receive for on-call time;

''(B) specifies whether the contracting facility or organization will pay for the alien's malpractice insurance premiums, including whether the employer will provide malpractice insurance and, if so, the amount of such insurance that will be provided;

''(C) describes all of the work locations that the alien will work and a statement that the contracting facility or organization will not add additional work locations without the approval of the Federal agency or State agency that requested the waiver; and

''(D) does not include a non-compete provision.

''(5) An alien granted a waiver under paragraph (1)(C) whose employment relationship with a health facility or health care organization terminates during the 3-year service period required by such paragraph—

''(A) shall have a period of 120 days beginning on the date of such termination of employment to submit to the Secretary of Homeland Security applications or petitions to commence employment with another contracting health facility or health care organization in a geographic area or areas which are designated by the Secretary of Health and Human Services as having a shortage of health care professionals;

''(B) shall be considered to be maintaining lawful status in an authorized stay during the 120-day period referred to in subsection (A); and

''(C) shall not be considered to be fulfilling the 3-year term of service during the 120-day period referred to in subparagraph (A).''.

SEC. 2404. ALLOTMENT OF CONRAD 30 WAIVERS.

(a) IN GENERAL.—Section 214(l) (8 U.S.C. 1184(l)), as amended by section 2403, is further amended by adding at the end the following:

''(6)(A)(i) All States shall be allotted a total of 35 waivers under paragraph (1)(B) for a fiscal year if 90 percent of the waivers available to the States receiving at least 5 waivers were used in the previous fiscal year.

''(ii) When an allocation has occurred under clause (i), all States shall be allotted an additional 5 waivers under paragraph (1)(B) for each subsequent fiscal year if 90 percent of the waivers available to the States receiving at least 5 waivers were used in the previous fiscal year. If the States are allotted 45 or more waivers for a fiscal year, the States will only receive an additional increase of 5 waivers the following fiscal year if 95 percent of the waivers available to the States receiving at least 1 waiver were used in the previous fiscal year.

''(B) Any increase in allotments under subparagraph (A) shall be maintained indefinitely, unless in a fiscal year, the total number of such waivers granted is 5 percent lower than in the last year in which there was an increase in the number of waivers allotted pursuant to this paragraph, in which case—

''(i) the number of waivers allotted shall be decreased by 5 for all States beginning in the next fiscal year; and

''(ii) each additional 5 percent decrease in such waivers granted from the last year in which there was an increase in the allotment, shall result in an additional decrease of 5 waivers allotted for all States, provided that the number of waivers allotted for all States shall not drop below 30.''.

(b) ACADEMIC MEDICAL CENTERS.—Section 214(l)(1)(D) (8 U.S.C. 1184(l)(1)(D)) is amended—

(1) in clause (ii), by striking ''and'' at the end;

(2) in clause (iii), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(iv) in the case of a request by an interested State agency—

''(I) the head of such agency determines that the alien is to practice medicine in, or be on the faculty of a residency program at, an academic medical center (as that term is defined in section 411.355(e)(2) of title 42, Code of Federal Regulations, or similar successor regulation), without regard to whether such facility is located within an area designated by the Secretary of Health and Human Services as having a shortage of health care professionals; and

''(II) the head of such agency determines that—

''(aa) the alien physician's work is in the public interest; and

''(bb) the grant of such waiver would not cause the number of the waivers granted on behalf of aliens for such State for a fiscal year (within the limitation in subparagraph (B) and subject to paragraph (6)) in accordance with the conditions of this clause to exceed 3.''.

SEC. 2405. AMENDMENTS TO THE PROCEDURES, DEFINITIONS, AND OTHER PROVISIONS RELATED TO PHYSICIAN IMMIGRATION.

(a) ALLOWABLE VISA STATUS FOR PHYSICIANS FULFILLING WAIVER REQUIREMENTS IN MEDICALLY UNDERSERVED AREAS.—Section 214(l)(2)(A) (8 U.S.C. 1184(l)(2)(A)) is amended by striking ''an alien described in section 101(a)(15)(H)(i)(b).'' and inserting ''any status authorized for employment under this Act.''.

(b) SHORT TERM WORK AUTHORIZATION FOR PHYSICIANS COMPLETING THEIR RESIDENCIES.—A physician completing graduate medical education or training as described in section 212(j) of the Immigration and Nationality Act (8 U.S.C. 1182(j)) as a nonimmigrant described in section 101(a)(15)(H)(i) of such Act (8 U.S.C. 1101(a)(15)(H)(i)) shall have such nonimmigrant status automatically extended until October 1 of the fiscal year for which a petition for a continuation of such nonimmigrant status has been submitted in a timely manner and where the employment start date for the beneficiary of such petition is October 1 of that fiscal year. Such physician shall be authorized to be employed incident to status during the period between the filing of such petition and October 1 of such fiscal year. However, the physician's status and employment authorization shall terminate 30 days from the date such petition is rejected, denied, or revoked. A physician's status and employment authorization will automatically extend to October 1 of the next fiscal year if all visas as described in such section 101(a)(15)(H)(i) authorized to be issued for the fiscal year have been issued.

(c) APPLICABILITY OF SECTION 212(e) TO SPOUSES AND CHILDREN OF J–1 EXCHANGE VISITORS.—A spouse or child of an exchange visitor described in section 101(a)(15)(J) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(J)) shall not be subject to the requirements of section 212(e) of the Immigration and Nationality Act (8 U.S.C. 1182(e)).

Subtitle E—Integration

SEC. 2501. DEFINITIONS.

In this subtitle:

(1) CHIEF.—The term ''Chief'' means the Chief of the Office.

(2) FOUNDATION.—The term ''Foundation'' means the United States Citizenship Foundation established pursuant to section 2531.

(3) IEACA GRANTS.—The term ''IEACA grants'' means Initial Entry, Adjustment, and Citizenship Assistance grants authorized under section 2537.

(4) IMMIGRANT INTEGRATION.—The term ''immigrant integration'' means the process by which immigrants—

(A) join the mainstream of civic life by engaging and sharing ownership in their local community, the United States, and the principles of the Constitution;

(B) attain financial self-sufficiency and upward economic mobility for themselves and their family members; and

(C) acquire English language skills and related cultural knowledge necessary to effectively participate in their community.

(5) LINGUISTIC INTEGRATION.—The term ''linguistic integration'' means the acquisition, by limited English proficient individuals, of English language skills and related cultural knowledge necessary to meaningfully and effectively fulfill their roles as community members, family members, and workers.

(6) OFFICE.—The term ''Office'' means the Office of Citizenship and New Americans established in U.S. Citizenship and Immigration Services under section 2511.

(7) RECEIVING COMMUNITIES.—The term ''receiving communities'' means the long-term residents of the communities in which immigrants settle.

(8) TASK FORCE.—The term ''Task Force'' means the Task Force on New Americans established pursuant to section 2521.

(9) USCF COUNCIL.—The term ''USCF Council'' means the Council of Directors of the Foundation.

CHAPTER 1—CITIZENSHIP AND NEW AMERICANS

Subchapter A—Office of Citizenship and New Americans

SEC. 2511. OFFICE OF CITIZENSHIP AND NEW AMERICANS.

(a) RENAMING OFFICE OF CITIZENSHIP.—

(1) IN GENERAL.—Beginning on the date of the enactment of this Act, the Office of Citizenship in U.S. Citizenship and Immigration Services shall be referred to as the ''Office of Citizenship and New Americans''.

(2) REFERENCES.—Any reference in a law, regulation, document, paper, or other record of the United States to the Office of Citizenship in U.S. Citizenship and Immigration Services shall be deemed to be a reference to the Office of Citizenship and New Americans.

(3) TECHNICAL AND CONFORMING AMENDMENTS.—Section 451 of the Homeland Security Act of 2002 (6 U.S.C. 271) is amended—

(A) in the section heading, by striking ''**BUREAU OF**'' and inserting ''**U.S.**'';

(B) in subsection (a)(1), by striking ''the 'Bureau of'' and inserting '' 'U.S.'';

(C) by striking ''the Bureau of'' each place such terms appears and inserting ''U.S.''; and

(D) in subsection (f)—

(i) by amending the subsection heading to read as follows: ''OFFICE OF CITIZENSHIP AND NEW AMERICANS''; and

(ii) by striking paragraph (1) and inserting the following:

''(1) CHIEF.—The Office of Citizenship and New Americans shall be within U.S. Citizenship and Immigration Services and shall be headed by the Chief of the Office of Citizenship and New Americans.''.

(b) FUNCTIONS.—Section 451(f) of such Act (6 U.S.C. 271(f)), as amended by subsection (a)(3)(D), is further amended by striking paragraph (2) and inserting the following:

''(2) FUNCTIONS.—The Chief of the Office of Citizenship and New Americans shall—

''(A) promote institutions and provide training on citizenship responsibilities for aliens interested in becoming naturalized citizens of the United States, including the development of educational materials for such aliens;

''(B) provide general leadership, consultation, and coordination of the immigrant integration programs across the Federal Government and with State and local entities;

''(C) in coordination with the Task Force on New Americans established under section 2521 of the Border Security, Economic Opportunity, and Immigration Modernization Act—

''(i) advise the Director of U.S. Citizenship and Immigration Services, the Secretary of Homeland Security, and the Domestic Policy Council, on—

''(I) the challenges and opportunities relating to the linguistic, economic, and civic integration of immigrants and their young children and progress in meeting integration goals and indicators; and

''(II) immigrant integration considerations relating to Federal budgets;

''(ii) establish national goals for introducing new immigrants into the United States and measure the degree to which such goals are met;

''(iii) evaluate the scale, quality, and effectiveness of Federal Government efforts in immigrant integration and provide advice on appropriate actions; and

''(iv) identify the integration implications of new or proposed immigration policies and provide recommendations for addressing such implications;

''(D) serve as a liaison and intermediary with State and local governments and other entities to assist in establishing local goals, task forces, and councils to assist in—

''(i) introducing immigrants into the United States; and

''(ii) promoting citizenship education and awareness among aliens interested in becoming naturalized citizens of the United States;

''(E) coordinate with other Federal agencies to provide information to State and local governments on the demand for existing Federal and State English education programs and best practices for immigrants who recently arrived in the United States;

''(F) assist States in coordinating the activities of the grant programs authorized under sections 2537 and 2538 of the Border Security, Economic Opportunity, and Immigration Modernization Act;

''(G) submit a biennial report to the appropriate congressional committees that describes the activities of the Office of Citizenship and New Americans; and

''(H) carry out such other functions and activities as Secretary may assign.''.

(c) EFFECTIVE DATE.—The amendments made by subsections (a) and (b) shall take effect on the date that is 1 year after the date of the enactment of this Act.

Subchapter B—Task Force on New Americans

SEC. 2521. ESTABLISHMENT.

(a) IN GENERAL.—The Secretary shall establish a Task Force on New Americans.

(b) FULLY FUNCTIONAL.—The Task Force shall be fully functional not later than 18 months after the date of the enactment of this Act.

SEC. 2522. PURPOSE.

The purposes of the Task Force are—

(1) to establish a coordinated Federal program and policy response to immigrant integration issues; and

(2) to advise and assist the Federal Government in identifying and fostering policies to carry out the policies and goals established under this chapter.

SEC. 2523. MEMBERSHIP.

(a) IN GENERAL.—The Task Force shall be comprised of—

(1) the Secretary, who shall serve as Chair of the Task Force;

(2) the Secretary of the Treasury;

(3) the Attorney General;

(4) the Secretary of Commerce;

(5) the Secretary of Labor;

(6) the Secretary of Health and Human Services;

(7) the Secretary of Housing and Urban Development;

(8) the Secretary of Transportation;

(9) the Secretary of Education;

(10) the Director of the Office of Management and Budget;

(11) the Administrator of the Small Business Administration;

(12) the Director of the Domestic Policy Council;

(13) the Director of the National Economic Council; and

(14) the National Security Advisor.

(b) DELEGATION.—A member of the Task Force may delegate a senior official, at the Assistant Secretary, Deputy Administrator, Deputy Director, or Assistant Attorney General level, to perform the functions of a Task Force member described in section 2524.

SEC. 2524. FUNCTIONS.

(a) MEETINGS; FUNCTIONS.—The Task Force shall—

(1) meet at the call of the Chair; and

(2) perform such functions as the Secretary may prescribe.

(b) COORDINATED RESPONSE.—The Task Force shall work with executive branch agencies—

(1) to provide a coordinated Federal response to issues that impact the lives of new immigrants and receiving communities, including—

(A) access to youth and adult education programming;

(B) workforce training;

(C) health care policy;

(D) access to naturalization; and

(E) community development challenges; and

(2) to ensure that Federal programs and policies adequately address such impacts.

(c) LIAISONS.—Members of the Task Force shall serve as liaisons to their respective agencies to ensure the quality and timeliness of their agency's participation in activities of the Task Force, including—

(1) creating integration goals and indicators;

(2) implementing the biannual consultation process with the agency's State and local counterparts; and

(3) reporting on agency data collection, policy, and program efforts relating to achieving the goals and indicators referred to in paragraph (1).

(d) RECOMMENDATIONS.—Not later than 18 months after the end of the period specified in section 2521(b), the Task Force shall—

(1) provide recommendations to the Domestic Policy Council and the Secretary on the effects of pending legislation and executive branch policy proposals;

(2) suggest changes to Federal programs or policies to address issues of special importance to new immigrants and receiving communities;

(3) review and recommend changes to policies that have a distinct impact on new immigrants and receiving communities; and

(4) assist in the development of legislative and policy proposals of special importance to new immigrants and receiving communities.

CHAPTER 2—PUBLIC-PRIVATE PARTNERSHIP

SEC. 2531. ESTABLISHMENT OF UNITED STATES CITIZENSHIP FOUNDATION.

The Secretary, acting through the Director of U.S. Citizenship and Immigration Services, is authorized to establish a nonprofit corporation or a not-for-profit, public benefit, or similar entity, which shall be known as the ''United States Citizenship Foundation''.

SEC. 2532. FUNDING.

(a) GIFTS TO FOUNDATION.—In order to carry out the purposes set forth in section 2533, the Foundation may—

(1) solicit, accept, and make gifts of money and other property in accordance with section 501(c)(3) of the Internal Revenue Code of 1986;

(2) engage in coordinated work with the Department, including the Office and U.S. Citizenship and Immigration Services; and

(3) accept, hold, administer, invest, and spend any gift, devise, or bequest of real or personal property made to the Foundation.

(b) GIFTS TO OFFICE OF CITIZENSHIP AND NEW AMERICANS.—The Office may accept

gifts from the Foundation to support the functions of the Office.

SEC. 2533. PURPOSES.

The purposes of the Foundation are—

(1) to expand citizenship preparation programs for lawful permanent residents;

(2) to provide direct assistance for aliens seeking provisional immigrant status, legal permanent resident status, or naturalization as a United States citizen; and

(3) to coordinate immigrant integration with State and local entities.

SEC. 2534. AUTHORIZED ACTIVITIES.

The Foundation shall carry out its purpose by—

(1) making United States citizenship instruction and naturalization application services accessible to low-income and other underserved lawful permanent resident populations;

(2) developing, identifying, and sharing best practices in United States citizenship preparation;

(3) supporting innovative and creative solutions to barriers faced by those seeking naturalization;

(4) increasing the use of, and access to, technology in United States citizenship preparation programs;

(5) engaging receiving communities in the United States citizenship and civic integration process;

(6) administering the New Citizens Award Program to recognize, in each calendar year, not more than 10 United States citizens who—

(A) have made outstanding contributions to the United States; and

(B) have been naturalized during the 10-year period ending on the date of such recognition;

(7) fostering public education and awareness;

(8) coordinating its immigrant integration efforts with the Office;

(9) awarding grants to eligible public or private nonprofit organizations under section 2537; and

(10) awarding grants to State and local governments under section 2538.

SEC. 2535. COUNCIL OF DIRECTORS.

(a) MEMBERS.—To the extent consistent with section 501(c)(3) of the Internal Revenue Code of 1986, the Foundation shall have a Council of Directors, which shall be comprised of—

(1) the Director of U.S. Citizenship and Immigration Services;

(2) the Chief of the Office of Citizenship and New Americans; and

(3) 10 directors, appointed by the ex-officio directors designated in paragraphs (1) and (2), from national community-based organizations that promote and assist permanent residents with naturalization.

(b) APPOINTMENT OF EXECUTIVE DIRECTOR.—The USCF Council shall appoint an Executive Director, who shall oversee the day-to-day operations of the Foundation.

SEC. 2536. POWERS.

The Executive Director is authorized to carry out the purposes set forth in section 2533 on behalf of the Foundation by—

(1) accepting, holding, administering, investing, and spending any gift, devise, or bequest of real or personal property made to the Foundation;

(2) entering into contracts and other financial assistance agreements with individuals, public or private organizations, professional societies, and government agencies to carry out the functions of the Foundation;

(3) entering into such other contracts, leases, cooperative agreements, and other transactions as the Executive Director considers appropriate to carry out the activities of the Foundation; and

(4) charging such fees for professional services furnished by the Foundation as the Executive Director determines reasonable and appropriate.

SEC. 2537. INITIAL ENTRY, ADJUSTMENT, AND CITIZENSHIP ASSISTANCE GRANT PROGRAM.

(a) AUTHORIZATION.—The Secretary, acting through the Director of U.S. Citizenship and Immigration Services, may award Initial Entry, Adjustment, and Citizenship Assistance grants to eligible public or private, nonprofit organizations.

(b) USE OF GRANT FUNDS.—IEACA grants shall be used for the design and implementation of programs that provide direct assistance, within the scope of the authorized practice of immigration law—

(1) to aliens who are preparing an initial application for registered provisional immigrant status under section 245B of the Immigration and Nationality Act and to aliens who are preparing an initial application for blue card status under section 2211, including assisting applicants in—

(A) screening to assess prospective applicants' potential eligibility or lack of eligibility;

(B) completing applications;

(C) gathering proof of identification, employment, residence, and tax payment;

(D) gathering proof of relationships of eligible family members;

(E) applying for any waivers for which applicants and qualifying family members may be eligible; and

(F) any other assistance that the Secretary or grantee considers useful to aliens who are interested in applying for registered provisional immigrant status;

(2) to aliens seeking to adjust their status under section 245, 245B, 245C, or 245F of the Immigration and Nationality Act;

(3) to legal permanent residents seeking to become naturalized United States citizens; and

(4) to applicants on—

(A) the rights and responsibilities of United States citizenship;

(B) civics-based English as a second language;

(C) civics, with a special emphasis on common values and traditions of Americans, including an understanding of the history of the United States and the principles of the Constitution; and

(D) applying for United States citizenship.

SEC. 2538. PILOT PROGRAM TO PROMOTE IMMIGRANT INTEGRATION AT STATE AND LOCAL LEVELS.

(a) GRANTS AUTHORIZED.—The Chief shall establish a pilot program through which the Chief may award grants, on a competitive basis, to States and local governments or other qualifying entities, in collaboration with State and local governments—

(1) to establish New Immigrant Councils to carry out programs to integrate new immigrants; or

(2) to carry out programs to integrate new immigrants.

(b) APPLICATION.—A State or local government desiring a grant under this section shall submit an application to the Chief at such time, in such manner, and containing such information as the Chief may reasonably require, including—

(1) a proposal to meet an objective or combination of objectives set forth in subsection (d)(3);

(2) the number of new immigrants in the applicant's jurisdiction; and

(3) a description of the challenges in introducing and integrating new immigrants into the State or local community.

(c) PRIORITY.—In awarding grants under this section, the Chief shall give priority to States and local governments or other qualifying entities that—

(1) use matching funds from non-Federal sources, which may include in-kind contributions;

(2) demonstrate collaboration with public and private entities to achieve the goals of the comprehensive plan developed pursuant to subsection (d)(3);

(3) are 1 of the 10 States with the highest rate of foreign-born residents; or

(4) have experienced a large increase in the population of immigrants during the most recent 10-year period relative to past migration patterns, based on data compiled by the Office of Immigration Statistics or the United States Census Bureau.

(d) AUTHORIZED ACTIVITIES.—A grant awarded under this subsection may be used—

(1) to form a New Immigrant Council, which shall—

(A) consist of between 15 and 19 individuals, inclusive, from the State, local government, or qualifying organization;

(B) include, to the extent practicable, representatives from—

(i) business;

(ii) faith-based organizations;

(iii) civic organizations;

(iv) philanthropic organizations;

(v) nonprofit organizations, including those with legal and advocacy experience working with immigrant communities;

(vi) key education stakeholders, such as State educational agencies, local educational agencies, community colleges, and teachers;

(vii) State adult education offices;

(viii) State or local public libraries; and

(ix) State or local governments; and

(C) meet not less frequently than once each quarter;

(2) to provide subgrants to local communities, city governments, municipalities, nonprofit organizations (including veterans' and patriotic organizations), or other qualifying entities;

(3) to develop, implement, expand, or enhance a comprehensive plan to introduce and integrate new immigrants into the State by—

(A) improving English language skills;

(B) engaging caretakers with limited English proficiency in their child's education through interactive parent and child literacy activities;

(C) improving and expanding access to workforce training programs;

(D) teaching United States history, civics education, citizenship rights, and responsibilities;

(E) promoting an understanding of the form of government and history of the United States and the principles of the Constitution;

(F) improving financial literacy; and

(G) focusing on other key areas of importance to integration in our society; and

(4) to engage receiving communities in the citizenship and civic integration process by—

(A) increasing local service capacity;

(B) building meaningful connections between newer immigrants and long-time residents;

(C) communicating the contributions of receiving communities and new immigrants; and

(D) engaging leaders from all sectors of the community.

(e) REPORTING AND EVALUATION.—

(1) ANNUAL REPORT.—Each grant recipient shall submit an annual report to the Office that describes—

(A) the activities undertaken by the grant recipient, including how such activities meet the goals of the Office, the Foundation, and the comprehensive plan described in subsection (d)(3);

(B) the geographic areas being served;

(C) the number of immigrants in such areas; and

(D) the primary languages spoken in such areas.

(2) ANNUAL EVALUATION.—The Chief shall conduct an annual evaluation of the grant program established under this section—

(A) to assess and improve the effectiveness of such grant program;

(B) to assess the future needs of immigrants and of State and local governments related to immigrants; and

(C) to ensure that grantees recipients and subgrantees are acting within the scope and purpose of this subchapter.

SEC. 2539. NATURALIZATION CEREMONIES.

(a) IN GENERAL.—The Chief, in consultation with the Director of the National Park Service, the Archivist of the United States, and other appropriate Federal officials, shall develop and implement a strategy to enhance the public awareness of naturalization ceremonies.

(b) VENUES.—In developing the strategy under subsection (a), the Secretary shall consider the use of outstanding and historic locations as venues for select naturalization ceremonies.

(c) REPORTING REQUIREMENT.—The Secretary shall annually submit a report to Congress that contains—

(1) the content of the strategy developed under subsection (a); and

(2) the progress made towards the implementation of such strategy.

CHAPTER 3—FUNDING

SEC. 2541. AUTHORIZATION OF APPROPRIATIONS.

(a) OFFICE OF CITIZENSHIP AND NEW AMERICANS.—In addition to any amounts otherwise made available to the Office, there are authorized to be appropriated to carry out the functions described in section 451(f)(2) of the Homeland Security Act of 2002 (6 U.S.C. 271(f)(2)), as amended by section 2511(b)—

(1) $10,000,000 for the 5-year period ending on September 30, 2018; and

(2) such sums as may be necessary for fiscal year 2019 and subsequent fiscal years.

(b) GRANT PROGRAMS.—There are authorized to be appropriated to implement the grant programs authorized under sections 2537 and 2538, and to implement the strategy under section 2539—

(1) $100,000,000 for the 5-year period ending on September 30, 2018; and

(2) such sums as may be necessary for fiscal year 2019 and subsequent fiscal years.

CHAPTER 4—REDUCE BARRIERS TO NATURALIZATION

SEC. 2551. WAIVER OF ENGLISH REQUIREMENT FOR SENIOR NEW AMERICANS.

Section 312 (8 U.S.C. 1423) is amended by striking subsection (b) and inserting the following:

''(b) The requirements under subsection (a) shall not apply to any person who—

''(1) is unable to comply with such requirements because of physical or mental disability, including developmental or intellectual disability; or

''(2) on the date on which the person's application for naturalization is filed under section 334—

''(A) is older than 65 years of age; and

''(B) has been living in the United States for periods totaling at least 5 years after being lawfully admitted for permanent residence.

''(c) The requirement under subsection (a)(1) shall not apply to any person who, on the date on which the person's application for naturalization is filed under section 334—

''(1) is older than 50 years of age and has been living in the United States for periods totaling at least 20 years after being lawfully admitted for permanent residence;

''(2) is older than 55 years of age and has been living in the United States for periods totaling at least 15 years after being lawfully admitted for permanent residence; or

''(3) is older than 60 years of age and has been living in the United States for periods totaling at least 10 years after being lawfully admitted for permanent residence.

''(d) The Secretary of Homeland Security may waive, on a case-by-case basis, the requirement under subsection (a)(2) on behalf of any person who, on the date on which the person's application for naturalization is filed under section 334—

''(1) is older than 60 years of age; and

''(2) has been living in the United States for periods totaling at least 10 years after being lawfully admitted for permanent residence.''.

SEC. 2552. FILING OF APPLICATIONS NOT REQUIRING REGULAR INTERNET ACCESS.

(a) ELECTRONIC FILING NOT REQUIRED.—

(1) IN GENERAL.—The Secretary may not require that an applicant or petitioner for permanent residence or citizenship of the United States use an electronic method to file any application, or access to a customer account.

(2) SUNSET DATE.—This subsection shall cease to be effective on October 1, 2020.

(b) NOTIFICATION REQUIREMENT.—Beginning on October 1, 2020, the Secretary may not require that an applicant or petitioner for permanent residence or citizenship of the United States use an electronic method to file any application or access to a customer account unless the Secretary notifies the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives of such requirement not later than 30 days before the effective date of such requirement.

SEC. 2553. PERMISSIBLE USE OF ASSISTED HOUSING BY BATTERED IMMIGRANTS.

Section 214 of the Housing and Community Development Act of 1980 (42 U.S.C. 1436a) is amended—

(1) in subsection (a)—

(A) in paragraph (6), by striking ''; or'' and inserting a semicolon;

(B) by redesignating paragraph (7) as paragraph (8); and

(C) by inserting after paragraph (6) the following new paragraph:

''(7) a qualified alien described in section 431(c) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1641(c)); or''; and

(2) in subsection (c)—

(A) in paragraph (1)(A), by striking ''paragraphs (1) through (6)'' and inserting ''paragraphs (1) through (7)''; and

(B) in paragraph (2)(A), by inserting ''(other than a qualified alien described in section 431(c) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1641(c)))'' after ''any alien''.

SEC. 2554. UNITED STATES CITIZENSHIP FOR INTERNATIONALLY ADOPTED INDIVIDUALS.

(a) AUTOMATIC CITIZENSHIP.—Section 104 of the Child Citizenship Act of 2000 (Public Law 106–395; 8 U.S.C. 1431 note) is amended to read as follows:

''SEC. 104. APPLICABILITY.

''The amendments made by this title shall apply to any individual who satisfies the requirements under section 320 or 322 of the Immigration and Nationality Act, regardless of the date on which such requirements were satisfied.''.

(b) MODIFICATION OF PREADOPTION VISITATION REQUIREMENT.—Section 101(b)(1)(F)(i) (8 U.S.C. 1101(b)(1)(F)(i)), as amended by section 2312, is further amended by striking ''at least twenty-five years of age, who personally saw and observed the child prior to or during the adoption proceedings;'' and inserting ''who is at least 25 years of age, at least 1 of whom personally saw and observed the child before or during the adoption proceedings;''.

(c) AUTOMATIC CITIZENSHIP FOR CHILDREN OF UNITED STATES CITIZENS WHO ARE PHYSICALLY PRESENT IN THE UNITED STATES.—

(1) IN GENERAL.—Section 320(a)(3) (8 U.S.C. 1431(a)(3)) is amended to read as follows:

''(3) The child is physically present in the United States in the legal custody of the citizen parent pursuant to a lawful admission.''.

(2) APPLICABILITY TO INDIVIDUAL'S WHO NO LONGER HAVE LEGAL STATUS.—Notwithstanding the lack of legal status or physical presence in the United States, a person shall be deemed to meet the requirements under section 320 of the Immigration and Nationality Act, as amended by paragraph (1), if the person—

(A) was born outside of the United States;

(B) was adopted by a United States citizen before the person reached 18 years of age;

(C) was legally admitted to the United States; and

(D) would have qualified for automatic United States citizenship if the amendments made by paragraph (1) had been in effect at the time of such admission.

(d) RETROACTIVE APPLICATION.—Section 320(b) (8 U.S.C. 1431(b)) is amended by inserting '', regardless of the date on which the adoption was finalized'' before the period at the end.

(e) APPLICABILITY.—The amendments made by this section shall apply to any individual adopted by a citizen of the United States regardless of whether the adoption occurred prior to, on, or after the date of the enactment of the Child Citizenship Act of 2000.

SEC. 2555. TREATMENT OF CERTAIN PERSONS AS HAVING SATISFIED ENGLISH AND CIVICS, GOOD MORAL CHARACTER, AND HONORABLE SERVICE AND DISCHARGE REQUIREMENTS FOR NATURALIZATION.

(a) IMMIGRATION AND NATIONALITY ACT.—The Immigration and Nationality Act is amended by inserting after section 329A (8 U.S.C. 1440–1) the following new section:

''SEC. 329B. PERSONS WHO HAVE RECEIVED AN AWARD FOR ENGAGEMENT IN ACTIVE COMBAT OR ACTIVE PARTICIPATION IN COMBAT.

''(a) IN GENERAL.—

''(1) IN GENERAL.—For purposes of naturalization and continuing citizenship under the following provisions of law, a person who has received an award described in subsection (b) shall be treated—

''(A) as having satisfied the requirements in sections 312(a), 316(a)(3), and subsections (b)(3), (c), and (e) of section 328; and

''(B) except as provided in paragraph (2), under sections 328 and 329, as having served honorably in the Armed Forces for (in the case of section 328) a period or periods aggregating one year, and, if separated from such service, as having been separated under honorable conditions.

''(2) REVOCATION.—Notwithstanding paragraph (1)(B), any person who separated from the Armed Forces under other than honorable conditions may be subject to revocation of citizenship under section 328(f) or 329(c) if the other requirements of such section are met.

''(b) APPLICATION.—This section shall apply with respect to the following awards from the Armed Forces of the United States:

''(1) The Combat Infantryman Badge from the Army.

''(2) The Combat Medical Badge from the Army.

''(3) The Combat Action Badge from the Army.

''(4) The Combat Action Ribbon from the Navy, the Marine Corps, or the Coast Guard.

''(5) The Air Force Combat Action Medal.

''(6) Any other award that the Secretary of Defense determines to be an equivalent award for engagement in active combat or active participation in combat.''.

(b) CLERICAL AMENDMENT.—The table of contents of such Act (8 U.S.C. 1101 et seq.) is amended by inserting after the item relating to section 329A the following:

''Sec. 329B. Persons who have received an award for engagement in active combat or active participation in combat.''.

TITLE III—INTERIOR ENFORCEMENT

Subtitle A—Employment Verification System

SEC. 3101. UNLAWFUL EMPLOYMENT OF UNAUTHORIZED ALIENS.

(a) IN GENERAL.—Section 274A (8 U.S.C. 1324a) is amended to read as follows:

''SEC. 274A. UNLAWFUL EMPLOYMENT OF ALIENS.

''(a) MAKING EMPLOYMENT OF UNAUTHORIZED ALIENS UNLAWFUL.—

''(1) IN GENERAL.—It is unlawful for an employer—

''(A) to hire, recruit, or refer for a fee an alien for employment in the United States knowing that the alien is an unauthorized alien with respect to such employment; or

''(B) to hire, recruit, or refer for a fee for employment in the United States an individual without complying with the requirements under subsections (c) and (d).

''(2) CONTINUING EMPLOYMENT.—

''(A) PROHIBITION ON CONTINUED EMPLOYMENT OF UNAUTHORIZED ALIENS.—It is unlawful for an employer, after hiring an alien for employment, to continue to employ the alien in the United States knowing that the alien is (or has become) an unauthorized alien with respect to such employment.

''(B) PROHIBITION ON CONSIDERATION OF PREVIOUS UNAUTHORIZED STATUS.—Nothing in this section may be construed to prohibit the employment of an individual who is authorized for employment in the United States if such individual was previously an unauthorized alien.

''(3) USE OF LABOR THROUGH CONTRACT.—For purposes of this section, any employer that uses a contract, subcontract, or exchange to obtain the labor of an alien in the United States while knowing that the alien is an unauthorized alien with respect to performing such labor shall be considered to have hired the alien for employment in the United States in violation of paragraph (1)(A).

''(4) USE OF STATE EMPLOYMENT AGENCY DOCUMENTATION.—For purposes of paragraphs (1)(B), (5), and (6), an employer shall be deemed to have complied with the requirements under subsection (c) with respect to the hiring of an individual who was referred for such employment by a State employment agency (as defined by the Secretary) if the employer has and retains (for the period and in the manner described in subsection (c)(3)) appropriate documentation of such referral by such agency, certifying that such agency has complied with the procedures described in subsection (c) with respect to the individual's referral. An employer that relies on a State agency's certification of compliance with subsection (c) under this paragraph may utilize and retain the State agency's certification of compliance with the procedures described in subsection (d), if any, in the manner provided under this paragraph.

''(5) GOOD FAITH DEFENSE.—

''(A) DEFENSE.—An employer, person, or entity that hires, employs, recruits, or refers individuals for employment in the United States, or is otherwise obligated to comply with the requirements under this section and establishes good faith compliance with the requirements under paragraphs (1) through (4) of subsection (c) and subsection (d)—

''(i) has established an affirmative defense that the employer, person, or entity has not violated paragraph (1)(A) with respect to hiring and employing; and

''(ii) has established compliance with its obligations under subparagraph (A) and (B) of paragraph (1) and subsection (c) unless the Secretary demonstrates that the employer had knowledge that an individuals hired, employed, recruited, or referred by the employer, person, or entity is an unauthorized alien.

''(B) EXCEPTION FOR CERTAIN EMPLOYERS.—An employer who is not required to participate in the System or who is participating in the System on a voluntary basis pursuant to subsection (d)(2)(J) has established an affirmative defense under subparagraph (A) and need not demonstrate compliance with the requirements under subsection (d).

''(6) GOOD FAITH COMPLIANCE.—

''(A) IN GENERAL.—Except as otherwise provided in this subsection, an employer, person, or entity is considered to have complied with a requirement under this subsection notwithstanding a technical or procedural failure to meet such requirement if there was a good faith attempt to comply with the requirement.

''(B) EXCEPTION IF FAILURE TO CORRECT AFTER NOTICE.—Subparagraph (A) shall not apply if—

''(i) the failure is not de minimis;

''(ii) the Secretary of Homeland Security has explained to the employer, person, or entity the basis for the failure and why it is not de minimis;

''(iii) the employer, person, or entity has been provided a period of not less than 30 days (beginning after the date of the explanation) to correct the failure; and

''(iv) the employer, person, or entity has not corrected the failure voluntarily within such period.

''(C) EXCEPTION FOR PATTERN OR PRACTICE VIOLATORS.—Subparagraph (A) shall not apply to an employer, person, or entity that has engaged or is engaging in a pattern or practice of violations of paragraph (1)(A) or (2).

''(7) PRESUMPTION.—After the date on which an employer is required to participate in the System under subsection (d), the employer is presumed to have acted with knowledge for purposes of paragraph (1)(A) if the employer hires, employs, recruits, or refers an employee for a fee and fails to make an inquiry to verify the employment authorization status of the employee through the System.

''(8) CONTINUED APPLICATION OF WORKFORCE AND LABOR PROTECTION REMEDIES DESPITE UNAUTHORIZED EMPLOYMENT.—

''(A) IN GENERAL.—Subject only to subparagraph (B), all rights and remedies provided under any Federal, State, or local law relating to workplace rights, including but not limited to back pay, are available to an employee despite—

''(i) the employee's status as an unauthorized alien during or after the period of employment; or

''(ii) the employer's or employee's failure to comply with the requirements of this section.

''(B) REINSTATEMENT.—Reinstatement shall be available to individuals who—

''(i) are authorized to work in the United States at the time such relief is ordered or effectuated; or

''(ii) lost employment-authorized status due to the unlawful acts of the employer under this section.

''(b) DEFINITIONS.—In this section:

''(1) COMMISSIONER.—The term 'Commissioner' means the Commissioner of Social Security.

''(2) DEPARTMENT.—Except as otherwise provided, the term 'Department' means the Department of Homeland Security.

''(3) EMPLOYER.—The term 'employer' means any person or entity, including an agency or department of a Federal, State, or local government, an agent, or a System service provider acting on behalf of an employer, that hires, employs, recruits, or refers for a fee an individual for employment in the United States that is not casual, sporadic, irregular, or intermittent (as defined by the Secretary).

''(4) EMPLOYMENT AUTHORIZED STATUS.—The term 'employment authorized status' means, with respect to an individual, that the individual is authorized to be employed in the United States under the immigration laws of the United States.

''(5) SECRETARY.—Except as otherwise specifically provided, the term 'Secretary' means the Secretary of Homeland Security.

''(6) SYSTEM.—The term 'System' means the Employment Verification System established under subsection (d).

''(7) UNAUTHORIZED ALIEN.—The term 'unauthorized alien' means an alien who, with respect to employment in the United States at a particular time—

''(A) is not lawfully admitted for permanent residence; or

''(B) is not authorized to be employed under this Act or by the Secretary.

''(8) WORKPLACE RIGHTS.—The term 'workplace rights' means rights guaranteed under Federal, State, or local labor or employment laws, including laws concerning wages and hours, benefits and employment standards, labor relations, workplace health and safety, work-related injuries, nondiscrimination, and retaliation for exercising rights under such laws.

''(c) DOCUMENT VERIFICATION REQUIREMENTS.—Any employer hiring an individual for employment in the United States shall comply with the following requirements and the requirements under subsection (d) to verify that the individual has employment authorized status.

''(1) ATTESTATION AFTER EXAMINATION OF DOCUMENTATION.—

''(A) IN GENERAL.—

''(i) EXAMINATION BY EMPLOYER.—An employer shall attest, under penalty of perjury on a form prescribed by the Secretary, that the employer has verified the identity and employment authorization status of the individual—

''(I) by examining—

''(aa) a document specified in subparagraph (C); or

''(bb) a document specified in subparagraph (D) and a document specified in subparagraph (E); and

''(II) by utilizing an identity authentication mechanism described in clause (iii) or (iv) of subparagraph (F).

''(ii) PUBLICATION OF DOCUMENTS.—The Secretary shall publish a picture of each document specified in subparagraphs (C) and (E) on the U.S. Citizenship and Immigration Services website.

''(B) REQUIREMENTS.—

''(i) FORM.—The form referred to in subparagraph (A)(i)—

''(I) shall be prescribed by the Secretary not later than 6 months after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act;

''(II) shall be available as—

''(aa) a paper form;

''(bb) a form that may be completed by an employer via telephone or video conference;

''(cc) an electronic form; or

''(dd) a form that is integrated electronically with the requirements under subsection (d).

''(ii) ATTESTATION.—Each such form shall require the employer to sign an attestation with a handwritten, electronic, or digital pin code signature, according to standards prescribed by the Secretary.

''(iii) COMPLIANCE.—An employer has complied with the requirements under this paragraph with respect to examination of the documents included in subclauses (I) and (II) of subparagraph (A)(i) if—

''(I) the employer has, in good faith, followed applicable regulations and any written procedures or instructions provided by the Secretary; and

''(II) a reasonable person would conclude that the documentation is genuine and relates to the individual presenting such documentation.

''(C) DOCUMENTS ESTABLISHING IDENTITY AND EMPLOYMENT AUTHORIZED STATUS.—A document is specified in this subparagraph if the document is unexpired (unless the validity of the document is extended by law) and is 1 of the following:

''(i) A United States passport or passport card issued to an individual pursuant to the Secretary of State's authority under the Act entitled 'An Act to regulate the issue and validity of passports, and for other purposes', approved July 3, 1926 (22 U.S.C. 211a).

''(ii) A document issued to an alien evidencing that the alien is lawfully admitted for permanent residence or another document issued to an individual evidencing the individual's employment authorized status, as designated by the Secretary, if the document—

''(I) contains a photograph of the individual, or such other personal identifying information relating to the individual as the Secretary determines, by regulation, to be sufficient for the purposes of this subparagraph;

''(II) is evidence of employment authorized status; and

''(III) contains security features to make the document resistant to tampering, counterfeiting, and fraudulent use.

''(iii) An enhanced driver's license or identification card issued to a national of the United States by a State, an outlying possession of the United States, or a federally recognized Indian tribe that—

''(I) meets the requirements under section 202 of the REAL ID Act of 2005 (division B of Public Law 109–13; 49 U.S.C. 30301 note); and

''(II) the Secretary has certified by notice published in the Federal Register and through appropriate notice directly to employers registered in the System 3 months prior to publication that such enhanced license or card is suitable for use under this subparagraph based upon the accuracy and security of the issuance process, security features on the document, and such other factors as the Secretary may prescribe.

''(iv) A passport issued by the appropriate authority of a foreign country accompanied by a Form I–94 or Form I–94A (or similar successor record), or other documentation as designated by the Secretary that specifies the individual's status in the United States and the duration of such status if the proposed employment is not in conflict with any restriction or limitation specified on such form or documentation.

''(v) A passport issued by the Federated States of Micronesia or the Republic of the Marshall Islands with evidence of nonimmigrant admission to the United States under the Compact of Free Association between the United States and the Federated States of Micronesia or the Republic of the Marshall Islands.

''(D) DOCUMENTS ESTABLISHING IDENTITY OF INDIVIDUAL.—A document is specified in this subparagraph if the document is unexpired (unless the validity of the document is extended by law) and is 1 of the following:

''(i) A driver's license or identity card that is not described in subparagraph (C)(iii) and is issued to an individual by a State or an outlying possession of the United States, a federally recognized Indian tribe, or an agency (including military) of the Federal Government if the driver's license or identity card includes, at a minimum—

''(I) the individual's photograph, name, date of birth, gender, and driver's license or identification card number; and

''(II) security features to make the license or card resistant to tampering, counterfeiting, and fraudulent use.

''(ii) A voter registration card.

''(iii) A document that complies with the requirements under section 7209(b)(1) of the Intelligence Reform and Terrorism Prevention Act of 2004 (Public Law 108–458; 8 U.S.C. 1185 note).

''(iv) For individuals under 18 years of age who are unable to present a document listed in clause (i) or (ii), documentation of personal identity of such other type as the Secretary determines will provide a reliable means of identification, which may include an attestation as to the individual's identity by a parent or legal guardian under penalty of perjury.

''(E) DOCUMENTS EVIDENCING EMPLOYMENT AUTHORIZATION.—A document is specified in this subparagraph if the document is unexpired (unless the validity of the document is extended by law) and is 1 of the following:

''(i) A social security account number card issued by the Commissioner, other than a card which specifies on its face that the card is not valid to evidence employment authorized status or has other similar words of limitation.

''(ii) Any other documentation evidencing employment authorized status that the Secretary determines and publishes in the Federal Register and through appropriate notice directly to employers registered within the System to be acceptable for purposes of this subparagraph if such documentation, including any electronic security measures linked to such documentation, contains security features to make such documentation resistant to tampering, counterfeiting, and fraudulent use.

''(F) IDENTITY AUTHENTICATION MECHANISM.—

''(i) DEFINITIONS.—In this subparagraph:

''(I) COVERED IDENTITY DOCUMENT.—The term 'covered identity document' means a valid—

''(aa) United States passport, passport card, or a document evidencing lawful permanent residence status or employment authorized status issued to an alien;

''(bb) enhanced driver's license or identity card issued by a participating State or an outlying possession of the United States; or

''(cc) photograph and appropriate identifying information provided by the Secretary of State pursuant to the granting of a visa.

''(II) PARTICIPATING STATE.—The term 'participating State' means a State that has an agreement with the Secretary to provide the Secretary, for purposes of identity verification in the System, with photographs and appropriate identifying information maintained by the State.

''(ii) REQUIREMENT FOR IDENTITY AUTHENTICATION.—In addition to verifying the documents specified in subparagraph (C), (D), or (E) and utilizing the System under subsection (d), each employer shall use an identity authentication mechanism described in clause (iii) or provided in clause (iv) after it becomes available to verify the identity of each individual the employer seeks to hire.

''(iii) PHOTO TOOL.—

''(I) USE REQUIREMENT.—An employer hiring an individual who has a covered identity document shall verify the identity of such individual using the photo tool described in subclause (II).

''(II) DEVELOPMENT REQUIREMENT.—The Secretary shall develop and maintain a photo tool that enables employers to match the photo on a covered identity document provided to the employer to a photo maintained by a U.S. Citizenship and Immigration Services database.

''(iv) ADDITIONAL SECURITY MEASURES.—

''(I) USE REQUIREMENT.—An employer seeking to hire an individual whose identity may not be verified using the photo tool described in clause (iii) shall verify the identity of such individual using the additional security measures described in subclause (II).

''(II) DEVELOPMENT REQUIREMENT.—The Secretary shall develop, after publication in the Federal Register and an opportunity for public comment, specific and effective additional security measures to adequately verify the identity of an individual whose identity may not be verified using the photo tool described in clause (iii). Such additional security measures—

''(aa) shall be kept up-to-date with technological advances; and

''(bb) shall provide a means of identity authentication in a manner that provides a high level of certainty as to the identity of such individual, using immigration and identifying information that may include review of identity documents or background screening verification techniques using publicly available information.

''(G) AUTHORITY TO PROHIBIT USE OF CERTAIN DOCUMENTS.—If the Secretary determines, after publication in the Federal Register and an opportunity for public comment, that any document or class of documents specified in subparagraph (B), (C), or (D) does not reliably establish identity or that employment authorized status is being used fraudulently to an unacceptable degree, the Secretary—

''(i) may prohibit or restrict the use of such document or class of documents for purposes of this subsection; and

''(ii) shall directly notify all employers registered within the System of the prohibition through appropriate means.

''(H) AUTHORITY TO ALLOW USE OF CERTAIN DOCUMENTS.—If the Secretary has determined that another document or class of documents, such as a document issued by a federally recognized Indian tribe, may be used to reliably establish identity or employment authorized status, the Secretary—

''(i) may allow the use of that document or class of documents for purposes of this subsection after publication in the Federal Register and an opportunity for public comment;

''(ii) shall publish a description of any such document or class of documents on the U.S. Citizenship and Immigration Services website; and

''(iii) shall directly notify all employers registered within the System of the addition through appropriate means.

''(2) INDIVIDUAL ATTESTATION OF EMPLOYMENT AUTHORIZATION.—An individual, upon commencing employment with an employer, shall—

''(A) attest, under penalty of perjury, on the form prescribed by the Secretary, that the individual is—

''(i) a citizen of the United States;

''(ii) an alien lawfully admitted for permanent residence;

''(iii) an alien who has employment authorized status; or

''(iv) otherwise authorized by the Secretary to be hired for such employment;

''(B) provide such attestation by a handwritten, electronic, or digital pin code signature; and

''(C) provide the individual's social security account number to the Secretary, unless the individual has not yet been issued such a number, on such form as the Secretary may require.

''(3) RETENTION OF VERIFICATION RECORD.—

''(A) IN GENERAL.—After completing a form for an individual in accordance with paragraphs (1) and (2), the employer shall retain a version of such completed form and make such form available for inspection by the Secretary or the Office of Special Counsel for Immigration-Related Unfair Employment Practices of the Department of Justice during the period beginning on the hiring date of the individual and ending on the later of—

''(i) the date that is 3 years after such hiring date; or

''(ii) the date that is 1 year after the date on which the individual's employment with the employer is terminated.

''(B) REQUIREMENT FOR ELECTRONIC RETENTION.—The Secretary—

''(i) shall permit an employer to retain the form described in subparagraph (A) in electronic form; and

''(ii) shall permit an employer to retain such form in paper, microfiche, microfilm, portable document format, or other media.

''(4) COPYING OF DOCUMENTATION AND RECORDKEEPING.—The Secretary may promulgate regulations regarding—

''(A) copying documents and related information pertaining to employment verification presented by an individual under this subsection; and

''(B) retaining such information during a period not to exceed the required retention period set forth in paragraph (3).

''(5) PENALTIES.—An employer that fails to comply with any requirement under this subsection may be penalized under subsection (e)(4)(B).

''(6) PROTECTION OF CIVIL RIGHTS.—

''(A) IN GENERAL.—Nothing in this section may be construed to diminish any rights otherwise protected by Federal law.

''(B) PROHIBITION ON DISCRIMINATION.—An employer shall use the procedures for document verification set forth in this paragraph for all employees without regard to race, color, religion, sex, national origin, or, unless specifically permitted in this section, to citizenship status.

''(7) RECEIPTS.—The Secretary may authorize the use of receipts for replacement documents, and temporary evidence of employment authorization by an individual to meet a documentation requirement under this subsection on a temporary basis not to exceed 1 year, after which time the individual shall provide documentation sufficient to satisfy the documentation requirements under this subsection.

''(8) NO AUTHORIZATION OF NATIONAL IDENTIFICATION CARDS.—Nothing in this section may be construed to directly or indirectly authorize the issuance, use, or establishment of a national identification card.

''(d) EMPLOYMENT VERIFICATION SYSTEM.—

''(1) IN GENERAL.—

''(A) ESTABLISHMENT.—The Secretary, in consultation with the Commissioner, shall establish the Employment Verification System.

''(B) MONITORING.—The Secretary shall create the necessary processes to monitor—

''(i) the functioning of the System, including the volume of the workflow, the speed of processing of queries, the speed and accuracy of responses;

''(ii) the misuse of the System, including the prevention of fraud or identity theft;

''(iii) whether the use of the System results in wrongful adverse actions or discrimination based upon a prohibited factor against citizens or nationals of the United States or individuals who have employment authorized status; and

''(iv) the security, integrity, and privacy of the System.

''(C) PROCEDURES.—The Secretary—

''(i) shall create processes to provide an individual with direct access to the individual's case history in the System, including—

''(I) the identities of all persons or entities that have queried the individual through the System;

''(II) the date of each such query; and

''(III) the System response for each such query; and

''(ii) in consultation with the Commissioner, shall develop—

''(I) protocols to notify an individual, in a timely manner through the use of electronic correspondence or mail, that a query for the individual has been processed through the System; or

''(II) a process for the individual to submit additional queries to the System or notify the Secretary of potential identity fraud.

''(2) PARTICIPATION REQUIREMENTS.—

''(A) FEDERAL GOVERNMENT.—Except as provided in subparagraph (B), all agencies and departments in the executive, legislative, or judicial branches of the Federal Government shall participate in the System beginning on the earlier of—

''(i) the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, to the extent required under section 402(e)(1) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (division C of Public Law 104–208; 8 U.S.C. 1324a) and as already implemented by each agency or department; or

''(ii) the date that is 90 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(B) FEDERAL CONTRACTORS.—Federal contractors shall participate in the System as provided in the final rule relating to employment eligibility verification published in the Federal Register on November 14, 2008 (73 Fed. Reg. 67,651), or any similar subsequent regulation, for which purpose references to E-Verify in the final rule shall be construed to apply to the System.

''(C) CRITICAL INFRASTRUCTURE.—

''(i) IN GENERAL.—Beginning on the date that is 1 year after the date on which regulations are published implementing this subsection, the Secretary may authorize or direct any employer, person, or entity responsible for granting access to, protecting, securing, operating, administering, or regulating part of the critical infrastructure (as defined in section 1016(e) of the Critical Infrastructure Protection Act of 2001 (42 U.S.C. 5195c(e))) to participate in the System to the extent the Secretary determines that such participation will assist in the protection of the critical infrastructure.

''(ii) NOTIFICATION TO EMPLOYERS.—The Secretary shall notify an employer required to participate in the System under this subparagraph not later than 90 days before the date on which the employer is required to participate.

''(D) EMPLOYERS WITH MORE THAN 5,000 EMPLOYEES.—Not later than 2 years after regulations are published implementing this subsection, all employers with more than 5,000 employees shall participate in the System with respect to all newly hired employees and employees with expiring temporary employment authorization documents.

''(E) EMPLOYERS WITH MORE THAN 500 EMPLOYEES.—Not later than 3 years after regulations are published implementing this subsection, all employers with more than 500 employees shall participate in the System with respect to all newly hired employees and employees with expiring temporary employment authorization documents.

''(F) AGRICULTURAL EMPLOYMENT.—Not later than 4 years after regulations are published implementing this subsection, employers of employees performing agricultural employment (as defined in section 218A of this Act and section 2202 of the Border Security, Economic Opportunity, and Immigration Modernization Act) shall participate in the System with respect to all newly hired employees and employees with expiring temporary employment authorization documents. An agricultural employee shall not be counted for purposes of subparagraph (D) or (E).

''(G) ALL EMPLOYERS.—Except as provided in subparagraph (H), not later than 4 years after regulations are published implementing this subsection, all employers shall participate in the System with respect to all newly hired employees and employees with expiring temporary employment authorization documents.

''(H) TRIBAL GOVERNMENT EMPLOYERS.—

''(i) RULEMAKING.—In developing regulations to implement this subsection, the Secretary shall—

''(I) consider the effects of this section on federally recognized Indian tribes and tribal members; and

''(II) consult with the governments of federally recognized Indian tribes.

''(ii) REQUIRED PARTICIPATION.—Not later than 5 years after regulations are published implementing this subsection, all employers owned by, or entities of, the government of a federally recognized Indian tribe shall participate in the System with respect to all newly hired employees and employees with expiring temporary employment authorization documents.

''(I) IMMIGRATION LAW VIOLATORS.—

''(i) ORDERS FINDING VIOLATIONS.—An order finding any employer to have violated this section or section 274C may, in the Secretary's discretion, require the employer to participate in the System with respect to newly hired employees and employees with expiring temporary employment authorization documents, if such employer is not otherwise required to participate in the System under this section. The Secretary shall monitor such employer's compliance with System procedures.

''(ii) PATTERN OR PRACTICE OF VIOLATIONS.—The Secretary may require an employer that is required to participate in the System with respect to newly hired employees to participate in the System with respect to the employer's current employees if the employer is determined by the Secretary or other appropriate authority to have engaged in a pattern or practice of violations of the immigration laws of the United States.

''(J) VOLUNTARY PARTICIPATION.—The Secretary may permit any employer that is not required to participate in the System under this section to do so on a voluntary basis.

''(3) CONSEQUENCE OF FAILURE TO PARTICIPATE.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the failure, other than a de minimis or inadvertent failure, of an employer that is required to participate in the System to comply with the requirements of the System with respect to an individual—

''(i) shall be treated as a violation of subsection (a)(1)(B) with respect to that individual; and

''(ii) creates a rebuttable presumption that the employer has violated paragraph (1)(A) or (2) of subsection (a).

''(B) EXCEPTION.—

''(i) IN GENERAL.—Subparagraph (A) shall not apply in a criminal prosecution.

''(ii) USE AS EVIDENCE.—Nothing in this paragraph may be construed to limit the use in the prosecution of a Federal crime, in a manner otherwise consistent with Federal criminal law and procedure, of evidence relating to the employer's failure to comply with requirements of the System.

''(4) PROCEDURES FOR PARTICIPANTS IN THE SYSTEM.—

''(A) IN GENERAL.—An employer participating in the System shall register such participation with the Secretary and, when hiring any individual for employment in the United States, shall comply with the following:

''(i) REGISTRATION OF EMPLOYERS.—The Secretary, through notice in the Federal Register, shall prescribe procedures that employers shall be required to follow to register with the System.

''(ii) UPDATING INFORMATION.—The employer is responsible for providing notice of any change to the information required under subclauses (I), (II), and (III) of clause (v) before conducting any further inquiries within the System, or on such other schedule as the Secretary may prescribe.

''(iii) TRAINING.—The Secretary shall require employers to undergo such training as the Secretary determines to be necessary to ensure proper use, protection of civil rights and civil liberties, privacy, integrity, and security of the System. To the extent practicable, such training shall be made available electronically on the U.S. Citizenship and Immigration Services website.

''(iv) NOTIFICATION TO EMPLOYEES.—The employer shall inform individuals hired for employment that the System—

''(I) will be used by the employer;

''(II) may be used for immigration enforcement purposes; and

''(III) may not be used to discriminate or to take adverse action against a national of the United States or an alien who has employment authorized status.

''(v) PROVISION OF ADDITIONAL INFORMATION.—The employer shall obtain from the individual (and the individual shall provide) and shall record in such manner as the Secretary may specify—

''(I) the individual's social security account number;

''(II) if the individual does not attest to United States citizenship or status as a national of the United States under subsection (c)(2), such identification or authorization number established by the Department as the Secretary shall specify; and

''(III) such other information as the Secretary may require to determine the identity and employment authorization of an individual.

''(vi) PRESENTATION OF DOCUMENTATION.—The employer, and the individual whose identity and employment authorized status are being confirmed, shall fulfill the requirements under subsection (c).

''(B) SEEKING CONFIRMATION.—

''(i) IN GENERAL.—An employer shall use the System to confirm the identity and employment authorized status of any individual during—

''(I) the period beginning on the date on which the individual accepts an offer of employment and ending 3 business days after the date on which employment begins; or

''(II) such other reasonable period as the Secretary may prescribe.

''(ii) LIMITATION.—An employer may not make the starting date of an individual's employment or training or any other term and condition of employment dependent on the receipt of a confirmation of identity and employment authorized status by the System.

''(iii) REVERIFICATION.—If an individual has a limited period of employment authorized status, the individual's employer shall reverify such status through the System not later than 3 business days after the last day of such period.

''(iv) OTHER EMPLOYMENT.—For employers directed by the Secretary to participate in the System under paragraph (2)(C)(i) to protect critical infrastructure or otherwise specified circumstances in this section to verify their entire workforce, the System may be used for initial verification of an individual who was hired before the employer became subject to the System, and the employer shall initiate all required procedures on or before such date as the Secretary shall specify.

''(v) NOTIFICATION.—

''(I) IN GENERAL.—The Secretary shall provide, and the employer shall utilize, as part of the System, a method of notifying employers of a confirmation or nonconfirmation of an individual's identity and employment authorized status, or a notice that further action is required to verify such identity or employment eligibility (referred to in this subsection as a 'further action notice').

''(II) PROCEDURES.—The Secretary shall—

''(aa) directly notify the individual and the employer, by means of electronic correspondence, mail, text message, telephone, or other direct communication, of a nonconfirmation or further action notice;

''(bb) provide information about filing an administrative appeal under paragraph (6) and a filing for review before an administrative law judge under paragraph (7); and

''(cc) establish procedures to directly notify the individual and the employer of a confirmation.

''(III) IMPLEMENTATION.—The Secretary may provide for a phased-in implementation of the notification requirements under this clause, as appropriate. The notification system shall cover all inquiries not later than 1 year from the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(C) CONFIRMATION OR NONCONFIRMATION.—

''(i) INITIAL RESPONSE.—

''(I) IN GENERAL.—Except as provided in subclause (II), the System shall provide—

''(aa) a confirmation of an individual's identity and employment authorized status or a further action notice at the time of the inquiry; and

''(bb) an appropriate code indicating such confirmation or such further action notice.

''(II) ALTERNATIVE DEADLINE.—If the System is unable to provide immediate confirmation or further action notice for technological reasons or due to unforeseen circumstances, the System shall provide a confirmation or further action notice not later than 3 business days after the initial inquiry.

''(ii) CONFIRMATION UPON INITIAL INQUIRY.—If the employer receives an appropriate confirmation of an individual's identity and employment authorized status under the System, the employer shall record the confirmation in such manner as the Secretary may specify.

''(iii) FURTHER ACTION NOTICE AND LATER CONFIRMATION OR NONCONFIRMATION.—

''(I) NOTIFICATION AND ACKNOWLEDGMENT THAT FURTHER ACTION IS REQUIRED.—Not later than 3 business days after an employer receives a further action notice of an individual's identity or employment eligibility under the System, or during such other reasonable time as the Secretary may prescribe, the employer shall notify the individual for whom the confirmation is sought of the further action notice and any procedures specified by the Secretary for addressing such notice. The further action notice shall be given to the individual in writing and the employer shall acknowledge in the System under penalty of perjury that it provided the employee with the further action notice. The individual shall affirmatively acknowledge in writing, or in such other manner as the Secretary may specify, the receipt of the further action notice from the employer. If the individual refuses to acknowledge the receipt of the further action notice, or acknowledges in writing that the individual will not contest the further action notice under subclause (II), the employer shall notify the Secretary in such manner as the Secretary may specify.

''(II) CONTEST.—Not later than 10 business days after receiving notification of a further action notice under subclause (I), the individual shall contact the appropriate Federal agency and, if the Secretary so requires, appear in person for purposes of verifying the individual's identity and employment eligibility. The Secretary, in consultation with the Commissioner and other appropriate Federal agencies, shall specify an available secondary verification procedure to confirm the validity of information provided and to provide a confirmation or nonconfirmation. Any procedures for reexamination shall not limit in any way an employee's right to appeal a nonconfirmation.

''(III) NO CONTEST.—If the individual refuses to acknowledge receipt of the further action notice, acknowledges that the individual will not contest the further action notice as provided in subclause (I), or does not contact the appropriate Federal agency within the period specified in subclause (II), following expiration of the period specified in subclause (II), a nonconfirmation shall be issued. The employer shall record the nonconfirmation in such manner as the Secretary may specify and terminate the individual's employment. An individual's failure to contest a further action notice shall not be considered an admission of guilt with respect to any violation of this section or any provision of law.

''(IV) CONFIRMATION OR NONCONFIRMATION.—Unless the period is extended in accordance with this subclause, the System shall provide a confirmation or nonconfirmation not later than 10 business days after the date on which the individual contests the further action notice under subclause (II). If the Secretary determines that good cause exists, after taking into account adverse impacts to the employer, and including time to permit the individual to obtain and provide needed evidence of identity or employment eligibility, the Secretary shall extend the period for providing confirmation or nonconfirmation for stated periods beyond 10 business days. When confirmation or nonconfirmation is provided, the confirmation system shall provide an appropriate code indicating such confirmation or nonconfirmation.

''(V) REEXAMINATION.—Nothing in this section shall prevent the Secretary from establishing procedures to reexamine a case where a confirmation or nonconfirmation has been provided if subsequently received information indicates that the confirmation or nonconfirmation may not have been correct. Any procedures for reexamination shall not limit in any way an employee's right to appeal a nonconfirmation.

''(VI) EMPLOYEE PROTECTIONS.—An employer may not terminate employment or take any other adverse action against an individual solely because of a failure of the individual to have identity and employment eligibility confirmed under this subsection until—

''(aa) a nonconfirmation has been issued;

''(bb) if the further action notice was contested, the period to timely file an administrative appeal has expired without an appeal or the contestation to the further action notice is withdrawn; or

''(cc) if an appeal before an administrative law judge under paragraph (7) has been filed,

the nonconfirmation has been upheld or the appeal has been withdrawn or dismissed.

''(iv) NOTICE OF NONCONFIRMATION.—Not later than 3 business days after an employer receives a nonconfirmation, or during such other reasonable time as the Secretary may provide, the employer shall notify the individual who is the subject of the nonconfirmation, and provide information about filing an administrative appeal pursuant to paragraph (6) and a request for a hearing before an administrative law judge pursuant to paragraph (7). The nonconfirmation notice shall be given to the individual in writing and the employer shall acknowledge in the System under penalty of perjury that it provided the notice (or adequately attempted to provide notice, but was unable to do so despite reasonable efforts). The individual shall affirmatively acknowledge in writing, or in such other manner as the Secretary may prescribe, the receipt of the nonconfirmation notice from the employer. If the individual refuses or fails to acknowledge the receipt of the nonconfirmation notice, the employer shall notify the Secretary in such manner as the Secretary may prescribe.

''(D) CONSEQUENCES OF NONCONFIRMATION.—

''(i) TERMINATION OF CONTINUED EMPLOYMENT.—Except as provided in clause (iii), an employer that has received a nonconfirmation regarding an individual and has made reasonable efforts to notify the individual in accordance with subparagraph (C)(iv) shall terminate the employment of the individual upon the expiration of the time period specified in paragraph (7).

''(ii) CONTINUED EMPLOYMENT AFTER NONCONFIRMATION.—If the employer continues to employ an individual after receiving nonconfirmation and exhaustion of all appeals or expiration of all rights to appeal if not appealed, in violation of clause (i), a rebuttable presumption is created that the employer has violated paragraphs (1)(A) and (2) of subsection (a). Such presumption shall not apply in any prosecution under subsection (k)(1).

''(iii) EFFECT OF ADMINISTRATIVE APPEAL OR REVIEW BY ADMINISTRATIVE LAW JUDGE.—If an individual files an administrative appeal of the nonconfirmation within the time period specified in paragraph (6)(A), or files for review with an administrative law judge specified in paragraph (7)(A), the employer shall not terminate the individual's employment under this subparagraph prior to the resolution of the administrative appeal unless the Secretary or Commissioner terminates the stay under paragraph (6)(B) or (7)(B).

''(iv) WEEKLY REPORT.—The Director of U.S. Citizenship and Immigration Services shall submit a weekly report to the Assistant Secretary for Immigration and Customs Enforcement that includes, for each individual who receives final nonconfirmation through the System—

''(I) the name of such individual;

''(II) his or her social security number or alien file number;

''(III) the name and contact information for his or her current employer; and

''(IV) any other critical information that the Assistant Secretary determines to be appropriate.

''(E) OBLIGATION TO RESPOND TO QUERIES AND ADDITIONAL INFORMATION.—

''(i) IN GENERAL.—Employers shall comply with requests for information from the Secretary and the Special Counsel for Immigration-Related Unfair Employment Practices of the Department of Justice, including queries concerning current and former employees, within the time frame during which records are required to be maintained under this section regarding such former employees, if such information relates to the functioning of the System, the accuracy of the responses provided by the System, or any suspected misuse, discrimination, fraud, or identity theft in the use of the System. Failure to comply with a request under this clause constitutes a violation of subsection (a)(1)(B).

''(ii) ACTION BY INDIVIDUALS.—

''(I) IN GENERAL.—Individuals being verified through the System may be required to take further action to address questions identified by the Secretary or the Commissioner regarding the documents relied upon for purposes of subsection (c).

''(II) NOTIFICATION.—Not later than 3 business days after the receipt of such questions regarding an individual, or during such other reasonable time as the Secretary may prescribe, the employer shall—

''(aa) notify the individual of any such requirement for further actions; and

''(bb) record the date and manner of such notification.

''(III) ACKNOWLEDGMENT.—The individual shall acknowledge the notification received from the employer under subclause (II) in writing, or in such other manner as the Secretary may prescribe.

''(iii) RULEMAKING.—

''(I) IN GENERAL.—The Secretary, in consultation with the Commissioner and the Attorney General, is authorized to issue regulations implementing, clarifying, and supplementing the requirements under this subparagraph—

''(aa) to facilitate the functioning, accuracy, and fairness of the System;

''(bb) to prevent misuse, discrimination, fraud, or identity theft in the use of the System; or

''(cc) to protect and maintain the confidentiality of information that could be used to locate or otherwise place at risk of harm victims of domestic violence, dating violence, sexual assault, stalking, and human trafficking, and of the applicant or beneficiary of any petition described in section 384(a)(2) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1367(a)(2)).

''(II) NOTICE.—The regulations issued under subclause (I) shall be—

''(aa) published in the Federal Register; and

''(bb) provided directly to all employers registered in the System.

''(F) DESIGNATED AGENTS.—The Secretary shall establish a process—

''(i) for certifying, on an annual basis or at such times as the Secretary may prescribe, designated agents and other System service providers seeking access to the System to perform verification queries on behalf of employers, based upon training, usage, privacy, and security standards prescribed by the Secretary;

''(ii) for ensuring that designated agents and other System service providers are subject to monitoring to the same extent as direct access users; and

''(iii) for establishing standards for certification of electronic I–9 programs.

''(G) REQUIREMENT TO PROVIDE INFORMATION.—

''(i) IN GENERAL.—No later than 3 months after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary, in consultation with the Secretary of Labor, the Secretary of Agriculture, the Commissioner, the Attorney General, the Equal Employment Opportunity Commission, and the Administrator of the Small Business Administration, shall commence a campaign to disseminate information respecting the procedures, rights, and remedies prescribed under this section.

''(ii) CAMPAIGN REQUIREMENTS.—The campaign authorized under clause (i)—

''(I) shall be aimed at increasing the knowledge of employers, employees, and the general public concerning employer and employee rights, responsibilities, and remedies under this section; and

''(II) shall be coordinated with the public education campaign conducted by U.S. Citizenship and Immigration Services.

''(iii) ASSESSMENT.—The Secretary shall assess the success of the campaign in achieving the goals of the campaign.

''(iv) AUTHORITY TO CONTRACT.—In order to carry out and assess the campaign under this subparagraph, the Secretary may, to the extent deemed appropriate and subject to the availability of appropriations, contract with public and private organizations for outreach and assessment activities under the campaign.

''(v) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this paragraph $40,000,000 for each of the fiscal years 2014 through 2016.

''(H) AUTHORITY TO MODIFY INFORMATION REQUIREMENTS.—Based on a regular review of the System and the document verification procedures to identify misuse or fraudulent use and to assess the security of the documents and processes used to establish identity or employment authorized status, the Secretary, in consultation with the Commissioner, after publication of notice in the Federal Register and an opportunity for public comment, may modify, if the Secretary determines that the modification is necessary to ensure that the System accurately and reliably determines the identity and employment authorized status of employees and maintain existing protections against misuse, discrimination, fraud, and identity theft—

''(i) the information that shall be presented to the employer by an individual;

''(ii) the information that shall be provided to the System by the employer; and

''(iii) the procedures that shall be followed by employers with respect to the process of verifying an individual through the System.

''(I) SELF-VERIFICATION.—Subject to appropriate safeguards to prevent misuse of the system, the Secretary, in consultation with the Commissioner, shall establish a secure self-verification procedure to permit an individual who seeks to verify the individual's own employment eligibility to contact the appropriate agency and, in a timely manner, correct or update the information contained in the System.

''(5) PROTECTION FROM LIABILITY FOR ACTIONS TAKEN ON THE BASIS OF INFORMATION PROVIDED BY THE SYSTEM.—An employer shall not be liable to a job applicant, an employee, the Federal Government, or a State or local government, under Federal, State, or local criminal or civil law for any employment-related action taken with respect to a job applicant or employee in good faith reliance on information provided by the System.

''(6) ADMINISTRATIVE APPEAL.—

''(A) IN GENERAL.—An individual who is notified of a nonconfirmation may, not later than 10 business days after the date that such notice is received, file an administrative appeal of such nonconfirmation with the Commissioner if the notice is based on records maintained by the Commissioner, or in any other case, with the Secretary. An individual who did not timely contest a further action notice timely received by that individual for which the individual acknowledged receipt may not be granted a review under this paragraph.

''(B) ADMINISTRATIVE STAY OF NONCONFIRMATION.—The nonconfirmation shall be automatically stayed upon the timely filing of an administrative appeal, unless the nonconfirmation resulted after the individual acknowledged receipt of the further action

notice but failed to contact the appropriate agency within the time provided. The stay shall remain in effect until the resolution of the appeal, unless the Secretary or the Commissioner terminates the stay based on a determination that the administrative appeal is frivolous or filed for purposes of delay.

''(C) REVIEW FOR ERROR.—The Secretary and the Commissioner shall develop procedures for resolving administrative appeals regarding nonconfirmations based upon the information that the individual has provided, including any additional evidence or argument that was not previously considered. Any such additional evidence or argument shall be filed within 10 business days of the date the appeal was originally filed. Appeals shall be resolved within 20 business days after the individual has submitted all evidence and arguments the individual wishes to submit, or has stated in writing that there is no additional evidence that the individual wishes to submit. The Secretary and the Commissioner may, on a case by case basis for good cause, extend the filing and submission period in order to ensure accurate resolution of an appeal before the Secretary or the Commissioner.

''(D) PREPONDERANCE OF EVIDENCE.—Administrative appeal under this paragraph shall be limited to whether a nonconfirmation notice is supported by a preponderance of the evidence.

''(E) DAMAGES, FEES, AND COSTS.—No money damages, fees or costs may be awarded in the administrative appeal process under this paragraph.

''(7) REVIEW BY ADMINISTRATIVE LAW JUDGE.—

''(A) IN GENERAL.—Not later than 30 days after the date an individual receives a final determination on an administrative appeal under paragraph (6), the individual may obtain review of such determination by filing a complaint with a Department of Justice administrative law judge in accordance with this paragraph.

''(B) STAY OF NONCONFIRMATION.—The nonconfirmation related to such final determination shall be automatically stayed upon the timely filing of a complaint under this paragraph, and the stay shall remain in effect until the resolution of the complaint, unless the administrative law judge determines that the action is frivolous or filed for purposes of delay.

''(C) SERVICE.—The respondent to complaint filed under this paragraph is either the Secretary or the Commissioner, but not both, depending upon who issued the administrative order under paragraph (6). In addition to serving the respondent, the plaintiff shall serve the Attorney General.

''(D) AUTHORITY OF ADMINISTRATIVE LAW JUDGE.—

''(i) RULES OF PRACTICE.—The Secretary shall promulgate regulations regarding the rules of practice in appeals brought pursuant to this subsection.

''(ii) AUTHORITY OF ADMINISTRATIVE LAW JUDGE.—The administrative law judge shall have power to—

''(I) terminate a stay of a nonconfirmation under subparagraph (B) if the administrative law judge determines that the action is frivolous or filed for purposes of delay;

''(II) adduce evidence at a hearing;

''(III) compel by subpoena the attendance of witnesses and the production of evidence at any designated place or hearing;

''(IV) resolve claims of identity theft; and

''(V) enter, upon the pleadings and any evidence adduced at a hearing, a decision affirming or reversing the result of the agency, with or without remanding the cause for a rehearing.

''(iii) SUBPOENA.—In case of contumacy or refusal to obey a subpoena lawfully issued under this section and upon application of the administrative law judge, an appropriate district court of the United States may issue an order requiring compliance with such subpoena and any failure to obey such order may be punished by such court as a contempt of such court.

''(iv) TRAINING.—An administrative law judge hearing cases shall have special training respecting employment authorized status verification.

''(E) ORDER BY ADMINISTRATIVE LAW JUDGE.—

''(i) IN GENERAL.—The administrative law judge shall issue and cause to be served to the parties in the proceeding an order which may be appealed as provided in subparagraph (G).

''(ii) CONTENTS OF ORDER.—Such an order shall uphold or reverse the final determination on the request for reconsideration and order lost wages and other appropriate remedies as provided in subparagraph (F).

''(F) COMPENSATION FOR ERROR.—

''(i) IN GENERAL.—In cases in which the administrative law judge reverses the final determination of the Secretary or the Commissioner made under paragraph (6), and the administrative law judge finds that—

''(I) the nonconfirmation was due to gross negligence or intentional misconduct of the employer, the administrative law judge may order the employer to pay the individual lost wages, and reasonable costs and attorneys' fees incurred during administrative and judicial review; or

''(II) such final determination was erroneous by reason of the negligence of the Secretary or the Commissioner, the administrative law judge may order the Secretary or the Commissioner to pay the individual lost wages, and reasonable costs and attorneys' fees incurred during the administrative appeal and the administrative law judge review.

''(ii) CALCULATION OF LOST WAGES.—Lost wages shall be calculated based on the wage rate and work schedule that prevailed prior to termination. The individual shall be compensated for wages lost beginning on the first scheduled work day after employment was terminated and ending 120 days after completion of the administrative law judge's review described in this paragraph or the day after the individual is reinstated or obtains employment elsewhere, whichever occurs first. If the individual obtains employment elsewhere at a lower wage rate, the individual shall be compensated for the difference in wages for the period ending 120 days after completion of the administrative law judge review process. No lost wages shall be awarded for any period of time during which the individual was not in employment authorized status.

''(iii) PAYMENT OF COMPENSATION.—Notwithstanding any other law, payment of compensation for lost wages, costs, and attorneys' fees under this paragraph, or compromise settlements of the same, shall be made as provided by section 1304 of title 31, United States Code. Appropriations made available to the Secretary or the Commissioner, accounts provided for under section 286, and funds from the Federal Old-Age and Survivors Insurance Trust Fund or the Federal Disability Insurance Trust Fund shall not be available to pay such compensation.

''(G) APPEAL.—No later than 45 days after the entry of such final order, any person adversely affected by such final order may seek review of such order in the United States Court of Appeals for the circuit in which the violation is alleged to have occurred or in which the employer resides or transacts business.

''(8) MANAGEMENT OF THE SYSTEM.—

''(A) IN GENERAL.—The Secretary is authorized to establish, manage, and modify the System, which shall—

''(i) respond to inquiries made by participating employers at any time through the internet, or such other means as the Secretary may designate, concerning an individual's identity and whether the individual is in employment authorized status;

''(ii) maintain records of the inquiries that were made, of confirmations provided (or not provided), and of the codes provided to employers as evidence of their compliance with their obligations under the System; and

''(iii) provide information to, and require action by, employers and individuals using the System.

''(B) DESIGN AND OPERATION OF SYSTEM.—The System shall be designed and operated—

''(i) to maximize its reliability and ease of use by employers consistent with protecting the privacy and security of the underlying information, and ensuring full notice of such use to employees;

''(ii) to maximize its ease of use by employees, including direct notification of its use, of results, and ability to challenge results;

''(iii) to respond accurately to all inquiries made by employers on whether individuals are authorized to be employed and to register any times when the system is unable to receive inquiries;

''(iv) to maintain appropriate administrative, technical, and physical safeguards to prevent unauthorized disclosure of personal information, misuse by employers and employees, and discrimination;

''(v) to require regularly scheduled refresher training of all users of the System to ensure compliance with all procedures;

''(vi) to allow for auditing of the use of the System to detect misuse, discrimination, fraud, and identity theft, to protect privacy and assess System accuracy, and to preserve the integrity and security of the information in all of the System, including—

''(I) to develop and use tools and processes to detect or prevent fraud and identity theft, such as multiple uses of the same identifying information or documents to fraudulently gain employment;

''(II) to develop and use tools and processes to detect and prevent misuse of the system by employers and employees;

''(III) to develop tools and processes to detect anomalies in the use of the system that may indicate potential fraud or misuse of the system;

''(IV) to audit documents and information submitted by employees to employers, including authority to conduct interviews with employers and employees, and obtain information concerning employment from the employer;

''(vii) to confirm identity and employment authorization through verification and comparison of records as determined necessary by the Secretary;

''(viii) to confirm electronically the issuance of the employment authorization or identity document and—

''(I) if such photograph is available, to display the digital photograph that the issuer placed on the document so that the employer can compare the photograph displayed to the photograph on the document presented by the employee; or

''(II) if a photograph is not available from the issuer, to confirm the authenticity of the document using such alternative procedures as the Secretary may specify; and

''(ix) to provide appropriate notification directly to employers registered with the System of all changes made by the Secretary or the Commissioner related to allowed and prohibited documents, and use of the System.

''(C) SAFEGUARDS TO THE SYSTEM.—

''(i) REQUIREMENT TO DEVELOP.—The Secretary, in consultation with the Commissioner and other appropriate Federal and State agencies, shall develop policies and procedures to ensure protection of the privacy and security of personally identifiable information and identifiers contained in the records accessed or maintained by the System. The Secretary, in consultation with the Commissioner and other appropriate Federal and State agencies, shall develop and deploy appropriate privacy and security training for the Federal and State employees accessing the records under the System.

''(ii) PRIVACY AUDITS.—The Secretary, acting through the Chief Privacy Officer of the Department, shall conduct regular privacy audits of the policies and procedures established under clause (i), including any collection, use, dissemination, and maintenance of personally identifiable information and any associated information technology systems, as well as scope of requests for this information. The Chief Privacy Officer shall review the results of the audits and recommend to the Secretary any changes necessary to improve the privacy protections of the program.

''(iii) ACCURACY AUDITS.—

''(I) IN GENERAL.—Not later than November 30 of each year, the Inspector General of the Department of Homeland Security shall submit a report to the Secretary, with a copy to the President of the Senate and the Speaker of the House of Representatives, that sets forth the error rate of the System for the previous fiscal year and the assessments required to be submitted by the Secretary under subparagraphs (A) and (B) of paragraph (10). The report shall describe in detail the methodology employed for purposes of the report, and shall make recommendations for how error rates may be reduced.

''(II) ERROR RATE DEFINED.—In this clause, the term 'error rate' means the percentage determined by dividing—

''(aa) the number of employment authorized individuals who received further action notices, contested such notices, and were subsequently found to be employment authorized; by

''(bb) the number of System inquiries submitted for employment authorized individuals.

''(III) REDUCTION OF PENALTIES FOR RECORDKEEPING OR VERIFICATION PRACTICES FOLLOWING PERSISTENT SYSTEM INACCURACIES.—Notwithstanding subsection (e)(4)(C)(i), in any calendar year following a report by the Inspector General under subclause (I) that the System had an error rate higher than 0.3 percent for the previous fiscal year, the civil penalty assessable by the Secretary or an administrative law judge under that subsection for each first-time violation by an employer who has not previously been penalized under this section may not exceed $1,000.

''(iv) RECORDS SECURITY PROGRAM.—Any person, including a private third party vendor, who retains document verification or System data pursuant to this section shall implement an effective records security program that—

''(I) ensures that only authorized personnel have access to document verification or System data; and

''(II) ensures that whenever such data is created, completed, updated, modified, altered, or corrected in electronic format, a secure and permanent record is created that establishes the date of access, the identity of the individual who accessed the electronic record, and the particular action taken.

''(v) RECORDS SECURITY PROGRAM.—In addition to the security measures described in clause (iv), a private third party vendor who retains document verification or System data pursuant to this section shall implement an effective records security program that—

''(I) provides for backup and recovery of any records maintained in electronic format to protect against information loss, such as power interruptions; and

''(II) ensures that employees are trained to minimize the risk of unauthorized or accidental alteration or erasure of such data in electronic format.

''(vi) AUTHORIZED PERSONNEL DEFINED.—In this subparagraph, the term 'authorized personnel' means anyone registered as a System user, or anyone with partial or full responsibility for completion of employment authorization verification or retention of data in connection with employment authorization verification on behalf of an employer.

''(D) AVAILABLE FACILITIES AND ALTERNATIVE ACCOMMODATIONS.—The Secretary shall make appropriate arrangements and develop standards to allow employers or employees, including remote hires, who are otherwise unable to access the System to use electronic and telephonic formats (including video conferencing, scanning technology, and other available technologies), Federal Government facilities, public facilities, or other available locations in order to utilize the System.

''(E) RESPONSIBILITIES OF THE SECRETARY.—

''(i) IN GENERAL.—As part of the System, the Secretary shall maintain a reliable, secure method, which, operating through the System and within the time periods specified, compares the name, alien identification or authorization number, or other information as determined relevant by the Secretary, provided in an inquiry against such information maintained or accessed by the Secretary in order to confirm (or not confirm) the validity of the information provided, the correspondence of the name and number, whether the alien has employment authorized status (or, to the extent that the Secretary determines to be feasible and appropriate, whether the records available to the Secretary verify the identity or status of a national of the United States), and such other information as the Secretary may prescribe.

''(ii) PHOTOGRAPH DISPLAY.—As part of the System, the Secretary shall establish a reliable, secure method, which, operating through the System, displays the digital photograph described in subparagraph (B)(viii)(I).

''(iii) TIMING OF NOTICES.—The Secretary shall have authority to prescribe when a confirmation, nonconfirmation, or further action notice shall be issued.

''(iv) USE OF INFORMATION.—The Secretary shall perform regular audits under the System, as described in subparagraph (B)(vi) and shall utilize the information obtained from such audits, as well as any information obtained from the Commissioner pursuant to part E of title XI of the Social Security Act (42 U.S.C. 1301 et seq.), for the purposes of this section and to administer and enforce the immigration laws.

''(v) IDENTITY FRAUD PROTECTION.—To prevent identity fraud, not later than 18 months after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary shall—

''(I) in consultation with the Commissioner, establish a program to provide a reliable, secure method for an individual to temporarily suspend or limit the use of the individual's social security account number or other identifying information for verification by the System; and

''(II) for each individual being verified through the System—

''(aa) notify the individual that the individual has the option to limit the use of the individual's social security account number or other identifying information for verification by the System; and

''(bb) provide instructions to the individuals for exercising the option referred to in item (aa).

''(vi) ALLOWING PARENTS TO PREVENT THEFT OF THEIR CHILD'S IDENTITY.—The Secretary, in consultation with the Commissioner, shall establish a program that provides a reliable, secure method by which parents or legal guardians may suspend or limit the use of the social security account number or other identifying information of a minor under their care for the purposes of the System. The Secretary may implement the program on a limited pilot program basis before making it fully available to all individuals.

''(vii) PROTECTION FROM MULTIPLE USE.—The Secretary and the Commissioner shall establish a procedure for identifying and handling a situation in which a social security account number has been identified to be subject to unusual multiple use in the System or is otherwise suspected or determined to have been compromised by identity fraud.

''(viii) MONITORING AND COMPLIANCE UNIT.—The Secretary shall establish or designate a monitoring and compliance unit to detect and reduce identity fraud and other misuse of the System.

''(ix) CIVIL RIGHTS AND CIVIL LIBERTIES ASSESSMENTS.—

''(I) REQUIREMENT TO CONDUCT.—The Secretary shall conduct regular civil rights and civil liberties assessments of the System, including participation by employers, other private entities, and Federal, State, and local government entities.

''(II) REQUIREMENT TO RESPOND.—Employers, other private entities, and Federal, State, and local entities shall timely respond to any request in connection with such an assessment.

''(III) ASSESSMENT AND RECOMMENDATIONS.—The Officer for Civil Rights and Civil Liberties of the Department shall review the results of each such assessment and recommend to the Secretary any changes necessary to improve the civil rights and civil liberties protections of the System.

''(F) GRANTS TO STATES.—

''(i) IN GENERAL.—The Secretary shall create and administer a grant program to help provide funding for States that grant—

''(I) the Secretary access to driver's license information as needed to confirm that a driver's license presented under subsection (c)(1)(D)(i) confirms the identity of the subject of the System check, and that a driver's license matches the State's records; and

''(II) such assistance as the Secretary may request in order to resolve further action notices or nonconfirmations relating to such information.

''(ii) CONSTRUCTION WITH THE DRIVER'S PRIVACY PROTECTION ACT OF 1994.—The provision of a photograph to the Secretary as described in clause (i) may not be construed as a violation of section 2721 of title 18, United States Code, and is a permissible use under subsection (b)(1) of that section.

''(iii) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary $250,000,000 to carry out this subparagraph.

''(G) RESPONSIBILITIES OF THE SECRETARY OF STATE.—As part of the System, the Secretary of State shall provide to the Secretary access to passport and visa information as needed to confirm that a passport, passport card, or visa presented under subsection (c)(1)(C) confirms the identity of the subject of the System check, and that a passport, passport card, or visa photograph

matches the Secretary of State's records, and shall provide such assistance as the Secretary may request in order to resolve further action notices or nonconfirmations relating to such information.

''(H) UPDATING INFORMATION.—The Commissioner, the Secretary, and the Secretary of State shall update their information in a manner that promotes maximum accuracy and shall provide a process for the prompt correction of erroneous information.

''(9) LIMITATION ON USE OF THE SYSTEM.—Notwithstanding any other provision of law, nothing in this subsection may be construed to permit or allow any department, bureau, or other agency of the United States Government or any other entity to utilize any information, database, or other records assembled under this subsection for any purpose other than for employment verification or to ensure secure, appropriate and nondiscriminatory use of the System.

''(10) ANNUAL REPORT AND CERTIFICATION.—Not later than 18 months after the promulgation of regulations to implement this subsection, and annually thereafter, the Secretary shall submit to Congress a report that includes the following:

''(A) An assessment, as submitted to the Secretary by the Inspector General of the Department of Homeland Security pursuant to paragraph (8)(C)(iii)(I), of the accuracy rates of further action notices and other System notices provided by employers to individuals who are authorized to be employed in the United States.

''(B) An assessment, as submitted to the Secretary by the Inspector General of the Department of Homeland Security pursuant to paragraph (8)(C)(iii)(I), of the accuracy rates of further action notices and other System notices provided directly (by the System) in a timely fashion to individuals who are not authorized to be employed in the United States.

''(C) An assessment of any challenges faced by small employers in utilizing the System.

''(D) An assessment of the rate of employer noncompliance (in addition to failure to provide required notices in a timely fashion) in each of the following categories:

''(i) Taking adverse action based on a further action notice.

''(ii) Use of the System for nonemployees or other individuals before they are offered employment.

''(iii) Use of the System to reverify employment authorized status of current employees except if authorized to do so.

''(iv) Use of the System selectively, except in cases in which such use is authorized.

''(v) Use of the System to deny employment or post-employment benefits or otherwise interfere with labor rights.

''(vi) Requiring employees or applicants to use any self-verification feature or to provide self-verification results.

''(vii) Discouraging individuals who receive a further action notice from challenging the further action notice or appealing a determination made by the System.

''(E) An assessment of the rate of employee noncompliance in each of the following categories:

''(i) Obtaining employment when unauthorized with an employer complying with the System in good faith.

''(ii) Failure to provide required documents in a timely manner.

''(iii) Attempting to use fraudulent documents or documents not related to the individual.

''(iv) Misuse of the administrative appeal and judicial review process.

''(F) An assessment of the amount of time taken for—

''(i) the System to provide the confirmation or further action notice;

''(ii) individuals to contest further action notices;

''(iii) the System to provide a confirmation or nonconfirmation of a contested further action notice;

''(iv) individuals to file an administrative appeal of a nonconfirmation; and

''(v) resolving administrative appeals regarding nonconfirmations.

''(11) ANNUAL GAO STUDY AND REPORT.—

''(A) REQUIREMENT.—The Comptroller General shall, for each year, undertake a study to evaluate the accuracy, efficiency, integrity, and impact of the System.

''(B) REPORT.—Not later than 18 months after the promulgation of regulations to implement this subsection, and yearly thereafter, the Comptroller General shall submit to Congress a report containing the findings of the study carried out under this paragraph. Each such report shall include, at a minimum, the following:

''(i) An assessment of System performance with respect to the rate at which individuals who are eligible for employment in the United States are correctly approved within the required periods, including a separate assessment of such rate for naturalized United States citizens, nationals of the United States, and aliens.

''(ii) An assessment of the privacy and confidentiality of the System and of the overall security of the System with respect to cybertheft and theft or misuse of private data.

''(iii) An assessment of whether the System is being implemented in a manner that is not discriminatory or used for retaliation against employees.

''(iv) An assessment of the most common causes for the erroneous issuance of nonconfirmations by the System and recommendations to correct such causes.

''(v) The recommendations of the Comptroller General regarding System improvements.

''(vi) An assessment of the frequency and magnitude of changes made to the System and the impact on the ability for employers to comply in good faith.

''(vii) An assessment of the direct and indirect costs incurred by employers in complying with the System, including costs associated with retaining potential employees through the administrative appeals process and receiving a nonconfirmation.

''(viii) An assessment of any backlogs or delays in the System providing the confirmation or further action notice and impacts to hiring by employers.

''(e) COMPLIANCE.—

''(1) COMPLAINTS AND INVESTIGATIONS.—The Secretary shall establish procedures—

''(A) for individuals and entities to file complaints respecting potential violations of subsections (a) or (f)(1);

''(B) for the investigation of those complaints which the Secretary deems appropriate to investigate; and

''(C) for providing notification to the Special Counsel for Immigration-Related Unfair Employment Practices of the Department of Justice of potential violations of section 274B.

''(2) AUTHORITY IN INVESTIGATIONS.—In conducting investigations and proceedings under this subsection—

''(A) immigration officers shall have reasonable access to examine evidence of the employer being investigated;

''(B) immigration officers designated by the Secretary, and administrative law judges and other persons authorized to conduct proceedings under this section, may compel by subpoena the attendance of relevant witnesses and the production of relevant evidence at any designated place in an investigation or case under this subsection. In case of refusal to fully comply with a subpoena lawfully issued under this paragraph, the Secretary may request that the Attorney General apply in an appropriate district court of the United States for an order requiring compliance with the subpoena, and any failure to obey such order may be punished by the court as contempt. Failure to cooperate with the subpoena shall be subject to further penalties, including further fines and the voiding of any mitigation of penalties or termination of proceedings under paragraph (4)(E); and

''(C) the Secretary, in cooperation with the Commissioner and Attorney General, and in consultation with other relevant agencies, shall establish a Joint Employment Fraud Task Force consisting of, at a minimum—

''(i) the System's compliance personnel;

''(ii) immigration law enforcement officers;

''(iii) personnel of the Office of Special Counsel for Immigration-Related Unfair Employment Practices of the Department of Justice;

''(iv) personnel of the Office for Civil Rights and Civil Liberties of the Department; and

''(v) personnel of Office of Inspector General of the Social Security Administration.

''(3) COMPLIANCE PROCEDURES.—

''(A) PRE-PENALTY NOTICE.—If the Secretary has reasonable cause to believe that there has been a civil violation of this section in the previous 3 years, the Secretary shall issue to the employer concerned a written notice of the Department's intention to issue a claim for a monetary or other penalty. Such pre-penalty notice shall—

''(i) describe the violation;

''(ii) specify the laws and regulations allegedly violated;

''(iii) disclose the material facts which establish the alleged violation;

''(iv) describe the penalty sought to be imposed; and

''(v) inform such employer that such employer shall have a reasonable opportunity to make representations as to why a monetary or other penalty should not be imposed.

''(B) EMPLOYER'S RESPONSE.—Whenever any employer receives written pre-penalty notice of a fine or other penalty in accordance with subparagraph (A), the employer may, within 60 days from receipt of such notice, file with the Secretary its written response to the notice. The response may include any relevant evidence or proffer of evidence that the employer wishes to present with respect to whether the employer violated this section and whether, if so, the penalty should be mitigated, and shall be filed and considered in accordance with procedures to be established by the Secretary.

''(C) RIGHT TO A HEARING.—Before issuance of an order imposing a penalty on any employer, person, or entity, the employer, person, or entity shall be entitled to a hearing before an administrative law judge, if requested within 60 days of the notice of penalty. The hearing shall be held at the nearest location practicable to the place where the employer, person, or entity resides or of the place where the alleged violation occurred.

''(D) ISSUANCE OF ORDERS.—If no hearing is so requested, the Secretary's imposition of the order shall constitute a final and unappealable order. If a hearing is requested and the administrative law judge determines, upon clear and convincing evidence received, that there was a violation, the administrative law judge shall issue the final determination with a written penalty claim. The penalty claim shall specify all charges in the information provided under clauses (i) through (iii) of subparagraph (A) and any mitigation of the penalty that the administrative law judge deems appropriate under paragraph (4)(E).

''(4) CIVIL PENALTIES.—

''(A) HIRING OR CONTINUING TO EMPLOY UNAUTHORIZED ALIENS.—Any employer that violates any provision of subsection (a)(1)(A) or (a)(2) shall—

''(i) pay a civil penalty of not less than $3,500 and not more than $7,500 for each unauthorized alien with respect to which each violation of either subsection (a)(1)(A) or (a)(2) occurred;

''(ii) if the employer has previously been fined as a result of a previous enforcement action or previous violation under this paragraph, pay a civil penalty of not less than $5,000 and not more than $15,000 for each unauthorized alien with respect to which a violation of either subsection (a)(1)(A) or (a)(2) occurred; and

''(iii) if the employer has previously been fined more than once under this paragraph, pay a civil penalty of not less than $10,000 and not more than $25,000 for each unauthorized alien with respect to which a violation of either subsection (a)(1)(A) or (a)(2) occurred.

''(B) ENHANCED PENALTIES.—After the Secretary certifies to Congress that the System has been established, implemented, and made mandatory for use by all employers in the United States, the Secretary may establish an enhanced civil penalty for an employer who—

''(i) fails to query the System to verify the identify and work authorized status of an individual; and

''(ii) violates a Federal, State, or local law related to—

''(I) the payment of wages;

''(II) hours worked by employees; or

''(III) workplace health and safety.

''(C) RECORDKEEPING OR VERIFICATION PRACTICES.—Any employer that violates or fails to comply with any requirement under subsection (a)(1)(B), other than a minor or inadvertent failure, as determined by the Secretary, shall pay a civil penalty of—

''(i) not less than $500 and not more than $2,000 for each violation;

''(ii) if an employer has previously been fined under this paragraph, not less than $1,000 and not more than $4,000 for each violation; and

''(iii) if an employer has previously been fined more than once under this paragraph, not less than $2,000 and not more than $8,000 for each violation.

''(D) OTHER PENALTIES.—The Secretary may impose additional penalties for violations, including cease and desist orders, specially designed compliance plans to prevent further violations, suspended fines to take effect in the event of a further violation, and in appropriate cases, the remedy provided by paragraph (f)(2).

''(E) MITIGATION.—The Secretary or, if an employer requests a hearing, the administrative law judge, is authorized, upon such terms and conditions as the Secretary or administrative law judge deems reasonable and just and in accordance with such procedures as the Secretary may establish or any procedures established governing the administrative law judge's assessment of penalties, to reduce or mitigate penalties imposed upon employers, based upon factors including, the employer's hiring volume, compliance history, good-faith implementation of a compliance program, the size and level of sophistication of the employer, and voluntary disclosure of violations of this subsection to the Secretary. The Secretary or administrative law judge shall not mitigate a penalty below the minimum penalty provided by this section, except that the Secretary may, in the case of an employer subject to penalty for recordkeeping or verification violations only who has not previously been penalized under this section, in the Secretary's or administrative law judge's discretion, mitigate the penalty below the statutory minimum or remit it entirely. In any case where a civil money penalty has been imposed on an employer under section 274B for an action or omission that is also a violation of this section, the Secretary or administrative law judge shall mitigate any civil money penalty under this section by the amount of the penalty imposed under section 274B.

''(F) EFFECTIVE DATE.—The civil money penalty amounts and the enhanced penalties provided by subparagraphs (A), (B), and (C) of this paragraph and by subsection (f)(2) shall apply to violations of this section committed on or after the date that is 1 year after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act. For violations committed prior to such date of enactment, the civil money penalty amounts provided by regulations implementing this section as in effect the minute before such date of enactment with respect to knowing hiring or continuing employment, verification, or indemnity bond violations, as appropriate, shall apply.

''(5) ORDER OF INTERNAL REVIEW AND CERTIFICATION OF COMPLIANCE.—

''(A) EMPLOYER COMPLIANCE.—If the Secretary has reasonable cause to believe that an employer has failed to comply with this section, the Secretary is authorized, at any time, to require that the employer certify that it is in compliance with this section, or has instituted a program to come into compliance.

''(B) EMPLOYER CERTIFICATION.—

''(i) REQUIREMENT.—Except as provided in subparagraph (C), not later than 60 days after receiving a notice from the Secretary requiring a certification under subparagraph (A), an official with responsibility for, and authority to bind the company on, all hiring and immigration compliance notices shall certify under penalty of perjury that the employer is in conformance with the requirements of paragraphs (1) through (4) of subsection (c), pertaining to document verification requirements, and with subsection (d), pertaining to the System (once the System is implemented with respect to that employer according to the requirements under subsection (d)(2)), and with any additional requirements that the Secretary may promulgate by regulation pursuant to subsection (c) or (d) or that the employer has instituted a program to come into compliance with these requirements.

''(ii) APPLICATION.—Clause (i) shall not apply until the date that the Secretary certifies to Congress that the System has been established, implemented, and made mandatory for use by all employers in the United States.

''(C) EXTENSION OF DEADLINE.—At the request of the employer, the Secretary may extend the 60-day deadline for good cause.

''(D) STANDARDS OR METHODS.—The Secretary is authorized to publish in the Federal Register standards or methods for such certification, require specific recordkeeping practices with respect to such certifications, and audit the records thereof at any time. This authority shall not be construed to diminish or qualify any other penalty provided by this section.

''(6) REQUIREMENTS FOR REVIEW OF A FINAL DETERMINATION.—With respect to judicial review of a final determination or penalty order issued under paragraph (3)(D), the following requirements apply:

''(A) DEADLINE.—The petition for review must be filed no later than 30 days after the date of the final determination or penalty order issued under paragraph (3)(D).

''(B) VENUE AND FORMS.—The petition for review shall be filed with the court of appeals for the judicial circuit where the employer's principal place of business was located when the final determination or penalty order was made. The record and briefs do not have to be printed. The court shall review the proceeding on a typewritten or electronically filed record and briefs.

''(C) SERVICE.—The respondent is the Secretary. In addition to serving the respondent, the petitioner shall serve the Attorney General.

''(D) PETITIONER'S BRIEF.—The petitioner shall serve and file a brief in connection with a petition for judicial review not later than 40 days after the date on which the administrative record is available, and may serve and file a reply brief not later than 14 days after service of the brief of the respondent, and the court may not extend these deadlines, except for good cause shown. If a petitioner fails to file a brief within the time provided in this paragraph, the court shall dismiss the appeal unless a manifest injustice would result.

''(E) SCOPE AND STANDARD FOR REVIEW.—The court of appeals shall conduct a de novo review of the administrative record on which the final determination was based and any additional evidence that the Court finds was previously unavailable at the time of the administrative hearing.

''(F) EXHAUSTION OF ADMINISTRATIVE REMEDIES.—A court may review a final determination under paragraph (3)(C) only if—

''(i) the petitioner has exhausted all administrative remedies available to the petitioner as of right, including any administrative remedies established by regulation, and

''(ii) another court has not decided the validity of the order, unless the reviewing court finds that the petition presents grounds that could not have been presented in the prior judicial proceeding or that the remedy provided by the prior proceeding was inadequate or ineffective to test the validity of the order.

''(G) ENFORCEMENT OF ORDERS.—If the final determination issued against the employer under this subsection is not subjected to review as provided in this paragraph, the Attorney General, upon request by the Secretary, may bring a civil action to enforce compliance with the final determination in any appropriate district court of the United States. The court, on a proper showing, shall issue a temporary restraining order or a preliminary or permanent injunction requiring that the employer comply with the final determination issued against that employer under this subsection. In any such civil action, the validity and appropriateness of the final determination shall not be subject to review.

''(7) CREATION OF LIEN.—If any employer liable for a fee or penalty under this section neglects or refuses to pay such liability after demand and fails to file a petition for review (if applicable) as provided in paragraph (6), the amount of the fee or penalty shall be a lien in favor of the United States on all property and rights to property, whether real or personal, belonging to such employer. If a petition for review is filed as provided in paragraph (6), the lien shall arise upon the entry of a final judgment by the court. The lien continues for 20 years or until the liability is satisfied, remitted, set aside, or terminated.

''(8) FILING NOTICE OF LIEN.—

''(A) PLACE FOR FILING.—The notice of a lien referred to in paragraph (7) shall be filed as described in 1 of the following:

''(i) UNDER STATE LAWS.—

''(I) REAL PROPERTY.—In the case of real property, in 1 office within the State (or the county, or other governmental subdivision), as designated by the laws of such State, in

which the property subject to the lien is situated.

''(II) PERSONAL PROPERTY.—In the case of personal property, whether tangible or intangible, in 1 office within the State (or the county, or other governmental subdivision), as designated by the laws of such State, in which the property subject to the lien is situated, except that State law merely conforming to or reenacting Federal law establishing a national filing system does not constitute a second office for filing as designated by the laws of such State.

''(ii) WITH CLERK OF DISTRICT COURT.—In the office of the clerk of the United States district court for the judicial district in which the property subject to the lien is situated, whenever the State has not by law designated 1 office which meets the requirements of clause (i).

''(iii) WITH RECORDER OF DEEDS OF THE DISTRICT OF COLUMBIA.—In the office of the Recorder of Deeds of the District of Columbia, if the property subject to the lien is situated in the District of Columbia.

''(B) SITUS OF PROPERTY SUBJECT TO LIEN.—For purposes of subparagraph (A), property shall be deemed to be situated as follows:

''(i) REAL PROPERTY.—In the case of real property, at its physical location.

''(ii) PERSONAL PROPERTY.—In the case of personal property, whether tangible or intangible, at the residence of the taxpayer at the time the notice of lien is filed.

''(C) DETERMINATION OF RESIDENCE.—For purposes of subparagraph (B)(ii), the residence of a corporation or partnership shall be deemed to be the place at which the principal executive office of the business is located, and the residence of a taxpayer whose residence is outside the United States shall be deemed to be in the District of Columbia.

''(D) EFFECT OF FILING NOTICE OF LIEN.—

''(i) IN GENERAL.—Upon filing of a notice of lien in the manner described in this paragraph, the lien shall be valid against any purchaser, holder of a security interest, mechanic's lien, or judgment lien creditor, except with respect to properties or transactions specified in subsection (b), (c), or (d) of section 6323 of the Internal Revenue Code of 1986 for which a notice of tax lien properly filed on the same date would not be valid.

''(ii) NOTICE OF LIEN.—The notice of lien shall be considered a notice of lien for taxes payable to the United States for the purpose of any State or local law providing for the filing of a notice of a tax lien. A notice of lien that is registered, recorded, docketed, or indexed in accordance with the rules and requirements relating to judgments of the courts of the State where the notice of lien is registered, recorded, docketed, or indexed shall be considered for all purposes as the filing prescribed by this section.

''(iii) OTHER PROVISIONS.—The provisions of section 3201(e) of title 28, United States Code, shall apply to liens filed as prescribed by this paragraph.

''(E) ENFORCEMENT OF A LIEN.—A lien obtained through this paragraph shall be considered a debt as defined by section 3002 of title 28, United States Code and enforceable pursuant to chapter 176 of such title.

''(9) ATTORNEY GENERAL ADJUDICATION.—The Attorney General shall have jurisdiction to adjudicate administrative proceedings under this subsection. Such proceedings shall be conducted in accordance with requirements of section 554 of title 5, United States Code.

''(f) CRIMINAL AND CIVIL PENALTIES AND INJUNCTIONS.—

''(1) PROHIBITION OF INDEMNITY BONDS.—It is unlawful for an employer, in the hiring of any individual, to require the individual to post a bond or security, to pay or agree to pay an amount, or otherwise to provide a financial guarantee or indemnity, against any potential liability arising under this section relating to such hiring of the individual.

''(2) CIVIL PENALTY.—Any employer who is determined, after notice and opportunity for mitigation of the monetary penalty under subsection (e), to have violated paragraph (1) shall be subject to a civil penalty of $10,000 for each violation and to an administrative order requiring the return of any amounts received in violation of such paragraph to the employee or, if the employee cannot be located, to the general fund of the Treasury.

''(g) GOVERNMENT CONTRACTS.—

''(1) CONTRACTORS AND RECIPIENTS.—Whenever an employer who is a Federal contractor (meaning an employer who holds a Federal contract, grant, or cooperative agreement, or reasonably may be expected to submit an offer for or be awarded a government contract) is determined by the Secretary to have violated this section on more than 3 occasions or is convicted of a crime under this section, the employer shall be considered for debarment from the receipt of Federal contracts, grants, or cooperative agreements in accordance with the procedures and standards and for the periods prescribed by the Federal Acquisition Regulation. However, any administrative determination of liability for civil penalty by the Secretary or the Attorney General shall not be reviewable in any debarment proceeding.

''(2) INADVERTENT VIOLATIONS.—Inadvertent violations of recordkeeping or verification requirements, in the absence of any other violations of this section, shall not be a basis for determining that an employer is a repeat violator for purposes of this subsection.

''(3) OTHER REMEDIES AVAILABLE.—Nothing in this subsection shall be construed to modify or limit any remedy available to any agency or official of the Federal Government for violation of any contractual requirement to participate in the System, as provided in the final rule relating to employment eligibility verification published in the Federal Register on November 14, 2008 (73 Fed. Reg. 67,651), or any similar subsequent regulation.

''(h) PREEMPTION.—The provisions of this section preempt any State or local law, ordinance, policy, or rule, including any criminal or civil fine or penalty structure, relating to the hiring, continued employment, or status verification for employment eligibility purposes, of unauthorized aliens. A State, locality, municipality, or political subdivision may exercise its authority over business licensing and similar laws as a penalty for failure to use the System.

''(i) DEPOSIT OF AMOUNTS RECEIVED.—Except as otherwise specified, civil penalties collected under this section shall be deposited by the Secretary into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(j) CHALLENGES TO VALIDITY OF THE SYSTEM.—

''(1) IN GENERAL.—Any right, benefit, or claim not otherwise waived or limited pursuant to this section is available in an action instituted in the United States District Court for the District of Columbia, but shall be limited to determinations of—

''(A) whether this section, or any regulation issued to implement this section, violates the Constitution of the United States; or

''(B) whether such a regulation issued by or under the authority of the Secretary to implement this section, is contrary to applicable provisions of this section or was issued in violation of chapter 5 of title 5, United States Code.

''(2) DEADLINES FOR BRINGING ACTIONS.—Any action instituted under this subsection must be filed no later than 180 days after the date the challenged section or regulation described in subparagraph (A) or (B) of paragraph (1) becomes effective. No court shall have jurisdiction to review any challenge described in subparagraph (B) after the time period specified in this subsection expires.

''(k) CRIMINAL PENALTIES AND INJUNCTIONS FOR PATTERN OR PRACTICE VIOLATIONS.—

''(1) PATTERN AND PRACTICE.—Any employer who engages in a pattern or practice of knowing violations of subsection (a)(1)(A) or (a)(2) shall be fined under title 18, United States Code, no more than $10,000 for each unauthorized alien with respect to whom such violation occurs, imprisoned for not more than 2 years for the entire pattern or practice, or both.

''(2) TERM OF IMPRISONMENT.—The maximum term of imprisonment of a person convicted of any criminal offense under the United States Code shall be increased by 5 years if the offense is committed as part of a pattern or practice of violations of subsection (a)(1)(A) or (a)(2).

''(3) ENJOINING OF PATTERN OR PRACTICE VIOLATIONS.—Whenever the Secretary or the Attorney General has reasonable cause to believe that an employer is engaged in a pattern or practice of employment in violation of subsection (a)(1)(A) or (a)(2), the Attorney General may bring a civil action in the appropriate district court of the United States requesting such relief, including a permanent or temporary injunction, restraining order, or other order against the employer, as the Secretary or Attorney General deems necessary.

''(l) CRIMINAL PENALTIES FOR UNLAWFUL AND ABUSIVE EMPLOYMENT.—

''(1) IN GENERAL.—Any person who, during any 12-month period, knowingly employs or hires, employs, recruits, or refers for a fee for employment 10 or more individuals within the United States who are under the control and supervision of such person—

''(A) knowing that the individuals are unauthorized aliens; and

''(B) under conditions that violate section 5(a) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 654(a) (relating to occupational safety and health), section 6 or 7 of the Fair Labor Standards Act of 1938 (29 U.S.C. 206 and 207) (relating to minimum wages and maximum hours of employment), section 3142 of title 40, United States Code, (relating to required wages on construction contracts), or sections 6703 or 6704 of title 41, United States Code, (relating to required wages on service contracts),

shall be fined under title 18, United States Code, or imprisoned for not more than 10 years, or both.

''(2) ATTEMPT AND CONSPIRACY.—Any person who attempts or conspires to commit any offense under this section shall be punished in the same manner as a person who completes the offense.''.

(b) REPORT ON USE OF THE SYSTEM IN THE AGRICULTURAL INDUSTRY.—Not later than 18 months after the date of the enactment of this Act, the Secretary, in consultation with the Secretary of Agriculture, shall submit a report to Congress that assesses implementation of the Employment Verification System established under section 274A(d) of the Immigration and Nationality Act, as amended by subsection (a), in the agricultural industry, including the use of such System technology in agriculture industry hiring processes, user, contractor, and third-party employer agent employment practices, timing and logistics regarding employment verification and reverification processes to meet agriculture industry practices, and identification of potential challenges and modifications to meet the unique needs of

the agriculture industry. Such report shall review—

(1) the modality of access, training and outreach, customer support, processes for further action notices and secondary verifications for short-term workers, monitoring, and compliance procedures for such System;

(2) the interaction of such System with the process to admit nonimmigrant workers pursuant to section 218 or 218A of the Immigration and Nationality Act (8 U.S.C. 1188 et seq.) and with enforcement of the immigration laws; and

(3) the collaborative use of processes of other Federal and State agencies that intersect with the agriculture industry.

(c) REPORT ON IMPACT OF THE SYSTEM ON EMPLOYERS.—Not later than 18 months after the date of the enactment of this Act, the Secretary shall submit to Congress a report that assesses—

(1) the implementation of the Employment Verification System established under section 274A(d) of the Immigration and Nationality Act, as amended by subsection (a), by employers;

(2) any adverse impact on the revenues, business processes, or profitability of employers required to use such System; and

(3) the economic impact of such System on small businesses.

(d) GOVERNMENT ACCOUNTABILITY OFFICE STUDY OF THE EFFECTS OF DOCUMENT REQUIREMENTS ON EMPLOYMENT AUTHORIZED PERSONS AND EMPLOYERS.—

(1) STUDY.—The Comptroller General of the United States shall carry out a study of—

(A) the effects of the documentary requirements of section 274A of the Immigration and Nationality Act, as amended by subsection (a), on employers, naturalized United States citizens, nationals of the United States, and individuals with employment authorized status; and

(B) the challenges such employers, citizens, nationals, or individuals may face in obtaining the documentation required under that section.

(2) REPORT.—Not later than 4 years after the date of the enactment of this Act, the Comptroller General shall submit to Congress a report containing the findings of the study carried out under paragraph (1). Such report shall include, at a minimum, the following:

(A) An assessment of available information regarding the number of working age nationals of the United States and individuals who have employment authorized status who lack documents required for employment by such section 274A.

(B) A description of the additional steps required for individuals who have employment authorized status and do not possess the documents required by such section 274A to obtain such documents.

(C) A general assessment of the average financial costs for individuals who have employment authorized status who do not possess the documents required by such section 274A to obtain such documents.

(D) A general assessment of the average financial costs and challenges for employers who have been required to participate in the Employment Verification System established by subsection (d) of such section 274A.

(E) A description of the barriers to individuals who have employment authorized status in obtaining the documents required by such section 274A, including barriers imposed by the executive branch of the Government.

(F) Any particular challenges facing individuals who have employment authorized status who are members of a federally recognized Indian tribe in complying with the provisions of such section 274A.

(e) REPEAL OF PILOT PROGRAMS AND E-VERIFY AND TRANSITION PROCEDURES.—

(1) REPEAL.—Sections 401, 402, 403, 404, and 405 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (division C of Public Law 104–208; 8 U.S.C. 1324a note) are repealed.

(2) TRANSITION PROCEDURES.—

(A) CONTINUATION OF E-VERIFY PROGRAM.—Notwithstanding the repeals made by paragraph (1), the Secretary shall continue to operate the E-Verify Program as described in section 403 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (division C of Public Law 104–208; 8 U.S.C. 1324a note), as in effect the minute before the date of the enactment of this Act, until the transition to the System described in section 274A(d) of the Immigration and Nationality Act, as amended by subsection (a), is determined by the Secretary to be complete.

(B) TRANSITION TO THE SYSTEM.—Any employer who was participating in the E-Verify Program described in section 403 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (division C of Public Law 104–208; 8 U.S.C. 1324a note), as in effect the minute before the date of the enactment of this Act, shall participate in the System described in section 274A(d) of the Immigration and Nationality Act, as amended by subsection (a), to the same extent and in the same manner that the employer participated in such E-Verify Program.

(3) CONSTRUCTION.—The repeal made by paragraph (1) may not be construed to limit the authority of the Secretary to allow or continue to allow the participation in such System of employers who have participated in such E-Verify Program, as in effect on the minute before the date of the enactment of this Act.

(f) CONFORMING AMENDMENT.—Section 274(a) (8 U.S.C. 1324(a)) is amended—

(1) by striking paragraph (3); and

(2) by redesignating paragraph (4) as paragraph (3).

SEC. 3102. INCREASING SECURITY AND INTEGRITY OF SOCIAL SECURITY CARDS.

(a) FRAUD-RESISTANT, TAMPER-RESISTANT, WEAR-RESISTANT, AND IDENTITY THEFT-RESISTANT SOCIAL SECURITY CARDS.—

(1) ISSUANCE.—

(A) PRELIMINARY WORK.—Not later than 180 days after the date of the enactment of this Act, the Commissioner of Social Security shall begin work to administer and issue fraud-resistant, tamper-resistant, wear-resistant, and identity theft-resistant social security cards.

(B) COMPLETION.—Not later than 5 years after the date of the enactment of this Act, the Commissioner of Social Security shall issue only social security cards determined to be fraud-resistant, tamper-resistant, wear-resistant, and identity theft-resistant.

(2) AMENDMENT.—

(A) IN GENERAL.—Section 205(c)(2)(G) of the Social Security Act (42 U.S.C. 405(c)(2)(G)) is amended by striking the second sentence and inserting the following: ''The social security card shall be fraud-resistant, tamper-resistant, wear-resistant, and identity theft-resistant.''.

(B) EFFECTIVE DATE.—The amendment made by subparagraph (A) shall take effect on the date that is 5 years after the date of the enactment of this Act.

(3) AUTHORIZATION OF APPROPRIATION.—There are authorized to be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section and the amendments made by this section.

(4) EMERGENCY DESIGNATION FOR CONGRESSIONAL ENFORCEMENT.—In the Senate, amounts made available under this subsection are designated as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

(5) EMERGENCY DESIGNATION FOR STATUTORY PAYGO.—Amounts made available under this subsection are designated as an emergency requirement under section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (Public Law 111–139; 2 U.S.C. 933(g)).

(b) MULTIPLE CARDS.—Section 205(c)(2)(G) of the Social Security Act (42 U.S.C. 405(c)(2)(G)), as amended by subsection (a)(2), is amended—

(1) by inserting ''(i)'' after ''(G)''; and

(2) by adding at the end the following:

''(ii) The Commissioner of Social Security shall restrict the issuance of multiple replacement social security cards to any individual to 3 per year and 10 for the life of the individual, except that the Commissioner may allow for reasonable exceptions from the limits under this clause on a case-by-case basis in compelling circumstances.''.

(c) CRIMINAL PENALTIES.—

(1) SOCIAL SECURITY FRAUD.—

(A) IN GENERAL.—Chapter 47 of title 18, United States Code, is amended by inserting at the end the following:

''§ 1041. Social security fraud

''Any person who—

''(1) knowingly possesses or uses a social security account number or social security card knowing that the number or card was obtained from the Commissioner of Social Security by means of fraud or false statement;

''(2) knowingly and falsely represents a number to be the social security account number assigned by the Commissioner of Social Security to him or her or to another person, when such number is known not to be the social security account number assigned by the Commissioner of Social Security to him or her or to such other person;

''(3) knowingly, and without lawful authority, buys, sells, or possesses with intent to buy or sell a social security account number or a social security card that is or purports to be a number or card issued by the Commissioner of Social Security;

''(4) knowingly alters, counterfeits, forges, or falsely makes a social security account number or a social security card;

''(5) knowingly uses, distributes, or transfers a social security account number or a social security card knowing the number or card to be intentionally altered, counterfeited, forged, falsely made, or stolen; or

''(6) without lawful authority, knowingly produces or acquires for any person a social security account number, a social security card, or a number or card that purports to be a social security account number or social security card,

shall be fined under this title, imprisoned not more than 5 years, or both.''.

(B) TABLE OF SECTIONS AMENDMENT.—The table of sections for chapter 47 of title 18, United States Code, is amended by adding after the item relating to section 1040 the following:

''Sec. 1041. Social security fraud.''.

(2) INFORMATION DISCLOSURE.—

(A) IN GENERAL.—Notwithstanding any other provision of law and subject to subparagraph (B), the Commissioner of Social Security shall disclose for the purpose of investigating a violation of section 1041 of title 18, United States Code, or section 274A, 274B, or 274C of the Immigration and Nationality Act (8 U.S.C. 1324a, 1324b, and 1324c), after receiving a written request from an officer in a supervisory position or higher official of any Federal law enforcement agency, the following records of the Social Security Administration:

(i) Records concerning the identity, address, location, or financial institution accounts of the holder of a social security account number or social security card.

(ii) Records concerning the application for and issuance of a social security account number or social security card.

(iii) Records concerning the existence or nonexistence of a social security account number or social security card.

(B) LIMITATION.—The Commissioner of Social Security shall not disclose any tax return or tax return information pursuant to subparagraph (A) except as authorized by section 6103 of the Internal Revenue Code of 1986.

SEC. 3103. INCREASING SECURITY AND INTEGRITY OF IMMIGRATION DOCUMENTS.

Not later than 1 year after the date of the enactment of this Act, the Secretary shall submit a report to Congress on the feasibility, advantages, and disadvantages of including, in addition to a photograph, other biometric information on each employment authorization document issued by the Department.

SEC. 3104. RESPONSIBILITIES OF THE SOCIAL SECURITY ADMINISTRATION.

Title XI of the Social Security Act (42 U.S.C. 1301 et seq.) is amended by adding at the end the following new part:

''PART E—EMPLOYMENT VERIFICATION

''RESPONSIBILITIES OF THE COMMISSIONER OF SOCIAL SECURITY

''SEC. 1186. (a) CONFIRMATION OF EMPLOYMENT VERIFICATION DATA.—As part of the employment verification system established by the Secretary of Homeland Security under the provisions of section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a) (in this section referred to as the 'System'), the Commissioner of Social Security shall, subject to the provisions of section 274A(d) of the Immigration and Nationality Act (8 U.S.C. 1324a(d)), establish a reliable, secure method that, operating through the System and within the time periods specified in section 274A(d) of such Act—

''(1) compares the name, date of birth, social security account number, and available citizenship information provided in an inquiry against such information maintained by the Commissioner in order to confirm (or not confirm) the validity of the information provided regarding an individual whose identity and employment eligibility must be confirmed;

''(2) determines the correspondence of the name, date of birth, and number;

''(3) determines whether the name and number belong to an individual who is deceased according to the records maintained by the Commissioner;

''(4) determines whether an individual is a national of the United States, as defined in section 101(a)(22) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(22)); and

''(5) determines whether the individual has presented a social security account number that is not valid for employment.

''(b) PROHIBITION.—The System shall not disclose or release social security information to employers through the confirmation system (other than such confirmation or nonconfirmation, information provided by the employer to the System, or the reason for the issuance of a further action notice).''.

SEC. 3105. IMPROVED PROHIBITION ON DISCRIMINATION BASED ON NATIONAL ORIGIN OR CITIZENSHIP STATUS.

(a) IN GENERAL.—Section 274B(a) (8 U.S.C. 1324b(a)) is amended to read as follows:

''(a) PROHIBITION ON DISCRIMINATION BASED ON NATIONAL ORIGIN OR CITIZENSHIP STATUS.—

''(1) PROHIBITION ON DISCRIMINATION GENERALLY.—It is an unfair immigration-related employment practice for a person, other entity, or employment agency, to discriminate against any individual (other than an unauthorized alien defined in section 274A(b)) because of such individual's national origin or citizenship status, with respect to the following:

''(A) The hiring of the individual for employment.

''(B) The verification of the individual's eligibility to work in the United States.

''(C) The discharging of the individual from employment.

''(2) EXCEPTIONS.—Paragraph (1) shall not apply to the following:

''(A) A person, other entity, or employer that employs 3 or fewer employees, except for an employment agency.

''(B) A person's or entity's discrimination because of an individual's national origin if the discrimination with respect to that employer, person, or entity and that individual is covered under section 703 of the Civil Rights Act of 1964 (42 U.S.C. 2000e–2), unless the discrimination is related to an individual's verification of employment authorization.

''(C) Discrimination because of citizenship status which—

''(i) is otherwise required in order to comply with a provision of Federal, State, or local law related to law enforcement;

''(ii) is required by Federal Government contract; or

''(iii) the Secretary or Attorney General determines to be essential for an employer to do business with an agency or department of the Federal Government or a State, local, or tribal government.

''(3) ADDITIONAL EXCEPTION PROVIDING RIGHT TO PREFER EQUALLY QUALIFIED CITIZENS.—Notwithstanding any other provision of this section, it is not an unfair immigration-related employment practice for an employer (as defined in section 274A(b)) to prefer to hire, recruit, or refer for a fee an individual who is a citizen or national of the United States over another individual who is an alien if the 2 individuals are equally qualified.

''(4) UNFAIR IMMIGRATION-RELATED EMPLOYMENT PRACTICES RELATING TO THE SYSTEM.—It is also an unfair immigration-related employment practice for a person, other entity, or employment agency—

''(A) to discharge or constructively discharge an individual solely due to a further action notice issued by the Employment Verification System created by section 274A until the administrative appeal described in section 274A(d)(6) is completed;

''(B) to use the System with regard to any person for any purpose except as authorized by section 274A(d);

''(C) to use the System to reverify the employment authorization of a current employee, including an employee continuing in employment, other than reverification upon expiration of employment authorization, or as otherwise authorized under section 274A(d) or by regulation;

''(D) to use the System selectively for employees, except where authorized by law;

''(E) to fail to provide to an individual any notice required in section 274A(d) within the relevant time period;

''(F) to use the System to deny workers' employment or post-employment benefits;

''(G) to misuse the System to discriminate based on national origin or citizenship status;

''(H) to require an employee or prospective employee to use any self-verification feature of the System or provide, as a condition of application or employment, any self-verification results;

''(I) to use an immigration status verification system, service, or method other than those described in section 274A for purposes of verifying employment eligibility; or

''(J) to grant access to document verification or System data, to any individual or entity other than personnel authorized to have such access, or to fail to take reasonable safeguards to protect against unauthorized loss, use, alteration, or destruction of System data.

''(5) PROHIBITION OF INTIMIDATION OR RETALIATION.—It is also an unfair immigration-related employment practice for a person, other entity, or employment agency to intimidate, threaten, coerce, or retaliate against any individual—

''(A) for the purpose of interfering with any right or privilege secured under this section; or

''(B) because the individual intends to file or has filed a charge or a complaint, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing under this section.

''(6) TREATMENT OF CERTAIN DOCUMENTARY PRACTICES AS EMPLOYMENT PRACTICES.—A person's, other entity's, or employment agency's request, for purposes of verifying employment eligibility, for more or different documents than are required under section 274A, or for specific documents, or refusing to honor documents tendered that reasonably appear to be genuine shall be treated as an unfair immigration-related employment practice.

''(7) PROHIBITION OF WITHHOLDING EMPLOYMENT RECORDS.—It is an unfair immigration-related employment practice for an employer that is required under Federal, State, or local law to maintain records documenting employment, including dates or hours of work and wages received, to fail to provide such records to any employee upon request.

''(8) PROFESSIONAL, COMMERCIAL, AND BUSINESS LICENSES.—An individual who is authorized to be employed in the United States may not be denied a professional, commercial, or business license on the basis of his or her immigration status.

''(9) EMPLOYMENT AGENCY DEFINED.—In this section, the term 'employment agency' means any employer, person, or entity regularly undertaking with or without compensation to procure employees for an employer or to procure for employees opportunities to work for an employer and includes an agent of such employer, person, or entity.''.

(b) REFERRAL BY EEOC.—Section 274B(b) (8 U.S.C. 1324b(b)) is amended by adding at the end the following:

''(3) REFERRAL BY EEOC.—The Equal Employment Opportunity Commission shall refer all matters alleging immigration-related unfair employment practices filed with the Commission, including those alleging violations of paragraphs (1), (4), (5), and (6) of subsection (a) to the Special Counsel for Immigration-Related Unfair Employment Practices of the Department of Justice.''.

(c) AUTHORIZATION OF APPROPRIATIONS.—Section 274B(l)(3) (8 U.S.C. 1324b(l)(3)) is amended by striking the period at the end and inserting ''and an additional $40,000,000 for each of fiscal years 2014 through 2016.''.

(d) FINES.—

(1) IN GENERAL.—Section 274B(g)(2)(B) (8 U.S.C. 1324b(g)(2)(B)) is amended by striking clause (iv) and inserting the following:

''(iv) to pay any applicable civil penalties prescribed below, the amounts of which may be adjusted periodically to account for inflation as provided by law—

''(I) except as provided in subclauses (II) through (IV), to pay a civil penalty of not less than $2,000 and not more than $5,000 for each individual subjected to an unfair immigration-related employment practice;

''(II) except as provided in subclauses (III) and (IV), in the case of an employer, person, or entity previously subject to a single order under this paragraph, to pay a civil penalty of not less than $4,000 and not more than $10,000 for each individual subjected to an unfair immigration-related employment practice;

''(III) except as provided in subclause (IV), in the case of an employer, person, or entity previously subject to more than 1 order under this paragraph, to pay a civil penalty of not less than $8,000 and not more than $25,000 for each individual subjected to an unfair immigration-related employment practice; and

''(IV) in the case of an unfair immigration-related employment practice described in paragraphs (4) through (7) of subsection (a), to pay a civil penalty of not less than $500 and not more than $2,000 for each individual subjected to an unfair immigration-related employment practice.''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect on the date that is 1 year after the date of the enactment of this Act and apply to violations occurring on or after such date of enactment.

SEC. 3106. RULEMAKING.

(a) INTERIM FINAL REGULATIONS.—

(1) IN GENERAL.—Not later than 1 year after the date of the enactment of this Act—

(A) the Secretary, shall issue regulations implementing sections 3101 and 3104 and the amendments made by such sections (except for section 274A(d)(7) of the Immigration and Nationality Act); and

(B) the Attorney General shall issue regulations implementing section 274A(d)(7) of the Immigration and Nationality Act, as added by section 3101, section 3105, and the amendments made by such sections.

(2) EFFECTIVE DATE.—Regulations issued pursuant to paragraph (1) shall be effective immediately on an interim basis, but are subject to change and revision after public notice and opportunity for a period for public comment.

(b) FINAL REGULATIONS.—Within a reasonable time after publication of the interim regulations under subsection (a), the Secretary, in consultation with the Commissioner of Social Security and the Attorney General, shall publish final regulations implementing this subtitle.

SEC. 3107. OFFICE OF THE SMALL BUSINESS AND EMPLOYEE ADVOCATE.

(a) ESTABLISHMENT OF SMALL BUSINESS AND EMPLOYEE ADVOCATE.—The Secretary shall establish and maintain within U.S. Citizenship and Immigration Services the Office of the Small Business and Employee Advocate (in this section referred to as the ''Office''). The purpose of the Office shall be to assist small businesses and individuals in complying with the requirements of section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a), as amended by this Act, including the resolution of conflicts arising in the course of attempted compliance with such requirements.

(b) FUNCTIONS.—The functions of the Office shall include, but not be limited to, the following:

(1) Informing small businesses and individuals about the verification practices required by section 274A of the Immigration and Nationality Act, including, but not limited to, the document verification requirements and the employment verification system requirements under subsections (c) and (d) of that section.

(2) Assisting small businesses and individuals in addressing allegedly erroneous further action notices and nonconfirmations issued under subsection (d) of section 274A of the Immigration and Nationality Act.

(3) Informing small businesses and individuals of the financial liabilities and criminal penalties that apply to violations and failures to comply with the requirements of section 274A of the Immigration and Nationality Act, including, but not limited to, by issuing best practices for compliance with that section.

(4) To the extent practicable, proposing changes to the Secretary in the administrative practices of the employment verification system required under subsection (d) of section 274A of the Immigration and Nationality Act to mitigate the problems identified under paragraph (2).

(5) Making recommendations through the Secretary to Congress for legislative action to mitigate such problems.

(c) AUTHORITY TO ISSUE ASSISTANCE ORDER.—

(1) IN GENERAL.—Upon application filed by a small business or individual with the Office (in such form, manner, and at such time as the Secretary shall by regulations prescribe), the Office may issue an assistance order if—

(A) the Office determines the small business or individual is suffering or about to suffer a significant hardship as a result of the manner in which the employment verification laws under subsections (c) and (d) of section 274A of the Immigration and Nationality Act are being administered by the Secretary; or

(B) the small business or individual meets such other requirements as are set forth in regulations prescribed by the Secretary.

(2) DETERMINATION OF HARDSHIP.—For purposes of paragraph (1), a significant hardship shall include—

(A) an immediate threat of adverse action;

(B) a delay of more than 60 days in resolving employment verification system problems;

(C) the incurring by the small business or individual of significant costs if relief is not granted; or

(D) irreparable injury to, or a long-term adverse impact on, the small business or individual if relief is not granted.

(3) STANDARDS WHEN ADMINISTRATIVE GUIDANCE NOT FOLLOWED.—In cases where a U.S. Citizenship and Immigration Services employee is not following applicable published administrative guidance, the Office shall construe the factors taken into account in determining whether to issue an assistance order under this subsection in the manner most favorable to the small business or individual.

(4) TERMS OF ASSISTANCE ORDER.—The terms of an assistance order under this subsection may require the Secretary within a specified time period—

(A) to determine whether any employee is or is not authorized to work in the United States; or

(B) to abate any penalty under section 274A of the Immigration and Nationality Act that the Office determines is arbitrary, capricious, or disproportionate to the underlying offense.

(5) AUTHORITY TO MODIFY OR RESCIND.—Any assistance order issued by the Office under this subsection may be modified or rescinded—

(A) only by the Office, the Director or Deputy Director of U.S. Citizenship and Immigration Services, or the Secretary or the Secretary's designee; and

(B) if rescinded by the Director or Deputy Director of U.S. Citizenship and Immigration Services, only if a written explanation of the reasons of such official for the modification or rescission is provided to the Office.

(6) SUSPENSION OF RUNNING OF PERIOD OF LIMITATION.—The running of any period of limitation with respect to an action described in paragraph (4)(A) shall be suspended for—

(A) the period beginning on the date of the small business or individual's application under paragraph (1) and ending on the date of the Office's decision with respect to such application; and

(B) any period specified by the Office in an assistance order issued under this subsection pursuant to such application.

(7) INDEPENDENT ACTION OF OFFICE.—Nothing in this subsection shall prevent the Office from taking any action in the absence of an application under paragraph (1).

(d) ACCESSIBILITY TO THE PUBLIC.—

(1) IN PERSON, ONLINE, AND TELEPHONE ASSISTANCE.—The Office shall provide information and assistance specified in subsection (b) in person at locations designated by the Secretary, online through an Internet website of the Department available to the public, and by telephone.

(2) AVAILABILITY TO ALL EMPLOYERS.—In making information and assistance available, the Office shall prioritize the needs of small businesses and individuals. However, the information and assistance available through the Office shall be available to any employer.

(e) AVOIDING DUPLICATION THROUGH COORDINATION.—In the discharge of the functions of the Office, the Secretary shall consult with the Secretary of Labor, the Secretary of Agriculture, the Commissioner, the Attorney General, the Equal Employment Opportunity Commission, and the Administrator of the Small Business Administration in order to avoid duplication of efforts across the Federal Government.

(f) DEFINITIONS.—In this section:

(1) The term ''employer'' has the meaning given that term in section 274A(b) of the Immigration and Nationality Act.

(2) The term ''small business'' means an employer with 49 or fewer employees.

(g) FUNDING.—There shall be appropriated, from the Comprehensive Immigration Reform Trust Fund established by section 6(a)(1) of this Act, such sums as may be necessary to carry out the functions of the Office.

Subtitle B—Protecting United States Workers

SEC. 3201. PROTECTIONS FOR VICTIMS OF SERIOUS VIOLATIONS OF LABOR AND EMPLOYMENT LAW OR CRIME.

(a) IN GENERAL.—Section 101(a)(15)(U) (8 U.S.C. 1101(a)(15)(U)) is amended—

(1) in clause (i)—

(A) by amending subclause (I) to read as follows:

''(I) the alien—

''(aa) has suffered substantial physical or mental abuse or substantial harm as a result of having been a victim of criminal activity described in clause (iii) or of a covered violation described in clause (iv); or

''(bb) is a victim of criminal activity described in clause (iii) or of a covered violation described in clause (iv) and would suffer extreme hardship upon removal;'';

(B) in subclause (II), by inserting '', or a covered violation resulting in a claim described in clause (iv) that is not the subject of a frivolous lawsuit by the alien'' before the semicolon at the end; and

(C) by amending subclauses (III) and (IV) to read as follows:

''(III) the alien (or in the case of an alien child who is younger than 16 years of age, the parent, legal guardian, or next friend of the alien) has been helpful, is being helpful, or is likely to be helpful to—

''(aa) a Federal, State, or local law enforcement official, a Federal, State, or local prosecutor, a Federal, State, or local judge, the Department of Homeland Security, the

Equal Employment Opportunity Commission, the Department of Labor, or other Federal, State, or local authorities investigating or prosecuting criminal activity described in clause (iii); or

''(bb) any Federal, State, or local governmental agency or judge investigating, prosecuting, or seeking civil remedies for any cause of action, whether criminal, civil, or administrative, arising from a covered violation described in clause (iv) and presents a certification from such Federal, State, or local governmental agency or judge attesting that the alien has been helpful, is being helpful, or is likely to be helpful to such agency in the investigation, prosecution, or adjudication arising from a covered violation described in clause (iv); and

''(IV) the criminal activity described in clause (iii) or the covered violation described in clause (iv)—

''(aa) violated the laws of the United States; or

''(bb) occurred in the United States (including Indian country and military installations) or the territories and possessions of the United States;'';

(2) in clause (ii)(II), by striking ''and'' at the end;

(3) by moving clause (iii) 2 ems to the left;

(4) in clause (iii), by inserting ''child abuse; elder abuse;'' after ''stalking;'';

(5) by adding at the end the following:

''(iv) a covered violation referred to in this clause is—

''(I) a serious violation involving 1 or more of the following or any similar activity in violation of any Federal, State, or local law: serious workplace abuse, exploitation, retaliation, or violation of whistleblower protections;

''(II) a violation giving rise to a civil cause of action under section 1595 of title 18, United States Code; or

''(III) a violation resulting in the deprivation of due process or constitutional rights.''.

(b) SAVINGS PROVISION.—Nothing in section 101(a)(15)(U)(iv)(I) of the Immigration and Nationality Act, as added by subsection (a), may be construed as altering the definition of retaliation or discrimination under any other provision of law.

(c) TEMPORARY STAY OF REMOVAL.—Section 274A (8 U.S.C. 1324a), as amended by section 3101, is further amended—

(1) in subsection (e) by adding at the end the following:

''(10) CONDUCT IN ENFORCEMENT ACTIONS.—If the Secretary undertakes an enforcement action at a facility about which a bona fide workplace claim has been filed or is contemporaneously filed, or as a result of information provided to the Secretary in retaliation against employees for exercising their rights related to a bona fide workplace claim, the Secretary shall ensure that—

''(A) any aliens arrested or detained who are necessary for the investigation or prosecution of a bona fide workplace claim or criminal activity (as described in subparagraph (T) or (U) of section 101(a)(15)) are not removed from the United States until after the Secretary—

''(i) notifies the appropriate law enforcement agency with jurisdiction over such violations or criminal activity; and

''(ii) provides such agency with the opportunity to interview such aliens;

''(B) no aliens entitled to a stay of removal or abeyance of removal proceedings under this section are removed; and

''(C) the Secretary shall stay the removal of an alien who—

''(i) has filed a claim regarding a covered violation described in clause (iv) of section 101(a)(15)(U) and is the victim of the same violations under an existing investigation;

''(ii) is a material witness in any pending or anticipated proceeding involving a bona fide workplace claim or civil rights claim; or

''(iii) has filed for relief under such section if the alien is working with law enforcement as described in clause (i)(III) of such section.''; and

(2) by adding at the end the following:

''(m) VICTIMS OF CRIMINAL ACTIVITY OR LABOR AND EMPLOYMENT VIOLATIONS.—The Secretary of Homeland Security may permit an alien to remain temporarily in the United States and authorize the alien to engage in employment in the United States if the Secretary determines that the alien—

''(1) has filed for relief under section 101(a)(15)(U); or

''(2)(A) has filed, or is a material witness to, a bona fide claim or proceedings resulting from a covered violation (as defined in section 101(a)(15)(U)(iv)); and

''(B) has been helpful, is being helpful, or is likely to be helpful, in the investigation, prosecution of, or pursuit of civil remedies related to the claim arising from a covered violation, to—

''(i) a Federal, State, or local law enforcement official;

''(ii) a Federal, State, or local prosecutor;

''(iii) a Federal, State, or local judge;

''(iv) the Department of Homeland Security;

''(v) the Equal Employment Opportunity Commission; or

''(vi) the Department of Labor.''.

(d) CONFORMING AMENDMENTS.—Section 214(p) (8 U.S.C. 1184(p)) is amended—

(1) in paragraph (1), by striking ''in section 101(a)(15)(U)(iii).'' both places it appears and inserting ''in clause (iii) of section 101(a)(15)(U) or investigating, prosecuting, or seeking civil remedies for claims resulting from a covered violation described in clause (iv) of such section.''; and

(2) in the first sentence of paragraph (6)—

(A) by striking ''in section 101(a)(15)(U)(iii)'' and inserting ''in clause (iii) of section 101(a)(15)(U) or claims resulting from a covered violation described in clause (iv) of such section''; and

(B) by inserting ''or claim arising from a covered violation'' after ''prosecution of such criminal activity''.

(e) MODIFICATION OF LIMITATION ON AUTHORITY TO ADJUST STATUS FOR VICTIMS OF CRIMES.—Section 245(m)(1) (8 U.S.C. 1255(m)(1)) is amended, in the matter before subparagraph (A), by inserting ''or an investigation or prosecution regarding a workplace or civil rights claim'' after ''prosecution''.

(f) EXPANSION OF LIMITATION ON SOURCES OF INFORMATION THAT MAY BE USED TO MAKE ADVERSE DETERMINATIONS.—

(1) IN GENERAL.—Section 384(a)(1) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1367(a)(1)) is amended—

(A) in each of subparagraphs (A) through (D), by striking the comma at the end and inserting a semicolon;

(B) subparagraph (E), by striking ''the criminal activity,'' and inserting ''abuse and the criminal activity or bona fide workplace claim (as defined in subsection (e));'';

(C) in subparagraph (F), by striking '', the trafficker or perpetrator,'' and inserting ''), the trafficker or perpetrator; or''; and

(D) by inserting after subparagraph (F) the following:

''(G) the alien's employer; or''.

(2) WORKPLACE CLAIM DEFINED.—Section 384 of such Act (8 U.S.C. 1367) is amended by adding at the end the following:

''(e) WORKPLACE CLAIMS.—

''(1) WORKPLACE CLAIMS DEFINED.—

''(A) IN GENERAL.—In subsection (a)(1), the term 'workplace claim' means any claim, petition, charge, complaint, or grievance filed with, or submitted to, a Federal, State, or local agency or court, relating to the violation of applicable Federal, State, or local labor or employment laws.

''(B) CONSTRUCTION.—Subparagraph (A) may not be construed to alter what constitutes retaliation or discrimination under any other provision of law.

''(2) PENALTY FOR FALSE CLAIMS.—Any person who knowingly presents a false or fraudulent claim to a law enforcement official in relation to a covered violation described in section 101(a)(15)(U)(iv) of the Immigration and Nationality Act for the purpose of obtaining a benefit under this section shall be subject to a civil penalty of not more than $1,000.

''(3) LIMITATION ON STAY OF ADVERSE DETERMINATIONS.—In the case of an alien applying for status under section 101(a)(15)(U) of the Immigration and Nationality Act and seeking relief under that section, the prohibition on adverse determinations under subsection (a) shall expire on the date that the alien's application for status under such section is denied and all opportunities for appeal of the denial have been exhausted.''.

(g) REMOVAL PROCEEDINGS.—Section 239(e) (8 U.S.C. 1229(e)) is amended—

(1) in paragraph (1)—

(A) by striking ''In cases where'' and inserting ''If''; and

(B) by striking ''paragraph (2),'' and inserting ''paragraph (2) or as a result of information provided to the Secretary of Homeland Security in retaliation against individuals for exercising or attempting to exercise their employment rights or other legal rights,''; and

(2) in paragraph (2), by adding at the end the following:

''(C) At a facility about which a bona fide workplace claim has been filed or is contemporaneously filed.''.

SEC. 3202. EMPLOYMENT VERIFICATION SYSTEM EDUCATION FUNDING.

(a) DISPOSITION OF CIVIL PENALTIES.—Penalties collected under subsections (e)(4) and (f)(3) of section 274A of the Immigration and Nationality Act, amended by section 3101, shall be deposited, as offsetting receipts, into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

(b) EXPENDITURES.—Amounts deposited into the Trust Fund under subsection (a) shall be made available to the Secretary and the Attorney General to provide education to employers and employees regarding the requirements, obligations, and rights under the Employment Verification System.

(c) DETERMINATION OF BUDGETARY EFFECTS.—

(1) EMERGENCY DESIGNATION FOR CONGRESSIONAL ENFORCEMENT.—In the Senate, amounts made available under this section are designated as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

(2) EMERGENCY DESIGNATION FOR STATUTORY PAYGO.—Amounts made available under this section are designated as an emergency requirement under section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (Public Law 111–139; 2 U.S.C. 933(g)).

SEC. 3203. DIRECTIVE TO THE UNITED STATES SENTENCING COMMISSION.

(a) IN GENERAL.—Pursuant to its authority under section 994 of title 28, United States Code, and in accordance with subsection (b), the United States Sentencing Commission shall promulgate sentencing guidelines or amend existing sentencing guidelines to modify, if appropriate, the penalties imposed on persons convicted of offenses under—

(1) section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a), as amended by section 3101;

(2) section 16 of the Fair Labor Standards Act of 1938 (29 U.S.C. 216); and

(3) any other Federal law covering similar conduct.

(b) REQUIREMENTS.—In carrying out subsection (a), the Sentencing Commission shall provide sentencing enhancements for any person convicted of an offense described in subsection (a) if such offense involves—

(1) the intentional confiscation of identification documents;

(2) corruption, bribery, extortion, or robbery;

(3) sexual abuse;

(4) serious bodily injury;

(5) an intent to defraud; or

(6) a pattern of conduct involving multiple violations of law that—

(A) creates, through knowing and intentional conduct, a risk to the health or safety of any victim; or

(B) denies payments due to victims for work completed.

Subtitle C—Other Provisions

SEC. 3301. FUNDING.

(a) ESTABLISHMENT OF THE INTERIOR ENFORCEMENT ACCOUNT.—There is hereby established in the Treasury of the United States an account which shall be known as the Interior Enforcement Account.

(b) APPROPRIATIONS.—There are authorized to be appropriated to the Interior Enforcement Account $1,000,000,000 to carry out this title and the amendments made by this title, including the following appropriations:

(1) In each of the 5 years beginning on the date of the enactment of this Act, the appropriations necessary to increase to a level not less than 5,000, by the end of such 5-year period, the total number of personnel of the Department assigned exclusively or principally to an office or offices in U.S. Citizenship and Immigration Services and U.S. Immigration and Customs Enforcement (and consistent with the missions of such agencies), dedicated to administering the System, and monitoring and enforcing compliance with sections 274A, 274B, and 274C of the Immigration and Nationality Act (8 U.S.C. 1324a, 1324b, and 1324c), including compliance with the requirements of the Electronic Verification System established under section 274A(d) of the Immigration and Nationality Act (8 U.S.C. 1324a(d)), as amended by section 3101. Such personnel shall perform compliance and monitoring functions, including the following:

(A) Verify compliance of employers participating in such System with the requirements for participation that are prescribed by the Secretary.

(B) Monitor such System for multiple uses of social security account numbers and immigration identification numbers that could indicate identity theft or fraud.

(C) Monitor such System to identify discriminatory or unfair practices.

(D) Monitor such System to identify employers who are not using such System properly, including employers who fail to make available appropriate records with respect to their queries and any notices of confirmation, nonconfirmation, or further action.

(E) Identify instances in which an employee alleges that an employer violated the employee's privacy or civil rights, or misused such System, and create procedures for an employee to report such an allegation.

(F) Analyze and audit the use of such System and the data obtained through such System to identify fraud trends, including fraud trends across industries, geographical areas, or employer size.

(G) Analyze and audit the use of such System and the data obtained through such System to develop compliance tools as necessary to respond to changing patterns of fraud.

(H) Provide employers with additional training and other information on the proper use of such System, including training related to privacy and employee rights.

(I) Perform threshold evaluation of cases for referral to the Special Counsel for Immigration-Related Unfair Employment Practices of the Department of Justice or the Equal Employment Opportunity Commission, and other officials or agencies with responsibility for enforcing anti-discrimination, civil rights, privacy, or worker protection laws, as may be appropriate.

(J) Any other compliance and monitoring activities that the Secretary determines are necessary to ensure the functioning of such System.

(K) Investigate identity theft and fraud detected through such System and undertake the necessary enforcement or referral actions.

(L) Investigate use of or access to fraudulent documents and undertake the necessary enforcement actions.

(M) Perform any other investigations that the Secretary determines are necessary to ensure the lawful functioning of such System, and undertake any enforcement actions necessary as a result of such investigations.

(2) The appropriations necessary to acquire, install, and maintain technological equipment necessary to support the functioning of such System and the connectivity between U.S. Citizenship and Immigration Services and U.S. Immigration and Customs Enforcement, the Department of Justice, and other agencies or officials with respect to the sharing of information to support such System and related immigration enforcement actions.

(3) The appropriations necessary to establish a robust redress process for employees who wish to appeal contested nonconfirmations to ensure the accuracy and fairness of such System.

(4) The appropriations necessary to provide a means by which individuals may access their own employment authorization data to ensure the accuracy of such data, independent of an individual's employer.

(5) The appropriations necessary to carry out the identity authentication mechanisms described in section 274A(c)(1)(F) of the Immigration and Nationality Act, as amended by section 3101(a).

(6) The appropriations necessary for the Office for Civil Rights and Civil Liberties and the Office of Privacy of the Department to perform the responsibilities of such Offices related to such System.

(7) The appropriations necessary to make grants to States to support the States in assisting the Federal Government in carrying out the provisions of this title and the amendments made by this title.

(c) ESTABLISHMENT OF REIMBURSABLE AGREEMENT BETWEEN THE DEPARTMENT OF HOMELAND SECURITY AND THE SOCIAL SECURITY ADMINISTRATION.—Effective for fiscal years beginning on or after the date of enactment of this Act, the Secretary and the Commissioner of Social Security shall enter into and maintain an agreement that—

(1) provides funds to the Commissioner for the full costs of the responsibilities of the Commissioner under this section, including—

(A) acquiring, installing, and maintaining technological equipment and systems necessary for the fulfillment of the responsibilities of the Commissioner under this section; and

(B) responding to individuals who contest a further action notice provided by the employment verification system established under section 274A of the Immigration and Nationality Act, as amended by section 3101;

(2) provides such funds quarterly in advance of the applicable quarter based on estimating methodology agreed to by the Commissioner and the Secretary; and

(3) requires an annual accounting and reconciliation of the actual costs incurred and the funds provided under the agreement which shall be reviewed by the Office of the Inspector General of the Social Security Administration and the Department.

(d) AUTHORIZATION OF APPROPRIATIONS TO THE ATTORNEY GENERAL.—There are authorized to be appropriated to the Attorney General such sums as may be necessary to carry out the provisions of this title and the amendments made by this title, including enforcing compliance with section 274B of the Immigration and Nationality Act, as amended by section 3105.

(e) AUTHORIZATION OF APPROPRIATIONS TO THE SECRETARY OF STATE.—There are authorized to be appropriated to the Secretary of State such sums as may be necessary to carry out the provisions of this title and the amendments made by this title.

SEC. 3302. EFFECTIVE DATE.

Except as otherwise specifically provided, this title and the amendments made by this title shall take effect on the date of the enactment of this Act.

SEC. 3303. MANDATORY EXIT SYSTEM.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—Not later than December 31, 2015, the Secretary shall establish a mandatory exit data system that shall include a requirement for the collection of data from machine-readable visas, passports, and other travel and entry documents for all categories of aliens who are exiting from air and sea ports of entry.

(2) BIOMETRIC EXIT DATA SYSTEM.—Not later than 2 years after the date of the enactment of this Act, the Secretary shall establish a mandatory biometric exit data system at the 10 United States airports that support the highest volume of international air travel, as determined by Department of Transportation international flight departure data.

(3) IMPLEMENTATION REPORT.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Homeland Security of the House of Representatives a report the implementation of the biometric exit data system referred to in paragraph (2), the impact of such system on any additional wait times for travelers, and projections for new officer personnel, including U.S. Customs and Border Protection officers.

(4) EFFECTIVENESS REPORT.—Not later than 3 years after the date of the enactment of this Act, the Secretary shall submit a report to Congress that analyzes the effectiveness of biometric exit data collection at the 10 airports referred to in paragraph (2).

(5) MANDATORY BIOMETRIC EXIT DATA SYSTEM.—Absent intervening action by Congress, the Secretary, not later than 6 years after the date of the enactment of this Act, shall establish a mandatory biometric exit data system at all the Core 30 international airports in the United States, as so designated by the Federal Aviation Administration.

(6) EXPANSION OF BIOMETRIC EXIT DATA SYSTEM TO MAJOR SEA AND LAND PORTS.—Not later than 6 years after the date of the enactment of this Act, the Secretary shall submit a plan to Congress for the expansion of the biometric exit system to major sea and land entry and exit points within the United States based upon—

(A) the performance of the program established pursuant to paragraph (2);

(B) the findings of the study conducted pursuant to paragraph (4); and

(C) the projected costs to develop and deploy an effective biometric exit data system.

(7) DATA COLLECTION.—There are authorized to be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section

(b) INTEGRATION AND INTEROPERABILITY.—

(1) INTEGRATION OF DATA SYSTEM.—The Secretary shall fully integrate all data from databases and data systems that process or contain information on aliens, which are maintained by—

(A) the Department, at—

(i) the U.S. Immigration and Customs Enforcement;

(ii) the U.S. Customs and Border Protection; and

(iii) the U.S. Citizenship and Immigration Services;

(B) the Department of Justice, at the Executive Office for Immigration Review; and

(C) the Department of State, at the Bureau of Consular Affairs.

(2) INTEROPERABLE COMPONENT.—The fully integrated data system under paragraph (1) shall be an interoperable component of the exit data system.

(3) INTEROPERABLE DATA SYSTEM.—The Secretary shall fully implement an interoperable electronic data system to provide current and immediate access to information in the databases of Federal law enforcement agencies and the intelligence community that is relevant to determine—

(A) whether to issue a visa; or

(B) the admissibility or deportability of an alien.

(4) TRAINING.—The Secretary shall establish ongoing training modules on immigration law to improve adjudications at United States ports of entry, consulates, and embassies.

(c) INFORMATION SHARING.—The Secretary shall report to the appropriate Federal law enforcement agency, intelligence agency, national security agency, or component of the Department of Homeland Security any alien who was lawfully admitted into the United States and whose individual data in the integrated exit data system shows that he or she has not departed the country when he or she was legally required to do so, and shall ensure that—

(1) if the alien has departed the United States when he or she was legally required to do so, the information contained in the integrated exit data system is updated to reflect the alien's departure; or

(2) if the alien has not departed the United States when he or she was legally required to do so, reasonably available enforcement resources are employed to locate the alien and to commence removal proceedings against the alien.

SEC. 3304. IDENTITY-THEFT RESISTANT MANIFEST INFORMATION FOR PASSENGERS, CREW, AND NON-CREW ONBOARD DEPARTING AIRCRAFT AND VESSELS.

(a) DEFINITIONS.—Except as otherwise specifically provided, in this section:

(1) IDENTITY-THEFT RESISTANT COLLECTION LOCATION.—The term ''identity-theft resistant collection location'' means a location within an airport or seaport—

(A) within the path of the departing alien, such that the alien would not need to significantly deviate from that path to comply with exit requirements at which air or vessel carrier employees, as applicable, either presently or routinely are available if an alien needs processing assistance; and

(B) which is equipped with technology that can securely collect and transmit identity-theft resistant departure information to the Department.

(2) US–VISIT.—The term ''US–VISIT'' means the United States-Visitor and Immigrant Status Indicator Technology system.

(b) IDENTITY THEFT RESISTANT MANIFEST INFORMATION.—

(1) PASSPORT OR VISA COLLECTION REQUIREMENT.—Except as provided in subsection (c), an appropriate official of each commercial aircraft or vessel departing from the United States to any port or place outside the United States shall ensure transmission to U.S. Customs and Border Protection of identity-theft resistant departure manifest information covering alien passengers, crew, and non-crew. Such identity-theft resistant departure manifest information—

(A) shall be transmitted to U.S. Customs and Border Protection at the place and time specified in paragraph (3) by means approved by the Secretary; and

(B) shall set forth the information specified in paragraph (4) or other information as required by the Secretary.

(2) MANNER OF COLLECTION.—Carriers boarding alien passengers, crew, and noncrew subject to the requirement to provide information upon departure for US–VISIT processing shall collect identity-theft resistant departure manifest information from each alien at an identity-theft resistant collection location at the airport or seaport before boarding that alien on transportation for departure from the United States, at a time as close to the originally scheduled departure of that passenger's aircraft or sea vessel as practicable.

(3) TIME AND MANNER OF SUBMISSION.—

(A) IN GENERAL.—The appropriate official specified in paragraph (1) shall ensure transmission of the identity-theft resistant departure manifest information required and collected under paragraphs (1) and (2) to the Data Center or Headquarters of U.S. Customs and Border Protection, or such other data center as may be designated.

(B) TRANSMISSION.—The biometric departure information may be transmitted to the Department over any means of communication authorized by the Secretary for the transmission of other electronic manifest information containing personally identifiable information and under transmission standards currently applicable to other electronic manifest information.

(C) SUBMISSION ALONG WITH OTHER INFORMATION.—Files containing the identity-theft resistant departure manifest information—

(i) may be sent with other electronic manifest data prior to departure or may be sent separately from any topically related electronic manifest data; and

(ii) may be sent in batch mode.

(4) INFORMATION REQUIRED.—The identity-theft resistant departure information required under paragraphs (1) through (3) for each covered passenger or crew member shall contain alien data from machine-readable visas, passports, and other travel and entry documents issued to the alien.

(c) EXCEPTION.—The identity-theft resistant departure information specified in this section is not required for any alien active duty military personnel traveling as passengers on board a departing Department of Defense commercial chartered aircraft.

(d) CARRIER MAINTENANCE AND USE OF IDENTITY-THEFT RESISTANT DEPARTURE MANIFEST INFORMATION.—Carrier use of identity-theft resistant departure manifest information for purposes other than as described in standards set by the Secretary is prohibited. Carriers shall immediately notify the Chief Privacy Officer of the Department in writing in the event of unauthorized use or access, or breach, of identity-theft resistant departure manifest information.

(e) COLLECTION AT SPECIFIED LOCATION.—If the Secretary determines that an air or vessel carrier has not adequately complied with the provisions of this section, the Secretary may, in the Secretary's discretion, require the air or vessel carrier to collect identity-theft resistant departure manifest information at a specific location prior to the issuance of a boarding pass or other document on the international departure, or the boarding of crew, in any port through which the carrier boards aliens for international departure under the supervision of the Secretary for such period as the Secretary considers appropriate to ensure the adequate collection and transmission of biometric departure manifest information.

(f) FUNDING.—There shall be appropriated to the Interior Enforcement Account $500,000,000 to reimburse carriers for their reasonable actual expenses in carrying out their duties as described in this section.

(g) DETERMINATION OF BUDGETARY EFFECTS.—

(1) EMERGENCY DESIGNATION FOR CONGRESSIONAL ENFORCEMENT.—In the Senate, amounts made available under this section are designated as an emergency requirement pursuant to section 403(a) of S. Con. Res. 13 (111th Congress), the concurrent resolution on the budget for fiscal year 2010.

(2) EMERGENCY DESIGNATION FOR STATUTORY PAYGO.—Amounts made available under this section are designated as an emergency requirement under section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (Public Law 111–139; 2 U.S.C. 933(g)).

SEC. 3305. PROFILING.

(a) PROHIBITION.—In making routine or spontaneous law enforcement decisions, such as ordinary traffic stops, Federal law enforcement officers may not use race or ethnicity to any degree, except that officers may rely on race and ethnicity if a specific suspect description exists.

(b) EXCEPTIONS.—

(1) SPECIFIC INVESTIGATION.—In conducting activities in connection with a specific investigation, Federal law enforcement officers may consider race and ethnicity only to the extent that there is trustworthy information, relevant to the locality or time frame, that links persons of a particular race or ethnicity to an identified criminal incident, scheme, or organization. This standard applies even where the use of race or ethnicity might otherwise be lawful.

(2) NATIONAL SECURITY.—In investigating or preventing threats to national security or other catastrophic events (including the performance of duties related to air transportation security), or in enforcing laws protecting the integrity of the Nation's borders, Federal law enforcement officers may not consider race or ethnicity except to the extent permitted by the Constitution and laws of the United States.

(3) DEFINED TERM.—In this section, the term ''Federal law enforcement officer'' means any officer, agent, or employee of the United States authorized by law or by a Government agency to engage in or supervise the prevention, detection, investigation, or prosecution of any violation of Federal law.

(c) STUDY AND REGULATIONS.—

(1) DATA COLLECTION.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall begin collecting data regarding the individualized immigration enforcement activities of covered Department officers.

(2) STUDY.—Not later than 180 days after data collection under paragraph (1) commences, the Secretary shall complete a study analyzing the data.

(3) REGULATIONS.—Not later than 90 days after the date the study required by paragraph (2) is completed, the Secretary, in consultation with the Attorney General, shall

issue regulations regarding the use of race, ethnicity, and any other suspect classifications the Secretary deems appropriate by covered Department officers.

(4) REPORTS.—Not later than 30 days after completion of the study required by paragraph (2), the Secretary shall submit the study to—

(A) the Committee on Homeland Security and Governmental Affairs of the Senate;

(B) the Committee on Homeland Security of the House of Representatives;

(C) the Committee on Appropriations of the Senate;

(D) the Committee on Appropriations of the House of Representatives;

(E) the Committee on the Judiciary of the Senate; and

(F) the Committee on the Judiciary of the House of Representatives.

(5) DEFINED TERM.—In this subsection, the term ''covered Department officer'' means any officer, agent, or employee of United States Customs and Border Protection, United States Immigration and Customs Enforcement, or the Transportation Security Administration.

SEC. 3306. ENHANCED PENALTIES FOR CERTAIN DRUG OFFENSES ON FEDERAL LANDS.

(a) CULTIVATING OR MANUFACTURING CONTROLLED SUBSTANCES ON FEDERAL PROPERTY.—Section 401(b)(5) of the Controlled Substances Act (21 U.S.C. 841(b)(5)) is amended by striking ''as provided in this subsection'' and inserting ''for not more than 10 years, in addition to any other term of imprisonment imposed under this subsection,''.

(b) USE OF HAZARDOUS SUBSTANCES.—Pursuant to its authority under section 994 of title 28, United States Code, the United States Sentencing Commission shall amend the Federal Sentencing Guidelines and policy statements to ensure that the guidelines provide an additional penalty increase of 2 offense levels above the sentence otherwise applicable for a violation of section 401(a) of the Controlled Substances Act (21 U.S.C. 841(a)) if the offense—

(1) includes the use of a poison, chemical, or other hazardous substance to cultivate or manufacture controlled substances on Federal property;

(2) creates a hazard to humans, wildlife, or domestic animals;

(3) degrades or harms the environment or natural resources; or

(4) pollutes an aquifer, spring, stream, river, or body of water.

(c) STREAM DIVERSION OR CLEAR CUTTING ON FEDERAL PROPERTY.—

(1) PROHIBITION ON STREAM DIVERSION OR CLEAR CUTTING ON FEDERAL PROPERTY.—Section 401(b) of the Controlled Substances Act is amended by adding at the end the following:

''(8) DESTRUCTION OF BODIES OF WATER.—Any person who violates subsection (a) in a manner that diverts, redirects, obstructs, or drains an aquifer, spring, stream, river, or body of water or clear cuts timber while cultivating or manufacturing a controlled substance on Federal property shall be fined in accordance with title 18, United States Code.''.

(2) FEDERAL SENTENCING GUIDELINES ENHANCEMENT.—Pursuant to its authority under section 994 of title 28, United States Code, the United States Sentencing Commission shall amend the Federal Sentencing Guidelines and policy statements to ensure that the guidelines provide an additional penalty increase of 2 offense levels for above the sentence otherwise applicable for a violation of section 401(a) of the Controlled Substances Act (21 U.S.C. 841(a)) if the offense involves the diversion, redirection, obstruction, or draining of an aquifer, spring, stream, river, or body of water or the clear cut of timber while cultivating or manufacturing a controlled substance on Federal property.

(d) BOOBY TRAPS ON FEDERAL LAND.—Section 401(d)(1) of the Controlled Substances Act (21 U.S.C. 841(d)(1)) is amended by inserting ''cultivated,'' after ''is being''.

(e) USE OR POSSESSION OF FIREARMS IN CONNECTION WITH DRUG OFFENSES ON FEDERAL LANDS.—Pursuant to its authority under section 994 of title 28, United States Code, the United States Sentencing Commission shall amend the Federal Sentencing Guidelines and policy statements to ensure that the guidelines provide an additional penalty increase of 2 offense levels above the sentence otherwise applicable for a violation of section 401(a) of the Controlled Substances Act (21 U.S.C. 841(a)) if the offense involves the possession of a firearm while cultivating or manufacturing controlled substances on Federal lands.

Subtitle D—Asylum and Refugee Provisions

SEC. 3400. SHORT TITLE.

This subtitle may be cited as the ''Frank R. Lautenberg Asylum and Refugee Reform Act''.

SEC. 3401. TIME LIMITS AND EFFICIENT ADJUDICATION OF GENUINE ASYLUM CLAIMS.

Section 208(a)(2) (8 U.S.C. 1158(a)(2)) is amended—

(1) in subparagraph (A), by inserting ''or the Secretary of Homeland Security'' after ''Attorney General'' both places such term appears;

(2) by striking subparagraphs (B) and (D);

(3) by redesignating subparagraph (C) as subparagraph (B);

(4) in subparagraph (B), as redesignated, by striking ''subparagraph (D)'' and inserting ''subparagraphs (C) and (D)''; and

(5) by inserting after subparagraph (B), as redesignated, the following:

''(C) CHANGED CIRCUMSTANCES.—Notwithstanding subparagraph (B), an application for asylum of an alien may be considered if the alien demonstrates, to the satisfaction of the Attorney General or the Secretary of Homeland Security, the existence of changed circumstances that materially affect the applicant's eligibility for asylum.

''(D) MOTION TO REOPEN CERTAIN MERITORIOUS CLAIMS.—Notwithstanding subparagraph (B) or section 240(c)(7), an alien may file a motion to reopen an asylum claim during the 2-year period beginning on the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act if the alien—

''(i) was denied asylum based solely upon a failure to meet the 1-year application filing deadline in effect on the date on which the application was filed;

''(ii) was granted withholding of removal pursuant to section 241(b)(3) and has not obtained lawful permanent residence in the United States pursuant to any other provision of law;

''(iii) is not subject to the safe third country exception under subparagraph (A) or a bar to asylum under subsection (b)(2) and should not be denied asylum as a matter of discretion; and

''(iv) is physically present in the United States when the motion is filed.''.

SEC. 3402. REFUGEE FAMILY PROTECTIONS.

(a) CHILDREN OF REFUGEE OR ASYLEE SPOUSES AND CHILDREN.—A child of an alien who qualifies for admission as a spouse or child under section 207(c)(2)(A) or 208(b)(3) of the Immigration and Nationality Act (8 U.S.C. 1157(c)(2)(A) and 1158(b)(3)) shall be entitled to the same status as such alien if the child—

(1) is accompanying or following to join such alien; and

(2) is otherwise eligible under section 207(c)(2)(A) or 208(b)(3) of the Immigration and Nationality Act.

SEC. 3403. CLARIFICATION ON DESIGNATION OF CERTAIN REFUGEES.

(a) TERMINATION OF CERTAIN PREFERENTIAL TREATMENT IN IMMIGRATION OF AMERASIANS.—Section 584 of the Foreign Operations, Export Financing, and Related Programs Appropriations Act, 1988 (8 U.S.C. 1101 note) is amended by adding at the end the following:

''(f) No visa may be issued under this section if the petition or application for such visa is submitted on or after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.''.

(b) REFUGEE DESIGNATION.—Section 207(c)(1) (8 U.S.C. 1157(c)(1)) is amended—

(1) by inserting ''(A)'' before ''Subject to the numerical limitations''; and

(2) by adding at the end the following:

''(B)(i) The President, upon a recommendation of the Secretary of State made in consultation with the Secretary of Homeland Security, and after appropriate consultation, may designate specifically defined groups of aliens—

''(I) whose resettlement in the United States is justified by humanitarian concerns or is otherwise in the national interest; and

''(II) who—

''(aa) share common characteristics that identify them as targets of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion; or

''(bb) having been identified as targets as described in item (aa), share a common need for resettlement due to a specific vulnerability.

''(ii) An alien who establishes membership in a group designated under clause (i) to the satisfaction of the Secretary of Homeland Security shall be considered a refugee for purposes of admission as a refugee under this section unless the Secretary determines that such alien ordered, incited, assisted, or otherwise participated in the persecution of any person on account of race, religion, nationality, membership in a particular social group, or political opinion.

''(iii) A designation under clause (i) is for purposes of adjudicatory efficiency and may be revoked by the President at any time after notification to Congress.

''(iv) Categories of aliens established under section 599D of the Foreign Operations, Export Financing, and Related Programs Appropriations Act, 1990 (Public Law 101–167; 8 U.S.C. 1157 note)—

''(I) shall be designated under clause (i) until the end of the first fiscal year commencing after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; and

''(II) shall be eligible for designation thereafter at the discretion of the President, considering, among other factors, whether a country under consideration has been designated by the Secretary of State as a 'Country of Particular Concern' for engaging in or tolerating systematic, ongoing, and egregious violations of religious freedom.

''(v) A designation under clause (i) shall not influence decisions to grant, to any alien, asylum under section 208, protection under section 241(b)(3), or protection under the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, done at New York December 10, 1984.

''(vi) A decision to deny admission under this section to an alien who establishes to the satisfaction of the Secretary that the alien is a member of a group designated under clause (i) shall—

''(I) be in writing; and

''(II) state, to the maximum extent feasible, the reason for the denial.

''(vii) Refugees admitted pursuant to a designation under clause (i) shall be subject to the number of admissions and be admissible under this section.''.

SEC. 3404. ASYLUM DETERMINATION EFFICIENCY.

Section 235(b)(1)(B)(ii) (8 U.S.C. 1225(b)(1)(B)(ii)) is amended by striking ''asylum.'' and inserting ''asylum by an asylum officer. The asylum officer, after conducting a nonadversarial asylum interview and seeking supervisory review, may grant asylum to the alien under section 208 or refer the case to a designee of the Attorney General, for a de novo asylum determination, for relief under the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, done at New York December 10, 1984, or for protection under section 241(b)(3).''.

SEC. 3405. STATELESS PERSONS IN THE UNITED STATES.

(a) IN GENERAL.—Chapter 1 of title II (8 U.S.C. 1151 et seq.) is amended by adding at the end the following:

''SEC. 210A. PROTECTION OF CERTAIN STATELESS PERSONS IN THE UNITED STATES.

''(a) STATELESS PERSONS.—

''(1) IN GENERAL.—In this section, the term 'stateless person' means an individual who is not considered a national under the operation of the laws of any country.

''(2) DESIGNATION OF SPECIFIC STATELESS GROUPS.—The Secretary of Homeland Security, in consultation with the Secretary of State, may, in the discretion of the Secretary, designate specific groups of individuals who are considered stateless persons, for purposes of this section.

''(b) STATUS OF STATELESS PERSONS.—

''(1) RELIEF FOR CERTAIN INDIVIDUALS DETERMINED TO BE STATELESS PERSONS.—The Secretary of Homeland Security or the Attorney General may, in his or her discretion, provide conditional lawful status to an alien who is otherwise inadmissible or deportable from the United States if the alien—

''(A) is a stateless person present in the United States;

''(B) applies for such relief;

''(C) has not lost his or her nationality as a result of his or her voluntary action or knowing inaction after arrival in the United States;

''(D) except as provided in paragraphs (2) and (3), is not inadmissible under section 212(a); and

''(E) is not described in section 241(b)(3)(B)(i).

''(2) INAPPLICABILITY OF CERTAIN PROVISIONS.—The provisions under paragraphs (4), (5), (7), and (9)(B) of section 212(a) shall not apply to any alien seeking relief under paragraph (1).

''(3) WAIVER.—The Secretary or the Attorney General may waive any other provisions of such section, other than subparagraphs (B), (C), (D)(ii), (E), (G), (H), or (I) of paragraph (2), paragraph (3), paragraph (6)(C)(i) (with respect to misrepresentations relating to the application for relief under paragraph (1)), or subparagraphs (A), (C), (D), or (E) of paragraph (10) of section 212(a), with respect to such an alien for humanitarian purposes, to assure family unity, or if it is otherwise in the public interest.

''(4) SUBMISSION OF PASSPORT OR TRAVEL DOCUMENT.—Any alien who seeks relief under this section shall submit to the Secretary of Homeland Security or the Attorney General—

''(A) any available passport or travel document issued at any time to the alien (whether or not the passport or document has expired or been cancelled, rescinded, or revoked); or

''(B) an affidavit, sworn under penalty of perjury—

''(i) stating that the alien has never been issued a passport or travel document; or

''(ii) identifying with particularity any such passport or travel document and explaining why the alien cannot submit it.

''(5) WORK AUTHORIZATION.—The Secretary of Homeland Security may authorize an alien who has applied for and is found prima facie eligible for or been granted relief under paragraph (1) to engage in employment in the United States.

''(6) TRAVEL DOCUMENTS.—The Secretary may issue appropriate travel documents to an alien who has been granted relief under paragraph (1) that would allow him or her to travel abroad and be admitted to the United States upon return, if otherwise admissible.

''(7) TREATMENT OF SPOUSE AND CHILDREN.—The spouse or child of an alien who has been granted conditional lawful status under paragraph (1) shall, if not otherwise eligible for admission under paragraph (1), be granted conditional lawful status under this section if accompanying, or following to join, such alien if—

''(A) the spouse or child is admissible (except as otherwise provided in paragraphs (2) and (3)) and is not described in section 241(b)(3)(B)(i); and

''(B) the qualifying relationship to the principal beneficiary existed on the date on which such alien was granted conditional lawful status.

''(c) ADJUSTMENT OF STATUS.—

''(1) INSPECTION AND EXAMINATION.—At the end of the 1-year period beginning on the date on which an alien has been granted conditional lawful status under subsection (b), the alien may apply for lawful permanent residence in the United States if—

''(A) the alien has been physically present in the United States for at least 1 year;

''(B) the alien's conditional lawful status has not been terminated by the Secretary of Homeland Security or the Attorney General, pursuant to such regulations as the Secretary or the Attorney General may prescribe; and

''(C) the alien has not otherwise acquired permanent resident status.

''(2) REQUIREMENTS FOR ADJUSTMENT OF STATUS.—The Secretary of Homeland Security or the Attorney General, under such regulations as the Secretary or the Attorney General may prescribe, may adjust the status of an alien granted conditional lawful status under subsection (b) to that of an alien lawfully admitted for permanent residence if such alien—

''(A) is a stateless person;

''(B) properly applies for such adjustment of status;

''(C) has been physically present in the United States for at least 1 year after being granted conditional lawful status under subsection (b);

''(D) is not firmly resettled in any foreign country; and

''(E) is admissible (except as otherwise provided under paragraph (2) or (3) of subsection (b)) as an immigrant under this chapter at the time of examination of such alien for adjustment of status.

''(3) RECORD.—Upon approval of an application under this subsection, the Secretary of Homeland Security shall establish a record of the alien's admission for lawful permanent residence as of the date that is 1 year before the date of such approval.

''(4) NUMERICAL LIMITATION.—The number of aliens who may receive an adjustment of status under this section for a fiscal year shall be subject to the numerical limitation of section 203(b)(4).

''(d) PROVING THE CLAIM.—In determining an alien's eligibility for lawful conditional status or adjustment of status under this subsection, the Secretary of Homeland Security or the Attorney General shall consider any credible evidence relevant to the application. The determination of what evidence is credible and the weight to be given that evidence shall be within the sole discretion of the Secretary or the Attorney General.

''(e) REVIEW.—

''(1) ADMINISTRATIVE REVIEW.—No appeal shall lie from the denial of an application by the Secretary, but such denial will be without prejudice to the alien's right to renew the application in proceedings under section 240.

''(2) MOTIONS TO REOPEN.—Notwithstanding any limitation imposed by law on motions to reopen removal, deportation, or exclusion proceedings, any individual who is eligible for relief under this section may file a motion to reopen proceedings in order to apply for relief under this section. Any such motion shall be filed within 2 years of the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(f) LIMITATION.—

''(1) APPLICABILITY.—The provisions of this section shall only apply to aliens present in the United States.

''(2) SAVINGS PROVISION.—Nothing in this section may be construed to authorize or require—

''(A) the admission of any alien to the United States;

''(B) the parole of any alien into the United States; or

''(C) the grant of any motion to reopen or reconsider filed by an alien after departure or removal from the United States.''.

(b) JUDICIAL REVIEW.—Section 242(a)(2)(B)(ii) (8 U.S.C. 1252(a)(2)(B)(ii)) is amended by striking ''208(a).'' and inserting ''208(a) or 210A.''.

(c) CONFORMING AMENDMENT.—Section 203(b)(4) (8 U.S.C. 1153(b)(4)) is amended by inserting ''to aliens granted an adjustment of status under section 210A(c) or'' after ''level,''.

(d) CLERICAL AMENDMENT.—The table of contents for the Immigration and Nationality Act is amended by inserting after the item relating to section 210 the following:

''Sec. 210A. Protection of stateless persons in the United States.''.

SEC. 3406. U VISA ACCESSIBILITY.

Section 214(p)(2)(A) (8 U.S.C. 1184(p)(2)(A)) is amended by striking ''10,000.'' and inserting ''18,000, of which not more than 3,000 visas may be issued for aliens who are victims of a covered violation described in section 101(a)(15)(U).''.

SEC. 3407. WORK AUTHORIZATION WHILE APPLICATIONS FOR U AND T VISAS ARE PENDING.

(a) U VISAS.—Section 214(p) (8 U.S.C. 1184(p)), as amended by section 3406 of this Act, is further amended—

(1) in paragraph (6), by striking the last sentence; and

(2) by adding at the end the following:

''(7) WORK AUTHORIZATION.—Notwithstanding any provision of this Act granting eligibility for employment in the United States, the Secretary of Homeland Security shall grant employment authorization to an alien who has filed an application for nonimmigrant status under section 101(a)(15)(U) on the date that is the earlier of—

''(A) the date on which the alien's application for such status is approved; or

''(B) a date determined by the Secretary that is not later than 180 days after the date on which the alien filed the application.''.

(b) T VISAS.—Section 214(o) (8 U.S.C. 1184(o)) is amended by adding at the end the following:

''(8) Notwithstanding any provision of this Act granting eligibility for employment in the United States, the Secretary of Homeland Security shall grant employment authorization to an alien who has filed an application for nonimmigrant status under section 101(a)(15)(T) on the date that is the earlier of—

''(A) the date on which the alien's application for such status is approved; or

''(B) a date determined by the Secretary that is not later than 180 days after the date on which the alien filed the application.''.

SEC. 3408. REPRESENTATION AT OVERSEAS REFUGEE INTERVIEWS.

Section 207(c) (8 U.S.C. 1157(c)) is amended by adding at the end the following:

''(5) The adjudicator of an application for refugee status under this section shall consider all relevant evidence and maintain a record of the evidence considered.

''(6) An applicant for refugee status may be represented, including at a refugee interview, at no expense to the Government, by an attorney or accredited representative who—

''(A) was chosen by the applicant; and

''(B) is authorized by the Secretary of Homeland Security to be recognized as the representative of such applicant in an adjudication under this section.

''(7)(A) A decision to deny an application for refugee status under this section—

''(i) shall be in writing; and

''(ii) shall provide, to the maximum extent feasible, information on the reason for the denial, including—

''(I) the facts underlying the determination; and

''(II) whether there is a waiver of inadmissibility available to the applicant.

''(B) The basis of any negative credibility finding shall be part of the written decision.

''(8)(A) An applicant who is denied refugee status under this section may file a request with the Secretary for a review of his or her application not later than 120 days after such denial.

''(B) A request filed under subparagraph (A) shall be adjudicated by refugee officers who have received training on considering requests for review of refugee applications that have been denied.

''(C) The Secretary shall publish the standard applied to a request for review.

''(D) A request for review may result in the decision being granted, denied, or reopened for a further interview.

''(E) A decision on a request for review under this paragraph—

''(i) shall be in writing; and

''(ii) shall provide, to the maximum extent feasible, information on the reason for the denial.''.

SEC. 3409. LAW ENFORCEMENT AND NATIONAL SECURITY CHECKS.

(a) REFUGEES.—Section 207(c)(1) (8 U.S.C. 1157(c)(1)) is amended by adding at the end the following: ''No alien shall be admitted as a refugee until the identity of the applicant, including biographic and biometric data, has been checked against all appropriate records or databases maintained by the Secretary of Homeland Security, the Attorney General, the Secretary of State, and other Federal records or databases that the Secretary of Homeland Security considers necessary, to determine any national security, law enforcement, or other grounds on which the alien may be inadmissible to the United States or ineligible to apply for or be granted refugee status.''.

(b) ASYLEES.—Section 208(d)(5)(A)(i) (8 U.S.C. 1158(d)(5)(A)(i)) is amended to read as follows:

''(i) asylum shall not be granted until the identity of the applicant, using biographic and biometric data, has been checked against all appropriate records or databases maintained by the Secretary of Homeland Security, the Attorney General, the Secretary of State, and other Federal records or databases that the Secretary of Homeland Security considers necessary, to determine any national security, law enforcement, or other grounds on which the alien may be inadmissible to the United States or ineligible to apply for or be granted asylum;''.

SEC. 3410. TIBETAN REFUGEE ASSISTANCE.

(a) SHORT TITLE.—This section may be cited as the ''Tibetan Refugee Assistance Act of 2013''.

(b) TRANSITION FOR DISPLACED TIBETANS.—Notwithstanding the numerical limitations specified in sections 201 and 202 of the Immigration and Nationality Act (8 U.S.C. 1151 and 1152), 5,000 immigrant visas shall be made available to qualified displaced Tibetans described in subsection (c) during the 3-year period beginning on October 1, 2013.

(c) QUALIFIED DISPLACED TIBETAN DESCRIBED.—

(1) IN GENERAL.—An individual is a qualified displaced Tibetan if such individual—

(A) is a native of Tibet; and

(B) has been continuously residing in India or Nepal since before the date of the enactment of this Act.

(2) NATIVE OF TIBET DESCRIBED.—For purposes of paragraph (1)(A), an individual shall be considered a native of Tibet if such individual—

(A) was born in Tibet; or

(B) is the son, daughter, grandson, or granddaughter of an individual who was born in Tibet.

(d) DERIVATIVE STATUS FOR SPOUSES AND CHILDREN.—A spouse or child (as defined in subparagraphs (A), (B), (C), (D), or (E) of section 101(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1101(b)(1))) shall, if not otherwise entitled to an immigrant status and the immediate issuance of a visa under this section, be entitled to the same status, and the same order of consideration, provided under this section, if accompanying, or following to join, the spouse or parent of such spouse or child.

(e) DISTRIBUTION OF VISA NUMBERS.—The Secretary of State shall ensure that immigrant visas provided under subsection (b) are made available to qualified displaced Tibetans described in subsection (c) or (d) in an equitable manner, giving preference to those qualified displaced Tibetans who—

(1) are not resettled in India or Nepal; or

(2) are most likely to be resettled successfully in the United States.

SEC. 3411. TERMINATION OF ASYLUM OR REFUGEE STATUS.

(a) TERMINATION OF STATUS.—Except as provided in subsections (b) and (c), any alien who is granted asylum or refugee status under this Act or the Immigration and Nationality Act (8 U.S.C. 1101 et seq.), who, without good cause as determined by the Secretary or the Attorney General, subsequently returns to the country of such alien's nationality or, in the case of an alien having no nationality, returns to any country in which such alien last habitually resided, and who applied for such status because of persecution or a well-founded fear of persecution in that country on account of race, religion, nationality, membership in a particular social group, or political opinion, shall have his or her refugee or asylum status terminated.

(b) WAIVER.—The Secretary has discretion to waive subsection (a) if it is established to the satisfaction of the Secretary or the Attorney General that the alien had good cause for the return. The waiver may be sought prior to departure from the United States or upon return.

(c) EXCEPTION FOR CERTAIN ALIENS FROM CUBA.—Subsection (a) shall not apply to an alien who is eligible for adjustment to that of an alien lawfully admitted for permanent residence pursuant to the Cuban Adjustment Act of 1966 (Public Law 89–732).

SEC. 3412. ASYLUM CLOCK.

Section 208(d)(2) (8 U.S.C. 1158(d)(2)) is amended by striking ''is not entitled to employment authorization'' and all that follows through ''prior to 180 days after'' and inserting ''shall be provided employment authorization 180 days after''.

Subtitle E—Shortage of Immigration Court Resources for Removal Proceedings

SEC. 3501. SHORTAGE OF IMMIGRATION COURT PERSONNEL FOR REMOVAL PROCEEDINGS.

(a) IMMIGRATION COURT JUDGES.—The Attorney General shall increase the total number of immigration judges to adjudicate current pending cases and efficiently process future cases by at least—

(1) 75 in fiscal year 2014;

(2) 75 in fiscal year 2015; and

(3) 75 in fiscal year 2016.

(b) NECESSARY SUPPORT STAFF FOR IMMIGRATION COURT JUDGES.—The Attorney General shall address the shortage of support staff for immigration judges by ensuring that each immigration judge has the assistance of the necessary support staff, including the equivalent of 1 staff attorney or law clerk and 1 legal assistant.

(c) ANNUAL INCREASES IN BOARD OF IMMIGRATION APPEALS PERSONNEL.—The Attorney General shall increase the number of Board of Immigration Appeals staff attorneys (including the necessary additional support staff) to efficiently process cases by at least—

(1) 30 in fiscal year 2014;

(2) 30 in fiscal year 2015; and

(3) 30 in fiscal year 2016.

(d) FUNDING.—There shall be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section.

SEC. 3502. IMPROVING IMMIGRATION COURT EFFICIENCY AND REDUCING COSTS BY INCREASING ACCESS TO LEGAL INFORMATION.

(a) CLARIFICATION REGARDING THE AUTHORITY OF THE ATTORNEY GENERAL TO APPOINT COUNSEL TO ALIENS IN IMMIGRATION PROCEEDINGS.—Section 292 (8 U.S.C. 1362) is amended—

(1) by inserting ''(a)'' before ''In any'';

(2) by striking ''(at no expense to the Government)'';

(3) by striking ''he shall'' and inserting ''the person shall''; and

(4) by adding at the end the following:

''(b) The Government is not required to provide counsel to aliens under subsection (a). However, the Attorney General may, in the Attorney General's sole and unreviewable discretion, appoint or provide counsel to aliens in immigration proceedings conducted under section 240 of this Act.''.

(b) APPOINTMENT OF COUNSEL IN CERTAIN CASES; RIGHT TO REVIEW CERTAIN DOCUMENTS IN REMOVAL PROCEEDINGS.—Section 240(b) (8 U.S.C. 1229a(b)) is amended—

(1) in paragraph (4)—

(A) by redesignating subparagraphs (B) and (C) as subparagraphs (C) and (D), respectively;

(B) in subparagraph (A), by striking '', at no expense to the Government,'';

(C) by inserting after subparagraph (A) the following new subparagraph:

''(B) the alien shall, at the beginning of the proceedings or at a reasonable time thereafter, automatically receive a complete copy of all relevant documents in the possession

of the Department of Homeland Security, including all documents (other than documents protected from disclosure by privilege, including national security information referenced in subparagraph (C), law enforcement sensitive information, and information prohibited from disclosure pursuant to any other provision of law) contained in the file maintained by the Government that includes information with respect to all transactions involving the alien during the immigration process (commonly referred to as an 'A-file'), and all documents pertaining to the alien that the Department of Homeland Security has obtained or received from other government agencies, unless the alien waives the right to receive such documents by executing a knowing and voluntary waiver in a language that he or she understands fluently,''; and

(D) by adding at the end the following:

''The Government is not required to provide counsel to aliens under this paragraph. However, the Attorney General may, in the Attorney General's sole and unreviewable discretion, appoint or provide counsel at government expense to aliens in immigration proceedings.''; and

(2) by adding at the end the following new paragraph:

''(8) FAILURE TO PROVIDE ALIEN REQUIRED DOCUMENTS.—In the absence of a waiver under subparagraph (B) of paragraph (4), a removal proceeding may not proceed until the alien has received the documents as required under such subparagraph.''.

(c) APPOINTMENT OF COUNSEL FOR UNACCOMPANIED ALIEN CHILDREN AND ALIENS WITH A SERIOUS MENTAL DISABILITY.—Section 292 (8 U.S.C. 1362), as amended by subsection (a), is further amended by adding at the end the following:

''(c) Notwithstanding subsection (b), the Attorney General shall appoint counsel, at the expense of the Government if necessary, to represent an alien in a removal proceeding who has been determined by the Secretary to be an unaccompanied alien child, is incompetent to represent himself or herself due to a serious mental disability that would be included in section 3(1) of the Americans with Disabilities Act of 1990 (42 U.S.C. 12102(1)), or is considered particularly vulnerable when compared to other aliens in removal proceedings, such that the appointment of counsel is necessary to help ensure fair resolution and efficient adjudication of the proceedings.''.

(d) FUNDING.—There shall be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section and the amendments made by this section.

SEC. 3503. OFFICE OF LEGAL ACCESS PROGRAMS.

(a) ESTABLISHMENT OF OFFICE OF LEGAL ACCESS PROGRAMS.—The Attorney General shall maintain, within the Executive Office for Immigration Review, an Office of Legal Access Programs to develop and administer a system of legal orientation programs to make immigration proceedings more efficient and cost effective by educating aliens regarding administrative procedures and legal rights under United States immigration law and to establish other programs to assist in providing aliens access to legal information.

(b) LEGAL ORIENTATION PROGRAMS.—The legal orientation programs—

(1) shall provide programs to assist detained aliens in making informed and timely decisions regarding their removal and eligibility for relief from removal in order to increase efficiency and reduce costs in immigration proceedings and Federal custody processes and to improve access to counsel and other legal services;

(2) may provide services to detained aliens in immigration proceedings under sections 235, 238, 240, and 241(a)(5) of the Immigration and Nationality Act (8 U.S.C. 1225, 1228, 1229a, and 1231(a)(5)) and to other aliens in immigration and asylum proceedings under sections 235, 238, and 240 of the Immigration and Nationality Act (8 U.S.C. 1225, 1228, and 1229a); and

(3) shall identify unaccompanied alien children, aliens with a serious mental disability, and other particularly vulnerable aliens for consideration by the Attorney General pursuant to section 292(c) of the Immigration and Nationality Act, as added by section 3502(c).

(c) PROCEDURES.—The Secretary, in consultation with the Attorney General, shall establish procedures that ensure that legal orientation programs are available for all detained aliens within 5 days of arrival into custody and to inform such aliens of the basic procedures of immigration hearings, their rights relating to those hearings under the immigration laws, information that may deter such aliens from filing frivolous legal claims, and any other information deemed appropriate by the Attorney General, such as a contact list of potential legal resources and providers.

(d) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to create any substantive or procedural right or benefit that is legally enforceable by any party against the United States or its agencies or officers or any other person.

(e) FUNDING.—There shall be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section.

SEC. 3504. CODIFYING BOARD OF IMMIGRATION APPEALS.

(a) DEFINITION OF BOARD MEMBER.—Section 101(a) (8 U.S.C. 1101(a)) is amended by adding at the end the following:

''(53) The term 'Board Member' means an attorney whom the Attorney General appoints to serve on the Board of Immigration Appeals within the Executive Office of Immigration Review, and is qualified to review decisions of immigration judges and other matters within the jurisdiction of the Board of Immigration Appeals.''.

(b) BOARD OF IMMIGRATION APPEALS.—Section 240(a)(1) (8 U.S.C. 1229a(a)(1)) is amended by adding at the end the following: ''The Board of Immigration Appeals and its Board Members shall review decisions of immigration judges under this section.''.

(c) APPEALS.—Section 240(b)(4) (8 U.S.C. 1229a(b)(4)), as amended by section 3502(b), is further amended—

(1) in subparagraph (B), by striking '', and'' and inserting a semicolon;

(2) in subparagraph (C), by striking the period and inserting ''; and''; and

(3) by inserting after subparagraph (C) the following:

''(D) the alien or the Department of Homeland Security may appeal the immigration judge's decision to a 3-judge panel of the Board of Immigration Appeals.''.

(d) DECISION AND BURDEN OF PROOF.—Section 240(c)(1)(A) (8 U.S.C. 1229a(c)(1)(A)) is amended to read as follows:

''(A) IN GENERAL.—At the conclusion of the proceeding, the immigration judge shall decide whether an alien is removable from the United States. The determination of the immigration judge shall be based only on the evidence produced at the hearing. On appeal, the Board of Immigration Appeals shall issue a written opinion. The opinion shall address all dispositive arguments raised by the parties. The panel may incorporate by reference the opinion of the immigration judge whose decision is being reviewed, provided that the panel also addresses any arguments made by the nonprevailing party regarding purported errors of law, fact, or discretion.''.

SEC. 3505. IMPROVED TRAINING FOR IMMIGRATION JUDGES AND BOARD MEMBERS.

(a) IN GENERAL.—Section 240 (8 U.S.C. 1229a) is amended by adding at the end the following:

''(f) IMPROVED TRAINING.—

''(1) IMPROVED TRAINING FOR IMMIGRATION JUDGES AND BOARD MEMBERS.—

''(A) IN GENERAL.—In consultation with the Attorney General and the Director of the Federal Judicial Center, the Director of the Executive Office for Immigration Review shall review and modify, as appropriate, training programs for immigration judges and Board Members.

''(B) ELEMENTS OF REVIEW.—Each such review shall study—

''(i) the expansion of the training program for new immigration judges and Board Members;

''(ii) continuing education regarding current developments in the field of immigration law; and

''(iii) methods to ensure that immigration judges are trained on properly crafting and dictating decisions.

''(2) IMPROVED TRAINING AND GUIDANCE FOR STAFF.—The Director of the Executive Office for Immigration Review shall—

''(A) modify guidance and training regarding screening standards and standards of review; and

''(B) ensure that Board Members provide staff attorneys with appropriate guidance in drafting decisions in individual cases, consistent with the policies and directives of the Director of the Executive Office for Immigration Review and the Chairman of the Board of Immigration Appeals.''.

(b) FUNDING.—There shall be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section and the amendment made by this section.

SEC. 3506. IMPROVED RESOURCES AND TECHNOLOGY FOR IMMIGRATION COURTS AND BOARD OF IMMIGRATION APPEALS.

(a) IMPROVED ON-BENCH REFERENCE MATERIALS AND DECISION TEMPLATES.—The Director of the Executive Office for Immigration Review shall ensure that immigration judges are provided with updated reference materials and standard decision templates that conform to the law of the circuits in which they sit.

(b) PRACTICE MANUAL.—The Director of the Executive Office for Immigration Review shall produce a practice manual describing best practices for the immigration courts and shall make such manual available electronically to counsel and litigants who appear before the immigration courts.

(c) RECORDING SYSTEM AND OTHER TECHNOLOGIES.—

(1) PLAN REQUIRED.—The Director of the Executive Office for Immigration Review shall provide the Attorney General with a plan and a schedule to replace the immigration courts' tape recording system with a digital recording system that is compatible with the information management systems of the Executive Office for Immigration Review.

(2) AUDIO RECORDING SYSTEM.—Consistent with the plan described in paragraph (1), the Director shall pilot a digital audio recording system not later than 1 year after the enactment of this Act, and shall begin nationwide implementation of that system as soon as practicable.

(d) IMPROVED TRANSCRIPTION SERVICES.—Not later than 1 year after the enactment of

this Act, the Director of the Executive Office for Immigration Review shall report to the Attorney General on the current transcription services utilized by the Office and recommend improvements to this system regarding quality and timeliness of transcription.

(e) IMPROVED INTERPRETER SELECTION.—Not later than 1 year after the enactment of this Act, the Director of the Executive Office for Immigration Review shall report to the Attorney General on the current interpreter selection process utilized by the Office and recommend improvements to this process regarding screening, hiring, certification, and evaluation of staff and contract interpreters.

(f) FUNDING.—There shall be appropriated, from the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1), such sums as may be necessary to carry out this section.

SEC. 3507. TRANSFER OF RESPONSIBILITY FOR TRAFFICKING PROTECTIONS.

(a) TRANSFER OF RESPONSIBILITY.—

(1) IN GENERAL.—All unexpended balances appropriated or otherwise available to the Department of Health and Human Services and its Office of Refugee Resettlement in connection with the functions provided for in paragraphs (5) and (6) of section 235(c) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1232(c)), shall, subject to section 202 of the Budget and Accounting Procedures Act of 1950, be transferred to the Department of Justice. Funds transferred pursuant to this paragraph shall remain available until expended and shall be used only for the purposes for which the funds were originally authorized and appropriated.

(2) CONTRACT AUTHORITY.—The Attorney General may award grants to, and enter into contracts to carry out the functions set forth in paragraphs (5) and (6) of Section 235(c) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008.

(b) CONFORMING AMENDMENTS.—Section 235(c) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1232(c)) is amended—

(1) in paragraph (5)—

(A) by striking ''Secretary of Health and Human Services'' each place it appears and inserting ''Attorney General''; and

(B) by striking the last sentence; and

(2) in paragraph (6)—

(A) by striking ''Secretary of Health and Human Services'' each place it appears and inserting ''Attorney General'';

(B) in subparagraphs (B)(ii), (D), and (F), by striking ''Secretary'' each place it appears and inserting ''Attorney General''; and

(C) in subparagraph (F), by striking ''and Human Services''.

Subtitle F—Prevention of Trafficking in Persons and Abuses Involving Workers Recruited Abroad

SEC. 3601. DEFINITIONS.

(a) IN GENERAL.—Except as otherwise provided by this subtitle, the terms used in this subtitle shall have the same meanings, respectively, as are given those terms in section 3 of the Fair Labor Standards Act of 1938 (29 U.S.C. 203).

(b) OTHER DEFINITIONS.—

(1) FOREIGN LABOR CONTRACTOR.—The term ''foreign labor contractor'' means any person who performs foreign labor contracting activity, including any person who performs foreign labor contracting activity wholly outside of the United States, except that the term does not include any entity of the United States Government.

(2) FOREIGN LABOR CONTRACTING ACTIVITY.—The term ''foreign labor contracting activity'' means recruiting, soliciting, or related activities with respect to an individual who resides outside of the United States in furtherance of employment in the United States, including when such activity occurs wholly outside of the United States.

(3) PERSON.—The term ''person'' means any natural person or any corporation, company, firm, partnership, joint stock company or association or other organization or entity (whether organized under law or not), including municipal corporations.

(4) WORKER.—The term ''worker'' means an individual who is the subject of foreign labor contracting activity and does not include an exchange visitor (as defined in section 62.2 of title 22, Code of Federal Regulations, or any similar successor regulation).

SEC. 3602. DISCLOSURE.

(a) REQUIREMENT FOR DISCLOSURE.—Any person who engages in foreign labor contracting activity shall ascertain and disclose in writing in English and in the primary language of the worker at the time of the worker's recruitment, the following information:

(1) The identity and address of the employer and the identity and address of the person conducting the recruiting on behalf of the employer, including any subcontractor or agent involved in such recruiting.

(2) All assurances and terms and conditions of employment, from the prospective employer for whom the worker is being recruited, including the work hours, level of compensation to be paid, the place and period of employment, a description of the type and nature of employment activities, any withholdings or deductions from compensation and any penalties for terminating employment.

(3) A signed copy of the work contract between the worker and the employer.

(4) The type of visa under which the foreign worker is to be employed, the length of time for which the visa will be valid, the terms and conditions under which the visa may be renewed, and a clear statement of any expenses associated with securing or renewing the visa.

(5) An itemized list of any costs or expenses to be charged to the worker and any deductions to be taken from wages, including any costs for housing or accommodation, transportation to and from the worksite, meals, health insurance, workers' compensation, costs of benefits provided, medical examinations, healthcare, tools, or safety equipment costs.

(6) The existence of any labor organizing effort, strike, lockout, or other labor dispute at the place of employment.

(7) Whether and the extent to which workers will be compensated through workers' compensation, private insurance, or otherwise for injuries or death, including work-related injuries and death, during the period of employment and, if so, the name of the State workers' compensation insurance carrier or the name of the policyholder of the private insurance, the name and the telephone number of each person who must be notified of an injury or death, and the time period within which such notice must be given.

(8) A statement, in a form specified by the Secretary—

(A) stating that—

(i) no foreign labor contractor, agent, or employee of a foreign labor contractor, may lawfully assess any fee (including visa fees, processing fees, transportation fees, legal expenses, placement fees, and other costs) to a worker for any foreign labor contracting activity; and

(ii) the employer may bear such costs or fees for the foreign labor contractor, but that these fees cannot be passed along to the worker;

(B) explaining that—

(i) no additional significant requirements or changes may be made to the original contract signed by the worker without at least 24 hours to consider such changes and the specific consent of the worker, obtained voluntarily and without threat of penalty; and

(ii) any significant changes made to the original contract that do not comply with clause (i) shall be a violation of this subtitle and be subject to the provisions of section 3610 of this Act; and

(C) describing the protections afforded the worker by this section and by section 202 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1375b) and any applicable visa program, including—

(i) relevant information about the procedure for filing a complaint provided for in section 3610; and

(ii) the telephone number for the national human trafficking resource center hotline number.

(9) Any education or training to be provided or required, including—

(A) the nature, timing, and cost of such training;

(B) the person who will pay such costs;

(C) whether the training is a condition of employment, continued employment, or future employment; and

(D) whether the worker will be paid or remunerated during the training period, including the rate of pay.

(b) RELATIONSHIP TO LABOR AND EMPLOYMENT LAWS.—Nothing in the disclosure required by subsection (a) shall constitute a legal conclusion as to the worker's status or rights under the labor and employment laws.

(c) PROHIBITION ON FALSE AND MISLEADING INFORMATION.—No foreign labor contractor or employer who engages in any foreign labor contracting activity shall knowingly provide materially false or misleading information to any worker concerning any matter required to be disclosed under subsection (a). The disclosure required by this section is a document concerning the proper administration of a matter within the jurisdiction of a department or agency of the United States for the purposes of section 1519 of title 18, United States Code.

SEC. 3603. PROHIBITION ON DISCRIMINATION.

(a) IN GENERAL.—It shall be unlawful for an employer or a foreign labor contractor to fail or refuse to hire, discharge, intimidate, threaten, restrain, coerce, or blacklist any individual or otherwise discriminate against an individual with respect to compensation, terms, conditions, or privileges of employment, because of such individual's race, color, creed, sex, national origin, religion, age, or disability.

(b) DETERMINATIONS OF DISCRIMINATION.—For the purposes of determining the existence of unlawful discrimination under subsection (a)—

(1) in the case of a claim of discrimination based on race, color, creed, sex, national origin, or religion, the same legal standards shall apply as are applicable under title VII of the Civil Rights Act of 1964 (42 U.S.C. 2000e et seq.);

(2) in the case of a claim of discrimination based on unlawful discrimination based on age, the same legal standards shall apply as are applicable under the Age Discrimination in Employment Act of 1967 (29 U.S.C. 621 et seq.); and

(3) in the case of a claim of discrimination based on disability, the same legal standards shall apply as are applicable under title I of the Americans With Disabilities Act of 1990 (42 U.S.C. 12111 et seq.).

SEC. 3604. RECRUITMENT FEES.

No employer, foreign labor contractor, or agent or employee of a foreign labor contractor, shall assess any fee (including visa fees, processing fees, transportation fees,

legal expenses, placement fees, and other costs) to a worker for any foreign labor contracting activity.

SEC. 3605. REGISTRATION.

(a) REQUIREMENT TO REGISTER.—

(1) IN GENERAL.—Subject to paragraph (2), prior to engaging in any foreign labor contracting activity, any person who is a foreign labor contractor or who, for any money or other valuable consideration paid or promised to be paid, performs a foreign labor contracting activity on behalf of a foreign labor contractor, shall obtain a certificate of registration from the Secretary of Labor pursuant to regulations promulgated by the Secretary under subsection (c).

(2) EXCEPTION FOR CERTAIN EMPLOYERS.—An employer, or employee of an employer, who engages in foreign labor contracting activity solely to find employees for that employer's own use, and without the participation of any other foreign labor contractor, shall not be required to register under this section.

(b) NOTIFICATION.—

(1) ANNUAL EMPLOYER NOTIFICATION.—Each employer shall notify the Secretary, not less frequently than once every year, of the identity of any foreign labor contractor involved in any foreign labor contracting activity for, or on behalf of, the employer, including at a minimum, the name and address of the foreign labor contractor, a description of the services for which the foreign labor contractor is being used, whether the foreign labor contractor is to receive any economic compensation for the services, and, if so, the identity of the person or entity who is paying for the services.

(2) ANNUAL FOREIGN LABOR CONTRACTOR NOTIFICATION.—Each foreign labor contractor shall notify the Secretary, not less frequently than once every year, of the identity of any subcontractee, agent, or foreign labor contractor employee involved in any foreign labor contracting activity for, or on behalf of, the foreign labor contractor.

(3) NONCOMPLIANCE NOTIFICATION.—An employer shall notify the Secretary of the identity of a foreign labor contractor whose activities do not comply with this subtitle.

(4) AGREEMENT.—Not later than 7 days after receiving a request from the Secretary, an employer shall provide the Secretary with the identity of any foreign labor contractor with which the employer has a contract or other agreement.

(c) REGULATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall promulgate regulations to establish an efficient electronic process for the timely investigation and approval of an application for a certificate of registration of foreign labor contractors, including—

(1) a declaration, subscribed and sworn to by the applicant, stating the applicant's permanent place of residence, the foreign labor contracting activities for which the certificate is requested, and such other relevant information as the Secretary may require;

(2) a set of fingerprints of the applicant;

(3) an expeditious means to update registrations and renew certificates;

(4) providing for the consent of any foreign labor recruiter to the designation by a court of the Secretary as an agent available to accept service of summons in any action against the applicant, if the applicant has left the jurisdiction in which the action is commenced, otherwise has become unavailable to accept service, or is subject to personal jurisdiction in no State;

(5) providing for the consent of any foreign labor recruiter to jurisdiction in the Department or any Federal or State court in the United States for any action brought by any aggrieved individual or worker;

(6) providing for cooperation in any investigation by the Secretary or other appropriate authorities;

(7) providing for consent to the forfeiture of the bond for failure to cooperate with these provisions;

(8) providing for consent to be liable for violations of this subtitle by any agents or subcontractees of any level in relation to the foreign labor contracting activity of the agent or subcontractee to the same extent as if the foreign labor contractor had committed the violation; and

(9) providing for consultation with other appropriate Federal agencies to determine whether any reason exists to deny registration to a foreign labor contractor.

(d) TERM OF REGISTRATION.—Unless suspended or revoked, a certificate under this section shall be valid for 2 years.

(e) APPLICATION FEE.—

(1) REQUIREMENT FOR FEE.—In addition to any other fees authorized by law, the Secretary shall impose a fee, to be deposited in the general fund of the Treasury, on a foreign labor contractor that submits an application for a certificate of registration under this section.

(2) AMOUNT OF FEE.—The amount of the fee required by paragraph (1) shall be set at a level that the Secretary determines sufficient to cover the full costs of carrying out foreign labor contract registration activities under this subtitle, including worker education and any additional costs associated with the administration of the fees collected.

(f) REFUSAL TO ISSUE; REVOCATION.—In accordance with regulations promulgated by the Secretary, the Secretary shall refuse to issue or renew, or shall revoke and debar from eligibility to obtain a certificate of registration for a period of not greater than 5 years, after notice and an opportunity for a hearing, a certificate of registration under this section if—

(1) the applicant for, or holder of, the certification has knowingly made a material misrepresentation in the application for such certificate;

(2) the applicant for, or holder of, the certification is not the real party in interest in the application or certificate of registration and the real party in interest—

(A) is a person who has been refused issuance or renewal of a certificate;

(B) has had a certificate revoked; or

(C) does not qualify for a certificate under this section;

(3) the applicant for, or holder of, the certification has been convicted within the preceding 5 years of—

(A) any felony under State or Federal law or crime involving robbery, bribery, extortion, embezzlement, grand larceny, burglary, arson, violation of narcotics laws, murder, rape, assault with intent to kill, assault which inflicts grievous bodily injury, prostitution, peonage, or smuggling or harboring individuals who have entered the United States illegally; or

(B) any crime relating to gambling, or to the sale, distribution or possession of alcoholic beverages, in connection with or incident to any labor contracting activities; or

(4) the applicant for, or holder of, the certification has materially failed to comply with this section.

(g) RE-REGISTRATION OF VIOLATORS.—The Secretary shall establish a procedure by which a foreign labor contractor that has had its registration revoked under subsection (f) may seek to re-register under this subsection by demonstrating to the Secretary's satisfaction that the foreign labor contractor has not violated this subtitle in the previous 5 years and that the foreign labor contractor has taken sufficient steps to prevent future violations of this subtitle.

SEC. 3606. BONDING REQUIREMENT.

(a) IN GENERAL.—The Secretary shall require a foreign labor contractor to post a bond in an amount sufficient to ensure the ability of the foreign labor contractor to discharge its responsibilities and to ensure protection of workers, including wages.

(b) REGULATIONS.—The Secretary, by regulation, shall establish the conditions under which the bond amount is determined, paid, and forfeited.

(c) RELATIONSHIP TO OTHER REMEDIES.—The bond requirements and forfeiture of the bond under this section shall be in addition to other remedies under 3610 or any other law.

SEC. 3607. MAINTENANCE OF LISTS.

(a) IN GENERAL.—The Secretary shall maintain—

(1) a list of all foreign labor contractors registered under this subsection, including—

(A) the countries from which the contractors recruit;

(B) the employers for whom the contractors recruit;

(C) the visa categories and occupations for which the contractors recruit; and

(D) the States where recruited workers are employed; and

(2) a list of all foreign labor contractors whose certificate of registration the Secretary has revoked.

(b) UPDATES; AVAILABILITY.—The Secretary shall—

(1) update the lists required by subsection (a) on an ongoing basis, not less frequently than every 6 months; and

(2) make such lists publicly available, including through continuous publication on Internet websites and in written form at and on the websites of United States embassies in the official language of that country.

(c) INTER-AGENCY AVAILABILITY.—The Secretary shall share the information described in subsection (a) with the Secretary of State.

SEC. 3608. AMENDMENT TO THE IMMIGRATION AND NATIONALITY ACT.

Section 214 (8 U.S.C. 1184) is amended by adding at the end the following:

''(s) A visa shall not be issued under the subparagraph (A)(iii), (B)(i) (but only for domestic servants described in clause (i) or (ii) of section 274a.12(c)(17) of title 8, Code of Federal Regulations (as in effect on December 4, 2007)), (G)(v), (H), (J), (L), (Q), (R), or (W) of section 101(a)(15) until the consular officer—

''(1) has provided to and reviewed with the applicant, in the applicant's language (or a language the applicant understands), a copy of the information and resources pamphlet required by section 202 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1375b); and

''(2) has reviewed and made a part of the visa file the foreign labor recruiter disclosures required by section 3602 of the Border Security, Economic Opportunity, and Immigration Modernization Act, including whether the foreign labor recruiter is registered pursuant to that section.''.

SEC. 3609. RESPONSIBILITIES OF SECRETARY OF STATE.

(a) IN GENERAL.—The Secretary of State shall ensure that each United States diplomatic mission has a person who shall be responsible for receiving information from any worker who has been subject to violations of this subtitle.

(b) PROVISION OF INFORMATION.—The responsible person referred to in subsection (a) shall ensure that the information received is provided to the Department of Justice, the Department of Labor, or any other relevant Federal agency.

(c) MECHANISMS.—The Attorney General and the Secretary shall ensure that there is a mechanism for any actions that need to be

taken in response to information received under subsection (a).

(d) ASSISTANCE FROM FOREIGN GOVERNMENT.—The person designated for receiving information pursuant to subsection (a) is strongly encouraged to coordinate with governments and civil society organizations in the countries of origin to ensure the worker receives additional support.

(e) MAINTENANCE AND AVAILABILITY OF INFORMATION.—The Secretary of State shall ensure that consulates maintain information regarding the identities of foreign labor contractors and the employers to whom the foreign labor contractors supply workers. The Secretary of State shall make such information publicly available in written form and online, including on the websites of United States embassies in the official language of that country.

(f) ANNUAL PUBLIC DISCLOSE.—The Secretary of State shall make publicly available online, on an annual basis, data disclosing the gender, country of origin and state, if available, date of birth, wage, level of training, and occupation category, disaggregated by job and by visa category and subcategory.

SEC. 3610. ENFORCEMENT PROVISIONS.

(a) COMPLAINTS AND INVESTIGATIONS.—The Secretary—

(1) shall establish a process for the receipt, investigation, and disposition of complaints filed by any person, including complaints respecting a foreign labor contractor's compliance with this subtitle; and

(2) either pursuant to the process required by paragraph (1) or otherwise, may investigate employers or foreign labor contractors, including actions occurring in a foreign country, as necessary to determine compliance with this subtitle.

(b) ENFORCEMENT.—

(1) IN GENERAL.—A worker who believes that he or she has suffered a violation of this subtitle may seek relief from an employer by—

(A) filing a complaint with the Secretary within 3 years after the date on which the violation occurred or date on which the employee became aware of the violation; or

(B) if the Secretary has not issued a final decision within 120 days of the filing of the complaint and there is no showing that such delay is due to the bad faith of the claimant, bringing an action at law or equity for de novo review in the appropriate district court of the United States, which shall have jurisdiction over such an action without regard to the amount in controversy.

(2) PROCEDURE.—

(A) IN GENERAL.—Unless otherwise provided herein, a complaint under paragraph (1)(A) shall be governed under the rules and procedures set forth in paragraphs (1) and (2)(A) of section 42121(b) of title 49, United States Code.

(B) EXCEPTION.—Notification of a complaint under paragraph (1)(A) shall be made to each person or entity named in the complaint as a defendant and to the employer.

(C) STATUTE OF LIMITATIONS.—An action filed in a district court of the United States under paragraph (1)(B) shall be commenced not later than 180 days after the last day of the 120-day period referred to in that paragraph.

(D) JURY TRIAL.—A party to an action brought under paragraph (1)(B) shall be entitled to trial by jury.

(c) ADMINISTRATIVE ENFORCEMENT.—

(1) IN GENERAL.—If the Secretary finds, after notice and an opportunity for a hearing, any foreign labor contractor or employer failed to comply with any of the requirements of this subtitle, the Secretary may impose the following against such contractor or employer—

(A) a fine in an amount not more than $10,000 per violation; and

(B) upon the occasion of a third violation or a failure to comply with representations, a fine of not more than $25,000 per violation.

(d) AUTHORITY TO ENSURE COMPLIANCE.—The Secretary is authorized to take other such actions, including issuing subpoenas and seeking appropriate injunctive relief and recovery of damages, as may be necessary to assure compliance with the terms and conditions of this subtitle.

(e) BONDING.—Pursuant to the bonding requirement in section 3606, bond liquidation and forfeitures shall be in addition to other remedies under this section or any other law.

(f) CIVIL ACTION.—

(1) IN GENERAL.—The Secretary or any person aggrieved by a violation of this subtitle may bring a civil action against any foreign labor contractor that does not meet the requirements under subsection (g)(2) in any court of competent jurisdiction—

(A) to seek remedial action, including injunctive relief;

(B) to recover damages on behalf of any worker harmed by a violation of this subsection; and

(C) to ensure compliance with requirements of this section.

(2) ACTIONS BY THE SECRETARY OF HOMELAND SECURITY.—

(A) SUMS RECOVERED.—Any sums recovered by the Secretary on behalf of a worker under paragraph (1) or through liquidation of the bond held pursuant to section 3606 shall be held in a special deposit account and shall be paid, on order of the Secretary, directly to each worker affected. Any such sums not paid to a worker because of inability to do so within a period of 5 years shall be credited as an offsetting collection to the appropriations account of the Secretary for expenses for the administration of this section and shall remain available to the Secretary until expended or may be used for enforcement of the laws within the jurisdiction of the wage and hour division or may be transferred to the Secretary of Health and Human Services for the purpose of providing support to programs that provide assistance to victims of trafficking in persons or other exploited persons. The Secretary shall work with any attorney or organization representing workers to locate workers owed sums under this section.

(B) REPRESENTATION.—Except as provided in section 518(a) of title 28, United States Code, the Attorney General may appear for and represent the Secretary in any civil litigation brought under this paragraph. All such litigation shall be subject to the direction and control of the Attorney General.

(3) ACTIONS BY INDIVIDUALS.—

(A) AWARD.—If the court finds in a civil action filed by an individual under this section that the defendant has violated any provision of this subtitle (or any regulation issued pursuant to this subtitle), the court may award—

(i) damages, up to and including an amount equal to the amount of actual damages, and statutory damages of up to $1,000 per plaintiff per violation, or other equitable relief, except that with respect to statutory damages—

(I) multiple infractions of a single provision of this subtitle (or of a regulation under this subtitle) shall constitute only 1 violation for purposes of section 3602(a) to determine the amount of statutory damages due a plaintiff; and

(II) if such complaint is certified as a class action the court may award—

(aa) damages up to an amount equal to the amount of actual damages; and

(bb) statutory damages of not more than the lesser of up to $1,000 per class member per violation, or up to $500,000; and other equitable relief;

(ii) reasonable attorneys' fees and costs; and

(iii) such other and further relief, including declaratory and injunctive relief, as necessary to effectuate the purposes of this subtitle.

(B) CRITERIA.—In determining the amount of statutory damages to be awarded under subparagraph (A), the court is authorized to consider whether an attempt was made to resolve the issues in dispute before the resort to litigation.

(C) BOND.—To satisfy the damages, fees, and costs found owing under this clause, the Secretary shall release as much of the bond held pursuant to section 3606 as necessary.

(D) APPEAL.—Any civil action brought under this section shall be subject to appeal as provided in chapter 83 of title 28, United States Code (28 U.S.C. 1291 et seq.).

(E) ACCESS TO LEGAL SERVICES CORPORATION.—Notwithstanding any other provision of law, the Legal Services Corporation and recipients of its funding may provide legal assistance on behalf of any alien with respect to any provision of this subtitle.

(g) AGENCY LIABILITY.—

(1) IN GENERAL.—Beginning 180 days after the Secretary has promulgated regulations pursuant to section 3605(c), an employer who retains the services of a foreign labor contractor shall only use those foreign labor contractors who are registered under section 3605.

(2) SAFE HARBOR.—An employer shall not have any liability under this section if the employer hires workers referred by a foreign labor contractor that has a valid registration with the Department pursuant to section 3604.

(3) LIABILITY FOR AGENTS.—Foreign labor contractors shall be subject to the provisions of this section for violations committed by the foreign labor contractor's agents or subcontractees of any level in relation to their foreign labor contracting activity to the same extent as if the foreign labor contractor had committed the violation.

(h) RETALIATION.—

(1) IN GENERAL.—No person shall intimidate, threaten, restrain, coerce, discharge, or in any other manner discriminate or retaliate against any worker or their family members (including a former employee or an applicant for employment) because such worker disclosed information to any person that the worker reasonably believes evidences a violation of this section (or any rule or regulation pertaining to this section), including seeking legal assistance of counsel or cooperating with an investigation or other proceeding concerning compliance with this section (or any rule or regulation pertaining to this section).

(2) ENFORCEMENT.—An individual who is subject to any conduct described in paragraph (1) may, in a civil action, recover appropriate relief, including reasonable attorneys' fees and costs, with respect to that violation. Any civil action under this subparagraph shall be stayed during the pendency of any criminal action arising out of the violation.

(i) WAIVER OF RIGHTS.—Agreements by employees purporting to waive or to modify their rights under this subtitle shall be void as contrary to public policy.

(j) PRESENCE DURING PENDENCY OF ACTIONS.—

(1) IN GENERAL.—If other immigration relief is not available, the Attorney General and the Secretary shall grant advance parole to permit a nonimmigrant to remain legally in the United States for time sufficient to fully and effectively participate in all legal

proceedings related to any action taken pursuant to this section.

(2) REGULATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall promulgate regulations to carry out paragraph (1).

SEC. 3611. DETECTING AND PREVENTING CHILD TRAFFICKING.

The Secretary shall mandate the live training of all U.S. Customs and Border Protection personnel who are likely to come into contact with unaccompanied alien children. Such training shall incorporate the services of child welfare professionals with expertise in culturally competent, trauma-centered, and developmentally appropriate interviewing skills to assist U.S. Customs and Border Protection in the screening of children attempting to enter the United States.

SEC. 3612. PROTECTING CHILD TRAFFICKING VICTIMS.

(a) SHORT TITLE.—This section may be cited as the ''Child Trafficking Victims Protection Act''.

(b) DEFINED TERM.—In this section, the term ''unaccompanied alien children'' has the meaning given such term in section 462 of the Homeland Security Act of 2002 (6 U.S.C. 279).

(c) CARE AND TRANSPORTATION.—Notwithstanding any other provision of law, the Secretary shall ensure that all unaccompanied alien children who will undergo any immigration proceedings before the Department or the Executive Office for Immigration Review are duly transported and placed in the care and legal and physical custody of the Office of Refugee Resettlement not later than 72 hours after their apprehension absent exceptional circumstances, including a natural disaster or comparable emergency beyond the control of the Secretary or the Office of Refugee Resettlement. The Secretary, to the extent practicable, shall ensure that female officers are continuously present during the transfer and transport of female detainees who are in the custody of the Department.

(d) QUALIFIED RESOURCES.—

(1) IN GENERAL.—The Secretary shall provide adequately trained and qualified staff and resources, including the accommodation of child welfare officials, in accordance with subsection (e), at U.S. Customs and Border Protection ports of entry and stations.

(2) CHILD WELFARE PROFESSIONALS.—The Secretary of Health and Human Services, in consultation with the Secretary, shall hire, on a full- or part-time basis, child welfare professionals who will provide assistance, either in person or by other appropriate methods of communication, in not fewer than 7 of the U.S. Customs and Border Protection offices or stations with the largest number of unaccompanied alien child apprehensions in the previous fiscal year.

(e) CHILD WELFARE PROFESSIONALS.—

(1) IN GENERAL.—The Secretary, in consultation with the Secretary of Health and Human Services, shall ensure that qualified child welfare professionals with expertise in culturally competent, trauma-centered, and developmentally appropriate interviewing skills are available at each major port of entry described in subsection (d).

(2) DUTIES.—Child welfare professionals described in paragraph (1) shall—

(A) develop guidelines for treatment of unaccompanied alien children in the custody of the Department;

(B) conduct screening of all unaccompanied alien children in accordance with section 235(a)(4) of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1232(a)(4));

(C) notify the Department and the Office of Refugee Resettlement of children that potentially meet the notification and transfer requirements set forth in subsections (a) and (b) of section 235 of such Act (8 U.S.C. 1232);

(D) interview adult relatives accompanying unaccompanied alien children;

(E) provide an initial family relationship and trafficking assessment and recommendations regarding unaccompanied alien children's initial placements to the Office of Refugee Resettlement, which shall be conducted in accordance with the time frame set forth in subsections (a)(4) and (b)(3) of section 235 of such Act (8 U.S.C. 1232); and

(F) ensure that each unaccompanied alien child in the custody of U.S. Customs and Border Protection—

(i) receives emergency medical care when necessary;

(ii) receives emergency medical and mental health care that complies with the standards adopted pursuant to section 8(c) of the Prison Rape Elimination Act of 2003 (42 U.S.C. 15607(c)) whenever necessary, including in cases in which a child is at risk to harm himself, herself, or others;

(iii) is provided with climate appropriate clothing, shoes, basic personal hygiene and sanitary products, a pillow, linens, and sufficient blankets to rest at a comfortable temperature;

(iv) receives adequate nutrition;

(v) enjoys a safe and sanitary living environment;

(vi) has access to daily recreational programs and activities if held for a period longer than 24 hours;

(vii) has access to legal services and consular officials; and

(viii) is permitted to make supervised phone calls to family members.

(3) FINAL DETERMINATIONS.—The Office of Refugee Resettlement in accordance with applicable policies and procedures for sponsors, shall submit final determinations on family relationships to the Secretary, who shall consider such adult relatives for community-based support alternatives to detention.

(4) REPORT.—Not later than 18 months after the date of the enactment of this Act, and annually thereafter, the Secretary shall submit a report to Congress that—

(A) describes the screening procedures used by the child welfare professionals to screen unaccompanied alien children;

(B) assesses the effectiveness of such screenings; and

(C) includes data on all unaccompanied alien children who were screened by child welfare professionals;

(f) IMMEDIATE NOTIFICATION.—The Secretary shall notify the Office of Refugee Resettlement of an unaccompanied alien child in the custody of the Department as soon as practicable, but generally not later than 48 hours after the Department encounters the child, to effectively and efficiently coordinate the child's transfer to and placement with the Office of Refugee Resettlement.

(g) NOTICE OF RIGHTS AND RIGHT TO ACCESS TO COUNSEL.—

(1) IN GENERAL.—The Secretary shall ensure that all unaccompanied alien children, upon apprehension, are provided—

(A) an interview and screening with a child welfare professional described in subsection (e)(1); and

(B) an orientation and oral and written notice of their rights under the Immigration and Nationality Act, including—

(i) their right to relief from removal;

(ii) their right to confer with counsel (as guaranteed under section 292 of such Act (8 U.S.C. 1362)), family, or friends while in the temporary custody of the Department; and

(iii) relevant complaint mechanisms to report any abuse or misconduct they may have experienced.

(2) LANGUAGES.—The Secretary shall ensure that—

(A) the video orientation and written notice of rights described in paragraph (1) is available in English and in the 5 most common native languages spoken by the unaccompanied children held in custody at that location during the preceding fiscal year; and

(B) the oral notice of rights is available in English and in the most common native language spoken by the unaccompanied children held in custody at that location during the preceding fiscal year.

(h) CONFIDENTIALITY.—The Secretary of Health and Human Services shall maintain the privacy and confidentiality of all information gathered in the course of providing care, custody, placement, and follow-up services to unaccompanied alien children, consistent with the best interest of the unaccompanied alien child, by not disclosing such information to other government agencies or nonparental third parties unless such disclosure is—

(1) recorded in writing and placed in the child's file;

(2) in the child's best interest; and

(3)(A) authorized by the child or by an approved sponsor in accordance with section 235 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1232) and the Health Insurance Portability and Accountability Act (Public Law 104–191); or

(B) provided to a duly recognized law enforcement entity to prevent imminent and serious harm to another individual.

(i) OTHER POLICIES AND PROCEDURES.—The Secretary shall adopt fundamental child protection policies and procedures—

(1) for reliable age determinations of children, developed in consultation with medical and child welfare experts, which exclude the use of fallible forensic testing of children's bone and teeth;

(2) to utilize all legal authorities to defer the child's removal if the child faces a risk of life-threatening harm upon return including due to the child's mental health or medical condition; and

(3) to ensure, in accordance with the Juvenile Justice and Delinquency Prevention Act of 1974 (42 U.S.C. 5601 et seq.), that unaccompanied alien children, while in detention, are—

(A) physically separated from any adult who is not an immediate family member; and

(B) separated from—

(i) immigration detainees and inmates with criminal convictions;

(ii) pretrial inmates facing criminal prosecution; and

(iii) inmates exhibiting violent behavior.

(j) REPATRIATION AND REINTEGRATION PROGRAM.—

(1) IN GENERAL.—The Administrator of the United States Agency for International Development, in conjunction with the Secretary, the Secretary of Health and Human Services, the Attorney General, international organizations, and nongovernmental organizations in the United States with expertise in repatriation and reintegration, shall create a multi-year program to develop and implement best practices and sustainable programs in the United States and within the country of return to ensure the safe and sustainable repatriation and reintegration of unaccompanied alien children into their country of nationality or of last habitual residence, including placement with their families, legal guardians, or other sponsoring agencies.

(2) REPORT ON REPATRIATION AND REINTEGRATION OF UNACCOMPANIED ALIEN CHILDREN.—Not later than 18 months after the

date of the enactment of this Act, and annually thereafter, the Administrator of the Agency for International Development shall submit a substantive report to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives on efforts to improve repatriation and reintegration programs for unaccompanied alien children.

(k) TRANSFER OF FUNDS.—

(1) AUTHORIZATION.—The Secretary, in accordance with a written agreement between the Secretary and the Secretary of Health and Human Services, shall transfer such amounts as may be necessary to carry out the duties described in subsection (f)(2) from amounts appropriated for U.S. Customs and Border Protection to the Department of Health and Human Services.

(2) REPORT.—Not later than 15 days before any proposed transfer under paragraph (1), the Secretary of Health and Human Services, in consultation with the Secretary, shall submit a detailed expenditure plan that describes the actions proposed to be taken with amounts transferred under such paragraph to—

(A) the Committee on Appropriations of the Senate; and

(B) the Committee on Appropriations of the House of Representatives.

SEC. 3613. RULE OF CONSTRUCTION.

Nothing in this subtitle shall be construed to preempt or alter any other rights or remedies, including any causes of action, available under any other Federal or State law.

SEC. 3614. REGULATIONS.

The Secretary shall, in consultation with the Secretary of Labor, prescribe regulations to implement this subtitle and to develop policies and procedures to enforce the provisions of this subtitle.

Subtitle G—Interior Enforcement

SEC. 3701. CRIMINAL STREET GANGS.

(a) INADMISSIBILITY.—Section 212(a)(2) (8 U.S.C. 1182(a)(2)) is amended by inserting after subparagraph (I) the following:

''(J) ALIENS IN CRIMINAL STREET GANGS.—

''(i) IN GENERAL.—Any alien is inadmissible—

''(I) who has been convicted of an offense for which an element was active participation in a criminal street gang (as defined in section 521(a) of title 18, United States Code) and the alien—

''(aa) had knowledge that the gang's members engaged in or have engaged in a continuing series of offenses described in section 521(c) of title 18, United States Code; and

''(bb) acted with the intention to promote or further the felonious activities of the criminal street gang or maintain or increase his or her position in the gang; or

''(II) subject to clause (ii), who is 18 years of age or older, who is physically present outside the United States, whom the Secretary determines by clear and convincing evidence, based upon law enforcement information deemed credible by the Secretary, has, since the age of 18, knowingly and willingly participated in a criminal street gang with knowledge that such participation promoted or furthered the illegal activity of the gang.

''(ii) WAIVER.—The Secretary may waive clause (i)(II) if the alien has renounced all association with the criminal street gang, is otherwise admissible, and is not a threat to the security of the United States.''.

(b) GROUNDS FOR DEPORTATION.—Section 237(a)(2) (8 U.S.C. 1227(a)(2)) is amended by adding at the end the following:

''(G) ALIENS ASSOCIATED WITH CRIMINAL STREET GANGS.—Any alien is removable who has been convicted of an offense for which an element was active participation in a criminal street gang (as defined in section 521(a) of title 18, United States Code), and the alien—

''(i) had knowledge that the gang's members engaged in or have engaged in a continuing series of offenses described in section 521(c) of title 18, United States Code; and

''(ii) acted with the intention to promote or further the felonious activities the criminal street gang or increase his or her position in such gang.''.

(c) GROUND OF INELIGIBILITY FOR REGISTERED PROVISIONAL IMMIGRANT STATUS.—

(1) IN GENERAL.—An alien who is 18 years of age or older is ineligible for registered provisional immigrant status if the Secretary determines that the alien—

(A) has been convicted of an offense for which an element was active participation in a criminal street gang (as defined in section 521(a) of title 18, United States Code, and the alien—

(i) had knowledge that the gang's members engaged in or have engaged in a continuing series of offenses described in section 521(c) of title 18, United States Code; and

(ii) acted with the intention to promote or further the felonious activities of the criminal street gang or maintain or increase his or her position in such gang; or

(B) subject to paragraph (2), any alien who is 18 years of age or older whom the Secretary determines by clear and convincing evidence, based upon law enforcement information deemed credible by the Secretary, has, since the age of 18, knowingly and willingly participated in a such gang with knowledge that such participation promoted or furthered the illegal activity of such gang.

(2) WAIVER.—The Secretary may waive the application of paragraph (1)(B) if the alien has renounced all association with the criminal street gang, is otherwise admissible, and is not a threat to the security of the United States.

SEC. 3702. BANNING HABITUAL DRUNK DRIVERS FROM THE UNITED STATES.

(a) GROUNDS FOR INADMISSIBILITY.—Section 212(a)(2) (8 U.S.C. 1182(a)(2)), as amended by section 3701(a), is further amended—

(1) by redesignating subparagraph (F) as subparagraph (L); and

(2) by inserting after subparagraph (E) the following:

''(F) HABITUAL DRUNK DRIVERS.—An alien convicted of 3 or more offenses for driving under the influence or driving while intoxicated on separate dates is inadmissible.''.

(b) GROUNDS FOR DEPORTATION.—Section 237(a)(2) (8 U.S.C. 1227(a)(2)), as amended by section 3701(b), is further amended by adding at the end the following:

''(H) HABITUAL DRUNK DRIVERS.—An alien convicted of 3 or more offenses for driving under the influence or driving while intoxicated, at least 1 of which occurred after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, is deportable.''.

(c) IN GENERAL.—

(1) AGGRAVATED FELONY.—Section 101(a)(43)(F) (8 U.S.C. 1101(a)(43)(F)) is amended by striking ''for which the term of imprisonment'' and inserting '', including a third drunk driving conviction, for which the term of imprisonment is''.

(2) EFFECTIVE DATE AND APPLICATION.—

(A) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect on the date of the enactment of this Act.

(B) APPLICATION.—

(i) IN GENERAL.—Except as provided in subparagraph (ii), the amendment made by paragraph (1) shall apply to a conviction for drunk driving that occurred before, on, or after such date of enactment.

(ii) TWO OR MORE PRIOR CONVICTIONS.—An alien who received 2 or more convictions for drunk driving before the date of the enactment of this Act may not be subject to removal for the commission of an aggravated felony pursuant to section 237(a)(2)(A)(iii) of the Immigration and Nationality Act (8 U.S.C. 1227(a)(2)(A)(iii)) on the basis of such convictions until the date on which the alien is convicted of a drunk driving offense after such date of enactment.

SEC. 3703. SEXUAL ABUSE OF A MINOR.

Section 101(a)(43)(A) (8 U.S.C. 1101(a)(43)(A)) is amended by striking ''murder, rape, or sexual abuse of a minor;'' and inserting ''murder, rape, or sexual abuse of a minor, whether or not the minority of the victim is established by evidence contained in the record of conviction or by credible evidence extrinsic to the record of conviction;''.

SEC. 3704. ILLEGAL ENTRY.

(a) IN GENERAL.—Section 275 (8 U.S.C. 1325) is amended to read as follows:

''SEC. 275. ILLEGAL ENTRY.

''(a) IN GENERAL.—

''(1) CRIMINAL OFFENSES.—An alien shall be subject to the penalties set forth in paragraph (2) if the alien—

''(A) enters or crosses the border into the United States at any time or place other than as designated by the Secretary of Homeland Security;

''(B) eludes examination or inspection by an immigration officer, or a customs or agriculture inspection at a port of entry; or

''(C) enters or crosses the border to the United States by means of a knowingly false or misleading representation or the concealment of a material fact.

''(2) CRIMINAL PENALTIES.—Any alien who violates any provision under paragraph (1)—

''(A) shall, for the first violation, be fined under title 18, United States Code, imprisoned not more than 12 months, or both;

''(B) shall, for a second or subsequent violation, or following an order of voluntary departure, be fined under such title, imprisoned not more than 3 years, or both;

''(C) if the violation occurred after the alien had been convicted of 3 or more misdemeanors with the convictions occurring on different dates or of a felony for which the alien served a term of imprisonment of 15 days or more, shall be fined under such title, imprisoned not more than 10 years, or both; and

''(D) if the violation occurred after the alien had been convicted of a felony for which the alien was sentenced to a term of imprisonment of not less than 30 months, shall be fined under such title, imprisoned not more than 15 years, or both.

''(3) PRIOR CONVICTIONS.—The prior convictions described in subparagraphs (C) and (D) of paragraph (2) are elements of the offenses described in that paragraph and the penalties in such subparagraphs shall apply only in cases in which the conviction or convictions that form the basis for the additional penalty are—

''(A) alleged in the indictment or information; and

''(B) proven beyond a reasonable doubt at trial or admitted by the defendant under oath as part of a plea agreement.

''(b) IMPROPER TIME OR PLACE; CIVIL PENALTIES.—Any alien older than 18 years of age who is apprehended while knowingly entering, attempting to enter, or crossing or attempting to cross the border to the United States at a time or place other than as designated by immigration officers shall be subject to a civil penalty, in addition to any criminal or other civil penalties that may be imposed under any other provision of law, in an amount equal to—

''(1) not less than $250 or more than $5,000 for each such entry, crossing, attempted entry, or attempted crossing; or

''(2) twice the amount specified in paragraph (1) if the alien had previously been

subject to a civil penalty under this subsection.

''(c) FRAUDULENT MARRIAGE.—An individual who knowingly enters into a marriage for the purpose of evading any provision of the immigration laws shall be imprisoned for not more than 5 years, fined not more than $250,000, or both.

''(d) COMMERCIAL ENTERPRISES.—Any individual who knowingly establishes a commercial enterprise for the purpose of evading any provision of the immigration laws shall be imprisoned for not more than 5 years, fined in accordance with title 18, United States Code, or both.''.

(b) CLERICAL AMENDMENT.—The table of contents is amended by striking the item relating to section 275 and inserting the following:

''Sec. 275. Illegal entry.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect 1 year after the date of the enactment of this Act.

SEC. 3705. REENTRY OF REMOVED ALIEN.

Section 276 (8 U.S.C. 1326) is amended to read as follows:

''SEC. 276. REENTRY OF REMOVED ALIEN.

''(a) REENTRY AFTER REMOVAL.—Any alien who has been denied admission, excluded, deported, or removed, or who has departed the United States while an order of exclusion, deportation, or removal is outstanding, and subsequently enters, attempts to enter, crosses the border to, attempts to cross the border to, or is at any time found in the United States, shall be fined under title 18, United States Code, and imprisoned not more than 2 years.

''(b) REENTRY OF CRIMINAL OFFENDERS.—Notwithstanding the penalty provided in subsection (a), if an alien described in that subsection—

''(1) was convicted for 3 or more misdemeanors, with the convictions occurring on different dates, before such removal or departure, the alien shall be fined under title 18, United States Code, and imprisoned not more than 10 years, or both;

''(2) was convicted for a felony before such removal or departure for which the alien was sentenced to a term of imprisonment of not less than 30 months, the alien shall be fined under such title, and imprisoned not more than 15 years, or both;

''(3) was convicted for a felony before such removal or departure for which the alien was sentenced to a term of imprisonment of not less than 60 months, the alien shall be fined under such title, and imprisoned not more than 20 years, or both;

''(4) was convicted for 3 felonies, with the convictions occurring on different dates before such removal or departure, the alien shall be fined under such title, and imprisoned not more than 20 years, or both; or

''(5) was convicted, before such removal or departure, for murder, rape, kidnapping, or a felony offense described in chapter 77 (relating to peonage and slavery) or 113B (relating to terrorism) of such title, the alien shall be fined under such title, and imprisoned not more than 20 years, or both.

''(c) REENTRY AFTER REPEATED REMOVAL.—Any alien who has been denied admission, excluded, deported, or removed 3 or more times and thereafter enters, attempts to enter, crosses the border to, attempts to cross the border to, or is at any time found in the United States, shall be fined under title 18, United States Code, and imprisoned not more than 10 years, or both.

''(d) PROOF OF PRIOR CONVICTIONS.—The prior convictions described in subsection (b) are elements of the offenses described in that subsection, and the penalties in such subsection shall apply only in cases in which the conviction or convictions that form the basis for the additional penalty are—

''(1) alleged in the indictment or information; and

''(2) proven beyond a reasonable doubt at trial or admitted by the defendant under oath as part of a plea agreement.

''(e) AFFIRMATIVE DEFENSES.—It shall be an affirmative defense to a violation of this section that—

''(1) prior to the alleged violation, the alien had sought and received the express consent of the Secretary of Homeland Security to reapply for admission into the United States; or

''(2) at the time of the prior exclusion, deportation, removal, or denial of admission alleged in the violation, the alien had not yet reached 18 years of age and had not been convicted of a crime or adjudicated a delinquent minor by a court of the United States, or a court of a state or territory, for conduct that would constitute a felony if committed by an adult.

''(f) LIMITATION ON COLLATERAL ATTACK ON UNDERLYING DEPORTATION ORDER.—In a criminal proceeding under this section, an alien may not challenge the validity of the deportation order described in subsection (a) or subsection (c) unless the alien demonstrates that—

''(1) the alien exhausted any administrative remedies that may have been available to seek relief against the order;

''(2) the deportation proceedings at which the order was issued improperly deprived the alien of the opportunity for judicial review; and

''(3) the entry of the order was fundamentally unfair.

''(g) REENTRY OF ALIEN REMOVED PRIOR TO COMPLETION OF TERM OF IMPRISONMENT.—Any alien removed pursuant to section 241(a)(4) who enters, attempts to enter, crosses the border to, attempts to cross the border to, or is at any time found in, the United States shall be incarcerated for the remainder of the sentence of imprisonment which was pending at the time of deportation without any reduction for parole or supervised release unless the alien affirmatively demonstrates that the Secretary of Homeland Security has expressly consented to the alien's reentry or the alien is prima facie eligible for protection from removal. Such alien shall be subject to such other penalties relating to the reentry of removed aliens as may be available under this section or any other provision of law.

''(h) LIMITATION.—It is not aiding and abetting a violation of this section for an individual to provide an alien with emergency humanitarian assistance, including emergency medical care and food, or to transport the alien to a location where such assistance can be rendered without compensation or the expectation of compensation.

''(i) DEFINITIONS.—In this section:

''(1) FELONY.—The term 'felony' means any criminal offense punishable by a term of imprisonment of more than 1 year under the laws of the United States, any State, or a foreign government.

''(2) MISDEMEANOR.—The term 'misdemeanor' means any criminal offense punishable by a term of imprisonment of not more than 1 year under the applicable laws of the United States, any State, or a foreign government.

''(3) REMOVAL.—The term 'removal' includes any denial of admission, exclusion, deportation, or removal, or any agreement by which an alien stipulates or agrees to exclusion, deportation, or removal.

''(4) STATE.—The term 'State' means a State of the United States, the District of Columbia, and any commonwealth, territory, or possession of the United States.''.

SEC. 3706. PENALTIES RELATING TO VESSELS AND AIRCRAFT.

Section 243(c) (8 U.S.C. 1253(c)) is amended—

(1) by striking ''Attorney General'' each place such term appears and inserting ''Secretary of Homeland Security'';

(2) by striking ''Commissioner'' each place such term appears and inserting ''Secretary of Homeland Security''; and

(3) in paragraph (1)—

(A) in subparagraph (A), by striking ''$2,000'' and inserting ''$5,000'';

(B) in subparagraph (B), by striking ''$5,000'' and inserting ''$10,000'';

(C) by amending subparagraph (C) to read as follows:

''(C) COMPROMISE.—The Secretary of Homeland Security, in the Secretary's unreviewable discretion and upon the receipt of a written request, may mitigate the monetary penalties required under this subsection for each alien stowaway to an amount equal to not less than $2,000, upon such terms that the Secretary determines to be appropriate.''; and

(D) by inserting at the end the following:

''(D) EXCEPTION.—A person, acting without compensation or the expectation of compensation, is not subject to penalties under this paragraph if the person is—

''(i) providing, or attempting to provide, an alien with humanitarian assistance, including emergency medical care or food or water; or

''(ii) transporting the alien to a location where such humanitarian assistance can be rendered without compensation or the expectation of compensation.''.

SEC. 3707. REFORM OF PASSPORT, VISA, AND IMMIGRATION FRAUD OFFENSES.

(a) TRAFFICKING IN PASSPORTS.—Section 1541 of title 18, United States Code, is amended to read as follows:

''§ 1541. Trafficking in passports

''(a) MULTIPLE PASSPORTS.—Subject to subsection (b), any person who, during any period of 3 years or less, knowingly—

''(1) and without lawful authority produces, issues, or transfers 3 or more passports;

''(2) forges, counterfeits, alters, or falsely makes 3 or more passports;

''(3) secures, possesses, uses, receives, buys, sells, or distributes 3 or more passports, knowing the passports to be forged, counterfeited, altered, falsely made, stolen, procured by fraud, or produced or issued without lawful authority; or

''(4) completes, mails, prepares, presents, signs, or submits 3 or more applications for a United States passport, knowing the applications to contain any materially false statement or representation,

shall be fined under this title, imprisoned not more than 20 years, or both.

''(b) USE IN A TERRORISM OFFENSE.—Any person who commits an offense described in subsection (a) to facilitate an act of international terrorism (as defined in section 2331) shall be fined under this title, imprisoned not more than 25 years, or both.

''(c) PASSPORT MATERIALS.—Any person who knowingly and without lawful authority produces, buys, sells, possesses, or uses any official material (or counterfeit of any official material) used to make 10 or more passports, including any distinctive paper, seal, hologram, image, text, symbol, stamp, engraving, or plate, shall be fined under this title, imprisoned not more than 20 years, or both.''.

(b) FALSE STATEMENT IN AN APPLICATION FOR A PASSPORTS.—Section 1542 of title 18, United States Code, is amended to read as follows:

"§ 1542. False statement in an application for a passport

''(a) IN GENERAL.—Any person who knowingly makes any material false statement or representation in an application for a United States passport, or mails, prepares, presents, or signs an application for a United States passport knowing the application to contain any material false statement or representation, shall be fined under this title, imprisoned not more than 25 years (if the offense was committed to facilitate an act of international terrorism (as defined in section 2331 of this title)), 20 years (if the offense was committed to facilitate a drug trafficking crime (as defined in section 929(a) of this title)), 15 years (in the case of any other offense), or both.

''(b) VENUE.—

''(1) IN GENERAL.—An offense under subsection (a) may be prosecuted in any district—

''(A) in which the false statement or representation was made or the application for a United States passport was prepared or signed; or

''(B) in which or to which the application was mailed or presented.

''(2) OFFENSES OUTSIDE THE UNITED STATES.—An offense under subsection (a) involving an application prepared and adjudicated outside the United States may be prosecuted in the district in which the resultant passport was or would have been produced.

''(c) SAVINGS CLAUSE.—Nothing in this section may be construed to limit the venue otherwise available under sections 3237 and 3238 of this title.''.

(c) MISUSE OF A PASSPORT.—Section 1544 of title 18, United States Code, is amended to read as follows:

"§ 1544. Misuse of a passport

''Any person who knowingly—

''(1) misuses or attempts to misuse for their own purposes any passport issued or designed for the use of another;

''(2) uses or attempts to use any passport in violation of the laws, regulations, or rules governing the issuance and use of the passport;

''(3) secures, possesses, uses, receives, buys, sells, or distributes or attempts to secure, possess, use, receive, buy, sell, or distribute any passport knowing the passport to be forged, counterfeited, altered, falsely made, procured by fraud, or produced or issued without lawful authority; or

''(4) substantially violates the terms and conditions of any safe conduct duly obtained and issued under the authority of the United States,

shall be fined under this title, imprisoned not more than 25 years (if the offense was committed to facilitate an act of international terrorism (as defined in section 2331 of this title)), 20 years (if the offense was committed to facilitate a drug trafficking crime (as defined in section 929(a) of this title)), 15 years (in the case of any other offense), or both.''.

(d) SCHEMES TO PROVIDE FRAUDULENT IMMIGRATION SERVICES.—Section 1545 of title 18, United States Code, is amended to read as follows:

"§ 1545. Schemes to provide fraudulent immigration services

''(a) IN GENERAL.—Any person who knowingly executes a scheme or artifice, in connection with any matter that is authorized by or arises under any Federal immigration law or any matter the offender claims or represents is authorized by or arises under any Federal immigration law, to—

''(1) defraud any person; or

''(2) obtain or receive money or anything else of value from any person by means of false or fraudulent pretenses, representations, or promises,

shall be fined under this title, imprisoned not more than 10 years, or both.

''(b) MISREPRESENTATION.—Any person who knowingly and falsely represents that such person is an attorney or an accredited representative (as that term is defined in section 1292.1 of title 8, Code of Federal Regulations (or any successor regulation)) in any matter arising under any Federal immigration law shall be fined under this title, imprisoned not more than 15 years, or both.''.

(e) IMMIGRATION AND VISA FRAUD.—Section 1546 of title 18, United States Code, is amended—

(1) by amending the section heading to read as follows:

"§ 1546. Immigration and visa fraud";

(2) by redesignating subsection (b) as subsection (d); and

(3) by inserting after subsection (a) the following new subsections:

''(b) TRAFFICKING.—Any person who, during any period of 3 years or less, knowingly—

''(1) and without lawful authority produces, issues, or transfers 3 or more immigration documents;

''(2) forges, counterfeits, alters, or falsely makes 3 or more immigration documents;

''(3) secures, possesses, uses, buys, sells, or distributes 3 or more immigration documents, knowing the immigration documents to be forged, counterfeited, altered, stolen, falsely made, procured by fraud, or produced or issued without lawful authority; or

''(4) completes, mails, prepares, presents, signs, or submits 3 or more immigration documents knowing the documents to contain any materially false statement or representation,

shall be fined under this title, imprisoned not more than 20 years, or both.

''(c) IMMIGRATION DOCUMENT MATERIALS.—Any person who knowingly and without lawful authority produces, buys, sells, possesses, or uses any official material (or counterfeit of any official material) used to make 10 or more immigration documents, including any distinctive paper, seal, hologram, image, text, symbol, stamp, engraving, or plate, shall be fined under this title, imprisoned not more than 20 years, or both.''.

(f) ALTERNATIVE IMPRISONMENT MAXIMUM FOR CERTAIN OFFENSES.—Section 1547 of title 18, United States Code, is amended—

(1) in the matter preceding paragraph (1), by striking ''(other than an offense under section 1545)'';

(2) in paragraph (1), by striking ''15'' and inserting ''20''; and

(3) in paragraph (2), by striking ''20'' and inserting ''25''.

(g) AUTHORIZED LAW ENFORCEMENT ACTIVITIES.—Chapter 75 of title 18, United States Code, is amended by adding after section 1547 the following:

"§ 1548. Authorized law enforcement activities

''Nothing in this chapter may be construed to prohibit—

''(1) any lawfully authorized investigative, protective, or intelligence activity of a law enforcement agency of the United States, a State, or a political subdivision of a State, or an intelligence agency of the United States; or

''(2) any activity authorized under title V of the Organized Crime Control Act of 1970 (Public Law 91–452; 84 Stat. 933).''.

(h) TABLE OF SECTIONS AMENDMENT.—The table of sections for chapter 75 of title 18, United States Code, is amended to read as follows:

''Sec.
''1541. Trafficking in passports.
''1542. False statement in an application for a passport.
''1543. Forgery or false use of a passport.
''1544. Misuse of a passport.
''1545. Schemes to provide fraudulent immigration services.
''1546. Immigration and visa fraud.
''1547. Alternative imprisonment maximum for certain offenses.
''1548. Authorized law enforcement activities.''.

SEC. 3708. COMBATING SCHEMES TO DEFRAUD ALIENS.

(a) REGULATIONS, FORMS, AND PROCEDURES.—The Secretary and the Attorney General, for matters within their respective jurisdictions arising under the immigration laws, shall promulgate appropriate regulations, forms, and procedures defining the circumstances in which—

(1) persons submitting applications, petitions, motions, or other written materials relating to immigration benefits or relief from removal under the immigration laws will be required to identify who (other than immediate family members) assisted them in preparing or translating the immigration submissions; and

(2) any person or persons who received compensation (other than a nominal fee for copying, mailing, or similar services) in connection with the preparation, completion, or submission of such materials will be required to sign the form as a preparer and provide identifying information.

(b) CIVIL INJUNCTIONS AGAINST IMMIGRATION SERVICE PROVIDER.—The Attorney General may commence a civil action in the name of the United States to enjoin any immigration service provider from further engaging in any fraudulent conduct that substantially interferes with the proper administration of the immigration laws or who willfully misrepresents such provider's legal authority to provide representation before the Department of Justice or the Department.

(c) DEFINITIONS.—In this section:

(1) IMMIGRATION LAWS.—The term ''immigration laws'' has the meaning given that term in section 101(a)(17) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(17)).

(2) IMMIGRATION SERVICE PROVIDER.—The term ''immigration service provider'' means any individual or entity (other than an attorney or individual otherwise authorized to provide representation in immigration proceedings as provided in Federal regulation) who, for a fee or other compensation, provides any assistance or representation to aliens in relation to any filing or proceeding relating to the alien which arises, or which the provider claims to arise, under the immigration laws, executive order, or presidential proclamation.

SEC. 3709. INADMISSIBILITY AND REMOVAL FOR PASSPORT AND IMMIGRATION FRAUD OFFENSES.

(a) INADMISSIBILITY.—Section 212(a)(2)(A)(i) (8 U.S.C. 1182(a)(2)(A)(i)) is amended—

(1) in subclause (I), by striking '', or'' at the end and inserting a semicolon;

(2) in subclause (II), by striking the comma at the end and inserting ''; or''; and

(3) by inserting after subclause (II) the following:

''(III) a violation of section 1541, 1545, and subsection (b) of section 1546 of title 18, United States Code,''.

(b) REMOVAL.—Section 237(a)(3)(B)(iii) (8 U.S.C. 1227(a)(3)(B)(iii)) is amended to read as follows:

''(iii) of a violation of section 1541, 1545, and subsection (b) of section 1546 of title 18, United States Code,''.

(c) EFFECTIVE DATE.—The amendments made by subsections (a) and (b) shall apply to proceedings pending on or after the date of the enactment of this Act, with respect to conduct occurring on or after that date.

SEC. 3710. DIRECTIVES RELATED TO PASSPORT AND DOCUMENT FRAUD.

(a) DIRECTIVE TO THE UNITED STATES SENTENCING COMMISSION.—

(1) IN GENERAL.—Pursuant to the authority under section 994 of title 28, United States Code, the United States Sentencing Commission shall promulgate or amend the sentencing guidelines, policy statements, and official commentaries, if appropriate, related to passport fraud offenses, including the offenses described in chapter 75 of title 18, United States Code, as amended by section 3707, to reflect the serious nature of such offenses.

(2) REPORT.—Not later than 1 year after the date of the enactment of this Act, the United States Sentencing Commission shall submit a report on the implementation of this subsection to—

(A) the Committee on the Judiciary of the Senate; and

(B) the Committee on the Judiciary of the House of Representatives.

(b) PROTECTION FOR LEGITIMATE REFUGEES AND ASYLUM SEEKERS.—

(1) IN GENERAL.—

(A) REQUIREMENT FOR GUIDELINES.—The Attorney General, in consultation with the Secretary, shall develop binding prosecution guidelines for Federal prosecutors to ensure that each prosecution of an alien seeking entry into the United States by fraud is consistent with the United States treaty obligations under Article 31(1) of the Convention Relating to the Status of Refugees, done at Geneva July 28, 1951 (as made applicable by the Protocol Relating to the Status of Refugees, done at New York January 31, 1967 (19 UST 6223)).

(B) NO PRIVATE RIGHT OF ACTION.—The guidelines developed pursuant to subparagraph (A), and any internal office procedures related to such guidelines—

(i) are intended solely for the guidance of attorneys of the United States; and

(ii) are not intended to, do not, and may not be relied upon to, create any right or benefit, substantive or procedural, enforceable at law by any party in any administrative, civil, or criminal matter.

(2) PROTECTION OF VULNERABLE PERSONS.—A person described in paragraph (3) may not be prosecuted under chapter 75 of title 18, United States Code, or under section 275 or 276 of the Immigration and Nationality Act (8 U.S.C. 1325 and 1326), in connection with the person's entry or attempted entry into the United States until after the date on which the person's application for such protection, classification, or status has been adjudicated and denied in accordance with the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(3) PERSONS SEEKING PROTECTION, CLASSIFICATION, OR STATUS.—A person described in this paragraph is a person who—

(A) is seeking protection, classification, or status; and

(B)(i) has filed an application for asylum under section 208 of the Immigration and Nationality Act (8 U.S.C. 1158), withholding of removal under section 241(b)(3) of such Act (8 U.S.C. 1231(b)(3)), or relief under the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, done at New York, December 10, 1994, pursuant to title 8, Code of Federal Regulations;

(ii) indicates immediately after apprehension, that he or she intends to apply for such asylum, withholding of removal, or relief and promptly files the appropriate application;

(iii) has been referred for a credible fear interview, a reasonable fear interview, or an asylum-only hearing under section 235 of the Immigration and Nationality Act (8 U.S.C. 1225) or part 208 of title 8, Code of Federal Regulations; or

(iv) has filed an application for classification or status under—

(I) subparagraph (T) or (U) of paragraph (15), paragraph (27)(J), or paragraph (51) of section 101(a) of the Immigration and Nationality Act (8 U.S.C. 1101(a)); or

(II) section 216(c)(4)(C) or 240A(b)(2) of such Act (8 U.S.C. 1186a(c)(4)(C) and 1229b(b)(2)).

SEC. 3711. INADMISSIBLE ALIENS.

(a) DETERRING ALIENS ORDERED REMOVED FROM REMAINING IN THE UNITED STATES UNLAWFULLY.—Section 212(a)(9)(A) (8 U.S.C. 1182(a)(9)(A)) is amended—

(1) in clause (i), by striking ''seeks admission within 5 years of the date of such removal (or within 20 years'' and inserting ''seeks admission not later than 5 years after the date of the alien's removal (or not later than 20 years after the alien's removal''; and

(2) in clause (ii), by striking ''seeks admission within 10 years of the date of such alien's departure or removal (or within 20 years of'' and inserting ''seeks admission not later than 10 years after the date of the alien's departure or removal (or not later than 20 years after''.

(b) BIOMETRIC SCREENING.—Section 212 (8 U.S.C. 1182) is amended—

(1) in subsection (a)(7), by adding at the end the following:

''(C) WITHHOLDING INFORMATION.—Except as provided in subsection (d)(2), any alien who willfully, through his or her own fault, refuses to comply with a lawful request for biometric information is inadmissible.''; and

(2) in subsection (d), by inserting after paragraph (1) the following:

''(2) The Secretary may waive the application of subsection (a)(7)(C) for an individual alien or a class of aliens.''.

(c) PRECLUDING ADMISSIBILITY OF ALIENS CONVICTED OF SERIOUS CRIMINAL OFFENSES AND DOMESTIC VIOLENCE, STALKING, CHILD ABUSE, AND VIOLATION OF PROTECTION ORDERS.—

(1) INADMISSIBILITY ON CRIMINAL AND RELATED GROUNDS; WAIVERS.—Section 212 (8 U.S.C. 1182), as amended by this Act, is further amended—

(A) in subsection (a)(2), as amended by sections 3401 and 3402, is further amended by inserting after subparagraph (J) the following:

''(K) CRIMES OF DOMESTIC VIOLENCE, STALKING, OR VIOLATION OF PROTECTIVE ORDERS; CRIMES AGAINST CHILDREN.—

''(i) DOMESTIC VIOLENCE, STALKING, AND CHILD ABUSE.—

''(I) IN GENERAL.—Any alien who has been convicted of a crime of domestic violence, a crime of stalking, or a crime of child abuse, child neglect, or child abandonment, provided the alien served at least 1 year imprisonment for the crime, or provided the alien was convicted of offenses constituting more than 1 such crime, not arising out of a single scheme of criminal misconduct, is inadmissible.

''(II) CRIME OF DOMESTIC VIOLENCE DEFINED.—In this clause, the term 'crime of domestic violence' means any crime of violence (as defined in section 16 of title 18, United States Code) against a person committed by a current or former spouse of the person, by an individual with whom the person shares a child in common, by an individual who is cohabiting with or has cohabited with the person as a spouse, by an individual similarly situated to a spouse of the person under the domestic or family violence laws of the jurisdiction where the offense occurs, or by any other individual against a person who is protected from that individual's acts under the domestic or family violence laws of the United States or any State, Indian tribal government, or unit of local or foreign government.

''(ii) VIOLATORS OF PROTECTION ORDERS.—

''(I) IN GENERAL.—Any alien who at any time is enjoined under a protection order issued by a court and whom the court determines has engaged in conduct that constitutes criminal contempt of the portion of a protection order that involves protection against credible threats of violence, repeated harassment, or bodily injury to the person or persons for whom the protection order was issued, is inadmissible.

''(II) PROTECTION ORDER DEFINED.—In this clause, the term 'protection order' means any injunction issued for the purpose of preventing violent or threatening acts of domestic violence, including temporary or final orders issued by civil or criminal courts (other than support or child custody orders or provisions) whether obtained by filing an independent action or as an independent order in another proceeding.

''(iii) APPLICABILITY.—This subparagraph shall not apply to an alien who has been battered or subjected to extreme cruelty and who is not and was not the primary perpetrator of violence in the relationship, upon a determination by the Attorney General or the Secretary of Homeland Security that—

''(I) the alien was acting in self-defense;

''(II) the alien was found to have violated a protection order intended to protect the alien; or

''(III) the alien committed, was arrested for, was convicted of, or pled guilty to committing a crime that did not result in serious bodily injury.''; and

(B) in subsection (h)—

(i) by striking ''The Attorney General may, in his discretion, waive the application of subparagraphs (A)(i)(I), (B), (D), and (E) of subsection (a)(2)'' and inserting ''The Attorney General or the Secretary of Homeland Security may waive the application of subparagraphs (A)(i)(I), (B), (D), and (E) of subsection (a)(2)''; and

(ii) by inserting ''or the Secretary of Homeland Security'' after ''the Attorney General'' each place that term appears.

(2) EFFECTIVE DATE.—The amendments made by this subsection shall apply to any acts that occurred on or after the date of the enactment of this Act.

SEC. 3712. ORGANIZED AND ABUSIVE HUMAN SMUGGLING ACTIVITIES.

(a) ENHANCED PENALTIES.—

(1) IN GENERAL.—Title II (8 U.S.C. 1151 et seq.) is amended by adding at the end the following:

''SEC. 295. ORGANIZED HUMAN SMUGGLING.

''(a) PROHIBITED ACTIVITIES.—Whoever, while acting for profit or other financial gain, knowingly directs or participates in an effort or scheme to assist or cause 5 or more persons (other than a parent, spouse, or child of the offender)—

''(1) to enter, attempt to enter, or prepare to enter the United States—

''(A) by fraud, falsehood, or other corrupt means;

''(B) at any place other than a port or place of entry designated by the Secretary; or

''(C) in a manner not prescribed by the immigration laws and regulations of the United States; or

''(2) to travel by air, land, or sea toward the United States (whether directly or indirectly)—

''(A) knowing that the persons seek to enter or attempt to enter the United States without lawful authority; and

''(B) with the intent to aid or further such entry or attempted entry; or

''(3) to be transported or moved outside of the United States—

''(A) knowing that such persons are aliens in unlawful transit from 1 country to another or on the high seas; and

''(B) under circumstances in which the persons are in fact seeking to enter the United States without official permission or legal authority;

shall be punished as provided in subsection (c) or (d).

''(b) CONSPIRACY AND ATTEMPT.—Any person who attempts or conspires to violate subsection (a) of this section shall be punished in the same manner as a person who completes a violation of such subsection.

''(c) BASE PENALTY.—Except as provided in subsection (d), any person who violates subsection (a) or (b) shall be fined under title 18, imprisoned for not more than 20 years, or both.

''(d) ENHANCED PENALTIES.—Any person who violates subsection (a) or (b) shall—

''(1) in the case of a violation during and in relation to which a serious bodily injury (as defined in section 1365 of title 18) occurs to any person, be fined under title 18, imprisoned for not more than 30 years, or both;

''(2) in the case of a violation during and in relation to which the life of any person is placed in jeopardy, be fined under title 18, imprisoned for not more than 30 years, or both;

''(3) in the case of a violation involving 10 or more persons, be fined under title 18, imprisoned for not more than 30 years, or both;

''(4) in the case of a violation involving the bribery or corruption of a U.S. or foreign government official, be fined under title 18, imprisoned for not more than 30 years, or both;

''(5) in the case of a violation involving robbery or extortion (as those terms are defined in paragraph (1) or (2), respectively, of section 1951(b)) be fined under title 18, imprisoned for not more than 30 years, or both;

''(6) in the case of a violation during and in relation to which any person is subjected to an involuntary sexual act (as defined in section 2246(2) of title 18), be fined under title 18, imprisoned for not more than 30 years, or both; or

''(7) in the case of a violation resulting in the death of any person, be fined under title 18, imprisoned for any term of years or for life, or both.

''(e) LAWFUL AUTHORITY DEFINED.—

''(1) IN GENERAL.—In this section, the term 'lawful authority'—

''(A) means permission, authorization, or license that is expressly provided for in the immigration laws of the United States or accompanying regulations; and

''(B) does not include any such authority secured by fraud or otherwise obtained in violation of law, nor does it include authority sought, but not approved.

''(2) APPLICATION TO TRAVEL OR ENTRY.—No alien shall be deemed to have lawful authority to travel to or enter the United States if such travel or entry was, is, or would be in violation of law.

''(f) EFFORT OR SCHEME.—For purposes of this section, 'effort or scheme to assist or cause 5 or more persons' does not require that the 5 or more persons enter, attempt to enter, prepare to enter, or travel at the same time so long as the acts are completed within 1 year.

''SEC. 296. UNLAWFULLY HINDERING IMMIGRATION, BORDER, AND CUSTOMS CONTROLS.

''(a) ILLICIT SPOTTING.—Whoever knowingly transmits to another person the location, movement, or activities of any Federal, State, or tribal law enforcement agency with the intent to further a Federal crime relating to United States immigration, customs, controlled substances, agriculture, monetary instruments, or other border controls shall be fined under title 18, imprisoned not more than 10 years, or both.

''(b) DESTRUCTION OF UNITED STATES BORDER CONTROLS.—Whoever knowingly and without lawful authorization destroys, alters, or damages any fence, barrier, sensor, camera, or other physical or electronic device deployed by the Federal Government to control the border or a port of entry or otherwise seeks to construct, excavate, or make any structure intended to defeat, circumvent or evade any such fence, barrier, sensor camera, or other physical or electronic device deployed by the Federal government to control the border or a port of entry shall be fined under title 18, imprisoned not more than 10 years, or both, and if, at the time of the offense, the person uses or carries a firearm or who, in furtherance of any such crime, possesses a firearm, that person shall be fined under title 18, imprisoned not more than 20 years, or both.

''(c) CONSPIRACY AND ATTEMPT.—Any person who attempts or conspires to violate subsection (a) or (b) of this section shall be punished in the same manner as a person who completes a violation of such subsection.''.

(2) TABLE OF CONTENTS AMENDMENT.—The table of contents is amended by adding after the item relating to section 294 the following:

''Sec. 295. Organized human smuggling.
''Sec. 296. Unlawfully hindering immigration, border, and customs controls.''.

(b) PROHIBITING CARRYING OR USE OF A FIREARM DURING AND IN RELATION TO AN ALIEN SMUGGLING CRIME.—Section 924(c) of title 18, United States Code, is amended—

(1) in paragraph (1)—

(A) in subparagraph (A), by inserting '', alien smuggling crime,'' after ''crime of violence'' each place that term appears; and

(B) in subparagraph (D)(ii), by inserting '', alien smuggling crime,'' after ''crime of violence''; and

(2) by adding at the end the following:

''(6) For purposes of this subsection, the term 'alien smuggling crime' means any felony punishable under section 274(a), 277, or 278 of the Immigration and Nationality Act (8 U.S.C. 1324(a), 1327, and 1328).''.

(c) STATUTE OF LIMITATIONS.—Section 3298 of title 18, United States Code, is amended by inserting '', 295, 296, or 297'' after ''274(a)''.

SEC. 3713. PREVENTING CRIMINALS FROM RENOUNCING CITIZENSHIP DURING WARTIME.

Section 349(a) (8 U.S.C. 1481(a)) is amended—

(1) by striking paragraph (6) ; and

(2) redesignating paragraph (7) as paragraph (6).

SEC. 3714. DIPLOMATIC SECURITY SERVICE.

Paragraph (1) of section 37(a) of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2709(a)) is amended to read as follows:

''(1) conduct investigations concerning—

''(A) illegal passport or visa issuance or use;

''(B) identity theft or document fraud affecting or relating to the programs, functions, and authorities of the Secretary of State;

''(C) violations of chapter 77 of title 18, United States Code; and

''(D) Federal offenses committed within the special maritime and territorial jurisdiction of the United States (as defined in section 7(9) of title 18, United States Code);''.

SEC. 3715. SECURE ALTERNATIVES PROGRAMS.

(a) IN GENERAL.—The Secretary shall establish secure alternatives programs that incorporate case management services in each field office of the Department to ensure appearances at immigration proceedings and public safety.

(b) CONTRACT AUTHORITY.—The Secretary shall contract with nongovernmental community-based organizations to conduct screening of detainees, provide appearance assistance services, and operate community-based supervision programs. Secure alternatives shall offer a continuum of supervision mechanisms and options, including community support, depending on an assessment of each individual's circumstances. The Secretary may contract with nongovernmental organizations to implement secure alternatives that maintain custody over the alien.

(c) INDIVIDUALIZED DETERMINATIONS.—In determining whether to use secure alternatives, the Secretary shall make an individualized determination, and for each individual placed on secure alternatives, shall review the level of supervision on a monthly basis. Secure alternatives shall not be used when release on bond or recognizance is determined to be a sufficient measure to ensure appearances at immigration proceedings and public safety.

(d) CUSTODY.—The Secretary may use secure alternatives programs to maintain custody over any alien detained under the Immigration and Nationality Act, except for aliens detained under section 236A of such Act (8 U.S.C. 1226a). If an individual is not eligible for release from custody or detention, the Secretary shall consider the alien for placement in secure alternatives that maintain custody over the alien, including the use of electronic ankle devices.

SEC. 3716. OVERSIGHT OF DETENTION FACILITIES.

(a) DEFINITIONS.—In this section:

(1) APPLICABLE STANDARDS.—The term ''applicable standards'' means the most recent version of detention standards and detention-related policies issued by the Secretary or the Director of U.S. Immigration and Customs Enforcement.

(2) DETENTION FACILITY.—The term ''detention facility'' means a Federal, State, or local government facility, or a privately owned and operated facility, that is used, in whole or in part, to hold individuals under the authority of the Director of U.S. Immigration and Customs Enforcement, including facilities that hold such individuals under a contract or agreement with the Director.

(b) DETENTION REQUIREMENTS.—The Secretary shall ensure that all persons detained pursuant to the Immigration and Nationality Act (8 U.S.C. 1101 et seq.) are treated humanely and benefit from the protections set forth in this section.

(c) OVERSIGHT REQUIREMENTS.—

(1) ANNUAL INSPECTION.—All detention facilities shall be inspected by the Secretary on a regular basis, but not less than annually, for compliance with applicable detention standards issued by the Secretary and other applicable regulations.

(2) ROUTINE OVERSIGHT.—In addition to annual inspections, the Secretary shall conduct routine oversight of detention facilities, including unannounced inspections.

(3) AVAILABILITY OF RECORDS.—All detention facility contracts, memoranda of agreement, and evaluations and reviews shall be considered records for purposes of section 552(f)(2) of title 5, United States Code.

(4) CONSULTATION.—The Secretary shall seek input from nongovernmental organizations regarding their independent opinion of specific facilities.

(d) COMPLIANCE MECHANISMS.—

(1) AGREEMENTS.—

(A) NEW AGREEMENTS.—Compliance with applicable standards of the Secretary and all applicable regulations, and meaningful financial penalties for failure to comply, shall be a material term in any new contract, memorandum of agreement, or any renegotiation, modification, or renewal of an existing contract or agreement, including fee negotiations, executed with detention facilities.

(B) EXISTING AGREEMENTS.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall secure a modification incorporating these terms for any existing contracts or agreements that will not be renegotiated, renewed, or otherwise modified.

(C) CANCELLATION OF AGREEMENTS.—Unless the Secretary provides a reasonable extension to a specific detention facility that is negotiating in good faith, contracts or agreements with detention facilities that are not modified within 1 year of the date of the enactment of this Act will be cancelled.

(D) PROVISION OF INFORMATION.—In making modifications under this paragraph, the Secretary shall require that detention facilities provide to the Secretary all contracts, memoranda of agreement, evaluations, and reviews regarding the facility on a regular basis. The Secretary shall make these materials publicly available.

(2) FINANCIAL PENALTIES.—

(A) REQUIREMENT TO IMPOSE.—Subject to subparagraph (C), the Secretary shall impose meaningful financial penalties upon facilities that fail to comply with applicable detention standards issued by the Secretary and other applicable regulations.

(B) TIMING OF IMPOSITION.—Financial penalties imposed under subparagraph (A) shall be imposed immediately after a facility fails to achieve an adequate or the equivalent median score in any performance evaluation.

(C) WAIVER.—The requirements of subparagraph (A) may be waived if the facility corrects the noted deficiencies and receives an adequate score in not more than 90 days.

(D) MULTIPLE OFFENDERS.—In cases of persistent and substantial noncompliance, including scoring less than adequate or the equivalent median score in 2 consecutive inspections, the Secretary shall terminate contracts or agreements with such facilities within 60 days, or in the case of facilities operated by the Secretary, such facilities shall be closed within 90 days.

(e) REPORTING REQUIREMENTS.—

(1) OBJECTIVES.—Not later than June 30 of each year, the Secretary shall prepare and submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report on inspection and oversight activities of detention facilities.

(2) CONTENTS.—Each report submitted under paragraph (1) shall include—

(A) a description of each detention facility found to be in noncompliance with applicable detention standards issued by the Department and other applicable regulations;

(B) a description of the actions taken by the Department to remedy any findings of noncompliance or other identified problems, including financial penalties, contract or agreement termination, or facility closure; and

(C) information regarding whether the actions described in subparagraph (B) resulted in compliance with applicable detention standards and regulations.

SEC. 3717. PROCEDURES FOR BOND HEARINGS AND FILING OF NOTICES TO APPEAR.

(a) ALIENS IN CUSTODY.—Section 236 (8 U.S.C. 1226) is amended by adding at the end the following:

''(f) PROCEDURES FOR CUSTODY HEARINGS.—For any alien taken into custody under any provision of this Act, with the exception of minors being transferred to or in the custody of the Office of Refugee Resettlement, the following shall apply:

''(1) The Secretary of Homeland Security shall, without unnecessary delay and not later than 72 hours after the alien is taken into custody, file the Notice to Appear or other relevant charging document with the immigration court having jurisdiction over the location where the alien was apprehended, and serve such notice on the alien.

''(2) The Secretary shall immediately determine whether the alien shall remain in custody or be released and, without unnecessary delay and not later than 72 hours after the alien was taken into custody, serve upon the alien the custody decision specifying the reasons for continued custody and the amount of bond if any.

''(3) The Attorney General shall ensure the alien has the opportunity to appear before an immigration judge for a custody determination hearing promptly after service of the Secretary's custody decision. The immigration judge may, on the Secretary's motion and upon a showing of good cause, postpone a custody redetermination hearing for no more than 72 hours after service of the custody decision, except that in no case shall the hearing occur more than 6 days (including weekends and holidays) after the alien was taken into custody.

''(4) The immigration judge shall advise the alien of the right to postpone the custody determination hearing and shall, on the oral or written request of the individual, postpone the custody determination hearing for a period of not more than 14 days.

''(5) Except for aliens that the immigration judge has determined are deportable under section 236(c) or certified under section 236A, the immigration judge shall review the custody determination de novo and may continue to detain the alien only if the Secretary demonstrates that no conditions, including the use of alternatives to detention that maintain custody over the alien, will reasonably assure the appearance of the alien as required and the safety of any other person and the community. For aliens whom the immigration judge has determined are deportable under section 236(c), the immigration judge may review the custody determination if the Secretary agrees the alien is not a danger to the community, and alternatives to detention exist that ensure the appearance of the alien, as required, and the safety of any other person and the community.

''(6) In the case of any alien remaining in custody after a custody determination, the Attorney General shall provide de novo custody determination hearings before an immigration judge every 90 days so long as the alien remains in custody. An alien may also obtain a de novo custody redetermination hearing at any time upon a showing of good cause.

''(7) The Secretary shall inform the alien of his or her rights under this paragraph at the time the alien is first taken into custody.''.

(b) LIMITATIONS ON SOLITARY CONFINEMENT.—

(1) IN GENERAL.—Section 236(d) (8 U.S.C. 1226(d)) is amended by adding at the end the following:

''(3) NATURE OF DETENTION.—

''(A) DEFINITIONS.—In this paragraph:

''(i) ADMINISTRATIVE SEGREGATION.—The term 'administrative segregation' means a nonpunitive form of solitary confinement for administrative reasons.

''(ii) DISCIPLINARY SEGREGATION.—The term 'disciplinary segregation' means a punitive form of solitary confinement for disciplinary reasons.

''(iii) SERIOUS MENTAL ILLNESS.—The term 'serious mental illness' means a substantial disorder of thought or mood that significantly impairs judgment, behavior, capacity to recognize reality, or ability to cope with the ordinary demands of life.

''(iv) SOLITARY CONFINEMENT.—The term 'solitary confinement' means cell confinement of 22 hours or more per day.

''(B) LIMITATIONS ON SOLITARY CONFINEMENT.—

''(i) IN GENERAL.—The use of solitary confinement of an alien in custody pursuant to this section, section 235, or section 241 shall be limited to situations in which such confinement—

''(I) is necessary—

''(aa) to control a threat to detainees, staff, or the security of the facility;

''(bb) to discipline the alien for a serious disciplinary infraction if alternative sanctions would not adequately regulate the alien's behavior; or

''(cc) for good order during the last 24 hours before an alien is released, removed, or transferred from the facility;

''(II) is limited to the briefest term and under the least restrictive conditions practicable and consistent with the rationale for placement and with the progress achieved by the alien; and

''(III) complies with the requirements set forth in this subparagraph.

''(ii) CHILDREN.—Children who are younger than 18 years of age may not be placed in solitary confinement.

''(iii) SERIOUS MENTAL ILLNESS.—

''(I) IN GENERAL.—An alien with a serious mental illness may not be placed in involuntary solitary confinement due to mental illness unless—

''(aa) such confinement is necessary for the alien's own protection; or

''(bb) if the alien requires emergency stabilization or poses a significant threat to staff or others in general population.

''(II) MAXIMUM PERIOD.—An alien diagnosed with serious mental illness may not be placed in solitary confinement for more than 15 days unless the Secretary of Homeland Security determines that—

''(aa) any less restrictive alternative is more likely than not to cause greater harm to the alien than the solitary confinement period imposed; or

''(bb) the likely harm to the alien is not substantial and the period of solitary confinement is the least restrictive alternative necessary to protect the alien, other detainees, or others.

''(iv) OWN PROTECTION.—

''(I) IN GENERAL.—Involuntary solitary confinement for an alien's own protection may be used only for the least amount of time practicable and if no readily available and less restrictive alternative will maintain the alien's safety.

''(II) MAXIMUM PERIOD.—An alien may not be placed in involuntary solitary confinement for the alien's own protection for longer than 15 days unless the Secretary of Homeland Security determines that any less restrictive alternative is more likely than not to cause greater harm to the alien than the solitary confinement period imposed.

''(III) PROHIBITED FACTORS.—The Secretary of Homeland Security may not rely solely on an alien's age, physical disability, sexual orientation, gender identity, race, or religion. The Secretary shall make an individualized assessment in each case.

''(v) MEDICAL CARE.—An alien placed in solitary confinement—

''(I) shall be visited by a medical professional at least 3 times each week;

''(II) shall receive at least weekly mental health monitoring by a licensed mental health clinician; and

''(III) shall be removed from solitary confinement if—

''(aa) a mental health clinician determines that such detention is having a significant negative impact on the alien's mental health; and

''(bb) an appropriate alternative is available.

''(vi) NOTIFICATION; ACCESS TO COUNSEL.—If an alien is placed in solitary confinement, the alien—

''(I) shall be informed verbally, and in writing, of the reason for such confinement and the intended duration of such confinement, if specified at the time of initial placement; and

''(II) shall be offered access to counsel on the same basis as detainees in the general population.

''(vii) LONGER SOLITARY CONFINEMENT PERIODS.—If an alien has been subject to involuntary solitary confinement for more than 14 consecutive days, the Secretary of Homeland Security shall conduct a timely review to determine whether continued placement is justified by an extreme disciplinary infraction or is the least restrictive means of protecting the alien or others. Any alien held in solitary confinement for more than 7 days shall be given a reasonable opportunity to challenge such placement with the detention facility administrator, which will promptly respond to such challenge in writing.

''(viii) OVERSIGHT.—The Secretary of Homeland Security shall ensure that—

''(I) he or she is regularly informed about the use of solitary confinement in all facilities at which aliens are detained; and

''(II) the Department fully complies with the provisions under this paragraph.

''(C) DISCIPLINARY SEGREGATION.—Disciplinary segregation is authorized only pursuant to the order of a facility disciplinary panel following a hearing in which the detainee is determined to have violated a facility rule.

''(D) ADMINISTRATIVE SEGREGATION.—Administrative segregation is authorized only as necessary to ensure the safety of the detainee or others, the protection of property, or the security or good order of the facility. Detainees in administrative segregation shall be offered programming opportunities and privileges consistent with those available in the general population, except where precluded by safety or security concerns.''.

(2) ANNUAL REPORT.—The Secretary shall—

(A) collect and compile information regarding the prevalence, reasons for, and duration of solitary confinement in all facilities described in paragraph (3);

(B) submit an annual report containing the information described in subparagraph (A) to Congress not later than 30 days after the end of the reporting period; and

(C) make the data contained in the report submitted under subparagraph (B) publicly available.

(3) RULEMAKING.—The Secretary shall adopt regulations or policies to carry out section 236(d)(3) of the Immigration and Nationality Act, as amended by paragraph (1), at all facilities at which aliens are detained pursuant to section 235, 236, or 241 of such Act.

(c) STIPULATED REMOVAL.—Section 240(d) (8 U.S.C. 1229a) is amended to read as follows:

''(d) STIPULATED REMOVAL.—The Attorney General shall provide by regulation for the entry by an immigration judge of an order of removal stipulated to by the alien (or the alien's representative) and the Service. An immigration judge may enter a stipulated removal order only upon a finding at an in-person hearing that the stipulation is voluntary, knowing, and intelligent. A stipulated order shall constitute a conclusive determination of the alien's removability from the United States.''.

SEC. 3718. SANCTIONS FOR COUNTRIES THAT DELAY OR PREVENT REPATRIATION OF THEIR NATIONALS.

Section 243(d) (8 U.S.C. 1253(d)) is amended to read as follows:

''(d) DISCONTINUING GRANTING VISAS TO NATIONALS OF COUNTRIES THAT DENY OR DELAY ACCEPTING ALIENS.—Notwithstanding section 221(c), if the Secretary of Homeland Security determines, in consultation with the Secretary of State, that the government of a foreign country denies or unreasonably delays accepting aliens who are citizens, subjects, nationals, or residents of that country after the Secretary asks whether the government will accept an alien under this section, or after a determination that the alien is inadmissible under paragraph (6) or (7) of section 212(a), the Secretary of State shall order consular officers in that foreign country to discontinue granting visas, or classes of visas, until the Secretary of Homeland Security notifies the Secretary of State that the country has accepted the aliens.''.

SEC. 3719. GROSS VIOLATIONS OF HUMAN RIGHTS.

(a) INADMISSIBILITY OF CERTAIN ALIENS.—Section 212(a)(3)(E) (8 U.S.C. 1182(a)(3)(E)) is amended by striking clause (iii) and inserting the following:

''(iii) COMMISSION OF ACTS OF TORTURE, EXTRAJUDICIAL KILLINGS, WAR CRIMES, OR WIDESPREAD OR SYSTEMATIC ATTACKS ON CIVILIANS.—Any alien who planned, ordered, assisted, aided and abetted, committed, or otherwise participated, including through command responsibility, in the commission of—

''(I) any act of torture (as defined in section 2340 of title 18, United States Code);

''(II) any extrajudicial killing (as defined in section 3(a) of the Torture Victim Protection Act of 1991 (28 U.S.C. 1350 note)) under color of law of any foreign nation;

''(III) a war crime (as defined in section 2441 of title 18, United States Code); or

''(IV) any of the following acts as a part of a widespread or systematic attack directed against a civilian population, with knowledge of the attack: murder, extermination, enslavement, forcible transfer of population, arbitrary detention, rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization, or any other form of sexual violence of comparable gravity; persecution on political racial, national, ethnic, cultural, religious, or gender grounds; enforced disappearance of persons; or other inhumane acts of a similar character intentionally causing great suffering or serious bodily or mental injury,

is inadmissible.

''(iv) LIMITATION.—Clause (iii) shall not apply to an alien if the Secretary of Homeland Security or the Attorney General determine that the actions giving rise to the alien's inadmissibility under such clause were committed under duress. In determining whether the alien was subject to duress, the Secretary may consider, among relevant factors, the age of the alien at the time such actions were committed.''.

(b) DENYING SAFE HAVEN TO FOREIGN HUMAN RIGHTS VIOLATORS.—Section 2(a)(2) of the Torture Victim Protection Act of 1991 (28 U.S.C. 1350 note) is amended—

(1) by inserting after ''killing'' the following: '', a war crime (as defined in subsections (c) and (d) of section 2441 of title 18, United States Code), a widespread or systematic attack on civilians (as defined in section 212(a)(3)(E)(iii)(IV) of the Immigration and Nationality Act), or genocide (as defined in section 1091(a) of such title 18)''; and

(2) by striking ''to the individual's legal representative'' and inserting ''to that individual or to that individual's legal representative''.

(c) NONAPPLICABILITY OF CONFIDENTIALITY REQUIREMENT WITH RESPECT TO VISA RECORDS.—The President may make public, without regard to the requirements under section 222(f) of the Immigration and Nationality Act (8 U.S.C. 1202(f)), with respect to confidentiality of records pertaining to the issuance or refusal of visas or permits to enter the United States, the names of aliens deemed inadmissible on the basis of section 212(a)(3)(E)(iii) of such Act, as amended by subsection (a).

SEC. 3720. REPORTING AND RECORD KEEPING REQUIREMENTS RELATING TO THE DETENTION OF ALIENS.

(a) IN GENERAL.—In order for Congress and the public to assess the full costs of apprehending, detaining, processing, supervising, and removing aliens, and how the money Congress appropriates for detention is allocated by Federal agencies, the Assistant Secretary for Immigration and Customs and Enforcement (referred to in this section as the ''Assistant Secretary''), the Director of the Executive Office of Immigration Review, and the Commissioner responsible for U.S. Customs and Border Protection (referred to in this section as the ''Commissioner'') shall—

(1) maintain the information required under subsections (b), (c), and (d); and

(2) submit reports on that information to Congress and make that information available to the public in accordance with subsection (e).

(b) MAINTENANCE OF INFORMATION BY U.S. IMMIGRATION AND CUSTOMS ENFORCEMENT.—The Assistant Secretary shall record and maintain, in the database of U.S. Immigration and Customs Enforcement relating to detained aliens, the following information with respect to each alien detained pursuant to the Immigration and Nationality Act (8 U.S.C. 1101 et seq.):

(1) The provision of law that provides specific authority for the alien's detention and the beginning and end dates of the alien's detention pursuant to that authority. If the alien's detention is authorized by different provisions of law during different periods of time, the Assistant Secretary shall record and maintain the provision of law that provides authority for the alien's detention during each such period.

(2) The place where the alien was apprehended or where U.S. Immigration and Customs Enforcement assumed custody of the alien.

(3) Each location where U.S. Immigration and Customs Enforcement detains the alien until the alien is released from custody or removed from the United States, including any period of redetention.

(4) The gender and age of each detained alien in the custody of U.S. Immigration and Customs Enforcement.

(5) The number of days the alien is detained, including the number of days spent in any given detention facility and the total amount of time spent in detention.

(6) The immigration charges that are the basis for the alien's removal proceedings.

(7) The status of the alien's removal proceedings and each date on which those proceedings progress from 1 stage of proceeding to another.

(8) The length of time the alien was detained following a final administrative order of removal and the reasons for the continued detention.

(9) The initial custody determination or review made by U.S. Immigration and Customs Enforcement, including whether the alien received notice of a custody determination or review and when the custody determination or review took place.

(10) The risk assessment results for the alien, including if the alien is subject to mandatory custody or detention.

(11) The reason for the alien's release from detention and the conditions of release imposed on the alien, if applicable.

(c) MAINTENANCE OF INFORMATION BY EXECUTIVE OFFICE OF IMMIGRATION REVIEW.—The Director of the Executive Office of Immigration Review shall record and maintain, in the database of the Executive Office of Immigration Review relating to detained aliens

in removal proceedings, the following information with respect to each such alien:

(1) The immigration charges that are the basis for the alien's removal proceedings, including any revision of the immigration charges and the date of each such revision.

(2) The gender and age of the alien.

(3) The status of the alien's removal proceedings and each date on which those proceedings progress from one stage of proceeding to another.

(4) The statutory basis for any bond hearing conducted and the outcomes of the bond hearing.

(5) Whether each court hearing is conducted in person, by audio link, or by video conferencing.

(6) The date of each attorney entry of appearance before an immigration judge using Form EOIR–28 and the scope of the appearance to which the form related.

(d) MAINTENANCE OF INFORMATION BY U.S. CUSTOMS AND BORDER PROTECTION.—The Commissioner shall record and maintain in the database of U.S. Customs and Border Protection relating to detained aliens the following information with respect to each alien detained pursuant to the Immigration and Nationality Act (8 U.S.C. 1101 et seq.):

(1) The provision of law that provides specific authority for the alien's detention and the beginning and end dates of the alien's detention.

(2) The place where the alien was apprehended.

(3) The gender and age of the alien.

(4) Each location where U.S. Customs and Border Protection detains the alien until the alien is released from custody or removed from the United States, including any period of redetention.

(5) The number of days that the alien is detained in the custody of U.S. Customs and Border Protection.

(6) The immigration charges that are the basis for the alien's removal proceedings while the alien is in the custody of U.S. Customs and Border Protection.

(7) The initial custody determination by U.S. Customs and Border Protection, including whether the alien received notice of a custody determination or review, when the custody determination or review took place, and whether U.S. Customs and Border Protection offered the option of stipulated removal to a detained alien.

(8) The reason for the alien's release from detention and the conditions of release to detention imposed on the alien, if applicable.

(e) REPORTING REQUIREMENTS.—

(1) PERIODIC REPORTS.—The Assistant Secretary, the Director of the Executive Office of Immigration Review, and the Commissioner shall periodically, but not less frequently than annually, submit to Congress a report containing a summary of the information required to be maintained by this section. Each such report shall include summaries of national-level data as well as summaries of the information required by this section by State and county.

(2) OTHER REPORTS.—The Assistant Secretary shall report to Congress not less frequently than annually on—

(A) the number of aliens detained for more than 3 months, 6 months, 1 year, and 2 years; and

(B) the average period of detention before receipt of a final administrative order of removal and after receipt of such an order.

(3) AVAILABILITY TO PUBLIC.—The reports required under this subsection and the information for each alien on which the reports are based shall be made available to the public without the need to submit a request under section 552 of title 5, United States Code (commonly referred to as the ''Freedom of Information Act'').

(4) PRIVACY PROTECTIONS.—No alien's identity may be disclosed when information described in paragraph (3) is made publicly available.

(f) DEFINITIONS.—In this section:

(1) CASE OUTCOME.—The term ''case outcome'' includes a grant of relief from deportation under section 240A of the Immigration and Nationality Act (8 U.S.C. 1229b), voluntary departure pursuant to section 240B of that Act (8 U.S.C. 1229c), removal pursuant to section 238 of that Act (8 U.S.C. 1228), judicial termination of proceedings, termination of proceedings by U.S. Immigration and Customs Enforcement, cancellation of the notice to appear, or permission to withdraw application for admission without any removal order being issued.

(2) PLACE WHERE THE ALIEN WAS APPREHENDED.—The term ''place where the alien was apprehended'' refers to the city, county, and State where an alien is apprehended.

(3) REASON FOR THE ALIEN'S RELEASE FROM DETENTION.—The term ''reason for the alien's release from detention'' refers to release on bond, on an alien's own recognizance, on humanitarian grounds, after grant of relief, or due to termination of proceedings or removal.

(4) REMOVAL PROCEEDINGS.—The term ''removal proceedings'' refers to a removal case of any kind, including expedited removal, administrative removal, stipulated removal, reinstatement, and voluntary removal and removals in which an applicant is permitted to withdraw his or her application for admission.

(5) STAGE.—The term ''stage'', with respect to a proceeding, refers to whether the alien is in proceedings before an immigration judge, the Board of Immigration Appeals, a United States court of appeals, or on remand from a United States court of appeals.

SEC. 3721. POWERS OF IMMIGRATION OFFICERS AND EMPLOYEES AT SENSITIVE LOCATIONS.

Section 287 (8 U.S.C. 1357) is amended by adding at the end the following:

''(i)(1) In order to ensure individuals' access to sensitive locations, this subsection applies to enforcement actions by officers and agents of U.S. Immigration and Customs Enforcement and officers and agents of U.S. Customs and Border Protection.

''(2)(A) An enforcement action may not take place at, or be focused on, a sensitive location, except as follows:

''(i) Under exigent circumstances.

''(ii) If prior approval is obtained.

''(B) If an enforcement action is taking place pursuant to subparagraph (A) and the condition permitting the enforcement action ceases, the enforcement action shall cease.

''(3)(A) When proceeding with an enforcement action at or near a sensitive location, officers and agents referred to in paragraph (1) shall conduct themselves as discreetly as possible, consistent with officer and public safety, and make every effort to limit the time at or focused on the sensitive location.

''(B) If, in the course of an enforcement action that is not initiated at or focused on a sensitive location, officers or agents are led to or near a sensitive location, and no exigent circumstance exists, such officers or agents shall conduct themselves in a discreet manner, maintain surveillance, and immediately consult their supervisor before taking any further enforcement action, in order to determine whether such action should be discontinued.

''(C) This section not apply to the transportation of an individual apprehended at or near a land or sea border to a hospital or healthcare provider for the purpose of providing such individual medical care.

''(4)(A) Each official specified in subparagraph (B) shall ensure that the employees under the supervision of such official receive annual training on compliance with the requirements of this subsection in enforcement actions at or focused on sensitive locations and enforcement actions that lead officers or agents to or near a sensitive location.

''(B) The officials specified in ths subparagraph are the following:

''(i) The Chief Counsel of U.S. Immigration and Customs Enforcement.

''(ii) The Field Office Directors of U.S. Immigration and Customs Enforcement.

''(iii) Each Special Agent in Charge of U.S. Immigration and Customs Enforcement.

''(iv) Each Chief Patrol Agent of U.S. Customs and Border Protection.

''(v) The Director of Field Operations of U.S. Customs and Border Protection.

''(vi) The Director of Air and Marine Operations of U.S. Customs and Border Protection.

''(vii) The Internal Affairs Special Agent in Charge of U.S. Customs and Border Protection.

''(5)(A) The Director of U.S. Immigration and Customs Enforcement and the Commissioner of U.S. Customs and Border Protection shall each submit to the appropriate committees of Congress each year a report on the enforcement actions undertaken by U.S. Immigration and Customs Enforcement and U.S. Customs and Border Protection, respectively, during the preceding year that were covered by this subsection.

''(B) Each report on an agency for a year under this paragraph shall set forth the following:

''(i) The number of enforcement actions at or focused on a sensitive location.

''(ii) The number of enforcement actions where officers or agents were subsequently led to or near a sensitive location.

''(iii) The date, site, and State, city, and county in which each enforcement action covered by clause (i) or (ii) occurred.

''(iv) The component of the agency responsible for each such enforcement action.

''(v) A description of the intended target of each such enforcement action.

''(vi) The number of individuals, if any, arrested or taken into custody through each such enforcement action.

''(vii) The number of collateral arrests, if any, from each such enforcement action and the reasons for each such arrest.

''(viii) A certification of whether the location administrator was contacted prior to, during, or after each such enforcement action.

''(C) Each report under this paragraph shall be made available to the public without the need to submit a request under section 552 of title 5, United States Code (commonly referred to as the 'Freedom of Information Act').

''(6) In this subsection:

''(A) The term 'appropriate committees of Congress' means—

''(i) the Committee on Homeland Security and Governmental Affairs of the Senate;

''(ii) the Committee on the Judiciary of the Senate;

''(iii) the Committee on Homeland Security of the House of Representatives; and

''(iv) the Committee on the Judiciary of the House of Representatives.

''(B) The term 'enforcement action' means an arrest, interview, search, or surveillance for the purposes of immigration enforcement, and includes an enforcement action at, or focused on, a sensitive location that is part of a joint case led by another law enforcement agency.

''(C) The term 'exigent circumstances' means a situation involving the following:

''(i) The imminent risk of death, violence, or physical harm to any person, including a

situation implicating terrorism or the national security of the United States in some other manner.

''(ii) The immediate arrest or pursuit of a dangerous felon, terrorist suspect, or other individual presenting an imminent danger or public safety risk.

''(iii) The imminent risk of destruction of evidence that is material to an ongoing criminal case.

''(D) The term 'prior approval' means the following:

''(i) In the case of officers and agents of U.S. Immigration and Customs Enforcement, prior written approval for a specific, targeted operation from one of the following officials:

''(I) The Assistant Director of Operations, Homeland Security Investigations.

''(II) The Executive Associate Director of Homeland Security Investigations.

''(III) The Assistant Director for Field Operations, Enforcement, and Removal Operations.

''(IV) The Executive Associate Director for Field Operations, Enforcement, and Removal Operations.

''(ii) In the case of officers and agents of U.S. Customs and Border Protection, prior written approval for a specific, targeted operation from one of the following officials:

''(I) A Chief Patrol Agent.

''(II) The Director of Field Operations.

''(III) The Director of Air and Marine Operations.

''(IV) The Internal Affairs Special Agent in Charge.

''(E) The term 'sensitive location' includes the following:

''(i) Hospitals and health clinics.

''(ii) Public and private schools (including pre-schools, primary schools, secondary schools, postsecondary schools (including colleges and universities), and other institutions of learning such as vocational or trade schools).

''(iii) Organizations assisting children, pregnant women, victims of crime or abuse, or individuals with mental or physical disabilities.

''(iv) Churches, synagogues, mosques, and other places of worship, such as buildings rented for the purpose of religious services.

''(v) Such other locations as the Secretary of Homeland Security shall specify for purposes of this subsection.''.

Subtitle H—Protection of Children Affected by Immigration Enforcement

SEC. 3801. SHORT TITLE.

This subtitle may be cited as the ''Humane Enforcement and Legal Protections for Separated Children Act'' or the ''HELP Separated Children Act''.

SEC. 3802. DEFINITIONS.

In this subtitle:

(1) APPREHENSION.—The term ''apprehension'' means the detention or arrest by officials of the Department or cooperating entities.

(2) CHILD.—The term ''child'' means an individual who has not attained 18 years of age.

(3) CHILD WELFARE AGENCY.—The term ''child welfare agency'' means a State or local agency responsible for child welfare services under subtitles B and E of title IV of the Social Security Act (42 U.S.C. 601 et seq.).

(4) COOPERATING ENTITY.—The term ''cooperating entity'' means a State or local entity acting under agreement with the Secretary.

(5) DETENTION FACILITY.—The term ''detention facility'' means a Federal, State, or local government facility, or a privately owned and operated facility, that is used, in whole or in part, to hold individuals under the authority of the Director of U.S. Immigration and Customs Enforcement, including facilities that hold such individuals under a contract or agreement with the Director.

(6) IMMIGRATION ENFORCEMENT ACTION.—The term ''immigration enforcement action'' means the apprehension of 1 or more individuals whom the Department has reason to believe are removable from the United States by the Secretary or a cooperating entity.

(7) PARENT.—The term ''parent'' means a biological or adoptive parent of a child, whose parental rights have not been relinquished or terminated under State law or the law of a foreign country, or a legal guardian under State law or the law of a foreign country.

SEC. 3803. APPREHENSION PROCEDURES FOR IMMIGRATION ENFORCEMENT-RELATED ACTIVITIES.

(a) APPREHENSION PROCEDURES.—In any immigration enforcement action, the Secretary and cooperating entities shall—

(1) as soon as possible, but generally not later than 2 hours after an immigration enforcement action, inquire whether an individual is a parent or primary caregiver of a child in the United States and provide any such individuals with—

(A) the opportunity to make a minimum of 2 telephone calls to arrange for the care of such child in the individual's absence; and

(B) contact information for—

(i) child welfare agencies and family courts in the same jurisdiction as the child; and

(ii) consulates, attorneys, and legal service providers capable of providing free legal advice or representation regarding child welfare, child custody determinations, and immigration matters;

(2) notify the child welfare agency with jurisdiction over the child if the child's parent or primary caregiver is unable to make care arrangements for the child or if the child is in imminent risk of serious harm;

(3) ensure that personnel of the Department and cooperating entities do not, absent medical necessity or extraordinary circumstances, compel or request children to interpret or translate for interviews of their parents or of other individuals who are encountered as part of an immigration enforcement action; and

(4) ensure that any parent or primary caregiver of a child in the United States—

(A) absent medical necessity or extraordinary circumstances, is not transferred from his or her area of apprehension until the individual—

(i) has made arrangements for the care of such child; or

(ii) if such arrangements are unavailable or the individual is unable to make such arrangements, is informed of the care arrangements made for the child and of a means to maintain communication with the child;

(B) absent medical necessity or extraordinary circumstances, and to the extent practicable, is placed in a detention facility either—

(i) proximate to the location of apprehension; or

(ii) proximate to the individual's habitual place of residence; and

(C) receives due consideration of the best interests of such child in any decision or action relating to his or her detention, release, or transfer between detention facilities.

(b) REQUESTS TO STATE AND LOCAL ENTITIES.—If the Secretary requests a State or local entity to hold in custody an individual whom the Department has reason to believe is removable pending transfer of that individual to the custody of the Secretary or to a detention facility, the Secretary shall also request that the State or local entity provide the individual the protections specified in paragraphs (1) and (2) of subsection (a), if that individual is found to be the parent or primary caregiver of a child in the United States.

(c) PROTECTIONS AGAINST TRAFFICKING PRESERVED.—The provisions of this section shall not be construed to impede, delay, or in any way limit the obligations of the Secretary, the Attorney General, or the Secretary of Health and Human Services under section 235 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1232) or section 462 of the Homeland Security Act of 2002 (6 U.S.C. 279).

SEC. 3804. ACCESS TO CHILDREN, STATE AND LOCAL COURTS, CHILD WELFARE AGENCIES, AND CONSULAR OFFICIALS.

At all detention facilities, the Secretary shall—

(1) prominently post in a manner accessible to detainees and visitors and include in detainee handbooks information on the protections of this subtitle as well as information on potential eligibility for parole or release;

(2) absent extraordinary circumstances, ensure that individuals who are detained by the Department and are parents of children in the United States are—

(A) permitted regular phone calls and contact visits with their children;

(B) provided with contact information for child welfare agencies and family courts in the relevant jurisdictions;

(C) able to participate fully and, to the extent possible, in person in all family court proceedings and any other proceedings that may impact their right to custody of their children;

(D) granted free and confidential telephone calls to relevant child welfare agencies and family courts as often as is necessary to ensure that the best interest of their children, including a preference for family unity whenever appropriate, can be considered in child welfare agency or family court proceedings;

(E) able to fully comply with all family court or child welfare agency orders impacting custody of their children;

(F) provided access to United States passport applications or other relevant travel document applications for the purpose of obtaining travel documents for their children;

(G) afforded timely access to a notary public for the purpose of applying for a passport for their children or executing guardianship or other agreements to ensure the safety of their children; and

(H) granted adequate time before removal to obtain passports, apostilled birth certificates, travel documents, and other necessary records on behalf of their children if such children will accompany them on their return to their country of origin or join them in their country of origin; and

(3) where doing so would not impact public safety or national security, facilitate the ability of detained alien parents and primary caregivers to share information regarding travel arrangements with their consulate, children, child welfare agencies, or other caregivers in advance of the detained alien individual's departure from the United States.

SEC. 3805. MANDATORY TRAINING.

The Secretary, in consultation with the Secretary of Health and Human Services, the Secretary of State, the Attorney General, and independent child welfare and family law experts, shall develop and provide training on the protections required under sections 3803 and 3804 to all personnel of the Department, cooperating entities, and detention facilities operated by or under agreement with the Department who regularly engage in immigration enforcement actions and in the course of such actions come into

contact with individuals who are parents or primary caregivers of children in the United States.

SEC. 3806. RULEMAKING.

Not later than 180 days after the date of the enactment of this Act, the Secretary shall promulgate regulations to implement sections 3803 and 3804 of this Act.

SEC. 3807. SEVERABILITY.

If any provision of this subtitle or amendment made by this subtitle, or the application of a provision or amendment to any person or circumstance, is held to be unconstitutional, the remainder of this subtitle and amendments made by this subtitle, and the application of the provisions and amendment to any person or circumstance, shall not be affected by the holding.

Subtitle I—Providing Tools To Exchange Visitors and Exchange Visitor Sponsors To Protect Exchange Visitor Program Participants and Prevent Trafficking

SEC. 3901. DEFINITIONS.

(a) IN GENERAL.—Except as otherwise provided by this subtitle, the terms used in this subtitle shall have the same meanings, respectively, as are given those terms in section 3 of the Fair Labor Standards Act of 1938 (29 U.S.C. 203), except that the term ''employer'' shall also include a prospective employer seeking to hire exchange visitors with which the sponsor has a contractual relationship.

(b) OTHER DEFINITIONS.—

(1) EXCHANGE VISITOR.—The term ''exchange visitor'' means a foreign national who is inquiring about or applying to participate in the exchange visitor program or who has successfully applied and has completed or is completing an exchange visitor programs not funded by the United States Government as governed by sections 2.22, 62.24, 62.30, 62.31, and 62.32 of title 22, Code of Federal Regulations.

(2) EXCHANGE VISITOR PROGRAM.—The term ''exchange visitor program'' means the international exchange program administered by the Department of State to implement the Mutual Educational and Cultural Exchange Act of 1961 (22 U.S.C. 2451 et seq.), by means of educational and cultural programs.

(3) EXCHANGE VISITOR PROGRAM RECRUITMENT ACTIVITIES.—The term ''exchange visitor program recruitment activities'' means activities related to recruiting, soliciting, transferring, providing, obtaining, or facilitating participation of individuals who reside outside the United States in an exchange visitor program including when such activity occurs wholly outside the United States.

(4) EXCHANGE VISITOR PROGRAM SPONSOR; SPONSOR.—The term ''exchange visitor program sponsor'' or ''sponsor'' means a legal entity designated by the Secretary of State, in the Secretary's discretion, to conduct an exchange visitor program governed by sections 62.22, 62.24, 62.30, 62.31, and 62.32 of title 22, Code of Federal Regulations).

(5) FOREIGN ENTITY.—The term ''foreign entity'' means a person contracted by a sponsor to engage in exchange visitor program recruitment activities on the sponsor's behalf and any subcontractors thereof.

(6) HOST ENTITY.—The term ''host entity'' means ''host organization'', ''primary or secondary accredited educational institution'', ''camp facility'', ''host family'', or ''employer/host employer'' as used in sections 62.22, 62.24, 62.30, 62.31, and 62.32 of title 22, Code of Federal Regulations, respectively.

(7) REGULATIONS.—Any reference to any provision of regulations shall include any successor provision addressing the same subject matter.

SEC. 3902. DISCLOSURE.

(a) REQUIREMENT FOR DISCLOSURE AT TIME OF EXCHANGE VISITOR PROGRAM RECRUITMENT ACTIVITY.—Any person who engages in exchange visitor program recruitment activity shall develop certain information, previously approved by and on file with the exchange visitor program sponsor, to be disclosed in writing in English to the exchange visitor before the exchange visitor pays fees described in section 3904, other than refundable fees and a reasonable non-refundable deposit, or otherwise detrimentally relies on information provided by an exchange program sponsor or foreign entity. This information shall be made available to the Secretary of State, or an exchange visitor requesting his or her own file, within 5 business days of request, consistent with program regulations in part 62 of title 22, Code of Federal Regulations. Not later than 18 months after the date of the enactment of this Act, the Secretary of State shall, in consultation with the Secretary of Labor, amend such regulations to reflect the information to be disclosed, including the following:

(1) The identity and address of the exchange visitor program sponsor, host entity, and any foreign entity with authority to charge fees and costs under section 3904.

(2) All assurances and terms and conditions of employment, from the prospective host entity of the exchange visitor, including place and period of employment, job duties, number of work hours, wages and compensation, and any deductions from wages and benefits, including deductions for housing and transportation. Nothing in this paragraph shall be construed to permit any charge, deduction, or expense prohibited by this or any other law.

(3) A copy of the prospective agreement between the exchange visitor program sponsor, exchange visitor, and the host entity.

(4) Information regarding the terms and conditions of the nonimmigrant status under which the exchange visitor is to be admitted, and the period of stay in the United States allowed for such nonimmigrant status.

(5) A copy of the fee disclosure form as described in section 3904(d) listing the mandatory and optional costs or expenses to be charged to the exchange visitor.

(6) The existence of any labor organizing effort, collective bargaining agreement, labor contract, strike, lockout, or other labor dispute at the host entity.

(7) Whether and the extent to which exchange visitors will be compensated through workers' compensation, private insurance, or otherwise for injuries or death, including work-related injuries and death, during the period of employment.

(8) A description of the sanctions the exchange visitor program sponsor is currently subject to, if any, as imposed by the Department of State.

(9) A statement in a form specified by the Secretary of State—

(A) stating that in accordance with guidelines and regulations promulgated by the Secretary —

(i) the costs and fees charged by the exchange program sponsor, foreign entity, and host entity do not exceed those permitted by section 3904 and are legal under the laws of the United States and the home country of the exchange visitor; and

(ii) the exchange visitor program sponsor, foreign entity, or host entity may bear costs or fees not provided for in section 3904, but that fees under that section cannot be passed along to the exchange visitor.

(10) Any education or training to be provided or required, other than education or training provided in accordance with section 62.10 (b) and (c) of title 22, Code of Federal Regulations, as ''pre-arrival information'' or ''orientation'' and additional orientation and training requirements as described in each relevant category under sections 62.22, 62.24, 62.30, 62.31, and 62.32 of that title.

(11) A clear statement explaining that—

(A) except as provided in subparagraph (B), no additional significant requirements or significant changes may be made to the original contract signed with a handwritten, electronic, or digital pin code signature by the exchange visitor without at least 24 hours to consider such changes and the specific consent of the exchange visitor, obtained voluntarily and without threat of penalty; and

(B) changes may be made to the conditions of employment contained in the original contract even if the exchange visitor has not had 24 hours to consider such changes, provided the exchange visitor has specifically consented to the changes, voluntarily and without threat of penalty, and such changes must be implemented without giving the exchange visitor 24 hours to consider them in order to protect the health or welfare of the exchange visitor.

(b) REQUIREMENT FOR RULES.—The Secretary of State shall define by rule or guidance what constitutes ''refundable fees'' and a ''reasonable non-refundable deposit'' for the purpose subsection (a).

(c) RELATIONSHIP TO LABOR AND EMPLOYMENT LAWS.—Nothing in the disclosure required by subsection (a) shall constitute a legal conclusion as to the exchange visitor's status or rights under the labor and employment laws.

(d) PROHIBITION ON FALSE AND MISLEADING INFORMATION AND CERTAIN FEES.—No exchange visitor program sponsor, foreign entity, or host entity who engages in any exchange visitor program activity shall knowingly provide materially false or misleading information to any exchange visitor concerning any matter required to be disclosed under subsection (a). Charging fees for services not provided or assessing fees that exceed the amounts established by the Secretary of State pursuant to section 3904 is a violation of this section. The disclosure required by this section is a document concerning the proper administration of a matter within the jurisdiction of a department or agency of the United States for the purposes of section 1519 of title 18, United States Code, and other provisions of such title.

(e) PUBLIC AVAILABILITY OF INFORMATION.—The Secretary of State shall amend its regulations at part 62 of title 22, Code of Federal Regulations, to require sponsors to make publicly available, including on their websites and in recruiting materials, information regarding fees, costs, and services associated with their exchange visitor programs, including foreign entity names and contact points, and other factors relevant to exchange visitors' choice of sponsor or foreign entity.

SEC. 3903. PROHIBITION ON DISCRIMINATION.

(a) IN GENERAL.—It shall be unlawful for an exchange visitor program sponsor, foreign entity, or host entity to fail or refuse to select, hire, discharge, intimidate, threaten, restrain, coerce, or blacklist any individual or otherwise discriminate against an individual with respect to compensation, terms, conditions, or privileges of employment, because of such individual's race, color, creed, sex, national origin, religion, age, or disability.

(b) DETERMINATIONS OF DISCRIMINATION.—For the purposes of determining the existence of unlawful discrimination under subsection (a)—

(1) in the case of a claim of discrimination based on race, color, sex, national origin, or religion, the same legal standards shall apply as are applicable under title VII of the Civil Rights Act of 1964 (42 U.S.C. 2000e et seq.);

(2) in the case of a claim of discrimination based on age, the same legal standards shall apply as are applicable under the Age Discrimination in Employment Act of 1967 (29 U.S.C. 621 et seq.); and

(3) in the case of a claim of discrimination based on disability, the same legal standards shall apply as are applicable under title I of the Americans With Disabilities Act of 1990 as amended (42 U.S.C. 12111 et seq.).

SEC. 3904. FEES.

(a) IN GENERAL.—Not later than 2 years after the date of the enactment of this Act, the Secretary of State, in consultation with the Secretary of Labor, shall promulgate regulations to set limits on the mandatory fees charged by exchange visitor program sponsors, host entities, and their foreign entities to the exchange visitor. In promulgating such regulations, the Secretary of State shall conduct public meetings with exchange visitor program sponsors, organizations representing exchange visitors, and members of the public with expertise in public diplomacy, educational and cultural exchange, labor markets, labor relations, migration, civil rights, human rights, and prohibiting human trafficking. The Secretary of State may, in the Secretary's discretion, consider factors including what costs are within the control of sponsors, differences among programs and countries, level and amount of educational and cultural activities included, and services rendered.

(b) MAXIMUM FEES.—It shall be unlawful for any person to charge a fee higher than the maximum allowable fee as established by regulations promulgated under subsection (a), and any person who charges a higher fee shall be liable under this subtitle. If a fee higher than the maximum is charged by a sponsor or foreign entity, the sponsor shall be liable. If a fee higher than the maximum allowable is charged by the host entity or a host entity's agent, the host entity shall be liable.

(c) UPDATE OF MAXIMUM FEES.—The Secretary of State shall update the maximum allowable fees described in subsection (a) in response to changing economic conditions and other factors as needed.

(d) FEE TRANSPARENCY.—The Secretary of State shall amend its regulations at part 62 of title 22, Code of Federal Regulations, to require exchange visitor program sponsors to—

(1) provide the Department of State annually with an itemized list of fees charged to exchange visitor program participants including by their foreign entities, subcontractors, or foreign entity's agents; and

(2) require a 3-party document signed by the exchange visitor, foreign entity, and sponsor that outlines a basic level fee structure and itemizes mandatory and optional fees.

SEC. 3905. ANNUAL NOTIFICATION.

(a) ANNUAL EXCHANGE VISITOR PROGRAM SPONSOR NOTIFICATION.—

(1) IN GENERAL.—Subject to paragraph (2), prior to engaging in any exchange visitor program activity, any person who seeks to be an exchange visitor program sponsor shall be designated by the Secretary of State pursuant to regulations that the Secretary of State has prescribed or shall prescribe after the date of the enactment of this Act.

(2) NOTIFICATION.—Each exchange visitor program sponsor shall notify the Secretary of State, not less frequently than once every year, of the identity of any third party, agent, or exchange visitor program sponsor employee involved in any exchange visitor program recruitment activity for, or on behalf of, the exchange visitor program sponsor.

(3) PERSONAL JURISDICTION OVER FOREIGN ENTITIES.—As a condition of initial and continued registration, each program sponsor shall obtain a written and signed agreement from any foreign entity. In that agreement, the foreign entity shall stipulate and agree, as a condition for receiving any payment or compensation for performing any work or service for the program sponsor, that the laws of the United States shall govern any and all disputes among and between the parties or the United States, including any enforcement actions, and that any dispute or enforcement action shall be brought in the United States District Court for the District of Columbia. The agreement shall be in such form and contain such other information as the Secretary of State shall prescribe.

(4) NONCOMPLIANCE NOTIFICATION.—An host entity shall notify the Secretary of State upon gaining knowledge of noncompliance with this subtitle by an exchange visitor program sponsor. An exchange visitor program sponsor shall notify the Secretary of State upon gaining knowledge of noncompliance with this subtitle by a host entity or foreign entity.

(b) REGULATIONS.—Not later than 180 days after the date of the enactment of this Act, the Secretary of State shall amend its regulations at part 62 of title 22, Code of Federal Regulations, regarding the annual exchange visitor program sponsor notification.

(c) REFUSAL TO ISSUE AND REVOCATION OF DESIGNATION.—The Secretary of State shall amend its regulations at part 62 of title 22, Code of Federal Regulations, to include the following bases for refusing to issue or renew, or for revoking a sponsor's designation for a period of not greater than 5 years:

(1) The applicant for, or holder of, the designation has knowingly made a material misrepresentation in the application for such designation.

(2) The applicant for, or holder of, the designation has committed any felony under State or Federal law or any crime involving fraud, robbery, bribery, extortion, embezzlement, grand larceny, burglary, arson, violation of narcotics laws, murder, rape, trafficking in persons, assault with intent to kill, assault which inflicts grievous bodily injury, prostitution, peonage, or smuggling or harboring individuals who have entered the United States illegally.

(3) The applicant for, or holder of, the designation has committed any crime relating to gambling, or to the sale, distribution, or possession of alcoholic beverages, in connection with or incident to any exchange visitor recruitment activities.

(4) Such other criteria as the Secretary of State may, in the Secretary's discretion, establish.

SEC. 3906. BONDING REQUIREMENT.

(a) IN GENERAL.—The Secretary of State may assess a bond amount sufficient to ensure the ability of a sponsor to discharge its responsibilities and to ensure protection of exchange visitors, including wages or stipends. In requiring a sponsor to post the bond, the Secretary of State shall take into account the degree to which the sponsor's assets can be reached by United States courts.

(b) REGULATIONS.—The Secretary of State, by regulation, shall establish the conditions under which the bond amount is determined, paid, and forfeited, which shall include the sponsor's history of compliance.

(c) RELATIONSHIP TO OTHER REMEDIES.—The bond requirements and forfeiture of the bond under this section shall be in addition to or, pursuant to court order, in conjunction with, other remedies under 3910 or any other provision of law.

SEC. 3907. MAINTENANCE OF LISTS.

(a) IN GENERAL.—The Secretary of State shall work with the Secretary of Homeland Security to ensure that the information described in paragraphs (1) through (4) of subsection (b) is included on the foreign entity list kept and updated pursuant to section 3607 and shall share that list with the Department of Labor.

(b) INFORMATION.—Not later than 1 year after the date of the enactment of this Act, each sponsor shall compile and share with the Secretary of State on a regular basis a list that includes the following information:

(1) The countries from which the sponsor recruits.

(2) The host entities for whom the sponsor recruits.

(3) The occupations for which the sponsor recruits.

(4) The States where recruited exchange visitors are employed.

(c) LIMITATION ON PUBLIC AVAILABILITY.—Neither the Secretary of State nor the Secretary of Homeland Security shall make the information described in paragraphs (1) through (4) of subsection (b) public as part of the list described in section 3607.

SEC. 3908. AMENDMENT TO THE IMMIGRATION AND NATIONALITY ACT.

Section 214 (8 U.S.C. 1184), as amended by title IV, is further amended by adding at the end the following:

''(bb) A visa shall not be issued under section 101(a)(15) until the consular officer—

''(1) has confirmed that the applicant has received, read, and understood the information and resources pamphlet required by section 202 of the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 (8 U.S.C. 1375b); and

''(2) has reviewed and made a part of the visa file the exchange visitor program sponsor disclosures required by section 3902 of the Border Security, Economic Opportunity, and Immigration Modernization Act, including whether the exchange visitor program sponsor is designated pursuant to that section.''.

SEC. 3909. RESPONSIBILITIES OF SECRETARY OF STATE.

(a) IN GENERAL.—The Secretary of State shall ensure that each United States diplomatic mission has a person who is responsible for receiving information from any exchange visitor who has been subject to violations of this subtitle.

(b) PROVISION OF INFORMATION.—The responsible person referred to in subsection (a) shall ensure that the information received is provided to the Department of State. The Department of State may share that information as necessary with the Department of Justice, the Department of Labor, and any other relevant Federal agency.

(c) MECHANISMS.—The Attorney General and the Secretary of State shall ensure that there is a mechanism for any actions that need to be taken in response to information received under subsection (a).

(d) ASSISTANCE FROM FOREIGN GOVERNMENT.—The person designated for receiving information pursuant to subsection (a) is strongly encouraged to coordinate with governments and civil society organizations in the countries of origin to ensure the exchange visitor receives additional support.

(e) MAINTENANCE AND AVAILABILITY OF INFORMATION.—The Secretary of State shall ensure that consulates coordinate with the Department of State to have access to information regarding the identities of sponsors and the foreign entities with whom sponsors contract for exchange visitor program recruitment activities. The Secretary of State shall ensure information on the identity of sponsors is publicly available in written form on the Department of State website, and information on the identity of foreign entities in each individual country is publicly available on the websites of United States embassies in each of those countries.

SEC. 3910. ENFORCEMENT PROVISIONS.

(a) INVESTIGATIONS.—The Secretary of State shall undertake compliance actions and sanctions against exchange visitor program sponsors in accordance with part 62 of title 22, Code of Federal Regulations.

(b) REPRESENTATION.—Except as provided in section 518(a) of title 28, United States Code, the Attorney General may appear for and represent the Secretary in any civil litigation brought under this paragraph. All such litigation shall be subject to the direction and control of the Attorney General. Exchange visitor sponsors shall be allowed a reasonable period of inquiry and response before civil litigation is initiated.

(c) ENFORCEMENT.—The Secretary of State or an exchange visitor who is subject to any violation of this subtitle may bring a civil action against an exchange visitor program sponsor, foreign entity, or host entity in a court of competent jurisdiction and recover appropriate relief, including injunctive relief, damages, reasonable attorneys' fees and costs, and any other remedy that would effectuate the purposes of this subtitle. Any action must be filed within 3 years after the date on which the exchange visitor became aware of the violation, but under no circumstances more than 5 years after the date on which the violation occurred.

(d) ACTIONS BY THE SECRETARY OF STATE OR AN EXCHANGE VISITOR.—If the court finds in a civil action filed under this section that the defendant has violated any provision of this subtitle (or any regulation issued pursuant to this subtitle), the court may award damages, up to and including an amount equal to the amount of actual damages, and statutory damages of up to $1,000 per plaintiff per violation, or other equitable relief, except that with respect to statutory damages—

(1) multiple infractions of a single provision of this subtitle (or of a regulation under this subtitle) shall constitute only 1 violation for purposes of section 3902(a) to determine the amount of statutory damages due a plaintiff; and

(2) if such complaint is certified as a class action the court may award—

(A) damages up to an amount equal to the amount of actual damages; and

(B) statutory damages of not more than the lesser of up to $1,000 per class member per violation, or up to $500,000;

(C) other equitable relief;

(D) reasonable attorneys' fees and costs; and

(E) such other and further relief, including declaratory and injunctive relief, as necessary to effectuate the purposes of this subtitle.

(e) BOND.—To satisfy the damages, fees, and costs found owing under this section, as much of the bond held pursuant to section 3906 shall be released as necessary.

(f) APPEAL.—Any civil action brought under this section shall be subject to appeal as provided in chapter 83 of title 28, United States Code.

(g) SAFE HARBOR.—A host entity shall not have any liability under this section for the actions or omissions of an exchange visitor program sponsor that has a valid designation with the State Department pursuant to section 3905, unless and to the extent that the host entity has engaged in conduct that violates this subtitle.

(h) LIABILITY FOR FOREIGN ENTITIES.—Exchange visitor program sponsors shall be liable for violations of this subtitle by any foreign employees, agents, foreign entities, or subcontractees of any level in relation to the exchange visitor program recruitment activities of the foreign employees, agents, foreign entities, or subcontractees to the same extent as if the exchange visitor program sponsor had committed the violation, unless the exchange visitor program sponsor—

(1) uses reasonable procedures to protect against violations of this subtitle by foreign employees, agents, foreign entities, or subcontractees (including contractually forbidding in writing any foreign employees, agents, foreign entities, or subcontractees from seeking or receiving prohibited fees from workers);

(2) does not act with reckless disregard of the fact that foreign employees, agents, foreign entities, or subcontractees have violated any provision of this subtitle; and

(3) timely reports any potential violations to the Secretary of State.

(i) WAIVER OF RIGHTS.—Agreements between exchange visitors with sponsors, foreign entities, or host entities purporting to waive or to modify their rights under this subtitle shall be void as contrary to public policy.

(j) RETALIATION.—No person shall intimidate, threaten, restrain, coerce, discharge, or in any other manner discriminate or retaliate against any exchange visitor or his or her family members (including a former exchange visitor or an applicant for employment) because such exchange visitor disclosed information to any person that the exchange visitor reasonably believes evidences a violation of this section (or any rule or regulation pertaining to this section), including speaking with a worker organization, seeking legal assistance of counsel, or cooperating with an investigation or other proceeding concerning compliance with this section (or any regulation pertaining to this section).

(k) PROHIBITION ON RETALIATION.—It shall be unlawful for an exchange visitor program sponsor or foreign entity to terminate or remove from the exchange visitor program, ban from the program, adversely annotate an exchange visitor's SEVIS (as defined in section 4902) record, fire, demote, take other adverse employment action, or evict, or to threaten to take any of such actions against an exchange visitor in retaliation for the act of complaining about program conditions, including housing and job placements, wages, hours, and general treatment, or for disclosing retaliation by an exchange visitor sponsor, exchange visitor foreign entity, or host entity against any exchange visitor.

(l) PRESENCE DURING PENDENCY OF ACTIONS.—If other immigration relief is not available to the exchange visitor, the Secretary of Homeland Security may permit, only on the basis of proof, the exchange visitor to remain lawfully in the United States for the time sufficient to allow the exchange visitor to fully and effectively participate in all legal proceedings related to any action taken pursuant to this section.

(m) ACCESS TO LEGAL SERVICES CORPORATION.—Notwithstanding any other provision of law, the Legal Services Corporation and recipients of its funding may provide legal assistance on behalf of any alien with respect to any provision of this subtitle.

(n) HOST ENTITY VIOLATIONS.—The Secretary, in consultation with the Secretary of Labor, shall maintain a list of host entities against whom there has been a complaint substantiated by the Department of State for significant program violations. Information from that list shall be made available to sponsors upon request.

SEC. 3911. AUDITS AND TRANSPARENCY.

(a) COMPLIANCE AUDITS.—

(1) IN GENERAL.—The Secretary of State shall by regulation require audit reports to be filed by exchange visitor program sponsors operating under the following specific program categories, as described under subpart B of part 62 of title 22, Code of Federal Regulations, and any successor regulations:

(A) Summer work travel.

(B) Trainees and interns.

(C) Camp counselors.

(D) Au pairs.

(E) Teachers.

(2) AUDIT REPORTS.—Audit reports shall be filed with the Department of State and be conducted by a certified public accountant, qualified auditor, or licensed attorney pursuant to a format designated by the Secretary of State, attesting to the sponsor's compliance with the regulatory and reporting requirements set forth in part 62 of title 22, Code of Federal Regulations. The report shall be conducted at the expense of the sponsor and no more frequently than on a biannual basis.

(b) ANNUAL REPORT.—Not later than 1 year after the date of the enactment of this Act, and annually thereafter, the Secretary of State shall submit to Congress a report on the exchange visitor program, which shall detail for each specific program category—

(1) summary data on the number of exchange visitors and countries participating in that category;

(2) public diplomacy outcomes; and

(3) recent sanctions imposed by the Department of State.

TITLE IV—REFORMS TO NONIMMIGRANT VISA PROGRAMS

Subtitle A—Employment-based Nonimmigrant Visas

SEC. 4101. MARKET-BASED H–1B VISA LIMITS.

(a) IN GENERAL.—Section 214(g) (8 U.S.C. 1184(g)) is amended—

(1) in paragraph (1)—

(A) in the matter preceding subparagraph (A), by striking ''(beginning with fiscal year 1992)''; and

(B) by amending subparagraph (A) to read as follows:

''(A) under section 101(a)(15)(H)(i)(b) may not exceed the sum of—

''(i) the base allocation calculated under paragraph (9)(A); and

''(ii) the allocation adjustment calculated under paragraph (9)(B); and'';

(2) by redesignating paragraph (10) as subparagraph (D) of paragraph (9);

(3) by redesignating paragraph (9) as paragraph (10); and

(4) by inserting after paragraph (8) the following:

''(9)(A) Except as provided in subparagraph (C), the base allocation of nonimmigrant visas under section 101(a)(15)(H)(i)(b) for each fiscal year shall be equal to—

''(i) the sum of—

''(I) the base allocation for the most recently completed fiscal year; and

''(II) the allocation adjustment under subparagraph (B) for the most recently completed fiscal year;

''(ii) if the number calculated under clause (i) is less than 115,000, 115,000; or

''(iii) if the number calculated under clause (i) is more than 180,000, 180,000.

''(B)(i) If the number of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) during the first 45 days petitions may be filed for a fiscal year is equal to the base allocation for such fiscal year, an additional 20,000 such visas shall be made available beginning on the 46th day on which petitions may be filed for such fiscal year.

''(ii) If the base allocation of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is reached during the 15-day period ending on the 60th day on which petitions may be filed for such fiscal year, an additional 15,000 such visas shall be made available beginning on the 61st day on which petitions may be filed for such fiscal year.

''(iii) If the base allocation of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is reached during the 30-day period ending on the 90th day on which petitions may be filed for such fiscal year, an additional 10,000 such visas shall be made available beginning on the 91st day on which petitions may be filed for such fiscal year.

''(iv) If the base allocation of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is reached during the 185-day period ending on the 275th day on which petitions may be filed for such fiscal year, an additional 5,000 such visas shall be made available beginning on the date on which such allocation is reached.

''(v) If the number of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is at least 5,000 fewer than the base allocation, but is not more than 9,999 fewer than the base allocation, the allocation adjustment for the following fiscal year shall be -5,000.

''(vi) If the number of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is at least 10,000 fewer than the base allocation, but not more than 14,999 fewer than the base allocation, the allocation adjustment for the following fiscal year shall be -10,000.

''(vii) If the number of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is at least 15,000 fewer than the base allocation, but not more than 19,999 fewer than the base allocation, the allocation adjustment for the following fiscal year shall be -15,000.

''(viii) If the number of cap-subject nonimmigrant visa petitions accepted for filing under section 101(a)(15)(H)(i)(b) for a fiscal year is at least 20,000 fewer than the base allocation, the allocation adjustment for the following fiscal year shall be -20,000.

''(C) An allocation adjustment under clause (i), (ii), (iii), or (iv) of subparagraph (B)—

''(i) may not increase the numerical limitation contained in paragraph (9)(A) to a number above 180,000; and

''(ii) may not take place to make additional nonimmigrant visas available for any fiscal year in which the national occupational unemployment rate for 'Management, Professional, and Related Occupations', as published by the Bureau of Labor Statistics each month, averages 4.5 percent or greater over the 12-month period preceding the date of the Secretary's determination of whether the cap should be increased or decreased.''.

(b) INCREASE IN ALLOCATION FOR STEM NONIMMIGRANTS.—Section 214(g)(5)(C) (8 U.S.C. 1184(g)(5)(C)) is amended to read as follows:

''(C) has earned a master's or higher degree, in a field of science, technology, engineering, or math included in the Department of Education's Classification of Instructional Programs taxonomy within the summary groups of computer and information sciences and support services, engineering, mathematics and statistics, biological and biomedical sciences, and physical sciences, from a United States institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)) until the number of aliens who are exempted from such numerical limitation during such year exceed 25,000.''.

(c) PUBLICATION.—

(1) DATA SUMMARIZING PETITIONS.—The Secretary shall timely upload to a public website data that summarizes the adjudication of nonimmigrant petitions under section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)) during each fiscal year.

(2) ANNUAL NUMERICAL LIMITATION.—As soon as practicable and no later than March 2 of each fiscal year, the Secretary shall publish in the Federal Register the numerical limitation determined under section 214(g)(1)(A) for such fiscal year.

(d) EFFECTIVE DATE AND APPLICATION.—The amendments made by subsection (a) shall take effect on the first day of the first fiscal year beginning after the date of the enactment of this Act and apply to applications for nonimmigrant visas under section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)) for such fiscal year.

SEC. 4102. EMPLOYMENT AUTHORIZATION FOR DEPENDENTS OF EMPLOYMENT-BASED NONIMMIGRANTS.

Section 214(c) (8 U.S.C. 1184(c)) is amended—

(1) by striking ''Attorney General'' each place such term appears and inserting ''Secretary of Homeland Security''; and

(2) in paragraph (2), by amending subparagraph (E) to read as follows:

''(E)(i) In the case of an alien spouse admitted under section 101(a)(15)(L), who is accompanying or following to join a principal alien admitted under such section, the Secretary of Homeland Security shall—

''(I) authorize the alien spouse to engage in employment in the United States; and

''(II) provide the spouse with an 'employment authorized' endorsement or other appropriate work permit.

''(ii) In the case of an alien spouse admitted under section 101(a)(15)(H)(i)(b), who is accompanying or following to join a principal alien admitted under such section, the Secretary of Homeland Security shall—

''(I) authorize the alien spouse to engage in employment in the United States; and

''(II) provide such a spouse with an 'employment authorized' endorsement or other appropriate work permit, if appropriate.

''(iii)(I) Upon the request of the Secretary of State, the Secretary of Homeland Security may suspend employment authorizations under clause (ii) to nationals of a foreign country that does not permit reciprocal employment to nationals of the United States who are accompanying or following to join the employment-based nonimmigrant husband or wife of such spouse to be employed in such foreign country based on that status.

''(II) In subclause (I), the term 'employment-based nonimmigrant' means an individual who is admitted to a foreign country to perform employment similar to the employment described in section 101(a)(15)(H)(i)(b).''.

SEC. 4103. ELIMINATING IMPEDIMENTS TO WORKER MOBILITY.

(a) DEFERENCE TO PRIOR APPROVALS.—Section 214(c) (8 U.S.C. 1184(c)), as amended by section 4102, is further amended by adding at the end the following:

''(15) Subject to paragraph (2)(D) and subsection (g) and section 104(c) and subsections (a) and (b) of section 106 of the American Competitiveness in the Twenty-first Century Act of 2000 (Public Law 106–313; 8 U.S.C. 1184 note), the Secretary of Homeland Security shall give deference to a prior approval of a petition in reviewing a petition to extend the status of a nonimmigrant admitted under subparagraph (H)(i)(b) or (L) of section 101(a)(15) if the petition involves the same alien and petitioner unless the Secretary determines that—

''(A) there was a material error with regard to the previous petition approval;

''(B) a substantial change in circumstances has taken place;

''(C) new material information has been discovered that adversely impacts the eligibility of the employer or the nonimmigrant; or

''(D) in the Secretary's discretion, such extension should not be approved.''.

(b) EFFECT OF EMPLOYMENT TERMINATION.—Section 214(n) (8 U.S.C. 1184(n)) is amended by adding at the end the following:

''(3) A nonimmigrant admitted under section 101(a)(15)(H)(i)(b) whose employment relationship terminates before the expiration of the nonimmigrant's period of authorized admission shall be deemed to have retained such legal status throughout the entire 60-day period beginning on the date such employment is terminated. A nonimmigrant who files a petition to extend, change, or adjust their status at any point during such period shall be deemed to have lawful status under section 101(a)(15)(H)(i)(b) while that petition is pending.''.

(c) VISA REVALIDATION.—Section 222(c) (8 U.S.C. 1202(c)) is amended—

(1) by inserting ''(1)'' before ''Every alien''; and

(2) by adding at the end the following:

''(2) The Secretary of State may, at the Secretary's discretion, renew in the United States the visa of an alien admitted under subparagraph (A), (E), (G), (H), (I), (L), (N), (O), (P), (R), or (W) of section 101(a)(15) if the alien has remained eligible for such status and qualifies for a waiver of interview as provided for in subsection (h)(1)(D).''.

(d) INTERVIEW WAIVERS FOR LOW RISK VISA APPLICANTS.—Section 222(h)(1) (8 U.S.C. 1202(h)(1)) is amended—

(1) in subparagraph (B)(iv), by striking ''or'' at the end;

(2) in subparagraph (C)(ii), by striking ''and'' at the end and inserting ''or''; and

(3) by adding at the end the following:

''(D) by the Secretary of State, in consultation with the Secretary of Homeland Security, for such aliens or classes of aliens—

''(i) that the Secretary determines generally represent a low security risk;

''(ii) for which an in-person interview would not add material benefit to the adjudication process;

''(iii) unless the Secretary of State, after a review of all standard database and biometric checks, the visa application, and other supporting documents, determines that an interview is unlikely to reveal derogatory information; and

''(iv) except that in every case, the Secretary of State retains the right to require an applicant to appear for an interview; and''.

SEC. 4104. STEM EDUCATION AND TRAINING.

(a) FEE.—Section 212(a)(5)(A) (8 U.S.C. 1182(a)(5)(A)) is amended by adding at the end the following:

''(v) FEE.—An employer shall submit, along with an application for a certification under this subparagraph, a fee of $1,000, which shall be deposited in the STEM Education and Training Account established under section 286(w).''.

(b) H–1B NONIMMIGRANT PETITIONER ACCOUNT.—Section 286(s) (8 U.S.C. 1356(s)) is amended by striking paragraphs (3) and (4) and inserting the following:

''(3) LOW-INCOME STEM SCHOLARSHIP PROGRAM.—

''(A) IN GENERAL.—Thirty percent of the amounts deposited into the H–1B Nonimmigrant Petitioner Account shall remain available to the Director of the National Science Foundation until expended for scholarships described in section 414(d) of the American Competitiveness and Workforce Improvement Act of 1998 (42 U.S.C. 1869c) for low-income students enrolled in a program

of study leading to a degree in science, technology, engineering, or mathematics.

''(B) STEM EDUCATION FOR UNDERREPRESENTED.—The Director shall work in consultation with, or direct scholarship funds through, national nonprofit organizations that primarily focus on science, technology, engineering, or mathematics education for underrepresented groups, such as women and minorities.

''(C) LOAN FORGIVENESS.—The Director may expend funds from the Account for purposes of loan forgiveness or repayment of student loans which led to a low-income student obtaining a degree in science, technology, engineering, mathematics, or other high demand fields.

''(4) NATIONAL SCIENCE FOUNDATION GRANT PROGRAM FOR K–12 SCIENCE, TECHNOLOGY, ENGINEERING, AND MATHEMATICS EDUCATION.—

''(A) IN GENERAL.—Ten percent of the amounts deposited into the H–1B Nonimmigrant Petitioner Account shall remain available to the Director of the National Science Foundation until expended to carry out a direct or matching grant program to support improvement in K–12 education, including through private-public partnerships. Grants awarded pursuant to this paragraph shall include formula based grants that target lower income populations with a focus on reaching women and minorities.

''(B) TYPES OF PROGRAMS COVERED.—The Director shall award grants to programs that—

''(i) support the development and implementation of standards-based instructional materials models and related student assessments that enable K–12 students to acquire an understanding of science, technology, engineering, and mathematics, and to develop critical thinking skills;

''(ii) provide systemic improvement in training K–12 teachers and education for students in science, technology, engineering, and mathematics, including by supporting efforts to promote gender-equality among students receiving such instruction;

''(iii) support the professional development of K–12 science, technology, engineering, and mathematics teachers in the use of technology in the classroom;

''(iv) stimulate systemwide K–12 reform of science, technology, engineering, and mathematics in urban, rural, and economically disadvantaged regions of the United States;

''(v) provide externships and other opportunities for students to increase their appreciation and understanding of science, technology, engineering, and mathematics (including summer institutes sponsored by an institution of higher education for students in grades 7 through 12 that provide instruction in such fields);

''(vi) involve partnerships of industry, educational institutions, and national or regional community based organizations with demonstrated experience addressing the educational needs of disadvantaged communities;

''(vii) provide college preparatory support to expose and prepare students for careers in science, technology, engineering, and mathematics; or

''(viii) provide for carrying out systemic reform activities under section 3(a)(1) of the National Science Foundation Act of 1950 (42 U.S.C. 1862(a)(1)).''.

(c) USE OF FEE.—Section 286 (8 U.S.C. 1356) is amended by adding at the end the following:

''(w) STEM EDUCATION AND TRAINING ACCOUNT.—

''(1) IN GENERAL.—There is established in the general fund of the Treasury a separate account, which shall be known as the 'STEM Education and Training Account'. Notwithstanding any other section of this title, there shall be deposited as offsetting receipts into the Account all of the fees collected under section 212(a)(5)(A)(v).

''(2) PURPOSES.—

''(A) IN GENERAL.—The purposes of the STEM Education and Training Account are to enhance the economic competitiveness of the United States by—

''(i) strengthening STEM education, including in computer science, at all levels;

''(ii) ensuring that schools have access to well-trained and effective STEM teachers;

''(iii) supporting efforts to strengthen the elementary and secondary curriculum, including efforts to make courses in computer science more broadly available; and

''(iv) helping colleges and universities produce more graduates in fields needed by American employers.

''(B) DEFINED TERM.—In this paragraph, the term 'STEM education' means instruction in a field of science, technology, engineering or math included in the Department of Education's Classification of Instructional Programs taxonomy within the summary groups of computer and information sciences and support services, engineering, mathematics and statistics, biological and biomedical sciences, and physical sciences.

''(3) ALLOCATIONS TO STATES AND TERRITORIES.—

''(A) IN GENERAL.—Subject to subparagraph (B), the Secretary of Education shall proportionately allocate 70 percent of the amounts deposited into the STEM Education and Training Account each fiscal year to the 50 States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, the United States Virgin Islands, American Samoa, and the Northern Mariana Islands in an amount that bears the same relationship as the proportion the State, district, or territory received under subpart 2 of part A of title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6331 et seq.) for the preceding fiscal year bears to the amount all States and territories received under that subpart for the preceding fiscal year.

''(B) MINIMUM ALLOCATIONS.—No State or territory shall receive less than an amount equal to 0.5 percent of the total amount made available to all States from the STEM Education and Training Account. If a State or territory does not request an allocation from the Account for a fiscal year, the Secretary shall reallocate the State's allocation to the remaining States and territories in accordance with this paragraph.

''(C) USE OF FUNDS.—Amounts allocated pursuant to this paragraph may be used for the activities described in section 4104(c) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(4) STEM CAPACITY BUILDING AT MINORITY-SERVING INSTITUTIONS.—

''(A) IN GENERAL.—The Secretary of Education shall allocate 20 percent of the amounts deposited into the STEM Education and Training Account to establish or expand programs to award grants to institutions described in subparagraph (C)—

''(i) to enhance the quality of undergraduate science, technology, engineering, and mathematics education at such institutions; and

''(ii) to increase the retention and graduation rates of students pursuing degrees in such fields at such institutions.

''(B) TYPES OF PROGRAMS COVERED.—Grants awarded under this paragraph shall be awarded to—

''(i) minority-serving institutions of higher education for—

''(I) activities to improve courses and curriculum in science, technology, engineering, and mathematics;

''(II) efforts to promote gender equality among students enrolled in such courses;

''(III) faculty development;

''(IV) stipends for undergraduate students participating in research; and

''(V) other activities consistent with subparagraph (A), as determined by the Secretary of Education; and

''(ii) to other institutions of higher education to partner with the institutions described in clause (i) for—

''(I) faculty and student development and exchange;

''(II) research infrastructure development;

''(III) joint research projects; and

''(IV) identification and development of minority and low-income candidates for graduate studies in science, technology, engineering, and mathematics degree programs.

''(C) INSTITUTIONS INCLUDED.—In this paragraph, the term 'institutions' shall include—

''(i) colleges eligible to receive funds under the Act of August 30, 1890 (7 U.S.C. 321–326a and 328), including Tuskegee University;

''(ii) 1994 Institutions, as defined in section 532 of the Equity in Educational Land-Grant Status Act of 1994 (7 U.S.C. 301 note);

''(iii) part B institutions (as defined in section 322 of the Higher Education Act of 1965 (20 U.S.C. 1061)); and

''(iv) Hispanic-serving institutions, as defined in section 502(a)(5) of the Higher Education Act of 1965 (20 U.S.C. 1101a(a)(5)).

''(D) GRANTING OF BONDING AUTHORITY.—A recipient of a grant awarded under this paragraph is authorized to utilize such funds for the issuance of bonds to fund research infrastructure development.

''(E) LOAN FORGIVENESS.—The Director may expend funds from the allocation under this paragraph for purposes of loan forgiveness or repayment of student loans which led to a low-income student obtaining a degree in science, technology, engineering, mathematics, or other high demand fields.

''(5) WORKFORCE INVESTMENT.—The Secretary of Education shall allocate 5 percent of the amounts deposited into the STEM Education and Training Account to the Secretary of Labor until expended for statewide workforce investment activities that may also benefit veterans and their spouses, including youth activities and statewide employment and training and activities for adults and dislocated workers described in section 128(a) of the Workforce Investment Act of 1998 (29 U.S.C. 2853(a)), and the development of licensing and credentialing programs.

''(6) AMERICAN DREAM ACCOUNTS.—The Secretary of Education shall allocate 3 percent of the amounts deposited into the STEM Education and Training Account to award grants, on a competitive basis, to eligible entities to enable such eligible entities to establish and administer American Dream Accounts under section 4104(e) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.

''(7) ADMINISTRATION EXPENSES.—The Secretary of Education may expend up to 2 percent of the amounts deposited into the STEM Education and Training Account for administrative expenses, including conducting an annual evaluation of the implementation and impact of the activities funded by the STEM Education and Training Account as required under section 4104(c)(3) of the Border Security, Economic Opportunity, and Immigration Modernization Act.''.

(d) STEM EDUCATION GRANTS.—

(1) APPLICATION PROCESS.—

(A) IN GENERAL.—Each Governor and Chief State School Officer desiring an allocation from the STEM Education and Training Account under section 286(w)(3) of the Immigration and Nationality Act, as added by subsection (b), shall jointly submit a plan, including a proposed budget, signed by the

Governor and Chief State School Officer, to the Secretary of Education at such time, in such form, and including such information as the Secretary of Education may prescribe pursuant to subparagraph (B). The plan shall describe how the State plans to improve STEM education to meet the needs of students and employers in the State.

(B) RULEMAKING.—The Secretary of Education shall issue a rule, through a rulemaking procedure that complies with section 553 of title 5, United States Code, prescribing the information that should be included in the State plans submitted under subparagraph (A).

(2) ALLOWABLE ACTIVITIES.—A State, district, or territory that receives funding from the STEM Education and Training Account may use such funding to develop and implement science, technology, engineering, and mathematics (STEM) activities to serve students, including students of underrepresented groups such as minorities, economically disadvantaged, and females by—

(A) strengthening the State's STEM academic achievement standards;

(B) implementing strategies for the recruitment, training, placement, and retention of teachers in STEM fields, including computer science;

(C) carrying out initiatives designed to assist students in succeeding and graduating from postsecondary STEM programs;

(D) improving the availability and access to STEM-related worker training programs, including community college courses and programs;

(E) forming partnerships with higher education, economic development, workforce, industry, and local educational agencies; or

(F) engaging in other activities, as determined by the State, in consultation with businesses and State agencies, to improve STEM education.

(3) NATIONAL EVALUATION.—

(A) IN GENERAL.—Using amounts allocated under section 286(w)(7) of the Immigration and Nationality Act, as added by subsection (b), the Secretary of Education shall conduct, directly or through a grant or contract, an annual evaluation of the implementation and impact of the activities funded by the STEM Education and Training Account.

(B) ANNUAL REPORT.—The Secretary shall submit a report describing the results of each evaluation conducted under subparagraph (A) to—

(i) the President;

(ii) the Committee on the Judiciary of the Senate;

(iii) the Committee on the Judiciary of the House of Representatives;

(iv) the Committee on Health, Education, Labor, and Pensions of the Senate; and

(v) the Committee on Education and the Workforce of the House of Representatives.

(C) DISSEMINATION.—The Secretary shall make the findings of the evaluation widely available to educators, the business community, and the public.

(4) RULE OF CONSTRUCTION.—Nothing in this subsection may be construed to permit the Secretary of Education or any other Federal official to approve the content or academic achievement standards of a State.

(e) AMERICAN DREAM ACCOUNTS.—

(1) DEFINITIONS.—In this subsection:

(A) AMERICAN DREAM ACCOUNT.—The term ''American Dream Account'' means a personal online account for low-income students that monitors higher education readiness and includes a college savings account.

(B) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(i) the Committee on Health, Education, Labor, and Pensions of the Senate;

(ii) the Committee on Appropriations of the Senate;

(iii) the Committee on Finance of the Senate;

(iv) the Committee on Education and the Workforce of the House of Representatives;

(v) the Committee on Appropriations of the House of Representatives;

(vi) the Committee on Ways and Means of the House of Representatives; and

(vii) any other committee of the Senate or House of Representatives that the Secretary determines appropriate.

(C) COLLEGE SAVINGS ACCOUNT.—The term ''college savings account'' means a savings account that—

(i) provides some tax-preferred accumulation;

(ii) is widely available (such as Qualified Tuition Programs under section 529 of the Internal Revenue Code of 1986 or Coverdell Education Savings Accounts under section 530 of the Internal Revenue Code of 1986); and

(iii) contains funds that may be used only for the costs associated with attending an institution of higher education, including—

(I) tuition and fees;

(II) room and board;

(III) textbooks;

(IV) supplies and equipment; and

(V) internet access.

(D) DUAL ENROLLMENT PROGRAM.—The term ''dual enrollment program'' means an academic program through which a secondary school student is able simultaneously to earn credit toward a secondary school diploma and a postsecondary degree or credential.

(E) ELIGIBLE ENTITY.—The term ''eligible entity'' means—

(i) a State educational agency;

(ii) a local educational agency;

(iii) a charter school or charter management organization;

(iv) an institution of higher education;

(v) a nonprofit organization;

(vi) an entity with demonstrated experience in educational savings or in assisting low-income students to prepare for, and attend, an institution of higher education; or

(vii) a consortium of 2 or more of the entities described in clause (i) through (vi).

(F) ESEA DEFINITIONS.—The terms ''local educational agency'', ''parent'', and ''State educational agency'' have the meanings given the terms in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801) and the term ''charter school'' has the meaning given the term in section 5210 of such Act.

(G) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given the term in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)).

(H) LOW-INCOME STUDENT.—The term ''low-income student'' means a student who is eligible to receive a free or reduced price lunch under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.).

(2) GRANT PROGRAM.—

(A) PROGRAM AUTHORIZED.—The Secretary of Education is authorized to award grants, on a competitive basis, to eligible entities to enable such eligible entities to establish and administer American Dream Accounts for a group of low-income students.

(B) RESERVATION.—From the amount made available each fiscal year to carry out this section under section 286(w)(6) of the Immigration and Nationality Act, the Secretary of Education shall reserve not more than 5 percent of such amount to carry out the evaluation activities described in paragraph (5)(A).

(C) DURATION.—A grant awarded under this subsection shall be for a period of not more than 3 years. The Secretary of Education may extend such grant for an additional 2-year period if the Secretary of Education determines that the eligible entity has demonstrated significant progress, based on the factors described in paragraph (3)(B)(xi).

(3) APPLICATIONS; PRIORITY.—

(A) IN GENERAL.—Each eligible entity desiring a grant under this subsection shall submit an application to the Secretary of Education at such time, in such manner, and containing such information as the Secretary of Education may require.

(B) CONTENTS.—The application described in subparagraph (A) shall include—

(i) a description of the characteristics of a group of not less than 30 low-income public school students who—

(I) are, at the time of the application, attending a grade not higher than grade 9; and

(II) will, under the grant, receive an American Dream Account;

(ii) a description of how the eligible entity will engage, and provide support (such as tutoring and mentoring for students, and training for teachers and other stakeholders) either online or in person, to—

(I) the students in the group described in clause (i);

(II) the family members and teachers of such students; and

(III) other stakeholders such as school administrators and school counselors;

(iii) an identification of partners who will assist the eligible entity in establishing and sustaining American Dream Accounts;

(iv) a description of what experience the eligible entity or the eligible entity's partners have in managing college savings accounts, preparing low-income students for postsecondary education, managing online systems, and teaching financial literacy;

(v) a description of how the eligible entity will help increase the value of the college savings account portion of each American Dream Account, such as by providing matching funds or incentives for academic achievement;

(vi) a description of how the eligible entity will notify each participating student in the group described in subparagraph (A), on a semiannual basis, of the current balance and status of the student's college savings account portion of the student's American Dream Account;

(vii) a plan that describes how the eligible entity will monitor participating students in the group described in clause (i) to ensure that each student's American Dream Account will be maintained if a student in such group changes schools before graduating from secondary school;

(viii) a plan that describes how the American Dream Accounts will be managed for not less than 1 year after a majority of the students in the group described in clause (i) graduate from secondary school;

(ix) a description of how the eligible entity will encourage students in the group described in clause (i) who fail to graduate from secondary school to continue their education;

(x) a description of how the eligible entity will evaluate the grant program, including by collecting, as applicable, data about the students in the group described in clause (i) during the grant period, and, if sufficient grant funds are available, after the grant period, including

(I) attendance rates;

(II) progress reports;

(III) grades and course selections;

(IV) the student graduation rate (as defined in section 1111 (b)(2)(C)(vi) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311(b)(2)(C)(vi)));

(V) rates of student completion of the Free Application for Federal Student Aid described in section 483 of the Higher Education Act of 1965 (20 U.S.C. 1090);

(VI) rates of enrollment in an institution of higher education; and

(VII) rates of completion at an institution of higher education;

(xi) a description of what will happen to the funds in the college savings account portion of the American Dream Accounts that are dedicated to participating students described in clause (i) who have not matriculated at an institution of higher education at the time of the conclusion of the period of American Dream Account management described in clause (viii);

(xii) a description of how the eligible entity will ensure that funds in the college savings account portion of the American Dream Accounts will not make families ineligible for public assistance; and

(xiii) a description of how the eligible entity will ensure that participating students described in clause (i) will have access to the Internet;

(C) PRIORITY.—In awarding grants under this subsection, the Secretary of Education shall give priority to applications from eligible entities that—

(i) are described in paragraph (1)(E)(vii);

(ii) serve the largest number of low-income students;

(iii) emphasize preparing students to pursue careers in science, technology, engineering, or mathematics; or

(iv) in the case of an eligible entity described in clause (i) or (ii) of paragraph (1)(E), provide opportunities for participating students described in clause (i) to participate in a dual enrollment program at no cost to the student.

(4) AUTHORIZED ACTIVITIES.—

(A) IN GENERAL.—An eligible entity that receives a grant under this subsection shall use such grant funds to establish an American Dream Account for each participating student described in paragraph (3)(B)(i), which will be used to—

(i) open a college savings account for such student;

(ii) monitor the progress of such student online, which—

(I) shall include monitoring student data relating to—

(aa) grades and course selections;

(bb) progress reports; and

(cc) attendance and disciplinary records; and

(II) may also include monitoring student data relating to a broad range of information, provided by teachers and family members, related to postsecondary education readiness, access, and completion;

(iii) provide opportunities for such students, either online or in person, to learn about financial literacy, including by—

(I) assisting such students in financial planning for enrollment in an institution of higher education; and

(II) assisting such students in identifying and applying for financial aid (such as loans, grants, and scholarships) for an institution of higher education;

(iv) provide opportunities for such students, either online or in person, to learn about preparing for enrollment in an institution of higher education, including by providing instruction to students about—

(I) choosing the appropriate courses to prepare for postsecondary education;

(II) applying to an institution of higher education;

(III) building a student portfolio, which may be used when applying to an institution of higher education;

(IV) selecting an institution of higher education;

(V) choosing a major for the student's postsecondary program of education or a career path, including specific instruction on pursuing science, technology, engineering, and mathematics majors; and

(VI) adapting to life at an institution of higher education; and

(v) provide opportunities for such students, either online or in person, to identify skills or interests, including career interests.

(B) ACCESS TO AMERICAN DREAM ACCOUNT.—

(i) IN GENERAL.—Subject to clause (iii) and (iv), and in accordance with applicable Federal laws and regulations relating to privacy of information and the privacy of children, an eligible entity that receives a grant under this subsection shall allow vested stakeholders described in clause (ii), to have secure access, through the Internet, to an American Dream Account.

(ii) VESTED STAKEHOLDERS.—The vested stakeholders that an eligible entity shall permit to access an American Dream Account are individuals (such as the student's teachers, school counselors, counselors at an institution of higher education, school administrators, or other individuals) that are designated, in accordance with the Family Educational Rights and Privacy Act of 1974 (20 U.S.C. 1232g), by the parent of a participating student in whose name such American Dream Account is held, as having permission to access the account. A student's parent may withdraw such designation from an individual at any time.

(iii) EXCEPTION FOR COLLEGE SAVINGS ACCOUNT.—An eligible entity that receives a grant under this subsection shall not be required to give vested stakeholders described in clause (ii), access to the college savings account portion of a student's American Dream Account.

(iv) ADULT STUDENTS.—Notwithstanding clause (i) through (iii), if a participating student is age 18 or older, an eligible entity that receives a grant under this subsection shall not provide access to such participating student's American Dream Account without the student's consent, in accordance with the Family Educational Rights and Privacy Act of 1974 (20 U.S.C. 1232g).

(v) INPUT OF STUDENT INFORMATION.—Student data collected pursuant to subparagraph (A)(ii)(I) may only be entered into an American Dream Account by a school administrator or such administrator's designee.

(C) PROHIBITION ON USE OF STUDENT INFORMATION.—An eligible entity that receives a grant under this subsection may not use any student-level information or data for the purpose of soliciting, advertising, or marketing any financial or nonfinancial consumer product or service that is offered by such eligible entity, or on behalf of any other person.

(D) LIMITATION ON THE USE OF GRANT FUNDS.—An eligible entity shall not use more than 25 percent of the grant funds provided under this subsection to provide the initial deposit into a college savings account portion of a student's American Dream Account.

(5) REPORTS AND EVALUATIONS.—

(A) IN GENERAL.—Not later than 1 year after the Secretary of Education has disbursed grants under this subsection, and annually thereafter, the Secretary of Education shall prepare and submit a report to the appropriate committees of Congress that includes an evaluation of the effectiveness of the grant program established under this subsection.

(B) CONTENTS.—The report described in subparagraph (A) shall—

(i) list the grants that have been awarded under paragraph (2)(A);

(ii) include the number of students who have an American Dream Account established through a grant awarded under paragraph (2)(A);

(iii) provide data (including the interest accrued on college savings accounts that are part of an American Dream Account) in the aggregate, regarding students who have an American Dream Account established through a grant awarded under paragraph (2)(A), as compared to similarly situated students who do not have an American Dream Account;

(iv) identify best practices developed by the eligible entities receiving grants under this subsection;

(v) identify any issues related to student privacy and stakeholder accessibility to American Dream Accounts;

(vi) provide feedback from participating students and the parents of such students about the grant program, including—

(I) the impact of the program;

(II) aspects of the program that are successful;

(III) aspects of the program that are not successful; and

(IV) any other data required by the Secretary of Education; and

(vii) provide recommendations for expanding the American Dream Accounts program.

(6) ELIGIBILITY TO RECEIVE FEDERAL STUDENT FINANCIAL AID.—Notwithstanding any other provision of law, any funds that are in the college savings account portion of a student's American Dream Account shall not affect such student's eligibility to receive Federal student financial aid, including any Federal student financial aid under the Higher Education Act of 1965 (20 U.S.C. 1001), and shall not be considered in determining the amount of any such Federal student aid.

(f) CONFORMING AMENDMENT.—Section 480(j) of the Higher Education Act of 1965 (20 U.S.C. 1087vv(j)) is amended by adding at the end the following:

''(5) Notwithstanding paragraph (1), amounts made available under the college savings account portion of an American Dream Account under section 4105(e)(4) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 shall not be treated as estimated financial assistance for purposes of section 471(3).''.

SEC. 4105. H–1B AND L VISA FEES.

Section 281 (8 U.S.C. 1351) is amended—

(1) by striking ''The fees'' and inserting the following:

''(a) IN GENERAL.—The fees'';

(2) by striking '': Provided, That nonimmigrant visas'' and inserting the following: ''.

''(b) UNITED NATIONS VISITORS.—Nonimmigrant visas'';

(3) by striking ''Subject to'' and inserting the following:

''(c) FEE WAIVERS OR REDUCTIONS.—Subject to''; and

(4) by adding at the end the following:

''(d) H–1B AND L VISA FEES.—In addition to the fees authorized under subsection (a), the Secretary of Homeland Security shall collect, from each employer (except for nonprofit research institutions and nonprofit educational institutions) filing a petition to hire nonimmigrants described in subparagraph (H)(i)(B) or (L) of section 101(a)(15), a fee in an amount equal to—

''(1) $1,250 for each such petition filed by any employer with not more than 25 full-time equivalent employees in the United States; and

''(2) $2,500 for each such petition filed by any employer with more than 25 such employees.''.

Subtitle B—H–1B Visa Fraud and Abuse Protections

CHAPTER 1—H–1B EMPLOYER APPLICATION REQUIREMENTS

SEC. 4211. MODIFICATION OF APPLICATION REQUIREMENTS.

(a) GENERAL APPLICATION REQUIREMENTS.—

(1) WAGE RATES.—Section 212(n)(1)(A) (8 U.S.C. 1182(n)(1)(A)) is amended—

(A) in clause (i)—

(i) in the matter preceding subclause (I), by inserting ''if the employer is not an H–1B-dependent employer,'' before ''is offering'';

(ii) in subclause (I), by striking ''question, or'' and inserting ''question; or'';

(iii) in subclause (II), by striking ''employment,'' and inserting ''employment;'' and

(iv) in the undesignated material following subclause (II), by striking ''application, and'' and inserting ''application;''; and

(B) by striking clause (ii) and inserting the following:

''(ii) if the employer is an H–1B-dependent employer, is offering and will offer to H–1B nonimmigrants, during the period of authorized employment for each H–1B nonimmigrant, wages that are not less than the level 2 wages set out in subsection (p); and

''(iii) will provide working conditions for H–1B nonimmigrants that will not adversely affect the working conditions of other workers similarly employed.''.

(2) STRENGTHENING THE PREVAILING WAGE SYSTEM.—Section 212(p) (8 U.S.C. 1182(p)) is amended to read as follows:

''(p) COMPUTATION OF PREVAILING WAGE LEVEL.—

''(1) IN GENERAL.—

''(A) SURVEYS.—For employers of nonimmigrants admitted pursuant to section 101(a)(15)(H)(i)(b), the Secretary of Labor shall make available to employers a governmental survey to determine the prevailing wage for each occupational classification by metropolitan statistical area in the United States. Such survey, or other survey approved by the Secretary of Labor, shall provide 3 levels of wages commensurate with experience, education, and level of supervision. Such wage levels shall be determined as follows:

''(i) The first level shall be the mean of the lowest two-thirds of wages surveyed, but in no case less than 80 percent of the mean of the wages surveyed.

''(ii) The second level shall be the mean of wages surveyed.

''(iii) The third level shall be the mean of the highest two-thirds of wages surveyed.

''(B) EDUCATIONAL, NONPROFIT, RESEARCH, AND GOVERNMENTAL ENTITIES.—In computing the prevailing wage level for an occupational classification in an area of employment for purposes of section 203(b)(1)(D) and subsections (a)(5)(A), (n)(1)(A)(i)(II), and (t)(1)(A)(i)(II) of this section in the case of an employee of—

''(i) an institution of higher education, or a related or affiliated nonprofit entity; or

''(ii) a nonprofit research organization or a governmental research organization;

the prevailing wage level shall only take into account employees at such institutions and organizations in the area of employment.

''(2) PAYMENT OF PREVAILING WAGE.—The prevailing wage level required to be paid pursuant to section 203(b)(1)(D) and subsections (a)(5)(A), (n)(1)(A)(i)(II), and (t)(1)(A)(i)(II) of this section shall be 100 percent of the wage level determined pursuant to those sections.

''(3) PROFESSIONAL ATHLETE.—With respect to a professional athlete (as defined in subsection (a)(5)(A)(iii)(II)) when the job opportunity is covered by professional sports league rules or regulations, the wage set forth in those rules or regulations shall be considered as not adversely affecting the wages of United States workers similarly employed and shall be considered the prevailing wage.

''(4) WAGES FOR H–2B EMPLOYEES.—

''(A) IN GENERAL.—The wages paid to H–2B nonimmigrants employed by the employer will be the greater of—

''(i) the actual wage level paid by the employer to other employees with similar experience and qualifications for such position; or

''(ii) the prevailing wage level for the occupational classification of the position in the geographic area of the employment, based on the best information available as of the time of filing the application.

''(B) BEST INFORMATION AVAILABLE.—In subparagraph (A), the term 'best information available', with respect to determining the prevailing wage for a position, means—

''(i) a controlling collective bargaining agreement or Federal contract wage, if applicable;

''(ii) if there is no applicable wage under clause (i), the wage level commensurate with the experience, training, and supervision required for the job based on Bureau of Labor Statistics data; or

''(iii) if the data referred to in clause (ii) is not available, a legitimate and recent private survey of the wages paid for such positions in the metropolitan statistical area.''.

(3) WAGES FOR EDUCATIONAL, NONPROFIT, RESEARCH, AND GOVERNMENTAL ENTITIES.—Section 212 (8 U.S.C. 1182), as amended by sections 2312 and 2313, is further amended by adding at the end the following:

''(x) DETERMINATION OF PREVAILING WAGE.—In the case of a nonprofit institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a))), a related or affiliated nonprofit entity, a nonprofit research organization, or a governmental research organization, the Secretary of Labor shall determine such wage levels as follows:

''(1) If the Secretary of Labor uses, or makes available to employers, a governmental survey to determine the prevailing wage, such survey shall provide at least 4 levels of wages commensurate with experience, education, and the level of supervision.

''(2) If an existing government survey has only 2 levels, 2 intermediate levels may be created by dividing by 3, the difference between the 2 levels offered, adding the quotient thus obtained to the first level and subtracting that quotient from the second level.

''(3) For institutions of higher education, only teaching positions and research positions may be paid using this special educational wage level.

''(4) In computing the prevailing wage level for an occupational classification in an area of employment for purposes of subsections (a)(5)(A), (n)(1)(A)(i)(II), and (t)(1)(A)(i)(II) and section 203(b)(1)(D) for an employee of an institution of higher education, or a related or affiliated nonprofit entity or a nonprofit research organization or a governmental research organization, the prevailing wage level shall only take into account employees at such institutions and organizations in the area of employment.''.

(b) INTERNET POSTING REQUIREMENT.—Section 212(n)(1)(C) (8 U.S.C. 1182(n)(1)(C)) is amended—

(1) by redesignating clause (ii) as subclause (II);

(2) by striking ''(i) has provided'' and inserting the following:

''(ii)(I) has provided'';

(3) by striking ''sought, or'' and inserting ''sought; or''; and

(4) by inserting before clause (ii), as redesignated by paragraph (2), the following:

''(i) has advertised on the Internet website maintained by the Secretary of Labor for the purpose of such advertising, for at least 30 calendar days, a detailed description of each position for which a nonimmigrant is sought that includes a description of—

''(I) the wage ranges and other terms and conditions of employment;

''(II) the minimum education, training, experience, and other requirements for the position;

''(III) the process for applying for the position;

''(IV) the title and description of the position, including the location where the work will be performed; and

''(V) the name, city, and zip code of the employer; and''.

(c) APPLICATION OF REQUIREMENTS TO ALL EMPLOYERS.—

(1) NONDISPLACEMENT.—Section 212(n)(1)(E) (8 U.S.C. 1182(n)(1)(E)) is amended to read as follows:

''(E)(i)(I) In the case of an application filed by an employer that is an H–1B skilled worker dependent employer, and is not an H–1B dependent employer, the employer did not displace and will not displace a United States worker employed by the employer during the period beginning 90 days before the date on which a visa petition supported by the application is filed and ending 90 days after such filing.

''(II) An employer that is not an H–1B skilled worker dependent employer shall not be subject to subclause (I) unless—

''(aa) the employer is filing the H–1B petition with the intent or purpose of displacing a specific United States worker from the position to be occupied by the beneficiary of the petition; or

''(bb) workers are displaced who—

''(AA) provide services, in whole or in part, at 1 or more worksites owned, operated, or controlled by a Federal, State, or local government entity, other than a public institution of higher education, that directs and controls the work of the H–1B worker; or

''(BB) are employed as public school kindergarten, elementary, middle school, or secondary school teachers.

''(ii)(I) In the case of an application filed by an H–1B-dependent employer, the employer did not displace and will not displace a United States worker employed by the employer within the period beginning 180 days before the date on which a visa petition supported by the application is filed and ending 180 days after such filing.

''(II) An application described in this clause is an application filed on or after the date final regulations are first promulgated to carry out this subparagraph, and before by an H–1B-dependent employer (as defined in paragraph (3)) or by an employer that has been found, on or after the date of the enactment of the American Competitiveness and Workforce Improvement Act of 1998, under paragraph (2)(C) or (5) to have committed a willful failure or misrepresentation during the 5-year period preceding the filing of the application.

''(iii) In this subparagraph, the term 'job zone' means a zone assigned to an occupation by—

''(I) the Occupational Information Network Database (O*NET) on the date of the enactment of this Act; or

''(II) such database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of Border Security, Economic Opportunity, and Immigration Modernization Act.''.

(2) RECRUITMENT.—Section 212(n)(1)(G) (8 U.S.C. 1182(n)(1)(G)) is amended to read as follows:

''(G) An employer, prior to filing the application—

''(i) has taken good faith steps to recruit United States workers for the occupational classification for which the nonimmigrant or nonimmigrants is or are sought, using procedures that meet industry-wide standards and offering compensation that is at least as great as that required to be offered to H–1B nonimmigrants under subparagraph (A);

''(ii) has advertised the job on an Internet website maintained by the Secretary of Labor for the purpose of such advertising; and

''(iii) if the employer is an H–1B skilled worker dependent employer, has offered the job to any United States worker who applies and is equally or better qualified for the job for which the nonimmigrant or nonimmigrants is or are sought.''.

(d) OUTPLACEMENT.—Section 212(n)(1)(F) (8 U.S.C. 1182(n)(1)(F)) is amended to read as follows:

''(F)(i) An H–1B-dependent employer may not place, outsource, lease, or otherwise contract for the services or placement of an H–1B nonimmigrant employee.

''(ii) An employer that is not an H–1B-dependent employer and not described in paragraph (3)(A)(i) may not place, outsource, lease, or otherwise contract for the services or placement of an H–1B nonimmigrant employee unless the employer pays a fee of $500 per outplaced worker.

''(iii) A fee collected under clause (ii) shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6 of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(iv) An H–1B dependent employer shall be exempt from the prohibition on outplacement under clause (i) if the employer is a nonprofit institution of higher education, a nonprofit research organization, or primarily a health care business and is petitioning for a physician, a nurse, or a physical therapist or a substantially equivalent health care occupation. Such employer shall be subject to the fee set forth in clause (ii).''.

(e) H–1B-DEPENDENT EMPLOYER DEFINED.—Section 212(n)(3) (8 U.S.C. 1182(n)(3)) is amended to read as follows:

''(3)(A) The term 'H–1B-dependent employer' means an employer (other than nonprofit education and research institutions) that—

''(i) in the case of an employer that has 25 or fewer full-time equivalent employees who are employed in the United States, employs more than 7 H–1B nonimmigrants;

''(ii) in the case of an employer that has at least 26 but not more than 50 full-time equivalent employees who are employed in the United States, employs more than 12 H–1B nonimmigrants; or

''(iii) in the case of an employer that has at least 51 full-time equivalent employees who are employed in the United States, employs H–1B nonimmigrants in a number that is equal to at least 15 percent of the number of such full-time equivalent employees.

''(B) In determining the number of employees who are H–1B nonimmigrants under subparagraph (A)(ii), an intending immigrant employee shall not count toward such number.''.

(f) H–1B SKILLED WORKER DEPENDENT DEFINED.—Section 212(n)(3) (8 U.S.C. 1182(n)(3)) is amended—

(1) by redesignating subparagraph (B) as subparagraph (D); and

(2) by inserting after subparagraph (A) the following:

''(B)(i) For purposes of this subsection, an 'H–1B skilled worker dependent employer' means an employer (other than nonprofit education and research institutions) that employs H–1B nonimmigrants in the United States in a number that in total is equal to at least 15 percent of the number of its full-time equivalent employees in the United States employed in occupations contained within Occupational Information Network Database (O*NET) Job Zone 4 and Job Zone 5.

''(ii) An H–1B nonimmigrant who is an intending immigrant shall be counted as a United States worker in making a determination under clause (i).''.

(g) INTENDING IMMIGRANTS DEFINED.—Section 101(a) (8 U.S.C. 1101(a)), as amended by section 3504(a), is further amended by adding at the end the following:

''(54)(A) The term 'intending immigrant' means, with respect to the number of aliens employed by an employer, an alien who intends to work and reside permanently in the United States, as evidenced by—

''(i) a pending or approved application for a labor certification filed for such alien by a covered employer; or

''(ii) a pending or approved immigrant status petition filed for such alien by a covered employer.

''(B) In this paragraph:

''(i) The term 'covered employer' means an employer that has filed immigrant status petitions for not less than 90 percent of current employees who were the beneficiaries of applications for labor certification that were approved during the 1-year period ending 6 months before the filing of an application or petition for which the number of intending immigrants is relevant.

''(ii) The term 'immigrant status petition' means a petition filed under paragraph (1), (2), or (3) of section 203(b).

''(iii) The term 'labor certification' means an employment certification under section 212(a)(5)(A).

''(C) Notwithstanding any other provision of law—

''(i) for all calculations under this Act, of the number of aliens admitted pursuant to subparagraph (H)(i)(b) or (L) of paragraph (15), an intending immigrant shall be counted as an alien lawfully admitted for permanent residence and shall not be counted as an employee admitted pursuant to such a subparagraph; and

''(ii) for all determinations of the number of employees or United States workers employed by an employer, all of the employees in any group treated as a single employer under subsection (b), (c), (m), or (o) of section 414 of the Internal Revenue Code of 1986 shall be counted.''.

SEC. 4212. REQUIREMENTS FOR ADMISSION OF NONIMMIGRANT NURSES IN HEALTH PROFESSIONAL SHORTAGE AREAS.

(a) EXTENSION OF PERIOD OF AUTHORIZED ADMISSION.—Section 212(m)(3) (8 U.S.C. 1182(m)(3)) is amended to read as follows:

''(3) The initial period of authorized admission as a nonimmigrant under section 101(a)(15)(H)(i)(c) shall be 3 years, and may be extended once for an additional 3-year period.''.

(b) NUMBER OF VISAS.—Section 212(m)(4) (8 U.S.C. 1182(m)(4)) is amended by striking ''500.'' and inserting ''300.''.

(c) PORTABILITY.—Section 214(n) (8 U.S.C. 1184(n)), as amended by section 4103(b), is further amended by adding at the end the following:

''(4)(A) A nonimmigrant alien described in subparagraph (B) who was previously issued a visa or otherwise provided nonimmigrant status under section 101(a)(15)(H)(i)(c) is authorized to accept new employment performing services as a registered nurse for a facility described in section 212(m)(6) upon the filing by the prospective employer of a new petition on behalf of such nonimmigrant as provided under subsection (c). Employment authorization shall continue for such alien until the new petition is adjudicated. If the new petition is denied, such authorization shall cease.

''(B) A nonimmigrant alien described in this paragraph is a nonimmigrant alien—

''(i) who has been lawfully admitted into the United States;

''(ii) on whose behalf an employer has filed a nonfrivolous petition for new employment before the date of expiration of the period of stay authorized by the Secretary of Homeland Security, except that, if a nonimmigrant described in section 101(a)(15)(H)(i)(c) is terminated or laid off by the nonimmigrant's employer, or otherwise ceases employment with the employer, such petition for new employment shall be filed during the 60-day period beginning on the date of such termination, lay off, or cessation; and

''(iii) who, subsequent to such lawful admission, has not been employed without authorization in the United States before the filing of such petition.''.

(d) APPLICABILITY.—

(1) IN GENERAL.—Beginning on the commencement date described in paragraph (2), the amendments made by section 2 of the Nursing Relief for Disadvantaged Areas Act of 1999 (Public Law 106–95; 113 Stat. 1313), and the amendments made by this section, shall apply to classification petitions filed for nonimmigrant status. This period shall be in addition to the period described in section 2(e) of the Nursing Relief for Disadvantaged Areas Act of 1999 (8 U.S.C. 1182 note).

(2) COMMENCEMENT DATE.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall determine whether regulations are necessary to implement the amendments made by this section. If the Secretary determines that no such regulations are necessary, the commencement date described in this paragraph shall be the date of such determination. If the Secretary determines that regulations are necessary to implement any amendment made by this section, the commencement date described in this paragraph shall be the date on which such regulations (in final form) take effect.

SEC. 4213. NEW APPLICATION REQUIREMENTS.

Section 212(n)(1) (8 U.S.C. 1182(n)(1)) is amended by inserting after clause (iii) of subparagraph (G), as amended by section 4211(c)(2), the following:

''(H)(i) The employer has not advertised any available position specified in the application in an advertisement that states or indicates that—

''(I) such position is only available to an individual who is or will be an H–1B nonimmigrant or an alien participating in optional practical training pursuant to section 101(a)(15)(F)(i); or

''(II) an individual who is or will be an H–1B nonimmigrant or participant in such optional practical training shall receive priority or a preference in the hiring process for such position.

''(ii) The employer has not solely recruited individuals who are or who will be H–1B nonimmigrants or participants in optional practical training pursuant to section 101(a)(15)(F)(i) to fill such position.

''(I)(i) If the employer (other than an educational or research employer) employs 50 or more employees in the United States, the sum of the number of such employees who are H–1B nonimmigrants plus the number of such employees who are nonimmigrants described in section 101(a)(15)(L) may not exceed—

''(I) 75 percent of the total number of employees, for fiscal year 2015;

''(II) 65 percent of the total number of employees, for fiscal year 2016; and

''(III) 50 percent of the total number of employees, for each fiscal year after fiscal year 2016.

''(ii) In this subparagraph:

''(I) The term 'educational or research employer' means an employer that is a nonprofit institution of higher education or a nonprofit research organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under 501(a) of that Code.

''(II) The term 'H–1B nonimmigrant' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(H)(i)(b).

''(III) The term 'L nonimmigrant' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(L) to provide services to his or her employer involving specialized knowledge.

''(iii) In determining the percentage of employees of an employer that are H–1B nonimmigrants or L nonimmigrants under clause (i), an intending immigrant employee shall not count toward such percentage.

''(J) The employer shall submit to the Secretary of Homeland Security an annual report that includes the Internal Revenue Service Form W–2 Wage and Tax Statement filed by the employer for each H–1B nonimmigrant employed by the employer during the previous year.''.

SEC. 4214. APPLICATION REVIEW REQUIREMENTS.

(a) TECHNICAL AMENDMENT.—Section 212(n)(1) (8 U.S.C. 1182(n)(1)), as amended by section 4213, is further amended in the undesignated paragraph at the end, by striking ''The employer'' and inserting the following:

''(K) The employer''.

(b) APPLICATION REVIEW REQUIREMENTS.—Subparagraph (K) of such section 212(n)(1), as designated by subsection (a), is amended—

(1) by inserting ''and through the Department of Labor's website, without charge.'' after ''D.C.'';

(2) by striking ''only for completeness'' and inserting ''for completeness and evidence of fraud or misrepresentation of material fact,'';

(3) by striking ''or obviously inaccurate'' and inserting '', presents evidence of fraud or misrepresentation of material fact, or is obviously inaccurate'';

(4) by striking ''within 7 days of the'' and inserting ''not later than 14 days after''; and

(5) by adding at the end the following: ''If the Secretary's review of an application identifies evidence of fraud or misrepresentation of material fact, the Secretary may conduct an investigation and hearing in accordance with paragraph (2).''.

(c) FILING OF PETITION FOR NONIMMIGRANT WORKER.—Section 212(n)(1) (8 U.S.C. 1182(n)(1)), as amended by section 4213, is further amended by adding at the end the following:

''(L) An I–129 Petition for Nonimmigrant Worker (or similar successor form)—

''(i) may be filed by an employer with the Secretary of Homeland Security prior to the date the employer receives an approved certification described in section 101(a)(15)(H)(i)(b) from the Secretary of Labor; and

''(ii) may not be approved by the Secretary of Homeland Security until the date such certification is approved.''.

CHAPTER 2—INVESTIGATION AND DISPOSITION OF COMPLAINTS AGAINST H–1B EMPLOYERS

SEC. 4221. GENERAL MODIFICATION OF PROCEDURES FOR INVESTIGATION AND DISPOSITION.

Section 212(n) (8 U.S.C. 1182(n)) is amended—

(1) in paragraph (2)(A)—

(A) by striking ''(A) Subject'' and inserting ''(A)(i) Subject'';

(B) by inserting after the first sentence the following: ''Such process shall include publicizing a dedicated toll-free number and publicly available Internet website for the submission of such complaints.'';

(C) by striking ''12 months'' and inserting ''24 months'';

(D) by striking the last sentence and inserting the following: ''The Secretary shall issue regulations requiring that employers that employ H–1B nonimmigrants, other than nonprofit institutions of higher education and nonprofit research organizations, through posting of notices or other appropriate means, inform their employees of such toll-free number and Internet website and of their right to file complaints pursuant to this paragraph.''; and

(E) by adding at the end the following:

''(ii)(I) Upon the receipt of such a complaint, the Secretary may initiate an investigation to determine if such a failure or misrepresentation has occurred.

''(II) The Secretary may conduct voluntary surveys of the degree to which employers comply with the requirements of this subsection.

''(III) The Secretary shall—

''(aa) conduct annual compliance audits of each employer with more than 100 employees who work in the United States if more than 15 percent of such employees are H–1B nonimmigrants; and

''(bb) make available to the public an executive summary or report describing the general findings of the audits carried out pursuant to this subclause.''; and

(2) by adding at the end the following new paragraph:

''(6) REPORT REQUIRED.—Not later than 1 year after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, and every 5 years thereafter, the Inspector General of the Department of Labor shall submit a report regarding the Secretary's enforcement of the requirements of this section to the Committee on the Judiciary and the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on the Judiciary and the Committee on Education and the Workforce of the House of Representatives.''.

SEC. 4222. INVESTIGATION, WORKING CONDITIONS, AND PENALTIES.

Subparagraph (C) of section 212(n)(2) (8 U.S.C. 1182(n)(2)) is amended—

(1) in clause (i)—

(A) in the matter preceding subclause (I)—

(i) by striking ''a condition of paragraph (1)(B), (1)(E), or (1)(F)'' and inserting ''a condition under subparagraph (A), (B), (C)(i), (E), (F), (G), (H), (I), or (J) of paragraph (1)''; and

(ii) by striking ''(1)(C)'' and inserting ''(1)(C)(ii)'';

(B) in subclause (I)—

(i) by striking ''$1,000'' and inserting ''$2,000''; and

(ii) by striking ''and'' at the end;

(C) in subclause (II), by striking the period at the end and inserting a semicolon and ''and''; and

(D) by adding at the end the following:

''(III) an employer that violates such subparagraph (A) shall be liable to any employee harmed by such violations for lost wages and benefits.''; and

(2) in clause (ii)—

(A) in subclause (I)—

(i) by striking ''may'' and inserting ''shall''; and

(ii) by striking ''$5,000'' and inserting ''$10,000'';

(B) in subclause (II), by striking the period at the end and inserting a semicolon and ''and''; and

(C) by adding at the end the following:

''(III) an employer that violates such subparagraph (A) shall be liable to any employee harmed by such violations for lost wages and benefits.'';

(3) in clause (iii)—

(A) in the matter preceding subclause (I), by striking ''90 days'' both places it appears and inserting ''180 days'';

(B) in subclause (I)—

(i) by striking ''may'' and inserting ''shall''; and

(ii) by striking ''and'' at the end;

(C) in subclause (II), by striking the period at the end and inserting a semicolon and ''and''; and

(D) by adding at the end the following:

''(III) an employer that violates subparagraph (A) of such paragraph shall be liable to any employee harmed by such violations for lost wages and benefits.'';

(4) in clause (iv)—

(A) by inserting ''to take, or threaten to take, a personnel action, or'' before ''to intimidate'';

(B) by inserting ''(I)'' after ''(iv)''; and

(C) by adding at the end the following:

''(II) An employer that violates this clause shall be liable to any employee harmed by such violation for lost wages and benefits.''; and

(5) in clause (vi)—

(A) by amending subclause (I) to read as follows:

''(I) It is a violation of this clause for an employer who has filed an application under this subsection—

''(aa) to require an H–1B nonimmigrant to pay a penalty for ceasing employment with the employer prior to a date agreed to by the nonimmigrant and the employer (the Secretary shall determine whether a required payment is a penalty, and not liquidated damages, pursuant to relevant State law); and

''(bb) to fail to offer to an H–1B nonimmigrant, during the nonimmigrant's period of authorized employment, on the same basis, and in accordance with the same criteria, as the employer offers to similarly situated United States workers, benefits and eligibility for benefits, including—

''(AA) the opportunity to participate in health, life, disability, and other insurance plans;

''(BB) the opportunity to participate in retirement and savings plans; and

''(CC) cash bonuses and noncash compensation, such as stock options (whether or not based on performance).''; and

(B) in subclause (III), by striking ''$1,000'' and inserting ''$2,000''.

SEC. 4223. INITIATION OF INVESTIGATIONS.

Subparagraph (G) of section 212(n)(2) (8 U.S.C. 1182(n)(2)) is amended—

(1) in clause (i), by striking ''if the Secretary'' and all that follows and inserting ''with regard to the employer's compliance with the requirements of this subsection.'';

(2) in clause (ii), by striking ''and whose identity'' and all that follows through ''failure or failures.'' and inserting ''the Secretary of Labor may conduct an investigation into the employer's compliance with the requirements of this subsection.'';

(3) in clause (iii), by striking the last sentence;

(4) by striking clauses (iv) and (v);

(5) by redesignating clauses (vi), (vii), and (viii) as clauses (iv), (v), and (vi), respectively;

(6) in clause (iv), as so redesignated, by striking ''meet a condition described in clause (ii), unless the Secretary of Labor receives the information not later than 12 months'' and inserting ''comply with the requirements under this subsection, unless the Secretary of Labor receives the information not later than 24 months'';

(7) by amending clause (v), as so redesignated, to read as follows:

''(v) The Secretary of Labor shall provide notice to an employer of the intent to conduct an investigation. The notice shall be provided in such a manner, and shall contain sufficient detail, to permit the employer to respond to the allegations before an investigation is commenced. The Secretary is not required to comply with this clause if the Secretary determines that such compliance would interfere with an effort by the Secretary to investigate or secure compliance by the employer with the requirements of this subsection. A determination by the Secretary under this clause shall not be subject to judicial review.'';

(8) in clause (vi), as so redesignated, by striking ''An investigation'' and all that follows through ''the determination.'' and inserting ''If the Secretary of Labor, after an investigation under clause (i) or (ii), determines that a reasonable basis exists to make a finding that the employer has failed to comply with the requirements under this subsection, the Secretary shall provide interested parties with notice of such determination and an opportunity for a hearing in accordance with section 556 of title 5, United States Code, not later than 120 days after the date of such determination.''; and

(9) by adding at the end the following:

''(vii) If the Secretary of Labor, after a hearing, finds a reasonable basis to believe that the employer has violated the requirements under this subsection, the Secretary shall impose a penalty under subparagraph (C).''.

SEC. 4224. INFORMATION SHARING.

Section 212(n)(2) (8 U.S.C. 1182(n)(2)), as amended by sections 4222 and 4223, is further amended by adding at the end the following:

''(J) The Director of U.S. Citizenship and Immigration Services shall provide the Secretary of Labor with any information contained in the materials submitted by employers of H–1B nonimmigrants as part of the adjudication process that indicates that the employer is not complying with visa program requirements for H–1B nonimmigrants. The Secretary of Labor may initiate and conduct an investigation related to H–1B nonimmigrants and a hearing under this paragraph after receiving information of noncompliance under this subparagraph. This subparagraph may not be construed to prevent the Secretary of Labor from taking action related to wage and hour and workplace safety laws.

''(K) The Secretary of Labor shall facilitate the posting of the descriptions described in paragraph (1)(C)(i) on the Internet website of the State labor or workforce agency for the State in which the position will be primarily located during the same period as the posting under paragraph (1)(C)(i).''.

SEC. 4225. TRANSPARENCY OF HIGH-SKILLED IMMIGRATION PROGRAMS.

Section 416(c) of the American Competitiveness and Workforce Improvement Act of 1998 (8 U.S.C. 1184 note) is amended—

(1) by amending paragraph (2) to read as follows:

''(2) ANNUAL H–1B NONIMMIGRANT CHARACTERISTICS REPORT.—The Bureau of Immigration and Labor Market Research shall submit an annual report to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives that contains—

''(A) information on the countries of origin of, occupations of, educational levels attained by, and compensation paid to, aliens who were issued visas or otherwise provided nonimmigrant status under section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)) during the previous fiscal year;

''(B) a list of all employers who petition for H–1B visas, the number of such petitions filed and approved for each such employer, the occupational classifications for the approved positions, and the number of H–1B nonimmigrants for whom each such employer files for adjustment to permanent resident status;

''(C) the number of immigrant status petitions filed during the prior year on behalf of H–1B nonimmigrants;

''(D) a list of all employers who are H–1B-dependent employers;

''(E) a list of all employers who are H–1B skilled worker dependent employers;

''(F) a list of all employers for whom more than 30 percent of their United States workforce is H–1B or L–1 nonimmigrants;

''(G) a list of all employers for whom more than 50 percent of their United States workforce is H–1B or L–1 nonimmigrants;

''(H) a gender breakdown by occupation and by country of H–1B nonimmigrants;

''(I) a list of all employers who have been approved to conduct outplacement of H–1B nonimmigrants; and

''(J) the number of H–1B nonimmigrants categorized by their highest level of education and whether such education was obtained in the United States or in a foreign country.'';

(2) by redesignating paragraph (3) as paragraph (5);

(3) by inserting after paragraph (2) the following:

''(3) ANNUAL L–1 NONIMMIGRANT CHARACTERISTICS REPORT.—The Bureau of Immigration and Labor Market Research shall submit an annual report to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives that contains—

''(A) information on the countries of origin of, occupations of, educational levels attained by, and compensation paid to, aliens who were issued visas or otherwise provided –nonimmigrant status under section 101(a)(15)(L) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(L)) during the previous fiscal year;

''(B) a list of all employers who petition for L–1 visas, the number of such petitions filed and approved for each such employer, the occupational classifications for the approved positions, and the number of L–1 nonimmigrants for whom each such employer files for adjustment to permanent resident status;

''(C) the number of immigrant status petitions filed during the prior year on behalf of L–1 nonimmigrants;

''(D) a list of all employers who are L–1 dependent employers;

''(E) a gender breakdown by occupation and by country of L–1 nonimmigrants;

''(F) a list of all employers who have been approved to conduct outplacement of L–1 nonimmigrants; and

''(G) the number of L–1 nonimmigrants categorized by their highest level of education and whether such education was obtained in the United States or in a foreign country.

''(4) ANNUAL EMPLOYER SURVEY.—The Bureau of Immigration and Labor Market Research shall—

''(A) conduct an annual survey of employers hiring foreign nationals under the L–1 visa program; and

''(B) shall issue an annual report that—

''(i) describes the methods employers are using to meet the requirement of taking good faith steps to recruit United States workers for the occupational classification for which the nonimmigrants are sought, using procedures that meet industry-wide standards;

''(ii) describes the best practices for recruiting among employers; and

''(iii) contains recommendations on which recruiting steps employers can take to maximize the likelihood of hiring American workers.''; and

(4) in paragraph (5), as redesignated, by striking ''paragraph (2)'' and inserting ''paragraphs (2) and (3)''.

CHAPTER 3—OTHER PROTECTIONS

SEC. 4231. POSTING AVAILABLE POSITIONS THROUGH THE DEPARTMENT OF LABOR.

(a) DEPARTMENT OF LABOR WEBSITE.—Section 212(n) (8 U.S.C. 1182(n)), as amended by section 4221(2), is further amended by adding at the end following:

''(7)(A) Not later than 90 days after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act, the Secretary of Labor shall establish a searchable Internet website for posting positions as required by paragraph (1)(C). Such website shall be available to the public without charge.

''(B) The Secretary may work with private companies or nonprofit organizations to develop and operate the Internet website described in subparagraph (A).

''(C) The Secretary may promulgate rules, after notice and a period for comment, to carry out the requirements of this paragraph.''.

(b) REQUIREMENT FOR PUBLICATION.—The Secretary of Labor shall submit to Congress and publish in the Federal Register and other appropriate media a notice of the date that the Internet website required by paragraph (6) of section 212(n) of the Immigration and Nationality Act, as amended by subsection (a), will be operational.

(c) APPLICATION.—The amendments made by subsection (a) shall apply to an application filed on or after the date that is 30 days after the date described in subsection (b).

SEC. 4232. REQUIREMENTS FOR INFORMATION FOR H–1B AND L NONIMMIGRANTS.

(a) IN GENERAL.—Section 214 (8 U.S.C. 1184), as amended by section 3608, is further amended by adding at the end the following:

''(t) REQUIREMENTS FOR INFORMATION FOR H–1B AND L NONIMMIGRANTS.—

''(1) IN GENERAL.—Upon issuing a visa to an applicant for nonimmigrant status pursuant to subparagraph (H)(i)(b) or (L) of section 101(a)(15) who is outside the United States, the issuing office shall provide the applicant with—

''(A) a brochure outlining the obligations of the applicant's employer and the rights of the applicant with regard to employment under Federal law, including labor and wage protections; and

''(B) the contact information for appropriate Federal agencies or departments that offer additional information or assistance in clarifying such obligations and rights.

''(2) PROVISION OF MATERIAL.—Upon the approval of an application of an applicant referred to in paragraph (1), the applicant shall be provided with the material described in subparagraphs (A) and (B) of paragraph (1)—

''(A) by the issuing officer of the Department of Homeland Security, if the applicant is inside the United States; or

''(B) by the appropriate official of the Department of State, if the applicant is outside the United States.

''(3) EMPLOYER TO PROVIDE IMMIGRATION PAPERWORK EXCHANGED WITH FEDERAL AGENCIES.—

''(A) IN GENERAL.—Not later than 30 days after a labor condition application is filed under section 212(n)(1), an employer shall provide an employee or beneficiary of such application who is or seeking nonimmigrant status under subparagraph (H)(i)(b) or (L) of section 101(a)(15) with a copy the original of all applications and petitions filed by the

employer with the Department of Labor or the Department of Homeland Security for such employee or beneficiary.

''(B) WITHHOLDING OF FINANCIAL OR PROPRIETARY INFORMATION.—If a document required to be provided to an employee or beneficiary under subparagraph (A) includes any financial or propriety information of the employer, the employer may redact such information from the copies provided to such employee or beneficiary.''.

(b) REPORT ON JOB CLASSIFICATION AND WAGE DETERMINATIONS.—Not later than 1 year after the date of the enactment of this Act, the Comptroller General of the United States shall prepare a report analyzing the accuracy and effectiveness of the Secretary of Labor's current job classification and wage determination system. The report shall—

(1) specifically address whether the systems in place accurately reflect the complexity of current job types as well as geographic wage differences; and

(2) make recommendations concerning necessary updates and modifications.

SEC. 4233. FILING FEE FOR H–1B-DEPENDENT EMPLOYERS.

(a) IN GENERAL.—Notwithstanding any other provision of law, there shall be a fee required to be submitted by an employer with an application for admission of an H–1B nonimmigrant as follows:

(1) For each fiscal year beginning in fiscal year 2015, $5,000 for applicants that employ 50 or more employees in the United States if more than 30 percent and less than 50 percent of the applicant's employees are H–1B nonimmigrants or L nonimmigrants.

(2) For each of the fiscal years 2015 through 2017, $10,000 for applicants that employ 50 or more employees in the United States if more than 50 percent and less than 75 percent of the applicant's employees are H–1B nonimmigrants or L nonimmigrants. Fees collected under this paragraph shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

(b) DEFINITIONS.—In this section:

(1) EMPLOYER.—The term ''employer''—

(A) means any entity or entities treated as a single employer under subsection (b), (c), (m), or (o) of section 414 of the Internal Revenue Code of 1986; and

(B) does not include a nonprofit institution of higher education or a nonprofit research organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under 501(a) of that Code that is—

(i) an institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a))); or

(ii) a research organization.

(2) H–1B NONIMMIGRANT.—The term ''H–1B nonimmigrant'' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)).

(3) INTENDING IMMIGRANT.—The term ''intending immigrant'' has the meaning given that term in paragraph (54)(A) of section 101(a)(54)(A) of the Immigration and Nationality Act (8 U.S.C. 1101(a)).

(4) L NONIMMIGRANT.—The term ''L nonimmigrant'' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(L) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(L)) to provide services to the alien's employer involving specialized knowledge.

(c) EXCEPTION FOR INTENDING IMMIGRANTS.—In determining the percentage of employees of an employer that are H–1B nonimmigrants or L nonimmigrants under subsection (a), an intending immigrant employee shall not count toward such percentage.

(d) CONFORMING AMENDMENT.—Section 402 of the Act entitled ''An Act making emergency supplemental appropriations for border security for the fiscal year ending September 30, 2010, and for other purposes'', approved August 13, 2010 (Public Law 111–230; 8 U.S.C. 1101 note) is amended by striking subsection (b).

SEC. 4234. PROVIDING PREMIUM PROCESSING OF EMPLOYMENT-BASED VISA PETITIONS.

Pursuant to section 286(u) of the Immigration and Nationality Act (8 U.S.C. 1356(u)), the Secretary shall establish and collect—

(1) a fee for premium processing of employment-based immigrant petitions; and

(2) a fee for premium processing of an administrative appeal of any decision on a permanent employment-based immigrant petition.

SEC. 4235. TECHNICAL CORRECTION.

Section 212 (8 U.S.C. 1182) is amended by redesignating the second subsection (t), as added by section 1(b)(2)(B) of the Act entitled ''An Act to amend and extend the Irish Peace Process Cultural and Training Program Act of 1998'' (Public Law 108–449 (118 Stat. 3470)), as subsection (u).

SEC. 4236. APPLICATION.

(a) IN GENERAL.—Except as otherwise specifically provided, the amendments made by this subtitle shall apply to applications filed on or after the date of the enactment of this Act.

(b) SPECIAL REQUIREMENTS.—Notwithstanding any other provision of law, the amendments made by section 4211(c) shall not apply to any application or petition filed by an employer on behalf of an existing employee.

SEC. 4237. PORTABILITY FOR BENEFICIARIES OF IMMIGRANT PETITIONS.

(a) INCREASED PORTABILITY.—Section 204(j) (8 U.S.C. 1154(j)) is amended—

(1) by amending the subsection heading to read as follows:

''(j) INCREASED PORTABILITY.—'';

(2) by striking ''A petition'' and inserting the following:

''(1) LONG DELAYED APPLICANTS FOR ADJUSTMENT OF STATUS.—A petition''; and

(3) by adding at the end the following:

''(2) PORTABILITY FOR BENEFICIARIES OF IMMIGRANT PETITIONS.—Regardless of whether an employer withdraws a petition approved under paragraph (1), (2), or (3) of section 203(b)—

''(A) the petition shall remain valid with respect to a new job if—

''(i) the beneficiary changes jobs or employers after the petition is approved; and

''(ii) the new job is in the same or a similar occupational classification as the job for which the petition was approved; and

''(B) the employer's legal obligations with respect to the petition shall terminate at the time the beneficiary changes jobs or employers.

''(3) DOCUMENTATION.—The Secretary of Labor shall develop a mechanism to provide the beneficiary or prospective employer with sufficient information to determine whether a new position or job is in the same or similar occupation as the job for which the petition was approved. The Secretary of Labor shall provide confirmation of application approval if required for eligibility under this subsection. The Secretary of Homeland Security shall provide confirmation of petition approval if required for eligibility under this subsection.''.

(b) ADJUSTMENT OF STATUS FOR EMPLOYMENT-BASED IMMIGRANTS.—Section 245 of the Immigration and Nationality Act (8 U.S.C. 1255) is amended by adding at the end the following:

''(n) ADJUSTMENT OF STATUS FOR EMPLOYMENT-BASED IMMIGRANTS.—

''(1) PETITION.—An alien, and any eligible dependents of such alien, who has filed a petition for immigrant status, may concurrently, or at any time thereafter, file an application with the Secretary of Homeland Security for adjustment of status if such petition is pending or has been approved, regardless of whether an immigrant visa is immediately available at the time the application is filed.

''(2) SUPPLEMENTAL FEE.—If a visa is not immediately available at the time an application is filed under paragraph (1), the beneficiary of such application shall pay a supplemental fee of $500, which shall be deposited in the STEM Education and Training Account established under section 286(w). This fee shall not be collected from any dependent accompanying or following to join such beneficiary.

''(3) AVAILABILITY.—An application filed pursuant to paragraph (2) may not be approved until the date on which an immigrant visa becomes available.''.

Subtitle C—L Visa Fraud and Abuse Protections

SEC. 4301. PROHIBITION ON OUTPLACEMENT OF L NONIMMIGRANTS.

Section 214(c)(2)(F) (8 U.S.C. 1184(c)(2)(F)) is amended to read as follows:

''(F)(i) An employer who employs L–1 nonimmigrants in a number that is equal to at least 15 percent of the total number of full-time equivalent employees employed by the employer shall not place, outsource, lease, or otherwise contract for the services or placement of such alien with another employer. In determining the number of employees who are L–1 nonimmigrants, an intending immigrant shall count as a United States worker.

''(ii) The employer of an alien described in section 101(a)(15)(L) shall not place, outsource, lease, or otherwise contract for the services or placement of such alien with another employer unless—

''(I) such alien will not be controlled or supervised principally by the employer with whom such alien would be placed;

''(II) the placement of such alien at the worksite of the other employer is not essentially an arrangement to provide labor for hire for the other employer; and

''(III) the employer of such alien pays a fee of $500, which shall be deposited in the STEM Education and Training Account established under section 286(w).''.

SEC. 4302. L EMPLOYER PETITION REQUIREMENTS FOR EMPLOYMENT AT NEW OFFICES.

Section 214(c)(2) (8 U.S.C. 1184(c)(2)) is amended by adding at the end the following:

''(G)(i) If the beneficiary of a petition under this paragraph is coming to the United States to open, or be employed in, a new office, the petition may be approved for up to 12 months only if—

''(I) the alien has not been the beneficiary of 2 or more petitions under this subparagraph during the immediately preceding 2 years; and

''(II) the employer operating the new office has—

''(aa) an adequate business plan;

''(bb) sufficient physical premises to carry out the proposed business activities; and

''(cc) the financial ability to commence doing business immediately upon the approval of the petition.

''(ii) An extension of the approval period under clause (i) may not be granted until the importing employer submits an application to the Secretary of Homeland Security that contains—

''(I) evidence that the importing employer meets the requirements of this subsection;

''(II) evidence that the beneficiary of the petition is eligible for nonimmigrant status under section 101(a)(15)(L);

''(III) a statement summarizing the original petition;

''(IV) evidence that the importing employer has complied with the business plan submitted under clause (i)(I);

''(V) evidence of the truthfulness of any representations made in connection with the filing of the original petition;

''(VI) evidence that the importing employer has been doing business at the new office through regular, systematic, and continuous provision of goods and services;

''(VII) a statement of the duties the beneficiary has performed at the new office during the approval period under clause (i) and the duties the beneficiary will perform at the new office during the extension period granted under this clause;

''(VIII) a statement describing the staffing at the new office, including the number of employees and the types of positions held by such employees;

''(IX) evidence of wages paid to employees;

''(X) evidence of the financial status of the new office; and

''(XI) any other evidence or data prescribed by the Secretary.

''(iii) A new office employing the beneficiary of an L–1 petition approved under this paragraph shall do business only through regular, systematic, and continuous provision of goods and services.

''(iv) Notwithstanding clause (ii), and subject to the maximum period of authorized admission set forth in subparagraph (D), the Secretary of Homeland Security, in the Secretary's discretion, may approve a subsequently filed petition on behalf of the beneficiary to continue employment at the office described in this subparagraph for a period beyond the initially granted 12-month period if the importing employer has been doing business at the new office through regular, systematic, and continuous provision of goods and services for the 6 months immediately preceding the date of extension of petition filing and demonstrates that the failure to satisfy any of the requirements described in those subclauses was directly caused by extraordinary circumstances, as determined by the Secretary in the Secretary's discretion.''.

SEC. 4303. COOPERATION WITH SECRETARY OF STATE.

Section 214(c)(2) (8 U.S.C. 1184(c)(2)), as amended by section 4302, is further amended by adding at the end the following:

''(H) For purposes of approving petitions under this paragraph, the Secretary of Homeland Security shall work cooperatively with the Secretary of State to verify the existence or continued existence of a company or office in the United States or in a foreign country.''.

SEC. 4304. LIMITATION ON EMPLOYMENT OF L NONIMMIGRANTS.

Section 214(c)(2) (8 U.S.C. 1184(c)(2)), as amended by sections 4302 and 4303, is further amended by adding at the end the following:

''(I)(i) If the employer employs 50 or more employees in the United States, the sum of the number of such employees who are H–1B nonimmigrants plus the number of such employees who are L nonimmigrants may not exceed—

''(I) 75 percent of the total number of employees, for fiscal year 2015;

''(II) 65 percent of the total number of employees, for fiscal year 2016; and

''(III) 50 percent of the total number of employees, for each fiscal year after fiscal year 2016.

''(ii) In this subparagraph:

''(I) The term 'employer' does not include a nonprofit institution of higher education or a nonprofit research organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under 501(a) of that Code that is—

''(aa) an institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a))); or

''(bb) a research organization.

''(II) The term 'H–1B nonimmigrant' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(H)(i)(b).

''(III) The term 'L nonimmigrant' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(L) to provide services to the alien's employer involving specialized knowledge.

''(iii) In determining the percentage of employees of an employer that are H–1B nonimmigrants or L nonimmigrants under clause (i), an intending immigrant employee shall not count toward such percentage.''.

SEC. 4305. FILING FEE FOR L NONIMMIGRANTS.

(a) IN GENERAL.—Notwithstanding any other provision of law, the filing fee for an application for admission of an L nonimmigrant shall be as follows:

(1) For each of the fiscal years beginning in fiscal year 2014, $5,000 for applicants that employ 50 or more employees in the United States if more than 30 percent and less than 50 percent of the applicant's employees are H–1B nonimmigrants or L nonimmigrants.

(2) For each of the fiscal years 2014 through 2017, $10,000 for applicants that employ 50 or more employees in the United States if more than 50 percent and less than 75 percent of the applicant's employees are H–1B nonimmigrants or L nonimmigrants. Fees collected under this paragraph shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

(b) DEFINITIONS.—In this section:

(1) EMPLOYER.—The term ''employer'' does not include a nonprofit institution of higher education or a nonprofit research organization described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from taxation under 501(a) of that Code that is—

(A) an institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a))); or

(B) a research organization.

(2) H–1B NONIMMIGRANT.—The term ''H–1B nonimmigrant'' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)).

(3) L NONIMMIGRANT.—The term ''L nonimmigrant'' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(L) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(L)) to provide services to the alien's employer involving specialized knowledge.

(c) EXCEPTION FOR INTENDING IMMIGRANTS.—In determining the percentage of employees of an employer that are H–1B nonimmigrants or L nonimmigrants under subsection (a), an intending immigrant employee (as defined in section 101(a)(54)(A) of the Immigration and Nationality Act shall not count toward such percentage.

(d) CONFORMING AMENDMENT.—Section 402 of the Act entitled ''An Act making emergency supplemental appropriations for border security for the fiscal year ending September 30, 2010, and for other purposes'', approved August 13, 2010 (Public Law 111–230; 8 U.S.C. 1101 note), as amended by section 4233(d), is further amended by striking subsections (a) and (c).

SEC. 4306. INVESTIGATION AND DISPOSITION OF COMPLAINTS AGAINST L NONIMMIGRANT EMPLOYERS.

Section 214(c)(2) (8 U.S.C. 1184(c)(2)), as amended by sections 4302, 4303, and 4304 is further amended by adding at the end the following:

''(J)(i) The Secretary of Homeland Security may initiate an investigation of any employer that employs nonimmigrants described in section 101(a)(15)(L) with regard to the employer's compliance with the requirements of this subsection.

''(ii)(I) If the Secretary receives specific credible information from a source who is likely to have knowledge of an employer's practices, employment conditions, or compliance with the requirements under this subsection, the Secretary may conduct an investigation into the employer's compliance with the requirements of this subsection.

''(II) The Secretary may withhold the identity of a source referred to in subclause (I) from an employer and the identity of such source shall not be subject to disclosure under section 552 of title 5, United States Code.

''(iii) The Secretary shall establish a procedure for any person desiring to provide to the Secretary information described in clause (ii)(I) that may be used, in whole or in part, as the basis for the commencement of an investigation described in such clause, to provide the information in writing on a form developed and provided by the Secretary and completed by or on behalf of the person.

''(iv) No investigation described in clause (ii)(I) (or hearing described in clause (vi) based on such investigation) may be conducted with respect to information about a failure to comply with the requirements under this subsection, unless the Secretary receives the information not later than 24 months after the date of the alleged failure.

''(v)(I) Subject to subclause (III), before commencing an investigation of an employer under clause (i) or (ii), the Secretary shall provide notice to the employer of the intent to conduct such investigation.

''(II) The notice required by subclause (I) shall be provided in such a manner, and shall contain sufficient detail, to permit the employer to respond to the allegations before an investigation is commenced.

''(III) The Secretary is not required to comply with this clause if the Secretary determines that to do so would interfere with an effort by the Secretary to investigate or secure compliance by the employer with the requirements of this subsection.

''(IV) There shall be no judicial review of a determination by the Secretary under this clause.

''(vi) If the Secretary, after an investigation under clause (i) or (ii), determines that a reasonable basis exists to make a finding that the employer has failed to comply with the requirements under this subsection, the Secretary shall provide the interested parties with notice of such determination and an opportunity for a hearing in accordance with section 556 of title 5, United States Code, not later than 120 days after the date of such determination. If such a hearing is requested, the Secretary shall make a finding concerning the matter by not later than 120 days after the date of the hearing.

''(vii) If the Secretary, after a hearing, finds a reasonable basis to believe that the employer has violated the requirements under this subsection, the Secretary shall impose a penalty under subparagraph (K).

''(viii)(I) The Secretary may conduct voluntary surveys of the degree to which employers comply with the requirements under this section.

''(II) The Secretary shall—

''(aa) conduct annual compliance audits of each employer with more than 100 employees who work in the United States if more than 15 percent of such employees are nonimmigrants described in 101(a)(15)(L); and

''(bb) make available to the public an executive summary or report describing the general findings of the audits carried out pursuant to this subclause.''.

SEC. 4307. PENALTIES.

Section 214(c)(2) (8 U.S.C. 1184(c)(2)), as amended by sections 4302, 4303, 4304, and 4306, is further amended by adding at the end the following:

''(K)(i) If the Secretary of Homeland Security finds, after notice and an opportunity for a hearing, a failure by an employer to meet a condition under subparagraph (F), (G), or (L) or a misrepresentation of material fact in a petition to employ 1 or more aliens as nonimmigrants described in section 101(a)(15)(L)—

''(I) the Secretary shall impose such administrative remedies (including civil monetary penalties in an amount not to exceed $2,000 per violation) as the Secretary determines to be appropriate;

''(II) the Secretary may not, during a period of at least 1 year, approve a petition for that employer to employ 1 or more aliens as such nonimmigrants; and

''(III) in the case of a violation of subparagraph (J), the employer shall be liable to the employees harmed by such violation for lost wages and benefits.

''(ii) If the Secretary finds, after notice and an opportunity for a hearing, a willful failure by an employer to meet a condition under subparagraph (F), (G), or (L) or a willful misrepresentation of material fact in a petition to employ 1 or more aliens as nonimmigrants described in section 101(a)(15)(L)—

''(I) the Secretary shall impose such administrative remedies (including civil monetary penalties in an amount not to exceed $10,000 per violation) as the Secretary determines to be appropriate;

''(II) the Secretary may not, during a period of at least 2 years, approve a petition filed for that employer to employ 1 or more aliens as such nonimmigrants; and

''(III) in the case of a violation of subparagraph (J), the employer shall be liable to the employees harmed by such violation for lost wages and benefits.''.

SEC. 4308. PROHIBITION ON RETALIATION AGAINST L NONIMMIGRANTS.

Section 214(c)(2) (8 U.S.C. 1184(c)(2)), as amended by sections 4302, 4303, 4303, 4306, and 4307, is further amended by adding at the end the following:

''(L)(i) It is a violation of this subparagraph for an employer who has filed a petition to import 1 or more aliens as nonimmigrants described in section 101(a)(15)(L) to take, fail to take, or threaten to take or fail to take, a personnel action, or to intimidate, threaten, restrain, coerce, blacklist, discharge, or discriminate in any other manner against an employee because the employee—

''(I) has disclosed information that the employee reasonably believes evidences a violation of this subsection, or any rule or regulation pertaining to this subsection; or

''(II) cooperates or seeks to cooperate with the requirements of this subsection, or any rule or regulation pertaining to this subsection.

''(ii) In this subparagraph, the term 'employee' includes—

''(I) a current employee;

''(II) a former employee; and

''(III) an applicant for employment.''.

SEC. 4309. REPORTS ON L NONIMMIGRANTS.

Section 214(c)(8) (8 U.S.C. 1184(c)(8)) is amended by inserting ''(L),'' after ''(H),''.

SEC. 4310. APPLICATION.

The amendments made by this subtitle shall apply to applications filed on or after the date of the enactment of this Act.

SEC. 4311. REPORT ON L BLANKET PETITION PROCESS.

Not later than 6 months after the date of the enactment of this Act, the Inspector General of the Department shall submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report regarding the use of blanket petitions under section 214(c)(2)(A) of the Immigration and Nationality Act (8 U.S.C. 1184(c)(2)(A)). Such report shall assess the efficiency and reliability of the process for reviewing such blanket petitions, including whether the process includes adequate safeguards against fraud and abuse.

Subtitle D—Other Nonimmigrant Visas

SEC. 4401. NONIMMIGRANT VISAS FOR STUDENTS.

(a) AUTHORIZATION OF DUAL INTENT FOR F NONIMMIGRANTS SEEKING BACHELOR'S OR GRADUATE DEGREES.—Section 101(a)(15)(F) (8 U.S.C. 1101(a)(15)(F)) is amended to read as follows:

''(F)(i) an alien having a residence in a foreign country who is a bona fide student qualified to pursue a full course of study and who seeks to enter the United States temporarily and solely for the purpose of pursuing such a course of study consistent with section 214(m) at an accredited college, university, or language training program, or at an established seminary, conservatory, academic high school, elementary school, or other academic institution in the United States, particularly designated by the alien and approved by the Secretary of Homeland Security after consultation with the Secretary of Education, which institution or place of study shall have agreed to report to the Secretary of Homeland Security the termination of attendance of each nonimmigrant student, and if any such institution of learning or place of study fails to make reports promptly the approval shall be withdrawn, except that such an alien who is not seeking to pursue a degree that is a bachelor's degree or a graduate degree shall have a residence in a foreign country that the alien has no intention of abandoning;

''(ii) the alien spouse and minor children of any alien described in clause (i) if accompanying or following to join such an alien; and

''(iii) an alien who is a national of Canada or Mexico, who maintains actual residence and place of abode in the country of nationality, who is described in clause (i) except that the alien's qualifications for and actual course of study may be full or part-time, and who commutes to the United States institution or place of study from Canada or Mexico.''.

(b) DUAL INTENT.—Section 214(h) (8 U.S.C. 1184(h)) is amended to read as follows:

''(h) DUAL INTENT.—The fact that an alien is, or intends to be, the beneficiary of an application for a preference status filed under section 204, seeks a change or adjustment of status after completing a legitimate period of nonimmigrant stay, or has otherwise sought permanent residence in the United States shall not constitute evidence of intent to abandon a foreign residence that would preclude the alien from obtaining or maintaining—

''(1) a visa or admission as a nonimmigrant described in subparagraph (E), (F)(i), (F)(ii), (H)(i)(b), (H)(i)(c), (L), (O), (P), (V), or (W) of section 101(a)(15); or

''(2) the status of a nonimmigrant described in any such subparagraph.''.

(c) REQUIREMENT OF STUDENT VISA DATA TRANSFER AND CERTIFICATION.—

(1) IN GENERAL.—The Secretary shall implement real-time transmission of data from the Student and Exchange Visitor Information System to databases used by U.S. Customs and Border Protection.

(2) CERTIFICATION.—

(A) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall certify to Congress that the transmission of data referred to in paragraph (1) has been implemented.

(B) TEMPORARY SUSPENSION OF VISA ISSUANCE.—If the Secretary has not made the certification referred to in subparagraph (A) during the 120-day period, the Secretary shall suspend issuance of visas under subparagraphs (F) and (M) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)) until the certification is made.

SEC. 4402. CLASSIFICATION FOR SPECIALTY OCCUPATION WORKERS FROM FREE TRADE COUNTRIES.

(a) NONIMMIGRANT STATUS.—Section 101(a)(15)(E)(8 U.S.C. 1101(a)(15)(E)) is amended—

(1) in the matter preceding clause (i), by inserting '', bilateral investment treaty, or free trade agreement'' after ''treaty of commerce and navigation'';

(2) in clause (ii), by striking ''or'' at the end; and

(3) by adding at the end the following:

''(iv) solely to perform services in a specialty occupation in the United States if the alien is a national of a country, other than Chile, Singapore, or Australia, with which the United States has entered into a free trade agreement (regardless of whether such an agreement is a treaty of commerce and navigation) and with respect to whom the Secretary of Labor determines and certifies to the Secretary of Homeland Security and the Secretary of State that the intending employer has filed with the Secretary of Labor an attestation under section 212(t);

''(v) solely to perform services in a specialty occupation in the United States if the alien is a national of the Republic of Korea and with respect to whom the Secretary of Labor determines and certifies to the Secretary of Homeland Security and the Secretary of State that the intending employer has filed with the Secretary of Labor an attestation under section 212(t); or

''(vi) solely to perform services as an employee and who has at least a high school education or its equivalent, or has, during the most recent 5-year period, at least 2 years of work experience in an occupation which requires at least 2 years of training or experience if the alien is a national of a country—

''(I) designated as an eligible sub-Saharan African country under section 104 of the African Growth and Opportunity Act (19 U.S.C. 3703); or

''(II) designated as a beneficiary country for purposes of the Caribbean Basin Economic Recovery Act (19 U.S.C. 2701 et seq.);''.

(b) NUMERICAL LIMITATION.—Section 214(g)(11) (8 U.S.C. 1184(g)(11)) is amended—

(1) in subparagraph (A), by striking ''section 101(a)(15)(E)(iii)'' and inserting ''clauses (iii) and (vi) of section 101(a)(15)(E)''; and

(2) by amending subparagraph (B) to read as follows:

''(B) The applicable numerical limitation referred to in subparagraph (A) for each fiscal year is—

''(i) 10,500 for each of the nationalities identified in clause (iii) of section 101(a)(15)(E); and

''(ii) 10,500 for all aliens described in clause (vi) of such section.''.

(c) FREE TRADE AGREEMENTS.—Section 214(g) (8 U.S.C. 1184(g)) is amended by adding at the end the following:

''(12)(A) The free trade agreements referred to in section 101(a)(15)(E)(iv) are defined as any free trade agreement designated by the Secretary of Homeland Security with the concurrence of the United States Trade Representative and the Secretary of State.

''(B) The Secretary of State may not approve a number of initial applications submitted for aliens described in clause (iv) or (v) of section 101(a)(15)(E) that is more than 5,000 per fiscal year for each country with which the United States has entered into a Free Trade Agreement.

''(C) The applicable numerical limitation referred to in subparagraph (A) shall apply only to principal aliens and not to the spouses or children of such aliens.''.

(d) NONIMMIGRANT PROFESSIONALS.—Section 212(t) (8 U.S.C. 1182(t)) is amended by striking ''section 101(a)(15)(E)(iii)'' each place that term appears and inserting ''clause (iv) or (v) of section 101(a)(15)(E)''.

SEC. 4403. E–VISA REFORM.

(a) NONIMMIGRANT CATEGORY.—Section 101(a)(15)(E)(iii) (8 U.S.C. 1101(a)(15)(E)(iii)) is amended by inserting '', or solely to perform services as an employee and who has at least a high school education or its equivalent, or has, within 5 years, at least 2 years of work experience in an occupation which requires at least 2 years of training or experience if the alien is a national of the Republic of Ireland,'' after ''Australia''.

(b) TEMPORARY ADMISSION.—Section 212(d)(3)(A) (8 U.S.C. 1182(d)(3)(A)) is amended to read as follows:

''(A) Except as otherwise provided in this subsection—

''(i) an alien who is applying for a nonimmigrant visa and who the consular officer knows or believes to be ineligible for such visa under subsection (a) (other than subparagraphs (A)(i)(I), (A)(ii), (A)(iii), (C), (E)(i), and (E)(ii) of paragraph (3) of such subsection)—

''(I) after approval by the Secretary of Homeland Security of a recommendation by the Secretary of State or by the consular officer that the alien be admitted temporarily despite the alien's inadmissibility, may be granted such a visa and may be admitted into the United States temporarily as a nonimmigrant, in the discretion of the Secretary of Homeland Security; or

''(II) absent such recommendation and approval, be granted a nonimmigrant visa pursuant to section 101(a)(15)(E) if such ineligibility is based solely on conduct in violation of paragraph (6), (7), or (9) of section 212(a) that occurred before the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act; and

''(ii) an alien who is inadmissible under subsection (a) (other than subparagraphs (A)(i)(I), (A)(ii), (A)(iii), (C), (E)(i), and (E)(ii) of paragraph (3) of such subsection), is in possession of appropriate documents or was granted a waiver from such document requirement, and is seeking admission, may be admitted into the United States temporarily as a nonimmigrant, in the discretion of the Secretary of Homeland Security, who shall prescribe conditions, including exaction of such bonds as may be necessary, to control and regulate the admission and return of inadmissible aliens applying for temporary admission under this paragraph.''.

(c) NUMERICAL LIMITATION.—Section 214(g)(11)(B) (8 U.S.C. 1184(g)(11)(B)) is amended by striking the period at the end and inserting ''for each of the nationalities identified under section 101(a)(15)(E)(iii).''.

SEC. 4404. OTHER CHANGES TO NONIMMIGRANT VISAS.

(a) PORTABILITY.—Paragraphs (1) and (2) of section 214(n) (8 U.S.C. 1184(n)) are amended to read as follows:

''(1) A nonimmigrant alien described in paragraph (2) who was previously issued a visa or otherwise provided nonimmigrant status under section 101(a)(15)(H)(i)(b) or 101(a)(15)(O)(i) is authorized to accept new employment pursuant to such section upon the filing by the prospective employer of a new petition on behalf of such nonimmigrant as provided under subsection (a). Employment authorization shall continue for such alien until the new petition is adjudicated. If the new petition is denied, such authorization shall cease.

''(2) A nonimmigrant alien described in this paragraph is a nonimmigrant alien—

''(A) who has been lawfully admitted into the United States;

''(B) on whose behalf an employer has filed a nonfrivolous petition for new employment before the date of expiration of the period of stay authorized by the Secretary of Homeland Security; and

''(C) who, subsequent to such lawful admission, has not been employed without authorization in the United States before the filing of such petition.''.

(b) WAIVER.—The undesignated material at the end of section 214(c)(3) (8 U.S.C. 1184(c)(3)) is amended to read as follows: ''The Secretary of Homeland Security shall provide by regulation for the waiver of the consultation requirement under subparagraph (A) in the case of aliens who have been admitted as nonimmigrants under section 101(a)(15)(O)(i) because of extraordinary ability in the arts or extraordinary achievement in motion picture or television production and who seek readmission to perform similar services within 3 years after the date of a consultation under such subparagraph provided that, in the case of aliens admitted because of extraordinary achievement in motion picture or television production, such waiver shall apply only if the prior consultations by the appropriate union and management organization were favorable or raised no objection to the approval of the petition. Not later than 5 days after such a waiver is provided, the Secretary shall forward a copy of the petition and all supporting documentation to the national office of an appropriate labor organization. In the case of an alien seeking entry for a motion picture or television production (i) any opinion under the previous sentence shall only be advisory; (ii) any such opinion that recommends denial must be in writing; (iii) in making the decision the Attorney General shall consider the exigencies and scheduling of the production; (iv) the Attorney General shall append to the decision any such opinion; and (v) upon making the decision, the Attorney General shall immediately provide a copy of the decision to the consulting labor and management organizations.''.

SEC. 4405. TREATMENT OF NONIMMIGRANTS DURING ADJUDICATION OF APPLICATION.

Section 214 (8 U.S.C. 1184), as amended by sections 3609 and 4233, is further amended by adding at the end the following:

''(u) TREATMENT OF NONIMMIGRANTS DURING ADJUDICATION OF APPLICATION.—A nonimmigrant alien granted employment authorization pursuant to sections 101(a)(15)(A), 101(a)(15)(E), 101(a)(15)(G), 101(a)(15)(H), 101(a)(15)(I), 101(a)(15)(J), 101(a)(15)(L), 101(a)(15)(O), 101(a)(15)(P), 101(a)(15)(Q), 101(a)(15)(R), 214(e), and such other sections as the Secretary of Homeland Security may by regulations prescribe whose status has expired but who has, or whose sponsoring employer or authorized agent has, filed a timely application or petition for an extension of such employment authorization and nonimmigrant status as provided under subsection (a) is authorized to continue employment with the same employer until the application or petition is adjudicated. Such authorization shall be subject to the same conditions and limitations as the initial grant of employment authorization.''.

SEC. 4406. NONIMMIGRANT ELEMENTARY AND SECONDARY SCHOOL STUDENTS.

Section 214(m)(1)(B) (8 U.S.C. 1184(m)(1)(B)) is amended striking ''unless—'' and all that follows through ''(ii)'' and inserting ''unless''.

SEC. 4407. J–1 SUMMER WORK TRAVEL VISA EXCHANGE VISITOR PROGRAM FEE.

Section 281 (8 U.S.C. 1351), as amended by section 4105, is further amended by adding at the end the following:

''(e) J–1 SUMMER WORK TRAVEL PARTICIPANT FEE.—In addition to the fees authorized under subsection (a), the Secretary of State shall collect a $100 fee from each nonimmigrant entering under the Summer Work Travel program conducted by the Secretary of State pursuant to the Foreign Affairs Reform and Restructuring Act of 1998 (division G of Public Law 105–277; 112 Stat. 2681–761). Fees collected under this subsection shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.''.

SEC. 4408. J VISA ELIGIBILITY.

(a) SPEAKERS OF CERTAIN FOREIGN LANGUAGES.—Section 101(a)(15)(J) (8 U.S.C. 1101(a)(15)(J)) is amended to read as follows:

''(J) an alien having a residence in a foreign country which he has no intention of abandoning who—

''(i) is a bona fide student, scholar, trainee, teacher, professor, research assistant, specialist, or leader in a field of specialized knowledge or skill, or other person of similar description, who is coming temporarily to the United States as a participant in a program designated by the Director of the United States Information Agency, for the purpose of teaching, instructing or lecturing, studying, observing, conducting research, consulting, demonstrating special skills, or receiving training and who, if such alien is coming to the United States to participate in a program under which such alien will receive graduate medical education or training, also meets the requirements of section 212(j), and the alien spouse and minor children of any such alien if accompanying such alien or following to join such alien; or

''(ii) is coming to the United States to perform work involving specialized knowledge or skill, including teaching on a full-time or part-time basis, that requires proficiency of languages spoken as a native language in countries of which fewer than 5,000 nationals were lawfully admitted for permanent residence in the United States in the previous year;''.

(b) REQUIREMENT FOR ANNUAL LIST OF COUNTRIES.—The Secretary of State shall publish an annual list of the countries described in clause (ii) of section 101(a)(15)(J) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(J)), as added by subsection (a).

(c) SUMMER WORK TRAVEL PROGRAM EMPLOYMENT IN SEAFOOD PROCESSING.—Notwithstanding any other provision of law or regulation, including part 62 of title 22, Code of Federal Regulations, or any proposed rule, the Secretary of State shall permit participants in the Summer Work Travel program described in section 62.32 of such title 22 who are admitted under section 101(a)(15)(J) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(J)), as amended by subsection (a), to be employed in seafood processing positions in Alaska.

SEC. 4409. F–1 VISA FEE.

Section 281 (8 U.S.C. 1351), as amended by sections 4105 and 4407, is further amended by adding at the end the following:

''(f) F–1 VISA FEE.—

''(1) IN GENERAL.—In addition to the fees authorized under subsection (a), the Secretary of Homeland Security shall collect a

$100 fee from each nonimmigrant admitted under section 101(a)(15)(F)(i). Fees collected under this subsection shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(2) RULEMAKING.—The Secretary of Homeland Security, in conjunction with the Secretary of State, shall promulgate regulations to ensure that—

''(A) the fee authorized under paragraph (1) is paid on behalf of all J–1 nonimmigrants seeking entry into the United States;

''(B) a fee related to the hiring of a J–1 nonimmigrant is not deducted from the wages or other compensation paid to the J–1 nonimmigrant; and

''(C) not more than 1 fee is collected per J–1 nonimmigrant.''.

SEC. 4410. PILOT PROGRAM FOR REMOTE B NONIMMIGRANT VISA INTERVIEWS.

Section 222 (8 U.S.C. 1202) is amended by adding at the end the following:

''(i)(1) Except as provided in paragraph (3), the Secretary of State—

''(A) shall develop and conduct a pilot program for processing visas under section 101(a)(15)(B) using secure remote videoconferencing technology as a method for conducting any required in person interview of applicants; and

''(B) in consultation with the heads of other Federal agencies that use such secure communications, shall help ensure the security of the videoconferencing transmission and encryption conducted under subparagraph (A).

''(2) Not later than 90 days after the termination of the pilot program authorized under paragraph (1), the Secretary of State shall submit to the appropriate committees of Congress a report that contains—

''(A) a detailed description of the results of such program, including an assessment of the efficacy, efficiency, and security of the remote videoconferencing technology as a method for conducting visa interviews of applicants; and

''(B) recommendations for whether such program should be continued, broadened, or modified.

''(3) The pilot program authorized under paragraph (1) may not be conducted if the Secretary of State determines that such program—

''(A) poses an undue security risk; and

''(B) cannot be conducted in a manner consistent with maintaining security controls.

''(4) If the Secretary of State makes a determination under paragraph (3), the Secretary shall submit a report to the appropriate committees of Congress that describes the reasons for such determination.

''(5) In this subsection:

''(A) The term 'appropriate committees of Congress' means—

''(i) the Committee on the Judiciary, the Committee on Foreign Relations, and the Committee on Appropriations of the Senate; and

''(ii) the Committee on the Judiciary, the Committee on Foreign Affairs, and the Committee on Appropriations of the House of Representatives.

''(B) The term 'in person interview' includes interviews conducted using remote video technology.''.

SEC. 4411. PROVIDING CONSULAR OFFICERS WITH ACCESS TO ALL TERRORIST DATABASES AND REQUIRING HEIGHTENED SCRUTINY OF APPLICATIONS FOR ADMISSION FROM PERSONS LISTED ON TERRORIST DATABASES.

Section 222 (8 U.S.C. 1202), as amended by section 4410, is further amended by adding at the end the following:

''(j) PROVIDING CONSULAR OFFICERS WITH ACCESS TO ALL TERRORIST DATABASES AND REQUIRING HEIGHTENED SCRUTINY OF APPLICATIONS FOR ADMISSION FROM PERSONS LISTED ON TERRORIST DATABASES.—

''(1) ACCESS TO THE SECRETARY OF STATE.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the Secretary of State shall have access to all terrorism records and databases maintained by any agency or department of the United States for the purposes of determining whether an applicant for admission poses a security threat to the United States.

''(B) EXCEPTION.—The head of such an agency or department may only withhold access to terrorism records and databases from the Secretary of State if such head is able to articulate that withholding is necessary to prevent the unauthorized disclosure of information that clearly identifies, or would reasonably permit ready identification of, intelligence or sensitive law enforcement sources, methods, or activities.

''(2) BIOGRAPHIC AND BIOMETRIC SCREENING.—

''(A) REQUIREMENT FOR BIOGRAPHIC AND BIOMETRIC SCREENING.—Notwithstanding any other provision of this Act, the Secretary of State shall require every alien applying for admission to the United States to submit to biographic and biometric screening to determine whether the alien's name or biometric information is listed in any terrorist watch list or database maintained by any agency or department of the United States.

''(B) EXCLUSIONS.—No alien applying for a visa to the United States shall be granted such visa by a consular officer if the alien's name or biometric information is listed in any terrorist watch list or database referred to in subparagraph (A) unless—

''(i) screening of the alien's visa application against interagency counterterrorism screening systems which compare the applicant's information against data in all counterterrorism watch lists and databases reveals no potentially pertinent links to terrorism;

''(ii) the consular officer submits the application for further review to the Secretary of State and the heads of other relevant agencies, including the Secretary of Homeland Security and the Director of National Intelligence; and

''(iii) the Secretary of State, after consultation with the Secretary of Homeland Security, the Director of National Intelligence, and the heads of other relevant agencies, certifies that the alien is admissible to the United States.''.

SEC. 4412. VISA REVOCATION INFORMATION.

Section 428 of the Homeland Security Act of 2002 (6 U.S.C. 236) is amended by adding at the end the following:

''(j) VISA REVOCATION INFORMATION.—If the Secretary of State or the Secretary of Homeland Security revoke a visa—

''(1) the fact of the revocation shall be immediately provided to the relevant consular officers, law enforcement, and terrorist screening databases; and

''(2) a notice of such revocation shall be posted to all Department of Homeland Security port inspectors and to all consular officers.''.

SEC. 4413. STATUS FOR CERTAIN BATTERED SPOUSES AND CHILDREN.

(a) NONIMMIGRANT STATUS FOR CERTAIN BATTERED SPOUSES AND CHILDREN.—Section 101(a)(51) (8 U.S.C. 1101(a)(51)), as amended by section 2305(d)(6)(B)(i)(III), is further amended—

(1) in subparagraph (E), by striking ''or'' at the end;

(2) in subparagraph (F), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(G) section 106 as an abused derivative alien.''.

(b) RELIEF FOR ABUSED DERIVATIVE ALIENS.—

(1) IN GENERAL.—Section 106 (8 U.S.C. 1105a) is amended to read as follows:

''SEC. 106. RELIEF FOR ABUSED DERIVATIVE ALIENS.

''(a) ABUSED DERIVATIVE ALIEN DEFINED.—In this section, the term 'abused derivative alien' means an alien who—

''(1) is the spouse or child admitted under section 101(a)(15) or pursuant to a blue card status granted under section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act;

''(2) is accompanying or following to join a principal alien admitted under such a section; and

''(3) has been subjected to battery or extreme cruelty by such principal alien.

''(b) RELIEF FOR ABUSED DERIVATIVE ALIENS.—The Secretary of Homeland Security—

''(1) shall grant or extend the status of admission of an abused derivative alien under section 101(a)(15) or section 2211 of the Border Security, Economic Opportunity, and Immigration Modernization Act under which the principal alien was admitted for the longer of—

''(A) the same period for which the principal was initially admitted; or

''(B) a period of 3 years;

''(2) may renew a grant or extension of status made under paragraph (1);

''(3) shall grant employment authorization to an abused derivative alien; and

''(4) may adjust the status of the abused derivative alien to that of an alien lawfully admitted for permanent residence if—

''(A) the alien is admissible under section 212(a) or the Secretary of Homeland Security finds the alien's continued presence in the United States is justified on humanitarian grounds, to ensure family unity, or is otherwise in the public interest; and

''(B) the status under which the principal alien was admitted to the United States would have potentially allowed for eventual adjustment of status.

''(c) EFFECT OF TERMINATION OF RELATIONSHIP.—Termination of the relationship with principal alien shall not affect the status of an abused derivative alien under this section if battery or extreme cruelty by the principal alien was 1 central reason for termination of the relationship.

''(d) PROCEDURES.—Requests for relief under this section shall be handled under the procedures that apply to aliens seeking relief under section 204(a)(1)(C).''.

(2) TABLE OF CONTENTS AMENDMENT.—The table of contents in the first section is amended by striking the item relating to section 106 and inserting the following:

''Sec. 106. Relief for abused derivative aliens.''.

SEC. 4414. NONIMMIGRANT CREWMEN LANDING TEMPORARILY IN HAWAII.

(a) IN GENERAL.—Section 101(a)(15)(D)(ii) (8 U.S.C. 1101(a)(15)(D)(ii)) is amended—

(1) by striking ''Guam'' both places that term appears and inserting ''Hawaii, Guam,''; and

(2) by striking the semicolon at the end and inserting ''or some other vessel or aircraft;''.

(b) TREATMENT OF DEPARTURES.—In the administration of section 101(a)(15)(D)(ii) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(D)(ii)), an alien crewman shall be considered to have departed from Hawaii, Guam, or the Commonwealth of the Northern Mariana Islands after leaving the territorial waters of Hawaii, Guam, or the Commonwealth of the Northern Mariana Islands,

respectively, without regard to whether the alien arrives in a foreign state before returning to Hawaii, Guam, or the Commonwealth of the Northern Mariana Islands.

(c) CONFORMING AMENDMENT.—The Act entitled ''An Act to amend the Immigration and Nationality Act to permit nonimmigrant alien crewmen on fishing vessels to stop temporarily at ports in Guam'', approved October 21, 1986 (Public Law 99–505; 8 U.S.C. 1101 note) is amended by striking section 2.

SEC. 4415. TREATMENT OF COMPACT OF FREE ASSOCIATION MIGRANTS.

(a) IN GENERAL.—Title II (8 U.S.C. 1151 et seq.) is amended by inserting after section 214 the following:

''SEC. 214A. TREATMENT OF COMPACT OF FREE ASSOCIATION MIGRANTS.

''Notwithstanding any other provision of law, with respect to eligibility for benefits for the Federal program defined in 402(b)(3)(C) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1612(b)(3)(C)) (relating to the Medicaid program), sections 401(a), 402(b)(1), and 403(a) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1611(a), 1612(b)(1), 1613(a)) shall not apply to any individual who lawfully resides in the United States in accordance with the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau. Any individual to which the preceding sentence applies shall be considered to be a qualified alien for purposes of title IV of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1601 et seq.), but only with respect to the designated Federal program defined in section 402(b)(3)(C) of such Act (relating to the Medicaid program) (8 U.S.C. 1612(b)(3)(C)).''.

(b) CONFORMING AMENDMENTS.—Section 1108 of the Social Security Act (42 U.S.C. 1308) is amended—

(1) in subsection (f), in the matter preceding paragraph (1), by striking ''subsection (g)'' and inserting ''subsections (g) and (h)''; and

(2) by adding at the end the following:

''(h) The limitations of subsections (f) and (g) shall not apply with respect to medical assistance provided to an individual described in section 214A of the Immigration and Nationality Act.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to benefits for items and services furnished on or after the date of the enactment of this Act.

SEC. 4416. INTERNATIONAL PARTICIPATION IN THE PERFORMING ARTS.

Section 214(c)(6)(D) (8 U.S.C. 1184(c)(6)(D)) is amended—

(1) in the first sentence, by inserting ''(i)'' before ''Any person'';

(2) in the second sentence—

(A) by striking ''Once'' and inserting ''Except as provided in clause (ii), once''; and

(B) by striking ''Attorney General shall'' and inserting ''Secretary of Homeland Security shall'';

(3) in the third sentence, by striking ''The Attorney General'' and inserting ''The Secretary''; and

(4) by adding at the end the following:

''(ii) The Secretary of Homeland Security shall adjudicate each petition for an alien with extraordinary ability in the arts (as described in section 101(a)(15)(O)(i)), an alien accompanying such an alien (as described in clauses (ii) and (iii) of section 101(a)(15)(O)), or an alien described in section 101(a)(15)(P) (other than an alien described in paragraph (4)(A) (relating to athletes)) not later than 14 days after—

''(I) the date on which the petitioner submits the petition with a written advisory opinion, letter of no objection, or request for a waiver; or

''(II) the date on which the 15-day period described in clause (i) has expired, if the petitioner has had an appropriate opportunity to supply rebuttal evidence.

''(iii) If a petition described in clause (ii) is not adjudicated before the end of the 14-day period described in clause (ii) and the petitioner is an arts organization described in paragraph (3), (5), or (6) of section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code for the taxable year preceding the calendar year in which the petition is submitted, or an individual or entity petitioning primarily on behalf of such an organization, the Secretary of Homeland Security shall provide the petitioner with the premium processing services referred to in section 286(u), without a fee.''.

SEC. 4417. LIMITATION ON ELIGIBILITY OF CERTAIN NONIMMIGRANTS FOR HEALTH-RELATED PROGRAMS.

(a) IN GENERAL.—Section 1903(v)(4)(A) of the Social Security Act (42 U.S.C. 1396b(v)(4)(A)) is amended by inserting '', but not including a nonimmigrant described in subparagraph (B) or (F) of section 101(a)(15) of the Immigration and Nationality Act'' after ''section 431(c) of such Act''.

(b) CONFORMING CHANGES TO REGULATIONS.—

(1) SECRETARY OF HEALTH AND HUMAN SERVICES.—The Secretary of Health and Human Services shall conform all regulations promulgated by the Secretary of Health and Human Services that reference the term ''lawfully present'' for purposes of health-related programs administered by the Secretary of Health and Human Services to reflect the amendment made by subsection (a) to the definition of ''lawfully residing'' in section 1903(v)(4)(A) of the Social Security Act (42 U.S.C. 1396b(v)(4)(A)).

(2) SECRETARY OF THE TREASURY.—The Secretary of the Treasury shall make the same changes to regulations promulgated by the Secretary of the Treasury that reference the term ''lawfully present'' for purposes of health-related programs administered by the Secretary of the Treasury as the Secretary of Health and Human Services makes under paragraph (1).

Subtitle E—JOLT Act

SEC. 4501. SHORT TITLES.

This subtitle may be cited as the ''Jobs Originated through Launching Travel Act of 2013'' or the ''JOLT Act of 2013''.

SEC. 4502. PREMIUM PROCESSING.

Section 221 (8 U.S.C. 1201) is amended by inserting at the end the following:

''(j) PREMIUM PROCESSING.—

''(1) PILOT PROCESSING SERVICE.—Recognizing that the best solution for expedited processing is low interview wait times for all applicants, the Secretary of State shall nevertheless establish, on a limited, pilot basis only, a fee-based premium processing service to expedite interview appointments. In establishing a pilot processing service, the Secretary may—

''(A) determine the consular posts at which the pilot service will be available;

''(B) establish the duration of the pilot service;

''(C) define the terms and conditions of the pilot service, with the goal of expediting visa appointments and the interview process for those electing to pay said fee for the service; and

''(D) resources permitting, during the pilot service, consider the addition of consulates in locations advantageous to foreign policy objectives or in highly populated locales.

''(2) FEES.—

''(A) AUTHORITY TO COLLECT.—The Secretary of State is authorized to collect, and set the amount of, a fee imposed for the premium processing service. The Secretary of State shall set the fee based on all relevant considerations including, the cost of expedited service.

''(B) USE OF FEES.—Fees collected under the authority of subparagraph (A) shall be deposited as an offsetting collection to any Department of State appropriation, to recover the costs of providing consular services. Such fees shall remain available for obligation until expended.

''(C) RELATIONSHIP TO OTHER FEES.—Such fee is in addition to any existing fee currently being collected by the Department of State.

''(D) NONREFUNDABLE.—Such fee will be nonrefundable to the applicant.

''(3) DESCRIPTION OF PREMIUM PROCESSING.—Premium processing pertains solely to the expedited scheduling of a visa interview. Utilizing the premium processing service for an expedited interview appointment does not establish the applicant's eligibility for a visa. The Secretary of State shall, if possible, inform applicants utilizing the premium processing of potential delays in visa issuance due to additional screening requirements, including necessary security-related checks and clearances.

''(4) REPORT TO CONGRESS.—

''(A) REQUIREMENT FOR REPORT.—Not later than 18 months after the date of the enactment of the JOLT Act of 2013, the Secretary of State shall submit to the appropriate committees of Congress a report on the results of the pilot service carried out under this section.

''(B) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this paragraph, the term 'appropriate committees of Congress' means—

''(i) the Committee on the Judiciary, the Committee on Foreign Relations, and the Committee on Appropriations of the Senate; and

''(ii) the Committee on the Judiciary, the Committee on Foreign Affairs, and the Committee on Appropriations of the House of Representatives.''.

SEC. 4503. ENCOURAGING CANADIAN TOURISM TO THE UNITED STATES.

Section 214 (8 U.S.C. 1184), as amended by sections 3609, 4233, and 4405, is further amended by adding at the end the following:

''(v) CANADIAN RETIREES.—

''(1) IN GENERAL.—The Secretary of Homeland Security may admit as a visitor for pleasure as described in section 101(a)(15)(B) any alien for a period not to exceed 240 days, if the alien demonstrates, to the satisfaction of the Secretary, that the alien—

''(A) is a citizen of Canada;

''(B) is at least 55 years of age;

''(C) maintains a residence in Canada;

''(D) owns a residence in the United States or has signed a rental agreement for accommodations in the United States for the duration of the alien's stay in the United States;

''(E) is not inadmissible under section 212;

''(F) is not described in any ground of deportability under section 237;

''(G) will not engage in employment or labor for hire in the United States; and

''(H) will not seek any form of assistance or benefit described in section 403(a) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613(a)).

''(2) SPOUSE.—The spouse of an alien described in paragraph (1) may be admitted under the same terms as the principal alien if the spouse satisfies the requirements of paragraph (1), other than subparagraphs (B) and (D).

''(3) IMMIGRANT INTENT.—In determining eligibility for admission under this subsection, maintenance of a residence in the United States shall not be considered evidence of intent by the alien to abandon the alien's residence in Canada.

''(4) PERIOD OF ADMISSION.—During any single 365-day period, an alien may be admitted as described in section 101(a)(15)(B) pursuant to this subsection for a period not to exceed 240 days, beginning on the date of admission. Unless an extension is approved by the Secretary, periods of time spent outside the United States during such 240-day period shall not toll the expiration of such 240-day period.''.

SEC. 4504. RETIREE VISA.

(a) NONIMMIGRANT STATUS.—Section 101(a)(15), as amended, is further amended by inserting after subparagraph (X) the following:

''(Y) subject to section 214(w), an alien who, after the date of the enactment of the JOLT Act of 2013—

''(i)(I) uses at least $500,000 in cash to purchase 1 or more residences in the United States, which each sold for more than 100 percent of the most recent appraised value of such residence, as determined by the property assessor in the city or county in which the residence is located;

''(II) maintains ownership of residential property in the United States worth at least $500,000 during the entire period the alien remains in the United States as a nonimmigrant described in this subparagraph; and

''(III) resides for more than 180 days per year in a residence in the United States that is worth at least $250,000; and

''(ii) the alien spouse and children of the alien described in clause (i) if accompanying or following to join the alien.''.

(b) VISA APPLICATION PROCEDURES.—Section 214 (8 U.S.C. 1184), as amended by sections 3609, 4233, 4405, and 4503, is further amended by adding at the end the following:

''(w) VISAS OF NONIMMIGRANTS DESCRIBED IN SECTION 101(a)(15)(Y).—

''(1) The Secretary of Homeland Security shall authorize the issuance of a nonimmigrant visa to any alien described in section 101(a)(15)(Y) who submits a petition to the Secretary that—

''(A) demonstrates, to the satisfaction of the Secretary, that the alien—

''(i) has purchased a residence in the United States that meets the criteria set forth in section 101(a)(15)(Y)(i);

''(ii) is at least 55 years of age;

''(iii) possesses health insurance coverage;

''(iv) is not inadmissible under section 212; and

''(v) will comply with the terms set forth in paragraph (2); and

''(B) includes payment of a fee in an amount equal to $1,000.

''(2) An alien who is issued a visa under this subsection—

''(A) shall reside in the United States at a residence that meets the criteria set forth in section 101(a)(15)(Y)(i) for more than 180 days per year;

''(B) is not authorized to engage in employment in the United States, except for employment that is directly related to the management of the residential property described in section 101(Y)(i)(II);

''(C) is not eligible for any form of assistance or benefit described in section 403(a) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1613(a)); and

''(D) may renew such visa every 3 years under the same terms and conditions.''.

(c) USE OF FEE.—Fees collected under section 214(w)(1)(B) of the Immigration and Nationality Act, as added by subsection (b), shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1).

SEC. 4505. INCENTIVES FOR FOREIGN VISITORS VISITING THE UNITED STATES DURING LOW PEAK SEASONS.

The Secretary of State shall make publically available, on a monthly basis, historical data, for the previous 2 years, regarding the availability of visa appointments for each visa processing post, to allow applicants to identify periods of low demand, when wait times tend to be lower.

SEC. 4506. VISA WAIVER PROGRAM ENHANCED SECURITY AND REFORM.

(a) DEFINITIONS.—Section 217(c)(1) (8 U.S.C. 1187(c)(1)) is amended to read as follows:

''(1) AUTHORITY TO DESIGNATE; DEFINITIONS.—

''(A) AUTHORITY TO DESIGNATE.—The Secretary of Homeland Security, in consultation with the Secretary of State, may designate any country as a program country if that country meets the requirements under paragraph (2).

''(B) DEFINITIONS.—In this subsection:

''(i) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' means—

''(I) the Committee on Foreign Relations, the Committee on Homeland Security and Governmental Affairs, and the Committee on the Judiciary of the Senate; and

''(II) the Committee on Foreign Affairs, the Committee on Homeland Security, and the Committee on the Judiciary of the House of Representatives.

''(ii) OVERSTAY RATE.—

''(I) INITIAL DESIGNATION.—The term 'overstay rate' means, with respect to a country being considered for designation in the program, the ratio of—

''(aa) the number of nationals of that country who were admitted to the United States on the basis of a nonimmigrant visa under section 101(a)(15)(B) whose periods of authorized stay ended during a fiscal year but who remained unlawfully in the United States beyond such periods; to

''(bb) the number of nationals of that country who were admitted to the United States on the basis of a nonimmigrant visa under section 101(a)(15)(B) whose periods of authorized stay ended during that fiscal year.

''(II) CONTINUING DESIGNATION.—The term 'overstay rate' means, for each fiscal year after initial designation under this section with respect to a country, the ratio of—

''(aa) the number of nationals of that country who were admitted to the United States under this section or on the basis of a nonimmigrant visa under section 101(a)(15)(B) whose periods of authorized stay ended during a fiscal year but who remained unlawfully in the United States beyond such periods; to

''(bb) the number of nationals of that country who were admitted to the United States under this section or on the basis of a nonimmigrant visa under section 101(a)(15)(B) whose periods of authorized stay ended during that fiscal year.

''(III) COMPUTATION OF OVERSTAY RATE.—In determining the overstay rate for a country, the Secretary of Homeland Security may utilize information from any available databases to ensure the accuracy of such rate.

''(iii) PROGRAM COUNTRY.—The term 'program country' means a country designated as a program country under subparagraph (A).''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—Section 217 (8 U.S.C. 1187) is amended—

(1) by striking ''Attorney General'' each place the term appears (except in subsection (c)(11)(B)) and inserting ''Secretary of Homeland Security''; and

(2) in subsection (c)—

(A) in paragraph (2)(C)(iii), by striking ''Committee on the Judiciary and the Committee on International Relations of the House of Representatives and the Committee on the Judiciary and the Committee on Foreign Relations of the Senate'' and inserting ''appropriate congressional committees'';

(B) in paragraph (5)(A)(i)(III), by striking ''Committee on the Judiciary, the Committee on Foreign Affairs, and the Committee on Homeland Security, of the House of Representatives and the Committee on the Judiciary, the Committee on Foreign Relations, and the Committee on Homeland Security and Governmental Affairs of the Senate'' and inserting ''appropriate congressional committees''; and

(C) in paragraph (7), by striking subparagraph (E).

(c) DESIGNATION OF PROGRAM COUNTRIES BASED ON OVERSTAY RATES.—

(1) IN GENERAL.—Section 217(c)(2)(A) (8 U.S.C. 1187(c)(2)(A)) is amended to read as follows:

''(A) GENERAL NUMERICAL LIMITATIONS.—

''(i) LOW NONIMMIGRANT VISA REFUSAL RATE.—The percentage of nationals of that country refused nonimmigrant visas under section 101(a)(15)(B) during the previous full fiscal year was not more than 3 percent of the total number of nationals of that country who were granted or refused nonimmigrant visas under such section during such year.

''(ii) LOW NONIMMIGRANT OVERSTAY RATE.—The overstay rate for that country was not more than 3 percent during the previous fiscal year.''.

(2) QUALIFICATION CRITERIA.—Section 217(c)(3) (8 U.S.C. 1187(c)(3)) is amended to read as follows:

''(3) QUALIFICATION CRITERIA.—After designation as a program country under section 217(c)(2), a country may not continue to be designated as a program country unless the Secretary of Homeland Security, in consultation with the Secretary of State, determines, pursuant to the requirements under paragraph (5), that the designation will be continued.''.

(3) INITIAL PERIOD.—Section 217(c) (8 U.S.C. 1187(c)) is amended by striking paragraph (4).

(4) CONTINUING DESIGNATION.—Section 217(c)(5)(A)(i)(II) (8 U.S.C. 1187(c)(5)(A)(i)(II)) is amended to read as follows:

''(II) shall determine, based upon the evaluation in subclause (I), whether any such designation under subsection (d) or (f), or probation under subsection (f), ought to be continued or terminated;''.

(5) COMPUTATION OF VISA REFUSAL RATES; JUDICIAL REVIEW.—Section 217(c)(6) (8 U.S.C. 1187(c)(6)) is amended to read as follows:

''(6) COMPUTATION OF VISA REFUSAL RATES AND JUDICIAL REVIEW.—

''(A) COMPUTATION OF VISA REFUSAL RATES.—For purposes of determining the eligibility of a country to be designated as a program country, the calculation of visa refusal rates shall not include any visa refusals which incorporate any procedures based on, or are otherwise based on, race, sex, or disability, unless otherwise specifically authorized by law or regulation.

''(B) JUDICIAL REVIEW.—No court shall have jurisdiction under this section to review any visa refusal, the Secretary of State's computation of a visa refusal rate, the Secretary of Homeland Security's computation of an overstay rate, or the designation or nondesignation of a country as a program country.''.

(6) VISA WAIVER INFORMATION.—Section 217(c)(7) (8 U.S.C. 1187(c)(7)), as amended by subsection (b)(2)(C), is further amended—

(A) by striking subparagraphs (B) through (D); and

(B) by striking ''WAIVER INFORMATION.—'' and all that follows through ''In refusing'' and inserting ''WAIVER INFORMATION.—In refusing''.

(7) WAIVER AUTHORITY.—Section 217(c)(8) (8 U.S.C. 1187(c)(8)) is amended to read as follows:

''(8) WAIVER AUTHORITY.—The Secretary of Homeland Security, in consultation with the Secretary of State, may waive the application of paragraph (2)(A)(i) for a country if—

''(A) the country meets all other requirements of paragraph (2);

''(B) the Secretary of Homeland Security determines that the totality of the country's security risk mitigation measures provide assurance that the country's participation in the program would not compromise the law enforcement, security interests, or enforcement of the immigration laws of the United States;

''(C) there has been a general downward trend in the percentage of nationals of the country refused nonimmigrant visas under section 101(a)(15)(B);

''(D) the country consistently cooperated with the Government of the United States on counterterrorism initiatives, information sharing, preventing terrorist travel, and extradition to the United States of individuals (including the country's own nationals) who commit crimes that violate United States law before the date of its designation as a program country, and the Secretary of Homeland Security and the Secretary of State assess that such cooperation is likely to continue; and

''(E) the percentage of nationals of the country refused a nonimmigrant visa under section 101(a)(15)(B) during the previous full fiscal year was not more than 10 percent of the total number of nationals of that country who were granted or refused such nonimmigrant visas.''.

(d) TERMINATION OF DESIGNATION; PROBATION.—Section 217(f) (8 U.S.C. 1187(f)) is amended to read as follows:

''(f) TERMINATION OF DESIGNATION; PROBATION.—

''(1) DEFINITIONS.—In this subsection:

''(A) PROBATIONARY PERIOD.—The term 'probationary period' means the fiscal year in which a probationary country is placed in probationary status under this subsection.

''(B) PROGRAM COUNTRY.—The term 'program country' has the meaning given that term in subsection (c)(1)(B).

''(2) DETERMINATION, NOTICE, AND INITIAL PROBATIONARY PERIOD.—

''(A) DETERMINATION OF PROBATIONARY STATUS AND NOTICE OF NONCOMPLIANCE.—As part of each program country's periodic evaluation required by subsection (c)(5)(A), the Secretary of Homeland Security shall determine whether a program country is in compliance with the program requirements under subparagraphs (A)(ii) through (F) of subsection (c)(2).

''(B) INITIAL PROBATIONARY PERIOD.—If the Secretary of Homeland Security determines that a program country is not in compliance with the program requirements under subparagraphs (A)(ii) through (F) of subsection (c)(2), the Secretary of Homeland Security shall place the program country in probationary status for the fiscal year following the fiscal year in which the periodic evaluation is completed.

''(3) ACTIONS AT THE END OF THE INITIAL PROBATIONARY PERIOD.—At the end of the initial probationary period of a country under paragraph (2)(B), the Secretary of Homeland Security shall take 1 of the following actions:

''(A) COMPLIANCE DURING INITIAL PROBATIONARY PERIOD.—If the Secretary determines that all instances of noncompliance with the program requirements under subparagraphs (A)(ii) through (F) of subsection (c)(2) that were identified in the latest periodic evaluation have been remedied by the end of the initial probationary period, the Secretary shall end the country's probationary period.

''(B) NONCOMPLIANCE DURING INITIAL PROBATIONARY PERIOD.—If the Secretary determines that any instance of noncompliance with the program requirements under subparagraphs (A)(ii) through (F) of subsection (c)(2) that were identified in the latest periodic evaluation has not been remedied by the end of the initial probationary period—

''(i) the Secretary may terminate the country's participation in the program; or

''(ii) on an annual basis, the Secretary may continue the country's probationary status if the Secretary, in consultation with the Secretary of State, determines that the country's continued participation in the program is in the national interest of the United States.

''(4) ACTIONS AT THE END OF ADDITIONAL PROBATIONARY PERIODS.—At the end of all probationary periods granted to a country pursuant to paragraph (3)(B)(ii), the Secretary shall take 1 of the following actions:

''(A) COMPLIANCE DURING ADDITIONAL PERIOD.—The Secretary shall end the country's probationary status if the Secretary determines during the latest periodic evaluation required by subsection (c)(5)(A) that the country is in compliance with the program requirements under subparagraphs (A)(ii) through (F) of subsection (c)(2).

''(B) NONCOMPLIANCE DURING ADDITIONAL PERIODS.—The Secretary shall terminate the country's participation in the program if the Secretary determines during the latest periodic evaluation required by subsection (c)(5)(A) that the program country continues to be in noncompliance with the program requirements under subparagraphs (A)(ii) through (F) of subsection (c)(2).

''(5) EFFECTIVE DATE.—The termination of a country's participation in the program under paragraph (3)(B) or (4)(B) shall take effect on the first day of the first fiscal year following the fiscal year in which the Secretary determines that such participation shall be terminated. Until such date, nationals of the country shall remain eligible for a waiver under subsection (a).

''(6) TREATMENT OF NATIONALS AFTER TERMINATION.—For purposes of this subsection and subsection (d)—

''(A) nationals of a country whose designation is terminated under paragraph (3) or (4) shall remain eligible for a waiver under subsection (a) until the effective date of such termination; and

''(B) a waiver under this section that is provided to such a national for a period described in subsection (a)(1) shall not, by such termination, be deemed to have been rescinded or otherwise rendered invalid, if the waiver is granted prior to such termination.

''(7) CONSULTATIVE ROLE OF THE SECRETARY OF STATE.—In this subsection, references to subparagraphs (A)(ii) through (F) of subsection (c)(2) and subsection (c)(5)(A) carry with them the consultative role of the Secretary of State as provided in those provisions.''.

(e) REVIEW OF OVERSTAY TRACKING METHODOLOGY.—Not later than 180 days after the date of the enactment of this Act, the Comptroller General of the United States shall conduct a review of the methods used by the Secretary—

(1) to track aliens entering and exiting the United States; and

(2) to detect any such alien who stays longer than such alien's period of authorized admission.

(f) EVALUATION OF ELECTRONIC SYSTEM FOR TRAVEL AUTHORIZATION.—Not later than 90 days after the date of the enactment of this Act, the Secretary shall submit to Congress—

(1) an evaluation of the security risks of aliens who enter the United States without an approved Electronic System for Travel Authorization verification; and

(2) a description of any improvements needed to minimize the number of aliens who enter the United States without the verification described in paragraph (1).

(g) SENSE OF CONGRESS ON PRIORITY FOR REVIEW OF PROGRAM COUNTRIES.—It is the sense of Congress that the Secretary, in the process of conducting evaluations of countries participating in the visa waiver program under section 217 of the Immigration and Nationality Act (8 U.S.C. 1187), should prioritize the reviews of countries in which circumstances indicate that such a review is necessary or desirable.

(h) ELIGIBILITY OF HONG KONG SPECIAL ADMINISTRATIVE REGION FOR DESIGNATION FOR PARTICIPATION IN VISA WAIVER PROGRAM FOR CERTAIN VISITORS TO THE UNITED STATES.—Section 217(c) (8 U.S.C. 1187(c)) is amended by adding at the end the following new paragraph:

''(12) ELIGIBILITY OF CERTAIN REGION FOR DESIGNATION AS PROGRAM COUNTRY.—The Hong Kong Special Administrative Region of the People's Republic of China—

''(A) shall be eligible for designation as a program country for purposes of this subsection; and

''(B) may be designated as a program country for purposes of this subsection if such region meets requirements applicable for such designation in this subsection.''.

SEC. 4507. EXPEDITING ENTRY FOR PRIORITY VISITORS.

Section 7208(k)(4) of the Intelligence Reform and Terrorism Prevention Act of 2004 (8 U.S.C. 1365b(k)(4)) is amended to read as follows:

''(4) EXPEDITING ENTRY FOR PRIORITY VISITORS.—

''(A) IN GENERAL.—The Secretary of Homeland Security may expand the enrollment across registered traveler programs to include eligible individuals employed by international organizations, selected by the Secretary, which maintain strong working relationships with the United States.

''(B) REQUIREMENTS.—An individual may not be enrolled in a registered traveler program unless—

''(i) the individual is sponsored by an international organization selected by the Secretary under subparagraph (A); and

''(ii) the government that issued the passport that the individual is using has entered into a Trusted Traveler Arrangement with the Department of Homeland Security to participate in a registered traveler program.

''(C) SECURITY REQUIREMENTS.—An individual may not be enrolled in a registered traveler program unless the individual has successfully completed all applicable security requirements established by the Secretary, including cooperation from the applicable foreign government, to ensure that the individual does not pose a risk to the United States.

''(D) DISCRETION.—Except as provided in subparagraph (E), the Secretary shall retain unreviewable discretion to offer or revoke enrollment in a registered traveler program to any individual.

''(E) INELIGIBLE TRAVELERS.—An individual who is a citizen of a state sponsor of terrorism (as defined in section 301(13) of the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8541(13)) may not be enrolled in a registered traveler program.''.

SEC. 4508. VISA PROCESSING.

(a) IN GENERAL.—Notwithstanding any other provision of law and not later than 90 days after the date of the enactment of this Act, the Secretary of State shall—

(1) require United States diplomatic and consular missions—

(A) to conduct visa interviews for nonimmigrant visa applications determined to require a consular interview in an expeditious manner, consistent with national security requirements, and in recognition of resource allocation considerations, such as the need to ensure provision of consular services to citizens of the United States;

(B) to set a goal of interviewing 80 percent of all nonimmigrant visa applicants, worldwide, within 3 weeks of receipt of application, subject to the conditions outlined in subparagraph (A); and

(C) to explore expanding visa processing capacity in China and Brazil, with the goal of maintaining interview wait times under 15 work days on a consistent, year-round basis, recognizing that demand can spike suddenly and unpredictably and that the first priority of United States missions abroad is the protection of citizens of the United States; and

(2) submit to the appropriate committees of Congress a detailed strategic plan that describes the resources needed to carry out paragraph (1)(A).

(b) APPROPRIATE COMMITTEES OF CONGRESS.—In this section, the term ''appropriate committees of Congress'' means—

(1) the Committee on the Judiciary, the Committee on Foreign Relations, and the Committee on Appropriations of the Senate; and

(2) the Committee on the Judiciary, the Committee on Foreign Affairs, and the Committee on Appropriations of the House of Representatives.

(c) SEMI-ANNUAL REPORT.—Not later than 30 days after the end of the first 6 months after the implementation of subsection (a), and not later than 30 days after the end of each subsequent quarter, the Secretary of State shall submit to the appropriate committees of Congress a report that provides—

(1) data substantiating the efforts of the Secretary of State to meet the requirements and goals described in subsection (a);

(2) any factors that have negatively impacted the efforts of the Secretary to meet such requirements and goals; and

(3) any measures that the Secretary plans to implement to meet such requirements and goals.

(d) SAVINGS PROVISION.—

(1) IN GENERAL.—Nothing in subsection (a) may be construed to affect a consular officer's authority—

(A) to deny a visa application under section 221(g) of the Immigration and Nationality Act (8 U.S.C. 1201(g)); or

(B) to initiate any necessary or appropriate security-related check or clearance.

(2) SECURITY CHECKS.—The completion of a security-related check or clearance shall not be subject to the time limits set out in subsection (a).

SEC. 4509. B VISA FEE.

Section 281 (8 U.S.C. 1351), as amended by sections 4105, 4407, and 4408, is further amended by adding at the end the following:

''(g) B VISA FEE.—In addition to the fees authorized under subsection (a), the Secretary of Homeland Security shall collect a $5 fee from each nonimmigrant admitted under section 101(a)(15)(B). Fees collected under this subsection shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.''.

Subtitle F—Reforms to the H–2B Visa Program

SEC. 4601. EXTENSION OF RETURNING WORKER EXEMPTION TO H–2B NUMERICAL LIMITATION.

(a) IN GENERAL.—

(1) IN GENERAL.—Subparagraph (A) of paragraph (10) of section 214(g) (8 U.S.C. 1184(g)), as redesignated by section 4101(a)(3), is amended by striking ''fiscal year 2004, 2005, or 2006 shall not again be counted toward such limitation during fiscal year 2007.'' and inserting ''fiscal year 2013 shall not again be counted toward such limitation during fiscal years 2014 through 2018.''.

(2) EFFECTIVE PERIOD.—The amendment made by paragraph (1) shall be effective during the period beginning on the effective date described in subsection (c) and ending on September 30, 2018.

(b) TECHNICAL AND CLARIFYING AMENDMENTS.—

(1) NONIMMIGRANT STATUS.—Section 101(a)(15)(P) (8 U.S.C. 1101(a)(15)(P)) is amended—

(A) in clause (iii), by striking ''or'' at the end;

(B) in clause (iv), by striking ''clause (i), (ii), or (iii),'' and inserting ''clause (i), (ii), (iii), or (iv)'';

(C) by redesignating clause (iv) as clause (v); and

(D) by inserting after clause (iii) the following:

''(iv) is a ski instructor, who has been certified as a level I, II, or III ski and snowboard instructor by the Professional Ski Instructors of America or the American Association of Snowboard Instructors, or received an equivalent certification in the alien's country of origin, and is seeking to enter the United States temporarily to perform instructing services; or''.

(2) AUTHORIZED PERIOD OF STAY; NUMERICAL LIMITATION.—Section 214(a)(2)(B) (8 U.S.C. 1184(a)(2)(B)) is amended in the second sentence—

(A) by inserting ''or ski instructors'' after ''athletes''; and

(B) by inserting ''or ski instructor'' after ''athlete''.

(3) CONSTRUCTION.—Nothing in the amendments made by this subsection may be construed as preventing an alien who is a ski instructor from obtaining nonimmigrant status under section 101(a)(15)(H)(ii)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(b)) if such alien is otherwise qualified for such status.

(c) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect as if enacted on January 1, 2013.

SEC. 4602. OTHER REQUIREMENTS FOR H–2B EMPLOYERS.

Section 214 (8 U.S.C. 1184), as amended by sections 3609, 4233, 4405, 4503, and 4504, is further amended by adding at the end the following:

''(x) REQUIREMENTS FOR H–2B EMPLOYERS.—

''(1) H–2B NONIMMIGRANT DEFINED.—In this subsection the term 'H–2B nonimmigrant' means an alien admitted to the United States pursuant to section 101(a)(15)(H)(ii)(B).

''(2) NON-DISPLACEMENT OF UNITED STATES WORKERS.—An employer who seeks to employ an H–2B nonimmigrant admitted in an occupational classification shall certify and attest that the employer did not displace and will not displace a United States worker employed by the employer in the same metropolitan statistical area where such nonimmigrant will be hired within the period beginning 90 days before the start date and ending on the end date for which the employer is seeking the services of such nonimmigrant as specified on an application for labor certification under this Act.

''(3) TRANSPORTATION COSTS.—The employer shall pay the transportation costs, including reasonable subsistence costs during the period of travel, for an H–2B nonimmigrant hired by the employer—

''(A) from the place of recruitment to the place of such nonimmigrant's employment; and

''(B) from the place of employment to such nonimmigrant's place of permanent residence or a subsequent worksite.

''(4) PAYMENT OF FEES.—A fee related to the hiring of an H–2B nonimmigrant required to be paid by an employer under this Act shall be paid by the employer and may not be deducted from the wages or other compensation paid to an H–2B nonimmigrant.

''(5) H–2B NONIMMIGRANT LABOR CERTIFICATION APPLICATION FEE.—

''(A) IN GENERAL.—To recover costs of carrying out labor certification activities under the H–2B program, the Secretary of Labor shall impose a $500 fee on an employer that submits an application for an employment certification for aliens granted H–2B nonimmigrant status to the Secretary of Labor under this subparagraph on or after the date that is 30 days after the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.''.

''(B) USE OF FEES.—The fees collected under subparagraph (A) shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.''.

SEC. 4603. EXECUTIVES AND MANAGERS.

Section 214(a)(1) (8 U.S.C. 1184(a)(1)) is amended by adding at the end the following: ''Aliens admitted under section 101(a)(15) should include—

''(A) executives and managers employed by a firm or corporation or other legal entity or an affiliate or subsidiary thereof who are principally stationed abroad and who seek to enter the United States for periods of 90 days or less to oversee and observe the United States operations of their related companies, and establish strategic objectives when needed; or

''(B) employees of multinational corporations who enter the United States to observe the operations of a related United States company and participate in select leadership and development training activities, whether or not the activity is part of a formal or classroom training program for a period not to exceed 180 days.

Nonimmigrant aliens admitted pursuant to section 101(a)(15) and engaged in the activities described in the subparagraph (A) or (B) may not receive a salary from a United States source, except for incidental expenses for meals, travel, lodging and other basic services.''.

SEC. 4604. HONORARIA.

Section 212(q) (8 U.S.C. 1182(q)) is amended to read as follows:

''(q)(1) Any alien admitted under section 101(a)(15)(B) may accept an honorarium payment and associated incidental expenses, for a usual academic activity or activities (lasting not longer than 9 days at any single institution), as defined by the Attorney General in consultation with the Secretary of Education, or for a performance, appearance and participation in United States based programming, including scripted or unscripted programming (with services not rendered for more than 60 days in a 6 month period) if the alien has received a letter of invitation from the institution, organization, or media outlet, such payment is offered by an institution, organization, or media outlet described in paragraph (2) and is made for services conducted for the benefit of that institution, entity or media outlet and if the alien has not

accepted such payment or expenses from more than 5 institutions, organizations, or media outlets in the previous 6-month period. Any alien who is admitted under section 101(a)(15)(B) or any other valid visa may perform services under this section without reentering the United States and without a letter of invitation, if the alien does not receive any remuneration including an honorarium payment or incidental expenses, but may receive prize money.

''(2) An institution, organization, or media outlet described in this paragraph—

''(A) an institution of higher education (as defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a))) or a related or affiliated nonprofit entity;

''(B) a nonprofit research organization or a governmental research organization; and

''(C) a broadcast network, cable entity, production company, new media, internet and mobile based companies, who create or distribute programming content.''.

SEC. 4605. NONIMMIGRANTS PARTICIPATING IN RELIEF OPERATIONS.

Section 214 (8 U.S.C. 1184), as amended by sections 3609, 4233, 4405, 4503, 4504, and 4602, is further amended by adding at the end following:

''(y) NONIMMIGRANTS PARTICIPATING IN RELIEF OPERATIONS.—

''(1) IN GENERAL.—An alien coming individually, or aliens coming as a group, to participate in relief operations, including critical infrastructure repairs or improvements, needed in response to a Federal or State declared emergency or disaster, may be admitted to the United States pursuant to section 101(a)(15)(B) for a period of not more than 90 days if each such alien has been employed in a foreign country by 1 employer for not less than 1 year prior to the date the alien is so admitted.

''(2) PROHIBITION ON DIRECT PAYMENTS FROM A UNITED STATES SOURCE.—During a period of admission pursuant to paragraph (1), an alien may not receive direct payments from a United States source, except for incidental expenses for meals, travel, lodging, and other basic services.''.

SEC. 4606. NONIMMIGRANTS PERFORMING MAINTENANCE ON COMMON CARRIERS.

Section 214 (8 U.S.C. 1184), as amended by sections 3609, 4233, 4405, 4503, 4504, 4602, and 4603, is further amended by adding at the end following:

''(z) NONIMMIGRANTS PERFORMING MAINTENANCE ON COMMON CARRIER.—

''(1) IN GENERAL.—An alien coming individually, or aliens coming as a group, who possess specialized knowledge to perform maintenance or repairs for common carriers, including to airlines, cruise lines, and railways, if such maintenance or repairs are occurring to equipment or machinery manufactured outside of the United States and are needed for purposes relating to life, health, and safety, may be admitted to the United States pursuant to section 101(a)(15)(B) for a period of not more than 90 days if each such alien has been employed in a foreign country by 1 employer for not less than 1 year prior to the date the alien is so admitted.

''(2) PROHIBITION ON INCOME FROM A UNITED STATES SOURCE.—During a period of admission pursuant to paragraph (1), an alien may not receive income from a United States source, except for incidental expenses for meals, travel, lodging, and other basic services.

''(3) FEE.—

''(A) IN GENERAL.—An alien admitted pursuant to paragraph (1) shall pay a fee of $500 in addition to any fee assessed to cover the costs to process an application under this subsection.

''(B) USE OF FEE.—The fees collected under subparagraph (A) shall be deposited in the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.''.

SEC. 4607. AMERICAN JOBS IN AMERICAN FORESTS.

(a) SHORT TITLE.—This section may be cited as the ''American Jobs in American Forests Act of 2013''.

(b) DEFINITIONS.—In this section:

(1) FORESTRY.—The term ''forestry'' means—

(A) propagating, protecting, and managing forest tracts;

(B) felling trees and cutting them into logs;

(C) using hand tools or operating heavy powered equipment to perform activities such as preparing sites for planting, tending crop trees, reducing competing vegetation, moving logs, piling brush, and yarding and trucking logs from the forest; and

(D) planting seedlings and trees.

(2) H–2B NONIMMIGRANT.—The term ''H–2B nonimmigrant'' means a nonimmigrant described in section 101(a)(15)(H)(ii)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(b)).

(3) PROSPECTIVE H–2B EMPLOYER.—The term ''prospective H–2B employer'' means a United States business that is considering employing 1 or more nonimmigrants described in section 101(a)(15)(H)(ii)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(ii)(b)).

(4) STATE WORKFORCE AGENCY.—The term ''State workforce agency'' means the workforce agency of the State in which the prospective H–2B employer intends to employ H–2B nonimmigrants.

(c) DEPARTMENT OF LABOR.—

(1) RECRUITMENT.—As a component of the labor certification process required before H–2B nonimmigrants are offered forestry employment in the United States, the Secretary of Labor shall require all prospective H–2B employers, before they submit a petition to hire H–2B nonimmigrants to work in forestry, to conduct a robust effort to recruit United States workers, including, to the extent the State workforce agency considers appropriate—

(A) advertising at employment or job-placement events, such as job fairs;

(B) placing the job opportunity with the State workforce agency and working with such agency to identify qualified and available United States workers;

(C) advertising in appropriate media, including local radio stations and commonly used, reputable Internet job-search sites; and

(D) such other recruitment efforts as the State workforce agency considers appropriate for the sector or positions for which H–2B nonimmigrants would be considered.

(2) SEPARATE CERTIFICATIONS AND PETITIONS.—A prospective H–2B employer shall submit a separate application for temporary employment certification and petition for each State in which the employer plans to employ H–2B nonimmigrants in forestry for a period of 7 days or longer. The Secretary of Labor shall review each application for temporary employment certification and decide separately whether certification is warranted.

(d) STATE WORKFORCE AGENCIES.—The Secretary of Labor may not grant a temporary labor certification to a prospective H–2B employer seeking to employ H–2B nonimmigrants in forestry until after the Director of the State workforce agency, in each State in which such workers are sought—

(1) submits a report to the Secretary of Labor certifying that—

(A) the employer has complied with all recruitment requirements set forth in subsection (c)(1) and there is legitimate demand for the employment of H–2B nonimmigrants in each of those States; or

(B) the employer has amended the application by removing or making appropriate modifications with respect to the States in which the criteria set forth in subparagraph (A) have not been met; and

(2) makes a formal determination that nationals of the United States are not qualified or available to fill the employment opportunities offered by the prospective H–2B employer.

Subtitle G—W Nonimmigrant Visas

SEC. 4701. BUREAU OF IMMIGRATION AND LABOR MARKET RESEARCH.

(a) DEFINITIONS.—In this section:

(1) BUREAU.—Except as otherwise specifically provided, the term ''Bureau'' means the Bureau of Immigration and Labor Market Research established under subsection (b).

(2) COMMISSIONER.—The term ''Commissioner'' means the Commissioner of the Bureau.

(3) CONSTRUCTION OCCUPATION.—The term ''construction occupation'' means an occupation classified by the Bureau of Labor Statistics as being within the construction industry for the purposes of publishing the Bureau's workforce statistics.

(4) METROPOLITAN STATISTICAL AREA.—The term ''metropolitan statistical area'' means a geographic area designated as a metropolitan statistical area by the Director of the Office of Management and Budget.

(5) SHORTAGE OCCUPATION.—The term ''shortage occupation'' means an occupation that the Commissioner determines is experiencing a shortage of labor—

(A) throughout the United States; or

(B) in a specific metropolitan statistical area.

(6) W VISA PROGRAM.—The term ''W Visa Program'' means the program for the admission of nonimmigrant aliens described in subparagraph (W)(i) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)), as added by section 4702.

(7) ZONE 1 OCCUPATION.—The term ''zone 1 occupation'' means an occupation that requires little or no preparation and is classified as a zone 1 occupation on—

(A) the Occupational Information Network Database (O*NET) on the date of the enactment of this Act; or

(B) such Database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of this Act.

(8) ZONE 2 OCCUPATION.—The term ''zone 2 occupation'' means an occupation that requires some preparation and is classified as a zone 2 occupation on—

(A) the Occupational Information Network Database (O*NET) on the date of the enactment of this Act; or

(B) such Database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of this Act.

(9) ZONE 3 OCCUPATION.—The term ''zone 3 occupation'' means an occupation that requires medium preparation and is classified as a zone 3 occupation on—

(A) the Occupational Information Network Database (O*NET) on the date of the enactment of this Act; or

(B) such Database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of this Act.

(b) ESTABLISHMENT.—There is established a Bureau of Immigration and Labor Market Research as an independent statistical agency within U.S. Citizenship and Immigration Services.

(c) COMMISSIONER.—The head of the Bureau of Immigration and Labor Market Research

is the Commissioner, who shall be appointed by the President, by and with the advice and consent of the Senate.

(d) DUTIES.—The duties of the Commissioner are limited to the following:

(1) To devise a methodology subject to publication in the Federal Register and an opportunity for public comment regarding the calculation for the index referred to in section 220(g)(2)(C) of the Immigration and Nationality Act, as added by section 4703.

(2) To determine and to publish in the Federal Register the annual change to the numerical limitation for nonimmigrant aliens described in subparagraph (W)(i) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)), as added by section 4702.

(3) With respect to the W Visa Program, to supplement the recruitment methods employers may use to attract United States workers and current nonimmigrant aliens described in paragraph (2).

(4) With respect to the W Visa Program, to devise a methodology subject to publication in the Federal Register and an opportunity for public comment to designate shortage occupations in zone 1 occupations, zone 2 occupations, and zone 3 occupations. Such methodology must designated Alaskan seafood processing in zones 1, 2, and 3 as shortage occupations.

(5) With respect to the W Visa Program, to designate shortage occupations in any zone 1 occupation, zone 2 occupation, or zone 3 occupation and publish such occupations in the Federal Register. Alaskan seafood processing in zones 1, 2, and 3 must be designated as shortage occupations.

(6) With respect to the W Visa Program, to conduct a survey once every 3 months of the unemployment rate of zone 1 occupations, zone 2 occupations, or zone 3 occupations that are construction occupations in each metropolitan statistical area.

(7) To study and report to Congress on employment-based immigrant and nonimmigrant visa programs in the United States and to make annual recommendations to improve such programs.

(8) To carry out any functions required to perform the duties described in paragraphs (1) through (7).

(e) DETERMINATION OF CHANGES TO NUMERICAL LIMITATIONS.—The methodology required under subsection (d)(1) shall be published in the Federal Register not later than 18 months after the date of the enactment of this Act.

(f) DESIGNATION OF SHORTAGE OCCUPATIONS.—

(1) METHODS TO DETERMINE.—The Commissioner shall—

(A) establish the methodology to designate shortage occupations under subsection (d)(4); and

(B) publish such methodology in the Federal Register not later than 18 months after the date of the enactment of this Act.

(2) PETITION BY EMPLOYER.—The methodology established under paragraph (1) shall permit an employer to petition the Commissioner for a determination that a particular occupation in a particular metropolitan statistical area is a shortage occupation.

(3) REQUIREMENT FOR NOTICE AND COMMENT.—The methodology established under paragraph (1) shall be effective only after publication in the Federal Register and an opportunity for public comment.

(g) EMPLOYEE EXPERTISE.—The employees of the Bureau shall have the expertise necessary to identify labor shortages in the United States and make recommendations to the Commissioner on the impact of immigrant and nonimmigrant aliens on labor markets in the United States, including expertise in economics, labor markets, demographics and methods of recruitment of United States workers.

(h) INTERAGENCY COOPERATION.—At the request of the Commissioner, the Secretary of Commerce, the Director of the Bureau of the Census, the Secretary of Labor, and the Commissioner of the Bureau of Labor Statistics shall—

(1) provide data to the Commissioner;

(2) conduct appropriate surveys; and

(3) assist the Commissioner in preparing the recommendations referred to subsection (d)(5).

(i) BUDGET.—

(1) REPORT.—Not later than 1 year after the date of the enactment of this Act, the Director of U.S. Citizenship and Immigration Services shall submit to Congress a report of the estimated budget that the Bureau will need to carry out the duties described in subsection (d).

(2) AUDIT.—The Comptroller General of the United States shall submit to Congress a report that is an audit of the budget prepared by the Director under paragraph (1).

(j) FUNDING.—

(1) APPROPRIATION OF FUNDS.—There is hereby appropriated, out of any money in the Treasury not otherwise appropriated, $20,000,000 to establish the Bureau.

(2) USE OF W NONIMMIGRANT FEES.—The amounts collected for fees under section 220(e)(6)(B) of the Immigration and Nationality Act, as added by section 4703, shall be used to establish and fund the Bureau.

(3) OTHER FEES.—The Secretary may establish other fees for the sole purpose of funding the W Visa Program, including the Bureau, that are related to the hiring of alien workers.

SEC. 4702. NONIMMIGRANT CLASSIFICATION FOR W NONIMMIGRANTS.

Section 101(a)(15)(W), as added by section 2211, is amended by inserting before clause (iii) the following:

''(i) to perform services or labor for a registered nonagricultural employer in a registered position (as those terms are defined in section 220(a)) in accordance with the requirements under section 220;

''(ii) to accompany or follow to join such an alien described in clause (i) as the spouse or child of such alien;''.

SEC. 4703. ADMISSION OF W NONIMMIGRANT WORKERS.

(a) IN GENERAL.—Chapter 2 of title II (8 U.S.C. 1181 et seq.) is amended by adding at the end the following:

''SEC. 220. ADMISSION OF W NONIMMIGRANT WORKERS.

''(a) DEFINITIONS.—In this section:

''(1) BUREAU.—The term 'Bureau' means the Bureau of Immigration and Labor Market Research established by section 4701 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.

''(2) CERTIFIED ALIEN.—The term 'certified alien' means an alien that the Secretary of State has certified is eligible to be a W nonimmigrant if the alien is hired by a registered employer for a registered position.

''(3) COMMISSIONER.—The term 'Commissioner' means the Commissioner of the Bureau.

''(4) CONSTRUCTION OCCUPATION.—The term 'construction occupation' means an occupation defined by the Bureau of Labor Statistics as being within the construction industry for the purposes of publishing the Bureau's workforce statistics.

''(5) DEPARTMENT.—Except as otherwise provided, the term 'Department' means the Department of Homeland Security.

''(6) ELIGIBLE OCCUPATION.—The term 'eligible occupation' means an eligible occupation described in subsection (e)(3).

''(7) EMPLOYER.—

''(A) IN GENERAL.—The term 'employer' means any person or entity hiring an individual for employment in the United States.

''(B) TREATMENT OF SINGLE EMPLOYER.—For purposes of determining the number of employees or United States workers employed by an employer, a single entity shall be treated as 1 employer.

''(8) EXCLUDED GEOGRAPHIC LOCATION.—The term 'excluded geographic location' means an excluded geographic location described in subsection (f).

''(9) INITIAL W NONIMMIGRANT.—The term 'initial W nonimmigrant' means a certified alien issued a W nonimmigrant visa by the Secretary of State pursuant to section 101(a)(15)(W)(i) in order to seek initial admission to the United States to commence employment for a registered employer in a registered position subject to the numerical limit at section 220(g).

''(10) METROPOLITAN STATISTICAL AREA.—The term 'metropolitan statistical area' means a geographic area designated as a metropolitan statistical area by the Director of the Office of Management and Budget.

''(11) REGISTERED EMPLOYER.—The term 'registered employer' means a nonagricultural employer that the Secretary has designated as a registered employer under subsection (d).

''(12) SECRETARY.—Except as otherwise specifically provided, the term 'Secretary' means the Secretary of Homeland Security.

''(13) SINGLE ENTITY.—The term 'single entity' means any group treated as a single employer under subsection (b), (c), (m), or (o) of section 414 of the Internal Revenue Code of 1986.

''(14) SHORTAGE OCCUPATION.—The term 'shortage occupation' means a shortage occupation designated by the Commissioner pursuant to section 4701(d)(4) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.

''(15) SMALL BUSINESS.—The term 'small business' means an employer that employs 25 or fewer full-time equivalent employees.

''(16) UNITED STATES WORKER.—The term 'United States worker' means an individual who is—

''(A) employed or seeking employment in the United States; and

''(B)(i) a national of the United States;

''(ii) an alien lawfully admitted for permanent residence;

''(iii) an alien in Registered Provisional Immigrant Status; or

''(iv) any other alien authorized to work in the United States with no limitation as to the alien's employer.

''(17) W NONIMMIGRANT.—The term 'W nonimmigrant' means an alien admitted as a nonimmigrant pursuant to section 101(a)(15)(W)(i).

''(18) W NONIMMIGRANT VISA.—The term 'W nonimmigrant visa' means a visa issued to a certified alien by the Secretary of State pursuant to section 101(a)(15)(W)(i).

''(19) W VISA PROGRAM.—The term 'W Visa Program' means the program for the admission of nonimmigrant aliens described in section 101(a)(15)(W)(i).

''(20) ZONE 1 OCCUPATION.—The term 'zone 1 occupation' means an occupation that requires little or no preparation and is classified as a zone 1 occupation on—

''(A) the Occupational Information Network Database (O*NET) on the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996; or

''(B) such Database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.

''(21) ZONE 2 OCCUPATION.—The term 'zone 2 occupation' means an occupation that requires some preparation and is classified as a zone 2 occupation on—

''(A) the Occupational Information Network Database (O*NET) on the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996; or

''(B) such Database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.

''(22) ZONE 3 OCCUPATION.—The term 'zone 3 occupation' means an occupation that requires medium preparation and is classified as a zone 3 occupation on—

''(A) the Occupational Information Network Database (O*NET) on the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996; or

''(B) such Database or a similar successor database, as designated by the Secretary of Labor, after the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.

''(b) ADMISSION INTO THE UNITED STATES.—

''(1) W NONIMMIGRANTS.—Subject to this section, a certified alien is eligible to be admitted to the United States as a W nonimmigrant if the alien is hired by a registered employer for employment in a registered position in a location that is not an excluded geographic location.

''(2) SPOUSE AND MINOR CHILDREN.—The—

''(A) alien spouse and minor children of a W nonimmigrant may be admitted to the United States pursuant to clause (ii) of section 101(a)(15)(W) during the period of the principal W nonimmigrant's admission; and

''(B) such alien spouse shall be—

''(i) authorized to engage in employment in the United States during such period of admission; and

''(ii) provided with an employment authorization document, stamp, or other appropriate work permit.

''(c) W NONIMMIGRANTS.—

''(1) CERTIFIED ALIEN.—

''(A) APPLICATION.—An alien seeking to be a W nonimmigrant shall apply to the Secretary of State at a United States embassy or consulate in a foreign country to be a certified alien.

''(B) CRITERIA.—An alien is eligible to be a certified alien if the alien—

''(i) is not inadmissible under this Act;

''(ii) passes a criminal background check;

''(iii) agrees to accept only registered positions in the United States; and

''(iv) meets other criteria as established by the Secretary.

''(2) W NONIMMIGRANT STATUS.—Only an alien that is a certified alien may be admitted to the United States as a W nonimmigrant.

''(3) INITIAL EMPLOYMENT.—A W nonimmigrant shall report to such nonimmigrant's initial employment in a registered position not later than 14 days after such nonimmigrant is admitted to the United States.

''(4) TERM OF ADMISSION.—

''(A) INITIAL TERM.—A certified alien may be granted W nonimmigrant status for an initial period of 3 years.

''(B) RENEWAL.—A W nonimmigrant may renew his or her status as a W nonimmigrant for additional 3-year periods. Such a renewal may be made while the W nonimmigrant is in the United States and shall not require the alien to depart the United States.

''(5) PERIODS OF UNEMPLOYMENT.—A W nonimmigrant—

''(A) may be unemployed for a period of not more than 60 consecutive days; and

''(B) shall depart the United States if such W nonimmigrant is unable to obtain employment during such period.

''(6) TRAVEL.—A W nonimmigrant may travel outside the United States and be readmitted to the United States. Such travel may not extend the period of authorized admission of such W nonimmigrant.

''(d) REGISTERED EMPLOYER.—

''(1) APPLICATION.—An employer seeking to be a registered employer shall submit an application to the Secretary. Each such application shall include the following:

''(A) Documentation to establish that the employer is a bona-fide employer.

''(B) The employer's Federal tax identification number or employer identification number issued by the Internal Revenue Service.

''(C) The number of W nonimmigrants the employer estimates it will seek to employ annually.

''(2) REFERRAL FOR FRAUD INVESTIGATION.—The Secretary may refer an application submitted under paragraph (1) or subsection (e)(1)(A) to the Fraud Detection and National Security Directorate of U.S. Citizenship and Immigration Services if there is evidence of fraud for potential investigation.

''(3) INELIGIBLE EMPLOYERS.—

''(A) IN GENERAL.—Notwithstanding any other applicable penalties under law, the Secretary may deny an employer's application to be a registered employer if the Secretary determines, after notice and an opportunity for a hearing, that the employer submitting such application—

''(i) has, with respect to the application required under paragraph (1), including any attestations required by law—

''(I) knowingly misrepresented a material fact;

''(II) knowingly made a fraudulent statement; or

''(III) knowingly failed to comply with the terms of such attestations; or

''(ii) failed to cooperate in the audit process in accordance with regulations promulgated by the Secretary;

''(iii) has been convicted of an offense set out in chapter 77 of title 18, United States Code, or any conspiracy to commit such offenses, or any human trafficking offense under State or territorial law;

''(iv) has, within 2 years prior to the date of application—

''(I) received a final adjudication of having committed any hazardous occupation orders violation resulting in injury or death under the child labor provisions contained in section 12 of the Fair Labor Standards Act of 1938 (29 U.S.C. 211) and any pertinent regulation;

''(II) received a final adjudication assessing a civil money penalty for any repeated or willful violation of the minimum wage provisions of section 6 of the Fair Labor Standards Act of 1938 (29 U.S.C. 206); or

''(III) received a final adjudication assessing a civil money penalty for any willful violation of the overtime provisions of section 7 of the Fair Labor Standards Act of 1938 or any regulations thereunder; or

''(v) has, within 2 years prior to the date of application, received a final adjudication for a willful violation or repeated serious violations involving injury or death—

''(I) of section 5 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 654);

''(II) of any standard, rule, or order promulgated pursuant to section 6 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655); or

''(III) of a plan approved under section 18 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 667).

''(B) LENGTH OF INELIGIBILITY.—

''(i) TEMPORARY INELIGIBILITY.—An employer described in subparagraph (A) may be ineligible to be a registered employer for a period that is not less than the time period determined by the Secretary and not more than 3 years.

''(ii) PERMANENT INELIGIBILITY.—An employer who has been convicted of any offense set out in chapter 77 of title 18, United States Code, or any conspiracy to commit such offenses, or any human trafficking offense under State or territorial law shall be permanently ineligible to be a registered employer.

''(4) TERM OF REGISTRATION.—The Secretary shall approve applications meeting the criteria of this subsection for a term of 3 years.

''(5) RENEWAL.—An employer may submit an application to renew the employer's status as a registered employer for additional 3-year periods.

''(6) FEE.—At the time an employer's application to be a registered employer or to renew such status is approved, such employer shall pay a fee in an amount determined by the Secretary to be sufficient to cover the costs of the registry of such employers.

''(7) CONTINUED ELIGIBILITY.—Each registered employer shall submit to the Secretary an annual report that demonstrates that the registered employer has provided the wages and working conditions the registered employer agreed to provide to its employees.

''(e) REGISTERED POSITIONS.—

''(1) IN GENERAL.—

''(A) APPLICATION.—Each registered employer shall submit to the Secretary an application to designate a position for which the employer is seeking a W nonimmigrant as a registered position. The Secretary is authorized to determine if the wage to be paid by the employer complies with subparagraph (B)(iv). Each such application shall include a description of each such position.

''(B) ATTESTATION.—An application submitted under subparagraph (A) shall include an attestation of the following:

''(i) The number of full-time equivalent employees of the employer.

''(ii) The occupational category, as classified by the Secretary of Labor, for which the registered position is sought.

''(iii) Whether the occupation for which the registered position is sought is a shortage occupation.

''(iv) Except as provided in subsection (g)(4)(C)(i), the wages to be paid to W nonimmigrants employed by the employer in the registered position, including a position in a shortage occupation, will be the greater of—

''(I) the actual wage level paid by the employer to other employees with similar experience and qualifications for such position; or

''(II) the prevailing wage level for the occupational classification of the position in the metropolitan statistical area of the employment, as determined by the Secretary, based on the best information available as of the time of filing the application.

''(v) The working conditions for W nonimmigrants will not adversely affect the working conditions of other workers employed in similar positions.

''(vi) The employer has carried out the recruiting activities required by paragraph (2)(B).

''(vii) There is no qualified United States worker who has applied for the position and who is ready, willing, and able to fill such position pursuant to the requirements in subparagraphs (B) and (C) of paragraph (2).

''(viii) There is not a strike, lockout, or work stoppage in the course of a labor dispute in the occupation at the place of employment at which the W nonimmigrant will be employed. If such strike, lockout, or work

stoppage occurs following submission of the application, the employer will provide notification in accordance with all applicable regulations.

''(ix)(I) The employer has not laid off and will not layoff a United States worker during the period beginning 90 days prior to and ending 90 days after the date the employer files an application for designation of a position for which the W nonimmigrant is sought or hires such W nonimmigrant, unless the employer has notified such United States worker of the position and documented the legitimate reasons that such United States worker is not qualified or available for the position.

''(II) A United States worker is not laid off for purposes of this subparagraph if, at the time such worker's employment is terminated, such worker is not employed in the same occupation and in the same metropolitan statistical area where the registered position referred to in subclause (I) is located.

''(C) BEST INFORMATION AVAILABLE.—In subparagraph (B)(iv)(II), the term 'best information available', with respect to determining the prevailing wage for a position, means—

''(i) a controlling collective bargaining agreement or Federal contract wage, if applicable;

''(ii) if there is no applicable wage under clause (i), the wage level commensurate with the experience, training, and supervision required for the job based on Bureau of Labor Statistics data; or

''(iii) if the data referred to in clause (ii) is not available, a legitimate and recent private survey of the wages paid for such positions in the metropolitan statistical area.

''(D) PERMIT.—The Secretary shall provide each registered employer whose application submitted under subparagraph (A) is approved with a permit that includes the number and description of such employer's approved registered positions.

''(E) TERM OF REGISTRATION.—The approval of a registered position under subparagraph (A) is for a term that begins on the date of such approval and ends on the earlier of—

''(i) the date the employer's status as a registered employer is terminated;

''(ii) 3 years after the date of such approval; or

''(iii) upon proper termination of the registered position by the employer.

''(F) REGISTRY OF REGISTERED POSITIONS.—

''(i) MAINTENANCE OF REGISTRY.—The Secretary shall develop and maintain a registry of approved registered positions for which the Secretary has issued a permit under subparagraph (D).

''(ii) AVAILABILITY ON WEBSITE.—The registry required by clause (i) shall be accessible on a website maintained by the Secretary.

''(iii) AVAILABILITY ON STATE WORKFORCE AGENCY WEBSITES.—Each State workforce agency shall be linked to such registry and provide access to such registry through the website maintained by such agency.

''(iv) CONDITIONS OF AVAILABILITY ON WEBSITE.—

''(I) IN GENERAL.—Each approved registered position for which the Secretary has issued a permit shall be included in the registry of registered positions maintained by the Secretary and shall remain available for viewing on such registry throughout the term of registration referred to in subparagraph (E) or paragraph (5).

''(II) INDICATION OF VACANCY.—The Secretary shall ensure that such registry indicates whether each approved registered position in the registry is filled or unfilled.

''(III) REQUIREMENT FOR 10-DAY POSTING.—If a W nonimmigrant's employment in a registered position ends, either voluntarily or involuntarily, the Secretary shall ensure that such registry indicates that the registered position is unfilled for a period of 10 calendar days, unless such registered position is filled by a United States worker.

''(2) REQUIREMENTS.—

''(A) ELIGIBLE OCCUPATION.—Each registered position shall be for a position in an eligible occupation as described in paragraph (3).

''(B) RECRUITMENT OF UNITED STATES WORKERS.—

''(i) REQUIREMENTS.—A position may not be a registered position unless the registered employer—

''(I) advertises the position for a period of 30 days, including the wage range, location, and proposed start date—

''(aa) on the Internet website maintained by the Secretary of Labor for the purpose of such advertising; and

''(bb) with the workforce agency of the State where the position will be located; and

''(II) except as provided for in subsection (g)(4)(B)(i), carries out not less than 3 of the recruiting activities described in subparagraph (C).

''(ii) DURATION OF ADVERTISING.—The 30 day periods required by item (aa) of (bb) of clause (i)(I) may occur at the same time.

''(C) RECRUITING ACTIVITIES.—The recruiting activities described in this subparagraph, with respect to a position for which the employer is seeking a W nonimmigrant, shall consist of any combination of the following as defined by the Secretary of Homeland Security:

''(i) Advertising such position at job fairs.

''(ii) Advertising such position on the employer's external website.

''(iii) Advertising such position on job search Internet websites.

''(iv) Advertising such position using presentations or postings at vocational, career technical schools, community colleges, high schools, or other educational or training sites.

''(v) Posting such position with trade associations.

''(vi) Utilizing a search firm to seek applicants for such position.

''(vii) Advertising such position through recruitment programs with placement offices at vocational schools, career technical schools, community colleges, high schools, or other educational or training sites.

''(viii) Advertising such position through advertising or postings with local libraries, journals, or newspapers.

''(ix) Seeking a candidate for such position through an employee referral program with incentives.

''(x) Advertising such position on radio or television.

''(xi) Advertising such position through advertising, postings, or presentations with newspapers, Internet websites, job fairs, or community events targeted to constituencies designed to increase employee diversity.

''(xii) Advertising such position through career day presentations at local high schools or community organizations.

''(xiii) Providing in-house training.

''(xiv) Providing third-party training.

''(xv) Advertising such position through recruitment, educational, or other cooperative programs offered by the employer and a local economic development authority.

''(xvi) Advertising such position twice in the Sunday ads in the primary daily circulation newspaper in the area.

''(xvii) Any other recruitment activities determined to be appropriate to be added by the Commissioner.

''(3) ELIGIBLE OCCUPATION.—

''(A) IN GENERAL.—An occupation is an eligible occupation if the occupation—

''(i) is a zone 1 occupation, a zone 2 occupation, or zone 3 occupation; and

''(ii) is not an excluded occupation under subparagraph (B).

''(B) EXCLUDED OCCUPATIONS.—

''(i) OCCUPATIONS REQUIRING COLLEGE DEGREES.—An occupation that is listed in the Occupational Outlook Handbook published by the Bureau of Labor Statistics (or similar successor publication) that is classified as requiring an individual with a bachelor's degree or higher level of education may not be an eligible occupation.

''(ii) COMPUTER OCCUPATIONS.—An occupation in the field of computer operation, computer programming, or computer repair may not be an eligible occupation.

''(C) PUBLICATION.—The Secretary of Labor shall publish the eligible occupations, designated as zone 1 occupations, zone 2 occupations, or zone 3 occupations, on an on-going basis on a publicly available website.

''(4) FILLING OF VACANCIES.—If a W nonimmigrant's employment in a registered position ends, such employer may fill that vacancy—

''(A) by hiring a United States worker; or

''(B) after the 10 calendar day posting period in subsection (e)(1)(F)(iv)(III) by hiring—

''(i) a W nonimmigrant; or

''(ii) if available under subsection (g)(4), a certified alien.

''(5) PERIOD OF APPROVAL.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), a registered position shall be approved by the Secretary for a period of 3 years.

''(B) RETURNING W NONIMMIGRANTS.—

''(i) EXTENSION OF PERIOD.—A registered position shall continue to be a registered position at the end of the 3-year period referred to in subparagraph (A) if the W nonimmigrant hired for such position is the beneficiary of a petition for immigrant status filed by the registered employer pursuant to this Act or is returning to the same registered employer.

''(ii) TERMINATION OF PERIOD.—The term of a registration position extended under clause (i) shall terminate on the date that is the earlier of—

''(I) the date an application or petition by or for a W nonimmigrant to obtain immigrant status is approved or denied by the Secretary; or

''(II) the date of the termination of such W nonimmigrant's employment with the registered employer.

''(6) FEES.—

''(A) REGISTRATION FEE.—

''(i) IN GENERAL.—At the time a W nonimmigrant commences employment in the registered position for a registered employer, such employer shall pay a registration fee in an amount determined by the Secretary.

''(ii) USE OF FEE.—A fee collected under clause (i) shall be used to fund any aspect of the operation of the W Visa Program.

''(B) ADDITIONAL FEE.—

''(i) IN GENERAL.—In addition to the fee required by subparagraph (A), a registered employer, at the time a W nonimmigrant commences employment in the registered position for the registered employer, shall pay an additional fee for each such approved registered position as follows:

''(I) A fee of $1,750 for the registered position if the registered employer, at the time of filing the application for the registered position, is a small business and more than 50 percent and less than 75 percent of the employees of the registered employer are not United States workers.

''(II) A fee of $3,500 for the registered position if the registered employer, at the time of filing the application for the registered position, is a small business and more than

75 percent of the employees of the registered employer are not United States workers.

''(III) A fee of $3,500 for the registered position if the registered employer, at the time of filing the application for the registered position, is not a small business and more than 15 percent and less than 30 percent of the employees of the registered employer are not United States workers.

''(ii) USE OF FEE.—A fee collected under clause (i) shall be used to fund the operations of the Bureau.

''(C) PROHIBITION ON OTHER FEES.—A registered employer may not be required to pay an additional fee other than any fees specified in this Act if the registered employer is a small business.

''(7) PROHIBITION ON REGISTERED POSITIONS FOR CERTAIN EMPLOYERS.—The Secretary may not approve an application for a registered position for an employer if the employer is not a small business and 30 percent or more of the employees of the employer are not United States workers.

''(f) EXCLUDED GEOGRAPHIC LOCATION.—No application for a registered position filed by a registered employer for an eligible occupation may be approved if the registered position is located in a metropolitan statistical area that has an unemployment rate that is more than 8½ percent as reported in the most recent month preceding the date that the application is submitted to the Secretary unless—

''(1) the Commissioner has identified the eligible occupation as a shortage occupation; or

''(2) the Secretary approves the registered position under subsection (g)(4).

''(g) NUMERICAL LIMITATION.—

''(1) REGISTERED POSITIONS.—

''(A) IN GENERAL.—Subject to paragraphs (3) and (4), the maximum number of registered positions that may be approved by the Secretary for a year is as follows:

''(i) For the first year aliens are admitted as W nonimmigrants, 20,000.

''(ii) For the second such year, 35,000.

''(iii) For the third such year, 55,000.

''(iv) For the fourth such year, 75,000.

''(v) For each year after the fourth such year, the level calculated for that year under paragraph (2).

''(B) DATES.—The first year referred to in subparagraph (A)(i) shall begin on April 1, 2015, and end on March 31, 2016, unless the Secretary determines that such first year shall begin on October 1, 2015, and end on September 30, 2016.

''(2) YEARS AFTER YEAR 4.—

''(A) CURRENT YEAR AND PRECEDING YEAR.—In this paragraph—

''(i) the term 'current year' shall refer to the 12-month period for which the calculation of the numerical limits under this paragraph is being performed; and

''(ii) the term 'preceding year' shall refer to the 12-month period immediately preceding the current year.

''(B) NUMERICAL LIMITATION.—Subject to subparagraph (D), the number of registered positions that may be approved by the Secretary for a year after the fourth year referred to in paragraph (1)(A)(iv) shall be equal to the sum of—

''(i) the number of such registered positions available under this paragraph for the preceding year; and

''(ii) the product of—

''(I) the number of such registered positions available under this paragraph for the preceding year; multiplied by

''(II) the index for the current year calculated under subparagraph (C).

''(C) INDEX.—The index calculated under this subparagraph for a current year equals the sum of—

''(i) one-fifth of a fraction—

''(I) the numerator of which is the number of registered positions that registered employers applied to have approved under subsection (e)(1) for the preceding year minus the number of registered positions approved under subsection (e) for the preceding year; and

''(II) the denominator of which is the number of registered positions approved under subsection (e) for the preceding year;

''(ii) one-fifth of a fraction—

''(I) the numerator of which is the number of registered positions the Commissioner recommends be available under this subparagraph for the current year minus the number of registered positions available under this subsection for the preceding year; and

''(II) the denominator of which is the number of registered positions available under this subsection for the preceding year;

''(iii) three-tenths of a fraction—

''(I) the numerator of which is the number of unemployed United States workers for the preceding year minus the number of unemployed United States workers for the current year; and

''(II) the denominator of which is the number of unemployed United States workers for the preceding year; and

''(iv) three-tenths of a fraction—

''(I) the numerator of which is the number of job openings as set out in the Job Openings and Labor Turnover Survey of the Bureau of Labor Statistics for the current year minus such number of job openings for the preceding year; and

''(II) the denominator of which is the number of such job openings for the preceding year;

''(D) MINIMUM AND MAXIMUM LEVELS.—The number of registered positions calculated under subparagraph (B) for a 12-month period may not be less than 20,000 nor more than 200,000.

''(3) ADDITIONAL REGISTERED POSITIONS FOR SHORTAGE OCCUPATIONS.—In addition to the number of registered positions made available for a year under paragraph (1), the Secretary shall make available for a year an additional number of registered positions for shortage occupations in a particular metropolitan statistical area.

''(4) SPECIAL ALLOCATIONS OF REGISTERED POSITIONS.—

''(A) AUTHORITY TO MAKE AVAILABLE.—In addition to the number of registered positions made available for a year under paragraph (1) or (3), the Secretary shall make additional registered positions available for the year for a specific registered employer as described in this paragraph, if—

''(i) the maximum number of registered positions available under paragraph (1) have been approved for the year and none remain available for allocation; or

''(ii) such registered employer is located in a metropolitan statistical area that has an unemployment rate that is more than 8½ percent as reported in the most recent month preceding the date that the application is submitted to the Secretary.

''(B) RECRUITMENT.—

''(i) IN GENERAL.—Except as provided in clause (ii), an initial W nonimmigrant may only enter the United States for initial employment pursuant to a special allocation under this paragraph if the registered employer has carried out at least 7 of the recruiting activities described in subsection (e)(2)(C).

''(ii) REQUIREMENT TO RECRUIT W NONIMMIGRANTS IN THE UNITED STATES.—A registered employer may register a position pursuant to a special allocation under this paragraph by conducting at least 3 of the recruiting activities described in subsection (e)(2)(C), however a position registered pursuant to this clause may not be filled by an initial W nonimmigrant entering the United States for initial employment.

''(iii) 30 DAY POSTING.—

''(I) REQUIREMENT.—Any registered employer registering any position under the special allocation authority shall post the position, including the wage range, location, and initial date of employment, for not less than 30 days—

''(aa) on the Internet website maintained by the Secretary of Labor for the purpose of such advertising; and

''(bb) with the workforce agency of the State where the position will be located.

''(II) CONTEMPORANEOUS POSTING.—The 30 day periods required by items (aa) and (bb) of subclause (I) may occur at the same time.

''(C) WAGES.—

''(i) INITIAL W NONIMMIGRANTS.—An initial W nonimmigrant entering the United States for initial employment pursuant to a registered position made available under this paragraph may not be paid less than the greater of—

''(I) the level 4 wage set out in the Foreign Labor Certification Data Center Online Wage Library (or similar successor website) maintained by the Secretary of Labor for such occupation in that metropolitan statistical area; or

''(II) the mean of the highest two-thirds of wages surveyed for such occupation in that metropolitan statistical area.

''(ii) OTHER W NONIMMIGRANTS.—A W nonimmigrant employed in a registered position referred to in subsection (g)(4)(B)(ii) may not be paid less than the wages required under subsection (e)(1)(B)(iv).

''(D) REDUCTION OF FUTURE REGISTERED POSITIONS.—Each registered position made available for a year subject to the wage conditions of subparagraph (C)(i) shall reduce by 1 the number of registered positions made available under paragraph (g)(1) for the following year or the earliest possible year for which a registered position is available. The limitation contained in subsection (h)(4) shall not be reduced by any registered position made available under this paragraph.

''(h) ALLOCATION OF REGISTERED POSITIONS.—

''(1) IN GENERAL.—

''(A) FIRST 6-MONTH PERIOD.—The number of registered positions available for the 6-month period beginning on the first day of a year is 50 percent of the maximum number of registered positions available for such year under paragraph (1) or (2) of subsection (g). Such registered positions shall be allocated as described in this subsection.

''(B) SECOND 6-MONTH PERIOD.—The number of registered positions available for the 6-month period ending on the last day of a year is the maximum number of registered positions available for such year under paragraph (1) or (2) of subsection (g) minus the number of registered positions approved during the 6-month period referred to in subsection (A). Such registered positions shall be allocated as described in this subsection.

''(2) SHORTAGE OCCUPATIONS.—

''(A) IN GENERAL.—For the first month of each 6-month period referred to in subparagraph (A) or (B) of paragraph (1) a registered position may not be created in an occupation that is not a shortage occupation.

''(B) INITIAL DESIGNATIONS.—Subparagraph (A) shall not apply in any period for which the Commissioner has not designated any shortage occupations.

''(3) SMALL BUSINESSES.—During the second, third, and fourth months of each 6-month period referred to in subparagraph (A) or (B) of paragraph (1), one-third of the number of registered positions allocated for such period shall be approved only for a registered employer that is a small business. Any such registered positions not approved for such

small businesses during such months shall be available for any registered employer during the last 2 months of each such 6-month period.

''(4) ANIMAL PRODUCTION SUBSECTORS.—In addition to the number of registered positions made available for a year under paragraph (1) or (3) of such section (g), the Secretary shall make additional registered positions available for the year for occupations designated by the Secretary of Labor as Animal Production Subsectors. The numerical limitation for such additional registered positions shall be no more than 10 percent of the annual numerical limitation provided for in such paragraph (1).

''(5) LIMITATION FOR CONSTRUCTION OCCUPATIONS.—

''(A) IN GENERAL.—Subject to subparagraph (B), not more than 33 percent of the registered positions made available under paragraph (1) or (2) of subsection (g) for a year may be granted to perform work in a construction occupation.

''(B) MAXIMUM LEVEL.—Notwithstanding subparagraph (A), the number of registered positions granted to perform work in a construction occupation under subsection (g)(1) may not exceed 15,000 for a year and 7,500 for any 6-month period.

''(C) PROHIBITION FOR OCCUPATIONS WITH HIGH UNEMPLOYMENT.—

''(i) IN GENERAL.—A registered employer may not hire a certified alien for a registered position to perform work in a construction occupation if the unemployment rate for construction occupations in the corresponding occupational job zone in that metropolitan statistical area was more than 8½ percent.

''(ii) DETERMINATION OF UNEMPLOYMENT RATE.—The unemployment rate used in clause (i) shall be determined—

''(I) using the most recent survey taken by the Bureau; or

''(II) if a survey referred to in subclause (I) is not available, using a recent and legitimate private survey.

''(i) PORTABILITY.—A W nonimmigrant who is admitted to the United States for employment by a registered employer may—

''(1) terminate such employment for any reason; and

''(2) seek and accept employment with another registered employer in any other registered position within the terms and conditions of the W nonimmigrant's visa.

''(j) PROMOTION.—A registered employer may promote a W nonimmigrant if the W nonimmigrant has been employed with that employer for a period of not less than 12 months. Such a promotion shall not increase the total number of registered positions available to that employer.

''(k) PROHIBITION ON OUTPLACEMENT.—A registered employer may not place, outsource, lease, or otherwise contract for the services or placement of a W nonimmigrant employee with another employer if more than 15 percent of the employees of the registered employer are W nonimmigrants.

''(l) W NONIMMIGRANT PROTECTIONS.—

''(1) APPLICABILITY OF LAWS.—A W nonimmigrant shall not be denied any right or any remedy under Federal, State, or local labor or employment law that would be applicable to a United States worker employed in a similar position with the employer because of the alien's status as a nonimmigrant worker.

''(2) WAIVER OF RIGHTS PROHIBITED.—

''(A) IN GENERAL.—A W nonimmigrant may not be required to waive any substantive rights or protections under this Act.

''(B) CONSTRUCTION.—Nothing under this paragraph may be construed to affect the interpretation of any other law.

''(3) PROHIBITION ON TREATMENT AS INDEPENDENT CONTRACTORS.—

''(A) IN GENERAL.—Notwithstanding any other provision of law—

''(i) a W nonimmigrant is prohibited from being treated as an independent contractor under any Federal or State law; and

''(ii) no person, including an employer or labor contractor and any persons who are affiliated with or contract with an employer or labor contractor, may treat a W nonimmigrant as an independent contractor.

''(B) CONSTRUCTION.—Subparagraph (A) may not be construed to prevent registered employers who operate as independent contractors from employing W nonimmigrants.

''(4) PAYMENT OF FEES.—

''(A) IN GENERAL.—A fee related to the hiring of a W nonimmigrant required to be paid by an employer under this Act shall be paid by the employer and may not be deducted from the wages or other compensation paid to a W nonimmigrant.

''(B) EXCLUDED COSTS.—The cost of round trip transportation from a certified alien's home to the location of a registered position and the cost of obtaining a foreign passport are not fees required to be paid by the employer.

''(5) TAX RESPONSIBILITIES.—An employer shall comply with all applicable Federal, State, and local tax laws with respect to each W nonimmigrant employed by the employer.

''(6) PROHIBITED ACTIVITIES.—It shall be unlawful for an employer of a W nonimmigrant to intimidate, threaten, restrain, coerce, retaliate, discharge, or in any other manner, discriminate against an employee or former employee because the employee or former employee—

''(A) discloses information to the employer or any other person that the employee or former employee reasonably believes demonstrates a violation of this section; or

''(B) cooperates or seeks to cooperate in an investigation or other proceeding concerning compliance with the requirements of this section.

''(m) COMPLAINT PROCESS.—The Secretary shall establish a process for the receipt, investigation, and disposition of complaints by an aggrieved applicant, employee, or nonimmigrant (or a person acting on behalf of such applicant, employee, or nonimmigrant) with respect to—

''(1) the failure of a registered employer to meet a condition of this section; or

''(2) the lay off or nonhiring of a United States worker as prohibited under this section.

''(n) ENFORCEMENT.—

''(1) IN GENERAL.—The Secretary shall promulgate regulations for the receipt, investigation, and disposition of complaints by an aggrieved W nonimmigrant respecting a violation of this section.

''(2) FILING DEADLINE.—No investigation or hearing shall be conducted on a complaint concerning a violation under this section unless the complaint was filed not later than 6 months after the date of such violation.

''(3) REASONABLE BASIS.—The Secretary shall conduct an investigation under this subsection if there is reasonable basis to believe that a violation of this section has occurred. The process established under this subsection shall provide that, not later than 30 days after a complaint is filed, the Secretary shall determine if there is reasonable cause to find such a violation.

''(4) NOTICE AND HEARING.—

''(A) IN GENERAL.—Not later than 60 days after the Secretary makes a determination of reasonable basis under paragraph (3), the Secretary shall issue a notice to the interested parties and offer an opportunity for a hearing on the complaint, in accordance with section 556 of title 5, United States Code.

''(B) HEARING DEADLINE.—Not later than 60 days after the date of a hearing under this paragraph, the Secretary shall make a finding on the matter.

''(5) ATTORNEY'S FEES.—

''(A) AWARD.—A complainant who prevails in an action under this subsection with respect to a claim related to wages or compensation for employment, or a claim for a violation of subsection (l) or (m), shall be entitled to an award of reasonable attorney's fees and costs.

''(B) FRIVOLOUS COMPLAINTS.—A complainant who files a frivolous complaint for an improper purpose under this subsection shall be liable for the reasonable attorney's fees and costs of the person named in the complaint.

''(6) POWER OF THE SECRETARY.—The Secretary may bring an action in any court of competent jurisdiction—

''(A) to seek remedial action, including injunctive relief;

''(B) to recover the damages described in this subsection and subsection (o); or

''(C) to ensure compliance with terms and conditions described in subsection (l)(6).

''(7) OTHER RIGHTS OF EMPLOYEES.—The rights and remedies provided to W nonimmigrants under this section are in addition to any other contractual or statutory rights and remedies of the workers, and are not intended to alter or affect such rights and remedies.

''(o) PENALTIES.—

''(1) IN GENERAL.—If, after notice and an opportunity for a hearing, the Secretary finds a violation of this section, the Secretary may impose administrative remedies and penalties, including—

''(A) back wages;

''(B) benefits; and

''(C) civil monetary penalties.

''(2) CIVIL PENALTIES.—The Secretary may impose, as a civil penalty—

''(A) for a violation of this subsection—

''(i) a fine in an amount not more than $2,000 per violation per affected worker and $4,000 per violation per affected worker for each subsequent violation;

''(ii) if the violation was willful, a fine in an amount not more than $5,000 per violation per affected worker; and

''(iii) if the violation was willful and if in the course of such violation a United States worker was harmed, a fine in an amount not more than $25,000 per violation per affected worker; or

''(B) for knowingly failing to materially comply with the terms of representations made in petitions, applications, certifications, or attestations under this section—

''(i) a fine in an amount not more than $4,000 per aggrieved worker; and

''(ii) upon the occasion of a third offense of failure to comply with representations, a fine in an amount not to exceed $5,000 per affected worker and designation as an ineligible employer, recruiter, or broker for purposes of any immigrant or nonimmigrant program.

''(3) CRIMINAL PENALTY.—Any person who knowingly misrepresents the number of full-time equivalent employees of an employer or the number of employees of a person who are United States workers for the purpose of reducing a fee under subsection (e)(6) or avoiding the limitation in subsection (e)(7), shall be fined in accordance with title 18, United States Code, in an amount up to $25,000 or imprisoned not more than 1 year, or both.

''(p) MONITORING.—

''(1) REQUIREMENT TO MONITOR.—The Secretary shall monitor the movement of W nonimmigrants in registered positions through—

''(A) the Employment Verification System described in section 274A(d); and

''(B) the electronic monitoring system described in paragraph (2).

''(2) ELECTRONIC MONITORING SYSTEM.—

''(A) REQUIREMENT FOR SYSTEM.—The Secretary, through U.S. Citizenship and Immigration Services, shall implement an electronic monitoring system to monitor presence and employment of W nonimmigrants, including a requirement that registered employers update the system when W nonimmigrants start and end employment in registered positions.

''(B) SYSTEM DESCRIPTION.—Such system shall be modeled on the Student and Exchange Visitor Information System (SEVIS) and SEVIS II tracking system of U.S. Immigration and Customs Enforcement.

''(C) INTERACTION WITH REGISTRY.—Such system shall interact with the registry referred to in subsection (e)(1)(F) to ensure that the Secretary designates and updates approved registered positions as being filled or unfilled.''.

(b) TABLE OF CONTENTS AMENDMENT.—The table of contents in the first section (8 U.S.C. 1101 et seq.) is amended by adding after the item relating to section 219 the following:

''Sec. 220. Admission of W nonimmigrant workers.''.

Subtitle H—Investing in New Venture, Entrepreneurial Startups, and Technologies

SEC. 4801. NONIMMIGRANT INVEST VISAS.

(a) INVEST NONIMMIGRANT CATEGORY.—Section 101(a)(15) (8 U.S.C. 1101(a)(15)), as amended by sections 2231, 2308, 2309, 3201, 4402, 4504, 4601, and 4702, is further amended by inserting after subparagraph (W) the following:

''(X) in accordance with the definitions in section 203(b)(6)(A), a qualified entrepreneur who has demonstrated that, during the 3-year period ending on the date on which the alien filed an initial petition for nonimmigrant status described in this clause—

''(i) a qualified venture capitalist, a qualified super angel investor, a qualified government entity, a qualified community development financial institution, qualified startup accelerator, or such other type of entity or investors, as determined by the Secretary, or any combination of such entities or investors, has made a qualified investment or combination of qualified investments of not less than $100,000 in total in the alien's United States business entity; or

''(ii) the alien's United States business entity has created no fewer than 3 qualified jobs and during the 2-year period ending on such date has generated not less than $250,000 in annual revenue arising from business conducted in the United States; or''.

(b) ADMISSION OF INVEST NONIMMIGRANTS.—Section 214 (8 U.S.C. 1184), as amended by sections 3608, 4232, 4405, 4503, 4504, 4602, 4605, and 4606, is further amended by adding at the end the following:

''(aa) INVEST NONIMMIGRANT VISAS.—

''(1) DEFINITIONS.—The definitions in section 203(b)(6)(A) apply to this subsection.

''(2) INITIAL PERIOD OF AUTHORIZED ADMISSION.—The initial period of authorized status as a nonimmigrant described in section 101(a)(15)(X) shall be for an initial 3-year period.

''(3) RENEWAL OF ADMISSION.—Subject to paragraph (4), the initial period of authorized nonimmigrant status described in paragraph (2) may be renewed for additional 3-year periods if during the most recent 3-year period that the alien was granted such status—

''(A) the alien's United States business entity has created no fewer than 3 qualified jobs and a qualified venture capitalist, a qualified super angel investor, a qualified government entity, a qualified community development financial institution, qualified startup accelerator, or such other type of entity or investors, as determined by the Secretary, or any combination of such entities or investors, has made a qualified investment or combination of qualified investments of not less than $250,000 in total to the alien's United States business entity; or

''(B) the alien's United States business entity has created no fewer than 3 qualified jobs and, during the 2-year period ending on the date that the alien petitioned for an extension, has generated not less than $250,000 in annual revenue arising from business conducted within the United States.

''(4) WAIVER OF RENEWAL REQUIREMENTS.—The Secretary may renew an alien's status as a nonimmigrant described in section 101(a)(15)(X) for not more than 1 year at a time, up to an aggregate of 2 years if the alien—

''(A) does not meet the criteria under paragraph (3); and

''(B) meets the criteria established by the Secretary, in consultation with the Secretary of Commerce, for approving renewals under this subsection, which shall include a finding that—

''(i) the alien has made substantial progress in meeting such criteria; and

''(ii) such renewal is economically beneficial to the United States.

''(5) ATTESTATION.—The Secretary may require an alien seeking status as a nonimmigrant described in section 101(a)(15)(X) to attest, under penalty of perjury, that the alien meets the application criteria.

''(6) X–1 VISA FEE.—In addition to processing fees, the Secretary shall collect a $1,000 fee from each nonimmigrant admitted under section 101(a)(15)(X). Fees collected under this paragraph shall be deposited into the Comprehensive Immigration Reform Trust Fund established under section 6(a)(1) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996.''.

SEC. 4802. INVEST IMMIGRANT VISA.

Section 203(b) (8 U.S.C. 1153(b)) is amended—

(1) by redesignating paragraph (6) as paragraph (7); and

(2) by inserting after paragraph (5) the following:

''(6) INVEST IMMIGRANTS.—

''(A) DEFINITIONS.—In this paragraph, section 101(a)(15)(X), and section 214(s):

''(i) QUALIFIED COMMUNITY DEVELOPMENT FINANCIAL INSTITUTION.—The term 'qualified community development financial institution' is defined as provided under section 1805.201 45D(c) of title 12, Code of Federal Regulations, or any similar successor regulations.

''(ii) QUALIFIED ENTREPRENEUR.—The term 'qualified entrepreneur' means an individual who—

''(I) has a significant ownership interest, which need not constitute a majority interest, in a United States business entity;

''(II) is employed in a senior executive position of such United States business entity;

''(III) submits a business plan to U.S. Citizenship and Immigration Services; and

''(IV) had a substantial role in the founding or early-stage growth and development of such United States business entity.

''(iii) QUALIFIED GOVERNMENT ENTITY.—The term 'qualified government entity' means an agency or instrumentality of the United States or of a State, local, or tribal government.

''(iv) QUALIFIED INVESTMENT.—The term 'qualified investment'—

''(I) means an investment in a qualified entrepreneur's United States business entity that is—

''(aa) a purchase from the United States business entity or equity or convertible debt issued by such entity;

''(bb) a secured loan;

''(cc) a convertible debt note;

''(dd) a public securities offering;

''(ee) a research and development award from a qualified government entity to the United States entity;

''(ff) other investment determined appropriate by the Secretary; or

''(gg) a combination of the investments described in items (aa) through (ff); and

''(II) may not include an investment from such qualified entrepreneur, the parents, spouse, son, or daughter of such qualified entrepreneur, or from any corporation, company, association, firm, partnership, society, or joint stock company over which such qualified entrepreneur has a substantial ownership interest.

''(v) QUALIFIED JOB.—The term 'qualified job' means a full-time position of a United States business entity owned by a qualified entrepreneur that—

''(I) is located in the United States;

''(II) has been filled for at least 2 years by an individual who is not the qualified entrepreneur or the spouse, son, or daughter of the qualified entrepreneur; and

''(III) pays a wage that is not less than 250 percent of the Federal minimum wage.

''(vi) QUALIFIED STARTUP ACCELERATOR.—The term 'qualified startup accelerator' means a corporation, company, association, firm, partnership, society, or joint stock company that—

''(I) is organized under the laws of the United States or any State and conducts business in the United States;

''(II) in the ordinary course of business, provides a program of training, mentorship, and logistical support to assist entrepreneurs in growing their businesses;

''(III) is managed by individuals, the majority of whom are citizens of the United States or aliens lawfully admitted for permanent residence;

''(IV)(aa) regularly acquires an equity interest in companies that participate in its programs, where the majority of the capital so invested is committed from individuals who are United States citizens or aliens lawfully admitted for permanent residence, or from entities organized under the laws of the United States or any State; or

''(bb) is an entity that has received not less than $250,000 in funding from a qualified government entity or entities during the previous 5 years and regularly makes grants to companies that participate in its programs (in which case, such grant shall be treated as a qualified investment for purposes of clause (iv));

''(V) during the previous 5 years, has acquired an equity interest in, or, in the case of an entity described in subclause (IV)(bb), regularly made grants to, not fewer than 10 United States business entities that have participated in its programs and that have—

''(aa) each secured at least $100,000 in initial investments; or

''(bb) during any 2-year period following the date of such acquisition, generated not less than $500,000 in aggregate annual revenue within the United States;

''(VI) has its primary location in the United States; and

''(VII) satisfies such other criteria as may be established by the Secretary.

''(vii) QUALIFIED SUPER ANGEL INVESTOR.—The term 'qualified super angel investor' means an individual or organized group of individuals investing directly or through a legal entity—

''(I) each of whom is an accredited investor, as defined in section 230.501(a) of title 17, Code of Federal Regulations, or any similar

successor regulation, investing the funds owned by such individual or organized group in a qualified entrepreneur's United States business entity;

''(II)(aa) if an individual, is a citizen of the United States or an alien lawfully admitted for permanent residence; or

''(bb) if an organized group or legal entity, a majority of the individuals investing through such group or entity are citizens of the United States or aliens lawfully admitted for permanent residence; and

''(III) each of whom in the previous 3 years has made qualified investments in a total amount determined to be appropriate by the Secretary, that is not less than $50,000, in United States business entities which are less than 5 years old.

''(viii) QUALIFIED VENTURE CAPITALIST.—The term 'qualified venture capitalist' means an entity—

''(I) that—

''(aa) is a venture capital operating company (as defined in section 2510.3–101(d) of title 29, Code of Federal Regulations (or any successor to such regulation)); or

''(bb) has management rights, as defined in, and to the extent required by, such section 2510.3–101(d) (or successor regulation), in its portfolio companies;

''(II) that has capital commitments of not less than $10,000,000; and

''(III) the investment adviser, that is registered under the Investment Advisers Act of 1940 (15 U.S.C. 80b–2), for which—

''(aa) has its primary office location in the United States;

''(bb) is owned, directly or indirectly, by individuals, the majority of whom are citizens of the United States or aliens lawfully admitted for permanent residence in the United States;

''(cc) has been advising such entity or other similar funds or entities for at least 2 years; and

''(dd) has advised such entity or a similar fund or entity with respect to at least 2 investments of not less than $500,000 made by such entity or similar fund or entity during each of the most recent 2 years.

''(ix) SECRETARY.—Except as otherwise specifically provided, the term 'Secretary' means the Secretary of Homeland Security.

''(x) SENIOR EXECUTIVE POSITION.—The term 'senior executive position' includes the position of chief executive officer, chief technology officer, and chief operating officer.

''(xi) UNITED STATES BUSINESS ENTITY.—The term 'United States business entity' means any corporation, company, association, firm, partnership, society, or joint stock company that is organized under the laws of the United States or any State and that conducts business in the United States that is not—

''(I) a private fund, as defined in 202(a) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–2);

''(II) a commodity pool, as defined in section 1a of the Commodity Exchange Act (7 U.S.C. 1a);

''(III) an investment company, as defined in section 3 of the Investment Company Act of 1940 (15 U.S.C. 80a–3); or

''(IV) an issuer that would be an investment company but for an exemption provided in—

''(aa) section 3(c) of the Investment Company Act of 1940 (15 U.S.C. 80a–3(c); or

''(bb) section 270.3a–7 of title 17 of the Code of Federal Regulations or any similar successor regulation.

''(B) IN GENERAL.—Visas shall be available, in a number not to exceed 10,000 for each fiscal year, to qualified immigrants seeking to enter the United States for the purpose of creating new businesses, as described in this paragraph.

''(C) ELIGIBILITY.—An alien is eligible for a visa under this paragraph if—

''(i)(I) the alien is a qualified entrepreneur;

''(II) the alien maintained valid nonimmigrant status in the United States for at least 2 years;

''(III) during the 3-year period ending on the date the alien files an initial petition for such status under this section—

''(aa)(AA) the alien has a significant ownership in a United States business entity that has created no fewer than 5 qualified jobs; and

''(BB) a qualified venture capitalist, a qualified super angel investor, a qualified government entity, a qualified community development financial institution, qualified startup accelerator, or such other entity or type of investors, as determined by the Secretary, or any combination of such entities or investors, has devoted a qualified investment or combination of qualified investments of not less than $500,000 in total to the alien's United States business entity; or

''(bb)(AA) the alien has a significant ownership interest in a United States business entity that has created no fewer than 5 qualified jobs; and

''(BB) during the 2-year period ending on such date has generated not less than $750,000 in annual revenue within the United States; and

''(IV) no more than 2 other aliens have received nonimmigrant status under this section on the basis of an alien's ownership of such United States business entity;

''(ii)(I) the alien is a qualified entrepreneur;

''(II) the alien maintained valid nonimmigrant status in the United States for at least 3 years prior to the date of filing an application for such status;

''(III) the alien holds an advanced degree in a field of science, technology, engineering, or mathematics, approved by the Secretary; and

''(IV) during the 3-year period ending on the date the alien files an initial petition for such status under this section—

''(aa)(AA) the alien has a significant ownership interest in a United States business entity that has created no fewer than 4 qualified jobs; and

''(BB) a qualified venture capitalist, a qualified super angel investor, a qualified government entity, a qualified community development financial institution, qualified startup accelerator, or such other entity or type of investors, as determined by the Secretary, or any combination of such entities or investors, has devoted a qualified investment or combination of qualified investments of not less than $500,000 in total to the alien's United States business entity; or

''(bb)(AA) the alien has a significant ownership interest in a United States business entity that has created no fewer than 3 qualified jobs; and

''(BB) during the 2-year period ending on such date has generated not less than $500,000 in annual revenue within the United States; and

''(V) no more than 3 other aliens have received nonimmigrant status under this section on the basis of an alien's ownership of such United States business entity.

''(D) ATTESTATION.—The Secretary may require an alien seeking a visa under this paragraph to attest, under penalties of perjury, to the alien's qualifications.''.

SEC. 4803. ADMINISTRATION AND OVERSIGHT.

(a) REGULATIONS.—Not later than 16 months after the date of the enactment of this Act, the Secretary, in consultation with the Secretary of Commerce, the Administrator of the Small Business Administration, and other heads of other relevant Federal agencies and departments, shall promulgate regulations to carry out the amendments made by this subtitle. Such regulations shall ensure that such amendments are implemented in a manner that is consistent with the protection of national security and promotion of United States economic growth, job creation, and competitiveness.

(b) MODIFICATION OF DOLLAR AMOUNTS.—

(1) IN GENERAL.—The Secretary may from time to time prescribe regulations increasing or decreasing any dollar amount specified in section 203(b)(6) of the Immigration and Nationality Act, as added by section 4802, section 101(a)(15)(X) of such Act, as added by section 4801, or section 214(s), as added by section 4801.

(2) AUTOMATIC ADJUSTMENT.—Unless a dollar amount referred to in paragraph (1) is adjusted by the Secretary under paragraph (1), such dollar amount shall automatically adjust on January 1, 2016, by the percentage change in the Consumer Price Index (CPI–U) during fiscal year 2015, and on every fifth subsequent January 1 by the percentage change in the CPI–U during the previous 5 fiscal years, for any petition filed to classify an alien under this paragraph on or after the date of each automatic adjustment.

(c) OTHER AUTHORITY.—The Secretary, in the Secretary's unreviewable discretion, may deny or revoke the approval of a petition seeking classification of an alien under paragraph (6) of section 203(b) of the Immigration and Nationality Act, as added by section 4802, or any other petition, application, or benefit based upon the previous or concurrent filing or approval of a petition for classification of an alien under such paragraph (6), if the Secretary determines, in the Secretary's sole and unreviewable discretion, that the approval or continuation of such petition, application, or benefit is contrary to the national interest of the United States or for other good cause.

(d) REPORTS.—Once every 3 years, the Secretary shall submit to Congress a report on this subtitle and the amendments made by this subtitle. Each such report shall include—

(1) the number and percentage of entrepreneurs able to meet thresholds for nonimmigrant renewal and adjustment to green card status under the amendments made by this subtitle;

(2) an analysis of the program's economic impact including job and revenue creation, increased investments and growth within business sectors and regions;

(3) a description and breakdown of types of businesses that entrepreneurs granted nonimmigrant or immigrant status are creating;

(4) for each report following the Secretary's initial report submitted under this subsection, a description of the percentage of the businesses initially created by the entrepreneurs granted immigrant and nonimmigrant status under this subtitle and the amendments made by this subtitle, that are still in operation; and

(5) any recommendations for improving the program established by this subtitle and the amendments made by this subtitle.

SEC. 4804. PERMANENT AUTHORIZATION OF EB–5 REGIONAL CENTER PROGRAM.

(a) REPEAL.—Section 610 of the Departments of Commerce, Justice, and State, the Judiciary, and Related Agencies Appropriations Act, 1993 (8 U.S.C. 1153 note) is repealed.

(b) AUTHORIZATION.—Section 203(b)(5) (8 U.S.C. 1153(b)(5)) is amended by adding at the end the following:

''(E) REGIONAL CENTER PROGRAM.—

''(i) IN GENERAL.—Visas under this paragraph shall be made available to qualified immigrants participating in a program implementing this paragraph that involves a

regional center in the United States, which has been designated by the Secretary of Homeland Security, in consultation with the Secretary of Commerce, on the basis of a general proposal for the promotion of economic growth, including—

''(I) increased export sales;

''(II) improved regional productivity;

''(III) job creation; or

''(IV) increased domestic capital investment.

''(ii) ESTABLISHMENT OF A REGIONAL CENTER.—A regional center shall have jurisdiction over a defined geographic area, which shall be described in the proposal and consistent with the purpose of concentrating pooled investment in defined economic zones. The establishment of a regional center may be based on general predictions, contained in the proposal, concerning—

''(I) the kinds of commercial enterprises that will receive investments from aliens;

''(II) the jobs that will be created directly or indirectly as a result of such investments; and

''(III) other positive economic effects such investments will have.

''(iii) COMPLIANCE.—In determining compliance with subparagraph (A)(ii), the Secretary of Homeland Security shall permit aliens admitted under the program described in this subparagraph to establish reasonable methodologies for determining the number of jobs created by the program, including jobs estimated to have been created indirectly through—

''(I) revenues generated from increased exports, improved regional productivity, job creation; or

''(II) increased domestic capital investment resulting from the program, including jobs created outside of the geographic boundary of the regional center as a result of the immigrant's investment in regional center-affiliated commercial enterprises.

''(iv) INDIRECT JOB CREATION.—The Secretary shall permit immigrants admitted under this paragraph to satisfy the requirements under subparagraph (A)(ii) with jobs that are estimated to be created indirectly through investment under this paragraph in accordance with this subparagraph.

''(F) PREAPPROVAL OF BUSINESS PLANS FOR REGIONAL CENTER INVESTMENTS.—

''(i) PETITION.—Before the filing of a petition under this subparagraph by an alien investor, a commercial enterprise affiliated with a regional center may file a petition with the Secretary of Homeland Security to preapprove a particular investment in the commercial enterprise, as provided in—

''(I) a business plan for a specific capital investment project;

''(II) investment documents, such as subscription, investment, partnership, and operating agreements; and

''(III) a credible economic analysis regarding estimated job creation that is based upon reasonable methodologies.

''(ii) PREAPPROVAL PROCEDURE.—The Secretary shall establish a process to facilitate the preapproval of business plans under this subparagraph related to investment in a regional center commercial enterprise, which shall include an opportunity for the applicant to address and cure any deficiencies identified by the Secretary in the applicant's business plan, investment documents, or statement regarding job creation prior to a final determination. The Secretary shall impose a fee for the use of the process described in this clause sufficient to recover the costs of its administration.

''(iii) EFFECT OF PREAPPROVAL OF BUSINESS PLAN FOR INVESTMENT IN REGIONAL CENTER COMMERCIAL ENTERPRISE.—The preapproval of a petition under this subparagraph shall be binding for purposes of the adjudication of petitions filed under this subparagraph by immigrants investing in the commercial enterprise unless the Secretary determines that there is evidence of fraud, misrepresentation, criminal misuse, a threat to national security, or other evidence affecting program eligibility that was not disclosed by the petitioner during the preapproval process.

''(iv) EXPEDITED PROCESSING OPTION FOR ALIEN INVESTOR PETITIONS AFFILIATED WITH PREAPPROVED BUSINESS PLANS.—The Secretary may establish a premium processing option for alien investors who are investing in a commercial enterprise that has received preapproval under this subparagraph and may impose a fee for the use of that option sufficient to recover all costs of the option.

''(v) CONSIDERATION OF CRIMINAL ACTIVITY IN ESTABLISHING ELIGIBILITY CRITERIA.—The Secretary shall consider the potential for fraud, misrepresentation, criminal misuse, and threats to national security in establishing eligibility criteria for any program the Secretary may establish under this subparagraph.

''(G) REGIONAL CENTER FINANCIAL STATEMENTS.—

''(i) IN GENERAL.—Each regional center designated under subparagraph (E) shall annually submit, to the Director of U.S. Citizenship and Immigration Services (referred to in this subparagraph as the 'Director'), in a manner prescribed by the Secretary of Homeland Security, financial statements, including—

''(I) an accounting of all foreign investor money invested through the regional center; and

''(II) for each capital investment project—

''(aa) an accounting of the aggregate capital invested through the regional center or affiliated commercial enterprises by immigrants under this paragraph;

''(bb) a description of how such funds are being used to execute the approved business plan;

''(cc) evidence that 100 percent of such investor funds have been dedicated to the project;

''(dd) detailed evidence of the progress made toward the completion of the project;

''(ee) an accounting of the aggregate direct and indirect jobs created or preserved; and

''(ff) a certification by the regional center that such statements are accurate.

''(ii) AMENDMENT OF FINANCIAL STATEMENTS.—If the Director determines that a financial statement required under clause (i) is deficient, the Director may require the regional center to amend or supplement such financial statement.

''(iii) SANCTIONS.—

''(I) EFFECT OF VIOLATION.—If the Director determines, after reviewing the financial statements submitted under clause (i), that a regional center, director, or other individual involved with a regional center (other than an alien investor) has violated any requirement under clause (i) or that the regional center is conducting itself in a manner inconsistent with its designation, the Director may sanction the violating entity or individual under subclause (II).

''(II) AUTHORIZED SANCTIONS.—The Director shall establish a graduated set of sanctions for violations referred to in subclause (I), including—

''(aa) fines equal to not more than 5 percent of the total capital invested by immigrant investors in the commercial enterprise's approved business plan;

''(bb) temporary suspension from participation in the program described in subparagraph (E), which may be lifted by the Director if the individual or entity cures the alleged violation after being provided such an opportunity by the Director;

''(cc) permanent bar from program participation for 1 or more individuals affiliated with the regional center; and

''(dd) termination of regional center status.

''(H) BONA FIDES OF PERSONS INVOLVED IN REGIONAL CENTERS.—

''(i) IN GENERAL.—No person shall be permitted by any regional center to be involved with the regional center as its principal, representative, administrator, owner, officer, board member, manager, executive, general partner, fiduciary, marketer, promoter, or other similar position of substantive authority for the operations, management or promotion of the regional center if the Secretary of Homeland Security—

''(I) determines such person has been found liable within the previous 5 years for any criminal or civil violation of any law relating to fraud or deceit, or at any time if such violation involved a criminal conviction with a term of imprisonment of at least 1 year or a criminal or civil violation of any law or agency regulation in connection with the purchase or sale of a security; or

''(II) knows or has reasonable cause to believe that the person is engaged in, has ever been engaged in, or seeks to engage in any—

''(aa) illicit trafficking in any controlled substance;

''(bb) activity relating to espionage or sabotage;

''(cc) activity related to money laundering (as described in section 1956 or 1957 of title 18, United States Code);

''(dd) terrorist activity (as defined in clauses (iii) and (iv) of section 212(a)(3)(B));

''(ee) human trafficking or human rights offense; or

''(ff) violation of any statute, regulation, or Executive Order regarding foreign financial transactions or foreign asset control.

''(ii) INFORMATION REQUIRED.—The Secretary shall require such attestations and information, including, the submission of fingerprints to the Federal Bureau of Investigation, and shall perform such criminal record checks and other background checks with respect to a regional center, and persons involved in a regional center as described in clause (i), as the Secretary considers appropriate to determine whether the regional center is in compliance with clause (i). The Secretary may require the information and attestations described in this clause from such regional center, and any person involved in the regional center, at any time on or after the date of the enactment of the Border Security, Economic Opportunity, and Immigration Modernization Act.

''(iii) TERMINATION.—The Secretary is authorized, in his or her unreviewable discretion, to terminate any regional center from the program under this paragraph if he or she determines that—

''(I) the regional center is in violation of clause (i);

''(II) the regional center or any person involved with the regional center has provided any false attestation or information under clause (ii);

''(III) the regional center or any person involved with the regional center fails to provide an attestation or information requested by the Secretary under clause (ii); or

''(IV) the regional center or any person involved with the regional center is engaged in fraud, misrepresentation, criminal misuse, or threats to national security.

''(I) REGIONAL CENTER COMPLIANCE WITH SECURITIES LAWS.—

''(i) CERTIFICATION REQUIRED.—The Secretary of Homeland Security shall not approve an application for regional center designation or regional center amendment that does not certify that the regional center and, to the best knowledge of the applicant, all

parties to the regional center are in, and will maintain, compliance with the securities laws of the United States.

''(ii) TERMINATION OR SUSPENSION.—The Secretary shall terminate the designation of any regional center that does not provide the certification described in subclause (i) on an annual basis. In addition to any other authority provided to the Secretary regarding the regional center program described in subparagraph (E), the Secretary may, in his or her unreviewable discretion, suspend or terminate the designation of any regional center if he or she determines that the regional center or any party to the regional center—

''(I) is permanently or temporarily enjoined by order, judgment, or decree of any court of competent jurisdiction in connection with the purchase or sale of a security;

''(II) is subject to any final order of the Securities and Exchange Commission that—

''(aa) bars such person from association with an entity regulated by the Securities and Exchange Commission; or

''(bb) constitutes a final order based on violations in connection with the purchase or sale of a security; or

''(III) knowingly submitted or caused to be submitted a certification described in clause (i) that contained an untrue statement of a material fact or omitted to state a material fact necessary in order to make the statements made, in the light of the circumstances under which they were made, not misleading.

''(iii) SAVINGS PROVISION.—Nothing in this subparagraph may be construed to impair or limit the authority of the Securities and Exchange Commission under the Federal securities laws.

''(iv) DEFINED TERM.—For the purpose of this subparagraph, the term 'party to the regional center' shall include the regional center, its agents, employees, and attorneys, and any persons in active concert or participation with the regional center.

''(J) DENIAL OR REVOCATION.—If the Secretary of Homeland Security determines, in his or her unreviewable discretion, that the approval of a petition, application, or benefit described in this subparagraph is contrary to the national interest of the United States for reasons relating to fraud, misrepresentation, criminal misuse, or threats to national security, the Secretary may deny or revoke the approval of—

''(i) a petition seeking classification of an alien as an alien investor under this paragraph;

''(ii) a petition to remove conditions under section 216A before granting lawful permanent resident status or any other petition, application, or benefit based upon the previous or concurrent filing or approval of a petition for classification of an alien under this paragraph; or

''(iii) an application for designation as a regional center.''.

(c) ASSISTANCE BY THE SECRETARY OF COMMERCE.—

(1) IN GENERAL.—The Secretary of Commerce, upon the request of the Secretary, shall provide consultation assistance for determining whether—

(A) a proposed regional center should be designated, terminated, or subject to other adjudicative action; or

(B) a petitioner or applicant for a benefit under section 203(b)(5) of the Immigration and Nationality Act, as amended by subsection (b), has met the requirements under such paragraph with respect to job creation.

(2) RULEMAKING.—The Secretary and the Secretary of Commerce may each adopt such rules and regulations as are necessary to carry out the consultation process provided for in paragraph (1).

(3) SAVINGS PROVISION.—Nothing in this subsection shall be construed to require consultation with the Secretary of Commerce to continue the designation of a regional center approved before the date of the enactment of this Act.

(d) EFFECTIVE DATE.—The amendments made by this section—

(1) shall be effective upon the enactment of this Act; and

(2) shall apply to—

(A) any application to designate a regional center, and any person involved with the regional center, that is pending or approved on or after the date of the enactment of this Act; and

(B) any regional center approved before the date of the enactment of this Act, on or after a delayed effective date that is 1 year after such date of enactment with respect to any person involved in the regional center on or after such delayed effective date.

SEC. 4805. CONDITIONAL PERMANENT RESIDENT STATUS FOR CERTAIN EMPLOYMENT-BASED IMMIGRANTS, SPOUSES, AND CHILDREN.

(a) IN GENERAL.—Section 216A (8 U.S.C. 1186b) is amended to read as follows:

''SEC. 216A. CONDITIONAL PERMANENT RESIDENT STATUS FOR CERTAIN EMPLOYMENT-BASED IMMIGRANTS, SPOUSES, AND CHILDREN.

''(a) IN GENERAL.—

''(1) CONDITIONAL BASIS FOR STATUS.—Notwithstanding any other provision of this Act, employment-based immigrants (as defined in subsection (f) (1) or (2)), alien spouses, and alien children (as defined in subsection (f)(3)) shall be considered, at the time of obtaining the status of an alien lawfully admitted for permanent residence, to have obtained such status on a conditional basis subject to the provisions of this section.

''(2) NOTICE OF REQUIREMENTS.—

''(A) AT TIME OF OBTAINING PERMANENT RESIDENCE.—At the time an employment-based immigrant, alien spouse, or alien child obtains permanent resident status on a conditional basis under paragraph (1), the Secretary of Homeland Security shall provide for notice to the alien, spouse, or child respecting the provisions of this section and the requirements of subsection (c)(1) to have the conditional basis of such status removed.

''(B) AT TIME OF REQUIRED PETITION.—In addition, the Secretary of Homeland Security shall attempt to provide notice to an employment-based immigrant, alien spouse, or alien child, at or about the beginning of the 90-day period described in subsection (d)(3), of the requirements of subsection (c)(1).

''(C) EFFECT OF FAILURE TO PROVIDE NOTICE.—The failure of the Secretary of Homeland Security to provide a notice under this paragraph shall not affect the enforcement of the provisions of this section with respect to an employment-based immigrant, alien spouse, or alien child.

''(b) TERMINATION OF STATUS IF FINDING THAT QUALIFYING EMPLOYMENT IMPROPER.—

''(1) ALIEN INVESTOR.—In the case of an alien investor with permanent resident status on a conditional basis under subsection (a), if the Secretary of Homeland Security determines, before the second anniversary of the alien's obtaining the status of lawful admission for permanent residence, that—

''(A) the investment in the commercial enterprise was intended as a means of evading the immigration laws of the United States;

''(B)(i) the alien did not invest, or was not actively in the process of investing, the requisite capital; or

''(ii) the alien was not sustaining the actions described in clause (i) throughout the period of the alien's residence in the United States; or

''(C) subject to the exception in subsection (d)(4), the alien was otherwise not conforming to the requirements under section 203(b)(5),

the Secretary shall so notify the alien investor and, subject to paragraph (3), shall terminate the permanent resident status of the alien (and the alien spouse and alien child) involved as of the date of the determination.

''(2) EMPLOYEE OF A FEDERAL NATIONAL SECURITY, SCIENCE, AND TECHNOLOGY LABORATORY, CENTER OR AGENCY.—In the case of an employee of a Federal national security, science, and technology laboratory, center, or agency (as defined pursuant to section 203(b)(2)(C)) with permanent resident status on a conditional basis under subsection (a), if the Secretary of Homeland Security, in consultation with the relevant employing department or agency, determines, before the first anniversary of the alien's obtaining the status of lawful admission for permanent residence, that—

''(A) the qualifying employment was intended as a means of evading the immigration laws of the United States;

''(B) the alien has not completed or is not likely to complete 12 months of qualifying continuous employment; or

''(C) the alien did not otherwise conform with the requirements of section 203(b)(2),

the Secretary shall so notify the alien involved and, subject to paragraph (3), shall terminate the permanent resident status of the alien (and the alien spouse and alien child) involved as of the date of the determination.

''(3) HEARING IN REMOVAL PROCEEDING.—Any alien whose permanent resident status is terminated under paragraph (1) or (2) may request a review of such determination in a proceeding to remove the alien. In such proceeding, the burden of proof shall be on the Secretary of Homeland Security to establish, by a preponderance of the evidence, that a condition described in paragraph (1) or (2), as appropriate, is met.

''(c) REQUIREMENTS OF TIMELY PETITION AND INTERVIEW FOR REMOVAL OF CONDITION.—

''(1) IN GENERAL.—

''(A) PETITION AND INTERVIEW.—In order for the conditional basis established under subsection (a) for an employment-based immigrant, alien spouse, or alien child to be removed—

''(i) the employment-based immigrant shall submit to the Secretary of Homeland Security, during the period described in subsection (d)(3), a petition which requests the removal of such conditional basis and which states, under penalty of perjury, the facts and information described in paragraph (1) or (2) of subsection (d), as appropriate; and

''(ii) in accordance with subsection (d)(3), the employment-based immigrant must appear for a personal interview before an officer or employee of U.S. Citizenship and Immigration Services respecting such facts and information.

''(B) SEPARATE PETITION NOT REQUIRED.—An alien spouse or alien child shall not be required to file separate petitions under subparagraph (A)(i) if the employment-based immigrant's petition includes such alien spouse or alien child.

''(C) EFFECT ON SPOUSE OR CHILD.—If the alien spouse or alien child obtains permanent residence on a conditional basis after the employment-based immigrant files a petition under subparagraph (A)(i)—

''(i) the conditional basis of the permanent residence of the alien spouse or alien child shall be removed upon approval of the employment-based immigrant's petition under this subsection;

''(ii) the permanent residence of the alien spouse or alien child shall be unconditional if—

''(I) the employment-based immigrant's petition is approved before the date on which

the spouse or child obtains permanent residence; or

''(II) the employment-based immigrant dies after the approval of a petition under section 203(b)(5); and

''(iii) the alien child shall not be deemed ineligible for approval under section 203(b)(5) or removal of conditions under this section if the alien child reaches 21 years of age during—

''(I) the pendency of the employment-based immigrant's petition under section 203(b)(5); or

''(II) conditional residency under such section.

''(D) ADDITIONAL FEE.—Notwithstanding any other provision under this section, the Secretary may require the employment-based immigrant to pay an additional fee for a petition filed under subparagraph (A)(i) that includes the alien's spouse and child or children.

''(2) TERMINATION OF PERMANENT RESIDENT STATUS FOR FAILURE TO FILE PETITION OR HAVE PERSONAL INTERVIEW.—

''(A) IN GENERAL.—In the case of an alien with permanent resident status on a conditional basis under subsection (a), if—

''(i) no petition is filed with respect to the alien in accordance with the provisions of paragraph (1)(A); or

''(ii) unless there is good cause shown, the employment-based immigrant fails to appear at the interview described in paragraph (1)(B) (if required under subsection (d)(4)),

the Secretary of Homeland Security shall terminate the permanent resident status of the alien (and the alien's spouse and children if it was obtained on a conditional basis under this section or section 216) as of the second anniversary of the alien's lawful admission for permanent residence.

''(B) HEARING IN REMOVAL PROCEEDING.—In any removal proceeding with respect to an alien whose permanent resident status is terminated under subparagraph (A), the burden of proof shall be on the alien to establish compliance with the conditions of paragraphs (1)(A) and (1)(B).

''(3) DETERMINATION AFTER PETITION AND INTERVIEW.—

''(A) IN GENERAL.—If—

''(i) a petition is filed in accordance with the provisions of paragraph (1)(A); and

''(ii) the employment-based immigrant appears at any interview described in paragraph (1)(B),

the Secretary of Homeland Security shall make a determination, not later than 90 days after the date of such filing or interview (whichever is later), as to whether the facts and information described in paragraph (1) or (2) of subsection (d), as appropriate, and alleged in the petition are true.

''(B) REMOVAL OF CONDITIONAL BASIS IF FAVORABLE DETERMINATION.—

''(i) HEADER.—If the Secretary of Homeland Security determines with respect to a petition filed by an alien investor that such facts and information are true, the Secretary shall so notify the alien investor and shall remove the conditional basis of the alien's status effective as of the second anniversary of the alien's lawful admission for permanent residence.

''(ii) REMOVAL OF CONDITIONAL BASIS FOR EMPLOYEE OF A FEDERAL NATIONAL SECURITY, SCIENCE, AND TECHNOLOGY LABORATORY, CENTER OR AGENCY.—If the Secretary of Homeland Security determines with respect to a petition filed by an employee of a Federal national security, science, and technology laboratory, center, or agency that such facts and information are true, the Secretary shall so notify the alien and shall remove the conditional basis of the alien's status effective as of the first anniversary of the alien's lawful admission for permanent residence.

''(C) TERMINATION IF ADVERSE DETERMINATION.—If the Secretary of Homeland Security determines that such facts and information are not true, the Secretary shall so notify the alien involved and, subject to subparagraph (D), shall terminate the permanent resident status of an employment-based immigrant, alien spouse, or alien child as of the date of the determination.

''(D) HEARING IN REMOVAL PROCEEDING.—Any alien whose permanent resident status is terminated under subparagraph (C) may request a review of such determination in a proceeding to remove the alien. In such proceeding, the burden of proof shall be on the Secretary of Homeland Security to establish, by a preponderance of the evidence, that the facts and information described in subsection (d)(1) and alleged in the petition are not true.

''(d) DETAILS OF PETITION AND INTERVIEW.—

''(1) CONTENTS OF PETITION BY ALIEN INVESTOR.—Each petition filed by an alien investor under section (c)(1)(A) shall contain facts and information demonstrating that the alien—

''(A)(i) invested, or is actively in the process of investing, the requisite capital; and

''(ii) sustained the actions described in clause (i) throughout the period of the alien's residence in the United States; and

''(B) except as provided in paragraph (4), is otherwise conforming to the requirements under section 203(b)(5).

''(2) CONTENTS OF PETITION BY EMPLOYEE OF A FEDERAL NATIONAL SECURITY, SCIENCE, AND TECHNOLOGY LABORATORY, CENTER, OR AGENCY.—Each petition under subsection (c)(1)(A) filed by an employee of a Federal national security, science, and technology laboratory, center, or agency shall contain facts and information demonstrating that the alien is conforming to the requirements of section 203(b)(2).

''(3) PERIOD FOR FILING PETITION.—

''(A) 90-DAY PERIOD BEFORE ANNIVERSARY.—Except as provided in subparagraph (B), the petition under subsection (c)(1)(A) must be filed as follows:

''(i) In the case of an alien investor, during the 90-day period before the second anniversary of the alien's lawful admission for permanent residence.

''(ii) In the case of an employee of a Federal national security, science, and technology laboratory, center, or agency, during the 90-day period before the first anniversary of the alien's lawful admission for permanent residence.

''(B) LATE PETITIONS.—Such a petition may be considered if filed after such date, but only if the alien establishes to the satisfaction of the Secretary of Homeland Security good cause and extenuating circumstances for failure to file the petition during the period described in subparagraph (A).

''(C) FILING OF PETITIONS DURING REMOVAL.—In the case of an alien who is the subject of removal hearings as a result of failure to file a petition on a timely basis in accordance with subparagraph (A), the Secretary of Homeland Security may stay such removal proceedings against an alien pending the filing of the petition under subparagraph (B).

''(4) PERSONAL INTERVIEW.—The interview under subsection (c)(1)(B) shall be conducted within 90 days after the date of submitting a petition under subsection (c)(1)(A) and at a local office of U.S. Citizenship and Immigration Services, designated by the Secretary of Homeland Security, which is convenient to the parties involved. The Secretary, in the discretion of the Secretary, may waive the deadline for such an interview or the requirement for such an interview in such cases as may be appropriate.

''(5) SPECIAL RULE FOR ALIEN INVESTORS IN A REGIONAL CENTER.—Each petition under subsection (c)(1)(A) filed by an alien investor who invests in accordance with section 203(b)(5)(E) shall contain facts and information demonstrating that the alien is complying with the requirements under section 203(b)(5), except—

''(A) the alien shall not be subject to the requirements under section 203(b)(5)(A)(ii); and

''(B) the petition shall contain the most recent financial statement filed by the regional center in which the alien has invested in accordance with section 203(b)(5)(G).

''(e) TREATMENT OF PERIOD FOR PURPOSES OF NATURALIZATION.—For purposes of title III, in the case of an alien who is in the United States as a lawful permanent resident on a conditional basis under this section, the alien shall be considered to have been admitted as an alien lawfully admitted for permanent residence and to be in the United States as an alien lawfully admitted to the United States for permanent residence, if the alien has had the conditional basis removed pursuant to this section.

''(f) FRAUD, MISREPRESENTATION, CRIMINAL MISUSE, OR THREATS TO THE PUBLIC SAFETY OR NATIONAL SECURITY.—If the Secretary of Homeland Security determines, in his or her sole and unreviewable discretion, that the conditional permanent resident status granted to an employment-based immigrant under subsection (a), or to an alien researcher described in section 203(b)(2)(A)(ii) is contrary to the national interest of the United States for reasons relating to fraud, misrepresentation, criminal misuse, or threats to national security, the Secretary shall—

''(1) notify the immigrant involved of such determination; and

''(2) terminate the permanent resident status of the immigrant involved (and the alien spouse and alien children of such immigrant) as of the date of such determination.

''(g) DEFINITIONS.—In this section:

''(1) The term 'alien investor' means an alien who obtains the status of an alien lawfully admitted for permanent residence (whether on a conditional basis or otherwise) under section 203(b)(5).

''(2) The term 'alien spouse' and the term 'alien child' mean an alien who obtains the status of an alien lawfully admitted for permanent residence (whether on a conditional basis or otherwise) by virtue of being the spouse or child, respectively, of an alien investor or an employee of a Federal national security, science, and technology laboratory, center, or agency.

''(3) The term 'commercial enterprise' includes a limited partnership.

''(4) The term 'employment-based immigrant' means an alien described in paragraph (1) or (5).

''(5) The term 'employee of a Federal national security, science, and technology laboratory, center, or agency' means an alien who obtains the status of an alien lawfully admitted for permanent residence (whether on a conditional basis or otherwise) under section 203(b)(2)(A)(ii).''.

(b) CONFORMING AMENDMENT.—Section 216(e) (8 U.S.C. 1186a(e)) is amended by inserting before the period at the end the following: '', if the alien has had the conditional basis removed pursuant to this section''.

(c) CLERICAL AMENDMENT.—The table of contents is amended by striking the item relating to section 216A and inserting the following:

''Sec. 216A. Conditional permanent resident status for certain employment-based immigrants, spouses, and children.''.

SEC. 4806. EB–5 VISA REFORMS.

(a) ALIENS NOT SUBJECT TO DIRECT NUMERICAL LIMITATION.—Section 201(b)(1) (8 U.S.C. 1151(b)(1)), as amended by sections 2103(c)(2), 2212(d)(2), 2307(b), and 2402, is further amended by adding at the end the following:

''(P) Aliens who are the spouse or a child of an alien admitted as an employment-based immigrant under section 203(b)(5).''.

(b) TECHNICAL AMENDMENT.—Section 203(b)(5), as amended by this Act, is further amended by striking ''Attorney General'' each place it appears and inserting ''Secretary of Homeland Security''.

(c) TARGETED EMPLOYMENT AREAS.—

(1) IN GENERAL.—Section 203(b)(5)(B) (8 U.S.C. 1153(b)(5)(B)) is amended to read as follows:

''(B) SET-ASIDE FOR TARGETED EMPLOYMENT AREAS.—

''(i) IN GENERAL.—Not fewer than 5,000 of the visas made available under this paragraph in each fiscal year shall be reserved for qualified immigrants who invest in a new commercial enterprise described in subparagraph (A), which—

''(I) is investing such capital in a targeted employment area; and

''(II) will create employment in such targeted employment area.

''(ii) DURATION OF HIGH UNEMPLOYMENT AND POVERTY AREA DESIGNATION.—A designation of a high unemployment or poverty area as a targeted employment area shall be valid for 5 years and may be renewed for additional 5-year periods if the area continues to meet the definition of a high unemployment or poverty area. An investor who has made the required amount of investment in such a targeted employment area during its period of designation shall not be required to increase the amount of investment based upon expiration of the designation.''.

(d) ADJUSTMENT OF MINIMUM EB–5 INVESTMENT AMOUNT.—Section 203(b)(5)(C)(i) (8 U.S.C. 1153(b)(5)(C)(i)) is amended—

(1) by striking ''The Attorney General'' and inserting ''The Secretary of Commerce'';

(2) by striking ''Secretary of State'' and inserting ''Secretary of Homeland Security''; and

(3) by adding at the end the following: ''Unless adjusted by the Secretary of Commerce, the amount specified in this clause shall automatically adjust, on January 1, 2016, by the percentage change in the Consumer Price Index (CPI–U) during fiscal year 2015, and on every fifth subsequent January 1 by the cumulative percentage change in the CPI–U during the previous 5 fiscal years, for any petition filed to classify an alien under this paragraph on or after the date of each automatic adjustment.''.

(e) DEFINITIONS.—

(1) IN GENERAL.—Section 203(b)(5) (8 U.S.C. 1153(b)(5)), as amended by subsections (b) and (c) and section 4804, is further amended—

(A) by striking subparagraph (D) and inserting following:

''(D) CALCULATION OF FULL-TIME EMPLOYMENT.—Job creation under this paragraph may consist of employment measured in full-time equivalents, such as intermittent or seasonal employment opportunities and construction jobs. A full-time employment position is not a requirement for indirect job creation.''; and

(B) by adding at the end the following:

''(K) DEFINITIONS.—In this paragraph:

''(i) The term 'capital' means all real, personal, or mixed assets, whether tangible or intangible, owned or controlled by the investor, or held in trust for the benefit of the investor, to which the investor has unrestricted access, which shall be valued at fair market value in United States dollars, in accordance with Generally Accepted Accounting Principles, at the time it is invested under this paragraph.

''(ii) The term 'full-time employment' means employment in a position that requires at least 35 hours of service per week, regardless of how many employees fill the position.

''(iii) The term 'high unemployment and poverty area' means—

''(I) an area consisting of a census tract or contiguous census tracts that has an unemployment rate that is at least 150 percent of the national average unemployment rate and includes at least 1 census tract with 20 percent of its residents living below the poverty level as determined by the Bureau of the Census; or

''(II) an area that is within the boundaries established for purposes of a Federal or State economic development incentive program, including areas defined as Enterprise Zones, Renewal Communities, Promise Zones, and Empowerment Zones.

''(iv) The term 'rural area' means—

''(I) any area other than an area within a metropolitan statistical area or within the outer boundary of any city or town having a population of 20,000 or more (based on the most recent decennial census of the United States); or

''(II) any city or town having a population of fewer than 20,000 (based on the most recent decennial census of the United States) that is located within a State having a population of fewer than 1,500,000 (based on the most recent decennial census of the United States).

''(v) The term 'targeted employment area' means a rural area or a high unemployment and poverty area.''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall apply to any application for a visa under section 203(b)(5) of the Immigration and Nationality Act that is filed on or after the date that is 1 year after the date of the enactment of this Act.

(f) AGE DETERMINATION FOR CHILDREN OF ALIEN INVESTORS.—Section 203(h) (8 U.S.C. 1153(h)) is amended by adding at the end the following:

''(5) AGE DETERMINATION FOR CHILDREN OF ALIEN INVESTORS.—An alien admitted under subsection (d) as a lawful permanent resident on a conditional basis as the child of an alien lawfully admitted for permanent residence under subsection (b)(5), whose lawful permanent resident status on a conditional basis is terminated under section 216A, shall continue to be considered a child of the principal alien for the purpose of a subsequent immigrant petition by such alien under subsection (b)(5) if the alien remains unmarried and the subsequent petition is filed by the principal alien not later than 1 year after the termination of conditional lawful permanent resident status. No alien shall be considered a child under this paragraph with respect to more than 1 petition filed after the alien's 21st birthday.''.

(g) ENHANCED PAY SCALE FOR CERTAIN FEDERAL EMPLOYEES ADMINISTERING THE EB–5 PROGRAM.—The Secretary may establish, fix the compensation of, and appoint individuals to, designated critical administrative, technical, and professional positions needed to administer sections 203(b)(5) and 216A of the Immigration and Nationality Act (8 U.S.C. 1153(b)(5) and 1186b).

(h) DELEGATION OF CERTAIN EB–5 AUTHORITY.—

(1) IN GENERAL.—The Secretary of Homeland Security may delegate to the Secretary of Commerce authority and responsibility for determinations under sections 203(b)(5) and 216A (with respect to alien entrepreneurs) of the Immigration and Nationality Act (8 U.S.C. 1153(b)(5) and 1186a), including determining whether an alien has met employment creation requirements.

(2) REGULATIONS.—The Secretary of Homeland Security and the Secretary of Commerce may each adopt such rules and regulations as are necessary to carry out the delegation authorized under paragraph (1), including regulations governing the eligibility criteria for obtaining benefits pursuant to the amendments made by this section.

(3) USE OF FEES.—Adjudication fees described in section 286(m) of the Immigration and Nationality Act (8 U.S.C. 1356(m)) shall remain available until expended to reimburse the Secretary of Commerce for the costs of any determinations made by the Secretary of Commerce under paragraph (1).

(i) CONCURRENT FILING OF EB–5 PETITIONS AND APPLICATIONS FOR ADJUSTMENT OF STATUS.—Section 245 (8 U.S.C. 1255), as amended by section 4237(b), is further amended—

(1) in subsection (k), in the matter preceding paragraph (1), by striking ''or (3)'' and inserting ''(3), (5), or (7)''; and

(2) by adding at the end the following:

''(o) At the time a petition is filed for classification under section 203(b)(5), if the approval of such petition would make a visa immediately available to the alien beneficiary, the alien beneficiary's application for adjustment of status under this section shall be considered to be properly filed whether the application is submitted concurrently with, or subsequent to, the visa petition.''.

SEC. 4807. AUTHORIZATION OF APPROPRIATIONS.

(a) FUNDING.—There are authorized to be appropriated from the Trust Fund established under section 6(a) such sums as may be necessary to carry out sections 1110, 2101, 2104, 2212, 2213, 2221, 2232, 3301, 3501, 3502, 3503, 3504, 3505, 3506, 3605, 3610, 4221, and 4401 of this Act.

(b) AVAILABILITY OF FUNDS.—Amounts appropriated pursuant to this section shall remain available until expended unless otherwise specified in this Act.

Subtitle I—Student and Exchange Visitor Programs

SEC. 4901. SHORT TITLE.

This subtitle may be cited as the ''Student Visa Integrity Act''.

SEC. 4902. SEVIS AND SEVP DEFINED.

In this subtitle:

(1) SEVIS.—The term ''SEVIS'' means the Student and Exchange Visitor Information System of the Department of Homeland Security.

(2) SEVP.—The term ''SEVP'' means the Student and Exchange Visitor Program of the Department of Homeland Security.

SEC. 4903. INCREASED CRIMINAL PENALTIES.

Section 1546(a) of title 18, United States Code, is amended by striking ''10 years'' and inserting ''15 years (if the offense was committed by an owner, official, employee, or agent of an educational institution with respect to such institution's participation in the Student and Exchange Visitor Program), 10 years''.

SEC. 4904. ACCREDITATION REQUIREMENT.

Section 101(a)(52) (8 U.S.C. 1101(a)(52)) is amended to read as follows:

''(52) Except as provided in section 214(m)(4), the term 'accredited college, university, or language training program' means a college, university, or language training program that is accredited by an accrediting agency recognized by the Secretary of Education.''.

SEC. 4905. OTHER ACADEMIC INSTITUTIONS.

Section 214(m) (8 U.S.C. 1184(m)) is amended by adding at the end the following:

''(3) The Secretary of Homeland Security shall require accreditation of an academic institution (except for seminaries or other

religious institutions) for purposes of section 101(a)(15)(F) if—

''(A) that institution is not already required to be accredited under section 101(a)(15)(F)(i); and

''(B) an appropriate accrediting agency recognized by the Secretary of Education is able to provide such accreditation.

''(4) The Secretary of Homeland Security, in the Secretary's discretion, may waive the accreditation requirement in section 101(a)(15)(F)(i) with respect to an accredited college, university, or language training program if the academic institution—

''(A) is otherwise in compliance with the requirements of such section; and

''(B) is, on the date of the enactment of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996, a candidate for accreditation or, after such date, has been a candidate for accreditation for at least 1 year and continues to progress toward accreditation by an accreditation agency recognized by the Secretary of Education.''.

SEC. 4906. PENALTIES FOR FAILURE TO COMPLY WITH SEVIS REPORTING REQUIREMENTS.

Section 641 of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1372) is amended—

(1) in subsection (c)(1)—

(A) by striking ''institution,,'' each place it appears and inserting ''institution,''; and

(B) in subparagraph (D), by striking ''and'' at the end;

(2) in subsection (d)(2), by striking ''fails to provide the specified information'' and all that follows and inserting ''does not comply with the reporting requirements set forth in this section, the Secretary of Homeland Security may—

''(A) impose a monetary fine on such institution in an amount to be determined by the Secretary; and

''(B) suspend the authority of such institution to issue a Form I–20 to any alien.''.

SEC. 4907. VISA FRAUD.

(a) IMMEDIATE WITHDRAWAL OF SEVP CERTIFICATION.—Section 641(d) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1372(d)) is amended—

(1) in paragraph (1)(A), by striking ''institution,,'' and inserting ''institution,''; and

(2) by adding at the end the following:

''(3) EFFECT OF REASONABLE SUSPICION OF FRAUD.—If the Secretary of Homeland Security has reasonable suspicion that an owner of, or a designated school official at, an approved institution of higher education, an other approved educational institution, or a designated exchange visitor program has committed fraud or attempted to commit fraud relating to any aspect of the Student and Exchange Visitor Program, or if such owner or designated school official is indicted for such fraud, the Secretary may immediately—

''(A) suspend such certification without prior notification; and

''(B) suspend such official's or such school's access to the Student and Exchange Visitor Information System (SEVIS).''.

(b) EFFECT OF CONVICTION FOR VISA FRAUD.—Section 641(d) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996, as amended by subsection (a), is further amended by adding at the end the following:

''(5) PERMANENT DISQUALIFICATION FOR FRAUD.—A designated school official at, or an owner of, an approved institution of higher education, an other approved educational institution, or a designated exchange visitor program who is convicted for fraud relating to any aspect of the Student and Exchange Visitor Program shall be permanently disqualified from filing future petitions and from having an ownership interest or a management role (including serving as a principal, owner, officer, board member, general partner, designated school official, or any other position of substantive authority for the operations or management of the institution) in any United States educational institution that enrolls nonimmigrant alien students described in subparagraph (F) or (M) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)).''.

SEC. 4908. BACKGROUND CHECKS.

(a) IN GENERAL.—Section 641(d) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1372(d)), as amended by section 4907 of this Act, is further amended by adding at the end the following:

''(6) BACKGROUND CHECK REQUIREMENT.—

''(A) IN GENERAL.—An individual may not serve as a designated school official or be granted access to SEVIS unless the individual is a national of the United States or an alien lawfully admitted for permanent residence and during the most recent 3-year period—

''(i) the Secretary of Homeland Security has—

''(I) conducted a thorough background check on the individual, including a review of the individual's criminal and sex offender history and the verification of the individual's immigration status; and

''(II) determined that the individual—

''(aa) has not been convicted of any violation of United States immigration law; and

''(bb) is not a risk to the national security of the United States; and

''(ii) the individual has successfully completed an on-line training course on SEVP and SEVIS, which has been developed by the Secretary.

''(B) INTERIM DESIGNATED SCHOOL OFFICIAL.—

''(i) IN GENERAL.—An individual may serve as an interim designated school official during the period that the Secretary is conducting the background check required by subparagraph (A)(i)(I).

''(ii) REVIEWS BY THE SECRETARY.—If an individual serving as an interim designated school official under clause (i) does not successfully complete the background check required by subparagraph (A)(i)(I), the Secretary shall review each Form I–20 issued by such interim designated school official.

''(7) FEE.—The Secretary is authorized to collect a fee from an approved school for each background check conducted under paragraph (6)(A)(i). The amount of such fee shall be equal to the average amount expended by the Secretary to conduct such background checks.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect on the date that is 1 year after the date of the enactment of this Act.

SEC. 4909. REVOCATION OF AUTHORITY TO ISSUE FORM I–20 OF FLIGHT SCHOOLS NOT CERTIFIED BY THE FEDERAL AVIATION ADMINISTRATION.

Immediately upon the enactment of this Act, the Secretary shall prohibit any flight school in the United States from accessing SEVIS or issuing a Form I–20 to an alien seeking a student visa pursuant to subparagraph (F)(i) or (M)(i) of section 101(a)(15) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)) if the flight school has not been certified to the satisfaction of the Secretary and by the Federal Aviation Administration pursuant to part 141 or part 142 of title 14, Code of Federal Regulations (or similar successor regulations).

SEC. 4910. REVOCATION OF ACCREDITATION.

At the time an accrediting agency or association is required to notify the Secretary of Education and the appropriate State licensing or authorizing agency of the final denial, withdrawal, suspension, or termination of accreditation of an institution pursuant to section 496 of the Higher Education Act of 1965 (20 U.S.C. 1099b), such accrediting agency or association shall notify the Secretary of Homeland Security of such determination and the Secretary of Homeland Security shall immediately withdraw the school from the SEVP and prohibit the school from accessing SEVIS.

SEC. 4911. REPORT ON RISK ASSESSMENT.

Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report that contains the risk assessment strategy that will be employed by the Secretary to identify, investigate, and take appropriate action against schools and school officials that are facilitating the issuance of Form I–20 and the maintenance of student visa status in violation of the immigration laws of the United States.

SEC. 4912. IMPLEMENTATION OF GAO RECOMMENDATIONS.

Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report that describes—

(1) the process in place to identify and assess risks in the SEVP;

(2) a risk assessment process to allocate SEVP's resources based on risk;

(3) the procedures in place for consistently ensuring a school's eligibility, including consistently verifying in lieu of letters;

(4) how SEVP identified and addressed missing school case files;

(5) a plan to develop and implement a process to monitor State licensing and accreditation status of all SEVP-certified schools;

(6) whether all flight schools that have not been certified to the satisfaction of the Secretary and by the Federal Aviation Administration have been removed from the program and have been restricted from accessing SEVIS;

(7) the standard operating procedures that govern coordination among SEVP, Counterterrorism and Criminal Exploitation Unit, and U.S. Immigration and Customs Enforcement field offices; and

(8) the established criteria for referring cases of a potentially criminal nature from SEVP to the counterterrorism and intelligence community.

SEC. 4913. IMPLEMENTATION OF SEVIS II.

Not later than 2 years after the date of the enactment of this Act, the Secretary shall complete the deployment of both phases of the second generation Student and Exchange Visitor Information System (commonly known as ''SEVIS II'').

TITLE V—JOBS FOR YOUTH

SEC. 5101. DEFINITIONS.

In this title:

(1) CHIEF ELECTED OFFICIAL.—The term ''chief elected official'' means the chief elected executive officer of a unit of local government in a local workforce investment area or in the case in which such an area includes more than one unit of general government, the individuals designated under an agreement described in section 117(c)(1)(B) of the Workforce Investment Act of 1998 (29 U.S.C. 2832(c)(1)(B)).

(2) LOCAL WORKFORCE INVESTMENT AREA.—The term ''local workforce investment area'' means such area designated under section 116 of the Workforce Investment Act of 1998 (29 U.S.C. 2831).

(3) LOCAL WORKFORCE INVESTMENT BOARD.—The term ''local workforce investment board'' means such board established under section 117 of the Workforce Investment Act of 1998 (29 U.S.C. 2832).

(4) LOW-INCOME YOUTH.—The term ''low-income youth'' means an individual who—

(A) is not younger than 16 but is younger than 25;

(B) meets the definition of a low-income individual provided in section 101(25) of the Workforce Investment Act of 1998 (29 U.S.C. 2801(25)), except that States and local workforce investment areas, subject to approval in the applicable State plans and local plans, may increase the income level specified in subparagraph (B)(i) of such section to an amount not in excess of 200 percent of the poverty line for purposes of determining eligibility for participation in activities under section 5103; and

(C) is in one or more of the categories specified in section 101(13)(C) of the Workforce Investment Act of 1998 (29 U.S.C. 2801(13)(C)).

(5) POVERTY LINE.—The term ''poverty line'' means a poverty line as defined in section 673 of the Community Services Block Grant Act (42 U.S.C. 9902), applicable to a family of the size involved.

(6) STATE.—The term ''State'' means each of the several States of the United States, and the District of Columbia.

SEC. 5102. ESTABLISHMENT OF YOUTH JOBS FUND.

(a) ESTABLISHMENT.—There is established in the Treasury of the United States an account that shall be known as the Youth Jobs Fund (referred to in this title as ''the Fund'').

(b) DEPOSITS INTO THE FUND.—Out of any amounts in the Treasury not otherwise appropriated, there is appropriated $1,500,000,000 for fiscal year 2014, which shall be paid to the Fund, to be used by the Secretary of Labor to carry out this title.

(c) AVAILABILITY OF FUNDS.—Of the amounts deposited into the Fund under subsection (b), the Secretary of Labor shall allocate $1,500,000,000 to provide summer and year-round employment opportunities to low-income youth in accordance with section 5103.

(d) PERIOD OF AVAILABILITY.—The amounts appropriated under this title shall be available for obligation by the Secretary of Labor until December 31, 2014, and shall be available for expenditure by grantees (including subgrantees) until September 30, 2015.

SEC. 5103. SUMMER EMPLOYMENT AND YEAR-ROUND EMPLOYMENT OPPORTUNITIES FOR LOW-INCOME YOUTH.

(a) IN GENERAL.—From the funds available under section 5102(c), the Secretary of Labor shall make an allotment under subsection (c) to each State that has a modification to a State plan approved under section 112 of the Workforce Investment Act of 1998 (29 U.S.C. 2822) (referred to in this section as a ''State plan modification'') (or other State request for funds specified in guidance under subsection (b)) approved under subsection (d) and recipient under section 166(c) of the Workforce Investment Act of 1998 (29 U.S.C. 2911(c)) (referred to in this section as a ''Native American grantee'') that meets the requirements of this section, for the purpose of providing summer employment and year-round employment opportunities to low-income youth.

(b) GUIDANCE AND APPLICATION OF REQUIREMENTS.—

(1) GUIDANCE.—Not later than 20 days after the date of enactment of this Act, the Secretary of Labor shall issue guidance regarding the implementation of this section.

(2) PROCEDURES.—Such guidance shall, consistent with this section, include procedures for—

(A) the submission and approval of State plan modifications, for such other forms of requests for funds by the State as may be identified in such guidance, for modifications to local plans approved under section 118 of the Workforce Investment Act of 1998 (29 U.S.C. 2833) (referred to individually in this section as a ''local plan modification''), or for such other forms of requests for funds by local workforce investment areas as may be identified in such guidance, that promote the expeditious and effective implementation of the activities authorized under this section; and

(B) the allotment and allocation of funds, including reallotment and reallocation of such funds, that promote such implementation.

(3) REQUIREMENTS.—Except as otherwise provided in the guidance described in paragraph (1) and in this section and other provisions of this title, the funds provided for activities under this section shall be administered in accordance with the provisions of subtitles B and E of title I of the Workforce Investment Act of 1998 (29 U.S.C. 2811 et seq., 2911 et seq.) relating to youth activities.

(c) STATE ALLOTMENTS.—

(1) IN GENERAL.—Using the funds described in subsection (a), the Secretary of Labor shall allot to each State the total of the amounts assigned to the State under subparagraphs (A) and (B) of paragraph (2).

(2) ASSIGNMENTS TO STATES.—

(A) MINIMUM AMOUNTS.—Using funds described in subsection (a), the Secretary of Labor shall assign to each State an amount equal to ½ of 1 percent of such funds.

(B) FORMULA AMOUNTS.—The Secretary of Labor shall assign the remainder of the funds described in subsection (a) among the States by assigning—

(i) 33⅓ percent on the basis of the relative number of individuals in the civilian labor force who are not younger than 16 but younger than 25 in each State, compared to the total number of individuals in the civilian labor force who are not younger than 16 but younger than 25 in all States;

(ii) 33⅓ percent on the basis of the relative number of unemployed individuals in each State, compared to the total number of unemployed individuals in all States; and

(iii) 33⅓ on the basis of the relative number of disadvantaged young adults and youth in each State, compared to the total number of disadvantaged young adults and youth in all States.

(3) REALLOTMENT.—If the Governor of a State does not submit a State plan modification or other State request for funds specified in guidance under subsection (b) by the date specified in subsection (d)(2)(A), or a State does not receive approval of such State plan modification or request, the amount the State would have been eligible to receive pursuant to paragraph (1) shall be allocated to States that receive approval of State plan modifications or requests specified in the guidance. Each such State shall receive a share of the total amount available for reallotment under this paragraph, in accordance with the State's share of the total amount allotted under paragraph (1) to such State.

(4) DEFINITIONS.—For purposes of paragraph (2), the term ''disadvantaged young adult or youth'' means an individual who is not younger than 16 but is younger than 25 who received an income, or is a member of a family that received a total family income, that, in relation to family size, does not exceed the higher of—

(A) the poverty line; or

(B) 70 percent of the lower living standard income level.

(d) STATE PLAN MODIFICATION.—

(1) IN GENERAL.—For a State to be eligible to receive an allotment of funds under subsection (c), the Governor of the State shall submit to the Secretary of Labor a State plan modification, or other State request for funds specified in guidance under subsection (b), in such form and containing such information as the Secretary may require. At a minimum, such State plan modification or request shall include—

(A) a description of the strategies and activities to be carried out to provide summer employment opportunities and year-round employment opportunities, including linkages to training and educational activities, consistent with subsection (f);

(B) a description of the requirements the State will apply relating to the eligibility of low-income youth, consistent with section 5101(4), for summer employment opportunities and year-round employment opportunities, which requirements may include criteria to target assistance to particular categories of such low-income youth, such as youth with disabilities, consistent with subsection (f);

(C) a description of the performance outcomes to be achieved by the State through the activities carried out under this section and the processes the State will use to track performance, consistent with guidance provided by the Secretary of Labor regarding such outcomes and processes and with section 5104(b);

(D) a description of the timelines for implementation of the strategies and activities described in subparagraph (A), and the number of low-income youth expected to be placed in summer employment opportunities, and year-round employment opportunities, respectively, by quarter;

(E) assurances that the State will report such information, relating to fiscal, performance, and other matters, as the Secretary may require and as the Secretary determines is necessary to effectively monitor the activities carried out under this section;

(F) assurances that the State will ensure compliance with the requirements, restrictions, labor standards, and other provisions described in section 5104(a); and

(G) if a local board and chief elected official in the State will provide employment opportunities with the link to training and educational activities described in subsection (f)(2)(B), a description of how the training and educational activities will lead to the industry-recognized credential involved.

(2) SUBMISSION AND APPROVAL OF STATE PLAN MODIFICATION OR REQUEST.—

(A) SUBMISSION.—The Governor shall submit the State plan modification or other State request for funds specified in guidance under subsection (b) to the Secretary of Labor not later than 30 days after the issuance of such guidance.

(B) APPROVAL.—The Secretary of Labor shall approve the State plan modification or request submitted under subparagraph (A) within 30 days after submission, unless the Secretary determines that the plan or request is inconsistent with the requirements of this section. If the Secretary has not made a determination within that 30-day period, the plan or request shall be considered to be approved. If the plan or request is disapproved, the Secretary may provide a reasonable period of time in which the plan or request may be amended and resubmitted for approval. If the plan or request is approved, the Secretary shall allot funds to the State under subsection (c) within 30 days after such approval.

(3) MODIFICATIONS TO STATE PLAN OR REQUEST.—The Governor may submit further modifications to a State plan modification or other State request for funds specified under subsection (b), consistent with the requirements of this section.

(e) WITHIN-STATE ALLOCATION AND ADMINISTRATION.—

(1) IN GENERAL.—Of the funds allotted to the State under subsection (c), the Governor—

(A) may reserve not more than 5 percent of the funds for administration and technical assistance; and

(B) shall allocate the remainder of the funds among local workforce investment areas within the State in accordance with clauses (i) through (iii) of subsection (c)(2)(B), except that for purposes of such allocation references to a State in subsection (c)(2)(B) shall be deemed to be references to a local workforce investment area and references to all States shall be deemed to be references to all local workforce investment areas in the State involved.

(2) LOCAL PLAN.—

(A) SUBMISSION.—In order to receive an allocation under paragraph (1)(B), the local workforce investment board, in partnership with the chief elected official for the local workforce investment area involved, shall submit to the Governor a local plan modification, or such other request for funds by local workforce investment areas as may be specified in guidance under subsection (b), not later than 30 days after the submission by the State of the State plan modification or other State request for funds specified in guidance under subsection (b), describing the strategies and activities to be carried out under this section.

(B) APPROVAL.—The Governor shall approve the local plan modification or other local request for funds submitted under subparagraph (A) within 30 days after submission, unless the Governor determines that the plan or request is inconsistent with requirements of this section. If the Governor has not made a determination within that 30-day period, the plan shall be considered to be approved. If the plan or request is disapproved, the Governor may provide a reasonable period of time in which the plan or request may be amended and resubmitted for approval. If the plan or request is approved, the Governor shall allocate funds to the local workforce investment area within 30 days after such approval.

(3) REALLOCATION.—If a local workforce investment board and chief elected official do not submit a local plan modification (or other local request for funds specified in guidance under subsection (b)) by the date specified in paragraph (2), or the Governor disapproves a local plan, the amount the local workforce investment area would have been eligible to receive pursuant to the formula under paragraph (1)(B) shall be allocated to local workforce investment areas that receive approval of their local plan modifications or local requests for funds under paragraph (2). Each such local workforce investment area shall receive a share of the total amount available for reallocation under this paragraph, in accordance with the area's share of the total amount allocated under paragraph (1)(B) to such local workforce investment areas.

(f) USE OF FUNDS.—

(1) IN GENERAL.—The funds made available under this section shall be used—

(A) to provide summer employment opportunities for low-income youth, with direct linkages to academic and occupational learning, and may be used to provide supportive services, such as transportation or child care, that is necessary to enable the participation of such youth in the opportunities; and

(B) to provide year-round employment opportunities, which may be combined with other activities authorized under section 129 of the Workforce Investment Act of 1998 (29 U.S.C. 2854), to low-income youth.

(2) PROGRAM PRIORITIES.—In administering the funds under this section, the local board and chief elected official shall give priority to—

(A) identifying employment opportunities that are—

(i) in emerging or in-demand occupations in the local workforce investment area; or

(ii) in the public or nonprofit sector and meet community needs; and

(B) linking participants in year-round employment opportunities to training and educational activities that will provide such participants an industry-recognized certificate or credential (referred to in this title as an ''industry-recognized credential'').

(3) ADMINISTRATION.—Not more than 5 percent of the funds allocated to a local workforce investment area under this section may be used for the costs of administration of this section.

(4) PERFORMANCE ACCOUNTABILITY.—For activities funded under this section, in lieu of meeting the requirements described in section 136 of the Workforce Investment Act of 1998 (29 U.S.C. 2871), States and local workforce investment areas shall provide such reports as the Secretary of Labor may require regarding the performance outcomes described in section 5104(b)(5).

SEC. 5104. GENERAL REQUIREMENTS.

(a) LABOR STANDARDS AND PROTECTIONS.—Activities provided with funds made available under this title shall be subject to the requirements and restrictions, including the labor standards, described in section 181 of the Workforce Investment Act of 1998 (29 U.S.C. 2931) and the nondiscrimination provisions of section 188 of such Act (29 U.S.C. 2938), in addition to other applicable Federal laws.

(b) REPORTING.—The Secretary of Labor may require the reporting of information relating to fiscal, performance and other matters that the Secretary determines is necessary to effectively monitor the activities carried out with funds provided under this title. At a minimum, recipients of grants (including recipients of subgrants) under this title shall provide information relating to—

(1) the number of individuals participating in activities with funds provided under this title and the number of such individuals who have completed such participation;

(2) the expenditures of funds provided under this title;

(3) the number of jobs created pursuant to the activities carried out under this title;

(4) the demographic characteristics of individuals participating in activities under this title; and

(5) the performance outcomes for individuals participating in activities under this title, including—

(A) for low-income youth participating in summer employment activities under section 5103, performance on indicators consisting of—

(i) work readiness skill attainment using an employer validated checklist;

(ii) placement in or return to secondary or postsecondary education or training, or entry into unsubsidized employment; and

(B) for low-income youth participating in year-round employment activities under section 5103, performance on indicators consisting of—

(i) placement in or return to postsecondary education;

(ii) attainment of a secondary school diploma or its recognized equivalent;

(iii) attainment of an industry-recognized credential; and

(iv) entry into, retention in, and earnings in, unsubsidized employment.

(c) ACTIVITIES REQUIRED TO BE ADDITIONAL.—Funds provided under this title shall only be used for activities that are in addition to activities that would otherwise be available in the State or local workforce investment area in the absence of such funds.

(d) ADDITIONAL REQUIREMENTS.—The Secretary of Labor may establish such additional requirements as the Secretary determines may be necessary to ensure fiscal integrity, effective monitoring, and the appropriate and prompt implementation of the activities under this title.

(e) REPORT OF INFORMATION AND EVALUATIONS TO CONGRESS AND THE PUBLIC.—The Secretary of Labor shall provide to the appropriate committees of Congress and make available to the public the information reported pursuant to subsection (b).

SEC. 5105. VISA SURCHARGE.

(a) COLLECTION.—

(1) IN GENERAL.—Subject to paragraph (2), and in addition to any fees otherwise imposed for such visas, the Secretary shall collect a surcharge of $10 from an employer that submits an application for—

(A) an employment-based visa under paragraph (3), (4), (5), or (6) of section 203(b) of the Immigration and Nationality Act (8 U.S.C. 1153(b)); and

(B) a nonimmigrant visa under subparagraph (C), (H)(i)(b), (H)(i)(c), (H)(ii)(a), (H)(ii)(B), (O), (P), (R), or (W) of section 101(a)(15) of such Act (8 U.S.C. 1101(a)(15)).

(2) EXPIRATION.—The Secretary shall suspend the collection of the surcharge authorized under paragraph (1) on the date on which the Secretary has collected a cumulative total of $1,500,000,000 under this subsection.

(b) DEPOSIT.—All of the amounts collected under subsection (a)(1) shall be deposited in the general fund of the Treasury.

Mr. REID. Mr. President, I suggest the absence of a quorum.

The VICE PRESIDENT. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. REED. Mr. President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. COONS). Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—S. 1238

Mr. REED. Mr. President, I am prepared to make a request for consent.

I believe the Republican leader will respond, and at the conclusion of his response I wish to be recognized to make additional comments.

Mr. President, I ask unanimous consent the Senate proceed to the consideration of S. 1238, the Keep Student Loans Affordable Act, the text of which is at the desk, the bill be read three times and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

Mr. MCCONNELL. I object.

The PRESIDING OFFICER. Objection is heard.

The Republican leader is recognized.

Mr. MCCONNELL. I ask unanimous consent the Senate proceed to the consideration of a bill introduced earlier today by Senators MANCHIN, KING,

ALEXANDER, COBURN, BURR, and CARPER; further, that there be 1 hour of debate equally divided in the usual form, no amendments be in order to the measure, the bill be subject to any applicable budget point of order, and that following the use or yielding back of time and disposition of any waivers, if necessary, the bill be read a third time and the Senate proceed to vote on passage of the bill.

The PRESIDING OFFICER. Is there objection?

Mr. HARKIN. I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Rhode Island.

STUDENT LOANS

Mr. REED. Mr. President, let me thank the Republican leader for cooperating. We are attempting to move forward legislation with respect to student loans. We will shortly reach July 1. At that point, the student loan rate for subsidized Stafford loans doubles from 3.4 percent to 6.8 percent. The legislation I propose would be a 1-year extension of the 3.4-percent rate, allowing students, low- and middle-income students to continue to benefit from a low interest rate.

Our core principles in advancing this 1-year extension of present law are that we believe—and I think this is shared by all of my colleagues—that talented students deserve access to a college education. They need affordable loans and Pell grants and other financial aid. We also believe interest rates should not be set any higher than necessary to protect the taxpayer and break even on the program; that it should not be a profit center for the Federal Government as it is today.

We also believe very strongly that when students take these loans out, particularly the subsidized loans, they deserve predictability. They should know how much they will have to repay. So if you are going to go for an adjustable rate, there has to be a reasonable cap. In fact, my understanding is in the history of the Federal Student Loan Program there has either been an adjustable rate with a cap or a fixed rate. We have never left students solely at the mercy of the market.

We provide subsidized loans to students because we believe we have to invest in Americans, in their talent, in their ability not only to advance their own lives but also to contribute to the greater life of America. It should not be a program that is designed to generate revenue. The reality is today, wittingly or unwittingly, this program, and indeed as would be true for the proposals that have been put on the table, is generating huge amounts of profits to the Federal Government—it has been estimated more than $50 billion this year. We should be investing in the potential of young Americans, not looking at them as profit centers to help us reduce the deficit.

I know there have been great efforts on the part of my colleagues, sincere efforts, thoughtful efforts by many—my colleagues Senator ALEXANDER, Senator MANCHIN, Senator KING, Senator HARKIN—chairman of the committee—Senator WARREN, Senator HAGAN, Senator FRANKEN, Senator STABENOW—to come to a long-term solution. There has been a great effort, but we are not there yet.

I think we need, frankly, at least one more year so we can sit down and do this correctly. If you look at the proposals that are out there, there is a short-run attractiveness because the rates have been configured so they look pretty low. But if you follow the rates out, within 3 or 4 years they are above the statute, the law that goes into effect on July 1. They are above the 6.8-percent rate. It is almost as if we are looking back a few years ago—not about student loans but about mortgages. There were a lot of people sitting on 5-percent fixed-rate mortgages and someone walked in and said: Have I got a deal for you. I can give you 2 years at 3 percent. It goes up, but don't worry because you can readjust it down the road and refinance it.

We found out because of many circumstances, come 2008–2009, there was no getting out. In fact, a lot of people discovered they would have been better off sticking with the fixed loan.

That is an analogy. That is not exactly on point. But if you look at all of these proposals, the arc of the increase in interest rates is going up. And, by the way, it has not fully incorporated what the Federal Reserve has already said publicly. Chairman Bernanke said it very clearly, that they are ending quantitative easing. That means one thing: Interest rates go up, and they might go up a lot faster than we even expect right now.

I think another important point which is critical is that the proposals we have seen so far have not had a cap on them, an adequate cap. There has been some discussion we do not need a cap because if you consolidate a loan there is a cap built into the consolidation program. First of all, there is a problem with that in that except for the subsidized Stafford loans, the other federally supported loans start accruing interest even while you are still in school so you are building up a big mountain of debt. When you consolidate, what you are doing, essentially, is stretching out the payments, making a longer term which adds more interest. It is like the difference between a short-term loan and a long-term loan. You end up paying a lot more interest on your house than you do on a 2- or 3-year loan on your car.

For many reasons, both technical and otherwise, we believe, particularly as we are several days from July 1, we need to go ahead and give this body the time to deliberate. Frankly, we just passed a historic piece of legislation. That was not done in the waning hours of the session. It was not done without hearings. It was not done without a lot of back and forth. It was not done without a lot of tension on the floor. Yet we are proposing fundamental changes to our Federal Student Loan Program in the waning hours before a recess.

Mr. President, 36 Democrats and counting have joined me and Senator HAGAN to extend this lending rate for 1 more year.

We have in the past been able to come together. In fact, we adopted the 3.4-percent interest rate, fixed rate, in 2007. The vote in this Senate was 79 to 12, Republicans and Democrats saying: A good deal for students, a low interest rate.

I think we still have to look for a much better deal than has been suggested by some of the proposals. Our proposal for a one-year extension is also fiscally responsible because we are offsetting the cost of roughly about $4.2 billion by closing a tax loophole—which I think should be closed on its own face, but it would allow us to pay for this extension for 1 year. I will remind my colleagues that a year ago we did precisely the same kind of thing.

Some would say we have not used the year well enough. But if you think about the debate we had on background checks and firearms; if you think about this historic debate on immigration; if you think about many of the other serious debates we have had, I think we have been engaged on this floor decisively. But now it is time, again, to move to this education issue and give it the full consideration students and families deserve.

I am disappointed. I am sure my colleagues who are suggesting alternative proposals are disappointed. But I am most disappointed we cannot at least tell students today: We have your back. You are going to be safe for another year, with your loans at 3.4-percent interest. And during that time, we have to fix this—and not just simply changing around interest rates but addressing how to help borrowers pay down the debt that is outstanding. It is a huge problem, a trillion dollar problem. What about the incentives for lowering the costs of college? What about other structural changes we have to make? They will unlikely be made if we somehow sort of leave here with a ''fix'' that ultimately, in a very short period of time, raises rates beyond the 6.8 percent and also takes off the pressure, legitimate pressure for us not just to treat one part of the problem but comprehensively deal with the issue of the cost of higher education for families.

With that, I have been asked to propose a unanimous consent.

The PRESIDING OFFICER. The Senator may proceed.

MORNING BUSINESS

Mr. REED. I ask unanimous consent the Senate proceed to a period of morning business until 7 p.m., with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

STUDENT LOAN RATES

Mr. MANCHIN. Mr. President, if I may respond to my dear friend from Rhode Island for whom I have the utmost respect. We have a respectful difference as far as how to approach this problem and we are working through it. We really, truly, are working and we will work through it.

We had a charge a year ago to fix it, so we started working on that. The President in a timely fashion gave us a piece of legislation that had a longer term fix, 10 years. We took that and worked off that original proposal given to us by the administration, by the President, and we started working in a bipartisan manner to make this work.

With that being said, we looked at the 3.4 percent and I would say a majority of our Senate colleagues, both Democrats and Republicans, did not understand that the 3.4 percent only affected those that were subsidized loans. That is the smallest amount of loans we have out there. I think the majority of our colleagues, the majority of the people, the majority of the press thought we fixed it at 3.4 percent for everybody who had a student loan. That was not the case.

We wanted to go back and make sure if we do something we do it for everybody, because the person who has income limits and qualified for the subsidized loan, the first year they get that loan it is $2,500; the second year it is $3,500; the third year it is $4,500; and the fourth year it is $5,500. That is the maximum they can borrow. So you know what. They borrow the nonsubsidized. Guess what they have been paying for the nonsubsidized: 6.8. Guess what students have been paying for what we call the PLUS loans. They have been paying 7.9. But we are not hearing anything about that.

Put it in perspective as dollars. If we have a 1-year extension, as my dear colleagues have suggested, to try to fix the problem again, that will be about a $2 billion savings of interest payments that would be put on the backs of students. That is a tremendous amount of money.

Guess what happens if we pass our bipartisan proposal. It saves $8.8 billion, and everybody participates. Even the subsidized loan for the student who struggled the hardest and needs most of the help, they get most of the help. Not only do they get help on their subsidized loan, but they get help on their unsubsidized loan. We have looked at everything possible. We have a piece of legislation which we think not only fixes but basically repairs a broken system.

When we look at where we are today and we look at sequestering—and I have been here not quite 3 years—I have watched us kick the can down the street to where my toe is hurting. We kicked this can so much, my toe is hurting, and it is starting to kick back.

We need to start giving the people of this great country the confidence that we can work in a functional and respectful way. Democrats, Republicans, and Independents need to come together and put our country first, put our students first, and stop playing politics.

We agreed—Democrats and Republicans—on this bipartisan bill that not $1 should go to debt reduction. We do not believe the students trying to get an education to better and improve their quality of life, their economic condition, and the economic condition of our great country should have to be burdened with reducing the debt of this Nation. They can do that by being productive citizens. We agreed on that. That was something that was not agreed on before because there were people who wanted the surpluses to go to debt reduction.

We took out the surpluses and reduced the rate as low as humanly possible. It has been scored. We are bringing rates down. If we look at a top rate of 7.9 percent, that is going to come to 6.21 percent if they have a PLUS loan. If a student has a graduate Stafford loan, that is going to go from 6.8 percent to 5.21 percent. All the undergraduates—if it is a subsidized loan or a nonsubsidized loan—will go to 3.6 percent, and that is a tremendous savings. That is the $8.8 billion, and that is what we are asking for.

I respectfully—and I mean that—disagree with my colleagues who have signed on to a 1-year extension believing we are going to be able to come up with an agreement or a compromise that is better than what we have before us. We have worked this out with Senator CARPER from Delaware, Senator KING from Maine, myself from West Virginia, and Senator ALEXANDER from Tennessee. Those are four former Governors. We knew we had to work together because we had to make things happen immediately. At the end of the year, everything had to balance out. Senator BURR and Senator COBURN also contributed, and they understand financing as well as anybody in this body.

I say to all the students who have loans right now: Don't worry. July 1 will come. We will come back on July 9 or 10, and it will be the first order of business we will ask to bring up. Both of our bills will be our first order of business.

I assure everyone that we will come up with a compromise we can work out that will give the relief the students—those who desire an education and want to better their lives will have that opportunity and be able to have stability and not have the increased rate passed on because we will make this retroactive.

With that, I yield the floor.

The PRESIDING OFFICER (Mr. COWAN). The Senator from Maine.

Mr. KING. Mr. President, I don't have a great deal to add to Senator MANCHIN's comments except to point out that everyone in this body wants to do best by our students. Everyone understands the importance of education, everyone understands how expensive it is, and everyone understands the problem of the debt burden on our students. We are all trying to search for a solution that can garner bipartisan support and pass the Senate, the House, and go to the President.

The proposal we have put forward before the body today is based upon, in many ways, the proposal made by the President in his budget. It is similar to a provision that has already passed the House. I think a couple of points should be made. One point that should be made is there is a lot of talk about a floating rate. I think people think of mortgages and adjustable rate mortgages where the rate changes from year to year.

Under our proposal, once a student takes out a loan in a given year, at whatever the rate is that year, that rate is fixed for the life of the loan. The following year, if interest rates—and we are talking about the 10-year Treasury bill of the U.S. Government, one of the lowest interest rates there is—go up, then it would go up. That is for next year's loan, not for the loan that has already been taken out.

I think we have learned from our current circumstance the folly of Congress trying to set interest rates. Setting 6.8 percent and 3.4 percent interest rates 5 or 6 years ago looked like a great deal. Today it is generating billions of dollars to the Treasury on the backs of our students.

So I think our solution is a commonsense solution, and that is to base the interest rate for the students at the lowest available rate to virtually anybody in our society, which would be the 10-year Treasury bill, plus 1.85 percent, which protects the Treasury from the costs of administering the program and the risks inherent in the program. If we do that, we will have certainty in the program and the lowest interest rate that would generally be available in this society.

If we started with a blank sheet of paper and said: We want the Federal Government to provide loans to students, I believe we would end up where this plan has ended up. It is where the President ended up, it is where the House has ended up, and I think we have an opportunity. The question is, Should we extend this for 1 year and take more time? I am new, but I stood here during the debates on the sequester, where both parties put forward their proposals, neither party got the votes, and we ended up with a sequester.

We said the exact same thing with student loans about 1 month ago. Each party put forward their proposal, neither party got their votes, and here we are just about at the deadline and the rates are going to double for those subsidized Stafford loans.

I don't know what we are going to know 1 year from now that we don't

know now. I believe the time is now to try to come to a resolution that meets everybody's requirements, and we are not that far apart. The differences separating us in this body are not that far apart. I believe we have an opportunity not only to solve this problem fairly to our students but to demonstrate to the country that we are able to make decisions and not simply delay them for another 1 or 2 years.

That is why I rise to support the bill that Senator MANCHIN and I, as well as others, including Senator BURR, Senator ALEXANDER—who I think is one of the most respected Members of this body, particularly on education matters—and Senator COBURN. We have a strong bill. I think as people see the details, understand it better, understand the terms, and understand the effects, we will save students in America over the next 3 or 4 years something like $50 billion. If we don't resolve this problem, it will come into the Treasury on the backs of our students. I don't think that is a result we want.

I think we have a responsible proposal. It is a bipartisan one, and I believe it deserves full and fair consideration. I am sure all of these proposals will have a lot of discussion once we are back in session a week and a half from now, and I hope we can come to a resolution because the students of America deserve to know two things: that Congress has their back on student loans and that their Congress is, in fact, able to make decisions, handle issues, and move forward.

I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I see that the Senator from New York and the Senator from Colorado are on the floor. I don't know if they seek recognition. I know this has been a terrific day for them as two of the principal architects of the immigration bill we just passed. It has been a landmark achievement.

I am prepared to speak for about 15 minutes on my climate bill, so I am going to be here for a while. If the Senator from New York would prefer to proceed, then I will allow him to proceed. That will also allow me to relieve the Presiding Officer who I understand needs to go upstairs for a moment.

I will yield to Senator SCHUMER with the hope that upon the conclusion of his remarks, I will be recognized.

IMMIGRATION REFORM

Mr. SCHUMER. Mr. President, I wish to thank my colleague from Rhode Island. As usual, he is graceful and thoughtful as well as being an outstanding legislator with a great deal of passion. I know he wants to speak on the issue he is ready to speak about, but, again, his grace and kindness are always present and I appreciate it.

I return to the floor to just say some words of thanks. We had limited time before, so I wanted to speak to the issue. I wish to thank some people.

First I thought I would mention how much a dream this comprehensive bill has been to so many people. At the top of the list, of course, is Ted Kennedy, who was one of the greatest human beings I ever met in my life. He had the immigration subcommittee before me. This wouldn't have happened without his guidance and leadership.

Did we make changes from what he did? Obviously. But did his basic feeling, structure, and knowledge that it had to be bipartisan all carry forward on this bill? Absolutely. We know Ted is smiling as he is looking down on us today. We know he will continue to inspire not only those of us in the Senate but also the country as we move forward.

I wanted to spend a few minutes—and I very much appreciate my colleague from Rhode Island for yielding—to thank my staff. We are lucky to have the leadership of Mike Lynch, our chief of staff. We are a team, and it is an amazing team. Everyone covers each other and everyone looks out for each other.

Sometimes when I am upset and I say: Who did what, nobody did anything wrong. They are all watching each other's back. That is the lesson Lynch has taught all of them, and it is a great lesson. We are close-knit. We socialize. We have fun. They truly like each other. This certainly would not have happened without them.

Before I talk about my staff, I wish to praise each of my colleagues. I have done that repeatedly on the Gang of 8. I mentioned this outside, but I want to mention it on the floor. I can say exactly the same thing for each of the eight in the gang: It would not have happened without their presence. It was an amazing team. Each contributed something in his own way. Each contributed a great deal in his own way, and at impasses different people rose to the floor and lifted us out of those impasses. It was an amazing group.

I am not going to get into each individual right now, but I do want to thank the Gang of 8. We have bonded, we have become friends, and we have accomplished something that will hopefully carry forward and become law.

Now I wish to thank my staff. My staff, similar to all Americans, are the children or great-grandchildren or great-great-great-great-great-grandchildren of immigrants. They have shared their stories through this process. I know this was deeply personal for each of them. Every week just about the entire staff got together for an immigration meeting, and everybody contributed.

So I wish to take some time to thank them all. They worked so hard to fix this system. It was not only a dream of so many in this Senate, it was a dream of theirs. One thing is for sure, without them, we wouldn't be here.

In fact, I think everyone in the Gang of 8 grew to respect our staff just as we respected their staffs. That is another great thing that happened, the bonding.

I want to mention some of the individuals. First, my chief counsel, Stephanie Martz. She poured her whole heart and soul into the bill. She has young kids who have soccer games. She has a very busy schedule, but for this bill she missed bedtimes due to late-night meetings or conference calls. How many times on a Saturday did I talk to her when she was at some athletic event for one of her kids. I could hear the cheering and the running up and down in the background.

But Stephanie has a unique ability to help build coalitions. When one group or another was upset—and believe me, that probably happened every 5 minutes in this legislation—there was Stephanie, soothing them, calming them but telling them the truth, so they trusted her. She was an indispensable part of our ability to get this done.

Through the rough patches, she never gave up on our team. I know that Kyle, Nora, and Pip are going to be happy to have mommy back, and maybe there will be another ice hockey tournament in Rochester next year when whatever legislation we are working on then rises to the fore. To the great genius—and I started referring to him at our meetings as my immigration genius—and he was. The intellectual force, the creative force who propelled this effort was one Leon Fresco, the son of Cuban immigrants from Miami. I think it was about 5 years ago he took this job. He was a very successful immigration lawyer, but he took this job because he wanted to do immigration reform. He has worked on many other things. His creativity has shown its mark in ''Schumerland'' on so many different issues, but this was his dream, and he put every atom of his body into this.

Like me, he is voluble. During our staff meetings we would yell at each other, and it became a joke because I once said: Shut up, Leon. So JOHN MCCAIN greeted him at each meeting: Shut up, Leon. And we all loved it. But Leon, your fierce determination, your innate intelligence, your deep love of this country, is great. And thanks to Mama Fresco, Leon's mom, who is so proud of her son. It was great to meet your parents who are immigrants, who are the American dream.

The people I spoke about on the floor a few minutes ago are embodied in the Frescos. How about Sofie, Leon's wife. Sofie got pregnant during all of this, so he wasn't devoting 100 percent of his time to immigration reform, but close to it. And there she was, Sofie, indomitable and quiet, doing the job.

Our legislative team is a great team—and everyone pitched in to do immigration—led by Heather McHugh. Heather's advice and counsel were invaluable. She communicated with our colleagues. Each one of our staff has great attributes. Heather is always wary of me going a little too far, a little too fast, or a little too quick, and

she will come into the office and say: You know, you better think about this. Then I know I have trouble. But, again, she is incredible.

Because immigration is so multifaceted, all of our staff contributed, including Meghan Taira, whom I consider—no offense to all my colleagues—the best health L.A. on the Hill. She helped create the ACA. But, of course, there were many benefit issues that occurred, and there was Meghan.

Anna Taylor, the only person on our staff with a deep southern Arkansas accent, came from Blanche Lincoln's staff. There were tax issues and there she was, solving them all.

John Jones was incredible. He stepped up and handled many issues. Dan Rudofsky and Veronica Duron drafted summaries and talking points and spreadsheets.

When things got tough, Becca Kelly and Erin Vaughn, each the mother of children less than 1, let nothing get in the way of doing this while at the same time maintaining focus on their kids and the bill.

It might surprise the Presiding Officer to know that I have a very good press team. Brian Fallon, Matt House, Max Young, Meredith Kelly, Lindsay Dryzak, Marisa Kaufman, and Josh Molofsky learned the substance of immigration and spun it into a beautiful web the public could understand.

Our DPCC team, led by Ryan McConaghy, kept policy and press teams singing off the same praise sheet, keeping our caucus up to date.

Then, of course, as every one of us, we have great administrative staffers. Al Victor, who came to the office as a young kid from Long Island, as a young helper in the Long Island office, is now my unflappable executive assistant. No matter how tough and tense things get in our office—and they do—she is just as steady as a rock, getting things done. She and her colleagues, Megan Runyan, Alice James, Jessica Bonfiglio, Kristin Mollet, Rob Kelly, Ellen Cahill, Claire Reuschel all kept us administratively going.

I mentioned the Members. They are great. I have so much to say about each of them. I want to thank Chairman LEAHY, who is probably on his way back to his beautiful farm in Vermont, for shepherding this bill through the Judiciary Committee. Everyone has praised his open and inclusive process. It is well known.

I want to thank Bruce Cohen. This is the capstone of his career. We all know how important he is to the Judiciary Committee. His big shoes were ably and elegantly filled by Kristine Lucius as chief council. But J.P. Dowd and Matt Virkstis, John Amaya, Lara Flint, Alex Givens, Chris Leopold, and Anya McMurray all did a great job.

As most people know around here, HARRY REID is one of my best friends in the world, and his unwavering support and confidence that we could get this done was essential. He had the great staff who lent constant help to us: David Krone, Bill Dauster, Serena Hoy, Kate Leone, Bruce King, and Angela Arboleda all did a great job.

The staffs of the other Members, I wish to mention a few of them also. I hope they are listening: Kerri Talbot, Darissa Wilhite, and Molly Groom of Senator MENENDEZ's staff; Joe Zogby, Mara Silver, and Vaishalee Yeldandi with Senator DURBIN; Jonathon Davidson and Sergio Gonzales who work with Senator BENNET. So many staffers.

As I said, we got to know each other very well, through all the meetings. We had a lot of disagreements and tough arguments. We all stuck together. And Senator FEINSTEIN's team—Senator FEINSTEIN put that agriculture section together. Amazing. The growers and the farm workers are for this bill. That is because of the great leadership of Senator FEINSTEIN. Chris Thompson, Neil Quinter, and Kim Alton all did a great job there.

We worked as closely in this endeavor with the Republican staffs as well as the Democratic staffs, and I owe them a great deal of thanks: Cesar Conda, Sally Canfield, Enrique Gonzalez—let me pay him a compliment. He was sort of the equivalent—not quite, in my opinion, but close to the equivalent—of Leon Fresco on the Republican side. Also, John Baselice, Senator RUBIO's staff; Mark Delich and Katherine Zill with Senator MCCAIN; Matt Rimkunas, Sergio Sarkany, and David Glaccum with Senator GRAHAM.

When we had our meetings, all of these staffers were there.

Chandler Morse, at first he was giving Senator FLAKE some tough advice, and just as Senator MCCAIN would talk about Leon, I would talk about Chandler. I now owe him a dinner.

I said: Chandler, I am taking you out to dinner if this bill passes the Senate. Pick your restaurant. Don't make it too expensive.

And Elizabeth Taylor, who also works with Senator FLAKE. Then the great floor staff: Gary Myrick and Tim and Trish and Meredith and Tequia, Dan, Brad, Stephanie—they run the place like clockwork, as recently as today when there were more requests for time and people had to go home at 4 o'clock.

Emma Fulkerson of Senator MURRAY's staff; Reema and MJ on Senator DURBIN's staff who did a great job, and, frankly, Dave Schiappa and the Republican floor staff as well.

We got a lot of help from the Senate appropriations, finance, and budget committees, and I thank them.

I also want to thank the rest of my staff in New York and in DC. They are the wind beneath our wings. If we didn't feel good and safe in New York, we couldn't take the risks we do here Washington, and they make that possible. So I thank them all.

Finally, Leon, always making sure everything goes exactly right. So I want to thank the legislative counsel staff who worked 24/7 to turn these legislative ideas into the 1,000-page bill, as has been remarked about over and over, and it needed that many pages because it was so complicated. But they did a great job as well.

So, once again, to my staff, from Mike Lynch all the way through, I think, as every Member probably thinks, I have the best staff on the Hill. It is certainly the best staff I have ever had in 39 years as a legislator. Without them, we couldn't do it.

So tonight we are going to celebrate the going away and the ascension of one of our old-time staffers, and we will all have a great time together. But I am blessed. I am blessed to have a family, my wife and daughters who put up with me through thick and thin. I am blessed to have two other families, my Senate colleagues, who I do regard as my family, and my staff, who I also regard as my family. So though I am not Irish, I have a big, big, big family, and they are the greatest, all three.

With that, Mr. President, I yield the floor. I thank the Senator from Rhode Island for his graciousness.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I believe under the pending order I have the floor, but I wish to yield to the Senator from Illinois for a few minutes. Then I ask to be recognized at the conclusion of his remarks.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. Mr. President, I thank the Senator from Rhode Island, and I thank the Presiding Officer. I wish to join my colleague, Senator SCHUMER, first thanking him for his leadership and bringing us together. With Senator MCCAIN, they led the eight-Senator effort to put together this comprehensive immigration bill which was enacted by the Senate today by a vote of 68 to 32. Many thanks go around.

I have acknowledged the other Senators who are part of that gang, but I wanted to give special recognition to four of my staffers who worked overtime and did an extraordinary effort to put this bill together: First and foremost, Joe Zogby, my chief counsel on the Senate Judiciary Committee. He was there at the creation of the DREAM Act, and he has been with me ever since, some 12 years of dedicated effort to pass this legislation on the floor of the Senate, and we did it today. It never would have happened if Joe hadn't devoted so much energy and talent into making this day possible. I also will tell my colleagues that his name is well known among those who are DREAMers. So many times Joe has saved them from deportation when they were just minutes or days away from that happening. He has a heart of gold and a great mind, and I am lucky to have him.

Mara Silver, an extraordinary lawyer who took on aspects of this bill that were tough, including refugee and asylee sections that have virtually no constituency. There are sections of the

law that affect some of the most downtrodden people on Earth who face oppression in other countries. She came to it with the heart of a lion and came through with some provisions that will give many of these asylees and refugees their chance to prove they need help and deserve help in the United States.

And Vaishalee Yeldandi and Stephanie Trifone, who sat through meeting after weary meeting putting together the provisions we needed to work out. I can't say enough for the staff people when they do this type of Olympic and heroic effort, as under this comprehensive immigration reform. I am fortunate to have an exceptional staff both in the State and back in Washington.

Those four deserve special recognition today for the extraordinary job they did.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. GRAHAM. Mr. President, I hate to interrupt the Senator. Would the Senator be willing to yield for 2 minutes so I can thank some people on the immigration bill? I promise I will take no more than 2 minutes.

Mr. WHITEHOUSE. Mr. President, let me respond to the distinguished Senator. The answer is yes. I also see our distinguished chairman of the Finance Committee and his ranking member on the floor. I understand they have a colloquy they wish to engage in. Do they have an estimate as to how long they wish to engage in that colloquy?

The PRESIDING OFFICER. The Senator from Montana.

Mr. BAUCUS. Mr. President, might I ask the Senator from Rhode Island how much time he wishes to speak?

Mr. WHITEHOUSE. I have about 15 minutes. What I propose to do—I do not know how long the Senators wish to take. What I propose to do is yield to Senator GRAHAM for such time as he may need.

Mr. GRAHAM. Two minutes.

Mr. WHITEHOUSE. And then——

Mr. BAUCUS. Mr. President, I am fine. I think we should wait, let the Senator from Rhode Island proceed with his statement, and if the Senator from South Carolina wants to go ahead——

Mr. GRAHAM. OK. That is fine.

Mr. BAUCUS. Whatever the two Senators work out, great.

Mr. WHITEHOUSE. I yield the floor to Senator GRAHAM.

The PRESIDING OFFICER. The Senator from South Carolina.

IMMIGRATION REFORM

Mr. GRAHAM. Mr. President, to all my Senate colleagues, today was a good day, a historic day for the Senate. Thank you all, whether you opposed or supported the bill. It was a great debate.

To the staff, this bill could have died a thousand times. You would not let it.

To Matt Rimkunas, you are awesome. Sergio Sarkany and David Glaccum of my staff, thank you for endless hours of work below minimum wage.

Mark Delich, in Senator MCCAIN's office, thank you for working for Senator MCCAIN. Your reward will be in Heaven.

Chandler Morse, you are awesome working for Senator JEFF FLAKE.

Enrique Gonzalez, you are one of the smartest people I have ever met. Jon Baselice, Senator MARCO RUBIO was a game changer.

Leon Fresco was the star of the show. Stephanie Martz, you kept Leon and Senator SCHUMER from killing each other. Well done.

Joe Zogby, thank you for being a strong voice.

Kerri Talbot, for Senator BOB MENENDEZ, you always reminded us we are dealing with people.

And to Sergio Gonzalez, in Senator MICHAEL BENNET's office, you all were an incredible calming force.

To Senator HATCH, you came into the debate at a time when we needed a lift. ORRIN HATCH, I want to thank you profusely for jumping into the debate, adding to the momentum that was created by the so-called Gang of 8. You provided momentum in committee. It meant a lot.

To KELLY AYOTTE, you jumped on board at a time when people were talking about what was bad with the bill. You came out to give us a No. 5, along with Senator HATCH, to give it momentum. That was an act of tremendous political courage and you did the country a service by standing up and standing out at a time when it was tough.

To Senators HOEVEN and CORKER, you put us over the top. I have never enjoyed working with two people more. But Senator BOB CORKER and Senator JOHN HOEVEN, your efforts to come up with a new amendment, along with Senator HATCH and Senator AYOTTE, really made the difference.

I wanted to recognize these people—that they came along at a time when America needed them—and this bill is the result of the hard work of many people at the staff level, but key Senators who were not in the original bipartisan group came to the aid of the cause at a time we needed it.

I will yield.

Thank you very much for allowing me to say these words.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. Mr. President, I want to thank my colleague from South Carolina for his kind remarks. He is right, a lot of these folks came to the forefront on this bill.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, let me also congratulate our friend Senator GRAHAM for his extraordinary leadership.

CLIMATE CHANGE

Mr. WHITEHOUSE. Mr. President, it has been an extraordinary day in the Senate. It shows the kind of progress that can be made even on bedeviling issues when persistence and optimism are brought to bear. I hope my continued efforts on climate change will ultimately produce, with the same persistence and optimism, the same success we have seen today on immigration.

This is the 37th time that I will have come to the floor to urge my colleagues to wake up to the threats we face from climate change, to wake up and stop hiding behind the distortions that are spread by the fossil fuel interests, and to start heeding the warnings of scientists, of economists, of insurers, of businesses, of national security officials, of religious leaders. They all say something needs to be done, and fast, to stave off the harm of carbon pollution.

For the first time in this speech, I can say that something at last is being done. This Tuesday President Obama laid out a national plan to reduce carbon pollution and to prepare our country for the effects of climate change. His plan is a bold one, and it is going to challenge the status quo. Most importantly, the administration will regulate greenhouse gas emissions from new and existing powerplants. If we are going to be serious, we need to strike at the heart of the problem, and regulating these big powerplants is the best first step.

And let's face it, until now these big polluters were getting a free ride. They were harming all of us with their emissions and paying no price for it.

Carbon-driven climate change hurts our economy, damages our infrastructure, and harms our public health. Economists call this price we all pay the ''social cost of carbon'' because it represents the cost that polluting corporations offload onto the rest of us, onto the rest of society.

Earlier this month the Obama administration revised its estimate of the social cost of carbon to $36 per ton of carbon dioxide emitted. This new estimate better captures the true harm of carbon pollution to our oceans, to our farmland, to ourselves, and I commend the President for strengthening our economic assessment of climate change.

The administration's measure still falls short of some experts' calculations, however, such as the comprehensive review that prompted far-reaching climate change legislation in the United Kingdom. I think our estimate should be still higher to accurately reflect the costs of climate change, and I think the best way to address the mounting social cost of carbon is a carbon fee.

If we start charging these corporations a fee, based on the social cost of their carbon pollution, that will factor those costs into their business models, and that is economics 101.

A carbon fee, in other words, makes the market work properly by putting the costs of carbon pollution into the price of the product, instead of letting

the big polluters freeload on the general public.

It is a simple choice. Do we want the American people—children and seniors, small business owners and homeowners—to pay the price of carbon pollution or do we want to have the corporations behind that pollution take responsibility for the harm, to balance the energy markets, and to encourage American clean energy technologies?

We are already hearing the familiar refrains of the deniers, the skeptics, and the big polluters, trying to scare us into protecting the status quo. A carbon fee ''slows down our ability to compete,'' claimed one of my Republican colleagues. ''The cost of nearly everything built in America would go up,'' declared another.

The Speaker of the House warned that if we put a price on carbon—and I quote—''the United States economy would suffer, millions of family-wage jobs would be lost, and American consumers would incur dramatically-higher prices for energy and consumer goods—all without any significant environmental benefit whatsoever.''

These are scary predictions, but are they true?

Actually, the World Wildlife Fund and the Carbon Disclosure Project found that investments to reduce carbon pollution yield greater financial returns for companies than do their overall capital investments.

So never mind the huge environmental benefits. Cutting back on greenhouse gas emissions by 3 percent each year would save U.S. businesses up to $190 billion a year by 2020 or $780 billion over 10 years. That supports American leadership in new clean energy technologies, powering our economy. So it should overall be good for business.

What about American families? The nonpartisan Congressional Budget Office estimates a carbon fee starting at around $28 per ton of carbon dioxide emitted—which is within the price range recommended by economists—would result in a 2.5-percent increase in costs for the lowest income households, and a 0.7-percent increase for the richest ones. It is higher for low-income families because they are likely to spend more of their budget on home heating, on gas, and on other energy.

What the carbon fee fearmongers overlook is the substantial revenue generated by a carbon fee. According to CBO, a fee starting at $20 per ton would raise $1.2 trillion over the first 10 years. That revenue does not just disappear.

When Senator SCHATZ, Congressman WAXMAN, Congressman BLUMENAUER, and I put forward a carbon fee discussion draft earlier this year, we left the use of the proceeds from the fee open for discussion. We want to work with other Members—particularly with those on the Finance Committee, whose leadership I see here—to find a use for the revenue to put that revenue to work for the American people and to propel the economy. Every penny of that carbon fee revenue could go back to the American people.

There are a lot of ways to do this, so let's consider a few examples. We should start by setting aside about $140 billion—or 12 percent of the total—to help lower income households pay for their 2.5-percent cost increase. That would leave us with more than $1 trillion to send back to people in other ways. That is a lot of money, even by Washington standards, and it can do big things.

For starters, $1 trillion every 10 years would go a long way toward reducing the national debt. Listening to some of the apocalyptic language used by Republicans about our national debt, you would think they might be interested in this.

What are some of the other ways we could return those carbon revenues? Well, you could send out checks directly to the American people for about $900 per household or $360 per citizen every year. I know there are plenty of families in Rhode Island who could use an extra $900 a year, and these dividends would go right back into the economy because those families would spend it quickly. Or we could give seniors a raise. According to the Census Bureau, as many as one in seven Americans over 65 lives in poverty. In 2010 and 2011, seniors saw no Social Security cost-of-living adjustments, even though their costs for food and medicine and heating oil continued to rise. With the revenues from a carbon fee, we could raise the average benefit by $1,600 a year or $130 a month. Last year that would have been an 11-percent raise for every senior. Imagine that. And seniors living on fixed incomes tend to spend every dollar they get, so this money too would come right back into the economy.

What about students? The outstanding government-backed student loan debt in the country rose to a record $958 billion last year. With $1 trillion in carbon fee revenues, we could forgive all the Federal student loan debt American families are now carrying—boom, done, gone. Or we could cut every student's and graduate's debt in half, saving Americans $45 billion a year in loan payments next year alone, and double the maximum Pell grant from $5,500 to a little over $11,000, and still have money left over to permanently set the rate on subsidized government loans for undergraduates at 3.4 percent. That is the rate currently set to double next month if Congress does not act.

Or we could use the $1 trillion to lower the top corporate tax rate from 35 percent to 28 percent. That reduction was Mitt Romney's corporate tax goal, and we could do it, without adding a dime to the deficit. That is why Republicans such as George Schultz, Art Laffer, one of the architects of President Reagan's economic plan, and others have expressed support for a revenue-neutral carbon fee.

I have highlighted these four proposals to show we could do big things with a carbon fee. These proposals, or some combination of them, or other ideas, are all possibilities opened by carbon fee legislation. Shouldn't we have that discussion? Wouldn't that be better and more honest and more productive than trotting out the tired tall tales of climate denial, better than pretending it is a hoax?

President Obama has defined the growing menace of climate change as ''the global threat of our time.'' It is. It is this challenge by which our generation will be judged. The grownups know it, NASA and NOAA and all the major American scientific organizations, the Joint Chiefs of Staff and our military leaders, a who's who of America's top corporate leadership, the property casualty and insurance industry, the Conference of Catholic Bishops—the list goes on.

It is time for us to wake up and meet our solemn responsibility to our country and to its leadership role in the world, and we can do so in a way that allows us to do big things that will help the American people.

As the President said, that is our job. That is our task. We have to get to work.

I thank the distinguished chairman of the Finance Committee and his ranking member for their courtesy.

I yield the floor.

The PRESIDING OFFICER. The Senator from Montana.

IMMIGRATION REFORM

Mr. BAUCUS. First, I very much thank my colleague from Rhode Island for all his work in many areas, a great Senator, a great statesman, and a great representative to the people in the State of Rhode Island, and also for his work on the resource legislation which he mentioned.

At this point I want to add my thanks to all of those who worked on the recently passed immigration bill. Senator GRAHAM made a point of thanking Senators. I want to also thank all of the so-called Gang of 8: Senator SCHUMER, Senator MENENDEZ, Senator RUBIO, Senator BENNET, Senator DURBIN, Senator GRAHAM, Senator FLAKE, and Senator MCCAIN for their great work. They worked very hard to get that bill together, and of course, Senator CORKER and Senator HOEVEN came up with the key amendment to put the bill over the finish line.

My hat is off to the chairman of the Judiciary Committee Senator LEAHY and of course our leader Senator REID, who marshaled those efforts. They did a great job. There is no end to the commendation they should receive.

TAX REFORM

Mr. BAUCUS. The philosopher Bertrand Russell said, ''The greatest challenge to any thinker is stating a problem in a way that will allow a solution.''

I come to the floor today with my good friend Senator ORRIN HATCH to state our concerns about a national problem that is holding back our economy. We are here to call on our colleagues to provide ideas that will allow a solution.

First, the problem. America's Tax Code is complex, it is inefficient, and it is acting as a brake on our economy. Senator HATCH and I believe it is in need of a serious overhaul. It has been close to three decades since the last major revision to the Tax Code. In that time Congress has made about 15,000 changes to the Tax Code. The Code now contains nearly 4 million words. Here it is, right here. The Tax Code. This is America's Tax Code, all 24 pounds of it. Paperback. Think how heavy it would be for hard cover. It would take more than 18 days nonstop to read the Tax Code. In fact, it takes the average taxpayer 13 hours to gather and compile the receipts and forms to comply with the code. It costs Americans $160 billion a year to comply with the code, let alone the taxes Americans pay. This complexity in the code is eroding confidence in our economy and creating uncertainty for America's families and businesses.

Clearly, the Tax Code is broken. That is the problem. It is a serious one. The solution calls for a more simple, more fair Tax Code, one that will allow the economy to grow and to create jobs. For the past few years, Senator HATCH and I have been working closely with all of the members of the Senate Finance Committee to reach that goal of comprehensive tax reform. We have held more than 30 hearings. We have heard from hundreds of experts about how tax reform can simplify the system for families, help businesses innovate, and make the United States more competitive.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. Mr. President, I want to thank my friend from Montana for all the hard work he has done with regard to the Senate Finance Committee and of course the tax problems we have in this country. He has been truly dedicated to reforming our Nation's Tax Code and truly dedicated to doing it in a bipartisan manner, which is something I very much appreciate.

Our work together is starting to pay off. Tax reform is building momentum. Over the past 3 months we have issued 10 bipartisan options papers that detail reform proposals in every area of the Tax Code. The full committee has met on a weekly basis to discuss these options. We have made tremendous progress. We are now entering the home stretch, all of this under the leadership of Senator BAUCUS.

Senator BAUCUS and I are here today to call on all of our colleagues—all of our colleagues—in the Senate to now provide their input to help us get tax reform over the finish line. We have a historic opportunity to do tax reform this Congress, to make the code simpler and fairer for the people we serve.

We are determined to make it happen, but we need every Member's participation. In order to make sure we end up with a simpler, more efficient, and fairer Tax Code, we believe it is important to start with a blank slate, a Tax Code without all of the special provisions in the form of exclusions, deductions, credits, and other tax preferences that some refer to as tax expenditures.

Mr. BAUCUS. Mr. President, I might say this blank slate is not, of course, the end of the discussion. You do not clear the decks and stop. Some of the provisions in the code obviously serve very important objectives. That is why they made it there in the first place. Some we will need to keep, clearly. Why? To make sure the Tax Code is at least as progressive after tax reform as it is today.

I want to emphasize this approach is just a starting point. It is not a proposal. This is a good, fair, balanced way, a good-faith way, of including all Members of the Senate to get started. We believe it is going to lead to a solution, kind of the way Bertrand Russell suggested: You have to state the problem the way that it is going to lead to a solution. We think this is a good way to get to that solution.

Mr. HATCH. Mr. President, we both believe some existing tax expenditures should be preserved in some form, but the Tax Code is also littered with preferences for special interests. To make sure we clear out all of the unproductive provisions and simplify the Tax Code, we plan to operate from an assumption that all special provisions are out unless there is clear evidence that they, No. 1, help grow the economy; No. 2, help make the Tax Code fairer; and, No. 3, effectively promote other important policy objectives.

Mr. BAUCUS. Now that we have a blank slate, we are asking all Senators; that is, all Senators, Senators on the committee, Senators off the committee—to submit detailed legislative proposals; that is tax expenditures, the credits, the deductions, exclusions, which they think should be added back that meet the test for growth and for jobs, as well as any other provisions Senators might have in mind that they think should be added or repealed, that they think make sense or other reforms they think make sense.

In order to help guide our colleagues' submissions, we have released some rough estimates the Joint Committee on Taxation and our staffs have been working on. These estimates show how much the rates would rise, for example, if we add back tax expenditures and keep the current level of progressivity compared to a blank slate.

We put this out today. Why? Because we wanted everybody to know there is a tradeoff involved; that is, when you keep tax expenditures, there is going to be an increase in rates, certainly compared with what otherwise we start with. The more tax expenditures there are, the less revenue there is for a rate reduction and deficit reduction, and the more complicated our Tax Code will end up being.

Mr. HATCH. We are giving Senators 1 month to send us their submissions. We will give preference to bipartisan proposals. This input will make up the foundation of the committee's tax reform proposal. We want to ensure the bipartisan bill we introduce has broad input and buy-in from across the Senate. We cannot let comprehensive tax reform get bogged down in politics. Only a bipartisan bill can become law.

Mr. BAUCUS. We also need to remember, this is not just about tax expenditures. There is much more to it than confining our discussion to tax expenditures, because at its core tax reform means making the Tax Code more fair, easier to deal with for families all across our country. There are a lot of loopholes, on the other hand, in the code we should get rid of. People who can afford fancy tax advisers should not be able to take advantage of loopholes regular Americans do not have available to them. As chairman and ranking member of the committee, we are determined to complete tax reform this Congress. We cannot afford to be complacent. Improving the Tax Code provides a great opportunity to spark economic growth, to create jobs, and make U.S. businesses more competitive.

I might add at this point, other countries are modernizing their codes. We are going to be left in the dust if we do not modernize ours. We need to hear from our colleagues as to what provisions they think will help us reach those goals.

I have a great partner in this mission, my good friend Senator HATCH. I will keep communicating and working with the administration and the Senate leadership as we move forward.

Working together we can get this done. I believe strongly that nothing of consequence ever happens around here if one person tries to accomplish something alone on his or her behalf; rather, matters of consequence are accomplished when people work together. We clearly want a matter of consequence to pass here. We will do so by working together.

Mr. HATCH. It is a privilege to work with Senator BAUCUS, our chairman, on improving the Tax Code, on updating it for the 21st century. This provides a great opportunity to give families certainty, spark economic growth, create jobs, and make U.S. businesses more competitive. If it is done right, it can provide America with a real shot in the arm.

My friend from Montana began this discussion with a quote. I feel it only appropriate to conclude with one as well. Abraham Lincoln said, ''Determine the thing that can and shall be done, and then we shall find the way.''

We are determined to craft a fairer and simpler Tax Code. Working together, I think we can find a way.

I want to compliment the distinguished Senator from Montana for the

work he has already done, for the work the committee has already done, the hearings we have held, the meetings we have held on these options papers, and for his general zeal in leading the charge here on this question of shall we or shall we not reform our Tax Code.

If you look at that stack of Tax Code books that stood this high, you realize it is time to simplify this doggone mess. I think we can do it, but it is going to take a bipartisan effort. It is going to take all of us working closely. It is going to take everybody on the Finance Committee doing what it takes to bring tax reform alive.

In 1986, it took 3 years to get the 1986 bill done. I do not think we have 3 years. I think we are going to have to do it now or it will not be done.

I want to personally express my admiration and friendship to the distinguished Senator from Montana. I intend to help him every step of the way.

I believe we have a tremendous contingent of Senators on the Finance Committee, as good as any time that committee has been staffed in the history of the Finance Committee. The Senators we have there are all solid. They are all fully embracing this in the sense of trying to come up with the very best reform we can.

I have to say we have the best staff that committee has ever had as well. That is saying something, because it has always had great staff. The Finance Committee has always been one of the greatest committees in the Congress, as it should be. I have to say, under the leadership of the distinguished Senator from Montana, it is no exception this time. We have great people on the staff. We intend to see if we can get this done.

I want to thank my colleague for his great work.

Mr. BAUCUS. I thank Senator HATCH. It is mutual.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

STUDENT LOAN INTEREST RATES

Mrs. SHAHEEN. I rise to congratulate all of these people who worked so hard on immigration reform. I think it was a tremendous success for this Senate to address an issue that has long been outstanding in this country and to come to a resolution that received such strong bipartisan support.

Despite that success one of the things we were not able to do is address what is going to happen with student loans which, without any action by Congress, we know that subsidized direct student loans will increase on July 1 from 3.4 percent to 6.8 percent.

There are a number of proposals currently on the table. There are negotiations underway, and I think all of that is positive.

As we think about the challenge our young people face, it is important we think about getting rid of obstacles that prevent them from going on to college and from getting degrees in higher education.

Last month I had the privilege to speak at the commencement ceremony at Keene State College, one of New Hampshire's great public colleges. The students were celebrating their graduation. They were eager to put their education to work and find meaningful employment. Their optimism, their sense of hope, and their enthusiasm to make a difference was palpable.

As I looked out across the audience that afternoon, I knew that a number of those students, probably up to 66 percent, according to national statistics, had borrowed money to get their degree. These students and their families viewed higher education as so important that they were willing to take on significant loans to get that degree. It made sense for these students, particularly since recent studies have shown that higher education is one of the key factors driving upward mobility in the United States.

Earlier this year the Pew Foundation's Economic Mobility Project showed that even during the most recent economic downturn, a 4-year college degree provided protection in the labor market for recent college graduates.

Making college affordable for our students is essential to growing this country's economy, it is essential to creating jobs, it is essential to protecting the middle class, and it is essential to providing those future opportunities for our young people.

On the one hand we know we have to make higher education more affordable and available to our young people. Yet on the other hand, over the last 30 years, tuition and fees have increased 167 percent at private 4-year colleges and 257 percent at public 4-year colleges. If we adjust that for inflation, that means tuition has increased faster than the cost of gasoline, health care, and other consumer items.

As we are thinking about how to deal with these student loan interest rates, it is important that we provide some protection for our students. If we don't, we are going to price middle-class families out of a higher education.

In my State of New Hampshire the student loan debate is especially critical. Last year, and for several years before that, New Hampshire had the highest average student loan college debt in the country at a little over $31,000 per student. Not only do we have the highest average loan debt, we also have the second highest percentage of students with debt in the country.

As I listen to these young people, I know the high cost of student loans is financially crippling. We have heard from some of those students who talk about the challenge they face as the result of the cost of their student loans.

Julianne from Gilmanton wrote ''her education is crushing her.'' She earned a master's degree, she works for a New Hampshire State agency, and is an adjunct faculty member at two local colleges. To finance her education, one that she thought and people told her would guarantee a job after graduation, Julianne took out more than $220,000 in loans. Last year alone she paid over $13,000 on those student loans. She can't buy a house. She can't secure credit. Even though she makes a respectable income, she says she can't pursue being an active member of the community because she has those student loans hanging over her head.

Lauren Beaudin is another young person we have heard from. She graduated from West High School in Manchester a couple of years ago, and she received an undergraduate degree in biology. Her degree is in one of the STEM subjects, one of the things that is so important to this country. When she graduated she looked at her job options. After considering some entry-level jobs that paid $25,000 to $30,000, she decided she needed to go on and get a master's degree, which would provide her better opportunities.

She is now 22, enrolled in a master's of biology program, and has accumulated already over $100,000 in loans. She is concerned about struggling to find a job.

She writes:

> I am not alone. This an entire generation of my peers in this country who did the same. We followed our dreams and earned our degrees because this is America, and you can be what you want to be, as long as you work hard. We have worked so hard. We will keep working hard. But will it be enough? What will it be like for our kids when we are still burdened by our loans after we start families and they [our kids] want to go to colleges with even higher tuition and borrowing rates?

Recently, I had a chance to speak with Barbara Ruth Layne, who is the executive director of Financial Aid at Granite State College, one of our other public colleges in New Hampshire.

Last year alone Barbara and her colleagues helped students access $9 million in Federal loans, significant help for students who want to get that advanced degree and need financial help to do that. Barbara is quick to point out that the number of students helped and the amount of financial aid they have received doesn't illustrate the human cost those loans take on a student.

To illustrate the point, she told me the story of a student who lives in the North Country of New Hampshire. The student is 35, and she has two young children. She struggles to make ends meet. She gets child support sometimes, and she supplements that income with food stamps. She visits the local food pantry. Her children get clothing from the local church. In the winter she gets some fuel assistance, not enough, because we have had to cut the fuel assistance program, so she borrows money from her family to use a kerosene heater on cold nights to heat her home.

This student understands that education is her only way out, the only

way she can break the cycle of poverty. She met with counselors at Granite State College and developed an educational plan. Although she is being careful in borrowing, the debt she is going to graduate with is more than she has ever earned in her working years in 1 year. While her education is going to prepare her for the job market, she knows the payoff isn't immediate. She will continue to struggle to make the payments on those student loans and to care for her family.

With a budget such as she is dealing with, any additional cost of those student loans is going to impact this woman and her family.

Similar to so many of us I have been moved by these students who have worked so hard to achieve their education goals and the jobs of their dreams. They recognize education is an investment and higher education is the path to middle-class success and economic opportunity.

I think higher education is one of the best investments we can make in our country. It is important not just to those young people who are getting those degrees to give them the jobs that make them prosperous in the future that they are going to be able to support families on, but it is critical for America to compete in the global economy. We should be doing everything we can to make America a magnet for jobs, to ensure our workers have the skills they need to compete, and to help Americans get ahead.

We have to do everything we can to make sure we keep higher education affordable for our young people. We must address those costs and not try to balance the costs of higher education on the backs of our students.

I am hopeful we will continue to work on how we address the student loan interest rate, that we will be able to come to some agreement on how to do that in a way that is not going to cost our young people their futures, is not going to cost America its future, and is not going to price families out of the cost of higher education.

I yield the floor.

Mr. BENNET. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. BENNET. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

THANKING SENATOR COWAN

Mr. BENNET. Mr. President, I first wish to say how wonderful it has been to serve with you in the Senate. As you take your leave to go back to the real world in Massachusetts, we all wish you well and we thank you for everything you have done while you have been here, especially the good cheer you brought to our caucus. Thank you very much.

IMMIGRATION REFORM

Mr. BENNET. In the vein of thank-yous, I wanted to come down after this historic day, passing this historic bill, to say some thank-yous. I have already thanked my colleagues in the Gang of 8 and the other Senators who worked so hard on this bill, and there will be a time to do that on another occasion.

Sometimes people have asked me during the course of my checkered career: How did you get to do this? Why did they let you do this? How did somebody with no apparent skill or aptitude for public education, for example, get to run the Denver Public Schools, one of the most cherished things I have ever done.

My answer has always been the same, which is the key is to find a bunch of people who are better at doing their job than you would ever be at doing their job. Assemble them, organize them around a project, a challenge or an obstacle and let them do their thing.

The Presiding Officer spoke eloquently about this yesterday when he thanked his personal staff and the Senate staff on his way back to Massachusetts.

I ask unanimous consent to submit the list of staff for the RECORD.

There being no objection, the material was ordered to be printed in the Record , as follows:

Staff Thank Yous:
Senator McCain: Mark Delich;
Senator Durbin: Joe Zogby, and Mara Silver;
Senator Graham: Matt Rimkunas;
Senator Menendez: Kerri Talbot, and Molly Groom;
Senator Flake: Chandler Morse

Mr. BENNET. Of all the staff in the Senators' offices who worked on this bill, I will take further time tonight to mention a few names. First, I thank people on my staff, Rachel Velasquez and Stefanie Aarthun, who did amazing work, both of them, over many months on this bill and not only here. Also, we worked on the Colorado Compact in the State of Colorado. This was what enabled us to be part of this conversation.

I have thought throughout this process how important the work was that we did in Colorado in preparation for this moment, to get to this moment. It simply would have been impossible to succeed at producing what we call the Colorado Compact, composed of six principles. They were so bipartisan that when we had the press conference, the person who came to read the first of these principles was actually my Republican opponent in the 2010 Senate race, Ken Buck. I want to thank him for that and the others who were part of the compact.

I especially thank my deputy chief of staff, Sarah Hughes, who did an amazing job of pulling everybody together. She has been with me longer than anybody on my staff. Nothing I could have accomplished in the jobs I have had before and certainly not in this instance could I have done without Sarah Hughes.

The same goes for Jon Davidson, who is my chief of staff and who is a model for what a chief of staff in the Senate should be—or anywhere else, for that matter, but particularly here, where the pressures can be so extraordinary. His ability to attract an incredibly talented team of people who work on all kinds of issues, from immigration, to health care, to education, is incredibly important in the constituent service we do both here and in Colorado. Simply none of it would have happened if somehow I hadn't been lucky enough to hire Jonathan Davidson, who has been around this place, actually, as a young person, for a very long time, having been, among other things, Paul Sarbanes' chief of staff when he was the chair of the Banking Committee.

By my side both before I came to the Senate and in the Senate on this issue has been Sergio Gonzales, who has worked tirelessly. ''Tirelessly'' doesn't even capture it—24 hours a day, 7 days a week, it has felt like. He certainly looks that way. He won't appreciate my saying that, but it is true, and people who know Sergio will know what I am talking about. He has done an amazing job with a sense of humor and has served not just me during this but the entire Gang of 8, and we will be forever grateful.

There were many times during this process that I have thought about Sergio's grandfather and his grandmother. His grandfather, Corky Gonzales—Rodolfo ''Corky'' Gonzales—played such an important role in Colorado's history and the history of the West, and a library was just named for him last week. I have wondered what he would think about knowing we live in a country where his grandson has helped to shepherd across the line the most important immigration reform in this country's history. So I thank Sergio Gonzales for his leadership as well.

None of this would have been possible without CHUCK SCHUMER, whom I talked about earlier. None of it would have been possible without his incredible staff: Leon Fresco, Stephanie Martz, Mike Lynch, his chief of staff—all of whom did an extraordinary job of keeping us on track and keeping Chuck on track, and I deeply appreciate that.

The others I wanted to mention while on the floor today are the staffs of the people with whom we negotiated the agriculture provisions of this bill. DIANNE FEINSTEIN did a great job leading that effort, with Chris Thompson, Neil Quinter, and Kim Alton, who all work for her. I deeply appreciate their work.

From ORRIN HATCH's office, Matt Sandgren did an excellent job all the way through.

I particularly want to say thank you to MARCO RUBIO's staff and their efforts to bring Democrats and Republicans together on this issue. This is the first time we have had an immigration bill where the agriculture provisions in the bill are endorsed by both the growers and the farm workers union. That has

never happened before. I thank all of them for doing that. We would not have accomplished that without some very late night meetings, and Enrique Gonzalez was always there along with John Baselice. He will never forgive me for that, and Enrique will never let me forget it, but they did extraordinary work on that part of the bill and other parts of the bill as well.

I thank the leader's staff—Serena Hoy—the Judiciary Committee staff, and the floor staff.

As I say, I have submitted names for the RECORD, but there are names here that are too often not mentioned on the floor of the Senate, so I want to read these names. These are the schedulers for the eight Senators who worked on this bill so hard for so many months.

The day I knew we were actually going to get this done was the day JOHN MCCAIN said in his office some months ago that unless we begin to meet three times a week, we are never going to get this done. As the Presiding Officer knows, that is an enormous commitment of time, to meet three times a week, and we did it week in and week out. Sometimes we weren't even in Washington but back home on the telephone, but we carved out the time to do it, and that could not have happened without the schedulers in our offices—from my perspective, certainly not without Kristin Mollet, who is my extraordinary scheduler. I told her at our first meeting—I don't know if I was interviewing her or she was interviewing me; it was probably a little bit of both—that the scheduler is the heart of the operation. If the schedule doesn't work, the wheels come off and nothing else works. Kristin Mollet has done an extraordinary job getting us through this process.

In no particular order, let me please say thank you to Alice James, with Senator GRAHAM; Megan Runyan, with Senator FLAKE; Rob Kelly, with Senator MENENDEZ; Claire Reuschel, with Senator DURBIN; Jessica Bonfiglio, in Senator RUBIO's office; and a very special thanks to Alex Victor, with Senator SCHUMER, and Ellen Cahill in Senator MCCAIN's office. We could not have done this without them.

In the story I told before about when I was a superintendent and working in business, not in politics—I had never run for office before when I took this job—I mentioned that the key is finding people a lot better at doing their job than you would ever be at doing their job. Well, that has never been more true than it has been in the Senate, where the quality of the work we do depends entirely on the quality of the staff we have. So I want to say thank you to all the Senate staff for their efforts.

FREEDOM OF INFORMATION ACT ANNIVERSARY

Mr. LEAHY. Mr. President, this Independence Day will mark the 47th anniversary of the enactment of the Freedom of Information Act, FOIA. For more than four decades, FOIA has translated our great American values of openness and accountability into practice, by guaranteeing access to government information. In so doing, this premier open government law has helped to guarantee the public's ''right to know'' for generations of Americans.

The anniversary of the enactment of FOIA is a timely opportunity to take stock of the progress we have made in improving transparency in government, as well as the challenges that remain when citizens seek information from the Federal Government. Today, we are witnessing an erosion of the public's trust in the institutions of government. According to a recent study by the Pew Research Center, trust in the Federal Government is at an historic low. In addition, a majority of Americans believe that the Federal Government threatens their personal rights and freedoms, according to the study.

To be sure, there are many reasons for the decline in the public's trust in the Federal Government. But more importantly, there is a time-proven cure for this troubling trend—an increase in government transparency.

To accomplish this, our Federal agencies must commit to the spirit, as well as the letter, of the President's pledge to keep the Federal Government open and accessible to the American people. While the Obama administration has made significant progress in improving the FOIA process, too many of our Federal agencies are not keeping up with the FOIA reforms that Congress enacted in the OPEN Government Act. A recent audit conducted by the National Security Archive found that more than half of all Federal agencies have not updated their Freedom of Information Act regulations to comply with this law.

Our Federal Government must also do a better job of balancing the need to protect sensitive government information with the equally important need to ensure public confidence in our national security policies. According to the Associated Press, during the past year, the Obama administration withheld more information for national security reasons in response to FOIA requests than at any other time since the President took office. Of course no one would quibble with the notion that some government information must be kept confidential. But as we have seen in the unfolding events surrounding the unauthorized disclosure of information about the NSA's secret electronic surveillance programs, excessive government secrecy can harm both the public's trust and our own national interests. That is why I have proposed and cosponsored legislation that will provide for greater openness and public reporting with regard to these broad surveillance authorities, as well as the legal opinions that interpret those statutes.

As we mark another FOIA anniversary, I join Americans from across the political spectrum in celebrating all that this law has come to symbolize about our vibrant democracy. After four decades, we have much to celebrate about this open government law. We in Congress also have much more work to do to help ensure that FOIA's values of openness and accountability remain in place for future generations of Americans.

AFRICA VISIT

Mr. DURBIN. Mr. President, I rise to discuss President Obama's trip to Africa that began yesterday. There is no shortage of important issues to address on the continent, from continued instability in eastern Congo, Mali, and Somalia, to autocratic government in Zimbabwe, Sudan, and the Gambia.

Yet there is also another story to tell in Africa—that of a growing and more prosperous middle class. In fact, in the past 10 years, 6 of the world's fastest growing economies were located in Sub-Saharan Africa and in the next decade, 7 of the top 10 will also be in Africa. A growing middle class is important not only for political stability and economic well-being, but also for American businesses that export—or want to export—to Africa.

It is an issue I have been trying to draw attention to for some time and one I am glad that the President has on his trip agenda, including by having U.S. Export Import Bank President Fred Hochberg along on his trip.

You see, every time I visit Africa I am struck by the presence of China—Chinese companies, Chinese products, Chinese workers, Chinese roads and bridges. It is not a coincidence.

China has a ravenous appetite for natural resources and also sees the great potential to sell Chinese goods to the burgeoning African market. And China has a strategy. It is aggressively investing resources and energy on the continent. It is offering low interest loans that cannot be refused.

I can remember a meeting a few years ago with the late Ethiopian Prime Minister Meles. Our meeting was almost over and then I asked about China. Meles went on for at least another 30 minutes. He told me what so many others have told me. Africa wants American products and investment—and the business, labor, and environmental standards that come with them—but America doesn't seem to have a plan. China, India and others do. The loss is ours in American jobs and influence in Africa. And the African people lose by not having access to high quality American goods and services.

I can also tell you American companies are eager to get into the African market, but often face a private finance system that is stuck thinking about Africa through the prism of its past—wars, famine, strongmen dictators. I have met with them—American companies big and small—and

they all tell me the same thing—the United States doesn't have a sufficiently coordinated export strategy for Africa while our global competitors do. The U.S. system of export promotion and finance is a poorly coordinated patchwork of more than a dozen government agencies that American businesses find too difficult to navigate and does not provide focused or aggressive support.

That is why earlier this year, Senators BOOZMAN, COONS, CARDIN, LANDRIEU, KIRK, BROWN, LEAHY and I introduced the Increasing American Jobs through Greater Exports to Africa Act of 2013. It is a straightforward and commonsense piece of legislation. At its simplest, this bill is about creating jobs—American jobs. It would require a coordinated government strategy to help increase United States exports to Africa.

Responsibility for overseeing the implementation of that strategy would be vested in a single position—no more agencies tripping over themselves, no more competing priorities, no more wasting time. It is supported by the Chamber of Commerce, the AFL–CIO, the Corporate Council on Africa, and the National Small Business Association.

President Obama understands the urgency of this issue. Every day we delay, China, India, and others fill the void created by a lack of American commercial leadership on the continent. The President understands that every $1 billion in American exports supports over 5,000 jobs here at home, which is why he has advanced his National Export Initiative. Our legislation would build on this effort and seek to expand U.S. exports to Africa by 200 percent in real dollar value over the next 10 years.

Mr. President, yesterday on the cusp of President Obama's trip to Africa, the Senate Foreign Relations Committee passed this legislation. The timing could not be better. It is good for the American economy by helping U.S. businesses create jobs here at home by tapping into a burgeoning overseas market hungry for our products. It is good for U.S. foreign policy by keeping America in a position to maintain our global leadership in a shifting geopolitical landscape. And it is good for the people of the African continent by making superior American products and business practices more competitive and financially accessible.

I urge my colleagues to sign on to support this critical effort. While we wait, the Chinese are acting and America is falling further and further behind in Africa.

TREATMENT OF GRAMEEN BANK

Mr. DURBIN. Mr. President, I rise today to once again voice publicly my concern with actions the Government of Bangladesh has taken and is poised to take with respect to Grameen Bank and the Grameen family of companies.

Grameen Bank has for decades been the pride of Bangladesh and the envy of the world. The brainchild of Professor Muhammad Yunus, the Bank pioneered a concept of lending that helped the very poor help themselves. Uniquely, the Bank was owned and governed by those very borrowers, giving them both an opportunity to succeed individually and a stake in the success of others.

For this, both the Bank and Professor Yunus have been recognized across the globe with awards and honors. Both were jointly awarded the Nobel Peace Prize in 2006. The United States has recognized Professor Yunus with its two highest civilian honors—the Presidential Medal of Freedom and, most recently just this April, with the Congressional Gold Medal.

Sadly, since 2010, instead of showcasing Grameen's efforts to lift countless Bangladeshis out of poverty, the Government of Bangladesh has instead engaged in what seems to amount to nothing more than carrying out a political vendetta against Grameen and Professor Yunus. This has resulted in Professor Yunus' forced removal from his position as Managing Director and changes to the governance of the Bank. I and many of my colleagues in the House and Senate, as well as the Obama administration, have repeatedly raised concerns at all levels of the Bangladesh Government over these moves.

We now understand that in the face of our continued objections and those from a wide swath of the international community, the Government of Bangladesh plans to hold a meeting on July 2 at which it is reported that they will finalize plans to take control of Grameen Bank.

Such a troubling move could jeopardize the stability of the Bank and put millions of borrowers, mostly women, who depend on it at risk of sliding back into poverty. It would likely gut the self-government that has been such a critical part of the great success of the Grameen experiment.

The Government of Bangladesh should think twice before taking such action.

Today, the U.S. Government took action against Bangladesh over another issue that has caused great concern—safety of the garment industry in Bangladesh. In response to several high profile garment factory accidents, the administration announced today that it will suspend Bangladesh's trade privileges with the United States.

I am certain this is not the image of Bangladesh that Prime Minister Hasina wants the world to see. In the last few years, Bangladesh has made great strides to rude poverty and to develop a vibrant civil society. The country has been contributed significantly to important international peacekeeping missions around the world.

It is a shame that the government's campaign against Grameen and its slow response to critical labor safety issues overshadow such achievements.

I urge the Government of Bangladesh to end this campaign against Grameen Bank and the Grameen family companies. The United States and, truly, the world are watching.

VOTING RIGHTS ACT

Mr. DURBIN. Mr. President, last week, the Senate unanimously adopted a resolution honoring the 50th Anniversary of Congressman JOHN LEWIS's leadership of the Student Nonviolent Coordinating Committee at the height of the Civil Rights Movement.

In the early 1960s, America's promise of equality at the ballot box went unfulfilled for African Americans. Literacy tests, poll taxes, and sometimes, angry mobs stood in the way of many African Americans trying to register to vote and cast ballots.

The members of the Student Nonviolent Coordinating Committee—or SNICK as it was called at the time—were inspired by and dedicated to America's promise of equality and democracy for all citizens, regardless of the color of their skin.

These high school and college-aged students led sit-ins. They educated communities about the right to vote. They conducted voter registration drives.

And many of these students marched for civil rights and voting rights with Congressman LEWIS and 600 others in Selma, AL on Sunday, March 7, 1965.

As television cameras rolled and the Nation looked on in horror, these nonviolent marchers were chased down by State troopers, beaten, and bruised so badly by police batons that the day was coined ''Bloody Sunday.''

A few days after ''Bloody Sunday,'' President Johnson addressed the Nation and called on the House and the Senate to pass the Voting Rights Act.

Shortly thereafter, in a moment of bipartisan courage, Congress passed the Voting Rights Act, guaranteeing that the fundamental right to vote would never again be canceled out by clever schemes devised to keep African Americans from voting.

Last week, the Senate honored these heroes of the Civil Rights Movement. On Tuesday, five Supreme Court Justices gutted a key provision of the law for which all of these heroes fought and some of them bled and died.

The Supreme Court's decision in Shelby County v Holder strikes down Section 4 of the Voting Rights Act, which established the formula for those jurisdictions that are covered by the Act's preclearance provisions in Section 5.

This has the effect of gutting Section 5 of the Voting Rights Act. Section 5 required jurisdictions in all or part of 16 States with a history of discrimination to get approval from the Department of Justice or a Federal court before making any changes to congressional districts or voting procedures.

Tuesday was not the first time that the Supreme Court ruled on a challenge to the Voting Rights Act.

Though it has been subject to legal challenges previously, the Voting Rights Act has always emerged intact and on sound legal ground until . . . yesterday.

For almost 50 years, the Voting Rights Act has always received overwhelming, bipartisan support in the Halls of Congress and in the Executive Branch.

Each of the four times that the Voting Rights Act has been reauthorized in 1970, 1975, 1982, and most recently in 2006—Congress has done so with the broad bipartisan super majorities that are all too rare these days.

That is because protecting the right to vote should not be a partisan prerogative. It is not a Democratic or Republican issue. It is a fundamental right for every eligible voter and it is a core value of our American democracy.

In 2006, the House of Representatives voted 390 to 33 in favor of reauthorizing the Voting Rights Act. The Senate voted unanimously, 98 to 0, to reauthorize the law. And the final bill was signed into law by President George W. Bush.

There was good reason for this bipartisan support for reauthorizing the Voting Rights Act. Congress developed an extensive record, holding 21 hearings, reviewing more than 15,000 pages in the CONGRESSIONAL RECORD, and hearing from more than 90 witnesses about the need to reauthorize the law.

On Tuesday, five activist Justices on the Supreme Court decided to completely ignore the extensive record of current and ongoing discrimination that Congress meticulously assembled just 7 years ago.

And you don't have to take my word for it.

Rep. JIM SENSENBRENNER, a Wisconsin Republican who was Chair of the House Judiciary Committee in 2006 and helped secure reauthorization of the Voting Rights Act, had this to say:

[t]he legislative record accompanying consideration of the Voting Rights Act is among the most extensive in congressional history.

I am disappointed that the Supreme Court ignored the Congressional findings in issuing this decision.

We all acknowledge the progress that our great country has made on civil rights and voting rights issues. Over time, our Nation has indeed grown to be more perfect—and more inclusive in some ways—than just a few generations ago.

But we are not yet a perfect union. And the jurisdictions covered by the Voting Rights Act have both a demonstrated history and a contemporary record of implementing discriminatory restrictions on voting.

The Supreme Court's decision acknowledges the progress our country has made in expanding the franchise. The Court also acknowledges that discrimination remains in our society today.

Nevertheless, five Justices on the Court have taken the extreme position of gutting the very law that has enabled that progress on voting rights and stands guard to ensure that that progress isn't rolled back.

As my Judiciary Subcommittee on the Constitution, Civil Rights and Human Rights found during a series of hearings I chaired last Congress, the Voting Rights Act remains a critical tool in protecting the right to vote.

All one needs to do is look to the last election cycle to understand the ongoing need for the Voting Rights Act.

After a careful analysis of new voter ID laws in Texas and South Carolina, the Department of Justice used its authority under Section 5 of the Voting Rights Act to object to the implementation of new photo identification requirements.

In Texas, according to the State's own data, more than 790,000 registered voters did not have the ID required to vote under the new Texas law.

That law would have had a disproportionate impact on Latino voters because 38.2 percent of registered Hispanic voters did not have the type of ID required by the law.

In South Carolina, the State's own data indicated that almost 240,000 registered voters did not have the identification required to vote under the State's new law.

That included 10 percent of all registered minorities in South Carolina who would not be able to vote under the new law.

That is more than 1 million registered voters who would have been turned away from the polls in Texas and South Carolina last year, if the Department of Justice did not have the authority under the Voting Rights Act to object to those photo identification laws.

Why did the Court neuter the Voting Rights Act?

Chief Justice Robert's opinion claims that the formula used to determine which States should be covered by the Voting Rights Act is not justified by ''current conditions'' of discrimination at the ballot box.

Had they not completely disregarded the 15,000 page CONGRESSIONAL RECORD, perhaps the Chief Justice and his four colleagues would understand the unfortunate fact that literacy tests and poll taxes may have died in the 1960s, but current, more sophisticated means of diluting minority voting strength are alive and well.

In 2001, for example, the city of Kilmichael, MS canceled an election because ''an unprecedented number'' of African American candidates decided to run for office. After the Department of Justice used the Voting Rights Act to require that the election move forward, the town elected its first black mayor and its first majority black City Council.

In 2004, officials in Walker County, TX threatened to prosecute two black students after they announced their candidacies for county office. When that threat didn't keep the students off the ballot, county officials tried to limit black turnout by reducing early voting only at polling places near a historically black college.

Not to be outdone, the State of Mississippi, in 1995, tried to reenact a dual voter registration system ''which was initially enacted in 1892 to disenfranchise black voters.''

As Justice Ginsburg noted in her dissent, ''[t]hese examples, and scores like them, fill the pages of the legislative record.''

Unfortunately, a majority of the Supreme Court chose to ignore both the extensive legislative record of ongoing discrimination in voting and the critical role of the Voting Rights Act in protecting the right to vote.

If there is any question about the major impact of this decision, just look at the statement released by the Texas Attorney General just hours after the Court's decision. He wasted no time announcing that the State would immediately implement its restrictive voter identification law.

Now that the Supreme Court has gutted the most effective Civil Rights law in our Nation's history, hundreds of thousands of voters in Texas may not be able to cast a ballot in the next election.

After the Court's decision, these 790,000 minority, low income, young, rural and other voters in Texas can no longer depend on the Voting Rights Act to protect their access to the ballot.

The Voting Rights Act has never been about who wins an election.

It has never been about political advantage.

It has about ensuring every eligible American can vote and have their vote counted.

The Voting Rights Act has done the important work of protecting the right to vote for almost 50 years. Tuesday's Supreme Court decision is a disappointing one that threatens to undermine our democracy.

There is ample evidence today that some people are still being denied the right to vote, so Congress has a moral and Constitutional obligation to remedy that problem.

Congress must act to restore the key provisions of the Voting Rights Act that protect the right to vote for all Americans—regardless of the color of their skin, their net worth, the language they speak, or the community in which they live.

As Chairman of the Judiciary Subcommittee on the Constitution, Civil Rights & Human Rights, I will hold hearings to address this troubling decision, so that we can promptly begin the process of correcting the mistake the Supreme Court made.

OBSERVING PTSD AWARENESS DAY

Mr. ROCKEFELLER. Mr. President, on this important day, Post Traumatic Stress Disorder—PTSD—Awareness Day, we must pause to reflect on the

contributions of our Nation's veterans and recommit ourselves to a sacred promise that should never be forgotten: that they served this country, and this country will always care for them no matter the challenge.

This year, for the first time, based on a resolution that I cosponsored, the Senate has recognized June as PTSD awareness month. This is a good step in our effort to raise awareness of the invisible wounds our returning servicemembers far too often face. But today in particular, we must recognize that there is so much more to be done to fully heal those wounds, support families, and truly save lives.

I recently had a meeting, one I will never forget, with a number of immensely brave West Virginia veterans and their families who were willing to publicly share the struggles they face every day as a result of PTSD.

The Department of Veterans Affairs and Department of Defense were there for our discussion in West Virginia, and I am glad they were.

We heard from wives who stand firmly by their husbands' sides as the horrors of war manifest at home in frightening ways. We heard from a father who hurts every day knowing the inner turmoil his son faces. And we heard from veterans who served their country without question, through multiple tours of duty, but have encountered nothing but stress and resistance when seeking the care they unquestionably earned.

They have faced stigma and a lack of understanding about their private struggles. And they have faced untenable—and, truthfully, life-threatening—delays in getting the strong mental health care they need.

This has been the case for two of the veterans who courageously joined our discussion—both of whom had been fighting for the benefits we owe them. I vowed to do everything I could for them, and I celebrate today knowing that with our help their benefits have been approved, and they now have some measure of peace.

But I do not rest—because there are thousands more veterans out there fighting and waiting for that good news.

Without the right care at the right time, things can start to spiral out of control for veterans with PTSD—financial hardship, marital stress, feelings of hopelessness. It is our job to deliver that care.

With the end of the Iraq war, and with tens of thousands of veterans coming home from Afghanistan, the VA and the DOD know the complexities of caring for returning servicemembers with conditions like PTSD and Traumatic Brain Injury—TBI. But as the demand for mental health care increases, we must be prepared to swiftly and strongly answer the call for our newest veterans and those from every generation.

The VA recently announced that it has filled 1,600 mental health positions and the vacancies of more than 2,000 mental health clinical providers. This is an important step, and something I pushed for. But I believe we must do more to deliver the timely, consistent, individualized care our veterans need, including providing highly-skilled doctors and therapists and making sure that care is always available.

We must end the months-long delay that places veterans in limbo when transitioning their paperwork from active duty status at the DOD to the VA. And we can no longer expect veterans tormented by mental health issues to twist and turn through multiple levels of bureaucracy to get the care we owe them.

This is a difficult issue. But we can not let the complexity be an excuse for not delivering care for our veterans. No one is more deserving.

We know the system can work for our veterans when the VA, DOD, vet centers, counselors and support networks get it right. And we know the right kind of care when it is most needed can keep families together. It can also transform and save lives.

Near the end of the Civil War, Abraham Lincoln made a solemn commitment to, ''bind up the nation's wounds; to care for him who shall have borne the battle . . .'' We should be relentless in our efforts to uphold that pledge for each and every veteran and their loved ones—today and every day.

NUCLEAR ARSENAL

Mrs. FISCHER. Mr. President, I ask unanimous consent to have printed in the RECORD a copy of the following oped from POLITICO.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From POLITICO, June 26, 2013]

MODERNIZE, DON'T ABANDON OUR NUCLEAR ARSENAL

(By: Senator Deb Fischer)

The Brandenburg Gate served as an iconic backdrop for the 20th-century struggle between freedom and oppression. Standing before the gate in the long shadow of Presidents John F. Kennedy and Ronald Reagan, President Barack Obama made a remarkable—and indeed a historic—announcement last week that could drastically alter the course of the 21st century for the United States and our allies.

Before thousands of German citizens, the president announced our nation was effectively abandoning the long-standing policy of ''peace through strength.'' Instead, Obama pledged to pursue a policy of ''peace with justice.'' ''Peace with justice means pursuing the security of a world without nuclear weapons, no matter how distant that dream might be,'' Obama explained. Reducing our nuclear arsenal by one-third, he argued, brought us closer to this lofty goal.

Following the president's speech, the Pentagon quickly released a report on the new nuclear strategy, which succeeded in making one thing clear: The world is increasingly unstable. It states, ''the risk of nuclear attack has increased''; it cites nuclear terrorism and nuclear proliferation as key threats; and it expresses concern with Russian and Chinese nuclear modernization and the ''growth of China's nuclear arsenal.''

In an age of persistent nuclear proliferation, it is puzzling as to why the commander in chief would endorse shedding a third of our deterrent power. Responsible national security policy requires a realistic recognition of the world as it is, not as we hope it to be.

It is naive to believe terrorists and rogue nations will be swayed by the philosophical righteousness some may attach to the president's new policy. And count me among the skeptics in believing that China or Russia will abandon its own nuclear modernization plans.

Moreover, deep reductions in strategic weapons could actually undermine the stability that characterizes current force levels. Russia is estimated to maintain several thousand tactical nuclear weapons, which are exempted from current arms reduction agreements, compared with a few hundred such devices in U.S. inventories.

The Department of Defense report notes, ''large disparities in nuclear capabilities could raise concerns . . . and may not be conducive to maintaining a stable, long-term strategic relationship, especially as nuclear forces are significantly reduced.'' In short, as the number of strategic weapons diminishes, other nuclear weapons become more important. When potential adversaries hold greater numbers of these weapons, the U.S. and our allies are less secure.

Perhaps the president is motivated by cost reductions—a pitch to fiscal conservatives like me—reasoning that fewer weapons could save us tax dollars. This, too, is unconvincing. Testifying earlier this year before the House Appropriations Committee's Subcommittee on Energy and Water, Don Cook, the deputy administrator for Defense Programs at the National Nuclear Security Administration, stated that ''not much savings will be achieved'' by nuclear reductions. I received similar assessments from the directors of our national weapons labs.

Some argue deep cuts are necessary because nuclear weapons pose a threat to humanity. Lesser is better, they insist. The president suggested a similar view in his Berlin speech: ''So long as nuclear weapons exist, we are not truly safe.'' I disagree.

Our freedom, security and prosperity are all contingent upon the United States maintaining a position of unquestioned strength. Since World War II, nuclear weapons have provided the bulwark of American national security. Nuclear deterrence is not academic; it is real. For example, the administration's recent decision to order a nuclear-capable aircraft to the Korean region earlier this year clearly reaffirmed the power and relevance of our nuclear deterrent.

The president also failed to acknowledge his previous commitments to nuclear modernization. When the Senate ratified New START in 2010, the president pledged to provide critical funding to modernize our aging nuclear forces (some still have 1960s vacuum tubes) and supporting laboratories. The reasoning was clear: As we retain fewer weapons, we must exponentially increase our confidence in their ability to fully function deterrence depends on it. This promised funding has not materialized.

The Senate should not consider additional arms reductions when we have not achieved the modernization guaranteed in exchange for the last round of cuts to the arsenal.

Despite the president's pledge to pursue the ''dream'' of a world without nuclear weapons, the truth is that dreams don't always match reality. The frigid reception from Kremlin officials to Obama's call for further Russian nuclear reductions was telling. Moreover, history has proved the current Russian president isn't exactly a good-faith negotiator.

It's no secret that we live in a dangerous world and national security decisions must be made to bolster—not weaken—our ability to counter a growing array of threats. A strong, safe America requires a nuclear deterrent that is modern and effective, not aging and depleted. As former British Prime Minister Margaret Thatcher famously warned, ''This is no time to go wobbly.''

COMMEMORATING THE 4TH OF JULY

Mr. CARDIN. Mr. President, one week from today—July 4th—we will celebrate our Nation's 237th birthday. In 1776, our forefathers issued the Declaration of Independence announcing that the 13 Colonies were free from British rule, initiating the most successful experiment in human history. Our forefathers had the revolutionary idea that ''all men are created equal'' and ''are endowed by their Creator with certain unalienable Rights''. On July 4th, we gather together, at parades on Main Streets across America and at barbeques with family members and friends, to reflect on just how much we have to be thankful for as Americans.

No other country in the world has such a rich past, diverse population, and bright future. Regardless of our fellow citizens' race, religion or background, we should remember that as Americans we are all eternally bound as countrymen. The novel experiment in democracy our forefathers began more than two centuries ago continues. It continues because we actively strive—in the words of our other foundational document, the Constitution—to ''form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity''. For 237 years, we have been working to defend and advance the foundations of freedom and equality that this country was built upon, and to promote them abroad.

Our history is not pristine; slavery and Jim Crow stain it. Our history has been about expanding the franchise and making it possible for more and more people to participate fully in American society, to enjoy the blessings of peace and prosperity and to share in our mutual civic responsibilities. We have endured difficult periods, but every time we quarrel amongst ourselves or are attacked from the outside we regroup stronger and more resolute. History has taught us and the future will show that we are at our best when we work together. On a battlefield, factory line, classroom or Congress, nothing can stop Americans when we are determined to move the country forward.

This 4th of July, let us redouble our resolve to continue our great democratic experiment. Not just for ourselves and our posterity, but for all humankind. As the poet Archibald MacLeish wrote:

There are those who will say that the liberation of humanity, the freedom of man and mind, is nothing but a dream. They are right. It is the American Dream.

CELEBRATING LGBT PRIDE MONTH

Mr. CARDIN. Mr. President, I rise today in recognition of Lesbian, Gay, Bisexual, and Transgender, LGBT, Pride Month. This June we recognize the efforts of millions of Americans who have fought to extend liberty and justice to all, regardless of sexual orientation or gender identity. Members of the LGBT community have helped this country become a leader in so many fields.

And today I also rise in celebration as a result of yesterday's decisions of the Supreme Court of the United States. Loving families across our great Nation have now been made whole, as the Supreme Court upheld the core principle that all persons must be treated equally under the law.

By striking down as unconstitutional the provision of the Defense of Marriage Act, DOMA, that limited federal marriage benefits to opposite sex couples, the Supreme Court has affirmed that there is no place for discrimination in America based on sexual orientation. Government should not interfere in the ability of men and women to marry the person they love, and they should be entitled to the same benefits as heterosexual couples, including tax benefits, rights of inheritance, health insurance, and legal marriage. The Federal Government—especially Congress and the executive branch—should act quickly to comply with and fully implement this Supreme Court ruling, following the lead of a growing number of States including Maryland that give full recognition and equality to legal marriages of same-sex couples.

Alongside their neighbors, LGBT individuals have been integral in forging this Nation into what it is today. Sadly, many members of the LBGT community encounter prejudice and discrimination on a daily basis. We cannot forget the events at the Stonewall Inn in June of 1969. Shortly thereafter the modern day gay rights movement began to take shape.

In the years since Stonewall, we have made progress in making ours a more just society. I am proud that 13 States—including Maryland by both legislative action and popular referendum—and the District of Columbia have voted to allow two consenting same-sex adults to enjoy all the happiness and privileges that come with marriage. I am proud that our men and women in uniform can no longer be told they cannot serve the country they love because of who they are in love with.

I am proud that we passed legislation, the Matthew Shepard and James Byrd, Jr. Hate Crimes Prevention Act, to expand the federal hate crimes law to include crimes motivated by a victim's actual or perceived gender, sexual orientation, or gender identity. I am proud that everyday more and more people support equal rights for all Americans.

Despite all the progress we have made, we must always work harder to maintain the foundation of human rights on which this country is built. I believe that every American should have the opportunity to fulfill their American Dream. This is only possible when the government can provide robust civil rights for all citizens. There is still much that only we in Congress can do to make sure that every American enjoys the right of equal protection under the law.

Right now in a majority of States, an individual can be fired for their sexual orientation or gender identity and have no legal recourse. The fact that someone can be fired for simply being who they are in the year 2013 cannot be accepted. I chair the U.S Helsinki Commission and sit on the Foreign Relations Committee, and I can tell you that human rights are directly linked to governmental guarantees and enforcement of equal protection.

This June we should recognize the remarkable contributions LGBT Americans have made to this Nation. We should also take a moment to value all the hard work, sacrifice and determination that has defined the LGBT movement.

The issues facing the LGBT community are important to all Americans. We are all harmed when homophobia trumps civility, and similarly we all succeed when we find strength in our diversity.

We have work to do. Members of the LGBT community should feel free and safe to be who they are. Now is the time for all Americans regardless of sexual orientation or gender identity to come together in the spirit of moving the country forward. The LGBT community has been part of America's storied past, and will continue to be central to our perpetual goal of building a brighter future.

Fifty years ago this month President Kennedy asked the Nation a simple question as the fight for civil rights raged across the country:

''The heart of the question is whether all Americans are to be afforded equal rights and equal opportunities, whether we are going to treat our fellow Americans as we want to be treated.''

The answer then, as it is now, should be a resounding yes.

Mr. CARDIN. Mr. President, last week I was honored to celebrate the 10th anniversary of the President's Emergency Plan for AIDS Relief, PEPFAR, along with Secretary of State John Kerry; Global Aids Coordinator, Ambassador Eric Goosby; Senator MIKE ENZI; Namibian Health Minister D. Richard Kamwi, and Tatu Msangi, a PEPFAR beneficiary and nurse from Tanzania.

Ten years ago, AIDS threatened the very foundation of societies in Africa—creating millions of orphans, stalling economic development, and leaving countries stuck in poverty. Before

PEPFAR started in Namibia in 2004, Minister Kamwi explained, nearly one in four pregnant women in Namibia were infected with HIV, yet only a handful of them could access treatment. The circumstances were dire, and it was clear something needed to be done. The visionary leadership of President George W. Bush and the Congressional Black Caucus, especially the late Congressman Donald Payne Sr. and Congresswoman BARBARA LEE, led to the establishment of the program in 2003 with an initial $15 billion to fight HIV and AIDS worldwide.

Today, thanks to the ongoing, bipartisan U.S. commitment to PEPFAR, hope has replaced despair, life has replaced death, and productivity has replaced illness and disability. PEPFAR is the largest commitment by any nation to combat a single disease internationally, and it has saved and improved millions of lives. Today Namibia's mother-to-child HIV transmission rate at 6 weeks is less than 3 percent. Thanks to PEPFAR, Ms. Msangi, is healthy enough to help treat and counsel HIV patients, and her daughter Faith was born HIV-free, representing the best of what this remarkable program has to offer.

This bipartisan program is a tremendous success, having exceeded every one of its initial goals. PEPFAR directly supports nearly 5.1 million people on antiretroviral treatment, and has contributed to a 20-percent reduction in new HIV infections globally. This month, the program reached a remarkable milestone when the one-millionth infant was born HIV-free, thanks to PEPFAR. Thirteen countries have reached a crucial tipping point—where annual new adult HIV infections are below the annual increase in adults on antiretroviral drug treatment. And we are building capacity for recipient nations to address the problem. We have helped improve host country health care delivery systems, and countries are now taking ownership in their responsibility to care for their people.

I authored an amendment to PEPFAR's 2008 reauthorization bill that supports in-country health worker training for people like Ms. Msangi, which U.S. universities and NGOs support along with other elements of the program. Research being done by Maryland institutions—including the National Institutes of Health, Johns Hopkins University, and the University of Maryland—is making a difference globally; and Maryland NGO's like Catholic Relief Services of Baltimore are partnering with us in this global fight.

Yet despite the remarkable progress that these partnerships have produced, we still have challenges ahead of us. According to UNAIDS, an estimated 1.7 million people are dying annually from AIDS-related causes. Global health and development resources are being squeezed due to difficult economic times. And issues of stigma and discrimination continue to limit access to treatment and care to those in need.

The U.S. will continue to lead this global fight, but we need the commitment and leadership of partner countries—reinforced with support from donor nations, civil society, people living with HIV, faith-based organizations, the private sector, foundations, and the Global Fund—in order to see an HIV-free generation in our lifetime.

PEPFAR represents the best of what our government can do when we put aside partisanship for the good of humanity. It represents the very best of America and our commitment to global humanitarian values. It is a testament to the power of thinking big and of dreaming big, and we must continue to do just that to conquer this disease once and for all.

SAFE ACT

Mr. WHITEHOUSE. Mr. President, from the beaches of Rhode Island to the glaciers of Montana, natural ecosystems provide us with life's essentials: clean air and water, crops and timber, recreation and lots of local pride.

Rhode Island's oceans and coasts, for example, are spawning grounds, nurseries, and shelters for nutritious and profitable fish and shellfish. Their natural buffers protect our coastal communities from storms and filter our water. They even provide clean, renewable energy. And, of course, the coastline of the Ocean State boasts world-class beaches.

But climate change threatens to rob us of these essentials. The Government Accountability Office confirms what Americans see with their own eyes: our Nation's ecosystems are at risk from ongoing changes, including—and I will quote GAO: ''increases in air and water temperatures, wildfires, and drought; forests stressed by drought becoming more vulnerable to insect infestations; rising sea levels; and reduced snow cover and retreating glaciers.''

This warning comes from a report released last week on climate change adaptation efforts in Federal agencies. Senator BAUCUS and I requested this report because of the risk climate change poses to our natural resources and our national economy.

Climate change is not something we can fix later, and it is not something that only will happen to future generations, although our children and grandchildren will surely pay a heavier price.

Scientists tell us that the carbon pollution we have already emitted has locked in changes in the coming decades to our atmosphere, oceans, and weather. So while we must take up the challenge to reduce greenhouse gas emissions, we must also begin to adapt, and secure our natural resources against the changes we can no longer avoid.

In this report, GAO examined the U.S. Forest Service, the U.S. Fish and Wildlife Service, the National Park Service, the National Oceanic and Atmospheric Administration, and the Bureau of Land Management.

It found that while planning for changes in resource conditions is a main part of the mission of these agencies, addressing the effects of climate change is not. In fact, BLM, which manages 245 million acres of land, has not yet established a climate change adaptation strategy.

That is why Senator BAUCUS and I introduced the Safeguarding America's Future and the Environment Act, or SAFE Act.

The Federal agencies that manage our natural resources are responsible for protecting, restoring, and conserving the natural resources that underpin our economy. The SAFE Act would require those agencies to adopt climate change adaptation plans that are consistent with the National Fish, Wildlife, and Plants Climate Adaptation Strategy released this year by the, administration.

Adaptation—to shifting conditions, to catastrophic events, even to full ecosystem shifts—is not easy work, and resource managers are often constrained by existing laws and regulations. The SAFE Act puts all climate adaptation tools and approaches on the table, and includes State, local, and stakeholder participation.

I want to thank Senator BAUCUS for working so hard to protect Montanans, Rhode Islanders, and all Americans.

The SAFE Act has garnered broad support from sportsmen, the outdoor industry, and conservation groups, including American Forests, the Association of Fish and Wildlife Agencies, Defenders of Wildlife, Earth Justice, the National Parks Conservation Association, Natural Resources Defense Council, the National Wildlife Federation, the Outdoor Alliance, Trout Unlimited, and The Wildlife Society.

Noah Matson of Defenders of Wildlife said, ''This bill recognizes that responding to climate change isn't just about cutting carbon emissions. It also means ensuring our wildlife and ecosystems are resilient and can withstand the extreme weather and other climate change impacts we are already experiencing. The two go hand in hand for a safe, healthy environment for wildlife, people and future generations.''

I hope the SAFE Act will also garner the support of our colleagues in Congress, and I look forward to working with Democrats and Republicans to pass this important legislation.

FREEDOM, MAINE

Ms. COLLINS. Mr. President, I rise today to wish the town of Freedom, ME, a very happy 200th birthday. The people of Freedom are proud of their hometown and the generations of hard-working and caring people who have made it such a wonderful place to live, work, and raise families.

The name of this town is more than a word; it describes its history. Originally part of the Plymouth Patent,

this community can trace its roots to the brave Pilgrims who came to the New World to secure freedom. Its first permanent settler was Stephen Smith, a soldier of the American Revolution who fought for freedom. When the town was incorporated in 1813, American independence was again under attack, and the town's name—first Smithtown, then Beaverhill Plantation—became Freedom.

Decades later, when the Civil War threatened to divide our Nation and condemn millions to continued slavery, many young men from the town enlisted in the Union Army to fight for the freedom of all. One of them, Daniel Franklin Davis, became the 37th governor of our great State of Maine.

And when the town's oldest citizen, Roy Ward, is recognized at the bicentennial celebration on July 5th, his friends and neighbors will honor his courageous Navy service during World War II in freedom's cause.

Through the years, the people who built this community demonstrated the qualities that make freedom possible—determination, energy, and self-reliance. They harnessed the waters of Sandy Stream to power mills for grain, lumber, and textiles. They turned the untilled soil into productive farms. In 1836, they established Freedom Academy, the first secondary school in their region and a milestone in the history of public education in Maine.

The energy that so many have devoted to this year's exciting bicentennial celebration is but one example of the spirit that has been nurtured there for two centuries. The restoration of such landmarks as the Stephen Smith gravesite and the Mill at Freedom Falls, and the dedication of the gazebo at Freedom Academy all demonstrate widespread commitment by the people of Freedom.

Thanks to those who came before, Freedom has a wonderful history. Thanks to those who are there today, it has a bright future.

ADDITIONAL STATEMENTS

RECOGNIZING THE WESTERN RESEARCH INSTITUTE

● Mr. ENZI. Mr. President, today I wish to offer my sincere congratulations to the Western Research Institute in Laramie, WY. On July 15 to 17, 2013, the Western Research Institute will be hosting the 50th Annual Petersen Asphalt Research Conference. This highly acclaimed international forum promotes understanding of how asphalt chemistry, physical properties and interactions affect the performance of asphalt applications throughout their life cycle.

In 1963, Dr. J. Claine Petersen organized the first asphalt research conference, emphasizing how the chemical and physical properties of asphalt affect its performance as pavement over time. In 1990, the name of the conference was changed to honor Dr. Petersen's efforts. Dr. Petersen remains an active and vital participant in this event each year.

Partnering with a pavement performance prediction—P3—Symposium has enhanced the ability of the conference to ''dive deep'' on key topics. This year, the topic for the symposium is ''Innovations and Issues in Pavement Preservation and Durability.'' The symposium links researchers, highway officials, producers, and others with a need to understand how asphalts may perform in a given application over time.

The Federal Government typically provides between 75 and 90 percent of the costs of federally supported highway projects. Federally supported asphalt research has been proven to yield substantial cost savings and return on investment. The Petersen Asphalt Research Conference continues to enhance this Federal investment by advancing the understanding and production of state-of-the-art materials, which improve pavement performance, durability, and safety.

The Western Research Institute is a nationally recognized research center for transportation and energy projects. The annual Petersen Asphalt Research Conference is one more example of the institute's leadership in transportation and energy research. Congratulations, again, Western Research Institute, and Wyoming is looking forward to hosting many more in the years to come.●

CONGRATULATING CLARK HIGH SCHOOL SCIENCE OLYMPIAD TEAM

● Mr. HELLER. Mr. President, today I wish to recognize Las Vegas' Ed W. Clark High School Science Olympiad Team. This group of outstanding high school students from my home State of Nevada recently accomplished something truly extraordinary in the area of environmental science by earning a first-place gold medal in the Science Olympiad National Tournament.

The National Science Olympiad Tournament brings together students from all over the country to test their skills in a variety of scientific disciplines. This year, the competition included nearly 6,000 top science students from across the United States, including 42 students from Clark High School in Las Vegas. Clark High School's Science Olympiad Team, led by students Michael Zhou and Zachary Shattler, and coaches Sidney Lupu, James Miller and Jeffrey Viggato, took first place in the water quality event of the competition, marking the first time any Nevada team has won a gold medal at this national event. It is especially noteworthy that this award was given in an area of science that is of particular interest to my home State of Nevada, namely water quality.

Without a doubt, this scholastic achievement was earned through significant effort and teamwork on the part of these exceptional students and educators, and they have made the State of Nevada immensely proud. I congratulate Clark High School's Science Olympiad Team, and Principal Jillyn Pendleton and Assistant Principal Joseph Winfield, on earning this well-deserved recognition.●

TRIBUTE TO BOB BOWLES

● Mr. KAINE. Mr. President, today I wish to commend a distinguished Virginian, Bob Bowles, for his extensive contributions to the success of the Senate Productivity and Quality Award, SPQA, Program and many Virginia governmental, business, and nonprofit organizations.

In 1982, the Senate passed resolution 502 to promote the creation of State-sponsored programs to improve quality in industry. As part of an effort to fulfill resolution 502's vision, the U.S. Senate Productivity and Quality Award Program, or SPQA, was established to promote quality in Virginia organizations. SPQA is an all-volunteer organization with a mission to promote and recognize high-performance organizations in Virginia. Since its founding 30 years ago, SPQA has recognized more than 200 Virginia city and county organizations, businesses, and nonprofits for their pursuit of organizational excellence. Today, SPQA continues to provide training and an award challenge to thousands of individuals and organizations in the Commonwealth. I am proud to say it is the oldest continuously operating productivity and quality awards program in the United States.

Bob Bowles has served as director and executive director of SPQA since 1994. He has devoted thousands of volunteer hours to SPQA, and his leadership has paved the way for SPQA to continue accomplishing its mission for Virginia into the future. On behalf of the Senate and the people of Virginia, I thank Bob for his invaluable service to SPQA and the Commonwealth.●

CLAIRE CITY, SOUTH DAKOTA

● Mr. JOHNSON of South Dakota. Mr. President, today I wish to pay tribute to the 100th anniversary of the founding of Claire City, SD. The charming town of Claire City can be found in the northeastern corner of South Dakota, in Roberts County.

In 1913, a group of local farmers donated their land to establish the town site of Claire City. The town was named for one of the early organizer's wives, Edith Claire Feeney.

Before construction of the railroad, farmers in the area had to haul their grain greater distances, to Sisseton or Ligerwood. The railroad in Claire City became essential to the growth of the town. Securing the funding and the labor necessary to complete the railroad was a true collective effort. Much of the money came from local farmers and businessmen who bought stock. Early residents labored tirelessly with

the aid of horses to build the track. During this time, many of the women of Claire City would sell meals from their homes to help feed weary railroad workers.

After the railroad was completed in the fall of 1913, the town flourished, and many small businesses opened. By the 1930s, Claire City had a grocery store, meat market, drug and general store, a live stable, barbershop, bank, pool hall, and a hardware store. On weekend nights in the summers of the 1930s and 1940s, residents could catch a free movie and businesses stayed open until midnight. When the weather started to get colder, residents could watch a movie at the town hall for only ten cents.

Residents of Claire City plan to celebrate their centennial this weekend with a full schedule of fun activities that engage the community. Friday night there will be a large supper at the community center, accompanied by dancing and live music. Saturday there will a number of outdoor activities, including a tractor pull, parade, and rides for children and adults alike. Sunday finishes up the celebration with a church service and brunch served at Deano's.

Claire City embodies the values that make South Dakota a great State. The hard work and determination of its residents, past and present, have made it possible for Claire City to reach its centennial anniversary. I congratulate Claire City on reaching this milestone, and I wish the residents the best in their future endeavors.●

WHITEWOOD, SOUTH DAKOTA

● Mr. JOHNSON of South Dakota. Mr. President, today I wish to pay tribute to the 125th anniversary of the founding of Whitewood, SD. Located in Lawrence County, Whitewood is a tightly knit community, known for its rich history and hardworking people.

In 1877, the Pioneer Townsite Company bought an orchard from William Selbie, one of the early settlers of the Black Hills. This land would become the town of Whitewood, and was incorporated in 1888. The new town enjoyed trade from settlers to the north, as it was one of the few towns in existence at the time. Settlers came into town for machinery, feed, food, mail, as well as to ship their wool and livestock. In the early years, Whitewood was a hub of agricultural trade, particularly for wheat.

A railroad terminal opened in 1905 to accommodate the increase in commercial activity. Along with the railroad terminal, a water tank, coal chute, roundhouse, and a section house offered many jobs to town residents.

Whitewood is looking forward to celebrating its quasquicentennial anniversary. The last weekend of June will be packed with many activities that will bring the community together as they celebrate their humble beginnings. Festivities include children's games at Memorial Park, a 5 kilometer run, a roast pig barbeque, and a historically themed parade though the town.

Whitewood was founded by a group of pioneers with an enterprising spirit. One hundred and twenty-five years after its founding, Whitewood continues to be a vibrant community and a great asset to the State of South Dakota. I am proud to honor the achievements of Whitewood on this memorable occasion.●

RECOGNIZING THE SOUTH DAKOTA WHEAT GROWERS

● Mr. THUNE. Mr. President, today I wish to honor the South Dakota Wheat Growers as it celebrates its 90th anniversary. Over the years, the Wheat Growers has faithfully served member-owners by promoting integrity through business transactions, providing customers with reliable markets, and practicing sustainability through the best applications of science and technology. The Wheat Growers aims to meet the food challenges our world faces by coupling the expertise of farmers in the Dakotas with state-of-the-art technology and facilities to improve production agriculture capabilities.

The Wheat Growers was established in 1923 as a response to widespread farm bankruptcies caused by depressed wheat prices. Through their collaboration and commitment to serving South Dakota farmers, the Wheat Growers endured the Great Depression and has since expanded its grain storage capacity and farming supply services. It continues to develop its industry as it seeks new opportunities for expansion and value-added potential for producers.

Today, the Wheat Growers serves 5,400 member-owners in eastern North and South Dakota, markets 160 million bushels annually, and operates in 37 locations. I would like to thank the Leadership Team, the Board, and delegates of the Wheat Growers who have committed their time and energy to helping member-owners succeed in agricultural production. On behalf of the State of South Dakota, I am honored to have this opportunity to congratulate the South Dakota Wheat Growers for 90 successful years of service in providing a healthy market for producers and consumers. Congratulations to the Wheat Growers as it celebrates its 90th anniversary in Aberdeen, SD, on Friday, June 28th.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

NOTIFICATION OF THE PRESIDENT'S INTENT TO TERMINATE THE DESIGNATION OF BANGLADESH AS A BENEFICIARY DEVELOPING COUNTRY UNDER THE GENERALIZED SYSTEM OF PREFERENCES (GSP) PROGRAM—PM 15

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States which was referred to the Committee on Finance:

To the Congress of the United States:

In accordance with section 502(f)(2) of the Trade Act of 1974, as amended (the ''1974 Act'') (19 U.S.C. 2462(f)(2)), I am providing notification of my intent to suspend the designation of Bangladesh as a beneficiary developing country under the Generalized System of Preferences (GSP) program. Section 502(b)(2)(G) of the 1974 Act (19 U.S.C. 2462(b)(2)(G)) provides that the President shall not designate any country a beneficiary developing country under the GSP if such country has not taken or is not taking steps to afford internationally recognized worker rights in the country (including any designated zone in that country). Section 502(d)(2) of the 1974 Act (19 U.S.C. 2462(d)(2)) provides that, after complying with the requirements of section 502(f)(2) of the 1974 Act, the President shall withdraw or suspend the designation of any country as a beneficiary developing country if, after such designation, the President determines that as the result of changed circumstances such country would be barred from designation as a beneficiary developing country under section 502(b)(2) of the 1974 Act.

Pursuant to section 502(d) of the 1974 Act, having considered the factors set forth in section 502(b)(2)(G), I have determined that it is appropriate to suspend Bangladesh's designation as a beneficiary developing country under the GSP program because it is not taking steps to afford internationally recognized worker rights to workers in the country.

BARACK OBAMA.

THE WHITE HOUSE, *June 27, 2013.*

MEASURES PLACED ON THE CALENDAR

The following bills were read the first and second times by unanimous consent, and placed on the calendar:

S. 1238. A bill to amend the Higher Education Act of 1965 to extend the current reduced interest rate for undergraduate Federal Direct Stafford Loans for 1 year, to modify required distribution rules for pension plans, and for other purposes.

S. 1241. A bill to establish the interest rate for certain Federal student loans, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–2102. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Sulfoxaflor; Pesticide Tolerances; Technical Correction'' (FRL No. 9391–4) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2103. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Ethalfluralin; Pesticide Tolerances'' (FRL No. 9391–7) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2104. A communication from the Manager of the BioPreferred Program, Office of Procurement and Property Management, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Designation of Product Categories for Federal Procurement, Round 10'' (RIN0599–AA16) received in the Office of the President of the Senate on June 24, 2013; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2105. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency that was declared in Executive Order 13348 relative to the former Liberian regime of Charles Taylor; to the Committee on Banking, Housing, and Urban Affairs.

EC–2106. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to transnational criminal organizations that was declared in Executive Order 13581 of July 24, 2011; to the Committee on Banking, Housing, and Urban Affairs.

EC–2107. A communication from the Regulatory Specialist, Office of the Comptroller of the Currency, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Lending Limits'' (RIN1557–AD59) received in the Office of the President of the Senate on June 24, 2013; to the Committee on Banking, Housing, and Urban Affairs.

EC–2108. A communication from the Chairman and President of the Export-Import Bank, transmitting, pursuant to law, a report on the competitiveness of the export financing services for the period from January 1, 2012 through December 31, 2012; to the Committee on Banking, Housing, and Urban Affairs.

EC–2109. A communication from the Acting Assistant Secretary for Insular Affairs, Department of the Interior, transmitting, pursuant to law, reports entitled ''Report to Congress: 2013 Compact Analysis'' and ''Impact of the Compacts of Free Association on Guam: Fiscal Year 2004 through Fiscal Year 2012''; to the Committee on Energy and Natural Resources.

EC–2110. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''National Pollutant Discharge Elimination System Regulation Revision: Removal of the Pesticide Discharge Permitting Exemption in Response to Sixth Circuit Court of Appeals Decision'' (FRL No. 9829–2) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Environment and Public Works.

EC–2111. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Illinois'' (FRL No. 9824–9) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Environment and Public Works.

EC–2112. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Designation of Areas for Air Quality Planning Purposes; California; South Coast Air Basin; Approval of PM10 Maintenance Plan and Redesignation to Attainment for the PM10 Standard'' (FRL No. 9826–4) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Environment and Public Works.

EC–2113. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Virginia; Removal of Consumer and Commercial Products Rules'' (FRL No. 9828–2) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Environment and Public Works.

EC–2114. A communication from the Program Manager, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare and Medicaid Programs; Requirements for Long Term Care Facilities; Hospice Services'' (RIN0938–AP32) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Finance.

EC–2115. A communication from the Railroad Retirement Board, transmitting, pursuant to law, a report entitled ''Railroad Unemployment Insurance System''; to the Committee on Health, Education, Labor, and Pensions.

EC–2116. A communication from the Railroad Retirement Board, transmitting, pursuant to law, a report entitled ''Railroad Retirement System''; to the Committee on Health, Education, Labor, and Pensions.

EC–2117. A communication from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; Small Entity Compliance Guide'' (FAC 2005–68) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–2118. A communication from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; Expansion of Applicability of the Senior Executive Compensation Benchmark'' ((RIN9000–AM38) (FAC 2005–68)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–2119. A communication from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; Federal Acquisition Circular 2005–68; Introduction'' (FAC 2005–68) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–2120. A communication from the Chairman and President of the Export-Import Bank, transmitting, pursuant to law, the Semiannual Report of the Inspector General for the period October 1, 2012 through March 31, 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–2121. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, transmittal number: DDTC 13–067, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel; to the Committee on Foreign Relations.

EC–2122. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, transmittal number: DDTC 13–099, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible affects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel; to the Committee on Foreign Relations.

EC–2123. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–030); to the Committee on Foreign Relations.

EC–2124. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–081); to the Committee on Foreign Relations.

EC–2125. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–066); to the Committee on Foreign Relations.

EC–2126. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–063); to the Committee on Foreign Relations.

EC–2127. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–058); to the Committee on Foreign Relations.

EC–2128. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–053); to the Committee on Foreign Relations.

EC–2129. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–082); to the Committee on Foreign Relations.

EC–2130. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–085); to the Committee on Foreign Relations.

EC–2131. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–057); to the Committee on Foreign Relations.

EC–2132. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to

law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–095); to the Committee on Foreign Relations.

EC–2133. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–088); to the Committee on Foreign Relations.

EC–2134. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–070); to the Committee on Foreign Relations.

EC–2135. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–084); to the Committee on Foreign Relations.

EC–2136. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 13–076); to the Committee on Foreign Relations.

EC–2137. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(d) of the Arms Export Control Act (DDTC 13–083); to the Committee on Foreign Relations.

EC–2138. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to sections 36(c) and 36(d) of the Arms Export Control Act (DDTC 13–091); to the Committee on Foreign Relations.

EC–2139. A communication from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to sections 36(c) and 36(d) of the Arms Export Control Act (DDTC 13–049); to the Committee on Foreign Relations.

EC–2140. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2013–0108—2013–0118); to the Committee on Foreign Relations.

EC–2141. A communication from the Chief Operating Officer/Acting Executive Director of the U.S. Election Assistance Commission, transmitting, pursuant to law, the 2011–2012 Impact of the National Voter Registration Act of 1993 on the Administration of Elections for Federal Office (NVRA) report; to the Committee on Rules and Administration.

EC–2142. A communication from the Administrator, National Aeronautics and Space Administration, transmitting, a report of proposed amendments to the National Aeronautics and Space Act of 1958, as amended; to the Committee on Commerce, Science, and Transportation.

EC–2143. A communication from the Secretary of the Federal Trade Commission, transmitting, pursuant to law, the report of a rule entitled ''Identity Theft Red Flags and Address Discrepancies Under the Fair and Accurate Credit Transactions Act of 2003, as Amended by the Red Flag Program Clarification Act of 2010'' (RIN3084–AA94) received in the Office of the President of the Senate on June 19, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2144. A communication from the Secretary of the Federal Trade Commission, transmitting, pursuant to law, the report of a rule entitled ''Freedom of Information Act'' (16 CFR Part 4) received in the Office of the President of the Senate on June 19, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2145. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Regulated Navigation Area, Gulf of Mexico: Mississippi Canyon Block 20, South of New Orleans, LA; Correction'' ((RIN1625–AA11) (Docket No. USCG–2013–0064)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2146. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Wicomico Community Fireworks Rain Date, Great Wicomico River, Heathsville, VA'' ((RIN1625–AA00) (Docket No. USCG–2013–0386)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2147. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Delaware River Waterfront Corp. Fireworks Display, Delaware River; Camden, NJ'' ((RIN1625–AA00) (Docket No. USCG–2013–0496)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2148. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Mississippi River Mile 95.5–Mile 96.5; New Orleans, LA'' ((RIN1625–AA00) (Docket No. USCG–2013–0188)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2149. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zones; Fourth of July Fireworks Displays within the Captain of the Port Charleston Zone, SC'' ((RIN1625–AA00) (Docket No. USCG–2013–0415)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2150. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Fairport Harbor Mardi Gras, Lake Erie, Fairport, OH'' ((RIN1625–AA00) (Docket No. USCG–2013–0417)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2151. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Fifth Coast Guard District Fireworks Display, Currituck Sound; Corolla, NC'' ((RIN1625–AA00) (Docket No. USCG–2013–0421)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2152. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Private Party Fireworks; Lake Michigan, Chicago, IL'' ((RIN1625–AA00) (Docket No. USCG–2013–0462)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2153. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Queen's Cup; Lake Michigan; Milwaukee, WI'' ((RIN1625–AA00) (Docket No. USCG–2013–1463)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2154. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Inbound Transit of M/V TEAL, Savannah River, Savannah, GA'' ((RIN1625–AA00) (Docket No. USCG–2013–0245)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2155. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Installed Systems and Equipment for Use by the Flightcrew'' (RIN2120–AJ83) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2156. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Rochester Yacht Club Fireworks, Genesee River, Rochester, NY'' ((RIN1625–AA00) (Docket No. USCG–2013–0312)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2157. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Ad Club's 100th Anniversary Gala Fireworks Display, Boston Inner Harbor, Boston, MA'' ((RIN1625–AA00) (Docket No. USCG–2013–0256)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2158. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Lower Mississippi River, Mile Marker 219 to Mile Marker 229, in the vicinity of Port Allen Lock'' ((RIN1625–AA00) (Docket No. USCG–2013–0376)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2159. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulations for Summer Events; Captain of the Port Lake Michigan Zone'' ((RIN1625–AA08) (Docket No. USCG–2013–0327)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2160. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulations for Marine Events, Atlantic City Offshore Race, Atlantic Ocean; Atlantic City, NJ'' ((RIN1625–AA08) (Docket No. USCG–2013–0305)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2161. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulations and Safety Zones; Marine Events in Northern New England''

((RIN1625–AA00; AA08) (Docket No. USCG–2012–1057)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2162. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulations; Marine Events, Wrightsville Channel; Wrightsville Beach, NC'' ((RIN1625–AA08) (Docket No. USCG–2013–0118)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2163. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulations; ODBA Draggin' on the Waccamaw, Atlantic Intracoastal Waterway; Bucksport, SC'' ((RIN1625–AA08) (Docket No. USCG–2013–0102)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2164. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Special Local Regulation; Heritage Coast Offshore Grand Prix, Tawas Bay; East Tawas, MI'' ((RIN1625–AA08) (Docket No. USCG–2013–0434)) received in the Office of the President of the Senate on June 25, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2165. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Fishery of the Gulf of Mexico; Red Snapper Management Measures'' (RIN0648–BC98) received in the Office of the President of the Senate on June 20, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2166. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Fishery of the Gulf of Mexico; Gag Management Measures'' (RIN0648–BC64) received in the Office of the President of the Senate on June 20, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2167. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Beeville-Chase Field, TX'' ((RIN2120–AA66) (Docket No. FAA–2012–0821)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2168. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Cherokee, WY'' ((RIN2120–AA66) (Docket No. FAA–2013–0051)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2169. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Tuba City, AZ'' ((RIN2120–AA66) (Docket No. FAA–2013–0147)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2170. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class D and Class E Airspace; Portland-Hillsboro, OR'' ((RIN2120–AA66) (Docket No. FAA–2012–1142)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2171. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace; Eureka, NV'' ((RIN2120–AA66) (Docket No. FAA–2012–0852)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2172. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace; Easton, PA'' ((RIN2120–AA66) (Docket No. FAA–2012–0394)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2173. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace; Kingston, NY'' ((RIN2120–AA66) (Docket No. FAA–2012–0831)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2174. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class D Airspace; El Monte, CA'' ((RIN2120–AA66) (Docket No. FAA–2011–1242)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2175. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Modification of Class C Airspace; Nashville International Airport; TN'' ((RIN2120–AA66) (Docket No. FAA–2013–0031)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2176. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Modification of Class B Airspace, Philadelphia, PA'' ((RIN2120–AA66) (Docket No. FAA–2012–0662)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2177. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Modification of Class D and Class E Airspace; Pueblo, CO'' ((RIN2120–AA66) (Docket No. FAA–2012–0371)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2178. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures; Miscellaneous Amendments (83); Amdt. No. 3535'' (RIN2120–AA65) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2179. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures; Miscellaneous Amendments (10); Amdt. No. 3536'' (RIN2120–AA65) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2180. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures; Miscellaneous Amendments (79); Amdt. No. 3533'' (RIN2120–AA65) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2181. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures; Miscellaneous Amendments (44); Amdt. No. 3534'' (RIN2120–AA65) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2182. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Area Navigation (RNAV) Routes; Washington, DC'' (RIN2120–AA66) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

EC–2183. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Modification and Revocation of Air Traffic Service Routes; Jackson, MS'' ((RIN2120–AA66) (Docket No. FAA–2013–0016)) received in the Office of the President of the Senate on June 17, 2013; to the Committee on Commerce, Science, and Transportation.

PETITIONS AND MEMORIALS

The following petitions and memorials were laid before the Senate and were referred or ordered to lie on the table as indicated:

POM–40. A concurrent resolution adopted by the Senate of the State of Louisiana memorializing the Congress of the United States to urge the U.S. Department of State to approve the presidential permit application allowing the construction and operation of the TransCanada Keystone XL pipeline between the United States and Canada; to the Committee on Energy and Natural Resources.

SENATE CONCURRENT RESOLUTION NO. 125

Whereas, the United States of America accounts for nearly nineteen percent of the world energy consumption and is the world's largest petroleum consumer with a daily consumption of almost nineteen million barrels of oil; and

Whereas, current imports amount to more than eight million barrels each day that represents approximately fifty percent of this country's requirements; and

Whereas, even with new technology, oil discoveries, alternative fuels and conservation efforts, the United States will continue to remain dependent on imported oil; and

Whereas, the growing production of oil from Canada's oil sands and the Bakken formation in Saskatchewan, Montana, North Dakota and South Dakota has the potential to replace the oil imported from other countries; and

Whereas, the fifty-seven operable refineries of the Petroleum Administration for Defense District 3 that consists of the states of Alabama, Arkansas, Louisiana, Mississippi, New Mexico, and Texas produce 8.7 million barrels of oil per day that represent nearly half of the United States refining capacity and import approximately 5 million barrels of oil per day; and

Whereas, once completed the TransCanada Keystone XL pipeline and the additional Gulf Coast Expansion project could displace about forty percent of the oil the United States currently imports from the Middle East and Venezuela; and

Whereas, the TransCanada Keystone XL pipeline has been the subject of the most thorough public consultation process of any proposed pipeline, and the subject of multiple environmental impact statements and several United States Department of State studies; and

Whereas, these statements and studies have concluded that it poses the least impact to the environment and is much safer than other modes of transporting oil; and

Whereas, the TransCanada Keystone XL pipeline will support over ten thousand jobs in construction and manufacturing in the United States: Now, therefore, be it

Resolved, That the Legislature of Louisiana memorializes the Congress of the United States to urge the U.S. Department of State to approve the presidential permit application allowing the construction and operation of the TransCanada Keystone XL pipeline between the United States and Canada; and be it further

Resolved, That a copy of this Resolution shall be transmitted to the secretary of the United States Senate and the clerk of the United States House of Representatives and to each member of the Louisiana delegation to the United States Congress.

POM–41. A concurrent resolution adopted by the Senate of the State of Louisiana memorializing the Congress of the United States to adopt the Constitution Restoration Act; to the Committee on the Judiciary.

SENATE CONCURRENT RESOLUTION NO. 88

Whereas, on Monday, June 27, 2005, the United States Supreme Court in two razor-thin majorities of 5–4 in Van Orden v. Perry (Texas) and ACLU v. McCreary County (Kentucky) concluded that it is consistent with the First Amendment to display the Ten Commandments in an outdoor public square in Texas but not on the courthouse walls of two counties in Kentucky; and

Whereas, American citizens are concerned that the court has produced two opposite results involving the same Ten Commandments, leading to the conclusion that, based on the Kentucky decision, the Ten Commandments may be displayed in a county courthouse provided it is not backed by a belief in God; and

Whereas, Supreme Justice Scalia emphasized the importance of the Ten Commandments when he stated in the Kentucky case, ''The three most popular religions in the United States, Christianity, Judaism, and Islam, which combined account for 97.7% of all believers, are monotheistic. All of them, moreover, believe that the Ten Commandments were given by God to Moses and are divine prescriptions for a virtuous life''; and

Whereas, Chief Justice Rehnquist in the Texas case referred to the duplicity of the United States Supreme Court in telling local governments in America that they may not display the Ten Commandments in public buildings in their communities while at the same time allowing these same Ten Commandments to be presented on these specific places on the building housing the United States Supreme Court stating, ''Since 1935, Moses has stood holding two tablets that reveal portions of the Ten Commandments written in Hebrew, among other lawgivers in the south frieze. Representations of the Ten Commandments adorn the metal gates lining the north and south sides of the courtroom as well as the doors leading into the courtroom. Moses also sits on the exterior east facade of the building holding the Ten Commandments tablets''; and

Whereas, a recent poll by the First Amendment Center revealed that seventy percent of Americans would have no objection to posting the Ten Commandments in government buildings and eighty-five percent would approve if the Ten Commandments were included as one document among many historical documents when displayed in public buildings; and

Whereas, the First Amendment of the United States Constitution, which provides in part that ''Congress shall make no law respecting an establishment of religion'', is a specific and unequivocal instruction to only the United States Congress, and the United States Constitution makes no restriction on the ability of states to acknowledge God, the Supreme Ruler of the Universe; and

Whereas, the United States District Court Southern District of Indiana on November 30, 2005, entered a final judgment and permanent injunction ordering the speaker of the Indiana House of Representatives not to permit sectarian prayers as part of the official proceedings of the House; and

Whereas, the federal judiciary has violated one of the most sacred provisions of the United States Constitution providing for three branches of government and the separation of powers of those branches by overstepping its authority and dictating the activities of the inner workings of the legislative branch of government; and

Whereas, the federal judiciary has overstepped its constitutional boundaries and ruled against the acknowledgment of God as the sovereign source of law, liberty, and government by local and state officers and other state institutions, including state schools; and

Whereas, there is concern that recent decisions of the court will be used by litigants in an effort to remove God from the public square in America, including public buildings and public parks; and

Whereas, there is concern that the federal judiciary will continue to attempt to micromanage the internal workings of the legislative as well as executive branches of government; and

Whereas, Congress has previously filed, but has failed to adopt, the Constitution Restoration Act, which will limit the jurisdiction of the federal courts and preserve the right to acknowledge God to the states and to the people and resolve the issue of improper judicial intervention in matters relating to the acknowledgment of God: Now, therefore, be it

Resolved, That the Legislature of Louisiana hereby memorializes the Congress of the United States to adopt the Constitution Restoration Act and, in doing so, continue to protect the ability of the people of the United States to display the Ten Commandments in public places, to express their faith in public, to retain God in the Pledge of Allegiance, and to retain ''In God We Trust'' as our national motto, and to use Article III, Section 2.2 of the United States Constitution to except these areas from the jurisdiction of the United States Supreme Court; and be it further

Resolved, That a copy of this Resolution shall be transmitted to the secretary of the United States Senate and the clerk of the United States House of Representatives and to each member of the Louisiana delegation to the United States Congress.

POM–42. A concurrent resolution adopted by the Senate of the State of Louisiana establishing a task force to study and make recommendations relative to implementation of the federal REAL ID Act of 2005 in Louisiana; to the Committee on the Judiciary.

SENATE CONCURRENT RESOLUTION NO. 119

Whereas, Act No. 807 of the 2008 Regular Session of the Legislature directs the Department of Public Safety and Corrections to not implement the provisions of the federal REAL ID Act of 2005; and

Whereas, Act No. 151 of the 2010 Regular Session of the Legislature directs the Department of Public Safety and Corrections to not implement the provisions of the federal PASS ID Act of 2009; and

Whereas, House Bill No. 395 by Representative Guinn of the 2013 Regular Session of the Legislature, as amended, proposes to enact R.S. 32:412(M) and R.S. 40:1321(M) to require the Department of Public Safety and Corrections, office of motor vehicles, to issue a driver's license or special identification card that bears a United States Department of Homeland Security approved security marking that reflects such credential, meets the standards of the REAL ID Act of 2005 upon request of any individual who is otherwise eligible to be issued a driver's license or special identification card as provided by law and who meets all the requirements of the United States Department of Homeland Security for a REAL ID Act compliant credential; and

Whereas, House Bill No. 395, as amended, further proposes to enact R.S. 32:412(M) and R.S. 40:1321(M) to provide that if a Louisiana resident elects not to be issued a REAL ID Act compliant driver's license or special identification card, the Department of Public Safety and Corrections, office of motor vehicles, shall issue a driver's license or special identification card to any individual who is otherwise eligible to be issued a driver's license or special identification card as provided by law that indicates such driver's license or special identification card is not accepted by federal agencies for official purposes in compliance with the United States Department of Homeland Security rules and the words ''Not for federal identification'' shall be printed on the driver's license or special identification card: Now, therefore, be it

Resolved, That the Legislature of Louisiana establishes the Louisiana REAL ID Act of 2005 Task Force to study all issues and disputes related to implementation of the federal REAL ID Act of 2005, and to report its findings and recommendations on whether or not Louisiana should implement the federal REAL ID Act of 2005; and be it further

Resolved, That the Louisiana REAL ID Act of 2005 Task Force shall be comprised of the following members:

(1) The president of the Senate, or his designee.

(2) The speaker of the House of Representatives, or his designee.

(3) The chair of the Senate Committee on Transportation, Highways, and Public Works, or his designee.

(4) The chair of the House Committee on Transportation, Highways, and Public Works, or his designee.

(5) The deputy secretary of public safety services of the Department of Public Safety and Corrections, or his designee.

(6) The commissioner of the office of motor vehicles of the Department of Public Safety and Corrections, or his designee.

(7) Each member of the Louisiana congressional delegation or the member's designee; and be it further

Resolved, That the members of this task force shall serve without compensation, except per diem or expenses reimbursement to which they may be individually entitled as members of the organizations they represent; and be it further

Resolved, That the president of the Senate or his designee shall act as chairman of the task force and the speaker of the House of Representatives or his designee shall act as vice chairman; and be it further

Resolved, That a majority of the total membership shall constitute a quorum of the task force and any official action by the task force shall require an affirmative vote of a majority of the quorum present and voting; and be it further

Resolved, That the names of the members chosen or designated as provided herein shall be submitted to the chairman of the task force not later than August 15, 2013, and that the chairman shall thereafter call the first meeting of the task force not later than September 15, 2013; and be it further

Resolved, That the task force shall meet as necessary, shall submit a written report of its findings and recommendations to the chairmen of the Senate and House committees on transportation, highways, and public works not later than sixty days prior to the 2014 Regular Session of the Legislature, and shall terminate upon submission of its report; and be it further

Resolved, That a copy of this Resolution shall be transmitted to the deputy secretary of public safety services of the Department of Public Safety and Corrections, the commissioner of the office of motor vehicles of the Department of Public Safety and Corrections, and each member of Louisiana's congressional delegation.

POM–43. A resolution adopted by the Senate of the State of Louisiana urging and requesting the Louisiana congressional delegation to review the basis for the discontinuance of funding of the Bossier Sheriff's Young Marines Program through a Juvenile Accountability Block Grant with the United States Department of Justice, Office of Civil Rights; to the Committee on the Judiciary.

SENATE RESOLUTION NO. 192

Whereas, since 2002, the Bossier Parish Sheriff's Office has successfully administered the Bossier Sheriff's Young Marines Program, a program sanctioned by the United States Marine Corps which provides community-based physical education programs that are designed to teach young men and women, ages 8 to 18, respect for their bodies through physical fitness, which in return will instill resistance to the temptations of illegal drugs, alcohol and tobacco use; and

Whereas, the focus of the program is character-building, along with core values of discipline, leadership, teamwork and commitment and instills into the participants the ideals of honesty, integrity and respect and at-risk youth developing goals for academic success; and

Whereas, the program has been partially funded by the Juvenile Accountability Block Grant (JABG) provided by the Louisiana Commission on Law Enforcement (LCLE); and

Whereas, because of the success of the program, local judges started sentencing court-ordered juveniles to the program as a diversion from jail time; however, the Young Marines Program was never intended to be a ''diversion'' program and the LCLE staff has recommended that the Bossier Parish Sheriff's Office create a new separate program, specifically for court-ordered juveniles; and

Whereas, in December 2012, the Sheriff's Office submitted a JABG application for the Bossier Youth Diversion Program which was created similar to the Bossier Sheriff's Young Marines Program, while also incorporating ''Character Counts'' and ''The Great Body Shop'', as recommended by LCLE staff, for court-ordered juveniles only; and

Whereas, the Sheriff's Office was advised by the LCLE that pursuant to the direction of the United States Department of Justice, Office for Civil Rights, the program can ''NOT include prayer as part of the Diversion program. Any prayer, even if voluntary, needs to be separate in time or location from the Diversion Program activities.''; and

Whereas, on February 22, 2013, the Sheriff's Office responded by email to the LCLE, ''In response to the prayer issue, the time that was offered for prayer was optional for all of the kids. It was led by any child that wanted to volunteer and if there wasn't a volunteer, it became a few moments of silence.''; and

Whereas, on March 7, 2013, LCLE responded, at the direction of the United States Department of Justice, requesting an official letter, ''. . . signed by the Sheriff, which states that there will be no prayer activities conducted during the Diversion program . . .'' and that the LCLE ''. . . will not be able to issue an award until this letter is received.''; and

Whereas, at that time, the Sheriff withdrew the grant request; and

Whereas, on February 6, 2013, the Bossier Parish Sheriff's Office submitted a Program Plan Worksheet requesting the one-time Juvenile Justice Delinquency Prevention funds available for the Bossier Sheriff's Young Marines Program and was denied upon the same grounds involving prayer activities; and

Whereas, at this time, the Sheriff's Office has been divested of funding by the LCLE for both the Bossier Sheriff's Young Marines Program and the Bossier Youth Diversion Program due to prayer and the mention of God in the programs: Now, therefore, be it

Resolved, That the members of the Louisiana congressional delegation are hereby urged and requested to review with the United States Department of Justice, Office of Civil Rights, the basis for the discontinuance of funding of the Bossier Sheriff's Young Marines Program with a Juvenile Accountability Block Grant; and be it further

Resolved, That a copy of this Resolution be transmitted to each member of the Louisiana congressional delegation, the governor, the Louisiana Commission on Law Enforcement, and the Bossier Parish Sheriff.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mrs. MURRAY, from the Committee on Appropriations, without amendment:

S. 1243. An original bill making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2014, and for other purposes (Rept. No. 113–45).

By Mr. PRYOR, from the Committee on Appropriations, without amendment:

S. 1244. An original bill making appropriations for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies programs for the fiscal year ending September 30, 2014, and for other purposes (Rept. No. 113–46).

By Mrs. FEINSTEIN, from the Committee on Appropriations, without amendment:

S. 1245. An original bill making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2014, and for other purposes (Rept. No. 113–47).

By Mr. JOHNSON of South Dakota, from the Committee on Appropriations, with an amendment in the nature of a substitute:

H.R. 2216. A bill making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2014, and for other purposes (Rept. No. 113–48).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, without amendment:

S. 27. A bill to clarify authority granted under the Act entitled ''An Act to define the exterior boundary of the Uintah and Ouray Indian Reservation in the State of Utah, and for other purposes'' (Rept. No. 113–49).

S. 59. A bill to designate a Distinguished Flying Cross National Memorial at the March Field Air Museum in Riverside, California (Rept. No. 113–50).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with an amendment:

S. 156. A bill to allow for the harvest of gull eggs by the Huna Tlingit people within Glacier Bay National Park in the State of Alaska (Rept. No. 113–51).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, without amendment:

S. 211. A bill to amend certain definitions contained in the Provo River Project Transfer Act for purposes of clarifying certain property descriptions, and for other purposes (Rept. No. 113–52).

S. 225. A bill to authorize the Secretary of the Interior to conduct a study of alternatives for commemorating and interpreting the role of the Buffalo Soldiers in the early years of the National Parks, and for other purposes (Rept. No. 113–53).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with an amendment in the nature of a substitute and an amendment to the title:

S. 241. A bill to establish the Rio Grande del Norte National Conservation Area in the State of New Mexico, and for other purposes (Rept. No. 113–54).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with an amendment:

S. 256. A bill to amend Public Law 93–435 with respect to the Northern Mariana Islands, providing parity with Guam, the Virgin Islands, and American Samoa (Rept. No. 113–55).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, without amendment:

S. 284. A bill to transfer certain facilities, easements, and rights-of-way to Fort Sumner Irrigation District, New Mexico (Rept. No. 113–56).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with amendments:

S. 305. A bill to authorize the acquisition of core battlefield land at Champion Hill, Port Gibson, and Raymond for addition to Vicksburg National Military Park (Rept. No. 113–57).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, without amendment:

S. 312. A bill to adjust the boundary of the Carson National Forest, New Mexico (Rept. No. 113–58).

S. 342. A bill to designate the Pine Forest Range Wilderness area in Humboldt County, Nevada (Rept. No. 113–59).

S. 349. A bill to amend the Wild and Scenic Rivers Act to designate a segment of the Beaver, Chipuxet, Queen, Wood, and Pawcatuck Rivers in the States of Connecticut and Rhode Island for study for potential addition to the National Wild and

Scenic Rivers System, and for other purposes (Rept. No. 113–60).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with an amendment:

S. 368. A bill to reauthorize the Federal Land Transaction Facilitation Act, and for other purposes (Rept. No. 113–61).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, without amendment:

S. 371. A bill to establish the Blackstone River Valley National Historical Park, to dedicate the Park to John H. Chafee, and for other purposes (Rept. No. 113–62).

S. 447. A bill to provide for the conveyance of certain cemeteries that are located on National Forest System land in Black Hills National Forest, South Dakota (Rept. No. 113–63).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with an amendment in the nature of a substitute:

S. 476. A bill to amend the Chesapeake and Ohio Canal Development Act to extend to the Chesapeake and Ohio Canal National Historical Park Commission (Rept. No. 113–64).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with amendments:

S. 507. A bill to establish the Manhattan Project National Historical Park in Oak Ridge, Tennessee, Los Alamos, New Mexico, and Hanford, Washington, and for other purposes (Rept. No. 113–65).

S. 609. A bill to authorize the Secretary of the Interior to convey certain Federal land in San Juan County, New Mexico, and for other purposes (Rept. No. 113–66).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with amendments and an amendment to the title:

S. 736. A bill to establish a maximum amount for special use permit fees applicable to certain cabins on National Forest System land in the State of Alaska (Rept. No. 113–67).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, without amendment:

S. 757. A bill to provide for the implementation of the multispecies habitat conservation plan for the Virgin River, Nevada, and Lincoln County, Nevada, to extend the authority to purchase certain parcels of public land, and for other purposes (Rept. No. 113–68).

By Mr. WYDEN, from the Committee on Energy and Natural Resources, with an amendment in the nature of a substitute:

H.R. 316. A bill to reinstate and transfer certain hydroelectric licenses and extend the deadline for commencement of construction of certain hydroelectric projects (Rept. No. 113–69).

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. WYDEN (for himself and Ms. MURKOWSKI) (by request):

S. 1237. A bill to improve the administration of programs in the insular areas, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. REED (for himself, Mrs. HAGAN, Mr. FRANKEN, Mr. HARKIN, Ms. STABENOW, Ms. WARREN, Mrs. MURRAY, Mr. REID, Ms. LANDRIEU, Mr. PRYOR, Mr. DURBIN, Mr. WHITEHOUSE, Mr. UDALL of New Mexico, Ms. KLOBUCHAR, Mr. BROWN, Mr. MENENDEZ, Mr. LEAHY, Mr. SANDERS, Mrs. SHAHEEN, Mr. SCHATZ, Mr. LEVIN, Ms. HIRONO, Mrs. MCCASKILL, Mr. MURPHY, Mr. BLUMENTHAL, Ms. BALDWIN, Mr. BEGICH, Mr. HEINRICH, Mrs. GILLIBRAND, Mr. CARDIN, Mr. MERKLEY, Mr. ROCKEFELLER, Mr. WYDEN, Mrs. BOXER, Ms. MIKULSKI, Mr. NELSON, Mr. JOHNSON of South Dakota, Mr. CASEY, and Mr. COONS):

S. 1238. A bill to amend the Higher Education Act of 1965 to extend the current reduced interest rate for undergraduate Federal Direct Stafford Loans for 1 year, to modify required distribution rules for pension plans, and for other purposes; placed on the calendar.

By Mrs. GILLIBRAND:

S. 1239. A bill to expand the research and awareness activities of the National Institute of Arthritis and Musculoskeletal and Skin Diseases and the Centers for Disease Control and Prevention with respect to scleroderma, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WYDEN (for himself, Ms. MURKOWSKI, Mrs. FEINSTEIN, and Mr. ALEXANDER):

S. 1240. A bill to establish a new organization to manage nuclear waste, provide a consensual process for siting nuclear waste facilities, ensure adequate funding for managing nuclear waste, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. MANCHIN (for himself, Mr. KING, Mr. ALEXANDER, Mr. COBURN, Mr. BURR, Mr. CARPER, Ms. AYOTTE, and Mr. ISAKSON):

S. 1241. A bill to establish the interest rate for certain Federal student loans, and for other purposes; placed on the calendar.

By Mr. BROWN (for himself, Mr. MERKLEY, Mrs. GILLIBRAND, Mr. COONS, Mr. HARKIN, Mrs. MURRAY, Mr. BLUMENTHAL, Mr. WHITEHOUSE, and Mrs. BOXER):

S. 1242. A bill to amend the Fair Housing Act, and for other purposes; to the Committee on the Judiciary.

By Mrs. MURRAY:

S. 1243. An original bill making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2014, and for other purposes; from the Committee on Appropriations; placed on the calendar.

By Mr. PRYOR:

S. 1244. An original bill making appropriations for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies programs for the fiscal year ending September 30, 2014, and for other purposes; from the Committee on Appropriations; placed on the calendar.

By Mrs. FEINSTEIN:

S. 1245. An original bill making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2014, and for other purposes; from the Committee on Appropriations; placed on the calendar.

By Mr. MURPHY (for himself, Mr. BROWN, Mr. MERKLEY, and Mr. BLUMENTHAL):

S. 1246. A bill to amend title 10, United States Code, to require contracting officers to consider information regarding domestic employment before awarding a Federal defense contract, and for other purposes; to the Committee on Armed Services.

By Mr. REED:

S. 1247. A bill to improve and enhance research and programs on childhood cancer survivorship, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself and Mr. HARKIN):

S. 1248. A bill to permit employees to request, and to ensure employers consider requests for, flexible work terms and conditions, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BLUMENTHAL (for himself, Ms. COLLINS, Mr. PORTMAN, Mr. CRAPO, Mr. KIRK, and Mrs. SHAHEEN):

S. 1249. A bill to rename the Office to Monitor and Combat Trafficking of the Department of State the Bureau to Monitor and Combat Trafficking in Persons and to provide for an Assistant Secretary to head such Bureau, and for other purposes; to the Committee on Foreign Relations.

By Mr. WYDEN (for himself and Mr. HOEVEN):

S. 1250. A bill to provide $50,000,000,000 in new transportation infrastructure funding through bonding to empower States and local governments to complete significant infrastructure projects across all modes of transportation, including roads, bridges, rail and transit systems, ports, and inland waterways, and for other purposes; to the Committee on Finance.

By Mr. REED (for himself, Mrs. FISCHER, Mr. MENENDEZ, Mr. CASEY, Mr. FRANKEN, and Ms. KLOBUCHAR):

S. 1251. A bill to establish programs with respect to childhood, adolescent, and young adult cancer; to the Committee on Health, Education, Labor, and Pensions.

By Mr. SANDERS (for himself and Mr. LEAHY):

S. 1252. A bill to amend the Wild and Scenic Rivers Act to designate segments of the Missisquoi River and the Trout River in the State of Vermont, as components of the National Wild and Scenic Rivers System; to the Committee on Energy and Natural Resources.

By Mr. MURPHY (for himself and Mr. BLUMENTHAL):

S. 1253. A bill to amend the Wild and Scenic Rivers Act to designate certain segments of the Farmington River and Salmon Brook in the State of Connecticut as components of the National Wild and Scenic Rivers System, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. NELSON (for himself, Mr. PORTMAN, Mr. BEGICH, Mr. ROCKEFELLER, Mr. BLUMENTHAL, Mr. KING, Mr. CARDIN, Ms. CANTWELL, Ms. LANDRIEU, Mr. WICKER, and Mr. MERKLEY):

S. 1254. A bill to amend the Harmful Algal Blooms and Hypoxia Research and Control Act of 1998, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. HELLER:

S. 1255. A bill to amend the Internal Revenue Code of 1986 to provide for a deduction for travel expenses to medical centers of the Department of Veterans Affairs in connection with examinations or treatments relating to service-connected disabilities; to the Committee on Finance.

By Mrs. FEINSTEIN (for herself, Ms. COLLINS, Mr. REED, Ms. CANTWELL, and Mrs. BOXER):

S. 1256. A bill to amend the Federal Food, Drug, and Cosmetic Act to preserve the effectiveness of medically important antimicrobials used in the treatment of human and animal diseases; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ROBERTS:

S. 1257. A bill to protect financial transactions in the United States from enforcement of certain excise taxes imposed by any foreign government, and for other purposes; to the Committee on Finance.

By Mr. JOHNSON of Wisconsin (for himself and Ms. BALDWIN):

S. 1258. A bill to authorize and request the President to award the Medal of Honor posthumously to First Lieutenant Alonzo H. Cushing for acts of valor during the Civil War; to the Committee on Armed Services.

By Mr. MENENDEZ:

S. 1259. A bill to amend the Public Health Services Act to provide research, training, and navigator services to youth and young adults on the verge of aging out of the secondary educational system, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. UDALL of New Mexico (for himself and Mr. BOOZMAN):

S. 1260. A bill to amend the Internal Revenue Code of 1986 to provide a standard home office deduction; to the Committee on Finance.

By Mr. UDALL of Colorado (for himself and Mr. RISCH):

S. 1261. A bill to amend the National Energy Conservation Policy Act and the Energy Independence and Security Act of 2007 to promote energy efficiency via information and computing technologies, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. NELSON:

S. 1262. A bill to require the Secretary of Veterans Affairs to establish a veterans conservation corps, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. HELLER (for himself and Mr. REID):

S. 1263. A bill to establish a wilderness area, promote conservation, improve public land, and provide for sensible development in Douglas County, Nevada, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. CASEY:

S. 1264. A bill to foster market development of clean energy fueling facilities by steering infrastructure installation toward designated Clean Vehicle Corridors; to the Committee on Environment and Public Works.

By Mr. ALEXANDER (for himself and Mr. CORKER):

S. 1265. A bill to amend title XVIII of the Social Security Act to delay the implementation of round 2 of the Medicare DMEPOS Competitive Acquisition Program for competitive acquisition areas in Tennessee, and for other purposes; to the Committee on Finance.

By Mr. BROWN (for himself, Ms. HEITKAMP, Mr. DURBIN, Mrs. MURRAY, and Mrs. GILLIBRAND):

S. 1266. A bill to provide for the establishment of a mechanism to allow borrowers of private education loans to refinance their loans, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Ms. STABENOW:

S. 1267. A bill to cut taxes for innovative businesses that produce renewable chemicals; to the Committee on Finance.

By Mr. WYDEN (by request):

S. 1268. A bill to approve an agreement between the United States and the Republic of Palau; to the Committee on Energy and Natural Resources.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. INHOFE (for himself and Ms. LANDRIEU):

S. Res. 190. A resolution expressing the sense of the Senate that foreign assistance for child welfare should adhere to the goals of the United States Government Action Plan on Children in Adversity; to the Committee on Foreign Relations.

By Mr. ENZI (for himself, Mr. BARRASSO, Mr. BAUCUS, Mr. CRAPO, Mr. INHOFE, Mr. JOHNSON of South Dakota, Mr. JOHANNS, Ms. HEITKAMP, Mr. MERKLEY, Mr. REID, Mr. RISCH, and Mr. TESTER):

S. Res. 191. A resolution designating July 27, 2013, as ''National Day of the American Cowboy''; to the Committee on the Judiciary.

By Mr. CASEY (for himself and Mr. TOOMEY):

S. Res. 192. A resolution commemorating the 150th anniversary of the Battle of Gettysburg and the significance of this battle in the history of the United States; considered and agreed to.

By Mr. REID:

S. Con. Res. 19. A concurrent resolution providing for a conditional adjournment or recess of the Senate and an adjournment of the House of Representatives; considered and agreed to.

ADDITIONAL COSPONSORS

S. 170

At the request of Ms. MURKOWSKI, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 170, a bill to recognize the heritage of recreational fishing, hunting, and recreational shooting on Federal public land and ensure continued opportunities for those activities.

S. 323

At the request of Mr. DURBIN, the name of the Senator from North Carolina (Mrs. HAGAN) was added as a cosponsor of S. 323, a bill to amend title XVIII of the Social Security Act to provide for extended months of Medicare coverage of immunosuppressive drugs for kidney transplant patients and other renal dialysis provisions.

S. 381

At the request of Mr. BROWN, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of S. 381, a bill to award a Congressional Gold Medal to the World War II members of the ''Doolittle Tokyo Raiders'', for outstanding heroism, valor, skill, and service to the United States in conducting the bombings of Tokyo.

S. 403

At the request of Mr. CASEY, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 403, a bill to amend the Elementary and Secondary Education Act of 1965 to address and take action to prevent bullying and harassment of students.

S. 409

At the request of Mr. BURR, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 409, a bill to add Vietnam Veterans Day as a patriotic and national observance.

S. 411

At the request of Mr. ROCKEFELLER, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 411, a bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit.

S. 425

At the request of Ms. STABENOW, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 425, a bill to amend title XI of the Social Security Act to improve the quality, health outcomes, and value of maternity care under the Medicaid and CHIP programs by developing maternity care quality measures and supporting maternity care quality collaboratives.

S. 455

At the request of Mr. TESTER, the name of the Senator from North Dakota (Ms. HEITKAMP) was added as a cosponsor of S. 455, a bill to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to transport individuals to and from facilities of the Department of Veterans Affairs in connection with rehabilitation, counseling, examination, treatment, and care, and for other purposes.

S. 541

At the request of Ms. LANDRIEU, the name of the Senator from Vermont (Mr. LEAHY) was added as a cosponsor of S. 541, a bill to prevent human health threats posed by the consumption of equines raised in the United States.

S. 559

At the request of Mr. ISAKSON, the name of the Senator from North Carolina (Mrs. HAGAN) was added as a cosponsor of S. 559, a bill to establish a fund to make payments to the Americans held hostage in Iran, and to members of their families, who are identified as members of the proposed class in case number 1:08–CV–00487 (EGS) of the United States District Court for the District of Columbia, and for other purposes.

S. 628

At the request of Mr. TESTER, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 628, a bill to amend title 10, United States Code, to extend the duration of the Physical Disability Board of Review and to the expand the authority of such Board to review of the separation of members of the Armed Forces on the basis of mental condition not amounting to disability, including separation on the basis of a personality or adjustment disorder.

S. 629

At the request of Mr. PRYOR, the name of the Senator from South Dakota (Mr. THUNE) was added as a cosponsor of S. 629, a bill to amend title 38, United States Code, to recognize the service in the reserve components of the Armed Forces of certain persons by honoring them with status as veterans under law, and for other purposes.

S. 710

At the request of Mr. TOOMEY, the name of the Senator from Idaho (Mr.

RISCH) was added as a cosponsor of S. 710, a bill to provide exemptions from municipal advisor registration requirements.

S. 718

At the request of Mr. DURBIN, the name of the Senator from Vermont (Mr. LEAHY) was added as a cosponsor of S. 718, a bill to create jobs in the United States by increasing United States exports to Africa by at least 200 percent in real dollar value within 10 years, and for other purposes.

S. 727

At the request of Mr. MORAN, the names of the Senator from Idaho (Mr. CRAPO), the Senator from Kansas (Mr. ROBERTS), the Senator from Texas (Mr. CORNYN), the Senator from Arkansas (Mr. BOOZMAN), the Senator from Mississippi (Mr. COCHRAN), the Senator from Nevada (Mr. HELLER), the Senator from Georgia (Mr. CHAMBLISS), the Senator from Wyoming (Mr. BARRASSO), the Senator from South Dakota (Mr. THUNE), the Senator from Ohio (Mr. PORTMAN) and the Senator from Idaho (Mr. RISCH) were added as cosponsors of S. 727, a bill to improve the examination of depository institutions, and for other purposes.

S. 731

At the request of Mr. MANCHIN, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 731, a bill to require the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, and the Office of the Comptroller of the Currency to conduct an empirical impact study on proposed rules relating to the International Basel III agreement on general risk-based capital requirements, as they apply to community banks.

S. 772

At the request of Mr. NELSON, the name of the Senator from Pennsylvania (Mr. TOOMEY) was added as a cosponsor of S. 772, a bill to amend the Federal Food, Drug, and Cosmetic Act to clarify the Food and Drug Administration's jurisdiction over certain tobacco products, and to protect jobs and small businesses involved in the sale, manufacturing and distribution of traditional and premium cigars.

S. 783

At the request of Mr. WYDEN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 783, a bill to amend the Helium Act to improve helium stewardship, and for other purposes.

S. 789

At the request of Mr. BAUCUS, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 789, a bill to grant the Congressional Gold Medal, collectively, to the First Special Service Force, in recognition of its superior service during World War II.

S. 877

At the request of Mr. BEGICH, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 877, a bill to require the Secretary of Veterans Affairs to allow public access to research of the Department, and for other purposes.

S. 892

At the request of Mr. KIRK, the names of the Senator from Alabama (Mr. SESSIONS) and the Senator from Hawaii (Mr. SCHATZ) were added as cosponsors of S. 892, a bill to amend the Iran Threat Reduction and Syria Human Rights Act of 2012 to impose sanctions with respect to certain transactions in foreign currencies, and for other purposes.

S. 917

At the request of Mr. CARDIN, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 917, a bill to amend the Internal Revenue Code of 1986 to provide a reduced rate of excise tax on beer produced domestically by certain qualifying producers.

S. 966

At the request of Mr. CARDIN, the name of the Senator from North Dakota (Ms. HEITKAMP) was added as a cosponsor of S. 966, a bill to amend the Internal Revenue Code of 1986 to increase participation in medical flexible spending arrangements.

S. 971

At the request of Mr. WYDEN, the names of the Senator from Alaska (Mr. BEGICH) and the Senator from Georgia (Mr. CHAMBLISS) were added as cosponsors of S. 971, a bill to amend the Federal Water Pollution Control Act to exempt the conduct of silvicultural activities from national pollutant discharge elimination system permitting requirements.

S. 1013

At the request of Mr. CORNYN, the name of the Senator from Iowa (Mr. GRASSLEY) was added as a cosponsor of S. 1013, a bill to amend title 35, United States Code, to add procedural requirements for patent infringement suits.

S. 1066

At the request of Mrs. GILLIBRAND, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 1066, a bill to allow certain student loan borrowers to refinance Federal student loans.

S. 1072

At the request of Ms. KLOBUCHAR, the name of the Senator from North Dakota (Ms. HEITKAMP) was added as a cosponsor of S. 1072, a bill to ensure that the Federal Aviation Administration advances the safety of small airplanes and the continued development of the general aviation industry, and for other purposes.

S. 1089

At the request of Ms. COLLINS, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 1089, a bill to provide for a prescription drug take-back program for members of the Armed Forces and veterans, and for other purposes.

S. 1093

At the request of Mr. COCHRAN, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 1093, a bill to designate the facility of the United States Postal Service located at 130 Caldwell Drive in Hazlehurst, Mississippi, as the ''First Lieutenant Alvin Chester Cockrell, Jr. Post Office Building''.

S. 1148

At the request of Mr. HEINRICH, the name of the Senator from Arkansas (Mr. PRYOR) was added as a cosponsor of S. 1148, a bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to provide notice of average times for processing claims, and for other purposes.

S. 1154

At the request of Mr. ROBERTS, the name of the Senator from Indiana (Mr. COATS) was added as a cosponsor of S. 1154, a bill to provide that certain requirements of the Patient Protection and Affordable Care Act do not apply if the American Health Benefit Exchanges are not operating on October 1, 2013.

S. 1158

At the request of Mr. WARNER, the names of the Senator from Colorado (Mr. BENNET) and the Senator from California (Mrs. BOXER) were added as cosponsors of S. 1158, a bill to require the Secretary of the Treasury to mint coins commemorating the 100th anniversary of the establishment of the National Park Service, and for other purposes.

S. 1166

At the request of Mr. ISAKSON, the names of the Senator from Idaho (Mr. RISCH) and the Senator from South Dakota (Mr. THUNE) were added as cosponsors of S. 1166, a bill to amend the National Labor Relations Act to provide for appropriate designation of collective bargaining units.

S. 1174

At the request of Mr. BLUMENTHAL, the names of the Senator from Illinois (Mr. DURBIN), the Senator from New York (Mrs. GILLIBRAND) and the Senator from Connecticut (Mr. MURPHY) were added as cosponsors of S. 1174, a bill to award a Congressional Gold Medal to the 65th Infantry Regiment, known as the Borinqueneers.

S. 1187

At the request of Ms. STABENOW, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 1187, a bill to prevent homeowners from being forced to pay taxes on forgiven mortgage loan debt.

S. 1195

At the request of Mr. BARRASSO, the names of the Senator from Oklahoma (Mr. COBURN) and the Senator from Utah (Mr. HATCH) were added as cosponsors of S. 1195, a bill to repeal the renewable fuel standard.

S. 1204

At the request of Mr. COBURN, the names of the Senator from Missouri

(Mr. BLUNT) and the Senator from Kentucky (Mr. PAUL) were added as cosponsors of S. 1204, a bill to amend the Patient Protection and Affordable Care Act to protect rights of conscience with regard to requirements for coverage of specific items and services, to amend the Public Health Service Act to prohibit certain abortion-related discrimination in governmental activities, and for other purposes.

S. 1226

At the request of Mr. BROWN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1226, a bill to promote industry growth and competitiveness and to improve worker training, retention, and advancement, and for other purposes.

S. 1229

At the request of Mr. WHITEHOUSE, the names of the Senator from Vermont (Mr. SANDERS), the Senator from Michigan (Mr. LEVIN) and the Senator from Rhode Island (Mr. REED) were added as cosponsors of S. 1229, a bill to amend the Truth in Lending Act to empower the States to set the maximum annual percentage rates applicable to consumer credit transactions, and for other purposes.

S. 1234

At the request of Mr. INHOFE, the name of the Senator from South Dakota (Mr. THUNE) was added as a cosponsor of S. 1234, a bill to clarify that a State has the sole authority to regulate hydraulic fracturing on Federal land within the boundaries of the State.

S. 1235

At the request of Mr. WYDEN, the names of the Senator from Missouri (Mr. BLUNT) and the Senator from Florida (Mr. NELSON) were added as cosponsors of S. 1235, a bill to restrict any State or local jurisdiction from imposing a new discriminatory tax on cell phone services, providers, or property.

S. 1236

At the request of Mrs. FEINSTEIN, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of S. 1236, a bill to repeal the Defense of Marriage Act and ensure respect for State regulation of marriage.

S.J. RES. 19

At the request of Mr. UDALL of New Mexico, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S.J. Res. 19, a joint resolution proposing an amendment to the Constitution of the United States relating to contributions and expenditures intended to affect elections.

S. RES. 75

At the request of Mr. KIRK, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. Res. 75, a resolution condemning the Government of Iran for its state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 153

At the request of Mr. TOOMEY, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. Res. 153, a resolution recognizing the 200th anniversary of the Battle of Lake Erie.

AMENDMENT NO. 1312

At the request of Mr. SANDERS, the names of the Senator from Oregon (Mr. MERKLEY) and the Senator from Connecticut (Mr. BLUMENTHAL) were added as cosponsors of amendment No. 1312 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

AMENDMENT NO. 1317

At the request of Ms. HIRONO, the names of the Senator from California (Mrs. BOXER), the Senator from West Virginia (Mr. ROCKEFELLER) and the Senator from Hawaii (Mr. SCHATZ) were added as cosponsors of amendment No. 1317 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

AMENDMENT NO. 1397

At the request of Mr. WHITEHOUSE, the name of the Senator from South Carolina (Mr. GRAHAM) was added as a cosponsor of amendment No. 1397 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

AMENDMENT NO. 1453

At the request of Mr. WHITEHOUSE, the name of the Senator from South Carolina (Mr. GRAHAM) was added as a cosponsor of amendment No. 1453 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

AMENDMENT NO. 1636

At the request of Mr. BLUMENTHAL, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of amendment No. 1636 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

AMENDMENT NO. 1714

At the request of Mr. BROWN, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of amendment No. 1714 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

AMENDMENT NO. 1718

At the request of Ms. HIRONO, the names of the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator from Hawaii (Mr. SCHATZ) and the Senator from Delaware (Mr. COONS) were added as cosponsors of amendment No. 1718 intended to be proposed to S. 744, a bill to provide for comprehensive immigration reform and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. WYDEN (for himself, Ms. MURKOWSKI, Mrs. FEINSTEIN, and Mr. ALEXANDER):

S. 1240. A bill to establish a new organization to manage nuclear waste, provide a consensual process for siting nuclear waste facilities, ensure adequate funding for managing nuclear waste, and for other purposes; to the Committee on Energy and Natural Resources.

Mrs. FEINSTEIN. Mr. President, I rise today to join my colleagues in introducing the Nuclear Waste Administration Act.

This bipartisan legislation, which has been years in the making, is also cosponsored by Senators RON WYDEN, LISA MURKOWSKI, and LAMAR ALEXANDER.

This legislation represents our best attempt to establish a workable, long term nuclear waste policy for the United States, something our Nation lacks today, by implementing the unanimous recommendations of the Blue Ribbon Commission on America's Nuclear Future.

First, the bill would create an independent entity, the Nuclear Waste Administration, with the sole purpose of managing nuclear waste.

Second, the bill would authorize the siting and construction of three types of waste facilities: a ''pilot'' waste storage facility for waste from shut down reactors, additional storage facilities for waste from other facilities, and permanent repositories to dispose of nuclear waste.

Third, the bill creates a consent-based siting process for both storage facilities and repositories, based on the successful efforts to build waste facilities in other countries.

The legislation requires that local, tribal, and State governments must consent to host waste facilities by signing incentive agreements, assuring that waste is only stored in the States and communities that want and welcome it.

Fourth, the bill would direct the fees currently collected from nuclear power ratepayers to fund nuclear waste management, currently about $750 M annually, into a new Working Capital Fund available to the Nuclear Waste Administration to fund construction of waste facilities.

Finally, the legislation ensures that the new Nuclear Waste Administration will be held accountable for meeting Federal responsibilities and stewarding Federal dollars.

The Nuclear Waste Administrator will be appointed by the President and confirmed by the Senate. The Administration will be overseen by a five-member Nuclear Waste Oversight Board, modeled on the Defense Nuclear Facilities Board. The administration will have an Inspector General. The administration will not be able to access the corpus of the Nuclear Waste Trust Fund until it reaches agreement with a host community. Appropriators may limit the administration's spending, if necessary. Finally, if the agency fails to open a nuclear waste facility by 2025, additional funding will cease.

The United States has 104 operating commercial nuclear power reactors that supply ⅕ of our electricity and nearly 75 percent of our emissions-free power.

However, production of this nuclear power has a significant downside: it produces nuclear waste that will take hundreds of thousands of years to decay. Unlike most nuclear nations, the United States has no program to consolidate waste in centralized facilities.

Instead, we leave the waste next to operating and shut down reactors sitting in pools of water or in cement and steel dry casks. Today, approximately 70,000 metric tons of nuclear waste is stored at commercial reactor sites. This total grows by 2,000 metric tons each year.

In addition to commercial nuclear waste, we must also address waste generated from creating our nuclear weapons stockpile and powering our Navy.

The byproducts of nuclear energy represent some of the nation's most hazardous materials, but for decades we have failed to find a solution for their safe storage and permanent disposal. Most experts agree that this failure is not a scientific problem or an engineering impossibility; it is a failure of government.

Although the Federal Government signed contracts committing to pick up commercial waste beginning in 1998, the Federal government's waste program has failed to take possession of a single fuel assembly.

Our government has not honored its contractual obligations. We have been sued, and we have lost. So today, the Federal taxpayer is paying power plants to store the waste at reactor sites all over the nation. The cost of this liability is forecast to reach $20 billion by 2020.

As we try to manage our growing national debt, we simply cannot tolerate continued inaction.

In January 2012, the Blue Ribbon Commission on America's Nuclear Future completed a two-year comprehensive study and published unanimous recommendations for fixing our Nation's broken nuclear waste management program.

The commission found that the only long-term, technically feasible solution for this waste is to dispose of it in a permanent underground repository. Until such a facility is opened, which will take many decades, spent nuclear fuel will continue to be an expensive, dangerous burden.

That is why the commission also recommended that we establish an interim storage facility program to begin consolidating this dangerous waste, in addition to working on a permanent repository.

Finally, after studying the experience of all nuclear nations, the commission found that siting these facilities is most likely to succeed if the host states and communities are welcome and willing partners, not adversaries. The commission recommended that we adopt a consent based nuclear facility siting process.

Senators WYDEN, MURKOWSKI, ALEXANDER, and I introduce this legislation in order to begin implementing those recommendations, putting us on a dual track toward interim and permanent storage facilities. The bill also reflects much work by former Senator Bingaman, who put forward a similar proposal as one of the last bills he wrote.

In my view, one of the most important provisions in this legislation is the pilot program to begin consolidating nuclear waste at safer, more cost-efficient centralized facilities on an interim basis. The legislation will facilitate interim storage of nuclear waste in above-ground canisters called dry casks. These facilities would be located in willing communities, away from population centers, and on thoroughly assessed sites.

Some members of Congress argue that we should ignore the need to interim storage sites and instead push forward with a plan to open Yucca Mountain as a permanent storage site.

Others argue that we should push forward only with repository plans in new locations.

But the debate over Yucca Mountain, a controversial waste repository proposed in the Nevada desert, which lacks State approval, is unlikely to be settled any time soon.

I believe the debate over a permanent repository does not need to be settled in order to recognize the need for interim storage. Even if Congress and a future president reverse course and move forward with Yucca Mountain, interim storage facilities would still be an essential component of a badly needed national nuclear waste strategy.

By creating interim storage sites, a top recommendation of the Blue Ribbon Commission, we would begin reducing Federal liability while providing breathing room to site and build a permanent repository.

Interim storage facilities could also provide alternative storage locations in emergency situations requiring spent nuclear fuel to be moved quickly from a reactor site.

Both short- and long-term storage programs are vital. Permanently disposing of our current inventory of nuclear waste will take several decades.

Because of that long timeline, interim storage facilities allow us to achieve significant cost savings for taxpayers and utility ratepayers by shuttering a number of nuclear plants.

One thing is certain: inaction is the most costly and least safe option.

Our longstanding stalemate is costly to taxpayers, utility ratepayers and communities that are involuntarily saddled with waste after local nuclear power plants have shut down.

It leaves nuclear waste all over the country, stored in all different ways.

It is long overdue for the government to honor its obligation to safely dispose of the Nation's nuclear waste.

This will be a long journey, but we must take the first step.

By Mr. REED (for himself, Mrs. FISCHER, Mr. MENENDEZ, Mr. CASEY, Mr. FRANKEN, and Ms. KLOBUCHAR):

S. 1251. A bill to establish programs with respect to childhood, adolescent, and young adult cancer; to the Committee on Health, Education, Labor, and Pensions.

Mr. REED. Mr. President, I am pleased to be joined by Senators FISCHER, MENENDEZ, CASEY, KLOBUCHAR and FRANKEN in the introduction of the Caroline Pryce Walker Conquer Childhood Cancer Reauthorization Act. This legislation is an extension of ongoing bipartisan efforts in the Senate over the past decade to hopefully one day cure cancers in children, adolescents, and young adults.

I first started working on this issue after meeting the Haight family from Warwick, Rhode Island in June of 2004. Nancy and Vincent lost their son, Ben, when he was just 9 years old to neuroblastoma, a very aggressive tumor in the brain. With the strong support of families like the Haights for increased research into the causes of childhood cancers and improved treatment options, I introduced legislation that eventually was signed into law in 2008 as the Caroline Pryce Walker Conquer Childhood Cancer Act.

Since then, I have worked to secure funding for these efforts, including $6 million for the Centers for Disease Control and Prevention, CDC, to improve the ability of state cancer registries to rapidly collect information on the diagnosis and treatment information of children with cancer, and $1 million for the Secretary of Health and Human Services, HHS, to help educate families about treatment options and follow-up care.

Then, last year, I met Grace. Grace, from Providence, RI, is now 10 years old and is a survivor of medulloblastoma, another type of tumor that forms in the brain. Grace and her family reminded me that we must do more to ensure biomedical advances can continue so that better treatments will become available.

With Ben and Grace, and their families, in mind, I have been working to update the original Caroline Pryce Walker Conquer Childhood Cancer Act.

As such, the reauthorization we are introducing today would help create a comprehensive children's cancer biorepository for researchers to use in searching for biospecimens to study, would improve surveillance of childhood cancer cases, and would require a study of ways to encourage the development of novel treatments.

I am also pleased to be reintroducing the Pediatric, Adolescent, and Young Adult Cancer Survivorship Act. Through increased research and advances in medical innovation, the population of survivors of childhood cancer has grown from just four percent

surviving more than five years in 1960 to nearly eighty percent today.

Unfortunately, even after beating cancer, as many as ⅔ of survivors suffer from late effects of their disease or treatment, including second cancers and organ damage. This legislation would enhance research on the late effects of childhood cancers, improve collaboration among providers so that doctors are better able to care for this population as they age, and establish a new pilot program to begin to explore models of care for childhood cancer survivors.

We must do more to ensure that children survive cancer and any late effects so they can live a long, healthy, and productive life. I look forward to working with Senator FISCHER, and our colleagues, to see these bills enacted.

By Mr. SANDERS (for himself and Mr. LEAHY):

S. 1252. A bill to amend the Wild and Scenic Rivers Act to designate segments of the Missisquoi River and the Trout River in the State of Vermont, as components of the National Wild and Scenic Rivers System; to the Committee on Energy and Natural Resources.

Mr. LEAHY. Mr. President, I am pleased today to join my Vermont colleague Senator SANDERS to introduce the Upper Missisquoi and Trout Rivers Wild and Scenic River Designation Act.

The Upper Missisquoi River gathers itself from snowmelt and from pristine springs and cedar bogs in the forests of Vermont's Northeast Kingdom. As it flows from the town of Lowell to the town of Westfield, this lovely mountain brook grows large enough to float a small canoe during its winding journey through Vermont's forests and meadows. A paddler on this section is treated to a stream that runs crystal clear and abounds with trout and other fish as it winds through pine forest and silver maple flood plains, to meadows dotted with grazing Holstein cows.

The beauty and wildness of the river is undiminished as it swells on its journey north through the towns of Westfield, North Troy, and Troy, and crosses into the Canadian Province of Quebec. Not far downstream the river reenters the United States and winds its way across more miles of pastoral countryside in Northern Vermont through Richford, Berkshire, and Enosburg. Along the way it gathers the ice-cold, pristine flow of the Trout River in the town of Montgomery.

The scenery along the Upper Missisquoi and Trout Rivers in these towns is spectacularly beautiful, the water quality is superb, public access is unlimited, and Vermonters along the shores are eager to share these treasures with visitors from near and far. The Upper Missisquoi and Trout Rivers epitomize Wild and Scenic Recreational Rivers of national significance, and I am proud to join Senator SANDERS in introducing this legislation.

A Federal Wild and Scenic Recreational River designation should only be considered after the resource has been closely studied and if this designation is actively sought by people living in the area. We can report to the Senate that both of these tests are met for the Upper Missisquoi and Trout Rivers.

Seven years ago a group of people living along the rivers asked Vermont's delegation to the Congress to request a Wild and Scenic River Study, and for more than 5 years these Vermonters—with tremendous support from their neighbors, the neighboring towns, and the National Park Service—have assessed the river, turn by turn, mile by mile, and they have worked hard to plan for its protection and recreational use. The study committee kept their neighbors along the rivers and local elected leaders fully engaged at every step. Their hard work paid off this past March when the citizens of each of the affected, towns, at Vermont town meetings—those revered democratic institutions of self-government in our State—voted in favor of seeking the Wild and Scenic River designation.

This has been one of the most locally driven and strongly supported resource conservation initiatives to come before the Congress, and I commend the study committee and all of Vermonters in these towns for their hard work and cooperation.

A National Wild and Scenic River designation will help these two rivers reach their full potential as major engines of the Northeast Kingdom's tourism economy and at the same time help to ensure that the ecosystem is protected and enhanced for future generations.

The Upper Missisquoi River and the Trout River meet each of the criteria for a National Wild and Scenic River designation. The management of the rivers has been carefully planned, and the designation is actively sought by Vermonters living in communities along the rivers. I am proud to join Senator SANDERS and PETER WELCH, Vermont's Representative in the other body, in introducing this bill and taking this commendable effort to the next level.

By Mrs. FEINSTEIN (for herself, Ms. COLLINS, Mr. REED, Ms. CANTWELL, and Mrs. BOXER):

S. 1256. A bill to amend the Federal Food, Drug, and Cosmetic Act to preserve the effectiveness of medically important antimicrobials used in the treatment of human and animal diseases; to the Committee on Health, Education, Labor, and Pensions.

Mrs. FEINSTEIN. Mr. President, I rise today to introduce the Preventing Antibiotic Resistance Act.

This legislation puts in place reasonable safeguards on when and how antibiotics can be used in agriculture.

Few people realize that antibiotics are used in animal agriculture; even fewer realize the scope of the problem.

Last year 29.9 million pounds of antibiotics were sold in the U.S. for meat and poultry production. That is four times what was used in all forms of human medicine.

But there is more to be concerned about. The vast majority of these drugs are fed to healthy livestock and poultry, with little or no veterinary oversight. The drugs are used for growth promotion, to fatten up animals before slaughter.

At these low levels, the doses are not large enough, or powerful enough, to eliminate all the bacteria inside the animal's body. The small dose only kills off the weakest bacteria, leaving the strongest, most resistant bacteria behind to reproduce.

It creates a perfect storm for antibiotic resistance.

This isn't just a problem for the animals. These antibiotic resistant pathogens make their way into our food, our water, and our communities.

A recent study published in the medical journal Clinical Infectious Diseases found that nearly 50 percent of grocery store meat was contaminated with antibiotic resistant pathogens. Even more concerning, 25 percent of the meat was contaminated with pathogens that were resistant to three or more type of antibiotics.

Antibiotics are the closest thing to a ''silver bullet'' in human medicine. They are capable of wiping out a wide variety of bacterial infections. But we are in danger of losing this weapon in the fight against infectious diseases.

Tens of thousands of people in the U.S. die each year from antibiotic resistant infections. Unfortunately, we are learning the hard way that these precious, lifesaving drugs no longer work as well as they once did.

That is why I am so committed to this bill, to preserve the efficacy of these drugs that save lives every day.

The Preventing Antibiotic Resistance Act directs the Food and Drug Administration to prohibit the use of antibiotics in ways that accelerate antibiotic resistance.

The bill requires drug companies and producers to demonstrate that they are using antibiotics to treat clinically diagnosable diseases, not just to fatten their livestock.

But the bill takes a nuanced approach; the restrictions only apply to the limited number of antibiotics that are critical to human health. Any drug not used in human medicine is left untouched by this legislation.

The Preventing Antibiotic Resistance Act also preserves the ability of farmers to use all available antibiotics to treat sick animals. If a veterinarian identifies a sick animal, or a herd of animals that are likely to become sick, there are no restrictions on what drugs can be used.

This legislation is not revolutionary. Fifteen years ago Denmark became the first country to ban the routine use of antibiotics in the food and water of livestock. The entire European Union

followed suit in 2006. Australia, New Zealand, Chile, Korea, Thailand, the Philippines and Japan have also implemented full or partial bans on non-therapeutic uses of antibiotics.

But the majority of producers in the U.S. have not followed suit; and it is time for a wakeup call.

Put simply—irresponsible use of antibiotics endangers us all. And if the drugs can't be used safely, they shouldn't be used at all.

Some still refuse to accept the facts; they say that there is no evidence that antibiotic use in agriculture leads to infections in humans.

They are wrong.

Rear Admiral Ali S. Khan, MD, MPH, Assistant Surgeon General and Director of the Office of Public Health Preparedness and Response at the Centers for Disease Control and Prevention, testified in the House Energy Committee that ''studies related to Salmonella as both a human and animal pathogen, including many studies in the United States, have demonstrated that use of antibiotic agents in food animals results in antibiotic resistant bacteria in food animals, resistant bacteria are present in the food supply and are transmitted to humans, and resistant bacterial infections result in adverse human health consequences, e.g., increased hospitalization.''

Doctor Joshua Sharfstein, Principal Deputy Commissioner of the Food and Drug Administration, also testified at the hearing and agreed with Rear Admiral Khan. The FDA, he said, ''supports the conclusion that using medically important antimicrobial drugs for production purposes is not in the interest of protecting and promoting the public health.''

Quantitative evidence from the EU and Canada also support this conclusion. In response to public health concerns about the rise of resistance to the antibiotic cephalosporin in Salmonella and E. coli, chicken hatcheries in Québec voluntarily stopped using the drug in February 2005. Following the ban, the public health agency of Canada reported a dramatic 89 percent decrease in the incidence of resistant salmonella in chicken meat and 77 percent decrease in related human infections. Once the drug was partially reintroduced in 2007, antibiotic resistant infections in people jumped back up 50 percent.

Unfortunately we are fighting an uphill battle with antibiotic resistant infections. Our tools and resources are diminishing even while the number and severity of these infections are increasing.

One example is Methicillin-resistant Staphylococcus aureus, or MRSA. According to the Centers for Disease Control and Prevention, CDC, MRSA infections in 1974 accounted for only two percent of the total number of staph infections; in 1995 it was 22 percent; and by 2004 it was 63 percent.

CDC estimates that by 2005, there were 94,360 MRSA infections in the United States. Tragically, about 19,000 of them, 20 percent, were fatal. The primary reason is that MRSA is virtually immune to almost every antibiotic used in modern medicine.

By comparison, during the same year there were 17,011 deaths due to AIDS; so the scope and consequence of this problem is stunning.

Of course not all MRSA is derived from the overuse of antibiotics on the farm. Many infections are acquired in the hospital, and it is believed that these bacteria became resistant to antibiotics due to the misuse of drugs in human medicine.

But MRSA is infecting individuals who have not been in a hospital setting.

There is strong evidence that at least one strain of MRSA infecting people is coming directly from livestock. This strain, known as ST398, has been shown to disproportionately infect farmers and their families. Like all MRSA, ST398 is resistant to the antibiotics methicillin and oxacillin. But resistance to other antibiotics is also common among ST398 strains which make treatment especially challenging.

A study by the CDC in December 2009 showed that hospital-acquired MRSA strains and community-acquired MRSA strains such as ST398 are trending in opposite directions.

The study found that community-acquired MRSA, a type of MRSA that did not emerge in the hospital setting and is not contracted there, increased 700 percent between 1999 and 2006.

By contrast, hospital-acquired MRSA cases declined roughly 10 percent over this same time period.

Over the past decade, it has become clear that MRSA is not just a problem for hospital administrators. More and more individuals are acquiring this devastating infection in their homes, at their gyms or in restaurants.

While it is exceedingly difficult to determine the exact extent that antibiotic use in agriculture influences individual MRSA cases, we know for certain that statistical evidence overwhelmingly suggests that a reduction of antibiotic use in agriculture will result in a reduction of highly resistant MRSA cases.

Since the recent data released by the FDA confirm that more than 80 percent of all antibiotics sold in this country are for meat and poultry producing animals, one can reasonably conclude that a reduction of antibiotic use in agriculture will result in a reduction of highly resistant MRSA cases.

This legislation will very likely reduce the number of resistant infections and will very likely save lives.

But some still claim that this legislation may make our food supply less safe. They argue that antibiotics keep our animals healthy, and healthy animals make for healthy food.

But research shows us that these concerns are misguided. More than 375 public, consumer and environmental health groups, including the American Medical Association, the American Public Health Association, and the Infectious Diseases Society of America, support the legislation.

This bill makes incremental changes to ensure that our actions on the farm do not negatively impact the health and well being of our farmers, their families, and every one of us who consume the food they produce.

I look forward to working with my colleagues to pass these critical reforms.

By Mr. WYDEN (by request):

S. 1268. A bill to approve an agreement between the United States and the Republic of Palau; to the Committee on Energy and Natural Resources.

Mr. WYDEN. Mr. President, I am pleased to introduce legislation to strengthen the relationship between the United States and the Republic of Palau, one of our closest and most reliable allies. This legislation, if enacted, would implement the recommendations of the 15-year review called for under the Compact of Free Association between our two nations.

The Committee on Energy and Natural Resources will be holding a hearing on insular issues on Thursday, July 11, and it is my intention to add this bill to the agenda for that hearing.

Palau is located in the western Pacific about 800 miles south of Guam and 500 miles east of the Philippines. The close ties between the U.S. and Palau date from World War II, when Japanese forces were defeated in the Battle of Peleliu with a loss of nearly 2,000 U.S. marines. In 1947, the islands became a District in the United Nations Trust Territory of the Pacific Islands. The United States was appointed Administrating Authority of the Trust Territory with the responsibility to promote economic and political development. Because of the United States' strategic interest in this region, the Trust Territory was established as the only U.N. ''Strategic'' Trust under the authority of the U.N. Security Council, as opposed to the U.N. General Assembly.

In 1982, Palau signed a 50-year Compact of Free Association that was approved by the U.S. in 1986, P.L. 99–658. The Compact went into effect on October 1, 1994, and the U.N. Trusteeship was subsequently terminated, making Palau a sovereign, self-governing state in free association with the United States. The Compact provides the U.S. with the ability to deny the use of Palauan territory to the military forces of other nations, and to establish military bases in Palau, should the need arise. These security provisions are described by the administration as ''vital'' to U.S. regional security and diplomatic interests.

The U.S. and Palau completed a formal review of the Compact in 2010 and, on September 10, 2010, signed an agreement with amendments to the Compact based on the conclusions and recommendation of the review. The bill

being introduced today would approve this agreement and its appendices and incorporate them into the law which established the Compact.

First, the legislation would extend and phase-out annual financial assistance over 11 years, through 2024, for operations, construction, maintenance and trust fund contributions totaling $165 million, or an average of $15 million annually. Second, the legislation significantly enhances accountability of U.S. financial assistance by requiring Palau to undertake financial and management reforms. Third, the bill would require any Palauan entering the U.S. to have a Palau passport. This would be the same requirement that was imposed on citizens of Micronesia and the Marshall Islands when their Compacts were reviewed and amended in 2003.

This agreement and legislation reaffirms and strengthens the special ties between the U.S. and Palau. Together we will continue our commitment to regional security. The United States will continue to be responsible for the security and defense of Palau, and the U.S. is honored to have the continued service of the men and women of Palau in the U.S. armed services. Strategic denial and the associated base rights provided for under the Compact were originally designed to counter the Cold War threat in the Pacific. While the Cold War has ended, the U.S. continues to face new challenges in the region.

I look forward to working with officials in the administration and in Palau who conducted the Compact Review and concluded this important agreement. I urge my colleagues to join with me in approving this agreement and assuring the continued strength of this historic partnership.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 1268

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. APPROVAL OF THE AGREEMENT BETWEEN THE UNITED STATES AND THE REPUBLIC OF PALAU.

(a) DEFINITIONS.—In this section:

(1) AGREEMENT.—The term ''Agreement'' means the Agreement and appendices signed by the United States and the Republic of Palau on September 3, 2010.

(2) COMPACT OF FREE ASSOCIATION.—The term ''Compact of Free Association'' means the Compact of Free Association between the Government of the United States of America and the Government of Palau (48 U.S.C. 1931 note; Public Law 99–658).

(b) RESULTS OF COMPACT REVIEW.—

(1) IN GENERAL.—Title I of Public Law 99–658 (48 U.S.C. 1931 et seq.) is amended by adding at the end the following:

''SEC. 105. RESULTS OF COMPACT REVIEW.

''(a) IN GENERAL.—The Agreement and appendices signed by the United States and the Republic of Palau on September 3, 2010 (referred to in this section as the 'Agreement'), in connection with section 432 of the Compact of Free Association between the Government of the United States of America and the Government of Palau (48 U.S.C. 1931 note; Public Law 99–658) (referred to in this section as the 'Compact of Free Association'), are approved—

''(1) except for the extension of article X of the Agreement Regarding Federal Programs and Services, and Concluded Pursuant to article II of title II and section 232 of the Compact of Free Association; and

''(2) subject to the provisions of this section.

''(b) WITHHOLDING OF FUNDS.—If the Republic of Palau withdraws more than $5,000,000 from the trust fund established under section 211(f) of the Compact of Free Association in any of fiscal years 2011, 2012, or 2013, amounts payable under sections 1, 2(a), 3, and 4(a), of the Agreement shall be withheld from the Republic of Palau until the date on which the Republic of Palau reimburses the trust fund for the total amounts withdrawn that exceeded $5,000,000 in any of those fiscal years.

''(c) FUNDING FOR CERTAIN PROVISIONS UNDER SECTION 105 OF COMPACT OF FREE ASSOCIATION.—Within 30 days of enactment of this section, out of any funds in the Treasury not otherwise appropriated, the Secretary of the Treasury shall transfer to the Secretary of the Interior such sums as are necessary for the Secretary of the Interior to implement sections 1, 2(a), 3, 4(a), and 5 of the Agreement, which sums shall remain available until expended without any further appropriation.

''(d) AUTHORIZATIONS OF APPROPRIATIONS.—There are authorized to be appropriated—

''(1) to the Secretary of the Interior to subsidize postal services provided by the United States Postal Service to the Republic of Palau, the Republic of the Marshall Islands, and the Federated States of Micronesia $1,500,000 for each of fiscal years 2014 through 2024, to remain available until expended.

''(2) to the head of each Federal entity described in paragraphs (1), (3), and (4) of section 221(a) of the Compact of Free Association (including the successor of each Federal entity) to carry out the responsibilities of the Federal entity under section 221(a) of the Compact of Free Association such sums as are necessary, to remain available until expended.''.

(2) OFFSET.—Section 3 of the Act of June 30, 1954 (68 Stat. 330, 82 Stat. 1213, chapter 423), is repealed.

(c) PAYMENT SCHEDULE; WITHHOLDING OF FUNDS; FUNDING.—

(1) COMPACT SECTION 211(f) FUND.—Section 1 of the Agreement shall be construed as though the section reads as follows:

''SECTION 1. COMPACT SECTION 211(F) FUND.

''The Government of the United States of America (the 'Government of the United States') shall contribute $30,250,000 to the Fund referred to in section 211(f) of the Compact in accordance with the following schedule—

''(1) $11,000,000 in fiscal year 2014;

''(2) $3,000,000 in each of fiscal years 2015 through 2017;

''(3) $2,000,000 in each of fiscal years 2018 through 2022; and

''(4) $250,000 in fiscal year 2023.''.

(2) INFRASTRUCTURE MAINTENANCE FUND.—Subsection (a) of section 2 of the Agreement shall be construed as though the subsection reads as follows:

''(a) The Government of the United States shall provide a grant of $6,912,000 for fiscal year 2014 and a grant of $2,000,000 annually from the beginning of fiscal year 2015 through fiscal year 2024 to create a trust fund (the 'Infrastructure Maintenance Fund') to be used for the routine and periodic maintenance of major capital improvement projects financed by funds provided by the United States. The Government of the Republic of Palau will match the contributions made by the United States by making contributions of $150,000 to the Infrastructure Maintenance Fund on a quarterly basis from the beginning of fiscal year 2014 through fiscal year 2024. Implementation of this subsection shall be carried out in accordance with the provisions of Appendix A to this Agreement.''.

(3) FISCAL CONSOLIDATION FUND.—Section 3 of the Agreement shall be construed as though the section reads as follows:

''SEC. 3. FISCAL CONSOLIDATION FUND.

''The Government of the United States shall provide the Government of Palau $10,000,000 in fiscal year 2014 for deposit in an interest bearing account to be used to reduce government arrears of Palau. Implementation of this section shall be carried out in accordance with the provisions of Appendix B to this Agreement.''.

(4) DIRECT ECONOMIC ASSISTANCE.—Subsection (a) of section 4 of the Agreement shall be construed as though the subsection reads as follows:

''(a) In addition to the economic assistance of $13,147,000 provided to the Government of Palau by the Government of United States in each of fiscal years 2010, 2011, 2012, and 2013, and unless otherwise specified in this Agreement or in an Appendix to this Agreement, the Government of the United States shall provide the Government of Palau $69,250,000 in economic assistance as follows—

''(1) $12,000,000 in fiscal year 2014;

''(2) $11,500,000 in fiscal year 2015;

''(3) $10,000,000 in fiscal year 2016;

''(4) $8,500,000 in fiscal year 2017;

''(5) $7,250,000 in fiscal year 2018;

''(6) $6,000,000 in fiscal year 2019;

''(7) $5,000,000 in fiscal year 2020;

''(8) $4,000,000 in fiscal year 2021;

''(9) $3,000,000 in fiscal year 2022; and

''(10) $2,000,000 in fiscal year 2023.

The funds provided in any fiscal year under this subsection for economic assistance shall be provided in 4 quarterly payments (30 percent in the first quarter, 30 percent in the second quarter, 20 percent in the third quarter, and 20 percent in the fourth quarter) unless otherwise specified in this Agreement or in an Appendix to this Agreement.''.

(5) INFRASTRUCTURE PROJECTS.—Section 5 of the Agreement shall be construed as though the section reads as follows:

''SEC. 5. INFRASTRUCTURE PROJECTS.

''The Government of the United States shall provide grants totaling $40,000,000 to the Government of Palau as follows: $30,000,000 in fiscal year 2014; and $5,000,000 annually in each of fiscal years 2015 and 2016; towards 1 or more mutually agreed infrastructure projects in accordance with the provisions of Appendix C to this Agreement.''.

(d) CONTINUING PROGRAMS AND LAWS.—Section 105(f)(1)(B)(ix) of the Compact of Free Association Amendments Act of 2003 (48 U.S.C. 1921d(f)(1)(B)(ix)) is amended by striking ''2009'' and inserting ''2024''.

(e) PASSPORT REQUIREMENT.—Section 141 of Article IV of Title One of the Compact of Free Association shall be construed and applied as if it read as follows:

''SEC. 141. PASSPORT REQUIREMENT.

''(a) Any person in the following categories may be admitted to, lawfully engage in occupations, and establish residence as a nonimmigrant in the United States and its territories and possessions without regard to paragraphs (5) or (7)(B)(i)(II) of section 212(a) of the Immigration and Nationality Act (8 U.S.C. 1182(a)(5) or (a)(7)(B)(i)(II)), provided that the passport presented to satisfy section 212(a)(7)(B)(i)(I) of such Act is a valid

unexpired machine-readable passport that satisfies the internationally accepted standard for machine readability—

''(1) a person who, on September 30, 1994, was a citizen of the Trust Territory of the Pacific Islands, as defined in title 53 of the Trust Territory Code in force on January 1, 1979, and has become and remains a citizen of Palau;

''(2) a person who acquires the citizenship of Palau, at birth, on or after the effective date of the Constitution of Palau; or

''(3) a naturalized citizen of Palau, who has been an actual resident of Palau for not less than five years after attaining such naturalization and who holds a certificate of actual residence.

''(b) Such persons shall be considered to have the permission of the Secretary of Homeland Security of the United States to accept employment in the United States.

''(c) The right of such persons to establish habitual residence in a territory or possession of the United States may, however, be subjected to non-discriminatory limitations provided for—

''(1) in statutes or regulations of the United States; or

''(2) in those statutes or regulations of the territory or possession concerned which are authorized by the laws of the United States.

''(d) Section 141(a) does not confer on a citizen of Palau the right to establish the residence necessary for naturalization under the Immigration and Nationality Act, or to petition for benefits for alien relatives under that Act. Section 141(a), however, shall not prevent a citizen of Palau from otherwise acquiring such rights or lawful permanent resident alien status in the United States.''.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 190—EXPRESSING THE SENSE OF THE SENATE THAT FOREIGN ASSISTANCE FOR CHILD WELFARE SHOULD ADHERE TO THE GOALS OF THE UNITED STATES GOVERNMENT ACTION PLAN ON CHILDREN IN ADVERSITY

Mr. INHOFE (for himself and Ms. LANDRIEU) submitted the following resolution; which was referred to the Committee on Foreign Relations.:

S. RES. 190

Whereas, as of 2013, there are at least 153,000,000 children in the world who have lost at least 1 parent, and of those children, approximately 17,800,000 have lost both parents;

Whereas more than 400,000,000 children in developing countries are living in extreme poverty;

Whereas more than 115,000,000 children are engaged in hazardous work and more than 5,500,000 children are in situations of forced labor;

Whereas 36 percent of girls and 29 percent of boys around the world have been sexually abused;

Whereas at least 2,000,000, and probably many more, children are raised in institutional care;

Whereas millions of children throughout the world live under conditions of serious deprivation or danger, and children who experience violence or are exploited, abandoned, abused, or severely neglected also face significant threats to their survival and well-being, as well as profound risks that have an impact on their human, social, and economic development;

Whereas children in the most dire circumstances, including children without protective family care, or who are living in abusive households, on the streets, or in institutions, trafficked, participating in armed groups, or exploited for their labor, face a multitude of risks posed by extreme poverty, disease, disability, conflict, and disaster;

Whereas family reunification, kinship care, and domestic and intercountry adoption promote permanency and stability to a far greater degree than long-term institutionalization;

Whereas permanent family care, transitioning children from institutions into protective family care, and preventing violence within households and in schools are associated with reduced infant and child mortality, decreased grade repetition, decreased future criminal activity, decreased drug use and abuse, fewer teen pregnancies, and higher economic earning potential;

Whereas past efforts by the United States to assist vulnerable children in low- and middle-income countries have not always been coordinated among the Federal agencies responsible for foreign assistance, and that lack of coordination has sometimes resulted in a fragmented response;

Whereas, with the increasing number of children in need, limitations on Federal funding, and multiple Federal agencies involved in efforts to assist children in need, it is more important than ever to improve the coordination and coherence of those efforts in order to maximize the effect on children;

Whereas the Assistance for Orphans and Other Vulnerable Children in Developing Countries Act of 2005 (Public Law 109–95; 119 Stat. 2111), which passed the House of Representatives by a vote of 415 to 9 and passed the Senate by unanimous consent, called for a comprehensive, coordinated, and effective response on the part of the Government of the United States to assist the most vulnerable children in the world;

Whereas the Special Advisor for Assistance for Orphans and Vulnerable Children appointed under section 135(e) of the Foreign Assistance Act of 1961 (22 U.S.C. 2152f(e), in coordination with 7 Federal agencies, released the United States Government Action Plan on Children in Adversity as the first-ever whole-of-government strategic guidance for foreign assistance for children provided by the United States; and

Whereas the United States Government Action Plan on Children in Adversity seeks to ensure that all activities of the Government of the United States are coordinated among appropriate Federal agencies and integrated into relevant foreign policy initiatives of the United States, with the goal of promoting permanent family care and integrating evidence-based practices that are in the best interest of children: Now, therefore, be it

Resolved, That it is the sense of the Senate that—

(1) a comprehensive action plan for addressing the needs of children living in adversity should be sanctioned by the highest level of the Government of the United States;

(2) Federal funding that currently goes toward projects and research benefitting children in low- and middle-income countries should be coordinated among the Federal agencies that receive it with the goals of—

(A) promoting permanent family care for the most vulnerable children in the world;

(B) reducing the number of children who experience violence, exploitation, or abuse; and

(C) eliminating unnecessary duplication and contradictory approaches within the Government of the United States; and

(3) the United States Government Action Plan on Children in Adversity has the potential to realize those goals and create a more effective and efficient response by the Government of the United States to assisting the most vulnerable children in the world.

SENATE RESOLUTION 191—DESIGNATING JULY 27, 2013, AS ''NATIONAL DAY OF THE AMERICAN COWBOY''

Mr. ENZI (for himself, Mr. BARRASSO, Mr. BAUCUS, Mr. CRAPO, Mr. INHOFE, Mr. JOHNSON of South Dakota, Mr. JOHANNS, Ms. HEITKAMP, Mr. MERKLEY, Mr. REID, Mr. RISCH, and Mr. TESTER) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 191

Whereas pioneering men and women, recognized as ''cowboys'', helped establish the American West;

Whereas the cowboy embodies honesty, integrity, courage, compassion, respect, a strong work ethic, and patriotism;

Whereas the cowboy spirit exemplifies strength of character, sound family values, and good common sense;

Whereas the cowboy archetype transcends ethnicity, gender, geographic boundaries, and political affiliations;

Whereas the cowboy is an excellent steward of the land and its creatures, who lives off the land and works to protect and enhance the environment;

Whereas cowboy traditions have been a part of American culture for generations;

Whereas the cowboy continues to be an important part of the economy through the work of many thousands of ranchers across the United States who contribute to the economic well-being of every State;

Whereas millions of fans watch professional and working ranch rodeo events annually, making rodeo one of the most-watched sports in the United States;

Whereas membership and participation in rodeo and other organizations that promote and encompass the livelihood of cowboys span every generation and transcend race and gender;

Whereas the cowboy is a central figure in literature, film, and music and occupies a central place in the public imagination;

Whereas the cowboy is an American icon; and

Whereas the ongoing contributions made by cowboys and cowgirls to their communities should be recognized and encouraged: Now, therefore, be it

Resolved, That the Senate—

(1) designates July 27, 2013, as ''National Day of the American Cowboy''; and

(2) encourages the people of the United States to observe the day with appropriate ceremonies and activities.

Mr. ENZI. Mr. President, I am proud to submit a resolution today to designate Saturday, July 27, 2013 as National Day of the American Cowboy. My late colleague, Senator Craig Thomas, began the tradition of honoring the men and women known as ''Cowboys'' 9 years ago when he introduced the first resolution to designate the fourth Saturday of July as National Day of the American Cowboy. I am proud to carry on Senator Thomas's tradition.

The national day celebrates the history of Cowboys in America and recognizes the important work today's Cowboys are doing in the United States. The Cowboy Spirit is about honesty, integrity, courage, and patriotism, and Cowboys are models of strong character, sound family values, and good common sense.

Cowboys were some of the first men and women to settle in the American West and they continue to make important contributions to our economy, Western culture and my home State of Wyoming today. This year's resolution designates July 27, 2013, as the National Day of the American Cowboy. I hope my colleagues will join me in recognizing the important role Cowboys play in our country.

SENATE RESOLUTION 192—COMMEMORATING THE 150TH ANNIVERSARY OF THE BATTLE OF GETTYSBURG AND THE SIGNIFICANCE OF THIS BATTLE IN THE HISTORY OF THE UNITED STATES

Mr. CASEY (for himself and Mr. TOOMEY) submitted the following resolution; which was considered and agreed to:

S. RES. 192

Whereas, between July 1 and July 3, 1863, the Battle of Gettysburg in Gettysburg, Pennsylvania, was the turning point for the Union Army in the American Civil War;

Whereas the Battle of Gettysburg was the battle with the largest number of casualties in the American Civil War;

Whereas, on November 19, 1863, President Abraham Lincoln delivered the Gettysburg Address at the dedication of the Soldiers' National Cemetery;

Whereas over 3,500 soldiers were buried at the Soldiers' National Cemetery after losing their lives in the battle;

Whereas reconciliation between the North and the South began at Gettysburg through warm and respectful post-war reunions that featured peace walk reenactments of Pickett's Charge in 1887, 1913, and 1938;

Whereas the Gettysburg battlefield was designated as a National Military Park in 1895;

Whereas the residents of Gettysburg helped to preserve the land that now serves as the Gettysburg National Military Park, including the Soldiers' National Cemetery and the Gettysburg battlefield; and

Whereas more than 1,000,000 people travel each year to visit the park, museum, and visitor center: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the 150th anniversary of the Battle of Gettysburg;

(2) recognizes the historical significance of the outcome of the Battle of Gettysburg, which helped to preserve the United States; and

(3) encourages the people of the United States to visit Gettysburg National Military Park to celebrate and commemorate the 150th anniversary of the Battle of Gettysburg.

SENATE CONCURRENT RESOLUTION 19—PROVIDING FOR A CONDITIONAL ADJOURNMENT OR RECESS OF THE SENATE AND AN ADJOURNMENT OF THE HOUSE OF REPRESENTATIVES

Mr. REID submitted the following concurrent resolution; which was considered and agreed to:

S. CON. RES. 19

Resolved by the Senate (the House of Representatives concurring), That when the Senate recesses or adjourns on any day from Thursday, June 27, 2013, through Friday, July 5, 2013, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand recessed or adjourned until 12:00 noon on Monday, July 8, 2013, or such other time on that day as may be specified by its Majority Leader or his designee in the motion to recess or adjourn, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first; and that when the House adjourns on any legislative day from Friday, June 28, 2013, through Friday, July 5, 2013, on a motion offered pursuant to this concurrent resolution by its Majority Leader or his designee, it stand adjourned until 2:00 p.m. on Monday, July 8, 2013, or until the time of any reassembly pursuant to section 2 of this concurrent resolution, whichever occurs first.

SEC. 2. The Majority Leader of the Senate and the Speaker of the House, or their respective designees, acting jointly after consultation with the Minority Leader of the Senate and the Minority Leader of the House, shall notify the Members of the Senate and House, respectively, to reassemble at such place and time as they may designate if, in their opinion, the public interest shall warrant it.

NOTICES OF HEARINGS

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. WYDEN. Mr. President, I would like to announce for the information of the Senate and the public that a hearing has been scheduled before the Senate Committee on Energy and Natural Resources. The hearing will be held on Thursday, July 11, 2013, at 9:30 a.m., in room 366 of the Dirksen Senate Office Building.

The purpose of the hearing is to consider the September 10, 2010 Agreement between the United States and the Republic of Palau and S. 1237, the Omnibus Territories Act.

Because of the limited time available for the hearing, witnesses may testify by invitation only. However, those wishing to submit written testimony for the hearing record may do so by sending it to the Committee on Energy and Natural Resources, United States Senate, Washington, D.C. 20510–6150, or by e-mail to danielle_deraney@energy.senate.gov.

For further information, please contact Isaiah Akin at (202) 224–5360 or Danielle Deraney at (202) 224–1219.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. WYDEN. Mr. President, I would like to announce for the information of the Senate and the public that a hearing has been scheduled before the Senate Committee on Energy and Natural Resources. The hearing will be held on Thursday, August 1, 2013, at 9:30 a.m., in room 366 of the Dirksen Senate Office Building.

The purpose of the hearing is to receive testimony on the November 6, 2012 referendum on the political status of Puerto Rico and the Administration's response.

Because of the limited time available for the hearing, witnesses may testify by invitation only. However, those wishing to submit written testimony for the hearing record may do so by sending it to the Committee on Energy and Natural Resources, United States Senate, Washington, D.C. 20510–6150, or by e-mail to danielle_deraney@energy.senate.gov.

For further information, please contact Allen Stayman at (202) 224–7865 or Danielle Deraney at (202) 224–1219.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS

Mrs. HAGAN. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be authorized to meet during the session of the Senate on June 27, 2013 at 10:30 a.m.

THE PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENVIRONMENT AND PUBLIC WORKS

Mrs. HAGAN. Mr. President, I ask unanimous consent that the Committee on Environment and Public Works be authorized to meet during the session of the Senate on June 27, 2013 at 10 a.m., in room 406 of the Dirksen Senate office building, to conduct a hearing entitled ''Oversight of Federal Risk Management and Emergency Planning Programs to Prevent and Address Chemical Threats, Including the Events Leading Up to the Explosions in West, TX and Geismar, LA.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mrs. HAGAN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate, on June 27, 2013, at 11:45 a.m., in S-216 of the Dirksen Senate Office Building, to conduct an executive business meeting.

THE PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mrs. HAGAN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on June 27, 2013, at 2:30 p.m.

THE PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON FINANCIAL AND CONTRACTING OVERSIGHT

Mrs. HAGAN. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs' Subcommittee on

Financial and Contracting Oversight be authorized to meet during the session of the Senate on June 27, 2013, at 10:30 a.m. to conduct a hearing entitled ''Contract Management by the Department of Energy.''

THE PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. FRANKEN. Mr. President, I ask unanimous consented that my law clerk, Rachel Homer, be granted the privilege of the floor for the remainder of the debate on S. 744.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

REGISTRATION OF MASS MAILINGS

The filing date for the 2013 second quarter Mass Mailing report is Thursday, July 25, 2013. If your office did no mass mailings during this period, please submit a form that states ''none.''

Mass mailing registrations, or negative reports, should be submitted to the Senate Office of Public Records, 232 Hart Building, Washington, DC. 20510–7116.

The Senate Office of Public Records will be open from 9 a.m. to 6 p.m. on the filing date to accept these filings. For further information, please contact the Senate Office of Public Records at (202) 224–0322.

UNANIMOUS CONSENT AGREEMENTS—EXECUTIVE CALENDAR

(Mrs. SHAHEEN assumed the Chair.)

Mr. REID. Madam President, I ask unanimous consent that at a time to be determined by me, in consultation with Senator MCCONNELL, the Senate proceed to executive session to consider Calendar No. 97; that there be 1 hour for debate equally divided in the usual form; that following the use or yielding back of that time, the Senate proceed to vote with no intervening action or debate on the nomination, the motion to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. I now ask unanimous consent that on Monday, July 8 of this year, at 5 p.m., the Senate proceed to executive session to consider Calendar No. 90, which is a nomination; that there be 30 minutes for debate equally divided in the usual form; that upon the use or yielding back of that time, the Senate proceed to vote with no intervening action or debate on the nomination; the motion to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. I ask unanimous consent that at a time to be determined by me, in consultation with Senator MCCONNELL, the Senate proceed to executive session to consider Calendar No. 186; that there be 1 hour for debate equally divided in the usual form; that following the use or yielding back of time, the Senate proceed to vote without intervening action or debate on the nomination; the motion to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. REID. Madam President, I ask unanimous consent that the Senate proceed to executive session to consider the following nominations: Calendar Nos. 145, 146, 177, 181, 183, 188, 190, 195, 196, 197, and 198, and all nominations on the Secretary's desk in the Air Force, Army, Coast Guard, and Navy; that the nominations be confirmed en bloc; the motions to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order to any of the nominations; that any related statements be printed in the RECORD; and that President Obama be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The nominations considered and confirmed en bloc are as follows:

DEPARTMENT OF JUSTICE

Sylvia M. Becker, of the District of Columbia, to be a Member of the Foreign Claims Settlement Commission of the United States for the term expiring September 30, 2013.

Sylvia M. Becker, of the District of Columbia, to be a Member of the Foreign Claims Settlement Commission of the United States for the term expiring September 30, 2016.

EXECUTIVE OFFICE OF THE PRESIDENT

Brian C. Deese, of Massachusetts, to be Deputy Director of the Office of Management and Budget.

COAST GUARD

Pursuant to Section 53(b), Title 14, U.S. Code, the following named officer for appointment to the Director of the Coast Guard Reserve in the grade indicated:

To be rear admiral

Rear Adm. Steven E. Day, USCGR

FEDERAL RETIREMENT THRIFT INVESTMENT BOARD

William S. Jasien, of Virginia, to be a Member of the Federal Retirement Thrift Investment Board for a term expiring October 11, 2015.

GENERAL SERVICES ADMINISTRATION

Daniel M. Tangherlini, of the District of Columbia, to be Administrator of General Services.

NUCLEAR REGULATORY COMMISSION

Allison M. Macfarlane, of Maryland, to be a Member of the Nuclear Regulatory Commission for a term expiring June 30, 2018.

IN THE AIR FORCE

The following named officer for appointment in the United States Air Force to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be general

Lt. Gen. Frank Gorenc

IN THE NAVY

The following named officer for appointment in the United States Navy to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be vice admiral

Rear Adm. Philip S. Davidson

IN THE ARMY

The following named officer for appointment in the United States Army to the grade indicated while assigned to a position of importance and responsibility under title 10, U.S.C., section 601:

To be lieutenant general

Maj. Gen. Michael S. Linnington

IN THE NAVY

The following named officer for appointment in the United States Navy to the grade indicated under title 10, U.S.C., section 624:

To be rear admiral (lower half)

Capt. Stephen M. Pachuta

NOMINATIONS PLACED ON THE SECRETARY'S DESK

IN THE AIR FORCE

PN513 AIR FORCE nomination of Daisy Y. Eng, which was received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN514 AIR FORCE nominations (2) beginning JOSEPH N. KENAN, and ending SIRPA T. AUTIO, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN515 AIR FORCE nominations (3) beginning SCOTT M. SHEFLIN, and ending ERIC J. TURNEY, which nominations were received by the Senate and appeared in the Congressional Record of June 3, ?013.

PN516 AIR FORCE nominations (3) beginning CHRISTOPHER E. CIEURZO, and ending VINH Q. TRAN, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN575 AIR FORCE nominations (3) beginning ANDREW G. BOSTON, and ending VALERIE G. SAMS, which nominations were received by the Senate and appeared in the Congressional Record of June 20, 2013.

PN576 AIR FORCE nominations (8) beginning LOUIS A. BARTON, and ending EARLYNE L. RODRIGUEZ, which nominations were received by the Senate and appeared in the Congressional Record of June 20, 2013.

PN577 AIR FORCE nominations (11) beginning CRAIG S. BERG, and ending JONATHAN D. TIDWELL, which nominations were received by the Senate and appeared in the Congressional Record of June 20, 2013.

IN THE ARMY

PN518 ARMY nominations (9) beginning THOMAS R. BOUCHARD, and ending JOHN A. ZENKER, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN519 ARMY nominations (10) beginning GEORGE T. BARIDO, and ending CHARLES J. SIZEMORE, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN520 ARMY nominations (33) beginning TIMOTHY BARNARD, and ending KEVIN D. VAUGHN, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN521 ARMY nominations (128) beginning JEFFREY S. ACREE, and ending VICKY L. YOUNG, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN522 ARMY nominations (137) beginning MAZEN ABBAS, and ending GARY H. WYNN, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN523 ARMY nominations (26) beginning EDWARD T. BREECHER, and ending EDWARD M. WISE, JR., which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN578 ARMY nomination of Michael D. Payne, which was received by the Senate and appeared in the Congressional Record of June 20, 2013.

PN579 ARMY nomination of Marlon E. Lewis, which was received by the Senate and appeared in the Congressional Record of June 20, 2013.

PN582 ARMY nomination of David R. Maxwell, which was received by the Senate and appeared in the Congressional Record of June 20, 2013.

PN583 ARMY nomination of Thomas A. Jarrett, which was received by the Senate and appeared in the Congressional Record of June 20, 2013.

IN THE COAST GUARD

PN286 COAST GUARD nomination of Loring A. Small, which was received by the Senate and appeared in the Congressional Record of April 9, 2013.

PN319 COAST GUARD nomination of Adam R. Williamson, which was received by the Senate and appeared in the Congressional Record of April 11, 2013.

PN320 COAST GUARD nomination of Kevin J. Lopes which was received by the Senate and appeared in the Congressional Record of April 11, 2013.

IN THE NAVY

PN524 NAVY nomination of Kimberly K. Yeager, which was received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN525 NAVY nomination of James D. Harrison, which was received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN526 NAVY nominations (3) beginning KERRIE L. ADAMS, and ending ANTONIA J. HENRY, which nominations were received by the Senate and appeared in the Congressional Record of June 3, 2013.

PN585 NAVY nomination of Brent E. Havey, which was received by the Senate and appeared in the Congressional Record of June 20, 2013.

NOMINATIONS DISCHARGED

Mr. REID. Madam President, I ask unanimous consent that the Commerce Committee be discharged from further consideration of the following nominations: Presidential Nomination 121 and Presidential Nomination 500; that the nominations be confirmed, the motions to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order to the nominations; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The nominations considered and confirmed are as follows:

CONSUMER PRODUCT SAFETY COMMISSION

Marietta S. Robinson, of Michigan, to be a Commissioner of the Consumer Product Safety Commission for a term of seven years from October 27, 2010.

Anne Marie Buerkle, of New York, to be a Commissioner of the Consumer Product Safety Commission for a term of 7 years from October 27, 2011.

NOMINATION OF HOWARD A. SHELANSKI TO BE ADMINISTRATOR OF THE OFFICE OF INFORMATION AND REGULATORY AFFAIRS, OFFICE OF MANAGEMENT AND BUDGET

Mr. REID. Madam President, I ask unanimous consent that the Senate proceed to consider the following nomination: Calendar No. 187; that the Senate proceed to vote without intervening action or debate; the motion to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order to the nomination; that any statements related to the nomination be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the nomination.

The legislative clerk read the nomination of Howard A. Shelanski, of Pennsylvania, to be Administrator of the Office of Information and Regulatory Affairs, Office of Management and Budget.

The PRESIDING OFFICER. If there is no further debate on the nomination, the question is, Will the Senate advise and consent to the nomination of Howard A. Shelanski, of Pennsylvania, to be Administrator of the Office of Information and Regulatory Affairs, Office of Management and Budget?

The nomination was confirmed.

LEGISLATIVE SESSION

The PRESIDING OFFICER. Under the previous order, the Senate will resume legislative session.

TAIWAN OBSERVER STATUS ACT

Mr. REID. Madam President, I ask unanimous consent the Senate proceed to Calendar No. 90, H.R. 1151.

The PRESIDING OFFICER. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 1151) to direct the Secretary of State to develop a strategy to obtain observer status for Taiwan at the triennial International Civil Aviation Organization Assembly, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. REID. Madam President, I ask unanimous consent the bill be read the third time and passed, and the motion to reconsider be considered made and laid on the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 1151) was ordered to a third reading, was read the third time, and passed.

STAN MUSIAL VETERANS MEMORIAL BRIDGE

Mr. REID. Madam President, I ask unanimous consent the Senate proceed to the immediate consideration of H.R. 2383.

The PRESIDING OFFICER. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 2383) to designate the new Interstate Route 70 bridge over the Mississippi River connecting St. Louis, Missouri, and southwestern Illinois as the ''Stan Musial Veterans Memorial Bridge.''

There being no objection, the Senate proceeded to consider the bill.

Mr. REID. Madam President, I ask unanimous consent the bill be read the third time and passed, the motion to reconsider be considered made and laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 2383) was ordered to a third reading, was read the third time, and passed.

GRANTING OF CONGRESSIONAL GOLD MEDAL

Mr. REID. Madam President, I ask unanimous consent the Banking, Housing and Urban Affairs Committee be discharged from further consideration of H.R. 324 and that the Senate proceed to that measure.

The PRESIDING OFFICER. Without objection it is so ordered.

The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 324) to grant the Congressional Gold Model, collectively, to the First Special Service Force, in recognition of its superior service during World War II.

There being no objection, the Senate proceeded to consider the bill.

Mr. REID. Madam President, I ask unanimous consent the bill be read a third time and passed, and the motion to reconsider be laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 324) was ordered to a third reading, was read the third time, and passed.

COMMEMORATING THE 150TH ANNIVERSARY OF THE BATTLE OF GETTYSBURG

Mr. REID. Madam President, I ask unanimous consent the Senate proceed to the consideration of S. Res. 192, which was submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 192) commemorating the 150th anniversary of the Battle of Gettysburg and the significance of this battle in the history of the United States.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. I ask unanimous consent the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be laid on the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 192) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

PROVIDING FOR A CONDITIONAL ADJOURNMENT OR RECESS OF THE SENATE AND AN ADJOURNMENT OF THE HOUSE OF REPRESENTATIVES

Mr. REID. I ask unanimous consent the Senate proceed to S. Con. Res. 19, which was submitted earlier today.

The PRESIDING OFFICER. The clerk will report the concurrent resolution by title.

The assistant legislative clerk read as follows:

A concurrent resolution (S. Con. Res. 19) providing for a conditional adjournment or recess of the Senate and an adjournment of the House of Representatives.

The PRESIDING OFFICER. There being no objection, the Senate proceeded to consider the concurrent resolution.

Mr. REID. I ask unanimous consent the concurrent resolution be agreed to, and the motion to reconsider be laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (S. Con. Res. 19) was agreed to.

(The resolution is printed in today's RECORD under ''Submitted Resolutions.'')

MEASURES PLACED ON THE CALENDAR—S. 1238 AND S. 1241

Mr. REID. Madam President, I ask unanimous consent that S. 1238 and S. 1241, both of which were introduced earlier today, be considered read twice and placed on the calendar.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR PRINTING—S. 744, AS AMENDED

Mr. REID. Madam President, I ask unanimous consent that S. 744, as amended and passed by the Senate, be printed.

The PRESIDING OFFICER. Without objection, it is so ordered.

SIGNING AUTHORITY

Mr. REID. Madam President, I ask unanimous consent that from Friday, June 28, through Monday, July 8, the majority leader and Senators MIKULSKI and REED be authorized to sign duly enrolled bills or joint resolutions.

The PRESIDING OFFICER. Without objection, it is so ordered.

APPOINTMENT AUTHORITY

Mr. REID. I ask unanimous consent that notwithstanding the upcoming recess or adjournment of the Senate, the President of the Senate, the President pro tempore, and the majority and minority leaders be authorized to make appointments to commissions, committees, boards, conferences or interparliamentary conferences authorized by law, by concurrent action of the two Houses or by order of the Senate.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR FRIDAY, JUNE 28, 2013, THROUGH MONDAY, JULY 8, 2013

Mr. REID. I ask unanimous consent that when the Senate completes its business today, it adjourn and convene for pro forma sessions only with no business conducted on the following dates and times, and that following each pro forma session the Senate adjourn until the next pro forma session: Friday, June 28 at 12:15 p.m; Tuesday, July 2, at 10:15 a.m.; and Friday, July 5, at 12 noon; and that the Senate adjourn on Friday July 5 until 2 p.m. on Monday, July 8, 2013, unless the Senate receives a message from the House it has adopted S. Con. Res. 19, the adjournment resolution, and that if the Senate receives such a message, the Senate adjourn until 2 p.m. on Monday, July 8; that on Monday, following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate be in a period of morning business until 5 p.m., with Senators permitted to speak for up to 10 minutes each; that following morning business, the Senate proceed to executive session, under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

THANKS TO PRESIDING OFFICER AND STAFF

Mr. REID. Madam President, I appreciate the patience of the Presiding Officer and all the staff. I would have come here sooner, had I been able to, but they were still trying to work on this material so we could close for the work period we are going to have at home.

PROGRAM

Mr. REID. The next rollcall vote will be at 5:30 p.m. on Monday, July 8.

CONDITIONAL ADJOURNMENT UNTIL FRIDAY, JUNE 28, 2013, AT 12:15 P.M.

Mr. REID. If there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 7:20 p.m., conditionally adjourned until Friday, June 28, 2013, at 12:15 p.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF JUSTICE

KENNETH ALLEN POLITE, JR., OF LOUISIANA, TO BE UNITED STATES ATTORNEY FOR THE EASTERN DISTRICT OF LOUISIANA FOR THE TERM OF FOUR YEARS, VICE JAMES B. LETTEN, RESIGNED.

IN THE ARMY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be brigadier general

COLONEL CARL A. ALEX
COLONEL CHRISTOPHER F. BENTLEY
COLONEL JAMES R. BLACKBURN
COLONEL WILLIAM M. BURLESON III
COLONEL CHRISTOPHER G. CAVOLI
COLONEL PAUL A. CHAMBERLAIN
COLONEL WILLIAM E. COLE
COLONEL RICHARD B. DIX
COLONEL JEFFREY A. FARNSWORTH
COLONEL BRYAN P. FENTON
COLONEL PATRICIA FROST
COLONEL DOUGLAS M GABRAM
COLONEL JEFFREY A. GABBERT
COLONEL JOHN A. GEORGE
COLONEL RANDY A. GEORGE
COLONEL MARIA R. GERVAIS
COLONEL DAVID P. GLASER
COLONEL THOMAS C. GRAVES
COLONEL JOHN F. HALEY
COLONEL PETER L. JONES
COLONEL RICHARD G. KAISER
COLONEL JOHN S. KEM
COLONEL ROBERT L. MARION
COLONEL DENNIS S. MCKEAN
COLONEL FRANK M. MUTH
COLONEL LEOPOLDO A. QUINTAS
COLONEL DAVID W. RIGGINS
COLONEL KURT J. RYAN
COLONEL MARK C. SCHWARTZ
COLONEL SCOTT A. SPELLMON
COLONEL JOHN P. SULLIVAN
COLONEL CLARENCE D. TURNER
COLONEL ROBERT J. ULSES
COLONEL MICHAEL J. WARMACK
COLONEL ERIC J. WESLEY

IN THE NAVY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) DAVID F. BAUCOM
REAR ADM. (LH) VINCENT L. GRIFFITH

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) COLIN G. CHINN

REAR ADM. (LH) ELAINE C. WAGNER

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) PAUL B. BECKER
REAR ADM. (LH) MATTHEW J. KOHLER
REAR ADM. (LH) JAN E. TIGHE

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) DAVID H. LEWIS
REAR ADM. (LH) THOMAS J. MOORE
REAR ADM. (LH) JAMES D. SYRING

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral

REAR ADM. (LH) JOHN C. AQUILINO
REAR ADM. (LH) PETER J. FANTA
REAR ADM. (LH) DAVID J. GALE
REAR ADM. (LH) PHILIP G. HOWE
REAR ADM. (LH) WILLIAM K. LESCHER
REAR ADM. (LH) MARK C. MONTGOMERY
REAR ADM. (LH) FRANK A. MORNEAU
REAR ADM. (LH) JEFFREY R. PENFIELD
REAR ADM. (LH) FREDERICK J. ROEGGE
REAR ADM. (LH) PHILLIP G. SAWYER
REAR ADM. (LH) MICHAEL S. WHITE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

DORAN T. KELVINGTON

THE FOLLOWING NAMED OFFICERS FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 5721:

To be lieutenant commander

ORENTHAL G. ADDERSON
MARK J. BECKER
AMANDA G. BROWNING
NATHANIEL J. CHASE
JASON A. CONLEY
FREDERICK D. CRAYTON
SCOTT C. DEMARCO
JARRETT P. DUNN
DAMON J. FALDOWSKI II
SHAFER B. GASTON
PRESTON W. GILMORE
EDWARD R. GRADWELL
JOSEPH GUNTA
PHILLIP C. HERNDL
LUKE E. KELVINGTON
MITCHELL L. MILLER
JEREMY MINER
BRENDAN ONEILL
JESSICA C. PACHTER
JOSEPH A. PETRUCELLI II
JOSEPH J. PISONI
TAD J. ROBBINS
BRADLEY V. SCHOULTZ
MICHAEL F. SMITH
JAVED P. SONDHI
SAMUEL M. SPLETZER
JEFFREY N. SUEKOFF
CHRISTOPHER A. VICTOR
JAMES A. WALKER
JOHN F. WARNER III

DEPARTMENT OF AGRICULTURE

ROBERT BONNIE, OF VIRGINIA, TO BE UNDER SECRETARY OF AGRICULTURE FOR NATURAL RESOURCES AND ENVIRONMENT, VICE HARRIS D. SHERMAN, RESIGNED.

KRYSTA L. HARDEN, OF GEORGIA, TO BE DEPUTY SECRETARY OF AGRICULTURE, VICE KATHLEEN A. MERRIGAN, RESIGNED.

DEPARTMENT OF DEFENSE

SUSAN J. RABERN, OF KANSAS, TO BE AN ASSISTANT SECRETARY OF THE NAVY, VICE GLADYS COMMONS, RESIGNED.

DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

KATHERINE M. O'REGAN, OF NEW YORK, TO BE AN ASSISTANT SECRETARY OF HOUSING AND URBAN DEVELOPMENT, VICE RAPHAEL WILLIAM BOSTIC.

DEPARTMENT OF COMMERCE

ELLEN C. HERBST, OF VIRGINIA, TO BE AN ASSISTANT SECRETARY OF COMMERCE, VICE SCOTT BOYER QUEHL, RESIGNED.

ELLEN C. HERBST, OF VIRGINIA, TO BE CHIEF FINANCIAL OFFICER, DEPARTMENT OF COMMERCE, VICE SCOTT BOYER QUEHL, RESIGNED.

FEDERAL ENERGY REGULATORY COMMISSION

RONALD J. BINZ, OF COLORADO, TO BE A MEMBER OF THE FEDERAL ENERGY REGULATORY COMMISSION FOR THE TERM EXPIRING JUNE 30, 2018, VICE JON WELLINGHOFF, TERM EXPIRING.

DEPARTMENT OF STATE

JAMES COSTOS, OF CALIFORNIA, TO SERVE CONCURRENTLY AND WITHOUT ADDITIONAL COMPENSATION AS AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO ANDORRA.

PATRICK HUBERT GASPARD, OF NEW YORK, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF SOUTH AFRICA.

STEVE A. LINICK, OF VIRGINIA, TO BE INSPECTOR GENERAL, DEPARTMENT OF STATE, VICE HOWARD J. KRONGARD, RESIGNED.

JAMES C. SWAN, OF CALIFORNIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE DEMOCRATIC REPUBLIC OF THE CONGO.

KIRK W.B. WAGAR, OF FLORIDA, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF SINGAPORE.

ALEXA LANGE WESNER, OF TEXAS, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF AUSTRIA.

DEPARTMENT OF HOMELAND SECURITY

ALEJANDRO NICHOLAS MAYORKAS, OF THE DISTRICT OF COLUMBIA, TO BE DEPUTY SECRETARY OF HOMELAND SECURITY, VICE JANE HOLL LUTE, RESIGNED.

IN THE NAVY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. RUSSELL E. ALLEN
CAPT. WILLIAM M. CRANE
CAPT. THOMAS W. MAROTTA

DISCHARGED NOMINATIONS

The Senate Committee on Commerce, Science, and Transportation was discharged from further consideration of the following nominations by unanimous consent and the nominations were confirmed:

MARIETTA S. ROBINSON, OF MICHIGAN, TO BE A COMMISSIONER OF THE CONSUMER PRODUCT SAFETY COMMISSION FOR A TERM OF SEVEN YEARS FROM OCTOBER 27, 2010.

ANN MARIE BUERKLE, OF NEW YORK, TO BE A COMMISSIONER OF THE CONSUMER PRODUCT SAFETY COMMISSION FOR A TERM OF SEVEN YEARS FROM OCTOBER 27, 2011.

CONFIRMATIONS

Executive nominations confirmed by the Senate June 27, 2013:

DEPARTMENT OF JUSTICE

SYLVIA M. BECKER, OF THE DISTRICT OF COLUMBIA, TO BE A MEMBER OF THE FOREIGN CLAIMS SETTLEMENT COMMISSION OF THE UNITED STATES FOR THE TERM EXPIRING SEPTEMBER 30, 2013.

SYLVIA M. BECKER, OF THE DISTRICT OF COLUMBIA, TO BE A MEMBER OF THE FOREIGN CLAIMS SETTLEMENT COMMISSION OF THE UNITED STATES FOR THE TERM EXPIRING SEPTEMBER 30, 2016.

EXECUTIVE OFFICE OF THE PRESIDENT

BRIAN C. DEESE, OF MASSACHUSETTS, TO BE DEPUTY DIRECTOR OF THE OFFICE OF MANAGEMENT AND BUDGET.

DEPARTMENT OF TRANSPORTATION

ANTHONY RENARD FOXX, OF NORTH CAROLINA, TO BE SECRETARY OF TRANSPORTATION.

IN THE COAST GUARD

PURSUANT TO SECTION 53(B), TITLE 14, U.S. CODE, THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE DIRECTOR OF THE COAST GUARD RESERVE IN THE GRADE INDICATED:

To be rear admiral

REAR ADM. STEVEN E. DAY, USCGR

FEDERAL RETIREMENT THRIFT INVESTMENT BOARD

WILLIAM S. JASIEN, OF VIRGINIA, TO BE A MEMBER OF THE FEDERAL RETIREMENT THRIFT INVESTMENT BOARD FOR A TERM EXPIRING OCTOBER 11, 2015.

EXECUTIVE OFFICE OF THE PRESIDENT

HOWARD A. SHELANSKI, OF PENNSYLVANIA, TO BE ADMINISTRATOR OF THE OFFICE OF INFORMATION AND REGULATORY AFFAIRS, OFFICE OF MANAGEMENT AND BUDGET.

GENERAL SERVICES ADMINISTRATION

DANIEL M. TANGHERLINI, OF THE DISTRICT OF COLUMBIA, TO BE ADMINISTRATOR OF GENERAL SERVICES.

NUCLEAR REGULATORY COMMISSION

ALLISON M. MACFARLANE, OF MARYLAND, TO BE A MEMBER OF THE NUCLEAR REGULATORY COMMISSION FOR A TERM EXPIRING JUNE 30, 2018.

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES AIR FORCE TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be general

LT. GEN. FRANK GORENC

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

REAR ADM. PHILIP S. DAVIDSON

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. MICHAEL S. LINNINGTON

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral (lower half)

CAPT. STEPHEN M. PACHUTA

IN THE AIR FORCE

AIR FORCE NOMINATION OF DAISY Y. ENG, TO BE MAJOR.

AIR FORCE NOMINATIONS BEGINNING WITH JOSEPH N. KENAN AND ENDING WITH SIRPA T. AUTIO, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

AIR FORCE NOMINATIONS BEGINNING WITH SCOTT M. SHEFLIN AND ENDING WITH ERIC J. TURNEY, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

AIR FORCE NOMINATIONS BEGINNING WITH CHRISTOPHER E. CIEURZO AND ENDING WITH VINH Q. TRAN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

AIR FORCE NOMINATIONS BEGINNING WITH ANDREW G. BOSTON AND ENDING WITH VALERIE G. SAMS, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 20, 2013.

AIR FORCE NOMINATIONS BEGINNING WITH LOUIS A. BARTON AND ENDING WITH EARLYNE L. RODRIGUEZ, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 20, 2013.

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE REGULAR AIR FORCE UNDER TITLE 10, U.S.C., SECTION 531:

To be major

CRAIG S. BERG
MELISSA A. DEWOLFE
JONATHAN A. FORBES
HYAEHWAN KIM
IAN A. MAKEY
JASON A. MASSIGNAN
REID N. ORTH
SCOTT B. PHILLIPS
DANE H. SALAZAR
TIMOTHY J. STRIGENZ
JONATHAN D. TIDWELL

IN THE ARMY

ARMY NOMINATIONS BEGINNING WITH THOMAS R. BOUCHARD AND ENDING WITH JOHN A. ZENKER, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

ARMY NOMINATIONS BEGINNING WITH GEORGE T. BARIDO AND ENDING WITH CHARLES J. SIZEMORE, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

ARMY NOMINATIONS BEGINNING WITH TIMOTHY BARNARD AND ENDING WITH KEVIN D. VAUGHN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

ARMY NOMINATIONS BEGINNING WITH JEFFREY S. ACREE AND ENDING WITH VICKY L. YOUNG, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

ARMY NOMINATIONS BEGINNING WITH MAZEN ABBAS AND ENDING WITH GARY H. WYNN, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

ARMY NOMINATIONS BEGINNING WITH EDWARD T. BREECHER AND ENDING WITH EDWARD M. WISE, JR.,

WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

ARMY NOMINATION OF MICHAEL D. PAYNE, TO BE COLONEL.

ARMY NOMINATION OF MARLON E. LEWIS, TO BE COLONEL.

ARMY NOMINATION OF DAVID R. MAXWELL, TO BE MAJOR.

ARMY NOMINATION OF THOMAS A. JARRETT, TO BE MAJOR.

IN THE NAVY

NAVY NOMINATION OF KIMBERLY K. YEAGER, TO BE COMMANDER.

NAVY NOMINATION OF JAMES D. HARRISON, TO BE LIEUTENANT COMMANDER.

NAVY NOMINATIONS BEGINNING WITH KERRIE L. ADAMS AND ENDING WITH ANTONIA J. HENRY, WHICH NOMINATIONS WERE RECEIVED BY THE SENATE AND APPEARED IN THE CONGRESSIONAL RECORD ON JUNE 3, 2013.

NAVY NOMINATION OF BRENT E. HAVEY, TO BE LIEUTENANT COMMANDER.

IN THE COAST GUARD

COAST GUARD NOMINATION OF LORING A. SMALL, TO BE LIEUTENANT COMMANDER.

COAST GUARD NOMINATION OF ADAM R. WILLIAMSON, TO BE LIEUTENANT COMMANDER.

COAST GUARD NOMINATION OF KEVIN J. LOPES, TO BE COMMANDER.

CONSUMER PRODUCT SAFETY COMMISSION

MARIETTA S. ROBINSON, OF MICHIGAN, TO BE A COMMISSIONER OF THE CONSUMER PRODUCT SAFETY COMMISSION FOR A TERM OF SEVEN YEARS FROM OCTOBER 27, 2010.

ANN MARIE BUERKLE, OF NEW YORK, TO BE A COMMISSIONER OF THE CONSUMER PRODUCT SAFETY COMMISSION FOR A TERM OF SEVEN YEARS FROM OCTOBER 27, 2011.

EXTENSIONS OF REMARKS

OPPOSING H.R. 1911, SMARTER SOLUTIONS FOR STUDENTS ACT

HON. TONY CÁRDENAS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. CÁRDENAS. Mr. Speaker, I rise today in opposition to H.R. 1911, Smarter Solutions for Students Act.

This is a truly devastating bill for every working and middle class family trying to achieve the American Dream.

If we do nothing before July 1st, we will be passively negligent.

If we pass this will today, we will be actively destroying our competitiveness and economic strength by taking dollars out of the pockets of our workforce.

The bill is as far away from ''commonsense legislation'' as we get. It makes the situation worse by making college education far more expensive!

According a Congressional Research Service report, under this proposal, a student borrowing the maximum loan amounts with a 5 year subsidized loan will pay more than $10,000. Even under the doubled rate of July 1, a student with the same loan would pay less than $9,000. Under the current rate of 3.4 percent, this student pays just over $4,000.

Those massive differences in repayment rates show that this bill was not written with students in mind.

The growing student loan-burden in our country is critical and must be addressed.

According to the Consumer Finance Protection Bureau, student loan debt recently surpassed the $1 trillion mark. The 2010 Survey of Consumer Finances reported that 45 percent of all American families hold outstanding student-loan debt. This was an increase from 33 percent in 2007.

While the majority of student debt is held by people under the age of 35, increasing student debt affects every member of the family, especially in a time when nearly half of bachelor's degree holders under the age of 25 are unemployed.

However, addressing increased interest costs is only part of the solution. We need to begin to address the exorbitant prices of higher education. I understand that universities are trying to cope with the decreases in government funding and declining contributions as a result of the tough economic times. However, these institutions also have a role to play in ensuring that education is accessible and affordable to all students. If these institutions would like the government to continue to invest in students, they should do so as well, by doing everything in their power to keep tuition costs low.

I cannot stress enough the importance of making college education accessible. We all agree that education transforms people's lives. Education is the key to breaking the cycle of poverty, crime, and violence in any community. It is the engine that will propel our families into the middle class and allow us to reinvigorate and grow our economy. We must act swiftly to remedy this unsustainable situation.

IN HONOR OF SHEILA STUART

HON. SAM FARR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. FARR. Mr. Speaker, I rise today to honor the memory of Sheila Stuart, a dear friend and long time community activist who recently died. Sheila was a remarkable woman who touched the lives of many throughout her years of tireless service to her community.

Sheila was born in Dublin, Ireland on April 24, 1918, the second of six children. Her father, a school teacher and principal, instilled in Sheila a life-long love of learning. At fifteen, after attending Dominican College for three years, Sheila went to work as a clerk to support her family. In 1945, she met and married John ''Harry'' Stuart. In 1947, the young couple had a son and a year later moved to London and then India, where Harry worked as a mechanical engineer building power plants. While in India, daughter Orla was born. The family left India in 1954, eventually finding their way to Santa Cruz, California, in 1956. They remained in Santa Cruz for the rest of their lives.

Sheila was an active participant in a number of community organizations. Harry and Sheila joined the Pasatiempo Golf Club where Sheila served as President of the Pasatiempo 18-hole Women's Club and won numerous trophies. In the late 1950's she began serving as both ''room mother'' at her son Orin's school and Cub Scout Den Mother. She was active in the League of Women Voters, as well as in the Santa Cruz Symphony, and Shakespeare Santa Cruz.

Sheila's interest in politics was fueled by her love for fellow Irishman John Kennedy. Sheila walked precincts for Kennedy, handing out pamphlets. She and the children drove to San Jose to watch Kennedy's motorcade and she often recounted how Kennedy turned and smiled directly at her when she shouted the Irish greeting, ''cead mile failte.'' Sheila continued her involvement in local politics working as Santa Cruz County Assessor for eleven years, where she assisted with the Homeowner's Exemption Program. An avid Democrat, Sheila said one of her greatest achievements was turning her conservative husband into a liberal Democrat! Sheila ran several campaigns in Santa Cruz including Robert Kennedy's 1968 Presidential Primary, Gary Hart's Presidential bid and two campaigns for DIANNE FEINSTEIN. She helped Leon Panetta in his first Congressional campaign and later volunteered tirelessly for a number of other candidates and issues. After her retirement, she became active in the Democratic Women's Club and The Santa Cruz County Democratic Central Committee, where she became the first Voter Services Chair and later DCC Co-Chair. She was also honored as the first DCC ''Democrat of the Year''.

Sheila is survived by son Orin and daughter-in-law Arlene of Sutter Creek; daughter Orla of Santa Cruz; grandchildren Jason, Nicole (Ian), Courtney (Ryan), and Trevor; three great-grandchildren, Sophia, Colton and Cayden, numerous nephews and nieces in Ireland and Canada, and many dear friends.

Mr. Speaker, I know I speak for the whole House in honoring Sheila Stuart and the remarkable life she led and in extending our condolences to her family and friends. The civic activism that Sheila Stuart embodied is the lifeblood of our democracy and our nation owes her a debt of gratitude for her efforts.

IN RECOGNITION OF NATIONAL REGISTER OF HISTORIC PLACES DESIGNATION

HON. REID J. RIBBLE

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. RIBBLE. Mr. Speaker, I rise today to recognize the Divine Temple Church of God in Christ, located in Green Bay, Wisconsin. This historically significant structure, designed by architect George Rockwell for the Christ Episcopal Church, was built in the famous Gothic Revival-style. The site has now been added to the National Register of Historic Places. The church and its members are planning to celebrate this milestone on Friday, June 28th, 2013.

The cornerstone of this church was put in place in 1898, and the structure that stands today was completed one year later. Throughout its long history in downtown Green Bay, this church has served the spiritual needs of the community, and offered congregants a safe place to worship. I congratulate Pastor L.C. Green for his efforts to pursue this designation, and commend the congregation of Divine Temple Church of God in Christ for volunteering their time to preserving this wonderful structure.

There is a quote from Romans 15:7 on the church website that reads: ''Wherefore receive ye one another as Christ also received us to the glory of God.'' May this church continue to receive those seeking spiritual refreshment in the years to come. Again, congratulations to Divine Temple Church of God in Christ for receiving this special recognition.

HONORING ANGIE MCDONALD'S RETIREMENT AFTER 23 YEARS OF TEACHING

HON. JOE BARTON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. BARTON. Mr. Speaker, I rise today in recognition of Angie McDonald who retired on

Friday, June 7, 2013 after 23 years as a public school teacher. Angie, a constituent and resident of Mansfield, TX, was a teacher in the Mansfield Independent School District for 15 years and finished her career as a Reading Specialist serving all of the Mansfield-area high schools. Through her dedicated work teaching students how to overcome reading and writing deficiencies, she gave countless students a greater opportunity to excel academically and succeed professionally. The efforts of teachers like Angie are essential in promoting a more prosperous future for the next generation of Americans and our nation as a whole. I am extremely proud to have her as a constituent and cannot thank her enough for her 23 years of devotion to our children's prosperity.

Mr. Speaker, on behalf of the 6th Congressional District of Texas, I ask all my distinguished colleagues to join me in honoring Angie McDonald and her 23 years of selfless work as an educator. We must always recognize those who dedicate their careers to enriching the lives of our children.

HONORING AVIS PARMAN

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Avis Parman, who will celebrate her 90th birthday on July 28, 2013.

Avis has been an important leader in Albany, Missouri for decades, earning the moniker "Miss Albany." While she grew up in Worth County, she moved to Albany in 1943. In 1963, she became a founding member of Albany Community Betterment, an organization dedicated to improving Albany and one of two clubs that have competed in the Missouri Community Betterment program every year of its existence. Albany Community Betterment won the Grand Prize in state community betterment in 2001 and 2010, a feat Avis was instrumental in helping achieve. She has also taken time to serve on parks boards, on the Missouri Agriculture and Small Business Development Authority, serving as chairwoman from 1998 to 2000, on the state Environmental Improvement and Energy Resources Authority, on various library projects and currently as a director emeritus of the Missouri Independent Bankers Association. Whatever Albany or Avis's neighbors in northwest Missouri needed, she answered the call and served to the best of her ability.

Mr. Speaker, I proudly ask you to join me in commending Avis Parman for a life of service to Albany and northwest Missouri, congratulating her on her 90th birthday and wishing her many more wonderful years to come.

HONORING DE'ONTAY DE'CAROL JONES

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a determined and eager young man who understands it takes tenacity and self reliance to reach the highest success, Mr. De'Ontay De'Carol Jones.

De'Ontay De'Carol Jones was born May 18, 1994 in Vicksburg, MS to the proud parents of Mr. and Mrs. Robert Jackson. De'Ontay was a part of the May 2012 graduating class of Warren Central High School. De'Ontay is currently enrolled at Jones County Jr. College located in Ellisville, MS.

De'Ontay understands that obtaining a good education, and community and civic involvement is the recipe for a success. While in high school De'Ontay participated in the school choir, student council, yearbook club and Future Teacher's Association.

He is a faithful and active member of Greater Grove M. B. Church where he is an usher and a member of PRIDE, Greater Grove's teen ministry. De'Ontay is also a member of the Kappa League Boy's Club. He enjoys learning about the political process and likes to participate in political campaigns.

Mr. Speaker, I ask my colleagues to join me in recognizing Mr. De'Ontay De'Carol Jones for his hard work, dedication and a strong desire to achieve.

PERSONAL EXPLANATION

HON. MARK SANFORD

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. SANFORD. Mr. Speaker, I was absent for votes on Tuesday, June 25, 2013, due to Flight #4042 being delayed by approximately four hours before departing Charleston International Airport. Had I been present, I would have voted in the following manner:

H.R. 2383—To designate the new Interstate Route 70 Bridge over the Mississippi River connecting St. Louis, Missouri, and southwestern Illinois as the "Stan Musial Veterans Memorial Bridge." Vote: "yes."

H.R. 1092—To designate the air route traffic control center located in Nashua, New Hampshire, as the Patricia Clark Boston Air Route Traffic Control Center." Vote: "yes."

MARKETING THE 60TH ANNIVERSARY OF THE END OF THE KOREAN WAR

HON. KENNY MARCHANT

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. MARCHANT. Mr. Speaker, I rise to mark the upcoming sixtieth anniversary of the end of the Korean War and it is with the utmost respect that I recognize this milestone.

On July 27, 1953, an armistice was signed which brought to a close over three years of terrible war on the Korean Peninsula. In the aftermath of World War II, a newly-divided Korea became the site of global crisis as 75,000 invading North Korean soldiers crossed the 38th parallel on June 25, 1950. The global community was fast to respond, as the United Nations Security Council recommended on June 27 that member states take action. Twenty-one nations heeded the call and collectively sent over 340,000 troops, 88 percent from the United States, to assist the over 600,000 South Koreans fighting for their country.

The three years of tragic bloodshed helped stem communist conquest and secure a people's independence in a dangerous world. Yet it came at a great price. 36,574 Americans lost their lives, and approximately 100,000 were injured. Over 170,000 allied troops were confirmed killed with half of a million wounded and, to this day, many thousands remain missing. By some counts, 2.5 million civilians on both sides, 10 percent of Korea's pre-war population, perished.

No words here, then, can adequately mark our recognition and the deep honor that we owe to the men and women who sacrificed so much in Korea sixty years ago. What we can do is pause to ensure that what they went through and what they accomplished will never be forgotten. And we can give the highest respect to those who survived and that we have with us today—our veterans whom I wish to thank and honor this day for their great service.

Mr. Speaker, on behalf of the 24th Congressional District of Texas, I ask all my distinguished colleagues to join me in recognizing the sixtieth anniversary of the end of the Korean War, and honoring our veterans and those who lost their lives in that great struggle.

HONORING KATRINA CLARK, EXECUTIVE DIRECTOR OF THE FAIR HAVEN COMMUNITY HEALTH CENTER ON THE OCCASION OF HER RETIREMENT

HON. ROSA L. DeLAURO

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Ms. DELAURO. Mr. Speaker, it gives me great pleasure to rise today to join the many family, friends, colleagues, and community members who have gathered in celebration of Katrina Clark who is retiring from her position as Executive Director of the Fair Haven Community Health Center after forty years of dedicated service.

Katrina has been at the helm of this organization for all but its first two years. It has been under her leadership and because of her vision that the Center has grown so successfully over the last four decades. I have had the privilege to know Katrina for many years. Her commitment to the people of the Fair Haven community is only equaled by her determination to ensure that they have access to quality, affordable health care. She is an extraordinary woman and I consider myself fortunate to benefit from her counsel and friendship.

In 1971 a small group of dedicated nurses, doctors, students, and neighborhood volunteers, under the leadership of a community advocacy agency called the Alliance for Latin American Progress, opened the Fair Haven Clinic in a local elementary school. Two nights a week, the Clinic served adults and children on a walk-in basis for minor ailments, immunizations, and family planning services. With a budget of only five thousand dollars, made available through a grant from the Greater New Haven Community Foundation, they were able to accommodate over five hundred visits in their first year.

It was clear that families were not only in need of these basic services, but of expanded health care as well. Over the next decade, guided by Katrina's remarkable leadership, the Clinic worked to expand the services that they were able to provide to more comprehensive primary health care. Today, the Fair Haven Community Health Center has grown into one of our community's most respected non-profit primary health care organizations, providing comprehensive health care—from prenatal and pediatric to adolescent, adult and geriatric care—to hundreds of residents every year.

Katrina's passion for and dedication to providing children and families with access to quality, affordable health care has helped to guide the Fair Haven Community Health Center over the course of its history. Its success and the difference it continues to make in the lives of those it serves is her legacy. She has left an indelible mark on our community, setting a standard of service to which we should all strive. While her physical presence will most certainly be missed, I have no doubt that she will continue to serve as an inspiration to all of those at Fair Haven Community Health Center as they continue her good work.

For her outstanding service to our community and unparalleled dedication to some of our most vulnerable citizens, I am honored to stand today to extend my deepest thanks and appreciation to Katrina Clark as she celebrates her retirement. I wish her, her partner Bonnie, and their children, Jared and Jonathan all the best for many more years of health and happiness.

HONORING DARRIN ARNOLD

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Darrin Arnold. Darrin is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 214, and earning the most prestigious award of Eagle Scout.

Darrin has been very active with his troop, participating in many scout activities. Over the many years Darrin has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Darrin has contributed to his community through his Eagle Scout project. Darrin repaired 200 feet of a hiking trail inside the Parkville Nature Sanctuary in Parkville, Missouri, removing tree roots and large rocks, overlaying the path with gravel and providing a better walking experience for hikers in the sanctuary.

Mr. Speaker, I proudly ask you to join me in commending Darrin Arnold for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

HONORING COLONEL ROBERT L. HOWARD-MOH

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. THOMPSON of California. Mr. Speaker, I rise today in recognition of the life and accomplishments of Colonel Robert L. Howard and the dedication of the Headquarters Building of the 5th Special Forces Group (Airborne) at Fort Campbell, Kentucky in his honor.

Colonel Howard retired in 1992 after serving 36 years in the United States Army, with more than 33 years on airborne status, and is considered one of our Nation's most highly decorated veterans. While serving in Vietnam, Colonel Howard received the Medal of Honor on March 2, 1971 for "conspicuous gallantry and intrepidity in action" while on a mission to rescue a missing American soldier in enemy controlled territory. He passed away on December 23, 2009 in Waco, Texas.

Colonel Howard is one of the most impressive people I have met during my life. I am proud to have had the honor of working with him. Then-Captain Howard was my company commander when I was an instructor at the Army Airborne School at Fort Benning, Georgia.

Even if you did not know that he had been recommended for the Medal of Honor three times, receiving one, he was also a recipient of our Nation's second highest decoration, the Distinguished Service Cross, and was awarded a Silver Star. And even if you did not know he had been wounded fourteen times during 54 months of combat duty and received eight Purple Hearts, you would still know he was a real leader.

Colonel Howard embodied everything there is in a good leader, a fine soldier, and a great American. He was someone you would be happy to follow at the Airborne School or into combat. He had the upmost respect from everyone around him, from junior enlisted personnel, to noncommissioned officers, and senior officers.

In my conversations with him after his retirement from military service, he was even more impressive, working for the Department of Veterans Affairs as a liaison to other veterans. Combined, he spent 52 years in government service.

It was a high honor to have known him and to have served under him. I have had the unbelievably good fortune to be part of this memorization process, and to know that his legacy will live on in this building.

Therefore, Mr. Speaker, I believe it is appropriate at this time that we honor Colonel Howard's service to our Nation with the dedication of this building. His commitment to duty and professionalism is an inspiration to all of us.

HONORING CHARKYRIA SAMONE EVANS

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable student, Ms. Charkyria Samone Evans.

Charkyria, an aspiring Aerospace Engineer, is the 19 year old daughter of Mr. and Mrs. D'Andre Williams and Mr. and Mrs. Samuel Evans. As a native of Washington County, Charkyria has witnessed a few troubling moments that occurred in her county and specifically Greenville, Mississippi. These occurrences drew Charkyria's attention even at a young age.

As a fifth grader at Ella Darling Elementary School, Charkyria decided to take the first step in enhancing her community by joining a campus organization called Darling Leaders/Delta Action Coalition. This organization helped Charkyria receive the support she needed to express her enlightening ideas and persuaded her to submit an essay that promoted Greenville's beautification. Charkyria was able to execute her plan of beautification when she and a few other students designed a mural, displayed on the walls of Higher Dimensions Church. Charkyria's determination did not stop there.

Upon entering Coleman Middle School (CMS), her community service efforts were refreshed when she became a CMS cheerleader, student council member and President of the National Junior Honor Society.

Immediately upon entering Greenville-Weston High School, Charkyria took on roles of SGA Senator, Science Olympiad Scholar, Academic Bowl Scholar, Principal's Club Pupil, NSL-ITEST scholar (Mississippi Valley State University), varsity cheerleader and an eager mentor for students of various ages. Being involved in school only molded her to become even more involved in Washington County.

Additionally, she became an active member in Teenette Art and Civic Club, Delta Center Stage, Washington County's Democratic Caucus, Chi Mu Omega Chapter of AKA's Cotillion, Eta Theta Omega Chapter of AKA's Fashionetta, Mayor's Youth Council, and Old Jerusalem M.B. Church's Youth Ministry.

Now that Charkyria has embarked upon a new journey at Tuskegee University as an ambitious Aerospace Engineering student, she continues to reach out into her world community. She stretches her arms of love out to all in hopes of inspiring the lives of community members and students through community service.

Charkyria continues to use the skills that she has learned to help nourish the pride of the swift-growing South. With this mindset, she continues to grow with a sense of dignity and nationalism for her local communities and the United States of America because she remembers, "For God so loved the world. . .".

Mr. Speaker, I ask my colleagues to join me in recognizing Ms. Charkyria Samone Evans for her dedication to serving others and giving back to her community.

SECTION 5 OF THE VOTING RIGHTS ACT

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Ms. JACKSON LEE. Mr. Speaker, I would like to submit the following:

1. How did Congress conclude that Section 5 was still necessary in 2006?

Congress conducted 21 hearings and amassed a record of over 15,000 pages during the 2006 process. The bipartisan vote was

the largest to date: the House vote was 390–33 and the Senate vote was 98–0. President Bush signed the measure into law on July 27, 2006.

2. How did Section 5 work to prevent discrimination in 2012?

In South Carolina (Voter ID): The federal court approved the state's voter ID law in future elections only after DOJ's use of Section 5 ensured that the final law would not discriminate against African-American voters.

In Texas (Redistricting): The federal district court denied preclearance to Texas' redistricting plans for Congress, state Senate, and state House, and affirmatively found that the plans for Congress and state Senate were adopted with a racially discriminatory purpose.

In Florida (Early Voting): The federal court denied approval of a reduction in early voting until state agreed to implement plan that would not make it more difficult for minorities to vote.

3. How will Congress respond to the Supreme Court decision?

Congress will work in a measured bipartisan manner to conduct hearings and to deliberate in order to determine the appropriate legislative response to the Court's decision and to ensure that the voting rights of Americans are not violated.

At a threshold level, Congress must hold oversight hearings to determine the current scope of voting discrimination across the country. This bipartisan process would review not only voting discrimination in past covered jurisdictions, but voting discrimination in all other states. This oversight process will necessary involve the Department of Justice and all parts of the civil rights advocacy community.

We must be careful to maintain a deliberative and bipartisan oversight process. While the process may not yield immediate results, we must be careful ensure that it yields comprehensive a result that will survive legal scrutiny.

Until a new coverage formula is in place, the Section 5 ''preclearance'' remedy is inactive, as there are no covered jurisdictions. That will require each of us to maintain vigilance with respect to discrimination, particularly in formerly covered jurisdictions, as Section 5 protections will probably sent during the 2014 election cycle.

1. Supreme Court found the current Section 5 Coverage formula Unconstitutional:

The Court ruled that Section 5 cannot be enforced unless Congress crafts a new formula for determining which states and localities are covered by the ''preclearance'' mechanism. By a 5–4 vote, the Court found that Congress in the 2006 reauthorization relied on 40–year-old data that does not reflect racial progress and changes in U.S. society. The Court found that Congress must ''identify those jurisdictions to be singled out on a basis that makes sense in light of current conditions.'' The Court recognized that ''voting discrimination still exists'' and remains a problem that Congress is constitutionally entitled to address through legislation.

The court did not strike down the ''preclearance'' approval requirement of the law that has been used, mainly in the South, to open up polling places to minority voters in the nearly half century since it was first enacted in 1965. However, the Court noted that Congress must update the formula for determining which parts of the country must seek Washington's approval, in advance, for election changes.

2. What did Section 5 of the Voting Rights Act require?

Required that all or part of 16 states with a history of discrimination in voting submit requests to change election-related procedures for federal approval before they can be implemented.

Requests could be submitted to U.S. Attorney General or to the U.S. District Court for DC.

Freezes voting changes before implemented to stop voting discrimination before it begins.

Section 5 reauthorized by Congress in 1970, 1975, 1982, and 2006.

Requires covered jurisdictions to show that a voting change is not discriminatory.

Covers more jurisdictions than the South/Geographic Coverage of Section 5.

Entire State: Alabama, Alaska, Arizona, Georgia, Louisiana, Mississippi, South Carolina, Texas, Virginia.

Jurisdictions within a State: California, Florida, Michigan, New Hampshire, New York, North Carolina, South Dakota.

IN HONOR OF BRENDA BATTAT FOR HER SERVICE TO THE HEARING LOSS ASSOCIATION OF AMERICA

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 27, 2013

Mr. VAN HOLLEN. Mr. Speaker, I am honored to rise today to recognize the accomplishments of my constituent, Brenda Battat, and her 24 years of dedicated service to the Hearing Loss Association of America, HLAA. Through her tenure at HLAA, which she has served as Executive Director since 2008, Ms. Battat was instrumental in making HLAA the nation's leading consumer organization for people with hearing loss. Among her many accomplishments, Ms. Battat made significant contributions to raising public awareness on hearing loss and advocating for greater accessibility in public and private venues.

At the HLAA, Ms. Battat worked to ensure that Americans with hearing loss have more and better health care and technology options. She led advocacy efforts to increase consumer choice in the hearing loss marketplace. She assisted people with hearing loss in obtaining more options for communication and entertainment, such as hearing aid-compatible telephones and increased captioning of internet and mobile television programming. By fighting to make hearing aids and hearing technology more affordable and promoting the use of hearing assistive technology with consumer train-the-trainer programs, Ms. Battat has achieved easier and more effective communication for the hard of hearing. Ms. Battat's promotion of hearing assistive technology has removed barriers for those with hearing loss to participate fully in both private and community life.

Ms. Battat, who herself has a profound hearing loss and uses a cochlear implant and hearing aid, has served on many state and national advisory boards, including the National Institute on Deafness & Other Communication Disorders Advisory Council, the National Association of Hearing and Speech Action, the National Center for Deaf Health Research External Committee, the Maryland Telecommunications Relay Advisory Committee, the Federal Communications Commission's Hearing Aid Compatibility Negotiated Rulemaking Committee, and Consumer/Disability Telecommunications Advisory Committee. In short, her efforts have benefitted countless people.

Ms. Battat's outstanding work has earned her well-deserved national recognition. She received the Sheldon Williams Itzkoff Leadership Award in 2010, the Robert H. Weitbrecht Telecommunications Access Award in 2007, the Oticon Focus on People Advocacy Award in 2005, and the Self Help for Hard of Hearing People National Access Award in 2002. Under her leadership, the HLAA maintained financial stability and earned the GuideStar Exchange Seal for transparency.

Mr. Speaker, I am pleased to represent Brenda Battat in the U.S. House of Representatives and to thank her for her outstanding accomplishments on behalf of those with hearing loss. I ask my colleagues to join me in congratulating Ms. Battat on her contributions and in wishing her an enjoyable and fulfilling retirement.

Daily Digest

HIGHLIGHTS

Senate confirmed the nomination of Anthony Renard Foxx, of North Carolina, to be Secretary of Transportation.

Senate passed S. 744, Border Security, Economic Opportunity, and Immigration Modernization Act, as amended.

Senate agreed to S. Con. Res. 19, Adjournment Resolution.

House agreed to S. Con. Res. 19, Adjournament Resolution.

Senate

Chamber Action

Routine Proceedings, pages S5315–S5512

Measures Introduced: Thirty-two bills and four resolutions were introduced, as follows: S. 1237–1268, S. Res. 190–192, and S. Con. Res. 19.

Pages S5498–99

Measures Reported:

S. 1243, making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2014. (S. Rept. No. 113–45)

S. 1244, making appropriations for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies programs for the fiscal year ending September 30, 2014. (S. Rept. No. 113–46)

S. 1245, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2014. (S. Rept. No. 113–47)

H.R. 2216, making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2014, with an amendment in the nature of a substitute. (S. Rept. No. 113–48)

S. 27, to clarify authority granted under the Act entitled ''An Act to define the exterior boundary of the Uintah and Ouray Indian Reservation in the State of Utah''. (S. Rept. No. 113–49)

S. 59, to designate a Distinguished Flying Cross National Memorial at the March Field Air Museum in Riverside, California. (S. Rept. No. 113–50)

S. 156, to allow for the harvest of gull eggs by the Huna Tlingit people within Glacier Bay National Park in the State of Alaska, with an amendment. (S. Rept. No. 113–51)

S. 211, to amend certain definitions contained in the Provo River Project Transfer Act for purposes of clarifying certain property descriptions. (S. Rept. No. 113–52)

S. 225, to authorize the Secretary of the Interior to conduct a study of alternatives for commemorating and interpreting the role of the Buffalo Soldiers in the early years of the National Parks. (S. Rept. No. 113–53)

S. 241, to establish the Rio Grande del Norte National Conservation Area in the State of New Mexico, with an amendment in the nature of a substitute. (S. Rept. No. 113–54)

S. 256, to amend Public Law 93–435 with respect to the Northern Mariana Islands, providing parity with Guam, the Virgin Islands, and American Samoa, with an amendment. (S. Rept. No. 113–55)

S. 284, to transfer certain facilities, easements, and rights-of-way to Fort Sumner Irrigation District, New Mexico. (S. Rept. No. 113–56)

S. 305, to authorize the acquisition of core battlefield land at Champion Hill, Port Gibson, and Raymond for addition to Vicksburg National Military Park, with amendments. (S. Rept. No. 113–57)

S. 312, to adjust the boundary of the Carson National Forest, New Mexico. (S. Rept. No. 113–58)

S. 342, to designate the Pine Forest Range Wilderness area in Humboldt County, Nevada. (S. Rept. No. 113–59)

S. 349, to amend the Wild and Scenic Rivers Act to designate a segment of the Beaver, Chipuxet, Queen, Wood, and Pawcatuck Rivers in the States

of Connecticut and Rhode Island for study for potential addition to the National Wild and Scenic Rivers System. (S. Rept. No. 113–60)

S. 368, to reauthorize the Federal Land Transaction Facilitation Act, with an amendment. (S. Rept. No. 113–61)

S. 371, to establish the Blackstone River Valley National Historical Park, to dedicate the Park to John H. Chafee. (S. Rept. No. 113–62)

S. 447, to provide for the conveyance of certain cemeteries that are located on National Forest System land in Black Hills National Forest, South Dakota. (S. Rept. No. 113–63)

S. 476, to amend the Chesapeake and Ohio Canal Development Act to extend to the Chesapeake and Ohio Canal National Historical Park Commission, with an amendment in the nature of a substitute. (S. Rept. No. 113–64)

S. 507, to establish the Manhattan Project National Historical Park in Oak Ridge, Tennessee, Los Alamos, New Mexico, and Hanford, Washington, with amendments. (S. Rept. No. 113–65)

S. 609, to authorize the Secretary of the Interior to convey certain Federal land in San Juan County, New Mexico, with amendments. (S. Rept. No. 113–66)

S. 736, to establish a maximum amount for special use permit fees applicable to certain cabins on National Forest System land in the State of Alaska, with amendments. (S. Rept. No. 113–67)

S. 757, to provide for the implementation of the multispecies habitat conservation plan for the Virgin River, Nevada, and Lincoln County, Nevada, to extend the authority to purchase certain parcels of public land. (S. Rept. No. 113–68)

H.R. 316, to reinstate and transfer certain hydroelectric licenses and extend the deadline for commencement of construction of certain hydroelectric projects, with an amendment in the nature of a substitute. (S. Rept. No. 113–69) **Pages S5497–98**

Measures Passed:

Border Security, Economic Opportunity, and Immigration Modernization Act: By 68 yeas to 32 nays (Vote No. 168), Senate passed S. 744, to provide for comprehensive immigration reform, after taking action on the following amendments and motions proposed thereto: **Pages S5315–17, S5329–S5475**

Adopted:

By 68 yeas to 32 nays (Vote No. 166), Senate adopted the committee-reported substitute amendment. **Page S5330**

Withdrawn:

Reid Amendment No. 1552 (to the language proposed to be stricken by the reported committee substitute amendment to the bill), to change the enactment date. **Pages S5316, S5329–30**

Reid Amendment No. 1553 (to Amendment No. 1552), of a perfecting nature. **Pages S5316, S5329–30**

During consideration of this measure today, Senate also took the following action:

Chair sustained a point of order that Leahy (for Reed) Amendment No. 1224, to clarify the physical present requirements for merit-based immigrant visa applicants, was not in order, and the amendment thus fell. **Page S5316**

Chair sustained a point of order that Cruz Amendment No. 1320, to replace title I of the bill with specific border security requirements, which shall be met before the Secretary of Homeland Security may process applications for registered immigrant status or blue card status and to avoid Department of Homeland Security budget reductions, was not in order, and the amendment thus fell. **Page S5316**

Chair sustained a point of order that Boxer/Landrieu Amendment No. 1240, to require training for National Guard and Coast Guard officers and agents in training programs on border protection, immigration law enforcement, and how to address vulnerable populations, such as children and victims of crime, was not in order, and the amendment thus fell. **Page S5316**

By 68 yeas to 32 nays (Vote No. 167), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on the bill. **Page S5330**

Triennial International Civil Aviation Organization Assembly: Senate passed H.R. 1151, to direct the Secretary of State to develop a strategy to obtain observer status for Taiwan at the triennial International Civil Aviation Organization Assembly. **Page S5509**

Stan Musial Veterans Memorial Bridge: Senate passed H.R. 2383, to designate the new Interstate Route 70 bridge over the Mississippi River connecting St. Louis, Missouri, and southwestern Illinois as the ''Stan Musial Veterans Memorial Bridge''. **Page S5509**

Congressional Gold Medal: Committee on Banking, Housing, and Urban Affairs was discharged from further consideration of H.R. 324, to grant the Congressional Gold Medal, collectively, to the First Special Service Force, in recognition of its superior service during World War II, and the bill was then passed. **Pages S5509–10**

Battle of Gettysburg 150th Anniversary: Senate agreed to S. Res. 192, commemorating the 150th

anniversary of the Battle of Gettysburg and the significance of this battle in the history of the United States. Page S5510

Adjournment Resolution: Senate agreed to S. Con. Res. 19, providing for a conditional adjournment or recess of the Senate and an adjournment of the House of Representatives. Page S5510

Border Security, Economic Opportunity, and Immigration Modernization Act Printing—Agreement: A unanimous-consent agreement was reached providing that S. 744, to provide for comprehensive immigration reform, as amended, and passed by the Senate, be printed. Page S5510

Signing Authority—Agreement: A unanimous-consent agreement was reached providing that from Friday, June 28, 2013 through Monday, July 8, 2013, the Majority Leader and Senators Mikulski and Reed be authorized to sign duly enrolled bills or joint resolutions. Page S5510

Authorizing Leadership to Make Appointments—Agreement: A unanimous-consent agreement was reached providing that, notwithstanding the upcoming recess or adjournment of the Senate, the President of the Senate, the President Pro Tempore, and the Majority and Minority Leaders be authorized to make appointments to commissions, committees, boards, conferences, or interparliamentary conferences authorized by law, by concurrent action of the two Houses, or by order of the Senate. Page S5510

Pro Forma—Agreement: A unanimous-consent agreement was reached providing that the Senate adjourn, and convene for pro forma sessions only, with no business conducted on the following dates and times, and that following each pro forma session, the Senate adjourn until the next pro forma session: Friday, June 28, 2013 at 12:15 p.m.; Tuesday, July 2, 2013 at 10:15 a.m.; and Friday, July 5, 2013 at 12 p.m.; and that the Senate adjourn on Friday, July 5, 2013, until 2 p.m., on Monday, July 8, 2013, unless the Senate receives a message from the House of Representatives that it has adopted S. Con. Res. 19, providing for a conditional adjournment or recess of the Senate and an adjournment of the House of Representatives, and that if the Senate receives such a message, the Senate adjourn until 2 p.m., on Monday, July 8, 2013. Page S5510

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, the notification of the President's intent to terminate the designation of Bangladesh as a beneficiary developing country under the Generalized System of Preferences (GSP) program; which was referred to the Committee on Finance. (PM–15) Page S5492

Dorsey Nomination—Agreement: A unanimous-consent-time agreement was reached providing that at a time to be determined by the Majority Leader, in consultation with the Republican Leader, Senate begin consideration of the nomination of Jennifer A. Dorsey, of Nevada, to be United States District Judge for the District of Nevada; that there be one hour for debate equally divided in the usual form; that following the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nomination; and that no further motions be in order. Page S5508

Phillips Nomination—Agreement: A unanimous-consent-time agreement was reached providing that at 5 p.m., on Monday, July 8, 2013, Senate begin consideration of the nomination of Gregory Alan Phillips, of Wyoming, to be United States Circuit Judge for the Tenth Circuit; that there be 30 minutes for debate equally divided in the usual form; that upon the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nomination; and that no further motions be in order. Page S5508

West Nomination—Agreement: A unanimous-consent-time agreement was reached providing that at a time to be determined by the Majority Leader, in consultation with the Republican Leader, Senate begin consideration of the nomination of Derek Anthony West, of California, to be Associate Attorney General; that there be one hour for debate equally divided in the usual form; that following the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nomination; and that no further motions be in order. Page S5508

Nominations Confirmed: Senate confirmed the following nominations:

By a unanimous vote of 100 yeas (Vote No. EX. 165), Anthony Renard Foxx, of North Carolina, to be Secretary of Transportation. Pages S5329, S5511

Sylvia M. Becker, of the District of Columbia, to be a Member of the Foreign Claims Settlement Commission of the United States for the term expiring September 30, 2013.

Sylvia M. Becker, of the District of Columbia, to be a Member of the Foreign Claims Settlement Commission of the United States for the term expiring September 30, 2016.

Marietta S. Robinson, of Michigan, to be a Commissioner of the Consumer Product Safety Commission for a term of seven years from October 27, 2010.

(Prior to this action, Committee on Commerce, Science, and Transportation was discharged from further consideration.) **Pages S5508–09, S5511–12**

Allison M. Macfarlane, of Maryland, to be a Member of the Nuclear Regulatory Commission for a term expiring June 30, 2018.

Brian C. Deese, of Massachusetts, to be Deputy Director of the Office of Management and Budget.

William S. Jasien, of Virginia, to be a Member of the Federal Retirement Thrift Investment Board for a term expiring October 11, 2015.

Ann Marie Buerkle, of New York, to be a Commissioner of the Consumer Product Safety Commission for a term of seven years from October 27, 2011.

(Prior to this action, Committee on Commerce, Science, and Transportation was discharged from further consideration.) **Pages S5508–09, S5511–12**

Daniel M. Tangherlini, of the District of Columbia, to be Administrator of General Services.

1 Air Force nomination in the rank of general.

1 Army nomination in the rank of general.

1 Coast Guard nomination in the rank of admiral.

1 Navy nomination in the rank of admiral.

Routine lists in the Air Force, Army, Coast Guard, and Navy. **Pages S5508–09, S5511–12**

Howard A. Shelanski, of Pennsylvania, to be Administrator of the Office of Information and Regulatory Affairs, Office of Management and Budget. **Pages S5509, S5511**

Nominations Received: Senate received the following nominations:

Kenneth Allen Polite, Jr., of Louisiana, to be United States Attorney for the Eastern District of Louisiana for the term of four years.

Robert Bonnie, of Virginia, to be Under Secretary of Agriculture for Natural Resources and Environment.

Krysta L. Harden, of Georgia, to be Deputy Secretary of Agriculture.

Susan J. Rabern, of Kansas, to be an Assistant Secretary of the Navy.

Katherine M. O'Regan, of New York, to be an Assistant Secretary of Housing and Urban Development.

Ellen C. Herbst, of Virginia, to be an Assistant Secretary of Commerce.

Ellen C. Herbst, of Virginia, to be Chief Financial Officer, Department of Commerce.

Ronald J. Binz, of Colorado, to be a Member of the Federal Energy Regulatory Commission for the term expiring June 30, 2018.

James Costos, of California, to serve concurrently and without additional compensation as Ambassador to Andorra.

Patrick Hubert Gaspard, of New York, to be Ambassador to the Republic of South Africa.

Steve A. Linick, of Virginia, to be Inspector General, Department of State.

James C. Swan, of California, to be Ambassador to the Democratic Republic of the Congo.

Kirk W.B. Wagar, of Florida, to be Ambassador to the Republic of Singapore.

Alexa Lange Wesner, of Texas, to be Ambassador to the Republic of Austria.

Alejandro Nicholas Mayorkas, of the District of Columbia, to be Deputy Secretary of Homeland Security.

35 Army nominations in the rank of general.

24 Navy nominations in the rank of admiral.

Routine lists in the Navy. **Pages S5510–11**

Measures Placed on the Calendar: **Pages S5492, S5510**

Executive Communications: **Pages S5493–95**

Petitions and Memorials: **Pages S5495–97**

Additional Cosponsors: **Pages S5499–S5501**

Statements on Introduced Bills/Resolutions: **Pages S5501–07**

Additional Statements: **Pages S5491–92**

Notices of Hearings/Meetings: **Page S5507**

Authorities for Committees to Meet: **Pages S5507–08**

Privileges of the Floor: **Page S5508**

Record Votes: Four record votes were taken today. (Total—168) **Pages S5329, S5330, S5356–57**

Adjournment: Senate convened at 9:30 a.m. and adjourned at 7:20 p.m., until 12:15 p.m. on Friday, June 28, 2013. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S5510.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Appropriations: Committee ordered favorably reported the following business items:

An original bill (S. 1243) making appropriations for Transportation, Housing and Urban Development, and Related Agencies for the fiscal year ending September 30, 2014; and

An original bill (S. 1245) making appropriations for Energy and Water Development for the fiscal year ending September 30, 2014.

NOMINATIONS

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine the nominations of Melvin L. Watt, of North Carolina, to be Director of the Federal Housing Finance Agency, who was introduced by Senators Hagan and Burr, Jason Furman, of New York, to be a Member and Chairman of the Council of Economic Advisers, who was introduced by Senator Schumer, Kara Marlene Stein, of Maryland, who was introduced by Senator Reed, and Michael Sean Piwowar, of Virginia, who was introduced by Senator Crapo, both to be a Member of the Securities and Exchange Commission, and Richard T. Metsger, of Oregon, to be a Member of the National Credit Union Administration Board, who was introduced by Senator Merkley, after the nominees testified and answered questions in their own behalf.

EXPLOSIONS IN WEST, TEXAS AND GEISMAR, LOUISIANA

Committee on Environment and Public Works: Committee concluded an oversight hearing to examine Federal risk management and emergency planning programs to prevent and address chemical threats, including the events leading up to the explosions in West, Texas and Geismar, Louisiana, after receiving testimony from Rafael Moure-Eraso, Chairperson, Chemical Safety Board; Barry N. Breen, Principal Deputy Assistant Administrator, Office of Solid Waste and Emergency Response, Environmental Protection Agency; Randall L. Sawyer, Contra Costa Health Services, Martinez, California; Richard Webre, Ascension Parish Office of Homeland Security, Gonzales, Louisiana; Paul Orum, Coalition to Prevent Chemical Disasters, Washington, D.C.; M. Sam Mannan, Texas A&M University System Mary Kay O'Connor Process Safety Center, College Station; and Kim Nibarger, United Steelworkers, Pittsburgh, Pennsylvania.

DEPARTMENT OF ENERGY CONTRACT MANAGEMENT

Committee on Homeland Security and Governmental Affairs: Subcommittee on Financial and Contracting Oversight concluded a hearing to examine contract management by the Department of Energy, after receiving testimony from Gregory H. Friedman, Inspector General, and Jack Surash, Deputy Assistant Secretary for Acquisition and Project Management, Office of Environmental Management, both of the Department of Energy; Joseph F. Bader, Board Member, Defense Nuclear Facilities Safety Board; Michael Graham, Bechtel National, Inc., Washington, D.C.; Michael McKlevy, CH2M HILL Constructors, Inc., Englewood, Colorado; and Frank Sheppard, Parsons Salt Waste Processing Facility, Pasadena, California.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 41 public bills, H.R. 2529–2569; 1 private bill, H.R. 2570; and 5 resolutions, H. Res. 280–284 were introduced. **Pages H4141–45**

Additional Cosponsors: **Pages H4145–46**

Reports Filed: There were no reports filed today.

Speaker: Read a letter from the Speaker wherein he appointed Representative Poe (TX) to act as Speaker pro tempore for today. **Page H4083**

Recess: The House recessed at 11:13 a.m. and reconvened at 12 noon. **Page H4091**

Chaplain: The prayer was offered by the guest chaplain, Chaplain Angel Berrios, 308th Military Intelligence Battalion, Fort Meade, Maryland. **Page H4091**

Recess: The House recessed at 1:54 p.m. and reconvened at 2:09 p.m. **Page H4105**

Outer Continental Shelf Transboundary Hydrocarbon Agreements Authorization Act: The House passed H.R. 1613, to amend the Outer Continental Shelf Lands Act to provide for the proper Federal management and oversight of transboundary hydrocarbon reservoirs, by a recorded vote of 256 ayes to 171 noes, Roll No. 293. **Pages H4096–H4108**

Rejected the Garcia motion to recommit the bill to the Committee on Natural Resources with instructions to report the same back to the House

forthwith with an amendment, by a recorded vote of 194 ayes to 232 noes, Roll No. 292. **Pages H4106–07**

Pursuant to the rule, the amendment in the nature of a substitute recommended by the Committee on Natural Resources now printed in the bill shall be considered as adopted. **Pages H4098**

Agreed by unanimous consent that during the consideration of H.R. 1613 and H.R. 2231 pursuant to H. Res. 274, amendment numbered 1 printed in part A of House Report 113–131 and amendments numbered 5 and 10 printed in part B of that report be modified. **Pages H4096–98**

Rejected:

Grayson amendment (No. 1 printed in part A of H. Rept. 113–131), as modified, that sought to ensure that no portion of this legislation is construed as affecting the right of any state to prohibit the management, leasing, developing, and use of lands (including offshore oil drilling) beneath navigable waters within its boundaries (by a yea-and-nay vote of 213 yeas to 213 nays, Roll No. 291).

Pages H4104–06

H. Res. 274, the rule providing for consideration of the bills (H.R. 1613), (H.R. 2231), and (H.R. 2410), was agreed to yesterday, June 26th.

Suspension—Proceedings Resumed: The House agreed to suspend the rules and pass the following measure which was debated yesterday, June 26th:

Amending title 10, United States Code, to require an Inspector General investigation of allegations of retaliatory personnel actions taken in response to making protected communications regarding sexual assault: H.R. 1864, to amend title 10, United States Code, to require an Inspector General investigation of allegations of retaliatory personnel actions taken in response to making protected communications regarding sexual assault, by a ⅔ yea-and-nay vote of 423 yeas with none voting "nay", Roll No. 294. **Pages H4108–09**

Offshore Energy and Jobs Act: The House began consideration of H.R. 2231, to amend the Outer Continental Shelf Lands Act to increase energy exploration and production on the Outer Continental Shelf, provide for equitable revenue sharing for all coastal States, and implement the reorganization of the functions of the former Minerals Management Service into distinct and separate agencies. Consideration is expected to continue tomorrow, June 28th. **Pages H4109–32**

Pursuant to the rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 113–16 shall be considered as an original bill for the purpose of amendment under the five-minute rule, in lieu of the amendment in the nature of a substitute recommended by the Committee on Natural Resources now printed in the bill. **Page H4115**

Agreed by unanimous consent that during the consideration of H.R. 1613 and H.R. 2231 pursuant to H. Res. 274, amendment numbered 1 printed in part A of House Report 113–131 and amendments numbered 5 and 10 printed in part B of that report be modified. **Pages H4096–98**

Agreed to:

Brady (TX) amendment (No. 1 printed in part B of H. Rept. 113–131) that requires the Secretary of the Interior to include those areas requested by State Governors in any environmental review conducted or statement prepared for the leasing program under the National Environmental Policy Act; **Pages H4120–21**

Lamborn amendment (No. 3 printed in part B of H. Rept. 113–131) that prohibits the authorizing of leases under the Outer Continental Shelf Lands Act to any person in violation of various Iranian sanctions; **Pages H4122–23**

Cassidy amendment (No. 6 printed in part B of H. Rept. 113–131) that stipulates that no later than 60 days after the date of enactment of H.R. 2231, the Secretary of the Interior shall issue rules to provide more clarity, certainty, and stability to the revenue streams contemplated by the Gulf of Mexico Energy Security Act of 2006; **Pages H4126–27**

Flores amendment (No. 4 printed in part B of H. Rept. 113–131) that limits Bureau of Ocean Energy and Ocean Energy Safety Service activities related to the National Ocean Policy developed under Executive Order 13547. Requires a report be submitted to Congress identifying expenditures for fiscal years 2011–2013 by the Bureau of Ocean Energy, Ocean Energy Safety Service, and their predecessor agencies (by a recorded vote of 233 ayes to 190 noes, Roll No. 296); **Pages H4123–25, H4130–31**

Cassidy amendment (No. 5 printed in part B of H. Rept. 113–131), as modified, that lifts the offshore energy revenue sharing cap, as provided by the Gulf of Mexico Energy Security Act of 2006, from $500 million to $999 million for each of fiscal years 2024 through 2055 (by a recorded vote of 238 ayes to 185 noes, Roll No. 297); and **Pages H4125–26, H4231**

Rigell amendment (No. 7 printed in part B of H. Rept. 113–131) that requires the Bureau of Ocean Energy Management to permit seismic testing in the Atlantic Outer Continental Shelf of the United States by December 31, 2013 (by a recorded vote of 234 ayes to 191 noes, Roll No. 298). **Pages H4127–29, H4131–32**

Rejected:

Hastings (FL) amendment (No. 2 printed in part B of H. Rept. 113–131) that sought to strike section 204 because it eliminates environmental evaluation typically provided by an Environmental Impact Study (EIS) and because conducting a single multisale EIS for decisions with different timelines creates unnecessary conflicts in the EIS process (by a recorded vote of 188 ayes to 233 noes, Roll No. 295). **Pages H4121–22, H4129–30**

H. Res. 274, the rule providing for consideration of the bills (H.R. 1613), (H.R. 2231), and (H.R. 2410), was agreed to yesterday, June 26th.

Recess: The House recessed at 5:22 p.m. and reconvened at 6 p.m. **Page H4129**

Adjournment Resolution: The House agreed to S. Con. Res. 19, providing for a conditional adjournment or recess of the Senate and an adjournment of the House of Representatives. **Page H4140**

Presidential Message: Read a message from the President wherein he notified the Congress of his intent to suspend the designation of Bangladesh as a beneficiary developing country under the Generalized System of Preferences program—referred to the Committee on Ways and Means and ordered to be printed (H. Doc. 113–42). **Page H4129**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on pages H4129 and H4135.

Quorum Calls—Votes: Two yea-and-nay votes and six recorded votes developed during the proceedings of today and appear on pages H4105, H4107, H4107–08, H4108–09, H4129–30, H4130–31, H4131 and H4131–32. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 8:11 p.m.

Committee Meetings

MISCELLANEOUS MEASURE; AND REVISED REPORT ON THE SUBALLOCATION OF BUDGET ALLOCATIONS FOR FY 2014

Committee on Appropriations: Full Committee held a markup on Transportation, Housing and Urban Development and Relate Agencies Appropriations Bill, Fiscal Year 2014; and Revised Report on the Suballocation of Budget Allocations for FY 2014. The bill was ordered reported, as amended. The Revised Report on the Suballocation of the Budget Allocations for FY 2014 was approved, without amendment.

SCHOOL MEAL REGULATIONS: DISCUSSING THE COSTS AND CONSEQUENCES FOR SCHOOLS AND STUDENTS

Committee on Education and the Workforce: Subcommittee on Early Childhood, Elementary, and Secondary Education held a hearing entitled "School Meal Regulations: Discussing the Costs and Consequences for Schools and Students". Testimony was heard from Kay E. Brown, Director, Education, Workforce, and Income Security, Government Accountability Office; Megan Schaper, Food Service Director, State College Area School District, State College, Pennsylvania; Sandra E. Ford, Director of Food and Nutrition Services, Manatee County School District, Bradenton, Florida; and a public witness.

TANGLE OF TRADE BARRIERS: HOW INDIA'S INDUSTRIAL POLICY IS HURTING U.S. COMPANIES

Committee on Energy and Commerce: Subcommittee on Commerce and Manufacturing, and Trade held a hearing entitled "A Tangle of Trade Barriers: How India's Industrial Policy is Hurting U.S. Companies". Testimony was heard from public witnesses.

EQUIPPING CARRIERS AND AGENCIES IN THE WIRELESS ERA

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled "Equipping Carriers and Agencies in the Wireless Era". Testimony was heard from Teri Takai, Department of Defense; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Foreign Affairs: Full Committee held a markup on H.R. 1897, the "Vietnam Human Rights Act of 2013"; and H. Res. 131, concerning the ongoing conflict in the Democratic Republic of the Congo and the need for international efforts toward long-term peace, stability, and observance of human rights; H. Res. 273, resolution expressing the sense of the House of Representatives that the President should nominate a qualified and independent individual for the position of Inspector General of the Department of State and Broadcasting Board of Governors to be confirmed by the Senate without delay; and H. Res. 222, recognizing the long-term partnership and friendship between the United States and the Hashemite Kingdom of Jordan, working together towards peace and security in the Middle East. The following measures were ordered reported, without amendment: H.R. 1897 and H. Res. 273. The following measures were ordered reported, as amended: H. Res. 131 and H. Res. 222.

ADDRESSING THE NEGLECTED DISEASES TREATMENT GAP

Committee on Foreign Affairs: Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations held a hearing entitled "Addressing the Neglected Diseases Treatment Gap". Testimony was heard from Lee Hall, M.D., Chief, Parasitology and International Programs Branch, Division of Microbiology and Infectious Diseases, National Institute of Allergy and Infectious Diseases, National Institutes of Health, Department of Health and Human Services; Jesse Goodman, M.D., Chief Scientist, Food and Drug Administration Department of Health and Human Services; and public witnesses.

NEXT STEPS IN THE U.S.—REPUBLIC OF KOREA ALLIANCE

Committee on Foreign Affairs: Subcommittee on Asia and the Pacific; and Subcommittee on Terrorism, Nonproliferation, and Trade held a joint hearing entitled "Next Steps in the U.S.—Republic of Korea Alliance". Testimony was heard from James Zumwalt, Acting Assistant Secretary, Bureau of East Asian and Pacific Affairs, Department of State; and Thomas M. Countryman, Assistant Secretary, International Security and Nonproliferation, Department of State.

MANAGEMENT OF RED SNAPPER

Committee on Natural Resources: Full Committee held a hearing entitled "The Management of Red Snapper in the Gulf of Mexico under the Magnusom-Stevens Fishery Conversation and Management Act". Testimony was heard from Eric Schwaab, Acting Assistant Secretary for Conservation and Management, National Oceanic and Atmospheric Administration, Department of Commerce; Kevin Anson, Vice-Chairman, Gulf of Mexico Fishery Management Council; Christopher Blankenship, Director of Marine Resources, Alabama Department of Conservation and Natural Resources; Jessica McCawley, Director, Division of Marine Fisheries Management, Florida Fish and Wildlife Conservation Commission; Randy Pausina, Assistant Secretary, Office of Fisheries, Louisiana Department of Wildlife and Fisheries; Dale Diaz, Director Office of Marine Fisheries, Mississippi Department of Marine Resources; Robin Riechers, Director, Coastal Fisheries Division, Texas Parks and Wildlife Department; and public witnesses.

OUTDOOR RECREATION OPPORTUNITIES ON STATE, LOCAL AND FEDERAL LANDS

Committee on Natural Resources: Subcommittee on Public Lands and Environmental Regulation held a hearing entitled "Outdoor Recreation Opportunities on State, Local and Federal Lands". Testimony was heard Lynn Jackson, Grand County Council, Utah; and a public witness.

BORDER SECURITY OVERSIGHT: IDENTIFYING AND RESPONDING TO CURRENT THREATS

Committee on Oversight and Government Reform: Subcommittee on National Security held a hearing entitled "Border Security Oversight: Identifying and Responding to Current Threats". Testimony was heard from Michael Fisher, Chief, U.S. Board Patrol, Customs and Border Protection; David J. Murphy, Assisting Acting Commissioner, Customs and Border Protection; Thomas Homan, Executive Associate Director, Enforcement and Removal Operations, Immigration and Customs Enforcement; Rebecca Gambler, Director, Homeland Security and Justice, Government Accountability Office; and a public witness.

RISING SOCIAL SECURITY DISABILITY CLAIMS AND THE ROLE OF ADMINISTRATIVE LAW JUDGES

Committee on Oversight and Government Reform: Subcommittee on Energy Policy, Health Care and Entitlements held a hearing entitled "Oversight Of Rising Social Security Disability Claims and the Role of Administrative Law Judges". Testimony was heard from Senator Coburn; Glen E. Sklar, Deputy Commissioner, Disability Adjudication and Review, Social Security Administration; Larry J. Butler, Administrative Law Judge, Miami Office of Disability Adjudication and Review, Social Security Administration; J. E. Sullivan, Administrative Law Judge, Pittsburgh Office of Administrative Law Judges, Department of Labor; Drew A. Swank, Administrative Law Judge, Pittsburgh Office Of Administrative Law Judges, Department of Labor; and a public witness.

EVALUATION OF ENERGY SAVINGS PERFORMANCE CONTRACTS

Committee on Science, Space, and Technology: Subcommittee on Oversight; and Subcommittee on Energy held a joint hearing entitled "Green Buildings—An Evaluation of Energy Savings Performance Contracts". Testimony was heard from Kathleen Hogan, Deputy Assistant Secretary for Energy Efficiency, Department of Energy; Woodrow Whitlow, Jr., Associate Administrator, Mission Support Directorate, National Aeronautics and Space Administration; and public witnesses.

MOBILE MEDICAL APP ENTREPRENEURS

Committee on Small Business: Subcommittee on Health and Technology held a hearing entitled "Mobile Medical App Entrepreneurs: Changing the Face of Health Care". Testimony was heard from public witnesses.

NATIONAL RAIL POLICY: EXAMINING GOALS, OBJECTIVES, AND RESPONSIBILITIES

Committee on Transportation and Infrastructure: Subcommittee on Railroad, Pipelines, and Hazardous Materials held a hearing entitled "National Rail Policy: Examining Goals, Objectives, and Responsibilities". Testimony was heard from Joseph Szabo, Administrator, Federal Railroad Administration; and public witnesses.

ASSESSING VA'S CAPITAL INVESTMENT OPTIONS TO PROVIDE VETERANS' CARE

Committee on Veterans' Affairs: Full Committee held a hearing entitled "Assessing VA's Capital Investment Options to Provide Veterans' Care". Testimony was heard from Robert A. Sunshine, Deputy Director, Congressional Budget Office; and Robert Petzel, M.D., Under Secretary for Health Veterans, Health Administration, Department of Veterans Affairs.

MISCELLANEOUS MEASURES

Committee on Veterans' Affairs: Subcommittee on Oversight and Investigations held a markup on H.R. 1490, the "Veterans' Privacy Act"; H.R. 1792, the "Infectious Disease Reporting Act"; and H.R. 1804, the "Foreign Travel Accountability Act". The following bills were ordered reported, as amended: H.R. 1792; H.R. 1490; and H.R. 1804.

INTERNAL REVENUE SERVICE'S REVIEW OF TAXPAYER TARGETING PRACTICES

Committee on Ways and Means: Full Committee held a hearing entitled "The Status of Internal Revenue Service's Review of Taxpayer Targeting Practices". Testimony was heard from Daniel Werfel, Principal Deputy Commissioner and Deputy Commissioner for Services and Enforcement, Internal Revenue Service.

MISCELLANEOUS MEASURE

Committee on the Judiciary: Full Committee held a markup on H.R. 1772, the "Legal Workforce Act". The bill was ordered reported, as amended.

MISCELLANEOUS MEASURE

Committee on the Judiciary: Full Committee held a markup on H.R. 2131, the "Supplying Knowledge-based Immigrants and Lifting Levels of STEM Visas Act". The bill was ordered reported, as amended.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D584)*

H.R. 475, to amend the Internal Revenue Code of 1986 to include vaccines against seasonal influenza within the definition of taxable vaccines. Signed on June 25, 2013. (Public Law 113–15)

COMMITTEE MEETINGS FOR FRIDAY, JUNE 28, 2013

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

Committee on Armed Services, Subcommittee on Intelligence, Emerging Threats and Capabilities, hearing entitled "Past, Present, and Future Irregular Warfare Challenges: Private Sector Perspectives", 10 a.m., 2118 Rayburn.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled "Examining Reforms to Improve the Medicare Part B Drug Program for Seniors", 10 a.m., 2123 Rayburn.

Committee on the Judiciary, Subcommittee on Regulatory Reform, Commercial and Antitrust Law, hearing on legislation regarding the "Regulatory Flexibility Improvements Act of 2013", 9 a.m., 2141 Rayburn.

Committee on Oversight and Government Reform, Full Committee, business meeting to consider a motion or resolution concerning whether Lois Lerner, waived her Fifth Amendment privilege against self-incrimination when she made a statement at the Committee hearing on May 22, 2013, 9 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Research and Technology, markup on H.R. 1786, the "National Windstorm Impact Reduction Act Reauthorization of 2013", 9 a.m., 2318 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Disability Assistance and Memorial Affairs, hearing on H.R. 1288, the "World War II Merchant Mariner Service Act"; H.R. 1494, the "Blue Water Navy Ship Accountability Act"; H.R. 1623, the "VA Claims Efficiency Through Information Act of 2013"; H.R. 1809, to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to provide notice of average times for processing claims and percentage of claims approved, and for other purposes; H.R. 2086, the "Pay As You Rate Act"; H.R. 2138, the "Ending VA Claims Disability Backlog and Accountability Act"; H.R. 2189, to establish a commission or task force to evaluate the backlog of disability claims of the Department of Veterans Affairs; H.R. 2341, the "Veterans Pension Protection Act"; H.R. 2382, the "Prioritizing Urgent Claims for Veterans Act"; and H.R. 2423, to improve the authority of the Secretary of Veterans Affairs to enter into contracts with private physicians to conduct medical disability examinations; 10 a.m., 334 Cannon.

Next Meeting of the **SENATE**

12:15 p.m., Friday, June 28

Senate Chamber

Program for Friday: Senate will meet in a pro forma session, unless the Senate receives a message that the House of Representatives has agreed to S. Con. Res. 19, Adjournment Resolution.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Friday, June 28

House Chamber

Program for Friday: Complete consideration of H.R. 2231—Offshore Energy and Jobs Act.

Extensions of Remarks, as inserted in this issue

HOUSE

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